

2025 EDITION

**ELECTION LAWS OF ARKANSAS
AND CONSTITUTION
OF THE STATE OF
ARKANSAS OF 1874**



Issued by
ELECTIONS DIVISION
OFFICE OF SECRETARY OF STATE
COLE JESTER



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COLE JESTER

ARKANSAS SECRETARY OF STATE

Greetings,

In 1836, our first state Constitution was adopted. It required that “returns for all elections of officers who are to be commissioned by the governor, and for members of the general assembly, shall be made to the secretary of state.” (Article VII, Section 8) Since then, the responsibilities of the Secretary of State’s office have increased, but the administration of elections and recording of election results remain this office’s core duties. Our Elections Division is responsible for maintaining election records and assisting county election officials.

Additionally, the Secretary of State serves the State Board of Election Commissioners as Chairperson, the state’s chief election official. In this capacity, I am pleased to provide you with this compendium of Arkansas’s election laws, as well as our current Constitution. Since the issuance of the 2023 edition of this work, the Arkansas General Assembly has considered dozens of bills bearing on elections and passed many of them into law. All are of vital importance to candidates, voters, poll workers, canvassers, and the many others who will take part in the next election cycle. They will contribute to the pursuit of ordered liberty via our electoral processes. The rule of law is the foundation of our way of life, and I am proud to contribute to its thriving.

My staff and I are committed to helping Arkansas’s elections run with excellence. This is both our pleasure and our constitutional mandate. If you have any questions about election law or the general election process, I invite you to contact the staff of the Elections Division, who are always ready to help. The Elections Library may be reached at 1 (800) 482-1127, and the telephone number for Voter Services is 1 (800) 247-3312.

With prayers for the blessing and flourishing of our great state and nation,

A handwritten signature in black ink that reads "Cole Jester". The signature is fluid and cursive, with a long horizontal stroke extending from the end.

Cole Jester
Arkansas Secretary of State

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Election Laws of Arkansas and Constitution of the State of Arkansas of 1874

TITLE 3 ALCOHOLIC BEVERAGES

CHAPTER.

- 3. PROHIBITED PRACTICES.
- 8. LOCAL OPTION.
- 9. ON-PREMISES CONSUMPTION.

CHAPTER 3 PROHIBITED PRACTICES

SUBCHAPTER 2 — PARTICULAR PRACTICES PROHIBITED

SECTION.

3-3-210. Sale on Sunday or early weekday mornings.

3-3-210. Sale on Sunday or early weekday mornings.

(a)(1) A person who sells intoxicating alcoholic liquor on Sunday, except as such sales are authorized by §§ 3-9-215 and 3-9-216, and subdivision (a)(3) of this section, or between 1:00 a.m. and 7:00 a.m. on weekdays is guilty of a violation and for the first offense shall be punished by a fine of not less than one hundred dollars (\$100) nor more than two hundred fifty dollars (\$250).

(2) For the second and subsequent offenses, the person is guilty of a Class B misdemeanor.

(3) A person that holds a permit that allows on-premises consumption of alcoholic beverages may operate on Sundays between the hours of 10:00 a.m. and 12:00 midnight.

(4)(A) A city, town, or county may establish by ordinance a lesser period of time than provided in subdivision (a)(3) of this section during which on-premises consumption of alcoholic beverages may occur at on-premises outlets.

(B) The city, town, or county ordinance shall specify the on-premises outlets that are subject to the more restrictive hours of operation on a Sunday.

(5) A violation of a more restrictive city, town, or county ordinance is not an administrative violation against the Alcoholic Beverage Control Division on-premises consumption permit and shall be treated and disposed of under § 3-4-407.

(6) The hours of operation of private club permitted establishments shall continue to be controlled by Alcoholic Beverage Control Division rules.

(b)(1)(A) As a further exception to the Sunday sales prohibition set out in subsection (a) of this section, counties and cities in the state may refer to the voters at an election the issue of whether to authorize the sale of alcoholic beverages for off-premises consumption on Sundays between the hours of 10:00 a.m. and 12:00 midnight or within a lesser period within the hours as may be provided under a referendum election conducted in accordance with the following:

(i) A referendum election may be called in a city by a petition filed with the city clerk signed by fifteen percent (15%) of the qualified electors who cast a vote in the city for the Office of Governor in the last general election in which the office appeared on the ballot; or

(ii) A referendum election may be called in a county by a petition filed with the county clerk signed by fifteen percent (15%) of the qualified electors who cast a vote in the county for the Office of Governor in the last general election in which the office appeared on the ballot.

(B) The Sunday sale of alcoholic beverages authorized in this subsection shall be limited to those businesses within the county or city that possess a current and valid license for the sale of alcoholic beverages issued by the Alcoholic Beverage Control Division.

(2)(A) The election under this subsection shall be conducted on a citywide or countywide basis.

(B) All qualified electors within the city or county, as the case may be, shall be eligible to vote even though they may reside in a dry area.

(C) The election under this subsection on the Sunday sales question shall be held in accordance with the procedures established for on-premises consumption elections by § 3-9-201 et seq., and the ballot for the election shall be printed substantially as follows:

“() FOR THE OFF-PREMISES SALE OF ALCOHOLIC BEVERAGES ON SUNDAY IN (NAME OF CITY OR COUNTY), ARKANSAS, AS AUTHORIZED BY LAW.

() AGAINST THE OFF-PREMISES SALE OF ALCOHOLIC BEVERAGES ON SUNDAY IN (NAME OF CITY OR COUNTY), ARKANSAS, AS AUTHORIZED BY LAW.”.

(3)(A) The vote of the majority of the electors in a citywide election approving Sunday sales shall authorize the sales in all permitted outlets located within the incorporated areas of the city only.

(B) The vote of the majority of the electors in a countywide election approving Sunday sales shall authorize the sales in all permitted outlets located anywhere within the county.

(4) The vote of the majority of the electors against the off-premises sale of alcoholic beverages on Sunday has no effect on sales of mixed drinks in hotels and restaurants as authorized by § 3-9-215 or § 3-9-216 or any other on-premises-consumption permitted outlet.

(c) Notwithstanding the authority granted to counties and cities in this section, wholesale distributors of intoxicating alcoholic liquor may not sell or deliver any alcoholic beverages to retailers on a Sunday.

History. Acts 1943, No. 218, § 1; 1959, No. 56, § 1; A.S.A. 1947, § 48-901; Acts 1989, No. 426, § 1; 1999, No. 857, § 1; 2005, No. 1994, § 367; 2007, No. 1017, § 1; 2009, No. 294, § 2; 2009, No. 763, § 1.

Amendments. The 2005 amendment inserted the subdivision designations in (a); substituted “violation” for “misdemeanor” in (a)(1); and, in (a)(2), inserted “Class B” and deleted “and punished by a fine of not less than two hundred fifty dollars (\$250) nor more than five hundred dollars (\$500) or by imprisonment in the county jail for no fewer than ten (10) days nor more than six (6) months or

both so fined and imprisoned in the discretion of the court or jury” from the end.

The 2007 amendment inserted “3-9-216” and made related changes in (a)(1).

The 2009 amendment by No. 294, in (a), substituted “subdivision (a)(3) of this section” for “3-9-401 et seq.” in (a)(1), and inserted (a)(3); rewrote (b); and made minor stylistic changes.

The 2009 amendment by No. 763 inserted (a)(4) through (a)(6).

Meaning of “this act”. See note to § 3-3-205.

RESEARCH REFERENCES

Ark. L. Rev. Comment, Arkansas’s Response to Granholm v. Heald: The Small Farm Winery Law Provides an

Appropriate Remedy for Commerce Clause Violations, 61 Ark. L. Rev. 487.

CASE NOTES

ANALYSIS

Evidence.
Intoxicating Liquor.
Local Regulations.
Multiple Offenses.
Prior Convictions.

Evidence.

Circumstantial evidence sufficient to support conviction for both sale of liquor on Sunday under prior similar statute and sale of untaxed liquor. *Miller v. City of Helena*, 224 Ark. 1016, 277 S.W.2d 841 (1955).

Intoxicating Liquor.

Beer containing 5% alcohol is an intoxicating liquor within the meaning of this section. *Wald v. State ex rel.*

Robinson, 196 Ark. 1180, 111 S.W.2d 553 (1937) (decision under prior law).

Local Regulations.

The penalty provision of a city ordinance which prohibited private clubs from serving or allowing consumption of mixed drinks between certain hours was not in conflict with this section since § 3-9-221 describing on-premise consumption at private clubs specifically provides that consumption at a private club is not a “sale.” *Tompos v. City of Fayetteville*, 280 Ark. 435, 658 S.W.2d 404 (1983).

Multiple Offenses.

This section provides for enhanced punishment for second and subsequent offenses, not for second and subsequent convictions. *Strode v. State*, 259 Ark. 859, 537 S.W.2d 162 (1976).

Prior Convictions.

Defendant was on notice from the time the informations were filed that a prior conviction was charged in each and defendant was not denied benefit of notice and the opportunity to prepare and respond accordingly. *Strode v. State*, 259 Ark. 859, 537 S.W.2d 162 (1976).

Cited: *Bryant v. State*, 246 Ark. 872, 440 S.W.2d 534 (1969); *Alpha Zeta Chapter of Pi Kappa Alpha Fraternity v. Sullivan*, 293 Ark. 576, 740 S.W.2d 127 (1987).

CHAPTER 8

LOCAL OPTION

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

3-8-101. When elections held.

3-8-102. Effect of dry vote — Retail dealers — Definition.

SECTION.

3-8-103. Effect of dry vote — Wholesalers and manufacturers.

3-8-101. When elections held.

Local option elections to determine the legality or illegality of the manufacture, sale, bartering, loaning, or giving away of intoxicating liquors shall be held only on the regular biennial November general election days.

History. Acts 1955, No. 15, § 1; A.S.A. 1947, § 48-824.

3-8-102. Effect of dry vote — Retail dealers — Definition.

(a) Retail dealers in alcoholic beverages shall be allowed a period of sixty (60) days in which to dispose of stock after the final determination of the results of local option election by which the political subdivision in which the dealer is located shall have voted against the manufacture and sale of alcoholic beverages.

(b) During the sixty-day period defined in subsection (a) of this section, the retailer may not purchase any alcoholic beverages, but must restrict his or her business to the sale of those items on hand as of the date the election results are finally determined.

(c) As used in this section, “final determination” means the date of certification of the results of an uncontested election or, if contested, the date of the issuance of the mandate by the court finally determining an election contest.

History. Acts 1957, No. 212, §§ 1-3; A.S.A. 1947, §§ 48-826 — 48-828.

3-8-103. Effect of dry vote — Wholesalers and manufacturers.

(a) It shall be lawful for any warehousing and office facility used by an authorized wholesaler of alcoholic beverages or manufacturing facility of a producer of native wines, or the manufacturing facility of a producer of beer, or the facilities of an alcoholic beverage distiller, blender, or rectifier, to continue in operation and to sell or give away, where previously authorized by law, such products in the facilities or existing restaurants appurtenant thereto, and utilized to promote the word-of-mouth advertising of such products, after the political subdivision in which such facility is located votes against the manufacture or sale of alcoholic beverages, provided that the facilities were in use or under construction for use prior to the filing of the petitions for local option election.

(b) Sales from the establishment shall be limited to sales to authorized retailers or native wine wholesalers for resale in areas where the sale of alcoholic beverages is lawful.

History. Acts 1961, No. 206, §§ 1, 2; 1965, No. 492, § 1; 1979, No. 145, § 1; 1979, No. 1056, § 1; A.S.A. 1947, §§ 48-829, 48-830.

SUBCHAPTER 2 — PROCEEDINGS PURSUANT TO INITIATED ACT

SECTION.

3-8-201. Definition.

3-8-202. Sections 3-8-201 — 3-8-203, 3-8-205 — 3-8-209 cumulative — Construction.

3-8-203. Applicability of §§ 3-8-201 — 3-8-203, 3-8-205 — 3-8-209.

3-8-204. [Repealed.]

3-8-205. Determination of sufficiency of petition — Calling of election.

SECTION.

3-8-206. Conduct of election.

3-8-207. Mandamus of county officials.

3-8-208. Election results — Effects.

3-8-209. Sales or furnishing place for sales in dry territory prohibited — Penalty.

3-8-210. Authority to continue to issue sale permits.

3-8-201. Definition.

As used in this subchapter, unless the context otherwise requires, “intoxicating liquor” includes any beverage containing more than one-half of one percent (0.5%) of alcohol by weight.

History. Init. Meas. 1942, No. 1, § 2, Acts 1943, p. 998; A.S.A. 1947, § 48-802.

3-8-202. Sections 3-8-201 — 3-8-203, 3-8-205 — 3-8-209 cumulative — Construction.

It is expressly declared that §§ 3-8-201 — 3-8-203 and 3-8-205 — 3-8-209 shall be cumulative to the liquor laws now in force in this state. These sections shall at all times be construed so as to permit, upon petition of fifteen percent (15%) of the qualified electors in any area to be affected, the qualified voters therein at one (1) election to determine whether or not all alcoholic beverages, including all kinds and types of whiskey, beer, and wine, shall be manufactured or sold, bartered, loaned, or given away therein.

History. Init. Meas. 1942, No. 1, § 6, Acts 1943, p. 998; A.S.A. 1947, § 48-806.

3-8-203. Applicability of §§ 3-8-201 — 3-8-203, 3-8-205 — 3-8-209.

Nothing in §§ 3-8-201 — 3-8-203 and 3-8-205 — 3-8-209 is to be construed to affect manufacturers who sell their product exclusively to wholesalers.

History. Init. Meas. 1942, No. 1, § 2, Acts 1943, p. 998; Acts 1985, No. 266, § 2; A.S.A. 1947, § 48-802.

3-8-204. [Repealed.]

Publisher’s Notes. This section, concerning petition procedure, was repealed by Acts 2013, No. 1432, § 1. The section was derived from Acts 1977, No. 341, §§ 1-3; A.S.A. 1947, §§ 48-801.1 — 48-801.3; Acts 1997, No. 449, § 1.

3-8-205. Determination of sufficiency of petition — Calling of election.

(a) If the petition is determined to be sufficient under § 3-8-801 et seq., the county clerk shall certify that finding to the county board of election commissioners, and the question shall be placed on the ballot in the county, township, municipality, ward, or precinct at the next biennial general election as provided in § 3-8-101.

(b)(1) If an appeal is taken from the certification of the county clerk, it shall be taken within ten (10) days and shall be considered by the circuit court within ten (10) days, or as soon as practicable, after the appeal is lodged with the court.

(2) The circuit court shall render its decision within thirty (30) days thereafter.

(c) If an appeal is taken, the election shall be had no sooner than sixty-five (65) days after the appeal is determined, if the decision is in favor of the petitioners.

(d)(1)(A) The decision shall be certified immediately to the county board of election commissioners, and the day for the election shall be fixed by the county board of election commissioners

for not earlier than sixty-five (65) days nor later than ninety (90) days after the certification of the decision of the circuit court.

(B) Any appeal from the final decision of the circuit court shall be taken within ten (10) days and shall be advanced and immediately determined by the Supreme Court.

(2) In that event, the county board of election commissioners may, in its discretion, delay the election until after the final decision of the Supreme Court.

(3) If the decision is in favor of the petitioners, then the county board of election commissioners shall set the day for the election, which shall be not earlier than sixty-five (65) days nor later than ninety (90) days after the final decision of the Supreme Court.

(e) Except as provided in this section, a petition for local option election shall be governed by § 7-9-101 et seq. and the Disclosure Act for Initiative Proceedings, § 3-8-701 et seq.

History. Init. Meas. 1942, No. 1, §§ 1, 4, Acts 1943, p. 998; Acts 1985, No. 266, § 1; A.S.A. 1947, §§ 48-801, 48-804; Acts 1993, No. 243, § 1; 1997, No. 449, § 2; 1999, No. 637, § 1; 2007, No. 1049, § 2; 2013, No. 1432, § 2; 2015, No. 1251, § 1.

3-8-206. Conduct of election.

(a)(1) The county board of election commissioners of the particular county shall cause the question to be placed on the ballot at the general election in the following form:

“[] FOR the Manufacture or Sale of Intoxicating Liquors

[] AGAINST the Manufacture or Sale of Intoxicating Liquors”.

(2) Each elector shall be instructed on the ballot to vote FOR or AGAINST the question by placing an appropriate mark.

(b) The county board of election commissioners shall count the votes cast on the question of the manufacture and sale of alcoholic beverages in the designated area and shall deliver its certificate declaring the result of the election, together with the election returns, within three (3) days after the date of the election, to the county clerk of the county.

(c) Upon petition of twenty-five (25) interested legal voters in the territory affected, within ten (10) days after the date of the election, the county board of election commissioners shall immediately recount the votes and declare the result of the election as determined by such recount.

(d) Within twenty (20) days after the election, the county court shall make and have entered of record its order declaring the result of the election.

(e) The costs of any elections held under the provisions of this subchapter shall be paid by the county in the same manner as other costs of general elections.

History. Init. Meas. 1942, No. 1, § 2, Acts 1943, p. 998; Acts 1985, No. 266, § 2; A.S.A. 1947, § 48-802; Acts 1997, No. 449, § 3.

3-8-207. Mandamus of county officials.

Upon petition of ten (10) interested legal voters in the territory affected, filed with the circuit clerk of the county in which proceedings are pending, the circuit court shall immediately by mandamus compel the county court or other officials to perform the duties imposed upon them under the provisions of this subchapter. The circuit court shall be open at all times for the purposes of this subchapter.

History. Init. Meas. 1942, No. 1, § 5, Acts 1943, p. 998; A.S.A. 1947, § 48-805.

3-8-208. Election results — Effects.

(a) If the majority of the electors voting on the issue at the election vote for the manufacture or sale of intoxicating liquors, then it shall be lawful for the Director of the Alcoholic Beverage

Control Division to continue to issue licenses or permits for such manufacture or sale within the designated territory as if no election had been held.

(b) If a majority of the electors voting at the election vote against the manufacture or sale of intoxicating liquors, then it shall be unlawful for the director or any county or municipal official to issue any license or permit for the manufacture, sale, barter, loan, or giving away of any intoxicating liquor as defined in this subchapter unless and until the prohibition shall be repealed by a majority vote as provided for in §§ 3-8-201 — 3-8-203 and 3-8-205 — 3-8-209.

(c) In either case, a period of at least four (4) years shall elapse before another election on the same subject may be held in the territory affected.

(d) If a majority of electors voting on the issue at any such election vote against the manufacture or sale of intoxicating liquors, any license or permit which has already been issued, authorizing the manufacturing or sale or the bartering, loaning, or giving away of intoxicating liquor within the territory affected shall be immediately cancelled, and the unearned part of the license or permit fee shall be returned. It shall then be unlawful for any person, firm, or corporation to manufacture, sell, barter, loan, or give away any intoxicating liquor within the territory covered by the petition.

History. Init. Meas. 1942, No. 1, § 2, Acts 1943, p. 998; Acts 1985, No. 266, § 2; A.S.A. 1947, § 48-802.

3-8-209. Sales or furnishing place for sales in dry territory prohibited — Penalty.

(a) Except as provided in § 3-5-1901 et seq., it is unlawful for a person, firm, or corporation to manufacture, sell, barter, loan, or give away intoxicating liquor in a county, township, municipality, ward, or precinct in which the manufacture or sale of intoxicating liquor is prohibited under Initiated Act No. 1 of 1942, §§ 3-8-201 — 3-8-203 and 3-8-205 — 3-8-209.

(b)(1) Upon a first conviction, any person or officers of any firm or corporation that shall manufacture, sell, barter, loan, or give away any intoxicating liquor in any territory which has been made dry under the provisions of this subchapter shall be guilty of a violation and shall be fined not less than one hundred dollars (\$100) nor more than one thousand dollars (\$1,000).

(2) For a second conviction, he or she shall be guilty of a violation and fined not less than two hundred dollars (\$200) nor more than two thousand dollars (\$2,000), and for any subsequent conviction shall be guilty of a Class D felony.

(c) Any person or officers of a firm or corporation that knowingly furnishes or rents a house, room, wagon, vehicle, or any conveyance or thing in which intoxicating liquor is manufactured or sold, bartered, loaned, or given away in violation of prohibition secured under the provisions of this subchapter is declared to be a particeps criminis and upon conviction shall be subject to the same punishment as the principal. The house, room, wagon, vehicle, conveyance, or other thing in which the intoxicating liquor is manufactured or sold, bartered, loaned, or given away shall be liable for all fines adjudged against either the principal or the particeps criminis, or both, as defined in this subsection.

History. Init. Meas. 1942, No. 1, § 3, Acts 1943, p. 998; A.S.A. 1947, § 48-803; Acts 2005, No. 1964, § 6; 2005, No. 1994, § 419; 2019, No. 681, § 2.

3-8-210. Authority to continue to issue sale permits.

The Alcoholic Beverage Control Division shall have the authority to continue to issue permits for the sale of beer and of vinous, spirituous, and malt liquors in any political subdivision of the State of Arkansas of the same kind and type issued prior to July 4, 1996, provided that the electorate of such political subdivision has not since July 4, 1996, held an election under the provisions of Initiated Act No. 1 of 1942, §§ 3-8-201 — 3-8-203 and 3-8-205 — 3-8-209.

History. Acts 1993, No. 826, § 1; 1999, No. 632, § 1.

SUBCHAPTER 3 — PROCEEDINGS PURSUANT TO 1935 ACT

SECTION.

- 3-8-301. Exceptions from act.
- 3-8-302. [Repealed.]
- 3-8-303. Election costs deposited.
- 3-8-304. [Repealed.]
- 3-8-305. Elections for entire county, district, or city — Effect.
- 3-8-306. Certificate of election results.
- 3-8-307. Effect of vote against sale.
- 3-8-308. Applicability of election laws — Violations.
- 3-8-309. Contests of elections.
- 3-8-310. Effect of voting for or against sale — Penalty for unlawful sales.

SECTION.

- 3-8-311. [Repealed.]
- 3-8-312. Sale, barter, or possession for sale or barter in dry area — Penalties.
- 3-8-313. Indictment.
- 3-8-314. Bond for multiple violations.
- 3-8-315. C.O.D. shipments.
- 3-8-316. Act given in charge to grand jury.
- 3-8-317. Wholesale of intoxicating liquor in prohibited territory.

3-8-301. Exceptions from act.

The provisions of this act shall not apply to any manufacturer or wholesale dealer who, in good faith and in the usual course of trade, sells, by the wholesale, in quantities of not less than five gallons (5 gals.), delivered at one (1) time, not to be drunk on the premises. The provisions of this act shall not apply to dispensaries, hotels, restaurants, or clubs unless it is written in the petition, notice, and order for the election that provisions of this law and prohibition shall apply to dispensaries, hotels, restaurants, or clubs; if not so written, then licensed dispensaries, hotels, restaurants, or clubs may sell for medicinal purposes in the manner provided in this act.

History. Acts 1935, No. 108, Art. 7, § 7; Pope's Dig., § 14153; A.S.A. 1947, § 48-813.

3-8-302. [Repealed.]

Publisher's Notes. This section, concerning petition and order for election, was repealed by Acts 2013, No. 1432, § 3. The section was derived from Acts 1935, No. 108, Art. 7, § 1; Pope's Dig., § 14147; A.S.A. 1947, § 48-807.

3-8-303. Election costs deposited.

The county court shall not make the order for the election until the persons signing the petition have deposited with the county judge, in money, an amount sufficient to pay for printing or posting advertisements as provided for, and the fees of the clerk making entries in the order book.

History. Acts 1935, No. 108, Art. 7, § 9; Pope's Dig., § 14156; A.S.A. 1947, § 48-815.

3-8-304. [Repealed.]

Publisher's Notes. This section, concerning notice and conduct of election, was repealed by Acts 2013, No. 1432, § 4. The section was derived from Acts 1935, No. 108, Art. 7, § 2; Pope's Dig., § 14148; A.S.A. 1947, § 48-808.

3-8-305. Elections for entire county, district, or city — Effect.

(a)(1) No election in any town, city, district, or precinct of a county shall be held under this subchapter on the same day on which an election for the entire county is held.

(2) When an election is held in an entire county and a majority of the legal votes cast at the election are against the sale, barter, or loan of spirituous, vinous, malt, or other intoxicating liquors, then it shall not be lawful to sell, barter, or loan any liquors in any portion of the county.

(3) If, at an election for the entire county, the majority of the legal votes cast are in favor of the sale, barter, or loan of any liquors, the election shall not operate to make it legal to grant license to sell, barter, or loan such liquors in any territorial division of the county from which the sale, barter, or loan has been excluded by an election held under this subchapter, but the status of the territorial division shall remain as if no election had been held.

(b)(1) No election shall be held in any election precinct under this act on the same day on which an election is held for the district or city of which the precinct is a part.

(2) If, at an election held for the entire district or city, the majority of legal votes cast shall be in favor of the sale, barter, or loan of spirituous, vinous, malt, or other liquors, then the status in the several precincts thereof shall remain as it was before the election.

(3) If the majority should be against the sale, then the sale, barter, or loan of such liquors shall be unlawful in every portion of the district or city.

History. Acts 1935, No. 108, Art. 7, § 10; Pope's Dig., § 14157; A.S.A. 1947, § 48-816.

3-8-306. Certificate of election results.

(a) If it shall be found that a majority of the legal votes cast at any election provided for in this subchapter were given for or against the manufacture, sale, barter, loan, or giving away of any intoxicating liquors in the county, city, town, district, or precinct, it shall be the duty of the county board of election commissioners to certify that fact. The certificate shall be delivered to the clerk of the county court with a map or plat of the area covered by the election results and safely kept by him or her until the next regular term of the county court.

(b) At the next regular term, the judge of the county court shall have the certificate spread upon the record of his or her court.

(c) The entry of the certificate in the record or a certified copy thereof shall be prima facie evidence in any or all proceedings under this act.

(d) When the local option results have been spread of record by the county clerk, the county clerk shall notify the Alcoholic Beverage Control Division of the results of the local option elections within thirty (30) days after the certificate has been spread of record. The notification submitted to the division shall include a certified copy of the election results and a map or plat of the area covered by the election results.

History. Acts 1935, No. 108, Art. 7, § 3; Pope's Dig., § 14149; Acts 1983, No. 418, § 1; A.S.A. 1947, § 48-809.

3-8-307. Effect of vote against sale.

If, at any election provided for in this act, a majority of the legal votes cast are against the sale, barter, or loan of spirituous, vinous, or malt liquors, then the sale, barter, or loan of any such liquors shall be unlawful in such county, city, town, district, or precinct, as the case may be, except as provided, unless at a subsequent election held under this act, a majority of the legal votes cast shall be in favor of the sale of the liquors.

History. Acts 1935, No. 108, Art. 7, § 11; Pope's Dig., § 14158; A.S.A. 1947, § 48-817.

3-8-308. Applicability of election laws — Violations.

(a) If, at any election provided for in this act, any person shall vote who is not entitled to vote under the laws of this state at elections for county officers, he or she shall be punished as for a violation of the general laws on elections.

(b) All general laws to protect the purity of elections shall be applicable to this act.

History. Acts 1935, No. 108, Art. 7, § 11; Pope's Dig., § 14158; A.S.A. 1947, § 48-817.

3-8-309. Contests of elections.

(a) Any election held under this act may be contested as provided for in this section.

(b)(1) Any number of the citizens and legal voters, but not less than ten (10), of the county, city, town, district, or precinct in which the elections have been held, shall have the right to contest any election held under this act and shall be designated the contestants.

(2) The contestants shall file, within ten (10) days after the final action of the examining board, in the office of the clerk of the county court a written statement of the grounds of the contest. They shall cause a copy of the statement to be served on the county judge and shall give notice thereof by written or printed notice to be posted at the courthouse door of the county, and in three (3) or more public places in the county, city, town, district, or precinct in which the election has been held. They shall cause the notice to be published in some newspaper of the county, when possible, for two (2) consecutive issues, commencing not later than the first issue of the paper after filing the statement.

(3) When a notice of the contest shall be executed on the county judge, the certificate shall not be recorded.

(c) Any number of the citizens and legal voters, not less than ten (10), of the county, city, town, district, or precinct in which the election has been held, may resist the contest by filing in the office of the clerk of the county court a statement controverting the grounds of the contestants and may state any additional grounds to sustain the election, and they shall be designated as the contestees.

(d) The contest shall be heard and determined by the same board which, by law, is authorized and empowered to hear and determine a contest of an election for county officers. The same provisions of the statutes shall apply to the contest of any election held under this act as are provided for the contest of any election for county officers, except as provided in this section.

(e) Notice for the taking of depositions or other proceedings in the contest may be executed on the person whose name appears first as contestant or contestee, which shall be deemed notice to all his or her associates.

(f) In case the required number shall fail to appear as contestees, ex parte testimony shall be competent before the contesting board.

(g) The trial of the case shall be on the fourth Monday after the filing in the county clerk's office of the grounds of the contest; however, the board, for good cause, may allow further time.

(h) The decision of the board shall be given in writing and signed in triplicate. One (1) copy shall be delivered to the contestants and one (1) copy to the contestees, and the other shall be delivered to the county clerk of the county in which the contest is pending, which shall be entered on the record of the county court.

(i) If the decision of the board is that a majority of the legal votes cast at the election were against the sale of such liquors, the entry of the decision shall have the same effect as the recording of the certificates of the examining board as provided in § 3-8-306.

(j) The contestants or contestees shall have the right to appeal from the decision of the board to the circuit court of the county where the contest is pending, in the same way as appeals are taken from the lower courts to the circuit court. An appeal from the circuit court may be taken as provided by law.

(k) The cost of the contest shall be adjudged against the unsuccessful parties.

History. Acts 1935, No. 108, Art. 7, §§ 14-16; Pope's Dig., §§ 14161-14169; A.S.A. 1947, §§ 48-820 — 48-822.

3-8-310. Effect of voting for or against sale — Penalty for unlawful sales.

(a)(1) Whenever a local option election shall be held in any county, city, town, district, or precinct in this state and a majority of the votes cast at the election shall be in favor of prohibiting the sale of liquor in the territory in which the election shall have been held, the law prohibiting the sale shall be in full force and effect at the expiration of sixty (60) days from the date of the entry of the certificate of the canvassing board in the record of the county court.

(2) After the expiration of sixty (60) days, no liquor license theretofore issued in the territory under the laws of this state shall be of any force or effect whatever, but the owner of the license

shall be entitled to recover from the county, city, town, district, or precinct to which the license money was paid, the proportional part thereof as the unexpired period of license bears to the whole of the year.

(b)(1) Upon conviction, any person who shall sell, barter, or loan directly or indirectly any such liquors in the city, county, town, district, or precinct after sixty (60) days shall be guilty of a Class C misdemeanor.

(2) Upon conviction, any person who knowingly furnishes or rents a house, room, wagon, or any conveyance or thing in which spirituous, vinous, or malt liquors are sold, bartered, or loaned, in violation of this act, shall be guilty of a violation and fined not less than sixty dollars (\$60.00) nor more than one hundred dollars (\$100). The house, wagon, vehicle, or other thing in which the liquors were sold, bartered, or loaned shall be liable for all fines adjudged against the person selling, bartering, or loaning the same.

(c) In the event that a majority of the votes cast at the election shall be in favor of the sale of liquors, then no license shall be granted to any person, firm, or corporation to sell such liquors in the territory until after the expiration of the aforesaid sixty (60) days, if the issuing of the liquor license was in that territory prohibited by law prior to the holding of the election.

History. Acts 1935, No. 108, Art. 7, § 4; Pope's Dig., § 14150; A.S.A. 1947, § 48-810; Acts 2005, No. 1964, § 7; 2005, No. 1994, § 406.

3-8-311. [Repealed.]

Publisher's Notes. This section, concerning the penalties for sale, barter or loan in dry territory, was repealed by Acts 2005, No. 1964, § 8. The section was derived from Acts 1935, No. 108, Art. 7, §§ 5, 6; Pope's Dig., §§ 14151, 14152; A.S.A. 1947, §§ 48-811, 48-812.

The amendment to this section by Acts 2005, No. 1994, § 407 was superseded by the repeal of this section by Acts 2005, No. 1964, § 8. As amended by Acts 2005, No. 1994, § 407, this section read:

“(a)(1) It shall be unlawful for anyone to sell, barter, or loan, directly or indirectly, any beverage containing any alcohol or any liquid mixture or decoction of any kind which produces or causes intoxication in any county, city, town, district, or precinct in which the sale, barter, or loan of spirituous, vinous, or malt liquors is or shall be prohibited in accordance with the local option law.

“(2) Any sale, barter, or loan of any article with the agreement, expressed or implied, that the right or title to or possession of any such beverage, liquid mixture, or decoction shall also pass, shall be considered a sale, barter, or loan within the terms of this subsection.

“(3) Any person who shall sell, barter, or loan, directly or indirectly, any such beverage, liquid mixture, or decoction

in any such county, city, town, or precinct, shall, upon conviction, be guilty of a violation and fined the sum of not less than twenty dollars (\$20.00) nor more than one hundred dollars (\$100) for each offense.

“(b) It shall be unlawful for any person to sell, lend, give, procure for, or furnish to another, any spirituous, vinous, or malt liquors, or to have in his or her possession spirituous, vinous, or malt liquors, for the purpose of selling them in any territory where this act is in force. Any person so offending shall be guilty of a Class C misdemeanor.

“(c) The possession of a United States special tax stamp commonly called United States license for carrying on the business of a retail dealer in spirituous, vinous, or malt liquors, or the having of the tax permit issued by the Director of the Department of Finance and Administration or license at the place of business in the territory shall be prima facie evidence of guilt under this section.

“(d) Nothing herein shall prohibit the sale, barter, loan, or having in the custody or possession of any person any beverage, liquid mixture, or decoction for the sale of which the United States does not require the payment of the special tax on retail liquor dealers.”

3-8-312. Sale, barter, or possession for sale or barter in dry area — Penalties.

(a) It shall be unlawful for any person, firm, or corporation to sell or barter, or possess for purposes of sale or barter, any intoxicating liquor or beverage in any county, township, municipality, ward, or precinct in which the sale or barter of intoxicating liquor or beverage is or shall be prohibited by law.

(b)(1) Upon first conviction, any person or officers of any firm or corporation that shall do so shall be guilty of a violation and shall be fined not less than one hundred dollars (\$100) nor more than one thousand dollars (\$1,000).

(2) The person or officers of a firm or corporation for a second conviction shall be guilty of a violation and fined not less than two hundred dollars (\$200) nor more than two thousand dollars (\$2,000).

(3) For any subsequent conviction, the person or officers of a firm or corporation shall be guilty of a Class D felony.

(c) The defendant shall be specifically charged with violating the felony provision of this section.

(d) Bond forfeitures under this section or any statute or municipal ordinance of this state prohibiting the unlawful sale or barter or possession for sale or barter of any intoxicating liquor or beverage shall be considered as a conviction in determining whether or not the defendant is properly charged with a second offense or a felony as set out in this section.

History. Acts 1953, No. 395, § 1; A.S.A. 1947, § 48-811.1; Acts 2005, No. 1964, § 9; 2005, No. 1994, § 420.

3-8-313. Indictment.

(a) In an indictment for a violation of any provision of this act or for a violation of any act amendatory hereof, it shall not be necessary to allege that a vote was taken or any election held, or any other step relative thereto.

(b) It may be simply stated that the act or acts charged were committed in a territory where this act was in force, and in the indictment it shall be sufficient to designate this act as the local option law.

History. Acts 1935, No. 108, Art. 7, § 6; Pope's Dig., § 14152; A.S.A. 1947, § 48-812.

3-8-314. Bond for multiple violations.

(a) On the second or any subsequent conviction for a violation of this act or any of its amendments, the court shall require the defendant to execute bond in the sum of two hundred dollars (\$200) to be of good behavior for the period of twelve (12) months.

(b) The court may, in its discretion, increase the amount of the bond. If the bond is not given, the defendant shall be committed to the county jail for a period not exceeding ninety (90) days, to be fixed by the court.

History. Acts 1935, No. 108, Art. 7, § 6; Pope's Dig., § 14152; A.S.A. 1947, § 48-812.

3-8-315. C.O.D. shipments.

(a) All the shipments of spirituous, vinous, or malt liquors to be paid for on delivery, commonly called "C.O.D. shipments", into any county, city, town, district, or precinct where this act is in force shall be unlawful and shall be deemed sales of such liquors at the place where the money is paid or the goods delivered.

(b) The carrier and his or her agents selling or delivering such goods shall be liable jointly with the vendor thereof.

History. Acts 1935, No. 108, Art. 7, § 6; Pope's Dig., § 14152; A.S.A. 1947, § 48-812.

3-8-316. Act given in charge to grand jury.

It shall be the duty of the judges of the circuit courts to give this act in charge to the grand juries of the counties within their jurisdiction.

History. Acts 1935, No. 108, Art. 7, § 13; Pope's Dig., § 14160; A.S.A. 1947, § 48-819.

3-8-317. Wholesale of intoxicating liquor in prohibited territory.

(a)(1) It shall be unlawful to sell by wholesale any spirituous, vinous, malt, or other intoxicating liquor, regardless of the name by which it is called, except manufacturers selling liquor of their own make at the place of manufacture to a wholesale dealer or a licensed retail

dealer, in any county, city, town, district, or precinct where the sale of liquor has been prohibited by vote of the people under the local option law.

(2)(A) A licensed wholesaler may maintain an alcoholic beverage storage facility in a county, city, town, district, or precinct where the sale of liquor has been prohibited when the storage facility is located in the same county as the wholesaler's licensed distributorship.

(B) A storage facility permitted under subdivision (a)(2)(A) of this section is subject to inspection and approval of the Alcoholic Beverage Control Division.

(b) Any person violating this act shall be deemed guilty of violating the local option law and shall be subject to trial and punishment according to the provisions of the local option law and its amendments.

History. Acts 1935, No. 108, Art. 7, § 8; Pope's Dig., § 14154; A.S.A. 1947, § 48-814; Acts 2013, No. 305, § 1.

SUBCHAPTER 5 — PETITION FOR LOCAL OPTION ELECTIONS

SECTION.

3-8-501. Definitions.

3-8-502. Local option elections in certain annexed areas.

3-8-501. Definitions.

As used in this subchapter:

(1) "Dry" means that the manufacture, sale, barter, loan, or giving away of intoxicating liquors is unlawful in a prescribed area;

(2) "Intoxicating liquors" means all beverages containing more than one-half of one percent (0.5%) of alcohol by weight; and

(3) "Wet" means that the manufacture, sale, barter, loan, or giving away of intoxicating liquors is lawful in a prescribed area.

History. Acts 2005, No. 1258, § 1.

3-8-502. Local option elections in certain annexed areas.

(a)(1)(A) If an area meets the qualifications provided in subdivision (a)(1)(B) of this section, the residents of the area may petition the county clerk of the county for a local option election to determine whether off-premises retail beer permits and off-premises Arkansas native wine retail permits shall be issued within the annexed area.

(B) An area qualifies to hold a local option election under this subchapter if:

(i) The area has been annexed from a dry township into a wet contiguous and adjoining city or incorporated town;

(ii) The annexed area is separated from the remainder of the dry township by a four-lane divided highway; and

(iii) A nonbinding election was held between November 1, 2004, and January 1, 2005, in the annexed area on the issue of whether intoxicating liquors may be manufactured, sold, bartered, loaned, or given away within the annexed area.

(2) The petition requesting a local option election shall be prepared in the manner provided by § 3-8-205.

(3)(A) When thirty-eight percent (38%) of the qualified electors of the annexed area, as shown on county voter registration records, sign a petition requesting a local option election, the county clerk shall determine the sufficiency of the petition within ten (10) days of the filing of the petition.

(B) If the county clerk verifies that thirty-eight percent (38%) of the qualified electors of the annexed area have signed the petition, the county clerk shall certify that finding to the county board of election commissioners.

(C) The question shall be placed upon the ballot in the annexed area at the next biennial November general election, as provided in § 3-8-101.

(D) Any appeal of the order of the county court shall be taken in the manner provided by § 3-8-205(c)-(e).

(4)(A) The election shall be conducted in the manner provided by § 3-8-206(a) and (b).

(B) Upon petition of fifteen percent (15%) of the interested legal voters in the annexed area, within ten (10) days after the date of the election, the county board of election commissioners shall immediately recount the votes and declare the result of the election as determined by the recount.

(C) Within twenty (20) days after the election, the county court shall make and enter of record its order declaring the result of the election.

(D) The costs of any elections held under this subchapter shall be paid by the county in the same manner as other costs of general elections.

(5) Upon petition of fifteen percent (15%) of the interested legal voters in the annexed area filed with the circuit clerk of the county in which proceedings are pending, the circuit court shall immediately by mandamus compel the county court or other officials to perform the duties imposed upon them under this section.

(b)(1) If, at the local option election, a majority of the electors of the annexed area vote for the issuance of off-premises retail beer permits and off-premises Arkansas native wine retail permits within the annexed area, the Director of the Alcoholic Beverage Control Division may issue off-premises retail beer permits and off-premises Arkansas native wine retail permits within the annexed area.

(2) If a majority of the electors of the annexed area vote against the issuance of off-premises retail beer permits and off-premises Arkansas native wine retail permits, it shall be unlawful for the director or any county or municipal officer to issue any off-premises retail beer permit or off-premises Arkansas native wine retail permit until the prohibition shall be repealed by a majority vote as provided in this section.

(3) At least four (4) years shall elapse before another local option election may be held in the annexed area.

(c) Except as provided in this section, a petition for local option election shall be governed by § 7-9-101 et seq. and § 3-8-801 et seq.

History. Acts 2005, No. 1258, § 1; 2013, No. 1432, §§ 5, 6.

SUBCHAPTER 6 — LOCAL OPTION ELECTIONS

SECTION.

3-8-601. Definitions.

3-8-602. Local option election — Defunct voting district —
On-premises consumption only.

3-8-601. Definitions.

As used in this subchapter:

(1)(A) “Beer” means a fermented liquor made from malt or a malt substitute and containing not more than ten percent (10%) alcohol by weight.

(B) “Beer” includes malt beverages having an alcoholic content not in excess of ten percent (10%) by weight;

(2) “Defunct voting district” means a voting district that:

(A) Existed at the time its qualified voters voted to be dry;

(B) Is no longer recognized by the state or the county in which it was located; and

(C) Is currently located in a wet county;

(3) “Dry” means a county or territorial subdivision that voted to prohibit the manufacture or sale of intoxicating liquor under Initiated Act No. 1 of 1942, as amended, §§ 3-8-201 — 3-8-203

and 3-8-205 — 3-8-209, or § 3-8-302 [repealed], § 3-8-303, § 3-8-304 [repealed], § 3-8-305, and § 3-8-306;

(4) “Malt beverage” means a liquor brewed from the fermented juices of grain and having an alcoholic content of not less than five percent (5%) and not more than twenty-one percent (21%) of alcohol by weight;

(5) “Spirituous liquor” means a liquor distilled from the fermented juices of grain, fruits, or vegetables and containing more than twenty-one percent (21%) alcohol by weight or any other liquids containing more than twenty-one percent (21%) alcohol by weight;

(6) “Territorial subdivision” means a township, municipality, ward, or precinct of a county of the state;

(7) “Vinous beverage” means the fermented juices of fruits or a mixture containing the fermented juices of fruits containing more than five percent (5%) and not more than twenty-one percent (21%) alcohol by weight;

(8) “Voting district” means a geographical area of qualified voters of a county in this state; and

(9) “Wet” means a county or territorial subdivision that voted to permit the manufacture or sale of intoxicating liquor under Initiated Act No. 1 of 1942, as amended, §§ 3-8-201 — 3-8-203 and 3-8-205 — 3-8-209, or § 3-8-302 [repealed], § 3-8-303, § 3-8-304 [repealed], § 3-8-305, and § 3-8-306.

History. Acts 2013, No. 1018, § 1; 2025, No. 596, § 15.

3-8-602. Local option election — Defunct voting district — On-premises consumption only.

(a)(1) Under subsection (b) of this section, an area within the boundaries of a defunct voting district may conduct an election to permit the sale of alcoholic beverages identified in subdivision (a)(2) of this section.

(2) The sale of alcoholic beverages under this section shall be limited to beer, malt beverages, vinous beverages, and spirituous liquor for on-premises consumption within the corporate limits of a city of the first class or a city of the second class.

(b) An election for an area within the boundaries of a defunct voting district to permit the sale of the alcoholic beverages identified in subdivision (a)(2) of this section shall be held as follows:

(1)(A) A registered voter who resides in a county that contains a defunct voting district may request in writing or a city council of a city of the first class that includes a defunct voting district may request by ordinance that the county board of election commissioners issue a resolution to identify the boundaries of a territorial subdivision located in a defunct voting district in which qualified voters may reside.

(B) The county board of election commissioners shall issue a resolution within thirty (30) days.

(C) The resolution shall identify the:

(i) Territorial subdivisions that are located wholly or partially within borders of any defunct voting districts in the county;

(ii) Formal and informal name or designation of any defunct voting districts in the county as of the last date the defunct voting district held the election resulting in its dry status;

(iii) Date on which any defunct voting district held the last local option election that resulted in the defunct voting district’s becoming dry; and

(iv)(a) Boundaries of any defunct voting district at the time of the last local option election that resulted in the defunct voting district’s becoming dry.

(b) The boundaries of the defunct voting district shall be based on state, county, or municipal records or other records publicly identified in the resolution.

(D) The resolution shall include a map of the boundaries of the defunct voting district from which qualified electors residing within the defunct voting district can be identified and verified for purposes of obtaining signatures and conducting the local option election.

(E) In preparing the resolution and the map, the county board of election commissioners may consult with the county clerk, the State Board of Election Commissioners, the Secretary

of State, or any other entity able to provide assistance in confirming the data and preparing the map required by subdivision (b)(1)(D) of this section and the precise boundaries of the defunct voting district.

(F) The resolution shall be filed with the county clerk and published one (1) time a week for two (2) weeks as soon as practicable in a newspaper of general circulation in the county;
(2)(A)(i) A petition procedure for a local option election for a defunct voting district shall be conducted under § 3-8-201 et seq.

(ii) The city council of a city of the first class that includes a defunct voting district may adopt an ordinance to hold a local option election to be conducted under § 3-8-201 et seq.

(B) Signatures shall be obtained from fifteen percent (15%) of the qualified electors residing within the boundaries of a defunct voting district, as identified by the resolution and corresponding map.

(C) When fifteen percent (15%) of the qualified voters have filed petitions with the county clerk under this subdivision (b)(2), the county clerk shall determine within ten (10) days the sufficiency of the petitions under § 3-8-205;

(3)(A)(i) The election process for a special local option election for a defunct voting district shall be conducted pursuant to § 3-8-201 et seq.

(ii) The county clerk shall issue a resolution calling for a special local option election for a defunct voting district for which the requisite number of signatures has been certified under subdivision (b)(2) of this section when:

(a) The requisite number of qualified electors sign petitions filed with the county clerk; and

(b) The county clerk certifies those signatures to the county board of election commissioners.

(iii) The resolution calling the special local option election shall be filed with the county clerk, and the county clerk shall immediately transmit the document to the county board of election commissioners.

(iv) The resolution calling the special local option election shall state:

(a) The date of the special election;

(b) The full text of the measure for which the election is called; and

(c) The ballot title for the measure for which the special local option election is called.

(v) The county board of election commissioners shall publish the resolution calling the special local option election one (1) time a week for two (2) weeks as soon as practicable in a newspaper of general circulation in the county.

(B) The ballot title shall be in substantially the following form: "TO DETERMINE WHETHER OR NOT ALCOHOLIC BEVERAGES MAY BE SOLD AS AUTHORIZED BY ARKANSAS CODE § 3-8-602 WITHIN (popular name of the defunct voting district)".

(C) The ballot shall be in substantially the following form:

"[] FOR the Sale of Alcoholic Beverages, As Authorized by Arkansas Code § 3-8-602.

[] AGAINST the Sale of Alcoholic Beverages, As Authorized by Arkansas Code § 3-8-602."

(D) The special local option election shall be called on a Tuesday and shall not be held less than sixty (60) days following the date the resolution calling the special election is filed with the county clerk.

(E) The map of the defunct voting district created by the county board of election commissioners shall be placed at each polling site.

(F) A majority vote of the qualified electors residing within the boundaries of the defunct voting district shall determine whether or not alcoholic beverages may be sold or manufactured under subdivision (a)(2) of this section within the boundaries of the defunct voting district; and

(4) The precincts and polling sites to be utilized for conducting elections under this section shall be established by the county board of election commissioners.

(c) If a defunct voting district is located entirely within the boundaries of a larger defunct voting district, a vote shall be held only for the larger defunct voting district.

(d)(1) If two (2) defunct voting districts overlap, then the overlapping area will only be included in the boundaries of the defunct voting district that first held the local option election that resulted in its dry status to determine whether or not alcoholic beverages may be sold or manufactured under subdivision (a)(2) of this section.

(2)(A) The local option elections for more than one (1) defunct voting district may be held simultaneously or on different dates.

(B) If local option elections for more than one (1) defunct voting district are held on the same date, the majority vote of all the voters residing within the boundaries of the defunct voting district shall determine the local option status of only the geographic area located within the boundaries of that particular defunct voting district.

(e) If the majority of the qualified voters in the special local option election vote:

(1) For the sale of alcoholic beverages as described under subdivision (a)(2) of this section, then it shall be lawful for the Director of the Alcoholic Beverage Control Division to issue the relevant licenses or permits within the defunct voting district immediately after the certification of the results of an election permitting the sale or manufacture of alcoholic beverages under this section, as required by § 3-8-206; or

(2) Against the sale or manufacture of alcoholic beverages as described under subdivision (a)(2) of this section, then it shall be unlawful for the Alcoholic Beverage Control Division to issue licenses or permits for the sale of alcoholic beverages within the defunct voting district.

(f) A subsequent election under this section shall not be held in the same defunct voting district until a period of two (2) years has elapsed since the last special local option election conducted under this section.

(g) The cost of a local option election under this section shall be paid by the county in the same manner as the cost of a general election, or in any other manner as properly determined by the quorum court.

(h)(1) The boundaries of a defunct voting district as identified by the county board of election commissioners under subdivision (b)(1) of this section shall be deemed final and valid unless clearly erroneous or arbitrary.

(2) Any challenge to or appeal of the boundaries established by the resolution of the county board of election commissioners shall be made to the county court within eleven (11) days of the first publication of the resolution described in subdivision (b)(1)(F) of this section.

(i) To the extent any of the provisions of this section conflict with § 3-8-201 et seq., the provisions of this section control.

History. Acts 2013, No. 1018, § 1; 2015, No. 564, §§ 1, 2; 2017, No. 144, § 1.

SUBCHAPTER 7 — DISCLOSURE ACT FOR INITIATIVE PROCEEDINGS

SECTION.

3-8-701. Title.

3-8-702. Definitions.

3-8-703. Filing deadlines.

3-8-704. Contributions and expenditures limited.

3-8-705. Financial reports — Requirement.

3-8-706. Financial report — Information.

3-8-707. Financial reports — Verification.

3-8-708. Financial reports — Time to file — Late fee.

3-8-709. Public inspection — Record retention.

SECTION.

3-8-710. Enforcement.

3-8-711. Reporting the use of state funds to oppose or support ballot measure.

3-8-712. Use of state funds to oppose or support a local-option ballot measure.

3-8-713. Applicability of §§ 3-8-711 and 3-8-712.

3-8-714. Scope.

3-8-715. Penalty.

3-8-701. Title.

This subchapter shall be known and may be cited as the “Disclosure Act for Initiative Proceedings”.

History. Acts 2013, No. 1432, § 7.

3-8-702. Definitions.

As used in this subchapter:

(1)(A) “Contribution” means, whether direct or indirect, advances, deposits, transfers of funds, contracts, or obligations, whether or not legally enforceable, payments, gifts, subscriptions,

assessments, payments for services, dues, advancements, forbearance, loans, pledges, or promises of money or anything of value, whether or not legally enforceable, to a person for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question.

(B) “Contribution” includes the purchase of tickets for events such as dinners, luncheons, rallies, and similar fundraising events and the granting of discounts or rebates by television and radio stations and newspapers not extended on an equal basis to all persons for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question.

(C) “Contribution” does not include:

(i) Noncompensated, nonreimbursed volunteer personal services or travel;

(ii) Activities designed solely to encourage individuals to vote or to register to vote; or

(iii) Any communication by a bona fide church or religious denomination to its own members or adherents for the sole purpose of protecting the right to practice the religious tenets of the church or religious denomination;

(2) “Disqualification of a local-option ballot question” means any action or process, legal or otherwise, that seeks to prevent a local-option ballot question from being on the ballot at an election;

(3) “Elected official” means any person holding an elective office of any governmental body, whether elected or appointed to the office;

(4)(A) “Expenditure” means a purchase, payment, distribution, gift, loan, or advance of money or anything of value, and a contract, promise, or agreement to make an expenditure for goods, services, materials, or facilities for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question.

(B) “Expenditure” does not include an expenditure made for communication by a person strictly with the person’s paid members or shareholders;

(5) “Governmental body” means any office, department, commission, council, board, committee, legislative body, agency, or other establishment of the executive, judicial, or legislative branch of the state, municipality, county, school district, improvement district, or any political district or subdivision thereof;

(6) “Local-option ballot question” means a question in the form of a local-option initiative that is submitted or intended to be submitted to a popular vote at an election, whether or not it qualifies for the ballot;

(7)(A) “Local-option ballot question committee” means any person, located within or outside Arkansas, that receives contributions for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question or any person, other than an elected official expending public funds, or an individual, located within or outside Arkansas, that makes expenditures for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question.

(B) A person other than an individual or an approved political action committee as defined in § 7-6-201, located within or outside Arkansas, also qualifies as a local-option ballot question committee if two percent (2%) or more of the committee’s annual revenues, operating expenses, or funds are used to make a contribution or contributions to another ballot question committee and if the contribution or contributions exceed ten thousand dollars (\$10,000) in value;

(8)(A) “Person” means any individual, business, proprietorship, firm, partnership, joint venture, syndicate, business trust, labor organization, company, corporation, association, committee, or any other organization or group of persons acting in concert.

(B) “Person” includes a public servant or governmental body using public funds to expressly advocate the qualification, disqualification, passage, or defeat of a local-option ballot question; and

(9) “Qualification of a local-option ballot question” means any action or process, legal or otherwise, through which a local-option ballot question obtains certification to be on the ballot at an election.

3-8-703. Filing deadlines.

(a)(1)(A) A local-option ballot question committee shall file a Local-Option Ballot Question Committee Statement of Organization with the Arkansas Ethics Commission within five (5) days of receiving contributions or making expenditures in excess of five hundred dollars (\$500) for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question.

(B) The commission shall maintain the statement of organization until notified of the committee's dissolution.

(2) A local-option ballot question committee failing to file a statement of organization required by this section shall be subject to a late filing fee not to exceed fifty dollars (\$50.00) for each day the statement remains not filed.

(b) The statement of organization for a local-option ballot question committee as defined in § 3-8-702(7)(A) shall include the following information:

(1)(A) The name, the street address, and if available, the telephone number of the committee.

(B) A committee address and telephone number may be that of the residence of an officer or a director of the committee;

(2) The name, street address, and if available, the telephone number of the treasurer and other principal officers and directors of the committee;

(3) The name and address of each financial institution in which the committee deposits money or anything else of monetary value;

(4) The name of each person who is a member of the committee. A person that is not an individual may be listed by its name without also listing its own members, if any; and

(5) A brief statement identifying the substance of each ballot question, the qualification, disqualification, passage, or defeat of which the committee seeks to influence or of each legislative question, the passage or defeat of which the committee seeks to influence, and if known, the date each ballot or legislative question shall be presented to a popular vote at an election.

(c) The statement of organization for a local-option ballot question committee as defined in § 3-8-702(7)(B) shall include the following information:

(1)(A) The name, the street address, and if available, the telephone number of the committee.

(B) A committee's address and telephone number may be that of the residence of an officer or a director of the committee;

(2) The name, street address, and where available, the telephone number of the treasurer and the other principal officers and directors of the committee;

(3) The name and address of each financial institution in which the committee deposits money or anything else of monetary value;

(4) The name of each person who is a member of the committee. A person that is not an individual may be listed by its name without also listing its own members, if any; and

(5) A brief statement identifying the substance of each ballot question, the qualification, disqualification, passage, or defeat of which the committee seeks to influence, and if known, the date each ballot or legislative question shall be presented to a popular vote at an election.

(d) Rules regarding dissolution shall be governed by the rule of the commission.

(e)(1) Upon dissolution, a local-option ballot question committee shall notify the commission of the dissolution in writing.

(2) Any remaining funds on hand at the time of dissolution shall be turned over to:

(A) The Treasurer of State for the benefit of the General Revenue Fund Account of the State Apportionment Fund;

(B) An organized political party as defined in § 7-1-101 or a political party caucus of the General Assembly, the Senate, or the House of Representatives;

(C) A nonprofit organization that is exempt from taxation under the Internal Revenue Code, 26 U.S.C. § 501(c)(3);

(D) Cities of the first class, cities of the second class, or incorporated towns; or

(E) The contributors to the local-option ballot question committee.

History. Acts 2013, No. 1432, § 7; 2015, No. 226, § 2; 2017, No. 721, § 1.

3-8-704. Contributions and expenditures limited.

(a) No local-option ballot question committee shall accept any contribution in cash, meaning currency or coin, that exceeds one hundred dollars (\$100).

(b) No local-option ballot question committee shall accept any contribution from a prohibited political action committee as defined in § 7-6-201.

(c) No local-option ballot question committee or individual shall make an expenditure in cash that exceeds fifty dollars (\$50.00) to influence the qualification, disqualification, passage, or defeat of a local-option ballot question.

(d) No contributions shall be made, directly or indirectly, by any person in a name other than the name by which the person is identified for legal purposes.

(e)(1) No person shall make an anonymous contribution totaling fifty dollars (\$50.00) or more to a local-option ballot question committee.

(2) Any anonymous contribution actually received by a local-option ballot question committee shall be promptly paid by the recipient to the Secretary of State for deposit into the State Treasury as general revenues.

History. Acts 2013, No. 1432, § 7.

3-8-705. Financial reports — Requirement.

(a) A local-option ballot question committee that either receives contributions or makes expenditures in excess of five hundred dollars (\$500) for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question shall file with the Arkansas Ethics Commission a Ballot Question Committee Financial Report as required by §§ 7-9-407 — 7-9-409.

(b) An individual person who on his or her own behalf expends in excess of five hundred dollars (\$500), excluding contributions, for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question shall file with the commission financial reports as required by §§ 7-9-407 — 7-9-409.

(c) An elected official expending public funds in excess of five hundred dollars (\$500) for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a local-option ballot question shall file with the commission financial reports as required by §§ 7-9-407 — 7-9-409.

(d) Except as provided in subsection (e) of this section, a report required by this subchapter shall be deemed timely filed if it is:

(1) Hand-delivered to the commission on or before the date due;

(2) Mailed to the commission, properly addressed, postage prepaid, bearing a postmark indicating that it was received by the post office or common carrier on or before the date due;

(3) Received via facsimile by the commission on or before the date due, provided that the original is received by the commission within ten (10) days of the transmission; or

(4) Received by the commission in a readable electronic format that is approved by the commission.

(e) Whenever a report under this subchapter becomes due on a day that is a Saturday, Sunday, or legal holiday, the report shall be due the next day that is not a Saturday, Sunday, or legal holiday.

(f) A preelection report is timely filed if it is received by the commission no later than seven (7) days prior to the election for which it is filed.

History. Acts 2013, No. 1432, § 7; 2015, No. 226, § 3.

3-8-706. Financial report — Information.

In addition to the information required under §§ 7-9-407 — 7-9-409, a financial report of a local-option ballot question committee, individual person, or elected official shall contain the following information:

(1) The name, address, and telephone number of the local-option ballot question committee, individual person, or elected official filing the report;

(2)(A) For a local-option ballot question committee as defined in § 3-8-702(7)(A):

(i) The total amount of contributions received during the period covered by the financial report;

(ii) The total amount of expenditures made by the local-option ballot question committee or on behalf of the local-option ballot question committee by an advertising agency, public relations firm, or political consultant during the period covered by the financial report;

(iii) The cumulative amount of contributions and expenditures reported under subdivision (2)(A) of this section for each local-option ballot question committee;

(iv) The balance of cash and cash equivalents on hand at the beginning and the end of the period covered by the financial report;

(v) The total amount of contributions received during the period covered by the financial report from persons who contributed less than fifty dollars (\$50.00) and the cumulative amount of that total for each local-option ballot question committee;

(vi) The total amount of contributions received during the period covered by the financial report from persons who contributed fifty dollars (\$50.00) or more and the cumulative amount of that total for each local-option ballot question committee;

(vii) The name and street address of each person who contributed fifty dollars (\$50.00) or more during the period covered by the financial report, together with the amount contributed, the date of receipt, and the cumulative amount contributed by that person for each local-option ballot question committee;

(viii) For each person listed under subdivision (2)(A) of this section, the contributor's principal place of business, employer, occupation, the amount contributed, the date the contribution was accepted by the local-option ballot question committee, and the cumulative amount contributed for each local-option ballot question;

(ix) The name and address of each person who contributed a nonmoney item, together with a description of the item, the date of receipt, and the value, not including volunteer service by individuals;

(x) A list of all expenditures by category, including without limitation the following:

(a) Advertising;

(b) Direct mail;

(c) Office supplies;

(d) Travel;

(e) Expenses; and

(f) Telephone; and

(xi) The total amount of nonitemized expenditures made during the period covered by the financial report.

(B) For a local-option ballot question committee as defined in § 3-8-702(7)(B):

(i) The total amount of contributions made by the committee to another ballot or legislative question committee reported during the period covered by the financial report; and

(ii) The cumulative amount of contributions under subdivision (2)(B)(i) of this section.

(C) For an individual person:

(i) The total amount of expenditures made by the individual person or on behalf of the individual person by an advertising agency, public relations firm, or political consultant during the period covered by the financial report; and

(ii) The cumulative amount of expenditures for each local-option ballot question.

(D) For an elected official using public funds:

- (i) The total amount of expenditures made by the elected official using public funds or on behalf of the elected official using public funds by an advertising agency, public relations firm, or political consultant during the period covered by the financial report; and
- (ii) The cumulative amount of expenditures for each local-option ballot question; and
- (3) The name and street address of each person to whom expenditures totaling one hundred dollars (\$100) or more were made by the local-option ballot question committee, individual person, or elected official using public funds or on behalf of the local-option ballot question committee, individual person, or elected official using public funds by an advertising agency, public relations firm, or political consultant, together with the date and amount of each separate expenditure to each person during the period covered by the financial report and the purpose of each expenditure.

History. Acts 2013, No. 1432, § 7; 2015, No. 226, § 4; 2017, No. 721, §§ 2-4.

3-8-707. Financial reports — Verification.

The financial reports identified in § 3-8-706 shall be verified by affidavit by the person filing them to the effect that to the best of his or her knowledge and belief the information disclosed is a complete, true, and accurate financial statement of contributions or expenditures.

History. Acts 2013, No. 1432, § 7.

3-8-708. Financial reports — Time to file — Late fee.

(a)(1) The first financial reports shall be filed no later than fifteen (15) days following the month in which the threshold of five hundred dollars (\$500) under § 3-8-706 is met and thereafter no later than fifteen (15) days after the end of each month until the election is held. However, for any month in which certain days of that month are included in a preelection financial report required under subdivision (a)(2) of this section, no monthly report for that month shall be due, but those days of that month shall be carried forward and included in the final financial report.

(2) Additionally, a preelection financial report shall be filed no less than seven (7) days prior to any election on the ballot question or legislative question, such statement to have a closing date of ten (10) days prior to the election.

(3) Furthermore, a final financial report shall be filed no later than thirty (30) days after the election.

(b) A local-option ballot question committee, individual person, or elected official who files a late financial report shall be subject to a late filing fee not to exceed fifty dollars (\$50.00) for each day the report remains unfiled.

History. Acts 2013, No. 1432, § 7; 2015, No. 226, § 5.

3-8-709. Public inspection — Record retention.

(a) All statements of organization and financial reports required by this subchapter shall be open to public inspection at the office of the Arkansas Ethics Commission during regular office hours.

(b) All records supporting the reports filed under this subchapter shall be:

- (1) Made available to the commission; and
- (2) Retained by the filer for a period of four (4) years after the date of filing the report.

History. Acts 2013, No. 1432, § 7.

3-8-710. Enforcement.

The Arkansas Ethics Commission shall have the same power and authority to enforce the provisions of this subchapter as are provided the commission under §§ 7-6-217 and 7-6-218 for the enforcement of campaign finance laws.

History. Acts 2013, No. 1432, § 7.

3-8-711. Reporting the use of state funds to oppose or support ballot measure.

Any funds appropriated to any state agency, board, or commission that are expended for the purpose of opposing or supporting a local-option ballot question that is submitted or intended to be submitted to a popular vote at an election, whether or not it qualifies for the ballot, shall be reported to the Legislative Council if the amount exceeds one hundred dollars (\$100).

History. Acts 2013, No. 1432, § 7; 2017, No. 249, § 1.

3-8-712. Use of state funds to oppose or support a local-option ballot measure.

The use of state funds under this subchapter includes expenditures for:

- (1) Newspaper, television, radio, and other forms of communication;
- (2) Publication materials;
- (3) Travel expenses relative to reimbursement;
- (4) Surveys;
- (5) Private contracts; and
- (6) Postage.

History. Acts 2013, No. 1432, § 7.

3-8-713. Applicability of §§ 3-8-711 and 3-8-712.

This subchapter does not apply to state funds appropriated to any elected officials.

History. Acts 2013, No. 1432, § 7.

3-8-714. Scope.

Nothing in this subchapter may limit, waive, or abrogate the scope of any statutory or common law privilege, including, but not limited to, the work product doctrine and the attorney-client privilege.

History. Acts 2013, No. 1432, § 7.

3-8-715. Penalty.

Upon conviction, any person who knowingly fails to comply with this subchapter shall be fined an amount not to exceed one thousand dollars (\$1,000) or be imprisoned for not more than one (1) year, or both.

History. Acts 2013, No. 1432, § 7.

SUBCHAPTER 8 — CIRCULATION OF PETITION FOR LOCAL OPTION ELECTION**SECTION.**

- 3-8-801. Definitions.
- 3-8-802. Hiring and training of paid canvassers.
- 3-8-803. Petition to determine granting of licenses for manufacture or sale or bartering, loaning, or giving away of intoxicating liquor.
- 3-8-804. Duties of election officers — Penalty for failure to perform.

SECTION.

- 3-8-805. Signing of petition — Penalty for falsification — Notice of suspected forgery.
- 3-8-806. Form of initiative petition — Sufficiency of signatures.
- 3-8-807. Procedure for circulation of petition.
- 3-8-808. Form of verification — Penalty for false statement — Definition.

SECTION.

3-8-809. Failure to act on petition — Mandamus — Injunction.

SECTION.

3-8-810. Preservation of records.
3-8-811. Count of signatures.

3-8-801. Definitions.

As used in this subchapter:

- (1) “Canvasser” means a person who circulates a local option election petition or a part or parts of a local option election petition to obtain the signatures of petitioners thereto;
- (2) “Intoxicating liquor” means any beverage containing more than one-half of one percent (0.5%) of alcohol by weight;
- (3) “Paid canvasser” means a person who is paid or with whom there is an agreement to pay money or anything of value before or after a signature on a local option election petition is solicited in exchange for soliciting a signature on a petition;
- (4) “Petition part” means a petition signature sheet containing the information required under this subchapter;
- (5) “Petitioner” means a person who signs a petition requesting a local option election;
- (6) “Registered voter” means a person who is registered at the time of signing the petition pursuant to Arkansas Constitution, Amendment 51; and
- (7) “Sponsor” means a person who arranges for the circulation of a local option election petition or who files a local option election petition with the official charged with verifying the signatures.

History. Acts 2013, No. 1432, § 8; 2015, No. 1251, § 3; 2025, No. 115, § 1.

3-8-802. Hiring and training of paid canvassers.

(a)(1) A person shall not provide money or anything of value to another person for obtaining signatures on a local option election petition unless the person receiving the money or item of value meets the requirements of this section.

(2) Before a signature is solicited by a paid canvasser, the sponsor shall:

(A) Explain the Arkansas law applicable to obtaining signatures on a local option election petition to the canvasser;

(B)(i) Provide a complete list of all paid canvassers’ names and current residential addresses to the county clerk.

(ii) If additional paid canvassers agree to solicit signatures on behalf of a sponsor after the complete list is provided, the sponsor shall provide an updated list of all paid canvassers’ names and current residential addresses to the county clerk;

(C) Submit to the county clerk a copy of the signed statement provided by the paid canvasser under subdivision (c)(3) of this section;

(D) Instruct the paid canvasser to provide the sponsor sufficient information of the paid canvasser’s identity to allow the sponsor to obtain the criminal history and criminal record of the paid canvasser within thirty (30) days before the date that the paid canvasser begins collecting signatures;

(E) Obtain the criminal history and criminal record of the paid canvasser; and

(F) Contact the appropriate authority in the state or jurisdiction if a paid canvasser’s criminal history and criminal record indicate an open or pending criminal charge that constitutes a disqualifying offense to determine the ultimate disposition or current status of the charge.

(3) Upon filing the petition with the county clerk, the sponsor shall submit to the county clerk a:

(A) Final list of the names and current residential addresses of each paid canvasser; and

(B) Signature card for each paid canvasser.

(b)(1) To verify that there are no disqualifying offenses on record, a sponsor shall obtain at the sponsor’s cost from the Division of Arkansas State Police a current state criminal history and criminal record search on every paid canvasser to be registered with the county clerk.

(2) The criminal history and criminal record search required by this section shall be obtained within thirty (30) days before the date that the paid canvasser begins collecting signatures.

(3) Upon submission of the sponsor's list of paid canvassers to the county clerk, the sponsor shall certify to the county clerk that each paid canvasser in the sponsor's employ has no disqualifying offenses in accordance with this section.

(4) A willful violation of this section by a sponsor or paid canvasser constitutes a Class A misdemeanor.

(5) The sponsor shall bear the ultimate burden of proving that a paid canvasser registered by the sponsor does not have a disqualifying offense in an administrative proceeding or judicial proceeding.

(c) Before obtaining a signature on a local option election petition as a paid canvasser, a person shall submit in person or by mail to the sponsor:

(1) The full name and any assumed name of the person;

(2) The current residence address of the person and the person's permanent domicile address if the person's permanent domicile address is different from the person's current residence address;

(3) A signed statement taken under oath or solemn affirmation that states that the person has not pleaded guilty or nolo contendere to or been found guilty of a disqualifying offense under § 7-9-601(d)(3)(B) in any state of the United States, District of Columbia, Puerto Rico, Guam, or any other United States protectorate;

(4) A signed statement that the person has read and understands the Arkansas law applicable to obtaining signatures on a local option election petition; and

(5) A photograph of the person taken within ninety (90) days of the submission of the information required under this section.

(d) A sponsor shall maintain the information required under this section for each paid canvasser for three (3) years after the general election.

(e) Signatures incorrectly obtained or submitted under this section shall not be counted by the county clerk for any purpose.

(f)(1) It is unlawful for a person to pay or offer to pay a person, or receive payment or agree to receive payment, on a basis related to the number of signatures obtained on a local option election petition.

(2) This subsection does not prohibit compensation for circulating petitions but only compensation for obtaining signatures when the compensation or compensation level is impacted by or related to the number of signatures obtained.

(3) A signature obtained in violation of this subsection is void and shall not be counted.

(4) A violation under this subsection is a Class A misdemeanor.

History. Acts 2013, No. 1432, § 8; 2015, No. 1251, § 4; 2025, No. 115, § 2.

3-8-803. Petition to determine granting of licenses for manufacture or sale or bartering, loaning, or giving away of intoxicating liquor.

(a) An election to determine whether licenses will be granted for the manufacture or sale or the bartering, loaning, or giving away of intoxicating liquor shall be called by a petition signed by registered voters in the designated county, township, municipality, ward, or precinct in a number equal to thirty-eight percent (38%) of the registered voters.

(b) The petition shall be filed with the county clerk.

(c) The county clerk shall verify the signatures on the petition and determine the sufficiency of the petition no later than ten (10) days after the petition is submitted.

(d) The total number of voters registered as certified by the county clerk to the Secretary of State by June 1 of each year pursuant to Arkansas Constitution, Amendment 51, shall be the basis upon which the number of signatures of qualified electors on petitions shall be computed.

History. Acts 2015, No. 1251, § 5.

3-8-804. Duties of election officers — Penalty for failure to perform.

(a) The duties imposed by this subchapter upon members of the State Board of Election Commissioners, members of the county boards of election commissioners, election officials, and other officers expressly named in this subchapter shall be performed:

- (1) In good faith;
- (2) Within the time provided by this subchapter; and
- (3) In the manner provided by this subchapter.

(b) If a member of a board, an election official, or another officer charged with a duty under this subchapter knowingly fails to perform that duty, he or she shall be upon conviction:

- (1) Fined not less than one hundred dollars (\$100) nor more than one thousand dollars (\$1,000); and
- (2) Removed from his or her office.

History. Acts 2015, No. 1251, § 5.

3-8-805. Signing of petition — Penalty for falsification — Notice of suspected forgery.

(a)(1) A person signing a petition under this subchapter shall:

(A) Be a registered voter; and

(B) After reading the ballot title of the petition in the presence of the canvasser or having the ballot title of the petition read aloud to him or her in the presence of the canvasser, sign his or her own name and print his or her own name, address, birthdate, and the date of signing on a petition in his or her own handwriting.

(2) If a person signing a petition under subdivision (a)(1) of this section requires assistance due to disability, another person:

(A) May print the name, address, birthdate, and the date of signing; and

(B) Shall sign and print his or her name in the margin of the petition.

(3) A person who is under eighteen (18) years of age shall not act as a canvasser.

(4) A person shall not act as a canvasser unless he or she is a citizen of the United States.

(5) A person shall not act as a canvasser unless he or she is a resident of this state.

(6) A person acting as a canvasser shall not obtain a signature for a petition without disclosing to the potential petitioner that petition fraud is a criminal offense before the potential petitioner signs the petition in the custody of the canvasser by:

(A) Verbal notification; or

(B) If verbal notification is impossible, written notification with a document that is provided separately from all other petition materials.

(b) A person commits a Class A misdemeanor if the person, acting as a canvasser, notary, sponsor, or agent of a sponsor knowingly:

(1) Signs a name other than his or her own to a petition;

(2) Prints a name, address, or birthdate other than his or her own on a petition unless the signer requires assistance due to disability and the person complies with this section;

(3) Solicits or obtains a signature to a petition knowing that the person signing is not qualified to sign the petition;

(4) Pays a person any form of compensation in exchange for signing a petition as a petitioner;

(5) Accepts or pays money or anything of value for obtaining signatures on a petition when the person acting as a canvasser, sponsor, or agent of a sponsor knows that the person acting as canvasser's name or address is not included on the sponsor's list filed with the county clerk;

(6) As a sponsor, files a petition part with the official charged with verifying the signatures knowing that the petition part contains one (1) or more false or fraudulent signatures unless each false or fraudulent signature is clearly stricken by the sponsor before filing;

(7) As a canvasser, knowingly accepts a signature when the person signing the petition has not read the ballot title of the petition in the presence of the canvasser or the ballot title of the petition has not been read aloud to the person in the presence of the canvasser; or

(8) As a canvasser, fails to disclose to a potential petitioner that petition fraud is a criminal offense before the potential petitioner signs the petition in the custody of the canvasser under subdivision (a)(6) of this section.

(c) When the official charged with verifying the signatures has reasonable grounds to believe that one (1) or more signatures on a petition is forged, excluding signatures apparently signed by one spouse for another, the official shall report the suspected forgery and basis for suspecting forgery to:

(1) The Division of Arkansas State Police, in the case of a statewide petition; or

(2) The prosecuting attorney of the county, in the case of a local petition.

(d)(1) The county clerk shall not count signatures collected and witnessed by a canvasser if the county clerk finds by a preponderance of the evidence that the canvasser has violated Arkansas laws regarding canvassing, perjury, forgery, or fraudulent practices in the procurement of petition signatures or any provision of the Arkansas Constitution applicable to the collection of signatures on a local option election petition during the current election cycle.

(2) This subsection shall not constrain the duties and authority of the county clerk as set forth in Arkansas law.

History. Acts 2015, No. 1251, § 5; 2025, No. 115, § 3; 2025, No. 764, §§ 1, 2.

3-8-806. Form of initiative petition — Sufficiency of signatures.

(a) The petition for an ordinance, act, or amendment proposed by initiative shall be on substantially the following form:

“PETITION FOR LOCAL OPTION ELECTION

To the Honorable _____,

County Clerk or City Clerk

We, the undersigned registered voters of the State of Arkansas, or _____ County, Arkansas, or City or Incorporated Town of _____, Arkansas, respectfully request that an election be held to determine whether licenses will be granted for the manufacture or sale or the bartering, loaning, or giving away of intoxicating liquor in the district described below, to the end that the same may be adopted, enacted, or rejected by the vote of the registered voters of said district. Each of us for himself or herself says:

I have personally signed this petition; I am a registered voter of _____ County, Arkansas, or City or Incorporated Town of _____, Arkansas, and my printed name, date of birth, residence, city or town of residence, and date of signing this petition are correctly written after my signature.

(Here insert a description of the district in which the election shall be held.)”

(b) The information on the petition provided by the person may be used as evidence of the validity or invalidity of the signature. However, if a signature of a registered voter on the petition is sufficient to verify the voter’s name, then it shall not be adjudged invalid for failure to sign the name or write the residence and city or town of residence exactly as it appears on voter registration records, for failure to print the name in the space provided, for failure to provide the correct date of birth, nor for failure to provide the correct date of signing the petition, all the information being an aid to verification rather than a mandatory requirement to perfect the validity of the signature.

(c) No additional sheets of voter signatures shall be attached to any petition unless the sheets contain the full language of the petition.

(d)(1) The signature section of the petition shall be formatted as prescribed by the county clerk and shall contain the same number of signature lines prescribed by the Secretary of State for statewide petitions under § 7-9-104.

(2) Before the circulation of a petition for signatures, the sponsor shall file a printed petition part with the county clerk in the exact form that will be used for obtaining signatures.

History. Acts 2015, No. 1251, § 5; 2025, No. 115, § 4.

3-8-807. Procedure for circulation of petition.

(a)(1) Each petition under this subchapter for an election to be held in a district that includes more than one (1) county shall be prepared and circulated in a petition part, and each petition part shall be an exact copy of all other such petition parts upon which signatures of petitioners are to be solicited.

(2) When a sufficient number of petition parts are signed by a requisite number of qualified electors and are filed and duly certified by the county clerk, they shall be treated and considered as one (1) petition.

(b) Each petition part shall have attached to it the affidavit of the canvasser stating that:

(1) The canvasser's current residence address appearing on the verification is correct;

(2) All signatures appearing on the petition part were made in the presence of the affiant; and

(3) To the best of the affiant's knowledge and belief each signature is genuine and each person signing is a registered voter.

(c) No petition part under this section shall contain signatures of petitioners from more than one (1) county.

History. Acts 2015, No. 1251, § 5.

3-8-808. Form of verification — Penalty for false statement — Definition.

(a) Each petition containing signatures shall be verified in substantially the following form by the canvasser's affidavit thereon as a part thereof:

"State of Arkansas, County of _____

I, _____ (print name of canvasser) _____, being duly sworn, state that each of the foregoing persons signed his or her own name to this sheet of the petition in my presence. To the best of my knowledge and belief, each signature is genuine and each signer is a registered voter of _____ County, or City or Incorporated Town of _____. At all times during the circulation of this signature sheet, an exact copy of the popular name, ballot title, and text was attached to the signature sheet, and each signer read the ballot title of the petition or had the ballot title of the petition read to the signer in my presence. My current residence address is correctly stated below.

Signature _____

Residence _____

Indicate one: _____ Paid Canvasser _____ Volunteer/Unpaid Canvasser

Subscribed and sworn to before me this _____ day of _____, 20 _____

Signature _____

Clerk, Notary, Judge, or Justice of the Peace

Seal _____".

(b)(1) If the form under this section is substantially followed in a petition, it is sufficient.

(2) The form shall not be held insufficient for clerical and merely technical errors.

(c)(1) Petitions shall not be disqualified due to clerical or technical errors made by a clerk, notary, judge, or justice of the peace when verifying the canvasser's signature.

(2) Petitions shall not be disqualified for failure of a clerk, notary, judge, or justice of the peace to sign exactly as his or her name appears on his or her seal if the signature of a clerk, notary, judge, or justice of the peace is sufficient to verify his or her name.

(d) A canvasser or paid canvasser who knowingly makes a false statement on a petition verification form required by this section shall be deemed guilty of a Class D felony.

(e)(1) A canvasser who witnesses signatures on a petition part shall view a copy of a potential petitioner's photo identification to verify the identity of the potential petitioner before obtaining the signature.

(2) If a canvasser cannot verify the identity of the potential petitioner, the canvasser shall not obtain a signature from the potential petitioner.

(3) A canvasser who submits a canvasser affidavit under subsection (a) of this section swearing that to the best of the affiant's knowledge and belief each signature is genuine and that the person signing is a legal voter, but does not comply with the requirements under subdivision (e)(1) of this section, makes a false statement on the petition verification form.

(4) As used in this subsection, "photo identification" means a document or identification card permitted under § 7-1-101(40).

(f) A canvasser who witnesses signatures on a petition part but knowingly allows another canvasser who did not witness all signatures on a petition part to execute a false verification affidavit with respect to that petition part commits a Class D felony.

(g) A sponsor, sponsor's agent, or representative commits a Class D felony if a sponsor, sponsor's agent, or representative:

(1) Knowingly pays a canvasser for petition signatures on a petition part not personally witnessed by that paid canvasser; or

(2) Knowingly submits to the county clerk a petition part where the verifying canvasser has not witnessed each signature on that petition part.

History. Acts 2015, No. 1251, § 5; 2025, No. 115, § 5; 2025, No. 764, §§ 3, 4.

3-8-809. Failure to act on petition — Mandamus — Injunction.

(a) If the county clerk does not examine and certify a petition under this chapter within the time prescribed in § 3-8-803, the sponsors may apply to the circuit court with jurisdiction for appropriate relief.

(b) If the court decides that the petition is legally sufficient, it shall order the county clerk to certify the sufficiency of the petition and set an election date.

(c) On a proper showing that any petition is not sufficient, the court may enjoin the county clerk from:

- (1) Certifying its sufficiency; or
- (2) Setting an election date.

History. Acts 2015, No. 1251, § 5.

3-8-810. Preservation of records.

(a) All petitions, notices, certificates, or other documentary evidence of procedural steps taken under this subchapter shall be filed and preserved.

(b) Petitions with signatures shall be retained for two (2) years after submission to the county clerk.

History. Acts 2015, No. 1251, § 5.

3-8-811. Count of signatures.

(a) Upon the initial filing of a petition under this subchapter, the official charged with verifying the signatures shall:

- (1) Perform an initial count of the signatures; and
- (2) Determine whether the petition contains, on its face and before verification of the signatures of registered voters, the designated number of signatures required by the Arkansas Constitution and statutory law in order to call an election.

(b) A petition part and all signatures appearing on the petition part shall not be counted for any purpose by the official charged with verifying the signatures, including the initial count of signatures, if one (1) or more of the following is true:

(1) The petition is not an original petition, including without limitation a petition that is photocopied or is a facsimile transmission;

(2) The petition lacks the signature, printed name, and residence address of the canvasser, is signed by a canvasser who does not meet the canvasser requirements of § 3-8-805(a), or is signed by more than one (1) canvasser;

(3) The canvasser is a paid canvasser who does not meet the paid canvasser requirements of § 3-8-802 or whose name and the information required under § 3-8-802 were not submitted by the sponsor to the county clerk before the petitioner signed the petition;

(4) The canvasser verification is not notarized, is notarized by more than one (1) notary, or lacks a notary signature or a notary seal;

(5) The canvasser verification is dated earlier than the date on which a petitioner signed the petition;

(6) The petition part clearly and unmistakably contains signatures of petitioners from more than one (1) county unless each signature of a petitioner from another county is clearly stricken before the filing of the petition with the county clerk; or

(7) The petition part has a material defect that, on its face, renders the petition part invalid.

(c) The following signatures shall not be counted for any purpose by the official charged with verifying the signatures, including the initial count of signatures:

(1) A signature that is not an original signature;

(2) A signature that is obviously not that of the purported petitioner;

(3) A signature that is illegible and is accompanied by no personally identifying information;

(4) A signature for which the corresponding printed name, address, or birthdate is written by someone other than the signer except under circumstances of disability of the signer;

(5) A signature that has any other material defect that, on its face, renders the signature invalid; and

(6) A signature submitted by a canvasser who has not filed a true affidavit with the county clerk as required under subdivision (d)(1) of this section certifying that the canvasser has complied with the Arkansas Constitution and all Arkansas laws regarding canvassing, perjury, forgery, and fraudulent practices in the procurement of petition signatures during the current election cycle.

(d)(1) Except as provided under subdivision (d)(4) of this section, a canvasser shall file a true affidavit with the county clerk certifying that the canvasser has complied with the Arkansas Constitution and all Arkansas laws regarding canvassing, perjury, forgery, and fraudulent practices in the procurement of petition signatures during the current election cycle.

(2) The county clerk shall not count the signatures submitted by the canvasser until a true affidavit is submitted under subdivision (d)(1) of this section.

(3) A true affidavit submitted under subdivision (d)(1) of this section shall have no bearing to establish the genuineness or falsity of the signatures obtained by the canvasser.

(4)(A) The inability of a canvasser to submit an affidavit due to death or medical disability shall not disqualify the signatures gathered by the canvasser.

(B) Subdivision (d)(4)(A) of this section does not excuse a canvasser from filing the affidavit required under § 3-8-808.

(e) A canvasser who has filed a true affidavit under subsection (d) of this section shall not collect additional signatures unless the county clerk determines that the sponsor of the local option election petition is eligible to solicit and add additional signatures to the local petition under § 14-14-915(e).

History. Acts 2015, No. 1251, § 5; 2025, No. 115, § 6;
2025, No. 764, §§ 5, 6.

CHAPTER 9

ON-PREMISES CONSUMPTION

SUBCHAPTER 2 — ALCOHOLIC BEVERAGES GENERALLY

SECTION.

3-9-206. Referendum elections — Conduct.

3-9-206. Referendum elections — Conduct.

(a) A referendum election hereunder shall be conducted in accordance with the following:

(1) A referendum election may be called in a city by resolution adopted by a majority vote of the governing body of the city or by petition filed with the city clerk signed by qualified electors of the city numbering not less than fifteen percent (15%) of the votes cast in the city for the office of Governor in the last general election in which the office appeared on the ballot; or

(2) A referendum election may be called in a county by resolution adopted by a majority vote of the quorum court at any annual or special session thereof, or by petition filed with the county clerk signed by qualified electors of the county numbering not less than fifteen percent (15%) of the votes cast in the county for the office of Governor in the last general election in which the office appeared on the ballot.

(b)(1) The election shall be called by order of the quorum court in accordance with § 7-11-201 et seq. and held and conducted in accordance with § 7-11-201 et seq. and the results certified under the supervision of the county board of election commissioners in the manner provided by the election laws of this state.

(2) The order of the quorum court shall fix the date of the election not more than ninety (90) days from the date of the order and give notice thereof by publication in a newspaper of general circulation in the city or county by at least two (2) insertions, the last being not less than ten (10) days prior to the election.

(3) The county board shall tabulate the votes and certify the results to the county clerk within ten (10) days after the election.

(c) The election shall be conducted on a citywide or countywide basis. All qualified electors within the city or county, as the case may be, shall be eligible to vote even though they reside in a dry area thereof.

(d) On the ballot for the election shall be printed substantially the following:

“FOR THE SALE OF ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION IN (NAME OF CITY OR COUNTY), ARKANSAS, AS AUTHORIZED IN ARKANSAS CODE § 3-9-201 ET SEQ. ☐

AGAINST THE SALE OF ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION IN (NAME OF CITY OR COUNTY), ARKANSAS, AS AUTHORIZED IN ARKANSAS CODE § 3-9-201 ET SEQ.”. ☐

(e) The results of the election may be contested within the time and in the manner provided by law.

(f) All matters concerning the sufficiency of the petitions and the conduct of the election not specifically provided for herein shall be determined in accordance with the initiative and referendum laws of this state applicable to cities and counties, respectively.

History. Acts 1969, No. 132, § 4; A.S.A. 1947, § 48-1404; Acts 1997, No. 1010, § 5; 1997, No. 1060, § 5; 2001, No. 1475, § 5; 2005, No. 2145, § 2; 2007, No. 1049, § 3; 2009, No. 1480, § 2.

TITLE 5

CRIMINAL OFFENSES

SUBTITLE 5. OFFENSES AGAINST THE ADMINISTRATION OF GOVERNMENT

CHAPTER.

55. FRAUD AGAINST THE GOVERNMENT.

SUBTITLE 5. OFFENSES AGAINST THE ADMINISTRATION OF GOVERNMENT

CHAPTER 55

FRAUD AGAINST THE GOVERNMENT

SUBCHAPTER 6 — ELECTION, PETITION, AND BALLOT FRAUD

SECTION.

5-55-601. Petition fraud.

5-55-602. Criminal impersonation in an election.

5-55-601. Petition fraud.

(a) As used in this section, “petition” means a petition under § 3-8-201 et seq., § 3-8-801 et seq., or § 7-9-101 et seq.

(b) A person commits the offense of petition fraud:

(1) If the person knowingly:

(A) Signs a name other than his or her name to a petition;

(B) Signs his or her name more than one (1) time to a petition; or

(C) Signs a petition when he or she is not legally entitled to sign the petition;

(2) If the person acting as a canvasser, notary, sponsor as defined under § 7-9-101, or agent of a sponsor:

(A) Signs a name other than his or her own to a petition;

(B) Prints a name, address, or birth date other than his or her own to a petition unless the signor requires assistance due to disability and the person complies with § 7-9-103;

(C) Solicits or obtains a signature to a petition knowing that the person signing is not qualified to sign the petition;

(D) Knowingly pays a person any form of compensation in exchange for signing a petition as a petitioner;

(E) Accepts or pays money or anything of value for obtaining signatures on a petition when the person acting as a canvasser, sponsor, or agent of a sponsor knows that the person acting as a canvasser’s name or address is not included on the sponsor’s list filed with the Secretary of State under § 7-9-601; or

(F) Knowingly misrepresents the purpose and effect of the petition or the measure affected for the purpose of causing a person to sign a petition;

(3) If the person acting as a canvasser knowingly makes a false statement on a petition verification form;

(4) If the person acting as a notary knowingly fails to witness a canvasser’s affidavit by witnessing the signing of the instrument in person and either personally knowing the signor or by being presented with proof of the identity of the signer; or

(5) If the person acting as a sponsor files a petition or a part of a petition with the official charged with verifying the signatures knowing that the petition or part of the petition contains

one (1) or more false or fraudulent signatures unless each false or fraudulent signature is clearly stricken by the sponsor before filing.

(c) Petition fraud is a Class D felony.

History. Acts 2013, No. 1432, § 9; 2019, No. 376, § 1.

5-55-602. Criminal impersonation in an election.

(a) A person commits the offense of criminal impersonation in an election if he or she knowingly impersonates another person in an attempt to vote in a city, school district, county, state, or federal election.

(b) Criminal impersonation in an election is a Class D felony.

History. Acts 2015, No. 1166, § 2.

TITLE 6

EDUCATION

SUBTITLE 2. ELEMENTARY AND SECONDARY EDUCATION GENERALLY

CHAPTER.

- 13. SCHOOL DISTRICTS.
- 14. SCHOOL ELECTIONS.
- 18. STUDENTS.

SUBTITLE 5. POSTSECONDARY AND HIGHER EDUCATION GENERALLY

CHAPTER.

- 61. POSTSECONDARY INSTITUTIONS GENERALLY.

SUBTITLE 2. ELEMENTARY AND SECONDARY EDUCATION GENERALLY

CHAPTER 13

SCHOOL DISTRICTS

SUBCHAPTER 6 — SCHOOL DISTRICT BOARDS OF DIRECTORS GENERALLY

SECTION.

- 6-13-608. Length of directors' terms.
- 6-13-609, 6-13-610. [Repealed.]
- 6-13-611. Vacancies generally.
- 6-13-612. Vacancy — Conviction of felony.
- 6-13-613. Temporary vacancies — Vacancies created by failure to participate.
- 6-13-614. [Repealed.]
- 6-13-615. Local option to elect directors from single-member zones, at large, or combination of single-member zones and at large.

SECTION.

- 6-13-616. Qualifications of directors.
- 6-13-617. Oath.
- 6-13-630. Election by zone and at large.
- 6-13-631. [Repealed.]
- 6-13-632. Adequate meeting facilities required.
- 6-13-633. [Repealed.]
- 6-13-634. School district board of directors — Size.
- 6-13-637. Recall election and petition for removal — School district boards of directors.

6-13-608. Length of directors' terms.

(a) All members of a school district board of directors shall be elected to a term of office of four (4) years or six (6) years in length and with the expiration of such terms so arranged that, as nearly as possible, an equal number of positions are filled every school board election.

(b) Unless otherwise provided by law, members of a school district board of directors shall have terms of office of equal length.

(c)(1) A member of a school district board of directors shall not serve more than one (1) full term as a holdover.

(2) If at the expiration of the holdover term a person is not elected to fill the position at the school board election or the person elected fails to subscribe to the director's oath of office within the time provided under § 6-13-617(a)(1), the position is vacant and the vacancy shall be filled as provided under § 6-13-611.

(d)(1) An entire school district board of directors is required to be elected during the first school board election after a school district:

- (A) Changes from an all at-large or combined at-large and zoned membership and is zoned to an all zoned or combined at-large and zoned membership;
- (B) Is rezoned following the federal decennial census;
- (C) Returns from state to local control;

- (D) Has boundary or zone changes as a result of annexation, consolidation, or reconstruction;
- (E) Has fallen below the average daily membership requirement under § 6-13-634(a); or
- (F) Is no longer operating under a court ordered exemption to § 6-13-634(b).
- (2) School board members shall initially draw lots for two-year or four-year terms in districts with four-year terms or two-year, four-year, or six-year terms in districts with six-year terms so that, as nearly as possible, an equal number of positions are filled in each subsequent school board election in no longer than:
 - (A) Two (2) school board elections for those with four-year terms; or
 - (B) Three (3) school board elections for those with six-year terms.
- (3) Initially, terms for members elected in 2025 shall expire:
 - (A) For school boards adopting four-year terms, in 2028; or
 - (B) For school boards adopting six-year terms, in 2030.
- (4) For other members of a school district board of directors currently holding terms, terms set to expire on or in:
 - (A) 2026 shall expire in 2026;
 - (B) 2027 shall expire in 2026;
 - (C) 2028 shall expire in 2028; and
 - (D) 2029 shall expire in 2028.
- (5) If after rebalancing terms, there is not, as nearly as possible, an equal number of positions filled every school board election, the school district board of directors shall adjust the minimum number of terms necessary to ensure balance between those terms expiring in 2026 and 2028.

History. Acts 1981, No. 50, § 1; A.S.A. 1947, § 80-549; Acts 1999, No. 1078, § 35; 2013, No. 558, § 2; 2015, No. 379, § 1; 2025, No. 503, § 1.

6-13-609, 6-13-610. [Repealed.]

Publisher's Notes. These sections, concerning terms of directors in counties with populations between 26,000 and 26,800 and in districts with eight directors, were repealed by Acts 1993, No. 294, § 7. The sections were derived from the following sources:

6-13-609. Acts 1979, No. 678, § 1; A.S.A. 1947, § 80-502.11.

6-13-610. Acts 1967, No. 129, §§ 1-3; A.S.A. 1947, §§ 80-502.6 — 80-502.8.

6-13-611. Vacancies generally.

- (a) A vacancy shall occur on a school district board of directors if a board member:
 - (1) Moves his or her bona fide permanent residence outside the boundaries of the school district;
 - (2) Fails to physically attend three (3) consecutive regular meetings of the school district board of directors unless the failure is due to:
 - (A) Military service of the board member; or
 - (B) Illness of the board member that is verified by a written sworn statement of the board member's attending physician;
 - (3) Fails to physically attend six (6) regularly scheduled board meetings of the school district board of directors in a calendar year unless the failure is due to:
 - (A) Military service of the board member; or
 - (B) Illness of the board member that is verified by a written sworn statement of the board member's attending physician;
 - (4) Fails to receive the mandatory hours of training within the time frame required by § 6-13-629 unless the failure was due to:
 - (A) Military service of the board member; or
 - (B) A serious medical condition as demonstrated by a written sworn statement of the board member's treating physician;
 - (5) Is convicted of a:

- (A) Felony in accordance with § 6-13-612; or
 - (B) Violation of the ethical guidelines and prohibitions under § 6-24-101 et seq.;
 - (6) Is called to active military duty in accordance with § 6-13-613;
 - (7) Resigns from the school district board of directors;
 - (8) Dies; or
 - (9) Is subject to a recall petition that is approved by a majority vote of the electors qualified to vote for the office held by the member to be removed.
- (b)(1) If credible evidence of a violation of subdivisions (a)(1)-(4) of this section is presented to the president, vice president, or secretary of a school district board of directors, a majority of the members of the school district board of directors shall:
- (A) Vote on whether to appoint an independent investigator to investigate the credible evidence presented; and
 - (B) Hold a hearing on the existence of a vacancy on the school district board of directors.
- (2)(A) At least fifteen (15) days before a hearing is held under subdivision (b)(1)(B) of this section, a notice of the hearing shall be provided by personal delivery or certified mail with the return receipt signed by the addressee only requested to the board member whose eligibility is questioned so that the board member has an opportunity to speak before the other members of the school district board of directors.
- (B) If the board member whose eligibility is questioned is unable to attend the hearing, he or she may:
- (i) Submit no more than one (1) request in writing to the president and the secretary of the school district board of directors requesting an alternative time for the hearing, not to be later than the next regularly scheduled meeting of the school district board of directors; or
 - (ii) Notify the president and the secretary of the school district board of directors in writing that he or she is unable to attend the meeting in person but will send a representative to the meeting in his or her place.
- (3) At a hearing held under subdivision (b)(1)(B) of this section, a majority of the members of the school district board of directors, excluding the board member whose eligibility is challenged, shall:
- (A) Be presented with written or oral evidence;
 - (B) Act as the finder of fact to determine whether or not a vacancy exists; and
 - (C) Vote whether or not a vacancy exists based on the evidence at the conclusion of the hearing.
- (4) A vacancy under subdivisions (a)(1)-(3) of this section does not exist until an affirmative vote has taken place under subdivision (b)(3)(C) of this section.
- (5)(A) The school district board of directors shall make a record of the hearing and keep a copy of all evidence presented.
- (B) A written transcript of the hearing shall be made available upon request.
- (6)(A) Within ten (10) days of a vote to remove a member of the school district board of directors due to a vacancy under subdivisions (a)(1)-(3) of this section, the school district board of directors shall provide a written notification of removal to the board member who is deemed ineligible.
- (B) The notice shall:
- (i) Include a statement of the removal, the date of the vote, and the right to appeal;
 - (ii) Be delivered personally or by registered or certified mail with the return receipt signed by the addressee only; and
 - (iii) Be provided to the county clerk for the county clerk's records.
- (c)(1) If a vacancy occurs on the school district board of directors, the vacancy shall be filled by the appointment of an individual who is a qualified elector of the school district and who resides in the same zone, if applicable, as required by the vacant position by:
- (A) A majority vote of the remaining directors within ninety (90) days; or
 - (B) The county quorum court of the county in which a majority of the residents are represented by the school district board of directors' vacated position if:

(i) As a result of several vacancies on the school district board of directors, only a minority of board members remains; or

(ii) The school district board of directors fails to fill the vacancy within the time permitted under subdivision (c)(1)(A) of this section.

(2)(A) At least thirty (30) days before an appointment is made by a school district board of directors or a county quorum court, the school district shall publish a notice of the vacancy on the school district board of directors, the date of the meeting when the appointment shall be made to fill the vacancy, and the requirements for being considered to fill the vacancy, including without limitation the process for consideration to fill the vacancy required under subdivision (c)(3) of this section:

(i) In a local newspaper covering the school district zone or area;

(ii)(a) On the homepage of the school district's official website.

(b) The school district shall include blank copies of any required forms with the notice required under subdivision (c)(2)(A)(ii)(a) of this section; and

(iii) Utilizing existing communication systems, including without limitation text messages, phone messages, and email, that the school district ordinarily employs to contact parents and legal guardians of students enrolled in the school district.

(B) A school district shall promptly give notice of the existence of a vacancy and shall submit evidence of the publication of a vacancy required under subdivision (c)(2)(A) of this section to the county clerk of the county in which the school district is administratively domiciled.

(3) A qualified elector who resides in the school district or school district zone affected by a school district board of directors' vacancy who wishes to be considered to fill the vacancy shall submit a petition to the school district board of directors or county quorum court no later than ten (10) days before the date of the meeting specified in the notice of the vacancy published under subdivision (c)(2)(A) of this section that:

(A) Is signed by at least twenty (20) qualified electors from the vacant school district or school district zone position; and

(B) States his or her intention to be considered for the appointment to fill the vacancy.

(4)(A) The school district board of directors or quorum court shall:

(i) Acknowledge in writing the receipt of a petition under subdivision (c)(3) of this section; and

(ii) Promptly inform a candidate if his or her petition has been found to be insufficient or invalid:

(a) That his or her petition has been found to be insufficient or invalid; and

(b) What the candidate is required to do to cure the petition before the deadline.

(B) A school district board of directors or county quorum court may fill a vacancy only with a candidate who has submitted a timely, valid, and sufficient petition under this section.

(5)(A) An elector who submits a sufficient and valid petition under this section shall be given at least five (5) minutes to present his or her candidacy in a public meeting of the remaining members of the school district board of directors or the county quorum court before either the school district board of directors or county quorum court votes to fill the vacancy.

(B) A school district board of directors or a county quorum court may request reasonable information from a candidate to fill a vacancy under this section, including without limitation a request for written answers to questions before a public meeting is held.

(C)(i) A school district board of directors may vote to decline to fill the vacancy.

(ii) If a school district board of directors votes to decline to fill a vacancy under subdivision (c)(5)(C)(i) of this section, the appointment shall pass immediately to the quorum court of the county in which a majority of the residents represented by the vacant position reside.

(6) All matters regarding the filling of a vacancy on a school district board of directors shall be discussed and acted upon by a school district board of directors or a county quorum court in an open public meeting and not in an executive session.

(7) If, after substantially complying with subdivisions (c)(1)-(6) of this section, a school district board of directors or a county quorum court has not received a valid and sufficient petition under

this section, the school district board of directors or county quorum court may use an alternative process to fill the vacancy.

(d) If a vacancy on the school district board of directors results in an officer position being vacant, the school district board of directors shall elect no later than the next regularly scheduled meeting after the appointment of a new board member the officer position until the next general election of board officers.

(e) An appointed director, except a director appointed to fill a vacancy under § 6-13-613, shall serve only until his or her elected successor subscribes to the director's oath of office under § 6-13-617.

(f)(1) The secretary of the school district board of directors shall notify the county clerk of an appointment to the school district board of directors within five (5) days of the appointment being made.

(2) The notice shall include the name of the appointed board member and the expiration date of his or her term.

(g) A board member appointed under this section shall take the oath required under § 6-13-617.

History. Acts 1935, No. 30, § 4; Pope's Dig., § 11524; No. 589, § 1; 2021, No. 261, § 1; 2023, No. 750, § 1; 2023, A.S.A. 1947, § 80-504; Acts 1991, No. 201, § 1; 1999, No. No. 883, § 1; 2025, No. 503, § 2; 2025, No. 726, § 1; 2025, 1078, § 36; 2015, No. 843, § 1; 2015, No. 846, § 3; 2017, No. 912, § 1.

6-13-612. Vacancy — Conviction of felony.

(a) When a member of the board of directors of any school district in this state is convicted of a felony, a vacancy shall exist on that board of directors from the date of the final judgment of conviction.

(b) The prosecuting attorney who successfully prosecutes a school district board member for a felony shall immediately notify the remaining members of that board of directors of the fact of the conviction and of the existence of a vacancy on the board of directors of the school district.

(c) A vacancy on a school district board of directors due to the conviction of a felony shall be filled as required under § 6-13-611.

History. Acts 1981, No. 13, § 1; A.S.A. 1947, § 80-504.2; Acts 2015, No. 843, § 2; 2015, No. 846, § 4.

6-13-613. Temporary vacancies — Vacancies created by failure to participate.

(a) In cases where directors have entered the services of the United States Armed Forces or its allies, temporary vacancies on such boards are declared to exist until the end of the terms of the members or until their return to civilian life in the school district if their return occurs before the expiration of their elected terms.

(b) These vacancies shall be filled in the manner prescribed by law, except that appointments of the successors shall be conditional upon the return of the members to resume their normal civilian activities in the school district. Upon return, they may resume their duties as directors for their unexpired terms by written notice to the secretaries of their respective school district boards of directors.

(c) Directors appointed under the provisions of this section shall take the required oath of office and conform in all respects to legal provisions regarding directors.

(d) Directors serving in the United States Armed Forces shall be eligible for reelection in the usual manner prescribed by law. If reelected, the procedure for filling the temporary vacancies provided herein shall be again followed in the appointment of the successors to the absentees, and all other provisions of this section shall prevail.

(e) If there is a majority of the directors left after the absences mentioned in this section, such majority may act without notice to those so absent as fully and as effectively as if all directors were present.

(f) If there is more than a majority remaining after such absences, notice must be given for a reasonable length of time before the meeting to directors not so absent of the time, place, and

purpose of a meeting of the school district board of directors, unless the meeting is a regular and not a special or called meeting.

History. Acts 1943, No. 120, §§ 1-3; A.S.A. 1947, §§ 80-206 — 80-208; Acts 1991, No. 201, § 2; 1993, No. 294, § 7; 1999, No. 1078, § 37; 2015, No. 843, § 3.

6-13-614. [Repealed.]

Publisher's Notes. This section, concerning school districts with five directors, was repealed by Acts 2003, No. 1364, § 1. The section was derived from Acts 1945, No. 29, § 1; A.S.A. 1947, § 80-503.

6-13-615. Local option to elect directors from single-member zones, at large, or combination of single-member zones and at large.

(a)(1) Qualified electors of a school district may, by petition, have placed on the ballot of any annual school election the issue to determine whether to elect the school district board of directors:

- (A) From single-member zones;
- (B) At large; or
- (C) A combination of single-member zones and at large.

(2) The petitions calling for the issue under subdivision (a)(1) of this section to be placed on the ballot shall be signed by not less than ten percent (10%) of the qualified electors of a school district, based upon the total number of registered voters in the school district.

(3) The petitions may be circulated between ninety (90) days and forty-five (45) days before the election date.

(4) The petitions shall be filed with the county election commission of the county in which the largest portion of the school district lies.

(b)(1) Within ten (10) days of the receipt and verification of the sufficiency of the petitions required under subsection (a) of this section, the county election commission shall notify the board of directors of the affected school district that the issue shall be placed on the ballot of the next school board election.

(2) The county election commission shall specify the wording of the ballot to be used to determine whether to elect the school district board of directors from single-member zones, at large, or a combination of single-member zones and at large.

(c) If a majority of the qualified electors of a school district vote for the election of the school district board of directors from single-member zones or a combination of single-member zones and at large, the county election commission of the county in which the largest portion of the school district lies shall establish, within the school district, boundaries for the election of directors of the school district board of directors, which shall have substantially equal population based on the most recent available census.

(d)(1) Members of the school district board of directors shall be elected for a four-year term.

(2) A member of the school district board of directors shall hold office until his or her successor has been elected and qualified.

(3) A member of the school district board of directors who is qualified to serve the zone he or she represents may succeed himself or herself.

(e)(1) Following a school board election, a new school district board of directors at the initial meeting shall, by lot, establish initial terms so that, as closely as possible, an equal number of positions are filled during each school board election.

(2) The regular term of office for a school district board of directors elected after the initial election following the decision to elect from single-member zones shall be the same as the term of the school district board of directors of the school district before the change in the method of election of the school district board of directors.

History. Acts 1989, No. 872, §§ 1-5; 2023, No. 547, § 1.

6-13-616. Qualifications of directors.

(a) No person shall be eligible to be a member of any school district board of directors in this state unless he or she is a qualified elector of the school district which he or she serves.

(b) No person who is elected to a school district board of directors shall be eligible for employment in that same school district.

History. Acts 1935, No. 30, § 4; Pope's Dig., § 11524; Acts 1989, No. 242, § 1; 1993, No. 294, § 7; 1993, No. 346, Acts 1957, No. 131, § 1; A.S.A. 1947, §§ 80-504, 80-504.1; § 1; 1999, No. 1390, § 1.

6-13-617. Oath.

(a)(1)(A) Each director shall, within ten (10) days after receiving notice from the county clerk or his or her designee of his or her election or within ten (10) days after receiving notice from the county clerk or his or her designee of his or her appointment, subscribe to the following oath before an individual authorized to administer oaths under § 21-2-105:

"I, _____, do hereby solemnly swear or affirm, that I will support the United States Constitution and the Arkansas Constitution, and that I will not be interested, directly or indirectly, in any contract made by the district of which I am a director, except as permitted by state law, that I shall abide by the ethical guidelines and prohibitions under § 6-24-101 et seq., and that I will faithfully discharge the duties as school director in _____ School District upon which I am about to enter.

Director's Signature

Administrator's Signature

Date".

(B) The notification from the county clerk or his or her designee shall indicate that the oath shall be subscribed to within ten (10) days after receiving notice from the county clerk or his or her designee of the director's election or appointment.

(2)(A) After the oath is administered, the director shall submit a certification of the administration of the oath to the county clerk or his or her designee.

(B) The certification of the administration of the oath shall contain:

- (i) A copy of the oath;
- (ii) The director's signature;
- (iii) The administrator's signature; and
- (iv) The date.

(C) The certification of the administration of the oath shall be submitted to the county clerk or his or her designee no later than the close of business ten (10) days after receiving notice from the county clerk or his or her designee of the director's election or appointment.

(b)(1) The county clerk or his or her designee, upon receipt of the certification of the administration of the oath prescribed for a director, shall immediately commission the director, and the director shall immediately assume his or her duties as a director.

(2) By the close of business of the day following the receipt of the certification of the administration of the oath, the county clerk or his or her designee shall:

(A) Notify the superintendent of the school district by phone that the individual has subscribed to the director's oath; and

(B) Send a copy of the certificate of the administration of the oath to the school district's central office within five (5) days.

(c) The failure of an elected director to have the oath administered and submit proof that the oath was administered as required under subsection (a) of this section will result in:

(1) The individual's not being qualified to serve for the purpose of Arkansas Constitution, Article 19, § 5; and

(2) A holdover.

History. Acts 1935, No. 30, § 12; Pope's Dig., § 11532; 1155, § 10; 2015, No. 379, § 2; 2023, No. 883, § 2; 2025, A.S.A. 1947, § 80-505; Acts 2001, No. 1599, § 20; 2013, No. 401, § 1.

6-13-630. Election by zone and at large.

(a)(1) The board of directors of any school district shall have the authority to provide by resolution adopted by a majority vote that a portion of the board members shall be elected by zone, at large, or a combination thereof.

(2) A candidate for a position to be elected by zones shall reside in the zone.

(3) The names of the candidates for at-large board positions shall appear upon the ballots throughout the school district.

(b) The resolution adopted by the board of directors shall prescribe the procedure for implementing the reorganization within four (4) years after the date of the passage of the resolution.

(c) Every such resolution adopted by the board of directors of such school district shall adopt a plan of election for members of the board of directors which will cause the selection procedures to be in compliance with the Voting Rights Act of 1965, 52 U.S.C. § 10301 et seq.

(d) The board of directors of the school district shall cause the resolution to be published at least ninety (90) days before the filing deadline for the next regular school election after the adoption of the resolution.

History. Acts 1989, No. 185, § 1; 2021, No. 511, § 1. § 6-13-607.

Publisher's Notes. Acts 1989, No. 185, § 2, provided that nothing in this act shall be construed to repeal **Amendments.** The 2021 amendment substituted "ninety (90) days" for "thirty (30) days" in (d).

6-13-631. [Repealed.]

6-13-632. Adequate meeting facilities required.

(a) The board of directors of schools with an average daily membership of at least twenty-five thousand (25,000) shall hereafter hold all school district board of director meetings and public hearings in facilities that will adequately accommodate individuals with disabilities and the number of patrons anticipated to attend.

(b) If a single room is not large enough or adequate to accommodate individuals with disabilities and the number of patrons who attend, the board of directors shall utilize closed-circuit television or other means which will assure full participation by all in attendance.

History. Acts 1993, No. 891, § 1.

6-13-633. [Repealed.]

Publisher's Notes. This section, concerning vacancy created when school board member no longer lives in district, was repealed by 2015, No. 843, § 5. The section was derived from Acts 1999, No. 898, § 1. For current law, see § 6-13-611.

6-13-634. School district board of directors — Size.

(a)(1) A school district shall have a board of directors with five (5) members or seven (7) members.

(2) A school district may have a board of directors with nine (9) members if the school district has an average daily membership of twenty thousand (20,000) or more.

(b)(1) Subsection (a) of this section does not apply to those school districts that have a board of directors of seven (7) members, or in the case of a school district having an average daily membership of twenty thousand (20,000) or more, and having chosen to elect nine (9) members, if the school district is operating under a court order or a consolidation agreement that provides for a board of directors.

(2) Except as otherwise provided by law, a school district that elects its directors from single-member zones is subject to the requirements of this section.

(c)(1) A school district board of directors shall not have an even number of directors.

(2) No less than ninety (90) days before the next annual school election, a school district seeking to increase or decrease the number of its directors shall file a petition with the State Board of Education to establish the requisite odd number of directors.

(3) The school district shall publish notice of the filing of the petition within ten (10) days thereafter for one (1) insertion in a newspaper having a general circulation in the school district.

(4) Upon a showing that the increase or decrease will be for the benefit of the school district petitioning for it, the State Board of Education may enter an order to increase or decrease the number of directors for the school district to a number of directors provided under subsection (a) of this section.

(5) The order directing an increase or decrease shall be entered not more than sixty (60) days after the publication of the notice under subdivision (c)(3) of this section.

(6) If the number of members of a board of directors is decreased under this section, the board of directors in office on August 12 before the next regular school election shall draw lots to determine which board positions will be eliminated.

(d) Any change in the number of directors serving on a school district board of directors under this section is effective upon the directors' taking office following the next regular school board election.

History. Acts 1999, No. 1078, § 29; 2005, No. 2151, § 13; 2013, No. 1155, § 11; 2019, No. 824, §§ 1, 2; 2025, No. 503, § 3.

6-13-637. Recall election and petition for removal — School district boards of directors.

(a) A member of a school district board of directors is subject to recall and removal by a majority vote of the electors qualified to vote for the office held by the member to be removed.

(b) A member of a school district board of directors is subject to recall and removal for the following reasons, including without limitation:

(1) A moral failing leading to pending criminal charges; and

(2) The loss of public trust.

(c)(1) The petition for removal shall:

(A) State the name of the member of the school district board of directors to be removed;

(B) Identify the office held by the member of the school district board of directors who is to be removed;

(C) State that the petition for removal is to hold a recall election for removal of the member of the school district board of directors from his or her office; and

(D) State the reason for which removal is sought with an affidavit signed by the petitioner affirming the truthfulness of that statement.

(2) A signer on the petition for removal shall:

(A) Sign his or her legal name; and

(B) List his or her residential address.

(3) If a petition for removal signed by at least thirty-five percent (35%) of the electors who are qualified to vote for the office held by the member who is to be removed is filed with the county clerk, the county clerk shall:

(A) Verify the signatures on the petition for removal within ten (10) days of its filing;

(B) Certify the petition for removal that has been verified to have the requisite number of valid signatures under this section promptly after verification; and

(C) Promptly notify the school district board of directors and the county board of election commissioners of the certification of the petition for removal.

(4) The petitioner shall have an additional ten (10) days to circulate the petition for removal if:

(A) At the time the petition for removal is filed, the petition for removal contains a number of signatures equal to at least thirty-five percent (35%) of the electors who are eligible to vote for the office held by the member to be removed; and

(B) The number of signatures that are verified by the county clerk as valid under this section is less than thirty-five percent (35%) of the electors who are eligible to vote for the office held by the member to be removed.

(d)(1) Except as provided under subdivision (d)(2) of this section, a recall election under this section shall be held at the next school board election.

(2) If the next school board election is less than sixty (60) days after the petition for removal is certified by the county clerk, the recall election shall be held at the next school board election following the next school board election.

(3) Except as provided under this section, the recall election shall be held in accordance with the laws governing the school board election.

(e)(1) If a person is removed from his or her office under this section, there is a vacancy in office.

(2) When a vacancy is created under this section the vacancy shall be filled under the procedure in § 6-13-611.

(3) A vacancy in office shall not be filled by an appointee who has been removed from the school district board of directors under this section.

(f) A member of a school district board of directors may be subject to no more than one (1) recall petition during the member's elected term in office.

History. Acts 2025, No. 912, § 2.

SUBCHAPTER 14 — CONSOLIDATION, ANNEXATION, AND FORMATION

SECTION.

6-13-1401. Definitions.

6-13-1402. Consolidation and annexation authority.

6-13-1403. Conditions under which State Board of Education may annex school districts.

6-13-1404. Conditions under which State Board of Education may consolidate school districts.

6-13-1405, 6-13-1406. [Repealed.]

6-13-1407. Creation of school district — When part of school district taken.

6-13-1408. Annexation or consolidation not to negatively impact state-assisted desegregation.

SECTION.

6-13-1409. State Board of Education.

6-13-1410. Appeal and election.

6-13-1411. Use of fund balances.

6-13-1412, 6-13-1413. [Repealed.]

6-13-1414. Boundary change by State Board of Education.

6-13-1415. Involuntary consolidation or annexation — Effective date — Interim board of directors.

6-13-1416. Voluntary consolidation or annexation — Effective date — Interim board of directors.

6-13-1417. Formation of permanent board of directors.

Effective Dates. Acts 2001, No. 1037, § 2: Mar. 22, 2001. Emergency clause provided: "It is found and determined by the General Assembly that several school districts have agreed upon boundary changes, and it could cause irreparable harm for students who are displaced by a change in boundaries in the middle of a school year. Therefore, it is necessary to have boundary changes effective prior to the beginning of the school year. Therefore, an emergency is declared to exist and this act being immedi-

ately necessary for the preservation of the public peace, health and safety shall become effective on the date of its approval by the Governor. If the bill is neither approved nor vetoed by the Governor, it shall become effective on the expiration of the period of time during which the Governor may veto the bill. If the bill is vetoed by the Governor and the veto is overridden, it shall become effective on the date the last house overrides the veto."

6-13-1401. Definitions.

As used in this subchapter:

(1) "Affected district" means a school district that:

(A) Loses territory or students as a result of annexation; or

(B) Is involved in a consolidation;

(2) “Aggrieved district” means the lawfully constituted and existing board of directors of a school district that gains or loses territory or students as a result of an annexation or consolidation;

(3) “Annexation” means the joining of an affected school district or part thereof with a receiving district;

(4) “Consolidation” means the joining of two (2) or more affected school districts or parts thereof to create a new single school district;

(5) “Receiving district” means a school district or districts that receive territory or students, or both, from an affected district as a result of annexation; and

(6) “Resulting district” means the new school district created from an affected district or districts as a result of consolidation.

History. Acts 2001, No. 1225, § 1; 2011, No. 989, § 5; 2011, No. 1217, § 1.

6-13-1402. Consolidation and annexation authority.

There shall not be any consolidation or annexation of any public school district with any other school district in the state without the prior consent and approval of the State Board of Education.

History. Acts 2001, No. 1225, § 1.

6-13-1403. Conditions under which State Board of Education may annex school districts.

(a) The State Board of Education shall consider the annexation of an affected district or districts to a receiving district or districts under the following conditions:

(1) The state board, after providing thirty (30) days’ written notice to the affected school districts, determines that annexation is in the best interest of the affected district or districts and the receiving district based upon failure to meet standards for accreditation, failure to meet fiscal or facilities distress requirements, or failure to meet the requirements to exit Level 5 — Intensive support pursuant to The Quality Education Act of 2003, § 6-15-201 et seq., the Arkansas Fiscal Assessment and Accountability Program, § 6-20-1901 et seq., the Arkansas Public School Academic Facilities Program Act, § 6-21-801 et seq., and the Arkansas Educational Support and Accountability Act, § 6-15-2901 et seq.;

(2)(A) The affected district or districts file a petition with the state board requesting annexation to a particular receiving district or districts, and a copy of the petition is filed with the county clerk’s office of each county where the affected district or districts are located.

(B) The county clerk’s office of each county where the affected district or districts are located certifies in writing that the petition has been signed by a majority of the qualified electors of the affected district or districts.

(C) The receiving district or districts provide to the state board written proof of consent to receive the affected district or districts by annexation as evidenced by either a vote to approve annexation by resolution by a majority of the members of the local receiving board of education or by a vote to approve annexation by a majority of the qualified electors of the receiving district as provided for in § 6-14-122;

(3)(A) A majority of the qualified electors in the affected district or districts vote to approve the annexation of an affected district or districts to a receiving district or districts as provided for in § 6-14-122.

(B) The receiving district or districts provide to the state board written proof of consent to receive the affected district or districts by annexation as evidenced by either a vote to approve annexation by resolution by a majority of the members of the local receiving board of education or by a vote to approve annexation by a majority of the qualified electors of the receiving district as provided in § 6-14-122; or

(4)(A) The local board of education of the affected district or districts votes to approve by resolution the annexation of the affected district or districts to a receiving district or districts by a majority of the members of the local board of education of the affected district or districts.

(B) The receiving district or districts provide to the state board written proof of consent to receive the affected district or districts by annexation as evidenced by either a vote to approve annexation by resolution by a majority of the members of the local receiving board of education or by a vote to approve annexation by a majority of the qualified electors of the receiving districts as provided for in § 6-14-122.

(b) The state board may vote to approve, by a majority of a quorum present of the members of the state board, the annexation of the affected districts into a receiving district.

(1) The state board, after providing thirty (30) days' written notice to the affected districts, may on its own motion based on a school district's failure to meet standards for accreditation, failure to meet fiscal distress requirements, or failure to meet the requirements to exit Level 5 — Intensive support pursuant to The Quality Education Act of 2003, § 6-15-201 et seq., the Arkansas Fiscal Assessment and Accountability Program, § 6-20-1901 et seq., and the Arkansas Educational Support and Accountability Act, § 6-15-2901 et seq.; or

(2) Upon receipt of:

(A) A valid petition for annexation and after receiving proof from the petitioning party of at least one (1) of the required conditions set forth in subsection (a) of this section; and

(B) Proof of the issuance of public notice of the intent to annex affected districts into a receiving district or districts in the local newspapers of general circulation in the affected districts for a time period of no less than one (1) time a week for two (2) consecutive weeks immediately before the time the petition is filed with the state board.

(c)(1) In order for the petition for annexation to be valid, it shall be filed with the state board at least thirty (30) days before the next regularly scheduled state board meeting, at which time the petition will be presented for hearing before the state board.

(2) However, no petition is required for the state board to annex a school district or districts upon a motion of the state board as allowed in subsection (b) of this section.

(d)(1) Upon determination by the state board to annex a school district or approval of a petition requesting annexation, the state board shall issue an order dissolving the affected districts and establishing the receiving district or districts.

(2)(A) The state board shall issue an order establishing the boundary lines of the receiving district or districts.

(B) It is the duty of the Arkansas Geographic Information Systems Office to make changes in the maps of the school districts to properly show the boundary lines of the receiving district or districts.

(e)(1) The state board shall:

(A) Issue an order establishing the changed boundaries; and

(B) File the order with the:

(i) County clerk of each county where a receiving district is located;

(ii) Secretary of State; and

(iii) Arkansas Geographic Information Systems Office.

(2) The county clerk shall make a permanent record of the order.

(3) The boundaries established under this subsection shall be the boundaries of the receiving district until changes are made according to the provisions of law.

(f) The state board shall not annex affected districts that are not geographically contiguous unless the following limited conditions are determined to be valid reasons for annexation:

(1) The annexation will result in the overall improvement in the educational benefit to students in all the school districts involved; or

(2) The annexation will provide a significant advantage in transportation costs or service to all the school districts involved.

History. Acts 2001, No. 1225, § 1; 2003, No. 1467, § 19; 2011, No. 989, § 6; 2013, No. 1073, § 7; 2015, No. 103, § 2; 2017, No. 936, §§ 6, 7; 2019, No. 757, § 4.

6-13-1404. Conditions under which State Board of Education may consolidate school districts.

(a) The State Board of Education shall consider the consolidation of affected districts into a new resulting district or districts under the following conditions:

(1) The state board, after providing thirty (30) days' written notice to the affected districts, determines consolidation is in the best interest of the affected district or districts and the resulting district, based upon failure to meet standards for accreditation, failure to meet fiscal or facilities distress requirements, or failure to meet the requirements to exit Level 5 — Intensive support, pursuant to The Quality Education Act of 2003, § 6-15-201 et seq., the Arkansas Fiscal Assessment and Accountability Program, § 6-20-1901 et seq., the Arkansas Public School Academic Facilities Program Act, § 6-21-801 et seq., and the Arkansas Educational Support and Accountability Act, § 6-15-2901 et seq.; or

(2)(A) The affected districts file a petition with the state board requesting that the affected districts be consolidated into a resulting district or districts;

(B) A copy of the petition has been filed with the county clerk's office of each county where the affected districts are located;

(C) The county clerk's office certifies in writing to the state board that the petition has been signed by a majority of the qualified electors of the affected districts;

(D) A majority of the qualified electors in the affected districts votes to approve consolidation of the affected districts into a resulting district or districts pursuant to a valid election as provided in § 6-14-122; and

(E) The local board of directors votes to approve by resolution of a majority of the members of each local board of education the consolidation of the affected districts into a resulting district or districts.

(b) The state board:

(1) After providing thirty (30) days' written notice to the affected districts, may consolidate school districts upon its own motion based upon a school district's failure to meet standards for accreditation, failure to meet fiscal distress requirements, or failure to meet the requirements to exit Level 5 — Intensive support pursuant to The Quality Education Act of 2003, § 6-15-201 et seq., the Arkansas Fiscal Assessment and Accountability Program, § 6-20-1901 et seq., and the Arkansas Educational Support and Accountability Act, § 6-15-2901 et seq.; or

(2) May vote to approve, by a majority of a quorum present of the members of the state board, the consolidation of the affected districts into a resulting district upon receipt of:

(A) A valid petition for consolidation after receiving proof from the petitioning party of at least one (1) of the required conditions set forth in subsection (a) of this section; and

(B) Proof of the issuance of public notice of the intent to consolidate affected districts into a resulting district or districts in the local newspapers of general circulation in the affected districts for a time period of no less than one (1) time a week for two (2) consecutive weeks immediately before the time the petition is filed with the state board.

(c)(1) In order for the petition for consolidation to be valid, it shall be filed with the state board at least thirty (30) days before the next regularly scheduled state board meeting, at which time the petition will be presented for hearing before the state board.

(2) However, no petition is required for the state board to consolidate a school district or districts on a motion of the state board as allowed in subsection (b) of this section.

(d)(1) Upon consolidation of a school district by the state board or approval of a petition requesting consolidation, the state board shall issue an order dissolving the affected districts and establishing the resulting district or districts.

(2)(A) The state board shall issue an order establishing the boundary lines of the resulting district or districts.

(B) It is the duty of the Arkansas Geographic Information Systems Office to make changes in the maps of the school districts to properly show the boundary lines of the resulting district or districts.

(e)(1) The state board shall:

(A) Issue an order establishing the changed boundaries; and

(B) File the order with the:

(i) County clerk of each county where a resulting district is located;

(ii) Secretary of State; and

(iii) Arkansas Geographic Information Systems Office.

(2) The county clerk shall make a permanent record of the order.

(3) The boundaries established under this subsection shall be the boundaries of the resulting district until changes are made according to the provisions of law.

(f) The state board shall not consolidate affected districts that are not geographically contiguous unless the following limited conditions are determined to be valid reasons for consolidation:

(1) The consolidation will result in the overall improvement in the educational benefit to students in all the school districts involved; or

(2) The consolidation will provide a significant advantage in transportation costs or service to all the school districts involved.

History. Acts 2001, No. 1225, § 1; 2003, No. 1467, § 19; 2017, No. 936, §§ 8, 9; 2019, No. 757, § 5; 2019, No. 910, 2011, No. 989, § 7; 2013, No. 1073, § 8; 2015, No. 103, § 3; § 1167.

6-13-1405, 6-13-1406. [Repealed.]

Publisher's Notes. These sections, concerning effective date of annexation or consolidation and the term and election of the board of directors, were repealed by Acts 2011, No. 1217, § 2. The sections were derived from the following sources:

6-13-1405. Acts 2001, No. 1225, § 1; 2003, No. 1467, § 19; 2003 (2nd Ex. Sess.), No. 60, § 2.

6-13-1406. Acts 2001, No. 1225, § 1; 2003 (2nd Ex. Sess.), No. 25, § 1.

6-13-1407. Creation of school district — When part of school district taken.

(a) Any receiving district or resulting district created under this subchapter shall become the successor in interest to the property of the school district dissolved, shall become liable for the contracts and debts of such a school district, and may sue and be sued therefor.

(b) When territory less than the entire school district is annexed or consolidated to a school district, the receiving district or resulting district shall take the property of the school district from which the territory was taken, as the State Board of Education shall deem proper, and shall be liable for that part of all indebtedness of the school district from which the territory was taken as shall be assigned to it by the state board unless otherwise approved by a majority vote of the affected district's or affected districts' board or boards of directors.

History. Acts 2001, No. 1225, § 1.

6-13-1408. Annexation or consolidation not to negatively impact state-assisted desegregation.

(a) The State Board of Education shall not order any annexation or consolidation under this subchapter or any other act or any combination of acts which hampers, delays, or in any manner negatively affects the desegregation efforts of a school district or districts in this state.

(b) Before the entry of any order under this subchapter, the state board shall seek an advisory opinion from the Attorney General concerning the impact of the proposed annexation or consolidation on the effort of the state to assist a school district or districts in desegregation of the public schools of this state.

(c) Any order of annexation or consolidation or combination thereof that violates the provisions of this section shall be null and void.

History. Acts 2001, No. 1225, § 1.

6-13-1409. State Board of Education.

(a) The State Board of Education shall have the following duties regarding consolidations and annexations:

(1) To form local school districts, change boundary lines of school districts, dissolve school districts and annex the territory of those school districts to another school district, create new school districts, and perform all other functions regarding changes in school districts in accordance with the law;

(2) To transfer funds and attach territory that is in no school district to other school districts as may seem best for the educational welfare of the children; and

(3) To enact rules regarding the consolidation and annexation of school districts under this title.

(b) The millage rate of the electors of the affected district shall remain the same until an election may be held to change the rate of taxation for the resulting district or receiving district.

History. Acts 2001, No. 1225, § 1; 2003, No. 1467, § 20; 2019, No. 315, § 199.

6-13-1410. Appeal and election.

Notwithstanding any other provision of law, the decision of the State Board of Education regarding a consolidation or annexation shall be final with no further right of appeal except that only an aggrieved district may appeal to Pulaski County Circuit Court pursuant to the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

History. Acts 2003, No. 1467, § 21; 2011, No. 989, § 8.

6-13-1411. Use of fund balances.

(a) Unless otherwise approved by a unanimous vote of the board of directors of the resulting district, the fund balances of any school district that is consolidated, annexed, or otherwise reorganized shall be used by the resulting district solely for the construction of facilities or the operation, maintenance, or support of the schools that were located in the affected district from which the fund balance was derived if any of the facilities of the affected district from which the fund balance was derived remain open.

(b) The provisions of this section shall not apply if the consolidation or annexation is because of the school district's failure to meet standards for accreditation, failure to meet fiscal or facilities distress requirements, or failure to meet the requirements to exit Level 5 — Intensive support pursuant to The Quality Education Act of 2003, § 6-15-201 et seq., the Arkansas Fiscal Assessment and Accountability Program, § 6-20-1901 et seq., the Arkansas Public School Academic Facilities Program Act, § 6-21-801 et seq., and the Arkansas Educational Support and Accountability Act, § 6-15-2901 et seq.

History. Acts 2003 (2nd Ex. Sess.), No. 71, § 1; 2013, No. 1073, § 9; 2017, No. 936, § 10.

6-13-1412, 6-13-1413. [Repealed.]

Publisher's Notes. These sections, concerning the term and election of a board of directors after an annexation or consolidation, were repealed by Acts 2011, No. 1217, § 3.

The sections were derived from the following sources:

6-13-1412. Acts 2005, No. 274, § 1.

6-13-1413. Acts 2005, No. 274, § 2.

6-13-1414. Boundary change by State Board of Education.

(a)(1) The State Board of Education shall consider a petition from a local board of directors of any school district seeking an adjustment or change of boundary lines between its school district and an adjoining school district.

(2) The local board of directors must file the petition with the state board at least thirty (30) days before the next regularly scheduled state board meeting, at which time the petition will be presented for hearing before the state board.

(b) Upon proof to the state board of public notice issued in the local newspapers of general circulation in each affected district no less than one (1) time a week for two (2) consecutive weeks, the state board may, by approval of a majority of the members of a quorum present of the state board, issue an order changing or adjusting the boundary lines between the adjoining school districts.

(c) If the local board of directors of each of the affected districts is unable to agree on the proposed change in boundary lines, the state board shall adjust and change the boundary lines in accordance with its best judgment subject to the requirement of subsection (f) of this section or shall rule that the boundaries remain unchanged.

(d) Upon an order from the state board to change or adjust boundary lines, it shall be the duty of the Arkansas Geographic Information Systems Office to immediately make changes in the maps of the school districts to show the changes of boundaries.

(e)(1) The state board shall:

(A) Issue an order establishing the changed boundaries; and

(B) File the order with the:

(i) County clerk in each county in which every affected district lies;

(ii) Secretary of State; and

(iii) Arkansas Geographic Information Systems Office.

(2) The county clerk shall make a permanent record of the order.

(3) The boundaries established under this subsection shall be the boundaries of the affected districts until changes are made according to the provisions of law.

(f) The state board shall not order any change in school district boundaries which hampers, delays, or in any manner negatively affects the desegregation efforts of the public school districts in the State of Arkansas.

History. Acts 2001, No. 1037, § 1; 2011, No. 989, § 9; 2015, No. 103, § 4; 2019, No. 757, § 6; 2019, No. 910, § 1168.

6-13-1415. Involuntary consolidation or annexation — Effective date — Interim board of directors.

(a) This section applies to the involuntary consolidation or involuntary annexation of a school district made by a motion of the State Board of Education.

(b) The effective date of an involuntary consolidation or involuntary annexation of a school district shall be the July 1 after the state board action unless determined otherwise by the state board.

(c) The state board shall establish the terms and conditions of the involuntary consolidation or involuntary annexation that shall govern the affected districts, resulting districts, and receiving districts.

(d)(1) If the state board determines that a new permanent board of directors is necessary, the state board shall prescribe:

(A) The number of members for the new permanent board of directors of the resulting district or receiving district;

(B) The manner of formation of the new permanent board of directors of the resulting district or receiving district under § 6-13-1417; and

(C)(i) Whether the new permanent board of directors will be elected at the first or second school election after the effective date of consolidation or annexation.

(ii) The election for the new permanent school district board of directors may take place during the second school election after the effective date of consolidation or annexation only if the state board determines that additional time is required to implement single-member zoned elections.

(2) If the state board determines that an interim board of directors is necessary, the state board shall prescribe:

(A) The number of members for the interim board of directors of the resulting district or receiving district;

(B) The terms of the members of the interim board of directors of the resulting district or receiving district; and

(C)(i) The manner of formation of the interim board of directors of the resulting district or receiving district.

(ii) The state board may:

(a) Allow the affected districts and receiving districts thirty (30) days to establish an interim board of directors to govern the resulting district or receiving district that consists of either five (5) or seven (7) members selected from the boards of directors from the affected districts and receiving districts based on the proportion of the student population of each of the affected districts and receiving districts before consolidation or annexation;

(b) Appoint an interim board of directors to govern the resulting district or receiving district that consists of either five (5) or seven (7) members selected from the boards of directors from the affected districts and receiving districts based on the proportion of the student population of each of the affected districts and receiving districts before consolidation or annexation; or

(c) Designate the existing board of directors of one (1) affected district in a consolidation or the existing board of directors of the receiving district in an annexation as the interim board to govern the resulting district or receiving district.

(3) The state board may determine that an interim board of directors is not necessary and may order the existing board of directors of one (1) affected district in a consolidation or the existing board of directors of the receiving district in an annexation to remain as the permanent school district board of directors.

(e)(1) An interim board of directors shall serve until the first school election after the effective date of consolidation or annexation unless:

(A) Any members of the permanent board of directors of the resulting district or receiving district are elected from single-member zones, then the interim board of directors may serve until the second school election after the effective date of consolidation or annexation under subdivision (d)(1)(C) of this section; or

(B) All the members of the permanent board of directors of the resulting district or receiving district are elected at-large, then the state board may stagger the terms of the interim board of directors, which shall be determined by lot so that, as nearly as possible, an equal number of positions are filled during each school board election.

(2) If the state board allows the local school districts time to establish an interim board of directors, the board of directors of each affected district before the consolidation or each affected district and receiving district before the annexation may determine independently how to select members of the existing board of directors to serve on the interim board of directors, subject to approval by the state board, by:

(A) The voluntary resignation of one (1) or more members of the existing board of directors;

(B) Selecting one (1) or more members of the existing board of directors by a majority vote of the school district board of directors; or

(C) Selecting one (1) or more members of the existing board of directors by a random lot drawing.

(3) An interim board of directors shall be established by May 31 of the year preceding the effective date of administrative consolidation or administrative annexation under § 6-13-1603 if the state board determines that an interim board of directors is necessary.

(f)(1) A consolidation or annexation order adopted by the state board shall be filed with the:

(A) County clerk of each county that contains school district territory of each affected district, receiving district, or resulting district;

(B) Secretary of State; and

(C) Arkansas Geographic Information Systems Office.

(2) A consolidation or annexation order shall include a map of the boundaries of the resulting district or receiving district.

(3) A consolidation or annexation order filed with the Secretary of State and the office shall include a digital map showing the boundaries of the resulting district or receiving district in a format prescribed by the office.

(g) The state board may promulgate rules necessary to administer this subchapter.

History. Acts 2011, No. 1217, § 4; 2015, No. 103, § 5;
2025, No. 503, § 4.

6-13-1416. Voluntary consolidation or annexation — Effective date — Interim board of directors.

(a) This section applies to any petition for consolidation or annexation of a school district submitted to the State Board of Education by a school district.

(b) The effective date of a petition for consolidation or annexation of a school district shall be the July 1 after the state board approves the consolidation or annexation petition unless the state board approves an alternative effective date or determines otherwise.

(c)(1) Each board of directors of an affected district and receiving district shall enter into a written agreement approved by the quorum of the members of each board of directors present and executed by the president and secretary of each school district board of directors.

(2) The written agreement may prescribe the effective date of the annexation of the affected district to the receiving district or the effective date of the formation of the resulting district from consolidation of affected districts, subject to approval by the state board.

(3)(A) The written agreement may prescribe the number of members of the permanent board of directors of the resulting district or receiving district and the manner of formation of the permanent board of directors of the resulting district or receiving district under § 6-13-1417 or as allowed by law.

(B)(i) If the written agreement prescribes the formation of a new permanent board of directors, the written agreement shall specify whether the new permanent board of directors will be elected at the first or second school election after the effective date of consolidation or annexation.

(ii) The election of a new permanent board of directors may take place during the second school election after the effective date of consolidation or annexation only if additional time is necessary to implement single-member zoned elections.

(d) The written agreement may prescribe for the formation of an interim board of directors, including the number of members, the length of member terms, and the manner of formation as follows:

(1) Establish an interim board of directors to govern the resulting district or receiving district that consists of either five (5) or seven (7) members selected from the boards of directors from the affected districts and receiving districts based on the proportion of the student population of each of the affected districts and receiving districts before consolidation or annexation;

(2) Designate the existing board of directors of one (1) affected district in a consolidation or the existing board of directors of the receiving district in an annexation as the interim board of directors; or

(3) Determine that an interim board of directors is not necessary and may designate the existing board of directors of one (1) affected district in a consolidation or the existing board of directors of the receiving district in an annexation to remain as the permanent school district board of directors.

(e)(1) If the written agreement prescribes the formation of an interim board of directors, the interim board of directors shall serve until the first school election after the effective date of consolidation or annexation unless:

(A) Any members of the permanent board of directors of the resulting district or receiving district are elected from single-member zones, then the interim board of directors may serve until the second school election after the effective date of consolidation or annexation under subdivision (c)(3)(B) of this section; or

(B) All the members of the permanent board of directors of the resulting district or receiving district are elected at-large, then the written agreement may stagger the terms of the interim board of directors, which shall be determined by lot so that no more than two (2) members' terms expire during any one (1) year.

(2) If the written agreement prescribes formation of an interim board of directors, the board of directors of the affected district before the consolidation or the affected district and receiving district before annexation may determine independently how to select members of the existing board of directors to serve on the interim board of directors by:

(A) The voluntary resignation of one (1) or more members of the existing board of directors;

(B) Selecting one (1) or more members of the existing board of directors by a majority vote of the school district board of directors; or

(C) Selecting one (1) or more members of the existing board of directors by a random lot drawing.

(3) If the written agreement in an administrative consolidation or an administrative annexation under § 6-13-1603 requires the formation of an interim board of directors, the interim board of directors shall be established by May 31 preceding the effective date of the administrative consolidation or administrative annexation.

(f)(1) An executed copy of the written agreement shall be attached to the petition for consolidation or annexation submitted to the state board.

(2) If the written agreement is approved by the state board, the terms of the written agreement shall be binding upon the affected districts, receiving districts, and resulting districts, including the interim and permanent school district boards of directors.

(3) A written agreement under this section shall not be effective without approval from the state board.

(g)(1) A consolidation or annexation petition approved by the state board along with an executed copy of the written agreement shall be filed with the:

(A) County clerk of each county that contains school district territory of each affected district, receiving district, or resulting district;

(B) Secretary of State; and

(C) Arkansas Geographic Information Systems Office.

(2) An approved consolidation or annexation petition shall include a map of the boundaries of the resulting district or receiving district.

(3) An approved consolidation or annexation petition filed with the Secretary of State and the office shall include a digital map showing the boundaries of the resulting district or receiving district in a format prescribed by the office.

(h)(1) A receiving district that received an affected district as a result of a voluntary administrative annexation under § 6-13-1601 et seq. shall notify all contiguous public school districts of its intent to close a public school campus that is part of an affected district a minimum of one (1) year before the closure of the public school campus.

(2) An affected district under subdivision (h)(1) of this section shall have been the result of a voluntary administrative annexation under § 6-13-1601 et seq. that occurred no more than twenty (20) years ago.

(3) Upon receiving notice from the receiving district under subdivision (h)(1) of this section, a contiguous public school district may:

(A) Notify the receiving district of its interest in accepting the affected district for purposes of keeping the public school campus open; and

(B)(i) Petition the state board to reverse the previous voluntary administrative annexation under § 6-13-1601 et seq. and consolidate the affected district into the contiguous public school district.

(ii) A petition under subdivision (h)(3)(B)(i) of this section shall include the following without limitation:

(a) How the contiguous public school district intends to serve the students of the affected district;

(b) Evidence that the consolidation will not cause fiscal hardship on the contiguous public school district; and

(c) Evidence that the consolidation will not cause fiscal hardship on the affected district.

History. Acts 2011, No. 1217, § 4; 2013, No. 1073, § 10; 2015, No. 103, § 6; 2021, No. 662, § 1.

6-13-1417. Formation of permanent board of directors.

(a)(1) A permanent board of directors shall have either five (5) or seven (7) members unless the school district is allowed to have nine (9) members under § 6-13-634.

(2) The length of the terms of the board of directors may be for the time period prescribed by law and:

(A) Prescribed in the written agreement under § 6-13-1416; or

(B) Determined by the permanent board of directors.

(3) At the first meeting of the permanent board of directors, the members shall determine the terms of the board of directors by lot so that, as nearly as possible, an equal number of positions are filled during each school board election.

(4) A vacancy on the board of directors shall be filled as prescribed by law.

(b)(1) If single-member election zones are not necessary to comply with the Voting Rights Act of 1965, 52 U.S.C. § 10301, or with any other federal or state law, any or all of the members of the permanent board of directors may be elected at large.

(2) A minimum of five (5) members of a permanent board of directors shall be elected from single-member election zones if one (1) or more of the following applies:

(A) Single-member election zones are required to comply with the Voting Rights Act of 1965, 52 U.S.C. § 10301, or other federal law;

(B) The resulting district or receiving district after consolidation or annexation is required to be zoned under § 6-13-631 [repealed] or other state law; or

(C) The boards of directors of the affected districts before consolidation or the boards of directors of the affected districts and receiving districts before annexation agree that the permanent board of directors shall be elected from single-member election zones.

(3) If single-member election zones are necessary to comply with the Voting Rights Act of 1965, 52 U.S.C. § 10301, other federal law, or state law, the resulting district or receiving district shall:

(A) Review the demographic makeup and boundaries of the zones based on the latest federal decennial census data of the resulting district or receiving district after consolidation or annexation and rezone the resulting district or receiving district as necessary to comply with the Voting Rights Act of 1965, 52 U.S.C. § 10301, other federal law, or state law;

(B) Complete the election rezoning no later than one hundred twenty (120) calendar days before the second school election following the effective date of the consolidation or annexation; and

(C) No later than one hundred twenty (120) calendar days before the second school election following the effective date of the consolidation or annexation, file a digital map in a format prescribed by the Arkansas Geographic Information Systems Office detailing the election zone boundaries of the resulting district or receiving district with the:

(i) Secretary of State;

(ii) Arkansas Geographic Information Systems Office; and

(iii) County clerk of each county that contains school district territory of each affected district, receiving district, or resulting district.

History. Acts 2011, No. 1217, § 4; 2013, No. 1073, § 11; 2013, No. 1155, § 12; 2015, No. 103, § 7; 2025, No. 503, § 6.

SUBCHAPTER 18 — ISOLATED SCHOOL DISTRICTS

SECTION.

6-13-1801. Isolated school district — Formation.

6-13-1802. Isolated school district board of directors.

SECTION.

6-13-1803. Funding.

6-13-1801. Isolated school district — Formation.

(a)(1) An isolated school may detach from a resulting or receiving district if the isolated school submits a petition to the resulting or receiving school district board of directors that states the intent to reestablish the original isolated school and that contains the signatures of:

(A) No less than three hundred fifty (350) registered voters who reside within the boundaries of the isolated school; or

(B) No less than fifty-one percent (51%) of the registered voters who reside within the boundaries of the isolated school.

(2)(A) The resulting or receiving school district board of directors shall request the county clerk of the county in which the resulting or receiving school district is located to verify the signatures submitted in a petition under subdivision (a)(1) of this section within five (5) business days of receipt of a petition under subdivision (a)(1) of this section.

(B) Upon request, a county clerk of the county in which the resulting or receiving school district is located shall verify the signatures within five (5) days of receipt of a request from the resulting or receiving school district board of directors under subdivision (a)(2)(A) of this section.

(3) The resulting or receiving school district board of directors shall review a petition submitted under subdivision (a)(1) of this section and call an election to be held for the voters who reside within the

school district boundaries of the isolated school before it consolidated with the resulting or receiving district on the issue of an isolated school detaching from a resulting or receiving district at the next annual school election.

(b)(1) An isolated school district may be formed from an isolated school within a resulting or receiving district that was annexed or consolidated with another school district under the Public Education Reorganization Act, § 6-13-1601 et seq., following the submission and approval of a petition under subsection (a) of this section.

(2) In order to qualify as an isolated school district, the isolated school within a resulting or receiving district that was annexed or consolidated with another school district under the Public Education Reorganization Act, § 6-13-1601 et seq., shall have been in operation for kindergarten through grade twelve (K-12) within two (2) years of the date on which the isolated school applies under this subchapter.

(c) The minimum school enrollment to establish a new public school district shall not apply when forming an isolated school district under this subchapter.

History. Acts 2025, No. 919, § 1.

A.C.R.C. Notes. In subdivision (b)(1) of this section as enacted by Acts 2025, No. 919, § 1, the language “, following the submission and approval of a petition under subsection (a) of this section.” was deleted from the end of the

subdivision under § 1-2-303 to correct a manifest engrossing error. The engrossment of Senate Amendment No. 1 to SB624, subsequently enacted as Acts 2025, No. 919, duplicated this language.

6-13-1802. Isolated school district board of directors.

(a) An isolated school district shall be governed by a board of directors that consists of five (5) members who live within the boundaries of the isolated school district.

(b) The members of an isolated school district board of directors shall be elected by eligible voters residing within the boundaries of the isolated school district.

(c) Each member of an isolated school district board of directors shall initially draw lots for two-year or four-year terms in isolated school districts with four-year terms or two-year, four-year, or six-year terms in isolated school districts with six-year terms so that, as nearly as possible, an equal number of positions are filled in each subsequent election for an isolated school board in no longer than:

- (1) Two (2) isolated school board elections for those with four-year terms; or
- (2) Three (3) isolated school board elections for those with six-year terms.

History. Acts 2025, No. 919, § 1.

6-13-1803. Funding.

(a) An election within the boundaries of an isolated school district shall be held to establish the millage rate for the isolated school district as required under § 26-80-111.

(b) For purposes of funding calculations that utilize prior-year average daily membership, state funding aid for the first year of operation of an isolated school district shall be based on the:

(1) Prior-year first three-quarters average daily membership of the public school now proposed to operate as an isolated school district; or

(2) The average daily membership from two (2) years prior if the public school proposed to operate as an isolated school district ceases operations two (2) years before the isolated school district is formed.

(c) If an isolated school district begins operations at the beginning of the following school year after detaching from a local public school district under which the proposed isolated school district currently operates, the prior-year average daily membership of the isolated school shall be subtracted from the prior-year average daily membership of the local public school district under which the isolated school previously operated.

(d) An isolated school district shall be eligible for funding awarded under § 6-20-601 et seq. and any additional funds based on a school district's isolated status.

(e) An isolated school district shall be eligible for any current state funding available for public school districts and open-enrollment public charter schools.

History. Acts 2025, No. 919, § 1.

A.C.R.C. Notes. In subsection (c) of this section as enacted by Acts 2025, No. 919, § 1, "local public school"

and "public school district" were corrected to "local public school district" under § 1-2-303.

CHAPTER 14

SCHOOL ELECTIONS

SECTION.

- 6-14-101. Applicability of general election laws.
- 6-14-102. Annual school election date — Special school election.
- 6-14-103. [Repealed.]
- 6-14-104. [Repealed.]
- 6-14-105. [Repealed.]
- 6-14-106. Polling places — Qualifications and appointment of election commissioners and poll workers.
- 6-14-107. [Repealed.]
- 6-14-108. Voter qualifications.
- 6-14-109. Notice of elections.
- 6-14-110. Secret ballot.
- 6-14-111. Candidate filing procedures.
- 6-14-112. [Repealed.]
- 6-14-113. [Repealed.]

SECTION.

- 6-14-114. Counting of votes.
- 6-14-115. Return, canvass, and appeal — Filing.
- 6-14-116. Contest of election.
- 6-14-117. [Repealed.]
- 6-14-118. Expenses.
- 6-14-119. [Repealed.]
- 6-14-120. [Repealed.]
- 6-14-121. Runoff elections.
- 6-14-122. Consolidation, annexation, or merger of school districts.
- 6-14-123. Verification of voter registration.
- 6-14-124. Pre-election procedures for school elections held in school districts situated in more than one county.
- 6-14-125. Unchanged rate of annual ad valorem property tax — Election requirements.

6-14-101. Applicability of general election laws.

The general election laws shall apply to school elections insofar as they are not in conflict with the school election laws.

History. Acts 1991, No. 496, § 1.

6-14-102. Annual school election date — Special school election.

(a)(1)(A) The annual school election shall be held in each school district of the state:

(i) In even-numbered years, on the date of the preferential primary election; and

(ii)(a) Except as provided in subdivision (a)(1)(A)(ii)(b) of this section, in odd-numbered years, on the first Tuesday after the first Monday in March.

(b) An annual school election that is scheduled to occur in a month in which the second Tuesday of the month under subdivision (a)(1)(A)(ii)(a) of this section falls on a state holiday shall be held on the third Tuesday of that month.

(B) [Repealed.]

(2) The annual school election shall only concern issues authorized to be on the ballot by the Arkansas Constitution or by statute. Issues to be considered in the annual school election may be printed on the same ballot as the ballot of any other election lawfully held on the same date as the annual school election.

(b) The board of directors of any school district shall have the authority to hold a special school election concerning the tax rate or debt issues under § 7-11-205 provided that:

(1) All constitutional and statutory requirements for the annual school election are met, notwithstanding subsection (a) of this section; and

(2) The board of directors of a school district files a document calling for the special school election with the district's domiciled county clerk not less than seventy (70) days before the date of the special school election.

(c)(1) When the annual school election is not held at the same time as a preferential primary or general election, if there are no other ballot issues to be submitted to school district electors for consideration, with the exception of the local tax rate if that rate is not being changed or restructured, the board of directors of a school district, by resolution, may request the county board of election commissioners to:

(A) Reduce the number of polling places;

(B) Open no polling places on election day so that the election can be conducted by absentee ballot and early voting only; or

- (C)(i) Declare an election by candidate to be held;
 - (ii) Open no polling places; and
 - (iii) Allow the candidate to cast a ballot for himself or herself at a designated time and location on election day or during the period that would otherwise be designated for early voting.
- (2) If a county uses electronic voting machines or electronic vote tabulating devices, and is holding an election under subdivision (c)(1) of this section, the county board of election commissioners may use:
- (A) The electronic voting machines or electronic vote tabulating devices; or
 - (B) Paper ballots counted by hand and provide no voting machines to be used in the election, notwithstanding any other provision in the Arkansas Code.
- (d) The election of a school district board of directors not elected entirely during the same election shall be held in each public school district of this state on the date of the preferential primary election.

History. Acts 1959, No. 248, § 1; 1963, No. 121, § 1; 1967, No. 171, § 1; A.S.A. 1947, § 80-301; Acts 1987, No. 969, § 1; 1988 (3rd Ex. Sess.), No. 4, § 1; 1988, (3rd Ex. Sess.), No. 11, § 1; 1993, No. 181, § 1; 1993, No. 294, § 8; 1994 (1st Ex. Sess.), No. 1, § 6; 1995, No. 1131, § 1; 1995, No. 1281, § 1; 1997, No. 545, § 1; 1997, No. 1120, § 1; 1999, No. 1078, § 49; 1999, No. 1196, § 1; 2003, No. 1295, § 1; 2003, No. 1441, § 3; 2005, No. 1174, § 1; 2005, No.

2145, § 3; 2005, No. 2233, § 1; 2007, No. 1049, § 4; 2009, No. 959, § 46; 2009, No. 1469, § 2; 2013, No. 1215, § 1; 2015, No. 1244, § 1; 2015, No. 1281, § 1; 2016 (3rd Ex. Sess.), No. 14, § 1; 2016 (3rd Ex. Sess.), No. 15, § 1; 2017, No. 910, § 1; 2019, No. 545, § 1; 2019, No. 552, § 1; 2019, No. 597, § 1; 2021, No. 85, § 1; 2021, No. 448, § 1; 2021, No. 610, §§ 1, 2; 2025, No. 264, § 1; 2025, No. 405 § 1; 2025, No. 503, §§ 5, 7, 9, 10.

6-14-103. [Repealed.]

Publisher's Notes. This section, concerning postponement of election due to natural disaster, was repealed by Acts 1993, No. 294, § 8. The section was derived from Acts

1979, No. 130, §§ 1-3; A.S.A. 1947, §§ 80-301.1 — 80-301.3; Acts 1987, No. 969, § 2.

6-14-104. [Repealed.]

Publisher's Notes. This section, concerning special election called by the county board of education, was repealed by Acts 1999, No. 1078, § 50. The section was

derived from Acts 1931, No. 169, §§ 78, 79, 83, 84; Pope's Dig., §§ 11514, 11515, 11517, 11518; A.S.A. 1947, §§ 80-312 — 80-314; Acts 1987, No. 248, § 16.

6-14-105. [Repealed.]

Publisher's Notes. This section, concerning special elections on petition of a school district board of directors, was repealed by Acts 2005, No. 1174, § 2. The section was

derived from Acts 1951, No. 403, § 3; A.S.A. 1947, § 80-320; Acts 2003, No. 1441, § 4.

6-14-106. Polling places — Qualifications and appointment of election commissioners and poll workers.

(a)(1) Except as provided under subdivision (a)(5) of this section, the county board of election commissioners of each county shall designate all the polling sites for each school district in its respective county, including districts having territory in more than one (1) county but which are domiciled in its county for administrative purposes, and shall provide the election supplies and appoint the poll workers for holding all school elections.

(2) The county board of election commissioners shall consult with each school district regarding:

- (A) The number of polling sites to designate for each school district; and
- (B) The location of the polling sites.

(3) Polling sites for school elections shall be established by a majority vote of the members of the county board of election commissioners present.

(4)(A) Except as provided in subdivision (a)(4)(B) of this section and unless changed by order of the county board of election commissioners, the polling sites for each school election shall be the same as those established for the immediately preceding school election.

(B) If no polling sites were opened in the immediately preceding school election, the polling sites shall be the same as those established for the most recent school election in which polling sites were opened unless changed by order of the county board of election commissioners.

(5) If the annual school election is held at the same time as the preferential primary election or general election, the polling sites for the annual school election shall be the same as the polling sites for the preferential primary or general election.

(b) If the annual school election is held on a date on which no other elections are held and a school district has territory in more than one (1) county, the county board of election commissioners of the county in which the school district is domiciled shall designate in a contested school election one (1) or more polling sites in each county:

- (1) In which the school district has territory;
- (2) In which school district territory contains a city of the second class or larger; and
- (3) That has registered electors.

(c) The county board of election commissioners shall take appropriate action to assure that the necessary precinct registration files are delivered to each polling site in order that the electors in each county may vote in the school election.

(d) The county board of election commissioners of the domicile county shall appoint one (1) election judge and one (1) election sheriff for each polling site and as many additional election clerks as are necessary for the efficient administration of elections at each polling site.

History. Acts 1951, No. 403, § 1; 1979, No. 117, § 1; § 2; 2016 (3rd Ex. Sess.), No. 14, § 2; 2016 (3rd Ex. Sess.), No. 15, § 2; 2017, No. 910, § 2; 2019, No. 473, § 1; 2019, No. 553, § 1.
 1979, No. 829, § 1; A.S.A. 1947, §§ 80-318, 80-319.1; Acts 1997, No. 443, § 1; 2005, No. 1174, § 3; 2009, No. 292, § 1; 2009, No. 1294, § 1; 2009, No. 1480, § 3; 2015, No. 1244,

6-14-107. [Repealed.]

Publisher's Notes. This section, concerning annual school elections, was repealed by Acts 1993, No. 294, § 8. The section was derived from Acts 1937, No. 319, § 1; Pope's Dig., § 11665; A.S.A. 1947, § 80-304; Acts 1987, No. 969, § 3.

6-14-108. Voter qualifications.

All persons who have registered to vote in the manner prescribed by Arkansas Constitution, Amendment 51, at least thirty (30) calendar days immediately before the school election shall be deemed qualified electors of the school district in which they reside and shall have the privilege of voting in all school elections.

History. Acts 1937, No. 319, § 2; Pope's Dig., § 11666; A.S.A. 1947, § 80-305; Acts 1987, No. 248, § 11; 1995, No. 930, § 1; 1995, No. 941, § 1.

6-14-109. Notice of elections.

(a) The county board of election commissioners shall give notice of all school elections under § 7-5-202.

(b) If a school election for a school district that includes more than one (1) county is conducted by the county board of election commissioners for the domicile county and no county board of election commissioners for a nondomicile county, the notice of election shall be published in one (1) or more newspapers of general circulation in each of the counties in which the district has territory.

(c) The county board of election commissioners shall publish notice of an issue to be placed on the ballot in the manner provided under § 7-5-206.

History. Acts 1951, No. 403, § 2; A.S.A. 1947, § 80-319; Ex. Sess.), No. 14, § 3; 2016 (3rd Ex. Sess.), No. 15, § 3; Acts 1999, No. 1490, § 1; 2005, No. 1174, § 4; 2016 (3rd Ex. Sess.), No. 14, § 3; 2016 (3rd Ex. Sess.), No. 15, § 3; 2019, No. 473, § 2.

6-14-110. Secret ballot.

All elections shall be by secret ballot, and none of the electors shall be required to sign his or her ballot.

History. Acts 1935, No. 30, § 8; Pope's Dig., § 11528; A.S.A. 1947, § 80-309.

6-14-111. Candidate filing procedures.

(a)(1) All candidate filings under this subchapter shall be with the county clerk of the county in which the school district is domiciled for administrative purposes.

(2) A district school board member shall be elected at the preferential primary election.

(3)(A)(i) In a special school election or an annual school election not held with the preferential primary election, all actions required of county boards of election commissioners shall be performed by the county board of election commissioners of the county in which the school district is domiciled for administrative purposes.

(ii) However, if one of that school district's nondomicile counties is holding a special election on the same date as a school election and at least one (1) qualified elector in the county is eligible to vote in both the special election and the school election, each county in which the school district has territory shall conduct the school district's school election as if it were held with the preferential primary election.

(B) When a county clerk of a school district's nondomicile county becomes aware that a special election will be held on the same date as a school district's annual or special school election and at least one (1) qualified elector in the county is eligible to vote in both the special election and the school election, the county clerk of the nondomicile county shall immediately notify the county clerk of the county in which the school district is domiciled for administrative purposes in writing that the school district's school election shall be conducted under subdivision (a)(4) of this section.

(C) The county clerk of the county in which the school district is domiciled for administrative purposes shall then immediately notify the county clerks of any other nondomicile counties that the school district's election will be conducted under subdivision (a)(4) of this section.

(4) In a school election held with the preferential primary election, all actions required of county boards of election commissioners shall be performed by the county board of election commissioners of the county in which the electors reside.

(b) The county board of election commissioners shall prepare and furnish ballots and all other necessary supplies for the annual school election.

(c) A candidate for a position on the board of directors of a school district may qualify for the ballot by filing a political practices pledge, an affidavit of eligibility, and a petition.

(d)(1) The petition shall be directed to the county clerk and shall contain the names of at least twenty (20) registered voters who are residents of the school district and, if applicable, the electoral zone for the position.

(2) The petition shall:

(A) State the name and title of the candidate that the candidate proposes to appear on the ballot; and

(B) Identify the position sought, including without limitation the position number or other identifying information if applicable.

(e)(1) The petition, affidavit of eligibility, and the candidate's political practices pledge shall be filed with the county clerk beginning at 12:00 noon on the first day of the party filing period under § 7-7-203 and shall end at 12:00 noon on the last day of the party filing period under § 7-7-203.

(2)(A) The county clerk shall not accept a candidate's petition until the county clerk has verified that:

(i) The address where the candidate is registered to vote is within the election zone, if applicable, represented by the position on the board of directors that the candidate has indicated on the petition; and

(ii) The position on the board of directors that the candidate has indicated on the petition is scheduled to be filled during the current election.

(B) The county clerk shall reject a petition that does not comply with subdivision (e)(2)(A) of this section.

(C) The county clerk shall inform the candidate:

(i) That the candidate's petition was accepted or rejected; and

(ii) If the candidate's petition was rejected, the reason for the rejection.

(f)(1) Candidates may begin circulating petitions not earlier than ninety (90) days before the filing deadline under subdivision (e)(1) of this section.

(2) A signature dated more than ninety (90) days before the filing deadline under subdivision (e)(1) of this section shall not be counted by the county clerk as a valid signature.

(g) [Repealed.]

(h)(1) The county board of election commissioners shall place on the ballot as candidates for school district director the names of any qualified registered voters whose political practices pledges and affidavits of eligibility have been filed and whose petitions have been filed with and verified by the county clerk of the county in which the school district is domiciled for administrative purposes.

(2) The county board of election commissioners shall not place the name of an unopposed candidate for school district director on the ballot during a school board election held concurrently with the preferential primary election.

(i) The school district shall file the language required to submit the rate of tax for the school district to the voters during the annual school election with the county clerk of the county in which the school district is domiciled for administrative purposes as soon as that language becomes available but no later than seventy-two (72) days before the annual school election, except in years in which the President of the United States shall appear on the ballot at the general election, and then the school district shall file the language with the county clerk eighty-nine (89) days before the annual school election.

(j) The county clerk of the county in which the school district is domiciled for administrative purposes shall certify to the county board of election commissioners the names of those candidates who are registered voters in the school district and the electoral zone, if applicable, and who have qualified for the ballot by petition:

(1) On the date of the certification deadlines under § 7-7-304(b) in even-numbered years for school elections held concurrently with a preferential primary election; or

(2) On the date of the certification deadline under § 7-5-203(b) in even-numbered years for school elections held concurrently with a general election.

(k) The order in which the names of the respective candidates are to appear on the ballot shall be determined by lot at the public meeting of the county board of election commissioners held not later than the deadline to conduct the ballot draw for the preferential primary or general election.

(l) When a candidate has identified the position sought on the petition, the candidate shall not be allowed to change the position on that petition but may withdraw a petition and file a new petition designating a different position before the deadline for filing.

History. Acts 1969, No. 70, § 1; A.S.A. 1947, § 80-308; Acts 1991, No. 294, § 1; 1997, No. 443, § 2; 1999, No. 1078, § 51; 2001, No. 994, § 1; 2003, No. 1473, § 4; 2005, No. 1174, § 5; 2007, No. 1049, § 5; 2009, No. 1480, § 4; 2011, No. 1185, § 1; 2017, No. 586, §§ 1, 2; 2017, No. 910, § 3;

2019, No. 552, §§ 2, 3; 2019, No. 597, §§ 2-4; 2021, No. 349, § 1; 2021, No. 448, § 2; 2021, No. 610, § 3; 2023, No. 276, § 1; 2023, No. 305, §§ 1-4; 2023, No. 721, § 1; 2025, No. 360, § 1; 2025, No. 405, § 2; 2025, No. 460, § 1; 2025, No. 503 §§ 11-14.

6-14-112. [Repealed.]

Publisher's Notes. This section, concerning duplicate ballots and ballot boxes, was repealed by Acts 1997, No.

443, § 3. The section was derived from Acts 1939, No. 154, § 1; A.S.A. 1947, § 80-310; Acts 1987, No. 248, § 12.

6-14-113. [Repealed.]**6-14-114. Counting of votes.**

When the polls of each election are closed, the election officials shall immediately proceed to count the results and make returns of the votes under § 6-14-115, showing:

- (1) The number of votes cast for each person for school district director;
- (2) The number of votes cast for the school tax;
- (3) The number of votes cast against the school tax;
- (4) The number of mills for:
 - (A) The additional mills for maintenance and operation;
 - (B) The additional mills for maintenance and operation that have been designated dedicated maintenance and operation mills;
 - (C) The debt service millage; and
 - (D) The total millage rate levied for all purposes in the school district in excess of the uniform rate of tax; and
- (5) The number of votes cast for and against any other question submitted at the election.

History. Acts 1935, No. 30, § 11; Pope's Dig., § 11531; 1300, § 20; 2003 (2nd Ex. Sess.), No. 28, § 2; 2003 (2nd Ex. Sess.), No. 105, § 3; 2019, No. 552, § 4.

6-14-115. Return, canvass, and appeal — Filing.

(a)(1) The certification of a school district's election shall be conducted as follows:

(A) At the close of an election under § 6-14-111(a)(2), the election officials at each polling place or at the place of central tabulation shall make a return of the votes, certify the return, and file the certification with the county board of election commissioners of the county in which the school district is domiciled for administrative purposes;

(B) The county board of election commissioners of the county in which the school district is domiciled for administrative purposes shall:

(i) Deliver the duplicate certified copy of each polling site's election results to the county clerk;

(ii) Declare preliminary and unofficial results of the county's election as soon as they are available; and

(iii) No earlier than forty-eight (48) hours and no later than fifteen (15) days after the election, proceed to ascertain and declare the results of the election and file the certification of election with the county clerk; and

(C) At the close of an election conducted under § 6-14-111(a)(3), the election officials at each polling place or at the place of central tabulation shall follow the general election procedures under § 7-5-527. Once the county board of election commissioners has certified the county's election results, the county board of election commissioners shall:

(i) No earlier than forty-eight (48) hours and no later than fifteen (15) days after the election, file the certification of the election results with the county clerk; and

(ii) File a certified copy of the results of any school district not domiciled for administrative purposes in the county with the county clerk of the county in which the school district is domiciled for administrative purposes.

(2) Based on the certified election results of each county conducting a school district's annual school election, the county clerk or his or her designee shall deliver to the person having the highest number of legal votes:

- (A) A certificate of election;
- (B) Notice of the requirement for a director elected to an initial or nonconsecutive term that he or she must subscribe to the director's oath under § 6-13-617;
- (C) The date the ten (10) days to have the oath administered expires;
- (D) A list of the individuals qualified to administer the oath under § 21-2-105;

(E) A copy of the director's oath with spaces for the date, the signature of the director, and the signature of the administrator of the oath; and

(F) Notice that the individual cannot assume the duties of a director until a copy of the administration of the oath is received by the county clerk or his or her designee.

(b) The county clerk of the county in which the school district is domiciled for administrative purposes shall file the following with the county clerk of each nondomicile county in which any part of the school district lies:

- (1) Certified copies of the certified results of the election from each county; and
- (2) Certification of the outcome of each race or issue on the school district's ballot.

(c) The county clerk of the county in which the school district is domiciled for administrative purposes shall submit to the Commissioner of Elementary and Secondary Education no later than five (5) days following the requirements set forth in subsection (a) of this section:

- (1) Copies of the certified election results of the election of each county; and
- (2) A certification of the outcome of each race or issue on the school district's ballot and the text of each issue.

History. Acts 1951, No. 403, § 1; 1979, No. 117, § 1; No. 379, § 3; 2016 (3rd Ex. Sess.), No. 14, § 4; 2016 (3rd Ex. Sess.), No. 15, § 4; 2017, No. 275, § 3; 2017, No. 910, 443, § 6; 2003, No. 1165, § 1; 2005, No. 1174, § 6; 2015, § 4; 2019, No. 552, § 5.

6-14-116. Contest of election.

(a) If the election of any member of a school district board of directors is contested, it shall be before the circuit court of the county in which the school district is domiciled.

(b) All actions to contest the election shall be commenced within twenty (20) days after the date the election is certified.

(c) Actions to contest the election of school district officers shall follow the procedures set out in § 7-5-801 et seq.

History. Acts 1951, No. 366, §§ 1-4; A.S.A. 1947, §§ 80-321 — 80-324; Acts 1987, No. 248, § 15; 1999, No. 1078, § 52; 2005, No. 1174, § 7.

6-14-117. [Repealed.]

Publisher's Notes. This section, concerning unlawful acts and penalties therefor, was repealed by Acts 1997, No. 443, § 7. The section was derived from Acts 1935, No. 30, § 10; Pope's Dig., § 11530; A.S.A. 1947, § 80-316.

6-14-118. Expenses.

(a)(1) Except as provided in this section, for school elections, the school district shall reimburse the county for the cost of the school election.

(2) Subdivision (a)(1) of this section includes the cost of a special school election.

(b)(1) If the school election is held in an even-numbered year, the school district shall reimburse each county in which the school election appears on the preferential primary election or general election ballot for additional costs incurred by the county when holding the school election in conjunction with the preferential primary election or general election.

(2) Total reimbursement under subdivision (b)(1) of this section shall not exceed an amount equal to the amount the school district reimbursed one (1) or more counties in the aggregate for the last contested school election in an odd-numbered year.

(c) The school district shall reimburse a county for the entire cost of a school runoff election if:

- (1) The school election is held in an even-numbered year; and
- (2) The preferential primary election or general election which the school election is held in conjunction with does not result in the holding of a general primary election or a general runoff election in the county so that the school runoff election is the only issue on the ballot.

History. Acts 1931, No. 169, § 85; Pope's Dig., § 11519; Ex. Sess.), No. 14, § 5; 2016 (3rd Ex. Sess.), No. 15, § 5; A.S.A. 1947, § 80-315; Acts 1987, No. 248, § 13; 1993, No. 2017, No. 910, § 5. 978, § 1; 2007, No. 1200, § 1; 2009, No. 292, § 2; 2016 (3rd

6-14-119. [Repealed.]

6-14-120. [Repealed.]

Publisher's Notes. This section, concerning election of school district boards of directors, was repealed by Acts 1935, No. 30, § 2; Pope's Dig., § 11522; Acts 1973, No. 882, § 1; A.S.A. 1947, § 80-335; Acts 1997, No. 443, § 9; Acts 2005, No. 2151, § 32. The section was derived from Acts 2005, No. 1174, § 8.

6-14-121. Runoff elections.

(a)(1)(A) Whenever there are more than two (2) candidates for election to any position on a board of directors at any election held in this state and whenever no candidate for any school district position receives a majority of the votes cast for the office or whenever there is a tie vote, there shall be a runoff election held in the school district.

(B) In the event of a runoff election, the current member of the position for which there is a runoff election shall serve as a holdover until the person elected in the runoff election receives certification of the administration of the oath under § 6-13-617.

(2) The names of the two (2) candidates receiving the highest number of votes, but not a majority, shall be placed on the ballot to be voted upon by the qualified electors for that position on a school district board of directors.

(3) The runoff election shall be held at the same time as the general election.

(b) The person receiving the majority of the votes cast for the position at the runoff election shall be declared elected.

(c) If one (1) of the two (2) candidates who received the highest number of votes for a position withdraws before certification of the result of the school board election, the remaining candidate who received the most votes at the school board election shall be declared elected to the office and there shall be no school board election runoff.

(d)(1) In the event that the two (2) candidates seeking election to the same school district position shall receive the same number of votes in a runoff election, a tie shall be deemed to exist.

(2) The county board of election commissioners shall determine the winner by lot at an open public meeting and in the presence of the two (2) candidates.

(e) The provisions of this section are intended to be in addition to and supplemental to the laws of this state pertaining to the election of school district boards of directors.

(f) A runoff election shall be conducted using the same procedures as the election requiring the runoff election.

History. Acts 1987, No. 845, §§ 1, 2; 1993, No. 294, § 8; § 9; 2007, No. 1049, § 6; 2017, No. 910, § 6; 2017, No. 1997, No. 443, § 10; 1999, No. 1078, § 53; 2005, No. 1174, 1104, § 1; 2019, No. 552, § 7; 2025, No. 503, §§ 8, 15, 16.

6-14-122. Consolidation, annexation, or merger of school districts.

(a) The consideration of the question of the consolidation or annexation of two (2) or more school districts, or parts thereof, in their entireties, kindergarten through twelfth grade (K-12), may be made at the annual school election with the issue of combining the school districts and the levying of a specified tax millage to support the new school district placed on the ballot as a single issue in order to assure that when the two (2) or more school districts, or parts thereof, are combined into one (1) school district, a single millage will be levied for support of the new school district.

(b) The boards of directors of the school districts may, by resolution duly adopted and with the approval of the Commissioner of Elementary and Secondary Education, set a date for the annual school election in that year for the school districts involved on a date under § 7-11-205, provided only one (1) annual school election may be held in any school district in one (1) calendar year.

(c) If the State Board of Education is petitioned by the board of directors of a school district or districts, by resolution duly adopted by majority vote of each of the local boards of directors, or when petitioned by at least twenty-five percent (25%) of the qualified electors of a school district or districts as certified in writing by the county clerk of each county where the school district or districts are located, the state board may call a special election to be held in accordance with § 7-11-201 et seq. to consider the question of consolidation or annexation of the school districts as otherwise allowed for in subsection (a) of this section.

(d) The special election on consolidation or annexation shall be held by the same officials at the same polling places, and the returns shall be made, canvassed, and published in the same manner as is provided by law for annual school elections.

(e) If an election is not held in the newly formed school district, the vote on the millage for the newly formed school district will be held at the next annual school election.

History. Acts 1992 (1st Ex. Sess.), No. 62, § 1; 2001, No. 1225, § 2; 2005, No. 2145, § 5; 2007, No. 1049, § 7; 2009, No. 1480, § 5; 2021, No. 544, § 9; 2021, No. 610, § 4.

6-14-123. Verification of voter registration.

(a) A voter in a school election voting either in person or by absentee ballot shall comply with Arkansas Constitution, Amendment 51, § 13, concerning verification of voter registration to the extent it is applicable to the voter.

(b) If a ballot or absentee ballot is deemed a provisional ballot for failure to provide verification of registration under Arkansas Constitution, Amendment 51, § 13, the voter shall comply with the procedures under Arkansas Constitution, Amendment 51, § 13, for his or her vote to be counted.

History. Acts 2017, No. 633, § 3.

6-14-124. Pre-election procedures for school elections held in school districts situated in more than one county.

(a)(1)(A) In all school elections conducted under § 6-14-111(a)(3) in which the school district is situated in two (2) or more counties, a candidate for board of directors of a school district shall file his or her nominating petition with the county clerk of the county in which the school district is domiciled for administrative purposes.

(B) The county clerk of the county in which the nominating petition is filed shall:

(i) Verify the signatures on the nominating petition from that county; and

(ii) If there are signatures from another county to be verified, immediately forward the nominating petition to the appropriate county clerk.

(C) The county clerk receiving the nominating petition shall return the nominating petition to the county clerk of the county in which the school district is domiciled for administrative purposes no later than five (5) days after the filing period ends.

(D) The county clerk of the county in which the school district is domiciled for administrative purposes shall:

(i) Certify the sufficiency of the nominating petition; and

(ii) File the certification with the county board of election commissioners in each county in which the school district has territory.

(2) In all school elections conducted under § 6-14-111(a)(3) in which the school district is situated in two (2) or more counties, the county clerk of the county in which the school district is domiciled for administrative purposes shall submit all ballot questions that have been filed with the county clerk for the annual school election to each county board of election commissioners in each county in which the school district has territory.

(b)(1) When a county clerk of a county in which the school district is domiciled for administrative purposes is notified of a special school election under § 7-11-203, the county clerk of the

county in which the school district is domiciled for administrative purposes shall forward a copy of the calling document to the county clerk of each of the district's nondomicile counties.

(2) The county clerk of any nondomicile county conducting a special election on that same date shall immediately notify the county clerk of each county in which the school district is domiciled for administrative purposes under § 6-14-111(a)(2).

History. Acts 2019, No. 552, § 8.

6-14-125. Unchanged rate of annual ad valorem property tax — Election requirements.

(a) If in an odd-numbered year the rate of an annual ad valorem property tax on the assessed value of taxable real, personal, and utility property levied by a public school district board of directors under Arkansas Constitution, Article 14, § 3(c), is unchanged from the previous rate of the annual ad valorem property tax, then, upon request of the public school district board of directors, the county board of election commissioners of the county in which the public school district is situated may:

(1) Reduce the number of polling places;

(2) Not open any polling places on election day so that the election may be conducted only by absentee ballot and early voting; or

(3) Hold the election:

(A) As part of the election declared to be by candidate only; or

(B)(i) Through the selection of a qualified elector designated by the public school district board of directors to cast a ballot for the previous, unchanged rate of annual ad valorem property tax at a designated time and location on election day or during the period of time that would otherwise be designated for early voting.

(ii) A public school district board of directors shall:

(a) Appoint by resolution a qualified elector of the public school district or appoint the county board of election commissioners to designate a qualified elector of the public school district to cast a ballot for the public school district's unchanged rate of annual ad valorem property tax; and

(b) Forward a file-marked copy of the resolution under subdivision (a)(3)(B)(ii)(a) of this section to the county clerk and the county election commission of the county in which the public school district is situated simultaneously when it submits the rate of tax as required by § 6-14-111(i).

(iii)(a) Upon receipt of a resolution under subdivision (a)(3)(B)(ii) of this section, a county board of election commissioners shall notify the public school district board of directors of the place, date, and time in which the designated qualified elector under subdivision (a)(3)(B)(ii)(a) of this section shall cast the ballot for the public school district's unchanged rate of annual ad valorem property tax.

(b) If the designated qualified elector under subdivision (a)(3)(B)(ii)(a) of this section is not present at the place, on the date, or at the time designated by a county board of election commissioners under subdivision (a)(3)(B)(iii)(a) of this section, then the county board of election commissioners shall designate a qualified elector of the public school district to cast the ballot for the public school district's unchanged rate of annual ad valorem property tax and notify the superintendent and board of directors of the public school district for which the ballot was cast.

(b) For elections held under subdivision (a)(3) of this section:

(1) In odd-numbered years, the county board of election commissioners of the county in which the public school district is situated shall not open any polling places on election date if the unchanged rate of taxation is the only issue to be voted on; and

(2) In conjunction with the preferential primary or general election, the county board of election commissioners shall place the unchanged rate of the annual ad valorem property tax on the ballot of all qualified electors of the public school district.

History. Acts 2025, No. 399, § 1.

CHAPTER 18

STUDENTS

SUBCHAPTER 2 — ATTENDANCE

SECTION.

6-18-236. Voting — Excused absence — Definitions.

6-18-236. Voting — Excused absence — Definitions.

(a)(1) A student enrolled in a school shall not be considered absent from the school in which the student is enrolled for the time during which the student accompanies the student's parent when the parent is exercising his or her right to vote in a scheduled election.

(2) A student may receive an excused absence under subdivision (a)(1) of this section only one (1) time during each scheduled election.

(3) A student who accompanies his or her parent when the parent is exercising his or her right to vote in a scheduled election is encouraged to demonstrate his or her attendance at the scheduled election by wearing an official sticker, badge, or other item that indicates he or she attended the scheduled election upon his or her return to school.

(b) As used in this section:

(1) "Parent" means a student's parent, legal guardian, or person standing in loco parentis to the student; and

(2) "School" means a school that is funded in whole or in part by state funds.

History. Acts 2023, No. 621, § 1.

SUBTITLE 5. POSTSECONDARY AND HIGHER EDUCATION GENERALLY

CHAPTER 61

POSTSECONDARY INSTITUTIONS GENERALLY

SUBCHAPTER 5 — COMMUNITY COLLEGES GENERALLY

SECTION.

6-61-529. Local boards — Appointment or election of members.

SECTION.

6-61-530. Local boards — School district representation.

6-61-529. Local boards — Appointment or election of members.

(a)(1) Within sixty (60) days after April 19, 1995, the local board of each community college shall, by resolution, choose:

(A) To continue as a board whose members are elected; or

(B) To become a newly constituted board whose members are appointed by the Governor under the provisions of this section.

(2) The board of the local community college shall immediately thereafter notify the Governor of its decision.

(b)(1) If the local community college board chooses to become an appointed board, positions on the board shall become vacant as current terms expire, and persons who are residents and qualified electors of the community college district shall be appointed by the Governor for terms of six (6) years.

(2)(A) Vacancies on the appointed board due to death, resignation, or other causes shall be filled by appointment of the Governor to serve the remainder of an unexpired term.

(B) A person so appointed is eligible for appointment to a subsequent full term on the board.

(c)(1) Except as provided in subsection (d) of this section, if the local community college board chooses to remain an elected board, the qualified electors of a community college district having a ten percent (10%) or greater population in any one (1) racial minority, as reported by the most recent federal decennial census information, shall elect the members of the local board as follows, utilizing selection procedures in compliance with the federal Voting Rights Act of 1965, 52 U.S.C. § 10101 et seq.:

(A)(i) At least ninety (90) days before the election, the local board:

(a) Shall, with approval of the county board of election commissioners of each county in which the community college is located, divide the district into zones; or

(b) May, by resolution, utilize existing quorum court districts.

(ii) Zones determined under subdivision (c)(1)(A)(i)(a) of this section shall have substantially equal population, with boundaries based on the most recent available federal decennial census information; and

(B) A candidate for election from a zone or a quorum court district shall be a:

(i) Qualified elector of the zone or district; and

(ii) Resident of the zone or district.

(2)(A) A board member shall serve a six-year term.

(B) A term shall commence:

(i) After the county court declares the results of the election by an order entered of record; and

(ii) On January 1 next following the date of the election.

(3)(A) After each federal decennial census and at least ninety (90) days before the general election, the local board:

- (i) Shall, with approval of the county board of election commissioners of any county in which the community college is located, divide the district into zones; or
- (ii) May, by resolution, utilize quorum court districts.
- (B) The zones determined under subdivision (c)(3)(A)(i) of this section or quorum court districts shall be:
 - (i) Based on the most recent federal decennial census information; and
 - (ii) Substantially equal in population.
- (C) At the general election following the rezoning, a new local board shall be elected in accordance with procedures set forth in this section.
- (d) If division into zones for election purposes would not create a voting zone with twenty percent (20%) or greater population in any one (1) racial minority, the community college district shall be exempt from subsection (c) of this section.

History. Acts 1995, No. 1349, § 1; 2001, No. 1366, §§ 1, 2; 2023, No. 519, § 2; 2025, No. 938, § 6.

A.C.R.C. Notes. As enacted by Acts 1995, No. 1349, subdivision (c)(2)(A) began: “Except as provided in subsection (d) of this section.”

As enacted by Acts 1995, No. 1349, this section also contained a subsection (d) which read: “(d) At the first meeting of a new local board, the members shall establish initial terms by lot so that, to the extent possible, an equal number of positions are filled every two (2) years and not more than five (5) members’ terms expire every two (2) years.”

Acts 2025, No. 938, § 21, provided: “Severability clause. If any provision of this act or the application of this act to any person or circumstance is held invalid, the invalidity shall

not affect other provisions or applications of this act which can be given effect without the invalid provision or application, and to this end, the provisions of this act are declared severable.”

Amendments. The 2023 amendment, in (c)(1), deleted “beginning with the 1996 general election” following “elected board” and substituted “52 U.S.C. § 10101 et seq.” for “42 U.S.C. § 1971 et seq. (now 52 U.S.C. § 10101 et seq.)”; rewrote (c)(1)(A) and (c)(1)(B); redesignated (c)(2)(B) as the introductory language of (c)(2)(B), (c)(2)(B)(i), and (c)(2)(B)(ii); rewrote (c)(3); and inserted “community college” in (d).

The 2025 amendment deleted the (b)(1)(A) designation; and deleted (b)(1)(B).

6-61-530. Local boards — School district representation.

- (a) If the members of the local board of a community college are elected at large and if the community college district is composed of more than one (1) school district, but not all the school districts in the county, the board may apportion a certain number of positions on the board for each school district according to the most recent census information.
- (b) The board shall reapportion the positions on the board for each school district following each decennial census thereafter.
- (c) If at the time of either the initial apportionment or the decennial reapportionment, a board member’s position is apportioned to a school district in which he or she does not reside at that time, he or she shall nevertheless continue to hold office until the end of his or her term.
- (d) After such apportionment, the qualified electors of each school district shall vote at large only for the board positions apportioned to their school district.
- (e) Following apportionment, all board members and all candidates for board positions shall be residents and qualified electors of the school district to which their positions are apportioned, except as provided in subsection (c) of this section.
- (f) If any board member shall cease to reside in the school district to which his or her position is apportioned, then that board member shall be disqualified to hold office, and a vacancy shall exist which shall be filled as prescribed by law.
- (g) The provisions of this section shall not be applicable to or in any way affect the qualifications or current term of any person serving on a community college board on March 1, 1999.

History. Acts 1997, No. 1258, § 1; 1999, No. 771, § 1.

CASE NOTES

Cited: *Parsons v. State*, 341 Ark. 150, 15 S.W.3d 339 (2000).

TITLE 7

ELECTIONS

CHAPTER.

1. GENERAL PROVISIONS.
2. CONGRESSIONAL DISTRICTS.
3. POLITICAL PARTIES.
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CHAPTER 1

GENERAL PROVISIONS

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- 7-1-102. Work time to be scheduled for voting — Penalty.
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SECTION.

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7-1-101. Definitions.

As used in this title, unless the context or chapter otherwise requires:

(1) “Administrator” means the administrative head of a long-term care or residential care facility licensed by the state who is authorized in writing by a patient of the long-term care or residential care facility to deliver the application for an absentee ballot and to obtain or deliver the absentee ballot to the county clerk;

(2) “Affidavit of eligibility” means an affidavit signed by a candidate for elective office stating that the candidate is eligible to serve in the office he or she seeks;

(3) “Audit log” means an electronically stored record of events and ballot images from which election officials may produce a permanent paper record with a manual audit capacity for a voting system using voting machines;

(4) “Authorized agent” means a person who is identified and authorized to deliver the application, obtain a ballot, and deliver the ballot on the day of the election to the county clerk for an applicant who is medically unable to cast a ballot at a polling site due to an unforeseen medical necessity as set forth in an affidavit from the administrator of a hospital or long-term care or residential care facility;

(5) “Canvassing” means examining and counting the returns of votes cast at a public election to determine authenticity;

(6) “Certificate of choice” means a certificate, signed by an executive officer of a political group that submits a petition to place its candidates for President of the United States and Vice President of the United States on the ballot, designating the names of its candidates to appear on the ballot;

(7) “Constitutional officers of this state” means the offices of the Governor, Lieutenant Governor, Secretary of State, Attorney General, Auditor of State, Treasurer of State, and Commissioner of State Lands;

(8) “Counting location” means a location selected by the county board of election commissioners with respect to all elections for the automatic processing or counting, or both, of votes;

(9) “Designated bearer” means any person who is identified and authorized by the applicant to obtain from the county clerk or to deliver to the county clerk the applicant’s ballot;

(10)(A) “Drop box” means:

- (i) A receptacle, box, or other physical structure used to receive absentee ballots; and
- (ii) That is available for public use.

(B) “Drop box” does not include a receptacle, box, or other physical structure that is provided by or used by a mail carrier authorized to receive or deliver absentee ballots under law;

(11)(A) “Election media” means any device used in an election definition or to record votes cast with a direct record electronic machine or voting machine.

(B) “Election media” includes without limitation:

- (i) Memory stick devices; and
- (ii) Personal computer cards;

(12) “Election official” or “election officer” means a person who is a member of the county board of election commissioners, a person who performs election coordinator duties, a person who is a poll worker designated by a county board of election commissioners to be an election clerk, election judge, or election sheriff, or a deputy county clerk or a person assigned by a county clerk to conduct early voting;

(13) “Electronic poll book” means hardware or software or a combination of hardware and software that allows election officials to view voter registration records and voting information during an election at an early voting location or at a polling site on election day;

(14) “Electronic vote tabulating device” means a device used to electronically scan a marked paper ballot for the purpose of tabulation;

(15) “Fail-safe voting” means the mechanism established under the National Voter Registration Act of 1993, 52 U.S.C. § 20501 et seq., that allows a voter who has moved within the same county to vote at his or her new precinct without having updated his or her voter registration records;

(16) “First-time voter” means any registered voter who has not previously voted in a federal election in the state;

(17) “General or special election” means the regular biennial or annual election for election of United States, state, district, county, township, and municipal officials and the special elections to fill vacancies therein and special elections to approve any measure. The term as used in this act shall not apply to school elections for officials of school districts;

(18) “Infamous crimes” for the purposes of Arkansas Constitution, Article 5, § 9, includes:

- (A) A felony offense;
- (B) A misdemeanor theft of property offense;
- (C) Abuse of office, § 5-52-107;
- (D) Tampering, § 5-53-110; or
- (E) A misdemeanor offense in which the finder of fact was required to find, or the defendant to admit, an act of deceit, fraud, or false statement;

(19) “Majority party” means that political party in the State of Arkansas whose candidates were elected to a majority of the constitutional offices of this state in the last preceding general election;

(20) “Marking device” means any approved device operated by a voter to record the voter’s choices through marking or creating a paper ballot with ink or other substance that will enable the votes to be tabulated by means of an electronic vote tabulating device;

(21) “Member of the merchant marine” means:

- (A) An individual employed as an officer or crew member of:
- (i) A vessel documented under the laws of the United States;

(ii) A vessel owned by the United States; or

(iii) A vessel of foreign-flag registry under charter or control of the United States;

(B) An individual enrolled with the United States for employment or training for employment or maintained by the United States for emergency relief service as an officer or crew member of any such vessel; or

(C) As defined in the federal Uniformed and Overseas Citizens Absentee Voting Act, 52 U.S.C. § 20301 et seq., if different from the definition stated in this subdivision (21);

(22) “Minority party” means that political party whose candidates were elected to less than a majority of the constitutional offices of this state in the last preceding general election or the political party that polled the second greatest number of votes for the office of Governor in the last preceding general election if all of the elected constitutional officers of this state are from a single political party;

(23)(A) “Nonpartisan candidate” means a candidate for the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, or prosecuting attorney.

(B) “Nonpartisan candidate” does not include a candidate for nonpartisan municipal office;

(24)(A) “Nonpartisan election” means a general, special, or runoff election for the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, or prosecuting attorney.

(B) “Nonpartisan election” does not include a general, special, or runoff election for a nonpartisan municipal office;

(25)(A) “Nonpartisan office” means the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, or prosecuting attorney.

(B) “Nonpartisan office” does not include a nonpartisan municipal office;

(26) “Party certificate” means a written statement or receipt signed by the secretary or chair of the county committee or of the state committee, as the case may be, of the political party evidencing the name and title proposed to be used by the candidate on the ballot, the position the candidate seeks, payment of the fees, and filing of the party pledge, if any, required by the political party;

(27) “Party filing period” means the period of time established by law for the candidate for a political party’s nomination to file his or her party certificate with the Secretary of State or county clerk, as the case may be;

(28)(A) “Political party” means any group of voters that at the last preceding general election polled for its candidate for Governor in the state or nominees for presidential electors at least three percent (3%) of the entire vote cast for the office.

(B) A group of electors shall not assume a name or designation that is so similar in the opinion of the Secretary of State to that of an existing political party as to confuse or mislead the voters at an election.

(C) When any political party fails to obtain three percent (3%) of the total votes cast at an election for the office of Governor or nominees for presidential electors, it shall cease to be a political party;

(29) “Polling site” means a location selected by the county board of election commissioners where votes are cast;

(30) “Precinct” means a geographical area, the boundaries of which are determined by a county board of election commissioners in order to facilitate voting by the registered voters from that geographical area;

(31) “Primary election” means any election held by a political party in the manner provided by law for the purpose of selecting nominees of the political party for certification as candidates for election at any general or special election in this state;

(32)(A) “Printed campaign materials” means:

(i) Literature mailed to an elector that is intended to or calculated to influence the vote of an elector in an election in this state, including without limitation signs, banners, flyers, and pamphlets; and

(ii) Yard signs and push cards intended to or calculated to influence the vote of an elector in an election in this state.

(B) “Printed campaign materials” does not mean political paraphernalia, including without limitation stickers, buttons, pens, T-shirts, nail files, or other similar trinkets;

(33) “Provisional ballot” means a ballot:

(A) Cast by special procedures to record a vote when there is some question concerning a voter’s eligibility; and

(B) Counted contingent upon the verification of the voter’s eligibility;

(34) “Qualified elector” means a person who holds the qualifications of an elector and who is registered pursuant to Arkansas Constitution, Amendment 51;

(35) “Sample ballot” means a ballot for distribution to the public or the press marked with the word “SAMPLE” so as to prevent the production of counterfeit ballots;

(36) “Uniformed services” means the United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, United States Coast Guard, the United States Commissioned Corps of the Public Health Service, and the National Oceanic and Atmospheric Administration Commissioned Officer Corps, or as defined in the federal Uniformed and Overseas Citizens Absentee Voting Act, 52 U.S.C. § 20301 et seq., as it existed on January 1, 2025, if different from the definition stated in this subdivision (36);

(37) “Vacancy in election” means the vacancy in an elective office created by death, resignation, or other good and legal cause arising prior to election to the office at a general or special election but arising subsequent to the certification of the ballot;

(38) “Vacancy in nomination” means the circumstances in which:

(A) The person who received the majority of votes at the preferential primary election or general primary election cannot accept the nomination due to death or notifies the party that he or she will not accept the nomination due to serious illness, moving out of the area from which the person was elected as the party’s nominee, or filing for another office preceding the final date for certification of nominations; or

(B) There is a tie vote for the same office at a general primary election;

(39)(A) “Vacancy in office” means the vacancy in an elective office created by death, resignation, or other good and legal cause arising subsequent to election to the office at a general or special election or arising subsequent to taking office and before the expiration of the term of office in those circumstances wherein the vacancy must be filled by a special election rather than by appointment.

(B) “Vacancy in office” does not apply to the election of a person at a general election to fill an unexpired portion of a term of office;

(40)(A) “Verification of voter registration” means:

(i) Presenting a document or identification card when appearing to vote in person that:

(a) Shows the name of the person to whom the document or identification card was issued;

(b) Shows a photograph of the person to whom the document or identification card was issued;

(c) Is issued by the United States, the State of Arkansas, or an accredited postsecondary educational institution in the State of Arkansas; and

(d) If displaying an expiration date, is not expired or expired no more than four (4) years before the date of the election in which the voter seeks to vote; or

(ii) Submitting with an absentee ballot verification of voter registration in the form of a copy of a document or identification card that complies with the requirements of subdivision (40)(A)(i) of this section.

(B) A document or identification card may be presented in a digital format on an electronic device if the document or identification card:

(i) Complies with the requirements of subdivision (40)(A) of this section; and

(ii) The digital format has been approved or issued by the United States, the State of Arkansas, or an accredited postsecondary educational institution in the State of Arkansas.

(C) Documents and identification cards that comply with the requirements of subdivision (40)(A) of this section include without limitation:

(i) A driver’s license;

- (ii) A photo identification card;
 - (iii) A concealed handgun carry license;
 - (iv) A United States passport;
 - (v) An employee badge or identification document issued by an accredited postsecondary educational institution in the State of Arkansas;
 - (vi) A United States Armed Forces identification document;
 - (vii) A public assistance identification card if the card shows a photograph of the person to whom the document or identification card was issued; and
 - (viii) A voter verification card under § 7-5-324;
- (41) “Vote center” means an election day location designated by the county board of election commissioners at which a qualified elector from any precinct in the county holding the election may vote;
- (42) “Voter-verified paper audit trail” means a contemporaneous paper record of a ballot printed for the voter to confirm his or her votes before the voter casts his or her ballot that:
- (A) Allows the voter to verify the voter-verified paper audit trail before the casting of the voter’s ballot;
 - (B) Is not retained by the voter;
 - (C) Does not contain individual voter information;
 - (D) Is produced on paper that is sturdy, clean, and resistant to degradation; and
 - (E) Is readable in a manner that makes the voter’s ballot choices obvious to the voter without the use of computer or electronic code;
- (43) “Voting machine” means either:
- (A) A direct-recording electronic voting machine that:
 - (i) Records votes by means of a ballot display provided with mechanical or electro-optical components that may be actuated by the voter;
 - (ii) Processes the data by means of a computer program;
 - (iii) Records voting data and ballot images in internal and external memory components; and
 - (iv) Produces a tabulation of the voting data stored in a removable memory component and on a printed copy; or
 - (B) One (1) or more electronic devices that operate independently or as a combination of a ballot marking device and an electronic vote tabulating device; and
- (44) “Voting system” means:
- (A) The total combination of mechanical, electromechanical, or electronic equipment, including the software, firmware, and documentation required to program, control, and support the equipment that is used to:
 - (i) Define ballots;
 - (ii) Cast and count votes;
 - (iii) Report or display election results; and
 - (iv) Maintain and produce any audit trail information; and
 - (B) The practices and documentation used to:
 - (i) Identify system components and versions of components;
 - (ii) Test the system during its development and maintenance;
 - (iii) Maintain records of system errors and defects;
 - (iv) Determine specific system changes to be made to a system after the initial qualification of the system; and
 - (v) Make available any materials to the voter, including without limitation notices, instructions, forms, or paper ballots.

History. Acts 1969, No. 465, Art. 1, § 1; 1971, No. 261, § 1; 1977, No. 888, § 3; A.S.A. 1947, § 3-101; Acts 1987, No. 123, § 12; 1991, No. 241, § 1; 1995, No. 946, § 1; 1995, No. 963, § 1; 1997, No. 445, § 1; 1997, No. 1082, § 1; 1999, No. 1342, § 1; 2003, No. 994, § 1; 2003, No. 1731, § 1; 2005, No. 2233, § 2; 2007, No. 224, § 1; 2007, No. 1020,

§ 1; 2009, No. 250, § 1; 2009, No. 659, § 5; 2009, No. 959, § 2; 2009, No. 1480, § 14; 2011, No. 203, § 1; 2013, No. 595, § 1; 2013, No. 724, § 3; 2013, No. 1110, § 1; 2013, No. 1126, § 1; 2013, No. 1211, § 1; 2013, No. 1297, § 1; 2013, No. 1389, § 1; 2015, No. 1042, § 1; 2015, No. 1218, §§ 1-3; 2017, No. 633, § 4; 2017, No. 787, § 1; 2019, No. 684, § 2;

2021, No. 729, § 1; 2023, No. 292, § 1; 2023, No. 353, § 1;
2025, No. 508, § 9.

7-1-102. Work time to be scheduled for voting — Penalty.

Each employer in the state shall schedule the work hours of employees on election days so that each employee will have an opportunity to exercise the right of franchise. Any employer who fails or refuses to comply with the provisions of this section shall upon conviction be subject to a fine of not less than twenty-five dollars (\$25.00) nor more than two hundred fifty dollars (\$250).

History. Acts 1989, No. 545, § 1.

7-1-103. Miscellaneous misdemeanor offenses — Penalties — Definitions.

(a) The violation of any of the following shall be deemed misdemeanors punishable as provided in this section:

(1) It shall be unlawful for any person to appoint or offer to appoint anyone to any office or position of trust or for any person to influence, attempt to influence, or offer to influence the appointment, nomination, or election of any person to office in consideration of the support or assistance of the person for any candidate in any election in this state;

(2)(A)(i) It shall be unlawful for any public servant, as defined in § 21-8-402, to devote any time or labor during usual office hours toward the campaign of any other candidate for office or for the nomination to any office.

(ii) Devoting any time or labor during usual office hours toward the campaign of any other candidate for office or for the nomination to any office includes without limitation the gathering of signatures for a nominating petition.

(B) It shall be unlawful for any public servant, as defined in § 21-8-402, to circulate an initiative or referendum petition or to solicit signatures on an initiative or referendum petition in any public office of the state, county, or municipal governments of Arkansas or during the usual office hours or while on duty for any state agency or any county or municipal government in Arkansas.

(C) It shall be unlawful for any public servant, as defined in § 21-8-402, to coerce, by threats or otherwise, any public employee into devoting time or labor toward the campaign of any candidate for office or for the nomination to any office;

(3)(A) It shall be unlawful for any public servant, as defined in § 21-8-402, to use any office or room furnished at public expense to distribute any letters, circulars, or other campaign materials unless such office or room is regularly used by members of the public for such purposes without regard to political affiliation. It shall further be unlawful for any public servant to use for campaign purposes any item of personal property provided with public funds.

(B) As used in subdivision (a)(3)(A) of this section, “campaign materials” and “campaign purposes” refer to:

(i) The campaign of a candidate for public office; and

(ii) Efforts to support or oppose a ballot measure, except as provided in § 7-1-111;

(4) It shall be unlawful for any person to assess any public employee, as defined in § 21-8-402, for any political purpose whatever or to coerce, by threats or otherwise, any public employee into making a subscription or contribution for any political purpose;

(5) It shall be unlawful for any person employed in any capacity in any department of the State of Arkansas to have membership in any political party or organization that advocates the overthrow of our constitutional form of government;

(6) It shall be unlawful for any campaign banners, campaign signs, or other campaign literature to be placed on any cars, trucks, tractors, or other vehicles belonging to the State of Arkansas or any municipality, county, or school district in the state;

(7)(A)(i) All articles, statements, or communications appearing in any newspaper printed or circulated in this state intended or calculated to influence the vote of any elector in any election and for the publication of which a consideration is paid or to be paid shall clearly contain the

words “Paid Political Advertisement”, “Paid Political Ad”, or “Paid for by” the candidate, committee, or person who paid for the message.

(ii) Both the persons placing and the persons publishing the articles, statements, or communications shall be responsible for including the required disclaimer.

(B)(i) All articles, statements, or communications appearing in any radio, television, or any other electronic medium intended or calculated to influence the vote of any elector in any election and for the publication of which a consideration is paid or to be paid shall clearly contain the words:

(a) “Paid political advertisement” or “paid political ad”; or

(b) “Paid for by”, “sponsored by”, or “furnished by” the true sponsor of the advertisement.

(ii) Both the persons placing and the persons publishing the articles, statements, or communications shall be responsible for including the required disclaimer;

(8)(A) An election official acting in his or her official capacity shall not do any electioneering:

(i) On election day or any day on which early voting is allowed;

(ii) In a building in which voting is taking place; or

(iii) Within one hundred feet (100') of the primary exterior entrance used by voters to a building in which voting is taking place.

(B) On early voting days and election day, a person shall not do any electioneering during voting hours:

(i) In a building in which voting is taking place;

(ii) Within one hundred feet (100') of the primary exterior entrance used by voters to a building in which voting is taking place; or

(iii) With persons standing in line to vote.

(C)(i) As used in this subdivision (a)(8), “electioneering” means the display of or audible dissemination of information that advocates for or against any candidate, issue, or measure on a ballot.

(ii) “Electioneering” includes without limitation the following:

(a) Handing out, distributing, or offering to hand out or distribute campaign literature or literature regarding a candidate, issue, or measure on the ballot;

(b) Soliciting signatures on a petition;

(c) Soliciting contributions for a charitable or other purpose;

(d) Displaying a candidate’s name, likeness, or logo;

(e) Displaying a ballot measure’s number, title, subject, or logo;

(f) Displaying or dissemination of buttons, hats, pencils, pens, shirts, signs, or stickers containing electioneering information; and

(g) Disseminating audible electioneering information.

(iii) “Electioneering” does not include:

(a) The presentation of a candidate’s identification by the candidate under Arkansas Constitution, Amendment 51, § 13; or

(b) The display of a ballot measure in the polling place as required under § 7-5-202;

(9) No election official shall perform any of the duties of the position before taking and subscribing to the oath provided for in § 7-4-110;

(10) No person applying for a ballot shall swear falsely to any oath administered by the election officials with reference to his or her qualifications to vote;

(11) No person shall willfully cause or attempt to cause his or her own name to be registered in any other election precinct than that in which he or she is or will be before the next ensuing election qualified as an elector;

(12) During any election, no person shall remove, tear down, or destroy any booths or supplies or other conveniences placed in any booth or polling site for the purpose of enabling the voter to prepare his or her ballot;

(13) No person shall take or carry any ballot obtained from any election official outside of the polling room or have in his or her possession outside of the polling room before the closing of the polls any ballot provided by any county election commissioner;

(14) No person shall furnish a ballot to any elector who cannot read informing him or her that it contains a name or names different from those that are written or printed thereon or shall change or mark the ballot of any elector who cannot read so as to prevent the elector from voting for any candidate, act, section, or constitutional amendment as the elector intended;

(15) No election official or other person shall unfold a ballot or without the express consent of the voter ascertain or attempt to ascertain any vote on a ballot before it is placed in the ballot box;

(16) No person shall print or cause to be printed any ballot for any election held under this act with the names of the candidates appearing thereon in any other or different order or manner than provided by this act;

(17) No election official shall permit the vote of any person to be cast in any election precinct in this state in any election legally held in this state when the person does not appear in person at the election precinct and actually cast the vote. This subdivision (a)(17) shall not apply to persons entitled to cast absentee ballots;

(18)(A) No person shall vote or offer to vote more than one (1) time in any election held in this state, either in person or by absentee ballot, or shall vote in more than one (1) election precinct in any election held in this state.

(B) No person shall cast a ballot or vote in the preferential primary of one (1) political party and then cast a ballot or vote in the general primary of another political party in this state;

(19) No person shall:

(A) Vote, knowing himself or herself not to be entitled to vote;

(B) Vote more than once at any election or knowingly cast more than one (1) ballot or attempt to do so;

(C) Provide assistance to a voter in marking and casting the voter's ballot except as provided in § 7-5-310;

(D) Alter or attempt to alter any ballot after it has been cast;

(E) Add or attempt to add any ballot to those legally polled at any election either by fraudulently introducing it into the ballot box before or after the ballots have been counted or at any other time or in any other manner with the intent or effect of affecting the count or recount of the ballots;

(F) Withdraw or attempt to withdraw any ballot lawfully polled with the intent or effect of affecting the count or recount of the ballots; or

(G) In any manner interfere with the officials lawfully conducting the election or the canvass or with the voters lawfully exercising their right to vote at the election;

(20) No person shall make any bet or wager upon the result of any election in this state;

(21) No election official, poll watcher, or any other person in or out of this state in any primary, general, or special election in this state shall divulge to any person the results of any votes cast for any candidate or on any issue in the election until after the closing of the polls on the day of the election. The provisions of this subdivision (a)(21) shall not apply to any township or precinct in this state in which all of the registered voters therein have voted prior to the closing of the polls in those instances in which there are fifteen (15) or fewer registered voters in the precinct or township;

(22) Any person, election official, county clerk, or deputy clerk who violates any provisions of the absentee voting laws, § 7-5-401 et seq., shall be punished as provided in this section;

(23) No person applying to be placed on a ballot for any public office shall knowingly provide false information with reference to his or her qualifications; and

(24) A person shall not enter or remain in an area within one hundred feet (100') of the primary exterior entrance to a building where voting is taking place except for a person entering or leaving a building where voting is taking place for lawful purposes.

(b)(1) Except as otherwise provided, the violation of any provision of this section shall be a Class A misdemeanor.

(2)(A) Any person convicted under the provisions of this section shall thereafter be ineligible to hold any office or employment in any of the departments in this state.

(B)(i) If any person is convicted under the provisions of this section while employed by any of the departments of this state, he or she shall be removed from employment immediately.

(ii) If any person is convicted under the provisions of this section while holding public office, the conviction shall be deemed a misfeasance and malfeasance in office and shall subject the person to impeachment.

(3) A person convicted of a misdemeanor offense as listed in this section shall be barred from serving as an election official in subsequent elections.

(c) Any violation of this act not covered by this section and § 7-1-104 shall be considered a Class A misdemeanor and shall be punishable as such.

History. Acts 1969, No. 465, Art. 11, § 4; 1970 (1st Ex. Sess.), No. 3, § 1; 1971, No. 261, § 24; 1981, No. 327, § 1; A.S.A. 1947, § 3-1104; Acts 1987, No. 395, § 1; 1989, No. 505, § 2; 1991, No. 241, § 2; 1991, No. 786, § 4; 1995, No. 497, § 1; 1995, No. 1085, § 1; 1997, No. 445, § 2; 1997, No. 1121, § 1; 1999, No. 553, § 1; 1999, No. 1525, § 1; 2001, No. 795, § 1; 2001, No. 926, § 1; 2001, No. 1839, § 1; 2005, No. 1284, § 1; 2007, No. 221, § 1; 2009, No. 310, § 1; 2009, No. 473, § 1; 2009, No. 658, § 1; 2011, No. 721, § 1; 2013, No. 312, § 1; 2019, No. 533, § 1; 2021, No. 416, § 1; 2021, No. 728, § 1; 2021, No. 974, § 1.

7-1-104. Miscellaneous felonies — Penalties.

(a) The following offenses shall be deemed felonies punishable as provided in this section:

(1) No person shall falsely make or fraudulently destroy any certificate of nominations or any part thereof, file any certificate of nominations knowing the certificate or any part thereof to be false, suppress any nomination or any part thereof which has been filed, or forge or falsely write the name or initials of any election official on any ballot;

(2) No public official or other person shall in any manner willfully or corruptly permit any person not entitled to register for the purpose of voting to register, nor shall a public official or other person forge or attempt to forge a registration;

(3) No person shall vote in any election in the state unless the person is a qualified elector of this state and has registered to vote in the manner provided by law;

(4) It shall be unlawful for any person to offer, accept, receive, or pay any person any money, goods, wares, or merchandise or solicit any money, goods, wares, or merchandise for the purpose of influencing his or her vote during the progress of any election in this state;

(5) It shall be unlawful for any person to make any threat or attempt to intimidate any elector or the family, business, or profession of the elector;

(6) It shall be unlawful for any person to interfere with or to prevent any qualified elector from voting at any election or to attempt to interfere with or to prevent any qualified elector from voting at any election, provided that this subdivision (a)(6) shall not prohibit good faith challenges of ballots or voters according to law by candidates, authorized representatives of candidates, political parties, or ballot issues;

(7) It shall be unlawful for any person to attend any polling site on election day and hand out or give away any campaign cards, placards, or other articles for the purpose of influencing the electors to vote for any candidate, except in the manner now provided by law;

(8)(A) It shall be unlawful for a person with the intent to defraud a voter or an election official to possess an absentee ballot issued to another.

(B) The possession by a person of more than four (4) absentee ballots creates a rebuttable presumption of intent to defraud.

(C) The presumption under subdivision (a)(8)(B) of this section does not apply to:

(i) An employee of the United States Postal Service performing the normal course of the employee's authorized duties;

(ii) A common or contract carrier performing the normal course of the carrier's authorized duties;

(iii) The administrative head of a long-term care or residential care facility licensed by the state authorized by a voter under Arkansas law; or

(iv) An election official acting in his or her official capacity;

(9) No person shall tamper with a voting machine or fraudulently affect or attempt to affect its results;

(10) No person may cast a ballot in more than one (1) party primary election on the same day in this state or for candidates for more than one (1) political party;

- (11) No person shall vote in any election more than one (1) vote;
 - (12) No person shall vote or attempt to vote other than his or her legal ballot;
 - (13) No election official shall knowingly permit any person to vote other than his or her legal ballot in any election;
 - (14) No election official or other person shall fraudulently permit any person to vote illegally, refuse the vote of any qualified elector, or cast up or make a false return of any election;
 - (15) No election official or other person shall willfully make a false count of any election ballots or falsely or fraudulently certify the returns of any election;
 - (16) No person shall fraudulently change, alter, or obliterate the poll books or books of any election or break any seals upon any ballot box, voting machine, or stub box, except as authorized by law;
 - (17) No person shall contrive, alter, forge, counterfeit, detain, mutilate, steal, secrete, or destroy any election returns or election materials for the purpose of hindering or preventing or falsely reporting a tabulation or check of the returns;
 - (18) Any person who violates the provisions of § 7-5-702 or who shall disclose how any voter may have voted unless compelled to do so in a judicial proceeding shall be deemed guilty of a Class D felony and punished as provided in this section; and
 - (19) No person shall forge the signature of a voter on an absentee ballot application, absentee ballot voter statement, or voter registration application.
- (b)(1) Any person convicted of a felony as defined in this section shall be guilty of a Class D felony.
- (2)(A) Any person convicted of a felony as defined in this section shall be barred from holding public office or employment in any of the departments of the state from the date of his or her conviction.
- (B)(i) If the person is employed by any of the departments of this state at the time of his or her conviction, he or she shall be removed from employment immediately.
- (ii) If any person is convicted under the provisions of this section while holding public office, the conviction shall be deemed a misfeasance and malfeasance in office and shall subject the person to impeachment.
- (c) A person convicted of a felony as listed in this section shall be barred from serving as an election official in subsequent elections.

History. Acts 1969, No. 465, Art. 11, § 5; A.S.A. 1947, § 17; 2003, No. 1458, § 1; 2005, No. 1677, § 1; 2009, No. 3-1105; Acts 1995, No. 497, § 1; 1995, No. 1085, § 1; 658, § 2; 2021, No. 736, § 1; 2021, No. 974, § 2; 2023, No. 1997, No. 445, § 3; 1999, No. 655, § 1; 2001, No. 1553, 620, § 1.

7-1-105. Majority of qualified electors.

Whenever any law of this state shall require that a proposition or question shall be adopted by a majority of the qualified electors of this state, of a city, or of a county based on the total number of electors of the state, city, or county, appearing on the certified list of all qualified electors thereof, the majority required for the adoption of the proposition or question hereafter shall be deemed to be the majority of the qualified electors of the state, city, or county voting on the proposition or question at the election.

History. Acts 1969, No. 465, Art. 13, § 3; A.S.A. 1947, § 3-1303; Acts 1997, No. 445, § 4.

7-1-106. Election laws expert.

The Secretary of State shall designate at least one (1) member of his or her staff to become knowledgeable of the election laws as they pertain to elections in the State of Arkansas for the purpose of answering procedural questions concerning elections and to aid the candidates and their agents in filing for election.

History. Acts 1977, No. 312, § 8; A.S.A. 1947, § 3-1314.

7-1-107. [Repealed.]

Publisher's Notes. This section, concerning independent candidates for municipal office, was repealed by Acts 1997, No. 445, § 5. The section was derived from Acts 1985, No. 545, § 1; A.S.A. 1947, § 19-956.

7-1-108. Election law deadlines.

If an election law deadline occurs on a Saturday, Sunday, or legal holiday, the deadline shall be the next day which is not a Saturday, Sunday, or legal holiday.

History. Acts 1999, No. 653, § 1.

7-1-109. Enforcement of election laws.

(a) Following a written complaint concerning any election law violation or irregularity to the county board of election commissioners, the written complaint shall be sent by the county board of election commissioners to the State Board of Election Commissioners and the Election Integrity Unit for evaluation and investigation.

(b) A complaint submitted under subsection (a) of this section shall be included by the unit in the Arkansas Election Integrity Database.

History. Acts 2003, No. 270, § 1; 2021, No. 952, § 1; 2023, No. 544, § 1.

7-1-110. Voting information on internet website.

The Secretary of State shall provide on his or her internet website a mechanism to allow a person to enter his or her home address and retrieve information concerning the person's polling location, precinct, state representative, and state senator.

History. Acts 2003, No. 1167, § 1.

7-1-111. Use of public funds to support or oppose ballot measure — Definitions.

(a) As used in this section:

(1) "Governmental body" means the same as defined in § 21-8-402;

(2) "Public funds" means funds, moneys, receivables, grants, investments, instruments, real or personal property, or other assets, liabilities, equities, revenues, receipts, or disbursements belonging to, held by, or passed through a governmental body; and

(3)(A) Except as provided in subdivision (a)(3)(B) of this section, "public servant" means an individual who is:

- (i) Employed by a governmental body;
- (ii) Appointed to serve a governmental body; or
- (iii) Appointed to a governmental body.

(B) "Public servant" does not include:

- (i) An elected official; or
- (ii) A person appointed to an elective office.

(b) It is unlawful for a public servant or a governmental body to expend or permit the expenditure of public funds to support or oppose a ballot measure.

(c) This section does not:

(1) Limit the freedom of speech of a public servant or government body, including without limitation verbal expressions of views supporting or opposing a ballot measure;

(2) Prohibit a governmental body from expressing an opinion on a ballot measure through the passage of a resolution or proclamation;

(3) Prohibit the incidental use of state resources by a public servant, including without limitation travel costs, when speaking at an event in which a ballot measure is discussed if the subject matter of the speaking engagement is within the scope of the official duties and responsibilities of the public servant; or

(4) Prohibit the dissemination of public information at a speaking engagement and the incidental use of state resources in the analysis and preparation of that public information if the subject matter of the public information is within the scope of the official duties and responsibilities of the public servant.

(d)(1) Except as provided under subdivision (d)(2) of this section, a violation of this section is a Class A misdemeanor.

(2)(A) A public servant who is found guilty or pleads guilty or nolo contendere to a violation under this section is ineligible to hold any office, employment, or appointment in a governmental body.

(B) If a public servant is found guilty or pleads guilty or nolo contendere to a violation under this section while employed by a governmental body, he or she shall be removed from employment immediately.

History. Acts 2013, No. 312, § 2.

7-1-112. Destruction of a ballot or ballot materials — Prohibited — Definitions.

(a) A person shall not knowingly destroy a ballot or ballot-related material required to be preserved by law until after:

(1) Two (2) years after the certification of the results of the election; and

(2) The county board of election commissioners has entered an order, created a record to be maintained, and filed the order for destruction of the ballot or ballot-related material.

(b)(1) As used in this section, “ballot or ballot-related material” means a ballot or other form that is:

(A) Provided to a person representing himself or herself as the voter or his or her agent by a county clerk, member of a county board of election commissioners, or poll worker; and

(B) Returned by the person representing himself or herself as a voter or his or her agent for the purpose of voting in an election.

(2) “Ballot or ballot-related material” includes without limitation:

(A) A ballot that has been completed, cast, abandoned, or spoiled;

(B) A ballot stub or certificate from a ballot that has been completed, cast, abandoned, or spoiled;

(C) A voter statement that has been submitted to the county clerk;

(D) An envelope that contains a ballot;

(E) An affidavit provided to the county clerk;

(F) An absentee ballot list maintained under § 7-5-416;

(G) An absentee ballot application; and

(H) A list of applications for an absentee ballot under § 7-5-408.

(c) A person who is convicted under this section is guilty of an unclassified felony and shall:

(1) Be sentenced to a term of no less than one (1) year and no more than six (6) years; and

(2) Pay a fine of up to ten thousand dollars (\$10,000).

History. Acts 2013, No. 1261, § 1.

7-1-113. Vote centers.

(a)(1) The county board of election commissioners may establish one (1) or more vote centers in the county on election day under § 7-5-101.

(2) A vote center shall be available to any qualified elector registered to vote in the county who applies to the county board of election commissioners while the polls are open on election day.

(b) If a vote center is used in an election, the vote center shall have a secure electronic connection to provide voting information to and receive voting information from a computerized registration book maintained by the county clerk.

(c) Before a person is permitted to cast a vote at a vote center, the election official shall:

(1) Request that the voter identify himself or herself by stating his or her name, date of birth, and address in order to verify his or her registration and provide identification as required by law;

(2) Request that the voter provide identification as required by law;

(3) If the voter's name or address is not the same as that in the county voter registration record files, request that the voter complete an updated voter registration application form; and

(4)(A) Request that the voter sign a voting roster or voting request form that identifies his or her name, address, date of birth, and the date on the roster or form.

(B) The voting roster or voting request form shall contain the written or printed precinct number or ballot style of the voter.

(d) If the voter is not listed in the electronic county voter registration files, the election official is unable to verify the voter's registration, and the voter contends that he or she is eligible to vote, the voter shall be directed to his or her polling site for the voter's precinct to cast a ballot.

(e) The county board of election commissioners shall furnish a vote center location that adequately allows the voter to personally and secretly execute his or her vote.

(f) The Secretary of State shall promulgate rules for the vote centers that:

(1) Designate the electronic equipment to be used to verify the registration record of a voter;

(2) Establish standards for the maintenance and use of the equipment used at a vote center;

(3) Establish standards for the testing and backup of the equipment used at a vote center;

(4) Establish standards for a secure electronic connection between a vote center and a county's computerized registration book; and

(5) Establish procedures for the conduct of the vote center in the event that the electronic system fails.

History. Acts 2013, No. 1389, § 2; 2015, No. 1042, § 2.

7-1-114. [Repealed.]

7-1-115. Legislative review of new federal election guidance — Purpose — Definition.

(a) The purpose of this section is to ensure that the General Assembly has the opportunity to:

(1) Be informed of new federal election guidance; and

(2) Research the interaction between the new federal election guidance and state law.

(b) As used in this section, "new federal election guidance" means any federal directive, guidance, written communication, or verbal communication pertaining to elections, including without limitation:

(1) Time, place, and manner suggestions for carrying out an election in the state;

(2) A potential violation of federal election law; and

(3) Guidance issued by the United States Department of Justice or any other federal executive agency related to new or existing voting or election laws.

(c) All state and county election officials shall submit all new federal election guidance to the office of the Secretary of State within two (2) business days of receipt of the new federal election guidance.

(d) The office of the Secretary of State shall:

(1) Be the custodian of all new federal election guidance concerning an election conducted in the state;

(2) Prepare a report of all new federal election guidance to be submitted to the Joint Performance Review Committee by September 1 of each year; and

(3)(A) Compile from the following persons or entities all new federal election guidance concerning elections in the state given by the United States Department of Justice or any other federal executive agency:

(i) County boards of election commissioners;

(ii) County election officials;

(iii) The State Board of Election Commissioners; and

- (iv) Employees of the Secretary of State's office.
- (B) Information required under subdivision (d)(3)(A) of this section shall include new federal election guidance concerning elections transmitted through:
 - (i) Telephonic or electronic means;
 - (ii) The mail; or
 - (iii) In-person contact.

History. Acts 2023, No. 294, § 1.

7-1-116. Ranked choice voting prohibited.

- (a) As used in this section, “ranked choice voting” means a voting method that:
 - (1) Allows a voter to rank candidates for an office in order of preference; and
 - (2) Has the ballots cast tabulated in multiple rounds following the elimination of a candidate until a single candidate attains a majority vote.
- (b) Ranked choice voting shall not be used to determine the election or nomination of a candidate to any local, state, or federal elective office in this state.
- (c) An existing or future ordinance enacted or adopted by a county, a municipality, or other local governmental entity that is in conflict with this section is void.
- (d) This section shall not apply to a qualified elector who is entitled to vote by absentee ballot under the Uniformed and Overseas Citizens Absentee Voting Act, 52 U.S.C. § 20301 et seq., as it existed on January 1, 2025, or who votes as a member of the uniformed services of the United States or a citizen residing outside the United States under § 7-5-406.

History. Acts 2025, No. 829, § 1.

7-1-117. Voter registration lists provided to federal courts.

- (a) The Secretary of State may provide a voter registration list to a federal court for purposes of selecting jurors on the condition that the federal court jury coordinator provides notice to the Secretary of State regarding an ineligible or potentially ineligible voter under subsection (b) of this section.
 - (b)(1) The notice under subsection (a) of this section shall include a list of each person disqualified or potentially disqualified as a prospective juror from jury service due to the prospective juror's being:
 - (A) A noncitizen of the United States;
 - (B) Convicted of a felony;
 - (C) Deceased;
 - (D) A nonresident of this state; or
 - (E) A nonresident of the county.
 - (2) The notice under subsection (a) of this section shall include the following information for each disqualified juror:
 - (A) The full name of the disqualified juror;
 - (B) Current and prior addresses, if any;
 - (C) Telephone number, if available;
 - (D) Date of birth; and
 - (E) The reason the prospective juror was disqualified.
 - (3) The federal court jury coordinator may provide additional documentation showing the person's disqualification under this subsection with the notice submitted to the Secretary of State.
 - (c)(1) The notice prepared under subsection (a) of this section shall be sent to the Secretary of State according to the jury summons cycle used by the federal district court clerk .
 - (2) Subdivision (c)(1) of this section does not prevent the notice from being sent more frequently.
 - (3) The notice under subsection (a) of this section may be provided to the Secretary of State by:

- (A) Mail;
- (B) Facsimile transmission; or
- (C) Email.

(d)(1) After verifying that the person disqualified or potentially disqualified as a prospective juror is a registered voter but is ineligible to be a voter under Arkansas law, the Secretary of State shall forward the information to the county clerk where the voter is registered.

(2) The county clerk shall follow the procedures to remove the voter from the voter registration list under Arkansas Constitution, Amendment 51, § 11.

History. Acts 2025, No. 840, § 1.

CHAPTER 2

CONGRESSIONAL DISTRICTS

SECTION.

7-2-101. Number of congressional districts.
7-2-102. First Congressional District.
7-2-103. Second Congressional District.

SECTION.

7-2-104. Third Congressional District.
7-2-105. Fourth Congressional District.

7-2-101. Number of congressional districts.

The State of Arkansas is hereby divided into four (4) congressional districts, provided that the members of the United States House of Representatives presently serving from each of the existing congressional districts of this state shall continue to serve until the expiration of their current terms, and successor congressmen shall be elected from the congressional districts as established in this subchapter. It is the intention of this subchapter to provide for congressional districts of substantially equal population in order to comply with the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

History. Acts 1991, No. 1220, § 1; 2001, No. 1840, § 1.

7-2-102. First Congressional District.

(a) The First Congressional District shall be composed of:

(1) The counties of Arkansas, Baxter, Boone, Chicot, Clay, Craighead, Crittenden, Cross, Desha, Fulton, Greene, Independence, Izard, Jackson, Lawrence, Lee, Lincoln, Lonoke, Marion, Mississippi, Monroe, Phillips, Poinsett, Prairie, Randolph, St. Francis, Searcy, Sharp, Stone, and Woodruff; and

(2) The following voting precincts of Pulaski County as they existed on January 1, 2021:

- (A) 047;
- (B) 054; and
- (C) 055.

(b) The qualified electors residing in the counties and portions of Pulaski County listed under subsection (a) of this section shall elect one (1) member of the United States House of Representatives.

History. Acts 1991, No. 1220, § 2; 2001, No. 1840, § 2; 2011, No. 1241, § 1; 2011, No. 1242, § 1; 2021 (Extended Sess.), No. 1114, § 1; 2021 (Extended Sess.), No. 1116, § 1.

7-2-103. Second Congressional District.

(a) The Second Congressional District shall be composed of:

(1) The counties of Cleburne, Conway, Faulkner, Perry, Saline, Van Buren, and White; and
(2) The voting precincts of Pulaski County as they existed on January 1, 2021, that are not listed under § 7-2-102(a)(2) or § 7-2-105(a)(2).

(b) The qualified electors residing in the counties and portions of Pulaski County listed under subsection (a) of this section shall elect one (1) member of the United States House of Representatives.

History. Acts 1991, No. 1220, § 3; 2001, No. 1840, § 3; 2011, No. 1241, § 1; 2011, No. 1242, § 1; 2021 (Extended Sess.), No. 1114, § 1; 2021 (Extended Sess.), No. 1116, § 1.

7-2-104. Third Congressional District.

(a) The Third Congressional District shall be composed of:

(1) The counties of Benton, Carroll, Crawford, Madison, and Washington; and

(2) The voting precincts of Sebastian County as they existed on January 1, 2021, that are not listed under § 7-2-105(a)(3).

(b) The qualified electors residing in the counties and portions of Sebastian County listed under subsection (a) of this section shall elect one (1) member of the United States House of Representatives.

History. Acts 1991, No. 1220, § 4; 2001, No. 1840, § 4; 2011, No. 1241, § 1; 2011, No. 1242, § 1; 2021 (Extended Sess.), No. 1114, § 1; 2021 (Extended Sess.), No. 1116, § 1.

7-2-105. Fourth Congressional District.

(a) The Fourth Congressional District shall be composed of:

(1) The counties of Ashley, Bradley, Calhoun, Clark, Cleveland, Columbia, Dallas, Drew, Franklin, Garland, Grant, Hempstead, Hot Spring, Howard, Jefferson, Johnson, Lafayette, Little River, Logan, Miller, Montgomery, Nevada, Newton, Ouachita, Pike, Polk, Pope, Scott, Sevier, Union, and Yell;

(2) The following voting precincts of Pulaski County as they existed on January 1, 2021:

(A) 103;

(B) 104;

(C) 105;

(D) 124;

(E) 125;

(F) 126;

(G) 127;

(H) 131;

(I) 132;

(J) 133; and

(K) 135; and

(3) The following voting precincts of Sebastian County as they existed on January 1, 2021:

(A) 9-2K;

(B) 9-2L;

(C) 9-3A;

(D) 9-3B;

(E) 9-3C;

(F) 9-3D;

(G) 9-3E;

(H) 9-3F;

(I) 9-3G;

(J) 9-3H;

(K) 9-3I;

(L) 9-3J;

(M) 9-3K;

(N) 9-3L;

(O) 9-3M;

(P) 9-3N;

(Q) 9-3O;

(R) 9-3P; and

(S) 9-4F.

(b) The qualified electors residing in the counties and portions of Pulaski County and Sebastian County listed under subsection (a) of this section shall elect one (1) member of the United States House of Representatives.

History. Acts 1991, No. 1220, § 5; 2001, No. 1840, § 5; 2011, No. 1241, § 1; 2011, No. 1242, § 1; 2021 (Extended Sess.), No. 1114, § 1; 2021 (Extended Sess.), No. 1116, § 1.

CHAPTER 3

POLITICAL PARTIES

SECTION.

- 7-3-101. Duties and powers.
7-3-102. National committee members.
7-3-103. State committee members.
7-3-104. County committee members.
7-3-105. County convention delegates — Selection — Vacancy.
7-3-106. County convention — Primary election results —

SECTION.

- Selection of state and national delegates — Vacancies.
7-3-107. State convention — Declaration of election results and nominees — Certificates.
7-3-108. Subversive parties — New parties — Affidavit required — Penalty.

7-3-101. Duties and powers.

(a) Subject to the provisions of this act and other applicable laws of this state, organized political parties shall:

- (1) Prescribe the qualifications of their own membership;
- (2) Prescribe the qualifications for voting in their party primaries; and
- (3) Establish rules and procedures for their own organization.

(b)(1) An organized political party shall provide current copies of its adopted rules and procedures to the Secretary of State and the State Board of Election Commissioners.

(2) The obligation under subdivision (b)(1) of this section is a continuing obligation, and as rules and procedures are amended the political party shall continue to provide updated and current copies of the rules and procedures.

History. Acts 1969, No. 465, Art. 1, § 2; 1971, No. 261, § 2; A.S.A. 1947, § 3-102; Acts 1995, No. 901, § 1; 2019, No. 648, § 1.

7-3-102. National committee members.

The national committeeman and national committeewoman of political parties of this state shall be selected in the manner provided in the party rules of the respective political parties in this state.

History. Acts 1969, No. 465, Art. 1, § 2; A.S.A. 1947, § 3-102.

7-3-103. State committee members.

(a) The members of the state committee of political parties in this state shall be elected in accordance with respective political party rules.

(b) The term of office of the members of a state committee shall begin from their election, and they shall hold office until their successors are elected and qualified as provided under respective political party rules.

History. Acts 1969, No. 465, Art. 1, § 2; 1971, No. 261, § 2; A.S.A. 1947, § 3-102; Acts 2019, No. 648, § 2.

7-3-104. County committee members.

(a)(1) The members of the county committee of political parties from each election precinct, township, or city ward shall be elected in accordance with respective political party rules.

(2)(A) Except as provided in subdivision (a)(2)(B) of this section, the county board of election commissioners shall place on the ballot of the primary election the names of all persons seeking election as members of the county committee who have filed a written pledge to abide by the

results of the primary, if any is required by the rules of the political party, and who have paid the filing fee, if any, assessed therefor.

(B) When only one (1) candidate qualifies for a particular position on the county committee, the candidate's name shall be omitted from the ballot and the candidate shall be selected to serve in the particular position in the same manner as if the position had been voted upon at the primary election.

(3) If candidates for any county committee membership positions have not qualified as provided in this section within the time required for candidates to qualify, the county committee shall select candidates for committee members at any public meeting of the county committee held after the ticket has closed and prior to the time the primary election ballots are printed.

(4) Vacancies in the county committee shall be filled by the county committee.

(b)(1) Each person elected or appointed the county chair of the county committee of a political party shall notify the state chair of the respective party in writing within ten (10) days after his or her election or appointment.

(2)(A) It shall be the duty of the state party chair to keep on file with the Secretary of State a complete list of the county chairs and to notify promptly the Secretary of State of any death, resignation, disqualification, or vacancy in the office of any county chair and of the election of a new chair to fill vacancies thus created.

(B) Upon receipt of that information, the Secretary of State shall record the information, which shall be a public record.

History. Acts 1969, No. 465, Art. 1, § 3; A.S.A. 1947, § 3-103; Acts 1997, No. 444, § 1; 2005, No. 67, § 1; 2007, No. 222, § 2; 2019, No. 648, § 3.

7-3-105. County convention delegates — Selection — Vacancy.

(a) Delegates to the county convention shall be elected in accordance with respective political party rules.

(b) The county committee may place on the ballot of the primary election the names of all persons seeking election as a county convention delegate who shall have filed a written pledge to abide by the results of the primary, if any is required by the rules of the political party, and shall have paid the ballot fee, if any, assessed therefor.

(c) If candidates for county convention delegates have not qualified as herein provided within the time required for candidates to qualify, the county committee shall select candidates or delegates to the county convention at any public meeting of the committee held after the ticket has closed and prior to the time the primary election ballots are printed.

(d) Any vacancies existing or occurring in any of the positions of delegates after the primary election or elections have been held may be filled by the county committee.

History. Acts 1969, No. 465, Art. 1, § 4; A.S.A. 1947, § 3-104; Acts 2019, No. 648, § 4.

7-3-106. County convention — Primary election results — Selection of state and national delegates — Vacancies.

(a) Each political party holding a primary election shall at the time required in § 7-7-203(f) hold a county convention composed of delegates elected at the primary election in each township and ward.

(b)(1) The county convention shall receive from the county board of election commissioners a list of all nominated candidates for county, township, and municipal offices and the political party's county committee members and delegates and select delegates and alternates to all conventions held by the political party.

(2) However, the state committee of the political party may make rules for the election of delegates to the national convention of the political party, and the delegates may be elected before the primary elections.

(c)(1) Vacancies in the delegation to a convention arising from death, absence, resignation, or ineligibility shall be filled by the alternates in the order of their selection.

(2) In the absence of alternates, vacancies shall be filled by the remaining members of the delegation.

History. Acts 1969, No. 465, Art. 1, § 4; A.S.A. 1947, § 3-104; Acts 1997, No. 444, § 2.

7-3-107. State convention — Declaration of election results and nominees — Certificates.

After a primary election for the selection of nominees for United States, state, or district offices, each political party shall hold a state convention following the biennial general primary election for the purpose of:

(1) Receiving from the Secretary of State the certification of the election results for all United States, state, and district offices. Each party shall furnish to each successful nominee a certificate of nomination; and

(2) Performing other duties as may be required by party rules or by law.

History. Acts 1969, No. 465, Art. 1, § 2; 1971, No. 261, § 2; A.S.A. 1947, § 3-102; Acts 1997, No. 444, § 3.

7-3-108. Subversive parties — New parties — Affidavit required — Penalty.

(a) A political party shall not be recognized, qualified to participate, or permitted to have the names of its candidates printed on the ballot in any election in this state that:

(1) Either directly or indirectly advocates, teaches, justifies, aids, or abets the overthrow by force or violence, or by any unlawful means, of the government of the United States or this state, or an act of terrorism as described by § 5-54-205; or

(2) Directly or indirectly carries on, advocates, teaches, justifies, aids, or abets a program of sabotage, force and violence, sedition, or treason against the government of the United States or this state.

(b)(1) A newly organized political party shall not be recognized, qualified to participate, or permitted to have the names of its candidates printed on the ballot in any election in this state until it has filed an affidavit, by the officers of the party in this state under oath, that:

(A) It does not either directly or indirectly advocate, teach, justify, aid, or abet the overthrow by force or violence or by any unlawful means of the government of the United States or this state, or an act of terrorism as described by § 5-54-205; or

(B) It does not directly or indirectly carry on, advocate, teach, justify, aid, or abet a program of sabotage, force and violence, sedition, or treason against the government of the United States or this state.

(2) The affidavit shall be filed with the Secretary of State.

(c) Any person who violates any provision of this section shall be guilty of a Class A misdemeanor.

History. Acts 1969, No. 465, Art. 11, § 7; A.S.A. 1947, § 3-1107; Acts 1997, No. 444, § 4; 2001, No. 1553, § 18; 2005, No. 1994, § 484; 2013, No. 1126, § 2.

CHAPTER 4

BOARDS OF ELECTION COMMISSIONERS AND OTHER ELECTION OFFICERS

SUBCHAPTER.

1. GENERAL PROVISIONS.
2. VOLUNTEER DEPUTY VOTER REGISTRARS. [REPEALED.].
3. ELECTION INTEGRITY UNIT ACT OF 2023.

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 7-4-101. State Board of Election Commissioners — Members — Officers — Meetings.
- 7-4-102. County boards of election commissioners — Election of members — Oath.
- 7-4-103. Vacancy or disqualification of state or county chair.
- 7-4-104. Lists of county chairs — Notification of vacancies.
- 7-4-105. County board of election commissioners — Officers — Meetings.
- 7-4-106. Assistance of prosecuting attorney.
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7-4-101. State Board of Election Commissioners — Members — Officers — Meetings.

(a) The State Board of Election Commissioners shall be composed of the following seven (7) persons, with at least one (1) from each congressional district:

- (1) The Secretary of State;
- (2) One (1) person designated by the chair of the state Democratic Party;
- (3) One (1) person designated by the chair of the state Republican Party;
- (4) One (1) person to be chosen by the President Pro Tempore of the Senate;
- (5) One (1) person to be chosen by the Speaker of the House of Representatives; and
- (6) Two (2) persons to be chosen by the Governor, one (1) of whom shall be a county clerk and one (1) of whom shall have served for at least three (3) years as a county election commissioner.

(b) The Secretary of State shall serve as the Chair of the State Board of Election Commissioners and the Secretary of the State Board of Election Commissioners.

(c) Except for the Secretary of State and the county clerk, no member of the State Board of Election Commissioners shall be an elected public official.

(d)(1) The term on the State Board of Election Commissioners of the Secretary of State shall be concurrent with his or her term in office.

(2) The county clerk shall hold the office of county clerk when appointed to the State Board of Election Commissioners and shall be removed as a member of the State Board of Election Commissioners if not in office.

(3)(A) Members of the State Board of Election Commissioners appointed by the President Pro Tempore of the Senate and the Speaker of the House of Representatives shall be appointed for terms of two (2) years and shall continue to serve until successors have been appointed and taken the official oath.

(B) All other appointive members shall be appointed for terms of four (4) years and shall continue to serve until successors have been appointed and taken the official oath.

(4) No appointive member shall be appointed to serve more than two (2) consecutive full terms.

(5)(A) If a vacancy on the State Board of Election Commissioners occurs, a successor shall be appointed within thirty (30) days to serve the remainder of the unexpired term.

(B) The appointment shall be made by the official holding the office responsible for appointing the predecessor.

(e)(1) The State Board of Election Commissioners shall meet as needed upon call of the chair or upon written request to the chair of any four (4) members.

(2) A majority of the membership of the State Board of Election Commissioners shall constitute a quorum for conducting business.

(3) No sanctions shall be imposed without the affirmative vote of at least four (4) members of the State Board of Election Commissioners.

(4) A meeting of the State Board of Election Commissioners may be chaired and conducted by:

(A) The Chair of the State Board of Election Commissioners; or

(B)(i) A person designated by the Chair of the State Board of Election Commissioners to act as chair for the meeting.

(ii) If a person is designated by the Chair of the State Board of Election Commissioners under subdivision (e)(4)(B)(i) of this section:

(a) The designated person's presence shall count for a quorum to conduct business; and

(b) The designated person may vote in the meeting.

(f) The State Board of Election Commissioners shall have the authority to:

(1) Publish a candidate's election handbook, in conjunction with the office of the Secretary of State and the Arkansas Ethics Commission, which outlines in a readable and understandable format the legal obligations of a candidate and any other suggestions that might be helpful to a candidate in complying with state election law;

(2) Conduct statewide training for election officers and county election commissioners;

(3) Adopt all necessary rules regarding training referred to in subdivision (f)(2) of this section and develop procedures for monitoring attendance;

(4) Monitor all election law-related legislation;

(5) Formulate, adopt, and promulgate all necessary rules to assure even and consistent application of voter registration laws and fair and orderly election procedures;

(6)(A) Appoint at least one (1) certified election monitor to a county upon a signed, written request under oath filed with the State Board of Election Commissioners and a determination by the State Board of Election Commissioners that appointing a monitor is necessary.

(B) The State Board of Election Commissioners shall certify at least one (1) election monitor in each congressional district.

(C) Certified election monitors shall serve as observers for the purpose of reporting to the State Board of Election Commissioners on the conduct of the election.

(D) The State Board of Election Commissioners may allow for reasonable compensation for election monitors;

(7) Assist the county board of election commissioners in the performance of administrative duties of the election process if the State Board of Election Commissioners determines that assistance is necessary and appropriate;

(8)(A) Formulate, adopt, and promulgate all necessary rules to establish uniform and nondiscriminatory administrative complaint procedures consistent with the requirements of Title IV of the federal Help America Vote Act of 2002.

(B) The cost of compliance with Title IV of the federal Help America Vote Act of 2002 shall be paid from the fund established to comply with the federal Help America Vote Act of 2002;

(9) Investigate alleged violations, render findings, and impose disciplinary action according to § 7-4-120 for violations of election and voter registration laws, except as to § 7-1-103(a)(1)-(4), (6), and (7), and except for any matters relating to campaign finance and disclosure laws which the Arkansas Ethics Commission shall have the power and authority to enforce according to §§ 7-6-217 and 7-6-218;

(10) Examine and approve in accordance with §§ 7-5-503 and 7-5-606 the types of voting machines and electronic vote tabulating devices used in any election;

- (11) Administer reimbursement of election expenses to counties in accordance with § 7-7-201(a) for primary elections, statewide special elections, and nonpartisan general elections;
- (12) [Repealed.]
- (13) Conduct post-election audits under § 7-4-121;
- (14) Formulate, adopt, and promulgate rules to establish procedures for post-election audits conducted under § 7-4-121;
- (15) Consider an appeal filed to challenge a reduction in the number of polling sites in a county by a county board of election commissioners under § 7-5-101;
- (16) Formulate, adopt, and promulgate rules for governing the appeal of a county board of election commissioners' reduction in the number of polling sites in a county under § 7-5-101;
- (17) Develop a training program for poll watchers, including without limitation:
 - (A) Develop training materials, including on-line training materials concerning the duties, rights, and responsibilities of poll watchers; and
 - (B) Adopt and promulgate rules to establish procedures for training poll watchers; and
- (18) Conduct an election integrity review of election-related documents and records following each election cycle in the following odd-numbered year under § 7-4-124.
- (g) The Attorney General shall provide legal assistance to the State Board of Election Commissioners in answering questions regarding election laws.
- (h)(1) The State Board of Election Commissioners may appoint a Director of the State Board of Election Commissioners, who may hire a staff.
- (2) The director shall serve at the pleasure of the State Board of Election Commissioners.
- (3) The State Board of Election Commissioners shall set the personnel policies in accordance with the Regular Salary Procedures and Restrictions Act, §§ 19-4-1601 and 21-5-101, and the Uniform Classification and Compensation Act, § 21-5-201 et seq.

History. Acts 1969, No. 465, Art. 5, §§ 2, 3; 1977, No. 783, § 1; A.S.A. 1947, §§ 3-502, 3-503; Acts 1993, No. 1092, § 1; 1995, No. 349, § 3; 1995, No. 352, § 3; 1995, No. 741, § 1; 1995, No. 929, § 1; 1995, No. 940, § 1; 1995, No. 1217, § 5; 1997, No. 647, § 1; 1999, No. 997, § 1; 2001, No. 1174, § 1; 2003, No. 994, § 14; 2003, No. 1161, § 1; 2005, No. 1827, § 1; 2007, No. 559, § 1; 2009, No. 250, § 2; 2013, No. 977, § 1; 2013, No. 1110, § 2; 2013, No. 1456, § 1; 2019, No. 376, § 2; 2019, No. 888, § 1; 2021, No. 1063, § 1; 2023, No. 194, § 1; 2023, No. 444, § 2; 2023, No. 620, § 2.

7-4-102. County boards of election commissioners — Election of members — Oath.

- (a)(1)(A) In January of each odd-numbered year following the election of county committee officers, members of the county board of election commissioners shall be elected by their respective county committees.
- (B) A chair or secretary of a county political party shall not serve as a member of the county board of election commissioners.
- (2) The membership of the county board of election commissioners shall be as follows:
 - (A) Two (2) members elected by the county committee of the majority party; and
 - (B) One (1) member elected by the county committee of the minority party.
- (b)(1) Within ten (10) days of the date of selection to the county board of election commissioners, the chair or secretary of each county committee shall notify the county clerk in writing of the names and addresses of those selected to serve on the county board of election commissioners.
- (2)(A) Upon receipt of the notice under subdivision (b)(1) of this section, the county clerk shall notify each of the county election commissioners in writing within thirty (30) days of selection as a county election commissioner of the requirement to take and subscribe to the oath prescribed by the Arkansas Constitution.
- (B) A county election commissioner shall take the oath before:
 - (i) A justice or judge of the:
 - (a) Supreme Court;
 - (b) Court of Appeals;
 - (c) Circuit court;
 - (d) District court; or
 - (e) County court;

- (ii) The county clerk;
- (iii) The clerk of the circuit court; or
- (iv) A justice of the peace.

(3) The oath shall be filed in the office of the county clerk and the county clerk shall forward a duplicate to the Secretary of State.

(c) As soon as practicable following the election of members to the county board of election commissioners, the chair of the majority party of the county shall file with the county clerk and the Secretary of State a notice setting forth the names of the majority party's designated members of the county board of election commissioners, and the chair of the minority party shall file with the county clerk and the Secretary of State a notice setting forth the name of the minority party's member of the county board of election commissioners.

(d) The county board of election commissioners is deemed to consist of county officials, and its members shall be immune from tort liability pursuant to § 21-9-301.

(e) A member of the county board of election commissioners shall serve at the pleasure of his or her respective county committee, and a county committee may remove a member of the county board of election commissioners representing the county committee by majority vote of the county committee.

(f)(1)(A) A vacancy on the county board of election commissioners shall be filled by an appointment by the county chair of the appropriate party until an election is held by the county committee to elect a new member to fill the remainder of the term.

(B) If the county committee of the appropriate party does not have a county chair, the appointment under subdivision (f)(1)(A) of this section shall be made by the state chair of the appropriate party.

(2)(A) The county committee shall elect a new member within forty-five (45) days of a vacancy.

(B) If the county committee fails to elect a new member within forty-five (45) days of a vacancy, the state chair of the appropriate party shall appoint a new member to the county board of election commissioners.

(C) The state chair of the appropriate party may appoint the same person under subdivision (f)(1) of this section and subdivision (f)(2)(B) of this section.

History. Acts 1969, No. 465, Art. 5, § 2; A.S.A. 1947, No. 489, § 1; 2007, No. 559, § 2; 2011, No. 1056, § 1; 2019, § 3-502; Acts 1987, No. 248, § 4; 1989, No. 522, § 1; 1989, No. 966, § 1; 2021, No. 1051, § 1; 2023, No. 138, § 1; 2025, (3rd Ex. Sess.), No. 73, § 1; 1993, No. 843, § 1; 1995, No. 1014, § 1; 1997, No. 647, § 2; 1999, No. 1422, § 2; 2007, No. 463, § 1.

7-4-103. Vacancy or disqualification of state or county chair.

In the event of a vacancy or disqualification on the part of any state or county chair for either the majority party or a minority party, the state vice chair or county vice chair of the party in which the vacancy occurs shall act as county chair or state chair, as the case may be, for all of the purposes set out in § 7-4-101 and this section until a new county chair or state chair is selected by the parties.

History. Acts 1969, No. 465, Art. 5, §§ 2, 5; A.S.A. 1947, § 2; 2001, No. 794, § 1; 2011, No. 1056, § 2; 2013, No. §§ 3-502, 3-505; Acts 1987, No. 248, § 6; 1995, No. 1014, 1154, § 1.

7-4-104. Lists of county chairs — Notification of vacancies.

(a)(1) It shall be the duty of the majority and minority parties to keep on file with their respective state chair a complete list of all of their respective county chairs.

(2) It shall be the duty of the respective county chairs of both the majority and minority parties to keep on file with the Secretary of State a letter stating the name of the county chairs and to notify promptly the Secretary of State of the death, resignation, disqualification, or vacancy in the office of any county chair and of the election of a new chair to fill the vacancy thus created.

(b) It shall be the duty of the Secretary of State to keep the letters containing the names of the county chairs of the majority and minority parties as public records open at all times to public inspection.

History. Acts 1969, No. 465, Art. 5, § 5; A.S.A. 1947, § 3-505; Acts 1997, No. 647, § 3; 2001, No. 475, § 1.

7-4-105. County board of election commissioners — Officers — Meetings.

(a) The county board of election commissioners shall hold office until their successors are appointed and qualified. The commissioners shall meet no later than February 28 of odd-numbered years and shall organize themselves into a county board of election commissioners by electing one (1) member chair. Each commissioner shall have one (1) vote. Two (2) commissioners shall constitute a quorum, and the concurring votes of any two (2) shall decide questions before them unless otherwise provided by law.

(b) The chair of a county board of election commissioners shall notify all commissioners of all meetings. Any meeting of two (2) or more commissioners when official business is conducted shall be public and held pursuant to the Freedom of Information Act of 1967, § 25-19-101 et seq. The county board of election commissioners shall keep minutes of all meetings when official business is conducted, and the minutes shall be filed of record with the county clerk within the sooner of:

- (1) One hundred twenty (120) days of a meeting; or
- (2) Ten (10) days of the following meeting.

History. Acts 1969, No. 465, Art. 5, § 6; 1971, No. 261, § 9; A.S.A. 1947, § 3-506; Acts 1997, No. 647, § 4; 2015, No. 1042, § 3.

7-4-106. Assistance of prosecuting attorney.

(a) The county board of election commissioners, as created by this subchapter, may call upon the prosecuting attorney or his or her deputy for legal opinions, advice, or assistance in defending, commencing, or appealing civil actions at law and equity.

(b) The county or prosecuting attorney shall defend any civil lawsuit brought against the county board of election commissioners or its members if they are sued in regard to acts or omissions made during the course of their official duties.

History. Acts 1977, No. 527, § 1; A.S.A. 1947, § 3-506.1; Acts 1993, No. 780, § 1.

7-4-107. Duties of county board of election commissioners.

(a) The county board of election commissioners shall:

- (1) Ensure compliance with all legal requirements relating to the conduct of elections;
- (2) Exercise its duties consistent with the training and materials provided by the State Board of Election Commissioners;
- (3) Allocate a sufficient number of secure ballot boxes if voting is conducted using preprinted paper ballots for each polling site based on the number of votes cast at that polling site in the immediately preceding:
 - (A) Preferential primary election or general election if the election for which the secure ballot boxes are prepared is a preferential primary election or general election; and
 - (B) Special election if the election for which the secure ballot boxes are prepared is a special election;
- (4) Allocate sufficient components of a voting system approved for use under § 7-5-301 for each polling site based on the number of votes cast at that polling site in the immediately preceding:
 - (A) Preferential primary election or general election if the election for which the components are prepared is a preferential primary election or general election; and

(B) Special election if the election for which the components are prepared is a special election;

(5) Appoint the requisite number of election officials at each site where voters present themselves to vote to ensure that there is a sufficient number of election officials at each site, based upon the votes in the immediately preceding comparable election; and

(6)(A) Supervise all election officials.

(B) The supervision of election officials may be delegated by an affirmative vote of a quorum of all members of the county board of election commissioners.

(b)(1) The county board of election commissioners shall select and appoint a sufficient number of election officials for each polling site as provided by subsection (a) of this section and perform the other duties prescribed not less than twenty (20) days preceding an election.

(2)(A) Each polling site shall have a minimum of two (2) election clerks, one (1) election judge, and one (1) election sheriff.

(B) The election judge shall serve as the poll supervisor.

(C)(i) All election officials at a polling site shall have completed training under § 7-4-109 within the twelve (12) months before the election.

(ii) The minority party election commissioner shall have the option to designate a number of election officials equal to one (1) less than the majority of election officials at each polling site, with a minimum of two (2) election officials at each polling site.

(iii) In the event that the county party representatives on the county board of election commissioners fail to agree upon any election official to fill an election post allotted to the respective party twenty (20) days before the election, the county board of election commissioners shall appoint the remaining election officials.

(c) The county board of election commissioners may permit election officials to work half-day or split shifts at the polls at any election so long as the requisite number of election officials is always present.

History. Acts 1969, No. 465, Art. 5, § 6 and Art. 7, § 3; 1822, § 2; 2005, No. 894, § 1; 2005, No. 1827, § 2; 2007, 1971, No. 261, § 9; 1973, No. 157, § 6; A.S.A. 1947, No. 222, § 3; 2007, No. 559, § 3; 2013, No. 1457, § 1; 2019, §§ 3-506, 3-703; Acts 1993, No. 511, §§ 1, 2; 1997, No. 647, No. 966, § 2; 2021, No. 950, § 1.
§ 5; 1999, No. 1490, § 2; 2001, No. 562, § 1; 2001, No.

7-4-108. Absence of election officials — Filling vacancy.

(a) If any election official is absent at the time fixed for the opening of the polls, the election judge shall immediately notify the county board of election commissioners of the vacancy.

(b) If the county board of election commissioners does not timely appoint a new election official, and fewer than three (3) election officials are present at the opening of the polls, the election judge present shall appoint one (1) or more qualified persons to act as an election official until the county board of election commissioners appoints a new election official.

(c)(1) Except as provided in subdivision (c)(2) of this section, upon notification of the absent election official, at least one (1) member of the county board of election commissioners shall respond to the polling site and assist with the election until the new election official is appointed.

(2) If all three (3) of the members of the county board of election commissioners are assisting at other polling sites and the election judge does not timely appoint a qualified person, the other election officials present at the polling site shall appoint a qualified person to act as an election official until the county board of election commissioners appoints a new election official.

History. Acts 1969, No. 465, Art. 7, § 3; A.S.A. 1947, § 3-703; Acts 1997, No. 647, § 6; 2019, No. 966, § 3.

7-4-109. Qualifications of state and county commissioners, election officials, poll workers, and certified election monitors.

(a)(1) A member of the State Board of Election Commissioners, a county election commissioner, and an election official shall be a qualified elector of this state, able to read and write the

English language, and shall not have been found guilty or pleaded guilty or nolo contendere to the violation of an election law of this state.

(2) An election official, as defined in § 7-1-101, shall not be a candidate for an office to be filled at an election while serving as an election official.

(3) A member of the county board of election commissioners shall not be disqualified from serving as a member of the county board of election commissioners by the appearance on the ballot as a candidate for a position in his or her political party.

(4) A person shall be eligible to serve as an election official if the person is married to or related within the second degree of consanguinity to a candidate running for office in the election who is unopposed and the person is appointed to serve as an election official at a polling place or vote center designated to serve a geographic area with a population of less than one thousand (1,000) qualified electors.

(b)(1) A member of a county board of election commissioners shall be a resident of the county in which he or she serves at the time of his or her appointment or election.

(2)(A) An election official shall be a resident of the precinct in which he or she serves at the time of his or her appointment.

(B) However, if at the time of posting election officials the county board of election commissioners votes unanimously and certifies to the county clerk that it is impossible to obtain a qualified election official from any precinct in the county, another qualified citizen of the county may be designated to serve in the precinct.

(C) An election coordinator, deputy clerk, or person assigned by a county clerk to conduct early voting does not have to be a resident of the precinct or county in which he or she serves.

(c)(1) A person who is a paid employee of a political party or of a candidate for office on that county's ballot shall not be a member of a county board of election commissioners or an election official.

(2)(A) Except as provided in subdivision (c)(2)(B) of this section, a person serving on the county board of election commissioners shall not participate in the campaign of any candidate listed on a ballot seeking election in that county that falls under the county board of election commissioners' jurisdiction or authority.

(B)(i) A member of the county board of election commissioners shall not:

- (a) Manage a campaign;
- (b) Perform labor for a campaign;
- (c) Solicit on behalf of a candidate or campaign;
- (d) Pass out or place handbills, signs, or other literature concerning a candidate's campaign;
- (e) Assist a candidate's campaign at a rally or parade; or
- (f) Display candidate placards or signs on an automobile.

(ii) A member of the county board of election commissioners may:

- (a) Make a financial contribution to a candidate;
- (b) Attend a political party's state, district, or county meeting where a candidate or issue advocate speaks as a member of the audience; or
- (c) Participate in a political party convention.

(3) A person employed with a company that has a business dealing, contract, or pending contract with a county board of election commissioners to which he or she seeks appointment shall not be a candidate for the county board of election commissioners.

(d) A person shall not serve as an election official if:

(1) The person is married to or related within the second degree of consanguinity to a candidate running for office in the election; and

(2) Another person makes an objection to his or her service to the county board of election commissioners within ten (10) calendar days after posting the list of officials.

(e)(1) Prior to the regularly scheduled preferential primary election, each of the following shall attend election training coordinated by the State Board of Election Commissioners:

- (A) A member of the county board of election commissioners;
- (B) A county clerk or his or her designee;

- (C) A poll worker;
 - (D) A certified election monitor; and
 - (E) A county election coordinator.
- (2)(A) The State Board of Election Commissioners shall determine the method and amount of compensation for attending the training.
- (B) A person required to receive the training shall take and pass an examination of essential skills as determined by the State Board of Election Commissioners to receive compensation.
- (C) A person who passes an examination under subdivision (e)(2)(B) of this section shall receive a certificate of completion.
- (D) The State Board of Election Commissioners shall promulgate rules under the Arkansas Administrative Procedure Act, § 25-15-201 et seq., concerning the training requirements, materials, and examination of essential skills.
- (3) A deputy county clerk, employee of the county clerk, or other worker who will assist with early voting may be trained by the county clerk or his or her designee.
- (4)(A) A county board of election commissioners by a majority vote shall designate a person to attend the required training as a county election coordinator.
- (B) The State Board of Election Commissioners shall not provide training or compensation for attending training to a county election coordinator if the county election coordinator has not been designated to take the required training by a county board of election commissioners.
- (5)(A) The State Board of Election Commissioners shall identify at least one (1) person not employed by a county in any capacity each year, who shall receive the same training as a county election coordinator, and who shall receive compensation for attending training.
- (B) The person identified by the State Board of Election Commissioners may be a state employee being cross-trained, or a person who is not a state employee that the State Board of Election Commissioners considers qualified to become an acting county election coordinator as a special employee of the State Board of Election Commissioners.

History. Acts 1969, No. 465, Art. 5, § 4, and Art. 13, § 5; No. 1822, § 1; 2005, No. 894, § 1; 2005, No. 1827, § 3; 1971, No. 451, § 2; 1972 (1st Ex. Sess.), No. 41, § 2; A.S.A. 2007, No. 489, § 2; 2013, No. 1457, § 2; 2015, No. 1042, 1947, §§ 3-504, 3-1305; Acts 1987, No. 248, § 5; 1993, No. § 4; 2015, No. 1253, § 1; 2021, No. 1051, §§ 2-4; 2021, No. 715, §§ 1, 2; 1997, No. 647, § 7; 2001, No. 796, § 1; 2001, 1063, § 2; 2025, No. 284, § 1.

7-4-110. Oath of election officers.

(a) The election officials, before entering on their duties, shall take, before some person authorized by law to administer oaths, the following oath:

“I, _____, do swear that I will perform the duties of an election official of this election according to law and to the best of my abilities, and that I will studiously endeavor to prevent fraud, deceit, and abuse in conducting the same, and that I will not disclose how any voter shall have voted, unless required to do so as a witness in a judicial proceeding or a proceeding to contest an election.”

(b) In case there shall be no person present at the opening of any election authorized to administer oaths, it shall be lawful for the election officials to administer the oath to each other, and the election officials shall have full power and authority to administer all oaths that may be necessary in conducting any election.

History. Acts 1969, No. 465, Art. 7, § 4; A.S.A. 1947, § 3-704; Acts 1997, No. 647, § 8.

7-4-111. Compensation of board members.

(a) The State Board of Election Commissioners may receive expense reimbursement and stipends in accordance with § 25-16-901 et seq.

(b)(1) Each member of a county board of election commissioners shall receive for his or her services the sum of not less than one hundred twenty-five dollars (\$125) per public meeting when official business is conducted up to a total of ten (10) meetings for an election.

(2) For each meeting over the number of meetings per election under subdivision (b)(1) of this section, each member of a county board of election commissioners shall receive for his or her services the sum of not less than twenty-five dollars (\$25.00).

(c) Each member of a county board of election commissioners shall receive compensation in an amount not less than fifteen dollars (\$15.00) per hour worked outside of a public meeting subject to the following limitations:

(1) A member of a county board of election commissioners shall be paid for work conducted outside of a meeting for up to forty (40) hours per election; or

(2) The quorum court may set the amount of hours a member of a county board of election commissioners may be paid between zero (0) hours and forty (40) hours per election if:

(A) A county employee has been made available to act as an election coordinator, subject to the requirement that the employee comply with directives of the county board of election commissioners in matters related to an election; and

(B) The county employee has been accepted as an election coordinator by a vote of the county board of election commissioners.

(d) Each member of a county board of election commissioners shall file a claim with the county documenting tasks completed by the member and the time required to complete those tasks in order to receive hourly compensation.

(e) A member of a county board of election commissioners shall not be paid hourly compensation for tasks completed:

(1) More than one hundred (100) days prior to election day; or

(2) More than forty (40) days after election day.

History. Acts 1969, No. 465, Art. 5, § 7; A.S.A. 1947, No. 250, § 42; 1997, No. 647, § 9; 2005, No. 1677, § 2; § 3-507; Acts 1987, No. 403, § 1; 1995, No. 709, § 13; 1997, 2023, No. 356, § 1.

7-4-112. Compensation of election officials.

(a) Except as provided under subsection (c) of this section, an election official shall receive a minimum of the prevailing federal minimum wage for holding an election, or such greater amount as may be appropriated.

(b) Except as provided in subsection (c) of this section and in addition to compensation under subsection (a) of this section, each election official carrying election materials to and from the polling sites shall be allowed mileage at such rate as may be appropriated but not to exceed the rate prescribed for state employees in state travel rules.

(c)(1) An election official may work as a volunteer without pay or reimbursement as specified by the election official under this section if the election official signs an affidavit prescribed by the State Board of Election Commissioners stating that he or she does not wish to receive:

(A) Compensation for his or her work as an election official; or

(B) Reimbursement for mileage accrued in the course of his or her work as an election official.

(2) An election official may choose not to receive compensation or reimbursement, or both.

(3)(A) An election official who signs the affidavit indicating that he or she does not wish to be compensated or reimbursed shall not be compensated with money or anything of value for his or her work as an election official.

(B) Any paperwork or document required by a student election official's school to verify his or her assistance is not compensation or reimbursement under this section.

History. Acts 1969, No. 465, Art. 7, § 20; 1970 (1st Ex. Sess.), No. 11, § 1; 1983, No. 169, § 1; A.S.A. 1947, § 3-720; Acts 1997, No. 647, § 10; 2005, No. 67, § 2; 2019, No. 315, § 416; 2019, No. 539, § 1.

7-4-113. Record of funds and expenditures.

The county board of election commissioners of each county shall maintain a record of all funds the county board of election commissioners receives and all expenditures of the county board of election commissioners. These records shall be open to the public under the provisions of the Freedom of Information Act of 1967, § 25-19-101 et seq.

History. Acts 1987, No. 795, § 1.

7-4-114. Filling vacancy of an elected office — Effect.

Any member of a county board of election commissioners may be appointed to fill a vacancy in an elected office without vacating his or her seat on the county board of election commissioners. The member shall not be eligible for reelection to the office when the term expires.

History. Acts 1993, No. 760, § 1.

7-4-115. Legislative intent.

Due to the United States Eighth Circuit Court of Appeals ruling in *Jones v. Conway County, Arkansas*, 143 F.3d 417 (8th Cir. 1998), the status of county election commissioners as either county officials or state officials has become unclear. Because of this lack of clarity, there has been much confusion as to whether or not county election commissioners should have been or currently are immune from suit under the state's policy of tort immunity. It is the intent of the General Assembly to clarify the official status of county election commissioners. Prior to July 30, 1999, county election commissioners were state officials and, as such, were immune from suit pursuant to Arkansas Constitution, Article 5, § 20, and § 25-44-305. Upon July 30, 1999, county election commissioners are hereby deemed to be county officials and are immune from suit pursuant to § 21-9-301.

History. Acts 1999, No. 1422, § 1; 2019, No. 966, § 4; 2025, No. 419, § 81.

7-4-116. Election poll workers program for high school students.

(a)(1) The county board of election commissioners may conduct a special election day program for high school students in one (1) or more polling places designated by the county board of election commissioners.

(2) The high school students shall be selected by the county board of election commissioners in cooperation with the local high school principal, the local 4-H club, the local Scouting America club, the local Girl Scouts of the United States of America club, or any other local organization for youth designated by the county board of election commissioners.

(3)(A) A high school student selected for this program who has not reached his or her eighteenth birthday by the election day in which he or she is participating shall be called an election page.

(B) A high school student selected for this program who has reached his or her eighteenth birthday by the election day in which he or she is participating and meets the qualifications in § 7-4-109 may be an election official.

(b) The program shall:

(1) Be designed to stimulate the students' interest in elections and registering to vote;

(2) Provide assistance to the officers of election; and

(3) Assist in the safe entry and exit of elderly voters and voters with disabilities from the polling place.

(c)(1) In this volunteer position, each student selected as an election page shall:

(A) Be granted an additional excused absence from school while working as an election page;

(B) Serve under the direct supervision of the election officials at his or her assigned polling place; and

(C) Observe strict impartiality at all times.

(2) If an election page has attended training provided by the county board of election commissioners, the election page may assist election officials with checking in voters, assisting voters with instructions regarding the operation of voting machines, guarding the ballot box, and other related duties.

(3) An election page shall be in a volunteer position and shall not receive any compensation for performing his or her duties.

(4) Before beginning any duties, an election page shall take, before an election official, the following oath:

“I, _____, do swear that I will perform the duties of an election page of this election according to law and to the best of my abilities, and that I will studiously endeavor to prevent fraud, deceit, and abuse, and that I will not disclose how any voter shall have voted, unless required to do so as a witness in a judicial proceeding or a proceeding to contest an election.”

(d) Each student selected to be an election official shall:

(1) Take the oath of the election officials in § 7-4-110;

(2) Serve under the supervision of the appropriate county board of election commissioners;

(3) Observe strict impartiality at all times; and

(4) Be granted an additional excused absence from school while working as an election official.

History. Acts 2003, No. 242, § 1; 2005, No. 67, § 3; 2011, No. 1223, §§ 6, 7; 2013, No. 1322, §§ 5, 6; 2019, No. 328, § 1.

7-4-117. Election poll workers program for college students.

(a)(1) The county board of election commissioners may conduct an election day program for college students in one (1) or more polling places designated by the county board of election commissioners.

(2)(A) The college students shall be selected by the county board of election commissioners from any two-year or four-year college or university in the state.

(B) The county board of election commissioners shall work in cooperation with the student government associations of the colleges and universities in selecting the students for the program and conducting seminars concerning election procedures for students interested in the program.

(3)(A) A college student selected for this program who has not reached his or her eighteenth birthday by the election day in which he or she is participating shall be called an election page.

(B) A college student selected for this program who has reached his or her eighteenth birthday by the election day in which he or she is participating and meets the qualifications in § 7-4-109 shall be an election official.

(b) The program shall:

(1) Be designed to stimulate the students' interest in elections and in registering to vote;

(2) Provide assistance to the officers of the election; and

(3) Assist in the safe entry and exit of elderly voters and voters with disabilities from the polling place.

(c)(1) Each student selected as an election page shall:

(A) Serve under the direct supervision of the election officials at his or her assigned polling place; and

(B) Observe strict impartiality at all times.

(2) An election page may observe the electoral process and seek information from the election officers but shall not handle or touch ballots, voting machines, or any other official election materials or enter any voting booth.

(3) An election page shall be in a volunteer position and shall not receive any compensation for performing his or her duties.

(4) Before beginning any duties, an election page shall take, before an election official, the following oath:

“I, _____, do swear that I will perform the duties of an election page of this election according to law and to the best of my abilities, and that I will studiously endeavor to prevent fraud, deceit, and abuse, and that I will not disclose how any voter shall have voted unless required to do so as a witness in a judicial proceeding or a proceeding to contest an election.”

(d)(1) Each student selected to be an election official shall:

(A) Take the oath of the election officials in § 7-4-110;

(B) Serve under the supervision of the appropriate county board of election commissioners; and

(C) Observe strict impartiality at all times.

(2) A college student selected to be an election official shall be compensated according to § 7-4-112.

History. Acts 2003, No. 1153, § 1; 2005, No. 67, § 4.

7-4-118. [Repealed.]

Publisher's Notes. This section, concerning complaints of election law violations, was repealed by Acts 2015, No. 1253, § 2. The section was derived from Acts 2003, No. 1161, § 2; 2007, No. 559, § 4; 2013, No. 1126, § 3.

7-4-119. Disclosure required.

(a) A member of a county board of election commissioners shall report to the Secretary of State by January 31 of each calendar year any goods or services sold during the previous calendar year by himself or herself, his or her spouse, or any business in which the member or his or her spouse is an officer, director, or stockholder owning more than ten percent (10%) of the stock having a total annual value in excess of one thousand dollars (\$1,000) to an office, department, commission, council, board, bureau, committee, legislative body, agency, or other establishment of:

(1) The State of Arkansas;

(2) A county;

(3) A municipality; and

(4) A school district.

(b) The Secretary of State shall provide by rule for:

(1) A form for the report; and

(2) A procedure for the disclosure.

History. Acts 2011, No. 1216, § 1; 2013, No. 443, § 1.

7-4-120. Complaints of election law violations — Definitions.

(a)(1) Except as provided in subdivision (a)(2) of this section, the State Board of Election Commissioners may investigate alleged violations, render findings, institute corrective actions, and impose sanctions according to this subchapter for violations of election and voter registration laws.

(2) The State Board of Election Commissioners shall not investigate alleged violations, render findings, or impose sanctions concerning violations of:

(A) The provisions of § 7-1-103(a)(1)-(4), (6), and (7); or

(B) Campaign finance and disclosure laws for which the Arkansas Ethics Commission has the duty and authority to investigate and sanction under §§ 7-6-217 and 7-6-218.

(b)(1)(A) A complaint shall be filed with the State Board of Election Commissioners in writing no earlier than forty-nine (49) days prior to the date of the election and no later than forty-nine (49) days following the date of the election of the following:

(i) An alleged violation of the laws regarding elections including without limitation:

(a) Voter registration;

(b) Requests for absentee ballots;

(c) Delivery of absentee ballots;

- (d) Casting of ballots;
- (e) Ballot tabulation;
- (f) Certification of election results;
- (g) Administration of an election;
- (h) Election processes; or
- (i) Conduct of an election; or
- (ii) The election or elections affected or associated with the complaint.

(B) A complaint may be referred to the State Board of Election Commissioners by the Joint Performance Review Committee and is not subject to the filing requirement under this subdivision (b)(1).

(C) The State Board of Election Commissioners may file a complaint within three (3) years following the alleged violation of an election law or voter registration law if the alleged violation:

- (i) Relates to a felony criminal provision of election law;
 - (ii) Relates to a felony criminal provision of voter registration law; or
 - (iii) Affects the accuracy of a certified election result.
- (2)(A) A complaint shall be signed by the complainant under penalty of perjury.

(B) If a complaint is referred to the State Board of Election Commissioners by the Joint Performance Review Committee under subdivision (b)(1)(C) of this section, the Chair of the Joint Performance Review Committee shall be the complainant.

(3)(A) A complaint shall clearly:

- (i) Describe the alleged violation, including without limitation the supporting facts for the violation or incident;
- (ii) State when or the approximate date that the alleged violation or incident occurred; and
- (iii) State the location or locations of the alleged violation or incident.

(B)(i) The complaint may specify, suggest, or recommend a desired resolution to the complaint.

(ii) If the complaint is timely filed but does not specify the desired resolution of the complainant:

- (a) The State Board of Election Commissioners may:
 - (1) Notify the complainant that a desired resolution is not specified;
 - (2) Inform the complainant that other formal or informal resolutions may be appropriate; and

(3) Inform the complainant that the State Board of Election Commissioners may initiate a lawful resolution, correction, or remedy as the State Board of Election Commissioners deems appropriate; and

(b) The complainant may file the additional information within ten (10) days from mailing of the notice.

(4)(A) If a complaint alleges a violation of election law or voter registration law but does not otherwise meet the requirements of this section, the complainant shall be notified that the complaint may be corrected by amendment in writing within ten (10) days and that a failure to make the necessary corrections shall result in the complaint's being dismissed.

(B) If a complaint is dismissed because it does not meet the requirements of this section, the State Board of Election Commissioners shall notify the complainant of the fact of dismissal.

(5) A person shall not file a frivolous complaint.

(6) If the complaint is referred to the State Board of Election Commissioners by the Joint Performance Review Committee, the complaint shall include:

(A) A report of the findings of the Joint Performance Review Committee, including any hearing testimony the Joint Performance Review Committee believes relevant; and

(B) The recommendations of the Joint Performance Review Committee that may be submitted to the State Board of Election Commissioners, including without limitation a recommendation:

- (i) For a letter of reprimand to an election official;

(ii) For decertification as an election official in the next election cycle, including all associated primary and runoff elections;

(iii) That the State Board of Election Commissioners take over and conduct elections in the county in question if the violation or violations are considered severe by the Joint Performance Review Committee and would threaten a county's ability to conduct an equal, free, and impartial election, or the appearance of an equal, free, and impartial election; or

(iv) That state turnback funds be withheld from a county when the State Board of Election Commissioners conducts an election on behalf of a county and the county refuses to reimburse the State Board of Election Commissioners for expenses incurred.

(7)(A) If a complaint is filed as required by this section, the State Board of Election Commissioners shall investigate the alleged violation and notify the Election Integrity Unit to enter the complaint into the Arkansas Election Integrity Database.

(B) If at the conclusion of the investigation, the State Board of Election Commissioners finds that there is probable cause to believe there has been a criminal violation of the voter registration laws or election laws, the State Board of Election Commissioners may forward the complaint to the prosecuting attorney for criminal prosecution.

(C) Immediately upon beginning an investigation under this section, the State Board of Election Commissioners shall notify the person or persons under investigation of the fact of the investigation and the nature of the investigation.

(D) If at the conclusion of the investigation, the State Board of Election Commissioners finds that there is probable cause to believe there has been a violation of the voter registration laws or election laws, and the complaint has not been referred to the prosecuting attorney, the State Board of Election Commissioners may set a public hearing.

(c)(1) The State Board of Election Commissioners shall maintain a record of all inquiries, investigations, and proceedings.

(2) Except as provided in subdivisions (c)(3) and (4) of this section, records under this section are exempt from disclosure under the Freedom of Information Act of 1967, § 25-19-101 et seq., until:

(A) Thirty (30) days after the final adjudication at which the State Board of Election Commissioners makes a final decision, at which point the records of the investigation upon which the State Board of Election Commissioners has based its findings shall be opened to public inspection; or

(B) A public hearing before the State Board of Election Commissioners is set.

(3) The State Board of Election Commissioners may disclose, through its members or staff, otherwise confidential information to proper law enforcement officers, agencies, and other entities as is necessary to conduct the investigation under this section.

(4) Election monitor reports generated by a state election monitor are not subject to the exemptions under this subsection.

(d)(1) If the State Board of Election Commissioners determines that the complaint can be addressed through documentary submissions and without a formal investigation, the State Board of Election Commissioners may address the complaint with documentary submissions.

(2) If the State Board of Election Commissioners determines that an investigation is necessary, the State Board of Election Commissioners shall provide to the person who is the subject of the complaint:

(A) A copy of the complaint if a copy has not previously been provided; and

(B) Instructions for filing a response.

(3) The State Board of Election Commissioners may:

(A) Administer oaths for the purpose of taking sworn statements from witnesses in the course of its investigations;

(B) Request the person who is the subject of the complaint to answer allegations in writing, produce relevant evidence, or appear in person before the State Board of Election Commissioners; and

(C)(i) Subpoena any person or the books, records, or other documents relevant to the investigation or inquiry.

(ii) The subpoena may direct any law enforcement officer of the county concerned or the Director of the Division of Arkansas State Police to seize any public record that is withheld.

(4) The State Board of Election Commissioners shall:

(A) Provide the person subpoenaed with reasonable notice of the subpoena and an opportunity to respond; and

(B) Advise the complainant and the person who is the subject of the complaint in writing of the final action of the State Board of Election Commissioners.

(e) If the State Board of Election Commissioners finds a violation of the voter registration laws or election laws under its jurisdiction, the State Board of Election Commissioners may:

(1) Issue a public letter of caution, warning, reprimand, or a conditional warning of consequences that shall be imposed if corrective action is not completed;

(2) Impose a fine of no less than twenty-five dollars (\$25.00) and no more than one thousand dollars (\$1,000) for a negligent, knowing, or intentional violation;

(3) Report the information obtained in the investigation and the findings and determinations of the State Board of Election Commissioners to the appropriate law enforcement authorities;

(4) Make expenditures and order payment of the costs of the investigation and hearing;

(5) Decertify an election official from appointment as an election official;

(6) Issue an order that the State Board of Election Commissioners shall take over and conduct elections in the county in question if the violation is considered severe by the State Board of Election Commissioners and would threaten either a county's ability to conduct an equal, free, and impartial election, or the appearance of an equal, free, and impartial election; or

(7) Combine any two (2) or more of the actions or sanctions authorized under this section.

(f) The State Board of Election Commissioners shall advise the complainant and the person who is the subject of the complaint of the:

(1) Finding of the State Board of Election Commissioners;

(2) Final action taken and sanctions issued by the State Board of Election Commissioners against a person associated with the complaint and a response thereto; and

(3) Reasons for the findings, final actions, and sanctions.

(g) The State Board of Election Commissioners shall maintain a record of all inquiries, investigations, and proceedings.

(h)(1) The State Board of Election Commissioners shall adopt rules concerning the imposition of fines under this section.

(2) If a person fails to pay the fines ordered by the State Board of Election Commissioners under this section, the State Board of Election Commissioners may obtain a judgment from a court for the amount of the fine imposed by filing suit in the:

(A) Pulaski County Circuit Court;

(B) Circuit court of the county in which the person resides; or

(C) Small claims division of a district court.

(3) The fee for filing of a suit in a circuit or district court in this state shall be waived for the State Board of Election Commissioners.

(4) All moneys received by the State Board of Election Commissioners in payment of fines shall be deposited into the State Treasury as general revenues.

(i)(1) The State Board of Election Commissioners shall conclude its investigation and take its final action under this section within one hundred eighty-two (182) days of the final deadline to file a complaint for the election.

(2) The State Board of Election Commissioners shall announce its final action as a final administrative decision.

(3) If the State Board of Election Commissioners fails to take its final action within one hundred eighty-two (182) days following the deadline to file a complaint, the final administrative action shall be effective within one hundred eighty-two (182) days following the deadline to file a complaint.

(4) If the State Board of Election Commissioners makes its offer of settlement and the offer is rejected under this section, the State Board of Election Commissioners may conduct a hearing and shall take final action under this section within two hundred forty-five (245) days.

(j) A final action of the State Board of Election Commissioners under this section is an adjudication for purposes of judicial review under § 25-15-212.

(k) As used in this section:

(1) “Election laws” means the United States Constitution, the Arkansas Constitution, and the statutes, final court decisions of general applicability, and rules of the United States and the State of Arkansas concerning elections conducted by county boards of election commissioners and the rules promulgated by the State Board of Election Commissioners under § 7-4-101 concerning elections conducted by county boards of election commissioners;

(2) “Frivolous” means clearly lacking any basis in fact or law; and

(3) “Voter registration laws” means those laws under the United States Constitution, the Arkansas Constitution, and the statutes, final court decisions, and rules promulgated by the United States and the State of Arkansas concerning voter registration laws.

History. Acts 2015, No. 1253, § 3; 2017, No. 247, § 1; §§ 1-3; 2023, No. 544, § 2; 2023, No. 620 § 3; 2025, No. 2021, No. 756, § 2; 2021, No. 974, §§ 3, 4; 2023, No. 295, 279, §§ 1–5.

7-4-121. Election audits.

(a)(1) The State Board of Election Commissioners shall audit the results of each preferential primary election and general election to ensure the integrity and accuracy of the voting process.

(2) When conducting a post-election audit of the election results, the State Board of Election Commissioners shall:

(A)(i) Except as otherwise provided in subdivision (a)(2)(A)(ii) of this section, select by lot the counties, polling sites, early voting locations, and vote centers to be audited.

(ii) If a county in the immediately preceding preferential primary election or general election is found to have less than one hundred percent (100%) accuracy in the State Board of Election Commissioners’ audit, the county shall be chosen for audit in the subsequent preferential primary election or general election;

(B) Select a sufficient number of early voting locations, polling sites, and vote centers to obtain a meaningful sample;

(C) Select the counties to be audited no less than sixty (60) days following the date of the general election;

(D) Conduct the audit by using the voter-verified paper audit trail;

(E)(i) Compile a report detailing the findings of this audit.

(ii) The report filed under this subdivision (a)(2)(E):

(a) Is not a recount;

(b) Has no legal effect on the outcome of any election subject to the audit; and

(c) Shall be made public and disseminated to any person upon request; and

(F) Securely maintain any county election records obtained for the purpose of conducting an audit.

(3) The Secretary of State may, at his or her discretion, provide additional staff to assist in conducting any audit under this subsection.

(b)(1) The county clerk, county board of election commissioners, or other county election official for a county that is audited under this section shall provide documents, records, or access to election equipment requested by the State Board of Election Commissioners to the State Board of Election Commissioners upon request.

(2) If the county clerk, county board of election commissioners, or other county election official of the county willfully fails to comply with a request made under subdivision (b)(1) of this section, and the State Board of Election Commissioners is not able to obtain the requested information through other means, the State Board of Election Commissioners may:

(A) Find that the county in violation of subdivision (b)(1) of this section has forfeited reimbursement of state-funded election expenses for a period of up to two (2) years; and

(B) Elect to withhold reimbursement of state-funded election expenses to the county for a period of up to two (2) years.

(c)(1) An audit shall be performed by the State Board of Election Commissioners of the voter registration data to ensure voter registration data is accurate and up to date.

(2) The audit shall be performed annually by December 31.

(3) The results of the audit shall be made publicly available on the State Board of Election Commissioners' website.

History. Acts 2019, No. 888, § 2; 2023, No. 441, § 13; 2023, No. 620, § 4; 2025, No. 280, § 1.

7-4-122. County employees detailed as election official.

(a) A county employee detailed as an election official shall comply with directives of the county board of election commissioners in matters related to an election.

(b) A county board of election commissioners may assign to other election officials the supervision of election officials by an affirmative vote of a quorum of all members of the county board of election commissioners.

(c) A county board of election commissioners may not change a duty delegated to a county employee if that duty is expressly governed by state or federal law.

History. Acts 2021, No. 950, § 2.

7-4-123. Use of election expenses appropriation — Transfer of funds.

(a) Funds appropriated for election expenses may be used to cover the expenses of the State Board of Election Commissioners and any county board of election commissioners to conduct:

(1) Preferential primary elections;

(2) General primary elections;

(3) Special primary elections;

(4) Nonpartisan general elections;

(5) Statewide special elections;

(6) All training which the State Board of Election Commissioners is required by law to provide;

(7) The development, publication, hosting of training material online, or dissemination of materials related to a training which the State Board of Election Commissioners is required by law to provide; and

(8) Election monitoring, including without limitation the compensation for certified election monitors of the State Board of Election Commissioners.

(b) The Director of the State Board of Election Commissioners shall certify to the Chief Fiscal Officer of the State the amount needed to pay the expenses of the election if:

(1) The State Board of Election Commissioners is required to pay the expenses for any state-supported election in subsection (a) of this section; and

(2) Funds are not available to pay for such elections.

(c)(1) Upon the approval of the Chief Fiscal Officer of the State, the amount certified by the director under subsection (b) of this section shall be transferred from the Budget Stabilization Trust Fund to the Miscellaneous Agencies Fund Account for the benefit of the State Board of Election Commissioners.

(2) All unused funds transferred under subdivision (c)(1) of this section shall be transferred back to the Budget Stabilization Trust Fund at the end of each fiscal year.

(3) The Chief Fiscal Officer of the State shall initiate the necessary transfer documents to reflect all such transfers in the fiscal records of the:

(A) Auditor of State;

(B) Treasurer of State; and

(C) Chief Fiscal Officer of the State.

History. Acts 2023, No. 491, § 7; 2025, No. 281, § 1.

7-4-124. Election integrity review.

(a)(1) The State Board of Election Commissioners may conduct an election integrity review of election-related documents and records following each election cycle in the odd-numbered years following an election.

(2) The counties to be selected to participate in the election integrity review shall be selected by:

(A) Random selection in a public meeting of the board; or

(B) Designation by a two-thirds ($\frac{2}{3}$) vote of the board if information obtained through the complaint process or by a certified election monitor indicates that a substantial violation of election or voter registration laws may have occurred in that county.

(3)(A) The random selection of counties under subdivision (a)(2)(A) of this section shall be conducted in a public meeting.

(B) The board shall establish the number of counties to be reviewed based on the available resources of the board.

(C) If a county was reviewed under this section, that county will not be subject to a subsequent review under this section for a period of four (4) years.

(b)(1) When conducting the election integrity review, the board may:

(A) Obtain and review any election or voter registration record; and

(B) Conduct interviews with election officials, elected officials, or others.

(2) The board may engage in the proactive review of voter registration documents to the extent practical based on agency resources in order to identify:

(A) Errors in the voter registration records; and

(B) Fraudulent activity reflected in the voter registration records.

(3) The board may engage in the proactive review of absentee voting documents in order to identify violations of law including but not limited to the following:

(A) Fraudulent applications for an absentee ballot;

(B) Fraudulent completion of an absentee ballot voter statement;

(C) Fraudulent return of an absentee ballot;

(D) Unlawful influence of an absentee voter by a third party; and

(E) Failure to comply with the statutory requirement regarding the sending and receiving of absentee ballots.

(4) The board may engage in the proactive review of other documents related to the election to verify the accuracy and integrity of the certified election results.

(c)(1) The board shall adopt a report that describes the finding of the review no later than December 31 of the year in which the review is conducted.

(2) The board shall deliver a copy of the report to the:

(A) Attorney General's office; and

(B) Joint Performance Review Committee.

(d) If the election integrity review indicates that a violation of election law has occurred that is not a felony criminal violation and that does not affect the accuracy of a certified election result, the board may:

(1) Compel an election official who is indicated as having violated an election or voter registration law to attend supplemental training to address the violation;

(2) Notify the person or entity who appointed the official of the information obtained by the board; or

(3) Issue a letter of instruction.

(e) If the election integrity review indicates that a violation of election law has occurred that is a felony criminal violation or that affects the accuracy of a certified election result, the board may:

(1) Initiate a complaint under § 7-4-120; or

(2) Refer the matter to the appropriate law enforcement authorities.

(f) If a county official refuses to provide records requested to conduct a review under this section, the board may consider the failure to provide documents as an indication that a criminal

election law violation has occurred authorizing the filing of a complaint under § 7-4-120 more than forty-nine (49) days after the election.

History. Acts 2023, No. 620, § 5; 2025, No. 279, § 6.

SUBCHAPTER 2 — VOLUNTEER DEPUTY VOTER REGISTRARS

SECTION.

7-4-201 — 7-4-211. [Repealed.]

7-4-201 — 7-4-211. [Repealed.]

Publisher's Notes. This subchapter, concerning volunteer deputy voter registrars, was repealed by identical Acts 1995, Nos. 926 and 942, § 1. The subchapter was derived from the following sources:

7-4-201. Acts 1987, No. 799, §§ 1, 2, 4.
7-4-202. Acts 1987, No. 799, § 3.
7-4-203. Acts 1987, No. 799, § 8.
7-4-204. Acts 1987, No. 799, §§ 4, 5.

7-4-205. Acts 1987, No. 799, § 4.
7-4-206. Acts 1987, No. 799, § 6.
7-4-207. Acts 1987, No. 799, §§ 9, 11; 1993, No. 1214, § 1.
7-4-208. Acts 1987, No. 799, §§ 7, 8.
7-4-209. Acts 1987, No. 799, §§ 10, 13.
7-4-210. Acts 1987, No. 799, § 12.
7-4-211. Acts 1989, No. 539, § 1.

SUBCHAPTER 3 — ELECTION INTEGRITY UNIT ACT OF 2023

SECTION.

7-4-301. Title.
7-4-302. Election Integrity Unit.
7-4-303. Definitions.

SECTION.

7-4-304. Duties of Election Integrity Unit.
7-4-305. Election law violation — Hotline.
7-4-306. Civil actions by Attorney General.

7-4-301. Title.

This subchapter shall be known and cited as the “Election Integrity Unit Act of 2023”.

History. Acts 2023, No. 544, § 3.

7-4-302. Election Integrity Unit.

- (a) There is created within the Attorney General's office the Election Integrity Unit.
- (b) The purpose of the Election Integrity Unit is to aid the Secretary of State and the State Board of Election Commissioners in the completion of their duties related to the investigation of election crimes and the security of elections.
- (c) The director of the Election Integrity Unit shall be known as the “Director of the Election Integrity Unit” and shall be appointed by the Attorney General.
- (d) The Attorney General may also appoint staff to ensure the efficient operation of the Election Integrity Unit, including without limitation:
 - (1) Assistants;
 - (2) Nonsworn investigators;
 - (3) Professional staff; and
 - (4) Clerical staff.
- (e) The Election Integrity Unit shall be based in Little Rock, Arkansas.

History. Acts 2023, No. 544, § 3.

7-4-303. Definitions.

As used in this subchapter:

- (1) “Election laws” means the United States Constitution, the Arkansas Constitution, and the statutes, final court decisions of general applicability, and rules of the United States and the State of Arkansas concerning elections conducted by county boards of election commissioners and the rules promulgated by the State Board of Election Commissioners under § 7-4-101 concerning elections conducted by county boards of election commissioners; and

(2) “Voter registration laws” means those laws under the United States Constitution, the Arkansas Constitution, and the statutes, final court decisions, and rules promulgated by the United States and the State of Arkansas concerning voter registration laws.

History. Acts 2023, No. 544, § 3.

7-4-304. Duties of Election Integrity Unit.

(a) The Election Integrity Unit shall establish the Arkansas Election Integrity Database that shall be maintained by the Election Integrity Unit, with secure access provided to the Secretary of State and the State Board of Election Commissioners.

(b) The Election Integrity Unit shall:

(1) Track all alleged violations, complaints, and investigations in the Arkansas Election Integrity Database;

(2) Oversee the Attorney General’s election law violations hotline under § 7-4-305;

(3) Respond to notifications or complaints generated by election officials or any other person alleging a violation of voter registration laws or election laws;

(4) Refer all notifications of complaints to the State Board of Election Commissioners for investigation of any potential civil or criminal acts related to a violation of election law and violations concerning election security reported under § 7-4-120 or this subchapter;

(5) Institute civil proceedings for the purpose of enforcing the provisions of this chapter and as specifically enumerated in § 7-4-306;

(6) Receive sworn statements and issue subpoenas to compel the production of records and other documents pursuant to § 25-16-705; and

(7) Enforce the provisions of this subchapter and perform such other functions as may be incidental to the powers and duties set forth in this subchapter.

(c) If during the course of an investigation, the State Board of Election Commissioners determines that there may be a criminal violation of voter registration laws or election laws, the findings of the investigation:

(1)(A) May be turned over to the appropriate prosecutorial agency for criminal prosecution.

(B) A prosecuting attorney having jurisdiction over a violation of voter registration laws or election laws may designate an attorney employed by the Attorney General’s office as a special deputy prosecutor to prosecute any charges related to a violation of voter registration laws or election laws or any other charges that may arise from the same factual allegations or may be properly joined under state law.

(C)(i) Under Arkansas Constitution, Amendment 80, § 20, and § 16-21-103, only a prosecuting attorney has the duty and authority to commence and prosecute any criminal action under state law.

(ii) A special deputy prosecuting attorney’s power to prosecute a criminal action under this section is derivative from the prosecuting attorney; and

(2) Shall be heard by the State Board of Election Commissioners if the potential violation is a civil violation.

(d) This subchapter does not limit the jurisdiction of any other state entity empowered by law to investigate, act upon, or dispose of alleged violations of state voter registration and election laws.

(e)(1) By August 1 of each year, the State Board of Election Commissioners shall submit a report of all closed investigations of the previous calendar year to the:

(A) Governor;

(B) Attorney General; and

(C) Joint Performance Review Committee.

(2) The report required under subdivision (e)(1) of this section shall:

(A) Provide a summary of information on each closed investigation of an alleged violation of election laws conducted during the prior calendar year;

(B) Include the total number of:

- (i) Complaints received;
- (ii) Independent investigations initiated; and
- (iii) Number of complaints referred for criminal prosecution; and
- (C) The current status of any resulting criminal case.

History. Acts 2023, No. 544, § 3.

7-4-305. Election law violation — Hotline.

(a)(1) The Attorney General shall establish and publish procedures to receive complaints concerning violations of election law.

(2) The procedures shall include the operation of a toll-free hotline and may include procedures to receive written complaints through the mail, email, or fax.

(3) Knowingly filing a false claim of a violation of election law is a Class A misdemeanor punishable under § 7-1-103(c).

(b)(1) The State Board of Election Commissioners shall report all complaints received through the election law violation hotline to the Joint Performance Review Committee in the report required under § 7-4-304.

(2) The report may contain preliminary findings by the State Board of Election Commissioners as to the validity of the complaint if the full investigation is not complete.

History. Acts 2023, No. 544, § 3.

7-4-306. Civil actions by Attorney General.

(a) Whenever the Attorney General has reason to believe that a person or entity is engaging, has engaged, or is about to engage in any act or practice declared unlawful by § 7-1-103 or § 7-1-104, the Attorney General may bring an action in the name of the state against that person or entity.

(b) An action under subsection (a) of this section may be brought to:

(1) Obtain a declaratory judgment that the act or practice violates the provisions of § 7-1-103 or § 7-1-104;

(2) Enjoin any act or practice that violates the provisions of § 7-1-103 or § 7-1-104 by issuance of a temporary restraining order or preliminary or permanent injunction, without bond, upon the giving of appropriate notice;

(3) Recover on behalf of the state and its agencies actual damages for loss incurred either directly or indirectly; and

(4) Recover civil penalties of at least one thousand dollars (\$1,000) per violation of § 7-1-103 or § 7-1-104, or any injunction, judgment issued or entered into under the provisions of § 7-1-103 or § 7-1-104, and reasonable expenses, investigative costs, and attorney's fees.

History. Acts 2023, No. 544, § 3.

CHAPTER 5

ELECTION PROCEDURE GENERALLY

SUBCHAPTER.

1. GENERAL PROVISIONS.
2. PREELECTION PROCEEDINGS.
3. CONDUCT OF ELECTIONS.
4. ABSENTEE VOTING.
5. VOTING MACHINES.
6. PAPER BALLOTS AND ELECTRONIC VOTE TABULATING DEVICES.
7. RETURNS AND CANVASS.
8. ELECTION CONTESTS.
9. VOTING AND ELECTIONS TRANSPARENCY ACT OF 2017.

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 7-5-101. Precinct boundaries, polling sites, and vote centers — Establishment and alteration.
- 7-5-102. Time of general election.
- 7-5-103. [Repealed.]
- 7-5-104. Election expenses — Allocation.
- 7-5-105. [Repealed.]
- 7-5-106. Runoff elections for county and municipal officers — Definition.

SECTION.

- 7-5-107. Use of voter registration lists by poll workers.
- 7-5-108. [Repealed.]
- 7-5-109. Computerized voter registration lists.
- 7-5-110. Registration lists for each ballot combination.
- 7-5-111. Candidacy for more than one elected office — Limitations.
- 7-5-112. Secure voter registration for domestic violence victims — Definition.

7-5-101. Precinct boundaries, polling sites, and vote centers — Establishment and alteration.

- (a)(1) The county board of election commissioners shall:
- (A) Establish election precincts; and
 - (B)(i) Designate a polling site for each precinct.
 - (ii) A polling site may serve two (2) or more precincts, including parts of precincts.
- (2) Except as provided in § 6-14-106, the designation of polling sites shall be by a unanimous vote of the members of the county board of election commissioners present.
- (b)(1) The county board of election commissioners by order may alter the boundaries of existing election precincts and establish new ones.
- (2) A precinct shall not be altered and a new precinct shall not be created less than sixty (60) days before an election except in the event of an emergency as determined by unanimous vote of the county board of election commissioners.
- (3)(A) Except as provided in subdivision (b)(3)(B) of this section, if more than three thousand (3,000) voters are registered in a precinct, the county board of election commissioners shall redistrict the precinct at least one hundred twenty (120) days before the election.
- (B) If the number of registered voters in the precinct exceeds three thousand (3,000) registered voters during or after the one hundred twenty (120) days before an election, the county board of election commissioners shall redistrict the precinct at least one hundred twenty (120) days before the next election.
- (4)(A) An order to alter the boundaries of any precinct or establish any new one shall not be effective until it has been filed with the county clerk.
- (B) The order shall contain:
- (i) A written description of the boundaries of the precinct;
 - (ii) A printed map of the boundaries of the precincts altered or established; and
 - (iii) A digital map detailing the precinct boundaries altered or established in a format prescribed by the Arkansas Geographic Information Systems Office.

(c)(1) Within thirty (30) days after the boundaries of an election precinct are altered or a new election precinct is established, the county clerk shall submit written, printed, and digital copies of the map and boundaries required under subdivision (b)(4) of this section to the:

- (A) Secretary of State; and
 - (B) Arkansas Geographic Information Systems Office.
- (2) Upon receipt of the changes, the Secretary of State immediately shall forward a copy to the:
- (A) Office of the Attorney General;
 - (B) Census State Data Center;
 - (C) Geographic Information Systems and Mapping Section of the Transportation Planning and Policy Division of the Arkansas Department of Transportation; and
 - (D) Arkansas Geographic Information Systems Office.

(3) The Secretary of State may:

(A) Designate each precinct in the state with a unique alphanumeric description that clearly references:

- (i) The precinct designation assigned by the county board of election commissioners; and
 - (ii) The county in which the precinct exists;
- (B) Create a map of the State of Arkansas that is divided by precinct; and
- (C) Display the map with the alphanumeric precinct designations on the Secretary of State's internet website.

(d)(1)(A) The polling sites for each election shall be the same as those established for the immediately preceding general election unless changed by order of the county board of election commissioners.

(B) Subdivision (d)(1)(A) of this section does not apply to:

- (i) A school election under § 6-14-106; or
 - (ii) An additional early voting location chosen by the county board of election commissioners.
- (2)(A) The county board of election commissioners shall not change a polling site for any precinct less than sixty (60) days before a preferential primary election or general election, except in the event of an emergency.

(B) The county board of election commissioners shall not change a polling site for any precinct less than thirty (30) days before an election other than a preferential primary or general election, except in the event of an emergency.

(3)(A) Notice of a change made in a polling site shall be provided by posting information at the polling site used in the last election and by the county clerk mailing notice to affected registered voters at least fifteen (15) days before the election unless:

- (i) The election is a school election;
- (ii) The election is a special election; or
- (iii) The change in polling sites is due to an emergency arising less than fifteen (15) days before the election.

(B) If the change in polling site occurs in a school election, special election, or due to an emergency arising less than fifteen (15) days before the election, notice of a change made in the polling site shall be provided by posting information at the polling site used in the last election.

(4)(A) If the county board of election commissioners reduces the total number of polling sites available in the county in a preferential primary election or a general election, a qualified elector of the county may appeal the decision to close the polling site that adversely affects the qualified elector's ability to cast a ballot to the State Board of Election Commissioners.

(B) An appeal made to the State Board of Election Commissioners shall:

- (i) Be filed in writing within seven (7) days of the vote of the county board of election commissioners to reduce the number of polling sites available in the county;
- (ii) Describe clearly the polling site that was closed;
- (iii) Describe the reason the closure of the polling site in question adversely affects the election process; and
- (iv) Be signed by the appellant under penalty of perjury.

(C) When a timely and sufficient appeal is filed under this subsection, the State Board of Election Commissioners shall determine if the reduction in polling sites is permissible in a

timely fashion and shall issue an order resolving the appeal no less than thirty (30) days before the date of the election.

(D) An order by the State Board of Election Commissioners prohibiting a reduction in polling sites under this subsection shall be effective for the remainder of the term of the county board of election commissioners whose actions were appealed.

(e)(1)(A) Before establishing one (1) or more vote centers in the county under § 7-1-113, the county board of election commissioners shall certify to the Secretary of State and the county quorum court that the county has a secure electronic connection sufficient to prevent:

- (i) An elector from voting more than once;
- (ii) Unauthorized access to an electronic pollbook;
- (iii) Unauthorized access to the voter registration database; and
- (iv) Unauthorized access to voting equipment and voter materials.

(B) If the county board of election commissioners has certified to the county quorum court a determination of sufficiency under subdivision (e)(1)(A) of this section, the county may adopt an ordinance to establish vote centers for elections.

(C) The ordinance:

(i) Shall be filed with the county clerk, the county board of election commissioners, and the Secretary of State; and

(ii) Is effective when it is filed with the county clerk, the county board of election commissioners, and the Secretary of State.

(2)(A)(i) Except for school elections under § 6-14-106, a vote center location for each election shall be the same as that established for the immediately preceding general election unless changed by order of the county board of election commissioners.

(ii) When a runoff is required in a county that only utilizes vote centers, the vote centers for the runoff election shall be the vote centers that are located within a precinct composed of qualified electors who are eligible to vote in that runoff election.

(iii) When a runoff election is required in a county that only utilizes vote centers and where no vote center is located in one (1) or more precincts composed of qualified electors participating in the runoff election, the county board of election commissioners shall:

(a) Establish one (1) or more vote centers within the jurisdiction for which the runoff election is being conducted prior to the publication of the notice of election; or

(b) Open a vote center at the county seat if no polling site is otherwise available on election day under this section.

(B)(i) The county board of election commissioners shall not change a vote center location less than sixty (60) days before a preferential primary election or general election, except in the event of an emergency.

(ii) The county board of election commissioners shall not change a vote center location less than thirty (30) days before an election other than for a preferential primary or general election, except in the event of an emergency.

(iii) The county board of election commissioners may establish a new vote center for an election less than thirty (30) days before an election if a majority of the county board of election commissioners determines the existing vote centers do not adequately serve the county's qualified electors.

(iv) A vote center established under subdivision (e)(2)(B)(iii) of this section shall be included in the notice of election.

(C) Notice of a change made to a vote center location shall be posted at the vote center location used in the last election, and except for school elections and special elections, the notice shall be published in a newspaper of general circulation in the county at least fifteen (15) days before the election.

History. Acts 1969, No. 465, Art. 6, § 1; A.S.A. 1947, No. 455, § 1; 2003, No. 1165, § 2; 2003, No. 1295, § 2; § 3-601; Acts 1993, No. 717, §§ 1, 3; 1995, No. 876, § 1; 2007, No. 694, § 1; 2009, No. 250, § 3; 2009, No. 1480, § 15; 2013, No. 546, § 1; 2013, No. 1126, § 4; 2013, No. 1995 (1st Ex. Sess.), No. 7, § 1; 1997, No. 451, § 1; 1999,

1211, § 2; 2013, No. 1389, § 3; 2015, No. 103, § 8; 2017, No. 707, § 8; 2021, No. 729, §§ 2, 3; 2021, No. 1063, §§ 3-5; 2023, No. 389, § 1; 2025, No. 282, § 1.

7-5-102. Time of general election.

On the Tuesday next after the first Monday in November in every even-numbered year, there shall be held an election in each precinct and ward in this state for the election of:

- (1) All elective state, county, and township officers whose term of office is fixed at two (2) years by the Arkansas Constitution or the General Assembly;
- (2) State senators in their respective districts when the terms for which the state senators have been elected expire before the next general election;
- (3) Members of the United States House of Representatives for each congressional district in this state; and
- (4) United States Senators when the term of office of any United States Senator expires before the next general election.

History. Acts 1969, No. 465, Art. 6, § 2; A.S.A. 1947, § 3-602; Acts 1993, No. 512, § 1; 2005, No. 67, § 5; 2013, No. 1110, § 3.

7-5-103. [Repealed.]

Publisher's Notes. This section, concerning special elections, was repealed by Acts 2009, No. 1480, § 16. The section was derived from Acts 1969, No. 465, Art. 6, § 3; A.S.A. 1947, § 3-603; Acts 2003, No. 1441, § 1; 2005, No. 2145, § 11; 2007, No. 1049, § 13; 2009, No. 26, § 1; 2009, No. 375, § 1.

7-5-104. Election expenses — Allocation.

(a)(1) All expenses of general elections and runoff elections for presidential, congressional, state, district, county, township, or municipal offices in this state shall be paid by the counties in which they are held.

(2) However, any city or incorporated town shall reimburse the county board of election commissioners for the expenses of the elections in an amount equal to a figure derived by multiplying fifty percent (50%) of the total cost of each election by a fraction, the numerator of which shall be the number of voters from the city or incorporated town casting ballots in each election prepared by the county board of election commissioners, and the denominator of which shall be the total number of voters casting ballots in each election.

(b)(1) Except for the expense of party primary elections under § 7-7-201 et seq., all expenses for special elections, including runoff elections as required by law, for congressional, state, district, county, and township offices shall be paid by the counties in which they are held.

(2) All expenses of special elections, including any runoff elections as required by law, for municipal offices shall be paid by the city or incorporated town calling for the elections.

(3) All expenses of special elections called by any county for the purpose of referring a question or measure to the voters of the county shall be paid by the county.

(4) All expenses of special elections called by any city or incorporated town for the purpose of referring a question or measure to the voters of the city or incorporated town shall be paid by the city or incorporated town.

(c)(1) The county board of election commissioners shall determine the expenses necessary to conduct a free, equal, and lawful election in order to comply with the United States Constitution, laws of the United States, the Arkansas Constitution, and the laws of the State of Arkansas.

(2) The county board of election commissioners shall:

(A) Prepare an election budget estimate of the expenses of all anticipated elections for the fiscal year of the county; and

(B) Transmit the election budget estimate during the same time and in the same manner as is required of other county departments and county elected officials in writing to:

(i) The county judge;

- (ii) The county judge's designated comptroller or budget director; or
- (iii) A person as may be directed by the county judge.
- (3) The election budget estimate shall include without limitation the following cost of:
 - (A) The salaries and expenses of:
 - (i) Full-time employees with positions relating to elections; and
 - (ii) Additional permanent, temporary, seasonal, or part-time employees to include without limitation:
 - (a) Poll workers; and
 - (b) Election officials;
 - (B) Equipment;
 - (C) Supplies;
 - (D) Publication costs;
 - (E) Maintenance;
 - (F) Utilities;
 - (G) Insurance;
 - (H) Taxes;
 - (I) Other direct expenses to conduct elections during the calendar year following an appropriation by the quorum court; and
 - (J) Indirect expenses of conducting elections during the calendar year following appropriation by the quorum court.
- (4) If the county board of election commissioners determines that an elected county official has made an appropriate determination of expenses necessary to conduct elections and has previously prepared a budget estimate of the expenses for all anticipated elections for the fiscal year of the county, the county board of election commissioners may fulfill its duties by identifying and requesting line item budget support in the formal budget and appropriation of the elected county official, by majority vote of the county board of election commissioners, as set forth in its minutes annually.
- (5) If the county board of election commissioners determines that the expenses necessary to conduct free, equal, and lawful elections can be met through in-kind support from other county departments, agencies, and resources, the county board of election commissioners may accept in-kind support and resources under the terms and conditions as may be acceptable to the county board of election commissioners.
- (d)(1) No state or county employee or official shall take or accept any funding, grants, gifts, services, or anything else of value, for the purpose of paying election-related expenses or performing his or her other duties under this title from any source other than from:
 - (A) The governing authority of a city or incorporated town;
 - (B) The governing authority of the county;
 - (C) The State of Arkansas; or
 - (D) The United States Government.
- (2) Subdivision (d)(1) of this section does not apply to services lawfully performed under §§ 7-4-112, 7-4-116, and 7-4-117.
- (3) Subdivision (d)(1) of this section does not apply to campaign contributions lawfully received and expended by a candidate under § 7-6-101 et seq. and § 7-6-201 et seq.

History. Acts 1992 (1st Ex. Sess.), No. 67, § 2; 2005, No. 1205, § 1; 2021, No. 756, § 3; 2021, No. 961, § 1; 2023, No. 352, § 1.

7-5-105. [Repealed.]

Publisher's Notes. This section, concerning payment to county clerk for registered voter lists, was repealed by Acts 1997, No. 451, § 17. The section was derived from Acts

1969, No. 465, Art. 13, § 4; A.S.A. 1947, § 3-1304; Acts 1993, No. 1092, § 2; 1995, No. 924, § 1; 1995, No. 937, § 1. For present law, see § 7-5-109.

7-5-106. Runoff elections for county and municipal officers — Definition.

(a) If there are more than two (2) candidates for election to any county elected office or municipal office, including the office of justice of the peace, at any general election held in this state and no candidate for the county elected office or municipal office receives a majority of the votes cast for the county elected office or municipal office, there shall be a runoff general election held in that county or municipality four (4) weeks following the date of the general election at which the names of the two (2) candidates receiving the highest number of votes, but not a majority, shall be placed on the ballot to be voted upon by the qualified electors of the county or the municipality.

(b) If two (2) candidates receive the highest number of votes and receive the same number of votes, a tie is deemed to exist and the names of the two (2) candidates shall be placed on the runoff general election ballot to be voted upon by the qualified electors of the county or the municipality, as the case may be.

(c)(1) If there is one (1) candidate who receives the highest number of votes, but not a majority of the votes, and two (2) other candidates receive the same number of votes for the next highest number of votes cast, a tie is deemed to exist between the two (2) candidates.

(2) The county board of election commissioners shall determine the runoff candidate by lot at a public meeting and in the presence of the two (2) candidates.

(d) If one (1) of the two (2) candidates who received the highest number of votes for a county elected office or a municipal office but not a majority of the votes in a county for a county elected office withdraws before certification of the result of the general election, the remaining candidate who received the most votes at the general election shall be declared elected to the county elected office or municipal office and there shall be no runoff general election.

(e)(1) The person receiving the majority of the votes cast for the county elected office or municipal office at the runoff general election shall be declared elected.

(2) However, if the two (2) candidates seeking election to the same county elected office or municipal office receive the same number of votes in the runoff general election, a tie is deemed to exist, and the county board of election commissioners shall determine the winner of the runoff general election by lot at an open public meeting and in the presence of the two (2) candidates.

(f)(1) As used in this section, “municipal office” means offices of cities of the first class and cities of the second class and incorporated towns and includes the offices of council members, members of boards of managers, or other elective municipal offices elected by the voters of the entire municipality or from wards or districts within a municipality.

(2) “Municipal office” does not include offices of cities having a city manager form of government.

(g) This section does not apply to election of members of the boards of directors and other officials of cities having a city manager form of government.

(h) This section is intended to be in addition to and supplemental to the laws of this state pertaining to the election of officers for county elected offices and municipal offices at general elections.

History. Acts 1983, No. 909, §§ 1, 2; A.S.A. 1947, § 14; 2011, No. 1211, § 1; 2017, No. 879, § 1; 2017, No. §§ 3-616, 3-617; Acts 1991, No. 53, § 1; 1997, No. 451, § 3; 1104, § 2; 2019, No. 207, § 1; 2025, No. 991, §§ 1, 2. 1999, No. 554, § 1; 2003, No. 1165, § 3; 2007, No. 1049,

7-5-107. Use of voter registration lists by poll workers.

(a)(1) In any election conducted in this state, precinct voter registration lists shall be used by poll workers in each polling place.

(2)(A) An electronic poll book may be used by poll workers in each polling place.

(B) The functions of an electronic poll book may include without limitation:

(i) Voter lookup;

(ii) Voter verification;

(iii) Voter identification;

- (iv) Precinct assignment;
- (v) Ballot assignment;
- (vi) Recording when a voter presents himself or herself to an election official and requests a ballot;
- (vii) Redirecting voters to the correct polling site; and
- (viii) Determining if a voter has requested an absentee ballot.

(b) Precinct voter registration lists shall contain the name, address including zip code, and date of birth of each registered voter within the precinct, including those who have been designated inactive, the precinct number and county wherein the precinct is located, the name and date of the election, and a space for the voter's signature.

(c) The following shall be printed at the top of each page of the precinct voter registration list:
 "IF YOU SIGN THIS FORM AND YOU ARE NOT A LAWFULLY REGISTERED VOTER OR IF YOU HAVE SUBMITTED AN ABSENTEE BALLOT FOR THIS ELECTION, YOU ARE MAKING A FALSE STATEMENT AND MAY BE COMMITTING PERJURY. PERJURY IS PUNISHABLE BY UP TO A \$10,000 FINE AND UP TO 10 YEARS IMPRISONMENT."

History. Acts 1993, No. 487, § 1; 1995, No. 946, § 2; 1995, No. 963, § 2; 2009, No. 959, § 3; 2013, No. 1297, § 2; 2021, No. 1063, § 6.

7-5-108. [Repealed.]

Publisher's Notes. This section, concerning the time of runoff elections, was repealed by Acts 1997, No. 451, § 4. The section was derived from Acts 1993, No. 966, § 3.

7-5-109. Computerized voter registration lists.

(a)(1) The county clerks of the several counties of the state may reproduce the registered voter list maintained by the county clerk in any format that the office of the county clerk is capable of providing.

(2) The county clerks of the several counties of the state shall not reproduce any address of a secure voter in any format unless otherwise authorized by law.

(b) The county clerks shall be entitled to a fee in connection with the preparation of any registered voter list that shall reimburse the county clerk for reproduction expenses. The value of office equipment previously secured for the office of the county clerk shall not be considered when determining the amount of this fee.

(c)(1)(A) Upon request every county clerk who maintains on computer the list of registered voters within the county shall provide the list on compact disc or other electronic medium, except the address of registered voters whose information is contained as a secure voter.

(B) The list of registered voters, excluding the addresses of registered voters listed as secure voters, shall include at least the names, addresses, and precinct numbers of the voters.

(2)(A) The fee for a list of registered voters, excluding the addresses of registered voters listed as secure voters, on compact disc or other electronic medium, of one (1) to five thousand (5,000) registered voters may be up to ten dollars (\$10.00).

(B) The fee for a list of registered voters, excluding the addresses of registered voters listed as secure voters, on compact disc or other electronic medium, of five thousand one (5,001) to twenty-five thousand (25,000) registered voters may be up to twenty-five dollars (\$25.00).

(C) The fee for a list of registered voters, excluding the addresses of registered voters listed as secure voters, on compact disc or other electronic medium, of more than twenty-five thousand (25,000) registered voters may be up to fifty dollars (\$50.00).

(3) If a printed list of registered voters, excluding the addresses of registered voters listed as secure voters, is requested, the cost of the list may be no more than two cents (2¢) per name and address.

History. Acts 1993, No. 1161, § 1; 1995, No. 924, § 2; 1995, No. 937, § 2; 1997, No. 451, § 5; 1999, No. 651, § 1; 2013, No. 1126, § 5; 2021, No. 980, §§ 1, 2.

7-5-110. Registration lists for each ballot combination.

In any precinct with more than one (1) ballot combination, the county clerk shall prepare precinct voter registration lists of registered voters, excluding the addresses of registered voters listed as secure voters, that identify the district, subdistrict, county, municipality, ward, and school zone in which each voter is qualified to vote.

History. Acts 1995, No. 672, § 1; 1997, No. 451, § 6; 2021, No. 980, § 3.

7-5-111. Candidacy for more than one elected office — Limitations.

A person shall not run for election for more than one (1) state, county, municipal, district, or township office if the elections are to be held on the same date.

History. Acts 2013, No. 1471, § 1; 2017, No. 158, § 1.

7-5-112. Secure voter registration for domestic violence victims — Definition.

(a) A registered voter who is a victim of domestic violence may request secure voter status for his or her voter registration information.

(b) A registered voter designated as a secure voter is required to comply with all voter identification requirements when casting a ballot.

(c) Any address information for a secure voter is confidential and is not a public record under the Freedom of Information Act of 1967, § 25-19-101 et seq.

(d) The Secretary of State shall promulgate rules in accordance with the Arkansas Administrative Procedure Act, § 25-15-201 et seq., to implement the process by which a registered voter who is the victim of domestic violence may request secure voter status from the county clerks, including without limitation the:

(1) Administrative process a county clerk shall use to verify eligibility for secure voter status;

(2) Documentation required for domestic violence victims to be approved for secure voter status;

(3) Format in which the county clerk shall maintain any addresses of all registered voters listed on the voter registration roll when the registered voter has a secure voter status; and

(4) Process for complying with a post-election challenge involving a secure voter.

(e) As used in §§ 7-5-109 and 7-5-110 and this section, “secure voter” means a registered voter who requests to have his or her address or addresses protected from public release and is a domestic violence victim who:

(1) Is the victim of any offense under § 5-26-301 et seq. as adjudicated by a court;

(2) Has been granted an order of protection under the Domestic Abuse Act of 1991, § 9-15-101 et seq.; or

(3) Is recognized as a victim of domestic violence in any court order or ruling.

History. Acts 2021, No. 980, § 4.

SUBCHAPTER 2 — PREELECTION PROCEEDINGS

SECTION.

7-5-201. Voter qualification.

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SECTION.

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SECTION.

7-5-213. Counting votes when special error correction ballots are utilized — Procedures.

SECTION.

7-5-214. Candidate review of ballot content.

7-5-201. Voter qualification.

(a) To be qualified to vote, a person shall have registered at least thirty (30) calendar days immediately prior to the election and in the manner set forth by Arkansas Constitution, Amendment 51.

(b) “Voting residence” shall be a voter’s domicile and shall be governed by the following provisions:

(1) The domicile of a person is that place in which his or her habitation is fixed and to which he or she has the intention to return whenever he or she is absent;

(2) A change of domicile is made only by the act of abandonment, joined with the intent to remain in another place. A person can have only one (1) domicile at any given time;

(3) A person does not lose his or her domicile if he or she temporarily leaves his or her home and goes to another country, state, or place in this state with the intent of returning;

(4) The place where a person’s family resides is presumed to be his or her place of domicile, but a person may acquire a separate residence if he or she takes another abode with the intention of remaining there;

(5) A married person may be considered to have a domicile separate from that of his or her spouse for the purposes of voting or holding office. For those purposes, domicile is determined as if the person were single; and

(6) Persons who are temporarily living in a particular place because of a temporary work-related assignment or duty post or as a result of their performing duties in connection with their status as military personnel, students, or office holders shall be deemed residents of that place where they established their home prior to beginning such assignments or duties.

(c) No person may be qualified to vote in more than one (1) precinct of any county at any one (1) time.

(d)(1) Except as provided in subdivision (d)(2) of this section and subsection (e) of this section, any person desiring to vote in this state shall:

(A) Present verification of voter registration to the election official when appearing to vote in person either early or at the polls on election day; or

(B) When voting by absentee ballot, submit with the ballot verification of voter registration unless the voter is:

(i) An active duty member of the uniformed services of the United States who is absent from the county on election day because of his or her service;

(ii) A member of the United States Merchant Marine who is absent from the county on election day because of his or her service in the United States Merchant Marine;

(iii) The spouse or dependent of a member identified in subdivision (d)(1)(B)(i) or subdivision (d)(1)(B)(ii) of this section who is absent from the county on election day because of the active duty or service of the member; or

(iv) A member of the Arkansas National Guard who is on state active duty and absent from the county on election day.

(2)(A) A person who is a resident of a long-term care or residential care facility licensed by the state is not required to present verification of voter registration before voting.

(B) A person not required to present verification of voter registration under subdivision (d)(2)(A) of this section shall provide documentation from the administrator of the facility, attesting that the person is a resident of the facility.

(e)(1) A person registering to vote by mail and who has not previously voted in a federal election in this state shall:

(A) Present to the election official a current and valid photo identification or a copy of a current utility bill, bank statement, government check, paycheck, or other government document that shows the name and address of the voter when appearing to vote in person either early or at the polls on election day; or

(B) When voting by mail, submit with the ballot a copy of a current and valid photo identification or a copy of a current utility bill, bank statement, government check, paycheck, or other government document that shows the name and address of the voter.

(2) A person under subdivision (e)(1) of this section shall comply with requirements under this subsection in lieu of complying with subsection (d) of this section.

(3) The provision of subdivision (e)(1) of this section does not include:

(A) Persons whose applications are transmitted by state or federal voter registration agencies;

(B) Persons who are covered by the Uniformed and Overseas Citizens Absentee Voting Act, 52 U.S.C. § 20301 et seq.;

(C) Persons covered by the Voting Accessibility for the Elderly and Handicapped Act, 52 U.S.C. § 20101 et seq.;

(D) Persons who are entitled to vote otherwise than in person under any other federal law;

(E) Persons who register to vote by mail and submit as part of the registration any of the identification documents listed in subdivision (e)(1) of this section; or

(F) Persons who register to vote by mail and submit with the registration either a driver's license number or at least the last four (4) digits of the individual's Social Security number and with respect to whom a state or local election official matches the license number or Social Security number with an existing state identification record bearing the same number, name, and date of birth as provided in the registration.

(f) Any person who receives an absentee ballot according to the precinct voter registration list but who elects to vote by early voting or to vote at his or her polling site on election day shall be permitted to cast a provisional ballot.

History. Acts 1969, No. 465, Art. 7, § 7; A.S.A. 1947, No. 1471, § 1; 2003, No. 994, § 2; 2005, No. 2193, § 1; § 3-707; Acts 1987, No. 248, § 7; 1993, No. 716, § 1; 1995, 2007, No. 560, § 2; 2013, No. 595, §§ 2, 3; 2017, No. 633, No. 930, § 2; 1995, No. 941, § 2; 1999, No. 1462, § 1; 1999, § 5; 2019, No. 462, § 6.

7-5-202. Public notice of elections.

(a)(1) It shall be the duty of the county board of election commissioners at least eight (8) days before the beginning of early voting for a preferential primary, general primary, general election, general runoff, school, or special election to give public notice in a newspaper of general circulation in the county of:

(A) The date of the election;

(B) The hours of voting on election day;

(C) The places and times for early voting;

(D) Polling sites for holding the elections in the county;

(E) The candidates and offices to be elected at that time;

(F) The time and location of the opening, processing, canvassing, and counting of ballots;

(G) The location where lists of appointed election officials, deputy county clerks, or additional deputies hired to conduct early voting can be found and the dates the lists are available; and

(H) Directions for filing a written objection to the service of an election official, deputy county clerk, or additional deputy.

(2) A person shall not serve as an election official if:

(A) The person is:

(i) Married to or related within the second degree of consanguinity to a candidate running for office in the election;

(ii) The spouse of a member of a county board of election commissioners, except the spouse of a member of a county board of election commissioners may work as a poll worker if no objection is made to his or her service as a poll worker to the county board of election commissioners within seven (7) calendar days after posting the list of officials; or

(iii) A county party chair or his or her spouse, except the county party chair or his or her spouse may work as a poll worker if no objection is made to his or her service to the county

board of election commissioners within seven (7) calendar days after posting the list of officials; and

(B) Another person makes an objection to his or her service to the county board of election commissioners within seven (7) calendar days after posting the list of officials.

(3) [Repealed.]

(b)(1) At least five (5) days before a preferential primary, general primary, general election, general runoff, school election, or special election, a copy of the public notice may be posted at each polling site fixed for holding the election and shall be published in a newspaper of general circulation in the county.

(2)(A) At least eight (8) days before the beginning of early voting, each county board of election commissioners or county clerk shall prepare and post in a public place in the county clerk's office its list of appointed election officials, deputy county clerks, or additional deputies hired to conduct early voting.

(B)(i) At least eight (8) days before election day, each county board of election commissioners shall prepare and post in a public place in the county clerk's office its list of appointed election officials for election day.

(ii) The list may appoint election officials hired for election day in the event of a runoff election.

(iii) All election officials who are qualified to serve on election day are qualified to serve in a corresponding runoff election.

(c)(1) On the day of any election, the following shall be posted at each polling site and remain posted continuously therein until the polls close:

(A) The public notice of election required in subsection (a) of this section;

(B)(i) At least two (2) sample ballots, marked with the word "SAMPLE", of each ballot style that will be used at the polling site.

(ii) If the polling site has more than fifteen (15) ballot styles and has posted a sample ballot for each ballot style via an internet website before the beginning of early voting, the polling site may provide the following in lieu of the sample ballots under subdivision (c)(1)(B)(i) of this section:

(a) At least two (2) bound volumes that include each sample ballot, marked with the word "SAMPLE"; or

(b) At least one (1) bound volume that includes each sample ballot, marked with the word "SAMPLE", and at least one (1) electronic device that allows voters to access a sample ballot for each ballot style;

(C)(i) Two (2) copies of the full text of all measures on the ballot.

(ii) Copies posted under subdivision (c)(1)(C)(i) of this section shall include a copy of the concise abstract prepared and distributed under § 7-9-114;

(D) At least two (2) copies of instructions on how to vote, including how to cast a provisional ballot and instructions for fail-safe voting;

(E) General information on voting rights under applicable federal and state laws, including information on the right of an individual to cast a provisional ballot and instructions on how to contact the appropriate officials if these rights are alleged to have been violated;

(F)(i) General information on federal and state laws regarding prohibitions on acts of fraud and misrepresentation; and

(ii) Information about the availability of the Attorney General's Election Integrity Unit, including without limitation the telephone number of the Attorney General's election law violation hotline established under § 7-4-305;

(G)(i) Double-sided signs containing the words "VOTE HERE".

(ii) Each sign shall be at least two feet by two feet (2' x 2') in size and shall contain an arrow pointing to the polling site.

(iii) A sign shall be posted near each main driveway entrance to the polling site on each public street bordering the polling site so as to be visible to all traffic approaching the polling site.

(iv) The sign shall be as close as possible to the public street without obstructing traffic;

(H)(i) One (1) printout from each voting machine, terminal, or ballot tabulator showing that the candidate and question counters register zero (0).

(ii) A poll worker shall produce one (1) printout from each machine showing whether the candidate and question counters register zero (0), and all poll workers present shall sign the printout.

(iii) A poll worker shall post the printout upon the wall of the polling room where it shall remain throughout the election day;

(I) A copy of the poll watcher rights and responsibilities;

(J) A notice stating that if any voter needs assistance, the voter may ask a poll worker;

(K) A notice on electioneering to be posted inside the polling site; and

(L)(i) During preferential primary election and nonjudicial elections, the following additional postings:

(a) A posting containing an example of the primary ballot's selections; and

(b) A notice that:

(1) States "CROSSOVER VOTING IS A CRIME";

(2) Explains crossover voting; and

(3) States the penalties for a violation of crossover voting laws under § 7-1-103(a)(18)(B) and § 7-1-104(a)(10).

(ii) The State Board of Election Commissioners shall provide a standard form for a sign under subdivision (c)(1)(L)(i)(b) of this section.

(2) If a county is providing sample ballots for a specified polling site in bound volumes or electronic databases under subdivision (c)(1)(B)(ii) of this section, the county shall ensure the bound volumes or electronic databases are organized so that a voter may easily identify the sample ballot corresponding with his or her precinct-part.

(d) The Secretary of State shall provide to each county board of election commissioners and each county clerk the information to be posted at each polling site according to subdivisions (c)(1)(E) and (F) of this section.

History. Acts 1969, No. 465, Art. 6, §§ 4, 5; A.S.A. 1947, § 1; 2017, No. 798, § 1; 2019, No. 199, § 1; 2019, No. 258, §§ 3-604, 3-605; Acts 1997, No. 451, § 7; 1999, No. 1490, § 1; 2019, No. 398, § 1; 2019, No. 473, § 3; 2021, No. 448, § 3; 2001, No. 474, § 1; 2003, No. 994, § 3; 2005, No. 138, §§ 3-6; 2021, No. 974, § 5; 2021, No. 1051, § 5; 2023, No. § 1; 2005, No. 1677, § 3; 2007, No. 222, § 4; 2007, No. 556, 544, § 4; 2025, No. 487, § 1.

7-5-203. Certification of candidate lists.

(a)(1) Not less than seventy-five (75) days before each general election day, the Secretary of State shall certify to all county boards of election commissioners full lists of all candidates to be voted for in their respective counties as the nominations have been certified or otherwise properly submitted to him or her.

(2) A name of a person shall not be certified and shall not be placed on the ballot if prior to the certification deadline a candidate on the list:

(A) Notifies the Secretary of State in writing, signed by the candidate and acknowledged before an officer authorized to take acknowledgements, of his or her desire to withdraw as a candidate for the office or position; or

(B) Dies.

(b)(1) Not less than seventy-five (75) days before each general election day, the clerk of each county shall certify to the county board of election commissioners of his or her county a full list of all candidates to be voted for in the county as the nominations have been certified or otherwise properly submitted to him or her.

(2) A name of a person shall not be certified and shall not be placed on the ballot if prior to the certification deadline a candidate on the list:

(A) Notifies the county clerk in writing, signed by the candidate and acknowledged before an officer authorized to take acknowledgements, of his or her desire to withdraw as a candidate for the office or position; or

(B) Dies.

(c) However, in special elections held to fill vacancies or to elect officers in case of a tie vote, the certification shall issue at the time specified in the writ of election issued by the appropriately constituted authority.

History. Acts 1969, No. 465, Art. 6, § 6; 1985, No. 1055, No. 1490, § 4; 2005, No. 67, § 6; 2007, No. 1049, § 18; § 2; A.S.A. 1947, § 3-606; Acts 1997, No. 451, § 8; 1999, 2009, No. 1480, § 17; 2011, No. 1185, § 3.

7-5-204. Certification of measures and questions submitted to voters.

(a) Whenever a proposed amendment to the Arkansas Constitution or other measure or question is to be submitted to a vote of the people, the Secretary of State shall not certify the amendment, measure, or question to the county board of election commissioners of each county in the state less than seventy-five (75) days before each general election day.

(b) The county board of election commissioners shall include the amendment, measure, or question in the posting that it is required to make under § 7-5-206.

(c)(1) If the Secretary of State has not determined the sufficiency of a petition for an amendment or a measure by the seventy-fifth day before the general election or if an amendment or a measure has been challenged for any reason in a court of competent jurisdiction, the Secretary of State shall nonetheless transmit the amendment or measure and the ballot title of each amendment and measure to the county election commissions to make any required posting and to place the amendment or measure on the ballot.

(2) If the petition for the amendment or measure is subsequently declared insufficient by the Secretary of State or a court of competent jurisdiction or if held to be invalid for any other reason, no votes regarding the amendment or measure shall be counted or certified.

History. Acts 1969, No. 465, Art. 6, § 7; A.S.A. 1947, No. 222, § 5; 2007, No. 1049, § 19; 2009, No. 959, § 4; § 3-607; Acts 1997, No. 451, § 9; 1999, No. 1490, § 5; 2007, 2011, No. 1185, § 4.

7-5-205. Write-in candidates' votes.

(a) No person shall file as a write-in candidate.

(b) No vote for a write-in candidate shall be counted.

History. Acts 1969, No. 465, Art. 6, § 14; 1985, No. 1055, No. 542, § 2; 2003, No. 1165, § 4; 2007, No. 222, § 6; 2009, § 1; A.S.A. 1947, § 3-614; Acts 1987, No. 247, § 1; 1987, No. 1480, § 18; 2011, No. 1185, § 5; 2015, No. 26, § 1; No. 933, § 1; 1989, No. 912, § 1; 1997, No. 451, § 10; 1999, 2019, No. 597, § 6; 2023, No. 305, § 5. No. 640, § 1; 2001, No. 955, § 1; 2001, No. 1789, § 4; 2003,

7-5-206. Publication requirements.

(a) The county board of election commissioners shall publish all:

(1) Candidate nominations;

(2) Proposed amendments to the Arkansas Constitution; and

(3) Other measures and questions required by law to be submitted to the electors at any election.

(b) Publication of the information required in subsection (a) of this section shall be made by:

(1) Posting a list of all nominations, amendments, and other measures and questions to be submitted to electors at the door of the courthouse at least ten (10) days before the day of the election; and

(2)(A) Submitting to the Secretary of State a sample ballot of each ballot style, marked with the word "SAMPLE", that will be used at each polling site.

(B) Each sample ballot shall be submitted at least:

(i) Twenty (20) days before each preferential primary and general election; and

(ii) Ten (10) days before the holding of each general primary, general runoff, school, or special election.

(c) The Secretary of State shall publish all sample ballots on an internet site that is organized so that a voter may easily identify the sample ballot corresponding with his or her precinct-part.

History. Acts 1969, No. 465, Art. 6, § 8; A.S.A. 1947, No. 451, § 11; 2005, No. 67, § 7; 2007, No. 222, § 7; 2007, § 3-608; Acts 1995, No. 497, § 2; 1995, No. 1085, § 2; 1997, No. 1020, § 2; 2009, No. 959, § 5; 2021, No. 128, § 1.

7-5-207. Ballots — Names included — Draw for ballot position.

(a)(1) Except as provided in subdivision (a)(2) of this section, all election ballots provided by the county board of election commissioners of any county in this state for any election shall contain in the proper place the name of every candidate whose nomination for any office to be filled at that election has been certified to the county board of election commissioners and shall not contain the name of any candidate or person who has not been certified.

(2)(A) Except as provided in subdivision (a)(2)(B) of this section, unopposed candidates for all offices, including school board positions, shall be declared and certified elected without the necessity of including those names on the general election ballot.

(B)(i) In an election in which one (1) or more candidates are unopposed, the phrase “unopposed candidates” shall appear on the ballot, adjacent to a place in which the voter may cast a vote for all unopposed candidates by placing an appropriate mark.

(ii) Votes received by an unopposed candidate in any election in this state may be counted or tabulated by the election officials for administrative purposes, but shall not be certified unless otherwise provided by law.

(iii) Votes received by an unopposed candidate for the office of Governor, mayor, circuit clerk, or the office of a nonjudicial state elected official shall be counted or tabulated by the election officials and certified according to law.

(iv) The names of all unopposed candidates for the office of Governor, mayor, circuit clerk, and the office of a nonjudicial state elected official shall be separately placed on the general election ballot, and the votes for mayor, Governor, circuit clerk, and a nonjudicial state elected official shall be tabulated as in all contested races.

(v) All unopposed candidates, other than for the offices of Governor, mayor, circuit clerk, and the office of a nonjudicial state elected official, shall be declared and certified as elected in the same manner as if the candidate had been voted upon at the election.

(b) No person’s name shall be placed upon the ballot as a candidate for any public office in this state at any election unless the person is qualified and eligible at the time of filing, or as otherwise may be provided by law, as a candidate for the office to hold the public office for which he or she is a candidate, except if a person is not qualified to hold the office at the time of filing because of age alone, the name of the person shall be placed on the ballot as a candidate for the office if the person will qualify to hold the office at the time prescribed by law for taking office.

(c)(1) The order in which the names of the candidates shall appear on the ballot shall be determined by lot at a public meeting of the county board of election commissioners not less than seventy-two (72) days before the general election.

(2) Notice of the public meeting shall be given by publication in a newspaper of general circulation in the county at least three (3) days before the drawing.

(3) For runoff elections, the ballot order for eligible candidates shall be the same as for the previous election leading to the runoff.

(d)(1) Adjacent to the name of each candidate in the general election shall be:

(A) His or her party designation; or

(B) The term “INDEPENDENT” if he or she represents no officially recognized party.

(2) Subdivision (d)(1) of this section does not apply to a:

(A) Nonpartisan election; or

(B) Nonpartisan municipal election.

History. Acts 1969, No. 465, Art. 6, § 13; 1971, No. 224, § 1; 1971, No. 261, §§ 20, 22; 1971, No. 355, §§ 1-3; 1971, No. 725, § 1; 1979, No. 389, § 1; A.S.A. 1947, §§ 3-613, 3-615; Acts 1997, No. 451, § 12; 2007, No. 1049, § 15; 2009, No. 959, § 6; 2009, No. 1480, § 19; 2011, No. 1185, § 6; 2013, No. 1110, § 4; 2017, No. 730, § 1; 2019, No. 254,

§ 1; 2019, No. 597, § 7; 2019, No. 1013, § 1; 2021, No. 448,
§ 7; 2023, No. 647, § 1.

7-5-208. Ballots — Form.

(a) All election ballots provided by the county board of election commissioners of any county in this state for any election shall be alike and shall be in plain type.

(b)(1) The heading of each ballot shall be:

“OFFICIAL BALLOT

_____ (description) _____

ELECTION

_____ (date)____, _____ (year)_____

Vote by placing an appropriate mark opposite the person for whom you wish to vote.”

(2) If the ballot contains an initiated or referred amendment, act, or measure, the heading shall also contain these words: “Vote on amendments, acts, and measures by placing an appropriate mark below the amendment (or act or measure) either FOR or AGAINST.”

(c) Every ballot shall contain the name of each candidate who has been nominated or has qualified in accordance with law for each office. The names of the candidates shall be listed in a perpendicular column under the name of each office to be filled.

(d) Adjacent to the name of each candidate and on the same line there shall be a place for marking a vote for the candidate. Below each act, amendment, or measure to be voted on, there shall be the words “FOR” and “AGAINST” situated one above the other with a place for marking a vote for the act, amendment, or measure adjacent to each word and on the same line.

(e) Opposite the designation of each office, there shall appear these words: “VOTE FOR _____.” The number of persons required to fill the vacancy in office shall be placed in the blank space.

History. Acts 1969, No. 465, Art. 6, § 13; 1971, No. 224, No. 451, § 13; 1999, No. 640, § 2; 2005, No. 1677, § 4; § 1; 1971, No. 261, §§ 11, 20, 22; 1971, No. 355, §§ 1-3; 2005, No. 2233, § 3; 2007, No. 705, § 1; 2007, No. 1049, 1979, No. 389, § 1; A.S.A. 1947, § 3-613; Acts 1987, No. § 16; 2009, No. 1480, § 20; 2011, No. 1020, § 1; 2023, No. 280, §§ 1, 2; 1993, No. 1011, § 1; 1995, No. 461, § 1; 1997, 305, § 6.

7-5-209. Ballots — Correction of errors.

(a) If the county board of election commissioners learns that an error or omission has occurred in the publication of the names or description of candidates nominated for office or in the preparation of ballots, the county board of election commissioners shall in a public meeting announce the error or omission and immediately correct the error or omission or show cause why the correction should not be done.

(b) If an error in the preparation of the ballots has occurred, the error shall be corrected unless the county board of election commissioners determines by unanimous vote that the error:

(1) Cannot be corrected prior to the conclusion of voting; or

(2) Is of a nature that:

(A) It can be effectively mitigated; and

(B) The costs to the county do not justify the correction based on the:

(i) Cost of correcting the error;

(ii) Disruption to the election process; and

(iii) Fiscal impact to the county.

(c) As soon as possible, a county board of election commissioners shall correct a ballot error in which there is an omission from the ballot of:

(1) A contested race;

(2) A candidate omitted from a race; or

(3) An issue other than a school millage issue in which no change is proposed in the rate of the millage.

(d)(1) When an error is identified, the applicable mitigation measures shall be implemented, and these measures shall remain in place until the error is corrected or the election concludes.

- (2) Errors in the rendering of the candidate's name on the ballot shall be mitigated by:
- (A) Posting a notice on each ballot marking device or voting booth that:
 - (i) Informs voters that an error is present on the ballot; and
 - (ii) Provides the correct rendering of the race including each candidate's name on the ballot as it should have appeared on the ballot for that race in the order in which the candidates appear on the ballot; and
 - (B) Providing a copy of the notice under subdivision (d)(2)(A) of this section to the county clerk who shall include the notice under subdivision (d)(2)(A) of this section in the materials delivered with all absentee ballots sent after the error is discovered.
- (3) A notice posted under subdivision (d)(2)(A) of this section regarding an error in the rendering of a candidate's name on the ballot shall not identify the specific candidate affected by the error.
- (4) Errors in the rendering of a ballot issue shall be mitigated by:
- (A) Posting a notice on each ballot marking device or voting booth which informs voters that an error is present on the ballot and provides the correct text of the ballot issue in question; and
 - (B) Providing a copy of the notice under subdivision (d)(4)(A) of this section in the materials delivered with all absentee ballots sent after the error is discovered.
- (5) Omission of a race or issue on the ballot shall be mitigated by:
- (A) The assignment of voters to another ballot style if another ballot style is available in the county which has the same issues and races which should have been included on the ballot containing the error; or
 - (B) The creation by the county board of election commissioners of a special error correction ballot that shall be provided to voters to allow the voters to vote in the omitted race or issue contest.
- (e) A special error correction ballot shall be governed by the following provisions:
- (1) The county board of election commissioners shall work with the county clerk to develop a list of voters affected by the error who require access to the special error correction ballot in addition to their assigned regular ballot;
- (2)(A) Each voter who has previously cast a ballot that did not include the race or issue omitted shall be contacted by the county board of election commissioners using any contact information provided in the voter's voter registration records.
- (B) Each voter who has previously cast a ballot that did not include the race or issue omitted may cast the special error correction ballot;
- (3) When a special error correction ballot is in use, the poll workers shall:
- (A) Review the list of voters affected by the error when checking in a voter to the poll to vote;
 - (B) Issue the special error correction ballot assigned to each voter identified on the list of affected voters;
 - (C) Note each voter who cast a special error correction ballot on the list of voters; and
 - (D) Ensure each voter deposits the special error correction ballot cast as a regular ballot into a separate sealed ballot box or the emergency bin of the tabulator if no additional ballot box is available; and
- (4)(A) Poll workers shall allow a voter to cast the special error correction ballot as a provisional ballot if no list of affected voters is available or if a voter believes he or she is entitled to vote in the omitted race but has not been identified on the list of voters affected by the error.
- (B) A voter who is eligible to cast his or her assigned ballot as a regular ballot and has not been designated as requiring a special error correction ballot may cast a special error correction ballot as a provisional ballot while casting his or her assigned ballot as a regular ballot.
- (C) If the voter under subdivision (e)(4)(B) of this section is also casting a provisional ballot for any reason not related to the error addressed by the special error correction ballot, the special error correction ballot shall be included in the same provisional envelope as the assigned ballot which is cast provisionally.

History. Acts 1969, No. 465, Art. 6, § 12; A.S.A. 1947, § 3-612; Acts 1997, No. 451, § 14; 2009, No. 1480, § 21; 2023, No. 308, § 1.

7-5-210. [Repealed.]

Publisher's Notes. This section, concerning ballots, was repealed by Acts 2009, No. 1480, § 22. The section was derived from Acts 1969, No. 465, Art. 6, § 10; A.S.A. 1947, § 3-610; Acts 1995, No. 601, § 1; 2007, No. 1020, § 3.

7-5-211. Delivery of election supplies.

- (a) At least one (1) day before any election:
 - (1)(A) The county board of election commissioners shall designate a suitable person or persons and deliver to the person or persons the ballots.
 - (B) The person shall not be an elected official, an elected official's deputy, or a candidate for office; and
 - (2) For each set of poll workers in each polling place, the county board of election commissioners shall deliver to the designated person or persons the following additional election supplies if applicable:
 - (A) A good and sufficient ballot box with numbered seals;
 - (B) Sufficient list-of-voters forms adequate to record the names of all registered voters who appear to vote in the polling place;
 - (C) A precinct voter registration list;
 - (D) Sufficient tally sheets;
 - (E) Envelopes to seal the ballots and certificates;
 - (F) Separate sheets containing blank forms of certificates prepared to enable the poll workers to properly certify the paper ballot count at the polling site, upon which certificates shall be endorsed a blank form of oath to be taken by the poll workers before entering upon the discharge of their duties;
 - (G) Voter registration application forms for voters using fail-safe voting and other record-keeping supplies necessary to document fail-safe voting procedures; and
 - (H) In those counties in which an optical scanner is used to count paper ballots, the marking instrument recommended by the manufacturer of the optical scanner for proper marking on the ballots shall be provided.
- (b) The county board of election commissioners shall be responsible for the security of the delivered election materials.
- (c) The county board of election commissioners shall be responsible for providing ballots and election materials for absentee and early voting to the county clerk before the beginning day for absentee and early voting.

History. Acts 1969, No. 465, Art. 6, § 11; 1973, No. 157, § 8; A.S.A. 1947, § 3-611; Acts 1995, No. 601, § 2; 1995, No. 946, § 3; 1995, No. 963, § 3; 1997, No. 451, § 15; 1999, No. 920, § 1; 2001, No. 1178, § 1; 2007, No. 1020, § 4; 2009, No. 959, § 7; 2009, No. 1480, § 23.

7-5-212. [Repealed.]

Publisher's Notes. This section, concerning permanent ink when ballots counted by hand, was repealed by Acts 2009, No. 1480, § 24. The section was derived from Acts 1999, No. 920, § 2.

7-5-213. Counting votes when special error correction ballots are utilized — Procedures.

- (a) In the event that special error correction ballots are utilized under § 7-5-209, a county board of election commissioners shall count all special error correction ballots cast as regular ballots under the following procedures:
 - (1) The special error correction ballots shall be counted at the time designated in the notice of election for the canvassing and counting of absentee ballots on election day; and

(2) The vote totals shall be included with the vote totals for the issue or race which appeared on the special error correction ballots.

(b) In the event that a special error correction ballot is utilized under § 7-5-209, a county board of election commissioners shall count all special error correction ballots cast as provisional ballots under the following procedures:

(1) The special error correction ballots shall be canvassed at the time and location as other provisional ballots;

(2) The ballot shall be counted if:

(A) The voter was a qualified elector for the issue or race that was the subject of the special error correction ballot;

(B) The voter cast a ballot that was affected by the error necessitating the special error correction ballot; and

(C) The county board of election commissioners does not determine that the provisional ballot is invalid and should not be counted based on other grounds;

(3) The provisional special error correction ballots that are approved by the county board of election commissioners shall be hand counted at the time other provisional ballots are counted; and

(4) The vote totals shall be manually included with the vote totals for the issue or race which appeared on the special error correction ballots.

History. Acts 2023, No. 308, § 2.

7-5-214. Candidate review of ballot content.

(a) The political practices pledge shall contain a request that a candidate provide an email address at which the campaign can be contacted.

(b) No less than forty-two (42) days before an election, the county board of election commissioners shall submit one (1) of the following information by email to a candidate who filed for office and who included an email address on his or her political practices pledge:

(1) A proof copy of each ballot style for the county; or

(2) A report generated from the ballot programming software which includes the following information:

(A) The name of the candidate as it appears on the ballot;

(B) The ballot contest that the candidate is assigned; and

(C) The precincts or precinct parts that the race is assigned.

History. Acts 2023, No. 308, § 3.

SUBCHAPTER 3 — CONDUCT OF ELECTIONS

SECTION.

7-5-301. Acquisition, use, and cost of voting systems.

7-5-302. [Repealed.]

7-5-303. [Repealed.]

7-5-304. Opening and closing polls — Time.

7-5-305. Requirements.

7-5-306. Procedure when voter's name is not on the precinct voter registration list.

7-5-307. [Repealed.]

7-5-308. Provisional ballot procedure.

7-5-309. Voting procedure.

7-5-310. Privacy — Assistance to voters with disabilities.

7-5-311. Voters with disabilities — Special procedures — Definition.

7-5-312. Poll watchers, candidates, or designees — Rights — Challenge of voter's ballot — Definition.

SECTION.

7-5-313. [Repealed.]

7-5-314. Duties of election officials — Voter lists.

7-5-315. Counting votes for unopposed and deceased candidates.

7-5-316. Presence of candidate — Designation of representatives.

7-5-317. Processing and delivery of election materials.

7-5-318. Failure to deliver materials — Penalty — Messenger to obtain delinquent returns.

7-5-319. Recount.

7-5-320. [Repealed.]

7-5-321, 7-5-322. [Repealed.]

7-5-323. Procedure when voter fails to provide verification of registration.

7-5-324. Voter verification card.

7-5-301. Acquisition, use, and cost of voting systems.

- (a) The casting and counting of votes in all elections shall be by:
 - (1) Voting machines selected by the Secretary of State;
 - (2) Electronic vote tabulating devices in combination with voting machines accessible to voters with disabilities to be selected by the Secretary of State; or
 - (3) Paper ballots counted by hand in combination with voting machines accessible to voters with disabilities selected by the Secretary of State.
- (b) All direct recording electronic voting machines shall include a voter-verified paper audit trail.
- (c)(1) The quorum court of each county shall choose by resolution a voting system containing voting machines or electronic vote tabulating devices, or both, or voting machines in combination with paper ballots counted by hand for use in all elections in the county.
- (2) Any voting machine or electronic vote tabulating devices chosen by the quorum court shall be those selected by the Secretary of State.
- (3) Any voting system used in elections for federal office shall comply with the requirements of the federal Help America Vote Act of 2002.
- (d)(1) Voting machines and electronic vote tabulating devices shall be purchased pursuant to a competitive bidding process with consideration given to:
 - (A) Price;
 - (B) Quality; and
 - (C) Adaptability to Arkansas ballot requirements.
- (2)(A) The Secretary of State shall establish guidelines and procedures for a grant program to distribute funds from the County Voting System Grant Fund, § 19-27-303.
- (B) A grant provided to a county from the County Voting System Grant Fund, § 19-27-303, shall be paid into the county treasury to the credit of the voting system grant fund.
- (C) Moneys deposited into the voting system grant fund shall be appropriated by the quorum court according to the guidelines established by the Secretary of State under subdivision (d)(2)(A) of this section.
- (e) The Secretary of State or the county shall not purchase or procure any voting machine or electronic vote tabulating device unless the party selling the machine or device shall:
 - (1) Guarantee the machines in writing for a period of one (1) year; and
 - (2) Provide, if deemed necessary by the county, personnel for the supervision and training of county personnel for at least two (2) elections, one (1) primary and one (1) general at no additional cost to the county or the Secretary of State.
- (f) Each county shall provide polling places that are adequate for the operation of the voting system, including, but not limited to, access, if necessary, to a sufficient number of electrical outlets and telephone lines.
- (g) Each county shall provide or contract for adequate technical support for the installation, set up, and operation of the voting system for each election.
- (h) The Secretary of State shall be responsible for the development, implementation, and provision of a continuing program to educate voters and election officials in the proper use of the voting system.
- (i) Electronic vote tabulating devices and voting machines, authorized as provided under this subchapter, may be acquired and used in any election upon the adoption of an ordinance by the quorum court of the county.
- (j) The costs of using electronic vote tabulating devices and voting machines at all general and special elections, including, but not limited to, costs of supplies, technical assistance, and transportation of the systems to and from the polling places, shall be paid in accordance with § 7-5-104.
- (k) The county board of election commissioners shall have complete control and supervision of voting machines and electronic vote tabulating devices at all elections.
- (l) The county clerk shall have supervision of voting machines and electronic vote tabulating devices used for early voting in the clerk's designated early voting location.

(m)(1) The county board of election commissioners shall have the care and custody of all voting machines and all electronic vote tabulating devices while not in use.

(2) The county board of election commissioners shall be responsible for the proper preparation, use, maintenance, and care of the voting machines and the electronic vote tabulating devices during the period of time required for that election.

(n) During any time a voter is eligible to cast a ballot, the electronic voting machine or the electronic vote tabulating device shall not:

- (1) Be connected to the internet or an external network;
- (2) Be capable of establishing a wireless connection; or
- (3) Establish a connection to an external network through:
 - (A) A cable;
 - (B) A wireless modem; or
 - (C) Any other mechanism or process.

History. Acts 1969, No. 465, Art. 7, § 2; 1971, No. 261, § 10; A.S.A. 1947, § 3-702; Acts 1995, No. 946, § 4; 1995, No. 963, § 4; 1997, No. 451, § 16; 2005, No. 2233, § 4; 2007, No. 1020, § 5; 2009, No. 959, §§ 8, 9; 2011, No. 1189, § 2; 2013, No. 277, § 1; 2015, No. 1218, § 4; 2019, No. 399, § 1; 2021, No. 468, § 1; 2021, No. 735, § 1; 2025, No. 419, § 82.

7-5-302. [Repealed.]

Publisher's Notes. This section, concerning inspection of supplies and posting of documents, was repealed by Acts 2007, No. 222, § 8. The section was derived from Acts 1969, No. 465, Art. 7, § 6; A.S.A. 1947, § 3-706; Acts 1995, No. 946, § 5; 1995, No. 963, § 5; 2005, No. 2233, § 5.

7-5-303. [Repealed.]

Publisher's Notes. This section, concerning inspection of ballots by judges, was repealed by Acts 1997, No. 451, § 17. The section was derived from Acts 1969, No. 465, Art. 7, § 5; A.S.A. 1947, § 3-705.

7-5-304. Opening and closing polls — Time.

(a) The polls shall be opened at 7:30 a.m., and they shall remain open continuously until 7:30 p.m.

(b) In all counties, when the polls close, all persons who have presented themselves for voting and who are then in line at the polling site shall be permitted to cast their votes.

(c)(1) A person who votes in an election as a result of a federal or state court order or any other order extending the time established for closing the polls may vote in that election only by casting a provisional ballot.

(2) The ballot shall be separated and held apart from other provisional ballots cast by those not affected by the order.

History. Acts 1969, No. 465, Art. 7, § 1; 1981, No. 104, § 1; A.S.A. 1947, § 3-701; Acts 1993, No. 515, § 1; 2007, No. 1020, § 6; 2009, No. 959, § 10.

7-5-305. Requirements.

(a) Before a person is permitted to vote, the poll worker shall:

(1) Request the voter to identify himself or herself in order to verify the existence of his or her name on the precinct voter registration list;

(2) Request the voter, in the presence of the poll worker, to state his or her address and state his or her date of birth;

(3) Determine that the voter's date of birth and address are the same as those on the precinct voter registration list;

(4) If the date of birth given by the voter is not the same as that on the precinct voter registration list, request the voter to provide identification as the poll worker deems appropriate;

(5)(A) If the voter's address is not the same as that on the precinct voter registration list, verify with the county clerk that the address is within the precinct.

(B) If the address is within the precinct, request the voter to complete a voter registration application form for the purpose of updating county voter registration record files.

(C) If the address is not within the precinct:

(i) Verify with the county clerk's office the proper precinct; and

(ii) Instruct the voter to go to the polling site serving that precinct in order for his or her vote to be counted;

(6) If the voter's name is not the same as that on the precinct voter registration list, request the voter to complete a voter registration application form for purposes of updating county voter registration record files;

(7) Request the voter, in the presence of the poll worker, to sign his or her name, including the given name, middle name or initial, if any, and last name in the space provided on the precinct voter registration list. If a person is unable to sign his or her signature or make his or her mark or cross, the poll worker shall enter his or her initials and the voter's date of birth in the space for the person's signature on the precinct voter registration list;

(8)(A) Except as provided in this section, request that the voter present verification of voter registration by providing a document or identification card that meets the requirements of Arkansas Constitution, Amendment 51, § 13, if required by that section.

(B)(i) If a voter is unable to present verification of voter registration in the form of a document or identification card required by Arkansas Constitution, Amendment 51, § 13, the poll worker shall:

(a) Indicate on the precinct voter registration list that the voter did not present verification of voter registration by providing a document or identification card required by Arkansas Constitution, Amendment 51, § 13; and

(b) Permit the voter to cast a provisional ballot.

(ii) When a voter is unable to provide verification of voter registration, the voter and the election official shall follow the procedure under Arkansas Constitution, Amendment 51, § 13.

(iii) A first-time voter who registers by mail without providing identification when registering and desires to vote in person but who does not meet the identification requirements of § 7-5-201(e) may cast a provisional ballot.

(iv) Following each election, the county board of election commissioners may review the precinct voter registration lists and may provide the information of the voters not presenting verification of voter registration at the polls to the prosecuting attorney.

(v) The county board of election commissioners shall refer suspected instances of voter fraud to the prosecuting attorney.

(vi) The prosecuting attorney may investigate possible voter fraud;

(9) Record the voter's name or request the voter to print his or her name on the list-of-voters form;

(10) Follow the procedures under §§ 7-5-310 and 7-5-311 if the person is a voter with a disability and presents himself or herself to vote;

(11) Verify if a person requested an absentee ballot according to the precinct voter registration list; and

(12) Permit the person to cast a provisional ballot if the person received an absentee ballot according to the precinct voter registration list.

(b) A person not listed on the precinct voter registration list may vote only in accordance with § 7-5-306.

History. Acts 1969, No. 465, Art. 7, § 8; A.S.A. 1947, § 3-708; Acts 1993, No. 487, § 2; 1995, No. 946, § 6; 1995, No. 963, § 6; 1997, No. 451, § 18; 1999, No. 1454, § 1; 2001, No. 471, § 1; 2003, No. 994, § 4; 2003, No. 1308, § 4;

2005, No. 238, § 1; 2005, No. 2193, § 2; 2007, No. 1020, § 8; 2009, No. 959, § 11; 2013, No. 595, § 4; 2017, No. 633, § 6; 2021, No. 1063, § 7.

7-5-306. Procedure when voter's name is not on the precinct voter registration list.

(a) If the voter's name is not on the precinct voter registration list, the poll worker shall permit the voter to vote only under the following conditions:

(1) The voter identifies himself or herself by stating his or her name and date of birth and is verified by the county clerk as a registered voter within the county and, if the county is divided into more than one (1) congressional district, within the same congressional district;

(2) The voter gives and affirms his or her current residence and the poll worker verifies with the county clerk that the voter's residence is within the precinct;

(3) The voter completes an updated voter registration application form; and

(4) The voter signs the precinct voter registration list.

(b) If the voter is not listed on the precinct voter registration list and the poll worker is unable to verify the voter's registration with the county clerk and the voter contends that he or she is a registered voter in the precinct in which he or she desires to vote and that he or she is eligible to vote, then the voter shall be permitted to cast a provisional ballot.

History. Acts 1969, No. 465, Art. 7, § 9; A.S.A. 1947, No. 451, § 19; 2003, No. 994, § 5; 2005, No. 238, § 2; 2007, § 3-709; Acts 1995, No. 946, § 7; 1995, No. 963, § 7; 1997, No. 224, § 2; 2009, No. 959, § 12.

7-5-307. [Repealed.]

Publisher's Notes. This section, concerning election official's initials, was repealed by Acts 2007, No. 224, § 3. The section was derived from Acts 1969, No. 465, Art. 7, § 10; A.S.A. 1947, § 3-710; Acts 1995, No. 461, § 2; 1997, No. 451, § 20; 2005, No. 880, § 1.

7-5-308. Provisional ballot procedure.

(a) Except as provided under subsection (b) of this section, if a voter is required by law to cast a provisional ballot, the provisional ballot shall be cast pursuant to the following procedures:

(1) A poll worker shall notify the voter that the voter may cast a provisional ballot in that election;

(2) The voter shall execute a written eligibility affirmation under penalty of perjury in the presence of the poll worker stating that he or she is a registered voter in the precinct in which he or she desires to vote and is eligible to vote;

(3) Unless a provisional ballot is cast using a ballot marking device, the poll worker shall initial the back of the provisional ballot, remove the provisional ballot stub from the provisional ballot, and place the stub in the stub box provided;

(4) The voter shall mark his or her provisional ballot;

(5) The voter shall place the voted provisional ballot in a provisional ballot secrecy envelope marked "provisional ballot" and seal the envelope;

(6) The voter shall place the sealed provisional ballot envelope containing the voted provisional ballot in a voter envelope, seal the envelope, and give it to the poll worker;

(7) The poll worker shall provide the voter written information instructing him or her on how to determine whether his or her provisional ballot was counted, and if not, the reason the provisional ballot was not counted; and

(8) The poll worker shall make a separate list of the names and addresses of all persons voting a provisional ballot under this subsection, and each person voting a provisional ballot shall sign his or her name to this list.

(b) If a voter is required by law to cast a provisional ballot because the voter is unable to verify his or her registration by providing a document or identification card that meets the requirements of Arkansas Constitution, Amendment 51, § 13, the provisional ballot shall be cast pursuant to the following procedures:

(1) The poll worker shall indicate on the precinct voter registration list that the voter did not present a required document or identification card;

(2) The poll worker shall notify the voter that the voter may cast a provisional ballot in that election;

(3) The voter shall execute a written eligibility affirmation under penalty of perjury in the presence of the poll worker stating that he or she is a registered voter in the precinct in which he or she desires to vote and is eligible to vote;

(4) Unless a provisional ballot is cast using a ballot marking device, the poll worker shall initial the back of the provisional ballot, remove the provisional ballot stub from the provisional ballot, and place the stub in the stub box provided;

(5) The voter shall mark his or her provisional ballot;

(6) The voter shall place the voted provisional ballot in a provisional ballot secrecy envelope marked “provisional ballot” and seal the envelope;

(7) The voter shall place the sealed provisional ballot envelope containing the voted provisional ballot in a voter envelope, seal the envelope, and give it to the poll worker;

(8) The poll worker shall provide the voter written information instructing him or her on how to determine whether his or her provisional ballot was counted, and if not, the reason the ballot was not counted; and

(9) The poll worker shall make a separate list of the names and addresses of all persons voting a provisional ballot under this subsection, and each person voting a provisional ballot shall sign his or her name to this list.

(c) The poll worker shall preserve, secure, and separate all provisional ballots under subsections (a) and (b) of this section from the remaining ballots so that the right of any person to vote may be determined later by the county board of election commissioners or the court in which an election contest may be filed.

(d)(1) Whenever a person casts a provisional ballot under this section, the poll worker shall provide the voter written information that states that the individual who casts a provisional ballot will be able to ascertain whether the provisional vote was counted, and if not, the reason the provisional vote was not counted.

(2) The Secretary of State shall establish a free access system to allow a provisional voter under this section to ascertain whether his or her provisional vote was counted, and if not, the reason his or her provisional vote was not counted.

(3) Access to information about an individual provisional ballot shall be restricted to the voter who cast the provisional ballot.

(e)(1) Before certification of the results of the election, the county board of election commissioners shall determine whether the provisional ballots are valid.

(2) Unless enjoined by a court of competent jurisdiction, a provisional ballot under subsection (a) of this section shall be counted if:

(A) It is cast by a registered voter and is the correct ballot, according to the precinct listed on the voter’s eligibility affirmation, for the precinct of the voter’s residence; and

(B) The county board of election commissioners does not determine that the provisional ballot is invalid and should not be counted based on other grounds.

(f) Unless enjoined by a court with jurisdiction, a provisional ballot under subsection (b) of this section shall be counted if:

(1) The voter returns to the county board of election commissioners or the county clerk by 12:00 noon on the Monday following the election and presents a document or identification card that complies with the requirements of Arkansas Constitution, Amendment 51, § 13; and

(2) The county board of election commissioners does not determine that the provisional ballot is invalid and should not be counted based on other grounds.

(g) If, upon examination of a provisional ballot under this section, the county board of election commissioners suspects that a violation of the election laws has occurred, the county board of election commissioners may refer the matter to the prosecuting attorney.

History. Acts 1969, No. 465, Art. 7, § 12; A.S.A. 1947, § 3-712; Acts 2007, No. 224, § 4; 2009, No. 1480, § 25; 2017, No. 633, § 7; 2019, No. 109, §§ 1, 2; 2021, No. 249, §§ 3, 4.

7-5-309. Voting procedure.

- (a) Before giving the voter a preprinted paper ballot, a poll worker shall:
 - (1) Initial the back of the ballot;
 - (2) Remove the ballot stub; and
 - (3) Place the stub into the stub box provided.
- (b)(1)(A) Upon receiving his or her ballot, the voter may mark the ballot appropriately at a voting booth, voting machine, or private voting place that allows for the voter to mark the ballot in secrecy so that no one may view how he or she voted.
 - (B) A voter shall not be allowed more than ten (10) minutes to mark his or her ballot.
- (2) The voter or the voter's authorized assistant shall deposit the marked ballot into the ballot box provided.
- (c) The voter shall not be required to sign, initial, or in any way identify himself or herself with the ballot, the ballot stub, or the list of voters other than in the manner provided in this section.
- (d) [Repealed.]
- (e) After having voted or having declined to vote, the voter shall immediately depart from the polling site.
- (f) A person shall not carry a ballot outside of the polling place.
- (g)(1) If a paper ballot is left in the polling site outside of the ballot box after the voter has departed, a poll worker shall:
 - (A) Write "Abandoned" on the face of the paper ballot;
 - (B) Place the paper ballot into an envelope marked "Abandoned Ballot";
 - (C) Note in writing on the outside of the envelope the circumstances surrounding the abandoned ballot; and
 - (D) Preserve the abandoned ballot separately.
- (2) The county board of election commissioners shall not count the ballot.
- (h)(1) If an electronic vote tabulating device at the polling site has rejected a ballot that remains in the receiving part of the device, two (2) poll workers shall override warnings on the device and complete the process of casting the ballot only if:
 - (A) The voter has departed the polling site; and
 - (B) The voter did not indicate that he or she chose to cancel or replace the ballot.
- (2) The poll workers shall document:
 - (A) The time;
 - (B) The name of the voter;
 - (C) The names of the poll workers completing the process of casting the ballot; and
 - (D) All other circumstances surrounding the abandoned ballot.

History. Acts 1969, No. 465, Art. 7, § 11; A.S.A. 1947, No. 1033, § 1; 2013, No. 1424, § 1; 2013, No. 1461, § 1; § 3-711; Acts 1997, No. 451, § 21; 2005, No. 880, § 2; 2007, 2017, No. 908, § 1; 2019, No. 109, § 3; 2019, No. 534, § 1; No. 224, § 5; 2007, No. 834, § 1; 2009, No. 959, § 13; 2011, 2019, No. 664, § 1.

7-5-310. Privacy — Assistance to voters with disabilities.

- (a)(1) Each voter shall be provided the privacy to mark his or her ballot. Privacy shall be provided by the poll workers at each polling site or by the county clerk, if the county clerk conducts early voting, to ensure that a voter desiring privacy is not singled out.
- (2)(A) In a county that uses paper ballots, the county board of election commissioners shall determine and provide the appropriate number of voting booths for each polling site.
 - (B) A voting booth shall be:
 - (i) Constructed to permit the voter to prepare his or her ballot while screened from observation;
 - (ii) Furnished with supplies and conveniences that will enable the voter to prepare his or her ballot; and
 - (iii) Situated in the plain view of a poll worker.

(C) If a person is not a poll worker and is not casting a ballot, he or she shall not be within six feet (6') of the voting booths, unless:

(i) The person is authorized by an election judge; and

(ii) The person's presence is necessary to keep order or enforce the law.

(3) A person may not enter a polling site on election day during voting hours unless the person is:

(A) An election official;

(B) An authorized poll watcher;

(C) A voter present to cast his or her ballot;

(D) A person in the care of a voter if the person:

(i) Does not disrupt or interfere with the normal voting procedures; and

(ii) Is not eligible to vote in that election;

(E) A person lawfully assisting the voter;

(F) A law enforcement officer or emergency service personnel who are acting in the line of duty;

(G) A monitor authorized by the State Board of Election Commissioners or observer authorized by a federal agency with the authority to place the observer at the polling site;

(H)(i) A person with business in the polling site that is not connected to the election.

(ii) A person with business in the polling site that is not connected to the election shall remain outside of the voter processing area or voting room except to pass through or by the voter processing area or voting room without speaking to a voter or an election official and with the purpose to conduct his or her business;

(I) A person whom the county clerk or the county board of election commissioners has authorized to assist in conducting the election;

(J) A person authorized by the State Board of Election Commissioners or the county board of election commissioners; or

(K) The county clerk.

(b)(1) A voter shall inform the poll workers at the time that the voter presents himself or herself to vote that he or she is unable to mark or cast the ballot without help and needs assistance in casting or marking his or her ballot.

(2) The voter shall be directed to a voting machine equipped for use by persons with disabilities by which he or she may elect to cast his or her ballot without assistance, or the voter may request assistance with either the paper ballot or the voting machine, depending on the voting system in use for the election, by:

(A) Two (2) poll workers; or

(B) A person named by the voter who:

(i) Is present in the polling site;

(ii) Is eighteen (18) years of age or older; and

(iii) Presents a document or identification card that meets the requirements established by the State Board of Election Commissioners.

(3) If the voter is assisted by two (2) poll workers, one (1) of the poll workers shall observe the voting process and one (1) may assist the voter in marking and casting the ballot according to the wishes of the voter without comment or interpretation.

(4)(A)(i) If the voter is assisted by one (1) person named by the voter, he or she may assist the voter in marking and casting the ballot according to the wishes of the voter without any comment or interpretation.

(ii) If an election official witnesses the person assisting the voter commenting or interpreting in violation of subdivision (b)(4)(A)(i) of this section:

(a) The election official may cause the person assisting the voter to be removed from the polling site; and

(b) If the voter requests additional assistance in marking and casting his or her ballot, it may be provided by two (2) election officials trained to do so.

(B) No person other than the following shall assist more than six (6) voters in marking and casting a ballot at an election:

- (i) A poll worker;
 - (ii) The county clerk during early voting; or
 - (iii) A deputy county clerk during early voting.
- (C) If the person whose assistance has been requested by the voter is a candidate on the ballot:
- (i) The candidate shall not assist more than six (6) voters in the election; and
 - (ii) The candidate may only assist a voter who is related to the candidate within the second degree of consanguinity.
- (5)(A) It shall be the duty of the poll workers at the polling site to make and maintain a list of the names and addresses of all persons assisting voters.
- (B) The list shall contain the name of the assistor as it appears on the document or identification card presented by the assistor under subdivision (b)(2)(B)(iii) of this section.
- (c) Any voter who, because of physical, sensory, or other disability, presents himself or herself for voting and then informs a poll worker at the polling site that he or she is unable to stand in line for extended periods of time shall be entitled to and assisted by a poll worker to advance to the head of any line of voters then waiting in line to vote at the polling site.
- (d) The State Board of Election Commissioners shall promulgate rules concerning the required documents or identification necessary to assist a voter with a disability under subdivision (b)(2)(B)(iii) of this section.

History. Acts 1995, No. 908, § 1; 1995, No. 1296, § 39; § 14; 2013, No. 1461, § 2; 2019, No. 965, § 1; 2025, No. 1997, No. 451, § 22; 2003, No. 1308, § 1; 2005, No. 2233, § 593, §§ 1-3.
§ 6; 2007, No. 1020, § 7; 2009, No. 658, § 3; 2009, No. 959,

7-5-311. Voters with disabilities — Special procedures — Definition.

(a) The county boards of election commissioners shall provide voting locations that are accessible to voters with disabilities and shall provide reasonable and adequate methods whereby voters with disabilities may personally and secretly execute their ballots at the polling places.

(b) After conferring with and obtaining the assistance of persons with disabilities or organizations of citizens with disabilities, the State Board of Election Commissioners shall offer to assist local election authorities with the implementation of Title II requirements of the Americans with Disabilities Act and with the Title III requirements of the Help America Vote Act of 2002 regarding accessibility for voters with disabilities.

(c) As used in this section, the term “disability” means any physical, mental, or sensory impairment.

(d)(1) The county board of election commissioners shall be responsible for compliance with this section and with Pub. L. No. 98-435, Title II of Pub. L. No. 101-336, the Americans with Disabilities Act, and the Help America Vote Act of 2002 regarding the accessibility of voting locations for voters with disabilities.

(2) The State Board of Election Commissioners shall mail to the chair of each county board of election commissioners and the chair of each county political party a copy of this section and of Pub. L. No. 98-435.

History. Acts 1979, No. 972, § 1; A.S.A. 1947, § 3-721; 1120, § 1; 1999, No. 643, §§ 1, 2; 2003, No. 1308, § 2; 2005, Acts 1989, No. 912, § 2; 1993, No. 1192, § 3; 1995, No. 1827, § 4; 2007, No. 1020, § 9.

7-5-312. Poll watchers, candidates, or designees — Rights — Challenge of voter’s ballot — Definition.

- (a) Poll watchers shall include any:
 - (1) Candidate in person, but only during the counting and tabulation of ballots and the processing of absentee ballots;
 - (2) Authorized representative of a candidate;
 - (3) Authorized representative of a group seeking the passage or defeat of a measure on the ballot; and

(4) Authorized representative of a county or state political party with a candidate on the ballot or seeking the passage or defeat of a measure on the ballot.

(b) A poll watcher shall:

(1)(A) Be a qualified elector of the state.

(B) A poll watcher is not required to be a qualified elector of the election precinct he or she is observing; and

(2) Complete a training course approved and administered by the State Board of Election Commissioners.

(c)(1) The county board of election commissioners shall designate observation areas for poll watchers at each location where ballots are cast, including without limitation a:

(A) Courthouse;

(B) Early voting site;

(C) Vote center; or

(D) Polling location.

(2) An observation area required under subdivision (c)(1) of this section shall be not less than three feet (3') and no more than six feet (6') from the:

(A) Location at which an elector announces his or her name and address to be issued a ballot; or

(B) Table at which a person may register to vote.

(d) A poll watcher shall be provided uniform and nondiscriminatory access to observe all stages of the election process, including without limitation:

(1) Certification and testing of election technologies;

(2) In-person absentee voting;

(3) Return of absentee ballots by designated bearers;

(4) Canvassing of absentee ballots;

(5) Casting of ballots;

(6) Spoiling of ballots;

(7) Remaking of ballots;

(8) Vote tabulation;

(9) Voter registration at a polling location;

(10) Audits; and

(11) Recounts.

(e) A poll watcher who is observing an election process shall wear a badge with the name of the individual.

(f) A poll watcher shall not:

(1) Wear campaign material advocating voting for or against a candidate or for or against a position on a ballot question;

(2) Interfere with an elector in the preparation or casting of the elector's ballot; or

(3) Hinder or prevent the performance of the duties of any election official.

(g) A poll watcher may:

(1) Bring in voter lists to observe;

(2) Challenge a ballot for review by the county board of election commissioners as a provisional ballot;

(3) Speak to a poll worker to initiate a challenge to a ballot; and

(4) Speak to a poll judge to execute a challenge to a ballot.

(h) A poll watcher who violates this section may be expelled from all polling locations in the county for the duration of the election by the county board of election commissioners, the county clerk, or other designated election official.

(i) A person who uses force, intimidation, harassment, or coercion to interfere with a registered voter's ability to vote, an election official's duties, or a poll watcher's duties, is guilty upon conviction of a Class A misdemeanor.

(j) Each candidate, group, or political party may have at any given time during the election, including early voting:

(1) One (1) authorized representative present at any one (1) time at each location within a polling site where voters identify themselves to election officials, for absentee, in-person, or provisional voting, so as to observe and ascertain the identity of those persons presenting themselves to vote for the purpose of challenging voters; and

(2) One (1) authorized representative present at any one (1) time at each location or area within the absentee ballot processing site where absentee ballots are processed, canvassed, duplicated, or tabulated, so as to observe and ascertain the identity of absentee voters for the purpose of challenging any absentee vote.

(k) In accordance with §§ 7-5-316, 7-5-413, 7-5-416, 7-5-527, and 7-5-615, a candidate in person or an authorized representative of a candidate or political party may be present at a polling site, vote center, early voting site, alternative site for central counting, and absentee ballot counting location for the purpose of witnessing the counting of ballots by election officials and determining whether ballots are fairly and accurately counted.

(l)(1) The document designating and authorizing a representative of a candidate, a representative of a group seeking the passage or defeat of a measure on the ballot, and a representative of a political party with a candidate on the ballot or a political party seeking the passage or defeat of a measure on the ballot shall be filed with the county clerk.

(2) The county clerk shall provide a poll watcher three (3) file-marked copies of the document required under subdivision (l)(1) of this section without a fee.

(3) A file-marked copy shall be presented for viewing by the poll watcher to the election official immediately upon entering the polling site, vote center, early voting site, alternative voting site, absentee ballot processing site, or counting location in the following form:

"POLL WATCHER AUTHORIZATION FORM

Representative of a Candidate

I,, state that I am a candidate for the office ofin theelection. I further state that I have designatedas my authorized representative at the election at polling sitesand absentee ballot processing sitesinCounty, Arkansas, to observe and ascertain the identity of persons presenting themselves to vote in person or by absentee for the purpose of challenging any voter in accordance with Arkansas Code §§ 7-5-312, 7-5-416, and 7-5-417. I further state that I have designated and authorized my representative named above to be present at the ballot counting locations atinCounty, Arkansas, for the purpose of witnessing the counting of ballots by election officials and determining whether ballots are fairly and accurately counted in accordance with Arkansas Code §§ 7-5-312, 7-5-316, 7-5-413, 7-5-416, 7-5-527, and 7-5-615. I further state thatas my designated and authorized representative meets all of the requirements under Arkansas Code § 7-5-312.

Representative of a Group

I,, state that I represent thegroup that is seeking passage/defeat (circle one) of the ballot measure entitledon the ballot in theelection at polling sitesand absentee ballot processing sitesinCounty, Arkansas, to observe and ascertain the identity of persons presenting themselves to vote in person or by absentee for the purpose of challenging any voter in accordance with Arkansas Code §§ 7-5-312, 7-5-416, and 7-5-417. I further state that I meet all of the requirements under Arkansas Code § 7-5-312.

Representative of a Party

I,, state that I am the chair or secretary of the state/county (circle one) committee for theparty with candidates on the ballot in theelection. I further state that I have designatedas an authorized party representative at the election at polling sitesand absentee ballot processing sitesin

.....County, Arkansas, to observe and ascertain the identity of persons presenting themselves to vote in person or by absentee for the purpose of challenging any voter in accordance with Arkansas Code §§ 7-5-312, 7-5-416, and 7-5-417. I further state that I have designated and authorized my representative named above to be present at the ballot counting locations atinCounty, Arkansas, for the purpose of witnessing the counting of ballots by election officials and determining whether ballots are fairly and accurately counted in accordance with Arkansas Code §§ 7-5-312, 7-5-316, 7-5-413, 7-5-416, 7-5-527, and 7-5-615. I further state thatas a designated and authorized representative meets all of the requirements under Arkansas Code § 7-5-312.

.....

Signature of Candidate, Group Representative, or Chair/Secretary of the State/County Committee

Acknowledged before me this day of, 20....

Notary Public:

My Commission Expires:

I do hereby state that I am familiar with the rights and responsibilities of a poll watcher as outlined on the back of the poll watcher authorization form, the requirements under Arkansas Code § 7-5-312 and will in good faith comply with the provisions of same.

.....

Signature of the Poll Watcher

Acknowledged before me this day of, 20....

Notary Public:

My Commission Expires:

I do hereby acknowledge the filing of this poll watcher authorization form with the county clerk's office.

.....

Signature of County Clerk".

(m) Poll watcher rights and responsibilities shall be printed on the back of the document in the following form:

"POLL WATCHER RIGHTS AND RESPONSIBILITIES

A poll watcher may be:

- (1) A candidate in person, but only during the counting and tabulation of ballots and the processing of absentee ballots;
- (2) An authorized representative of a candidate;
- (3) An authorized representative of a group seeking the passage or defeat of a measure on the ballot; or
- (4) An authorized representative of a party with a candidate on the ballot or seeking the passage or defeat of a measure on the ballot.

Official recognition of poll watchers:

- (1) Only one (1) authorized poll watcher per candidate, group, or party at any one (1) given time may be officially recognized as a poll watcher at each location or area within a polling site, early voting site, vote center, or alternative site where voters identify themselves to election officials;
- (2) Only one (1) authorized poll watcher per candidate, group, or party at any one (1) given time may be officially recognized as a poll watcher at each location or area within the absentee ballot processing site where absentee ballots are processed; and
- (3) Only one (1) authorized poll watcher per candidate or party at any one (1) given time may be officially recognized as a poll watcher at the counting of the ballots.

Poll watcher credentials:

- (1) Except for candidates in person, poll watchers must present a valid affidavit in the form of a 'Poll Watcher Authorization Form' to an election official immediately upon entering the polling or counting location; and
- (2) Candidates in person attending a counting site or absentee ballot processing site are not required to present a 'Poll Watcher Authorization Form' but must present some form of

identification to an election official immediately upon entering the site for the purpose of confirming the poll watcher as a candidate on the ballot.

Poll watchers may:

- (1) Observe the election officials or designees;
- (2) Stand close enough to the place where voters check in to vote so as to hear the voter's name;
- (3) Compile lists of persons voting;
- (4) Challenge ballots upon notification to an election official before the voter signs the precinct voter registration list and upon completing a 'Challenged Ballot Form';
- (5) Call to the attention of the election sheriff any occurrence believed to be an irregularity or violation of election law. The poll watcher may not discuss the occurrence unless the election sheriff invites the discussion; and
- (6) Be present at the opening, processing, duplication, and canvassing of absentee ballots for the purpose of challenging absentee votes in the manner provided by law for personal voting challenges.

Poll watchers representing a candidate or political party may:

- (1) Remain at the polling site after the poll closes if ballots are counted at the poll;
- (2) Be present at the counting of votes by hand or by an electronic vote tabulating device at a central location;
- (3) Be present at the counting of absentee ballots for the purpose of witnessing the counting of ballots by election officials and determining whether ballots are fairly and accurately counted; and
- (4) Upon request made to an election official, inspect any or all ballots at the time the ballots are being counted.

Poll watchers may not:

- (1) Be within six feet (6') of any voting machine or booth used by voters to cast their ballot;
- (2) Speak to any voter or in any way attempt to influence a voter inside the polling site or within one hundred feet (100') of the primary exterior entrance used by voters to the building containing the polling site; or
- (3) Disrupt the orderly conduct of the election."
- (n) Poll watcher rights and responsibilities shall be posted in plain view at each absentee ballot processing site and counting site.
- (o) A poll watcher may notify an election official that he or she is challenging a voter only on the grounds that the voter:
 - (1) Is not eligible to vote in the precinct; or
 - (2) Has previously voted at that election.
- (p)(1) When the ballot of any voter is thus challenged, it shall be treated as a provisional ballot.
- (2) The poll watcher shall notify an election official of the challenge before the voter signs the precinct voter registration list.
- (3) The poll watcher shall complete a challenged ballot form.
- (4) The election official shall inform the voter that his or her ballot is being challenged.
- (5) The procedures for casting a provisional ballot under § 7-5-308 shall be followed.
- (q) As used in this section, "group seeking the passage or defeat of a measure on the ballot" means a group that is registered or files reports with the Secretary of State under § 7-6-201 et seq.

History. Acts 1969, No. 465, Art. 7, § 14; 1977, No. 114, § 1; A.S.A. 1947, § 3-714; Acts 1987, No. 247, § 2; 1987, No. 905, § 1; 1991, No. 407, § 1; 1991, No. 529, § 1; 1997, No. 451, § 23; 2003, No. 994, § 6; 2003, No. 1154, § 1;

2005, No. 67, § 8; 2005, No. 880, § 3; 2007, No. 224, § 6; 2009, No. 1480, § 26; 2023, No. 444, § 3; 2025, No. 487, § 2.

7-5-313. [Repealed.]

Publisher's Notes. This section, concerning cancellation and return of spoiled ballots, was repealed by Acts 2009, No. 1480, § 27. The section was derived from Acts

1969, No. 465, Art. 7, § 12; A.S.A. 1947, § 3-712; Acts 1997, No. 451, § 24.

7-5-314. Duties of election officials — Voter lists.

The election officials shall total the number of voters on the list of voters form, and the lists shall be certified and attested to by the election officials.

History. Acts 1969, No. 465, Art. 7, § 16; 1971, No. 261, No. 247, § 3; 1993, No. 512, § 2; 1995, No. 946, § 8; 1995, § 13; 1973, No. 157, § 7; A.S.A. 1947, § 3-716; Acts 1987, No. 963, § 8; 1997, No. 451, § 25; 2007, No. 1020, § 10.

7-5-315. Counting votes for unopposed and deceased candidates.

(a)(1) The votes received by an unopposed candidate in any election held in this state may be counted or tabulated for administrative purposes but shall not be certified, unless otherwise provided by law, by the election officials. The word “UNOPPOSED” shall be inserted on the tally sheet to indicate that the candidate has received a majority of the votes cast in the election. However, the votes received by an unopposed candidate for the office of mayor, Governor, and circuit clerk shall be counted and tabulated by the election officials.

(2) All other unopposed candidates shall be declared and certified as elected in the same manner as if the candidate had been voted upon at the election.

(b)(1) The votes received by any person whose name appeared on the ballot and who withdrew or died after the certification of the ballot shall be counted.

(2)(A) If the person received enough votes to win the election, a vacancy in election shall be declared.

(B)(i) If the person received enough votes to qualify for a runoff, the person’s name shall appear on the runoff ballot.

(ii) If enough votes are cast for the person to win the runoff, then a vacancy in election shall exist.

History. Acts 1969, No. 465, Art. 7, § 17; A.S.A. 1947, 2009, No. 1480, § 28; 2017, No. 730, § 2; 2019, No. 1013, § 3-717; Acts 1987, No. 248, § 8; 1991, No. 530, § 1; 1997, § 2. No. 451, § 26; 2003, No. 994, § 7; 2007, No. 1020, § 11;

7-5-316. Presence of candidate — Designation of representatives.

(a) After the polls have been closed, the counting of votes shall be open to the public, and any candidate or political party may be present in person or by representative designated in writing pursuant to § 7-5-312 at the count of the ballots in any election for the purpose of determining whether or not the ballots in any election precinct are fairly and accurately counted.

(b) The representatives of political parties may be designated and authorized by either the chair or the secretary of the state or county committee, and representatives of candidates may be designated and authorized by the candidate represented.

History. Acts 1969, No. 465, Art. 7, § 15; 1971, No. 261, § 12; A.S.A. 1947, § 3-715; Acts 1997, No. 451, § 27; 2003, No. 1154, § 2; 2009, No. 1480, § 29.

7-5-317. Processing and delivery of election materials.

(a) After the polls close, all of the election materials shall be processed and delivered in the following manner:

(1) The poll workers shall total the number of voters on the list-of-voters form and certify and attest the form;

(2) The list-of-voters form, precinct voter registration list, voter registration application forms, and other recordkeeping supplies shall be delivered to the county clerk;

(3) Certificates of election results and tally sheets:

(A) One (1) copy of the certificate of election results with one (1) copy of the tally sheets, if any, shall be delivered to the county clerk; and

(B) One (1) copy of the certificate of election results shall be returned with one (1) copy of the tally sheets, if any, and reports of challenges of voters, if any, to the county board of election commissioners;

(4) Ballots:

(A) The poll workers shall securely envelope any voted ballots separately from any unused ballots and place the ballots in a container with a numbered seal and then deliver the ballots with the tally sheets, if any, and other election materials to the county board of election commissioners; and

(B) All cancelled ballots shall be preserved separately from the other ballots and returned to the county board of election commissioners; and

(5) Sealed stub boxes shall be delivered to the county board of election commissioners for storage.

(b) All of the election materials, stub boxes, and returns shall be delivered to the county board of election commissioners by the poll workers immediately after the polls close.

History. Acts 1969, No. 465, Art. 7, § 18; A.S.A. 1947, No. 959, § 15; 2009, No. 1480, § 30; 2013, No. 236, § 1; § 3-718; 1995, No. 946, § 9; Acts 1995, No. 963, § 9; 1997, 2017, No. 621, §§ 1, 2.
No. 451, § 28; 2001, No. 797, § 1; 2005, No. 67, § 9; 2009,

7-5-318. Failure to deliver materials — Penalty — Messenger to obtain delinquent returns.

(a) If the poll workers fail to deliver the ballots, ballot stubs, certification of election, voter lists, and other election returns in the manner provided for in § 7-5-317, the poll workers shall forfeit the sum of two hundred dollars (\$200) to be recovered by action of debt in the name of the state for the use of the county.

(b) Upon failure of delivery of the election returns immediately after the polls close, the county board of election commissioners shall dispatch a peace officer to obtain the election returns, and all expenses incurred by sending the messenger shall be paid by the defaulting poll workers.

History. Acts 1969, No. 465, Art. 7, § 19; A.S.A. 1947, § 3-719; Acts 1997, No. 451, § 29; 2001, No. 798, § 1; 2009, No. 959, § 15.

7-5-319. Recount.

(a)(1) Any candidate voted for who may be dissatisfied with the returns from any precinct shall have a recount of the votes cast therein upon the candidate's presenting the county board of election commissioners with a petition requesting the recount.

(2) When the number of outstanding absentee ballots of overseas voters combined with the number of uncanvassed provisional ballots is not sufficient to change the results of the election, the candidate must present the petition no later than two (2) days after the county board of election commissioners declares preliminary and unofficial results of the election, including a statement of the number of outstanding absentee ballots of overseas voters.

(3) When the number of outstanding absentee ballots of overseas voters combined with the number of uncanvassed provisional ballots is sufficient to potentially change the results of the election, the candidate must present the petition at any time before:

(A) The county board of election commissioners finally completes the canvass of the returns of the election and certifies the result; or

(B) 12:00 noon on the seventh day following the election.

(b) At the time that the petition requesting the recount is presented, the county board of election commissioners shall provide to the candidate requesting the recount a copy of the test results on the voting machines and the electronic vote tabulating devices. Only one (1) recount per candidate per election shall be permitted. The county board of election commissioners shall certify the results of the last recount. The county board of election commissioners may upon its own motion conduct a recount of the returns from any or all precincts.

(c)(1) For the recount of an election in which paper ballots are used, the county board of election commissioners shall open the package containing the ballots and recount the ballots in the manner prescribed by law for the count to be made by the election officials in the first instance, or if there is a determination by the county board of election commissioners that the voting machine or electronic vote tabulating device may be malfunctioning, it may recount the ballots by any manner prescribed by law.

(2) When conducting a recount, the county board of election commissioners shall:

(A) Recount each precinct or other grouping of ballots necessary to recount all ballots cast in the race of the candidate requesting the recount;

(B) Review any ballots which were duplicated due to damage or defect to ensure that the selections on each duplicated ballot match exactly to an original ballot for which a duplicate ballot had been created;

(C) Ensure each affected candidate has been notified of the recount prior to conducting the recount;

(D) Create a certified results tape for each batch of ballots recounted; and

(E) Manually compile countywide totals from the certified return records and verify that they match the electronically derived totals from the devices used to collect votes from each tabulator if the tabulators are used in the recount.

(d) If the result as found upon the recount differs from that certified by the election officials, the certified results obtained from the recount shall be included in the canvass as the vote for the particular precinct for which the recount was ordered and made.

(e) After the recount is completed, the ballots shall again be sealed and kept as provided by law.

(f)(1) The costs for any recount must be borne by the candidate petitioning for it, and payment of the costs must be made to the county board of election commissioners prior to the recount in an amount determined by the county board of election commissioners.

(2) In the event that the outcome of the election is altered by recount, the costs of the recount shall be refunded to the candidate who petitioned for the recount.

(g) The costs of any recount shall be based on the actual costs incurred to conduct the recount, but in no instance shall the amount charged to conduct a recount exceed the rate of twenty-five cents (25¢) per vote cast in the precincts where the recount is requested or a total of two thousand five hundred dollars (\$2,500) for the entire county, whichever is less.

(h) Within forty-eight (48) hours after a petition for recount is filed, the county board of election commissioners shall notify all candidates whose election could be affected by the outcome of the recount.

History. Acts 1969, No. 465, Art. 5, § 8; A.S.A. 1947, § 3-508; Acts 1993, No. 430, § 1; 1997, No. 451, § 30; 1999, No. 1023, § 1; 2001, No. 1475, § 4; 2003, No. 1038, § 1; 2003, No. 1165, § 5; 2005, No. 2233, § 7; 2009, No. 1480, § 31; 2019, No. 534, § 2; 2023, No. 321, §§ 1, 2.

7-5-320. [Repealed.]

Publisher's Notes. This section, concerning elections to fill a vacancy when there is only one candidate, was repealed by Acts 2009, No. 1480, § 32. The section was derived from Acts 1997, No. 122, § 1.

7-5-321, 7-5-322. [Repealed.]

7-5-323. Procedure when voter fails to provide verification of registration.

If a ballot or absentee ballot is deemed a provisional ballot for failure to provide verification of registration under Arkansas Constitution, Amendment 51, § 13, the voter shall comply with the procedures under Arkansas Constitution, Amendment 51, § 13, for his or her vote to be counted.

History. Acts 2017, No. 633, § 9.

7-5-324. Voter verification card.

(a)(1)(A) The Secretary of State shall provide by rule for the issuance of a voter verification card that may be requested by an individual to be used to verify his or her voter registration under Arkansas Constitution, Amendment 51, § 13, when appearing to vote in person or by absentee ballot.

(B) The rules shall include without limitation:

(i) A requirement that the voter verification card include a photograph of the voter;

(ii) Specification of the information to be included on the voter verification card;

(iii) Provisions concerning the expiration of a voter verification card; and

(iv) Provisions for the voter verification card to be provided by the county clerk of the county in which the voter is registered to vote.

(2) Providing for the issuance of a voter verification card under subdivision (a)(1)(A) of this section may include without limitation the purchase by the Secretary of State of cameras and other equipment necessary to generate a voter verification card in the office of the county clerk.

(b) A voter verification card shall be issued without the payment of a fee or charge to an individual who:

(1) Does not have another valid form of identification meeting the requirements of Arkansas Constitution, Amendment 51, § 13; and

(2)(A) Is registered to vote; or

(B) Will be at least eighteen (18) years of age at the next election and has timely submitted a voter registration application.

(c)(1) The Secretary of State or the county clerk shall not require or accept payment for a voter verification card issued for the sole purpose of voter verification.

(2) A person requesting a voter verification card for the sole purpose of voter verification shall sign an affidavit that he or she does not possess a valid form of identification meeting the requirements of Arkansas Constitution, Amendment 51, § 13.

History. Acts 2017, No. 633, § 9.

SUBCHAPTER 4 — ABSENTEE VOTING**SECTION.**

7-5-401. Duties of county clerk.

7-5-402. Voter qualification.

7-5-403. Designated bearers, authorized agents, and administrators.

7-5-404. Applications for ballots — Definition.

7-5-405. Application form.

7-5-406. Members of uniformed services and other citizens residing outside the United States.

7-5-407. Preparation and delivery of ballots.

7-5-408. List of applications — Preparation, preservation, and inspection.

7-5-409. Materials furnished to qualified voters.

SECTION.

7-5-410. Instructions and notice included with voting materials — Other enclosures prohibited.

7-5-411. Methods of voting absentee.

7-5-412. Marking and return of absentee ballots — Delivery of mailed absentee ballots.

7-5-413. Voting machines — Related duties.

7-5-414. Appointment of election clerks — Qualifications.

7-5-415. Compensation of county clerk for extra deputy.

7-5-416. Counting of absentee ballots.

7-5-417. Challenge of absentee votes.

7-5-418. Early voting.

7-5-419. [Transferred.]

7-5-401. Duties of county clerk.

(a) The county clerk shall be the custodian of the absentee ballots and early voting ballots for any early voting conducted by the county clerk.

(b) The county clerk shall be furnished a suitable room at the county courthouse or other location within the county seat designated for the purpose of exercising all the powers and duties concerning the application for, the issuance of, and the voting of absentee and early voting ballots required by law of the county clerk.

(c) In counties with more than one (1) county seat, the county clerk shall conduct:

(1) Absentee voting in the courthouse or other room provided by the county; and

(2) Early voting at the county clerk's designated early voting location in each county seat if the county clerk conducts early voting under § 7-5-418.

History. Acts 1969, No. 465, Art. 9, § 1; A.S.A. 1947, § 3-901; Acts 1995, No. 686, § 1; 1995, No. 948, § 1; 2005, No. 67, § 10; 2007, No. 556, § 2; 2025, No. 282, § 2.

7-5-402. Voter qualification.

The following persons, if possessing the qualifications of electors, may cast an absentee ballot in any election:

- (1) Any person who will be unavoidably absent from his or her voting place on the day of the election;
- (2) Any person who will be unable to attend the polls on election day because of illness or physical disability; and
- (3) Any person who is prevented from voting due to observance of a religious discipline or religious holiday during the entire twelve (12) hours that the polls are open on election day.

History. Acts 1969, No. 465, Art. 9, § 3; A.S.A. 1947, § 3-903; Acts 1993, No. 593, § 1; 1995, No. 686, § 2; 1995, No. 948, § 2; 2023, No. 141, § 1.

7-5-403. Designated bearers, authorized agents, and administrators.

(a)(1) A designated bearer may obtain absentee ballots for no more than two (2) voters per election.

(2)(A) A designated bearer shall not have more than two (2) absentee ballots in his or her possession at any time.

(B) If the county clerk knows or reasonably suspects that a designated bearer has more than two (2) absentee ballots in his or her possession, the county clerk shall notify the prosecuting attorney.

(3)(A) A designated bearer receiving an absentee ballot from the county clerk for a voter shall obtain the absentee ballot directly from the county clerk and deliver the absentee ballot directly to the voter.

(B) A designated bearer receiving an absentee ballot from a voter shall obtain the absentee ballot directly from the voter and deliver the absentee ballot directly to the county clerk.

(4)(A) A designated bearer may deliver to the county clerk the absentee ballots for not more than two (2) voters.

(B) The designated bearer shall be named on the voter statement accompanying the absentee ballot.

(5) In order to obtain an absentee ballot from the county clerk:

(A) The designated bearer shall show a form of current photographic identification to the county clerk;

(B) The county clerk shall print the designated bearer's name and address beside the voter's name on a register;

(C) The designated bearer shall sign the register under oath indicating receipt of the voter's absentee ballot; and

(D) The county clerk shall indicate beside the designated bearer's name on the register that he or she obtained an absentee ballot for a voter.

(6) When a designated bearer delivers an absentee ballot to the county clerk:

(A) The designated bearer shall present current and valid photographic identification to the county clerk;

(B) The county clerk shall print the designated bearer's name and address beside the voter's name on a register;

(C) The designated bearer shall sign the register under oath indicating delivery of the voter's absentee ballot;

(D) The county clerk shall not accept an absentee ballot from a designated bearer who does not sign the register under oath; and

(E) The county clerk shall write or stamp the word “BEARER” and write the designated bearer’s name and address on the voter’s absentee ballot return envelope.

(7) When providing an absentee ballot to a designated bearer or receiving an absentee ballot from a designated bearer, the county clerk shall provide to the designated bearer a written notice informing the designated bearer that:

(A) A designated bearer may obtain ballots for no more than two (2) voters per election;

(B) A designated bearer shall at no time have more than two (2) ballots in his or her possession;

(C) A designated bearer shall not deliver ballots to the county clerk for more than two (2) voters per election; and

(D) Possession of an absentee ballot with the intent to defraud a voter or an election official is a felony under § 7-1-104.

(8) The county clerk shall post a notice of the rules concerning designated bearers and authorized agents in each county clerk’s office where absentee ballots are distributed or returned.

(b)(1) An authorized agent may deliver applications for absentee ballots to the county clerk and obtain absentee ballots from the county clerk for not more than two (2) voters per election who cannot cast a ballot at the appropriate polling place on election day because the voter is a patient in a hospital or long-term care or residential care facility licensed by the state.

(2) At no time shall an authorized agent have more than two (2) absentee ballots in his or her possession.

(3)(A) An authorized agent receiving an absentee ballot from the county clerk for a voter shall deliver the absentee ballot directly to the voter.

(B) An authorized agent receiving an absentee ballot from a voter shall deliver the absentee ballot directly to the county clerk.

(4)(A) In order for an authorized agent to obtain a ballot from the county clerk, the authorized agent shall submit to the county clerk an affidavit from the administrative head of a hospital or long-term care or residential care facility licensed by the state that the applicant is a patient of the hospital or long-term care or residential care facility licensed by the state and is thereby unable to vote on the election day at his or her regular polling site.

(B) A copy of the affidavit shall be retained by the county clerk as an attachment to the application for an absentee ballot.

(5) In order to obtain an absentee ballot from the county clerk, the:

(A) Authorized agent shall present current photographic identification to the clerk;

(B) Clerk shall print the authorized agent’s name and address beside the voter’s name on a register; and

(C) Authorized agent shall sign the register under oath indicating receipt of the voter’s ballot.

(6) When an authorized agent delivers an absentee ballot to the county clerk, the:

(A) Authorized agent shall show some form of current photographic identification to the clerk;

(B) Clerk shall print the authorized agent’s name and address beside the voter’s name on a register;

(C) Authorized agent shall sign the register under oath indicating delivery of the voter’s ballot; and

(D) The county clerk shall not accept an absentee ballot from an authorized agent who does not sign the register under oath.

(7) The county clerk shall write or stamp the words “AUTHORIZED AGENT” and the agent’s name and address on the voter’s absentee ballot return envelope.

(8) The county clerk shall post a notice of the rules concerning designated bearers and authorized agents in each county clerk’s office where absentee ballots are distributed or returned.

(c)(1) The county clerk shall keep a register of designated bearers and authorized agents.

(2) The designated bearer and authorized agent register shall contain the following oath on each page: “I ACKNOWLEDGE THAT ARKANSAS LAW PROHIBITS DESIGNATED BEARERS

AND AUTHORIZED AGENTS FROM RECEIVING OR RETURNING MORE THAN TWO (2) ABSENTEE BALLOTS PER ELECTION. I HAVE COMPLIED WITH THE ARKANSAS LAW. I UNDERSTAND THAT IF I PROVIDE FALSE INFORMATION ON THIS FORM, I MAY BE GUILTY OF PERJURY AND SUBJECT TO A FINE OF UP TO TEN THOUSAND DOLLARS (\$10,000) OR IMPRISONMENT FOR UP TO TEN (10) YEARS, OR BOTH, UNDER FEDERAL AND STATE LAWS.”

(d)(1)(A) An administrator may deliver to the county clerk an application for an absentee ballot for any voter who is a patient of a long-term care or residential care facility licensed by the state and who authorizes the administrator to obtain an absentee ballot on his or her behalf.

(B) The absentee ballot application shall identify the administrator by name as the administrator of the facility where the voter resides.

(2) Upon presentation of photographic identification to the county clerk, an administrator may receive absentee ballots for as many qualified residents of the facility as:

(A) Apply for absentee ballots; and

(B) Identify the administrator in the voter’s absentee ballot application.

(3)(A) At least one (1) long-term care or residential care facility staff member shall witness the administrator assist the voter by marking a ballot on behalf of the voter without any comment or interpretation.

(B) An administrator may deliver the absentee ballot to the county clerk for any voter who names the administrator on his or her application and voter statement.

(C) Absentee ballots may be delivered to the county clerk in person by the administrator or by mail.

(4) Before obtaining an absentee ballot, an administrator shall submit to the county clerk an affidavit, signed and dated by the administrator, stating:

(A) That he or she is the administrative head of a long-term care or residential care facility licensed by the state;

(B) The name and address of the facility;

(C) That he or she has been authorized by the voters who reside in his or her facility to obtain from the county clerk and return to the county clerk absentee ballots on their behalf;

(D) That each of the voters for whom the administrator seeks to obtain an absentee ballot has named the administrator on his or her application; and

(E) That the administrator understands that Arkansas law requires that at least one (1) long-term care or residential care facility staff member is required to witness the administrator assist the voter by marking a ballot on behalf of the voter without any comment or interpretation.

(5) The county clerk shall attach a copy of the administrator’s affidavit to each application for an absentee ballot delivered by the administrator to the county clerk.

(6) When the ballots are returned by the administrator in person or by mail, the county clerk shall write or stamp the word “ADMINISTRATOR” and write the administrator’s name on the voter’s absentee ballot return envelope.

(e) Any person who knowingly makes a false statement on an affidavit required by this section shall be guilty of perjury and subject to a fine of up to ten thousand dollars (\$10,000) or imprisonment of up to ten (10) years.

History. Acts 2007, No. 543, § 2; 2009, No. 250, §§ 15-17; 2009, No. 959, §§ 16, 22; 2011, No. 1043, § 1; 2013, No. 1424, § 2; 2019, No. 965, § 2; 2025, No. 403, §§ 1, 2.

7-5-404. Applications for ballots — Definition.

(a)(1)(A)(i) Applications for absentee ballots shall be delivered to an applicant with the application blank except for the information that may be automatically populated by the voter registration system.

(ii) No voter selections shall be pre-filled on an application for an absentee ballot.

(B) Applications for absentee ballots shall be signed by the applicant and verified by the county clerk by checking the voter's name, address, date of birth, and signature from the voter registration application unless the application is sent by electronic means.

(C) If the application is sent by electronic means, the application shall bear a verifiable facsimile of the applicant's signature.

(D) If an applicant is given assistance filling out an application for an absentee ballot, the person giving assistance to the applicant shall provide his or her name, address, and signature on the application.

(2)(A) If the signatures on the absentee ballot application and the voter registration application record are not similar, the county clerk shall not provide an absentee ballot to the voter.

(B) If the absentee ballot request is rejected under subdivision (a)(2)(A) of this section, the county clerk shall:

(i) Provide notice promptly to the voter of the rejection;

(ii) Allow the voter to resubmit the request; and

(iii) Electronically record the rejection in the permanent system maintained by the county clerk.

(C) The notice to the voter under subdivision (a)(2)(B) of this section shall be made by:

(i) The most efficient means available, including without limitation by telephone or email; and

(ii) Written notice sent by first-class mail to the address where the voter is registered to vote.

(3) Delivery of the request for an absentee ballot to the county clerk may be made in one (1) of the following ways, and in no other manner:

(A) For applications submitted using the form prescribed in § 7-5-405:

(i) In person at the office of the county clerk of the county of residence of the voter no later than the time the county clerk's office regularly closes on the Friday before election day;

(ii) Applications by mail must be received in the office of the county clerk of the county of residence of the voter not later than seven (7) days before the election for which the application was made;

(iii) A designated bearer may deliver the completed application to the office of the county clerk of the county of residence of the applicant not later than the time the county clerk's office regularly closes on the Friday before election day;

(iv) A person declared as the authorized agent of the applicant may deliver the application to the office of the county clerk of the county of residence of the applicant not later than 1:30 p.m. on the day of the election;

(v) An administrator may deliver the application in person at the office of the county clerk of the county of residence of the voter no later than the time the county clerk's office regularly closes on the Friday before election day; or

(vi)(a) Delivery by electronic means to the county clerk's office of the county of residence of the voter not later than seven (7) days before the election for which the application was made.

(b) The completed application sent by electronic means will be accepted only upon verification of the facsimile signature of the applicant by the county clerk.

(c) Once verified as a reasonable likeness of the voter's signature, the signature appearing on a copy of an application sent by electronic means shall be presumed to be authentic until proven otherwise; or

(B) If the applicant does not use the form prescribed in § 7-5-405, he or she may make an application for an absentee ballot as follows:

(i) A letter or postcard must be received in the office of the county clerk not later than seven (7) days before the date of the election. The letter or postcard shall contain information sufficient for the county board of election commissioners and the county clerk to accept the letter or postcard in lieu of the application form; or

(ii) An applicant may transmit a written request for an absentee ballot by electronic means that shall contain the voter's signature and other information sufficient for acceptance in lieu of the application form.

(b)(1) Any person eligible to vote by absentee ballot may request the county clerk to mail to an address within the continental United States an application for an absentee ballot.

(2)(A) For those persons voting by absentee ballot who reside outside the county in which they are registered to vote, the application shall remain in effect for one (1) year unless revoked by the voter, and the county clerk shall thereafter automatically mail no later than twenty-five (25) days before each election an absentee ballot for each election.

(B)(i) For those persons voting by absentee ballot who reside within the county in which they are registered to vote, the application shall be valid for only one (1) election cycle.

(ii) The election cycle shall include any one (1) election and the corresponding runoff election.

(C)(i) For a voter residing in a long-term care or residential care facility licensed by the state the application shall remain in effect for one (1) calendar year unless withdrawn by the voter.

(ii) The county clerk automatically shall mail no later than twenty-five (25) days before each election an absentee ballot for each election unless, before mailing, the administrator of the facility has presented an absentee ballot request from the voter authorizing the administrator to receive the absentee ballot on behalf of the voter for that election.

(D)(i) For a voter with a disability as defined in § 7-5-311, the application shall remain in effect for one (1) calendar year unless withdrawn by the voter.

(ii) The county clerk automatically shall mail no later than twenty-five (25) days before each election an absentee ballot for each election.

(c) The following may request an absentee ballot for one (1) or more elections, up to and including the next regularly scheduled general election for federal office, including without limitation any runoff elections that may occur as a result of the outcome of the general elections, by submitting one (1) application during that period of time in the manner provided under subsection (a) of this section:

(1) A citizen of the United States temporarily residing outside the territorial limits of the United States;

(2) A member of the uniformed services of the United States while in active duty or service, including his or her spouse or dependent, who by reason of active duty or service of the member is absent from the place of residence where the member, spouse, or dependent is otherwise qualified to vote;

(3) A member of the United States Merchant Marine while in active duty or service, including his or her spouse or dependent, who by reason of the active duty or service of the member is absent from the place of residence where the member, spouse, or dependent is otherwise qualified to vote; and

(4) A member of the Arkansas National Guard while in state active duty or service, including his or her spouse or dependent, who by reason of state active duty or service of the member is absent from the place of residence where the member, spouse, or dependent is otherwise qualified to vote.

(d) As used in this section, “electronic means” means a scanned image sent by:

(1) Electronic mail; or

(2) Facsimile machine.

History. Acts 1969, No. 465, Art. 9, § 4; 1981, No. 685, § 1; 1983, No. 430, § 1; 1985, No. 1019, § 1; A.S.A. 1947, § 3-904; Acts 1987, No. 248, § 9; 1987, No. 843, § 1; 1991, No. 863, § 1; 1993, No. 303, § 1; 1993, No. 1201, § 1; 1995, No. 686, § 3; 1995, No. 948, § 3; 1997, No. 1092, § 1; 1999, No. 1111, § 1; 1999, No. 1538, §§ 2, 3; 2003, No. 994, § 8; 2005, No. 67, § 11; 2007, No. 543, § 1; 2007, No. 556, § 3; 2009, No. 250, § 4; 2009, No. 959, § 16; 2011, No. 1188, § 1; 2013, No. 1424, § 3; 2019, No. 462, § 7; 2021, No. 736, §§ 2, 3; 2021, No. 973, § 1; 2023, No. 320, § 1.

Publisher’s Notes. Former § 7-5-404, concerning voting by mail, was repealed by identical Acts 1995, Nos. 686 and 948, § 4. The section was derived from Acts 1969, No. 465, Art. 9, § 16; 1970 (1st Ex. Sess.), No. 6, § 1; A.S.A. 1947, § 3-916.

Former § 7-5-403 has been renumbered by Acts 2009, No. 959, § 16 as § 7-5-404.

7-5-405. Application form.

(a)(1) Applications for absentee ballots may be made on a form or forms prescribed by the Secretary of State and furnished by the county clerk at least sixty (60) days before the election.

(2) The form or forms shall contain the following information:

(A) The following statement:

“IF YOU PROVIDE FALSE INFORMATION ON THIS FORM, YOU MAY BE GUILTY OF PERJURY AND SUBJECT TO A FINE OF UP TO \$10,000 OR IMPRISONMENT FOR UP TO 10 YEARS.”;

(B) A statement in which the voter must indicate that he or she is requesting an absentee ballot because he or she will be:

- (i) Unavoidably absent from the polling site on election day;
- (ii) Unable to attend the polls on election day because of illness or physical disability;
- (iii) Unable to attend the polls on election day because of residence in a long-term care or residential facility licensed by the state; or
- (iv) Unable to attend the polls due to observance of a religious discipline or religious holiday during the entire twelve (12) hours that the polls are open on election day;

(C) A statement by the voter indicating whether he or she resides outside the county;

(D) A statement indicating whether the voter is a United States citizen residing outside the territorial limits of the United States;

(E) A statement indicating whether the voter is in active service as a member of the armed services of the United States;

(F) Mailing information for the ballot or the name and signature of a designated bearer, an administrator, or an authorized agent;

(G) The date, the voter's printed or typed name, voting residence address, date of birth, and the voter's signature attesting to the correctness of the information provided under penalty of perjury;

(H) The election in which the voter wishes to cast an absentee ballot; and

(I) A statement indicating whether the voter has received assistance filling out the application for an absentee ballot, and the name, address, and signature of the person providing assistance.

(3)(A) The form or forms shall contain a portion to include a sworn statement that may be completed by a voter stating that the voter is registered to vote and that he or she is the person who is registered.

(B) The sworn statement portion of the form or forms under subdivision (a)(3)(A) of this section is not required to be notarized but shall be executed by the voter under penalty of perjury.

(b) The Secretary of State may prescribe separate absentee ballot application forms for:

(1)(A) Persons who reside within the county in which they are registered to vote and will be unavoidably absent from the polls on the date of the election.

(B) The application shall be valid for one (1) election cycle, which includes any one (1) election and the corresponding runoff election;

(2)(A) Persons whose application would be valid for one (1) calendar year.

(B) This includes the following:

- (i) Persons who reside outside the county in which they are registered to vote;
 - (ii) Persons in long-term care or residential facilities licensed by the state; and
 - (iii) Voters with disabilities; and
- (3) Persons whose applications would be valid through the next regularly scheduled general election for federal office, including any resulting runoff elections.

(c) Any person may distribute blank applications for absentee ballots.

History. Acts 1969, No. 465, Art. 9, § 5; 1971, No. 184, § 2; 1983, No. 430, § 2; 1985, No. 1019, § 2; A.S.A. 1947, § 3-905; Acts 1987, No. 843, § 2; 1989, No. 912, § 7; 1993, No. 303, § 2; 1993, No. 1201, § 2; 1995, No. 686, § 5; 1995,

No. 948, § 5; 1997, No. 1092, § 2; 1999, No. 918, § 1; 2001, No. 1789, § 9; 2003, No. 1202, § 1; 2003, No. 1275, § 1; 2005, No. 67, § 12; 2007, No. 543, § 3; 2007, No. 556, § 4; 2009, No. 250, §§ 5, 6; 2011, No. 1188, § 2; 2013, No. 1424,

§ 4; 2017, No. 633, § 10; 2023, No. 141, § 2; 2023, No. 320,
§ 2.

7-5-406. Members of uniformed services and other citizens residing outside the United States.

(a) Any qualified elector of this state in any of the following categories who is absent from the place of his or her voting residence may make a request for an absentee ballot by submission of a federal postal card application as provided for in the Uniformed and Overseas Citizens Absentee Voting Act and may vote without prior registration by regular absentee ballot or by Federal Write-in Absentee Ballot in any election held in his or her election precinct if he or she is otherwise eligible to vote in that election:

(1) Members of the uniformed services of the United States while in active duty or service, and their spouses and dependents who, by reason of the active duty or service of the member, are absent from the place of residence where the spouses or dependents are otherwise qualified to vote;

(2) Members of the United States Merchant Marine while in active duty or service and their spouses and dependents who, by reason of the active duty or service of the member, are absent from the place of residence where the spouses or dependents are otherwise qualified to vote;

(3) Citizens of the United States residing or temporarily outside the territorial limits of the United States and the District of Columbia; and

(4) Members of the Arkansas National Guard while in state active duty or service, and their spouses and dependents who, by reason of the state active duty or service of the member, are absent from the place of residence where the spouses or dependents are otherwise qualified to vote.

(b)(1) The ballot or ballots shall be transmitted according to state laws or rules and federal laws, rules, and regulations.

(2) The Secretary of State shall establish and transmit to each county clerk and each county board of election commissioners procedures in accordance with state and federal law that:

(A) Allow absent uniformed services voters and absent overseas voters to request, either by mail or electronically, voter registration applications and absentee ballot applications for all elections in the state;

(B) Allow county clerks to send by mail or electronically, in accordance with the preferred method of transmission designated by the absent uniformed services voter or absent overseas voter, voter registration applications and absentee ballot applications;

(C) Allow the absent uniformed services voter or absent overseas voter to designate whether the voter prefers that the voter registration application or absentee ballot application be transmitted by mail or electronically;

(D) Allow the transmission by mail and, to the extent funding is available, electronically of blank absentee ballots to absent uniformed services voters and absent overseas voters for all elections in the state in a manner that expedites the transmission of absentee ballots;

(E) Allow county clerks and county boards of election commissioners to accept and process marked absentee ballots of absent uniformed services voters and absent overseas voters;

(F) Ensure, to the extent practicable, the protection of the security and integrity of the voter registration and absentee ballot request process and the privacy of the identity and other personal data of an absent uniformed services voter or absent overseas voter who requests or is sent a voter registration application, absentee ballot application, or absentee ballot throughout the process of making a request or being sent an application or ballot; and

(G) Establish, to the extent funding is available, a free access system by which an absent uniformed services voter or absent overseas voter may determine whether the absentee ballot of the absent uniformed services voter or absent overseas voter has been received by the appropriate election official.

(3) The Secretary of State shall:

(A) Provide each county clerk and each county board of election commissioners with written copies of the procedures under subdivision (b)(2) of this section by February 1 of each even-numbered year; and

(B) Promptly notify each county clerk and each county board of election commissioners of changes in relevant laws, rules, federal regulations, or procedures.

(4) Notwithstanding any other provisions in this title, if selected by any grantor, this state or any county in this state may participate in a Federal Voting Assistance Program project which allows members of the uniformed services and voters overseas to register to vote and to vote in elections electronically, according to state laws and rules, and federal laws, rules, and regulations, if funds are available.

(c)(1)(A) Except as provided in subdivision (c)(1)(B) of this section, for the qualified electors in the categories named in subsection (a) of this section who are temporarily outside the territorial limits of the United States, the county board of election commissioners shall prepare a special absentee ballot for each preferential primary and general election to be sent to the voter in addition to the regular absentee ballot.

(B) The county board of election commissioners shall not prepare a special absentee ballot for a nonpartisan judicial election.

(2)(A) The special absentee ballot shall contain a list of all offices contested by three (3) or more candidates and the candidates qualifying for the election in each office.

(B) The special absentee ballot shall permit the elector to vote in the general primary election or in a general runoff election by indicating his or her order of preference for each candidate for each office.

(C)(i) To indicate his or her order of preference for each candidate for each office, the voter shall put the number one (1) next to the name of the candidate who is the voter's first choice, the number two (2) for the voter's second choice, and so forth, so that, in consecutive numerical order, a number indicating the voter's preference is written by the voter next to the candidate's name on the ballot.

(ii) However, the voter shall not be required to indicate his or her preference for more than one (1) candidate on the ballot if he or she chooses.

(3) The special absentee ballot shall be marked as a "special runoff ballot".

(4) Instructions shall be sent with the special absentee ballot to the voter explaining the special runoff voting process.

History. Acts 1969, No. 465, Art. 9, §§ 5, 7, 8; 1971, No. 184, § 2; 1971, No. 261, §§ 25, 26; 1977, No. 739, § 1; 1983, No. 430, §§ 2, 4; 1985, No. 1019, § 2; A.S.A. 1947, §§ 3-905, 3-907, 3-908; Acts 1997, No. 1092, § 3; 2001, No. 1180, § 1; 2003, No. 107, § 1; 2003, No. 749, § 1; 2003, No. 994, § 9; 2005, No. 751, § 1; 2007, No. 233, § 1; 2007, No. 261, § 1; 2007, No. 556, §§ 5, 6; 2009, No. 250, §§ 7, 8; 2009, No. 659, § 6; 2009, No. 703, § 1; 2011, No. 1188, § 3; 2019, No. 315, §§ 417-419; 2019, No. 462, § 8.

7-5-407. Preparation and delivery of ballots.

(a)(1) The county board of election commissioners shall:

(A) Prepare official absentee ballots and securely deliver them to the county clerk for mailing to all qualified applicants as soon as practicable but not later than forty-seven (47) days before a preferential primary election, general election, school election, nonpartisan general election, nonpartisan runoff election, or special election;

(B) Provide a ballot count report to the county clerk listing the:

(i) Date of delivery;

(ii) Method of delivery;

(iii) Total number of ballots provided by ballot style; and

(iv) Names and signatures of the persons delivering the ballots;

(C) Maintain the ballot count report for each additional delivery of ballots with separate entries per delivery by ballot style and date; and

(D) Keep a record of the ballot count report available to the public.

(2) Upon the receipt of the absentee ballots, the county clerk shall begin delivering ballots to absentee voters as soon as practicable and, no later than forty-six (46) days before the applicable election, shall deliver ballots to those absentee voters who made timely application under:

(A) Section 7-5-406; or

(B) The Uniformed and Overseas Citizens Absentee Voting Act, 52 U.S.C. § 20301 et seq., as existing on January 1, 2023.

(b) The county board of election commissioners shall prepare official absentee ballots and deliver them to the county clerk for mailing to any qualified applicant as soon as practicable but in any event not later than ten (10) days before all other elections not included in subsection (a) of this section.

History. Acts 1969, No. 465, Art. 9, § 2; 1971, No. 261, § 28; A.S.A. 1947, § 3-902; Acts 1997, No. 1092, § 4; 1999, No. 649, § 1; 2001, No. 1789, § 10; 2007, No. 1049, § 17; 2011, No. 1185, § 7; 2013, No. 1110, § 5; 2023, No. 329, § 2.

7-5-408. List of applications — Preparation, preservation, and inspection.

(a) The county clerk shall make a list of the applications for absentee ballots as the applications are received and shall keep the list of applications and retain the application forms after the election in which they are to be used for the same period as is required for retaining ballots.

(b) When each absentee ballot is returned to the county clerk, the clerk shall indicate on the list of applications that the absentee ballot was returned.

(c) The list and applications shall be available to public inspection during regular business hours from sixty (60) days prior to the election until they are destroyed.

(d)(1) The county clerk shall record in the electronic voter registration system the date the county clerk receives the voter's:

(A) Absentee ballot application; and

(B) Absentee ballot.

(2) Except as provided in subdivision (d)(3) of this section, during the sixty (60) days before election day, the county clerk shall record in the electronic voter registration system:

(A) Within one (1) business day after the receipt of the voter's absentee ballot, the date the county clerk received the voter's absentee ballot; and

(B) Within two (2) business days after receipt of the voter's absentee ballot application, the date the county clerk received the absentee ballot application.

(3) If a voter's absentee ballot is received by the county clerk on election day, the county clerk immediately shall record the date the absentee ballot was received.

(4) The county clerk shall not provide an absentee ballot to an election official for counting unless the ballot has been marked as received in the electronic voter registration system.

History. Acts 1969, No. 465, Art. 9, § 6; 1983, No. 430, § 3; 1985, No. 567, § 5; 1985, No. 568, § 5; A.S.A. 1947, § 3-906; Acts 1997, No. 1092, § 5; 2013, No. 1424, § 5.

7-5-409. Materials furnished to qualified voters.

(a)(1)(A) The county clerk shall satisfy himself or herself that the applicant for an absentee ballot is a qualified registered elector in the ward, precinct, or township in which he or she claims to be a resident or that the applicant does not require prior registration under § 7-5-406.

(B) The county clerk shall verify that the application has been properly signed by the applicant and, if necessary, the designated bearer, administrator, or authorized agent. If the application is not properly signed, the application shall be rejected by the county clerk.

(C) The county clerk shall notify the applicant of the reason for the rejection.

(2) If the county clerk is unable to contact the applicant to cure the deficiency, the county clerk shall forward the application with the reason for the rejection to the county board of election

commissioners. The county board of election commissioners shall determine whether the applicant is a qualified elector.

(b) If the applicant is registered or is otherwise eligible to vote absentee, the county clerk, prior to mailing or delivering the ballot, shall detach the ballot stub and deposit the ballot stub into a sealed box designated as “Absentee Stub Box” and deliver to the applicant or to the applicant’s designated bearer, authorized agent, or administrator for delivery to the applicant the following materials:

- (1) An official absentee ballot for each election named in the application;
- (2) Instructions for voting and returning the official absentee ballot to the county clerk;
- (3) An official absentee ballot secrecy envelope on which there shall be written or printed the words “Ballot Only”;

(4)(A)(i) A uniform voter statement created and approved by the State Board of Election Commissioners.

(ii) The voter statement shall include the following heading in bold capitalized letters: **“THIS VOTER STATEMENT SHALL BE COMPLETED AND RETURNED IN THE MAILING ENVELOPE OR THE ABSENTEE BALLOT WILL NOT BE COUNTED.”**

(iii) The voter statement shall include the following statement in bold capitalized letters at the bottom of the page: **“I AM DULY QUALIFIED TO VOTE AT THIS ELECTION ACCORDING TO THE ARKANSAS CONSTITUTION, I HAVE NOT YET VOTED DURING THIS ELECTION, THE BALLOT OR BALLOTS CONTAINED IN THIS ENVELOPE IS MY BALLOT, AND I HAVE RECEIVED NO ASSISTANCE IN VOTING MY BALLOT THAT I WOULD NOT HAVE BEEN ENTITLED TO RECEIVE HAD I VOTED IN PERSON AT MY VOTING PRECINCT. THE INFORMATION I HAVE PROVIDED IS TRUE TO THE BEST OF MY KNOWLEDGE UNDER PENALTY OF PERJURY. IF I HAVE PROVIDED FALSE INFORMATION, I MAY BE SUBJECT TO A FINE OF UP TO TEN THOUSAND DOLLARS (\$10,000) OR IMPRISONMENT FOR UP TO TEN (10) YEARS, OR BOTH, UNDER FEDERAL OR STATE LAWS.”**

(iv) The voter statement shall include a statement that the voter resides at the address on his or her application.

(v) The voter statement shall include a statement for a first-time voter who registers by mail: “If I am a newly registered voter of this county and this is the first time I am voting in this county, I am enclosing a copy of a current and valid photo identification card or a current utility bill, bank statement, government check, paycheck, or other government document that shows my name and address.”

(B) Blanks shall be provided for the voter to provide his or her printed name, signature, mailing address, residential voting address, date of birth, printed name and address of the administrator, authorized agent, or designated bearer, signature of administrator, authorized agent, or designated bearer, and address of the administrator, authorized agent, or designated bearer.

(C)(i) The voter statement shall include a sworn statement portion that may be completed by the voter stating that the voter is registered to vote and that he or she is the person who is registered.

(ii) The sworn statement portion of the voter statement is not required to be notarized, but the voter shall execute the sworn statement under penalty of perjury.

(iii)(a) The signing of the sworn statement shall be witnessed by at least one (1) individual who is eighteen (18) years of age or older.

(b) The witnessing requirement under subdivision (b)(4)(C)(iii)(a) of this section shall not apply to a voter who has applied for his or her absentee ballot due to one (1) of the following, as evidenced by his or her absentee voting application:

(1) The voter is unable to attend the polls on election day because of an illness or physical disability;

(2) The voter is a resident of a long-term care or residential facility licensed by the state;

(3) The voter is unable to attend the polls on election day due to an observance of a religious discipline or religious holiday; or

(4) The voter:

(A) Is in active service as a member of the armed services of the United States or the voter is a spouse or a dependent of a person who is in active service as a member of the armed services of the United States; and

(B) Resides outside the county.

(D) Blank fields shall be provided for the witness of the sworn statement's signature to provide his or her:

(i) Printed name;

(ii) Signature; and

(iii) Mailing address;

(5) A sealable envelope upon which shall be printed or written the words: "Return Envelope", the address of the county clerk, the precinct of the voter, and the words: "ABSENTEE BALLOT,, ELECTION"; and

(6) An authorized agent authorization form, as follows:

"AGENT AUTHORIZATION FORM

If applicable, fill out and sign this form and place it in the Return Envelope

I hereby authorize(insert his or her name) as my authorized agent, to deliver this ballot as I am medically unable to vote on election day. An affidavit verifying my medical status as unable to deliver the application or to vote on the day of the election is attached or has been provided with my application.

Signature of voter

Printed name of voter

Address of voter

Date of birth of voter."

(c)(1) Except for absentee ballots mailed to an address outside the county in which the applicant is registered, an absentee ballot shall be mailed to the address that appears on the applicant's registration record or absentee ballot application if the voter is temporarily at a different address.

(2) The county clerk shall not mail more than two (2) absentee ballots to the same address unless:

(A) The address is outside the territorial limits of the United States;

(B) The address is for a long-term care or residential care facility licensed by the state; or

(C) There are more than two (2) persons lawfully registered at the same address.

(d) The county clerk shall not deliver an absentee ballot to any person other than the absentee voter unless the person picking up the ballot:

(1) Is either:

(A) The voter's:

(i) Designated bearer; or

(ii) Authorized agent; or

(B) The administrator of a long-term care or residential care facility licensed by the state in which the voter resides; and

(2) Provides to the county clerk a current and valid federal-issued or state-issued document or identification card that includes his or her name and photograph.

(e) The county clerk shall not provide more than two (2) absentee ballots per election to any designated bearer or authorized agent, nor shall the county clerk accept delivery of more than two (2) absentee ballots per election from any designated bearer or authorized agent.

(f) A designated bearer shall be allowed to pick up only two (2) absentee ballots from the county clerk only during the fifteen (15) days prior to a school election, special election, preferential

primary election, or general election and seven (7) days prior to a runoff election, including a general primary election.

(g) Upon delivery of an absentee ballot to an individual authorized to receive an absentee ballot, the county clerk shall mark the electronic voter registration list and the precinct voter registration list to indicate that an absentee ballot has been delivered to the voter.

(h) The county clerk or other designated election official providing materials to qualified voters shall not distribute:

- (1) Unsolicited absentee ballot applications to electors; or
- (2) Unsolicited absentee ballots to electors.

(i) The county clerk and other designated election officials providing materials to qualified voters may:

- (1) Display a printable or downloadable absentee ballot application form on the internet;
- (2) Post links to the absentee ballot application form on social media of any type; and
- (3) Make paper copies of absentee ballot application forms available for distribution or to be available upon request by a qualified voter in:

- (A) The county clerk's office; or
- (B) Other governmental offices.

(j) A person who purposely violates subsection (h) of this section upon conviction shall be guilty of a Class A misdemeanor.

History. Acts 1969, No. 465, Art. 9, § 7; 1971, No. 261, § 1; 2003, No. 647, § 1; 2003, No. 994, § 10; 2003, No. 1202, § 2; 2003, No. 1275, §§ 2, 3; 2005, No. 880, § 4; 2005, No. 2193, § 3; 2007, No. 543, § 4; 2007, No. 556, § 7; 2009, No. 26, § 2; 2009, No. 250, §§ 9, 10; 2009, No. 375, § 2; 2013, No. 1424, §§ 6-8; 2017, No. 633, § 11; 2021, No. 736, §§ 4-7; 2023, No. 320, §§ 3, 4; 2025, No. 846, §§ 1, 2.

7-5-410. Instructions and notice included with voting materials — Other enclosures prohibited.

It shall be unlawful for any person to place any notice, advertising material, or other advice with the material delivered or mailed to the applicant, other than instructions as to the method of casting an absentee ballot including a procedure to be followed by absentee voters such as express information covering the type or types of writing instruments which may be used to mark the absentee ballot, preferably pen or indelible pencil, the consequences of voting for more than one (1) candidate for a particular office, and notice of the last day on which the ballot may be received and counted. The instructions and notice shall not be signed by the name of any person.

History. Acts 1969, No. 465, Art. 9, § 9; 1971, No. 261, § 27; A.S.A. 1947, § 3-909; Acts 2009, No. 959, § 17.

7-5-411. Methods of voting absentee.

(a)(1) Absentee voting may be accomplished in one (1) of the following methods and in no other manner:

(A)(i) By delivery of the ballot by mail that must be received in the office of the county clerk of the county of residence of the voter not later than 7:30 p.m. on election day.

(ii)(a) However, except as provided in subdivision (a)(1)(A)(ii)(b) of this section, by ballots of qualified electors outside the United States on election day that are signed, postmarked, and mailed by the voters no later than the day of the election and received by the county clerk no later than 5:00 p.m. ten (10) calendar days after the date of the election.

(b) The absentee ballots of armed services personnel serving in active status shall be counted if received by the county clerk no later than 5:00 p.m. ten (10) calendar days after the date of the election and if the absentee ballots were executed no later than the date of the election.

(iii) Each absentee ballot shall be mailed separately by the voter and shall not be included with any other absentee ballot in a bulk mailing, except that an administrator of a long-term

care or residential care facility licensed by the State of Arkansas or hospital may mail the absentee ballots of the residents and patients by bulk mail. Absentee ballots in any bulk mailing not otherwise permitted in this subsection shall not be counted;

(B) By delivery of the ballot to the physical office of the county clerk of the county of residence of the voter not later than 7:30 p.m. on election day by the authorized agent of the absentee voter who is medically unable to vote at the regular polling site, upon proper verification of the signature of the voter by the county clerk and validation of the identity of the authorized agent;

(C) By delivery of the ballot to the physical office of the county clerk of the county of residence of the voter not later than the time the county clerk's office regularly closes on the Friday before election day by the registered voter, designated bearer, or administrator of the absentee voter, upon proper verification of the signature of the voter by the county clerk and validation of the identity of the registered voter, designated bearer, or administrator; or

(D) The voter may deliver the ballot to the physical office of the county clerk of the county of his or her residence not later than the close of regular business hours on the Friday before the election.

(2)(A) A county clerk, public employee, or election official shall not establish or use a drop box for the purpose of collecting absentee ballots.

(B) No person shall deliver an absentee ballot through a drop box.

(3) All absentee ballots not delivered by mail shall be hand-delivered inside the physical office of the county clerk under the requirements of this section and chapter.

(b) Any person to whom an absentee ballot is delivered according to the precinct voter registration list but who elects to vote by early voting or to vote at his or her polling site on election day shall be permitted to cast a provisional ballot.

History. Acts 1969, No. 465, Art. 9, § 10; 1970 (1st Ex. Sess.), No. 28, § 1; 1981, No. 685, § 2; 1983, No. 430, § 5; 1985, No. 567, § 4; 1985, No. 568, § 4; 1985, No. 612, § 2; 1985, No. 1024, § 1; A.S.A. 1947, § 3-910; Acts 1987, No. 843, § 4; 1989, No. 912, § 9; 1997, No. 1092, § 7; 1999, No. 491, § 1; 1999, No. 1538, § 4; 1999, No. 1586, § 1; 2001, No. 1257, § 1; 2001, No. 1767, § 1; 2003, No. 273, § 1; 2003, No. 1275, § 4; 2005, No. 2193, § 4; 2007, No. 543, § 5; 2007, No. 556, § 8; 2009, No. 250, §§ 11, 12; 2021, No. 973, § 2; 2023, No. 353, § 2; 2023, No. 421, § 1.

7-5-412. Marking and return of absentee ballots — Delivery of mailed absentee ballots.

(a) Upon receiving the blank absentee ballot, voter statement, and envelopes, whether in the office of the county clerk or elsewhere, the voter shall mark the absentee ballot and place the absentee ballot in the provided envelope. He or she shall then seal the envelope containing the absentee ballot and place it in the other provided outer envelope with the following:

(1) The completed and executed voter statement, including identification of the designated bearer, authorized agent, or administrator when appropriate; and

(2)(A) Verification of voter registration; or

(B) A copy of a current and valid photographic identification or a copy of a current utility bill, bank statement, government check, paycheck, or other government document that shows the name and address of the first-time voter, for first-time voters who registered by mail. However, this requirement does not apply if:

(i) The voter registered to vote by mail and provided the identification at that time; or

(ii) The first-time voter registered to vote by mail and submitted his or her driver's license number or at least the last four (4) digits of his or her Social Security number at the time and this information matches the information in an existing state identification record bearing the same number, name, and date of birth as provided in the registration.

(b) A voter who desires to cast an absentee ballot but who does not meet the identification requirements of subdivision (a)(2) of this section may cast his or her absentee ballot by mail, and the absentee ballot shall be considered as a provisional ballot.

(c) After recording receipt of the absentee ballot in the electronic voter registration system, absentee ballots received by mail on election day before the polls close shall be delivered promptly by the county clerk to the election officials designated to canvass and count absentee ballots.

History. Acts 1969, No. 465, Art. 9, § 11; 1970 (1st Ex. Sess.), No. 28, § 2; A.S.A. 1947, § 3-911; Acts 1997, No. 1092, § 8; 2003, No. 647, § 2; 2003, No. 994, § 11; 2005, No. 880, § 5; 2007, No. 556, § 9; 2009, No. 250, § 13; 2013, No. 1424, § 9; 2017, No. 633, § 12; 2021, No. 249, § 5.

7-5-413. Voting machines — Related duties.

(a)(1) At least one (1) voting machine equipped for use by individuals with disabilities shall be placed in the county clerk's designated location for early voting for the election in accordance with this subchapter and at any off-site polling locations established by the county board of election commissioners.

(2) Those persons entitled under the law to vote early by personal appearance shall cast their votes on voting systems under the laws applicable to early voting, and the clerk or election official shall enter the name of each voter on a list at the time he or she votes in the presence of an authorized poll watcher, if any.

(b) After regular business hours, the clerk at the clerk's designated early voting location or the election official at any off-site polling place shall secure the machines against further voting at the close of each day's voting in the presence of authorized poll watchers, if any. When early voting is concluded, the clerk or the election official shall secure the machines against further voting.

(c)(1)(A) At the time designated in the notice of election, a set of election officials for the machines used for early voting shall canvass the vote in the manner provided for regular polling sites in the presence of an authorized poll watcher, if any.

(B) After the canvass has been made, the machines shall be secured and shall remain inaccessible to voting in the presence of an authorized poll watcher, if any.

(2) The results of the canvass shall be returned to the county board of election commissioners to be tabulated and canvassed with and in the same manner as the returns of other election precincts.

(d) Any candidate or political party may be present in person or by a representative designated in writing during the progress of early voting and at the canvass of the results in any election for the purpose of determining whether or not the votes in any election are fairly and accurately cast and counted.

History. Acts 1969, No. 465, Art. 9, § 16; 1970 (1st Ex. Sess.), No. 6, § 1; 1985, No. 567, § 6; 1985, No. 568, § 6; A.S.A. 1947, § 3-916; Acts 1995, No. 686, § 6; 1995, No. 948, § 6; 1997, No. 1092, § 9; 2005, No. 2233, § 8; 2007, No. 556, § 10; 2007, No. 1020, § 12; 2023, No. 444, §§ 4, 5.

7-5-414. Appointment of election clerks — Qualifications.

(a) The county board of election commissioners shall appoint election clerks to process, count, and canvass the absentee voters' ballots in all elections.

(b)(1) The election clerks who are to canvass the absentee ballots shall be appointed in the same manner and at the same time the poll workers are selected to serve at the regular voting precincts.

(2) The election clerks shall possess the same qualifications as the poll workers who serve at the regular voting precincts.

(c) The processing, counting, and canvassing of the absentee ballots shall be under the supervision and at the direction of the county board of election commissioners.

History. Acts 1969, No. 465, Art. 9, § 12; A.S.A. 1947, § 3-912; Acts 1997, No. 1092, § 10; 2005, No. 1827, § 5; 2007, No. 556, § 11; 2009, No. 959, § 18.

7-5-415. Compensation of county clerk for extra deputy.

The county clerk's budget shall be paid not less than minimum wage for a period not to exceed thirty-five (35) days for hiring one (1) extra deputy for the purpose of carrying out the requirements of this act. The fee for this one (1) extra deputy shall be established and paid by the

county, city, or other political subdivision, the representatives of which call the election, or in the case of a state-funded election, by the State Board of Election Commissioners. Any additional deputies beyond the one (1) extra deputy may be hired as necessary to carry out the purposes of early voting and absentee voting, if approved and paid by the quorum court of the county. In the regular general election, the fee for the one (1) extra deputy or additional deputies shall be paid by the county.

History. Acts 1969, No. 465, Art. 9, § 15; A.S.A. 1947, § 3-915; Acts 1991, No. 482, § 1; 1997, No. 1092, § 11; 2007, No. 556, § 12.

7-5-416. Counting of absentee ballots.

(a)(1) The election officials for absentee ballots shall meet in a place designated by the county board of election commissioners no earlier than the Tuesday before the election for the purpose of opening the outer envelope, processing, and canvassing of absentee ballot paper work of the outer envelope and no earlier than 8:30 a.m. on election day for the purpose of opening the inner absentee ballot envelope and counting the absentee ballots.

(2) The county board of election commissioners shall:

(A) Give public notice of the time and location of the opening, processing, canvassing, and counting of absentee ballots and early voting ballots as provided in § 7-5-202; and

(B) Allow public access for the in-person viewing of the absentee canvassing process.

(3) The county clerk shall provide the county board of election commissioners with a daily count of absentee applications received, to be reported weekly or upon request of the county board of election commissioners.

(4) The county clerk shall provide the county board of election commissioners with a daily count of absentee ballots received, to be reported weekly or upon request of the county board of election commissioners.

(5) The county clerk shall forward the following items to the election officials designated by the county board of election commissioners to open, process, canvass, and count absentee ballots:

(A) The absentee ballot applications sorted alphabetically and by precinct;

(B) The absentee ballots; and

(C) A written report containing the following information:

(i) The number of absentee ballot applications received by the county clerk;

(ii) The number of absentee ballots sent by the county clerk;

(iii) The number of absentee ballots returned to the county clerk;

(iv) The number of absentee ballots rejected by the county clerk and the reason for the rejection;

(v) The number of absentee ballots marked as received on the paper absentee ballot applications list; and

(vi) If the number of absentee ballots returned to the county clerk and the number of absentee ballots marked as received on the paper absentee ballot lists are different and the reason for the difference is known, the reason for the difference.

(6) The processing and counting of absentee ballots shall be open to the public, and candidates and authorized poll watchers may be present in person or by a representative designated in writing under § 7-5-312 during the opening, processing, canvassing, and counting of the absentee ballots as provided in this subchapter.

(7)(A) Absentee and early votes shall be counted prior to the closing of the polls on election day as provided under this section.

(B)(i) The county board of election commissioners shall report by precinct the initial count of early votes and absentee ballot votes to the Secretary of State as provided under § 7-5-701 as soon as practical after the polls close on election day.

(ii) No election results of the precinct shall be printed, posted, or released until after the polls close on election day.

(8)(A) After the outer envelope of an absentee ballot is opened, a county clerk and deputies of the county clerk shall not have access to:

- (i) The absentee ballots;
- (ii) Absentee ballot paperwork; or
- (iii) The inner envelope of an absentee ballot.

(B) The county board of election commissioners may grant a county clerk or deputies of the county clerk access to the absentee ballot materials in subdivision (a)(8)(A) of this section if the access is granted by an affirmative vote of the county board of election commissioners for a specific purpose and for a designated election.

(b)(1) The opening, processing, counting, and canvassing of absentee ballots shall be conducted as follows:

(A) One (1) of the election officials shall open outer absentee ballot envelopes one by one and verify the contents;

(B) If the required materials are properly placed in the outer absentee ballot envelope, the election official shall proceed to read aloud from the voter statement the name of the voter;

(C) If the required materials are not properly placed in the outer absentee ballot envelope, a second election official shall open the inner absentee ballot envelope to verify the contents no earlier than 8:30 a.m. on election day;

(D) If all required materials are present within one (1) or the other envelope, the election officials shall put the materials in the proper envelope while preserving the secrecy of the voter's ballot and shall proceed to read aloud from the voter statement the name of the voter and the voting precinct in which the voter claims to be a legal voter;

(E) As each outer envelope is opened and the name of the voter is read, the election officials for the absentee box shall list the name and voting precinct of the voter;

(F)(i) After the election official reads aloud from the statement, the election officials shall compare the name, address, date of birth, and signature of the voter's absentee application with the voter's statement and, for first-time voters who registered by mail, the first-time voter's identification document unless the voter previously provided identification at the time of mailing the voter registration application.

(ii) If the county board of election commissioners determines that the absentee application and the voter's statement do not compare as to name, residential voting address, date of birth, and signature, the absentee ballot shall not be counted.

(iii) If a first-time voter fails to provide the required identification with the absentee ballot or at the time of mailing the voter registration application, then the absentee application, absentee ballot envelope, and voter's statement shall be placed in an envelope marked "provisional" and the absentee ballot shall be considered a provisional ballot;

(G)(i) The election officials shall compare the name and address of the bearer, agent, or administrator written on the absentee ballot return envelope with the information on the voter statement. If the information does not match, then the outer envelope, absentee application, secrecy envelope containing the ballot, and the voter's statement shall be placed in an envelope marked "provisional" and the absentee ballot shall be considered a provisional ballot.

(ii) The election officials shall compare the name of the bearer written on the absentee ballot application with the information on the voter statement, and if the information does not compare, the ballot shall be a provisional ballot.

(iii) An absentee ballot designated as a provisional ballot for the lack of a designation of, or name of, a designated bearer shall be counted only if the county board of election commissioners does not determine that the provisional ballot is invalid and should not be counted based on other grounds;

(H) If the absentee voter fails to return the voter statement, the vote shall not be counted;

(I) Failure of the voter to submit the required absentee materials in the proper envelopes shall not be grounds for disqualifying the voter;

(J) If the voter statement does not authorize a bearer, agent, or administrator to receive or return his or her absentee ballot and the ballot was received or returned by a bearer, agent, or administrator, the vote shall not be counted;

(K) If no challenge is made by a qualified poll watcher, the election official shall remove the inner envelope, without opening the inner envelope containing the ballot, and place it in the ballot box without marking it in any way;

(L)(i) After all of the outer envelopes have been opened, the election officials of the absentee box shall preserve all the statements of voters and the voters' identification documents and deliver them to the county clerk, who shall file and keep them for the same length of time after the election as is required for retention of other ballots.

(ii) The voter statements shall be made available for public inspection and copying during regular business hours no earlier than 8:30 a.m. on the day following the actual delivery of the statement of the number of outstanding ballots and provisional ballots to the Secretary of State, and declaration of preliminary and unofficial results of the election under § 7-5-701(a)(3)(C).

(iii) The voters' identification documents shall not be subject to public inspection except as part of a judicial proceeding to contest the election;

(M) When all of the inner envelopes containing the ballots have been placed in the ballot box, the ballot box shall be shaken thoroughly to mix the ballots; and

(N) The ballot box shall be opened and the ballots canvassed and counted.

(2) No election results shall be printed or released prior to the closing of the polls on election day.

(c) If any person casting an absentee ballot dies before the polls open on election day, his or her ballot shall be accepted by the county clerk if the absentee ballot is:

(1) Signed, dated, postmarked, and mailed before the date of death;

(2) Signed, dated, and delivered to the county clerk by a designated bearer, authorized agent, or administrator before the date of death; or

(3) The ballot of a member of the armed services or Arkansas National Guard in active duty or state active duty executed before the date of death.

(d) It is the intent of this section to require the election officials for absentee ballots to meet and process, canvass, and count absentee ballots according to this section prior to the closing of the polls on election day.

(e)(1) Absentee votes shall be cast on paper ballots.

(2) At the discretion of the county board of election commissioners, the ballots may be either hand counted or counted on an electronic vote tabulating device.

(f)(1) Absentee ballots marked as "special runoff ballots" received from a qualified voter from one (1) of the categories in § 7-5-406(a) shall be opened for general primary elections and general runoff elections according to the procedures described in subsection (b) of this section.

(2) However, in counting the special runoff ballot, one (1) of the election officials shall open the envelope containing the special runoff ballot and read the numbers indicated next to the names of the two (2) candidates in the general primary election or in the general runoff election.

(3) The candidate with the highest ranking shall receive the vote.

(4) A special runoff ballot received with the preferential primary absentee ballot shall be counted in the general primary election, and a special runoff ballot received with the general election absentee ballot shall be counted in the general runoff election.

(5) The Secretary of State shall prepare instructions for opening, counting, and canvassing special runoff ballots and provide the instructions to each county board of election commissioners.

History. Acts 1969, No. 465, Art. 9, § 13; 1971, No. 261, § 21; A.S.A. 1947, § 3-913; Acts 1989, No. 505, § 1; 1993, No. 845, §§ 1-3; 1997, No. 1092, § 12; 1999, No. 1368, § 1; 2003, No. 647, §§ 3, 4; 2003, No. 994, § 12; 2003, No. 1154, § 3; 2003, No. 1744, § 1; 2005, No. 138, § 2; 2005, No. 751, § 2; 2005, No. 880, § 6; 2007, No. 261, § 2; 2007, No. 556, § 13; 2009, No. 250, § 14; 2009, No. 959, §§ 19, 20; 2013, No. 466, § 1; 2013, No. 1211, §§ 3, 4; 2013, No. 1424, § 10; 2017, No. 790, §§ 1-3; 2019, No. 462, § 9; 2021, No. 736, §§ 8-14; 2023, No. 329, § 3; 2025, No. 284, § 2.

7-5-417. Challenge of absentee votes.

(a) When the name and voting precinct of a voter is read by the election official, any candidate or qualified poll watcher pursuant to § 7-5-312 may challenge the vote in the manner provided by law for personal voting challenges, and the election officials shall consider the ballot as a provisional ballot.

(b) If the statement is not in proper form or for any other legal reason the vote should not be counted, the ballot shall not be counted and shall be preserved together with the statement and envelope for the same period of time that the statements are preserved.

(c) If the county board of election commissioners determines that the provisional voter is qualified and that the vote was properly cast, the vote shall be counted.

History. Acts 1969, No. 465, Art. 9, § 14; A.S.A. 1947, § 3-914; Acts 1997, No. 1092, § 13; 2003, No. 1154, § 4; 2005, No. 67, § 13; 2005, No. 880, § 7; 2007, No. 556, § 14.

7-5-418. Early voting.

(a)(1)(A) Except as provided in subdivision (a)(1)(B) of this section, early voting shall be available to any qualified elector who applies to the county clerk's designated early voting location within the county seat, beginning fifteen (15) days before a preferential primary or general election between the hours of 8:00 a.m. and 6:00 p.m. Monday through Friday and 10:00 a.m. and 4:00 p.m. Saturday and ending at 5:00 p.m. on the Monday before the election.

(B) Early voting shall not be available on state holidays.

(2)(A) Except as provided in subdivision (a)(2)(B) of this section, on all other elections, including the general primary and general runoff elections, early voting shall be available to any qualified elector who applies to the county clerk during regular office hours, beginning seven (7) days before the election and ending on the day before the election day at the time the county clerk's office regularly closes.

(B) If an annual school election is held at the same time as the preferential primary election or general election, early voting for the annual school election shall comply with subdivision (a)(1)(A) of this section.

(b)(1)(A)(i) The county board of election commissioners shall hold early voting for each preferential primary election and each general election at a polling site in each city:

(a) Having a population of more than fifteen thousand (15,000) people in the most recent federal decennial census; and

(b) Where the county clerk is not conducting early voting.

(ii) The county board of election commissioners may decide to hold early voting at additional polling sites outside the offices of the county clerk on any of the days provided for in subsection (a) of this section, if it so chooses.

(B) For each election, the county board of election commissioners shall determine by unanimous vote the location of additional polling sites for early voting.

(C) If the county board of election commissioners decides to hold early voting at an additional polling site on one (1) or more days under subdivision (b)(1)(A) of this section, the hours the additional early voting polling site is open on such day or days shall be the same hours as the county clerk's designated early voting location under subdivision (a)(1)(A) of this section for such day or days.

(D) If the county board of election commissioners is unable to secure one (1) or more additional polling sites for early voting on one (1) or more days under subdivision (b)(1)(A) of this section that will allow voting to occur during the same hours of the county clerk's designated early voting location under subdivision (a)(1)(A) of this section for such day or days, the hours the additional early voting polling site is open on such day or days shall be as close to the hours of the county clerk's designated early voting location as possible.

(2) The county board of election commissioners shall appoint the election officials for the additional early voting polling site or sites in the same manner as election officials are appointed for election day.

(3)(A) The county board of election commissioners shall notify the county clerk of its decision to hold early voting at additional polling sites outside the office of the county clerk within ten (10) days of the decision.

(B) If the county board of election commissioners decides to hold early voting at one (1) or more conveniently located polling sites on the days and times under subsection (a) of this section, the county clerk may choose not to hold early voting within the office of the county clerk. The county clerk shall notify the county board of election commissioners within ten (10) days of the receipt of notice from the county board of election commissioners regarding early voting at additional polling sites.

(4) The early voting election official shall record the date on all pages of the early voting roster or early voting request form and keep a daily record of the number of early ballots cast.

(5)(A) All voted ballots and unvoted ballots and all related election materials at each additional early voting polling site shall be stored in a secure location in the county courthouse or in a secure location as determined by the county board of election commissioners immediately after the close of the additional polling sites each day that early voting is conducted there.

(B) If the county board of election commissioners determines that the equipment and materials necessary to operate a polling site will be transferred from one (1) polling site that is opened for a portion of the early voting period to another polling site that is subsequently open during the early voting period, the following provisions shall apply to those polling sites:

(i) Ballots cast using a tabulator shall be:

(a) Secured at the central location used to secure all other ballots before or contemporaneously with the transportation of the tabulator between early voting locations; and

(b) Removed to the storage location in a container designed so that the cast ballots may be secured with a number seal without any election official being able to observe the contents of the ballots; and

(ii) Ballots cast using a marking device and a ballot box shall be:

(a) Deposited in a separate ballot box secured with a numbered seal for each polling location that is utilized; and

(b) Secured at the central location used to secure all other ballots before or contemporaneously with the transportation of the other voting equipment between early voting locations.

(c) Before a person is permitted to cast an early vote, the county clerk or election official shall:

(1) Request the voter to identify himself or herself by stating his or her name, date of birth, and address in order to verify his or her registration;

(2) Request that the voter verify his or her registration by providing a document or identification card that meets the requirements of Arkansas Constitution, Amendment 51, § 13, if required by that section;

(3) If the voter's name or address is not the same as that in the county voter registration record files, request the voter to complete an updated voter registration application form;

(4) Request the voter to sign an early voting roster or early voting request form that identifies his or her name, address, date of birth, and the date on the roster or form;

(5) Enter the voter's precinct number on the early voting roster or early voting request form;

(6) Verify if a person requested an absentee ballot according to the precinct voter registration list; and

(7) Permit a person to cast a provisional ballot if the person received an absentee ballot according to the precinct voter registration list.

(d)(1) If the voter is not listed in the county voter registration record files and the county clerk is unable to verify the voter's registration and if the voter contends that he or she is eligible to vote, then the voter may vote a provisional ballot that shall be counted only upon verification of the voter's registration status.

(2)(A) If the voter fails to present verification of voter registration, the election official shall follow the procedure in Arkansas Constitution, Amendment 51, § 13.

(B)(i) A person who is a resident of a long-term care or residential care facility licensed by the state is not required to provide verification of voter registration before voting.

(ii) A person not required to provide verification of voter registration under subdivision (d)(2)(B)(i) of this section shall provide documentation from the administrator of the facility attesting that the person is a resident of the facility.

(e) The county clerk or county board of election commissioners shall furnish voting locations that adequately allow the early voter to personally and secretly execute his or her ballot.

(f) Except as provided in this section, early voting shall be conducted in the same manner as voting on election day. Conduct that is prohibited or restricted on election day shall be subject to the same prohibitions and restrictions on the days on which early voting is conducted.

(g)(1) The county clerk shall electronically record in the permanent voter registration record of an elector who voted at an early voting location to indicate that the elector has voted.

(2) Except as provided under subdivision (g)(3) of this section, the county clerk shall electronically record in the permanent voter registration record no later than twenty-four (24) hours after the elector has voted.

(3) If the elector votes on a Friday or Saturday, the county clerk shall electronically record in the permanent voter registration record no later than the close of business on the Monday following the vote.

(h)(1) Except as provided in subdivision (h)(3) of this section, the county board of election commissioners may call an emergency meeting held in person or by electronic means to close one (1) or more early voting locations for one (1) or more days due to inclement weather.

(2) An emergency meeting called under subdivision (h)(1) of this section shall require a unanimous vote by the county board of election commissioners to close an early voting location.

(3) The county board of election commissioners shall not close at least one (1) early voting location in the county seat that shall remain open every day that is designated for early voting.

(4) As used in this subsection, “county seat” means the same as defined in § 14-14-301.

History. Acts 1995, No. 686, § 7; 1995, No. 948, § 7; 1997, No. 967, § 1; 1997, No. 1092, § 14; 2003, No. 269, § 1; 2005, No. 655, § 1; 2005, No. 880, § 8; 2005, No. 1690, § 1; 2007, No. 556, § 15; 2007, No. 987, § 1; 2009, No. 375, § 3; 2009, No. 959, § 21; 2013, No. 595, § 6; 2013, No. 979, § 1; 2013, No. 1059, § 1; 2016 (3rd Ex. Sess.), No. 14, § 6; 2016 (3rd Ex. Sess.), No. 15, § 6; 2017, No. 633, § 13; 2017, No. 910, § 7; 2021, No. 1063, § 8; 2023, No. 92, § 1; 2023, No. 246, § 1; 2023, No. 263, § 1; 2025, No. 282, §§ 3, 4; 2025, No. 766, § 1; 2025, No. 978, § 1.

7-5-419. [Transferred.]

Publisher’s Notes. Former § 7-5-419 has been renumbered by Acts 2009, No. 959, § 22 as § 7-5-403.

SUBCHAPTER 5 — VOTING MACHINES

SECTION.

- 7-5-501. [Repealed.]
- 7-5-502. Application of election laws and penalties.
- 7-5-503. Examination and approval of machines by State Board of Election Commissioners.
- 7-5-504. Machine specifications.
- 7-5-505, 7-5-506. [Repealed.]
- 7-5-507. Demonstration — Assistance in operating machine.
- 7-5-508. [Repealed.]
- 7-5-509. Machines used for demonstration.
- 7-5-510. Forms for complaints about function of voting machine — Investigation.
- 7-5-511. [Repealed.]
- 7-5-512. Certification of ballot styles — Equipment furnished to polling sites.
- 7-5-513. Machine breakdown — Delivery of ballot materials.
- 7-5-514. [Repealed.]
- 7-5-515. Preparation of machines for election — Logic and accuracy testing and public testing.
- 7-5-516. Notice to candidates of preparation — Rules and statutes unaffected.
- 7-5-517. Securing machines — Certification.

SECTION.

- 7-5-518. Machines inactivated until polls open — Adjustment of counters.
- 7-5-519. [Repealed.]
- 7-5-520. Instructions for voters using voting machines.
- 7-5-521. Arrangement of polling place.
- 7-5-522. Voting procedure.
- 7-5-523. [Repealed.]
- 7-5-524. Voter access to machines — Persons in line at closing time.
- 7-5-525. [Repealed.]
- 7-5-526. Closing of polls — Securing machines — Poll workers’ certificate.
- 7-5-527. Exposure of count — Verification — Return record — Official signatures.
- 7-5-528. Machines released to officers.
- 7-5-529. Tabulation of returns.
- 7-5-530. Securing audit materials upon election contest or recount.
- 7-5-531. Retention of audit data — Machines to remain secured until results are certified except on court order.
- 7-5-532. Direct-recording electronic voting machines — Definitions.

7-5-501. [Repealed.]

Publisher's Notes. This section, concerning acquisition — places of installation, was repealed by Acts 2005, No. 2233, § 9. The section was derived from Acts 1969, No. 465, Art. 12, §§ 3, 5; 1979, No. 738, §§ 1, 3; A.S.A. 1947, §§ 3-1203, 3-1203.1, 3-1205; Acts 1991, No. 843, § 1; 1995, No. 774, § 1; 1997, No. 446, § 1.

7-5-502. Application of election laws and penalties.

All laws of this state applicable to elections where voting is done in any manner other than by machines and all penalties prescribed for violation of these laws shall apply to elections and precincts where voting machines are used insofar as they are applicable.

History. Acts 1969, No. 465, Art. 12, § 33; A.S.A. 1947, § 3-1233.

7-5-503. Examination and approval of machines by State Board of Election Commissioners.

(a) Any person or corporation selling voting machines may apply to exhibit machines to the State Board of Election Commissioners.

(b) The state board shall examine the machine and file a report of its accuracy, efficiency, and capacity with the office of the Secretary of State.

(c) If the kind of machine examined complies with the requirements of § 7-5-504 and can be safely used by voters at elections under the conditions prescribed, the machine shall be deemed approved by the state board, and machines of its kind may be adopted for use at elections if selected for use by the Secretary of State. When the machine has been approved, any improvement or change that does not impair its accuracy, efficiency, or capacity shall not render necessary a reexamination or reapproval.

(d) A form of voting machine not approved cannot be used at any election.

History. Acts 1969, No. 465, Art. 12, § 1; A.S.A. 1947, § 3-1201; Acts 2005, No. 2233, § 10.

7-5-504. Machine specifications.

No make of voting machine shall be approved for use unless it is so constructed that:

- (1) It will ensure secrecy to the voter in the act of voting;
- (2) It shall provide the capacity for voting for or against as many questions as may be submitted;
- (3) It shall permit the voter to vote separately for the candidate of his or her choice for each office or position to be voted upon and to vote separately on each issue to be decided by election;
- (4) It shall permit the voter to vote for as many persons for an office for whom he or she is lawfully entitled to vote, but no more;
- (5) It shall prevent the voter from voting for the same candidate or question more than one (1) time;
- (6) It shall permit the voter to verify in a private and independent manner the votes selected by the voter on the ballot before the ballot is cast;
- (7) It shall provide the voter with the opportunity in a private and independent manner to change the ballot or correct any error before the ballot is cast;
- (8) If it is a direct recording electronic voting machine, it shall include a voter-verified paper audit trail, except as provided under § 7-5-301(b);
- (9) If the voter is legally entitled to select only one (1) candidate for an office but the voter selects more than one (1) candidate for the office, it shall notify the voter before the ballot is cast that he or she has selected more than one (1) candidate for the office on the ballot, notify the voter of the effect of casting multiple votes for the office, and provide the voter with the opportunity to correct the ballot before the ballot is cast;

(10) It shall permit the voter to vote for or against any question on which he or she may have the right to vote, but no other;

(11) It shall be capable of being programmed to display for voting purposes only the voter's proper ballot;

(12) It shall correctly register and record and accurately count all votes cast for any and all persons and for or against any and all questions;

(13) It shall be provided with a protective device to prevent any unauthorized operation of the machine before or after the election;

(14) It shall be provided with a counter or tabulator which shall show at all times during the election how many persons have voted;

(15) It shall be so equipped and constructed so that it can be made inaccessible to further voting after the polls have closed and all voters who were in line at the time the polls closed have voted;

(16) It shall permit a voter to vote in any election for any person for whom he or she wishes to vote when the person's name does not appear upon the voting machine;

(17) It bears a unique numerical, alphabetical, or alphanumeric sequence identifier that distinguishes it from any other machine;

(18) It shall be provided with a screen, hood, or partition which shall allow the voter to vote a secret ballot;

(19) It shall be capable of being operated from an alternate power source should the need arise;

(20) It shall permit voters with disabilities to vote unassisted if they so desire;

(21) It shall be:

(A) Qualified by an authorized federal agency or national testing and standards laboratory which is acceptable to the Secretary of State;

(B) Approved by the State Board of Election Commissioners; and

(C) Selected by the Secretary of State; and

(22) It can operate without a connection to the internet or an external network by:

(A) A cable;

(B) A wireless modem; or

(C) Any other mechanism or process.

History. Acts 1969, No. 465, Art. 12, § 2; A.S.A. 1947, § 3-1202; Acts 2005, No. 654, § 1; 2005, No. 2233, § 11; 2015, No. 1218, § 5; 2021, No. 735, § 2.

7-5-505, 7-5-506. [Repealed.]

Publisher's Notes. These sections, concerning guarantee and supervisory personnel required and purchase by sealed bid — uniformity of machines, were repealed by Acts 2005, No. 2233, § 9. The sections were derived from the following sources:

7-5-505. Acts 1969, No. 465, Art. 12, § 6; A.S.A. 1947, § 3-1206.

7-5-506. Acts 1969, No. 465, Art. 12, § 4; A.S.A. 1947, § 3-1204; Acts 1997, No. 446, § 2.

7-5-507. Demonstration — Assistance in operating machine.

(a)(1) The manufacturer shall demonstrate the machine to the county election officials prior to the first election at which the machines are placed in use.

(2) The date for the demonstration shall be agreed upon by the vendor and the county board of election commissioners.

(b) On the date of the first election at which voting machines are used, manufacturers shall make employees available in each county where the machines are in operation to assist the county board of election commissioners in any manner that will expedite voting and provide efficient operation of voting machines. After the first election, the county board of election commissioners shall obtain the assistance needed in operating the machines, and the county board of election commissioners shall collect and pay expenses for this assistance as it would for any other election cost.

History. Acts 1969, No. 465, Art. 12, § 8; A.S.A. 1947, § 3-1208; Acts 1997, No. 446, § 3; 2005, No. 2233, § 14; 2015, No. 1218, § 6.

7-5-508. [Repealed.]

Publisher's Notes. This section, concerning custody and use of machines — costs, was repealed by Acts 2005, No. 2233, § 15. The section was derived from Acts 1969,

No. 465, Art. 12, § 7; 1970 (1st Ex. Sess.), No. 5, § 1; A.S.A. 1947, § 3-1207; Acts 1997, No. 446, § 4.

7-5-509. Machines used for demonstration.

(a)(1) The county board of election commissioners may designate suitable times and places where voting machines shall be exhibited for the purpose of giving instructions in their use to all voters who apply for instruction.

(2) Public notice of the times and places where voting machines will be exhibited shall be given at least forty-eight (48) hours before the first date of demonstration by publication one (1) time in one (1) or more daily or weekly newspapers published in the town, city, or county using the machines if a newspaper is published in the town, city, or county.

(b)(1) The location of voting machines for demonstration shall be in accessible public buildings.

(2) The voting machines used for demonstration shall display sample ballots showing the title of offices to be filled and, as far as practicable, the names of the candidates in the next election.

(c) No voting machine that is to be assigned for use in any election shall be used for instruction after having been prepared and secured for the election. Machines shall not be used for demonstration purposes during the time that the polls are open on election day or if the demonstration shall in any way interfere with the proper adjustment, securing, or use of the machine in the election.

History. Acts 1969, No. 465, Art. 12, § 11; A.S.A. 1947, § 3-1211; Acts 2005, No. 2233, § 16; 2015, No. 1218, § 7.

7-5-510. Forms for complaints about function of voting machine — Investigation.

(a) At each polling place at which voting machines are used, the county board of election commissioners shall provide forms that voters may use for complaints about the function of a voting machine. The complaint form shall include space for the following information:

- (1) The name, address, and telephone number of the person making the complaint;
- (2) The identification number of the voting machine;
- (3) The complaint; and

(4) Such other information concerning the complaint as the State Board of Election Commissioners determines to be appropriate to carry out the intent of this section.

(b)(1) A voter may file a complaint form with a poll worker who shall forward the complaint form to the county board of election commissioners.

(2) A copy of each complaint shall be provided to the Elections Division of the Secretary of State.

(3) It shall be the duty of the county board of election commissioners to investigate complaints regarding the function of a voting machine.

History. Acts 1985, No. 562, § 1; A.S.A. 1947, § 3-1235; Acts 1997, No. 446, § 5; 2009, No. 959, § 23; 2015, No. 1218, § 8.

7-5-511. [Repealed.]

Publisher's Notes. This section, concerning ballot label — definition — form — content, was repealed by Acts 2005, No. 2233, § 17. The section was derived from Acts 1969,

No. 465, Art. 12, § 9; 1975, No. 358, § 1; A.S.A. 1947, § 3-1209; Acts 1987, No. 247, § 4; 1991, No. 356, §§ 1, 2; 1997, No. 446, § 6.

7-5-512. Certification of ballot styles — Equipment furnished to polling sites.

(a) It shall be the duty of the county board of election commissioners to prepare and certify the ballot styles for the voting machine.

(b) In addition, the county board of election commissioners shall furnish any election materials and supplies as may be necessary or as may be required by law.

(c) The voting machine shall be delivered by the county board of election commissioners to the election officials at each polling site.

(d) The county board of election commissioners shall supply each precinct with clear, written instructions suitable for the instruction of voters that illustrate the manner of voting on the machine.

History. Acts 1969, No. 465, Art. 12, § 12; A.S.A. 1947, § 3-1212; Acts 1997, No. 446, § 7; 2005, No. 2233, § 18; 2007, No. 222, § 9.

7-5-513. Machine breakdown — Delivery of ballot materials.

The county board of election commissioners in any county in which voting machines are to be used shall be ready at any time on election day to deliver ballots, ballot boxes, replacement voting machines, if available, or other necessary equipment required by law for voting to any precinct in the county, town, or city upon notice that any voting machine is out of order or fails to work.

History. Acts 1969, No. 465, Art. 12, § 31; A.S.A. 1947, § 3-1231; Acts 1997, No. 446, § 8; 2005, No. 2233, § 19.

7-5-514. [Repealed.]

Publisher's Notes. This section, concerning authority to use both machines and ballots, was repealed by Acts 1997, No. 446, § 9. The section was derived from Acts 1969, No. 465, Art. 12, §§ 31, 32; A.S.A. 1947, §§ 3-1231, 3-1232.

7-5-515. Preparation of machines for election — Logic and accuracy testing and public testing.

(a) Immediately upon the proper certification of candidates and questions, the county board of election commissioners shall oversee programming of the election, proof the ballots, prepare the voting machines, and test and adjust the voting machines for the election.

(b) In performing these functions, the county board of election commissioners may be assisted by experts appointed or employed by the county board of election commissioners.

(c)(1)(A) As soon as the election media is prepared, but no later than seven (7) days before the beginning of voting, the county board of election commissioners, with respect to all elections except a runoff election under subdivision (c)(1)(B) of this section, shall conduct logic and accuracy testing by having all election media tested to ascertain that the voting system has been correctly configured and will correctly tabulate the votes cast for all offices and on all measures.

(B) As soon as the election media is prepared, but no later than five (5) days before the beginning of voting, the county board of election commissioners, with respect to a runoff election, shall conduct logic and accuracy testing by having all runoff election media tested to ascertain that the voting system has been correctly configured and will correctly tabulate the votes cast for all offices and on all measures.

(2) In addition to the logic and accuracy testing under subdivision (c)(1) of this section, the county board of election commissioners shall conduct public testing as follows:

(A) The county board of election commissioners shall give public notice of the time and place of the test at least forty-eight (48) hours prior to the public test by publication one (1) time in one (1) or more daily or weekly newspapers published in the town, city, or county using the machines if a newspaper is published in the town, city, or county;

(B) The public test shall be open to representatives of the political parties, candidates, media, and the public;

(C)(i) The public test shall be conducted by processing a preaudited group of test ballots that are to be voted on the machines so as to record a predetermined number of valid votes for each candidate and on each measure.

(ii) The public test shall include for each office one (1) or more ballots which have votes in excess of the number allowed by law in order to test the ability of the machines to reject the votes; and

(D) If any error is detected, the cause shall be ascertained and corrected and an errorless count shall be made before the machine is approved.

(d) After completion of the logic and accuracy test and the public test, the ballots and programs used shall be sealed, retained, and disposed of as provided by law.

(e) After completion of the logic and accuracy test and the public test, the county board of election commissioners shall certify the accuracy of the voting system by:

(1) Sending a copy of the electronic results to the Secretary of State; and

(2) Filing the test results with the county clerk.

History. Acts 1969, No. 465, Art. 12, §§ 10, 13; A.S.A. No. 2233, § 20; 2009, No. 1480, § 33; 2015, No. 1218, § 9; 1947, §§ 3-1210, 3-1213; Acts 1997, No. 446, § 10; 2005, 2017, No. 164, § 1; 2019, No. 966, § 6[5].

7-5-516. Notice to candidates of preparation — Rules and statutes unaffected.

Before the county board of election commissioners begins the preparation of the machines for any election, it shall publish a notice in a newspaper of general circulation in the county stating:

(1) The time and place the machines will be prepared for the election; and

(2) A time at which one (1) representative of each candidate may inspect to see that the machines are in proper condition for use in the election.

History. Acts 1969, No. 465, Art. 12, § 14; A.S.A. 1947, § 3-1214; Acts 1997, No. 446, § 11; 2009, No. 959, § 24.

7-5-517. Securing machines — Certification.

(a) When a voting machine has been properly prepared by the county board of election commissioners and examined by the representatives of the candidates or the candidate himself or herself, it shall be made inaccessible to voting.

(b)(1) Any device required to activate the machine shall be placed in a package on which shall be written the serial number and the precinct location of the voting machine and the number registered on the device.

(2) The package shall be sealed in the presence of the representatives of the candidates or the candidates themselves.

(c) The county board of election commissioners shall then certify, in the presence of the candidates or their representatives, the serial numbers of the machines, and that all question counters are set at zero (000).

(d) An activation device required for voting on the voting machines shall be kept by the county board of election commissioners until turned over for delivery to the election officials with the election equipment at the polling site for election day.

History. Acts 1969, No. 465, Art. 12, § 15; A.S.A. 1947, § 3-1215; Acts 1997, No. 446, § 12; 2005, No. 2233, § 21; 2015, No. 1218, § 10.

7-5-518. Machines inactivated until polls open — Adjustment of counters.

(a) The voting machine shall remain inactivated against voting until the polls are formally opened and shall not be operated except by voters for voting.

(b) If any counter is found not to register zero (000), the poll workers shall immediately notify the county board of election commissioners, who shall cause the counters to be adjusted at zero (000).

(c) After the close of voting on election day, the certified printout, signed by the poll workers, shall be:

- (1) Returned to the county board of election commissioners; and
- (2) Filed with the election returns.

History. Acts 1969, No. 465, Art. 12, § 16; A.S.A. 1947, § 3-1216; Acts 1997, No. 446, § 13; 2005, No. 2233, § 22; 2007, No. 835, § 1; 2009, No. 959, § 25; 2015, No. 1218, § 11; 2025, No. 487, § 3

7-5-519. [Repealed.]

Publisher's Notes. This section, concerning unlocking machine for vote — custody of keys, was repealed by Acts 2005, No. 2233, § 23. The section was derived from Acts 1969, No. 465, Art. 12, § 17; A.S.A. 1947, § 3-1217; Acts 1997, No. 446, § 14.

7-5-520. Instructions for voters using voting machines.

During the election, each voter shall be instructed regarding the operation of voting machines before voting. The voter's attention shall also be called to the sample ballot, so that the voter shall become familiar with the questions, the names of the offices, and the names of the candidates.

History. Acts 1969, No. 465, Art. 12, § 18; A.S.A. 1947, § 3-1218; Acts 1997, No. 446, § 15; 2005, No. 2233, § 24.

7-5-521. Arrangement of polling place.

(a) The exterior of the voting machine and every part of the polling place shall be in plain view of the poll workers.

(b) The machine shall be placed so that no person can see or determine how the voter casts his or her vote.

(c) After the opening of the polls, the poll workers shall not allow any person to pass to the part of the room where the machine is situated, except for the purpose of voting.

History. Acts 1969, No. 465, Art. 12, § 22; A.S.A. 1947, § 3-1222; Acts 1997, No. 446, § 16; 2005, No. 2233, § 25; 2009, No. 959, § 26.

7-5-522. Voting procedure.

(a)(1) When a voter presents himself or herself for the purpose of voting, the poll workers shall ascertain whether he or she is properly qualified and registered under § 7-5-305.

(2) In preparing the machines, the poll workers shall ensure that each voter will have access only to the proper ballot.

(b) Only one (1) voter at a time shall be permitted to approach a voting machine. Having cast his or her vote, the voter shall at once move away from the voting machine and leave the polling room by the exit provided.

(c) A voter having left the voting machine shall not be permitted to return to the voting machine except to complete the voting process.

(d) If a voter leaves an electronic ballot on a voting machine on which the voter has either made some or no selections and has failed to complete the process of casting the ballot and failed to notify a poll worker of his or her desire to cancel the ballot before departing the polling site, two (2) poll workers shall take action to complete the process of casting the ballot and shall document:

- (1) The time;
- (2) The name of the voter, if known;
- (3) The names of the poll workers completing the process of casting the ballot; and
- (4) All other circumstances surrounding the abandoned ballot.

History. Acts 1969, No. 465, Art. 12, § 21; A.S.A. 1947, § 3-1221; Acts 1989, No. 342, § 1; 1997, No. 446, § 17; 2005, No. 2233, § 26; 2007, No. 835, § 2; 2009, No. 959, § 26.

7-5-523. [Repealed.]

Publisher's Notes. This section, concerning assistance to voters with disabilities, was repealed by Acts 2007, No. 835, § 4. The section was derived from Acts 1995, No. 908, § 2; 1995, No. 1296, § 40; 1997, No. 446, § 18; 2003, No. 1308, § 3; 2005, No. 2233, § 27.

7-5-524. Voter access to machines — Persons in line at closing time.

(a) During the time that the polls are open for voting, no more voters shall be permitted to approach the voting machine than there are vacant machines available for voting.

(b) At the time of the closing of the polls, all persons who have presented themselves for voting and who are then in line at the polling place shall be permitted to cast their votes as now provided by law. Every person in line shall have the opportunity to vote.

History. Acts 1969, No. 465, Art. 12, § 23; A.S.A. 1947, § 3-1223.

7-5-525. [Repealed.]

7-5-526. Closing of polls — Securing machines — Poll workers' certificate.

(a) At the official time for closing the polls and upon termination of the voting, the poll workers shall announce that the polls have closed and in the presence of all persons authorized to be present shall remove the activation devices from the voting machines to make them inaccessible to further voting.

(b) At the same time, the poll workers shall sign a certificate provided by the county board of election commissioners stating that the machines were made inaccessible to further voting and giving the exact time and the number of votes shown on the public counters.

History. Acts 1969, No. 465, Art. 12, § 24; A.S.A. 1947, § 3-1224; Acts 1997, No. 446, § 19; 2005, No. 2233, § 29; 2009, No. 959, § 27; 2015, No. 1218, § 12.

7-5-527. Exposure of count — Verification — Return record — Official signatures.

(a) The poll workers shall then expose the count in the presence of all persons authorized to be present.

(b) It is the intention of this section to accord a full, complete, and public view of the count from each voting machine to all poll workers and designated watchers for the candidates or parties.

(c)(1) The poll worker shall proceed to produce the result record in a minimum of three (3) copies.

(2)(A) The result record shall be deemed the official count for that machine.

(B) One (1) copy of the completed return record for that machine shall be posted upon the wall of the polling room for all to see.

(d) The poll workers shall sign the machine return record produced by the device.

(e)(1) The activation device used to collect votes from each voting machine and all certified result records shall be placed in a package that shall be sealed and signed by all the poll workers and any watchers that may desire to affix a signature.

(2)(A) The sealed package shall be immediately returned to the county board of election commissioners by one (1) of the poll workers selected for this purpose, accompanied by those other poll workers and watchers who desire to join the poll worker.

(B) The poll worker shall obtain a receipt for the sealed package.

History. Acts 1969, No. 465, Art. 12, §§ 25, 26; A.S.A. No. 2233, § 30; 2009, No. 959, § 27; 2015, No. 1218, §§ 13, 1947, §§ 3-1225, 3-1226; Acts 1997, No. 446, § 20; 2005, 14.

7-5-528. Machines released to officers.

Voting machines shall be released to a person designated by the county board of election commissioners for storage in a secure facility designated by the county board of election commissioners.

History. Acts 1969, No. 465, Art. 12, § 27; A.S.A. 1947, § 3-1227; Acts 1997, No. 446, § 21; 2007, No. 835, § 5.

7-5-529. Tabulation of returns.

(a) The county board of election commissioners shall compile countywide totals from the activation pack or device used to collect votes from each voting machine.

(b) Prior to certification of the official election results, the county board of election commissioners shall manually compile countywide totals from the polling location's certified return records and verify that they match the electronically derived totals from the activation pack or device used to collect votes from each machine.

History. Acts 1969, No. 465, Art. 12, § 28; A.S.A. 1947, § 3-1228; Acts 1997, No. 446, § 22; 2005, No. 2233, § 31.

7-5-530. Securing audit materials upon election contest or recount.

(a) The county board of election commissioners shall produce an audit log for each voting machine used in the election.

(b) In the event that there is an election contest filed, the judge of the court that has jurisdiction may order the county board of election commissioners to secure the audit logs and the voter-verified paper audit trail alleged in the contest to be in question. The county board of election commissioners shall store them in a secure place in the county courthouse under lock and key awaiting further orders of the court.

(c) In the event that any candidate in any election in which the machines have been utilized or any voter who questions the count of any question posed at any election gives written notice to the county board of election commissioners that he or she desires a recount, then the applicable county board of election commissioners shall secure the audit logs and voter-verified paper audit trails and store them in a secure place in the county courthouse awaiting further orders of the applicable county board of election commissioners or court.

History. Acts 1969, No. 465, Art. 12, § 29; A.S.A. 1947, § 3-1229; Acts 1997, No. 446, § 23; 2005, No. 2233, § 32; 2007, No. 835, § 6.

7-5-531. Retention of audit data — Machines to remain secured until results are certified except on court order.

(a) All audit logs and voter-verified paper audit trails produced by a voting machine shall remain secured for a period of two (2) years.

(b)(1) All voting machines used in any election shall remain secured for a period of at least three (3) days following the election unless the machines are ordered to be activated sooner by and on the authority of an order of a court of competent jurisdiction, in the event that the issue of the election should be in judicial controversy.

(2) Should no order be entered, it shall be the duty of the county board of election commissioners to clear the machines for future elections after the results of the election have been certified.

History. Acts 1969, No. 465, Art. 12, § 30; 1970 (1st Ex. Sess.), No. 25, § 1; A.S.A. 1947, § 3-1230; Acts 1997, No. 446, § 24; 2005, No. 2233, § 33.

7-5-532. Direct-recording electronic voting machines — Definitions.

- (a) For purposes of this section:
 - (1) “Direct-recording electronic voting machine” means a voting machine that:
 - (A) Records votes by means of a ballot display provided with mechanical or electro-optical components that may be actuated by the voter;
 - (B) Processes the data by means of a computer program;
 - (C) Records voting data and ballot images in internal or external memory components; and
 - (D) Produces a tabulation of the voting data stored in a removable memory component and in a printed copy; and
 - (2) “Voter-verified paper audit trail” means a contemporaneous paper record of a ballot printed for the voter to confirm his or her votes before the voter casts his or her ballot.
- (b) The Secretary of State or the county shall not purchase or procure a direct-recording electronic voting machine that does not include a voter-verified paper audit trail.
- (c)(1) All direct-recording electronic voting machines in use on or after January 1, 2006, shall include a voter-verified paper audit trail, except for those direct-recording electronic voting machines in use during the 2004 general election.
- (2) All direct-recording electronic voting machines purchased on or after August 12, 2005, shall include a voter-verified paper audit trail.
- (d) A direct-recording electronic voting machine with a voter-verified paper audit trail shall meet the following conditions:
 - (1) The voter-verified paper audit trail may be verified by the voter before the casting of the voter’s ballot;
 - (2) The voter-verified paper audit trail shall not be retained by the voter;
 - (3) The voter-verified paper audit trail shall not contain individual voter information;
 - (4) The paper used in producing the voter-verified paper audit trail shall be sturdy, clean, and resistant to degradation; and
 - (5) The voter-verified paper audit trail shall be readable in a manner that makes the voter’s ballot choices obvious to the voter without the use of computer or electronic code.
- (e) Voter-verified paper audit trails shall be preserved in the same manner and for the same time period that ballots and certificates are preserved under § 7-5-702.

History. Acts 2005, No. 654, § 2; 2007, No. 835, § 7; 2009, No. 959, § 28; 2013, No. 1126, § 6.

SUBCHAPTER 6 — PAPER BALLOTS AND ELECTRONIC VOTE TABULATING DEVICES

SECTION.

- 7-5-601. Paper ballots — Form.
- 7-5-602. Ballots — Number — Official — Marking device — Spoiled.
- 7-5-603. Counting paper ballots.
- 7-5-604. Authorization — Election laws applicable.
- 7-5-605. [Repealed.]
- 7-5-606. Approval of equipment — Specifications.
- 7-5-607. Arrangement of polling place.
- 7-5-608. [Repealed.]
- 7-5-609. Spoiled ballots.

SECTION.

- 7-5-610. [Repealed.]
- 7-5-611. Preparation of electronic vote tabulating devices — Test — Disposition of voting materials.
- 7-5-612. [Repealed.]
- 7-5-613. Counting ballots.
- 7-5-614. Locations for vote tabulation — Procedures.
- 7-5-615. Tabulation of votes — Defective ballots — Certification of returns.
- 7-5-616. Penalty.
- 7-5-617. Transport of ballots and chain of custody.

7-5-601. Paper ballots — Form.

- (a) All paper ballots provided by the county board of election commissioners of any county in this state for any election shall be alike and shall be printed in plain type.

(b) Each ballot shall be printed on paper with a perforated portion capable of being detached for use as the ballot stub.

(c)(1) As ballots are printed, the portion that shall be used as the ballot stub shall be numbered consecutively beginning with the number one (1).

(2) The number on the last ballot printed shall show the total number of ballots provided for the election.

(d)(1) The heading on the front or inner side of each ballot shall be: "OFFICIAL BALLOT. Vote by placing an appropriate mark opposite the person for whom you wish to vote."

(2) If the ballot contains an initiated or referred amendment, act, or measure, the heading shall also contain these words: "Vote on amendments, acts, and measures by placing an appropriate mark below the amendment (or act or measure) either FOR or AGAINST."

(e) Beneath the heading on each paper ballot there shall be printed instructions that inform the voter:

(1) Of the effect of casting multiple votes for an office; and

(2) How to correct the ballot before it is cast and counted, including without limitation instructions on how to correct an error through the issuance of a replacement ballot if the voter was otherwise unable to change the ballot or correct an error.

(f) Each paper ballot shall be compatible with the electronic vote tabulation devices selected by the Secretary of State under § 7-5-301.

(g)(1) A county that chooses to use a hand count of paper ballots in place of approved voting machines shall be responsible for:

(A) The cost of the hand-counted paper ballots and any devices or machines required for the printing of the hand-counted paper ballots under this subchapter; and

(B) The labor costs associated with the performance of the hand count of paper ballots.

(2) A county that chooses to hand-count paper ballots shall be eligible to receive the amount of reimbursement as if the county performed a machine tabulation of the votes.

(h) The county board of election commissioners of any county that chooses to use hand count paper ballots instead of approved voting machines shall be responsible for compliance with § 7-5-311 and with the Equal Access to Voting Rights Act, Pub. L. No. 98-435, the Americans with Disabilities Act, Title II of Pub. L. No. 101-336, and the Help America Vote Act of 2002, Pub. L. No. 107-252, regarding the accessibility of voting locations for voters with disabilities.

(i) Each paper ballot to be hand counted shall contain a watermark on the ballot with a unique placement of the watermark for each election cycle.

History. Acts 1977, No. 77, § 1; A.S.A. 1947, § 3-1801n; Acts 2005, No. 2233, § 34; 2009, No. 1480, § 35; 2011, No. 1020, § 2; 2023, No. 350, § 1; 2023, No. 743, § 1.

7-5-602. Ballots — Number — Official — Marking device — Spoiled.

(a)(1) The county board of election commissioners of each county in this state using paper ballots counted by hand at the polling site, paper ballots counted by an electronic vote tabulating device at the polling site, or paper ballots cast at a polling site and counted at a central location shall provide for each election precinct one hundred fifty (150) printed ballots for each one hundred (100) or fraction of one hundred (100) electors voting on paper ballots at the last preceding comparable election.

(2) The total number of ballots required to be printed for each election precinct shall not exceed one hundred five percent (105%) of the total number of registered voters for the respective precinct.

(b) A ballot shall not be received or counted in any election to which this subchapter applies unless it is approved and provided by the county board of election commissioners under this section.

(c) At all elections in counties that use paper ballots and in which those ballots are counted by hand, the ballots shall:

(1) First be marked using permanent ink; and

(2)(A) Be run through an electronic vote tabulation device before a hand count is conducted.

(B)(i) The requirement under subdivision (c)(2)(A) of this section shall apply in all general elections and preferential primary elections.

(ii) The requirement under subdivision (c)(2)(A) of this section is optional if an election:

(a) Is an election other than the general election or the preferential primary election; and

(b) Involves fewer than five thousand (5,000) registered voters.

(d)(1) A voter who shall by accident or mistake mark or spoil any ballot so that he or she cannot conveniently or clearly vote on the ballot may return it to the poll workers and receive another ballot, not to exceed three (3) ballots in total.

(2)(A) Spoiled ballots shall be cancelled by a poll worker by using a stamp marked “CANCELLED” on the face of the ballot.

(B) The poll worker shall write the date and time, and print and sign his or her name next to the stamp marked “CANCELLED”.

(C) The election judge shall report the total number of spoiled ballots to the county board of election commissioners.

(3) The cancelled ballots shall be securely preserved separately from other ballots with the total number of cancelled ballots and returned to the county board of election commissioners and shall be open to public inspection.

History. Acts 2009, No. 1480, § 36; 2021, No. 736, § 15; 2023, No. 329, § 4; 2023, No. 350, § 2; 2023, No. 743, § 2.

7-5-603. Counting paper ballots.

When paper ballots are to be counted, the following procedures shall be followed:

(1)(A) In counting the paper ballots, the ballot box shall be opened and each paper ballot shall be counted in turn or by counting by offices and issues by first being run through a tabulation device before any hand count is conducted.

(B) The poll workers shall witness the counting of the paper ballots and shall keep separate tally lists of the votes cast for each candidate or issue on the paper ballot by precinct.

(C) The tabulated results shall be posted at each polling site prior to the completion of the hand count of the paper ballots;

(2)(A) After being run through a tabulation device, the paper ballots shall be placed in a sealed double-locking hard shell ballot box for transport to the designated hand count location and the seal initialed by a minimum of two (2) election officials.

(B) Each county board of election commissioners shall designate the hand count location thirty (30) days before an election.

(C) A minimum of two (2) election officials shall transport the paper ballots to the hand count location.

(D) All ballots from voting machines used for compliance with the Equal Access to Voting Rights Act, Pub. L. No. 98-435, the Americans with Disabilities Act, Title II of Pub. L. No. 101-336, and the Help America Vote Act of 2002, Pub. L. No. 107-252, shall be counted with the hand-counted paper ballots.

(E) All paper ballots shall be stored in a secure location approved by the county board of election commissioners when not in use by a poll worker performing the hand count of the paper ballots;

(3)(A) When two (2) or more paper ballots are found folded together, it shall be considered as conclusive evidence the paper ballots are fraudulent and neither of the paper ballots shall be counted.

(B) If a paper ballot is found to contain marks for more than the maximum allowable number of candidates in any one (1) contest, the contest shall be considered overvoted, and it shall be the responsibility of the county board of election commissioners to determine the voter's intent;

(4)(A) Upon the close of the polls, the poll workers immediately shall certify and attest the list of voters and continue the count to completion, within twenty-four (24) hours of the close of the polls, and with no significant breaks in the counting process.

(B)(i) A hand count of paper ballots shall be completed a minimum of twenty-four (24) hours before the certification deadline.

(ii) If the hand count of paper ballots is not completed a minimum of twenty-four (24) hours before the certification deadline, the machine tabulated results under subdivision (1) of this section shall be the certified results of the election.

(C)(i) If a poll worker becomes sick or incapacitated from any other cause, the remaining poll workers shall continue the count until it is completed.

(ii) The county board of election commissioners shall ensure there is a minimum of four (4) poll workers available to continue the count.

(D) All hand-count paper ballot totals shall be recorded by race in each precinct, and posted at the designated hand-count location upon the completion of the hand count of the paper ballots;

(5) A minimum of two (2) poll workers are required to verify the vote on each hand-counted paper ballot;

(6) After the count is completed, the poll workers shall make out the certificates of election in triplicate and immediately post one (1) copy outside the polling site; and

(7)(A)(i) The counting of paper ballots shall be open to the public.

(ii) The public shall maintain a minimum distance of three feet (3') from the poll workers counting the paper ballots.

(iii) If sufficient room to maintain a minimum distance of three feet (3') from the poll workers counting the paper ballots may not be achieved, the candidate, the candidate's designated or authorized representative, and designated or authorized representatives of the political parties shall be given priority viewing by the county board of election commissioners.

(B) Any candidate or political party may be present in person or by representative designated in writing under § 7-5-312 at the count of the paper ballots in any election for the purpose of determining whether or not the paper ballots in any election precinct are fairly and accurately counted.

(C) The candidate in person or an authorized representative of the candidate or political party shall be permitted, upon a request's being made to a poll worker, to inspect any or all paper ballots after the paper ballots have been counted.

History. Acts 1977, No. 77, § 8; A.S.A. 1947, § 3-1807; Acts 2005, No. 2233, § 35; 2009, No. 1480, § 37; 2023, No. 350, §§ 3, 4; 2023, No. 743, § 3.

7-5-604. Authorization — Election laws applicable.

(a) Paper ballot voting systems that include electronic vote tabulating devices may be used in elections, provided that the systems shall:

(1) Enable the voter to cast a vote in secrecy;

(2) Enable the voter to vote for all offices and measures on which he or she is entitled to vote;

(3) Permit the voter to verify in a private and independent manner the votes selected by the voter on the ballot before the ballot is cast;

(4) Provide the voter with the opportunity in a private and independent manner to change the ballot or correct any error before the ballot is cast;

(5)(A) Notify the voter that he or she has selected more than one (1) candidate for the office, notify the voter before the ballot is cast and counted of the effect of casting multiple votes for the office, and provide the voter with the opportunity to correct the ballot before the ballot is cast if the voter is legally entitled to select only one (1) candidate for an office but the voter selects more than one (1) candidate for the office.

(B) Electronic vote tabulating devices used to cast and count votes at the polling place shall be programmed to reject ballots containing overvotes as described in this section.

(C) When votes are cast at polling places and are to be counted by hand or at the courthouse or other central counting location, the county board of election commissioners shall provide a voter education program to inform the voters:

(i) Of the effect of casting multiple votes for an office; and

(ii) How to correct the ballot before it is cast, including, but not limited to, instructions on how to correct the error through the issuance of a replacement ballot if the voter was otherwise unable to change the ballot or correct any error;

(6)(A) Notify the voter that the voter has selected more than the allowed number of candidates for the office on the ballot, notify the voter before the ballot is cast and counted of the effect of casting more than the allowed number of votes for that office, and provide the voter with the opportunity to correct the ballot before the ballot is cast if the voter is legally entitled to select multiple candidates for an office but the voter selects more than the number of candidates he or she is legally entitled to select.

(B) Electronic vote tabulating devices used to cast and count votes at the polling places shall be programmed to reject ballots containing overvotes as described in this section.

(C) When votes are cast at polling places and are to be counted by hand or at the courthouse or other central counting location, the county board of election commissioners shall provide a voter education program to inform the voters:

(i) Of the effect of casting more votes than the voter is legally entitled to cast for an office; and

(ii) How to correct the ballot before it is cast, including, but not limited to, instructions on how to correct the error through the issuance of a replacement ballot if the voter was otherwise unable to change the ballot or correct any error;

(7) Permit the voter to vote:

(A) At any election for all persons and officers for whom he or she is lawfully entitled to vote and no others;

(B) For as many persons for an office as he or she is entitled to vote;

(C) For or against any question upon which he or she is entitled to vote; and

(D) By means of a single device, if authorized by law, for all candidates for one (1) party or to vote a split ticket as he or she desires;

(8) Permit the voter by one (1) mark to vote for the candidates for that party for president, vice president, and their presidential electors at presidential elections;

(9) Generate a printed record at the beginning of its operation which verifies that the tabulating elements for each candidate position and each question and the public counter are all set to zero (000); and

(10) Generate a printed record at the finish of its operation of the total number of:

(A) Voters whose ballots have been tabulated;

(B) Votes cast for each candidate whose name appears on the ballot;

(C) Votes cast for or against any question appearing on the ballot; and

(D) Undervotes and overvotes by contest.

(b) So far as applicable, the procedures provided by law for voting by other means and the conduct of the election in regard thereto by the election officials, not otherwise inconsistent with this subchapter, shall apply to the system of electronic vote tabulation as authorized in this subchapter.

History. Acts 1977, No. 77, § 3; 1979, No. 738, § 2; A.S.A. 1947, § 3-1802; Acts 2005, No. 2233, § 36; 2009, No. 1480, § 38.

7-5-605. [Repealed.]

Publisher's Notes. This section, concerning adoption by ordinance — costs, was repealed by Acts 2005, No. 2233,

§ 37. The section was derived from Acts 1977, No. 77, § 3; 1979, No. 738, § 2; A.S.A. 1947, § 3-1802.

7-5-606. Approval of equipment — Specifications.

(a) The State Board of Election Commissioners may promulgate rules for the administration of this subchapter and shall approve the marking devices and electronic vote tabulating devices.

(b)(1) Any person or company wishing to exhibit marking devices and electronic vote tabulating devices may file written application with the board and request an opportunity to exhibit and demonstrate devices.

(2) The board shall examine the marking device or the electronic vote tabulating device and file a report in the office of the Secretary of State of its accuracy, efficiency, and capacity.

(3) If the board shall reject any device, the reasons shall be stated in the report filed with the Secretary of State.

(4) Any person or company aggrieved by any finding or ruling of the board may appeal to the Pulaski County Circuit Court within sixty (60) days from the date the report of the board is filed with the Secretary of State.

(c) After any device has been approved, it shall not be necessary that it be exhibited and approved again by the board unless there is a change or modification in the device that renders it incapable of marking ballots or tabulating votes in the same method of procedure approved by the board.

(d) Marking devices or electronic vote tabulating devices not approved by the board or selected by the Secretary of State may not be used in any lawful election in this state.

(e) No marking device or electronic vote tabulating device shall be approved unless it fulfills the requirements of this section and the federal Help America Vote Act of 2002.

History. Acts 1977, No. 77, § 7; A.S.A. 1947, § 3-1806; Acts 2005, No. 2233, § 38; 2015, No. 1218, §§ 15, 16.

7-5-607. Arrangement of polling place.

In precincts where an electronic vote tabulating device is used, sufficient space shall be provided for the use of the device, and it shall be arranged in such a manner as to assure secrecy in voting.

History. Acts 1977, No. 77, § 4; A.S.A. 1947, § 3-1803; Acts 2005, No. 2233, § 39.

7-5-608. [Repealed.]

Publisher's Notes. This section, concerning sample voting materials, was repealed by Acts 2007, No. 222, § 10. The section was derived from Acts 1977, No. 77, § 4; A.S.A. 1947, § 3-1803; Acts 1997, No. 446, § 26; 2005, No. 2233, § 40.

7-5-609. Spoiled ballots.

Any voter who spoils his or her ballot or makes an error may return it to the election officials and mark another, not to exceed three (3) in all.

History. Acts 1977, No. 77, § 4; A.S.A. 1947, § 3-1803; Acts 2005, No. 2233, § 41; 2015, No. 1218, § 17.

7-5-610. [Repealed.]**7-5-611. Preparation of electronic vote tabulating devices — Test — Disposition of voting materials.**

(a)(1) The county board of election commissioners, with respect to all elections, shall cause the electronic vote tabulating devices used for voting to be properly programmed and tested before delivery to the election precincts.

(2) As soon as the election media are prepared, but no later than seven (7) days before the beginning of voting, the county board of election commissioners, with respect to all elections except a runoff election as described in subdivision (a)(3) of this section, shall conduct logic and accuracy testing by having all election media from each electronic vote tabulating device tested to ascertain that the devices will correctly tabulate the votes cast for all offices and on all measures.

(3) In a runoff election, as soon as the election media are prepared, but no later than five (5) days before the beginning of voting, the county board of election commissioners shall conduct logic and accuracy testing by having all runoff election media from each electronic vote tabulating device tested to ascertain that the devices will correctly tabulate the votes cast for all offices and on all measures.

(b) In addition to the logic and accuracy test under subsection (a) of this section, the county board of election commissioners shall conduct public testing as follows:

(1) The county board of election commissioners shall provide public notice of the time and place of the public test at least forty-eight (48) hours prior thereto by publication one (1) time in one (1) or more daily or weekly newspapers published in the town, city, or county using the devices, if a newspaper is published therein;

(2) The public test shall be open to representatives of the political parties, candidates, the press, and the public;

(3)(A) The public test shall be conducted by processing predetermined results from a group of ballots marked to record a predetermined number of valid votes for each candidate and on each measure for each precinct or voting location.

(B) Prior to the start of the public test, a printout shall be generated to show that no votes are recorded on the electronic vote tabulating device.

(C) The public test shall include for each office one (1) or more ballots which have votes in excess of the number allowed by law in order to test the ability of the electronic vote tabulating devices to reject such votes;

(4) If any error is detected, the cause shall be ascertained and corrected, and an errorless count shall be made before the electronic vote tabulating device or devices are certified for use in the election; and

(5) Upon completion of the public test, the electronic vote tabulating devices shall be cleared of any votes cast during the test.

(c) After completion of the logic and accuracy test and the public test, the county board of election commissioners shall certify the accuracy of the voting system by sending a copy of the electronic results to the Secretary of State and filing the test results with the county clerk.

(d)(1) Before the opening of the polls, the poll workers shall generate a printout from the electronic vote tabulating device or devices to verify that the candidates and measures are correct for the location and that no votes are recorded on the electronic vote tabulating device or devices.

(2) The certified printout shall be filed with the election returns.

History. Acts 1977, No. 77, § 4; A.S.A. 1947, § 3-1803; 959, § 29; 2009, No. 1480, § 39; 2015, No. 1218, § 19; Acts 1997, No. 446, § 27; 2005, No. 2233, § 43; 2009, No. 2017, No. 164, § 2; 2025, No. 487, § 4.

7-5-612. [Repealed.]

Publisher's Notes. This section, concerning absentee ballots, was repealed by Acts 1997, No. 446, § 28. The section was derived from Acts 1977, No. 77, § 5; A.S.A. 1947, § 3-1804.

7-5-613. Counting ballots.

In precincts where an electronic vote tabulating device is used, as soon as the polls are closed the poll workers shall compare the total number of voters indicated by the electronic vote tabulating device with the list of voters to ensure that the number recorded by the tabulator is the same as the number of voters shown on the list of voters who received a ballot at the polling

site. If the totals are different, this fact shall be reported in writing to the county board of election commissioners with the reasons, if known.

History. Acts 1977, No. 77, § 6; A.S.A. 1947, § 3-1805; Acts 1997, No. 446, § 29; 2005, No. 2233, § 44; 2009, No. 959, § 30; 2023, No. 305, § 9.

7-5-614. Locations for vote tabulation — Procedures.

For the tabulation of votes of a precinct by electronic vote tabulating devices at a central counting location:

(1)(A) The poll workers shall place all ballots that have been cast in the container provided for that purpose.

(B) The container shall be sealed and delivered to the county board of election commissioners forthwith by the poll workers together with the unused, void, and defective ballots; and

(2) All proceedings at the counting location shall be under the direction of the county board of election commissioners with respect to all elections.

History. Acts 1977, No. 77, § 6; A.S.A. 1947, § 3-1805; Acts 1993, No. 511, § 3; 1997, No. 446, § 30; 2005, No. 2233, § 45; 2007, No. 835, § 8; 2009, No. 959, § 30.

7-5-615. Tabulation of votes — Defective ballots — Certification of returns.

(a) The counting of votes by electronic vote tabulating devices at the courthouse or other central counting location shall be open to the public, and any candidate or political party may be present in person or by representative designated in writing pursuant to § 7-5-312 to view the counting.

(b) No person except those employed and authorized for that purpose shall touch any ballot or return.

(c) The election officials at the counting place and all persons operating the electronic vote tabulating devices shall take the same oath required by law for election officials before entering upon their duties.

(d)(1) If any ballot is damaged or defective so that it cannot properly be counted by the electronic vote tabulating device, a true duplicate copy shall be made of the damaged ballot.

(2) When duplicating a ballot, and in the presence of another election official and designated poll watchers, if any, an election official shall:

(A) Reproduce the selections of the voter on a second ballot that is the same ballot style as the ballot cast by the voter;

(B) Stamp or write the word “duplicate” on the duplicated ballot;

(C) Stamp or write the word “original” on the original damaged or defective ballot;

(D) Label both the original damaged or defective ballot and the duplicate ballot with the same unique serial number;

(E) Substitute the duplicated ballot for the original damaged or defective ballot;

(F) Count the duplicated ballots in the same manner as other ballots in that election; and

(G) Secure and separately store the original damaged or defective ballots in the same manner as other ballots in that election.

(3) The duplication of a damaged or defective ballot cast at a polling site shall be delivered securely to the county board of election commissioners to be duplicated by election officials.

(4) An election official under subdivision (d)(2) of this section shall maintain a recorded count of damaged ballots to be duplicated in the presence of authorized poll watchers, if any, and provide the report to the county board of election commissioners.

(e) The return printed by the electronic vote tabulating device, to which the return of early and absentee votes have been added, shall constitute the official return of each polling site. All returns shall be certified by the election officials in charge of the tabulation thereof in the manner provided by law.

(f) Upon completion of the count, the returns shall be open to the public.

(g) The State Board of Election Commissioners shall promulgate necessary rules regarding the duplication of damaged or defective ballots under this section.

History. Acts 1977, No. 77, § 6; A.S.A. 1947, § 3-1805; No. 460, § 1; 2025, No. 166, § 1; 2025, No. 284, § 3; 2025, Acts 1997, No. 446, § 31; 2003, No. 1154, § 5; 2005, No. No. 458, §§ 1, 2.
2233, § 46; 2007, No. 835, § 9; 2023, No. 444, § 6; 2023,

7-5-616. Penalty.

A person who violates this subchapter shall be subject to the same fine and imprisonment as provided by law for violating the comparable provisions of the laws of this state regarding voting by other voting methods.

History. Acts 2009, No. 1480, § 40.

7-5-617. Transport of ballots and chain of custody.

(a) Marked absentee or provisional ballots shall be transported in a secure manner during the election period between locations, including without limitation between:

- (1) Polling sites;
- (2) Vote centers;
- (3) Offices of the county clerk;
- (4) Designated absentee or provisional ballot counting facilities; or
- (5) Other government offices.

(b) Marked absentee ballots shall be transported in a secure manner by at least two (2) election officials with the marked absentee ballots inside of a sealed ballot transfer container to the location designated by the county board of election commissioners.

(c) Marked absentee or provisional ballots are subject to the following procedure as a chain of custody:

(1) A person collecting marked absentee or provisional ballots shall swear an oath in the same form as § 7-4-110;

(2) A marked absentee or provisional ballot team shall include a minimum of two (2) election officials;

(3) The ballot transport team shall complete and sign a ballot transfer form upon removing the marked absentee or provisional ballots, including the following information, the:

- (A) Date;
- (B) Time;
- (C) Location the marked absentee or provisional ballots are picked up;
- (D) Number of marked absentee or provisional ballots per container;
- (E) Identity of each person collecting the ballots; and
- (F) Destination location for delivery of the marked absentee or provisional ballots;

(4) The ballot transport team shall immediately transfer the secured marked absentee or provisional ballots to the county board of election commissioners, or its designee; and

(5)(A) The county board of election commissioners or its designee shall sign the marked absentee or provisional ballot transfer form upon receipt of the marked absentee or provisional ballots.

(B) The marked absentee or provisional ballot transfer form under subdivision (c)(3) of this section shall be considered a public record.

(d)(1) Upon receiving a sealed ballot envelope from a person casting a provisional ballot, the poll worker or election official shall verify that the information requested on the outer ballot envelope is complete.

(2) The poll worker or election official shall clearly write and sign his or her name, the polling location, the date, and the reason the ballot is considered provisional on the outer envelope and record the information.

(3)(A) The poll worker shall direct the person casting the provisional ballot to place the ballot envelope into the secure container for provisional ballots.

(B) The secure container for provisional ballots shall be located within the enclosed space in the polling place where it can be monitored by poll workers and observed by the public.

(e)(1) Once the polls have closed, two (2) election officials shall return the secure container of provisional ballots to the county board of election commissioners with the following information marked clearly on the exterior of each secure container, the:

(A) Total number of marked provisional ballots;

(B) Location the provisional ballots were collected; and

(C) Identity of the election officials transporting the marked provisional ballots.

(2)(A) Upon receipt of the provisional ballots, the county board of election commissioners, or its designee, shall electronically record the:

(i) First and last name of the person casting the provisional ballot;

(ii) Address of the person casting the provisional ballot;

(iii) Date of birth of the person casting the provisional ballot;

(iv) Date the provisional ballot was marked;

(v) Early voting or polling location, including precinct number, where the provisional ballot was marked;

(vi) Name of the election official recorded on the sealed outer envelope;

(vii) Reason for the provisional ballot reflected on the sealed outer envelope; and

(viii) Other information deemed necessary by the county board of election commissioners.

(B) The county board of election commissioners shall create one (1) paper copy of the outside of each outside provisional envelope to be delivered to the county clerk.

(C) The county board of election commissioners shall provide the provisional ballot envelope copies and the electronic provisional ballot list to the county clerk no later than one (1) business day following election day.

(3) Following receipt of the electronic provisional ballot list, including the provisional ballot envelope copies, the county board of election commissioners shall reconcile the total number of provisional ballots reviewed by the county clerk to the total number of provisional ballots received and secured by the county board of election commissioners.

History. Acts 2023, No. 329, § 5.

SUBCHAPTER 7 — RETURNS AND CANVASS

SECTION.

7-5-701. Declaration of results — Certification, delivery, and custody of returns.

7-5-702. Preservation of ballots, stubs, certificates, and other election materials.

7-5-703. Votes for United States Congress — Tie vote.

7-5-704. Votes for legislative, judicial, and executive officers — Tie vote.

SECTION.

7-5-705. Votes for constitutional officers — Tie vote — Certificate of election.

7-5-706. Presentation of list of legislators elected.

7-5-707. Vote certification.

7-5-701. Declaration of results — Certification, delivery, and custody of returns.

(a)(1) No earlier than forty-eight (48) hours after the election and no later than the fifteenth calendar day after the election, the county board of election commissioners, from the certificates and ballots received from the several precincts, shall proceed to ascertain, declare, and certify the result of the election to the Secretary of State.

(2) Unopposed candidates, other than candidates for mayor, Governor, and circuit clerk, shall be separately declared and certified to the Secretary of State as elected in the same manner as if the candidate had been voted upon at the election.

(3)(A) As results are received and tabulated on election night for all state and federal elections, the county board of election commissioners shall declare preliminary and unofficial results of the election as soon as early voting, absentee, or individual precinct results are tabulated but

no later than twenty-four (24) hours after polls close on election night and immediately shall transmit the results by precinct to the Secretary of State through the election night reporting interface provided by the Secretary of State.

(B) The county board of election commissioners may, by agreement with the county clerk, transmit the results to the county clerk who immediately shall transmit the results by precinct to the Secretary of State under subdivision (a)(3)(A) of this section.

(C) On election night for all state and federal elections, immediately after the count of the vote is complete but no later than twenty-four (24) hours after polls close on election night, the county board of election commissioners shall:

(i) Declare preliminary and unofficial results of the election, including a statement of the number of:

(a) Outstanding ballots of voters who requested ballots under the Uniformed and Overseas Citizens Absentee Voting Act, 52 U.S.C. § 20301 et seq.;

(b) Outstanding provisional ballots; and

(c) Ballots required to be duplicated under § 7-5-615; and

(ii) Immediately transmit the results by precinct to the Secretary of State through the election night reporting interface provided by the Secretary of State.

(D) The county board of election commissioners may, by agreement with the county clerk, transmit the results to the county clerk who shall immediately transmit the results by precinct to the Secretary of State as described in subdivision (a)(3)(C) of this section.

(E) The Secretary of State may establish policies and procedures to accomplish the objectives set forth under this section.

(4) Within nineteen (19) calendar days after any general, special, or school election, the county board of election commissioners shall deliver a certificate of election to the person having the highest number of legal votes for any county office.

(b) The county board of election commissioners shall also file in the office of the clerk of the county court a certificate setting forth in detail the result of the election in each precinct.

(c)(1) No earlier than forty-eight (48) hours after the election and no later than the fifteenth calendar day after the election, the county board of election commissioners shall deposit certified copies of the abstracts of the returns of the election for members of the United States Congress and for all executive, legislative, and judicial officers in the nearest post office on the most direct route to the seat of government and directed to the Secretary of State.

(2) Separate from an abstract, the county board of election commissioners shall certify all unopposed candidates for these offices as elected in the same manner as if the candidate had been voted upon at the election.

(3) The county board of election commissioners shall not receive compensation for election duties after the election until the election results have been certified and delivered to the Secretary of State.

(4) The Secretary of State shall file a complaint with the State Board of Election Commissioners under § 7-4-120 if the county board of election commissioners does not comply with subdivision (c)(1) of this section.

(d)(1) It shall at the same time enclose in a separate envelope and direct to the Speaker of the House of Representatives, in care of the Secretary of State, at the seat of government, a certified copy of the abstract of votes given for Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, and Attorney General.

(2) It is the duty of the Secretary of State to safely keep the returns addressed to the Speaker of the House of Representatives until they shall be required for the purpose of ascertaining and declaring the result of the election as prescribed in Arkansas Constitution, Article 6, § 3.

History. Acts 1969, No. 465, Art. 8, § 1; 1971, No. 261, § 14; A.S.A. 1947, § 3-801; Acts 1993, No. 512, § 3; 1993, No. 966, § 1; 1995, No. 441, § 1; 1995, No. 723, § 1; 1995, No. 724, § 1; 1999, No. 1304, § 1; 2001, No. 1475, § 1;

2003, No. 131, § 1; 2005, No. 731, § 1; 2005, No. 895, § 1; 2005, No. 1677, § 5; 2013, No. 1058, § 1; 2013, No. 1211, § 5; 2017, No. 730, § 3; 2019, No. 254, § 2; 2021, No. 448, § 8; 2023, No. 350, §§ 5, 6; 2025, No. 458, § 3.

7-5-702. Preservation of ballots, stubs, certificates, and other election materials.

(a) After the election has been finally certified by the county board of election commissioners, the county board of election commissioners shall retain the custody of and safely keep in a sealed container appropriately marked in a secure location in the county courthouse or other county storage facility all ballots, ballot stubs, and certificates returned to it from the several precincts for a period of twenty (20) days, after which time the ballots and certificates shall be stored in a secure location in the county courthouse or other county storage facility for a period of two (2) years from the date of the election, unless the county board of election commissioners shall be sooner notified in writing that:

(1) The election of some person voted for at the election and declared to have been elected has been contested;

(2) Criminal prosecution has begun before a tribunal of competent jurisdiction against any officer of election or person voting thereat for any fraud in the election; or

(3) The results of the election will be audited by the State Board of Election Commissioners under § 7-4-121.

(b) If the county board of election commissioners is notified as provided in subsection (a) of this section, then so many of the ballots and certificates as may relate to matters involved in the contest or any prosecution shall be preserved for use as evidence in the contest or prosecution.

(c) During the time the ballots may be retained or stored, the package containing them shall not be opened by anyone unless:

(1) Directed to do so by some competent tribunal before which an election contest or prosecution is pending in which the ballots are to be used as evidence;

(2) Upon written instruction signed by the Director of the State Board of Election Commissioners under § 7-4-121; or

(3) Upon receipt of a subpoena issued by the State Board of Election Commissioners under § 7-4-120.

(d) For twenty (20) days, the county board of election commissioners shall retain the custody of ballot stubs in an appropriately marked, sealed container delivered to the county board of election commissioners from the several precincts, after which time they shall be stored in a secure location in the county courthouse or other county storage facility unless:

(1) An election contest has been filed;

(2) A criminal prosecution has been initiated in connection with the election; or

(3) Upon written instruction signed by the director under § 7-4-121.

(e) After a period of two (2) years, all marked ballots and ballot stubs may be destroyed in the following manner:

(1) The county board of election commissioners shall enter an order directing the destruction of marked ballots and ballot stubs;

(2) The county board of election commissioners shall make and retain a record of marked ballots and ballot stubs destroyed; and

(3) The county board of election commissioners shall file with the county clerk the order and record pertaining to marked ballots and ballot stubs destroyed.

History. Acts 1969, No. 465, Art. 8, § 2; A.S.A. 1947, 2013, No. 236, § 2; 2017, No. 621, § 3; 2019, No. 888, §§ 3, § 3-802; Acts 1987, No. 492, § 1; 1997, No. 446, § 33; 2005, 4; 2023, No. 295, § 4.
No. 953, § 1; 2005, No. 2233, § 47; 2009, No. 959, § 31;

7-5-703. Votes for United States Congress — Tie vote.

(a) It shall be the duty of the Secretary of State, in the presence of the Governor, within thirty (30) days after the time allowed to make returns of election by the county board of election commissioners, or sooner, if all the returns have been received, to cast up and arrange the votes from the several counties, or such of them as may have made returns, for each person voted for as United States Senator or United States Representative.

(b) The Governor shall immediately thereafter issue his or her proclamation declaring the person having the greatest number of legal votes to be duly elected to represent this state in the United States Senate or the United States House of Representatives and shall grant a certificate thereof, under the seal of the state, to the person so elected.

(c)(1) Should any two (2) or more persons have an equal number of votes, and a higher number than any other person, the names of the two (2) candidates receiving the highest number of votes for United States Senator or United States Representative shall be certified to a special runoff election which shall be held four (4) weeks from the day on which the general election is held.

(2) The special runoff election shall be conducted in the same manner as is provided by law, and the election results shall be canvassed and certified in the manner provided by law.

History. Acts 1969, No. 465, Art. 8, §§ 3, 4; 1971, No. 261, §§ 15, 16; A.S.A. 1947, §§ 3-803, 3-804; Acts 1997, No. 446, § 34; 2017, No. 1104, § 3.

7-5-704. Votes for legislative, judicial, and executive officers — Tie vote.

(a) It shall be the duty of the Secretary of State, in the presence of the Governor, within thirty (30) days after the time allowed in this subchapter to make returns of elections by the county board of election commissioners, or sooner, if all the returns have been received, to cast up and arrange the votes from the several counties for each person who received votes for any legislative, judicial, or executive office, except the offices named in Arkansas Constitution, Article 6, § 3. The persons who have received the greatest number of legal votes for Justice of the Supreme Court and Commissioner of State Lands, within the state; judges of the Court of Appeals and of the circuit courts, and prosecuting attorneys, in their respective districts or circuits; judges of the county and probate courts, circuit clerk, county clerk, sheriff, coroner, surveyor, and assessor, in their respective counties; and all other officers required by law, shall be commissioned by the Governor.

(b)(1) If two (2) or more persons have an equal number of votes for the same office and a higher number than any other person, the names of the two (2) candidates receiving the highest number of votes for any legislative or executive office, except those offices named in Arkansas Constitution, Article 6, § 3, and constables, shall be certified to a special runoff election which shall be held four (4) weeks from the day on which the general election is held.

(2) The special runoff election shall be conducted in the same manner as is now provided by law, and the election results thereof shall be canvassed and certified in the manner provided by law.

(c) Subsection (b) of this section shall not apply to the offices of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, or district judge.

History. Acts 1969, No. 465, Art. 8, §§ 5, 6; 1971, No. 512, § 4; 1997, No. 446, § 35; 2001, No. 1789, § 5; 2009, No. 261, §§ 17, 18; A.S.A. 1947, §§ 3-805, 3-806; Acts 1993, No. 959, § 32; 2017, No. 1104, § 4.

7-5-705. Votes for constitutional officers — Tie vote — Certificate of election.

(a) During the first week of the session after each election for Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, and Attorney General, and in the presence of both houses of the General Assembly, the Speaker of the House of Representatives shall open and publish the votes cast and given for each of the respective officers previously mentioned.

(b) The person having the greatest number of legal votes for each of the respective offices shall be declared duly elected thereto, but if two (2) or more shall be equal and highest in votes for the same office, one (1) of them shall be chosen by a joint vote of both houses of the General Assembly, and a majority of all the members elected shall be necessary to a choice.

(c) The President of the Senate and the Speaker of the House of Representatives shall make and deposit in the office of the Secretary of State a certificate declaring what person has been elected to any office named.

History. Acts 1969, No. 465, Art. 8, § 8; 1971, No. 261, § 19; A.S.A. 1947, § 3-808; Acts 1993, No. 512, § 5.

7-5-706. Presentation of list of legislators elected.

It shall be the duty of the Secretary of State, on the first day of each regular session of the General Assembly, to lay before each house a list of members elected in accordance with the returns in his or her office.

History. Acts 1969, No. 465, Art. 8, § 7; A.S.A. 1947, § 3-807.

7-5-707. Vote certification.

(a) For all state and federal elections, the county board of election commissioners shall transmit the certified results for each precinct to the Secretary of State through the election night reporting interface provided by the Secretary of State.

(b) The county board of election commissioners may, by agreement with the county clerk, transmit the certified results to the county clerk who shall transmit the certified results by precinct to the Secretary of State as described in subsection (a) of this section.

(c) The Secretary of State may require a county board of election commissioners to submit additional election information as determined by the Secretary of State.

History. Acts 2001, No. 1396, § 1; 2003, No. 131, § 2; 2009, No. 959, § 33; 2011, No. 1238, § 1; 2013, No. 1058, 2003, No. 994, § 13; 2005, No. 67, § 14; 2007, No. 559, § 5; § 2; 2013, No. 1126, § 7.

SUBCHAPTER 8 — ELECTION CONTESTS

SECTION.

7-5-801. Right of action — Procedure.

7-5-802. Circuit court proceedings.

7-5-803. Special judges for additional contests.

7-5-804. Trial — Appeal — Enforcement — Other laws superseded.

7-5-805. Contest of state legislative offices.

SECTION.

7-5-806. Contest of state constitutional executive offices.

7-5-807. Election illegalities — Complaint — Grand jury investigation — Indictment — Trial.

7-5-808. Finding of guilt — Effect.

7-5-809. Determination of guilt after election — Effect.

7-5-810. Contest of election results — Time for appeal.

7-5-801. Right of action — Procedure.

(a) A right of action is conferred on any candidate to contest the certification of nomination or the certificate of vote as made by the appropriate officials in any election.

(b) The action shall be brought in the circuit court of the county in which the certification of nomination or certificate of vote is made when a county or city or township office, including the office of county delegate or county committee member, is involved, and except as provided in this subchapter, within any county in the circuit or district wherein any of the wrongful acts occurred when any circuit or district office is involved, and except as provided in this subchapter, in the Pulaski County Circuit Court when the office of United States Senator or any state office is involved.

(c) If there are two (2) or more counties in the district where the action is brought and when fraud is alleged in the complaint, answer, or cross-complaint, the circuit court may hear testimony in any county in the district.

(d) The complaint shall be verified by the affidavit of the contestant to the effect that he or she believes the statements to be true and shall be filed within twenty (20) days of the certification that is the subject of the complaint.

(e) The complaint shall be answered within twenty (20) days.

History. Acts 1969, No. 465, Art. 10, § 1; A.S.A. 1947, § 3-1001; Acts 2013, No. 1126, § 8.

7-5-802. Circuit court proceedings.

(a) If the complaint is sufficiently definite to make a prima facie case, unless the circuit court in which it is filed is in session or is to convene within thirty (30) days, the judge shall call a special term which shall possess the powers of a court convened in a regular term, and shall proceed at once to hear the case. The session of the special term to hear these cases shall not interfere with the validity of other courts proceeding at the same time in the circuit.

(b) If the case comes in regular term, it shall be given precedence and be speedily determined. The judge may adjourn other courts in order to hear these cases and may call another judge in exchange to sit in other courts or vacate the bench in other courts and cause a special judge to be elected to hold the court.

History. Acts 1969, No. 465, Art. 10, § 2; A.S.A. 1947, § 3-1002.

7-5-803. Special judges for additional contests.

(a) In the event that there are more election contests brought under this section than the circuit court judge can dispose of prior to ten (10) days before any election to be held, either of the parties to the contest may so report to the circuit judge in vacation or otherwise, who shall have full and complete authority to appoint an attorney with the qualifications of circuit judge to hear any contest and render a final judgment in such contest.

(b) The circuit judge shall appoint as special judge any attorney named by a committee of three (3) qualified electors of the county in which the contest is pending, one (1) to be named by the contestant, one (1) to be named by the contestee, and the third to be named by those two (2) committee members. In the event that the first two (2) committee members do not agree within five (5) days on the third member, then the third member shall be chosen by lot from the respective choices of the two committee members.

(c) All proceedings shall be conducted as in the case of any regular judge trying any such case, including the right of appeal. The judge so appointed shall have full power and authority in the trial of election contests in all respects as are now conferred by the Arkansas Constitution upon circuit judges in this state. The judgment rendered by the attorney so appointed shall be binding with full force and effect as if the regular circuit judge had heard the cause.

(d) In the appointment of the attorney, the circuit judge shall not be confined in the selection of the attorney to the judicial circuit in which the contest is pending. However, the hearing of the contest shall be had in the county in which the contest has been filed.

History. Acts 1969, No. 465, Art. 10, § 3; A.S.A. 1947, § 3-1003.

7-5-804. Trial — Appeal — Enforcement — Other laws superseded.

(a) The election contest shall be tried by the circuit judge in open court without a jury.

(b) An appeal may be taken from the judgment. However, the appeal shall not operate as a supersedeas by judicial order or otherwise and the judgment of the circuit court shall be obeyed by officeholders, political committees and their officers, and all election officials, until reversed. It shall be the duty of the Supreme Court to advance the hearing of any such appeal.

(c) The circuit court or, when necessary, the circuit judge in vacation shall enforce by mandamus to the officers of political parties and election officials, or both, or the Secretary of State the proper certification and proper ballot in accordance with the judgment of the court and shall punish the failure of any such officers to obey the mandamus by imprisonment in the county jail.

(d) Except as provided in this subchapter, all laws pertaining to general and special elections or rules of political organizations regarding primary elections providing for contest before political conventions or committees, other than the proceedings provided in this subchapter, shall be of no further force or effect.

History. Acts 1969, No. 465, Art. 10, § 4; A.S.A. 1947, § 3-1004; Acts 1997, No. 446, § 36.

7-5-805. Contest of state legislative offices.

(a) Any contest to the eligibility, qualifications, or election to serve as a member of the Senate shall be in accordance with the rules and procedures for election contests as established by that chamber under its governing rules.

(b)(1)(A) Any action to contest eligibility, qualification, or election to serve as a member of the House of Representatives shall be initiated by filing a complaint with the Arkansas State Claims Commission.

(B) This procedure shall apply to House of Representatives election contests pursuant to Arkansas Constitution, Article 5, § 11, to contests of eligibility pursuant to Arkansas Constitution, Article 5, § 9, and to actions for expulsion pursuant to Arkansas Constitution, Article 5, § 12, except that a member of the House of Representatives shall be automatically suspended from the legislative process if a representative under felony criminal indictment is subsequently found guilty or pleads guilty.

(C)(i) If a representative under a felony criminal indictment in any federal or state court is subsequently found guilty or pleads guilty to the charges, then the Speaker of the House of Representatives shall immediately declare the representative suspended from the legislative process, and notification shall be given to the convicted representative, all members of the House of Representatives, the Chief Clerk of the House of Representatives, the Governor, the Secretary of State, and the Auditor of State.

(ii)(a) However, if a representative who was found guilty appeals that conviction, then the representative may petition the House Management Committee for a stay of the suspension from the legislative process, and the House Management Committee may grant a stay upon the filing of the petition and a notice of appeal to the relevant appellate court.

(b) The stay of the suspension shall continue until the appeal is complete or until the House of Representatives takes final action on the conviction.

(D) A representative suspended from the legislative process shall not participate in interim committee meetings nor in extraordinary or regular sessions of the General Assembly and shall not accept per diem and mileage but shall be eligible to retain the title of office and salary as a member of the General Assembly and is authorized to assist constituents and utilize legislative staff until a final action is taken by the House of Representatives.

(2) For House of Representatives election contests, the complaint shall be filed within fifteen (15) days after the election returns are certified by the county board of election commissioners. A responsive pleading shall be filed by the House of Representatives contestee within fifteen (15) days after receipt of the complaint unless an earlier or later date is set by the commission for good cause shown. Upon receipt of the complaint, the commission shall establish a schedule for discovery and hearing, which schedule shall allow the commission to take and review evidence presented by the parties and submit a nonbinding recommendation to the House of Representatives no later than five (5) days before the date fixed for the assembling of the General Assembly.

(3) For eligibility contests for the House of Representatives pursuant to Arkansas Constitution, Article 5, § 9, a complaint shall be filed at any time after the election of the individual to a seat in the House of Representatives. For action for expulsion from the House of Representatives pursuant to Arkansas Constitution, Article 5, § 12, the complaint shall be filed at any time permitted by law. A responsive pleading shall be filed within twenty (20) days after receipt of the complaint unless an earlier or later date is set by the commission for good cause shown. The commission shall establish a schedule for discovery and hearing, which schedule shall allow the commission to take and review evidence presented by the parties and submit a nonbinding recommendation to the House of Representatives in a timely fashion.

(4) An additional copy of all complaints filed pursuant to this subsection shall be served on the Speaker of the House of Representatives. The Speaker of the House of Representatives shall

appoint one (1) member of the chamber from each political party to serve as ex officio, nonvoting members of the commission for the consideration of all matters relating to the complaint.

(5) In those actions concerning a seat in the House of Representatives, the recommendation is to be made to the Speaker of the House of Representatives. The Speaker of the House of Representatives shall present the nonbinding recommendation to the members of the House of Representatives, and the members shall take such actions as they deem appropriate.

(6) The commission is authorized to promulgate any rules necessary to carry out the provisions set forth herein regarding contests for the seats in the House of Representatives.

History. Acts 1969, No. 465, Art. 10, § 8; A.S.A. 1947, § 3-1008; Acts 1991, No. 1014, § 1; 2001, No. 452, § 1; 2019, No. 315, § 420.

7-5-806. Contest of state constitutional executive offices.

(a) All contested general elections of Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, and Attorney General, except as provided in this section, shall be decided by the joint vote of both houses of the General Assembly, and in that joint meeting the President of the Senate shall preside.

(b) If, following any general election, any person contests any election covered by this section, he or she shall present his or her petition to the General Assembly, setting forth the points on which he or she will contest the election and the facts which he or she will prove in support of the points, and he or she shall pray for leave to introduce his or her proofs.

(c) A vote shall be taken by yeas and nays in each house as to whether the prayers shall be granted.

(d) If a majority of the whole number of votes of both houses shall be in the affirmative, they shall appoint a joint committee to take testimony on the part of the petitioner and also on the part of the person whose place is contested. The committee shall have power to send for witnesses and to issue warrants under the hand of the chair to any judge or justice of the peace to take the deposition of witnesses at such time and place as the warrant shall direct. The points to which the testimony is to be taken shall be set forth in the warrants.

(e) Reasonable notice shall be given by the party in whose favor depositions shall be allowed to be taken to the opposite party of the time and place of taking the depositions. The judge or justice shall proceed in all things, in the attendance of witnesses and in taking and certifying the testimony, as is directed in the preceding section.

(f) The party shall also be allowed to attend the examination of witnesses before the committee and to cross-examine them, but no testimony shall be taken except in relation to the points set forth in the petition.

(g) The committee shall report the facts to the two (2) houses, and the day shall be fixed by a joint resolution for the meeting of the two (2) houses to decide the contest, on which decision the yeas and nays shall be taken and entered on the journal of each house.

History. Acts 1969, No. 465, Art. 10, § 9; A.S.A. 1947, § 3-1009; Acts 1993, No. 512, § 6.

7-5-807. Election illegalities — Complaint — Grand jury investigation — Indictment — Trial.

(a) If ten (10) reputable citizens of any county shall file a complaint with the circuit judge within twenty (20) days after any election alleging that illegal or fraudulent votes were cast, that fraudulent returns or certifications were made, or that the Political Practices Act was violated, the circuit judge, if in his or her opinion there is good ground to believe the charges to be true, shall convene a special term at once unless the regular term is in session or will convene within thirty (30) days.

(b) If the charges come in a regular term, the judge shall specially charge the grand jury as to them.

(c) Should a special term be called, it shall in all respects be as if convened by law. The circuit judge shall cause to be summoned grand and petit jurors, either on lists selected by the sheriff or by disinterested persons selected by him or her for that purpose, according to his or her opinion as to the best method to select unbiased jurors.

(d) Should indictments be returned, either at a special or regular term, for violating the general, primary, or special election laws, the defendants shall be given a speedy trial at the term, and the court may adjourn terms of other courts in order that they may be tried, unless for good cause shown or in the interests of justice a continuance or change of venue is granted. No change of venue shall be granted in such cases except after a hearing and a finding by the court that the defendant cannot obtain a fair and impartial trial in the district of the county where the indictment is pending.

History. Acts 1969, No. 465, Art. 10, § 5; A.S.A. 1947, § 3-1005; Acts 2017, No. 600, § 2.

7-5-808. Finding of guilt — Effect.

(a) Should it be proved to the satisfaction of the trial judge, in cases instituted under this subchapter, that a successful candidate has been guilty of violating the Political Practices Act or any of the laws regulating general, primary, or special elections, the circuit court shall enter the finding as a part of the judgment, irrespective of the determination of the issues in other suits filed under this subchapter or the verdict of the jury in a criminal prosecution.

(b) The judgment to that effect shall operate to deprive the candidate of the nomination, and the vacancy shall be filled in the manner provided by law.

History. Acts 1969, No. 465, Art. 10, § 6; A.S.A. 1947, § 3-1006.

7-5-809. Determination of guilt after election — Effect.

(a) Should a proceeding under previous sections of this subchapter or a criminal prosecution under the criminal penalties imposed in this act not be determined finally until after the election, if the defendant in the proceeding is elected to the office or is the nominee of a political party to the office, and if it is determined that he or she was not entitled to be elected or to the nomination or that the judgment contains a finding that he or she violated the Political Practices Act or any of the laws applicable to general, primary, or special elections, then the judgment shall operate as a forfeiture of nomination or ouster from office.

(b) The vacancy shall be filled as provided by law for filling vacancies in nominations or office in case of death or resignation.

History. Acts 1969, No. 465, Art. 10, § 7; A.S.A. 1947, § 3-1007.

7-5-810. Contest of election results — Time for appeal.

An appeal to contest the determination of any election in any court of this state must be filed within seven (7) calendar days of the final certification of the election result as announced by a court as authorized by this subchapter, except in instances in which the Arkansas Constitution establishes a time frame for filing an appeal.

History. Acts 1993, No. 514, § 1; 1997, No. 446, § 37.

SUBCHAPTER 9 — VOTING AND ELECTIONS TRANSPARENCY ACT OF 2017

SECTION.

7-5-901. Title.

7-5-902. Uncounted votes.

7-5-903. Voter notification.

SECTION.

7-5-904. Election commissioners.

7-5-905. Documentation for long-term care or residential care facility residents.

SECTION.

7-5-906. Provisional and rejected ballot reporting.

7-5-901. Title.

This subchapter shall be known and cited as the “Voting and Elections Transparency Act of 2017”.

History. Acts 2017, No. 1014, § 1.

7-5-902. Uncounted votes.

(a) If for any reason a vote, including an absentee vote and a provisional vote, is not counted under this chapter, the county board of election commissioners shall promptly notify the person who cast the vote.

(b) Notification under subsection (a) of this section shall be written notification and shall state the reason or reasons the vote was not counted.

History. Acts 2017, No. 1014, § 1.

7-5-903. Voter notification.

(a) Except as otherwise provided under federal law and Arkansas Constitution, Amendment 51, the county clerk shall send written notification to a person when:

- (1) A person registers to vote for the first time;
- (2) The voter registration of a person becomes inactive; and
- (3) A person is removed or purged from a voter registration list.

(b) If a person is removed or purged from a voter registration list under subdivision (a)(3) of this section, he or she has thirty (30) days to challenge the removal.

History. Acts 2017, No. 1014, § 1.

7-5-904. Election commissioners.

(a) A member of the State Board of Election Commissioners or a county board of election commissioners shall not serve as a poll worker or a poll watcher on behalf of an individual candidate, political party, or ballot initiative.

(b) A person shall not simultaneously serve on the State Board of Election Commissioners and a county board of election commissioners.

History. Acts 2017, No. 1014, § 1.

7-5-905. Documentation for long-term care or residential care facility residents.

(a) The documentation required to be submitted by a person who is a resident of a long-term care facility or residential care facility licensed by the state under this chapter shall be standardized.

(b) The Secretary of State’s office shall develop, adopt, and make available a standardized form to satisfy the requirements under law concerning the documentation under subsection (a) of this section.

History. Acts 2017, No. 1014, § 1.

7-5-906. Provisional and rejected ballot reporting.

(a) A county board of election commissioners shall prepare a report of provisional and rejected ballots cast in the county for each election.

- (b) The report of provisional and rejected ballots cast for each election shall include:
- (1) The total number of:

- (A) Provisional ballots;
 - (B) Absentee provisional ballots;
 - (C) In-person provisional ballots cast during early voting;
 - (D) In-person provisional ballots cast on election day; and
 - (E) Rejected ballots;
- (2) The reason each ballot was rejected or provisional;
- (3) The number of provisional ballots counted in the election results;
- (4) The total number of provisional ballots not counted in the election, including:
- (A) The total number of provisional ballots not counted by the reason it was not counted; and
 - (B) The total number of provisional ballots not counted by the method the provisional ballot was cast, including if the provisional ballot was:
 - (i) An absentee ballot;
 - (ii) Cast during early voting; or
 - (iii) Cast on election day; and
- (5) The total number of rejected ballots other than provisional ballots, including:
- (A) The total number of rejected ballots by the reason they were rejected; and
 - (B) The total number of rejected ballots by the method the rejected ballot was cast, including if the rejected ballot was:
 - (i) An absentee ballot;
 - (ii) Cast during early voting; or
 - (iii) Cast on election day.
- (c) The report of provisional ballots and rejected ballots cast for each election shall be submitted by the county board of election commissioners to the State Board of Election Commissioners within thirty (30) days of every election.
- (d) The county board of election commissioners may, by agreement with the county clerk, transmit the report of provisional and rejected ballots to the county clerk who shall transmit the information to the State Board of Election Commissioners.
- (e) Within sixty (60) days of each election, the State Board of Election Commissioners shall:
- (1) Compile information reported by the county boards of election commissioners under this section; and
 - (2) Make the reports publicly available.

History. Acts 2021, No. 1022, § 1.

CHAPTER 6

CAMPAIGN PRACTICES

SUBCHAPTER.

1. GENERAL PROVISIONS.
2. CAMPAIGN FINANCING.

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 7-6-101. Campaign services contract — Right of action.
- 7-6-102. Political practices pledge — Penalty for falsification.
- 7-6-103. Campaign participation by judges — Penalty — Definition.

SECTION.

- 7-6-104. Defamatory political broadcasts.
- 7-6-105. Use of sound equipment — Penalty for interference.

7-6-101. Campaign services contract — Right of action.

No action shall be brought to charge any person upon any contract, promise, or agreement for any service rendered to or for him or her as a candidate in any election in this state or in aid of his or her campaign for the nomination to any office in this state unless the agreement, promise, or contract, upon which said action shall be brought, or some memorandum or note thereof, shall be made in writing and signed by the party to be charged therewith, or signed by some other person by him or her thereunto properly authorized in writing.

History. Acts 1969, No. 465, Art. 11, § 1; A.S.A. 1947, § 3-1101.

7-6-102. Political practices pledge — Penalty for falsification.

(a)(1) Candidates for political party nominations for state or district offices shall file with the Secretary of State and candidates for county, municipal, or township offices shall file with the county clerk of the county during the filing period set out in § 7-7-203 for the preferential primary election a pledge in writing stating that they are familiar with the requirements of §§ 7-1-103, 7-1-104, 7-3-108, 7-6-101, 7-6-103, 7-6-104, and this section and will comply in good faith with their terms.

(2) An independent candidate or school district candidate shall file the political practices pledge at the time of filing the petition for nomination.

(3) Independent candidates for municipal office shall file the political practices pledge with the county clerk at the time of filing the petition for nomination.

(4) [Repealed.]

(5) A nonpartisan candidate paying filing fees in accordance with § 7-10-103(b) shall file the political practices pledge at the time of filing for office.

(6) A nonpartisan candidate filing by petition according to § 7-10-103(c) shall file the political practices pledge at the time of filing the petition.

(b) All political practices pledge forms for state or district offices and county, municipal, or township offices shall contain the following additional pledge:

“I hereby certify that I have never been convicted of a felony in Arkansas or in any other jurisdiction outside of Arkansas.”

(c) Any person who has been convicted of a felony and signs the pledge stating that he or she has not been convicted of a felony shall be guilty of a Class D felony.

(d) For purposes of this section, a person shall be qualified to be a candidate for a state, district, county, municipal, and township office and may certify that he or she has never been convicted of a felony if his or her record was expunged in accordance with §§ 16-93-301 —

16-93-303, or a similar expunction statute in another state if the candidate presents a certificate of expunction from the court that convicted the candidate.

(e)(1) The name of a candidate who fails to sign and file the pledge shall not appear on the ballot.

(2)(A) Within two (2) days of the date the pledge is required to be filed, the Secretary of State or the county clerk shall notify by certified mail that requires a return receipt signed by the candidate those candidates who have failed to file a signed political practice pledge and include a copy of the written pledge required by this section.

(B) Failure of the state or district candidate to file with the Secretary of State or of the county, municipal, or township candidate to file with the county clerk within five (5) days of receipt or refusal of this notice shall prevent the candidate's name from appearing on the ballot.

History. Acts 1969, No. 465, Art. 11, § 3; 1970 (1st Ex. Sess.), No. 27, § 1; 1972 (1st Ex. Sess.), No. 37, § 3; 1972 (1st Ex. Sess.), No. 42, § 3; 1983, No. 244, § 1; A.S.A. 1947, §§ 3-1103, 3-1103.1; Acts 1987, No. 248, § 10; 1989, No. 755, § 1; 1989, No. 912, § 3; 1995, No. 665, § 2; 1997, No. 886, § 1; 2003, No. 542, § 1; 2003, No. 1731, § 2; 2005, No. 67, § 15; 2007, No. 222, § 1; 2007, No. 1049, § 20; 2013, No. 1110, § 6; 2025, No. 284, § 4.

7-6-103. Campaign participation by judges — Penalty — Definition.

(a) It shall be unlawful for any judge of the district or circuit courts and any Justice of the Supreme Court or Judge of the Court of Appeals to participate in the campaign of any candidate for office at any election, other than his or her own.

(b) The word “participation”, as used in this section, shall mean the managing of another's campaign or any solicitation on his or her behalf.

(c) Participation shall be deemed to be misfeasance and malfeasance in office and shall subject the judge to impeachment therefor.

History. Acts 1969, No. 465, Art. 11, § 6; A.S.A. 1947, § 3-1106; Acts 2005, No. 1994, § 261.

7-6-104. Defamatory political broadcasts.

Neither the owner, licensee, nor operator of a visual or sound radio broadcasting station or network of stations nor his or her agents or employees shall be liable for any damages for any defamatory statement published or uttered in, or as a part of, a visual or sound broadcast by a candidate for political office in those instances in which, under the acts of Congress or the rules and regulations of the Federal Communications Commission, the broadcasting station or network is prohibited from censoring the script of the broadcast.

History. Acts 1969, No. 465, Art. 11, § 8; A.S.A. 1947, § 3-1108.

7-6-105. Use of sound equipment — Penalty for interference.

(a) When any citizen of Arkansas becomes a candidate in any primary or general election and complies with all the laws pertaining thereto, then the candidate shall be entitled to go into any city, town, municipality, or rural community in Arkansas and operate his or her acoustical or sound equipment between the hours of 8:00 a.m. and 9:00 p.m. notwithstanding any town or city ordinance to the contrary.

(b) Any person who interferes in any manner with the right granted in this section shall be guilty of a Class B misdemeanor.

History. Acts 1969, No. 465, Art. 13, §§ 1, 2; A.S.A. 1947, §§ 3-1301, 3-1302; Acts 2005, No. 1994, § 394.

SUBCHAPTER 2 — CAMPAIGN FINANCING

SECTION.

- 7-6-201. Definitions.
- 7-6-202. Penalties.
- 7-6-203. Contributions — Limitations — Acceptance or solicitation — Use as personal income — Disposition.
- 7-6-204. Restriction on cash contributions or expenditures — Exception.
- 7-6-205. Contributions made indirectly, anonymously, or under assumed names.
- 7-6-206. Records of contributions and expenditures.
- 7-6-207. Reports of contributions — Candidates for state or district office.
- 7-6-208. Reports of contributions — Candidates for school district, township, or municipal office.
- 7-6-209. Reports of contributions — Candidates for county office.
- 7-6-210. Reports of contributions — Personal loans.
- 7-6-211, 7-6-212. [Repealed.]
- 7-6-213. Verification of reports.
- 7-6-214. Publication of reports.
- 7-6-215. Registration and reporting by approved political action committees.
- 7-6-216. Registration and reports by exploratory committees.

SECTION.

- 7-6-217. Creation of Arkansas Ethics Commission.
- 7-6-218. Citizen complaints — Definition.
- 7-6-219. Retiring a campaign debt.
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- 7-6-221. [Repealed.]
- 7-6-222. Tax credits for certain individual political contributions.
- 7-6-223. Reports of contributions by political parties.
- 7-6-224. Authority of local jurisdictions.
- 7-6-225. Filing deadlines.
- 7-6-226. Registration and reporting by county political party committees.
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- 7-6-228. Campaign signs and materials.
- 7-6-229. Amendment of reports — Affirmative defense.
- 7-6-230. Electronic filing of reports.
- 7-6-231. Alternative to electronic filing — Reporting of independent expenditures — Registration and reports for political action committees.
- 7-6-232. Delinquent reports.
- 7-6-233. Preparation of reporting calendar.

7-6-201. Definitions.

As used in this subchapter:

(1)(A) “Approved political action committee” means any person that:

(i) Receives contributions from one (1) or more persons in order to make contributions to candidates, ballot question committees, legislative question committees, political parties, county political party committees, or other political action committees;

(ii) Does not accept any contribution or cumulative contributions in excess of ten thousand dollars (\$10,000) from any person in any calendar year; and

(iii) Registers pursuant to § 7-6-215 prior to making contributions.

(B) “Approved political action committee” does not include an organized political party as defined in § 7-1-101, a county political party committee, the candidate’s own campaign committee, an exploratory committee, or a ballot question committee or legislative question committee as defined in § 7-9-402;

(2) “Candidate” means any individual who has knowingly and willingly taken affirmative action, including solicitation of funds, for the purpose of seeking nomination for or election to any public office;

(3)(A) “Contribution” means, whether direct or indirect, advances, deposits, or transfers of funds, contracts, or obligations, whether or not legally enforceable, payments, gifts, subscriptions, assessments, payment for services, dues, advancements, forbearance, loans, or pledges or promises of money or anything of value, whether or not legally enforceable, to a candidate, committee, or holder of elective office made for the purpose of influencing the nomination or election of any candidate.

(B)(i) “Contribution” includes the purchase of tickets for events such as dinners, luncheons, rallies, and similar fundraising events; the granting of discounts or rebates by television and radio stations and newspapers not extended on an equal basis to all candidates for the same office; and any payments for the services of any person serving as an agent of a candidate or committee by a person other than the candidate or committee or persons whose expenditures the candidates or committee must report under this subchapter.

(ii) “Contribution” further includes any transfer of anything of value received by a committee from another committee.

(C) “Contribution” shall not include noncompensated, nonreimbursed, volunteer personal services or travel;

(4) “Contribution and expenditure” shall not include activity sponsored and funded by a political party that meets the definition of a political party under § 7-1-101 or a political party that meets the requirements of § 7-7-205 to promote its candidates or nominees through events such as dinners, luncheons, rallies, or similar gatherings and shall not include nonpartisan activity designed to encourage individuals to register to vote or to vote or any communication by any membership organization to its members or stockholders if the membership organization or corporation is not organized primarily for the purpose of influencing the nomination for election or election of any candidate;

(5) “County political party committee” means a person that:

(A) Is organized at the county level for the purpose of supporting its affiliate party and making contributions;

(B) Is recognized by an organized political party, as defined in § 7-1-101, as being affiliated with that political party;

(C) Receives contributions from one (1) or more persons in order to make contributions to candidates, ballot question committees, legislative question committees, political parties, political action committees, or other county political party committees;

(D) Does not accept any contribution or cumulative contributions in excess of five thousand dollars (\$5,000) from any person in any calendar year; and

(E) Registers pursuant to § 7-6-226 prior to making contributions;

(6) “Election” means each election held to nominate or elect a candidate to any public office, including school elections. For the purposes of this subchapter, a preferential primary, a general primary, a special election, and a general election shall each constitute a separate election;

(7) “Expenditure” means a purchase, payment, distribution, gift, loan, or advance of money or anything of value, and a contract, promise, or agreement to make an expenditure, made for the purpose of influencing the nomination or election of any candidate;

(8)(A) “Exploratory committee” means a person that receives contributions which are held to be transferred to the campaign of a single candidate in an election.

(B) “Exploratory committee” shall not include:

(i) A political party:

(a) That meets the definition of a political party under § 7-1-101; or

(b) A political party that meets the requirements of § 7-7-205; or

(ii) The candidate’s own campaign committee;

(9) “Financial institution” means any commercial bank, savings and loan, mutual savings bank or savings bank, insurance company brokerage house, or any corporation that is in the business of lending money and that is subject to state or federal regulation;

(10) “Independent expenditure” means an expenditure which is not a contribution and:

(A) Expressly advocates the election or defeat of a clearly identified candidate for office;

(B) Is made without arrangement, cooperation, or consultation between a candidate or an authorized committee or agent of the candidate and the person making the expenditure or an authorized agent of that person; and

(C) Is not made in concert with or at the request or suggestion of a candidate or an authorized committee or agent of the candidate;

(11) “Independent expenditure committee” means any person that receives contributions from one (1) or more persons in order to make an independent expenditure and is registered pursuant to § 7-6-227 prior to making expenditures;

(12)(A) “Legislative caucus committee” means a person that is composed exclusively of members of the General Assembly, that elects or appoints officers and recognizes identified legislators as members of the organization, and that exists for research and other support of policy development and interests that the membership hold in common.

(B) “Legislative caucus committee” includes, but is not limited to, a political party caucus of the General Assembly, the Senate, or the House of Representatives.

(C) An organization whose only nonlegislator member is the Lieutenant Governor or the Governor is a “legislative caucus committee” for the purposes of this subchapter;

(13)(A) “Person” means any individual, proprietorship, firm, partnership, joint venture, syndicate, labor union, business trust, company, corporation, association, committee, or any other organization or group of persons acting in concert.

(B) “Person” shall also include:

(i) A political party that meets the definition of a political party under § 7-1-101 or a political party that meets the requirements of § 7-7-205;

(ii) A county political party committee; and

(iii) A legislative caucus committee;

(14)(A) “Prohibited political action committee” means any person that receives contributions from one (1) or more persons in order to make contributions to candidates, ballot question committees, legislative question committees, political parties, county political party committees, or other political action committees but that does not meet the requirements of an approved political action committee.

(B) “Prohibited political action committee” shall not include:

(i) A political party that meets the definition of a political party under § 7-1-101 or a political party that meets the requirements of § 7-7-205;

(ii) The candidate’s own campaign committee;

(iii) A county political party committee;

(iv) An exploratory committee; or

(v) A ballot or legislative question committee;

(15) “Prohibited sources” means the same as defined in § 7-9-402;

(16) “Public office” means any office created by or under authority of the laws of the State of Arkansas or of a subdivision thereof that is filled by the voters, except a federal office;

(17)(A) “Remaining campaign funds” means any balance of campaign funds over expenses incurred as of the day of the election except for:

(i) Any funds required to repay loans made by the candidate from his or her personal funds to the campaign; or

(ii) To repay loans made by financial institutions to the candidate and applied to the campaign.

(B) “Remaining campaign funds” does not include campaign signs, campaign literature, and other printed campaign materials that were:

(i) Purchased by the campaign;

(ii) Reported on the appropriate contribution and expenditure report for the campaign at the time of the purchase; and

(iii) Retained for use in a future campaign by the same candidate; and

(18)(A) “Written instrument” means a check on which the contributor is directly liable or which is written on a personal account, trust account, partnership account, business account, or other account that contains the contributor’s funds.

(B) As used in § 7-6-204 in the case of a contribution by credit card or debit card, “written instrument” includes without limitation:

(i) A paper record signed by the cardholder, provided that the paper record contains the following information for the cardholder at the time of making the contribution:

(a) Valid name;

(b) Complete address;

(c) Place of business;

(d) Employer; and

(e) Occupation; or

(ii) In the case of a contribution made through the internet, an electronic record created and transmitted by the cardholder, provided that the electronic record contains the following information for the cardholder at the time of making the contribution:

(a) Valid name;

- (b) Complete address;
- (c) Place of business;
- (d) Employer; and
- (e) Occupation.

History. Acts 1975, No. 788, § 1; 1977, No. 312, §§ 4, 7; A.S.A. 1947, § 3-1109; Acts 1987, No. 246, § 1; Init. Meas. 1990, No. 1, § 1; Acts 1993, No. 1209, § 2; Init. Meas. 1996, No. 1, § 1; Acts 1997, No. 491, § 1; 1999, No. 553, § 2; 2003, No. 195, § 1; 2005, No. 1284, § 2; 2005, No. 2006, § 1; 2009, No. 473, § 2; 2009, No. 1204, § 1; 2011, No. 721, § 2; 2013, No. 1126, §§ 9, 10; 2015, No. 1280, §§ 3, 4; 2021, No. 272, § 1; 2021, No. 737, §§ 1, 2; 2023, No. 455, § 1; 2025, No. 999, § 2.

7-6-202. Penalties.

A person who knowingly fails to comply with this subchapter shall upon conviction be guilty of a Class A misdemeanor unless a different penalty applies under this subchapter.

History. Acts 1975, No. 788, § 10; A.S.A. 1947, § 3-1118; Acts 2005, No. 1994, § 224; 2013, No. 1126, § 11; 2019, No. 879, § 1.

7-6-203. Contributions — Limitations — Acceptance or solicitation — Use as personal income — Disposition.

(a)(1)(A) It shall be unlawful for any candidate for any public office or for any person acting on the candidate's behalf to accept campaign contributions in excess of the maximum campaign contribution limit established by the Arkansas Ethics Commission under subsection (i) of this section per election from:

- (i) An individual;
- (ii) A political party that meets the definition of a political party under § 7-1-101;
- (iii) A political party that meets the requirements of § 7-7-205;
- (iv) A county political party committee;
- (v) A legislative caucus committee; or
- (vi) An approved political action committee.

(B) It shall be unlawful for a candidate for a public office or for any person acting on the candidate's behalf to accept a campaign contribution from a prospective contributor other than those under subdivisions (a)(1)(A)(i)-(vi) of this section.

(C) It shall be unlawful for a prospective contributor other than those under subdivisions (a)(1)(A)(i)-(vi) of this section to make a contribution to:

- (i) A candidate for public office; or
- (ii) A person acting on the candidate's behalf.

(2) A candidate may accept a campaign contribution or contributions up to the maximum amount from any prospective contributor under subdivisions (a)(1)(A)(i)-(vi) of this section for each election, whether opposed or unopposed.

(b)(1)(A) It shall be unlawful for any person to make a contribution to a candidate for any public office or to any person acting on the candidate's behalf, which in the aggregate amount exceeds the maximum campaign contribution limit established by the Arkansas Ethics Commission per election.

(B) The total aggregate amount per election is based on the total contributions made to a candidate by a donor during an election regardless of which office or offices the candidate is seeking, and the aggregate amount during an election applies even if a candidate:

- (i) Seeks more than one (1) office during the election; or
- (ii) Concludes a campaign or otherwise withdraws from the election.

(2) A person permitted to make a contribution or contributions under subdivisions (a)(1)(A)(i)-(vi) of this section may make a contribution or contributions up to the maximum amount to a candidate for each election, whether opposed or unopposed.

(c) The limitation shall not apply to loans made by a candidate from his or her own personal funds to the campaign, contributions made by a candidate from his or her personal funds to the

campaign, or to personal loans made by financial institutions to the candidate and applied to his or her campaign.

(d)(1) It shall be unlawful for any candidate for any public office or any person acting in the candidate's behalf to accept any contribution from a prohibited political action committee for any election.

(2) It shall be unlawful for any prohibited political action committee to make a contribution to a candidate for public office in an election.

(3) It shall be unlawful for any ballot question committee, legislative question committee, political party, county political party committee, or approved political action committee to accept any contribution from a prohibited political action committee.

(4) It shall be unlawful for any prohibited political action committee to make a contribution to:

- (A) A ballot question committee;
- (B) A legislative question committee;
- (C) A political party;
- (D) A county political party committee;
- (E) An approved political action committee; or
- (F) A prohibited political action committee.

(e) [Repealed.]

(f)(1) A candidate shall not take any campaign funds as personal income.

(2) A candidate shall not take any campaign funds as income for his or her spouse or dependent children, except that:

(A) This subsection shall not prohibit a candidate who has an opponent from employing his or her spouse or dependent children as campaign workers;

(B) The use of campaign funds to pay a candidate's childcare expenses shall not be considered a taking of campaign funds as personal income if the campaign funds are used to pay for childcare for the time the candidate is engaging in campaign activity and the childcare expenses would not exist in the absence of the campaign; and

(C) Any candidate who has an opponent and who, during the campaign and before the election, takes a leave of absence without pay from his or her primary place of employment shall be authorized to take campaign funds during the campaign and before the election as personal income up to the amount of employment income lost as a result of the leave of absence.

(3) A candidate who takes campaign funds during the campaign and before the election under a leave of absence pursuant to the provisions of subdivision (f)(2) of this section may elect to treat the campaign funds as a loan from the campaign fund to the candidate to be paid back to the campaign fund by the candidate.

(4)(A)(i) For purposes of this subsection, a candidate or officeholder, who uses campaign funds to fulfill any commitment, obligation, or expense that would exist regardless of the candidate's campaign or officeholder activity, shall be deemed to have taken campaign funds as personal income.

(ii) Candidates or officeholders may use campaign funds to fulfill any commitment, obligation, or expense authorized by law, or permitted by an Arkansas Ethics Commission rule or opinion at the time of the expenditure, or reasonably and legitimately related to a campaign or officeholder activity.

(iii) If a candidate or officeholder is assessed a fine by the Arkansas Ethics Commission under § 7-6-218(b)(4)(B) for the use of campaign funds as personal income, a candidate or officeholder shall not use campaign funds or remaining campaign funds to pay the fine.

(B) The use of campaign funds to purchase a cake or other perishable item of food at a fund-raising event held by a volunteer agency, as defined in § 16-6-103, shall not be considered a taking of campaign funds as personal income.

(C) The use of campaign funds to purchase advertising prior to the date the final report is due to be filed thanking voters for their support shall not be considered a taking of campaign funds as personal income.

(D) The use of campaign funds to pay a candidate's own personal expenses for food, lodging, or travel to attend a national presidential nominating convention shall not be considered a taking of campaign funds as personal income.

(5) If a candidate loses an election or if an officeholder is no longer in office, personal use of campaign funds remains prohibited by this section unless the expenses relate to a future candidacy and shall comply with subdivision (f)(4) of this section.

(6) Knowingly taking campaign funds as personal income is a:

(A) Class B felony if the value of the benefit is twenty-five thousand dollars (\$25,000) or more;

(B) Class C felony if the value of the benefit is five thousand dollars (\$5,000) or more but less than twenty-five thousand dollars (\$25,000);

(C) Class D felony if the value of the benefit is two thousand five hundred dollars (\$2,500) or more but less than five thousand dollars (\$5,000); or

(D) Class A misdemeanor if the value of the benefit is less than two thousand five hundred dollars (\$2,500).

(7) It is an affirmative defense to a prosecution for taking campaign funds as personal income if the candidate or officeholder shows by a preponderance of the evidence that the personal property was retained as campaign funds, and the candidate or officeholder:

(A) Reported the personal property as campaign funds; and

(B) Retained or disposed of the personal property in the manner that is required by law for campaign funds.

(g)(1) A candidate may turn over campaign funds to either:

(A) The Treasurer of State for the benefit of the General Revenue Fund Account of the State Apportionment Fund;

(B) A political party as defined in § 7-1-101 or a political party caucus of the General Assembly, the Senate, or the House of Representatives;

(C) A nonprofit organization that is exempt from taxation under Section 501(c)(3) of the Internal Revenue Code;

(D) Cities of the first class, cities of the second class, or incorporated towns; or

(E) The contributors to the candidate's campaign.

(2)(A) Remaining campaign funds may be maintained after an election and used to run for election or reelection.

(B) Nothing shall prohibit a person at any time from disposing of all or any portion of his or her campaign funds in the manner set out under subdivision (g)(1) of this section. However, the candidate shall not take the funds as personal income or as income for his or her spouse or dependent children.

(C)(i) Campaign funds may be retained by a person for not more than ten (10) years after the last election at which he or she was a candidate, or if applicable, not more than ten (10) years after the last day that the person held office, and any remaining campaign funds shall be disposed of in the manner set out under subdivision (g)(1) of this section.

(ii)(a) The officer with whom the person last filed a final campaign report shall provide the person timely notice of the requirements of this subdivision (g)(2)(C) prior to the expiration of the ten-year period.

(b) However, failure to provide the notice does not relieve the person of his or her obligation under this subsection.

(D)(i) The use of campaign funds to pay an elected candidate's own personal expenses for food, lodging, conference fees, or travel to attend a conference related to the performance of his or her responsibilities as an elected official shall not be considered a taking of campaign funds as personal income.

(ii) The reimbursement of expenses shall be a result of travel and the source of the reimbursement shall be authorized under the rules of the House of Representatives or the Senate and used to reimburse the campaign account.

(iii) The reimbursement amount shall be reported in the elected candidate's campaign fund report.

(E) If a candidate or officeholder uses campaign funds or remaining campaign funds to pay a fine imposed by the Arkansas Ethics Commission under § 7-6-218(b)(4)(B) for the use of campaign funds as personal income, the candidate or officeholder shall be deemed to have taken campaign funds as personal income.

(3) After the date of an election at which the person is a candidate for nomination or election, the person shall not accept campaign contributions for that election except for the sole purpose of raising funds to retire campaign debt.

(4) Campaign funds or remaining campaign funds given to a political party caucus shall be segregated in an account separated from other caucus funds and shall not be used:

(A) By the political party caucus to make a campaign contribution; or

(B) To provide any personal income to any candidate who donated campaign funds or remaining campaign funds.

(h) A candidate may maintain his or her campaign funds in one (1) or more campaign accounts. Campaign funds shall not be placed in an account containing personal or business funds.

(i)(1) The Arkansas Ethics Commission shall establish the maximum campaign contribution limit as follows:

(A) The adjusted maximum campaign contribution limit shall be calculated from a base amount of two thousand dollars (\$2,000) as of January 1, 2015;

(B)(i) The maximum campaign contribution limit shall be adjusted each odd-numbered year in an amount equal to the percentage certified to the Federal Election Commission by the United States Secretary of Labor under 52 U.S.C. § 30116(c) as existing on January 1, 2025.

(ii) The adjustment under subdivision (i)(1)(B)(i) of this section shall occur as soon as practicable following the certification to the Federal Election Commission by the United States Secretary of Labor, but no later than the later of:

(a) Thirty (30) days following the certification; or

(b) The next regularly scheduled meeting of the Arkansas Ethics Commission; and

(C) If the amount of the maximum campaign contribution limit after adjustment under subdivision (i)(1)(B) of this section is not a multiple of one hundred dollars (\$100), the Arkansas Ethics Commission shall round the amount to the nearest multiple of one hundred dollars (\$100).

(2)(A) The Arkansas Ethics Commission shall:

(i) Publish the maximum campaign contribution limit established under subdivision (i)(1) of this section on the official website of the Arkansas Ethics Commission and in any other location or format deemed necessary by the Arkansas Ethics Commission; and

(ii) Make the maximum campaign contribution limit established under subdivision (i)(1) of this section available to the Secretary of State, elected public officials, candidates, committees under this subchapter, and the public.

(B) The maximum campaign contribution limit established under subdivision (i)(1) of this section shall be:

(i) Effective upon being published upon the official website of the Arkansas Ethics Commission; and

(ii) Retroactive to the date of the certification to the Federal Election Commission by the United States Secretary of Labor under subdivision (i)(1)(B)(i) of this section.

(C) The maximum campaign contribution limit established under subdivision (i)(1) of this section:

(i) Is not a rule under §§ 10-3-309 and 25-15-202; and

(ii) Shall not be promulgated under the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

History. Acts 1975, No. 788, § 2; 1977, No. 312, § 6; 1981, No. 690, § 1; A.S.A. 1947, § 3-1110; Init. Meas. 1990, No. 1, §§ 2, 3; Acts 1993, No. 1195, § 1; 1993, No. 1196, § 1; 1995, No. 863, §§ 1-3; 1995, No. 1296, § 41; Init. Meas. 1996, No. 1, §§ 2, 3; Acts 1997, No. 116, § 1; 1997, No. 491, §§ 2, 3; 1999, No. 553, § 3; 1999, No. 1057, § 1;

2001, No. 954, § 1; 2001, No. 1839, § 2; 2003, No. 195, §§ 2, 3; 2003, No. 248, § 1; 2005, No. 1284, §§ 3, 4; 2005, No. 1413, § 1; 2005, No. 1695, § 1; 2007, No. 221, § 2; 2009, No. 340, § 1; 2009, No. 473, §§ 3, 4; 2009, No. 1204, § 2; 2011, No. 721, §§ 3, 4; 2013, No. 382, § 1; 2013, No. 1110, § 7; 2015, No. 142, § 1; 2015, No. 1280, §§ 5-7; 2017,

No. 318, § 1; 2019, No. 240, § 1; 2019, No. 845, § 1; 2019, § 1; 2021, No. 737, §§ 3-6; 2023, No. 307, § 1; 2025, No. 270, No. 879, § 2; 2021, No. 254, §§ 1, 2; 2021, No. 324, §§ 1, 2; §§ 1-3; 2025, No. 592, §§ 1-3. 2021, No. 384, §§ 1-3; 2021, No. 385, § 1; 2021, No. 734, §

7-6-204. Restriction on cash contributions or expenditures — Exception.

(a) No campaign contribution in excess of one hundred dollars (\$100) or expenditure in excess of fifty dollars (\$50.00) shall be made or received in cash.

(b) All contributions or expenditures in behalf of a campaign activity, other than in-kind contributions and expenditures, in excess of the amounts mentioned in subsection (a) of this section shall be made:

- (1) By a written instrument containing the name of the donor and the name of the payee;
- (2) By credit card or debit card where the transaction results in a paper record signed by the cardholder, provided that the paper record contains the following information for the cardholder at the time of making the contribution:

- (A) Valid name;
- (B) Complete address;
- (C) Place of business;
- (D) Employer; and
- (E) Occupation; or

(3) By transaction that results in an electronic record created or transmitted by the cardholder where a contribution or expenditure is made through the internet, provided that the electronic record contains the following information for the cardholder at the time of making the contribution:

- (A) Valid name;
- (B) Complete address;
- (C) Place of business;
- (D) Employer; and
- (E) Occupation.

(c) The payment of filing fees may be in cash even though the amount exceeds fifty dollars (\$50.00). The candidate shall obtain a receipt for the payment and shall report it as a campaign expenditure.

History. Acts 1975, No. 788, § 8; 1977, No. 312, § 2; A.S.A. 1947, § 3-1116; Acts 2011, No. 721, § 5.

7-6-205. Contributions made indirectly, anonymously, or under assumed names.

(a) No campaign contribution shall be made to a candidate, a political action committee, an independent expenditure committee, an exploratory committee, a county political party committee, or a political party unless such contribution is made directly to the intended recipient. Provided, it shall be permissible to make a contribution to a candidate's campaign committee instead of directly to the candidate.

(b) No contribution shall be made to or knowingly accepted by a candidate or his or her campaign committee, a political action committee, an independent expenditure committee, an exploratory committee, a county political party committee, or a political party unless the contribution is made in the name by which the person providing the funds for the contribution is identified for legal purposes.

(c)(1) No person shall make an anonymous contribution in support of or opposition to a candidate or campaign committee totalling fifty dollars (\$50.00) or more in a calendar year.

(2) An anonymous contribution of fifty dollars (\$50.00) or more shall not be kept by the intended recipient but shall be promptly paid by the recipient to the Secretary of State for deposit into the State Treasury as general revenues.

(d) Whenever any person provides his or her dependent child with funds and the child uses those funds to make a contribution to a candidate, the contribution shall be attributed to such person for purposes of applying the contribution limit pursuant to § 7-6-203(b).

(e) Campaign contributions may not be made by individuals who are not citizens of the United States or by any other entity which is not organized, existing, or created under the laws of the United States or of any state or other place subject to the jurisdiction of the United States and which does not have its principal place of business in the United States.

History. Acts 1975, No. 788, § 9; A.S.A. 1947, § 3-1117; Init. Meas. 1990, No. 1, § 4; Acts 1999, No. 553, § 4; 2007, No. 221, § 3.

7-6-206. Records of contributions and expenditures.

(a) A candidate, a person acting in the candidate's behalf, a political party, a county political party committee, a political action committee, an independent expenditure committee, or a person making independent expenditures shall keep records of all contributions and expenditures in a manner sufficient to evidence compliance with § 7-6-201 et seq.

(b) The records shall be made available to the Arkansas Ethics Commission and the prosecuting attorney in the district in which the candidate resides, who are delegated the responsibility of enforcing this subchapter, and shall be maintained for a period of four (4) years.

History. Acts 1975, No. 788, § 5; 1977, No. 312, § 5; A.S.A. 1947, § 3-1113; Acts 1999, No. 553, § 5; 2007, No. 221, § 4; 2025, No. 592, § 4.

7-6-207. Reports of contributions — Candidates for state or district office.

(a) REPORTS REQUIRED.

(1) Except as provided in subsections (c) and (e) of this section, each candidate for state or district office, including a district judge, or a person acting in the candidate's behalf, shall file with the Secretary of State:

(A) For each quarter during a calendar year in which a candidate is not listed on any ballot for election, a quarterly report of all contributions received and expenditures made during that quarter. The quarterly report shall be filed no later than fifteen (15) days after the end of each quarter;

(B)(i) Beginning with the month of January of a calendar year in which a candidate may be listed on any ballot for election, a monthly report of all contributions received and expenditures made during that month. However, for any month in which certain days of that month are included in a preelection report required under subdivision (a)(1)(C) of this section or a final report required under subdivision (a)(1)(D) of this section, no monthly report for that month shall be due.

(ii) In the case of a primary or runoff election, those days of the month occurring after the date of the election shall be carried forward and included in the next monthly report.

(iii) The monthly report shall be filed no later than twenty (20) days after the end of each month, except that the final report shall be filed as required in subdivision (a)(1)(D)(i) of this section.

(iv) With respect to a special election, the candidate shall file monthly reports under this section beginning with the month in which the special election candidate's total campaign contributions or expenditures exceed five hundred dollars (\$500);

(C) No later than seven (7) days prior to any preferential primary election, runoff election, general election, or special election in which the candidate's name appears on the ballot, a preelection report of all contributions received and expenditures made between the period covered by the previous report and the period ten (10) days before the election. In case of a runoff election, the report shall cover all contributions received and expenditures made during that period of time that begins after the date of the election from which the runoff arose and ends ten (10) days before the runoff election;

(D)(i) No later than twenty (20) days after the end of the month following the month in which the candidate's name has appeared on the ballot in any primary election, runoff election,

general election, or special election, or when only one (1) candidate qualifies for a particular office or position and no position or name of an unopposed candidate shall appear on a ballot, a final report covering all contributions received and expenditures made for that election which have not been disclosed on reports previously required to be filed through the month following the month during which a primary election, runoff election, general election, or special election is held.

(ii) A final report is required regardless of whether a candidate has received contributions or made expenditures in excess of five hundred dollars (\$500);

(E)(i) No later than thirty (30) days after the end of the month in which the candidate has withdrawn, a final report of all contributions received and expenditures made that have not been disclosed on reports previously required to be filed.

(ii) If a candidate withdraws from the campaign, the candidate shall notify the Secretary of State in writing of the withdrawal; and

(F)(i) If a candidate keeps remaining campaign funds after an election, but does not have any activity before the end of the year, the candidate shall not be required to file a fourth quarter report.

(ii) If a candidate keeps remaining campaign funds or raises campaign funds for a future campaign, or expends campaign funds for office holder expenses or a future election, the candidate shall continue filing the reports required by this subsection.

(iii) If a candidate keeps remaining campaign funds after an election, the candidate shall continue filing the reports required by this subsection.

(2) Upon receiving the first report from any candidate, or upon receipt of the candidate's notice of filing for office, the Secretary of State shall provide the candidate with information on the deadlines for filing remaining quarterly, monthly, and preelection reports and shall furnish each candidate with the appropriate instructions for complying with the deadlines.

(3) A report is timely filed if it is filed in electronic form through the official website of the Secretary of State on or before the date that the report is due.

(b) CONTENTS OF REPORTS.

(1) The contribution and expenditure reports required by subsection (a) of this section shall indicate:

(A) The total amount of contributions received with loans stated separately, the total amount of expenditures made during the filing periods, and the cumulative amount of those totals for the entire election cycle;

(B) The name and address of each person, including the candidate, who made a contribution or contributions that in the aggregate exceeded two hundred dollars (\$200);

(C) The contributor's principal place of business, employer, occupation, the amount contributed, the date the contribution was accepted by the candidate, and the aggregate contributed for each election;

(D) The name and address of each person, including the candidate, who contributed a nonmoney item, together with a description of the item, the date of receipt, and the value, not including volunteer service by individuals;

(E) An itemization of all single expenditures made that exceed one hundred dollars (\$100), including the:

(i) Amount of the expenditure;

(ii) Name and address of any person, including the candidate, to whom the expenditure was made; and

(iii) Date the expenditure was made;

(F) A list of all paid campaign workers and the amount the workers were paid;

(G) A list of all expenditures by categories, including, but not limited to:

(i) Television, radio, print, or other advertising;

(ii) Direct mail;

(iii) Office supplies;

(iv) Rent;

- (v) Travel;
- (vi) Expenses;
- (vii) Entertainment; and
- (viii) Telephone;
- (H) The total amount of all nonitemized expenditures made during the filing period;
- (I) A list of all disbursements made under § 7-6-203(g)(1); and
- (J) The current balance of campaign funds.

(2)(A) If a candidate's campaign has ended and the candidate does not retain remaining campaign funds, the final report shall also indicate which option under § 7-6-203(g) was used to dispose of campaign funds.

(B) If a candidate's campaign has ended and the candidate is retaining remaining campaign funds, the final report shall also indicate the amount of funds retained by the candidate as remaining campaign funds.

(C) If the candidate's campaign has not ended, disposal of campaign funds shall not be required and the candidate may carry forward any remaining campaign funds to the general primary election, general election, or general runoff election for that same office.

(c) REPORTS NOT REQUIRED.

(1) The candidate or any person acting in the candidate's behalf shall comply with the filings required by this section beginning with the first reporting period, either quarterly, monthly, or preelection, in which his or her total contributions or expenditures exceed five hundred dollars (\$500). A candidate who has not received contributions or made expenditures in excess of five hundred dollars (\$500) shall not be required to file any reports required under this section other than the final report required under subdivision (a)(1)(D) of this section. In calculating the amount of contributions received or expenditures made for purposes of this exception, the payment of the filing fee from the candidate's personal funds shall not be considered as either a contribution or an expenditure.

(2) The preelection reports referenced in subdivision (a)(1)(C) of this section are only required for candidates with opponents in those elections.

(3) An unopposed candidate for an office described in subdivision (a)(1) of this section or any person acting in the unopposed candidate's behalf shall not be required to file the ten-day preelection report required by subdivision (a)(1)(C) of this section.

(d) FILINGS AND PUBLIC INSPECTION.

(1)(A)(i) The Secretary of State shall establish a filing system for reports filed under this section.

(ii) The reports shall be kept for eight (8) years from the date of filing, catalogued by candidate in chronological order, and made available for public inspection.

(iii) For eight (8) years after the reports are filed under this section, the Secretary of State is the official custodian of those records.

(B)(i) After the eight-year period, the Secretary of State shall turn the reports over to the Arkansas State Archives for maintenance and continued public inspection.

(ii) After the eight-year period, the Arkansas State Archives is the official custodian of the records of the reports filed under this section.

(C)(i) The campaign contribution and expenditure reports filed with the Secretary of State under this section shall be filed in electronic form through the official website of the Secretary of State.

(ii) The Arkansas Ethics Commission shall approve the format used by the Secretary of State for the filing of campaign contribution and expenditure reports in electronic form under subdivision (d)(1)(C)(i) of this section to ensure that all required information is requested.

(iii) The official website of the Secretary of State shall allow for searches of campaign contribution and expenditure report information filed in electronic form under subdivision (d)(1)(C)(i) of this section.

(iv) The electronic format used for the filing of campaign contribution and expenditure reports on the official website of the Secretary of State shall aggregate total campaign

contributions by a contributor to determine if they collectively reach the limitation for lawful campaign contributions under this subchapter.

(2) The Secretary of State shall furnish to the commission, no later than thirty (30) days after each filing deadline under this section, a report listing the names of all candidates who have filed for office, the type of report filed by each candidate, and the date the report was received by the Secretary of State.

(e) **REPORTS BY CANDIDATES WHO HAVE FILED FOR ELECTIVE OFFICE.** If a candidate files for office during the party filing period, for the quarter including the party filing period, the candidate shall:

(1) File monthly reports under subdivision (a)(1)(B) of this section for the months of the quarter that includes the party filing period; and

(2) Not file a quarterly report under subdivision (a)(1)(A) of this section for the quarter that includes the party filing period.

(f)(1) For each financial institution the candidate and committee working on the candidate's behalf use for the purposes of receiving contributions or making expenditures within this state, the following information shall be submitted to the Secretary of State with the initial report filed under this section:

(A) The full name of the financial institution; and

(B) For the financial institution, the:

(i) Street address;

(ii) City;

(iii) State; and

(iv) United States postal zip code of the financial institution.

(2) The information disclosed under subdivision (f)(1) of this section:

(A) Shall be made available to the commission upon request;

(B) Is not a public record; and

(C) Is exempt from disclosure under the Freedom of Information Act of 1967, § 25-19-101 et seq.

History. Acts 1975, No. 788, § 3; 1977, No. 312, § 1; 1985, No. 896, §§ 1-3; A.S.A. 1947, § 3-1111; Acts 1987, No. 246, § 2; Init. Meas. 1990, No. 1, § 5; Acts 1993, No. 1243, § 1; 1995, No. 1263, § 1; Init. Meas. 1996, No. 1, § 4; Acts 1999, No. 103, § 1; 1999, No. 553, § 6; 2001, No. 564, § 1; 2001, No. 1839, §§ 3, 4; 2007, No. 221, § 5; 2009, No. 1204, § 3; 2011, No. 721, § 6; 2013, No. 382, §§ 2, 3; 2015, No.

999, § 1; 2015 (1st Ex. Sess.), No. 1, §§ 1, 2; 2016 (3rd Ex. Sess.), No. 2, § 95; 2016 (3rd Ex. Sess.), No. 3, § 95; 2017, No. 318, §§ 2, 3; 2017, No. 721, § 5; 2019, No. 240, §§ 2, 3; 2021, No. 254, § 3; 2021, No. 737, §§ 7-9; 2023, No. 85, §§ 1, 2; 2023, No. 753, §§ 1-3; 2025, No. 250, §§ 1, 2; 2025, No. 592, §§ 5, 6.

7-6-208. Reports of contributions — Candidates for school district, township, or municipal office.

(a) **REPORTS REQUIRED.**

(1) Except as provided in subsection (d) of this section, each candidate for school district, township, or municipal office, or a person acting in the candidate's behalf, shall file with the Secretary of State in an election year for the office that the candidate is seeking:

(A)(i) A monthly report of all contributions received and expenditures made during each month beginning with the month of January of a calendar year in which a candidate may be listed on a ballot for election.

(ii) A monthly report shall not be due under this subdivision (a)(1)(A) for a month in which certain days of that month are included in a preelection report required under subdivision (a)(1)(B) of this section or a final report required under subdivision (a)(1)(C) of this section.

(iii) In the case of a primary or runoff election, those days of the month occurring after the date of the election shall be carried forward and included in the next monthly report required under this subdivision (a)(1)(A).

(iv) The monthly report shall be filed no later than twenty (20) days after the end of each month, except that the final report shall be filed as required in subdivision (a)(1)(C)(i) of this section;

(B)(i) No later than seven (7) days before a preferential primary election, runoff election, general election, school election, or special election in which the candidate's name appears on the ballot, a preelection report of all contributions received and expenditures made between the period covered by the previous report and the period ten (10) days before the election.

(ii) In case of a runoff election, the preelection report required under this subdivision (a)(1)(B) shall cover all contributions received and expenditures made during that period of time that begins after the date of the election from which the runoff arose and ends ten (10) days before the runoff election;

(C)(i) A final report of all contributions received and expenditures made for that election that have not been disclosed on reports previously required to be filed no later than twenty (20) days after the end of the month following the month in which the candidate's name has appeared on the ballot in a primary election, runoff election, general election, school election, or special election or when only one (1) candidate qualifies for a particular office or position and no position or name of an unopposed candidate shall appear on a ballot.

(ii) A final report is required under this subdivision (a)(1)(C) whether or not a candidate has received contributions or made expenditures in excess of five hundred dollars (\$500); and

(D)(i) A final report of all contributions received and expenditures made that have not been disclosed on reports previously required to be filed.

(ii) The final report under this subdivision (a)(1)(D) shall be filed no later than thirty (30) days after the end of the month in which the candidate has withdrawn.

(iii) If a candidate withdraws from the campaign, the candidate shall notify the Secretary of State in writing of the withdrawal.

(2)(A) A candidate shall not be required to file a fourth quarter report under this subsection if the candidate keeps remaining campaign funds after an election but does not have any activity before the end of the year.

(B) A candidate shall continue filing the reports required by this subsection if the candidate keeps remaining campaign funds and raises campaign funds for a future campaign or expends campaign funds for office holder expenses or a future election.

(3) Except as provided in subsection (d) of this section, in a year for which there is no election for the office that the candidate is seeking, each candidate for school district, township, or municipal office, or a person acting in the candidate's behalf, shall file with the Secretary of State no later than December 31 an annual report of all contributions received and expenditures made for the year.

(b) CONTENTS OF REPORTS.

(1) The contribution and expenditure reports required by subsection (a) of this section shall indicate:

(A) The total amount of contributions received with loans stated separately, the total amount of expenditures made during the filing periods, and the cumulative amount of those totals for the entire election cycle;

(B) The name and address of each person, including the candidate, who made a contribution or contributions that in the aggregate exceeded two hundred dollars (\$200);

(C) The contributor's principal place of business, employer, occupation, the amount contributed, the date the contribution was accepted by the candidate, and the aggregate contributed for each election;

(D) The name and address of each person, including the candidate, who contributed a nonmoney item, together with a description of the item, the date of receipt, and the value, not including volunteer service by individuals;

(E) An itemization of all single expenditures made that exceeded one hundred dollars (\$100), including the amount of the expenditure, the name and address of any person, including the candidate, to whom the expenditure was made, and the date the expenditure was made;

(F) A list of all paid campaign workers and the amount the workers were paid;

(G) A list of all expenditures by categories, including, but not limited to:

- (i) Television, radio, print, or other advertising;
- (ii) Direct mail;
- (iii) Office supplies;
- (iv) Rent;
- (v) Travel;
- (vi) Expenses;
- (vii) Entertainment; and
- (viii) Telephone;

(H) The total amount of all nonitemized expenditures made during the filing period; and

(I) The current balance of campaign funds.

(2)(A) When the candidate's campaign has ended, the final report shall also indicate which option under § 7-6-203(g) was used to dispose of any surplus of campaign funds, the amount of funds disposed of by the candidate, and the amount of funds retained by the candidate as remaining campaign funds.

(B) If the candidate's campaign has not ended, disposal of campaign funds is not required and the candidate may carry forward any remaining campaign funds to the general primary election, general election, or general runoff election for that same office.

(3)(A) Not later than fourteen (14) days after the deadline for filing for office, the county clerk shall notify each candidate in person or by mail of the deadlines for filing the ten-day preelection and final reports required by subsection (a) of this section and, at that time, furnish each candidate with the appropriate forms and instructions for complying with the deadlines.

(B) If notice is sent by mail, then the notice shall be postmarked within fourteen (14) days after the deadline for filing for office.

(c) FILING OF REPORTS.

(1)(A) The reports required by this section shall be filed with the Secretary of State under subdivision (c)(2) of this section.

(B) Reports shall be filed on the appropriate forms furnished by the Secretary of State.

(2)(A)(i) The Secretary of State shall establish a filing system for reports filed under this section.

(ii) The reports shall be kept for eight (8) years from the date of filing, catalogued by candidate in chronological order, and made available for public inspection.

(iii) For eight (8) years after the reports are filed under this section, the Secretary of State is the official custodian of those records.

(B)(i) After the eight-year period, the Secretary of State shall turn the reports over to the Arkansas State Archives for maintenance and continued public inspection.

(ii) After the eight-year period, the Arkansas State Archives is the official custodian of the records of the reports filed under this section.

(C)(i) The campaign contribution and expenditure reports filed with the Secretary of State under this section shall be filed in electronic form through the official website of the Secretary of State.

(ii) The Arkansas Ethics Commission shall approve the format used by the Secretary of State for the filing of campaign contribution and expenditure reports in electronic form under subdivision (c)(2)(C)(i) of this section to ensure that all required information is requested.

(iii) The official website of the Secretary of State shall allow for searches of campaign contribution and expenditure report information filed in electronic form under subdivision (c)(2)(C)(i) of this section.

(iv) The electronic format used for the filing of campaign contribution and expenditure reports on the official website of the Secretary of State shall aggregate total campaign contributions by a contributor to determine if they collectively reach the limitation for lawful campaign contributions under this subchapter.

(v) The Secretary of State shall not accept paper filings under this subdivision (c)(2).

(3) The Secretary of State shall furnish to the commission, no later than thirty (30) days after each filing deadline under this section, a report listing the:

- (A) Names of all candidates who have filed for office;
- (B) Type of report filed by each candidate; and
- (C) Date the report was received by the Secretary of State.

(d) **REPORTS NOT REQUIRED.**

(1) A candidate who has not received contributions or made expenditures in excess of five hundred dollars (\$500) shall not be required to file any preelection reports required under subsection (a) of this section.

(2) A candidate who has received contributions or made expenditures in excess of five hundred dollars (\$500) but not exceeding five thousand dollars (\$5,000) shall only file:

- (A) A preelection report required under subdivision (a)(1)(B) of this section; and
- (B) A final report required under subdivision (a)(1)(C) of this section.

(3) In calculating the amount of contributions received or expenditures made for purposes of this exception, the payment of the filing fee from the candidate's personal funds shall not be considered as either a contribution or an expenditure.

(4) The preelection reports referenced in subsection (a) of this section are required only for candidates with opponents in those elections.

History. Acts 1975, No. 788, § 3; 1977, No. 312, § 1; 221, § 6; 2009, No. 1204, § 4; 2011, No. 721, § 7; 2013, No. A.S.A. 1947, § 3-1111; Acts 1987, No. 246, § 2; 1993, No. 382, § 4; 2019, No. 240, § 4; 2021, No. 737, § 10; 2023, No. 1243, § 2; Init. Meas. 1996, No. 1, § 5; Acts 1999, No. 553, 753, § 4; 2025, No. 524, § 1; 2025, No. 592, § 7; 2025, No. §§ 7-9; 2001, No. 1839, § 5; 2003, No. 195, § 4; 2007, No. 994, §§ 1, 2.

7-6-209. Reports of contributions — Candidates for county office.

(a) **REPORTS REQUIRED.**

(1) Except as provided in subsection (d) of this section, each candidate for county office or a person acting in the candidate's behalf shall file with the Secretary of State in an election year for the office that the candidate is seeking:

(A)(i) A monthly report of all contributions received and expenditures made during each month beginning with the month of January of a calendar year in which a candidate may be listed on a ballot for election.

(ii) A monthly report shall not be due under this subdivision (a)(1)(A) for a month in which certain days of that month are included in a preelection report required under subdivision (a)(1)(B) of this section or a final report required under subdivision (a)(1)(C) of this section.

(iii) In the case of a primary or runoff election, those days of the month occurring after the date of the election shall be carried forward and included in the next monthly report required under this subdivision (a)(1)(A).

(iv) The monthly report shall be filed no later than twenty (20) days after the end of each month, except that the final report shall be filed as required in subdivision (a)(1)(C)(i) of this section;

(B)(i) No later than seven (7) days before a preferential primary election, runoff election, general election, or special election in which the candidate's name appears on the ballot, a preelection report of all contributions received and expenditures made between the period covered by the previous report and the period ten (10) days before the election.

(ii) In case of a runoff election, the preelection report required under this subdivision (a)(1)(B) shall cover all contributions received and expenditures made during that period of time that begins after the date of the election from which the runoff arose and ends ten (10) days before the runoff election;

(C)(i) A final report of all contributions received and expenditures made for that election that have not been disclosed on reports previously required to be filed no later than twenty (20) days after the end of the month following the month in which the candidate's name has appeared on the ballot in a primary election, runoff election, general election, or special election or when only one (1) candidate qualifies for a particular office or position and no position or name of an unopposed candidate shall appear on a ballot.

(ii) A final report is required under this subdivision (a)(1)(C) whether or not a candidate has received contributions or made expenditures in excess of five hundred dollars (\$500); and

(D)(i) A final report of all contributions received and expenditures made that have not been disclosed on reports previously required to be filed.

(ii) The final report under this subdivision (a)(1)(D) shall be filed no later than thirty (30) days after the end of the month in which the candidate has withdrawn.

(iii) If a candidate withdraws from the campaign, the candidate shall notify the Secretary of State in writing of the withdrawal.

(2)(A) A candidate shall not be required to file a fourth quarter report under this subsection if the candidate keeps remaining campaign funds after an election but does not have any activity before the end of the year.

(B) A candidate shall continue filing the reports required by this subsection if the candidate keeps remaining campaign funds and raises campaign funds for a future campaign or expends campaign funds for office holder expenses or a future election.

(3) Except as provided in subsection (d) of this section, in a year for which there is no election for the office that the candidate is seeking, each candidate for county office, or a person acting in the candidate's behalf, shall file with the Secretary of State no later than December 31 an annual report of all contributions received and expenditures made for the year.

(b) CONTENTS OF REPORTS. (1) The contribution and expenditure reports required by subsection (a) of this section shall indicate:

(A) The total amount of contributions received with loans stated separately, the total amount of expenditures made during the filing periods, and the cumulative amount of those totals for the entire election cycle;

(B) The name and address of each person, including the candidate, who made a contribution or contributions that in the aggregate exceeded two hundred dollars (\$200);

(C) The contributor's principal place of business, employer, occupation, the amount contributed, the date the contribution was accepted by the candidate, and the aggregate contributed for each election;

(D) The name and address of each person, including the candidate, who contributed a nonmonetary item, together with a description of the item, the date of receipt, and the value, not including volunteer service by individuals;

(E) An itemization of all single expenditures made that exceeded one hundred dollars (\$100), including the amount of the expenditure, the name and address of any person, including the candidate, to whom the expenditure was made, and the date the expenditure was made;

(F) A list of all paid campaign workers and the amount the workers were paid;

(G) A list of all expenditures by categories, including, but not limited to:

(i) Television, radio, print, or other advertising;

(ii) Direct mail;

(iii) Office supplies;

(iv) Rent;

(v) Travel;

(vi) Expenses;

(vii) Entertainment; and

(viii) Telephone;

(H) The total amount of all nonitemized expenditures made during the filing period; and

(I) The current balance of campaign funds.

(2)(A) When the candidate's campaign has ended, the final report shall also indicate which option under § 7-6-203(g) was used to dispose of any surplus of campaign funds, the amount of funds disposed of by the candidate, and the amount of funds retained by the candidate as remaining campaign funds.

(B) If the candidate's campaign has not ended, disposal of campaign funds is not required and the candidate may carry forward any remaining funds in the campaign to the general primary election, general election, or general runoff election for that same office.

(3)(A) Not later than fourteen (14) days after the deadline for filing for office, the county clerk shall notify each candidate in person or by mail of the deadlines for filing the ten-day preelection and final reports required by subsection (a) of this section and, at that time, furnish each candidate with the appropriate forms and instructions for complying with the deadlines.

(B) If notice is sent by mail, then the notice shall be postmarked within fourteen (14) days after the deadline for filing for office.

(c) FILING OF REPORTS.

(1)(A) The reports required by this section shall be filed with the Secretary of State under subdivision (c)(2) of this section.

(B) Reports shall be filed on the appropriate forms furnished by the Secretary of State.

(2)(A)(i) The Secretary of State shall establish a filing system for reports filed under this section.

(ii) The reports shall be kept for eight (8) years from the date of filing, catalogued by candidate in chronological order, and made available for public inspection.

(iii) For eight (8) years after the reports are filed under this section, the Secretary of State is the official custodian of those records.

(B)(i) After the eight-year period, the Secretary of State shall turn the reports over to the Arkansas State Archives for maintenance and continued public inspection.

(ii) After the eight-year period, the Arkansas State Archives is the official custodian of the records of the reports filed under this section.

(C)(i) The campaign contribution and expenditure reports filed with the Secretary of State under this section shall be filed in electronic form through the official website of the Secretary of State.

(ii) The Arkansas Ethics Commission shall approve the format used by the Secretary of State for the filing of campaign contribution and expenditure reports in electronic form under subdivision (c)(2)(C)(i) of this section to ensure that all required information is requested.

(iii) The official website of the Secretary of State shall allow for searches of campaign contribution and expenditure report information filed in electronic form under subdivision (c)(2)(C)(i) of this section.

(iv) The electronic format used for the filing of campaign contribution and expenditure reports on the official website of the Secretary of State shall aggregate total campaign contributions by a contributor to determine if they collectively reach the limitation for lawful campaign contributions under this subchapter.

(v) The Secretary of State shall not accept paper filings under this subdivision (c)(2).

(3) The Secretary of State shall furnish to the commission, no later than thirty (30) days after each filing deadline under this section, a report listing the:

(A) Names of all candidates who have filed for office;

(B) Type of report filed by each candidate; and

(C) Date the report was received by the Secretary of State.

(d) REPORTS NOT REQUIRED.

(1) A candidate who has not received contributions or made expenditures in excess of five hundred dollars (\$500) shall not be required to file any preelection reports required under subsection (a) of this section.

(2) A candidate who has received contributions or made expenditures in excess of five hundred dollars (\$500) but not exceeding five thousand dollars (\$5,000) shall only file:

(A) A preelection report required under subdivision (a)(1)(B) of this section; and

(B) A final report required under subdivision (a)(1)(C) of this section.

(3) In calculating the amount of contributions received or expenditures made for purposes of this exception, the payment of the filing fee from the candidate's personal funds shall not be considered as either a contribution or an expenditure.

(4) The preelection reports referenced in subsection (a) of this section are required only for candidates with opponents in those elections.

History. Acts 1975, No. 788, § 3; 1977, No. 312, § 1; No. 221, § 7; 2009, No. 1204, § 5; 2011, No. 721, § 8; 2013, A.S.A. 1947, § 3-1111; Acts 1987, No. 246, § 2; 1993, No. No. 382, § 5; 2019, No. 240, § 5; 2021, No. 737, § 11; 2023, 1243, § 3; Init. Meas. 1996, No. 1, § 6; Acts 1999, No. 553, No. 753, § 5; 2025, No. 524, § 2; 2025, No. 592, § 8; 2025, §§ 10-12; 2001, No. 1839, § 6; 2003, No. 195, § 5; 2007, No. 994, §§ 3, 4.

7-6-210. Reports of contributions — Personal loans.

(a)(1) The transfer of a candidate's own personal funds to his or her campaign shall be reported as either a loan from the candidate to his or her campaign or a contribution from the candidate to his or her campaign.

(2) In the event the transfer of such funds is reported as a loan from the candidate to his or her campaign, the campaign funds may be used to repay the candidate for the funds loaned by the candidate to his or her campaign.

(3) In the event the transfer of the funds is reported as a contribution from the candidate to his or her campaign, the campaign funds may not be used to reimburse the candidate for the funds contributed by the candidate to his or her campaign.

(b)(1) A personal loan made to a candidate by a financial institution that is applied toward a candidate's campaign shall be reported as a loan from the candidate to his or her campaign.

(2) The name of the financial institution, the amount of the loan, and the name of the guarantor, if any, also shall be reported.

History. Acts 1975, No. 788, § 3; 1977, No. 312, § 1; A.S.A. 1947, § 3-1111; Acts 1987, No. 246, § 2; 2009, No. 1204, § 6.

7-6-211, 7-6-212. [Repealed.]

Publisher's Notes. These sections, concerning exemption from filing reports of contributions and reports of expenditures, were repealed by Acts 1999, No. 553, §§ 13, 14. The sections were derived from the following sources:

7-6-211. Acts 1975, No. 788, § 3; A.S.A. 1947, § 3-1111.
7-6-212. Acts 1975, No. 788, § 4; A.S.A. 1947, § 3-1112; Acts 1987, No. 246, § 3.

7-6-213. Verification of reports.

All reports required to be filed by the provisions of this subchapter shall be verified by affidavit by the candidate or a person acting in the candidate's behalf stating that to the best of his or her knowledge and belief the information so disclosed is a complete, true, and accurate financial statement of the candidate's campaign contributions or expenditures.

History. Acts 1975, No. 788, § 6; A.S.A. 1947, § 3-1114.

7-6-214. Publication of reports.

(a)(1) Upon proper filing, the information required in §§ 7-6-203, 7-6-207 — 7-6-210, 7-6-215, 7-6-216, and 7-6-220 shall constitute a public record and shall be available within twenty-four (24) hours of the reporting deadline to all interested persons and the news media.

(2) The Secretary of State is the official custodian of the records that are required to be:

(A) Filed with the Secretary of State; and

(B) Maintained under §§ 7-6-203, 7-6-207 — 7-6-210, 7-6-215, 7-6-216, and 7-6-220.

(b)(1) The Secretary of State shall post on his or her official website reports of contributions required under §§ 7-6-203, 7-6-207 — 7-6-210, 7-6-215, 7-6-216, and 7-6-220.

(2) The official website of the Secretary of State shall allow for searches of campaign contribution and expenditure report information required to be filed in electronic form under § 7-6-207(d)(1)(C)(i).

(c)(1) The Secretary of State shall maintain a list of all reports required under §§ 7-6-203, 7-6-207 — 7-6-210, 7-6-215, 7-6-216, and 7-6-220 not filed in electronic form.

(2) The list shall include:

(A) The name of the person filing the report;

- (B) The type of report filed;
 - (C) The date the report was filed; and
 - (D) The designation “paper filer”.
- (3) The list shall be posted on the official website of the Secretary of State.
- (4) The list shall be organized by calendar year and updated at least monthly on a schedule to be determined by the Secretary of State.

History. Acts 1975, No. 788, § 7; A.S.A. 1947, § 3-1115; 2001, No. 564, § 2; 2015, No. 999, § 2; 2017, No. 318, § 4; 2017, No. 616, § 1; 2019, No. 1039, § 1.

7-6-215. Registration and reporting by approved political action committees.

(a)(1)(A) To qualify as an approved political action committee, the political action committee shall register with the Secretary of State within fifteen (15) days after accepting contributions during a calendar year that exceed five hundred dollars (\$500) in the aggregate.

(B) Registration for a political action committee shall be active unless the political action committee has requested a termination of its registration.

(C) Except as provided in subdivision (a)(1)(D) of this section, registration shall be on forms provided by the Secretary of State, and the contents therein shall be verified by an affidavit of an officer of the political action committee.

(D)(i) Registration with the Secretary of State under this section may be filed in electronic form through the official website of the Secretary of State if electronic filing is offered by the Secretary of State.

(ii) An electronic registration shall be verified by an officer of the political action committee.

(iii)(a) The Arkansas Ethics Commission shall approve a format used by the Secretary of State for registering as a political action committee in electronic form under subdivision (a)(1)(D)(i) of this section to ensure that all required information is requested.

(b) A format used by the Secretary of State for registering as a political action committee in electronic form shall provide that a registration filed in electronic form be rejected if it omits the name, street address, or telephone number of an individual designated as the resident agent for the political action committee.

(iv) The official website of the Secretary of State shall allow for searches of political action committee registration information filed in electronic form under subdivision (a)(1)(D)(i) of this section.

(E) Registration with the Secretary of State under this section may be filed in paper form if:

(i) The political action committee does not have access to the technology necessary to submit registration in electronic form;

(ii) Submitting registration in electronic form would constitute a substantial hardship for the political action committee; and

(iii) The political action committee submits a notarized affidavit that complies with § 7-6-231.

(2)(A) The political action committee shall maintain for a period of four (4) years records evidencing the name, address, and place of employment of each person that contributed to the political action committee, along with the amount contributed.

(B) Furthermore, the political action committee shall maintain for a period of four (4) years records evidencing the name and address of each candidate, ballot question committee, legislative question committee, political party, county political party committee, or other political action committee that received a contribution from the political action committee, along with the amount contributed.

(3)(A) The political action committee shall designate a resident agent who shall be an individual who resides in this state.

(B) No contribution shall be accepted from a political action committee and no expenditure shall be made by a political action committee that has not registered and does not have a resident agent.

(C) It shall be unlawful for a prohibited political action committee as defined in § 7-6-201 to make a contribution to a:

- (i) Ballot question committee;
- (ii) Legislative question committee;
- (iii) Political party;
- (iv) Political party committee; or
- (v) Political action committee.

(4)(A) An out-of-state political action committee, including a federal political action committee, shall be required to comply with the registration and reporting provisions of this section if the committee contributes more than five hundred dollars (\$500) in a calendar year to candidates, ballot question committees, legislative question committees, political parties, county political party committees, or other political action committees within this state.

(B) Subdivision (a)(4)(A) of this section shall not apply to:

(i) The national committee of any political party that is registered with the Federal Election Commission;

(ii) Any federal candidate committee that is registered with the Federal Election Commission;

(iii) Funds which a subordinate committee of the national committee of any political party that is registered with the Federal Election Commission transfers to the federal account of an organized political party as defined under § 7-1-101; or

(iv) Funds which a political action committee that is registered with the Federal Election Commission transfers to the federal account of an organized political party as defined under § 7-1-101.

(b) The registration form of an approved political action committee shall contain the following information:

(1) The name, address, and, where available, phone number of the political action committee and the name, address, phone number, and place of employment of each of its officers, provided if the political action committee's name is an acronym, then both it and the words forming the acronym shall be disclosed;

(2) The professional, business, trade, labor, or other interests represented by the political action committee, including any individual business, organization, association, corporation, labor organization, or other group or firm whose interests will be represented by the political action committee;

(3) The full name and street address, city, state, and zip code of each financial institution the political action committee uses for purposes of receiving contributions or making expenditures within this state;

(4) The name, street address, and telephone number of the individual designated as the resident agent for the political action committee;

(5) If the registration form is filed in paper form, a written acceptance of designation as a resident agent;

(6) A certification by a political action committee officer, under penalty of false swearing, that the information provided on the registration is true and correct; and

(7) A clause submitting the political action committee to the jurisdiction of the State of Arkansas for all purposes related to compliance with the provisions of this subchapter.

(c)(1) When a committee makes a change to any information required in subsection (b) of this section, an amendment shall be filed within ten (10) days to reflect the change.

(2) A committee failing to file an amendment shall be subject to a late filing fee of ten dollars (\$10.00) for each day the change is not filed.

(d)(1) Within fifteen (15) calendar days after the end of each calendar quarter, a political action committee shall file a quarterly report with the Secretary of State, including the following information:

(A) The total amount of contributions received and the total amount of contributions made during the filing period and the cumulative amount of those totals;

(B) The current balance of political action committee funds;

(C) The name and address of each person that made a contribution or contributions to the political action committee that exceeded two hundred dollars (\$200) in the aggregate during the calendar year, the contributor's place of business, employer, occupation, the date of the contribution, the amount contributed, and the total contributed for the year;

(D) The name and address of each candidate, ballot question committee, legislative question committee, political party, county political party committee, or other political action committee, if any, to whom or which the political action committee made a contribution or contributions that exceeded two hundred dollars (\$200) in the aggregate during the filing period, with the amount contributed and the election for which the contribution was made;

(E) The name and address of each candidate, ballot question committee, legislative question committee, political party, county political party committee, or other political action committee, if any, to whom or which the political action committee contributed a nonmonetary item, together with a description of the item, the date the item was contributed, and the value of the item; and

(F) The total amount of expenditures made for administrative expenses and for each single expenditure that exceeded one hundred dollars (\$100), an itemization, including the amount of the expenditure, the name and address of the person to whom the expenditure was made, and the date the expenditure was made.

(2) Political action committee quarterly reports may be filed in electronic form through the official website of the Secretary of State if electronic filing is offered by the Secretary of State.

(3) The information required in subdivisions (d)(1)(C)-(F) of this section may be provided in the form of schedules attached to a report filed in paper form.

(4) The reports shall be verified by an affidavit of an officer of the political action committee stating that to the best of his or her knowledge and belief the information so disclosed is a complete, true, and accurate financial statement of the political action committee's contributions received and made.

(5)(A) A report is timely filed if it is filed in electronic form through the official website of the Secretary of State on or before the date that the report is due if the Secretary of State offers electronic filing of political action committee reports.

(B)(i) The Secretary of State shall receive reports in a readable electronic format that is acceptable to the Secretary of State and approved by the Arkansas Ethics Commission.

(ii) The Arkansas Ethics Commission shall approve the format used by the Secretary of State for the filing of political action committee reports in electronic form to ensure that all required information is requested.

(iii) The official website of the Secretary of State shall allow for searches of political action committee report information filed in electronic form.

(iv) A political action committee under this section may file reports in paper form under this section if:

(a) The political action committee does not have access to the technology necessary to submit reports in electronic form;

(b) Submitting reports in electronic form would constitute a substantial hardship for the political action committee; and

(c) The political action committee submits a notarized affidavit that complies with § 7-6-231.

(6)(A) If the Secretary of State offers electronic filing of political action committee reports, the format used by the Secretary of State for the filing of political action committee reports in electronic form shall require a political action committee indicating that it intends to terminate its registration for the next calendar year to terminate its registration for the next calendar year before submitting its quarterly report for the fourth quarter.

(B) If a political action committee does not file any quarterly reports for a period of two (2) years, the Secretary of State shall terminate the political action committee's registration due to inactivity.

History. Init. Meas. 1990, No. 1, § 6; Init. Meas. 1996, § 5; 2011, No. 721, § 9; 2015, No. 909, § 1; 2017, No. 616, No. 1, § 7; Acts 1999, No. 553, §§ 15-17; 2001, No. 1839, § 2; 2019, No. 1039, §§ 2, 3; 2023, No. 552, §§ 1, 2; 2023, § 7; 2005, No. 2006, § 2; 2007, No. 221, § 8; 2009, No. 473, No. 753, §§ 6, 7; 2025, No. 592, § 9.

7-6-216. Registration and reports by exploratory committees.

(a)(1) An exploratory committee shall register with the appropriate filing office within fifteen (15) days after receiving contributions during a calendar year which, in the aggregate, exceed five hundred dollars (\$500).

(2)(A) For a state or district office, the place of filing shall be the Secretary of State's office.

(B) For a county, municipal, township, or school district office, the place of filing shall be the county clerk's office.

(3) Registration shall be on forms provided by the Secretary of State and the contents therein shall be verified by an affidavit of an officer of the committee.

(b) An exploratory committee shall disclose on the registration form the name, address, and, where available, phone number of the committee and each of its officers. It shall also disclose the individual person who, upon becoming a candidate, is intended to receive campaign contributions from the committee.

(c) No later than twenty (20) days after the end of each month, an exploratory committee shall file a report with the appropriate filing office indicating:

(1) The total amount of contributions received during the filing period;

(2) The name and address of each person who has made a contribution which, in the aggregate, exceeds two hundred dollars (\$200), along with the contributor's principal place of business, employer, occupation, and the amount contributed; and

(3) The total amount of expenditures made and, for each single expenditure that exceeds one hundred dollars (\$100), an itemization, including the amount of the expenditure, the name and address of the person to whom the expenditure was made, and the date the expenditure was made.

(d)(1)(A) The first report shall be filed for the month in which the committee files its registration. The final report shall be filed within thirty (30) days after the end of the month in which the committee either transfers its contributions to a candidate's campaign or no longer accepts contributions.

(B) The reports required by this section shall be filed in electronic form through the official website of the Secretary of State.

(C) The Arkansas Ethics Commission shall approve the format used by the Secretary of State for the filing of exploratory reports in electronic form to ensure that all required information is requested.

(D) The official website of the Secretary of State shall allow for searches of exploratory committee report information filed in electronic form.

(2) An exploratory committee under this section may file reports in paper form under this section if:

(A) The exploratory committee does not have access to the technology necessary to submit reports in electronic form; and

(B) Submitting reports in electronic form would constitute a substantial hardship for the exploratory committee.

(3) The committee shall not accept contributions after the filing of a final report.

History. Init. Meas. 1990, No. 1, § 6; Acts 1999, No. 553, 473, § 6; 2011, No. 721, § 10; 2013, No. 1126, § 12; 2017, § 18; 2001, No. 1839, § 8; 2007, No. 221, § 9; 2009, No. No. 616, § 3; 2023, No. 753, § 8; 2025, No. 592, § 10.

7-6-217. Creation of Arkansas Ethics Commission.

(a)(1) The Arkansas Ethics Commission shall be composed of five (5) members, one (1) each appointed by the Governor, Attorney General, Lieutenant Governor, Speaker of the House of Representatives, and President Pro Tempore of the Senate.

(2) Members of the commission shall be appointed for terms of five (5) years and shall continue to serve until their successors have been appointed and have taken the official oath.

(3)(A) No person may be appointed to serve consecutive terms on the commission.

(B) Provided, any commissioner who has been appointed to serve two (2) years or less of an unexpired term shall be eligible for an appointment to a subsequent five-year term.

(4) In the event of a vacancy on the commission, a successor shall be appointed within thirty (30) days to serve the remainder of the unexpired term, such appointment to be made by the official holding the office responsible for appointing the predecessor.

(b)(1) In making appointments to the commission, the appointing officials shall ensure that at least one (1) member of a minority race, one (1) woman, and one (1) member of the minority political party, as defined in § 7-1-101, serves on the commission.

(2) Any person appointed as a member of the minority political party must have voted in the preferential primaries of the minority political party in the last two (2) primaries in which he or she has voted.

(c)(1) No member of the commission shall be a federal, state, or local government official or employee, an elected public official, a candidate for public office, a lobbyist as defined in § 21-8-402, or an officer or paid employee of an organized political party as defined in § 7-1-101.

(2) During the entire term of service on the commission, a commissioner shall be prohibited from raising funds for, making contributions to, providing services to, or lending his or her name in support of any candidate for election to a state, county, municipal, or school board office under the laws of Arkansas or in support of a ballot issue or issues submitted or intended to be submitted to the voters of the State of Arkansas, or any of its political subdivisions, excluding the exercise of the right to vote or the mere signing of an initiative or referendum petition. Employees of the commission shall be similarly prohibited.

(d)(1) The commission shall elect its chair.

(2)(A) A majority of the membership of the commission shall constitute a quorum for conducting business.

(B) No action shall be taken except by an affirmative vote of a majority of those present and voting.

(C) No sanctions shall be imposed without the affirmative vote of at least three (3) members of the commission who are physically present at a commission meeting.

(3) The vote of each member voting on any action shall be a public record.

(e) Members of the commission shall serve without compensation but may receive expense reimbursement in accordance with § 25-16-901 et seq.

(f) The commission shall meet at such times as may be provided by its rules, upon call of the chair, or upon written request to the chair of any three (3) members.

(g) The commission shall have the authority to:

(1) Under the Arkansas Administrative Procedure Act, § 25-15-201 et seq., promulgate reasonable rules to implement and administer the requirements of this subchapter, as well as § 7-1-114 [repealed]; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 19-64-503; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; and Arkansas Constitution, Article 19, §§ 28-30; and to govern procedures before the commission, matters of commission operations, and all investigative and disciplinary procedures and proceedings;

(2) Issue advisory opinions and guidelines on the requirements of § 6-24-101 et seq.; § 7-1-103(a)(1)-(4), (6), and (7); § 7-1-114 [repealed]; this subchapter; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 19-64-503; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; and Arkansas Constitution, Article 19, §§ 28-30;

(3) After a citizen complaint has been submitted to the commission, investigate alleged violations of § 6-24-101 et seq.; § 7-1-103(a)(1)-(4), (6), and (7); § 7-1-114 [repealed]; this subchapter; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 19-64-503; § 21-1-401 et seq.; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; and Arkansas Constitution, Article 19, §§ 28-30; and render findings and disciplinary action thereon;

(4) Pursuant to commission investigations, subpoena any person or the books, records, or other documents being held by any person and take sworn statements;

(5) Administer oaths for the purpose of taking sworn testimony of witnesses and conduct hearings;

(6) Hire a staff and retain legal counsel;

(7) Approve forms prepared by the Secretary of State under this subchapter; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 19-64-503; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; and § 21-8-1001 et seq.; and

(8)(A) File suit in the Pulaski County Circuit Court or in the circuit court of the county wherein the respondent resides or, under § 16-17-706, in the small claims division established in any district court in the State of Arkansas, to obtain a judgment for the amount of any fine imposed under § 7-6-218(b)(4)(B)(i)-(iii), or to enforce an order of the commission requiring the filing or amendment of a disclosure form.

(B) Said action by the court shall not involve further judicial review of the commission's actions.

(C) The fee normally charged for the filing of a suit in any of the circuit courts in the State of Arkansas shall be waived on behalf of the commission.

(h) When in the course of an investigation the commission issues subpoenas to financial institutions for records or information regarding a person who is the subject of the investigation, the commission shall provide the subject of the investigation with reasonable notice of the subpoenas and an opportunity to respond.

History. Init. Meas. 1990, No. 1, § 6; Acts 1995, No. 349, § 1; 1995, No. 352, § 1; 1997, No. 250, § 43; 1999, No. 553, §§ 19-21; 2001, No. 1839, §§ 9, 10; 2003, No. 195, § 6; 2003, No. 1185, § 6; 2005, No. 1284, § 5; 2015, No. 47, § 1; 2015, No. 1280, § 8; 2015, No. 1287, § 1; 2023, No. 307, § 2; 2023, No. 883, § 9; 2025, No. 419, § 83; 2025, No. 998, § 1

7-6-218. Citizen complaints — Definition.

(a)(1) Any citizen may file a complaint with the Arkansas Ethics Commission against a person covered by this subchapter, by § 6-24-101 et seq.; § 7-1-103(a)(1)-(4), (6), or (7); § 7-1-114 [repealed]; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 21-1-401 et seq.; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; and Arkansas Constitution, Article 19, §§ 28-30, for an alleged violation of the subchapters or sections. For purposes of this subdivision (a)(1), the Arkansas Ethics Commission shall be considered a citizen.

(2) A complaint must be filed within four (4) years after the alleged violation occurred. If the alleged violation is the failure to file a report or the filing of an incorrect report, the complaint shall be filed within four (4) years after the date the report was due.

(3) A citizen complaint shall be timely filed if it is:

(A) Hand-delivered to the Arkansas Ethics Commission on or before the date that the complaint is due;

(B) Mailed to the Arkansas Ethics Commission, properly addressed, postage prepaid, and bearing a postmark indicating that it was received by the post office or common carrier on or before the date that the complaint is due; or

(C) Received via email or facsimile by the Arkansas Ethics Commission on or before the date that the complaint is due, provided the original is received by the Arkansas Ethics Commission within ten (10) days of the transmission.

(4) The Arkansas Ethics Commission shall prepare a citizen complaint form and make it publicly available on the Arkansas Ethics Commission's website.

(5) The Arkansas Ethics Commission shall promulgate rules under the Arkansas Administrative Procedure Act, § 25-15-201 et seq., to develop the complaint submission process under subdivisions (a)(3) and (a)(4) of this section.

(b)(1)(A) Upon a complaint stating facts constituting an alleged violation signed under penalty of perjury by any person, the Arkansas Ethics Commission shall investigate the alleged violation of this subchapter or § 6-24-101 et seq.; § 7-1-103(a)(1)-(4), (6), or (7); § 7-1-114 [repealed]; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 21-1-401 et seq.; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; and Arkansas Constitution, Article 19, §§ 28-30.

(B) The Arkansas Ethics Commission shall immediately notify any person under investigation of the investigation and of the nature of the alleged violation.

(C) The Arkansas Ethics Commission in a document shall advise the complainant and the respondent of the final action taken, together with the reasons for the action, and such document shall be a public record.

(D) Filing of a frivolous complaint shall be a violation of this subchapter. For purposes of this section, "frivolous" means clearly lacking any basis in fact or law. In any case in which the Arkansas Ethics Commission has dismissed a complaint, the respondent may request in writing that the Arkansas Ethics Commission make a finding as to whether or not the complaint filed was frivolous. In the event that the Arkansas Ethics Commission finds that the complaint was frivolous, the respondent may file a complaint seeking sanctions as provided in subdivision (b)(4) of this section.

(2) If, after the investigation, the Arkansas Ethics Commission finds that probable cause exists for a finding of a violation, the respondent may request a hearing. The hearing shall be a public hearing.

(3)(A) The Arkansas Ethics Commission shall keep a record of its investigations, inquiries, and proceedings.

(B)(i) Except as provided in subdivision (b)(3)(B)(ii) of this section, all proceedings, records, and transcripts of any investigations or inquiries shall be kept confidential by the Arkansas Ethics Commission, unless the respondent requests disclosure of documents relating to investigation of the case, in case of a hearing under subdivision (b)(2) of this section, or in case of judicial review of a decision of the Arkansas Ethics Commission pursuant to § 25-15-212.

(ii)(a) Through its members or staff, the Arkansas Ethics Commission may disclose confidential information to proper law enforcement officials, agencies, and bodies, or as may be required to conduct its investigation.

(b) If an investigation or inquiry concerns an attorney or judge, the Arkansas Ethics Commission may, through its members or staff, disclose confidential information to the Supreme Court Committee on Professional Conduct or the Judicial Discipline and Disability Commission.

(C) Thirty (30) days after any final adjudication in which the Arkansas Ethics Commission makes a finding of a violation, all records relevant to the investigation and upon which the Arkansas Ethics Commission has based its decision, except working papers of the Arkansas Ethics Commission and its staff, shall be open to public inspection.

(4) If the Arkansas Ethics Commission finds a violation of this subchapter; § 6-24-101 et seq.; § 7-1-103(a)(1)-(4), (6), or (7); § 7-1-114 [repealed]; § 21-1-401 et seq.; § 21-8-301 et seq.; the

Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; or Arkansas Constitution, Article 19, §§ 28-30, then the Arkansas Ethics Commission shall do one (1) or more of the following, unless good cause be shown for the violation:

(A) Issue a public letter of caution or warning or reprimand;

(B)(i) Notwithstanding the provisions of §§ 7-6-202, 7-9-409, 21-8-403, 21-8-903, and 21-8-1105, impose a fine of not less than fifty dollars (\$50.00) nor more than three thousand five hundred dollars (\$3,500) for negligent or intentional violation of this subchapter; § 6-24-101 et seq.; § 7-1-114 [repealed]; the Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters, § 7-9-401 et seq.; § 21-8-301 et seq.; the Disclosure Act for Lobbyists and State and Local Officials, § 21-8-401 et seq., § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.; § 21-8-901 et seq.; § 21-8-1001 et seq.; § 21-8-1101 et seq.; § 25-1-125; or Arkansas Constitution, Article 19, §§ 28-30.

(ii) A fine for violating § 7-1-114 [repealed]; shall not exceed one hundred fifty dollars (\$150).

(iii) The Arkansas Ethics Commission shall adopt rules governing the imposition of such fines in accordance with the provisions of the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

(iv) All moneys received by the Arkansas Ethics Commission in payment of fines shall be deposited into the State Treasury as general revenues;

(C) Order the respondent to file or amend a statutorily required disclosure form; or

(D)(i) Report its finding, along with such information and documents as it deems appropriate, and make recommendations to the proper law enforcement authorities.

(ii) When exercising the authority provided in this subdivision (b)(4), the Arkansas Ethics Commission is not required to make a finding of a violation of the laws under its jurisdiction.

(5)(A)(i) Except as provided in subdivision (b)(5)(A)(iii) of this section, the Arkansas Ethics Commission shall complete its investigation of a complaint filed pursuant to this section and take final action within two hundred ten (210) days of the filing of the complaint.

(ii) Except as provided in subdivision (b)(5)(A)(iii) of this section, if a hearing under subdivision (b)(2) of this section or other hearing of adjudication is conducted, all action on the complaint by the Arkansas Ethics Commission shall be completed within two hundred forty (240) days.

(iii) If the Arkansas Ethics Commission requires additional time to complete its investigation under subdivision (b)(5)(A)(i) of this section or to complete its hearing or action under subdivision (b)(5)(A)(ii) of this section and gives written notice to the person who is under investigation or the subject of the hearing or action, the Arkansas Ethics Commission may extend the time to complete the investigation, hearing, or action by no more than sixty (60) days.

(B) However, such time shall be tolled during the pendency of any civil action, civil appeal, or other judicial proceeding involving those particular Arkansas Ethics Commission proceedings.

(c) Any final action of the Arkansas Ethics Commission under this section shall constitute an adjudication for purposes of judicial review under § 25-15-212.

History. Init. Meas. 1990, No. 1, § 6; Acts 1995, No. 349, § 1; 2019, No. 341, § 1; 2019, No. 547, § 1; 2023, No. 307, § 2; 1995, No. 352, § 2; 1999, No. 553, § 22; 2001, No. §§ 3-5; 2023, No. 753, § 9; 2023, No. 883, § 10; 2025, No. 1839, §§ 11-13; 2003, No. 195, § 7; 2007, No. 221, § 10; 1998, §§ 2-4.
2013, No. 1115, § 1; 2015, No. 1280, § 9; 2017, No. 256,

7-6-219. Retiring a campaign debt.

(a)(1) Any person who was a candidate and has a campaign debt from an election that has ended may solicit funds and hold fundraisers to retire the campaign debt.

(2) The contributions received shall be treated as campaign contributions to the person's previous campaign, and all campaign contribution limits shall continue to apply.

(b) Contributors shall be given notice that the campaign contributions are for the purpose of retiring a campaign debt. Any invitation to or notice of a fundraiser to retire a campaign debt of a previous campaign shall state that the funds are to retire a campaign debt.

(c) A person shall file a campaign contribution and expenditure report concerning a campaign debt if, since the last report concerning the debt, the person has received cumulative contributions in excess of five hundred dollars (\$500). The report shall be filed not later than fifteen (15) days after a calendar quarter in which a report becomes required. No report is required in any calendar quarter in which the cumulative contribution or cumulative expenditure limit has not been exceeded since the person's last report.

History. Acts 1993, No. 1209, § 1; 1997, No. 139, § 1.

7-6-220. Reporting of independent expenditures.

(a) A person who or an independent expenditure committee which makes independent expenditures in an aggregate amount or value in excess of two hundred dollars (\$200) in a calendar year shall file reports with the Secretary of State:

(1)(A) No later than fifteen (15) days following the month in which the two-hundred-dollar threshold required under this section is met, the first financial report shall be filed.

(B) Each subsequent report shall be filed no later than twenty (20) days after the end of each month until the election is held, except as required in subdivision (a)(1)(C) of this section.

(C) For any month in which certain days of that month are included in a preelection financial report required under subdivision (a)(2) of this section, no monthly report for that month shall be due, but those days of that month shall be carried forward and included in the final financial report;

(2) No later than seven (7) days prior to preferential primary elections, runoff elections, general elections, and special elections covering the period ending ten (10) days prior to such elections; and

(3) As for a final report, no later than thirty (30) days after the end of the month in which the last election is held at which the candidate seeks nomination or election.

(b) Such reports shall include:

(1) In the case of an individual making such an expenditure, the name, address, telephone number, principal place of business, employer, and occupation of the individual;

(2) In the case of a committee, the name, address, employer, and occupation of its officers;

(3) In the case of a person who is not an individual, the principal name of the entity, the address, and the name, address, employer, and occupation of its officers; and

(4) The same information required of candidates for office other than school district, township, municipal, or county office as set forth in § 7-6-207(b)(1).

(5) An affirmation by the individual, committee, or entity making the independent expenditure that the individual, committee, or entity has not knowingly or willfully accepted donations in excess of ten thousand dollars (\$10,000) in the aggregate from one (1) or more prohibited sources within the four-year period immediately preceding the date the independent expenditure was made.

(c) The information required in § 7-6-207(b)(1) may be provided in the form of a schedule or schedules attached to the report.

(d) The report shall be verified by an affidavit of an officer of the committee stating that to the best of his or her knowledge and belief the information disclosed is a complete, true, and accurate financial statement of the committee's contributions received and made.

(e)(1) A report is timely filed if it is filed in electronic form through the official website of the Secretary of State on or before the date that the report is due.

(2)(A) The Secretary of State shall receive reports in a readable electronic format that is acceptable to the Secretary of State and approved by the Arkansas Ethics Commission.

(B) The commission shall approve the format used by the Secretary of State for the filing of independent expenditure reports in electronic form to ensure that all required information is requested.

(C) The official website of the Secretary of State shall allow for searches of independent expenditure report information filed in electronic form.

(3) A person or independent expenditure committee under this section may file reports in paper form under this section if:

(A) The person or independent expenditure committee does not have access to the technology necessary to submit reports in electronic form;

(B) Submitting reports in electronic form would constitute a substantial hardship for the person or independent expenditure committee; and

(C) The person or independent expenditure committee submits a notarized affidavit that complies with § 7-6-231.

History. Init. Meas. 1996, No. 1, § 8; Acts 2001, No. 1839, § 14; 2005, No. 1284, § 6; 2011, No. 721, § 11; 2017, No. 616, § 4; 2019, No. 1039, § 4; 2023, No. 307, § 6; 2023, No. 753, § 10; 2025, No. 166, § 2; 2025, No. 592, § 11; 2025, No. 999, § 3.

7-6-221. [Repealed.]

Publisher's Notes. This section, concerning the independent expenditure disclosure, was repealed by Acts 2001, No. 1839, § 15. The section was derived from Init. Meas. 1996, No. 1, § 9.

7-6-222. Tax credits for certain individual political contributions.

(a) Pursuant to rules to be adopted by the Department of Finance and Administration, a credit against individual Arkansas income taxes shall be allowed for money contributions made by the taxpayer in a taxable year to one (1) or more of the following:

(1) A candidate seeking nomination or election to a public office at an election or to the candidate's campaign committee;

(2) An approved political action committee as defined in § 7-6-201; or

(3) An organized political party as defined in § 7-1-101.

(b) The credit allowed by subsection (a) of this section shall be the aggregate contributions, not to exceed fifty dollars (\$50.00), on an individual tax return, or the aggregate contributions, not to exceed one hundred dollars (\$100), on a joint return.

(c) Credits for contributions qualifying under this section and made prior to April 15 in a calendar year may be applied to the return filed for the previous taxable year.

History. Init. Meas. 1996, No. 1, § 10; Acts 1999, No. 1446, § 1; 2003, No. 774, § 1; 2005, No. 1284, § 7; 2007, No. 221, § 11; 2019, No. 315, § 421.

7-6-223. Reports of contributions by political parties.

(a) Within fifteen (15) calendar days after the end of each calendar quarter, each political party that meets the definition of political party stated in § 7-1-101 or that has met the petition requirements of § 7-7-205 shall file a quarterly report with the Secretary of State.

(b) The report shall include:

(1) The total amount of contributions received by the political party during the preceding calendar quarter;

(2) An itemization, including the name, address, employer, and occupation of each person who made a contribution or contributions to the political party which, in the aggregate, exceeded two hundred dollars (\$200) in the preceding calendar quarter, as well as the amount received and date of receipt;

(3) The total amount of money disbursed by the political party during the preceding calendar quarter; and

(4) An itemization, including the amount of the disbursement, the name and address of the person to whom the disbursement was made, and the date the disbursement was made for each single disbursement that exceeded one hundred dollars (\$100).

(c) If a political party received contributions and disbursed money before the calendar quarter in which it met the petition requirements of § 7-7-205, the first quarterly report shall also include all information required by subsection (b) of this section which occurred before the quarter in which the political party met the petition requirements of § 7-7-205.

History. Init. Meas. 1996, No. 1, § 11; Acts 2003, No. 1730, § 1; 2005, No. 1284, § 8; 2009, No. 473, § 7; 2013, No. 382, § 6; 2023, No. 753, § 11.

7-6-224. Authority of local jurisdictions.

(a) Municipalities, counties, and townships may establish reasonable limitations on:

- (1) Time periods that candidates for local office shall be allowed to solicit contributions;
- (2) Limits on contributions to local candidates at amounts lower than those set by state law;

and

(3) Voluntary campaign expenditure limits for candidates seeking election to their respective governing bodies.

(b) Enforcement of any limitation established under subsection (a) of this section is the responsibility of the municipality, county, or township establishing the limitation.

History. Init. Meas. 1996, No. 1, § 12; Acts 2019, No. 240, § 6.

7-6-225. Filing deadlines.

Whenever a report becomes due on a day which is a Saturday, Sunday, or legal holiday, the report shall be due the next day which is not a Saturday, Sunday, or legal holiday.

History. Acts 1999, No. 553, § 23; 2001, No. 1839, § 16.

7-6-226. Registration and reporting by county political party committees.

(a)(1)(A) To qualify as a county political party committee, the committee shall register with the Secretary of State within fifteen (15) days after accepting contributions during a calendar year that exceed five thousand dollars (\$5,000) in the aggregate.

(B) The registration shall be renewed annually by January 15, unless the committee has ceased to exist.

(C) Registration shall be on forms provided by the Secretary of State, and the contents of the form shall be verified by an affidavit of an officer of the committee.

(2)(A) The committee shall maintain for a period of four (4) years records evidencing the name, address, and place of employment of each person that contributed to the committee, along with the amount contributed.

(B) Furthermore, the committee shall maintain for a period of four (4) years records evidencing the name and address of each candidate who received a contribution from the committee, along with the amount contributed.

(3)(A) The committee shall appoint a treasurer who is a qualified elector of the State of Arkansas.

(B) No contribution shall be accepted from a committee and no expenditure shall be made by a committee that has not registered and which does not have a treasurer.

(4) No county political party committee shall accept a contribution from a prohibited political action committee as defined in § 7-6-201.

(b) The county political party committee shall disclose on the registration form the following information:

(1) The name, address, and, when available, phone number of the committee and the name, address, phone number, and place of employment of each of its officers. If the committee's name is an acronym, then both the acronym and the words forming the acronym shall be disclosed;

(2) The political party with which the county political party committee is affiliated;

(3) The full name and street address, city, state, and zip code of the financial institution in this state that the committee designates as its official depository for the purposes of depositing all money contributions that it receives in this state and making all expenditures in this state; and

(4) A written acceptance of appointment by the treasurer.

(c)(1) Within fifteen (15) calendar days after the end of each calendar quarter, county political party committees shall file a quarterly report with the Secretary of State, including the following information:

(A) The total amount of contributions received and the total amount of contributions made during the reporting period and the cumulative amount of those totals;

(B) The current balance of committee funds;

(C) The name and address of each person who made a contribution or contributions to the committee that exceeded two hundred dollars (\$200) in the aggregate, the contributor's place of business, employer, or occupation, the date of the contribution, the amount contributed, and the total contributed for the year;

(D) The name and address of each candidate or committee, if any, to whom or which the committee made a contribution or contributions that exceeded two hundred dollars (\$200) in the aggregate during the filing period, with the amount contributed and the election for which the contribution was made;

(E) The name and address of each candidate or committee, if any, to whom or which the committee contributed a nonmonetary item, together with a description of the item, the date the item was contributed, and the value of the item;

(F) The total amount of expenditures made for administrative expenses and for each single expenditure that exceeded one hundred dollars (\$100), an itemization including the amount of the expenditure, the name and address of the person to whom the expenditure was made, and the date the expenditure was made; and

(G) Any change in the information required by subsection (b) of this section.

(2) The reports shall be verified by an affidavit of an officer of the committee stating that to the best of his or her knowledge and belief the information disclosed is a complete, true, and accurate financial statement of the committee's contributions received and made.

(3)(A) A report is timely filed if it is either hand delivered or mailed to the Secretary of State, properly addressed, postage prepaid, bearing a postmark indicating receipt by the post office or common carrier on the date that the report is due.

(B) The Secretary of State shall accept via facsimile any report if the original is received by the Secretary of State within ten (10) days of the date of transmission.

(C) The Secretary of State may receive reports in a readable electronic format acceptable to the Secretary of State and approved by the Arkansas Ethics Commission.

History. Acts 2005, No. 2006, § 3; 2007, No. 221, § 12; 2009, No. 473, § 8; 2019, No. 240, § 7; 2023, No. 753, § 12.

7-6-227. Registration by independent expenditure committee.

(a)(1)(A) An independent expenditure committee shall register with the Secretary of State within fifteen (15) days after accepting contributions or making independent expenditures that exceed two hundred dollars (\$200) in the aggregate during a calendar year.

(B) Registration shall be annually renewed by January 15 unless the independent expenditure committee has ceased to exist.

(C) Registration shall be on a form provided by the Secretary of State, and the contents of the form shall be verified by an affidavit of an officer of the independent expenditure committee.

(2)(A) The independent expenditure committee shall maintain for a period of four (4) years records evidencing the name, address, and place of employment of each person that contributed to the independent expenditure committee, along with the amount contributed.

(B) The independent expenditure committee shall maintain for a period of four (4) years records evidencing each independent expenditure made by the committee, along with the amount of each expenditure.

(3)(A) The independent expenditure committee shall designate a resident agent who shall be an individual who resides in this state.

(B) A contribution shall not be accepted from an independent expenditure committee and an expenditure shall not be made by an independent expenditure committee that has not registered and does not have a resident agent.

(4) An out-of-state independent expenditure committee shall comply with the registration and reporting provisions of this section if the committee makes an independent expenditure or independent expenditures within the State of Arkansas that in the aggregate exceed more than five hundred dollars (\$500) during a calendar year.

(b) The registration form of an independent expenditure committee shall contain the following information:

(1)(A) The name, address, and, when available, phone number of the independent expenditure committee and the name, address, phone number, and place of employment of each of its officers.

(B) However, if the independent expenditure committee's name is an acronym, then both it and the words forming the acronym shall be disclosed;

(2) The full name and street address, city, state, and zip code of each financial institution the independent expenditure committee uses for purposes of receiving contributions or making expenditures within this state;

(3) A written acceptance of designation as a resident agent;

(4) A certification by an independent expenditure committee officer, under penalty of false swearing, that the information provided on the registration is correct; and

(5) A clause submitting the independent expenditure committee to the jurisdiction of the State of Arkansas for all purposes related to compliance with this subchapter.

(c)(1) When a committee makes a change to any information required in subsection (b) of this section, an amendment shall be filed within ten (10) days to reflect the change.

(2) A committee failing to file an amendment shall be subject to a late filing fee of ten dollars (\$10.00) for each day the change is not filed.

History. Acts 2009, No. 473, § 9; 2011, No. 721, § 12; 2025, No. 592, § 12.

7-6-228. Campaign signs and materials.

(a) A candidate may retain campaign signs, campaign literature, and other printed campaign materials that:

(1) Were purchased by the campaign;

(2) Were reported on the appropriate contribution and expenditure report for the campaign at the time of the purchase; and

(3) Are retained for use in a future campaign by the same candidate.

(b) A candidate:

(1) May reuse the campaign signs, campaign literature, and other printed campaign materials under subsection (a) of this section in future campaigns; and

(2) Is not required to list the campaign signs, campaign literature, and other printed campaign materials under subsection (a) of this section in future reports filed under this subchapter.

(c)(1)(A) Campaign signs, campaign literature, and other printed campaign materials shall clearly contain the words "Paid for by" followed by the name of the candidate, committee, or person who paid for the campaign sign, campaign literature, or other printed campaign materials.

(B) The candidate printing the campaign sign, campaign literature, or other printed campaign materials shall be responsible for including the language required by subdivision (c)(1)(A) of this section.

(C) When the printed campaign material is a two-sided sign, the “Paid for by” language required by this subsection shall appear on both sides of the sign.

(2) Subdivision (c)(1)(A) of this section applies only to campaign signs, campaign literature, and other printed campaign materials created by or sponsored by a political candidate, the campaign of a political candidate, a political action committee, an independent expenditure committee, or persons making independent expenditures.

History. Acts 2015, No. 1280, § 10; 2017, No. 787, § 2; 2019, No. 1058, § 1; 2021, No. 755, § 1; 2023, No. 307, § 7; 2025, No. 592, § 13.

7-6-229. Amendment of reports — Affirmative defense.

(a) It is an affirmative defense to prosecution or disciplinary action if a person required to file a report under this subchapter amends the report within thirty (30) days of discovering or learning of an unintentional error in the report.

(b)(1) The Arkansas Ethics Commission shall not proceed with an investigation of an alleged error in a report filed under this subchapter if the commission determines that a person would be eligible to raise the affirmative defense under subsection (a) of this section.

(2) If the commission does not proceed with an investigation of an alleged error in a report under subdivision (b)(1) of this section, the person shall not be considered to have committed a violation of the applicable statute.

(c) This section shall not be construed to:

- (1) Remove the duty to file a report under this subchapter; or
- (2) Authorize a person to knowingly fail to file a report under this subchapter.

History. Acts 2015, No. 1280, § 10.

7-6-230. Electronic filing of reports.

(a) The Secretary of State shall develop electronic reporting forms for campaign contribution and expenditure reports required under § 7-6-207, including without limitation:

- (1) A cover sheet for a reporting period;
- (2) Campaign contribution reports; and
- (3) Campaign expenditure reports.

(b) The Secretary of State shall develop electronic reporting forms in a manner that allows a candidate to:

- (1) Fill out an electronic form for each reporting period in an electronic word processing file, portable document format, or equivalent format that may be saved in a read-only format;
- (2) Upload the electronic reporting forms electronically by an upload to the internet or delivered by electronic media to the Secretary of State; and
- (3) Combine all electronic forms into a single document that is available to the public in an electronically searchable format.

(c)(1) In the event of an emergency, the Secretary of State shall allow a candidate to email, fax, or deliver a paper copy of his or her campaign contribution and expenditure report to meet the deadline requirements under § 7-6-207.

(2) A candidate submitting a paper copy of a campaign contribution and expenditure report under subdivision (c)(1) of this section shall upload the campaign contribution and expenditure report electronically to the Secretary of State within ten (10) days of submitting the paper copy.

History. Acts 2017, No. 318, § 5; 2019, No. 1039, §§ 4[5], 5[6]; 2021, No. 1029, § 1; 2025, No. 996, § 1.

7-6-231. Alternative to electronic filing — Reporting of independent expenditures — Registration and reports for political action committees.

(a)(1) A person required to file reports or register in electronic form under § 7-6-215 or § 7-6-220 may file reports or register in paper form under this section if:

(A) The person does not have access to the technology necessary to submit reports or registration in electronic form; and

(B) Submitting reports or registration in electronic form would constitute a substantial hardship for the person.

(2)(A) A person filing reports or registration in paper form under subdivision (a)(1) of this section shall submit with the first report or registration a notarized affidavit on a form prepared by the Secretary of State declaring that:

(i) The person does not have access to the technology necessary to submit reports or registration in electronic form;

(ii) Submitting reports or registration in electronic form would constitute a substantial hardship for the person; and

(iii) The person agrees to file all other reports in paper form for the duration of the period of registration.

(B) The Secretary of State shall:

(i) Not accept a report or registration in paper form under subdivision (a)(1) of this section if a notarized affidavit was not submitted with the:

(a) Registration of a political action committee; or

(b) First report of a person or independent expenditure committee;

(ii) Provide written notice to the political action committee within five (5) business days if the registration in paper form was not filed or accepted;

(iii) Provide written notice to a political action committee, person, or independent expenditure committee within five (5) business days if a report in paper form was not filed or accepted; and

(iv) Provide the reason the registration or report in paper form was not filed or accepted.

(b)(1) The Secretary of State shall make available to persons wishing to file reports in paper form under this section:

(A) Information on the deadlines for filing required reports; and

(B)(i) Appropriate forms and instructions for complying with the deadlines.

(ii) The Arkansas Ethics Commission shall approve the forms and instructions used by the Secretary of State under this section to ensure that all required information is requested.

(2) Reports shall be filed on the forms furnished by the Secretary of State, except that computer-generated contribution and expenditure reports shall be accepted by the Secretary of State and the commission provided that all of the requisite elements are included.

(c)(1)(A) A report submitted in paper form under this section other than a preelection report is timely filed if it is either hand delivered or mailed to the Secretary of State, properly addressed, and postage prepaid, bearing a postmark indicating that it was received by the post office or common carrier on or before the date that the report is due.

(B) A preelection report submitted in paper form under this section is timely filed if it is received by the Secretary of State no later than seven (7) days before the election for which it is filed.

(2) The Secretary of State shall accept a report via facsimile, provided the original is received by the Secretary of State within ten (10) days of the date of the facsimile's transmission.

(d)(1) The Secretary of State shall make available reports submitted in paper form on a portion of the official website of the Secretary of State.

(2) The Secretary of State shall comply with the requirements of § 7-6-214(c) regarding the "paper filer" designation and publication requirements for all reports submitted in paper form.

7-6-232. Delinquent reports.

(a) The Arkansas Ethics Commission shall review the timeliness of reports filed with the Secretary of State by all candidates for state or district office pursuant to § 7-6-207.

(b)(1) If a candidate for state or district office has failed to file a required report, the commission shall notify the candidate in writing that the report is delinquent and request that the report be filed within thirty (30) days of the report's original due date.

(2) The notice under subdivision (b)(1) of this section shall be sent by regular mail to the candidate.

(c)(1) The third and subsequent time during an election cycle that a candidate is sent written notice of a delinquent report and fails to file the report within thirty (30) days of the report's original due date, the commission shall bring a complaint against the candidate and, if a violation is found, impose a fine of one thousand dollars (\$1,000) unless good cause be shown for the violation.

(2) In addition to imposing a fine, the commission shall also be authorized to take one (1) or more of the following actions:

- (A) Issue a public letter of caution, warning, or reprimand;
 - (B) Order the candidate to file one (1) or more reports; or
 - (C) Report the matter and make recommendations to proper law enforcement authorities.
- (d) The commission shall promulgate rules to implement and administer this section.

History. Acts 2023, No. 753, § 13.

7-6-233. Preparation of reporting calendar.

(a) The Arkansas Ethics Commission shall issue one (1) or more reporting calendars for use by candidates to identify when reports and other necessary filings are due in a calendar year.

(b) The commission shall issue the reporting calendar for a calendar year no later than the December 31 preceding the year of the reporting calendar.

(c) The commission shall prepare reporting calendars as it deems necessary for candidates for office, including without limitation candidates for state, county, municipal, district, or school elections.

History. Acts 2023, No. 753, § 13.

CHAPTER 7

NOMINATIONS AND PRIMARY ELECTIONS

SUBCHAPTER.

1. METHODS OF NOMINATION.
2. PRIMARY ELECTIONS GENERALLY.
3. CONDUCT OF PRIMARY.
4. CERTIFICATION OF NOMINATIONS.
5. COUNTIES USING VOTING MACHINES. [REPEALED.].

SUBCHAPTER 1 — METHODS OF NOMINATION

SECTION.

- 7-7-101. Selection of nominees.
- 7-7-102. Party nominees certified at primary election.
- 7-7-103. Filing as an independent — Petitions — Disqualification.
- 7-7-104. Vacancy in nomination — Alternative methods for filling — Tie vote.

SECTION.

- 7-7-105. Filling vacancies in certain offices — Special primary elections.
- 7-7-106. Filling vacancies in candidacy for nomination — Preferential primary.

7-7-101. Selection of nominees.

The name of no person shall be printed on the ballot in any general or special election in this state as a candidate for election to any office unless the person shall have been certified as a nominee selected pursuant to this subchapter.

History. Acts 1969, No. 465, Art. 1, § 5; 1971, No. 261, § 3; 1972 (1st Ex. Sess.), No. 42, § 1; 1975, No. 700, § 1; 1977, No. 731, § 1; 1981, No. 960, § 1; A.S.A. 1947, § 3-105.

7-7-102. Party nominees certified at primary election.

(a) Except as provided in subsection (b) of this section, nominees of any political party for United States Senate, United States House of Representatives, or state, district, county, township, or applicable municipal office to be voted upon at a general election shall be certified as having received a majority of the votes cast for the office, or as an unopposed candidate, at a primary election held by the political party in the manner provided by law.

(b) A new political party established by petition shall nominate any candidate by convention for the first general election after certification of a sufficient petition.

History. Acts 1969, No. 465, Art. 1, § 5; 1971, No. 261, § 3; 1972 (1st Ex. Sess.), No. 42, § 1; 1975, No. 700, § 1; A.S.A. 1947, § 3-105; Acts 2009, No. 959, § 34; 2011, No. 1036, § 1.

7-7-103. Filing as an independent — Petitions — Disqualification.

(a)(1) A person desiring to have his or her name placed upon the ballot as an independent candidate without political party affiliation for any United States office other than President of the United States or Vice President of the United States or state, county, township, or district office in any general election in this state shall file, during the party filing period for the year in which the election is to be held, a political practices pledge, an affidavit of eligibility, and a notice of candidacy stating the name and title the candidate proposes to appear on the ballot and identifying the elective office sought, including the position number, if any.

(2)(A) An independent candidate shall state the same position, including the position number, if any, on his or her petition.

(B) When a candidate has identified the position sought on the notice of candidacy, the candidate shall not be allowed to change the position but may withdraw a notice of candidacy and file a new notice of candidacy designating a different position before the deadline for filing.

(b)(1)(A) The person shall furnish by 12:00 noon on May 1 of the year in which the general election is to be held petitions signed by not less than three percent (3%) of the qualified electors in the county, township, or district in which the person is seeking office, but in no event shall more than two thousand (2,000) signatures be required for a district, county, or township office.

(B) If the person is a candidate for state office or for United States Senator in which a statewide race is required, the person shall file petitions signed by not less than three percent (3%) of the qualified electors of the state or which contain ten thousand (10,000) signatures of qualified electors, whichever is the lesser.

(2) Each elector signing the petition shall be a registered voter, and the petition shall be directed to the official with whom the person is required by law to file the petition to qualify as a candidate and shall request that the name of the person be placed on the ballot for election to the office mentioned in the petition.

(3)(A) A petition shall be on a form prescribed by the Secretary of State that includes without limitation a designated space for:

- (i) The signature of the qualified elector;
- (ii) The printed name of the qualified elector;
- (iii) The date of the signature of the qualified elector; and
- (iv) The address of the qualified elector.

(B) A petition shall be circulated not earlier than ninety (90) calendar days before the deadline for filing petitions to qualify as an independent candidate unless the number of days is reduced by a proclamation, ordinance, resolution, order, or other authorized document for a special election under § 7-11-101 et seq.

(C)(i) The person filing for office as an independent candidate shall submit with the petition an affidavit that swears:

- (a) The signatures were not collected for a period over ninety (90) days;
 - (b) The beginning and ending dates for collection of signatures on the petition are those as indicated on the affidavit; and
 - (c) The signatures were collected and the petition was executed and submitted in compliance with the law.
- (ii) The affidavit under subdivision (b)(3)(C)(i) of this section shall be on a form prescribed by the Secretary of State.

(4) In determining the number of qualified electors in any county, township, or district or in the state, the total number of votes cast therein for all candidates in the preceding general election for the office of Governor shall be conclusive of the number of qualified electors therein for the purposes of this section.

(5) If the number of days in which the petition for independent candidacy may be circulated is reduced by a proclamation, ordinance, resolution, order, or other authorized document for a special election under § 7-11-101 et seq., the number of signatures required on the petition shall be reduced proportionately.

(c) Signatures that are incorrectly obtained or submitted under this section shall not be counted.

History. Acts 1969, No. 465, Art. 1, § 5; 1971, No. 261, § 3; 1972 (1st Ex. Sess.), No. 42, §§ 1, 2; 1975, No. 700, § 1; 1977, No. 731, § 1; 1981, No. 960, § 1; 1985, No. 1055, § 3; A.S.A. 1947, §§ 3-105, 3-105.1; Acts 1989, No. 591, §§ 1, 2; 1993, No. 512, § 7; 1997, No. 886, § 2; 1999, No. 77, § 1; 2001, No. 472, § 1; 2001, No. 1553, § 19; 2001, No. 1789, § 6; 2003, No. 1165, § 6; 2003, No. 1731, § 3; 2005, No. 67, § 16; 2007, No. 1020, § 13; 2007, No. 1049, § 21; 2009, No. 188, § 1; 2009, No. 1480, § 41; 2013, No. 1356, § 1; 2015, No. 340, §§ 1, 2; 2019, No. 68, §§ 1, 2.

7-7-104. Vacancy in nomination — Alternative methods for filling — Tie vote.

(a) Except as provided in subsection (b) of this section, nominees of a political party to fill a vacancy in nomination, as defined in § 7-1-101, shall be declared by:

(1) Certificate of the chair and secretary of any convention of delegates held following receipt of the Governor's letter certifying vacancy; or

(2)(A) A special primary election called, held, and conducted in accordance with the rules of the party.

(B) A special primary election may be called only if the special primary election can be called, held, conducted, and certified and certificates of nomination filed at least seventy (70) days before the general election.

(b)(1) In case of a tie vote for the same office at a general primary election, a vacancy in nomination for that office shall exist.

(2)(A) Nominees of a political party to fill a vacancy in nomination resulting from a tie vote for the same office at a general primary election shall be declared by certificate of the chair and secretary of an appropriate convention of delegates held following receipt of the Governor's letter certifying a vacancy.

(B) A convention of delegates shall be conducted in accordance with the rules of the party.

(c)(1) When a vacancy in nomination occurs as a result of death or when the person who received the majority of votes cast at the preferential primary election or the general primary election notifies the state committee of the political party of his or her intent to refuse nomination due to serious illness, moving out of the area from which elected as the party's nominee, or filing for another office, the state committee of the political party shall notify the Governor within ten (10) calendar days after the date of death or the date the party was notified of intent to refuse nomination as to whether the party chooses to fill the vacancy in nomination at a special election or a convention.

(2) If the party fails to notify the Governor within the ten-calendar-day period, the vacancy in nomination shall not be filled nor shall the vacancy in nomination be filled if it occurred for any reason other than death, serious illness, the candidate's moving out of the area from which elected as the party's nominee, or filing for another office.

(d)(1) If the party notifies the Governor within the time prescribed in subsection (c) of this section of the desire to have a special primary election, the Governor shall issue a proclamation within five (5) days calling the special election and establishing the deadline for filing as a candidate for nomination, drawing for ballot position, and issuing and filing certificates of nomination. The special primary election shall occur no earlier than thirty (30) days nor later than sixty (60) days after the filing deadline. The candidate who receives the most votes in the special primary election shall be declared the nominee. There shall be no runoff election. In the event of a tie for the most votes, the nominee shall be determined by lot in a public meeting of the appropriate party committee.

(2) When the certificate of nomination is filed for a nominee who is filling a vacancy in nomination, the filing authority shall immediately certify the name of the nominee to the appropriate county board of election commissioners.

(e) If the party notifies the Governor that it desires to fill the vacancy in nomination by convention, the convention shall occur and be conducted in accordance with respective political party rules after the notice is provided to the Governor.

(f)(1) If the party's nominee is not selected in time to file his or her certificate of nomination with the appropriate party authority at least seventy-six (76) days before the general election, the nominee's name shall not appear on the general election ballot but the name of the person who vacated the nomination shall appear on the ballot, and votes cast for the name of the person appearing on the ballot shall be counted for the nominee but only if the certificate of nomination is duly filed at least forty-seven (47) days before the general election.

(2)(A) If votes for a nominee whose name does not appear on the ballot are to be counted under subdivision (f)(1) of this section, the county board of election commissioners shall post a notice at each affected polling place stating each election in which a vote for the person appearing on the ballot shall be counted for the nominee.

(B) A copy of the notice shall be included with the instructions sent to absentee voters.

History. Acts 1969, No. 465, Art. 1, §§ 5, 10; 1971, No. 261, §§ 3, 4; 1972 (1st Ex. Sess.), No. 42, § 1; 1975, No. 700, § 1; A.S.A. 1947, §§ 3-105, 3-110; Acts 1997, No. 1082, § 3; 2005, No. 2145, § 12; 2007, No. 1049, § 22; 2011, No. 203, § 2; 2011, No. 1185, § 8; 2019, No. 648, § 5.

7-7-105. Filling vacancies in certain offices — Special primary elections.

(a) Nominees for special elections called for the purpose of filling a vacancy in office for a member of the United States House of Representatives, Lieutenant Governor, or for a member of the Senate or House of Representatives of the General Assembly shall be chosen as follows:

(1) The Governor shall certify in writing to the state committees of the respective political parties the fact of vacancy and shall request the respective state committees to make a determination and notify him or her in writing within ten (10) days with respect to whether the political parties desire to hold a special primary election or a convention of delegates held under party rules to choose nominees;

(2)(A) If the state committee of any political party timely notifies the Governor that it chooses to hold a special primary election, any political party desiring to choose a nominee shall choose the nominee at a special primary election.

(B) The Governor's proclamation shall set dates for the special primary election and the runoff primary election to be held if no candidate receives a majority of the vote at the special primary election; and

(3)(A)(i) Except as provided in subsection (c) of this section, a special election to fill the vacancy in office shall be held on a date as soon as possible after the vacancy occurs.

(ii) Except as provided in subdivision (a)(3)(A)(iii) of this section, the special election shall be held not more than one hundred fifty (150) days after the occurrence of the vacancy.

(iii) If the Governor determines it is impracticable or unduly burdensome to hold the special election within one hundred fifty (150) days after the occurrence of the vacancy, the special election shall be held as soon as practicable after the one-hundred-fiftieth day following the occurrence of the vacancy.

(B) The special election shall be held in accordance with laws governing special elections.

(C)(i) If a nominee is to be chosen at a special primary election and if, after the close of the filing period, only one (1) or two (2) candidates have filed for the nomination of a party holding a primary, the state committee of a party holding a primary shall notify the Governor.

(ii) The Governor shall issue a new proclamation setting the special election for an earlier date so long as the earlier date is in accordance with state laws governing special elections.

(b) If no state committee of any political party timely notifies the Governor of the desire to hold a special primary election or convention, the Governor, in issuing his or her proclamation calling for the special election, shall declare that the nominee of a political party shall be chosen at a convention.

(c) A special election for a vacancy in the office of Lieutenant Governor shall not be held if:

(1) The vacancy occurs less than ten (10) months before the next scheduled general election;

(2) The office of Lieutenant Governor would in regular course be filled at the next scheduled general election; and

(3) The Governor determines that the cost of holding a special election for a vacancy in the office of Lieutenant Governor less than ten (10) months before the office will be filled at the next scheduled general election is impractical because of the timing of the vacancy.

History. Acts 1969, No. 465, Art. 1, § 5; 1971, No. 261, § 3; 1972 (1st Ex. Sess.), No. 42, § 1; 1975, No. 700, § 1; A.S.A. 1947, § 3-105; Acts 1987, No. 248, § 1; 1993, No. 512, § 8; 1997, No. 1082, § 2; 2005, No. 2145, § 13; 2007, No. 1049, § 23; 2009, No. 1480, § 42; 2014, No. 210, § 1.

7-7-106. Filling vacancies in candidacy for nomination — Preferential primary.

(a) A political party may fill a vacancy if:

(1) A person is running unopposed in a preferential primary and cannot accept the nomination due to death; or

(2) A person is running unopposed in a preferential primary and notifies the party that he or she will not accept the nomination due to a serious illness.

(b) The vacancy shall be filled in accordance with respective political party rules.

(c) If the vacancy is filled more than sixty-six (66) days before the preferential primary election, the name of the person filling the vacancy shall be printed on the ballot instead of the name of the person who vacated the candidacy.

(d) If the vacancy is filled less than sixty-six (66) days before the date of the preferential primary election, the name of the person subsequently elected to fill the vacancy in candidacy shall be declared the nominee even if the name of the person who vacated the candidacy appears on the preferential primary ballot.

(e) If the vacancy in candidacy is not filled before the date of the preferential primary election, a vacancy in nomination shall be deemed to exist on the date of the preferential primary election and the vacancy in nomination shall be filled under § 7-7-104.

History. Acts 2001, No. 1772, § 1; 2007, No. 1049, § 24; 2013, No. 1126, § 13; 2019, No. 648, § 6.

SUBCHAPTER 2 — PRIMARY ELECTIONS GENERALLY

SECTION.

7-7-201. Law governing primary elections.

7-7-202. Preferential and general primaries — When required — Common polling places.

SECTION.

7-7-203. Dates.

7-7-204. Candidacy for multiple nominations prohibited.

7-7-205. Petition requirements for new political parties.

7-7-201. Law governing primary elections.

(a) The cost of political party primaries shall be borne by the State of Arkansas and shall be paid from an appropriation made to the State Board of Election Commissioners for that purpose.

(b)(1) Within each county, the political party primary elections shall be conducted by the county board of election commissioners.

(2) The State Board of Election Commissioners shall have authority to adopt rules for the administration of primary elections consistent with the provisions of this chapter.

(3) The State Board of Election Commissioners may withhold reimbursement of funds to the counties for state-funded elections for failure to comply with the rules developed by the State Board of Election Commissioners for the administration of primary elections or applicable state election laws until all requirements are met to the satisfaction of the State Board of Election Commissioners.

(4) Each political party shall be responsible for determining the qualifications of candidates seeking nomination by the political party, provide necessary applications for candidacy, accept and process the applications, and determine the order of its ballot.

(c) All political party primary elections shall be conducted in conformity with the provisions of this act, and these elections are declared to be legal elections.

(d) In cases of circumstances or procedures which may arise in connection with any primary election for which there is no provision of this act governing the circumstances or procedures, they shall be governed by the general election laws of this state or by party rules if there is no applicable general election law.

(e) The State Board of Election Commissioners shall not take or accept any funding, grants, or gifts from any source other than from:

- (1) A city or incorporated town;
- (2) The governing authority of the county;
- (3) The State of Arkansas; or
- (4) The United States Government.

History. Acts 1969, No. 465, Art. 1, § 7; A.S.A. 1947, § 3-107; Acts 1995, No. 901, § 2; 2001, No. 1175, § 1; 2007, No. 987, § 2; 2021, No. 961, § 2.

7-7-202. Preferential and general primaries — When required — Common polling places.

(a) Whenever any political party shall select by primary election party nominees as candidates at any general election for any United States, state, district, county, township, or municipal office, there shall be held a preferential primary election and a general primary election, if required, on the respective dates provided in § 7-7-203(a) and (b).

(b) A general primary election for a political party shall not be held if there are no races in which three (3) or more candidates qualify for the same office or position as provided in subsection (c) of this section unless a general primary election is necessary to break a tie vote for the same office or position at the preferential primary.

(c) If there are no races in which three (3) or more candidates qualify for the same office or position, only the preferential primary election shall be held for the political party. If all nominations have been determined at the preferential primary election or by withdrawal of candidates as provided in § 7-7-304(a) and (b), the general primary election shall not be held.

(d) The county board of election commissioners shall establish common polling places for the joint conduct of the primary elections of all political parties.

History. Acts 1969, No. 465, Art. 1, §§ 8, 10; 1971, No. 261, § 4; A.S.A. 1947, §§ 3-108, 3-110; Acts 1995, No. 901, § 3; 2005, No. 67, § 17; 2009, No. 959, § 35.

7-7-203. Dates.

(a) The general primary election shall be held on the Tuesday four (4) weeks following the preferential primary election.

(b) The preferential primary election shall be held on the first Tuesday after the first Monday in March.

(c)(1) The party filing period shall be a one-week period beginning at 12:00 noon on the first Monday in November preceding the general primary election and ending at 12:00 noon on the eighth day thereafter.

(2) Party pledges, if any, and affidavits of eligibility shall be filed, any filing fees of a political party, if any, shall be paid, and party certificates shall be issued by the party during regular office hours during the party filing period.

(3) A party certificate and the political practices pledge shall be filed with the county clerk or the Secretary of State, as the case may be, during regular office hours during the party filing period.

(4) The name of a candidate who fails to file a party certificate and political practices pledge by the filing deadline with the Secretary of State or county clerk, as the case may be, shall not appear on the ballot.

(5) Party pledges, if any, shall be filed, filing fees, if any, shall be paid, and party certificates and political practices pledges shall be filed for special primary elections on or before the deadline established by proclamation of the Governor or other entity authorized to call a special primary election.

(d)(1) At least seventy-five (75) days before the preferential primary election, the Secretary of State shall certify to the various county committees and to the various county boards of election commissioners a list of the names of all candidates who have filed party certificates with the Secretary of State within the time required by law.

(2) At least seventy-five (75) days before the preferential primary election, the county clerk shall certify to the county committees and to the county board of election commissioners a list of the names of all candidates who have filed party certificates with the county clerk within the time required by law.

(e)(1) The county board of election commissioners shall convene, at the time specified in the notice to the members given by the chair of the board, no later than the tenth day after each primary election for the purpose of canvassing the returns and certifying the election results.

(2) If no time is specified for the meeting of the county board of election commissioners, the meeting shall be at 5:00 p.m.

(f) The county convention of a political party holding a primary election shall be held:

(1) No sooner than the day after the general primary election is held or, if no general primary election is held, no sooner than the day after the preferential primary election is held; and

(2) No later than one hundred (100) days before the general election.

(g)(1)(A) The county board of election commissioners shall certify to the county clerk and the county committee a list of all candidates who received the most votes or are unopposed on the ballot for county, township, and municipal offices, and the political parties' county committee members and delegates.

(B) The list under subdivision (g)(1)(A) of this section shall be provided no later than:

(i) Ten (10) days after certification of the:

(a) General primary election; or

(b) If no general primary election will be held, the preferential primary election; and

(ii) One hundred (100) days before the general election.

(2) At the same time, the county board of election commissioners shall certify to the Secretary of State and the secretary of the state committee the results of the contests for all United States, state, and district offices. Immediately after ascertaining the results for all United States, state, and district offices, the Secretary of State shall certify to the state committee a list of all nominated candidates for the offices.

(h)(1)(A) The Secretary of State shall at least one hundred (100) days before the date of the general election notify by registered mail the chair and secretary of the state committee of the respective political parties that a certificate of nomination is due for all nominated candidates for United States, state, and district offices in order that the candidates' names be placed on the ballot of the general election.

(B)(i) The state committee shall issue certificates of nomination to all nominated candidates for United States, state, and district offices, who shall file the certificates with the Secretary of State at least ninety (90) days before the general election.

(ii) However, if the chair and secretary of the state committee of the respective political parties are not properly notified as directed by subdivision (h)(1)(A) of this section, the failure of a candidate to file a certificate of nomination by the deadline shall not prevent that candidate's name from being placed on the ballot of the general election.

(2)(A)(i) Except as provided in subdivision (h)(2)(A)(ii) of this section, each county clerk shall at least one hundred (100) days before the date of the general election notify by certified mail, restricted delivery, the chairs and secretaries of the county committees of the respective political parties that a certified list of all nominated candidates for county, township, and municipal offices is due and shall be filed with the county clerk in order that the candidates' names be placed on the ballot for the general election.

(ii) Upon written agreement by the chairs of the county committees of the respective political parties, the county clerk may notify the chairs and secretaries of the county committees of the respective political parties by email with a read receipt requested.

(B)(i) Each county political party committee shall issue the certified list on behalf of those nominated candidates and submit the certified list to the county clerk and county board of election commissioners at least ninety (90) days before the general election.

(ii) However, if the chairs and secretaries of the county committees of the respective political parties are not properly notified as directed by subdivision (h)(2)(A) of this section, the failure of a certified list to be filed by the deadline shall not prevent any candidate's name from being placed on the ballot of the general election.

History. Acts 1969, No. 465, Art. 1, § 13; 1971, No. 261, § 23; 1971, No. 347, §§ 5-7; 1971, No. 829, §§ 1-3; 1972 (1st Ex. Sess.), No. 37, §§ 1, 2; 1975, No. 601, §§ 1, 2; 1977, No. 888, §§ 1, 2; 1981, No. 448, § 1; A.S.A. 1947, § 3-113; Acts 1987, No. 123, §§ 13, 14; 1987, No. 248, §§ 2, 16; 1993, No. 966, § 2; 1995, No. 723, § 2; 1995, No. 724, § 2;

1995, No. 901, § 4; 1997, No. 886, § 3; 2001, No. 1475, § 3; 2003, No. 1165, § 7; 2003, No. 1731, § 4; 2007, No. 1020, § 14; 2007, No. 1049, § 25; 2009, No. 959, § 36; 2011, No. 1185, § 9; 2015 (1st Ex. Sess.), No. 4, § 1; 2017, No. 1088, § 1; 2019, No. 545, § 2; 2019, No. 649, §§ 1-3; 2023, No. 462, § 1; 2025, No. 405, §§ 3, 4; 2025, No. 463, § 2.

7-7-204. Candidacy for multiple nominations prohibited.

- (a) A person who files as a candidate for nomination by a political party shall not be eligible to:
- (1) Be the nominee of any other political party for the same office during the primary election or the following general or special election; or
 - (2) Be an independent candidate for the same office at the general or special election.
- (b) A person who is certified as an independent candidate shall not be eligible to be the nominee of any political party for the same office at the same general or special election.

History. Acts 1997, No. 343, § 1; 2023, No. 305, §§ 10, 11.

7-7-205. Petition requirements for new political parties.

(a)(1) A group desiring to form a new political party shall do so by filing a petition with the Secretary of State.

(2) The petition shall contain at the time of filing the signatures of a minimum of ten thousand (10,000) registered voters in the state.

(3) The Secretary of State shall not accept for filing any new party petition that is not prima facie sufficient at the time of filing.

(4)(A) No signature shall be counted unless the date of the signature appears on the petition.

(B) No signature that is dated prior to the first day of January immediately following the general election shall be counted.

(5)(A) The petition shall declare the intent of organizing a political party, the name of which shall be stated in the declaration.

(B) No political party or group shall assume a name or designation that is so familiar, in the opinion of the Secretary of State, as to confuse or mislead the voters at an election.

(6) A new political party that wishes to select nominees for the next general election shall file a sufficient petition no later than three (3) weeks before the preferential primary election.

(b)(1) The Secretary of State shall determine the sufficiency of the signatures submitted within thirty (30) days of filing.

(2) If the petition is determined to be insufficient, the Secretary of State shall forthwith notify the sponsors in writing, through their designated agent, and shall set forth his or her reasons for so finding.

(c)(1) Upon certification of sufficiency of the petition by the Secretary of State, a new political party shall be declared by the Secretary of State.

(2)(A) A new political party formed by the petition process shall nominate candidates by convention for the first general election after certification.

(B) Certificates of nomination shall be filed with the Secretary of State or the county clerk no later than 12:00 noon on the date of the preferential primary election.

(C) A convention under subdivision (c)(2)(A) of this section may be held in any manner authorized by the rules of the new political party.

(3) A candidate to be nominated by convention shall file a political practices pledge with the Secretary of State or county clerk, as the case may be, no later than 12:00 noon on the date of the preferential primary election.

(4) If the new party maintains party status by obtaining three percent (3%) of the total votes cast for the office of Governor or nominees for presidential electors at the first general election after certification, the new political party shall nominate candidates in the party primary as set forth in § 7-7-101 et seq.

(5) Any challenges to the certification of the sufficiency of the petition by the Secretary of State shall be filed with the Pulaski County Circuit Court.

History. Acts 1997, No. 886, § 4; 2003, No. 1165, §§ 8, 9; 2011, No. 1036, § 2; 2013, No. 1356, § 2; 2017, No. 297, 2007, No. 821, § 1; 2009, No. 188, § 2; 2009, No. 959, § 37; § 1; 2019, No. 164, § 1; 2023, No. 462, §§ 2-6.

SUBCHAPTER 3 — CONDUCT OF PRIMARY

SECTION.

7-7-301. Party pledges, affidavits of eligibility, and party filing fees.

7-7-302. Selection of primary election officials.

7-7-303. Precincts — Boundaries.

7-7-304. Names to be included on ballots — Withdrawal — Unopposed candidates — Designation of position — Necessity of general primary.

7-7-305. Printing of ballots — Form — Draw for ballot position.

SECTION.

7-7-306. Partisan and nonpartisan general election ballots.

7-7-307. Additional voter qualifications.

7-7-308. Voting procedure and requirements.

7-7-309. Canvass and certification of returns.

7-7-310. [Repealed.]

7-7-311. [Repealed.]

7-7-312. [Repealed.]

7-7-313. Unopposed races.

7-7-301. Party pledges, affidavits of eligibility, and party filing fees.

(a) A political party may impose a filing fee for candidates seeking nomination by that party. The filing fee for county, municipal, and township offices shall be fixed by the county committee, as authorized by the state executive committee. For all other races, the filing fee shall be established by the state executive committee. On or before noon of the last day of the political party filing period, all candidates at primary elections of political parties shall file an affidavit of eligibility and any pledge required by such party and shall pay the party filing fees required by the party, as follows:

(1) Candidates for United States Senator, for United States Representative, and for all state offices shall file the pledge and the affidavit of eligibility and pay the party filing fees with the secretary of the state committee of the political party or his or her designated agent;

(2) Candidates for district offices, including, but not limited to, the offices of State Representative and State Senator, shall file the pledge and affidavit of eligibility with the secretary of the state committee of the political party or his or her designated agent and pay the party filing fees with the secretary of the state committee of the political party or his or her designated agent; and

(3) All candidates for county, municipal, and township offices, candidates for county committee member, and delegates to the county convention shall file the pledge and the affidavit of eligibility and pay the party filing fees with the secretary of the county committee of the political party.

(b) The county clerk shall not accept for filing the political practices pledge of any candidate for nomination by a political party to any county, township, or partisan municipal office, nor shall the Secretary of State accept for filing the political practices pledge of any candidate for nomination by a political party to any state or district office, unless the candidate first files a party certificate.

(c) Any candidate who shall fail to file the party pledge and affidavit of eligibility and pay the party filing fee at the time and in the manner as provided in this section shall not receive a party certificate and shall not have his or her name printed on the ballot at any primary election.

(d) The names of candidates who file with the state committee as provided in this section shall be certified to the various county committees and the various county boards of election commissioners in the manner and at the time provided in § 7-7-203.

History. Acts 1969, No. 465, Art. 1, § 9; 1977, No. 169, § 1; A.S.A. 1947, § 3-109; Acts 1995, No. 901, § 5; 1997, No. 886, § 5; 2003, No. 1731, § 5; 2009, No. 1480, § 43.

7-7-302. Selection of primary election officials.

The election officials of primary elections shall be selected in the same manner as for general elections and shall be subject to the same requirements as provided for general elections.

History. Acts 1969, No. 465, Art. 1, §§ 4, 12; 1971, No. 261, § 6; 1971, No. 451, § 1; 1972 (1st Ex. Sess.), No. 41, § 1; 1983, No. 395, § 1; A.S.A. 1947, §§ 3-104, 3-112; Acts 1995, No. 901, § 6; 1997, No. 886, § 6.

7-7-303. Precincts — Boundaries.

The election precincts in all political party primary elections shall be the same as established by the county board of election commissioners for general elections.

History. Acts 1969, No. 465, Art. 1, § 11; 1971, No. 261, § 5; A.S.A. 1947, § 3-111; Acts 1989, No. 912, § 4; 1995, No. 901, § 7; 2009, No. 959, § 38.

7-7-304. Names to be included on ballots — Withdrawal — Unopposed candidates — Designation of position — Necessity of general primary.

(a)(1) The Secretary of State shall certify to all county boards of election commissioners full lists of the names of all candidates who have filed party certificates with him or her to be placed on the ballots in their respective counties at the preferential primary election not less than ninety-two (92) days before a preferential primary election.

(2) A name of a person shall not be certified and shall not be placed on the ballot if prior to the certification deadline a candidate:

(A) Notifies the Secretary of State in writing, signed by the candidate and acknowledged before an officer authorized to take acknowledgements, of his or her desire to withdraw as a candidate for the office or position; or

(B) Dies.

(b)(1) The county clerk shall certify to the county board of election commissioners full lists of the names of all candidates who have filed party certificates with him or her to be placed on the ballot at the preferential primary election not less than ninety-two (92) days before a preferential primary election.

(2) A name of a person shall not be certified and shall not be placed on the ballot if prior to the certification deadline a candidate:

(A) Notifies the county clerk in writing, signed by the candidate and acknowledged before an officer authorized to take acknowledgements, of his or her desire to withdraw as a candidate for the office or position; or

(B) Dies.

(c)(1) The votes received by a person whose name appeared on the preferential primary ballot and who withdrew or died after the certification of the ballot shall be counted.

(2) If the person receives enough votes to win the nomination, a vacancy in nomination shall exist.

(3) If the person receives enough votes to advance to the general primary election, the person's name shall be printed on the general primary election ballot.

(4) If the person receives enough votes to win the general primary election, a vacancy in nomination shall exist.

(d) When only one (1) candidate qualifies for a particular office or position, the office or position and the name of the unopposed candidate shall be printed on the political party's ballot in all primary elections.

(e)(1) When there are two (2) or more nominees to be selected for the same office, such as state senator, state representative, justice of the peace, council member, or for any other office, the proper committee shall require the candidates to designate in writing a particular position, i.e., "position number one (1)", "position number two (2)", "position number three (3)", etc., at the time that a party pledge is required to be filed with the secretary of the committee.

(2) When a candidate has once filed and designated for a certain position, that candidate shall not be permitted to thereafter change the position.

(f)(1) If at the preferential primary election for a political party a candidate receives a majority of the votes cast for that office or position, the person shall be declared the party nominee and it shall not be necessary for the candidate's name to appear on the ballot at the general primary election.

(2) If no candidate receives a majority of the votes cast for an office or position at the preferential primary for a political party, the names of the two (2) candidates of the political party

who received the highest number of votes for an office or a position shall be placed upon the ballots at the general primary election.

History. Acts 1969, No. 465, Art. 1, § 10; 1971, No. 261, § 10; 2015 (1st Ex. Sess.), No. 4, § 2; 2017, No. 730, § 4; § 4; A.S.A. 1947, § 3-110; Acts 1989, No. 912, § 5; 1995, 2017, No. 879, § 2; 2019, No. 545, § 3; 2019, No. 1013, § 3; No. 901, § 8; 2003, No. 332, § 1; 2007, No. 1020, § 15; 2025, No. 405, §§ 5, 6. 2007, No. 1049, § 26; 2009, No. 1480, § 44; 2011, No. 1185,

7-7-305. Printing of ballots — Form — Draw for ballot position.

(a) The ballots of the primary election shall be provided by the county board of election commissioners. The form of the ballots shall be the same as is provided by law for ballots in general elections in this state. A different color ballot may be used to distinguish between political parties.

(b)(1) The order in which the names of the respective candidates are to appear on the ballots at all preferential and general primary elections shall be determined by lot at the public meeting of the county board of election commissioners held not later than eighty-nine (89) days before a preferential primary election.

(2) The county board of election commissioners shall give at least ten (10) days' written notice of the time and place of the meeting to the chairs of the county committees if the chairs are not members of the county board of election commissioners, and at least three (3) days before the meeting, shall publish notice of the time and place of holding the meeting in some newspaper of general circulation in the county.

(c)(1)(A) A person who files for an elective office in this state may use not more than three (3) given names, one (1) of which may be a nickname or any other word used to identify the person to the voters, and may add as a prefix to his or her name the title or an abbreviation of an elective public office the person currently holds.

(B) A person may use as the prefix the title of a nonpartisan judicial office in an election for a nonpartisan judicial office only if:

(i) The person is currently serving in a nonpartisan judicial office to which the person has been elected in the last election for the office; or

(ii) The person:

(a) Is a candidate for the office Justice of the Supreme Court, Judge of the Court of Appeals, of circuit judge or district judge;

(b) Is currently serving in the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge or district judge, as an appointee; and

(c) Has been serving in that position for at least twelve (12) months.

(C) A nickname shall not include a professional or honorary title.

(2) The person filing for office shall include his or her surname in addition to any given names permitted under subdivision (c)(1)(A) of this section.

(3) The names and titles as proposed to be used by each candidate on the political practices pledge or, if the political practices pledge is not filed by the filing deadline, then the names and titles that appear on the party certificate shall be reviewed no later than one (1) business day after the filing deadline by the Secretary of State for state and district offices and by the county board of election commissioners for county, township, school, and municipal offices.

(4)(A) The name of every candidate shall be printed on the ballot in the form as certified by either the Secretary of State or the county board of election commissioners.

(B) However, the county board of election commissioners may substitute an abbreviated title if the ballot lacks space for the title requested by a candidate.

(C) The county board of election commissioners shall immediately notify a candidate whose requested title is abbreviated by the county board of election commissioners.

(5) A candidate shall not be permitted to change the form in which his or her name will be printed on the ballot after the deadline for filing the political practices pledge.

History. Acts 1969, No. 465, Art. 1, § 14; 1971, No. 261, § 7; A.S.A. 1947, § 3-114; Acts 1991, No. 408, § 1; 1995, No. 901, § 9; 1999, No. 1335, § 1; 2001, No. 799, § 1; 2001, No. 1835, § 1; 2003, No. 1731, § 6; 2007, No. 559, § 6; 2007, No. 1020, § 16; 2007, No. 1049, § 27; 2009, No. 959, § 39; 2011, No. 1185, § 11; 2013, No. 1075, § 1; 2015 (1st Ex. Sess.), No. 4, § 3; 2019, No. 527, § 1; 2019, No. 545, § 4; 2025, No. 126, § 1; 2025, No. 405, § 7.

7-7-306. Partisan and nonpartisan general election ballots.

(a) At each party primary and nonpartisan general election, each county board of election commissioners shall furnish a separate ballot for each political party containing:

- (1) The name of each person seeking nomination as a candidate of that political party;
- (2) The name of each candidate for the general election to a nonpartisan office under § 7-10-101 [repealed]; and
- (3) All measures and questions, if any, to be decided by the voters.

(b) The county board of election commissioners shall also furnish a separate ballot containing the names of all qualified candidates for the general election to nonpartisan offices and all measures, if any, to be decided by the voters.

History. Acts 1969, No. 465, Art. 1, § 15; A.S.A. 1947, § 3-115; Acts 1995, No. 901, § 10; 2005, No. 67, § 18; 2009, No. 959, § 39; 2013, No. 1110, § 8; 2013, No. 1126, § 14.

7-7-307. Additional voter qualifications.

(a) Each political party may establish by party rules additional qualifications to those established by § 7-5-201 for eligibility to vote in primary elections of the party.

(b) However, any additional qualifications established by a political party shall comply with the National Voter Registration Act of 1993.

History. Acts 1969, No. 465, Art. 1, § 15; A.S.A. 1947, § 3-115; Acts 1995, No. 928, § 2; 1995, No. 936, § 2.

7-7-308. Voting procedure and requirements.

(a) The procedure for voting in primary elections is the same as for general elections.

(b) At the same time that the voter identifies himself or herself and the party primary or other election in which he or she intends to vote, the election official shall mark next to the voter's name on the precinct voter registration list the party primary or other election in which the voter chooses to vote.

History. Acts 1973, No. 157, § 4; A.S.A. 1947, § 3-126; Acts 1993, No. 487, § 3; 1995, No. 901, § 11; 1995, No. 946, § 10; 1995, No. 963, § 10; 1997, No. 886, § 7; 2005, No. 67, § 19; 2007, No. 1020, § 17; 2009, No. 959, § 40.

7-7-309. Canvass and certification of returns.

The county board of election commissioners shall canvass the returns and examine the ballots when demanded. It may hear testimony, if offered, of fraudulent practices and illegal votes, may cast out illegal votes and fraudulent returns, may find the true and legal vote cast for each candidate, and shall certify the result not sooner than forty-eight (48) hours and not later than ten (10) days after the primary.

History. Acts 1969, No. 465, Art. 1, § 16; A.S.A. 1947, § 3-116; Acts 1995, No. 901, § 12; 1997, No. 886, § 8; 2001, No. 1475, § 2; 2007, No. 1020, § 18.

7-7-310. [Repealed.]

Publisher's Notes. This section, concerning filing and preservation of returns, ballots, and other documents, was repealed by Acts 2009, No. 959, § 41. The section was derived from Acts 1969, No. 465, Art. 1, § 18; A.S.A. 1947,

§ 3-118; Acts 1993, No. 487, § 4; 1995, No. 901, § 13; 1995, No. 925, § 1; 1995, No. 939, § 1; 1995, No. 946, § 11; 1995, No. 963, § 11; 1997, No. 886, § 9; 2005, No. 67, § 20.

7-7-311. [Repealed.]

Publisher's Notes. This section, concerning delivery and custody of ballots and stubs and destruction of stubs, was repealed by Acts 1997, No. 886, § 10. The section was

derived from Acts 1969, No. 465, Art. 1, § 19; A.S.A. 1947, § 3-119; Acts 1995, No. 901, § 14.

7-7-312. [Repealed.]

Publisher's Notes. This section, concerning common polling places, was repealed by Acts 2005, No. 67, § 21.

The section was derived from Acts 1991, No. 467, § 1; 1995, No. 901, § 15; 1995, No. 946, § 12; 1995, No. 963, § 12.

7-7-313. Unopposed races.

If there is a primary election in which only one (1) candidate has filed for the position by a filing deadline and there are no other ballot issues to be submitted for consideration, the county board of election commissioners may declare and certify the candidate as elected in the same manner as if the candidate had been voted upon at the election.

History. Acts 2009, No. 812, § 1; 2017, No. 730, § 5.

SUBCHAPTER 4 — CERTIFICATION OF NOMINATIONS**SECTION.**

7-7-401. Certification of nominations.

7-7-402. Filing certificates of nomination.

SECTION.

7-7-403. [Repealed.]

7-7-401. Certification of nominations.

(a) The county board of election commissioners shall certify the nomination of all county, township, and municipal offices to the county committee of the political party, state committee of the political party, and county clerk. It shall further certify the vote of all candidates for United States, state, and district office to the state committee and the Secretary of State.

(b) The Secretary of State shall receive the returns from the county board of election commissioners and canvass and certify the result thereof as provided by law. When ordered by a circuit court as provided by law, the county board or its officers shall annul the certifications made and make certifications in accordance with the judgment of the circuit court.

(c) The nominations of any and all political parties for candidates chosen at a regular or special primary election held by the political party shall be certified by the county board of election commissioners.

(d)(1) Nominees of political parties chosen by a convention of delegates, in those circumstances in which nominations by political party conventions are authorized by law, shall be certified by the chair and secretary of the convention of delegates held by the political party.

(2) All certificates of nomination made by the chair and secretary of conventions or of county boards of election commissioners of primary elections shall be acknowledged before an officer authorized by law to take acknowledgments.

(e)(1) Nomination as a nonpartisan candidate for Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, or district judge shall be deemed certified upon the candidate's filing for office when a filing fee is paid or upon determination by the appropriate officer that sufficient signatures were obtained when the candidate seeks alternative ballot access.

(2) For any other office, nomination as an independent candidate without political party affiliation for election to any office shall be certified by petition of electors in the manner provided in § 7-7-103.

History. Acts 1969, No. 465, Art. 1, §§ 17, 20; 1971, No. 261, § 8; 1975, No. 601, §§ 3, 5; A.S.A. 1947, §§ 3-117,

3-120; Acts 1995, No. 901, § 16; 1997, No. 886, § 11; 2001, No. 1789, § 7.

7-7-402. Filing certificates of nomination.

(a)(1) All certified lists of nominees as candidates for presidential electors and members of the United States Congress and for state, judicial, and district officers, either by convention, primary election, or electors, shall be filed with the Secretary of State.

(2) All certified lists of nominees for county, township, and municipal offices shall be filed with the county board of election commissioners and the county clerk of the county in which they are to be voted for no later than ninety (90) days before the general election.

(b) Certified lists of nomination shall be filed within the time provided in § 7-7-203.

History. Acts 1969, No. 465, Art. 1, § 21; 1975, No. 601, § 4; A.S.A. 1947, § 3-121; Acts 1999, No. 656, § 1; 2019, No. 649, § 4.

7-7-403. [Repealed.]

Publisher's Notes. This section, concerning declination of nomination, was repealed by Acts 2007, No. 1049, § 28. The section was derived from Acts 1969, No. 465, Art. 1, § 22; A.S.A. 1947, § 3-122.

SUBCHAPTER 5 — COUNTIES USING VOTING MACHINES

SECTION.

7-7-501 — 7-7-504. [Repealed.]

7-7-501 — 7-7-504. [Repealed.]

Publisher's Notes. These sections, concerning counties using voting machines, were repealed by Acts 1995, No. 901, § 17. The sections were derived from:

7-7-501. Acts 1973, No. 157, § 5; A.S.A. 1947, § 3-127.

7-7-502. Acts 1973, No. 157, § 1; A.S.A. 1947, § 3-123.

7-7-503. Acts 1973, No. 157, § 2; A.S.A. 1947, § 3-124.

7-7-504. Acts 1973, No. 157, § 3; A.S.A. 1947, § 3-125; Acts 1995, No. 946, § 13, 1995, No. 963, § 13.

CHAPTER 8

FEDERAL ELECTIONS

SUBCHAPTER.

1. GENERAL PROVISIONS.
2. SELECTION OF DELEGATES FOR NATIONAL CONVENTION.
3. PRESIDENTIAL ELECTORS.
4. SPECIAL RESIDENCY AND AGE REQUIREMENTS. [REPEALED].

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 7-8-101. Primaries — General law governs.
7-8-102. Filling Senate vacancies.
7-8-103. Credentials of Senate appointee.

SECTION.

- 7-8-104. Filling vacancies in the House of Representatives.

7-8-101. Primaries — General law governs.

All primaries, preferential and general, for the selection of nominees for federal offices, including those of the United States Senators and United States Representatives, shall be held on the same date and in the same manner as the preferential and general primaries for state, district, county, and township offices and shall be governed by the same procedure prescribed by this act.

History. Acts 1969, No. 465, Art. 3, § 1; A.S.A. 1947, § 3-301; Acts 2007, No. 987, § 3; 2009, No. 26, § 3; 2009, No. 375, § 4.

7-8-102. Filling Senate vacancies.

(a) Vacancies in the office of United States Senator shall be filled by appointment by the Governor.

(b)(1) The appointee under subsection (a) of this section shall serve during the entire unexpired Senate term if the office would in regular course be filled at the next general election if no vacancy had occurred.

(2)(A) If the office would not in regular course be filled at the next general election, the remaining portion of the vacated term shall be filled as follows:

(i) At the next general election if the vacancy occurs four (4) months or more before the next general election; or

(ii) At the second general election after the vacancy occurs if the vacancy occurs less than four (4) months before the next general election.

(B) The person so elected shall:

(i) Take office on the first day of January following his or her election; and

(ii) Serve the remaining portion of the vacated term.

History. Acts 1969, No. 465, Art. 3, § 2; A.S.A. 1947, § 3-302; Acts 2005, No. 2145, § 14; 2007, No. 1049, § 29; 2009, No. 1480, § 45; 2017, No. 310, § 2.

7-8-103. Credentials of Senate appointee.

When the Governor shall make a temporary appointment of a United States Senator by authority of this subchapter, he or she shall deliver to the senator a credential in the following form:

“..... who was chosen United States Senator of the State of Arkansas, in pursuance of the Constitution of the United States of America, having died (resigned, or otherwise, as the case may be):

Therefore, I,, Governor of the State of Arkansas, have appointed United States Senator to fill the said vacancy temporarily until the election of a United States Senator by the qualified electors of the state.

Given under my hand and the seal of the said state this day of, 20....

.....
Governor of the State
of Arkansas

Attest:

....., Secretary of State”.

History. Acts 1969, No. 465, Art. 3, § 3; A.S.A. 1947, § 3-303; Acts 2005, No. 67, § 22.

7-8-104. Filling vacancies in the House of Representatives.

When any vacancy shall happen in the office of a member of the United States House of Representatives from this state by death, resignation, removal, or otherwise, it shall be the duty of the Governor, by proclamation, to order the sheriffs of the several counties to order an election to be held on a certain day to be named in the proclamation to fill the vacancy. The election shall be conducted in the same manner, and returns thereof made, as prescribed in this title for general elections.

History. Acts 1969, No. 465, Art. 3, § 4; A.S.A. 1947, § 3-304; Acts 1987, No. 248, § 3.

SUBCHAPTER 2 — SELECTION OF DELEGATES FOR NATIONAL CONVENTION

SECTION.

7-8-201. Preferential elections required — Apportionment of delegates.

7-8-202, 7-8-203. [Repealed.]

SECTION.

7-8-204. Rules for selection of delegates and alternates.

7-8-205 — 7-8-211. [Repealed.]

Publisher's Notes. Former subchapter 2, as enacted by Acts 1985, No. 566, and which concerned the selection of delegates for national conventions, was repealed by Acts 1987, No. 123, § 16. That subchapter was derived from the following sources:

7-8-201. Acts 1985, No. 566, § 1; A.S.A. 1947, § 3-205.13.

7-8-202. Acts 1985, No. 566, § 2; A.S.A. 1947, § 3-205.14.

7-8-203. Acts 1985, No. 566, § 3; A.S.A. 1947, § 3-205.15.

7-8-204. Acts 1985, No. 566, § 4; A.S.A. 1947, § 3-205.16.

Former subchapter 2 as enacted by Acts 1987, No. 123 and which also concerned the selection of delegates for national conventions, was repealed by Acts 1989, No. 700, § 1. That subchapter was derived from the following sources:

7-8-201. Acts 1987, No. 123, § 1.

7-8-202. Acts 1987, No. 123, § 2.

7-8-203. Acts 1987, No. 123, § 3.

7-8-204. Acts 1987, No. 123, § 4; 1987 (1st Ex. Sess.), No. 28, § 1.

7-8-205. Acts 1987, No. 123, § 5; 1987 (1st Ex. Sess.), No. 28, § 2.

7-8-206. Acts 1987, No. 123, § 6; 1987 (1st Ex. Sess.), No. 28, § 3.

7-8-207. Acts 1987, No. 123, § 7; 1987 (1st Ex. Sess.), No. 28, § 4.

7-8-208. Acts 1987, No. 123, § 8.

7-8-209. Acts 1987, No. 123, § 9; 1987 (1st Ex. Sess.), No. 28, § 5.

7-8-210. Acts 1987, No. 123, § 10.

7-8-211. Acts 1987, No. 123, § 11.

7-8-201. Preferential elections required — Apportionment of delegates.

Each political party in the state desiring to select delegates to attend a quadrennial national nominating convention of the party to select a nominee for the office of President of the United States shall hold a preferential primary election in the state, and the delegates to the national party convention shall be apportioned to the presidential candidates whose names were on the

ballot at the preferential primary or to “uncommitted” in the proportion that the votes cast for each candidate or for “uncommitted” bear to the total votes cast at the election, rounded to the closest whole number.

History. Acts 1989, No. 700, § 2; 1997, No. 450, § 1; 2005, No. 501, § 1; 2007, No. 987, § 4; 2009, No. 26, § 4; 2009, No. 375, § 5.

7-8-202, 7-8-203. [Repealed.]

Publisher’s Notes. These sections, concerning the date of the primary and payment of election expenses, were repealed by Acts 1997, No. 450, §§ 2 and 3. They were derived from the following sources:
7-8-202. Acts 1989, No. 700, § 2.
7-8-203. Acts 1989, No. 700, § 2.

7-8-204. Rules for selection of delegates and alternates.

Each political party holding a preferential primary election in the state shall adopt appropriate rules for the selection of delegates and alternate delegates to the quadrennial national nominating convention of the party and to otherwise carry out the intent and purposes of this subchapter.

History. Acts 1989, No. 700, § 2; 1997, No. 450, § 4; 2005, No. 501, § 2; 2009, No. 26, § 5; 2009, No. 375, § 6.

7-8-205 — 7-8-211. [Repealed.]

Publisher’s Notes. As to repeal of former §§ 7-8-205 — 7-8-211, see Publisher’s Note to this subchapter.

SUBCHAPTER 3 — PRESIDENTIAL ELECTORS

SECTION.

- 7-8-301. Date of election.
- 7-8-302. Election and certification of electors — Ballots —
Contesting conventions — Vacancy.
- 7-8-303. Right of nominee to be candidate for other office.

SECTION.

- 7-8-304. Delivery and canvass of returns — Tie vote.
- 7-8-305. Publication of results — Certification of election.
- 7-8-306. Voting by electors — Expenses.
- 7-8-307. Vacancy — Appointment — Exception.

7-8-301. Date of election.

(a) There shall be elected by general ticket in the manner and with the effect provided in this subchapter, on the Tuesday next after the first Monday in November preceding the expiration of the term of office of each President of the United States, as many electors of President of the United States and Vice President of the United States as this state may be entitled to elect.

(b) If the United States Congress should hereafter fix a different day for the election, then the election for electors shall be held on the day as shall be named by act of the United States Congress.

(c) The election shall be conducted and returns thereof made as provided in § 7-8-302.

History. Acts 1969, No. 465, Art. 2, § 6; A.S.A. 1947, § 3-206.

7-8-302. Election and certification of electors — Ballots — Contesting conventions — Vacancy.

Choosing and election of electors of President of the United States and Vice President of the United States shall be in the following manner:

(1)(A) In each year in which a President of the United States and Vice President of the United States are chosen, each political party or group in the state shall choose by its state convention electors of President of the United States and Vice President of the United States. The state convention of the party or group shall also choose electors at large if any are to be appointed for the state.

(B) The state convention of the party or group, by its chair and secretary, shall certify to the Secretary of State the total list of electors together with electors at large so chosen. The certificate shall be filed no later than September 15 in the year of the election. The filing of the certificate with the Secretary of State shall be deemed and taken to be the choosing and selection of the electors of this state, if the party or group is successful at the polls, as provided in this subchapter, in choosing their candidates for President of the United States and Vice President of the United States.

(C) The certification by the respective political parties or groups in this state of electors of President of the United States and Vice President of the United States shall be made to the Secretary of State within two (2) days after the state convention;

(2)(A) Should more than one (1) certificate of choice and selection of electors of the same political party or group be filed by contesting conventions or contesting groups, it shall be the duty of the constitutional officers of this state within ten (10) days after the adjournment of the last of the conventions to meet in the office of the Governor and determine which set of nominees for electors of the party or group was chosen and selected by the authorized convention of the party or group.

(B) The Secretary of State shall notify the state officers of the date, time, and place of the meeting.

(C)(i) At the meeting, a majority of the officers present, after notice to the chair and secretaries or managers of the conventions or groups and after a hearing, shall determine which set of electors was chosen by the authorized convention and shall so announce and publish that fact.

(ii) The decision shall be final, and the set of electors determined by the state officers to be chosen shall be the list or set of electors to be deemed elected if that party is successful at the polls, as herein provided;

(3) Should a vacancy occur in the choice of an elector, the vacancy may be filled by the state executive committee of the party or group, to be certified by the committee to the Secretary of State;

(4)(A) The names of the candidates of the several political parties or groups for electors of President of the United States and Vice President of the United States shall not be printed on the official ballot to be voted on in the election to be held on the day provided in § 7-8-301. In lieu of the names of the candidates for electors, the name of the candidate for President of the United States and the name of the candidate for Vice President of the United States with the particular political party designation of each shall be printed on the ballot. Each voter in this state may choose and elect one (1) list or set of electors from the several lists or sets of electors chosen and selected by the respective political parties or groups, by placing an appropriate mark on the ballot.

(B) Placing a cross within the square before the bracket enclosing the names of President of the United States and Vice President of the United States shall not be deemed and taken as a direct vote for the candidates for President of the United States and Vice President of the United States, or either of them, but shall only be deemed and taken to be a vote for the entire list or set of electors chosen by the political party or group so certified to the Secretary of State as herein provided. Voting by means of placing a cross in the appropriate place following the names of the candidates for President of the United States and Vice President of the United States shall not be deemed or taken as a direct vote for the candidates for President of the United States and Vice President of the United States, or either of them, but instead, as to the presidential vote, as a vote for the entire list or set of electors chosen by that political party or group so certified to the Secretary of State as herein provided;

(5)(A)(i) In order to have the name of a political party's candidates for President of the United States and Vice President of the United States printed on the ballot, a political party shall hold a presidential preferential primary election.

(ii) A new political party formed under the petition process may nominate by convention if the presidential election is the first general election after certification as a party by the Secretary of State.

(B) A political group desiring to have the names of its candidates for President of the United States and Vice President of the United States printed on the ballot shall file a petition with the Secretary of State by noon on the first Monday of August of the year of the election. The petition shall contain at the time of filing the names of five thousand (5,000) qualified electors of the state declaring their desire to have printed on the ballot the names of their candidate for President of the United States and Vice President of the United States. The Secretary of State shall verify the sufficiency of the petition within ten (10) days from the filing of the petition. If the petition is determined to be insufficient, the Secretary of State shall notify in writing the political group through its designated agent and shall set forth his or her reasons for so finding.

(C) Any challenges to the certification of the Secretary of State shall be filed in the Pulaski County Circuit Court.

(D) No later than 12:00 noon on the seventy-fifth day before the election, a political group that qualifies by petition to place its candidate on the ballot shall submit a certificate of choice stating the names of its candidates for President of the United States and Vice President of the United States, signed under oath by either the chair, vice chair, or secretary of the political group's convention; and

(6)(A) Persons desiring to have their names printed on the ballot as independent candidates for President of the United States and Vice President of the United States shall file a petition with the Secretary of State by noon on the first Monday of August of the year of the election. The petition shall contain at the time of filing the names of five thousand (5,000) qualified electors of the state declaring their desire to have printed on the ballot the names of the persons desiring their names to be printed on the ballot as independent candidates for President of the United States and Vice President of the United States. The Secretary of State shall verify the sufficiency of the petition within ten (10) days from the filing of the petition. If the petition is determined to be insufficient, the Secretary of State shall notify in writing the persons desiring to have their names printed on the ballot as independent candidates for President of the United States and Vice President of the United States at the address or telephone number submitted with the petition and shall set forth his or her reasons for so finding.

(B) Any challenges to the certification of the Secretary of State shall be filed in the Pulaski County Circuit Court.

(C) By September 15 in the year of the election, independent candidates who qualify by petition to be on the ballot shall certify to the Secretary of State the total list of electors together with electors at large. The filing of the certificate with the Secretary of State shall be deemed and taken to be the choice and selection of the electors of this state, if the independent candidate is successful at the polls, as provided in this subchapter.

History. Acts 1969, No. 465, Art. 2, § 7; A.S.A. 1947, 2009, No. 26, § 6; 2009, No. 375, § 7; 2009, No. 959, §§ 42, § 3-207; Acts 1991, No. 242, § 1; 1997, No. 450, § 5; 2001, 43; 2011, No. 1185, § 12; 2021, No. 273, §§ 1, 2. No. 473, § 1; 2005, No. 501, § 3; 2007, No. 822, §§ 1, 2;

7-8-303. Right of nominee to be candidate for other office.

(a) The appearance on the general election ballot of the name of a party nominee for the office of President of the United States or Vice President of the United States in lieu of the names of the candidates for electors for the offices shall not limit or restrict the party nominee so named from being a candidate in his or her own right for any office to be filled at the general election.

(b) A person may be a candidate for President of the United States or Vice President of the United States and for the United States Senate or United States House of Representatives in the same primary and general election.

History. Acts 1972 (1st Ex. Sess.), No. 38, § 1; A.S.A. 1947, § 3-207.1; Acts 2015, No. 742, § 1.

7-8-304. Delivery and canvass of returns — Tie vote.

(a) The county clerks of the several counties shall make, within eight (8) days next after holding the election as provided in § 7-8-302, three (3) copies of the abstract of the votes cast for electors by each political party or group as indicated by the voter as provided in § 7-8-302 by a cross in the square to the right of the bracket as specified in § 7-8-302 and transmit by mail one (1) of the copies to the Governor, transmit another to the office of the Secretary of State, and retain the third in his or her office to be sent for by the Governor in case both the others should be mislaid.

(b) Within twenty (20) days after the holding of the election, and sooner if all the returns are received by either the Governor or by the Secretary of State, the constitutional officers of this state, or any two (2) of them, shall proceed, in the presence of the Governor, to open and canvass the election returns and to declare which set of candidates for President of the United States and Vice President of the United States received the highest number of votes so cast, and the candidates' party's electors shall be taken and deemed to be elected as electors of President and Vice President.

(c) Should two (2) or more sets of candidates for President and Vice President be returned with an equal and the highest vote, the Secretary of State shall cause a notice to be published, which notice shall name some day and place not less than five (5) days from the time of the publication of the notice upon which the constitutional officers of this state will decide by lot which of the sets of candidates for President and Vice President so equal and highest shall be declared to be highest. Upon the day and at the place so appointed in the notice, the constitutional officers shall so decide by lot and declare which is deemed highest of the sets of candidates for President and Vice President so equal and highest, thereby determining only that the electors chosen as provided in this subchapter by the candidates' party or group are thereby elected by general ticket to be the electors.

History. Acts 1969, No. 465, Art. 2, § 8; A.S.A. 1947, § 3-208.

7-8-305. Publication of results — Certification of election.

Within five (5) days after the votes shall have been canvassed and the results declared or the result declared by lot as provided in § 7-8-304, the Governor shall:

- (1) Cause the result of the election to be published;
- (2) Proclaim the persons composing the list so elected to be the electors of President of the United States and Vice President of the United States by mailing the electors a triplicate certificate of their appointment under the Seal of the State of Arkansas; and
- (3) Transmit under the Seal of the State of Arkansas to the United States Secretary of State the certificate of the election of the electors as required by the laws of the United States Congress.

History. Acts 1969, No. 465, Art. 2, § 9; A.S.A. 1947, § 3-209; Acts 2013, No. 1126, § 15.

7-8-306. Voting by electors — Expenses.

(a) The electors, elected as provided in this subchapter, shall meet at the office of the Secretary of State, in a room to be designated by him or her in the State Capitol Building, at the time appointed by the laws of the United States at the hour of 10:00 a.m. of that day, and give their votes for President of the United States and for Vice President of the United States, in the manner provided in this subchapter, and perform such duties as are or may be required by law.

(b)(1)(A) Each elector shall serve without pay, but he or she is eligible for reimbursement by the Secretary of State for reasonable and necessary expenses to attend a meeting under subsection (a) of this section.

(B) An elector who is reimbursed for expenses under subdivision (b)(1)(A) of this section shall be reimbursed at the same rate prescribed for a state employee.

(2) Any person appointed by the electors assembled to fill a vacancy shall also receive the compensation provided for electors appointed.

History. Acts 1969, No. 465, Art. 2, § 10; A.S.A. 1947, § 3-210; Acts 2017, No. 578, § 1.

7-8-307. Vacancy — Appointment — Exception.

In case any person duly elected an elector of President of the United States and Vice President of the United States shall fail to attend at the United States Capitol on the day on which his or her vote is required to be given, it shall be the duty of the electors of President and Vice President attending at the time and place to appoint persons to fill the vacancies. Should the person or persons chosen pursuant to this subchapter arrive at the place aforesaid before the votes for President and Vice President are actually given, the person or persons appointed to fill the vacancy shall not act as an elector of President and Vice President.

History. Acts 1969, No. 465, Art. 2, § 11; A.S.A. 1947, § 3-211.

SUBCHAPTER 4 — SPECIAL RESIDENCY AND AGE REQUIREMENTS

SECTION.

7-8-401 — 7-8-405. [Repealed.]

7-8-401 — 7-8-405. [Repealed.]

Publisher's Notes. This subchapter was repealed by identical Acts 1995, Nos. 928 and 936, § 1. The sections were derived from the following sources:

7-8-401. Acts 1971, No. 37, § 1; A.S.A. 1947, § 3-212.

7-8-402. Acts 1971, No. 37, § 2; A.S.A. 1947, § 3-213.

7-8-403. Acts 1971, No. 37, § 4; A.S.A. 1947, § 3-215.

7-8-404. Acts 1971, No. 37, § 3; A.S.A. 1947, § 3-214.

7-8-405. Acts 1971, No. 37, § 5; A.S.A. 1947, § 3-216.

CHAPTER 9

INITIATIVES, REFERENDA, AND CONSTITUTIONAL AMENDMENTS

SUBCHAPTER.

1. PETITION AND ELECTION PROCEDURE.
2. LEGISLATIVE PROPOSAL OF CONSTITUTIONAL AMENDMENTS.
3. CONSTITUTIONAL CONVENTIONS.
4. DISCLOSURE FOR MATTERS REFERRED TO VOTERS.
5. REVIEW OF INITIATIVE PETITIONS. [REPEALED.].
6. PAID CANVASSERS.
7. CONVENTION CALLED UNDER ARTICLE V OF THE UNITED STATES CONSTITUTION.

SUBCHAPTER 1 — PETITION AND ELECTION PROCEDURE

SECTION.

- 7-9-101. Definitions.
- 7-9-102. Duties of election officers — Penalty for failure to perform.
- 7-9-103. Signing of petition — Penalty for falsification — Notice of suspected forgery.
- 7-9-104. Form of initiative petition — Sufficiency of signatures.
- 7-9-105. Form of referendum petition — Sufficiency of signatures.
- 7-9-106. Required attachments to petitions.
- 7-9-107. Filing of original draft before circulation.
- 7-9-108. Procedure for circulation of petition.
- 7-9-109. Form of verification — Penalty for false statement.
- 7-9-110. Designation of number and popular name.
- 7-9-111. Determination of sufficiency of petition — Corrections.
- 7-9-112. Right of review.
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- 7-9-114. Abstract of proposed measure.

SECTION.

- 7-9-115. Furnishing ballot title and popular name to election commissioners.
- 7-9-116. Captions and designations of numbered issues.
- 7-9-117. Ballot form.
- 7-9-118. Failure to place proposal on ballot — Manner of voting.
- 7-9-119. Counting, canvass, and return of votes — Proclamation of result — Effective date.
- 7-9-120. Printing of approved measures with general laws — Certification of city ordinances.
- 7-9-121. Contest of returns and certification.
- 7-9-122. Adoption of conflicting measures.
- 7-9-123. Preservation of records.
- 7-9-124. Voter registration signature imaging system — Creation of fund.
- 7-9-125. Definition — Prohibition of profit — Penalties — Freedom of information.
- 7-9-126. Count of signatures.
- 7-9-127. Interference with initiative petitions and proposed measures.
- 7-9-128. Fiscal impact statement.

7-9-101. Definitions.

As used in this subchapter:

- (1) “Act” means an act having general application throughout the state, whether originating in the General Assembly or proposed by the people;
- (2) “Amendment” means an amendment to the Arkansas Constitution that is proposed by the people;
- (3) “Canvasser” means a person who circulates an initiative or referendum petition or a part or parts of an initiative or referendum petition to obtain the signatures of petitioners thereto;
- (4) “Election” means a regular general election at which state and county officers are elected for regular terms;
- (5) “Local” means a county or municipality;
- (6) “Measure” means an amendment, an act, or an ordinance;
- (7) “Ordinance” means an ordinance of a municipality or county, whether originating in the legislative body of the municipality or county or proposed by the people;
- (8) “Petition part” means a petition signature sheet containing the information required under § 7-9-104 or § 7-9-105;
- (9) “Petitioner” means a person who signs an initiative or referendum petition ordering a vote on a measure;
- (10) “Registered voter” means a person who is registered at the time of signing the petition pursuant to Arkansas Constitution, Amendment 51; and

(11) “Sponsor” means a person who arranges for the circulation of an initiative or referendum petition or who files an initiative or referendum petition with the official charged with verifying the signatures.

History. Acts 1943, No. 195, § 1; A.S.A. 1947, § 2-201; Acts 1997, No. 646, § 1; 2013, No. 1413, § 2; 2025, No. 768, § 1.

7-9-102. Duties of election officers — Penalty for failure to perform.

(a)(1) The duties imposed by this act upon members of the State Board of Election Commissioners and county boards of election commissioners, election officials, and all other officers expressly named in this act are declared to be mandatory.

(2) These duties shall be performed in good faith within the time and in the manner provided.

(b)(1) If any member of any board, any election official, or any other officer so charged with the duty shall knowingly and willfully fail or refuse to perform his or her duty or shall knowingly and willfully commit a fraud in evading the performance of his or her duty, then he or she shall be guilty of a violation.

(2) Upon conviction, he or she shall be fined any sum not less than one hundred dollars (\$100) nor more than one thousand dollars (\$1,000) and also shall be removed from office.

History. Acts 1943, No. 195, § 12; A.S.A. 1947, § 2-223; Acts 1997, No. 646, § 2; 2005, No. 1994, § 74.

7-9-103. Signing of petition — Penalty for falsification — Notice of suspected forgery.

(a)(1)(A) After reading the ballot title of the petition in the presence of the canvasser or having the ballot title of the petition read aloud to him or her in the presence of the canvasser, a person who is a registered voter of this state may sign his or her own name and print his or her own name, address, birth date, and the date of signing on an initiative or referendum petition in his or her own proper handwriting, and not otherwise, to order an initiative or referendum vote upon a proposed amendment or a proposed or referred act.

(B) If a person signing a petition under subdivision (a)(1)(A) of this section requires assistance due to disability, another person:

- (i) May print the name, address, birth date, and the date of signing; and
- (ii) Shall sign and print his or her name in the margin of the petition.

(2)(A) A person who is a registered voter of a municipality or county of this state may sign his or her own name and print his or her own name, address, birth date, and the date of signing on an initiative or referendum petition in his or her own proper handwriting, and not otherwise, to order an initiative or referendum vote upon a proposed or referred ordinance.

(B) If a person signing a petition under subdivision (a)(2)(A) of this section requires assistance due to disability, another person:

- (i) May print the name, address, birth date, and the date of signing; and
- (ii) Shall sign and print his or her name in the margin of the petition.

(3) A person who is under eighteen (18) years of age shall not act as a canvasser.

(4) A person shall not act as a paid canvasser on a statewide initiative petition, statewide referendum petition, local initiative petition, or local referendum petition if the sponsor has not provided the information required under § 7-9-601 before the person solicits signatures on a petition to the:

(A) Secretary of State for a statewide initiative petition or statewide referendum petition; and

(B) County clerk for a local initiative petition or local referendum petition.

(5) A person shall not act as a canvasser unless he or she is a citizen of the United States.

(6) A person shall not act as a canvasser unless he or she is a resident of this state.

(7) A person acting as a canvasser shall not obtain a signature for a petition without disclosing to the potential petitioner that petition fraud is a criminal offense before the potential petitioner signs the petition in the custody of the canvasser by:

(A) Verbal notification; or

(B) If verbal notification is impossible, written notification with a document that is provided separately from all other petition materials.

(8) A person shall not act as a paid canvasser unless he or she is:

(A) A resident of this state; and

(B) Domiciled in the state if acting as a paid canvasser for a statewide initiative petition or statewide referendum petition.

(b) A person commits a Class A misdemeanor if the person knowingly:

(1) Signs a name other than his or her own name to a petition;

(2) Signs his or her name more than one (1) time to a petition;

(3) Signs a petition when he or she is not legally entitled to sign the petition;

(4) Prints a name, address, or birth date other than his or her own on a petition unless the signer requires assistance due to disability and the person complies with this section; or

(5) Prints the date of signing for another person unless the signer requires assistance due to disability and the person complies with this section.

(c) A person commits a Class A misdemeanor if the person, acting as a canvasser, notary, sponsor, or agent of a sponsor:

(1) Signs a name other than his or her own to a petition;

(2) Prints a name, address, or birth date other than his or her own on a petition unless the signer requires assistance due to disability and the person complies with this section;

(3) Solicits or obtains a signature to a petition knowing that the person signing is not qualified to sign the petition;

(4) Knowingly pays a person any form of compensation in exchange for signing a petition as a petitioner;

(5) Accepts or pays money or anything of value for obtaining signatures on a petition when the person acting as a canvasser, sponsor, or agent of a sponsor knows that the person acting as canvasser's name or address is not included on the sponsor's list filed with the Secretary of State or the county clerk under § 7-9-601;

(6) Knowingly misrepresents the purpose and effect of the petition or the measure affected for the purpose of causing a person to sign a petition;

(7) As a canvasser, knowingly makes a false statement on a petition verification form;

(8) As a notary, fails to witness a canvasser's affidavit by witnessing the signing of the instrument in person and either personally knowing the signer or being presented with proof of identity of the signer;

(9) As a sponsor, files a petition part with the official charged with verifying the signatures knowing that the petition part contains one (1) or more false or fraudulent signatures unless each false or fraudulent signature is clearly stricken by the sponsor before filing;

(10) As a canvasser, fails to disclose to a potential petitioner that petition fraud is a criminal offense before the potential petitioner signs the petition in the custody of the canvasser as described under subdivision (a)(7) of this section; or

(11) As a canvasser, knowingly accepts a signature when the person signing the petition has not read the ballot title of the petition in the presence of the canvasser or the ballot title of the petition has not been read aloud to the person in the presence of the canvasser.

(d)(1) A person acting as a sponsor or an agent of a sponsor shall not knowingly hire a person as a paid canvasser who:

(A) Is not a resident of this state; and

(B) Is not domiciled in the state if acting as a paid canvasser for a statewide initiative petition or statewide referendum petition.

(2) A person who fails to comply with subdivision (d)(1) of this section is guilty of a violation and upon conviction shall be fined two thousand five hundred dollars (\$2,500) for each paid canvasser hired in violation of subdivision (d)(1) of this section.

(e) When the official charged with verifying the signatures has reasonable grounds to believe that one (1) or more signatures on a petition is forged, the official shall report the suspected forgery and basis for suspecting forgery to:

- (1) The Division of Arkansas State Police, in the case of a statewide petition; or
- (2) The prosecuting attorney of the county, in the case of a local petition.

(f) A signature on an initiative or referendum petition is not valid and shall not be counted for any purpose if the signature was obtained after the date of the next general election following the certification of the ballot title and popular name under § 7-9-107.

(g)(1) The Secretary of State shall not count signatures collected and witnessed by a canvasser for a statewide initiative petition or statewide referendum petition and the county clerk shall not count signatures collected and witnessed by a canvasser for a local initiative petition or local referendum petition if the Secretary of State or the county clerk finds by a preponderance of the evidence that the canvasser has violated Arkansas laws regarding canvassing, perjury, forgery, or fraudulent practices in the procurement of petition signatures or any provision of the Arkansas Constitution applicable to the collection of signatures on an initiative petition or referendum petition during the current election cycle.

(2) This subsection shall not constrain the duties and authority of the Secretary of State or the county clerk as set forth in Arkansas law.

History. Acts 1913, No. 135, § 3; C. & M. Dig., § 7505; 1219, § 1; 2019, No. 376, §§ 3, 4; 2021, No. 951, § 1; 2025, Pope's Dig., § 9564; Acts 1943, No. 195, § 2; A.S.A. 1947, No. 153, § 1; 2025, No. 218, §§ 1, 2; 2025, No. 273, § 1; §§ 2-202, 2-401; Acts 1991, No. 719, § 1; 1997, No. 646, 2025, No. 274, §§ 2, 3; 2025, No. 453, §§ 1, 2; 2025, No. § 3; 2013, No. 1413, § 3; 2013, No. 1432, § 10; 2015, No. 768, §§ 2-4.

7-9-104. Form of initiative petition — Sufficiency of signatures.

(a) The petition for an ordinance, act, or amendment proposed by initiative shall be on substantially the following form:

“INITIATIVE PETITION

To the Honorable _____

Secretary of State of the State of Arkansas, or County Clerk, or City Clerk

We, the undersigned registered voters of the State of Arkansas, or _____ County, Arkansas, or City of _____, or Incorporated Town of _____, Arkansas (as the case may be), respectfully propose the following amendment to the Constitution of the State or act or ordinance (as the case may be), and by this, our petition, order that the same be submitted to the people of said state, or county, or municipality (as the case may be), to the end that the same may be adopted, enacted, or rejected by the vote of the registered voters of said (state, county, or municipality) at the regular general election to be held on the ____ day of ____, 20____, and each of us for himself or herself says:

I have personally signed this petition; I am a registered voter of the State of Arkansas, or _____ County, Arkansas, or City of _____, or Incorporated Town of _____, Arkansas (as the case may be), and my printed name, date of birth, residence, city or town of residence, and date of signing this petition are correctly written after my signature.

(Here insert popular name and ballot title of initiated measure.)

(In the case of a proposed initiated act or ordinance, insert the following:

BE IT ENACTED BY THE PEOPLE OF THE STATE OF ARKANSAS, OR _____ COUNTY, ARKANSAS, OR CITY OF _____ OR INCORPORATED TOWN OF _____, ARKANSAS (as the case may be)):

(Here insert full text of initiated measure.)”

(b) No additional sheets of voter signatures shall be attached to any petition unless the sheets contain the full language of the petition.

(c)(1) The signature section of the petition shall be formatted and shall contain the number of signature lines prescribed by the Secretary of State.

(2) Before the circulation of a statewide petition for signatures, the sponsor shall file a printed petition part with the Secretary of State in the exact form that will be used for obtaining signatures.

History. Acts 1911 (1st Ex. Sess.), No. 2, § 4; C. & M. § 4; 2001, No. 789, § 1; 2005, No. 67, § 23; 2013, No. 1413, Dig., § 9761; Pope's Dig., § 13285; A.S.A. 1947, § 2-203; §§ 4, 5; 2019, No. 376, § 5. Acts 1989, No. 280, § 1; 1991, No. 42, § 1; 1997, No. 646,

7-9-105. Form of referendum petition — Sufficiency of signatures.

(a) The petition and order of referendum for an ordinance or act shall be on substantially the following form:

“REFERENDUM PETITION

To the Honorable _____
Secretary of State of the State of Arkansas, or County Clerk, or City Clerk

We, the undersigned registered voters of the State of Arkansas, or _____ County, Arkansas, or City or Incorporated Town of _____, Arkansas, (as the case may be) respectfully order by this, our petition, that Act No. ____ of the General Assembly of the State of Arkansas, approved on the ____ day of _____, 20____, entitled ‘An Act _____’ or Ordinance No. ____, passed by the county quorum court, the city (or town) council of the City (or Incorporated Town), or County of _____, Arkansas, on the ____ day of _____, 20____, entitled, ‘An Ordinance _____,’ be referred to the people of said state, county, or municipality (as the case may be), to the end that the same may be approved or rejected by the vote of the registered voters of the state, or of said county or municipality (as the case may be) at the biennial (or annual, as the case may be, if a city ordinance) regular general election (or at a special election, as the case may be) to be held on the ____ day of _____, 20____; and each of us for himself or herself says:

I have personally signed this petition; I am a registered voter of the State of Arkansas, or _____ County, Arkansas, or City of _____, or Incorporated Town of _____, Arkansas (as the case may be), and my printed name, date of birth, residence, city or town of residence, and date of signing this petition are correctly written after my signature.

(Here insert popular name and ballot title of referred measure.)

REFERRED TO THE PEOPLE OF THE STATE OF ARKANSAS, OR _____ COUNTY, ARKANSAS, OR CITY OF _____ OR INCORPORATED TOWN OF _____, ARKANSAS (as the case may be):

(Here insert full text of referred measure.)”.

(b) The information provided by the person on the petition may be used as evidence of the validity or invalidity of the signature. However, if a signature of a registered voter on the petition is sufficient to verify the voter's name, then it shall not be adjudged invalid for failure to sign the name or write the residence and city or town of residence exactly as it appears on voter registration records, for failure to print the name in the space provided, for failure to provide the correct date of birth, nor for failure to provide the correct date of signing the petition, all of that information being an aid to verification rather than a mandatory requirement to perfect the validity of the signature.

(c) No additional sheets of voter signatures shall be attached to any petition unless the sheets contain the full language of the petition.

(d)(1) The signature section of the petition shall be formatted and shall contain the number of signature lines as prescribed by the Secretary of State.

(2) Before the circulation of a statewide petition for signatures, the sponsor shall file a printed petition part with the Secretary of State in the exact form that will be used for obtaining signatures.

History. Acts 1911 (1st Ex. Sess.), No. 2, § 2; C. & M. § 5; 2001, No. 790, § 1; 2005, No. 67, § 24; 2013, No. 1413, Dig., § 9766; Pope's Dig., § 13287; A.S.A. 1947, § 2-204; §§ 6, 7.
Acts 1989, No. 280, § 2; 1991, No. 42, § 2; 1997, No. 646,

7-9-106. Required attachments to petitions.

(a) To every petition for the initiative shall be attached a full and correct copy of the title and the measure proposed.

(b) To every petition for the referendum shall be attached a full and correct copy of the measure on which the referendum is ordered.

History. Acts 1911 (1st Ex. Sess.), No. 2, § 7; C. & M. Dig., § 9768; Pope's Dig., § 13288; A.S.A. 1947, § 2-205.

7-9-107. Filing of original draft before circulation.

(a) Before any statewide initiative petition, statewide referendum petition, local initiative petition, or local referendum petition ordering a vote upon any amendment or act shall be circulated for obtaining signatures of petitioners, the sponsors shall submit the original draft with the:

- (1) Attorney General for statewide initiative petitions and referendum petitions; and
- (2) The county clerk where the petition is being circulated for local initiative petitions and referendum petitions in accordance with § 14-14-917.

(b) The original draft shall include:

- (1) The full text of the proposed measure;
- (2) A ballot title for the proposed measure; and
- (3) A popular name for the proposed measure.

(c) The Attorney General or the county clerk shall return to the sponsor a file-marked copy of the original draft that shall serve as evidence that the original draft was filed in compliance with this section.

(d)(1) Within ten (10) business days, the Attorney General or the county clerk with the assistance of the county civil attorney shall approve and certify or shall substitute and certify a more suitable and correct ballot title and popular name for each amendment or act.

(2) The ballot title so submitted or supplied by the Attorney General or the county clerk shall briefly and concisely state the purpose of the proposed measure.

(e)(1) After a proposed measure has been certified by the Attorney General, within five (5) business days of soliciting or otherwise gathering signatures for a proposed measure, the sponsor shall provide the following information to the Secretary of State:

- (A) The full text of the proposed measure;
- (B) The certified ballot title for the proposed measure;
- (C) The certified popular name for the proposed measure; and
- (D) The letter from the Attorney General certifying the proposed measure.

(2)(A) The Secretary of State shall post the information provided under subdivisions (e)(1)(A)-(C) of this section on the Secretary of State's website within five (5) days of receiving the information from the sponsor.

(B) Except as provided in subdivision (e)(2)(C) of this section, the information provided under subdivisions (e)(1)(A)-(C) of this section shall remain on the Secretary of State's website until the day following the next general election.

(C) The Secretary of State may remove the information provided under subdivisions (e)(1)(A)-(C) of this section from the Secretary of State's website if:

- (i) The proposed measure fails to qualify for the ballot for lack of signatures;
- (ii) The sponsor of the proposed measure is not actively obtaining signatures for the proposed measure and requests that the Secretary of State remove the information from the Secretary of State's website;
- (iii) The proposed measure has been removed from the ballot by:
 - (a) The Supreme Court; or

(b) An Arkansas circuit court and the time for filing the notice of appeal has expired; or

(iv) The Secretary of State independently determines that the language submitted by the sponsor does not accurately reflect a proposed measure certified by the Attorney General or that is actively being circulated for signatures to the people of Arkansas.

(f) If, as a result of his or her review of the ballot title and popular name of a proposed initiated act, proposed amendment to the Arkansas Constitution, or a local ordinance or resolution, the Attorney General or the county clerk determines that the ballot title or the nature of the issue, is presented in such manner that the ballot title would be misleading or designed in such manner that a vote “FOR” the issue would be a vote against the matter or viewpoint that the voter believes himself or herself casting a vote for, or, conversely, that a vote “AGAINST” the issue would be a vote for a viewpoint that the voter is against, or that the text of the proposal conflicts with the United States Constitution or a federal statute, the Attorney General or the county clerk with the assistance of the county civil attorney may reject the entire ballot title, popular name, and petition and state his or her reasons therefor and instruct the petitioners to redesign the proposed measure and the ballot title and popular name in a manner that would not be misleading or in conflict with the United States Constitution or a federal statute.

(g) If the Secretary of State independently determines that a proposed measure is actively being circulated for signatures to the people of Arkansas and the sponsor has not submitted the information required under subdivision (e)(1) of this section to the Secretary of State, the Secretary of State may obtain the information from the Attorney General and post the information required under subdivisions (e)(1)(A)-(C) of this section on the Secretary of State’s website.

(h) If the sponsor of a proposed measure fails to comply with this section, that failure shall not contribute in any way to a determination by the Secretary of State that the proposed measure, or any individual signature submitted to the Secretary of State in connection with the proposed measure, is insufficient for any reason.

(i) If the Attorney General refuses to act or if the sponsors feel aggrieved at the Attorney General’s acts in such premises, the sponsors may, by petition, apply to the Supreme Court for proper relief.

(j) The certification of a ballot title and popular name under this section shall expire on the date of the next general election after the certification of the ballot title and popular name.

(k)(1) A sponsor shall not submit multiple initiative petitions or referendum petitions that are conflicting measures under this section for review, except as follows:

(A) If an initiative petition or referendum petition is certified under this section, a sponsor may submit an initiative petition or referendum petition that is a conflicting measure with the certified initiative petition or certified referendum petition after the date of the next general election following the certification; or

(B) If an initiative petition or referendum petition is rejected under this section, a sponsor may submit an initiative petition or referendum petition that is a conflicting measure with the rejected initiative petition or referendum petition.

(2)(A) The Attorney General shall reject all statewide initiative petitions and statewide referendum petitions that are submitted by a sponsor in violation of this subsection.

(B) The county clerk shall reject all local initiative petitions and local referendum petitions that are submitted by a sponsor in violation of this subsection in accordance with § 14-14-917.

(3) As used in this subsection, “conflicting measures” means two (2) or more initiative petitions or referendum petitions that:

(A) Cover the same subject matter;

(B) Are for the same general purpose; and

(C) Contain different language in any part of their full texts, ballot titles, or popular names.

(l)(1) The Attorney General shall not certify a proposed ballot title with a reading level above eighth grade as determined by the Flesch-Kincaid Grade Level formula as it existed on January 1, 2025.

(2) If the Attorney General rejects a proposed ballot title under subdivision (1)(1) of this section, the Attorney General shall state the reasons for rejection and instruct the petitioners to redesign the proposed ballot title or proposed measure in a manner that does not violate this subsection.

History. Acts 1943, No. 195, § 4; 1977, No. 208, § 1; No. 194, § 2; 2025, No. 153, § 2; 2025, No. 154, §§ 1, 2; A.S.A. 1947, § 2-208; Acts 1989, No. 280, § 3; 1989, No. 2025, No. 272, § 1; 2025, No. 602, § 2; 2025, No. 768, § 5. 912, § 6; 2013, No. 1413, §§ 8, 9; 2019, No. 376, § 6; 2023,

7-9-108. Procedure for circulation of petition.

(a) Each initiative or referendum petition ordering a vote upon a measure having general application throughout the state shall be prepared and circulated in fifteen (15) or more parts or counterparts, and each shall be an exact copy or counterpart of all other such parts upon which signatures of petitioners are to be solicited. When a sufficient number of parts are signed by a requisite number of qualified electors and are filed and duly certified by the Secretary of State, they shall be treated and considered as one (1) petition.

(b) Each part of a petition shall have attached thereto the affidavit of the canvasser to the effect that the canvasser's current residence address appearing on the verification is correct, that all signatures appearing on the petition part were made in the presence of the affiant, and that to the best of the affiant's knowledge and belief each signature is genuine and each person signing is a registered voter.

(c) Preceding every petition, there shall be set out in boldface type, over the signature of the Attorney General, any instructions to canvassers and signers as may appear proper and beneficial informing them of the privileges granted by the Arkansas Constitution and of the penalties imposed for violations of this act. The instructions on penalties shall be in larger type than the other instructions.

(d) No part of any initiative or referendum petition shall contain signatures of petitioners from more than one (1) county.

History. Acts 1943, No. 195, § 3; A.S.A. 1947, § 2-206; Acts 1991, No. 719, § 2; 2013, No. 1413, § 10.

7-9-109. Form of verification — Penalty for false statement.

(a) Each petition containing signatures shall be verified in substantially the following form by the canvasser's affidavit thereon as a part thereof:

"State of Arkansas

County of _____

I, (print name of canvasser), being duly sworn, state that each of the foregoing persons signed his or her own name to this sheet of the petition in my presence. To the best of my knowledge and belief, each signature is genuine and each signer is a registered voter of the State of Arkansas, _____ County, or City or Incorporated Town of _____. At all times during the circulation of this signature sheet, an exact copy of the popular name, ballot title, and text was attached to the signature sheet, and each signer read the ballot title of the petition or had the ballot title of the petition read to the signer in my presence. My current residence address is correctly stated below.

Signature _____

Current residence _____

Indicate one: ____ Paid Canvasser ____ Volunteer/Unpaid Canvasser

Subscribed and sworn to before me this ____ day of _____, 20 ____

Signature _____

Clerk, Notary, Judge, or J.P.

Seal _____".

(b) Forms herein given are not mandatory, and if substantially followed in any petition it shall be sufficient, disregarding clerical and merely technical errors.

(c)(1) Petitions shall not be disqualified due to clerical or technical errors made by a clerk, notary, judge, or justice of the peace when verifying the canvasser's signature.

(2) Petitions shall not be disqualified for failure of a clerk, notary, judge, or justice of the peace to sign exactly as his or her name appears on his or her seal if the signature of a clerk, notary, judge, or justice of the peace is sufficient to verify his or her name.

(d) A canvasser who knowingly makes a false statement on a petition verification form required by this section shall be deemed guilty of a Class D felony.

(e) A canvasser who witnesses signatures on a petition part but knowingly allows another canvasser who did not witness all signatures on a petition part to execute a false verification affidavit with respect to that petition part commits a Class D felony.

(f) A sponsor, sponsor's agent, or representative commits a Class D felony if a sponsor, sponsor's agent, or representative:

(1) Knowingly pays a canvasser for petitioner signatures on a petition part not personally witnessed by that paid canvasser; or

(2) Knowingly submits to the Secretary of State a petition part where the verifying canvasser has not witnessed each signature on that petition part.

(g)(1) A canvasser who witnesses signatures on a petition part shall view a copy of a potential petitioner's photo identification to verify the identity of the potential petitioner before obtaining the signature.

(2) If a canvasser cannot verify the identity of the potential petitioner, the canvasser shall not obtain a signature from the potential petitioner.

(3) A canvasser who submits a canvasser affidavit under subsection (a) of this section swearing that to the best of the affiant's knowledge and belief each signature is genuine, and that the person signing is a legal voter, but does not comply with the requirements under subdivision (g)(1) of this section, makes a false statement on a petition verification form.

(4) As used in this subsection, "photo identification" means a document or identification card permitted under § 7-1-101(40).

History. Acts 1911 (1st Ex. Sess.), No. 2, § 8; C. & M. § 1; 1997, No. 646, § 6; 2005, No. 1817, § 1; 2013, No. Dig., § 9769; Pope's Dig., § 13289; A.S.A. 1947, § 2-207; 1413, § 11; 2019, No. 376, § 7; 2021, No. 951, § 2; 2025, Acts 1989, No. 280, § 4; 1991, No. 42, § 3; 1991, No. 197, No. 240, § 1; 2025, No. 274, § 4.

7-9-110. Designation of number and popular name.

(a) The popular name of each state measure shall be the popular name provided by the sponsor under § 7-9-107, and the number of the measure on the ballot shall be designated as provided in § 7-9-116.

(b) In all legal notices and publications affecting a measure, the measure shall be identified by both the designated number and popular name.

History. Acts 1933, No. 71, §§ 1, 2; Pope's Dig., §§ 1772, 2009, No. 281, § 1; 2013, No. 1413, § 12; 2019, No. 376, 1773; A.S.A. 1947, §§ 2-209, 2-214; Acts 1993, No. 512, § 9; § 8.

7-9-111. Determination of sufficiency of petition — Corrections.

(a) The Secretary of State shall ascertain and declare the sufficiency or insufficiency of the signatures submitted on each statewide initiative petition and each statewide referendum petition within thirty (30) days after it is filed.

(b) The Secretary of State may contract with the various county clerks for their assistance in verifying the signatures on petitions. The county clerk shall return the petitions to the Secretary of State within ten (10) days.

(c) If the statewide initiative petition or statewide referendum petition is found to be sufficient, the Secretary of State shall certify and record the finding and perform such other duties relating thereto as are required by law.

(d)(1) If the signatures submitted on a statewide initiative petition or statewide referendum petition are found to be insufficient, the Secretary of State shall forthwith notify the sponsors in writing, through their designated agent, and shall set forth his or her reasons for so finding.

When the notice is delivered, the sponsors shall have thirty (30) days in which to do any or all of the following:

(A) Solicit and obtain additional signatures; or

(B) Submit proof to show that the rejected signatures or some of them are good and should be counted.

(2) Any amendments and corrections shall not materially change the purpose and effect of the statewide initiative petition or statewide referendum petition. No change shall be made in the measure.

(3) The Secretary of State shall ascertain and declare the sufficiency or insufficiency of additional signatures submitted by the sponsors under this subsection within thirty (30) days of the filing of the supplemental petitions.

(e)(1) To assist the Secretary of State in ascertaining the sufficiency or insufficiency of each statewide initiative petition and each statewide referendum petition, all county clerks shall furnish at cost to the Secretary of State a single alphabetical list of all registered voters in their respective counties. The list shall be provided at least four (4) months before the election, and an updated list shall be provided at cost by September 1 in the year of the election. The list shall include the date of birth of each registered voter.

(2) The State Board of Election Commissioners, upon the request of the county clerk, may grant a waiver from this subsection if the board determines that the county clerk is unable to provide the list within the time required.

(f)(1) A person filing statewide initiative petitions or statewide referendum petitions with the Secretary of State shall bundle the petitions by county and shall file an affidavit stating the number of petitions and the total number of signatures being filed.

(2) If signatures were obtained by paid canvassers, the person filing the petitions under this subsection shall also submit the following:

(A) A statement identifying the paid canvassers by name; and

(B) A statement signed by the sponsor indicating that the sponsor:

(i) Provided a copy of the most recent edition of the Secretary of State's initiatives and referenda handbook to each paid canvasser before the paid canvasser solicited signatures; and

(ii) Explained the requirements under Arkansas law for obtaining signatures on an initiative or referendum petition to each paid canvasser before the paid canvasser solicited signatures.

(g) All county initiative and referendum elections shall be held in accordance with the provisions of § 14-14-917.

(h) Municipal referendum petition measures shall be submitted to the electors at a regular general election unless the petition expressly calls for a special election. If the date set by the petition does not allow sufficient time to comply with election procedures, then the city or town council shall fix the date for any special election on the referendum measure. The date of any special election shall be set in accordance with § 7-11-201 et seq. but in no event more than one hundred twenty (120) calendar days after the date of certification of sufficiency by the municipal clerk.

(i) [Repealed.]

(j)(1) Except as provided under subdivision (j)(4) of this section, a canvasser shall file a true affidavit with the Secretary of State for a statewide initiative petition or statewide referendum petition and the county clerk for a local initiative petition or local referendum petition certifying that the canvasser has complied with the Arkansas Constitution and all Arkansas law regarding canvassing, perjury, forgery, and fraudulent practices in the procurement of petition signatures during the current election cycle.

(2) The Secretary of State or the county clerk shall not count the signatures submitted by the canvasser until a true affidavit is submitted under subdivision (j)(1) of this section.

(3) A true affidavit submitted under subdivision (j)(1) of this section shall have no bearing to establish the genuineness or falsity of the signatures obtained by the canvasser.

(4)(A) The inability of a canvasser to submit an affidavit due to death or medical disability shall not disqualify the signatures gathered by the canvasser.

(B) Subdivision (j)(4)(A) of this section does not excuse a canvasser from filing the affidavit required under § 7-9-109.

(k) A canvasser who has filed a true affidavit under subsection (j) of this section shall not collect additional signatures unless the Secretary of State determines that the sponsor of the statewide initiative petition or statewide referendum petition or the county clerk determines that the sponsor of the local initiative petition or local referendum petition is eligible for an amendment to the statewide initiative petition, statewide referendum petition, local initiative petition, or local referendum petition under Arkansas Constitution, Article 5, § 1.

History. Acts 1943, No. 195, § 5; A.S.A. 1947, § 2-210; 2013, No. 1413, §§ 13-15; 2015, No. 1219, § 2; 2019, No. 376, § 9; 2023, No. 194, § 3; 2025, No. 241, § 1; 2025, No. 1153, § 1; 1997, No. 646, § 7; 1997, No. 1145, § 1; 2005, 768, § 6.
No. 2145, § 15; 2007, No. 1049, § 30; 2009, No. 1480, § 46;

7-9-112. Right of review.

(a) If the Secretary of State determines that the signatures submitted on a statewide initiative petition or statewide referendum petition are insufficient, the following persons may challenge that determination by petitioning the Supreme Court to determine if the signatures are sufficient:

- (1) The sponsor of the statewide initiative petition or statewide referendum petition; or
- (2) A registered voter.

(b) The Supreme Court shall act expeditiously to review the sufficiency of the signatures in a timely manner and shall make every effort to reach a decision in advance of the election at which the proposed measure would be considered.

(c)(1) If the Supreme Court decides that the signatures submitted on a statewide initiative petition or statewide referendum petition are sufficient, the Supreme Court shall order the Secretary of State to certify the sufficiency for placing the proposed measure on the election ballot if the ballot title and popular name are sufficient.

(2) On a proper showing that the signatures are not sufficient, the Supreme Court may enjoin the Secretary of State from certifying the proposed measure for inclusion on the ballot for the election at which the proposed measure would be considered or, in the event that the proposed measure will appear on the election ballot, from canvassing and certifying the vote on the proposed measure.

History. Acts 1943, No. 195, § 6; A.S.A. 1947, § 2-211; Acts 2013, No. 1413, § 16; 2019, No. 376, § 10; 2023, No. 194, § 4.

7-9-113. Publication of notice.

(a)(1) The Secretary of State shall be charged with the duty of letting contracts for publishing notices as authorized in this section.

(2)(A) For measures proposed by petition, the petition sponsor shall reimburse the cost of publication to the Secretary of State within thirty (30) calendar days of notification of the final costs for publication.

(B) The Secretary of State shall provide the sponsor of the measure a complete cost breakdown including the:

- (i) Number of locations where the measure was published;
- (ii) Number of times the measure was published;
- (iii) Dates the measure was published; and
- (iv) Costs for publishing the measure.

(C)(i) The reimbursement shall be placed by the Secretary of State into the Mandatory Publication Reimbursement Fund.

(ii) Funds shall be transferred from time to time from the Mandatory Publication Reimbursement Fund to the State Central Services Fund as refunds for costs associated with mandatory publications.

(b)(1) Before the election at which any proposed or referred measure is to be voted upon by the people, notice shall be published in two (2) weekly issues of some newspaper in each county as is provided by law.

(2)(A) Publication of the notice for amendments proposed by the General Assembly shall commence six (6) months before the election.

(B) Publication of the notice for all other measures shall commence eight (8) weeks before the election.

(c)(1) For amendments proposed by the General Assembly, at least one (1) notice shall:

(A) Contain the number, the popular name, the ballot title, and a complete text of the amendment to be submitted; and

(B) Be published in a camera-ready format in a type no smaller than 10-point type.

(2) For all other proposed measures or amendments, at least one (1) notice shall:

(A) Contain the number, the popular name, and the ballot title of the measure to be submitted;

(B) Reference a website where the full text of the measure is published; and

(C) Be published in a camera-ready format in a type no smaller than 10-point type.

(d) It shall be the duty of the Secretary of State, in connection with notice of the proposed measure, to give notice in the same newspapers that each elector on depositing his or her ballot at the election shall vote for or against the measure.

History. Acts 1879, No. 80, § 6, p. 128; C. & M. Dig., 1094, § 2; 1991, No. 1153, § 2; 1997, No. 646, § 8; 2017, § 1473; Pope's Dig., § 1771; Acts 1943, No. 195, § 7; A.S.A. No. 982, § 1; 2019, No. 898, § 13. 1947, §§ 2-212, 2-213; Acts 1991, No. 798, § 1; 1991, No.

7-9-114. Abstract of proposed measure.

(a) The Attorney General shall prepare a concise abstract of the contents of each statewide initiative and referendum measure proposed under Arkansas Constitution, Amendment 7, and he or she shall transmit it to the Secretary of State not less than twenty (20) days before the election.

(b) Not less than eighteen (18) days before the election, the Secretary of State shall transmit a certified copy of the abstract to the county boards of election commissioners.

(c) The cost of printing copies of the abstracts shall be borne by the counties as a regular expense of the election.

History. Acts 1959, No. 47, §§ 1-3; A.S.A. 1947, §§ 2-225 — 2-227; 2013, No. 1126, § 16; 2025, No. 487, § 5.

7-9-115. Furnishing ballot title and popular name to election commissioners.

(a) Not less than eighteen (18) days before the election, the Secretary of State shall furnish the State Board of Election Commissioners and county boards of election commissioners a certified copy of the ballot title and popular name for each proposed measure and each referred act to be voted upon at the ensuing election.

(b) If the Department of Finance and Administration prepared a fiscal impact statement for a statewide measure under § 7-9-128 or for a legislatively referred constitutional amendment under § 7-9-206, the fiscal impact statement shall be furnished to the State Board of Election Commissioners and county boards of election commissioners along with the ballot title and popular name under subsection (a) of this section.

History. Acts 1943, No. 195, §§ 8, 9; A.S.A. 1947, §§ 2-216, 2-217; Acts 1997, No. 646, § 9; 2025, No. 457, § 1.

7-9-116. Captions and designations of numbered issues.

(a) The Secretary of State shall fix and declare the number of the issue by which state measures shall be designated on the ballot.

(b) Each state measure shall be identified with the issue number designated by the Secretary of State.

(c) Measures proposed by initiative petition shall be captioned, “CONSTITUTIONAL AMENDMENT (OR ACT) PROPOSED BY PETITION OF THE PEOPLE”.

(d) Measures referred to a vote by petition shall be captioned, “MEASURE REFERRED BY ORDER OF THE PEOPLE”.

(e) Measures referred to a vote by the General Assembly shall be captioned, “CONSTITUTIONAL AMENDMENT (OR OTHER MEASURE) REFERRED TO THE PEOPLE BY THE GENERAL ASSEMBLY”.

History. Acts 1943, No. 195, § 8; A.S.A. 1947, § 2-216; Acts 2009, No. 281, § 2.

7-9-117. Ballot form.

(a) It shall be the duty of the county board of election commissioners in each county to cause each title and popular name to be printed upon the official ballot to be used in the election at which the measure is to be voted upon, in the manner certified by the Secretary of State.

(b) The title and popular name shall be stated plainly, followed by these words:

“FOR ISSUE NO.....

“AGAINST ISSUE NO.....”

(c)(1) In arranging the ballot titles on the ballot, the county board of election commissioners shall place each measure separate and apart from others.

(2) Each statewide measure shall be designated on the ballot as an issue, and the issues shall be numbered consecutively beginning with “Issue 1” and in the following order:

(A) Constitutional amendments proposed by the General Assembly, if any;

(B) Initiated constitutional amendments, if any;

(C) Statewide initiated acts, if any;

(D) Referred acts of the General Assembly, if any;

(E) Questions referred by the General Assembly, if any; and

(F) Other measures that may be referred, if any.

(3) The ballot titles of measures submitted by municipalities, counties, and other political subdivisions that may submit ballot measures to the people shall be:

(A) Placed separate and apart on the ballot from the ballot titles of statewide measures and from other ballot titles of measures submitted by municipalities, counties, and other political subdivisions; and

(B) Numbered consecutively for each political subdivision in the following order:

(i) Initiated local measures, if any;

(ii) Referred local measures, if any; and

(iii) Other measures that may be referred, if any.

(d) If the Department of Finance and Administration prepared a fiscal impact statement for a statewide measure under § 7-9-128 for inclusion on the ballot, the fiscal impact statement shall be included on the ballot.

History. Acts 1943, No. 195, §§ 8, 9; A.S.A. 1947, §§ 2-216, 2-217; Acts 2009, No. 281, § 3; 2025, No. 457, § 2.

7-9-118. Failure to place proposal on ballot — Manner of voting.

If any election board shall fail or refuse to submit any proposal after its sufficiency has been duly certified, the qualified electors of the county may vote for or against the measure by writing or stamping on their ballot the proposed ballot title, followed by the word “FOR” or “AGAINST”. All votes so cast, if otherwise legal, shall be canvassed, counted, and certified.

History. Acts 1943, No. 195, § 9; A.S.A. 1947, § 2-217.

7-9-119. Counting, canvass, and return of votes — Proclamation of result — Effective date.

(a) The vote on each measure shall be counted, tabulated, and returned by the proper precinct election officials to the county board of election commissioners in each county at the time and in the manner the vote for candidates for state and county officers is tabulated, canvassed, and returned.

(b) An abstract of all votes cast on any measure shall be certified by the county board of election commissioners and delivered or postmarked to the Secretary of State no earlier than forty-eight (48) hours and no later than fifteen (15) calendar days after the election is held.

(c) It shall be the duty of the Secretary of State to canvass the returns on each measure not later than ten (10) days thereafter and to certify the result to the Governor and to the State Board of Election Commissioners.

(d)(1)(A) The Governor shall thereupon issue a proclamation showing the total number of votes cast and the number cast for and the number cast against each measure and shall declare the measure adopted or rejected, as the facts appear.

(B) If the Governor declares any measure adopted, it shall be in full force and effect thirty (30) days after the election unless otherwise provided in the measure.

(2) However, amendments to the Arkansas Constitution shall also be declared adopted or rejected by the Speaker of the House of Representatives, as is provided by the Arkansas Constitution.

History. Acts 1943, No. 195, § 10; A.S.A. 1947, § 2-218; Acts 1997, No. 646, § 10; 2005, No. 1677, § 6.

7-9-120. Printing of approved measures with general laws — Certification of city ordinances.

(a) The Secretary of State shall cause every measure approved by the people to be printed with the general laws enacted by the next ensuing session of the General Assembly with the date of the Governor’s proclamation declaring the same to have been approved by the people.

(b) However, city ordinances approved by the people shall only be certified by the Secretary of State to the city clerk or recorder of the municipality for which the ordinance has been approved, who shall immediately record the same as he or she is required by law to record other ordinances of the municipality.

History. Acts 1911 (1st Ex. Sess.), No. 2, § 7; C. & M. Dig., § 9768; Pope’s Dig., § 13288; A.S.A. 1947, § 2-205.

7-9-121. Contest of returns and certification.

(a) The right to contest the returns and certification of the votes cast upon any measure is expressly conferred upon any twenty-five (25) qualified electors of the state.

(b) Any contest may be brought in the Pulaski County Circuit Court and shall be conducted under any rules and regulations as may be made and promulgated by the Supreme Court. However, the complaint shall be filed within sixty (60) days after the certification of the vote thereon, and the contestants shall not be required to make bond for the costs.

History. Acts 1943, No. 195, § 11; A.S.A. 1947, § 2-222; Acts 2005, No. 67, § 25.

7-9-122. Adoption of conflicting measures.

If two (2) or more conflicting measures shall be approved by a majority of the votes severally cast for and against the measures at the same election, the measure receiving the greatest number of affirmative votes shall become law.

History. Acts 1911 (1st Ex. Sess.), No. 2, § 14; C. & M. Dig., § 9776; Pope's Dig., § 13295; A.S.A. 1947, § 2-221; Acts 1993, No. 512, § 10.

7-9-123. Preservation of records.

All petitions, notices, certificates, or other documentary evidence of procedural steps taken in submitting any measure shall be filed and preserved. Petitions with signatures shall be retained for two (2) years and thereafter destroyed. The measure and the certificates relating thereto shall be recorded in a permanent record and duly attested by the Secretary of State.

History. Acts 1943, No. 195, § 13; A.S.A. 1947, § 2-224; Acts 1997, No. 897, § 1.

7-9-124. Voter registration signature imaging system — Creation of fund.

(a) There is hereby established in the office of the Secretary of State a voter registration signature imaging system, and the Secretary of State is authorized to acquire and maintain the necessary equipment and facilities to accommodate the system.

(b) The Office of State Technology shall cooperate with and assist the Secretary of State in determining the computer equipment and software needed in the office of the Secretary of State for the voter registration signature imaging system.

(c) There is hereby created on the books of the Treasurer of State, the Auditor of State, and the Chief Fiscal Officer of the State a fund to be known as the "Voter Registration Signature Imaging System Fund".

History. Acts 1993, No. 1285, §§ 1-3; 1997, No. 1104, § 1; 2019, No. 910, § 6060; 2025, No. 412, § 5.

7-9-125. Definition — Prohibition of profit — Penalties — Freedom of information.

(a) As used in this section, "property" means both real and personal property and includes without limitation both tangible and intangible property.

(b)(1) No person who is a sponsor of an initiative petition, referendum petition, or constitutional amendment which proposes the sale of property owned by a municipality or county shall receive anything of value as a result of the passage of the act sponsored by the person.

(2) A sponsor of an initiative petition, referendum petition, or constitutional amendment which proposes the sale of property owned by a municipality or county shall file, within sixty (60) calendar days of the election at which the initiative, referendum, or constitutional amendment has been voted upon, with the Secretary of State an accounting of all expenditures by the sponsor in connection with the petition or amendment.

(3) No person shall directly or indirectly benefit from sponsorship of a petition or amendment which proposes the sale of property owned by a municipality or county by contracting sponsorship activities to any business enterprise in which the sponsor has a substantial interest.

(4) Nothing in this act shall prohibit the circulation of petitions or compensation to persons who circulate the petitions.

(c)(1)(A) If a sponsor violates any provision of subsection (b) of this section, the sponsor shall be fined an amount equal to twice the amount of the person's personal gain.

(B) The fine shall be paid to the state, municipality, or county in which the petition or amendment was voted upon.

(2) This section shall be enforced by the:

- (A) City attorney of the municipality;
- (B) Prosecuting attorney of the county; or
- (C) Attorney General of this state.

(d) The expense reports filed by the sponsor of the petition shall be subject to the Freedom of Information Act of 1967, § 25-19-101 et seq.

History. Acts 2001, No. 1100, §§ 1-3; 2013, No. 1413, § 17.

7-9-126. Count of signatures.

(a) Upon the initial filing of an initiative petition or referendum petition, the official charged with verifying the signatures shall:

- (1) Perform an initial count of the signatures; and
- (2) Determine whether the petition contains, on its face and before verification of the signatures of registered voters, the designated number of signatures required by the Arkansas Constitution and statutory law in order to certify the measure for the election ballot.

(b) A petition part and all signatures appearing on the petition part shall not be counted for any purpose by the official charged with verifying the signatures, including the initial count of signatures, if one (1) or more of the following is true:

(1) The petition is not an original petition, including without limitation a petition that is photocopied or is a facsimile transmission;

(2) The petition does not conform to the version of the measure approved and certified under § 7-9-107;

(3) The petition lacks the signature, printed name, and residence address of the canvasser or is signed by more than one (1) canvasser;

(4)(A) The canvasser is a paid canvasser whose name and the information required under § 7-9-601 were not submitted or updated by the sponsor to the Secretary of State before the petitioner signed the petition.

(B) A canvasser is a paid canvasser if he or she is paid money or anything of value for soliciting signatures before or after the signatures are obtained;

(5) The canvasser verification:

- (A) Is not notarized;
- (B) Is notarized by more than one (1) notary;
- (C) Lacks a notary signature or a notary seal; or
- (D) Lacks a legible notary signature or a legible notary seal;

(6) The canvasser verification is dated earlier than the date on which a petitioner signed the petition;

(7) The petition fails to comply with § 7-9-104 or § 7-9-105, including the lack of the exact popular name or ballot title for a statewide initiative, a discrepancy in the text of the initiated or referred measure, or the lack of an enacting clause in a statewide petition for an initiated act; or

(8) The petition part has a material defect that, on its face, renders the petition part invalid.

(c) The following signatures shall not be counted for any purpose by the official charged with verifying the signatures, including the initial count of signatures:

- (1) A signature that is not an original signature;
- (2) A signature that is obviously not that of the purported petitioner;
- (3) A signature that is illegible;
- (4) A signature that is not accompanied by personally identifying information;
- (5) A signature for which the corresponding printed name, address, birth date, or date of signing is written by someone other than the signer except under circumstances of disability of the signer;

(6) A signature obtained before the submission and approval of the ballot title under § 7-9-107;

(7) A signature obtained after the date of the next general election following the certification of the ballot title and popular name under § 7-9-107;

(8) A signature that has any other material defect that, on its face, renders the signature invalid; and

(9) Signatures submitted by a canvasser who has not filed a true affidavit with the Secretary of State as required under § 7-9-111 certifying that the canvasser has complied with the Arkansas Constitution and all Arkansas laws regarding canvassing, perjury, forgery, and fraudulent practices in the procurement of petition signatures during the current election cycle.

(d) If the initial count of signatures under this section is less than the designated number of signatures required by the Arkansas Constitution and statutory law in order to certify the measure for the ballot and the deadline for filing petitions has passed, the official charged with verifying the signatures shall declare the petition insufficient and shall not accept and file any additional signatures to cure the insufficiency of the petition on its face.

(e) In order to certify a measure for the statewide election ballot, the official charged with verifying the signatures on an initiative petition or referendum petition shall also verify:

(1) For a statutory initiative petition or referendum petition, that:

(A) Petitions are filed from at least fifty (50) counties of the state; and

(B) The petitions bear the signature of at least one-half (½) of the designated percentage of the electors of each county represented in subdivision (e)(1)(A) of this section; and

(2) For an initiative petition for a constitutional amendment, that:

(A) Petitions are filed from at least fifty (50) counties of the state; and

(B) The petitions bear the signature of at least one-half (½) of the designated percentage of the electors of each county represented in subdivision (e)(2)(A) of this section.

(f) If the requirements of subsection (e) of this section are less than the designated number of signatures or counties represented by petitions required by the Arkansas Constitution and statutory law in order to certify the measure for the ballot and the deadline for filing petitions has passed, the official charged with verifying the signatures shall declare the petition insufficient and shall not accept and file any additional signatures to cure the insufficiency of the petition on its face.

History. Acts 2013, No. 1413, § 18; 2015, No. 1219, § 3; 2019, No. 376, § 11; 2023, No. 194, §§ 5, 6; 2023, No. 236, § 2; 2025, No. 153, § 3; 2025, No. 241, § 2.

7-9-127. Interference with initiative petitions and proposed measures.

(a) Upon conviction, a person commits a Class A misdemeanor if the person knowingly:

(1) Changes a signature other than his or her own signature on a petition;

(2) Erases or otherwise removes a signature other than his or her signature on a petition;

(3) Intentionally destroys or discards a signature other than his or her own signature on a petition;

(4) Pays a person any form of compensation in exchange for not signing a petition as a petitioner;

(5) Accepts or pays money or anything of value for the purpose of not obtaining signatures on a petition when the person is included on the sponsor's list filed with the Secretary of State under § 7-9-601;

(6) Misrepresents the purpose and effect of the petition or the measure affected for the purpose of causing a person to not sign a petition when acting as a canvasser; or

(7) Pays a person any form of compensation in exchange for destroying a signature on a petition.

(b) A person may be charged with a Class A misdemeanor for each violation under subsection (a) of this section.

(c)(1) A ballot question committee organized to support a ballot initiative may destroy or discard signatures or petitions collected as a result of its efforts if:

(A) The reason for the destruction or discard is documented; or

(B) The petition did not obtain enough signatures to qualify to appear on the ballot.

(2) Actions taken by a ballot question committee under subdivision (c)(1) of this section shall not be considered a violation of this section.

History. Acts 2023, No. 766, § 1; 2025, No. 166, § 3.

7-9-128. Fiscal impact statement.

(a) Within ten (10) business days of a sponsor submitting an original draft under § 7-9-107, the Attorney General shall determine if the proposed measure has a financial impact by virtue of:

(1) Increasing or decreasing state revenues, costs, expenditures, or indebtedness; or

(2) Establishing, repealing, or modifying one (1) or more taxes.

(b) If the Attorney General certifies a ballot title and popular name under § 7-9-107(d) and he or she determines that the proposed measure has a financial impact under subsection (a) of this section, he or she shall refer the proposed measure and the certified ballot title and popular name within three (3) business days to the Department of Finance and Administration.

(c) Upon the referral of a proposed measure under subsection (b) of this section, the department shall prepare an unbiased, good faith fiscal impact statement for the proposed measure, not exceeding one hundred (100) words plus one hundred (100) additional words per revenue source created or impacted by the proposed measure, that contains:

(1) A description of the total estimated fiscal impact of the proposed measure over the time period or time periods determined by the department to be most useful in understanding the estimated fiscal impact of the proposed measure;

(2) If the proposed measure would increase taxes, decrease taxes, or impose a new tax, a dollar amount representing the total estimated increase or decrease for each type of tax affected under the proposed measure, a dollar amount showing the estimated amount of a new tax, and a dollar amount representing the total estimated increase or decrease in taxes under the proposed measure;

(3) If the proposed measure would increase a particular tax or tax rate, the tax percentage difference and the tax percentage increase for each tax or tax rate increased;

(4) If the proposed measure would result in the issuance or a change in the status of bonds, notes, or other debt instruments, a dollar amount representing the total estimated increase or decrease in public debt under the proposed law;

(5) A dollar amount representing the estimated cost or savings, if any, to state government entities under the proposed measure;

(6) If the proposed measure would increase costs to state government, a listing of all sources of funding for the estimated costs; and

(7) A concise description and analysis titled “Funding Source”, not to exceed one hundred (100) words for each funding source, of the funding source information.

(d) Following the certification of a ballot title and popular name under § 7-9-107(d), the sponsor of the proposed measure may provide information to the department that he or she believes would assist the department in preparing the unbiased, good faith fiscal impact statement under subsection (c) of this section.

(e) If the department requests information from a state agency or other public entity that is necessary for the completion of the fiscal impact statement under this section, the state agency or other public entity shall provide the requested information by the date identified by the department.

(f) If the department determines that the fiscal impact of the proposed measure cannot be determined, the department may indicate that the fiscal impact cannot be determined in the fiscal impact statement.

(g) The department shall forward the fiscal impact statement under subsection (c) of this section to the Secretary of State by the seventy-sixth day before the general election.

(h)(1) If the fiscal impact statement under subsection (c) of this section exceeds two hundred (200) words, the department shall prepare an additional version of the fiscal impact statement that does not exceed two hundred (200) words.

(2) The version of the fiscal impact statement that does not exceed two hundred (200) words shall be included on the ballot under § 7-9-117(d) in lieu of the version of the fiscal impact statement exceeding two hundred (200) words.

(i) The sponsor of a proposed measure shall not be charged any costs associated with the preparation of the fiscal impact statement under this section.

(j) When determining the number of words in a fiscal impact statement under this section, the department shall not include numerals and associated special characters in the word count, including without limitation dollar signs and percentage symbols.

History. Acts 2025, No. 457, § 3.

SUBCHAPTER 2 — LEGISLATIVE PROPOSAL OF CONSTITUTIONAL AMENDMENTS

SECTION.

7-9-201. Proposal and vote.

7-9-202. Enrollment and filing.

7-9-203. Entry on journals.

7-9-204. Ballot titles and popular names of constitutional amendments proposed by the legislature.

SECTION.

7-9-205. Challenges to constitutional amendments proposed by the General Assembly.

7-9-206. Fiscal impact statement.

7-9-201. Proposal and vote.

Amendments to the Arkansas Constitution shall be proposed in either branch of the General Assembly in the form of a joint resolution, which shall be read in full on three (3) several days in each house unless the rules be suspended by two-thirds ($\frac{2}{3}$) of each house, when it may be read a second or third time on the same day. On the final passage of the proposed amendment through each house, the vote shall be taken by yeas and nays, and the names of the persons voting for and against it be entered on the journal. No amendment shall be proposed unless it is agreed to by a majority of all the members elected to each house.

History. Acts 1879, No. 80, § 1, p. 128; C. & M. Dig., § 1467; Pope's Dig., § 1768; A.S.A. 1947, § 2-101.

7-9-202. Enrollment and filing.

When any joint resolution proposing an amendment to the Arkansas Constitution shall have passed each house as prescribed in § 7-9-201, it shall be enrolled and signed by the President of the Senate and the Speaker of the House of Representatives and filed in the office of the Secretary of State.

History. Acts 1879, No. 80, § 2, p. 128; C. & M. Dig., § 1468; Acts 1923, No. 279, § 1; 1927, No. 206, § 2; Pope's Dig., § 1769; A.S.A. 1947, § 2-102.

7-9-203. Entry on journals.

The proposed amendment shall be entered on the journals of each house, with the yeas and nays.

History. Acts 1879, No. 80, § 5, p. 128; C. & M. Dig., § 1472; Pope's Dig., § 1770; A.S.A. 1947, § 2-103.

7-9-204. Ballot titles and popular names of constitutional amendments proposed by the legislature.

The General Assembly may designate in the joint resolution proposing an amendment to the Arkansas Constitution the popular name and ballot title of the amendment for the election ballot.

History. Acts 2001, No 150, § 1; 2013, No. 1413, § 19.

7-9-205. Challenges to constitutional amendments proposed by the General Assembly.

If the General Assembly passes a joint resolution proposing an amendment to the Arkansas Constitution, a qualified elector may file an action in a court of competent jurisdiction at any time after the passage of the joint resolution challenging the sufficiency of the joint resolution, including without limitation the:

- (1) Text of the proposed amendment;
- (2) Ballot title of the proposed amendment; and
- (3) Popular name of the proposed amendment.

History. Acts 2019, No. 376, § 12.

7-9-206. Fiscal impact statement.

(a) If the General Assembly passes a joint resolution proposing an amendment to the Arkansas Constitution, the Department of Finance and Administration shall determine if the proposed amendment has a financial impact by virtue of:

- (1) Increasing or decreasing state revenues, costs, expenditures, or indebtedness; or
- (2) Establishing, repealing, or modifying one (1) or more taxes.

(b) If the department determines that the proposed amendment to the Arkansas Constitution has a financial impact under subsection (a) of this section, the department shall prepare an unbiased, good faith fiscal impact statement for the proposed amendment to the Arkansas Constitution, not exceeding one hundred (100) words plus one hundred (100) additional words per revenue source created or impacted by the proposed amendment to the Arkansas Constitution, that contains:

(1) A description of the total estimated fiscal impact of the proposed amendment to the Arkansas Constitution over the time period or time periods determined by the department to be most useful in understanding the estimated fiscal impact of the proposed amendment to the Arkansas Constitution;

(2) If the proposed amendment to the Arkansas Constitution would increase taxes, decrease taxes, or impose a new tax, a dollar amount representing the total estimated increase or decrease for each type of tax affected under the proposed amendment to the Arkansas Constitution, a dollar amount showing the estimated amount of a new tax, and a dollar amount representing the total estimated increase or decrease in taxes under the proposed amendment to the Arkansas Constitution;

(3) If the proposed amendment to the Arkansas Constitution would increase a particular tax or tax rate, the tax percentage difference and the tax percentage increase for each tax or tax rate increased;

(4) If the proposed amendment to the Arkansas Constitution would result in the issuance or a change in the status of bonds, notes, or other debt instruments, a dollar amount representing the total estimated increase or decrease in public debt under the proposed law;

(5) A dollar amount representing the estimated cost or savings, if any, to state government entities under the proposed amendment to the Arkansas Constitution;

(6) If the proposed amendment to the Arkansas Constitution would increase costs to state government, a listing of all sources of funding for the estimated costs; and

(7) A concise description and analysis titled "Funding Source", not to exceed one hundred (100) words for each funding source, of the funding source information.

(c) Following the passage of a joint resolution proposing an amendment to the Arkansas Constitution, the sponsor of the joint resolution may provide information to the department that he or she believes would assist the department in preparing the unbiased, good faith fiscal impact statement under subsection (b) of this section.

(d) If the department requests information from a state agency or other public entity that is necessary for the completion of the fiscal impact statement under this section, the state agency or other public entity shall provide the requested information by the date identified by the department.

(e) If the department determines that the fiscal impact of the proposed amendment cannot be determined, the department may indicate that the fiscal impact cannot be determined in the fiscal impact statement.

(f) The department shall forward the fiscal impact statement under subsection (b) of this section to the Secretary of State by the seventy-sixth day before the general election.

(g) The fiscal impact statement prepared by the department under this section shall be included on the ballot in the same manner as a fiscal impact statement prepared under § 7-9-128.

(h)(1) If the fiscal impact statement under subsection (b) of this section exceeds two hundred (200) words, the department shall prepare an additional version of the fiscal impact statement that does not exceed two hundred (200) words.

(2) The version of the fiscal impact statement that does not exceed two hundred (200) words shall be included on the ballot in lieu of the version of the fiscal impact statement exceeding two hundred (200) words.

(i) When determining the number of words in a fiscal impact statement under this section, the department shall not include numerals and associated special characters in the word count, including without limitation dollar signs and percentage symbols.

History. Acts 2025, No. 457, § 4.

SUBCHAPTER 3 — CONSTITUTIONAL CONVENTIONS

SECTION.

7-9-301. Calling constitutional convention — Majority vote.

7-9-302. Delegate qualifications — Election date.

7-9-303. Apportionment of delegates — Vacancies.

7-9-304. Nominating petitions.

7-9-305. Election and certification of delegates.

7-9-306. Organizational meeting — Plenary meeting.

SECTION.

7-9-307. Meeting procedures.

7-9-308. Duration of constitutional convention — Certification of draft constitution — Report.

7-9-309. Method of publication.

7-9-310. Submission of proposed constitution to electors.

7-9-311. Proposal of amendments to present constitution.

7-9-312. Expenses.

7-9-301. Calling constitutional convention — Majority vote.

(a) When a majority of the qualified electors of this state voting on the issue at a general election shall vote for the holding of a constitutional convention, the convention shall be held. The delegates thereto shall be selected and qualified as provided in this subchapter.

(b) Whenever a majority of the electors voting on the question vote against the holding of a constitutional convention, no convention shall be held. Delegates to the proposed convention elected at the election shall have and exercise no power or authority and shall perform no functions by virtue of their election as delegates.

History. Acts 1968 (1st Ex. Sess.), No. 42, §§ 1, 6; A.S.A. 1947, §§ 2-104, 2-109.

7-9-302. Delegate qualifications — Election date.

(a) At the same general election at which a vote on the calling of a constitutional convention shall be taken, delegates to the convention shall be elected.

(b) Candidates for the office of delegate to the constitutional convention shall possess the qualifications required by law for a member of the House of Representatives of the General Assembly, and they shall be qualified electors of the district from which elected.

(c) The election of delegates to the convention shall be on a nonpartisan basis, and no candidate shall designate political party affiliation at the time he or she files for election.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 2; A.S.A. 1947, § 2-105.

7-9-303. Apportionment of delegates — Vacancies.

(a) The basis for representation in any constitutional convention called as a result of an affirmative vote on the calling of a constitutional convention shall be as follows: One hundred (100) members shall be elected from the same districts and on the same basis as members of the House of Representatives of the General Assembly.

(b) Vacancies in positions of delegates shall be filled by appointment by the convention from the same district in which the vacancy occurred.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 3; A.S.A. 1947, § 2-106.

7-9-304. Nominating petitions.

(a)(1) Every person desiring to be elected as a delegate from a particular House of Representatives district shall file a nominating petition with the Secretary of State containing at least fifty (50) signatures thereon of persons who are qualified electors within the district.

(2) In addition, he or she shall pay a filing fee of twenty-five dollars (\$25.00).

(3) When petitions are filed on behalf of a candidate, they shall contain a statement signed by the candidate and filed along with the petition indicating the candidate's willingness to accept the nomination and to serve as a delegate.

(b) Persons who circulate nominating petitions shall execute an affidavit concerning the genuineness of the signatures in like manner as now required for the circulators of petitions for initiative acts and constitutional amendments.

(c) The petitions shall be filed with the Secretary of State not less than eighty-one (81) days before the next general election, and the Secretary of State shall certify the names of all candidates and the position that each is seeking to the county board of election commissioners of the counties in the respective House of Representatives districts not later than seventy-five (75) days prior to the date of the election. A candidate must designate the position he or she is seeking at the time he or she files his or her nominating petition with the Secretary of State, and after having designated a position, the candidate is prohibited from changing to a different position.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 4; A.S.A. 1947, § 2-107; Acts 2007, No. 1049, § 31; 2011, No. 1185, § 13.

7-9-305. Election and certification of delegates.

(a) The county board of election commissioners shall include on the general election ballots the names of all candidates for delegate to the constitutional convention as certified by the Secretary of State.

(b)(1) The candidate receiving a majority of the votes for a particular position in the general election shall be declared elected as a delegate to the convention.

(2)(A) In the event that more than two (2) candidates are seeking a particular delegate position and no candidate receives a majority of the votes cast for all candidates for the position, the names of the two (2) candidates receiving the highest number of votes for the position shall be certified to a special runoff election that shall be held by the respective county board of election commissioners of the district four (4) weeks from the day on which the general election is held.

(B) The special runoff election shall be conducted in the same manner as is provided by law, and the election results shall be canvassed and certified in the manner provided by law.

(3) A tie vote for a delegate position in the special runoff election shall be determined by drawing lots in the presence of the circuit court of the county within ten (10) days from the date of the election.

(c) The results of the election of delegates at the general election or at a special runoff election held for delegate positions shall be certified to the Secretary of State along with the other election results as is now provided by law.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 5; A.S.A. 1947, § 2-108; Acts 1993, No. 512, § 11; 2007, No. 1020, § 19; 2017, No. 1104, § 5.

7-9-306. Organizational meeting — Plenary meeting.

(a) Whenever a majority of the electors vote affirmatively to call a constitutional convention, it shall be the duty of the delegates elected as prescribed in § 7-9-305 to assemble at the State Capitol Building at 10:00 a.m. on the first Tuesday after the first Monday in January next after their election for an organizational meeting of no longer than two (2) days' duration.

(b) This meeting shall be for the purpose of electing permanent convention officers, adopting rules of procedure, and providing for such interim committees and staff members as may be necessary to prepare for the plenary meeting of the convention which shall convene at the State Capitol Building in the chamber of the House of Representatives on the first Monday of the following April.

(c) The Secretary of State shall preside at the organizational meeting until the permanent convention chair is selected, and he or she may vote in case of a tie vote in the selection of a permanent chair.

(d) At the meeting each member shall take an oath to support the Constitution of the United States and to faithfully discharge the duties of a convention delegate.

History. Acts 1968 (1st Ex. Sess.), No. 42, §§ 6, 7; A.S.A. 1947, §§ 2-109, 2-110; Acts 2013, No. 1126, § 17.

7-9-307. Meeting procedures.

(a) A majority of the delegates shall constitute a quorum, and a majority of the total number of delegates shall be required for approval of any section to be included in a proposed constitution or part thereof or in a proposed constitutional amendment.

(b) The constitutional convention shall elect its own officers and shall be sole judges of the qualifications and election of its own membership.

(c) All meetings of the convention shall be open to the public.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 7; A.S.A. 1947, § 2-110.

7-9-308. Duration of constitutional convention — Certification of draft constitution — Report.

(a) The constitutional convention shall remain in session as long as is required to transact its business and to meet its responsibilities, but not past the following July 1. If the convention determines that additional time is needed, it may vote to recess until the following August 1 and resume its sessions on that date, but the convention may not extend its sessions past the following September 1, and it must adjourn itself sine die no later than September 1.

(b) Thereafter and not later than September 15 next, the finished draft of the proposed constitution shall be certified by the president and the secretary of the convention to the Secretary of State.

(c) The convention shall also publish a report to the people explaining its proposals.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 6; A.S.A. 1947, § 2-109.

7-9-309. Method of publication.

(a) Publication of a proposed new constitution by a constitutional convention called by the people of the state at a general election shall be made by one (1) of the following methods, whichever is less costly to the state:

(1) One (1) time at the rate of two and one-half cents (2½¢) per word in each legal newspaper in the state by insertion of preprinted copies of the proposed new constitution furnished by the state to each legal newspaper without charge. The copies shall be in tabloid form suitable for insertion in legal newspapers and shall be printed in not less than eight-point type; or

(2) One (1) time without preprint at the rate of five cents (5¢) per word in every legal newspaper in the state.

(b) Publication of the proposed constitution shall take place not less than sixty (60) days prior to the election at which it shall be voted upon by the people of the state.

History. Acts 1969, No. 116, § 6; A.S.A. 1947, § 2-114.

7-9-310. Submission of proposed constitution to electors.

(a) The constitutional convention may submit a new constitution as one (1) proposal to be voted on by the people, and it may submit proposed parts or alternative parts of a new constitution for separate votes. The proposals of the convention shall be submitted to the electors of this state for adoption or rejection at the general election held next following adjournment sine die of the convention.

(b) The Governor shall issue a proclamation no later than the October 1 preceding the general election. Within ten (10) days after the proclamation by the Governor, the several sheriffs throughout the state shall issue their proclamations notifying the electors of the county that a new constitution will be voted upon at the general election. The returns of the issue at the general election shall be made, canvassed, and the results thereof declared in the same manner as is provided by law for initiative and referendum measures.

(c)(1) If a majority of the electors of the state voting thereon at the general election shall vote for the proposed constitution, it shall become effective on the date and in the manner provided in the proposed constitution, or if no effective date shall be provided in the proposed constitution, it shall become effective as now provided by law with reference to initiated acts and amendments.

(2) If a majority of the electors of the state voting thereon at the general election shall vote against the proposed constitution, it shall be deemed rejected by the electors, and the existing Arkansas Constitution shall continue to be the Arkansas Constitution until changed as provided by law. In the event that proposed parts or alternative parts of the new constitution are submitted for separate vote and that the people shall reject the new constitution, then all proposed parts or alternative parts for a new constitution voted upon separately shall be deemed rejected, even though the parts received a majority of the votes cast thereon. In no event shall the proposed parts or alternative parts of a new constitution voted upon separately be deemed to amend or change the existing Arkansas Constitution or any of its amendments if the people reject the proposed new constitution. It is the intent hereof that proposed parts or alternative parts of the new constitution upon which votes are cast separate and apart from the new constitution shall be of no force and effect in the event the people reject the proposed new constitution.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 9; A.S.A. 1947, § 2-112.

7-9-311. Proposal of amendments to present constitution.

The constitutional convention, if it shall not propose a new constitution, may propose one (1) or more amendments to the present constitution to be submitted to the voters at the next general election.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 10; A.S.A. 1947, § 2-113.

7-9-312. Expenses.

(a) The appropriation to defray the expenses of any constitutional convention which may be called after a vote of the people shall be made by the next regular session of the General Assembly convening after an affirmative vote on the calling of a constitutional convention.

(b) The proposed budget for the expenses of the convention shall be prepared by the Governor and promptly submitted to the General Assembly for action thereon.

(c) Delegates to the convention shall be paid at the rate of twenty-five dollars (\$25.00) per diem for each day of attendance at meetings of the convention or its committees, plus their necessary travel expenses.

History. Acts 1968 (1st Ex. Sess.), No. 42, § 8; A.S.A. 1947, § 2-111.

SUBCHAPTER 4 — DISCLOSURE FOR MATTERS REFERRED TO VOTERS

SECTION.

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SECTION.

- 7-9-416. Contributions and expenditures for campaign signs, campaign literature, and printed campaign materials.
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7-9-401. Title.

This subchapter shall be known as the “Disclosure Act for Public Initiatives, Referenda, and Measures Referred to Voters”.

History. Acts 1989, No. 261, § 1; 1989, No. 634, § 1; 1993, No. 1114, § 1.

7-9-402. Definitions.

As used in this subchapter:

(1) “Ballot question” means a question in the form of a statewide, county, municipal, or school district initiative or referendum which is submitted or intended to be submitted to a popular vote at an election, whether or not it qualifies for the ballot;

(2)(A) “Ballot question committee” means any person, located within or outside Arkansas, that receives contributions for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of any ballot question, or any person, other than an elected official expending public funds, or an individual, located within or outside Arkansas, who makes expenditures for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of any ballot question.

(B) A person other than an individual or an approved political action committee as defined in § 7-6-201, located within or outside Arkansas, also qualifies as a ballot question committee if an amount equal to two percent (2%) or more of its annual revenues, operating expenses, or funds for the most recently completed year is used to make a contribution or contributions to another ballot question committee and if the contribution or contributions exceed ten thousand dollars (\$10,000) in value;

(3)(A) “Contribution” means, whether direct or indirect, advances, deposits, transfers of funds, contracts, or obligations, whether or not legally enforceable, payments, gifts, subscriptions, assessments, payment for services, dues, advancements, forbearance, loans, pledges, or promises of money or anything of value, whether or not legally enforceable, to a person for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question.

(B) “Contribution” includes the purchase of tickets for events such as dinners, luncheons, rallies, and similar fundraising events, and the granting of discounts or rebates by television and radio stations and newspapers, not extended on an equal basis to all persons seeking to expressly advocate the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question.

(C) “Contribution” shall not include noncompensated, nonreimbursed volunteer personal services or travel;

(4) “Contribution and expenditure” shall not include activities designed solely to encourage individuals to register to vote or to vote, or any communication by a bona fide church or religious denomination to its own members or adherents for the sole purpose of protecting the right to practice the religious tenets of the church or religious denomination, and “expenditure” shall not include one made for communication by a person strictly with the person’s paid members or shareholders;

(5) “Directly or indirectly” means acting either alone or jointly with, through, or on behalf of any other:

- (A) Ballot question committee;
- (B) Legislative question committee;
- (C) Political action committee;
- (D) Organization;
- (E) Person; or
- (F) Other entity;

(6) “Disqualification of a ballot question” means any action or process, legal or otherwise, which seeks to prevent a ballot question from being on the ballot at an election;

(7) “Elected official” means any person holding an elective office of any governmental body, whether elected or appointed to the office;

(8) “Expenditure” means a purchase, payment, distribution, gift, loan, or advance of money or anything of value, and a contract, promise, or agreement to make an expenditure, for goods, services, materials, or facilities for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question;

(9) “Foreign national” means:

- (A) An individual who is not a citizen or lawful permanent resident of the United States;
- (B) A government or subdivision of a foreign country;
- (C) A foreign political party;
- (D) An entity, including without limitation a partnership, association, corporation, organization, or other combination of persons, that is organized under the laws of, or has its principal place of business in, a foreign country; or
- (E) A partnership, association, corporation, or organization, which is wholly or majority owned by a foreign national, unless:

(i) A contribution or expenditure the entity makes derives entirely from funds generated by the entity’s operations; and

(ii) All decisions concerning the contribution or expenditure are made by individuals who are United States citizens or permanent residents, except for setting overall budget amounts;

(10) “Governmental body” means any office, department, commission, council, board, committee, legislative body, agency, or other establishment of the executive, judicial, or legislative branch of the state, municipality, county, school district, improvement district, or any political district or subdivision thereof;

(11) “Independent expenditure” means the same as defined in § 7-6-201;

(12) “Legislative question” means a question in the form of a measure referred by the General Assembly, a quorum court, a municipality, or a school district to a popular vote at an election;

(13)(A) “Legislative question committee” means any person, located within or outside Arkansas, that receives contributions for the purpose of expressly advocating the passage or defeat of any legislative question or any person, other than an elected official expending public funds, or an individual, located within or outside Arkansas, who makes expenditures for the purpose of expressly advocating the passage or defeat of any legislative question.

(B) A person other than an individual or an approved political action committee as defined in § 7-6-201, located within or outside Arkansas, also qualifies as a legislative question committee if an amount equal to two percent (2%) or more of its annual revenues, operating expenses, or funds for the most recently completed year is used to make a contribution or contributions to another legislative question committee and if the contribution or contributions exceed ten thousand dollars (\$10,000) in value;

(14)(A) “Person” means any individual, business, proprietorship, firm, partnership, joint venture, syndicate, business trust, labor organization, company, corporation, association, committee, or any other organization or group of persons acting in concert.

(B) “Person” includes an elected official using public funds to expressly advocate the qualification, disqualification, passage, or defeat of any ballot question or the passage or defeat of any legislative question; and

(15) “Preliminary activity” includes:

- (A) Conducting a poll;
- (B) Drafting ballot question language;
- (C) Drafting legislative question language;
- (D) Conducting a focus group;
- (E) Conducting telephone calls; or
- (F) Traveling in connection with a ballot question or legislative question activity;

(16) “Prohibited sources” includes:

- (A) A prohibited political action committee as defined in § 7-6-201;
- (B) A political action committee that accepts one (1) or more contributions from a foreign national;
- (C) An organization that is funded by a political action committee that accepts one (1) or more contributions from a foreign national;
- (D) Contributions from or expenditures by a foreign national; and
- (E) Contributions or expenditures that violate state or federal law;

(17) “Qualification of a ballot question” means any action or process, legal or otherwise, through which a ballot question obtains certification to be on the ballot at an election.

(18)(A) “Tax-exempt organization” means an organization that qualifies as exempt from federal income tax under § 501(c) of the Internal Revenue Code of 1986, 26 U.S.C. § 501(c), as it existed on January 1, 2025.

(B) This subchapter shall not be construed to treat a political organization under § 527 of the Internal Revenue Code of 1986, 26 U.S.C. § 527, as it existed on January 1, 2025, as a tax-exempt organization for purposes of this subchapter.

History. Acts 1989, No. 261, § 2; 1989, No. 634, § 2; No. 473, §§ 10, 11; 2011, No. 721, § 13; 2013, No. 312, § 3; 1993, No. 1114, § 2; 1993, No. 1235, §§ 1, 2; 2001, No. 2013, No. 382, §§ 7, 8; 2015, No. 226, § 6; 2025, No. 592, 1839, § 17; 2003, No. 195, § 8; 2005, No. 1765, § 1; 2009, §§ 14, 15; 2025, No. 999, § 4.

7-9-403. Penalty.

Upon conviction, any person who knowingly fails to comply with any of the provisions of this subchapter shall be fined an amount not to exceed one thousand dollars (\$1,000) or be imprisoned for not more than one (1) year, or both.

History. Acts 1989, No. 261, § 3; 1989, No. 634, § 3.

7-9-404. Filing deadlines.

(a)(1)(A) A ballot question committee or a legislative question committee shall file a statement of organization with the Arkansas Ethics Commission within five (5) days of receiving contributions or making expenditures in excess of five hundred dollars (\$500) for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question.

(B) The commission shall maintain the statement of organization until notified of the committee's dissolution.

(2) A ballot question committee or legislative question committee failing to file a statement of organization required by this section shall be subject to a late filing fee not exceeding fifty dollars (\$50.00) for each day the statement remains not filed.

(b) The statement of organization for a ballot question committee as defined in § 7-9-402(2)(A) or a legislative question committee as defined in § 7-9-402(10)(A) shall include the following information:

(1) The name, the street address, and where available, the telephone number of the committee. A committee address and telephone number may be that of the residence of an officer or a director of the committee;

(2) The name, street address, and if available, the telephone number of the treasurer and other principal officers and directors of the committee;

(3) The name and address of each financial institution in which the committee deposits money or anything else of monetary value;

(4) The name of each person who is a member of the committee. A person that is not an individual may be listed by its name without also listing its own members, if any; and

(5) A brief statement identifying the substance of each ballot question, the qualification, disqualification, passage, or defeat of which the committee seeks to influence or of each legislative question, the passage or defeat of which the committee seeks to influence, and if known, the date each ballot or legislative question shall be presented to a popular vote at an election.

(c) The statement of organization for a ballot question committee as defined in § 7-9-402(2)(B) or a legislative question committee as defined in § 7-9-402(10)(B) shall include:

(1)(A) The name, the street address, and if available, the telephone number of the committee.

(B) The address and telephone number of a committee in subdivision (c)(1)(A) of this section may be that of the residence of an officer or a director of the committee;

(2) The name, street address, and if available, the telephone number of the treasurer and the other principal officers and directors of the committee;

(3) The name and address of each financial institution in which the committee deposits money or anything else of monetary value;

(4)(A) The name of each person who is a member of the committee.

(B) A person that is not an individual may be listed by its name without also listing its own members, if any; and

(5) A brief statement identifying the substance of each ballot question, the qualification, disqualification, passage, or defeat of which the committee seeks to influence, and if known, the date each ballot or legislative question shall be presented to a popular vote at an election.

(d) When any of the information required in a statement of organization is changed, an amendment shall be filed within ten (10) days to reflect the change, except that changes in individual membership may be filed when the next financial report is required. A committee

failing to file a change as required shall be subject to a late filing fee not exceeding twenty-five dollars (\$25.00) for each day the change remains not filed.

(e) Upon dissolution, a ballot question committee or a legislative question committee shall notify the commission in writing. Any remaining funds on hand at the time of dissolution shall be turned over to either:

(1) The Treasurer of State for the benefit of the General Revenue Fund Account of the State Apportionment Fund;

(2) An organized political party as defined in § 7-1-101 or a political party caucus of the General Assembly, the Senate, or House of Representatives;

(3) A nonprofit organization that is exempt from taxation under § 501(c)(3) of the Internal Revenue Code of 1986;

(4) Cities of the first class, cities of the second class, or incorporated towns; or

(5) The contributors to the ballot or legislative question committee.

History. Acts 1989, No. 261, § 4; 1989, No. 634, § 4; No. 221, § 13; 2007, No. 1001, § 1; 2015, No. 226, § 7; 1993, No. 1114, § 3; 1999, No. 553, § 24; 2001, No. 1839, 2017, No. 721, § 6.
§ 18; 2005, No. 1284, §§ 9, 10; 2005, No. 1765, § 2; 2007,

7-9-405. Contributions and expenditures limited.

(a) No ballot question committee or legislative question committee shall accept any contribution in cash, meaning currency or coin, that exceeds one hundred dollars (\$100).

(b) No ballot question committee or legislative question committee shall accept any contribution from a prohibited political action committee as defined in § 7-6-201.

(c) No ballot question committee, legislative question committee, or individual shall make an expenditure in cash that exceeds fifty dollars (\$50.00) to influence the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question.

(d) No contributions shall be made, directly or indirectly, by any person in a name other than the name by which the person is identified for legal purposes.

(e)(1) No person shall make an anonymous contribution totaling fifty dollars (\$50.00) or more to a ballot question committee or legislative question committee.

(2) Any such anonymous contribution actually received by any ballot question committee or legislative question committee shall be promptly paid by the recipient to the Arkansas Ethics Commission for deposit into the State Treasury as general revenues.

History. Acts 1989, No. 261, § 10; 1989, No. 634, § 10; 1991, No. 786, § 5; 1993, No. 1114, § 4; 2005, No. 1765, § 3; 2007, No. 1001, § 2; 2009, No. 473, § 12.

7-9-406. Financial reports — Requirement.

(a) A ballot question committee or legislative question committee that either receives contributions or makes expenditures in excess of five hundred dollars (\$500) for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question shall file with the Arkansas Ethics Commission financial reports as required by §§ 7-9-407 — 7-9-409.

(b) An individual person who on his or her own behalf expends in excess of five hundred dollars (\$500), excluding contributions, for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question shall file with the commission financial reports as required by §§ 7-9-407 — 7-9-409.

(c) An elected official expending public funds in excess of five hundred dollars (\$500) for the purpose of expressly advocating the qualification, disqualification, passage, or defeat of a ballot question or the passage or defeat of a legislative question shall file with the commission financial reports as required by §§ 7-9-407 — 7-9-409.

(d) Except as provided in subsection (f) of this section, any report required by this subchapter shall be deemed timely filed if it is:

- (1) Hand-delivered to the commission on or before the date due;
 - (2) Mailed to the commission, properly addressed, postage prepaid, bearing a postmark indicating that it was received by the post office or common carrier on or before the date due;
 - (3) Received via facsimile by the commission on or before the date due, provided that the original is received by the commission within ten (10) days of the transmission; or
 - (4) Received by the commission in a readable electronic format that is approved by the commission.
- (e) Whenever a report under this subchapter becomes due on a day that is a Saturday, Sunday, or legal holiday, the report shall be due the next day that is not a Saturday, Sunday, or legal holiday.
- (f) A preelection report is timely filed if it is received by the commission no later than seven (7) days prior to the election for which it is filed.
- (g) A final financial report as described in § 7-9-409(a)(3) is required regardless of whether a ballot question committee, legislative question committee, individual, or elected official received contributions or made expenditures in excess of five hundred dollars (\$500).

History. Acts 1989, No. 261, § 5; 1989, No. 634, § 5; 221, § 14; 2013, No. 312, § 4; 2013, No. 1085, § 1; 2015, 1993, No. 1114, § 5; 1999, No. 553, § 26; 2001, No. 1839, No. 226, § 8; 2017, No. 721, § 7.
§ 19; 2003, No. 195, § 9; 2005, No. 1765, § 4; 2007, No.

7-9-407. Financial report — Information.

A financial report of a ballot question committee, a legislative question committee, an individual person, or an elected official, as required by § 7-9-406, shall contain the following information:

- (1) The name, address, and telephone number of the committee, individual person, or elected official filing the report;
- (2)(A) For a ballot question committee as defined in § 7-9-402(2)(A) or a legislative question committee as defined in § 7-9-402(10)(A):
 - (i) The total amount of contributions received during the period covered by the financial report;
 - (ii) The total amount of expenditures made by the committee or on behalf of the committee by an advertising agency, public relations firm, or political consultant during the period covered by the financial report;
 - (iii) The cumulative amount of contributions and expenditures reported under subdivisions (2)(A)(i) and (ii) of this section for each ballot question or legislative question;
 - (iv) The balance of cash and cash equivalents on hand at the beginning and the end of the period covered by the financial report;
 - (v) The total amount of contributions received during the period covered by the financial report from persons who contributed less than fifty dollars (\$50.00) and the cumulative amount of that total for each ballot question or legislative question;
 - (vi) The total amount of contributions received during the period covered by the financial report from persons who contributed fifty dollars (\$50.00) or more and the cumulative amount of that total for each ballot question or legislative question;
 - (vii) The name and street address of each person who contributed fifty dollars (\$50.00) or more during the period covered by the financial report, together with the amount contributed, the date of receipt, and the cumulative amount contributed by that person for each ballot question or legislative question;
 - (viii) For each person listed under subdivision (2)(A)(vii) of this section, the contributor's principal place of business, employer, occupation, the amount contributed, the date the contribution was accepted by the committee, and the cumulative amount contributed for each ballot question or legislative question;
 - (ix) The name and address of each person who contributed a nonmoney item, together with a description of the item, the date of receipt, and the value, not including volunteer service by individuals;

- (x) [Repealed];
 - (xi) A list of all expenditures by category, including without limitation the following:
 - (a) Advertising;
 - (b) Direct mail;
 - (c) Office supplies;
 - (d) Travel;
 - (e) Expenses; and
 - (f) Telephone; and
 - (xii) The total amount of nonitemized expenditures made during the period covered by the financial report;
- (B) For a ballot question committee as defined in § 7-9-402(2)(B) or a legislative question committee as defined in § 7-9-402(10)(B) shall include the following information:
- (i) The total amount of contributions made by the committee to another ballot or legislative question committee reported during the period covered by the financial report; and
 - (ii) The cumulative amount of contributions under subdivision (2)(B)(i) of this section;
- (C) For an individual person:
- (i) The total amount of expenditures made by the individual person or on behalf of the individual person by an advertising agency, public relations firm, or political consultant during the period covered by the financial report; and
 - (ii) The cumulative amount of expenditures for each ballot question or legislative question; and
- (D) For an elected official using public funds:
- (i) The total amount of expenditures made by the elected official using public funds or on behalf of the elected official using public funds by an advertising agency, public relations firm, or political consultant during the period covered by the financial report; and
 - (ii) The cumulative amount of expenditures for each ballot question or legislative question; and
- (E) For a ballot question committee as defined under § 7-9-402 or a legislative question committee as defined in § 7-9-402:
- (i) An affirmation that the ballot question committee or legislative question committee has not knowingly or willfully received, solicited, or accepted contributions or expenditures from a prohibited source; and
 - (ii) An affirmation by the treasurer of the ballot question committee or legislative question committee that to the best of the treasurer's knowledge the donor associated with each contribution is not a foreign national and has not knowingly or willfully received, solicited, or accepted, whether directly or indirectly, contributions or expenditures from one (1) or more prohibited sources in excess of ten thousand dollars (\$10,000) in the aggregate within the four-year period immediately preceding the date of the contribution;
- (3) The name and street address of each person to whom expenditures totaling one hundred dollars (\$100) or more were made by the committee, individual person, or elected official using public funds, or on behalf of the committee, individual person, or elected official using public funds, by an advertising agency, public relations firm, or political consultant, together with the date and amount of each separate expenditure to each person during the period covered by the financial report and the purpose of each expenditure.

History. Acts 1989, No. 261, § 6; 1989, No. 634, § 6; No. 312, § 5; 2013, No. 381, § 1; 2013, No. 1085, § 2; 1993, No. 1114, § 6; 2001, No. 1839, §§ 20, 21; 2003, No. 2015, No. 226, § 9; 2017, No. 721, §§ 8-10; 2025, No. 999, 195, § 10; 2005, No. 1284, § 11; 2007, No. 1001, § 3; 2013, § 5.

7-9-408. Financial reports — Verification.

The financial reports identified in § 7-9-407 shall be verified by affidavit by the person filing them to the effect that to the best of his or her knowledge and belief the information disclosed is a complete, true, and accurate financial statement of contributions or expenditures.

History. Acts 1989, No. 261, § 8; 1989, No. 634, § 8.

7-9-409. Financial reports — Time to file — Late fee.

(a)(1) The first financial reports shall be filed no later than fifteen (15) days following the month in which the five-hundred-dollar threshold of § 7-9-406 is met and thereafter no later than fifteen (15) days after the end of each month until the election is held. Provided, however, for any month in which certain days of that month are included in a preelection financial report required under subdivision (a)(2) of this section, no monthly report for that month shall be due, but those days of that month shall be carried forward and included in the final financial report.

(2) Additionally, a preelection financial report shall be filed no fewer than seven (7) days prior to any election on the ballot question or legislative question, such statement to have a closing date of ten (10) days prior to the election.

(3)(A) A final financial report shall be filed no later than thirty (30) days after the election.

(B) If a ballot question fails to qualify for the ballot or is disqualified, the final financial report required under subdivision (a)(3)(A) of this section shall be filed no later than thirty (30) days after the end of the month in which the ballot question fails to qualify for the ballot or is disqualified.

(b) A ballot question committee, legislative question committee, or individual person who files a late financial report shall be subject to a late filing fee not exceeding fifty dollars (\$50.00) for each day the report remains unfiled.

History. Acts 1989, No. 261, §§ 7, 8; 1989, No. 634, §§ 7, 8; 1999, No. 553, §§ 25, 27; 2007, No. 1001, § 4; 2025, No. 592, § 16.

7-9-410. Public inspection — Record retention.

(a) All statements of organization and financial reports required by this subchapter shall be open to public inspection at the office of the Arkansas Ethics Commission during regular office hours.

(b) All records supporting the reports filed under this subchapter shall be:

- (1) Made available to the commission; and
- (2) Retained by the filer for a period of four (4) years after the date of filing the report.

History. Acts 1989, No. 261, § 9; 1989, No. 634, § 9; 1993, No. 1114, § 7; 1999, No. 553, § 28; 2007, No. 221, § 15.

7-9-411. Enforcement.

The Arkansas Ethics Commission shall have the same power and authority to enforce the provisions of this subchapter as is provided the commission under §§ 7-6-217 and 7-6-218 for the enforcement of campaign finance laws.

History. Acts 1993, No. 1114, § 8.

7-9-412 — 7-9-414. [Repealed.]

Publisher's Notes. These sections, concerning the use of state funds to oppose or support a ballot measure, were repealed by Acts 2013, No. 312, § 6. The sections were derived from the following sources:

7-9-412. Acts 1999, No. 1006, § 1.
 7-9-413. Acts 1999, No. 1006, § 2.
 7-9-414. Acts 1999, No. 1006, § 3.

7-9-415. Scope.

Nothing in this subchapter may limit, waive, or abrogate the scope of any statutory or common law privilege, including, but not limited to, the work product doctrine and the attorney-client privilege.

History. Acts 2005, No. 1765, § 5.

7-9-416. Contributions and expenditures for campaign signs, campaign literature, and printed campaign materials.

(a) A ballot question committee, a legislative question committee, an individual person, or an elected official who receives contributions or makes expenditures to support or oppose a ballot question or legislative question:

(1) May reuse the campaign signs, campaign literature, and other printed campaign materials in future initiative campaigns that have been properly reported in a previous campaign by that committee, individual person, or elected official; and

(2) Is not required to list the campaign signs, campaign literature, and other printed campaign materials under subdivision (a)(1) of this section in future reports filed under this subchapter.

(b)(1) Campaign signs, campaign literature, and other printed campaign materials under subsection (a) of this section shall clearly contain the words “Paid for by” followed by the name of the committee, individual person, or elected official who paid for the campaign sign, campaign literature, or other printed campaign materials.

(2) The ballot question committee, legislative question committee, individual person, or elected official printing the campaign sign, campaign literature, or other printed campaign materials shall be responsible for including the language required under subdivision (b)(1) of this section.

History. Acts 2025, No. 592, § 17.

7-9-417. Prohibited sources of funding.

(a) Upon registering as a ballot question committee or legislative question committee, the treasurer of the ballot question committee or legislative question committee shall file an accompanying certification that no preliminary activity was directly funded by prohibited sources, whether directly or indirectly.

(b) After the ballot question committee or legislative question committee has been registered, the ballot question committee or legislative question committee shall not knowingly or willfully receive, solicit, or accept contributions or expenditures from a prohibited source, whether directly or indirectly.

(c) A person who makes an independent expenditure in support of or in opposition to a ballot question committee or legislative question committee in excess of ten thousand dollars (\$10,000) in the aggregate shall keep records of any contribution or expenditure and retain such records as prescribed under § 7-9-410 from the date of receipt of the contribution or expenditure.

History. Acts 2025, No. 999, § 6.

7-9-418. Donor certification of no affiliation with prohibited sources.

(a) Upon receipt of a contribution in excess of ten thousand dollars (\$10,000) to a ballot question committee or legislative question committee, the treasurer of the ballot question committee or legislative question committee shall obtain from the donor associated with a contribution in excess of ten thousand dollars (\$10,000) in the aggregate an affirmation that the donor:

(1) Is not a foreign national; and

(2) Has not knowingly or willfully accepted donations in excess of ten thousand dollars (\$10,000) in the aggregate from one (1) or more prohibited sources within the four-year period immediately preceding the date the contribution is made.

(b) An individual, committee, or entity making one (1) or more independent expenditures in excess of ten thousand dollars (\$10,000) supporting or opposing a ballot question or legislative question shall certify to the Attorney General that the individual, committee, or entity has not knowingly or willfully accepted donations in excess of ten thousand dollars (\$10,000) in the

aggregate from one (1) or more prohibited sources within the four-year period immediately preceding the date the independent expenditure is made and that it will not do so through the remainder of the calendar year in which the ballot question or legislative question will appear on the ballot.

History. Acts 2025, No. 999, § 6.

7-9-419. Prohibited influence by a foreign national.

(a) A foreign national shall not direct, dictate, control, or directly or indirectly participate in the decision-making process of any person with regard to that person's activities to influence a ballot question or legislative question, including without limitation decisions concerning the making of contributions or expenditures to influence a ballot question or legislative question.

(b) A foreign national shall not solicit, directly or indirectly, the making of a donation, contribution, or expenditure by another person to influence a ballot question or legislative question.

(c) Nothing in this subchapter shall create or eliminate any existing donor disclosure rights or duties beyond those specifically stated in §§ 7-9-417 – 7-9-421.

History. Acts 2025, No. 999, § 6.

7-9-420. Enforcement for violations of ban on foreign funding for ballot questions and legislative questions.

(a)(1) The Attorney General may bring a civil action to enforce §§ 7-9-417 – 7-9-421.

(2) An individual, committee, or entity alleged to have violated any provision under §§ 7-9-417 – 7-9-421 shall be provided a full opportunity of notice, discovery, and an opportunity to be heard before being found liable for a violation of any provision under §§ 7-9-417 – 7-9-421.

(b) If the Attorney General prevails in an action brought under subsection (a) of this section, the court shall award:

(1) Injunctive relief sufficient to prevent the defendant from violating this subchapter or engaging in acts that aid or abet violations of any provision under §§ 7-9-417 – 7-9-421; and

(2) Statutory damages up to twice the amount of the prohibited contribution or expenditure.

(c) In addition to the penalties in this section and any other remedies provided by law, if the court finds the defendant knowingly or willfully violated any provision under §§ 7-9-417 – 7-9-421, the court may assess a penalty of up to three (3) times the statutory damages.

History. Acts 2025, No. 999, § 6.

7-9-421. Restrictions on collection and release of donor information.

(a)(1) A lawful donor to a tax-exempt organization possesses a right of privacy in the lawful donor's donations.

(2) An investigation of an alleged violation of any provision under §§ 7-9-417 – 7-9-420 and this section or a lawful court order in an action brought under § 7-9-420(a) shall occur in a manner that shields the identity of lawful donors to the extent possible.

(3) A governmental body shall not collect or require the submission of information on the identity of any donor to a tax-exempt organization other than those directly related to an alleged violation of §§ 7-9-417 – 7-9-420 and this section.

(4) Any collection or required submission of information by any governmental body regarding the identity of any donor to a tax-exempt organization beyond that permitted by any provision under §§ 7-9-417 – 7-9-420 and this section shall be deemed a violation of the Personal Information Protection Act, § 4-110-101 et seq.

(b)(1) A governmental body shall not disclose to the public or another government official not directly involved in the investigation, information revealing the identity of any donor to a tax-exempt organization, unless the information is regarding the identity of a donor that engaged

in conduct prohibited by any provision under §§ 7-9-417 — 7-9-420 and this section after a final determination has been made that the donor violated any provision under §§ 7-9-417 — 7-9-420 and this section or if the tax-exempt organization has triggered registration and reporting as a ballot question committee or a legislative question committee under this subchapter.

(2) Knowing or willful violations of this subsection shall be punishable under the Personal Information Protection Act, § 4-110-101 et seq.

(3) Any public disclosure of information revealing the identity of any donor to a tax-exempt organization by a governmental body incident to this section is a violation of the Personal Information Protection Act, § 4-110-101 et seq., unless the information is regarding the identity of a donor that engaged in conduct prohibited by any provision under §§ 7-9-417 — 7-9-420 and this section after a final determination has been made that the donor violated any provision under §§ 7-9-417 — 7-9-420 and this section.

History. Acts 2025, No. 999, § 6.

SUBCHAPTER 5 — REVIEW OF INITIATIVE PETITIONS

SECTION.

7-9-501 — 7-9-506. [Repealed.]

7-9-501 — 7-9-506. [Repealed.]

Publisher's Notes. This subchapter was repealed by Acts 2013, No. 1413, § 20. The subchapter was derived from the following sources:

7-9-501. Acts 1999, No. 877, § 1.

7-9-502. Acts 1999, No. 877, § 6.

7-9-503. Acts 1999, No. 877, § 2.

7-9-504. Acts 1999, No. 877, § 3.

7-9-505. Acts 1999, No. 877, § 4.

7-9-506. Acts 1999, No. 877, § 5.

SUBCHAPTER 6 — PAID CANVASSERS

SECTION.

7-9-601. Hiring and training of paid canvassers — Definitions.

SECTION.

7-9-602. Hiring of paid petition blockers — Definitions.

7-9-601. Hiring and training of paid canvassers — Definitions.

(a)(1) A person shall not provide money or anything of value to another person for obtaining signatures on a statewide initiative petition, statewide referendum petition, local initiative petition, or local referendum petition unless the person receiving the money or item of value meets the requirements of this section.

(2) Before a signature is solicited by a paid canvasser the sponsor shall:

(A) Provide the paid canvasser with a copy of the most recent edition of the Secretary of State's initiatives and referenda handbook;

(B) Explain the Arkansas law applicable to obtaining signatures on an initiative or referendum petition to the canvasser;

(C)(i) Provide a complete list of all paid canvassers' names and current residential addresses to the:

(a) Secretary of State for statewide initiative petitions and statewide referendum petitions; and

(b) The county clerk where the petition will be submitted for local initiative petitions and local referendum petitions.

(ii) If additional paid canvassers agree to solicit signatures on behalf of a sponsor after the complete list is provided, the sponsor shall provide an updated list of all paid canvassers' names and current residential addresses to the:

(a) Secretary of State for statewide initiative petitions and statewide referendum petitions; and

(b) The county clerk where the petition will be submitted for local initiative petitions and local referendum petitions;

(D) Submit a copy of the signed statement provided by the paid canvasser under subdivision (d)(3) of this section to the:

(i) Secretary of State for statewide initiative petitions and statewide referendum petitions; and

(ii) The county clerk where the petition will be submitted for local initiative petitions and local referendum petitions;

(E) Instruct the paid canvasser to provide the sponsor sufficient information of the paid canvasser's identity to allow the sponsor to obtain the criminal history and criminal record of the paid canvasser within thirty (30) days before the date that the paid canvasser begins collecting signatures;

(F) Obtain the criminal history and criminal record of the paid canvasser; and

(G) Contact the appropriate authority in the state or jurisdiction if a paid canvasser's criminal history and criminal record indicate an open or pending criminal charge that constitutes a disqualifying offense to determine the ultimate disposition or current status of the charge.

(3) Upon filing the petition with the Secretary of State for a statewide initiative petition or statewide referendum petition or with the county clerk for a local initiative petition or local referendum petition, the sponsor shall submit to the Secretary of State or the county clerk a:

(A) Final list of the names and current residential addresses of each paid canvasser; and

(B) Signature card for each paid canvasser.

(b)(1) To verify that there are no disqualifying offenses on record, a sponsor shall obtain, at the sponsor's cost, from the Division of Arkansas State Police, a current state criminal history and criminal record search on every paid canvasser to be registered with the Secretary of State.

(2) The criminal history and criminal record search required by this section shall be obtained within thirty (30) days before the date that the paid canvasser begins collecting signatures.

(3) Upon submission of the sponsor's list of paid canvassers under subdivision (a)(2) of this section, the sponsor shall certify to the Secretary of State or the county clerk that each paid canvasser in the sponsor's employ has no disqualifying offenses in accordance with this section.

(4) A willful violation of this section by a sponsor or paid canvasser constitutes a Class A misdemeanor.

(5) The sponsor shall bear the ultimate burden of proving that a paid canvasser registered by the sponsor does not have a disqualifying offense in an administrative proceeding or judicial proceeding.

(c) As used in this section, "paid canvasser" means a person who is paid or with whom there is an agreement to pay money or anything of value before or after a signature on an initiative or referendum petition is solicited in exchange for soliciting a signature on a petition.

(d) Before obtaining a signature on an initiative or referendum petition as a paid canvasser, the prospective canvasser shall submit in person or by mail to the sponsor:

(1) The full name and any assumed name of the person;

(2) The current residence address of the person and the person's permanent domicile address if the person's permanent domicile address is different from the person's current residence address;

(3)(A) A signed statement taken under oath or solemn affirmation stating that the person has not pleaded guilty or nolo contendere to or been found guilty of a disqualifying offense in any state of the United States, the District of Columbia, Puerto Rico, Guam, or any other United States protectorate.

(B) As used in this section, "disqualifying offense" means:

(i) A felony;

(ii) A violation of the election laws;

(iii) Fraud;

(iv) Forgery;

- (v) Counterfeiting;
 - (vi) Identity theft;
 - (vii) A crime of violence, including assault, battery, or intimidation;
 - (viii) Harassment;
 - (ix) Terroristic threatening;
 - (x) A sex offense, including sexual harassment;
 - (xi) A violation of the drug and narcotics laws;
 - (xii) Breaking and entering;
 - (xiii) Trespass;
 - (xiv) Destruction or damage of property;
 - (xv) Vandalism;
 - (xvi) Arson; or
 - (xvii) A crime of theft, including robbery, burglary, and simple theft or larceny;
- (4) A signed statement that the person has read and understands the Arkansas law applicable to obtaining signatures on an initiative or referendum petition; and
- (5) A signed statement that the person has been provided a copy of the most recent edition of the Secretary of State's initiatives and referenda handbook by the sponsor.
- (e) A sponsor shall maintain the information required under this section for each paid canvasser for three (3) years after the general election.
- (f) Signatures incorrectly obtained or submitted under this section shall not be counted by the Secretary of State or the county clerk for any purpose.
- (g)(1) It is unlawful for a person to pay or offer to pay a person, or receive payment or agree to receive payment, on a basis related to the number of signatures obtained on a statewide initiative petition, statewide referendum petition, local initiative petition, or local referendum petition.
- (2) This subsection does not prohibit compensation for circulating petitions but only compensation for obtaining signatures when the compensation or compensation level is impacted by or related to the number of signatures obtained.
- (3) A signature obtained in violation of this subsection is void and shall not be counted.
- (4) A violation under this subsection is a Class A misdemeanor.

History. Acts 2013, No. 1413, § 21; 2015, No. 1219, § 4; 2017, No. 1104, § 6; 2019, No. 376, § 13; 2021, No. 951, §§ 3-7; 2025, No. 768, §§ 7-12.

7-9-602. Hiring of paid petition blockers — Definitions.

- (a) As used in this section:
- (1) "Disqualifying offense" means:
 - (A) A felony;
 - (B) A violation of the election laws;
 - (C) Fraud;
 - (D) Forgery;
 - (E) Counterfeiting;
 - (F) Identity theft;
 - (G) A crime of violence, including assault, battery, or intimidation;
 - (H) Harassment;
 - (I) Terroristic threatening;
 - (J) A sex offense, including sexual harassment;
 - (K) A violation of the drug and narcotics laws;
 - (L) Breaking and entering;
 - (M) Trespassing;
 - (N) Destruction or damage of property;
 - (O) Vandalism;
 - (P) Arson; or
 - (Q) A crime of theft, including robbery, burglary, and simple theft or larceny;

(2) “Paid petition blocker” means a person who is paid or with whom there is an agreement to pay money or anything of value in exchange for interfering with a paid canvasser’s attempt to solicit or obtain a signature on a petition or a paid canvasser’s solicitation of a signature on a petition; and

(3) “Petition-blocking sponsor” means a person, entity, or person affiliated with an entity, who pays or who makes an agreement to pay money or anything of value in exchange for interfering with a paid canvasser’s attempt to solicit or obtain a signature on a petition or a paid canvasser’s solicitation of a signature on a petition.

(b) A petition-blocking sponsor shall:

(1) Provide a complete list of all paid petition blockers’ names and current residential addresses to the Secretary of State; and

(2) Update the list provided under subdivision (b)(1) of this section if additional paid petition blockers are hired.

(c)(1) Upon submission of the petition-blocking sponsor’s list of paid petition blockers to the Secretary of State, the petition-blocking sponsor shall certify to the Secretary of State that each paid petition blocker in the petition-blocking sponsor’s employ has no disqualifying offenses in accordance with this section.

(2) To verify that there are no disqualifying offenses on record for a paid petition blocker, a petition-blocking sponsor shall obtain, at the petition-blocking sponsor’s cost, from the Division of Arkansas State Police, a current state criminal history and criminal record search on every paid petition blocker to be registered with the Secretary of State.

(3) The criminal history and criminal record search required by this section shall be obtained within thirty (30) days before the date that the paid petition blocker begins interfering with the collection of signatures.

(d) Before acting as a paid petition blocker, the prospective paid petition blocker shall:

(1) Be a:

(A) Citizen of the United States; and

(B) Resident of this state; and

(2) Submit in person or by mail to the petition-blocking sponsor:

(A) The full name and any assumed name of the prospective paid petition blocker;

(B) The current residence address of the prospective paid petition blocker and the prospective paid petition blocker’s permanent domicile address if the prospective paid petition blocker’s permanent domicile address is different from the prospective paid petition blocker’s current residence address; and

(C) A signed statement taken under oath or solemn affirmation stating that the prospective paid petition blocker has not pleaded guilty or nolo contendere to or been found guilty of a disqualifying offense in any state of the United States, the District of Columbia, Puerto Rico, Guam, or any other United States protectorate.

(e) A petition-blocking sponsor shall maintain the information required under this section for each paid petition blocker for three (3) years after the general election.

(f) Upon conviction, a person commits a Class A misdemeanor if the petition-blocking sponsor or paid petition blocker knowingly violates this section.

History. Acts 2023, No. 766, § 2.

SUBCHAPTER 7 — CONVENTION CALLED UNDER ARTICLE V OF THE UNITED STATES CONSTITUTION

SECTION.

7-9-701. Definitions.

7-9-702. Delegates to an Article V Convention.

7-9-703. Delegate to an Article V Convention — Duties and limitations.

SECTION.

7-9-704. Delegate Advisory Group.

7-9-701. Definitions.

As used in this subchapter:

(1) “Alternate delegate” means a person selected by the General Assembly to represent the State of Arkansas at an Article V Convention if the originally chosen delegate is not able to serve or vote;

(2)(A) “Article V Application” means the document calling the Article V Convention adopted by:

(i) The United States Congress, if the Article V Convention is called by the United States Congress under Article V of the United States Constitution; and

(ii) A state legislature if the Article V Convention is called for by application of the legislatures of two-thirds ($\frac{2}{3}$) of the several states under Article V of the United States Constitution.

(B) The Article V Application under subdivision (2)(A)(ii) of this section shall be made by joint resolution passed by the General Assembly;

(3) “Article V Convention” means an interstate convention called under Article V of the United States Constitution;

(4) “Delegate” means a person selected by the General Assembly to represent the State of Arkansas at an Article V Convention, who may be referred to as a commissioner of the State of Arkansas;

(5)(A) “Legislative instructions” means the instructions of the General Assembly given to delegates and their alternate delegates regarding the permitted scope of the Article V Convention.

(B) The General Assembly shall adopt legislative instructions by joint resolution.

(C) Legislative instructions shall be consistent with the scope of the convention as defined by the Article V Application passed by the State of Arkansas and relied upon by the United States Congress to call the Article V Convention; and

(6) Except as provided under subdivision (6)(B) of this section, “unauthorized amendment” means a proposed amendment that:

(A) Does not reflect the amendment text in the Article V Application under consideration; or

(B) Is outside the subject matter permitted under the Article V Application as may be clarified by the legislative instructions.

History. Acts 2023, No. 835, § 1.

7-9-702. Delegates to an Article V Convention.

(a) The State of Arkansas shall appoint seven (7) delegates to an Article V Convention as follows:

(1) Two (2) members of the Senate appointed by a majority vote of the Senate who are serving at the time of the appointment;

(2) Three (3) members of the House of Representatives appointed by a majority vote of the House of Representatives who are serving at the time of the appointment; and

(3) Two (2) citizens of the State of Arkansas, selected by the President Pro Tempore of the Senate and the Speaker of the House of Representatives from a list of recommendations made by the Convention of States Arkansas.

(b) The State of Arkansas shall appoint three (3) alternate delegates to an Article V Convention as follows:

(1) One (1) member of the Senate appointed by a majority vote of the Senate who is serving at the time of the appointment;

(2) One (1) member of the House of Representatives appointed by a majority vote of the House of Representatives who is serving at the time of the appointment; and

(3) One (1) citizen of the State of Arkansas, selected by the President Pro Tempore of the Senate and the Speaker of the House of Representatives from a list of recommendations made by the Convention of States Arkansas.

(c) The President Pro Tempore of the Senate and the Speaker of the House of Representatives shall certify the selection of the delegate and alternate delegate by written proclamation and provide a copy of the written proclamation to the:

- (1) Delegate;
- (2) Alternate delegate;
- (3) Secretary of State; and
- (4) Article V Convention.

(d) A person shall not serve as a delegate or an alternate delegate without the written proclamation in his or her name under subsection (c) of this section.

(e) An alternate delegate shall:

- (1) Act in place of a delegate when he or she is absent from the Article V Convention; and
- (2) Replace a delegate if a delegate vacates the office.

(f) A delegate may only be replaced by the entity that selected the delegate initially.

(g) In the event an alternate delegate permanently fills the vacancy of a delegate, a new alternate delegate shall be selected by the body which chose the original alternate delegate.

(h) Alternate delegates:

- (1) May participate in caucus meetings of the Arkansas delegation to review and discuss proposed amendments;
- (2) May attend convention and committee meetings as observers;
- (3) Shall not speak publicly on the record in any meetings while still in alternate status; and
- (4) Shall not vote to determine the Arkansas vote on a proposed amendment while they are in alternate status.

(i)(1) Delegates and alternate delegates are entitled to receive the same mileage, travel, and per diem expenses as those paid to members of the General Assembly.

(2) All necessary expenses shall be paid from funds appropriated by the General Assembly.

(3) Delegates and alternate delegates are not eligible for a salary for the performance of these duties.

History. Acts 2023, No. 835, § 1.

7-9-703. Delegate to an Article V Convention — Duties and limitations.

(a) To be considered for the positions of delegate or alternate delegate, a person shall take the following oath:

“I do solemnly swear or affirm that to the best of my abilities, I will, as a delegate or alternate to an Article V Convention, uphold the Arkansas Constitution, the United States Constitution, and laws of the United States of America and the State of Arkansas. I will not vote to allow consideration of, to consider, or to approve an unauthorized amendment proposed for ratification to the United States Constitution. I agree to faithfully and impartially discharge all duties incumbent on a convention delegate, including the duty to abide by instructions established by joint resolution of the General Assembly of Arkansas and to act only within the scope of the General Assembly’s application for the convention. I understand that violation of this oath will result in my immediate recall and replacement at the Article V Convention and that additional criminal penalties may be imposed on me under Arkansas law.”

(b) The General Assembly shall determine the instructions, if any, to be given to the delegates, including without limitation instructions that:

(1) The delegates shall not support a voting rule other than the rule whereby each state exercises one (1) vote;

(2) On all voting matters and the Article V Convention, a simple majority of the Arkansas delegates shall constitute a single vote for the State of Arkansas; and

(3) The delegates shall not vote in the affirmative on an unauthorized amendment.

(c) If a delegate votes or attempts to vote to allow consideration of, to consider, or to approve an unauthorized amendment for ratification to the United States Constitution, the:

- (1) Delegate is ineligible to serve as a delegate;

- (2) Delegate's certification under § 7-9-702(a) is revoked; and
- (3) Delegate shall be immediately replaced by an alternate delegate.
- (d) A vote cast or attempted to be cast by a delegate under subsection (c) of this section is null and void.
- (e) Upon the request of a delegate or alternate delegate, the General Assembly shall provide guidance to the delegate or alternate delegate concerning whether a proposed amendment is within the permitted subject matter of the Article V Convention.
- (f)(1) If a delegate knowingly violates the oath contained in this section, the delegate is guilty of usurping, overturning, or seizing government under § 5-51-204, a Class B felony.
- (2) A person convicted of a violation under subdivision (f)(1) of this section is barred from holding public office or state employment from the date of his or her conviction.
- (g)(1) The delegates shall elect from among the delegates a chairperson who shall serve until the election of a new chairperson by the delegation.
- (2) The chairperson will report to the General Assembly on all matters pertaining to the activities of the delegates and the Article V Convention.
- (3) The chairperson shall record all votes cast on proposed amendments by the Arkansas delegation.
- (h) Each delegate shall immediately notify the Delegate Advisory Group if he or she believes a delegate has violated his or her oath or instructions while participating in the Article V Convention.

History. Acts 2023, No. 835, § 1.

7-9-704. Delegate Advisory Group.

- (a) Upon the ratification of a resolution calling for an Article V Convention, the General Assembly shall appoint a "Delegate Advisory Group" to recommend additional instructions to be given to delegates beyond those articulated in the resolution.
- (b) The Delegate Advisory Group shall consist of:
 - (1) The President Pro Tempore of the Senate, who shall serve as chair of the group;
 - (2) One (1) member of the Senate elected by a simple majority;
 - (3) The Speaker of the House of Representatives;
 - (4) Three (3) members of the House of Representatives elected by a simple majority;
 - (5) The Secretary of State; and
 - (6) One (1) citizen of the State of Arkansas, selected by the President Pro Tempore of the Senate and the Speaker of the House of Representatives from a list of recommendations made by the Convention of States Arkansas.
- (c) Upon request of a delegate, the Delegate Advisory Group shall:
 - (1) Advise delegates if there is a reason to believe an action or attempt to take an action would violate the instructions or limits placed upon delegates; and
 - (2) Render an advisory determination within twenty-four (24) hours of receiving such a request.
- (d)(1) The Delegate Advisory Group shall advise the Attorney General if there is reason to believe that a vote by the delegates has violated the instructions or exceeded the limits of the delegates' authority.
- (2) If the Attorney General declares the vote void and the credentials of the commissioner are revoked, the Attorney General shall determine if the actions of the delegate merit charges being filed against the offending delegate in accordance with the legal penalties prescribed in this subchapter.

History. Acts 2023, No. 835, § 1.

CHAPTER 10

NONPARTISAN ELECTIONS

SECTION.

7-10-101. [Repealed.]

7-10-102. Nonpartisan election of judges, justices, prosecuting attorneys, and school board members.

SECTION.

7-10-103. Filing as a candidate.

7-10-101. [Repealed.]

Publisher's Notes. This section, concerning definitions, derived from Acts 2001, No. 1789, § 1. was repealed by Acts 2013, No. 1110, § 10. The section was

7-10-102. Nonpartisan election of judges, justices, prosecuting attorneys, and school board members.

(a) The offices of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, prosecuting attorney, and member of a school district board of directors are nonpartisan offices.

(b)(1) The general elections for nonpartisan offices shall be held on the same date and at the same times and places as provided by law for preferential primary elections.

(2)(A) The names of nonpartisan candidates shall be:

(i) Included on the ballots of the political parties; and

(ii) Designated as nonpartisan candidates.

(B) Separate ballots containing the names of nonpartisan candidates shall be:

(i) Prepared; and

(ii) Made available to voters requesting a separate ballot.

(3) A voter shall not be required to vote in a political party's preferential primary to be able to vote in a nonpartisan election.

(c)(1) A person shall not be elected to the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, prosecuting attorney, or member of a school district board of directors unless the person receives a majority of the votes cast at the election for the office.

(2) In a nonpartisan election in which no person receives a majority of the votes cast, the two (2) candidates receiving the highest and next highest number of votes shall be certified to a runoff election, which shall be held on the same date and at the same times and places as the November general election.

(3) The names of the candidates in a nonpartisan runoff election shall be placed on the same ballots as used for the November general elections.

History. Acts 2001, No. 1789, § 2; 2007, No. 1020, § 20; 2009, No. 959, § 44; 2013, No. 1110, § 11; 2025, No. 503, § 17.

7-10-103. Filing as a candidate.

(a) A candidate for a nonpartisan office under this chapter shall:

(1) Pay a filing fee; or

(2) File a petition.

(b)(1) The State Board of Election Commissioners shall establish reasonable filing fees for nonpartisan offices.

(2)(A) A candidate for the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, or prosecuting attorney who chooses to pay by filing fee shall pay

the filing fee to the Secretary of State when the candidate files his or her political practices pledge.

(B) The period for paying filing fees and filing political practices pledges shall begin at 3:00 p.m. on the first day of the party filing period under § 7-7-203 and shall end at 3:00 p.m. on the last day of the party filing period under § 7-7-203.

(3)(A) The filing fees collected for the offices of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, and district judge shall be remitted to the Treasurer of State for deposit into the Nonpartisan Filing Fee Fund for covering the cost of election expenses of the State Board of Election Commissioners.

(B)(i) Except as provided in subdivision (b)(3)(B)(ii) of this section, the filing fees collected for the office of prosecuting attorney shall be remitted to the Treasurer of State for deposit into the Nonpartisan Filing Fee Fund.

(ii) The first one hundred thousand dollars (\$100,000) collected annually from filing fees for the office of prosecuting attorney shall be remitted to the Treasurer of State for deposit into the Trial Court Administrator Fund.

(c)(1)(A)(i) A person may have his or her name placed on the ballot for a nonpartisan office without paying a filing fee by filing a petition in the manner provided for under this section. A petition for a candidate for the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, or prosecuting attorney shall be filed with the Secretary of State beginning at 12:00 noon fifty-three (53) days before the first day of the party filing period under § 7-7-203 and ending at 12:00 noon forty-six (46) days before the first day of the party filing period under § 7-7-203.

(ii) A nonpartisan candidate filing by petition shall file a political practices pledge with the petition.

(B)(i) The petition shall:

(a) Be directed to the office with which it is to be filed; and

(b) Request that the name of the candidate be placed on the ballot for the election set forth in the petition.

(ii) A candidate shall not begin circulating petitions earlier than sixty (60) days before the filing deadline.

(C)(i) The Secretary of State within forty-five (45) days of the filing of the petition shall:

(a) Determine whether the petition contains the names of a sufficient number of qualified electors; and

(b) Verify the sufficiency of the petition.

(ii) The sufficiency of a petition filed under this section may be challenged in the same manner as provided by law for election contests under § 7-5-801 et seq.

(D) A qualified elector signing the petition must be a registered voter in the geographic area applicable to the position at the time he or she signs the petition. Each qualified elector shall provide on the petition his or her:

(i) Printed name;

(ii) Signature;

(iii) Address;

(iv) Date of birth; and

(v) Date of signing.

(E) In determining the number of qualified electors in the state or in any court of appeals district, circuit court circuit, or district court district, the number of votes cast for Governor in the immediately preceding general gubernatorial election shall be conclusive of the number of all qualified electors in the state, circuit, or district for purposes of this section.

(2)(A) A candidate by petition for Justice of the Supreme Court shall file a petition signed by the lesser of:

(i) Three percent (3%) of the qualified electors residing within the state; and

(ii) Ten thousand (10,000) qualified electors.

(B) A candidate by petition for Judge of the Court of Appeals shall file a petition signed by the lesser of:

- (i) Three percent (3%) of the qualified electors residing within the court of appeals district for which the candidate seeks office; and
- (ii) Two thousand (2,000) qualified electors.
- (C) A candidate by petition for circuit judge shall file a petition signed by the lesser of:
 - (i) Three percent (3%) of the qualified electors residing within the circuit for which the candidate seeks office; and
 - (ii) Two thousand (2,000) qualified electors.
- (D) A candidate by petition for district judge shall file a petition signed by the lesser of:
 - (i) One percent (1%) of the qualified electors residing within the district for which the candidate seeks office; and
 - (ii) Two thousand (2,000) qualified electors.
- (E) A candidate by petition for prosecuting attorney shall file a petition signed by the lesser of:
 - (i) Three percent (3%) of the qualified electors residing within the district for which the candidate seeks office; and
 - (ii) Two thousand (2,000) qualified electors.
- (d) [Repealed.]
- (e) A candidate for Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, or prosecuting attorney shall file with the Secretary of State.
- (f)(1)(A) A nonpartisan candidate shall not use more than three (3) given names, one (1) of which may be a nickname or another word used to identify the candidate to the voters.
- (B)(i) A nonpartisan candidate may add as a prefix to his or her name the title or an abbreviation of an elective public office the candidate currently holds.
- (ii) A candidate may use as the prefix the title of a nonpartisan judicial office in an election for a nonpartisan judicial office only if:
 - (a) The candidate is currently serving in a judicial position to which the candidate has been elected in the last election for the office; or
 - (b) The candidate:
 - (1) Is a candidate for the office of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, or district judge;
 - (2) Is currently serving in the position of Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, or district judge as an appointee; and
 - (3) Has been serving in that position for at least twelve (12) months.
- (C) A nickname shall not include a professional or honorary title.
- (2) The person filing for office shall include his or her surname in addition to any given names permitted under subdivision (f)(1)(A) of this section.
- (3) The names and titles to be used by a candidate on the political practices pledge shall be reviewed no later than one (1) business day after the filing deadline by the Secretary of State for a candidate for Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, district judge, and prosecuting attorney.
- (4)(A) The name of each candidate shall be printed on the ballot in the form as certified by the Secretary of State.
- (B) The county board of election commissioners may substitute an abbreviated title if the ballot lacks space for the title requested by a candidate.
- (C) The county board of election commissioners immediately shall notify a candidate whose requested title is abbreviated by the county board of election commissioners.
- (5) A candidate shall not change the form in which his or her name will be printed on the ballot after the deadline for filing the political practices pledge.

History. Acts 2001, No. 1789, § 3; 2005, No. 67, § 26; No. 1110, § 12; 2013, No. 1286, § 1; 2015, No. 268, § 13; 2007, No. 1049, § 32; 2009, No. 959, § 45; 2009, No. 1407, 2019, No. 527, § 2; 2023, No. 305, §§ 12, 13; 2025, No. 715, §§ 1, 2; 2011, No. 1185, § 14; 2013, No. 1075, § 2; 2013, § 1; 2025, No. 761, § 1.

CHAPTER 11

SPECIAL ELECTIONS

SUBCHAPTER.

1. ELECTIONS TO FILL VACANCIES.
2. SPECIAL ELECTIONS ON MEASURES AND QUESTIONS.
3. CERTAIN PROCEDURES FOR SPECIAL ELECTIONS.

SUBCHAPTER 1 — ELECTIONS TO FILL VACANCIES

SECTION.

- 7-11-101. Calling elections to fill vacancies.
7-11-102. Content of calling document.
7-11-103. Filling vacancies in state, federal, or district offices.
7-11-104. Filling vacancies in local offices.
7-11-105. Special elections to be held on the second Tues-

SECTION.

- day of a month — Exceptions — Separate ballots.
7-11-106. Special primary elections held in conjunction with regularly scheduled primary election — Separate ballots optional.
7-11-107. Unopposed candidates.

7-11-101. Calling elections to fill vacancies.

All special elections and other elections to fill a vacancy in an office shall be called by proclamation, ordinance, resolution, order, or other authorized document of the appropriate constituted authority.

History. Acts 2009, No. 1480, § 47.

7-11-102. Content of calling document.

The proclamation, ordinance, resolution, order, or other authorized document of the appropriate constituted authority calling a special election or other election to fill a vacancy in an office shall set forth:

- (1) The date of the election;
- (2) The date of the special primary election, if any;
- (3) The date of the special primary runoff election, if any is required;
- (4) The deadline for filing as a party candidate with the county clerk or Secretary of State, as the case may be;
- (5) The deadline for party conventions to select nominees if applicable;
- (6) The deadline for parties to issue certificates of nomination or certified lists of nominees, as the case may be, if applicable;
- (7) The deadline for candidates to file certificates of nomination, if applicable, with the county clerk or Secretary of State, as the case may be;
- (8) The deadline for filing as an independent candidate and the period in which petitions for independent candidacy may be circulated;
- (9) [Repealed.]
- (10) The deadline for drawing for ballot position by the county board of election commissioners; and
- (11) The date the election shall be certified by the county board of election commissioners in each county in which the election takes place and, if applicable, by the Secretary of State.

History. Acts 2009, No. 1480, § 47; 2025, No. 284, § 5.

7-11-103. Filling vacancies in state, federal, or district offices.

(a) The proclamation, ordinance, resolution, order, or other authorized document of the appropriate constituted authority calling a special election to fill a state, federal, or district office

shall be filed with the Secretary of State, who shall immediately transmit the document to the county board of election commissioners of each county where the special election shall be held.

(b) The county board of election commissioners shall cause the proclamation, ordinance, resolution, order, or other authorized document to be published as soon as practicable in a newspaper of general circulation in the county in which the special election is held.

History. Acts 2009, No. 1480, § 47.

7-11-104. Filling vacancies in local offices.

(a) The proclamation, ordinance, resolution, order, or other authorized document of the appropriate constituted authority calling a special election to fill a local office shall be filed with the county clerk of the county administering the election, who shall immediately transmit the document to the county board of election commissioners of each county where the special election shall be held.

(b) The county board of election commissioners shall cause the proclamation, ordinance, resolution, order, or other authorized document to be published as soon as practicable in a newspaper of general circulation in the county in which the special election is held.

History. Acts 2009, No. 1480, § 47.

7-11-105. Special elections to be held on the second Tuesday of a month — Exceptions — Separate ballots.

(a)(1) Except as provided in this chapter, all special elections to fill vacancies in office and associated special primary elections shall be held on the second Tuesday of:

(A) March, May, August, or November in a year when a presidential election is held; and

(B) February, May, August, or November of all other years.

(2) Elections called by proclamation of the Governor may be called in any month.

(b) A special election scheduled to occur in a month in which the second Tuesday of the month is a legal holiday shall be held on the third Tuesday of the month.

(c)(1) Special elections held in months in which a preferential primary election or general election is scheduled to occur shall be held on the date of the preferential primary election or general election.

(2) If a special election to fill a vacancy in office is held on the date of the preferential primary election, the names of the candidates in the special election shall be included on the ballot of each political party, and the portion of the ballot on which the special election appears shall be labeled with a heading stating “SPECIAL ELECTION FOR _____” with the name of the office set out in the heading.

(3) Separate ballots containing the names of the candidates to be voted on at the special election or nonpartisan election and any other measures or questions that may be presented for a vote shall be prepared and made available to voters requesting a separate ballot.

(4)(A) A voter shall not be required to vote in a political party’s preferential primary election in order to be able to vote in the special election.

(B)(i) If the special election is held at the same time as the general election, the names of the candidates in the special election shall be included on the general election ballot, and the portion of the ballot on which the special election appears shall be labeled with a heading stating “SPECIAL ELECTION FOR _____” with the name of the office set out in the heading.

(ii) The county board of election commissioners may include the special election on a separate ballot if the special election is held at the same time as the general election and the county board of election commissioners determines that a separate ballot is necessary to avoid voter confusion.

(d) A special election to fill a vacancy in office shall be held not less than seventy (70) days following the date established in the proclamation, ordinance, resolution, order, or other authorized document for drawing for a ballot position.

History. Acts 2009, No. 1480, § 47; 2011, No. 1185, § 15; 2013, No. 1110, § 13; 2017, No. 1088, § 2; 2021, No. 610, § 8.

7-11-106. Special primary elections held in conjunction with regularly scheduled primary election — Separate ballots optional.

(a) When a special primary election is held on the date of the preferential primary or general primary election, the candidates to be voted upon at the special primary election shall be included on the ballot of each political party, and the portion of the ballot on which the special primary election appears shall be labeled with a heading stating “SPECIAL PRIMARY ELECTION FOR _____” with the name of the party for which nomination is sought and the office set out in the heading.

(b) The county board of election commissioners may include the special primary election on a separate ballot if the special primary election is held at the same time as a preferential primary election or general primary election and the county board of election commissioners determines that a separate ballot is necessary to avoid voter confusion.

History. Acts 2009, No. 1480, § 47; 2017, No. 1088, § 3.

7-11-107. Unopposed candidates.

(a)(1) If there is only one (1) candidate after all deadlines for filing as a candidate have passed in a special election to fill a vacancy and if no other office or issue is on the ballot, the county board of election commissioners may declare and certify the candidate as elected in the same manner as if the candidate had been voted upon at the election.

(2) If there is only one (1) candidate after all deadlines for filing as a candidate have passed in a special primary election to fill a vacancy, the county board of election commissioners shall certify the candidate as the nominee of the political party without holding a special primary election for the political party.

(b) If there is only one (1) candidate for municipal office after all the deadlines for filing as a candidate have passed in a special election to fill a vacancy and if no other office or issue is on the ballot, the county board of election commissioners may declare and certify the candidate as elected in the same manner as if the candidate had been voted upon at the election.

History. Acts 2009, No. 1480, § 47; 2013, No. 580, § 1; 2015, No. 1244, § 3; 2017, No. 730, § 6.

SUBCHAPTER 2 — SPECIAL ELECTIONS ON MEASURES AND QUESTIONS

SECTION.

7-11-201. Calling special elections on measures or questions.

7-11-202. Calling special elections on state measures or questions.

7-11-203. Calling special elections on local measures or questions.

SECTION.

7-11-204. Content of calling document.

7-11-205. Dates of special elections on measures and questions — Exceptions — Separate ballots — Definition.

7-11-201. Calling special elections on measures or questions.

All special elections on measures or questions referred to the voters by governmental entities as authorized by law shall be called by proclamation, ordinance, statute, resolution, order, or other authorized document of the properly constituted authority as required by law.

History. Acts 2009, No. 1480, § 47; 2021, No. 610, § 9.

7-11-202. Calling special elections on state measures or questions.

(a) The document under § 7-11-201 calling the special election on a state measure or question shall be filed with the Secretary of State, who shall immediately transmit the document to the county board of election commissioners in each county where the special election is to be held.

(b) The county board of election commissioners shall publish the document as soon as practicable in a newspaper of general circulation in the county in which the special election is held.

History. Acts 2009, No. 1480, § 47.

7-11-203. Calling special elections on local measures or questions.

(a) The document under § 7-11-201 calling the special election on a local measure or question shall be filed with the county clerk of the county administering the election, who shall immediately transmit the document to the county board of election commissioners in each county where the special election is to be held.

(b) The county board of election commissioners shall publish the document as soon as practicable in a newspaper of general circulation in the county in which the special election is held.

History. Acts 2009, No. 1480, § 47.

7-11-204. Content of calling document.

The proclamation, ordinance, statute, resolution, order, or other authorized document of the properly constituted authority calling the special election shall state:

- (1) The date of the special election;
- (2) The full text of any measure or question for which the election is called;
- (3) The ballot title, if any, for the measure or question for which the election is called; and
- (4) Any other information required by law.

History. Acts 2009, No. 1480, § 47.

7-11-205. Dates of special elections on measures and questions — Exceptions — Separate ballots — Definition.

(a)(1) Except as provided in subdivision (a)(2) of this section, all special elections on measures or questions referred to the voters by governmental entities as authorized by law shall be held on the:

- (A) First Tuesday after the first Monday in March; or
- (B) Second Tuesday of November.

(2)(A) Special elections scheduled to occur on a legal holiday:

(i) In March on the first Tuesday after the first Monday shall be held on the second Tuesday of the month; and

(ii) In November on the second Tuesday shall be held on the third Tuesday of the month.

(B) Special elections held in months in which a preferential primary election or general election is scheduled to occur shall be held on the date of the preferential primary election or general election.

(C) A special election on a measure or question may be scheduled on the second Tuesday of a month, other than the months provided in subdivision (a)(1) of this section, if necessary to comply with the requirements of Arkansas Constitution, Article 5, § 1.

(b)(1) An emergency special election may be held on a date other than the dates specified under subsection (a) of this section.

(2) An emergency special election may be held on the second Tuesday of any month, other than the month following a preferential primary election or general election, when two-thirds ($\frac{2}{3}$) of all the members elected to the governing entity have determined that an emergency exists.

(3) As used in this subsection, “emergency” means that:

(A) A substantial change has occurred in:

(i) The interpretation of the law by the federal or state courts which if not addressed by an election will render the governing entity incapable of performing its lawful duties and obligations;

(ii) Circumstances due to a fire, flood, tornado, or other natural disaster which if not addressed by an election will render the governing entity financially incapable of performing its lawful duties and obligations; or

(iii) Circumstances that the governing body of the entity requesting the election has determined to be an imminent danger to public health and safety; and

(B) A delay of the emergency special election until the next date under this section would cause a substantial and undue hardship to the governing entity or a threat to the public peace, health, and safety.

(4)(A) A qualified elector for an emergency special election may file an action in the circuit court of the county in which the document calling for the emergency special election is filed to ask the court to determine if circumstances exist that permit the governing entity to call an emergency special election under this subsection.

(B) If the court determines circumstances do not exist that permit the governing entity to call an emergency special election:

(i) The emergency special election shall not occur; or

(ii) If the emergency special election has already occurred, any measure approved in the emergency special election shall be void.

(C) A challenge filed under subdivision (b)(4)(A) of this section may not be filed more than thirty (30) days from the date the document calling for the special election being challenged is filed with the county clerk.

(c)(1) If a special election is held on the date of the preferential primary election, the issue or issues to be voted upon at the special election shall be included on the ballot of each political party.

(2) The portion of the ballot containing the special election shall be labeled with a heading stating “SPECIAL ELECTION ON _____” with a brief description of the measure or question to be decided in the election.

(d) Separate ballots containing the issue or issues to be voted on at the special election and candidates for nonpartisan judicial office shall be prepared and made available to voters requesting a separate ballot.

(e) A voter shall not be required to vote in a political party’s preferential primary in order to be able to vote in the special election.

(f) A special election shall be held not less than seventy (70) days following the date that the proclamation, ordinance, resolution, order, or other authorized document is filed with the county clerk.

History. Acts 2009, No. 1480, § 47; 2011, No. 1185, § 16; 2017, No. 1088, § 4; 2021, No. 610, § 10; 2023, No. 300, § 1; 2025, No. 405, § 8.

SUBCHAPTER 3 — CERTAIN PROCEDURES FOR SPECIAL ELECTIONS

SECTION.

7-11-301. Law governing special elections.

7-11-302. Special procedures for vacancies filled under
Arkansas Constitution, Amendment 29.

SECTION.

7-11-303. Notice.

7-11-301. Law governing special elections.

In cases of circumstances or procedures that may arise in connection with any special election for which there is no provision in law governing the circumstances or procedures, the special election shall be governed by:

- (1) The general election laws of this state; or
- (2) In the case of special primary elections, the primary election laws of this state.

History. Acts 2009, No. 1480, § 47.

7-11-302. Special procedures for vacancies filled under Arkansas Constitution, Amendment 29.

Whenever a vacancy in office is to be filled under Arkansas Constitution, Amendment 29, the following shall apply:

- (1) The Governor shall issue a proclamation calling an election to fill a vacancy;
- (2) If the vacancy occurs less than one hundred eighty (180) days before a general election at which the vacancy is to be filled and the position is one that may be filled by partisan election, the political parties shall choose their nominees at a convention of delegates held in accordance with the party rules for the convention;
- (3) If the vacancy occurs more than one hundred eighty (180) days before the general election and is a position that may be filled by partisan election, the Governor shall certify in writing to the state committees of the respective political parties the fact of vacancy and shall request the respective state committees to make a determination and notify him or her in writing within ten (10) days with respect to whether the political parties desire to hold a special primary election or a convention of delegates under party rules to choose nominees;
- (4) If the state committee of any political party shall timely notify the Governor that it chooses to hold a special primary election, it is mandatory that any political party desiring to choose a nominee shall choose the nominee at a special primary election, and the Governor's proclamation shall set dates for both the special primary election and for any runoff primary election to be held if no candidate receives a majority of the vote at the special primary election; and
- (5) If no state committee of any political party timely notifies the Governor of the desire to hold either a primary election or convention of delegates, the Governor, in issuing his or her proclamation calling for the special election, shall declare that the nominee of any political party shall be chosen at a convention of delegates.

History. Acts 2009, No. 1480, § 47.

7-11-303. Notice.

In addition to the publication of the calling document, notice of special elections under this chapter shall be published and posted under §§ 7-5-202 and 7-5-206.

History. Acts 2009, No. 1480, § 47.

TITLE 13

LIBRARIES, ARCHIVES, AND CULTURAL RESOURCES

CHAPTER.

4. PUBLIC RECORDS MANAGEMENT AND ARCHIVES.

CHAPTER 4

PUBLIC RECORDS MANAGEMENT AND ARCHIVES

SUBCHAPTER 3 — COUNTY RECORDS RETENTION

SECTION.

13-4-306. Voter registration and election records.

13-4-306. Voter registration and election records.

All counties shall maintain county voter registration and election records for the county as follows, if the records are currently being:

- (1) Maintained permanently:
 - (A) Voter registration record files;
 - (B) Maps of election precincts from the county board of election commissioners;
 - (C) Certificates of election; and
 - (D) Ordinance election results;
- (2) Maintained for ten (10) years, after canceled, a person's voter registration record and reason for cancellation of a person's voter registration;
- (3) Maintained for ten (10) years:
 - (A) Minutes of the board of election commissioners; and
 - (B) Election files;
- (4) Maintained for five (5) years:
 - (A) Petition, certificate, and notices for ordinance;
 - (B) Political practice pledges;
 - (C) Campaign contribution and expenditure sheets;
 - (D) Code of ethics statements; and
 - (E) Financial disclosures;
- (5) Maintained for two (2) years:
 - (A) Acknowledgement notices giving the disposition of a person's voter registration application;
 - (B) Precinct voter registration lists prepared for each election;
 - (C) Confirmation notices mailed by a county clerk to confirm a voter's change of residence or name;
 - (D) Confirmation return cards received in response to a confirmation notice;
 - (E) Absentee ballot applications and lists, except where litigation follows or federal law governs; and
 - (F) Voter registration cards; and
- (6) Until an election is certified to the Secretary of State under § 7-5-701, all unused ballots.

History. Acts 1991, No. 800, § 5; 1995, No. 925, § 2; 1995, No. 939, § 2; 2017, No. 560, § 3.

TITLE 14

LOCAL GOVERNMENT

SUBTITLE 2. COUNTY GOVERNMENT

CHAPTER.

- 14. COUNTY GOVERNMENT CODE.
- 15. OFFICERS.
- 20. QUORUM OR LEVYING COURTS.

SUBTITLE 3. MUNICIPAL GOVERNMENT

CHAPTER.

- 37. CLASSIFICATION OF CITIES AND TOWNS.
- 38. INCORPORATION AND ORGANIZATION OF MUNICIPALITIES.
- 40. ANNEXATION, CONSOLIDATION, AND DETACHMENT BY MUNICIPALITIES.
- 42. GOVERNMENT OF MUNICIPALITIES GENERALLY.
- 43. GOVERNMENT OF CITIES OF THE FIRST CLASS.
- 44. GOVERNMENT OF CITIES OF THE SECOND CLASS.
- 45. GOVERNMENT OF INCORPORATED TOWNS.
- 47. CITY MANAGER FORM OF MUNICIPAL GOVERNMENT.
- 48. CITY ADMINISTRATOR FORM OF MUNICIPAL GOVERNMENT.
- 61. CITY MANAGER ENABLING ACT OF 1989.

SUBTITLE 7. WATER AND SOIL IMPROVEMENT DISTRICTS

CHAPTER.

- 116. REGIONAL WATER DISTRIBUTION DISTRICT ACT.
- 123. LEVEE IMPROVEMENT DISTRICTS GENERALLY.

SUBTITLE 17. PUBLIC HEALTH AND WELFARE IMPROVEMENT DISTRICTS

CHAPTER.

- 284. FIRE PROTECTION DISTRICTS.

SUBTITLE 2. COUNTY GOVERNMENT

CHAPTER 14

COUNTY GOVERNMENT CODE

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 14-14-115. Civil office-holding — Definition.
- 14-14-116. Publication statement — Newspaper.

14-14-115. Civil office-holding — Definition.

(a)(1) A person elected or appointed to any of the following county offices shall not be elected or appointed to another civil office during the term for which he or she has been elected:

- (A) County judge;
- (B) Justice of the peace;
- (C) Sheriff;
- (D) Circuit clerk;
- (E) County clerk;
- (F) Assessor;
- (G) Coroner;
- (H) Treasurer;

- (I) County surveyor; or
- (J) Collector.

(2) An elected county official under subdivision (a)(1) of this section may run for a civil office during the term for which he or she has been elected.

(b)(1) As used in this section, “civil office” means any one (1) of the following elected or appointed positions, including without limitation:

- (A) County election commissioner;
- (B) Member of the Post-Prison Transfer Board;
- (C) Member of a school board;
- (D) Prosecuting attorney or deputy prosecuting attorney;
- (E) Constable;
- (F) Sheriff or deputy sheriff;
- (G) Chief of police or city police officer;
- (H) City attorney;
- (I) City council member;
- (J) Member of a drainage improvement district board;
- (K) Member of a public facilities board;
- (L) Member of a soil conservation district board;
- (M) Member of a county library board;
- (N) Member of a rural development authority;
- (O) Member of a rural waterworks facilities board or regional water distribution board;
- (P) Member of an airport commission;
- (Q) Member of a county or district board of health;
- (R) Member of a levee board or levee improvement district board; and
- (S) Member of the Career Education and Workforce Development Board.

(2) As used in this section, “civil office” does not include a position that a county official may be appointed to on an advisory board or task force established to assist:

- (A) The Governor;
- (B) The General Assembly;
- (C) A state agency;
- (D) A state department;
- (E) A county office;
- (F) A county department; or
- (G) A subordinate service district.

(3) As used in this section, “civil office” does not include a position in which a county official is required to serve by law and that is related to the county official’s duties, including without limitation:

- (A) A member of an intergovernmental cooperation council;
- (B) A member of a county equalization board;
- (C) A member of a regional solid waste management district board;
- (D) A member of a planning and development district board;
- (E) A member of the Arkansas Commission on Law Enforcement Standards and Training;
- (F) A member of the Electronic Recording Commission;
- (G) A member of a county hospital board;
- (H) A member of the Arkansas Workforce Development Board;
- (I) A member of the State Board of Election Commissioners;
- (J) A member of the Criminal Justice Institute Advisory Board for Law Enforcement Management Training and Education;
- (K) A member of the Board of Trustees of the Arkansas Public Employees’ Retirement System;
- (L) A special judge appointment under Arkansas Constitution, Article 7, § 36;
- (M) A member of the Arkansas 911 Board or any successor board; and
- (N) A member of the Professional Bail Bond Company and Professional Bail Bondsman Licensing Board.

(c) This section does not prevent a person:

(1) From being elected or appointed to an office under subdivision (a)(1) of this section if he or she held a civil office before January 1, 2017; or

(2) From continuing to hold a civil office the person held before appointment or election to an office under subdivision (a)(1) of this section.

History. Acts 2019, No. 639, § 1; 2023, No. 659, § 113.

A.C.R.C. Notes. Acts 2023, No. 659, § 1, provided: “This act shall be known as the ‘Protect Arkansas Act’.”

Amendments. The 2023 amendment substituted “Post-Prison Transfer Board” for “Parole Board” in (b)(1)(B).

Effective Dates. Acts 2023, No. 659, § 255: Jan. 1, 2024. Effective date clause provided: “Sections 1-249 of this act and sections 251-254 of this act are effective on and after January 1, 2024.”

14-14-116. Publication statement — Newspaper.

(a) A required publication made by a county in a newspaper shall include the statement “This publication was paid for by” and shall:

- (1) Identify the county entity responsible for payment of the publication;
- (2) Identify the office within the county entity responsible for payment of the publication; and
- (3) Disclose the amount paid for the publication.

(b) The statement and information required under subsection (a) of this section shall be:

- (1) Provided by the county; and
- (2) Printed in the same font size as the required publication.

(c) This section applies to notices required to be published under §§ 14-14-104, 14-14-105, 14-14-905, 14-14-917, 14-16-105, 14-16-106, 14-21-102, 14-22-101, 22-9-203, 26-36-203, 26-37-102, and 26-37-107.

History. Acts 2021, No. 954, § 1.

SUBCHAPTER 4 — QUORUM COURT DISTRICTS

SECTION.

14-14-401. Establishment — Townships continued.

14-14-402. Number of districts.

14-14-403. Apportionment of districts.

14-14-404. Federal decennial census data.

SECTION.

14-14-405. Filing and publishing of plan.

14-14-406. Contest of apportionment.

14-14-407. Certification of plan.

14-14-401. Establishment — Townships continued.

(a) Each county of the state shall divide its land area into convenient county quorum court districts in a manner and at times prescribed by the General Assembly.

(b) The county court of each county in this state shall have the authority to divide the county into convenient townships, subdivide those already established, and alter township lines.

(c) It shall be the duty of the clerk of the county court to enter on the minutes of the court a description of each township established by the court containing the name and boundaries of the township and the place appointed for holding elections and shall also note in the minutes every alteration that is made in any township lines.

(d) The clerk of the county court shall within thirty (30) days after establishing any new township or altering any existing township line, provide the Secretary of State a certified copy of the record made.

(e) If any county clerk in this state has not furnished the Secretary of State with a description of the several townships in the county, it shall be the duty of the county court to direct the clerk of that court to provide the Secretary of State with the description.

(f) Whenever the county court of any county in this state orders the formation of one (1) or more new townships or changes the boundary lines of any of the townships in the county, which formation or change shall require additional township officers, the additional township officer or officers shall be filled in accordance with Arkansas Constitution, Article 7, § 50 [repealed].

History. Acts 1977, No. 742, § 32; 1979, No. 413, § 4; A.S.A. 1947, § 17-3401; Acts 1997, No. 1090, § 1.

14-14-402. Number of districts.

The number of convenient quorum court districts to be established in each county shall be determined according to the following population categories:

<u>Quorum Court Districts</u>	<u>Population</u>
9	0 to 19,999
11	20,000 to 49,999
13	50,000 to 199,999
15	200,000 and above

History. Acts 1977, No. 742, § 33; 1979, No. 413, § 4; A.S.A. 1947, § 17-3402.

14-14-403. Apportionment of districts.

(a) The county board of election commissioners in each county shall be responsible for the apportionment of the county into quorum court districts. Until otherwise changed in the method set forth in this subchapter, the districts of each county shall consist of the territory of the township established by the county board of election commissioners on or before November 3, 1975, pursuant to the provisions of Acts 1975, No. 128 [repealed]. Thereafter, districts shall be apportioned on or before the first Monday after January 1, 1982, and each ten (10) years thereafter.

(b) All apportionments shall be based on the population of the county as of the last federal decennial census, and the number of districts apportioned shall be equal to the number to which the county is entitled by law.

(c) The provisions of this subchapter shall not be construed to affect the composition of the county committees of the political parties, and the county committee of each political party shall designate the geographic area within the county from which county committee members shall be selected.

History. Acts 1977, No. 742, § 34; 1979, No. 413, § 4; A.S.A. 1947, § 17-3403.

14-14-404. Federal decennial census data.

The Board of Apportionment shall provide each of the respective county boards of election commissioners with the appropriate and necessary federal decennial census information, not less than ninety (90) days prior to the date established for apportionment of county quorum court districts.

History. Acts 1977, No. 742, § 35; 1979, No. 413, § 4; A.S.A. 1947, § 17-3404.

14-14-405. Filing and publishing of plan.

(a) Not later than the date set for the apportionment of county quorum court districts, the county board of election commissioners shall file its report with the clerk of the county court, setting forth the district boundaries and the number of inhabitants within them.

(b) Within fifteen (15) days of the filing of an apportionment plan, the clerk of the county court shall cause to be published in a newspaper of general circulation in the county the district boundaries apportioned and the number of inhabitants within them.

History. Acts 1977, No. 742, § 36; 1979, No. 413, § 4; A.S.A. 1947, § 17-3405.

14-14-406. Contest of apportionment.

Original jurisdiction of any suit to contest the apportionment made for county quorum court districts by a county board of election commissioners is vested in the circuit court of the affected county. Any such contest shall be filed with the circuit court within thirty (30) days following the date publication appears in a newspaper of general circulation.

History. Acts 1977, No. 742, § 37; 1979, No. 413, § 4; A.S.A. 1947, § 17-3406.

14-14-407. Certification of plan.

The clerk of the county court, within seven (7) calendar days following the expiration of the time period provided for the filing of contest of an apportionment plan, shall transmit to the Secretary of State a certified copy of the record made of an apportionment plan.

History. Acts 1977, No. 742, § 38; A.S.A. 1947, § 17-3407.

SUBCHAPTER 9 — LEGISLATIVE PROCEDURES

SECTION.

14-14-914. Initiative and referendum generally.

14-14-915. Initiative and referendum requirements.

14-14-916. Judicial jurisdiction over initiative and referendum.

SECTION.

14-14-917. Initiative and referendum elections.

14-14-918. Passage of initiative and referendum measures.

14-14-919. Referendum petitions on county bond issue.

14-14-914. Initiative and referendum generally.

(a) **COUNTY LEGISLATIVE POWERS RESERVED.** The powers of initiative and referendum are reserved to the electors of each county government pursuant to Arkansas Constitution, Amendment 7.

(b) **RESTRICTIONS.** No county legislative measure shall be enacted contrary to the Arkansas Constitution or any general state law which operates uniformly throughout the state, and any general law of the state shall have the effect of repealing any county ordinance which is in conflict therewith. All ordinances adopted by the county quorum court providing for alternative county organizations and all proposed reorganizations of county government that may be proposed by initiative petition of electors of the county under Arkansas Constitution, Amendment 7, shall be submitted to the electors of the county only at the next following general election. However, such referendum shall be subject to initiative petition.

(c) **PETITION BY ELECTORS.** The qualified electors of each county may initiate and amend ordinances and require submission of existing ordinances to a vote of the people by petition if signed by not less than fifteen percent (15%) of the qualified electors voting in the last general election for the office of circuit clerk, or the office of Governor where the electors have abolished the office of circuit clerk.

(d) **SUSPENSION OF FORCE.**

(1) **GENERAL ORDINANCE.** A referendum petition on a general ordinance, or any part thereof, shall delay the effective date on that part included in the petition until the ordinance is ratified by the electors. However, the filing of a referendum petition against one (1) or more items, sections, or parts of any ordinance shall not delay the remainder from becoming operative.

(2) **EMERGENCY ORDINANCE.** A referendum petition on an emergency ordinance shall not suspend the force of the law, but the measure may be law until it is voted upon by the electors.

History. Acts 1977, No. 742, § 94; 1979, No. 413, § 24; A.S.A. 1947, § 17-4011.

14-14-915. Initiative and referendum requirements.

(a) **STYLE REQUIREMENTS OF PETITIONS.** A petition for county initiative or referendum filed by the electors shall:

(1) Embrace only a single comprehensive topic and shall be styled and circulated for signatures in the manner prescribed for county ordinances and amendments to ordinances established in this section and § 7-9-101 et seq.;

(2) Set out fully in writing the ordinance sought by petitioners; or in the case of an amendment, set out fully in writing the ordinance sought to be amended and the proposed amendment; or in the case of referendum, set out the ordinance, or parts thereof, sought to be repealed;

(3)(A)(i) Contain a written certification of legal review by an attorney at law duly registered and licensed to practice in the State of Arkansas.

(ii) This legal review shall be conducted for the purpose of form, proper title, legality, constitutionality, and conflict with existing ordinances.

(iii) Legal review shall be concluded prior to the circulations of the petition for signatures.

(B) No change shall be made in the text of any initiative or referendum petition measure after any or all signatures have been obtained; and

(4) Contain the full ballot title of the initiative or referendum at the top of each signature page.

(b) **TIME REQUIREMENTS FOR FILING PETITIONS.** (1) **INITIATIVE PETITIONS.**

(A) All petitions for initiated county measures shall be filed with the county clerk not less than ninety (90) calendar days nor more than one hundred twenty (120) calendar days prior to the date established for the next regular election.

(B) A petition sponsor shall comply with §§ 7-9-107 and 7-9-601 before filing an initiative or referendum petition with the county clerk in the county where the petition will be circulated.

(2) **REFERENDUM PETITIONS.** All petitions for referendum on county measures must be filed with the county clerk within sixty (60) calendar days after passage and publication of the measure sought to be repealed.

(3) **CERTIFICATION.** All initiative and referendum petitions must be certified sufficient to the county board of election commissioners not less than seventy (70) calendar days prior to a regular general election to be included on the ballot. If the adequacy of a petition is determined by the county clerk less than seventy (70) days prior to the next regular election, the election on the measure shall be delayed until the following regular election unless a special election is called on a referendum measure as provided by law.

(c) **FILING OF PETITIONS.** Initiative and referendum petitions ordering the submission of county ordinances or measures to the electors shall be directed to and filed with the county clerk.

(d) **SUFFICIENCY OF PETITION.** Within ten (10) days after the filing of any petition, the county clerk shall examine and ascertain its sufficiency. Where the petition contains evidence of forgery, perpetuated either by the circulator or with his or her connivance, or evidence that a person has signed a name other than his or her own to the petition, the prima facie verity of the circulator's affidavit shall be nullified and disregarded, and the burden of proof shall be upon the sponsors of petitions to establish the genuineness of each signature. If the petition is found sufficient, the clerk shall immediately certify the finding to the county board of election commissioners and the quorum court.

(e) **INSUFFICIENCY OF PETITION AND RECERTIFICATION.** If the county clerk finds the petition insufficient, within ten (10) days after the filing thereof the clerk shall notify the petitioners or their designated agent or attorney of record, in writing, setting forth in detail every reason for the findings of insufficiency. Upon notification of insufficiency of the petition, the petitioners shall be afforded ten (10) calendar days, exclusive of the day notice of insufficiency is receipted, in which to solicit and add additional signatures, or to submit proof tending to show that signatures rejected by the county clerk are correct and should be counted. Upon resubmission of a petition which was previously declared insufficient, within five (5) calendar days the county clerk shall recertify its sufficiency or insufficiency in the same manner as prescribed in this section and, thereupon, the clerk's jurisdiction as to the sufficiency of the petition shall cease.

(f) **APPEAL OF SUFFICIENCY OR INSUFFICIENCY FINDINGS.** Any taxpayer aggrieved by the action of the clerk in certifying the sufficiency or insufficiency of any initiative or referendum petition, may within fifteen (15) calendar days, but not thereafter, may file a petition in circuit court for a review of the findings.

History. Acts 1977, No. 742, § 94; 1979, No. 891, § 1; A.S.A. 1947, § 17-4011; Acts 2009, No. 1480, § 50; 2025, No. 768, §§ 13, 14.

14-14-916. Judicial jurisdiction over initiative and referendum.

(a) **JURISDICTION OF CIRCUIT COURT.** Jurisdiction is vested upon the circuit courts to hear and determine petitions for writs of mandamus, injunctions, and all other actions affecting the submission of any proposed county initiative or referendum petitions. All such proceedings and actions shall be heard summarily upon five (5) calendar days' notice in writing and shall have precedence over all other suits and matters before the court.

(b) **LIMITATION OF INJUNCTION OR STAY OF PROCEEDINGS.** No procedural steps in submitting an initiative or referendum measure shall be enjoined, stayed, or delayed by the order of any court or judge after the petition has been declared sufficient, except in circuit court on petition to review as provided in this section. During the pendency of any proceeding to review, the findings of the county clerk shall be conclusive and binding and shall not be changed or modified by any temporary order or ruling, and no court or judge shall entertain jurisdiction of any action or proceeding questioning the validity of any such ordinance or measure until after it shall have been adopted by the people.

History. Acts 1977, No. 742, § 94; A.S.A. 1947, § 17-4011; Acts 2003, No. 1185, § 21.

14-14-917. Initiative and referendum elections.

(a) **TIME OF ELECTION FOR INITIATIVE AND REFERENDUM MEASURES.** (1) **INITIATIVE.** Initiative petition measures shall be considered by the electors only at a regular general election at which state and county officers are elected for regular terms.

(2) **REFERENDUM.** Referendum petition measures may be submitted to the electors during a regular general election and shall be submitted if the adequacy of the petition is determined within the time limitation prescribed in this section. A referendum measure may also be referred to the electors at a special election called for the expressed purpose proposed by petition. However, no referendum petition certified within the time limitations established for initiative measures shall be referred to a special election, but shall be voted upon at the next regular election. A referendum election shall be held on a date under § 7-11-205.

(3) **CALLING SPECIAL ELECTIONS.** The jurisdiction to establish the necessity for a special election on referendum measures is vested in the electors through the provisions of petition. Where the jurisdiction is not exercised by the electors, the county court of each of the several counties may determine the necessity. However, a quorum court may compel the calling of a special election by a county court through resolution adopted during a regularly scheduled meeting of the quorum court. The resolution may specify a reasonable time limitation in which a county court order calling the special election shall be entered.

(4) **TIME OF SPECIAL ELECTION.** The county court shall fix the date for the conduct of any special elections on referendum measures. The date shall be not less than established under § 7-11-201 et seq. When the electors exercise their powers to establish the necessity for a special election, the county court shall order an election according to the dates stated in § 7-11-201 et seq.

(b) **CERTIFICATION REQUIREMENTS.** (1) **NUMERIC DESIGNATION OF INITIATIVE AND REFERENDUM MEASURES.** Upon finding an initiative or referendum petition sufficient and prior to delivery of the certification to a board of election commissioners and quorum court, the county clerk shall cause the measure to be entered into the legislative agenda register of the quorum court. This entry

shall be in the order of the original filing of petition, and the register entry number shall be the official numeric designation of the proposed measure for election ballot purposes.

(2) **CERTIFICATION OF SUFFICIENCY.** The certification of sufficiency for initiative and referendum petitions transmitted by the county clerk to the county board of election commissioners and quorum court shall include the ballot title of the proposed measure, the legislative agenda registration number, and a copy of the proposed measure, omitting signatures. The ballot title certified to the board shall be the comprehensive title of the measure proposed by petition, and the delivery of the certification to the chair or secretary of the board shall be deemed sufficient notice to the members of the board and their successors.

(c) **NOTICE OF ELECTION.** (1) **INITIATIVE PETITIONS.** Upon certification of any initiative or referendum petition measure submitted during the time limitations for a regular election, the county clerk shall give notice through publication by a two-time insertion, at not less than a seven-day interval, in a newspaper of general circulation in the county or as provided by law. Publication notice shall state that the measure will be submitted to the electors for adoption or rejection at the next regular election and shall include the full text, the ballot title, and the official numeric designation of the measure.

(2) **REFERENDUM PETITION.** Upon certifying any referendum petition prior to the time limitations of filing measures established for a regular election, the county clerk shall give notice through publication by a one-time insertion in a newspaper of general circulation in the county or as provided by law. Publication notice shall state that the measure will be submitted to the electors for adoption or rejection at the next regular election or a special election when ordered by the county court and shall include the full text, the ballot title, and the official numeric designation of the measure.

(3) **PUBLICATION OF SPECIAL REFERENDUM ELECTION NOTICE.** Upon filing of a special election order by the county court, the county clerk shall give notice of the election through publication by a two-time insertion, at not less than a seven-day interval, in a newspaper of general circulation in the county or as provided by law. Publication shall state that the measure will be submitted to the electors for adoption or rejection at a special election and shall include the full text, the date of the election, the ballot title, and official numeric designation of the measure.

(4) **COSTS.** The cost of all publication notices required in this section shall be paid out of the county general fund.

(d) **BALLOT SPECIFICATIONS FOR INITIATIVE AND REFERENDUM MEASURES.**

(1)(A) Upon receipt of any initiative or referendum measure certified as sufficient by a county clerk, it shall be the duty of the members of the county board of election commissioners to take due cognizance and to certify the results of the vote cast thereon.

(B)(i) Except as provided in subdivision (d)(1)(B)(ii) of this section, the board shall cause the ballot title to be placed on the ballot to be used in the election, stating plainly and separately the title of the ordinance or measure so initiated or referred by the quorum court to the electors with these words:

“FOR PROPOSED INITIATIVE (OR REFERRED) ORDINANCE (OR AMENDMENT OR MEASURE)

NO. _____

AGAINST PROPOSED INITIATIVE (OR REFERRED) ORDINANCE (OR AMENDMENT OR MEASURE)

NO. _____”.

(ii) If the election concerns repeal of an ordinance or measure by referendum petition, the ballot shall state plainly the title of the initiated ordinance or referred measure with these words:

“FOR REPEAL OF THE INITIATIVE (OR REFERRED) ORDINANCE (OR AMENDMENT OR MEASURE)

NO. _____

AGAINST REPEAL OF THE INITIATIVE (OR REFERRED) ORDINANCE (OR AMENDMENT OR MEASURE)

NO. _____”.

(2) In arranging the ballot title on the ballot, the commissioners shall place it separate and apart from the ballot titles of the state acts, constitutional amendments, and the like. If the board of election commissioners fails or refuses to submit a proposed initiative or referendum ordinance when it is properly petitioned and certified as sufficient, the qualified electors of the county may vote for or against the ordinance or measure by writing or stamping on their ballots the proposed ballot title, followed by the word “FOR” or “AGAINST”, and a majority of the votes so cast shall be sufficient to adopt or reject the proposed ordinance.

(e) **CONFLICTING MEASURES.** Where two (2) or more ordinances or measures shall be submitted by separate petition at any one (1) election, covering the same subject matter and being for the same general purpose, but different in terms, words, and figures, the ordinance or measure receiving the greatest number of affirmative votes shall be declared the law, and all others shall be declared rejected.

(f) **CONTEST OF ELECTION.** The right to contest the returns and certification of the vote cast upon any proposed initiative or referendum measure is expressly conferred upon any ten (10) qualified electors of the county. The contest shall be brought in the circuit court and shall be conducted under the procedure for contesting the election of county officers, except that the complaint shall be filed within sixty (60) days after the certification of the vote, and no bond shall be required of the contestants.

(g) **VOTE REQUIREMENT FOR ENACTMENT OF ORDINANCE.** Any measure submitted to the electors as provided in this section shall take effect and become law when approved by a majority of the votes cast upon the measure, and not otherwise, and shall not be required to receive a majority of the electors voting at the election. The measure so enacted shall be operative on and after the thirtieth day after the election at which it is approved, unless otherwise specified in the ordinance or amendment.

History. Acts 1977, No. 742, § 94; A.S.A. 1947, § 17-4011; Acts 2003, No. 1441, § 2; 2007, No. 1049, § 35; 2009, No. 1480, § 51; 2015, No. 1036, § 1; 2021, No. 610, § 12.

14-14-918. Passage of initiative and referendum measures.

(a) **RECORDING OF ENACTMENT.** Upon passage of any initiative or referendum measure by the electors, the county clerk shall record the enactment in the county ordinance and resolution register in the manner provided by law for all county ordinances and resolutions. The register entry number designation shall thereby become the official reference number designating the enactment.

(b) **QUORUM COURT AUTHORITY.** No measure approved by a vote of the electors shall be amended or repealed by a quorum court except by affirmative vote of two-thirds ($\frac{2}{3}$) of the whole number of justices comprising a court. On the passage of an amendment or repealing measure, the yeas and nays shall be called and recorded in the minutes of the meeting.

(c) **PRESERVATION OF RECORDS.** All petitions, certificates, notices, and other evidences of procedural steps taken in submitting any ordinance shall be filed and preserved for a period of three (3) years by the county clerk.

History. Acts 1977, No. 742, § 94; A.S.A. 1947, § 17-4011.

14-14-919. Referendum petitions on county bond issue.

All referendum petitions under Arkansas Constitution, Amendment 7, against any measure, as the term is used and defined in Arkansas Constitution, Amendment 7, pertaining to a county bond issue or a short-term financing obligation of a county under Arkansas Constitution, Amendment 78, must be filed with the county clerk within thirty (30) days after the adoption of any such measure.

History. Acts 1979, No. 717, § 1; A.S.A. 1947, § 17-4011.1; Acts 2001, No. 981, § 1.

SUBCHAPTER 13 — OFFICERS GENERALLY

SECTION.

14-14-1301. County, quorum court district, and township officers.
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 14-14-1303. Bond.
 14-14-1304. Oath.
 14-14-1305. Commission.
 14-14-1306. Residence required.
 14-14-1307. Offices.

SECTION.

14-14-1308. Vacancy in office.
 14-14-1309. Declaration of vacancy.
 14-14-1310. Filling vacancies in elective offices.
 14-14-1311. Removal from office.
 14-14-1312. Remuneration.
 14-14-1313. Remittance of public funds.
 14-14-1314. Constable training requirements — Uniform requirements.

14-14-1301. County, quorum court district, and township officers.

(a) **COUNTY OFFICERS.** There shall be elected, until otherwise determined by law, in each of the several counties of this state the following county officers:

(1) **COUNTY JUDGE.**

(A) The county judge shall:

(i) Perform the administrative and executive functions and duties, and such additional duties as may be provided by law, to be performed by the judge provided in Arkansas Constitution, Amendment 55, § 3;

(ii) Preside over the county quorum court without a vote but with the power of veto; and

(iii) Preside over the county court and exercise those judicial and ministerial duties of the county court that were not transferred to the judge to be performed in his or her capacity as the chief executive officer of the county by Arkansas Constitution, Amendment 55, or as may be provided by law.

(B) The judge shall be:

(i) At least twenty-five (25) years of age;

(ii) A citizen of the United States;

(iii) A person of upright character;

(iv) A person of good business education; and

(v) A resident of the county at the time of his or her election and during his or her continuance in office;

(2) **CLERK OF THE CIRCUIT COURT.** The clerk of the circuit court shall be clerk of all divisions of the court, ex officio clerk of the county court, and recorder, except as provided in subdivision (a)(3) of this section;

(3) **COUNTY CLERK.** A county clerk may be elected in like manner as a circuit clerk, and in such cases, the clerk may be ex officio clerk of the probate division of circuit court, if such division exists, in the county until otherwise provided by the General Assembly, and if created as a separate office, bear witness and sign all writs and other judicial process acted upon by the respective courts served by the clerk;

(4) **ASSESSOR.** The assessor shall perform such duties as are prescribed by law;

(5) **SHERIFF.**

(A) The sheriff, who shall be ex officio collector of taxes, unless otherwise provided by law, shall perform such duties as are prescribed by law. It shall be the general duty of each sheriff to quell and suppress all assaults and batteries, affrays, insurrections, and unlawful assemblies.

(B) The sheriff shall:

(i) Apprehend and commit to jail all felons and other offenders;

(ii) Execute all process directed to him or her by legal authority;

(iii) Attend upon all courts held in his or her county until otherwise provided by law; and

(iv) Perform all other acts and things that are required by law;

(6) **COLLECTOR OF TAXES.** A separate collector of taxes may be elected as provided by law. Each collector, upon receiving the tax charge of the county, shall proceed to collect them as may be prescribed by law;

(7) **TREASURER.** The treasurer, who shall be ex officio treasurer of the common school fund of the county, shall perform such duties as are prescribed by law. However, nothing in this chapter shall be deemed to replace or modify any law of this state authorizing school boards to appoint a treasurer for school districts as provided by law;

(8) **COUNTY SURVEYOR.** The county surveyor shall perform such duties as are prescribed by law. It shall be the general duty of the surveyor to execute all orders directed by any court of record for surveying or resurveying any tract of land, the title of which is in dispute or in litigation before the court, and to obey all orders of surveys for the partition of real estate, and to provide services to the county court when required for the purpose of surveying and measuring any proposed road; and

(9) **CORONER.** The county coroner shall perform such duties as are prescribed by law.

(b) **QUORUM COURT DISTRICT AND TOWNSHIP OFFICERS.**

(1)(A) There shall be elected in each of the quorum court districts of the counties of this state one (1) justice of the peace who shall perform such judicial duties as may be prescribed by law and who shall serve as a member of the quorum court of the county in which elected and shall perform such legislative duties as may be prescribed by law.

(B) Each justice shall be a qualified elector and a resident of the district for which he or she is elected.

(2) There shall be elected in each township, as preserved and continued in § 14-14-401, one (1) constable who shall have the qualifications and perform such duties as may be provided by law.

History. Acts 1977, No. 742, § 41; 1979, No. 413, §§ 6-8; A.S.A. 1947, § 17-3601; Acts 2003, No. 1185, § 23; 2017, No. 260, § 3.

14-14-1302. Election of officers.

(a) **County Officers.** The qualified electors of each county in this state, at the time of each regular gubernatorial election, shall elect until otherwise provided by law all county officers for the term of four (4) years and until their successors are elected and qualified.

(b) **QUORUM COURT DISTRICT AND TOWNSHIP OFFICERS.** The qualified electors of each county quorum court district and township in this state shall elect each district and township officer for the term of two (2) years and until his or her successor is elected and qualified. Election shall be held at the time of electing members of the General Assembly.

History. Acts 1977, No. 742, § 42; 1979, No. 413, § 9; A.S.A. 1947, § 17-3602; Acts 2021, No. 314, § 3.

14-14-1303. Bond.

All county, county quorum court district, and township officers shall be bonded as prescribed by law.

History. Acts 1977, No. 742, § 47; 1979, No. 413, § 9; A.S.A. 1947, § 17-3607.

14-14-1304. Oath.

Each county, justice of the peace, and township officer, before entering upon the discharge of the duties of his or her office, shall take and subscribe to the oath prescribed in the Arkansas Constitution for officers.

History. Acts 1977, No. 742, § 43; 1979, No. 413, § 9; A.S.A. 1947, § 17-3603.

14-14-1305. Commission.

(a) COUNTY OFFICERS. All county officers shall be commissioned by the Governor in a manner prescribed by law.

(b)(1) QUORUM COURT DISTRICT AND TOWNSHIP OFFICERS. All township and county quorum court district officers, except constables, shall be commissioned by the Governor in a manner prescribed by law.

(2) Constables shall be furnished with a certificate of election by the county court on which the constable's official oath shall be endorsed.

History. Acts 1977, No. 742, § 44; 1979, No. 413, § 9; A.S.A. 1947, § 17-3604.

14-14-1306. Residence required.

(a) All county, county quorum court district, and township officers shall reside within their respective townships, districts, and counties.

(b) An office shall be deemed vacant if a county officer removes his or her legal residence from the county or if a district or township officer removes his or her legal residence from the district township from which elected.

(c) For purposes of this section, legal residence shall be defined as the domicile of the officer evidenced by the intent to make such residence a fixed and permanent home.

History. Acts 1977, No. 742, § 45; 1979, No. 413, § 9; A.S.A. 1947, § 17-3605.

14-14-1307. Offices.

(a) The county court shall determine the location of the office of the various county, county quorum court district, and township officers.

(b) Nothing in this section, however, shall be construed to compel the county court to provide justices of the peace, constables, coroners, or surveyors with a formal office.

History. Acts 1977, No. 742, § 46; 1979, No. 413, § 9; A.S.A. 1947, § 17-3606.

14-14-1308. Vacancy in office.

A county elective, county quorum court district, or township office is vacant if any one (1) of the following conditions exists:

(1) The incumbent fails to meet the qualifications for office prescribed by law as evidenced by failure to be commissioned;

(2) The incumbent refuses or neglects to take and subscribe to the official oath required by law as evidenced by failure to be commissioned;

(3) The incumbent refuses, neglects, or for any other reason fails to secure an official bond required by law as evidenced by failure to be commissioned;

(4) The incumbent resigns;

(5) The incumbent ceases to meet any residence requirements for office;

(6) The incumbent is removed from office by a judicial proceeding;

(7) The election or appointment of the incumbent is declared void by a judicial proceeding;

(8) The incumbent is convicted of a felony, incompetency, corruption, gross immorality, criminal conduct, malfeasance, misfeasance, or nonfeasance in office by a judicial proceeding;

(9) The incumbent ceases to discharge the duties of his or her office for a period of three (3) months, except if:

(A) Prevented by sickness;

(B) Excused by quorum court resolution; or

(C) The incumbent is suspended from office by a judicial proceeding under § 21-12-301;

- (10) The incumbent is declared to be of unsound mind by a judicial proceeding;
- (11) The quorum court determines that the incumbent has become disabled to the degree that he or she cannot perform the duties of his or her office;
- (12) The incumbent holds more than one (1) office or position in conflict with the provisions of Arkansas Constitution, Article 4, § 2, or Arkansas Constitution, Article 19, § 6;
- (13) The quorum court separates elective offices as provided by law; or
- (14) The incumbent dies.

History. Acts 1977, No. 742, § 49; 1979, No. 413, § 9;
A.S.A. 1947, § 17-3609; Acts 2021, No. 255, § 1.

14-14-1309. Declaration of vacancy.

(a) **CONDITIONS.** The quorum court of each county shall declare a county, county quorum court district, or township office vacant where conditions of vacancy exist as demonstrated in the following manner:

(1) Upon receipt of certification that a condition of vacancy exists as evidenced by failure of an officer to be commissioned or finding of judicial proceedings where such conditions serve as the cause of vacancy; and

(2) Upon determination by a quorum court that a condition of vacancy exists in all other causes not governed by failure to be commissioned or finding of judicial proceedings. Such determination by a quorum court shall be conducted through the process of resolution as prescribed by law if the resolution shall have been published prior to the meeting date in which the resolution is to be considered by the court.

(b) **APPEAL.** Appeals by the county, quorum court district, or township officer so affected from a declaration of vacancy by the quorum court may be taken to the circuit court if the appeal shall be filed within thirty (30) calendar days from the date of publication as required for county resolutions.

(c) **NOTIFICATION OF GOVERNOR.** The quorum court shall upon declaration of a vacancy, or within ten (10) calendar days thereafter, in any elective township office cause the declaration to be filed in writing with the Governor.

History. Acts 1977, No. 742, § 50; 1979, No. 413, § 9;
A.S.A. 1947, § 17-3610.

14-14-1310. Filling vacancies in elective offices.

(a)(1) **COUNTY ELECTIVE OFFICES.** Vacancies in all county elective offices shall be filled by the county quorum court within thirty (30) days of the declaration of the vacancy through the process of resolution as prescribed by law.

(2) **ELIGIBILITY REQUIREMENTS AND TERM OF OFFICE.**

(A) **QUALIFICATIONS.** All officers appointed to fill a vacant county elective office shall meet all of the requirements for election to that office.

(B) **REQUIREMENTS.** All officers appointed by a quorum court shall subscribe to the oath of office, be commissioned, and be bonded as prescribed by law.

(C) **PERSONS INELIGIBLE FOR APPOINTMENT.**

(i)(a) Any member of the quorum court shall be ineligible for appointment to fill any vacancy occurring in any county office, and resignation shall not remove the ineligibility.

(b) Spouses of justices of the peace and relatives of the justices or their spouses within the fourth degree of consanguinity or affinity shall likewise be ineligible.

(ii) Any county elected officer who resigns during a term of office shall be ineligible for appointment to any county elective office during the term for which he or she resigned.

(D) **TERM OF OFFICE.**

(i) All officers so appointed shall serve for the entire unexpired term in the office in which the vacancy occurs, or until a successor is elected and qualified.

(ii) A county elective officer shall serve a term of four (4) years.

(E) **SUCCESSIVE TERMS OF APPOINTED OFFICER PROHIBITED.** A person appointed to fulfill a vacant or unexpired term of an elective county office shall not be eligible for appointment or election to succeed himself or herself.

(b) **ELECTIVE TOWNSHIP OFFICES.** All vacancies in elective township offices, including justice of the peace offices, shall be filled by the Governor.

(c) **EMERGENCY VACANCIES.**

(1)(A) During a declaration of an emergency or circumstances that warrant a declaration of an emergency under § 12-75-107 or § 12-75-108, a vacancy in the office of county judge due to death or disability to the degree of inability to perform the duties of office shall be temporarily filled by executive order of the county judge issued prior to the incapacity of the county judge, designating three (3) persons in succession to fill the vacancy of the office of county judge on an interim basis until such time as the vacancy is filled by the quorum court as provided by this chapter or the disability of the county judge is abated.

(B) Persons so designated shall be listed in succession and may be identified by title or position.

(C) The death or disability of a person in the line of succession shall result in disqualification of the person and appointment of the next successive person.

(2)(A) During a declaration of an emergency or circumstances that warrant a declaration of emergency under § 12-75-107 or § 12-75-108, a vacancy in the office of sheriff due to death or disability to the degree of inability to perform the duties of office shall be temporarily filled by a policy statement of the sheriff issued prior to the incapacity of the sheriff and adopted by resolution of the quorum court, designating three (3) persons in succession to fill the vacancy in the office of sheriff on an interim basis until such time as the vacancy is filled by the quorum court as provided by this chapter or the disability of the sheriff is abated.

(B) Persons so designated by the sheriff shall be listed in succession and may be identified by title or position.

(C) The death or disability of a person in the line of succession shall result in disqualification of the person and appointment of the next successive person.

(D) The sheriff shall affix his or her signature to the policy statement and to the resolution of the quorum court to signify that the line of succession for the office of sheriff is in accordance with his or her authority.

(3)(A) The county judge and the sheriff shall file the executive order and the resolution with policy statement under subdivisions (c)(1) and (2) of this section with the county clerk, and a file-marked copy shall be provided to the Director of the Division of Emergency Management no later than sixty (60) days from the beginning of the elected term of office.

(B) Members of the quorum court are not eligible to fill the vacancy in the office of county judge or sheriff under this section.

History. Acts 1977, No. 742, §§ 51, 52; 1979, No. 413, 17-3612; Acts 2009, No. 229, § 1; 2013, No. 378, § 1; 2019, § 10; 1985, No. 682, §§ 1-3; A.S.A. 1947, §§ 17-3611, No. 910, § 5920; 2021, No. 255, § 2.

14-14-1311. Removal from office.

The circuit court shall have jurisdiction, upon information, presentment, or indictment, to remove any county or township officer from office for incompetency, corruption, gross immorality, criminal conduct, malfeasance, misfeasance, or nonfeasance in office.

History. Acts 1977, No. 742, § 53; A.S.A. 1947, § 17-3613.

14-14-1312. Remuneration.

No officer of any county, county quorum court district, or township shall receive from county funds, directly or indirectly, for salary, wages, and perquisites more than the amount appropri-

ated by the respective quorum court for each respective office per annum in par funds and paid to the officer by instrument drawn by the county judge on the treasury.

History. Acts 1977, No. 742, § 48; 1979, No. 413, § 9; A.S.A. 1947, § 17-3608.

14-14-1313. Remittance of public funds.

All public funds coming into the possession of any officer of the county shall be remitted to the county treasury in a manner prescribed by law.

History. Acts 1977, No. 742, § 48; 1979, No. 413, § 9; A.S.A. 1947, § 17-3608.

14-14-1314. Constable training requirements — Uniform requirements.

- (a)(1)(A) For a constable to have access to information from the Arkansas Crime Information Center:
 - (i) He or she shall satisfactorily complete the constable certification course provided by the Arkansas Commission on Law Enforcement Standards and Training; and
 - (ii) Each year after completing the certification course required under subdivision (a)(1)(A)(i) of this section, he or she shall satisfactorily complete sixteen (16) hours of training certified by the Arkansas Commission on Law Enforcement Standards and Training.
- (B) For a constable to carry a firearm:
 - (i) He or she shall attend sixteen (16) hours of firearms training; and
 - (ii) Each year after completing the training required under subdivision (a)(1)(B)(i) of this section, he or she shall satisfy the firearm qualification standards for a law enforcement official.
- (2) A constable holding office on July 31, 2007, is exempt from the requirements of subdivision (a)(1) of this section if the constable has completed:
 - (A) The Part-time Law Enforcement Officer training or higher level training course; and
 - (B) Mandatory racial profiling courses.
- (b)(1) In the performance of his or her official duties, a constable shall wear a uniform consisting of:
 - (A) A white shirt on formal occasions at any time;
 - (B)(i) A constable identification patch on the left shoulder of the shirt and an American flag on the right shoulder.
 - (ii) The top of each patch shall be one inch (1") down from the shoulder seam of the shirt;
 - (C) A name tag above the right pocket flap of the shirt;
 - (D) A six-point star containing the words "Arkansas Constable" on the left side of the shirt; and
 - (E) The following pants:
 - (i) Tan pants; or
 - (ii) Blue or black pants on formal occasions.
- (2) If a constable is engaged in search or rescue activities, he or she shall wear a uniform consisting of:
 - (A) A black shirt; and
 - (B) Black pants.
- (c) In the performance of his or her official duties, a constable shall drive a motor vehicle that is:
 - (1) Equipped with emergency equipment; and
 - (2) Clearly marked with a six-point star and the words "Arkansas Constable".
 - (d) The county may pay reasonable expenses associated with the requirements of this section.

History. Acts 2007, No. 841, § 2; 2011, No. 561, § 4; 2013, No. 1113, § 1; 2019, No. 151, § 10; 2019, No. 910, § 5921.

CHAPTER 15

OFFICERS

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

14-15-101. Audit of accounts after expiration of term.

14-15-101. Audit of accounts after expiration of term.

When the term of any sheriff and ex officio collector or a county collector or county treasurer or any county official required by law to make bond expires, within ten (10) days the county judge shall employ a reputable public accountant or a qualified Division of Legislative Audit employee to audit the account of the retiring official and ascertain the amount due the county, state, and other funds. However, this audit shall not be made if the county judge of the county affected decides that the audit is unnecessary.

History. Acts 1927, No. 85, § 3; Pope's Dig., § 10442; A.S.A. 1947, § 12-235.

SUBCHAPTER 2 — COUNTY ASSESSORS

SECTION.

14-15-201. Form of oath.

14-15-202. Extension of time to take oath.

14-15-201. Form of oath.

On or before January 1 succeeding his or her election and before entering upon or discharging any of the duties of his or her office, every assessor shall take and subscribe to the oath prescribed in Arkansas Constitution, Article 19, § 20, and in addition thereto, the following oath or affirmation, which shall be endorsed upon the assessment books prior to their delivery to the assessor:

"I, assessor for County, do solemnly swear that the value of all real and personal property, moneys, credits, investments in bonds, stocks, joint-stock companies, of which statements may be made to me by persons required by law, will be appraised at its actual cash value, that in no case will I, knowingly, omit to demand of any person, or corporation, of whom by law I may be required to make such demand, a statement of the description and value of personal property, or the amount of moneys and credits, investments in bonds, stocks, joint-stock companies, or otherwise, which he or she may be required to list, or in any way connive at any violation or evasion of any of the requirements of the law or laws in relation to the listing or valuation of property, credits, investments in bonds, stocks, joint-stock companies or otherwise, of any kind for taxation."

History. Acts 1883, No. 114, § 58, p. 199; C. & M. Dig., § 9874; Pope's Dig., § 13623; A.S.A. 1947, § 12-802.

14-15-202. Extension of time to take oath.

Every assessor who shall have failed to take and subscribe to the oath prescribed in § 14-15-201 at the time therein stated is granted, until the time provided by law for entering upon the discharge of his or her duties, to take and subscribe to the oath prescribed in § 14-15-201, and the acts of every assessor who shall take the oath within the time granted in this section shall be as valid as if he or she had taken and subscribed to the oath at the time provided by law.

History. Acts 1889, No. 9, § 1, p. 8; C. & M. Dig., § 9875; Pope's Dig., § 13624; A.S.A. 1947, § 12-803.

CHAPTER 20

QUORUM OR LEVYING COURTS

SECTION.

14-20-108. Dues for volunteer fire departments.

14-20-108. Dues for volunteer fire departments.

(a)(1)(A) The quorum court of each county, upon request filed with the quorum court by one (1) or more volunteer fire departments whose fire protection districts cover an unincorporated area of the county, may adopt an ordinance authorizing a designated county official to collect and remit to the volunteer fire department whose fire protection district covers an unincorporated area of the county the annual dues charged by the volunteer fire department whose fire protection district covers an unincorporated area of the county in consideration of providing fire protection to those unincorporated areas in the county.

(B)(i)(a) When a quorum court receives a request for the levy of dues for a volunteer fire department whose fire protection district covers an unincorporated area of the county and the request has been signed by the fire chief and the chair and secretary of the board of directors, if any, of a volunteer fire department whose fire protection district covers an unincorporated area of the county and filed with the county clerk, the quorum court by ordinance shall call for an election on the issue of the levy of dues for a volunteer fire department whose fire protection district covers an unincorporated area of the county on each residence and on each business having an occupiable structure.

(b)(1) The issue may be placed on the ballot at a special election by order of the quorum court in accordance with § 7-11-201 et seq.

(2) The special election shall be held by August 1.

(c) If an attested petition is filed with the county clerk and signed by a majority of registered voters in the volunteer fire department district whose fire protection district covers an unincorporated area of the county voting in the immediately preceding general election, then the quorum court by ordinance shall dispense with a special election on the issue of the levy of dues for a volunteer fire department whose fire protection district covers an unincorporated area of the county.

(d)(1) If the levy of dues for a volunteer fire department whose fire protection district covers an unincorporated area of the county is approved by a majority of those voting on the issue or the county clerk determines that the number of signatures of registered voters is sufficient and the quorum court dispenses with a special election, the dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county shall be listed annually on real property tax statements and collected by the county collector at the same time and in the same manner as real property taxes.

(2)(A) The county collector shall report delinquencies to the volunteer fire department whose fire protection district covers an unincorporated area of the county for collection.

(B) A volunteer fire department whose fire protection district covers an unincorporated area of the county may collect dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county that have become delinquent and may enforce collection by proceedings in a court of proper jurisdiction.

(ii) The cost of the election shall be borne by the volunteer fire department whose fire protection district covers an unincorporated area of the county that requested the levy.

(2) The ordinance enacted by the quorum court shall set forth the terms and conditions that the dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county are to be collected by the county and for the remission of the dues for the volunteer fire department whose fire protection district covers an unincorporated area of the

county to the volunteer fire department whose fire protection district covers an unincorporated area of the county.

(3) However, an active member of a volunteer fire department whose annual dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county are collected in this manner may be exempt from the annual dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county at the discretion of the volunteer fire department whose fire protection district covers an unincorporated area of the county in consideration of providing services to the volunteer fire department whose fire protection district covers an unincorporated area of the county.

(b)(1) The quorum court by majority vote may designate the geographical area that a volunteer fire department serves.

(2) Upon request by a volunteer fire department, the quorum court of each county involved may authorize a volunteer fire department to extend its geographical service area across the county boundary lines.

(c) The quorum court may establish its own countywide fire department, either regular or voluntary.

(d) This section does not change the authority of intergovernmental cooperation councils to enter into reciprocal agreements or to distribute funds under § 14-284-401 et seq. and § 26-57-614.

(e)(1) If approved by ordinance by the governing body of an incorporated town or a city of the second class on the signed request of the fire chief and the chair and secretary of the board of directors, if any, of a volunteer fire department, an incorporated town or a city of the second class located in the volunteer fire department district that is not served by a fire department may be included in the fire protection area with the volunteer fire department dues levied and collected in the same manner as in the unincorporated areas served by the volunteer fire department district.

(2)(A) The governing body of the incorporated town or city of the second class by ordinance shall call for an election on the ordinance under subdivision (e)(1) of this section.

(B) The issue may be placed on the ballot at a special election by order of the governing body in accordance with § 7-11-201 et seq., and the special election shall be held by August 1.

(C) If the issue is approved by a majority of those voting on the issue, the incorporated town or city of the second class shall be served by the volunteer fire department district with the volunteer fire department dues levied and collected in the same manner as in the unincorporated areas served by the volunteer fire department district.

(D) The cost of the election shall be borne by the governing body of the incorporated town or city of the second class that called for the election.

(3) If an attested petition is filed with the city or town recorder and signed by a majority of registered voters in the volunteer fire department district voting in the immediately preceding general election, then the governing body of the incorporated town or city of the second class by ordinance shall dispense with a special election on the levy of volunteer fire department dues.

(f) At the discretion of a volunteer fire department whose fire protection district covers an unincorporated area of the county, a church served by a volunteer fire department whose fire protection district covers an unincorporated area of the county may be exempt from dues for a volunteer fire department whose fire protection district covers an unincorporated area of the county if the church is exempt from real property taxes.

(g)(1)(A) By December 15 of each year or upon the creation of a volunteer fire department whose fire protection district covers an unincorporated area of the county, a volunteer fire department whose fire protection district covers an unincorporated area of the county that uses or intends to use the county collector for collection of the dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county shall file an annual report with the county clerk in any county in which a portion of the volunteer fire department whose fire protection district covers an unincorporated area of the county is located.

(B) The county clerk shall not charge any costs or fees for filing the annual report.

(C) The volunteer fire department whose fire protection district covers an unincorporated area of the county shall deliver a filed copy of the annual report to the county collector within five (5) days of filing.

(2) The annual report shall contain the following information as of December 15 of the current calendar year:

(A) Identification of the volunteer fire department board members whose fire protection district covers an unincorporated area of the county and contact information;

(B) The contact information for the volunteer fire department chief whose fire protection district covers an unincorporated area of the county;

(C) Information concerning to whom the official designated to remit the dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county is to pay the dues for the volunteer fire department whose fire protection district covers an unincorporated area of the county; and

(D) The amount of the annual dues charged by the volunteer fire department whose fire protection district covers an unincorporated area of the county by parcel or on each residence or business having an occupiable structure.

(h) The official designated to remit the dues for a volunteer fire department whose fire protection district covers an unincorporated area of the county under this section shall not remit the dues collected by the county collector to any volunteer fire department whose fire protection district covers an unincorporated area of the county until the annual report has been filed.

(i) A volunteer fire department that is required to file a report under § 14-86-2102 is not required to file a separate report under this section.

(j) This section applies to all volunteer fire departments, however organized.

History. Acts 1977, No. 512, § 1; A.S.A. 1947, § 17-455; Acts 1991, No. 1038, § 1; 1995, No. 744, § 1; 2001, No. 984, §§ 1, 2; 2003, No. 201, § 1; 2005, No. 2145, § 18; 2007, No. 96, § 1; 2007, No. 1049, § 36; 2009, No. 300, § 1; 2009, No. 1480, § 52; 2015, No. 693, § 1; 2021, No. 642, § 1; 2025, No. 673, §§ 1, 2.

A.C.R.C. Notes. Acts 2007, No. 96, § 2, provided: “This act shall not be construed to invalidate any election under Arkansas Code § 14-20-108 held prior to the effective date of this act that levied volunteer fire department dues only on residences.”

In subdivision (a)(3) of this section as amended by Acts 2025, No. 673, § 1, the phrase “for the qualifying fire department whose annual dues” was deleted under § 1-2-303 to correct a manifest engrossing error. The engrossment of House Amendment No. 1 to HB1416, subsequently enacted as Acts 2025, No. 673, erroneously left this phrase in subdivision (a)(3) of this section.

In subdivision (g)(1)(A) of this section as amended by Acts 2025, No. 673, § 2, the first two references to “fire protection” were corrected to “fire protection district” under § 1-2-303.

Amendments. The 2009 amendment by No. 300 inserted “quorum” in (a)(1)(A), (b), and (c); rewrote (a)(1)(B); added (e); and made minor stylistic changes.

The 2009 amendment by No. 1480 substituted “§ 7-11-201 et seq.” for “§ 7-5-103(b)” in (a)(1)(B)(i)(b)(1).

The 2015 amendment inserted “volunteer fire department” preceding “dues” in (a)(1)(B)(i)(d)(2)(B), (a)(2), (e)(1), (e)(2)(C), and (f); deleted “or quarterly” following “annual” in (a)(1)(A); inserted present (a)(1)(B)(i)(c) and redesignated former (a)(1)(B)(i)(c) as (a)(1)(B)(i)(d); in (a)(1)(B)(i)(d)(1), inserted “of volunteer fire department dues,” “or the county clerk determines that the number of signatures of registered voters is sufficient and the quorum court dispenses with a special election,” and “volunteer fire department” preceding “dues shall be”; in (a)(3), substituted “whose annual volunteer fire department dues” for “whose annual or quarterly dues” and “annual volunteer fire department dues at the discretion” for “annual or quarterly dues charged by the volunteer fire department at the discretion”; substituted “to extend its geographical service area” for “to serve a geographical area to extend” in (b)(2); substituted “signed request of” for “request of and signed by” in (e)(1); and added (g) through (j).

The 2021 amendment added (e)(3).

The 2025 amendment rewrote (a), and (f) through (h).

Cross References. Civil immunity of volunteer firefighters, § 16-5-101.

SUBTITLE 3. MUNICIPAL GOVERNMENT

CHAPTER 37

CLASSIFICATION OF CITIES AND TOWNS

SECTION.

- 14-37-101. Applicability.
- 14-37-102. Division into classes.
- 14-37-103. Population limits.
- 14-37-104. Cities of the first class.
- 14-37-105. Cities of the second class.
- 14-37-106. Board of Municipal Corporations.
- 14-37-107. Advancement of cities and towns according to census.
- 14-37-108. Application for advancement between census periods.

SECTION.

- 14-37-109. Appointment of enumerators to take census.
- 14-37-110. Return of enumerators.
- 14-37-111. Reduction of city to lower grade — In general.
- 14-37-112. Incorporated town may become city of the second class.
- 14-37-113. Effect of population changes on legislation.
- 14-37-114. Reduction of city of the first class to city of the second class.

14-37-101. Applicability.

All corporations which existed when the Arkansas Constitution of 1874 took effect for the purpose of municipal government, and described or denominated in any law then in force, are organized into cities of the first and second class, as the case may be, and incorporated towns with the territorial limits respectively prescribed or belonging.

History. Acts 1875, No. 1, § 5, p. 1; C. & M. Dig., § 7456; Pope's Dig., § 9489; A.S.A. 1947, § 19-203.

14-37-102. Division into classes.

In respect to the exercise of certain corporate powers and to the number, character, powers, and duties of certain officers, municipal corporations are divided into the following classes:

- (1) Cities of the first class;
- (2) Cities of the second class; and
- (3) Incorporated towns.

History. Acts 1875, No. 1, § 1, p. 1; C. & M. Dig., § 7448; Pope's Dig., § 9480; A.S.A. 1947, § 19-201.

14-37-103. Population limits.

(a)(1) All municipal corporations having over two thousand five hundred (2,500) inhabitants shall be deemed cities of the first class.

(2) All cities having five hundred (500) inhabitants or more and fewer than two thousand five hundred (2,500) inhabitants shall be deemed cities of the second class.

(3) All others shall be incorporated towns and shall be governed by the provisions of this subtitle.

(b)(1) Any incorporated towns of fewer than five hundred (500) inhabitants who have voted to be a city of the second class under § 14-37-112 shall continue to be a city of the second class.

(2) Any city having a population of one thousand five hundred (1,500) or more may become a city of the first class upon the enactment of an ordinance therefor, with all powers, authority, and responsibility of other cities of the first class.

History. Acts 1875, No. 1, § 5, p. 1; C. & M. Dig., § 7457; Pope's Dig., § 9490; Acts 1945, No. 247, § 4; 1965, No. 108, § 1; 1971, No. 269, § 1; A.S.A. 1947, § 19-202.

14-37-104. Cities of the first class.

(a) All cities, which at the last federal census had, or now have, a population exceeding two thousand five hundred (2,500) inhabitants shall be deemed cities of the first class.

(b) All cities which, at any future federal census, or any census which may be taken in pursuance of the laws of this state, shall be found to have a population of two thousand five hundred (2,500) inhabitants shall thereafter be deemed cities of the first class.

History. Acts 1875, No. 1, § 2, p. 1; C. & M. Dig., §§ 7449, 7450; Pope's Dig., §§ 9481, 9482; Acts 1945, No. 247, §§ 1, 2; A.S.A. 1947, §§ 19-204, 19-205.

14-37-105. Cities of the second class.

(a) Any incorporated town of the State of Arkansas which, at any future federal census, or any census taken under the authority of the State of Arkansas, shall be found to have a population exceeding five hundred (500) persons who shall be inhabitants of the town and less than two thousand five hundred (2,500) inhabitants shall be deemed in all respects to be a city of the second class. However, this section shall not apply to cities that are now classified as cities of the first class.

(b)(1) In all counties having two (2) levying courts, in which there is a county seat town of less than five hundred (500) population, according to the last federal census, the county seat towns are made cities of the second class, with all the powers and privileges conferred upon cities of the second class by law.

(2) Any of the towns described in subdivision (b)(1) of this section, through the governing body thereof, shall have the power, by ordinance, to annex to the city or town all heretofore platted additions thereto, so as to make them a part of the city and included within its boundaries and subject to all the rights, duties, and privileges of the original territory of the city.

History. Acts 1875, No. 1, § 2, p. 1; 1909, No. 306, § 1, Dig., § 9483; Acts 1939, No. 92, §§ 1, 2; 1945, No. 247, § 3; p. 915; C. & M. Dig., § 7451; Acts 1931, No. 119, § 1; Pope's A.S.A. 1947, §§ 19-206, 19-207.

14-37-106. Board of Municipal Corporations.

The Board of Municipal Corporations shall consist of the Auditor of State, Secretary of State, and Attorney General. The Secretary of State shall be president.

History. Acts 1893, No. 145, § 2, p. 251; C. & M. Dig., § 7454; Pope's Dig., § 9487; A.S.A. 1947, § 19-208.

14-37-107. Advancement of cities and towns according to census.

(a)(1) It shall be the duty of the Governor, the Auditor of State, and the Secretary of State, or any two (2) of them, to ascertain from the federal census and census provided for by law of this state, what cities of the second class are entitled to become cities of the first class and what incorporated towns are entitled to become cities and their proper class.

(2) The Governor shall cause a statement stating the grade to which the city has been advanced to be prepared and transmitted to the mayor of the city or town.

(b) As soon as the statement has been received by the mayor, as provided in subsection (a) of this section, showing that any city or town will be entitled to be organized into a city of the first class or city of the second class at the next regular annual period for the election of municipal officers, it shall be the duty of the proper corporate authority of the city or incorporated town to make and publish bylaws or ordinances necessary to perfect the organization in respect to the election, duties, and compensation of municipal officers, or otherwise.

(c) When a city of the second class becomes a city of the first class, the recorder of the affected city of the second class automatically becomes the city clerk of the city when the change in classification occurs.

History. Acts 1875, No. 1, §§ 3, 4, p. 1; C. & M. Dig., § 160, § 1; A.S.A. 1947, §§ 19-209, 19-210; Acts 2005, No. 44, §§ 7452, 7455; Pope's Dig., §§ 9485, 9488; Acts 1943, No. § 1.

14-37-108. Application for advancement between census periods.

(a) The Auditor of State, Secretary of State, and Attorney General may declare incorporated towns cities of the second class, and cities of the second class cities of the first class, between the periods fixed in § 14-37-107(a), upon application from any incorporated town or city of the second class, accompanied by a resolution adopted by the town or city council, asking to be so declared a city of the first or second class, as the case may be.

(b) The application shall be accompanied with satisfactory evidence showing the population of the town or city to be large enough to entitle it to such advancement.

History. Acts 1875, No. 1, § 3, p. 1; C. & M. Dig., § 7453; Pope's Dig., § 9486; A.S.A. 1947, § 19-211.

14-37-109. Appointment of enumerators to take census.

(a)(1) If a city or incorporated town desires to be made a city of the first class or a city of the second class, or if it is deemed necessary to determine the number of inhabitants within the city or incorporated town for any purpose, on petition of ten (10) qualified voters of the city or incorporated town filed with the recorder of the city or incorporated town, the city or town council shall consider the petition at its next regular meeting.

(2) If the city or town council deems the prayer of petitioners well founded and deems that a census of the city or incorporated town should be taken in accordance with the prayer of the petitioners, the city or town council may pass a resolution authorizing and directing the taking of a census of the city or incorporated town, and the mayor shall appoint enumerators to take the census, the appointees to be approved by the city or town council.

(b)(1) The resolution authorizing the taking of census shall prescribe the duties of the enumerators as to when and how to proceed.

(2)(A) Not more than one (1) enumerator shall be appointed for each ward.

(B) However, one (1) enumerator may take more than one (1) ward if the city or town council deems it proper.

History. Acts 1903, No. 46, § 1, p. 78; C. & M. Dig., § 7662; Pope's Dig., § 9784; A.S.A. 1947, § 19-212; Acts 2017, No. 879, § 3.

14-37-110. Return of enumerators.

(a)(1) Before the enumerators shall enter upon their duties, they shall make and subscribe to an oath to well and faithfully perform their duties, and their return shall be taken as true.

(2)(A) However, the returns so made by the census enumerators shall be filed in the office of the mayor and shall be subject to examination of the public for thirty (30) days.

(B) Any correction of the returns may be made if proper proof is made before the city or town council to its satisfaction authorizing the correction sought to be made.

(b) The enumerators shall be entitled to and receive two and one-half cents (2½¢) per name for all names found to be authentic by the city or town council, to be paid by the city or incorporated town.

History. Acts 1903, No. 46, §§ 2, 3, p. 78; C. & M. Dig., § 7663; Pope's Dig., § 9785; A.S.A. 1947, §§ 19-213, 19-214; Acts 2017, No. 878, § 1.

14-37-111. Reduction of city to lower grade — In general.

(a) Whenever the last federal census shows that any city of the first class has fewer than two thousand five hundred (2,500) inhabitants and that any city of the second class has fewer than five hundred (500) inhabitants, the city may be reduced to a city of the second class or to an incorporated town, respectively, upon the adoption of a resolution by the council of the municipal corporations requesting that the grade of the corporations be reduced.

(b)(1) The Board of Municipal Corporations, upon the receipt of a certified copy of the resolution, shall make an order reducing the grade of the municipal corporation.

(2) Upon being advised of the action of the board, the Governor shall cause a statement to be prepared and transmitted to the mayor of the city or town stating the grade to which it has been reduced.

(c) When the grade of a city has been reduced to city of the second class or to incorporated town, all officers of that city or town shall continue in office until the next general election for the city or town.

History. Acts 1931, No. 61, §§ 1, 2; Pope's Dig., §§ 9547, 9548; A.S.A. 1947, §§ 19-216, 19-217; Acts 2017, No. 260, § 4.

14-37-112. Incorporated town may become city of the second class.

(a)(1) Any incorporated town in this state may become a city of the second class by the adoption and publication of an ordinance, duly adopted and published as provided by law, converting the incorporated town into a city of the second class. However, after the adoption and publication of the ordinance, the qualified voters of the town shall vote in any general election or a special election called by the mayor to be held in accordance with § 7-11-201 et seq., in favor of the ordinance.

(2) If a majority of the qualified electors voting in the election vote in favor of the ordinance, a certified copy of the ordinance shall be filed with the Secretary of State. Thereupon the incorporated town shall become a city of the second class.

(b)(1) The officers of the incorporated town, upon filing with the Secretary of State the certified copy of the ordinance, shall immediately become officers of the city of the second class with full authority to proceed, do, and perform any and all things for, and on behalf of, the city of the second class as if elected as officers of the city of the second class. They shall serve as officers for the full period of time for which they were elected or until their successors are elected and qualified.

(2)(A) At the regular time for holding election of officers of incorporated towns, there shall be an election for the election of officers of the city of the second class, who shall hold office as officers of the city of the second class until the next regular time fixed by law for electing officers of a city of the second class or until their successors are elected and qualified.

(B) However, the mayor of the incorporated town which has been raised to a city of the second class may call a special election by proclamation, to be held in accordance with § 7-11-101 et seq., which shall be published by two (2) insertions in a newspaper of general circulation in the county in which the city is located. This special election shall be held for the purpose of electing officers for the city of the second class.

History. Acts 1937, No. 334, § 1; Pope's Dig., § 9484; § 19-215; Acts 2005, No. 2145, § 19; 2007, No. 1049, § 37; Acts 1939, No. 211, § 1; 1947, No. 227, § 1; A.S.A. 1947, 2009, No. 1480, §§ 53, 54.

14-37-113. Effect of population changes on legislation.

Whenever any law of this state provides that the provisions of it shall apply to any city within a defined population classification, it is declared to be the intent of the General Assembly that, in the event any city to which the law was applicable at the time of the enactment of that law shall subsequently achieve a lesser or greater population than the classification prescribed by

law, the law shall nevertheless thereafter be equally applicable to any such city, irrespective of the fact that the city no longer has a population within the classification prescribed by the law.

History. Acts 1967, No. 498, § 1; A.S.A. 1947, § 19-218.

14-37-114. Reduction of city of the first class to city of the second class.

(a) Whenever the most recent federal decennial census shows that any city of the first class has less than seven thousand five hundred (7,500) inhabitants, the city may be reduced to a city of the second class upon the adoption of an ordinance by the council of the municipal corporation requesting that the grade of the municipal corporation be reduced.

(b) The Board of Municipal Corporations, upon the receipt of a certified copy of the resolution, shall make an order reducing the grade of the municipal corporation, and, upon being advised of the action of the board, the Governor shall cause a statement thereof to be prepared and transmitted to the mayor of the city stating the grade to which the municipal corporation has been reduced.

History. Acts 1991, No. 514, § 1; 2025, No. 834, § 1.

CHAPTER 38

INCORPORATION AND ORGANIZATION OF MUNICIPALITIES

SECTION.

14-38-101. Petition for incorporation.
14-38-102. [Repealed.]
14-38-103. Hearing on petition.
14-38-104. Order of incorporation — Transcript.

SECTION.

14-38-105. Completion of incorporation.
14-38-106. Complaint to prevent organization.
14-38-107. Hearing on complaint — Annulment.
14-38-108. First election of officers.

14-38-101. Petition for incorporation.

(a)(1) When the inhabitants of a part of any county not embraced within the limits of any city or incorporated town shall desire to be organized into a city or incorporated town, they may apply, by a petition in writing, signed by the greater of either two hundred (200) or a majority of the qualified voters residing within the described territory, to the county court of the proper county.

(2) The petition shall:

(A) Describe the territory proposed to be embraced in the incorporated town and have annexed to it an accurate map or plat of the territory;

(B) State the name proposed for the incorporated town; and

(C) Name the persons authorized to act in behalf of the petitioners in prosecuting the petition.

(b)(1) Unless the governing body of the municipal corporation has affirmatively consented to the incorporation by written resolution or the area that seeks to be incorporated contains a population of one thousand five hundred (1,500) or more, the court shall not approve the incorporation of a municipality if any portion of the territory proposed to be embraced in the incorporated town lies within:

(A) Three (3) miles of an existing municipal corporation; or

(B) [Repealed.]

(2) The planning territorial jurisdiction limitation shall not apply if the area proposed to be incorporated is land upon which a real estate development by a single developer, containing not less than four thousand (4,000) acres, has been or is being developed under a comprehensive plan for a community containing streets and other public services, parks, and other recreational facilities for common use by the residents of the community, churches, schools, and commercial and residential facilities, and which has been subdivided into sufficient lots for residential use to accommodate a projected population of not fewer than one thousand (1,000) persons, and for which a statement of record has been filed with the United States Secretary of Housing and Urban Development under the Interstate Land Sales Full Disclosure Act.

(c) When any petition shall be presented to the court, it shall be filed in the office of the county clerk, to be kept there, subject to the inspection of any persons interested, until the time appointed for the hearing of it.

(d)(1) At or before the time of the filing, the court shall fix and communicate to the petitioners, or their agent, a time and place for the hearing of the petition, which time shall not be less than thirty (30) days after the filing of the petition.

(2)(A)(i) Thereupon, the petitioners or their agent shall cause a notice to be published in some newspaper of general circulation in the county for not less than three (3) consecutive weeks.

(ii) If there is no newspaper of general circulation in the county, a notice shall be posted at some public place within the limits of the proposed incorporated town for at least three (3) weeks before the time of the hearing.

(B) The notice shall contain the substance of the petition and state the time and place appointed for the hearing.

History. Acts 1875, No. 1, § 35, p. 1; C. & M. Dig., No. 606, § 1; 1983, No. 439, § 1; A.S.A. 1947, § 19-101; § 7664; Pope's Dig., § 9786; Acts 1975, No. 635, § 1; 1979, Acts 2001, No. 1233, §§ 1, 2; 2001, No. 1831, § 1; 2007, No.

118, § 1; 2017, No. 1055, § 1; 2019, No. 932, § 1; 2025, No. 314, § 3.

14-38-102. [Repealed.]

Publisher's Notes. This section, concerning refiling of certain petitions withdrawn prior to court action, was repealed by Acts 1993, No. 1121, § 1. The section was derived from Acts 1977, No. 556, § 1; A.S.A. 1947, § 19-101.4.

14-38-103. Hearing on petition.

(a)(1) Every incorporation hearing under this chapter shall be public and may be adjourned from time to time.

(2) Any person interested may appear and contest the granting of the prayer of the petition, and affidavits in support of or against the petition, which may be prepared and submitted, shall be examined by the county court.

(b)(1) In its discretion, the court may permit the agent named in the original petition to amend or change it.

(2) However, no amendment shall be permitted whereby territory not before embraced shall be added or the character of the proposed city or incorporated town changed from special to general, or from general to special, without appointing another time for a hearing and requiring new notice to be given as provided in § 14-38-101.

History. Acts 1875, No. 1, § 36, p. 1; C. & M. Dig., § 7665; Pope's Dig., § 9787; A.S.A. 1947, § 19-102.

14-38-104. Order of incorporation — Transcript.

(a) The county court shall make out and endorse on the petition an order to the effect that the city or incorporated town as named and described in the petition may be organized if the court shall be satisfied after hearing the petition that:

(1) The greater of either two hundred (200) or a majority of the qualified voters residing within the described territory have signed the petition;

(2) The limits have been accurately described and an accurate map or plat of the limits made and filed;

(3) The name proposed for the city or incorporated town is proper and sufficient to distinguish it from others of like kind in the state; and

(4) Moreover, that it shall be deemed right and proper in the judgment and discretion of the court that the petition shall be granted.

(b)(1) The order shall be signed and delivered by the court, together with the petition and the map or plat, to the recorder of the county, whose duty it shall be to record it as soon as possible in the proper book or records and to file and preserve in his or her office the original papers, having certified thereon that it has been properly recorded.

(2) It shall also be the duty of the recorder to make out and certify, under his or her official seal, two (2) transcripts of the record. The recorder shall forward one (1) copy to the Secretary of State and deliver one (1) copy to the agent of the petitioners, with a certificate thereon that a similar transcript has been forwarded to the Secretary of State as provided by this section.

History. Acts 1875, No. 1, § 37, p. 1; C. & M. Dig., § 7666; Pope's Dig., § 9788; A.S.A. 1947, § 19-103; Acts 1995, No. 299, § 1; 2001, No. 1233, § 3.

14-38-105. Completion of incorporation.

(a) As soon as the record shall be made and the transcript certified, forwarded, and delivered, the inhabitants within the limits described in the petition shall be deemed a city or incorporated town, to be organized and governed under the provisions of this subtitle in like manner as if specially named therein.

(b) As soon as the city or incorporated town shall be actually organized, by election of its officers as provided in § 14-38-108, notice of its existence as such shall be taken in all judicial proceedings in the state.

History. Acts 1875, No. 1, § 38, p. 1; C. & M. Dig., § 7667; Pope's Dig., § 9789; A.S.A. 1947, § 19-104.

14-38-106. Complaint to prevent organization.

(a) One (1) month shall elapse from the time the transcripts are forwarded and delivered before notice shall be given of an election of officers in the city or incorporated town.

(b) At any time within the one (1) month, any person interested may make complaint in writing, in the nature of an application for an injunction to the circuit court, or the judge in vacation, having given at least five (5) days' notice thereof. He or she shall furnish a copy of the complaint to the agent of the petitioners for the purpose of having the organization of the proposed city or incorporated town prevented.

History. Acts 1875, No. 1, § 39, p. 1; C. & M. Dig., § 7668; Pope's Dig., § 9790; A.S.A. 1947, § 19-105.

14-38-107. Hearing on complaint — Annulment.

(a) It shall be the duty of the court or judge to hear the complaint in a summary manner, receiving answers, affidavits, and proofs, as may be deemed pertinent.

(b) If it shall appear to the satisfaction of the court or judge that the proposed city or incorporated town does not contain the requisite number of inhabitants, that a majority of them have not signed the original petition, or that the limits of the proposed city or incorporated town are unreasonably large or small or are not properly and sufficiently described, then the court or judge shall order the record of the incorporated town to be annulled.

(c)(1) It shall be the duty of the county recorder to endorse on the record the order so made and to certify and transmit to the Secretary of State a copy of the order.

(2) Thereupon, the record shall be of no effect, but the proceeding shall in no manner bar a subsequent petition to the county court, on the same subject, by complying with the provisions of this chapter.

History. Acts 1875, No. 1, § 39, p. 1; C. & M. Dig., § 7669; Pope's Dig., § 9791; A.S.A. 1947, § 19-106.

14-38-108. First election of officers.

(a) Unless the agent of the petitioners, within thirty (30) days after a transcript shall be delivered as provided in § 14-38-104, shall be notified of a complaint having been made to the circuit court of the county, or a judge thereof, then, at the end of the thirty (30) days after the dismissal of the complaint, the agent shall give public notice, by posting a notice at three (3) or more public places within the limits of the city or incorporated town, of the time and place of holding the first election for officers of the city or incorporated town.

(b) The election shall be conducted and the officers elected and qualified in the manner prescribed by law in like cases.

(c) If the election shall be held at any other time than that prescribed by law for the regular election of the officers, the officers elected shall continue in office so long and in like manner as if they had been elected at the preceding period of the regular election.

History. Acts 1875, No. 1, § 40, p. 1; C. & M. Dig., § 7670; Pope's Dig., § 9792; A.S.A. 1947, § 19-107.

CHAPTER 40

ANNEXATION, CONSOLIDATION, AND DETACHMENT BY MUNICIPALITIES

SUBCHAPTER 3 — MUNICIPAL ANNEXATION OF CONTIGUOUS LANDS

SECTION.

14-40-301. Construction.

14-40-302. Authority — Exceptions.

14-40-303. Annexation ordinance — Election — Procedures.

SECTION.

14-40-304. Judicial review.

14-40-301. Construction.

The provisions of this subchapter shall not be construed to give any municipality the authority to annex any portion of another city or incorporated town.

History. Acts 1971, No. 298, § 4; A.S.A. 1947, § 19-307.4.

14-40-302. Authority — Exceptions.

(a) By vote of two-thirds ($\frac{2}{3}$) of the total number of members making up its governing body, any municipality may adopt an ordinance to annex lands contiguous to the municipality if the lands are any of the following:

- (1) Platted and held for sale or use as municipal lots;
- (2) Whether platted or not, if the lands are held to be sold as suburban property;
- (3) When the lands furnish the abode for a densely settled community or represent the actual growth of the municipality beyond its legal boundary;
- (4) When the lands are needed for any proper municipal purposes such as for the extension of needed police regulation; or
- (5) When they are valuable by reason of their adaptability for prospective municipal uses.

(b)(1) Contiguous lands shall not be annexed if they:

(A) At the time of the adoption of the ordinance, have a fair market value of lands used only for agricultural or horticultural purposes and the highest and best use of the lands is for agricultural or horticultural purposes;

(B) Are lands upon which a new community is to be constructed with funds guaranteed, in whole or in part, by the federal government under Title IV of the Housing and Urban Development Act of 1968 or under Title VII of the Housing and Urban Development Act of 1970;

(C) Are lands that do not include residents, except as agreed upon by the mayor and county judge; or

(D) Are lands that do not encompass the entire width of public road right-of-way or public road easements within the lands sought to be annexed, except as agreed upon by the mayor and county judge.

(2) Any person, firm, corporation, partnership, or joint venturer desiring to come within this exclusion must have received from the United States Department of Housing and Urban Development a letter of preliminary commitment to fund the new community under one (1) of the federal acts.

(3) If any lands are annexed that are being used exclusively for agricultural purposes, the lands may continue to be used for such purposes so long as the owner desires and the lands shall be assessed as agricultural lands.

(c) However, a municipality having a population of fewer than one thousand (1,000) persons shall not annex in any one (1) calendar year contiguous lands in excess of ten percent (10%) of the current land area of the municipality.

(d)(1) Whenever practicable, a city or incorporated town shall annex lands that are contiguous and in a manner that does not create enclaves.

(2) As used in this section, “enclave” means an unincorporated improved or developed area that is enclosed within and bounded on all sides by a single city or incorporated town.

History. Acts 1971, No. 298, § 1; 1975, No. 309, § 1; 1975, No. 904, § 1; A.S.A. 1947, § 19-307.1; Acts 2001, No. 1751, § 1; 2013, No. 1072, §§ 1, 2.

14-40-303. Annexation ordinance — Election — Procedures.

(a) The annexation ordinance shall:

(1) Contain an accurate description of the lands desired to be annexed;

(2) Include a schedule of the services of the annexing municipality that will be extended to the area within three (3) years after the date the annexation becomes final;

(3) Fix the date for the annexation election under this section at the next special election date under § 7-11-205 after the ordinance is filed; and

(4) Be heard at three (3) consecutive regular meetings of the governing body of the annexing municipality.

(b)(1) The annexation ordinance shall not become effective until the question of annexation is submitted to the qualified electors of the annexing municipality and of the area to be annexed at the next general election or at a special election. The special election shall be called by ordinance or proclamation of the mayor of the annexing municipality in accordance with § 7-11-201 et seq.

(2)(A) If a majority of the qualified electors voting in the election vote for the annexation, no later than fifteen (15) days following the election, the county clerk shall certify the election results and record the same, along with the description and a map of the annexed area, in the county records, and file a certified copy thereof with the Secretary of State.

(B) The annexation shall be effective, and the lands annexed shall be included within the corporate limits of the annexing municipality thirty (30) days following the date of recording and filing of the description and map, as provided in this section, or in the event an action is filed with the circuit court as provided in § 14-40-304, on the date the judgment of the court becomes final.

(3) If a majority of the qualified electors voting on the issue at the election vote against the annexation, the annexation ordinance shall be null and void.

(c)(1)(A) The city clerk shall certify two (2) copies of the annexation ordinance and a plat or map of the area to be annexed and convey one (1) copy to the county clerk and one (1) copy to the county election commission at least sixty (60) days before the election.

(B)(i) No later than forty-five (45) days prior to the election, the city shall identify all persons who reside within the area proposed to be annexed, and the county clerk shall assist the city in determining the names and addresses of all qualified electors residing within that area.

(ii) The failure to identify all persons residing within the area proposed to be annexed or the failure to determine the names and addresses of all qualified electors residing within that area shall not invalidate or otherwise affect the results of the election.

(C) All of the qualified electors residing within the territory to be annexed shall be entitled to vote in the election.

(D) The city clerk shall give notice of the election by publication by at least one (1) insertion in some newspaper having a general circulation in the city.

(2)(A) The county clerk shall give notice of the voter registration deadlines at least forty (40) days before the election by ordinary mail to those persons whose names and addresses are on the list provided by the city clerk.

(B) The county clerk shall prepare a list by precinct of all those qualified electors residing within the area to be annexed who are qualified to vote in that precinct and furnish that list to the election officials at the time the ballot boxes are delivered.

(3) If the county clerk or the county election commission shall fail to perform any duties required of it, then any interested party may apply for a writ of mandamus to require the

performance of the duties. The failure of the county clerk or the county election commission to perform the duties shall not void the annexation election unless a court finds that the failure to perform the duties substantially prejudiced an interested party.

(d) If the annexation is approved and becomes final, as soon as practical after the annexation the governing body of the city shall attach and incorporate by ordinance the annexed territory to and in one (1) or more wards of the city lying adjacent thereto, and the territory so assigned and attached to a ward shall thereafter be considered and become a part thereof as fully as any other part of the city.

(e) From the map or plat provided by city ordinance of the wards assigned, the county clerk shall proceed to ascertain and determine the voters' proper precinct and shall enter the same upon the voter registration records of those inhabitants of the territory so annexed and give notice of that change within thirty (30) days after the adoption of the city ordinance assigning the territory to wards.

(f)(1) In the event that within thirty (30) days of the date that one (1) city calls for an annexation election, another city calls for an annexation election on all or part of the same land proposed to be annexed by the first city, then both annexation elections shall be held, provided that the second city must call for its annexation election to be held on the next available date in accordance with § 7-11-201 et seq. before or after the holding of the first city's election.

(2)(A) If the annexation election held first is approved by the voters, the results of it shall be stayed until the second annexation election is held.

(B)(i) If only one (1) of the annexation elections is approved by the voters, then the city that called that election shall proceed with the annexation of the land.

(ii)(a) Except as provided in subdivisions (f)(2)(B)(ii)(b) and (c) of this section, if both annexation elections are approved by the voters, then a third election shall be held three (3) weeks after the second annexation election. The provisions of § 7-11-201 et seq., governing the procedures and dates on which special elections may be held shall not apply to the third annexation election provided in this subsection.

(b) If the date of the third election falls upon a legal holiday, the election shall be held four (4) weeks after the second annexation election.

(c) If the date of the election under subdivision (f)(2)(B)(ii)(b) of this section is a legal holiday, the election shall be held five (5) weeks after the second annexation election.

(iii) Notice of the third election shall be published in a newspaper circulated in the area to be annexed during the period following the second election.

(iv) Only the residents of the area proposed to be annexed by both cities shall vote in the third election.

(v) The issue on the ballot in the third election shall be into which of the two (2) cities the residents of the area want to be annexed.

(vi) The area shall be annexed into the city receiving the most votes in the third election.

(vii) In the event of a tie vote in the third election, the area shall be annexed to the city that had the highest percentage vote in favor of the annexation in the first or second election.

(3) If the city that does not get to annex the area voted on by both cities included land in its annexation election other than the land voted on by both cities, then that land shall be annexed into the city if it is still contiguous to the city after the other land is annexed to the other city, but the land shall remain part of the county if it is not so contiguous.

History. Acts 1971, No. 298, § 2; 1975, No. 309, § 2; No. 557, § 1; 2007, No. 1049, § 40; 2009, No. 420, § 1; A.S.A. 1947, § 19-307.2; Acts 1991, No. 725, § 1; 1993, No. 2009, No. 1480, §§ 58, 59; 2019, No. 219, § 1; 2021, No. 356, § 1; 1999, No. 639, § 1; 2005, No. 2145, § 22; 2007, 610, § 13.

14-40-304. Judicial review.

(a) If it is alleged that the area proposed to be annexed does not conform to the requirements and standards prescribed in § 14-40-302, a legal action may be filed in the circuit court of the

county where the lands lie within thirty (30) days after the election to nullify the election and to prohibit further proceedings pursuant to the election.

(b) In any such action filed in the circuit court of the county where the lands lie, the court shall have jurisdiction and the authority to determine whether the procedures outlined in this subchapter have been complied with and whether the municipality has used the proper standards outlined in § 14-40-302 in determining the lands to be annexed.

History. Acts 1971, No. 298, §§ 2, 3; 1975, No. 309, §§ 2, 3; A.S.A. 1947, §§ 19-307.2, 19-307.3.

SUBCHAPTER 12 — CONSOLIDATION OF MUNICIPALITIES

SECTION.

14-40-1201. Petition for consolidation.
14-40-1202. Special election called.
14-40-1203. Election results.
14-40-1204. Contest of election.

SECTION.

14-40-1205. Division of smaller municipality into wards.
14-40-1207. Special election of council members or all city officials.
14-40-1208. Existing officers, etc.

14-40-1201. Petition for consolidation.

(a)(1)(A) Beginning July 1, 1995, when the inhabitants of any city or incorporated town adjoining or contiguous to another smaller municipal corporation of any class in the same county shall desire that the city or incorporated town annex to it or consolidate with it the smaller municipal corporation, they may apply, by a petition in writing signed by a number of qualified electors from each of the municipal corporations equal to not less than fifteen percent (15%) of the total vote cast for the office of mayor in the respective city or town in the last preceding general election, to the city or town council of the larger municipal corporation.

(B) Municipal corporations separated by a river shall be deemed contiguous.

(2) The petition shall:

(A) Describe the municipal corporations to be consolidated; and

(B) Name the persons authorized to act in behalf of the petitioners presenting the petition as provided in this section.

(3)(A) Beginning July 1, 1995, the petitions shall be filed with the city clerk or town recorder of each municipal corporation, who shall determine the sufficiency of the petitions in each municipality.

(B)(i) If any petition is determined insufficient, he or she shall notify the petitioners in writing without delay, and the petitioners shall be permitted ten (10) days from the notification to solicit additional signatures or to prove any rejected signatures.

(ii) If the city clerk or town recorder of the respective municipalities decides the petitions are sufficient, he or she each shall notify the petitioners in writing and shall present the petitions to the city or town council of the larger municipal corporation.

(b)(1)(A) When the petition is presented to the council, the council shall pass an ordinance in favor of the annexation and approving and ratifying the petition.

(B) If the council fails to pass the ordinance required under subdivision (b)(1)(A) of this section, then any interested party may apply for a writ of mandamus to require the performance of the requirement.

(2) In that event, it shall be the duty of the persons named in the petition authorized to act in behalf of the petitioners to file the petition, together with a certified copy of the ordinance, in the office of the county clerk of the county in which the municipal corporations are situated.

History. Acts 1913, No. 318, § 1; C. & M. Dig., § 7471; 806, § 1; 1995, No. 1333, § 1; 1997, No. 214, § 1; 2003, No. Pope's Dig., § 9504; A.S.A. 1947, § 19-310; Acts 1995, No. 1171, § 1.

14-40-1202. Special election called.

(a)(1)(A) Upon presentation of the petition to the county court by the authorized persons, the court shall at once order and call a special election, to be held in accordance with § 7-11-201 et seq., in both of the municipal corporations on the question of the annexation and the name of the proposed consolidated municipality.

(B) The court shall give thirty (30) days' notice of the election by publication one (1) time a week in some newspaper with a bona fide circulation in the territory and by notices posted in conspicuous places in the territory.

(2) The court shall appoint one (1) judge and one (1) clerk in each ward or other division of each municipal corporation, and the mayor and city council of each of the municipal corporations shall select two (2) judges and one (1) clerk for each of the wards or other divisions having the qualifications of electors, to act as judges and clerks of election within the respective wards.

(3) The court shall fix all polling places at which the voting shall take place.

(b)(1) The election shall be held and conducted in each corporation in the manner prescribed by law for holding elections for cities or incorporated towns, so far as they are applicable. Election expenses are to be paid by the larger city or incorporated town.

(2)(A) All elections held under this subchapter are made legal elections.

(B)(i) The elections shall be governed by and subject to all the laws relating to general elections so far as applicable.

(ii) All judges, clerks, and persons voting in the elections shall be subject to the penalties prescribed by the general election laws of the state for any violation of the general election laws to the same extent as though the elections were specifically included in the general election laws of the state.

(3) The returns of the elections shall be made to the court and the result thereof declared by the court.

(c) In order to provide for an orderly transition of affairs if the petition calls for a delay in the implementation of the consolidation, the consolidation shall not take effect until the date specified in the petition, except that the consolidation shall be delayed not longer than eighteen (18) months from the date the election results are declared by the court.

History. Acts 1913, No. 318, § 1; C. & M. Dig., § 7472; 1266, § 1; 2003, No. 1171, § 2; 2005, No. 2145, § 23; 2007, Pope's Dig., § 9505; A.S.A. 1947, § 19-311; Acts 1999, No. 1049, § 41; 2009, No. 1480, § 60.

14-40-1203. Election results.

(a) At any election held under this subchapter, all qualified electors who are residents of either municipality shall be allowed to vote on the adoption or rejection of the proposed annexation or consolidation and the name of the proposed consolidated municipality.

(b)(1)(A)(i) If a majority of the votes cast in each of the respective municipalities, considered as a separate and distinct unit and without reference to the vote cast in the other, shall be in favor of the consolidation or annexation, then the county court shall declare, by an appropriate order, the annexation or consolidation consummated unless the petition has requested a delayed date for implementation of the consolidation.

(ii) If the petition calls for a delay in the implementation of the consolidation and if a majority of the votes cast in each of the respective municipalities is in favor of the consolidation, then the county court shall order the annexation or consolidation consummated on the date specified in the petition, except that the date shall not be more than eighteen (18) months after the date election results are declared by the court.

(B)(i) If a majority of the votes cast in each of the respective municipalities, considered as a separate and distinct unit and without reference to the vote cast in the other, shall be in favor of the same name of the municipality, then the county court shall declare, by appropriate order, the name of the consolidated municipality.

(ii) If a majority of the votes cast in each of the respective municipalities, considered as a separate and distinct unit and without reference to the vote cast in the other, shall not be in

favor of the same name of the municipality, then the county court shall declare, by appropriate order, the name of the consolidated municipality to be the name of the larger municipality.

(C)(i) Upon the making of the order, the smaller municipal corporation and the territory comprising it shall, in law, be deemed and be taken to be included and shall be a part of the larger municipal corporation.

(ii) The inhabitants thereof shall in all respects be citizens of the larger municipal corporation.

(2) If a majority of the votes of either municipal corporation shall be against annexation, then the city or incorporated town shall not be again permitted to attempt the consolidation for two (2) years.

History. Acts 1913, No. 318, § 1; C. & M. Dig., § 7473; Pope's Dig., § 9506; A.S.A. 1947, § 19-312; Acts 1999, No. 1266, § 2; 2003, No. 1171, § 3.

14-40-1204. Contest of election.

Any elector shall have the right to test the legality and fairness of the election and the declared results in a proceeding before the circuit court without being required to give bond for costs. However, no such contest shall interfere with the consolidation until finally decided.

History. Acts 1913, No. 318, § 1; C. & M. Dig., § 7473; Pope's Dig., § 9506; A.S.A. 1947, § 19-312.

14-40-1205. Division of smaller municipality into wards.

(a) As soon as practicable after the annexation, the council of the larger city or incorporated town shall form by ordinance the territory of the smaller municipality into such number of wards as shall seem to be to the best interest of the combined city or incorporated town, or shall change the number and boundaries of all the wards of the entire city or incorporated town, or any part of them, as shall seem to be to the best interests of the combined city or incorporated town. In such way, however, the wards shall have as nearly an equal population and assessed valuation of property as practicable and as, in the opinion of the council, would best subserve the true interest of the citizens and taxpayers of the combined city or incorporated town.

(b) The territory and inhabitants of the smaller municipal corporation shall receive that fair and just representation in the city council as the size, population, and assessed valuation of property demands, as compared with the representation accorded to other wards of the city or incorporated town.

(c) If inhabitants of the smaller municipal corporation feel aggrieved at the number of wards, or in any manner dissatisfied with the division of the territory into wards, upon petition of fifty (50) qualified electors, the circuit court is authorized to make changes in the number of wards as the justice of the case requires, in the manner provided in § 14-43-311, so far as applicable.

History. Acts 1913, No. 318, § 2; C. & M. Dig., § 7474; Pope's Dig., § 9507; A.S.A. 1947, § 19-313.

14-40-1207. Special election of council members or all city officials.

(a)(1)(A) Except as provided under subdivision (a)(1)(B) of this section, the city or town council shall call a special election of council members to be held at such times and places as the council may direct pursuant to a proclamation issued by the mayor in accordance with § 7-11-101 et seq., in the wards of the smaller municipality and for the election of council members from any other new wards that may be created by the council out of territory included in the larger city or incorporated town before the annexation, as provided in this subchapter.

(B) If the petition calls for a citywide election for all officials of the new consolidated city or incorporated town, then the city or town council shall call a special election pursuant to a proclamation issued by the mayor in accordance with § 7-11-101 et seq. for all city or town

officials to be held at the times and places as the city or town council may direct throughout each ward of the consolidated city or incorporated town.

(2) If the implementation of the consolidation of the cities or towns is delayed, the special election for new council members to a city or town council or all city officials shall be held at least forty-five (45) days before the effective date of the consolidation.

(b) Each ward of the consolidated city or incorporated town shall have two (2) council members, to be elected in the same manner and for the same term as council members are elected in cities and incorporated towns.

History. Acts 1913, No. 318, § 3; C. & M. Dig., § 7476; 1171, § 4; 2005, No. 2145, § 24; 2007, No. 1049, § 42; Pope's Dig., § 9509; A.S.A. 1947, § 19-315; Acts 2003, No. 2009, No. 1480, § 61; 2017, No. 879, § 5.

14-40-1208. Existing officers, etc.

(a) The term of office of all officers, council members, and employees of the smaller municipality and all laws in force in the smaller municipality shall cease upon and after the consolidation.

(b)(1) Any mayor who is forced from office because of a merger of two (2) or more municipalities under this subchapter is presumed to meet the minimum service period under § 24-12-123.

(2) If the mayor who is forced from office has less than ten (10) years of actual service as mayor, then he or she is entitled to a prorated retirement benefit in an amount equal to the percentage of the mayor's actual amount of service divided by the minimum ten (10) years of service required under § 24-12-123.

History. Acts 1913, No. 318, § 3; C. & M. Dig., § 7476; Pope's Dig., § 9509; A.S.A. 1947, § 19-315; Acts 2005, No. 2264, § 1; 2017, No. 879, § 6.

SUBCHAPTER 18 — DETACHMENT OF TERRITORY GENERALLY

SECTION.

14-40-1801. Proceedings generally.

14-40-1802. Order for exclusion.

SECTION.

14-40-1803. When effective — Limitation.

14-40-1801. Proceedings generally.

(a) Whenever any municipal corporation shall desire to throw any portion of the territory lying within its corporate limits outside of the limits and remit it back to the county in which the municipal corporation is situated, it shall be lawful for the council of the municipal corporation to submit the question to the qualified electors of the municipal corporation at an election to be held for that purpose. The election shall be held after giving notice of such election four (4) weeks by advertisement in one (1) of the papers published in the municipal corporation or, if there is no paper published in the municipal corporation by advertisement posted in two (2) of the most public places in the municipal corporation.

(b) If a majority of the votes cast on that question shall be in favor of throwing the territory outside of its municipal corporate limits, the municipal corporation shall present to the county court a petition praying for such change in its territorial limits, and the hearing shall be had on the petition as is prescribed in § 14-38-103.

(c) Alternatively, upon petition of the landowners affected and provided the territory is unimproved and uninhabited wetlands, the city council may resolve to request the county court to exclude the territory from the limits of the municipal corporation and remit it back to the county and a hearing shall be had on the petition as prescribed in § 14-38-103.

History. Acts 1875, No. 1, § 90, p. 1; C. & M. Dig., § 7487; Pope's Dig., § 9530; A.S.A. 1947, § 19-320; Acts 1997, No. 140, § 1.

14-40-1802. Order for exclusion.

(a) After hearing the petition, if the county court shall be satisfied that a majority of the qualified electors of the corporation are in favor of the exclusion of the territory mentioned in the petition from within its limits, or alternatively that the city council has resolved to request that the territory be excluded from the limits of the municipal corporation and remitted back to the county, that the territory to be excluded has been accurately described, and that it would be proper and right to grant the petition, it shall make an order excluding the territory in the petition mentioned from the limits of the municipal corporation and remitting it back to the county.

(b)(1) It shall be the duty of the clerk of the court to make out a certified copy of the order and to deliver it to the recorder of his or her county, whose duty it shall be to record the order in the proper book of records in his or her office.

(2) It shall also be the duty of the recorder to make out and forward to the Secretary of State a certified copy of the record.

History. Acts 1875, No. 1, § 90, p. 1; C. & M. Dig., § 7488; Pope's Dig., § 9531; A.S.A. 1947, § 19-321; Acts 1997, No. 140, § 2.

14-40-1803. When effective — Limitation.

(a) After the record shall have been filed and a copy forwarded to the Secretary of State, the territory shall cease to be a part of the municipal corporation.

(b) The limits of cities of the first and second class shall not be reduced to an area less than they were on January 1, 1872.

History. Acts 1875, No. 1, § 90, p. 1; C. & M. Dig., § 7489; Pope's Dig., § 9532; A.S.A. 1947, § 19-322.

CHAPTER 42

GOVERNMENT OF MUNICIPALITIES GENERALLY

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 14-42-101. Savings provision.
- 14-42-102. Corporate authority of cities.
- 14-42-103. Vacancies in municipal offices generally.
- 14-42-104. [Repealed.]
- 14-42-105. Appointments of officers by council.
- 14-42-106. Oath and bond required.
- 14-42-107. Interest in offices or contracts prohibited.
- 14-42-108. Prohibited actions by municipal officials or employees — Penalty.
- 14-42-109. Removal of elective or appointed officers.
- 14-42-110. Appointment and removal of department heads.
- 14-42-111. [Repealed.]
- 14-42-112. Municipal attorneys for cities of the second class or incorporated towns.
- 14-42-113. Salaries of officials — Salary withheld if professional license or registration suspended — Definition.

SECTION.

- 14-42-114. Social security for municipal employees.
- 14-42-115. Volunteer firefighter or volunteer police officer on governing body.
- 14-42-116. Retirement systems and benefits.
- 14-42-117. Election of retirement benefits.
- 14-42-118. Removal of municipal officer for federal offense.
- 14-42-119. Removal of certain elected municipal officials.
- 14-42-120. Monthly, bimonthly, biweekly, weekly, and hourly salaries for municipal employees.
- 14-42-121. Allowance for meal tips.
- 14-42-122. [Repealed.]
- 14-42-123. Uniform catastrophic leave program — Definition.

14-42-101. Savings provision.

Any municipal corporation in which, under its former organization prior to March 9, 1875, by any law or charter regulating any literary, charitable, or benevolent institution, vested any power of appointing officers of supervision or control, shall continue to hold and possess the like power and authority in every respect.

History. Acts 1875, No. 1, § 32, p. 1; C. & M. Dig., § 7519; Pope's Dig., § 9579; A.S.A. 1947, § 19-906.

14-42-102. Corporate authority of cities.

The corporate authority of cities that are organized shall be vested in one (1) principal officer, to be called the mayor, and one (1) board of council members, to be called the city council, together with such other officers as are mentioned in this subtitle or may be created under its authority.

History. Acts 1875, No. 1, § 5, p. 1; C. & M. Dig., § 7459; Pope's Dig., § 9492; A.S.A. 1947, § 19-901; Acts 2017, No. 879, § 9.

14-42-103. Vacancies in municipal offices generally.

(a) A vacancy of a municipal office in a municipality, regardless of the classification or form of government of the municipality, shall be filled according to one (1) of the following methods:

(1)(A) At the first council meeting after the declaration of the vacancy, the governing body of the municipality shall elect by a majority vote of the governing body of the municipality a person to serve the unexpired term.

(B)(i) Except as otherwise provided under subdivision (a)(1)(B)(ii) of this section, if a vacancy is filled under subdivision (a)(1)(A) of this section, a majority of the remaining members of the governing body of the municipality shall fill the vacancy and the governing body of the municipality may appoint any qualified elector of the municipality.

(ii) A member of the governing body of the municipality shall not be appointed to fill a vacancy under this section in municipalities with a population of fifty thousand (50,000) or more; or

(2)(A) At the first council meeting after the declaration of the vacancy, the governing body of the municipality shall call a special election to be held at the next special election date under § 7-11-101 et seq. to fill the vacant position for the remainder of the term.

(B)(i) If the governing body of a municipality calls for a special election to fill the vacancy under subdivision (a)(2)(A) of this section, the governing body may appoint a qualified elector of the municipality to serve in the office until the office is filled at the special election.

(ii) A member of the governing body of the municipality may be appointed under subdivision (a)(2)(B)(i) of this section to serve in the office until the vacancy is filled at a special election.

(b) For a vacancy filled under subsection (a) of this section in a municipality having a mayor, the appointment is not subject to veto by the mayor.

History. Acts 1977, No. 9, §§ 1, 2; 1981, No. 303, § 2; A.S.A. 1947, § 19-905.1; Acts 2009, No. 185, § 1; 2025, No. 995, § 1.

14-42-104. [Repealed.]

Publisher's Notes. This section, concerning vacancies in certain alderman positions, was repealed by Acts 2009, No. 385, § 1. The section was derived from Acts 1977, No. 9, §§ 1, 2; 1981, No. 303, § 2; A.S.A. 1947, § 19-905.1; Acts 2005, No. 2145, § 25; 2007, No. 1049, § 43; 2007, No. 188, § 1.

14-42-105. Appointments of officers by council.

(a) All appointments of officers by any council of a municipal corporation shall be made viva voce, and the concurrence of a like majority shall be required.

(b) On the votes resulting in the appointment, the names of those voting and for whom they voted shall be recorded, and all such voting shall be public.

History. Acts 1875, No. 1, § 29, p. 1; C. & M. Dig., § 7518; Pope's Dig., § 9578; A.S.A. 1947, § 19-905.

14-42-106. Oath and bond required.

(a) All officers elected or appointed in any municipal corporation shall take the oath or affirmation prescribed for officers by the Arkansas Constitution.

(b)(1) Except as provided in subdivision (b)(2) of this section, the officers shall take their oaths before:

- (A) The Secretary of State or his or her official designee;
- (B) A justice or judge of the:
 - (i) Supreme Court;
 - (ii) Court of Appeals;
 - (iii) Circuit court, including any former circuit or chancery judge who served for at least four (4) years; or
 - (iv) District court, including any former municipal or district judge who served for at least four (4) years;
- (C) A judge of the county court;
- (D) A federal justice or judge of the:
 - (i) United States Supreme Court;
 - (ii) United States Court of Appeals; or
 - (iii) United States District Court;
- (E) A clerk of the:
 - (i) County court;
 - (ii) Circuit court; or
 - (iii) City of the first class;
- (F) A recorder of:
 - (i) A city of the second class; or
 - (ii) An incorporated town; or

(G) A justice of the peace.

(2) The council members also may take their oaths before the mayor of the municipality.

(c) The council members of a municipal corporation may require from the officers, as they think proper, a bond with good and sufficient security and with a proper penalty for the faithful discharge of their office and duty.

(d) The council members shall have the power to declare the office of any elected or appointed person vacant who shall fail to take the oath of office or give the bond required in this section within ten (10) days of the first day of January after his or her election or within ten (10) days after he or she has been notified of his or her appointment. In such case, the council members shall proceed to appoint as in other cases of vacancy.

History. Acts 1875, No. 1, § 73, p. 1; C. & M. Dig., 1999, No. 650, § 1; 2007, No. 601, § 1; 2017, No. 138, § 1; § 7517; Pope's Dig., § 9577; A.S.A. 1947, § 19-904; Acts 2017, No. 879, § 10; 2025, No. 456, § 1.

14-42-107. Interest in offices or contracts prohibited.

(a)(1) A council member or elected official of a municipal corporation, during the term for which he or she has been elected or one (1) year thereafter, shall not be appointed to any municipal office that was created or the emoluments of which have been increased during the time for which he or she has been elected except to fill a vacancy in the office of mayor, council member, clerk, clerk-treasurer, recorder, or recorder-treasurer.

(2) A council member shall not be appointed to any municipal office, except in cases provided for in this subtitle, during the time for which he or she may have been elected.

(b)(1) A council member, official, or municipal employee shall not be interested, directly or indirectly, in the profits of any contract for furnishing supplies, equipment, or services to the municipality unless the governing body of the city has enacted an ordinance specifically permitting council members, officials, or municipal employees to conduct business with the city and prescribing the extent of this authority.

(2) The prohibition prescribed in this subsection does not apply to contracts for furnishing supplies, equipment, or services to be performed for a municipality by a corporation in which no council member, official, or municipal employee holds any executive or managerial office or by a corporation in which a controlling interest is held by stockholders who are not council members.

History. Acts 1875, No. 1, § 86, p. 1; C. & M. Dig., No. 485, § 1; A.S.A. 1947, § 19-909; Acts 2003, No. 1299, § 7520; Pope's Dig., § 9580; Acts 1963, No. 182, § 1; 1981, § 1; 2009, No. 403, § 1; 2017, No. 879, § 11.

14-42-108. Prohibited actions by municipal officials or employees — Penalty.

(a)(1) It is unlawful for any official or employee of any municipal corporation of this state to receive or accept any water, gas, electric current, or other article or service from the municipal corporation, or any public utility operating therein, without paying for it at the same rate and in the same manner that the general public in the municipal corporation pays therefor.

(2)(A) This section does not affect rights to free or other special services given to certain municipal officials and employees under the terms of franchises in effect with public utilities in this state.

(B) This section does not apply to any city official or employee of any municipal corporation of this state as to free streetcar transportation.

(b)(1) It is unlawful for any city official or employee of any municipal corporation in this state to furnish or give to any person, concerns, or corporations any property belonging to the municipal corporation, or service from any public utility owned or operated by the municipal corporation, unless payment is made therefor to the municipal corporation at the usual and regular rates, and in the usual manner, except as provided in subsection (a) of this section.

(2) The waterworks commission of cities of the first class may make donations of money from the revenue of municipal waterworks systems to the local United Way campaign or other citywide nonsectarian, incorporated charitable organizations.

(c)(1) Any person violating this section is guilty of a violation and upon conviction shall be fined in any sum not less than ten dollars (\$10.00) nor more than two hundred fifty dollars (\$250).

(2) Conviction under subdivision (c)(1) of this section shall ipso facto remove the official or employee from the municipal office or position held by him or her and shall render him or her ineligible to thereafter hold any office or position under, or in connection with, the municipal corporation.

History. Acts 1919, No. 230, §§ 1-3; C. & M. Dig., 288, § 1; A.S.A. 1947, §§ 19-916 — 19-918; Acts 2023, No. §§ 7522-7524; Pope's Dig., §§ 9582-9584; Acts 1941, No. 203, § 5.

14-42-109. Removal of elective or appointed officers.

(a)(1)(A) If the mayor, member of the city council, or any other elective officer of any city of the first class or second class or incorporated town in this state shall wilfully and knowingly fail, refuse, or neglect to execute, or cause to be executed, any of the laws or ordinances within their jurisdiction, they shall be deemed guilty of nonfeasance in office.

(B)(i) It shall be the duty of the circuit court of any county within which any officer may be commissioned and acting, upon indictment charging any such officer with nonfeasance in office, to hear and determine the charges.

(ii) If, upon hearing, the charges are proved to be true, the court shall enter a judgment of record removing the guilty officer from office.

(2) The council of any city or incorporated town may provide, by proper ordinance, for the removal of any appointive officer upon a majority vote of the council.

(b)(1) Upon the entering of judgment as provided in subdivision (a)(1) of this section, the office of mayor shall become vacant.

(2)(A) It shall be the duty of the clerk of the circuit court to immediately make out and deliver to the Governor a true and certified copy of the judgment.

(B) Thereupon, it shall be the duty of the Governor to at once appoint and commission a mayor for the city or town to fill the vacancy until his or her successor is elected at the next regular election and qualified.

(c) Any mayor so removed from office shall have the right of appeal to the Supreme Court. However, no appeal shall have the effect of suspending the judgment of removal of the circuit court. If the judgment is reversed, it shall have the effect of reinstating the officer to his or her office.

History. Acts 1895, No. 54, §§ 1-4, p. 69; C. & M. Dig., §§ 9585-9587; A.S.A. 1947, §§ 19-919 — 19-921; Acts §§ 7525-7527; Acts 1929, No. 115, § 1; Pope's Dig., 2017, No. 260, § 5.

14-42-110. Appointment and removal of department heads.

(a)(1) Mayors in cities of the first class and second class and incorporated towns shall have the power to appoint and remove all department heads, including city and town marshals when an ordinance has been passed making city and town marshals appointed, unless the city or town council shall vote by a two-thirds majority of the total membership of the council to override the mayor's action.

(2) Provided, however, that in cities of the first class and second class with civil service commissions, the governing body of the city may delegate by ordinance the authority to appoint and remove the heads of the police and fire departments to the city's civil service commission.

(b) City managers in cities having a city manager form of government shall have the power to appoint and remove all department heads. In cities with a city manager form of government and with civil service commissions, the civil service commission shall have the power to override the city manager's appointment or removal of the police or fire chief by a majority vote of the total membership of the commission.

(c) The provisions of this section shall not apply to department heads not under the control of the governing body of the city and shall not apply to cities having a city administrator form of government.

History. Acts 1981, No. 795, §§ 1, 3; A.S.A. 1947, § 19-1013.1; Acts 1995, No. 534, § 1; 1995, No. 914, § 1.

14-42-111. [Repealed.]

Publisher's Notes. This section, concerning mayor of city of the second class or incorporated town unable to perform duties, was repealed by Acts 2013, No. 753, § 4.

The section was derived from Acts 1883, No. 120, § 1, p. 297; C. & M. Dig., § 7673; Pope's Dig., § 9795; A.S.A. 1947, § 19-910.

14-42-112. Municipal attorneys for cities of the second class or incorporated towns.

(a)(1) All cities of the second class and incorporated towns within the State of Arkansas may elect a municipal attorney at the time of the election of other officers of these cities of the second class and incorporated towns, if it is not established by ordinance that the office of the municipal attorney will be appointed.

(2) A city of the second class or an incorporated town that chooses not to have an office of the municipal attorney may contract with an attorney for legal representation.

(3)(A) An attorney elected or appointed to the office of the municipal attorney or an attorney contracted with under this section shall be a regularly licensed attorney of this state.

(B) An attorney elected or appointed under this section shall:

(i) Hold the office of the municipal attorney; and

(ii) Reside within the municipal boundaries of the city of the second class or incorporated town.

(C) An attorney contracted for legal representation under this section is not required to reside within the limits of the city of the second class or incorporated town.

(b) Any municipal attorney elected or appointed under the provisions of this section shall subscribe to the oath of office as all other officers of these cities or towns.

(c) All municipal attorneys are authorized to file information for the arrest of any person for the violation of any ordinance of the city or town or of the laws of this state which are violated within the limits of the city or town.

(d)(1) The duties of the municipal attorney shall be to represent the city or town in all actions, both civil and criminal.

(2)(A) It shall be the duty of the municipal attorney to:

(i) Advise with all city or town officials at any time needed;

(ii) Prepare all legal papers, blank forms, etc.;

(iii) File a complete report of his or her work with the city or town council at the end of each year; and

(iv) If requested to do so, furnish all information in his or her possession to the state courts for the prosecution of cases in the state courts.

(B) Nothing in this section shall prohibit the city or town council from prescribing other duties, and they are authorized to prescribe such other duties as they desire which shall be done by proper ordinance by the council.

(e) The term of office for an elected or appointed municipal attorney shall be four (4) years.

(f) This section does not limit the authority of cities of the second class and incorporated towns from joining with other municipalities to purchase the services of an attorney for representation as provided under § 14-54-101.

History. Acts 1923, No. 153, §§ 1-5; Pope's Dig., 1256, § 20; 1995 (1st Ex. Sess.), No. 13, § 4; 1997, No. 645, §§ 9752-9756; Acts 1975, No. 161, §§ 1, 2; A.S.A. 1947, § 1; 2005, No. 133, § 1; 2025, No. 523, §§ 1-3; 2025, No. § 19-911 — 19-915; Acts 1993, No. 1306, § 8; 1995, No. 993, § 2.

14-42-113. Salaries of officials — Salary withheld if professional license or registration suspended — Definition.

(a)(1) Except as provided in subsections (b) and (c) of this section, the salary of an official of a city of the first class, a city of the second class, or an incorporated town may be increased during

the term for which the official has been elected or appointed and may be decreased during the term only if requested by the official.

(2) When any city official whose salary is decreased under subdivision (a)(1) of this section leaves office before the expiration of his or her term, his or her successor shall receive a salary not less than the salary for the office immediately before the salary was decreased under subdivision (a)(1) of this section.

(b)(1) The salary of an elected official of a city of the first class, a city of the second class, or an incorporated town shall be withheld if:

(A) The elected official is required to hold a professional license or registration as a qualification of his or her position; and

(B) The elected official's professional license or registration is suspended.

(2) Upon suspending the professional license or registration of an elected official of a city of the first class, a city of the second class, or an incorporated town, the agency, board, commission, or other authority that issues the professional license or registration at issue shall notify in writing the appropriate municipality or incorporated town.

(3) Upon learning that an elected official's required professional license or registration has been suspended, the governing body of a city of the first class, city of the second class, or incorporated town may cease paying the elected official's salary from the date of suspension.

(4)(A) Upon restoration of the elected official's professional license or registration, the elected official of a city of the first class, a city of the second class, or an incorporated town may petition the governing body of the city or town for a resumption of salary, and the governing body shall initiate measures to ensure that the elected official's salary is resumed.

(B) The elected official whose salary is resumed under subdivision (b)(4)(A) of this section shall not receive his or her salary for the period that the salary was withheld.

(5)(A) As used in this subsection, "salary" means the compensation paid to an elected official of a city of the first class, a city of the second class, or an incorporated town for service in that position.

(B) "Salary" includes without limitation any benefits provided to the elected official by virtue of his or her position, including without limitation:

(i) Health insurance;

(ii) Retirement contributions; and

(iii) Retirement benefits.

(c)(1) The salary for a municipal office may be lowered if the municipal office is vacant.

(2) As used in this subsection, "municipal office" means:

(A) Treasurer;

(B) Clerk;

(C) Recorder;

(D) Clerk-treasurer; and

(E) Recorder-treasurer.

History. Acts 1969, No. 249, § 1; A.S.A. 1947, § 19-907.1; Acts 2001, No. 563, § 1; 2011, No. 199, § 1; 2013, No. 523, § 1; 2017, No. 260, § 6; 2019, No. 336, § 1.

14-42-114. Social security for municipal employees.

Any municipality incorporated under the laws of the State of Arkansas shall have the power, by a majority vote of its city council or legislative body, to provide for establishing and maintaining a system of social security or old age pensions, or both, for its employees that are not covered by social security or old age pension legislation under such terms and conditions as the city council or legislative body may enact.

History. Acts 1945, No. 10, § 1; A.S.A. 1947, § 19-908.

14-42-115. Volunteer firefighter or volunteer police officer on governing body.

(a)(1) It is lawful for a volunteer firefighter or a volunteer police officer in any city of the first class, city of the second class, or incorporated town in this state to seek election to, and if elected, to serve as a member of the city council or other governing body of the city or town.

(2) This service shall not be deemed a conflict of interest and shall not be prohibited by the civil service regulations of any city or town.

(b) A person may serve and receive compensation as a member of the governing body of any city of the first class, city of the second class, or incorporated town and simultaneously serve as a volunteer firefighter or a volunteer police officer and receive compensation as a firefighter or a police officer.

(c) The provisions of this section shall not apply after August 13, 1993, to any city having a city administrator form of government.

History. Acts 1981, No. 124, § 1; 1981, No. 440, § 1; A.S.A. 1947, §§ 19-943, 19-944; Acts 1993, No. 476, § 1; 2003, No. 1048, § 1.

14-42-116. Retirement systems and benefits.

(a) No municipality shall hereafter establish any retirement benefit system or plan for members of the governing body of the city or town except cities of the first class, cities of the second class, or incorporated towns which had established such a system or plan before July 3, 1989. However, all systems and plans in existence on or before July 3, 1989, may continue.

(b) A city of the first class that had a system or plan under subsection (a) of this section may amend, repeal, or reinstate the system or plan by ordinance.

History. Acts 1989, No. 308, § 1; 2023, No. 437, § 1.

14-42-117. Election of retirement benefits.

Notwithstanding any other law to the contrary, any employee of a city of the first class, city of the second class, or incorporated town, and any elected official of a city of the first class, city of the second class, or incorporated town who is entitled by an act of the General Assembly to retirement benefits for service as such an employee or elected official and who also participates in another retirement plan established by the city for the same period of service shall be entitled to only one (1) retirement benefit for the same period of service to the municipality, provided that no elected official may withdraw in a lump sum or roll over into a private account any accumulated benefits established by the municipality for which the official was employed and at the same time receive a pension as provided for under an act of the General Assembly, and the employee or elected official may choose whether to receive the retirement benefit provided by law or provided by the plan offered by the municipality.

History. Acts 1989, No. 723, § 1; 1991, No. 604, § 1.

14-42-118. Removal of municipal officer for federal offense.

(a) Upon petition by any citizen of the municipality or the prosecuting attorney to the circuit court having jurisdiction, any municipal officer who pleads guilty or nolo contendere to or is found guilty of a federal offense involving embezzlement of public funds, bribery, forgery, or other infamous crime or criminal conduct amounting to a felony, malfeasance, misfeasance, or nonfeasance in office shall be removed from office.

(b) The circuit clerk shall transmit to the Governor and city clerk of the municipality a certified transcript of the removal judgment of the court.

(c) The vacancy shall be filled as may be prescribed by law at the time the vacancy occurs.

History. Acts 2005, No. 163, § 1.

14-42-119. Removal of certain elected municipal officials.

(a) A person who holds an elected office in a municipality for a term of four (4) years in a mayor-council form of government is subject to removal from the office by the electors qualified to vote for a successor of the incumbent.

(b) The procedure for the removal of a person holding the office is as follows:

(1)(A) When a petition requesting the removal of an officer under this section, signed by a number of qualified electors equal to twenty-five percent (25%), is filed with the county clerk, the county clerk shall determine the sufficiency of the petition within ten (10) days from the date of the filing.

(B) A petition shall be filed by 12:00 noon not more than one hundred five (105) days nor less than ninety-one (91) days before the next general election following the election at which the officer was elected;

(2) If the petition is deemed sufficient, the county clerk shall certify it to the county board of election commissioners;

(3) At the election, the question shall be submitted to the qualified electors in substantially the following form:

“FOR the removal of (name of officer) from the office of (name of office)[]

AGAINST the removal of (name of officer) from the office of (name of office)[]”; and

(4)(A)(i) If a majority of the qualified electors voting on the question at the election vote for the removal of the officer, a vacancy shall exist in the office.

(ii) The officer shall vacate the office immediately upon certification of the election.

(B) If a majority of the qualified electors voting on the question at the election vote against the removal of the officer, the officer shall continue to serve during the term for which he or she was elected.

History. Acts 2009, No. 362, § 1; 2011, No. 1028, § 1; 2011, No. 1185, § 17.

14-42-120. Monthly, bimonthly, biweekly, weekly, and hourly salaries for municipal employees.

(a)(1)(A) Except for those municipalities that operate principally on a scholastic year, or on a part-time basis, or where salaries or personal services are specifically established for a period less than one (1) year, all salaries established by the General Assembly or the governing body of the municipality shall be considered to be a maximum amount to be paid for a twelve-month payroll period.

(B) A greater amount than that established for the maximum annual salary of any municipal official or employee shall not be paid to the employee during any twelve-month payroll period, nor shall more than one-twelfth ($\frac{1}{12}$) of the annual salary be paid to an employee during a calendar month unless otherwise authorized.

(2) The limitations set out in this section may be converted to biweekly or weekly increments of one-twenty-sixth ($\frac{1}{26}$) or one-fifty-second ($\frac{1}{52}$) of the maximum annual salary.

(3) For complying with federal requirements, upon approval of the clerk-recorder or treasurer of the municipality, the maximum annual salaries may be converted to hourly rates of pay for positions established on the basis of twelve (12) months or less if authorized by law.

(b) The remuneration paid to an employee of the municipality may exceed the maximum annual salary as authorized by the General Assembly or governing body of the municipality as follows, and the following shall not be construed as payment for services or as salary as contemplated by Arkansas Constitution, Article 16, § 4:

(1) Overtime payments as authorized by law;

(2) Payment of a lump sum to a terminating employee, to include lump-sum payments of sick leave balances upon retirement as provided by law;

- (3) Payment for overlapping pay periods at the end of a fiscal year as defined or authorized by law;
- (4) Payment for the biweekly twenty-seven (27) pay periods; and
- (5) Payments for incentive, certificate, holiday, or working out of classification.

History. Acts 2013, No. 572, § 2.

14-42-121. Allowance for meal tips.

(a) If authorized by the governing body of the municipality, reimbursements to municipal employees for the purchase of meals and meal tips shall be:

- (1) Based on the actual expense incurred; or
- (2)(A) Made on a per diem basis.

(B) A per diem reimbursement under subdivision (a)(2)(A) of this section shall be made under an accountable plan as defined by Internal Revenue Service regulations as in existence on January 1, 2017.

(b) Reimbursement for meal tips under subsection (a) of this section shall not exceed fifteen percent (15%) of the purchase amount of the meal.

History. Acts 2017, No. 919, § 1.

14-42-122. [Repealed.]

14-42-123. Uniform catastrophic leave program — Definition.

(a) As used in this section, “municipality” means a city of the first class, a city of the second class, or an incorporated town.

(b)(1) A municipality may develop, implement, and maintain a catastrophic leave program by ordinance.

(2) A municipal employee may irrevocably donate his or her accrued leave to a catastrophic leave program at the option of the municipal employee.

(3) A municipality may create a “presumptive illness list” of illnesses that are presumed to qualify for catastrophic leave, if the municipality creates the list based on peer-reviewed scientific data.

(c) Catastrophic leave with pay may be granted to a municipal employee if the municipal employee is unable to perform his or her duties due to a catastrophic illness and is, or is reasonably expected to be, on leave without pay as a result of the need for catastrophic leave.

(d) A municipal employee may be eligible for catastrophic leave under this section if the municipal employee:

- (1) Works full time;
- (2) Has been employed by the municipality for the immediately preceding five (5) consecutive years or more in a full-time position, unless the municipality determines a shorter term of years is appropriate;
- (3) Has exhausted all available leave time;
- (4)(A) An acceptable medical certificate from a physician supporting the continuing absence is on file and includes without limitation an approximate date of return.
- (B) A municipality may require a municipal employee to receive more than one (1) physician opinion; and
- (5) Has not been disciplined or counseled for an abuse of leave during the immediately preceding five (5) years.

(e) Unless the municipality determines otherwise, catastrophic leave is not available to a municipal employee under this section if the municipal employee has applied for catastrophic leave as a result of an illness or injury that is covered by workers’ compensation benefits under applicable law.

(f) Catastrophic leave under this section shall:

- (1) Run concurrently with the Family and Medical Leave Act of 1993, Pub. L. No. 103-3;
- (2) Be donated and taken in one-hour increments and donated or applied for on approved forms;
- (3) Not be awarded retroactively; and
- (4) Be awarded only if catastrophic leave is available in the municipality's catastrophic leave program.

History. Acts 2019, No. 883, § 1.

SUBCHAPTER 2 — ELECTIONS

SECTION.

14-42-201. Election of municipal officers generally.

14-42-202. [Repealed.]

14-42-203. Special elections of city mayors.

14-42-204. Election returns generally.

SECTION.

14-42-205. Elections in municipalities situated in different counties.

14-42-206. Municipal elections — Nominating petitions.

14-42-201. Election of municipal officers generally.

(a) The general election for the election of municipal officials in all cities and incorporated towns shall be held on the Tuesday following the first Monday in November.

(b) All municipal officials of the cities and towns of the State of Arkansas shall take office January 1 of the year following their election.

(c)(1) In addition to other residency requirements imposed by state law for municipal office holders, candidates for the positions of mayor, clerk, recorder, or treasurer must reside within the corporate municipal limits at the time they file as candidates and must continue to reside within the corporate limits to retain elective office.

(2) In cities of the first class and cities of the second class, candidates for the position of council member shall reside within the corporate limits and their respective wards at the time they file as candidates for council member and when holding that office.

History. Acts 1949, No. 307, §§ 1-3; A.S.A. 1947, §§ 19-902.1 — 19-902.3; Acts 1995, No. 555, § 1; 1995, No. 671, § 1; 1999, No. 642, § 1; 2001, No. 1833, § 1; 2017, No. 879, § 12.

14-42-202. [Repealed.]

Publisher's Notes. This section, concerning election of governing boards of certain cities, was repealed by Acts 1995, No. 555, § 1. The section was derived from Acts 1977, No. 808, §§ 1-5; 1983, No. 647, § 1; A.S.A. 1947, §§ 19-902.5 — 19-902.9; Acts 1987, No. 840, § 1; 1991, No. 786, § 13.

14-42-203. Special elections of city mayors.

(a) Special elections of mayors of cities of the first class and cities of the second class shall be held at such time and place as the council directs in accordance with § 7-11-101 et seq.

(b) In all cities there shall be a place appointed in each ward for holding elections, except in cities of the second class electing their council members citywide, where there may be one (1) public place only for holding elections.

(c) Any person who, at the time of the election of municipal officers, is a qualified elector and registered to vote in the city precinct where he or she resides shall be deemed a qualified elector.

(d) All elections shall be held and conducted in the manner prescribed by law for holding state and county elections, so far as the laws may be applicable.

History. Acts 1875, No. 1, § 71, p. 1; C. & M. Dig., § 7515; Acts 1937, No. 259, § 1; Pope's Dig., § 9574; Acts 1959, No. 114, § 1; 1985, No. 422, § 1; A.S.A. 1947, § 19-902; Acts 1997, No. 645, § 2; 2005, No. 2145, § 26; 2007, No. 1049, § 44; 2009, No. 1480, § 62; 2017, No. 879, § 13.

14-42-204. Election returns generally.

(a) The returns of all municipal corporations shall be made to the county board of election commissioners of the county in which the corporation is situated and shall be opened by them within three (3) days after their receipt.

(b)(1) The election board shall count the vote as it appears from the pollbooks, make an abstract thereof, and forward it to the mayor.

(2) In like manner and without delay, the board shall furnish to each candidate elected a certificate of election or leave it at his or her usual place of abode.

History. Acts 1875, No. 1, § 72, p. 1; C. & M. Dig., § 7516; Pope's Dig., § 9576; A.S.A. 1947, § 19-903.

14-42-205. Elections in municipalities situated in different counties.

(a) In all municipal elections in municipalities situated in two (2) or more counties, a candidate for municipal office shall file for office with the county clerk of the county with the highest population of the municipality based upon the most recent city federal census. The county clerk of the county with the highest population shall certify the municipal candidate to the other counties.

(b) An independent candidate shall file a nominating petition with the county clerk with the highest population in the municipality. The county clerk of the county with the highest population in the municipality shall verify the signatures on a nominating petition from that county and, if necessary to verify signatures from a different county, shall forward the petition to the appropriate county clerk. That county clerk shall return the petition to the county clerk of the county with the highest population in the municipality within five (5) days of receipt. The county clerk of the county with the highest population in the municipality shall certify the sufficiency of the petition and, in order for the name of the candidate to be printed on all ballots, shall file the certification with each county board of election commissioners where the municipal election will be held.

(c) In all municipal elections in municipalities situated in two (2) or more counties, the county board of election commissioners in the county in which fewer residents of the municipality reside shall certify the election results in municipal offices and issues in that portion of the municipality located in such county to the election board of the county in which the greater number of residents of the municipality reside.

(d) The county board of election commissioners in which the greater population of the municipality resides shall tabulate the votes cast on municipal offices and issues and shall certify the election results to the mayor of the municipality as provided in § 14-42-204.

History. Acts 1969, No. 450, § 1; A.S.A. 1947, § 19-903.1; Acts 1997, No. 729, § 1.

14-42-206. Municipal elections — Nominating petitions.

(a)(1) The city or town council of any city or town with the mayor-council form of government may request the county party committees of recognized political parties under the laws of the state to conduct party primaries for municipal offices for the forthcoming year by resolution passed before August 31 of the calendar year before the election.

(2) The resolution shall remain in effect for the subsequent elections unless revoked by the city or town council.

(3)(A) When the resolution has been adopted, the clerk or recorder shall:

(i) Mail a certified copy of the resolution to the chairs of the county party committees and to the chairs of the state party committees; and

(ii) File a certified copy of the resolution with the county clerk.

(B) The county clerk shall forward a copy of the certified file-marked resolution to the county board of election commissioners.

(4) Candidates nominated for municipal office by political primaries under this section shall be certified by the county party committees to the county board of election commissioners and shall be placed on the ballot at the general election.

(b)(1) Any person desiring to become an independent candidate for municipal office in cities and towns with the mayor-council form of government shall file his or her petition during a one-week period beginning at 12:00 noon and ending at 12:00 noon ninety (90) days before the general election with the county clerk.

(2) The petition of nomination shall be in substantially the following forms:

(A) For all candidates except council members in cities of the first class and cities of the second class:

“PETITION OF NOMINATION

We, the undersigned qualified electors of the city (town) of _____, Arkansas, being in number not less than ten (10) for incorporated towns and cities of the second class, and not less than thirty (30) for cities of the first class, do hereby petition that the name of _____ be placed on the ballot for the office of _____. (A candidate for council member in an incorporated town shall identify the position for which he or she is running) at the next election of municipal officials in 20____.

Printed Name: _____

Signature: _____

Street Address: _____

Date of Birth: _____

Date of Signing: _____”;

(B) For candidates for council member elected by ward in cities of the first class and cities of the second class, the nominating petitions shall be signed only by qualified electors of the ward in the following manner:

“PETITION OF NOMINATION

We, the undersigned qualified electors of Ward _____ of the city of _____, Arkansas, being in number not less than ten (10) for cities of the second class, and not less than thirty (30) for cities of the first class, do hereby petition that the name of _____ be placed on the ballot for the office of council member, Ward _____, position _____, of the next election of municipal officials in 20____.

Printed Name: _____

Signature: _____

Street Address: _____

Date of Birth: _____

Date of Signing: _____”; and

(C) For at-large candidates for council member of a ward in cities of the first class and cities of the second class, the nominating petitions shall be signed by a qualified elector of the city in the following manner:

“PETITION OF NOMINATION

We, the undersigned qualified electors of the city of _____, Arkansas, being in number not less than ten (10) for cities of the second class, and not less than thirty (30) for cities of the first class, do hereby petition that the name of _____ be placed on the ballot for the office of council member, Ward _____, position _____, of the next election of municipal officials in 20____.

Printed Name: _____

Signature: _____

Street Address: _____

Date of Birth: _____

Date of Signing: _____”.

(3)(A) An independent candidate for municipal office may qualify by a petition to be circulated for no longer than ninety (90) days of not fewer than ten (10) electors for incorporated towns

and cities of the second class and not fewer than thirty (30) electors for cities of the first class of the ward or city in which the election is to be held.

(B)(i) The county clerk shall determine no later than fourteen (14) days from filing whether the petition contains the names of a sufficient number of qualified electors and certify that no signatures are dated more than ninety (90) days before the filing of the petition.

(ii) The county clerk's determination shall be made no less than seventy-five (75) days before the general election.

(C) The county clerk promptly shall notify the candidate of the result.

(4) Independent candidates for municipal office shall file a political practices pledge and an affidavit of eligibility at the time of filing their petitions.

(5)(A) An independent candidate shall state the position, including the position number, if any, on his or her petition.

(B) When a candidate has identified the position sought on the notice of candidacy, the candidate shall not be allowed to change the position but may withdraw a notice of candidacy and file a new notice of candidacy designating a different position before the deadline for filing.

(6) The sufficiency of a petition filed under this section may be challenged in the same manner as election contests under § 7-5-801 et seq.

(7) A person who has been defeated in a party primary shall not file as an independent candidate in the general election for the office for which he or she was defeated in the party primary.

(c)(1)(A) If no candidate receives a majority of the votes cast in the general election, the two (2) candidates receiving the highest number of votes cast for the office to be filled shall be the nominees for the respective offices, to be voted upon in a runoff election pursuant to § 7-5-106.

(B) In any case, except for the office of mayor, in which only one (1) candidate has filed and qualified for the office, the candidate shall be declared elected and the name of the person shall be certified as elected without the necessity of putting the person's name on the general election ballot for the office.

(2) If the office of mayor is unopposed, then the candidate for mayor shall be printed on the general election ballot and the votes for mayor shall be tabulated as in all contested races.

(d) [Repealed.]

(e) A person filing for municipal office may file for only one (1) municipal office during the municipal filing period.

(f) Nothing in this section shall repeal any law pertaining to the city administrator form of government or the city manager form of government.

(g) This section does not apply in any respect to the election of district judges.

History. Acts 1991, No. 59, §§ 2, 3; 1991, No. 430, §§ 2, 1480, § 63; 2011, No. 519, § 1; 2011, No. 1185, §§ 18, 19; 3; 1995, No. 82, § 1; 1995, No. 665, § 1; 1997, No. 645, § 3; 2013, No. 1066, § 1; 2015, No. 4, § 4; 2015 (1st Ex. Sess.), 1999, No. 752, § 1; 2001, No. 1789, § 8; 2003, No. 542, § 3; No. 4, § 4; 2017, No. 879, § 14; 2019, No. 545, § 8; 2019, 2003, No. 1104, § 1; 2003, No. 1165, § 10; 2003, No. 1185, No. 597, § 8; 2021, No. 448, §§ 9, 10; 2023, No. 328, §§ 1-4; § 24; 2007, No. 1020, § 21; 2007, No. 1049, § 45; 2009, No. 2025, No. 360, § 2.

SUBCHAPTER 3 — CHARTERS FOR CITIES OF THE FIRST CLASS AND SECOND CLASS

SECTION.

14-42-301. Construction.
14-42-302. Appointment of commission.
14-42-303. Election on proposed charter.
14-42-304. Amendments to charter.
14-42-305. Effect of approval.
14-42-306. Limitations on charters.

SECTION.

14-42-307. Powers of municipalities.
14-42-308. Annual budget, taxes, and rates.
14-42-309. Election results.
14-42-310. Election expenses.
14-42-311. Expiration of charter.

14-42-301. Construction.

Nothing in this subchapter shall be construed to limit the powers of municipalities which shall continue to operate under the general laws of the State of Arkansas.

History. Acts 1953, No. 207, § 9; A.S.A. 1947, § 19-1059.

14-42-302. Appointment of commission.

(a)(1) The governing body of any city of the first or second class, upon passage of a municipal ordinance, may create a commission to frame a charter for the city.

(2) The commission shall be appointed by the governing body and shall be composed of not less than nine (9) members, who shall serve without compensation, and at least two-thirds ($\frac{2}{3}$) of whom shall not hold any other municipal office or appointment.

(b) The governing body of the municipality, if so requested by the commission, shall appropriate money to provide the reasonable expenses of the commission and for publication of the completed charter, and any separate or alternative provisions thereof.

History. Acts 1953, No. 207, § 1; 1961, No. 431, § 1; A.S.A. 1947, § 19-1051.

14-42-303. Election on proposed charter.

(a)(1) Any charter framed as provided in § 14-42-302 shall be submitted to the qualified electors of the municipality at any election to be held at a time determined by the charter commission, but it shall be held within one (1) year after the appointment of the commission.

(2) Any part of the charter, or any alternative provision thereof, may be submitted to be voted upon separately.

(b) The commission shall publish, not less than thirty (30) days before any election, the proposed charter and any separate parts and alternative provisions thereof.

(c) Within thirty (30) days after its approval, the county board of election commissioners shall certify a copy of the charter to the Secretary of State.

History. Acts 1953, No. 207, § 2; A.S.A. 1947, § 19-1052.

14-42-304. Amendments to charter.

(a) Amendments to any charter may be proposed by a two-thirds vote of the governing body of the municipality or by petition of ten percent (10%) of the qualified electors of the municipality.

(b) The amendment shall be submitted to the qualified electors of the municipality at a regular or special election called in accordance with § 7-11-201 et seq.

(c) The proposed amendment shall be published at least one (1) time in some newspaper of general circulation throughout the municipality.

(d) Any amendment approved by a majority of the electors voting thereon shall become a part of the charter at the time fixed in the amendment and shall be certified to the Secretary of State.

(e) Each amendment submitted shall be confined to one (1) subject, and when more than one (1) amendment shall be submitted at the same time, they shall be so submitted as to enable the voters to vote on each amendment separately.

History. Acts 1953, No. 207, § 4; A.S.A. 1947, § 19-1054; Acts 2005, No. 2145, § 27; 2007, No. 1049, § 46; 2009, No. 1480, § 64.

14-42-305. Effect of approval.

Any proposed charter which is approved by a majority of the electors voting thereon, and with the additions of any such parts and as modified by any such alternative provisions as may be separately submitted and approved by those voting on any such parts and provisions, shall become the organic law of the municipality at the time fixed in the charter and shall supersede all laws affecting the organization and government of the municipality which are in conflict therewith.

History. Acts 1953, No. 207, § 2; A.S.A. 1947, § 19-1052.

14-42-306. Limitations on charters.

(a) No charter adopted pursuant to this subchapter shall be in conflict with it, nor shall it alter any civil service or pension laws in existence under the general laws of this state, any seventy-two-hour laws, vacation laws, two-platoon law for firefighters, or the Arkansas Constitution.

(b) No charter shall alter or change any statutory laws providing for the powers, duties, and manner of appointment of any airport, water, sewer, or housing authority commissions within the city.

History. Acts 1953, No. 207, § 2; A.S.A. 1947, § 19-1052.

14-42-307. Powers of municipalities.

(a)(1) Each municipality operating under a charter shall have the authority to exercise all powers relating to municipal affairs.

(2) This grant of authority shall not be deemed to limit or restrict the powers of the General Assembly in matters of state affairs, nor shall this subchapter be construed as increasing or diminishing the powers of the state to regulate utilities not municipally owned or fix the rates thereof.

(b) The following shall be deemed to be a part of the powers conferred upon the municipalities by this subchapter:

(1) To levy, assess, and collect taxes within the limits prescribed in the charter adopted by the municipality and the limits prescribed in the Arkansas Constitution;

(2) To furnish all local public services and to acquire property therefor by condemnation or otherwise, within or without the corporate limits, subject, however, to the provisions of the general laws of the State of Arkansas, including any law requiring that the acquisition of a utility plant be approved by a municipal election. However, no property can be acquired under this subchapter by the issuance of bonds, notes, or other evidence of indebtedness unless the bonds, notes, or evidence of indebtedness is secured by the credit of the city and all the property therein; and

(3) To exercise all powers conferred by the state constitution and the General Assembly generally upon municipalities not contrary to this subchapter.

(c) No municipality shall pass any laws contrary to the criminal laws of the State of Arkansas.

History. Acts 1953, No. 207, §§ 6, 8; A.S.A. 1947, §§ 19-1056, 19-1058.

14-42-308. Annual budget, taxes, and rates.

(a) The governing body of each municipality operating under a charter shall prepare, approve, and publish, not less than sixty (60) days in advance of the annual municipal general election, a proposed budget of operational expenditures of the municipality for the forthcoming year, together with proposed taxes and rate or rates sufficient to provide the funds therefor, excluding the rates under any continuing levies previously authorized.

(b)(1) The taxes and the rate or rates so proposed shall be submitted to the qualified electors at the next annual municipal general election.

(2)(A) The proposed taxes shall be approved or disapproved in their entirety.

(B)(i) If a majority of the qualified electors voting thereon shall approve the taxes so proposed, then the taxes so approved shall be collected at the rate provided.

(ii) In the event a majority of the qualified electors voting in the election shall disapprove the proposed taxes, then the taxes shall be collected at the last rate legally levied.

History. Acts 1953, No. 207, § 5; A.S.A. 1947, § 19-1055.

14-42-309. Election results.

(a) In all elections provided for in this subchapter, the results of the vote shall be certified immediately after the election by the county board of election commissioners to the mayor.

(b) The certified results shall become final and conclusive if they are not attacked in the courts within a period of thirty (30) days thereafter.

History. Acts 1953, No. 207, § 7; A.S.A. 1947, § 19-1057.

14-42-310. Election expenses.

The expenses of the elections provided by this subchapter shall be borne by the municipality concerned.

History. Acts 1953, No. 207, § 3; A.S.A. 1947, § 19-1053.

14-42-311. Expiration of charter.

By amendment to the charter, a date may be fixed for the expiration of the charter. On the date specified, the municipality shall cease to operate under this subchapter.

History. Acts 1953, No. 207, § 4; A.S.A. 1947, § 19-1054.

CHAPTER 43

GOVERNMENT OF CITIES OF THE FIRST CLASS

SUBCHAPTER 2 — ELECTIONS GENERALLY

SECTION.

14-43-201. Odd-year elections abolished.

14-43-202. Write-in votes not counted.

14-43-201. Odd-year elections abolished.

(a) Municipal elections in 1965 and all odd years in the future are abolished.

(b) It is the purpose of this section to elect municipal officials at the regular general election for the election of state and county officials.

History. Acts 1965, No. 484, § 5; A.S.A. 1947, § 19-1002.8.

14-43-202. Write-in votes not counted.

In all general elections held in cities of the first class and second class and incorporated towns for the election of officials of these municipalities, no ballots shall be counted for any person whose name is written in thereon. Only votes cast for the regularly nominated, or otherwise qualified, candidates whose names are printed on the ballot as candidates in the election shall be counted by the judges and clerks.

History. Acts 1935, No. 105, § 1; Pope's Dig., § 9575; A.S.A. 1947, § 19-1001; Acts 1995, No. 179, § 1.

SUBCHAPTER 3 — ELECTION OF CITY OFFICIALS

SECTION.

14-43-301. Type of election.

14-43-302. [Repealed.]

14-43-303. Officials in mayor-council cities of 50,000 or more.

14-43-304. Mayors in cities having mayor-council government.

14-43-305. Mayors in mayor-council cities of less than 50,000.

14-43-306. [Repealed.]

14-43-307. Election of council members at large or by ward.

14-43-308. Residence qualifications of council members in primaries.

14-43-309. Residence qualifications of council members in general elections.

SECTION.

14-43-310. Council member ceasing to reside in ward.

14-43-311. Redistricting of wards.

14-43-312. Council members in mayor-council cities of fewer than 50,000.

14-43-313. City clerks and city attorneys generally.

14-43-314. City attorney in mayor-council cities of 50,000 or more.

14-43-315. City attorney in mayor-council cities of fewer than 50,000.

14-43-316. City clerk, treasurer, or clerk-treasurer in mayor-council cities of fewer than 50,000.

14-43-317. [Repealed.]

14-43-318. [Repealed.]

14-43-319. [Repealed.]

14-43-301. Type of election.

In cities of the first class, all officers to be elected shall be elected at the regular general election for municipal corporations.

History. Acts 1875, No. 1, § 62, p. 1; C. & M. Dig., § 7744; Pope's Dig., § 9940; A.S.A. 1947, § 19-1011; Acts 1995, No. 359, § 1.

14-43-302. [Repealed.]

Publisher's Notes. This section, concerning election of city officers generally, was repealed by Acts 1997, No. 214, § 1. The section was derived from Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., § 7690; Pope's Dig., § 9819; A.S.A. 1947, § 19-1002.

14-43-303. Officials in mayor-council cities of 50,000 or more.

(a)(1)(A) In the general election in the year 1960, and every four (4) years thereafter, cities of the first class that have a population of fifty thousand (50,000) persons or more, according to the latest federal decennial census or special federal census, and that also have the mayor-council form of government shall elect the following officials:

- (i) One (1) mayor;
- (ii) One (1) city clerk; and
- (iii) One (1) council member from each ward of the city.

(B) All of these officials shall hold office for a term of four (4) years and until their successors are elected and qualified.

(2)(A) At the general election in the year 1962 and every four (4) years thereafter, the city shall elect:

- (i) One (1) city attorney;
- (ii) One (1) city treasurer; and
- (iii) One (1) council member from each ward of the city.

(B) All of these officials shall hold office for a term of four (4) years and until their successors are elected and qualified.

(3) The governing body of a city in transition to the mayor-council form of government may provide by ordinance that the mayor, city clerk, city attorney, and city treasurer shall be elected on the same date and every four (4) years thereafter.

(b) In all primaries or general elections, the candidates for the office of council member shall reside in their respective wards. However, all qualified electors residing in these cities and entitled to vote in the elections may vote at their several voting precincts for each and every candidate so to be nominated or elected.

(c) All odd-year elections for municipal officials in the cities of the first class that have a population of fifty thousand (50,000) or more persons, according to the latest federal census, and that also have the mayor-council form of government are abolished.

(d)(1) If a city first attains a population of fifty thousand (50,000) as shown in a federal decennial census or special federal census completed after January 1, 1997, and the mayor or other elected official of the city last elected before the census was elected to a four-year term and the term will expire two (2) years before the quadrennial general election year at which city officials are elected as provided in subsection (a) of this section, the terms of such officials shall be extended for a period of two (2) years in order that the terms will coincide with the next quadrennial general election year. At that quadrennial general election and at each quadrennial general election thereafter, the mayor and such other municipal officials shall be elected to terms of four (4) years as provided in this section.

(2) The provisions of this subsection shall not affect in any way the provisions of this section that provide for staggering the terms of office of council members so that one (1) council member will be elected from each ward every two (2) years.

History. Acts 1959, No. 176, §§ 1, 2; A.S.A. 1947, No. 1185, § 25; 2015, No. 233, § 1; 2017, No. 879, § 15; §§ 19-1002.2, 19-1002.3; Acts 1997, No. 707, §§ 2, 3; 2003, 2019, No. 1092, § 1.

14-43-304. Mayors in cities having mayor-council government.

(a)(1) A mayor of a city of the first class having a mayor-council form of government shall be elected:

- (A) By a majority vote of the qualified electors of the city; or
- (B) In accordance with § 7-5-106.

(2) This section does not apply to a city of the first class with a city manager form of government or a city administrator form of government.

(b)(1) As soon as the returns from all precincts are received, but no later than the fifteenth day after the election, the county board of election commissioners shall proceed to ascertain, from the certificates and ballots received from the several precincts, and declare the result of the election and deliver a certificate of his or her election to any person having the requisite amount of legal votes for the office of mayor.

(2) The county board of election commissioners shall also file in the office of the clerk of the county court a certificate setting forth in detail the results of the election.

(c)(1) If no candidate for mayor of a city of the first class receives the requisite amount of the votes cast in the general election, the two (2) candidates receiving the highest number of votes shall be certified to a special runoff election that shall be held four (4) weeks from the day on which the general election is held.

(2) The special runoff election shall be conducted in the same manner as provided by law, and the election results of the special runoff election shall be canvassed and certified in the manner provided by law.

(d) If a vacancy occurs in the office of mayor of a city described in this section and the unexpired term is more than one (1) year, the vacancy shall be filled under § 14-42-103.

History. Acts 1975, No. 269, §§ 1-3; A.S.A. 1947, §§ 19-1002.9 — 19-1002.11; 2003, No. 1165, § 13[11]; 2017, No. 163, § 1; 2017, No. 1104, § 7; 2025, No. 995, § 2.

14-43-305. Mayors in mayor-council cities of less than 50,000.

(a) The qualified voters of cities of the first class having a population of less than fifty thousand (50,000) and having the mayor-council form of government, on the Tuesday following the first Monday in November of 1970 and every four (4) years thereafter, shall elect a mayor for four (4) years.

(b) Incumbent mayors shall continue in office until their successors are elected and qualified.

History. Acts 1965, No. 12, § 1; A.S.A. 1947, § 19-1002.4.

14-43-306. [Repealed.]

Publisher's Notes. This section, concerning mayors in cities between 28,000 and 35,000, was repealed by Acts 1993, No. 1121, § 1. The section was derived from Acts 1953, No. 244, § 1; A.S.A. 1947, § 19-1002.1.

14-43-307. Election of council members at large or by ward.

(a)(1) Candidates for the office of council member in cities of the first class shall reside in the ward from which they seek to be elected and shall run at large.

(2)(A) All of the qualified electors of these cities shall be entitled to vote in the election.

(B)(i)(a) Except as provided under subsection (b) of this section, provisions shall be made by the election commissioners in these cities so that the qualified electors of each ward shall have at least one (1) voting site in each ward where the resident electors thereof may cast their ballots.

(b) The county board of election commissioners may reduce the number of voting sites in a city of the first class by unanimous vote if:

(1) In the most recent federal decennial census the city has a population of five thousand (5,000) or less; and

(2) The county in which the city is situated has established vote centers under § 7-5-101.

(ii) Cities of the second class that elect their council members citywide may have one (1) public place only for holding elections.

(b)(1)(A) The city council of any such city or the governing body of any city in transition to the mayor-council form of government may provide by ordinance that all council members be

elected by ward, in which event each council member shall be voted upon by the qualified electors of the ward from which he or she is a candidate.

(B)(i) When so provided by city ordinance, the name of the candidate shall appear upon the ballot only in the ward in which he or she is a candidate.

(ii) The city council of these cities may provide for the election of one (1) council member from each ward citywide and the other council members from each ward by the voters of the ward only.

(2) All such cities choosing to elect all council members by wards or in part by wards shall provide, in the manner provided by law, for the establishment of wards of substantially equal population in order that each council member elected from each ward shall represent substantially the same number of people in the city.

(c)(1) Ordinances enacted under subdivision (b)(1) of this section shall be filed with the county clerk no later than August 31 of the calendar year before the election of council members.

(2) A city of the first class that has an ordinance enacted under subdivision (b)(1) of this section shall file the ordinance with the county clerk no later than January 1, 2026.

(3) Once an ordinance is filed with the county clerk, changes shall not be made to the election of council members until a new ordinance is passed by the governing body of the municipality and filed with the county clerk by August 31 of the calendar year before the election of council members.

(4) A city of the first class that does not file an ordinance under subdivision (b)(1) of this section shall have its council members elected at large.

History. Acts 1965, No. 484, § 3; 1969, No. 45, § 1; § 19-1002.7; Acts 1993, No. 857, § 1; 2017, No. 879, § 16; 1973, No. 501, § 1; 1985, No. 421, § 1; A.S.A. 1947, 2019, No. 949, § 1; 2025, No. 283, § 1.

14-43-308. Residence qualifications of council members in primaries.

(a)(1) In all primaries held in any city of the first class by any organized political party, the candidates for nomination for the office of council member shall reside in their respective wards.

(2) All qualified electors residing in these cities and entitled to vote in the primaries may vote at their several voting precincts for each and every candidate so to be nominated.

(b)(1) The city council may provide by ordinance that the candidate shall only be voted upon by qualified voters of the ward who are entitled to vote in the primary from which the person is a candidate.

(2) When provided by ordinance, a candidate under subdivision (b)(1) of this section shall appear upon the ballot only in the ward in which he or she is a candidate.

(c)(1) Ordinances enacted under subdivision (b)(1) of this section shall be filed with the county clerk no later than August 31 of the calendar year before the election of council members.

(2) A city of the first class that has an ordinance enacted under subdivision (b)(1) of this section shall file the ordinance with the county clerk no later than January 1, 2026.

(3) Once an ordinance is filed with the county clerk, changes shall not be made to the election of council members until a new ordinance is passed by the governing body of the municipality and filed with the county clerk by August 31 of the calendar year before the election of council members.

(4) A city of the first class that does not file an ordinance under subdivision (b)(1) of this section shall have its council members elected at large.

History. Acts 1949, No. 112, § 1; A.S.A. 1947, § 19-1003.1; Acts 2017, No. 879, § 17; 2025, No. 283, § 2.

14-43-309. Residence qualifications of council members in general elections.

(a)(1) In all general elections for council members in cities of the first class, the council members so elected shall reside in their respective wards, as provided by law.

(2) All qualified electors residing in these cities may vote at their several voting precincts for each council member so to be elected.

(b)(1) The city council of a city of the first class may provide by ordinance that each council member shall only be voted upon by qualified voters of the ward from which the person is a candidate.

(2) When provided by ordinance, the name of the candidate shall appear upon the ballot only in the ward in which he or she is a candidate.

(c)(1) Ordinances enacted under subdivision (b)(1) of this section shall be filed with the county clerk no later than August 31 of the calendar year before the election of council members.

(2) A city of the first class that has an ordinance enacted under subdivision (b)(1) of this section shall file the ordinance with the county clerk no later than January 1, 2026.

(3) Once an ordinance is filed with the county clerk, changes shall not be made to the election of council members until a new ordinance is passed by the governing body of the municipality and filed with the county clerk by August 31 of the calendar year before the election of council members.

(4) A city of the first class that does not file an ordinance under subdivision (b)(1) of this section shall have its council members elected at large.

History. Acts 1949, No. 112, § 2; A.S.A. 1947, § 19-1003.2; Acts 2017, No. 879, § 18; 2025, No. 283, § 3.

14-43-310. Council member ceasing to reside in ward.

If any duly elected council member shall cease to reside in the ward from which he or she was elected, that person shall be disqualified to hold the office and a vacancy shall exist which shall be filled under § 14-42-103.

History. Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., 1947, § 19-1004; Acts 2017, No. 879, § 19; 2025, No. 995, § 7692; Pope's Dig., § 9835; Acts 1961, No. 444, § 1; A.S.A. § 3.

14-43-311. Redistricting of wards.

(a)(1)(A) City councils in cities of the first class may redistrict the wards in their city when they determine that the people can best be served by adding wards, combining wards, or changing ward boundary lines to equalize the population in the various wards.

(B) The city council shall ensure that each ward has as nearly an equal population as would best serve the interest of the people of the city.

(2)(A) Within ninety (90) days after redistricting, if one hundred (100) or more qualified electors in the city are dissatisfied with the redistricting of the city into wards, the electors may petition the circuit court.

(B) The court, after due hearing, may redistrict the city into such wards as the court shall deem best if the court finds that the redistricting action by the city council was arbitrary and capricious.

(b) At the next city election held, more than twenty (20) days after the approval of redistricted wards, there shall be elected from each of the new wards two (2) council members who shall organize the new city council at the first council meeting in January after their election.

(c)(1)(A) All council members elected in the city prior to redistricting of wards shall give up their positions to the new council members at the time for the organization of the new city council, as provided in subsection (b) of this section.

(B) From that date the terms of office of all previously elected council members shall cease and terminate.

(2)(A) It shall be lawful to increase the number of wards or continue the same number of wards without affecting the terms of office of incumbent council members of the city.

(B)(i) When the wards are reapportioned so as to increase the number of wards or readjust existing wards so that the wards contain nearly equal population, a council member who remains in his or her old ward, or part thereof, shall continue in office.

(ii) New council members shall be elected only for new wards actually formed out of the territory of old wards.

(d)(1) All clerk's costs and other costs incurred in the proceedings authorized in this section shall be paid by the persons at whose instance the services were rendered.

(2)(A) In case these proceedings result in the redistricting of the city into new wards, the compensation of those individuals making the redistricting shall be fixed by the circuit judge, certified to the city council, and paid out of the city treasury.

(B) This compensation shall not exceed the sum of twenty-five dollars (\$25.00) each.

History. Acts 1885, No. 67, § 6, p. 92; 1905, No. 275, 253, § 1; A.S.A. 1947, §§ 19-1005 — 19-1007, 19-1009; § 1, p. 693; C. & M. Dig., §§ 7720-7724, 7726; Pope's Dig., Acts 2017, No. 879, § 20. §§ 9890-9894, 9896; Acts 1973, No. 600, § 1; 1983, No.

14-43-312. Council members in mayor-council cities of fewer than 50,000.

(a)(1) On the Tuesday following the first Monday in November 1966 and every two (2) years thereafter, the qualified voters of all cities of the first class having the mayor-council form of government with fewer than fifty thousand (50,000) inhabitants shall elect two (2) council members from each ward for a term of two (2) years, except that by ordinance any city of the first class may refer the question to voters to elect two (2) council members from each ward to four-year terms as more particularly set out in subdivision (a)(2)(A) of this section.

(2)(A) On or before February 1 of the election year when the procedure will go into effect, any city of the first class, by ordinance referred to and approved by the voters at the previous general election or at a special election called for that purpose, may elect two (2) council members from each ward to four-year terms, except for the initial terms as provided in subdivision (a)(2)(B) of this section.

(B)(i) If this procedure is adopted by ordinance referred to and approved by the voters of the city, the council member representing position number one from each ward shall be elected to a four-year term at the next general election.

(ii) The council member representing position number two from each ward shall be elected to an initial two-year term at the next election, and thereafter shall be elected to four-year terms, resulting in staggered terms with one (1) council member being elected to a four-year term from each ward every two (2) years.

(b)(1) The council members shall be designated as "council member number one" and "council member number two".

(2)(A) A candidate for the office of council member shall designate the number of the council member's office which the candidate is seeking on the petition filed under § 14-42-206.

(B) When this designation has been made, the candidate shall not be permitted thereafter to change the designation on that petition.

(C) The county clerk shall not accept a petition for filing that does not designate the number of the office for council member sought.

(D) Each city shall maintain in its records a document showing the name of each council member and the number of the office which the candidate holds.

(c)(1)(A) The city council may refer an ordinance to voters on the question of returning a city to electing council members to two-year terms.

(B) The ordinance shall be passed by a two-thirds vote of the city council before it is referred to and approved by voters at a general election.

(2) If the voters approve returning the city to electing council members to two-year terms, all council members shall be elected to two-year terms at the next general election and thereafter, except that those council members serving four-year terms shall complete their terms.

(3) The city council may not refer another question to voters on electing council members to four-year terms or on returning the city to electing council members to two-year terms unless at least four (4) years have passed since the last election on changing the terms of council members.

History. Acts 1965, No. 484, §§ 1, 2; A.S.A. 1947, 244, § 1; 2005, No. 81, § 1; 2013, No. 503, § 1; 2017, No. §§ 19-1002.5, 19-1002.6; Acts 2001, No. 543, § 1; 2003, No. 879, § 21.

14-43-313. City clerks and city attorneys generally.

The city clerks and the city attorneys in cities of the first class shall give the bond, perform the duties, and receive such salary as is prescribed by ordinance in each of these cities.

History. Acts 1893, No. 151, § 1; C. & M. Dig., § 7690; Pope's Dig., § 9819; A.S.A. 1947, § 19-1015; Acts 2003, No. 113, § 1.

14-43-314. City attorney in mayor-council cities of 50,000 or more.

(a)(1) The city attorney in any city of this state having a mayor-council form of government and having a population of fifty thousand (50,000) or more inhabitants shall be elected by the qualified electors of the city in the same manner as other municipal officials are elected.

(2) At the November 1978 general election and each four (4) years thereafter, the qualified electors of each city under this section shall elect a city attorney to take office on the next following January 1 to serve for a term of four (4) years.

(b) Any person elected as city attorney under the provisions of this section shall perform such duties, possess such qualifications, employ such staff, and be paid such salary and expenses as may be established by ordinance by the city council of the city.

(c)(1) If no attorney residing in the city is elected as city attorney, the city council may select a resident attorney to fill the office for the remainder of the unfilled term.

(2)(A) If no resident attorney of the city is willing to serve as city attorney or if no attorney resides within the limits of the city, the mayor and city council may contract with any licensed attorney of this state or the attorney's firm to serve as legal advisor, counselor, or prosecutor until a qualified city attorney is elected or appointed.

(B) The duties of a nonresident attorney under contract shall be prescribed by ordinance.

History. Acts 1969, No. 154, §§ 1, 3; 1977, No. 171, §§ 1, 1015.5, 19-1015.7; Acts 1993, No. 1121, § 1; 2003, No. 4; 1979, No. 1002, § 1; A.S.A. 1947, §§ 19-1015.3, 19-1361, § 1.

14-43-315. City attorney in mayor-council cities of fewer than 50,000.

(a) If not established by ordinance that the office of the city attorney will be appointed, the qualified voters of cities of the first class having a population of fewer than fifty thousand (50,000) and having the mayor-council form of government shall elect a city attorney for four (4) years on the Tuesday following the first Monday in November 1970 and every four (4) years thereafter.

(b) Incumbent city attorneys shall continue in office until their successors are elected and qualified.

(c)(1) If no attorney residing in the city is elected as city attorney, the city council may select a resident attorney to fill the office for the remainder of the unfilled term.

(2)(A) If no resident attorney of the city is willing to serve as city attorney or if no attorney resides within the limits of the city, the mayor and city council may contract with any licensed attorney of this state or the attorney's firm to serve as legal advisor, counselor, or prosecutor until a qualified city attorney is elected or qualified.

(B) The duties of a nonresident attorney under contract shall be prescribed by ordinance.

History. Acts 1965, No. 131, § 1; A.S.A. 1947, § 19-1015.1; Acts 2003, No. 1361, § 2; 2023, No. 116, § 1.

14-43-316. City clerk, treasurer, or clerk-treasurer in mayor-council cities of fewer than 50,000.

(a)(1) The qualified voters of cities of the first class having a population of fewer than fifty thousand (50,000) and having the mayor-council form of government shall elect on the first Tuesday following the first Monday in November, 1962, and every four (4) years thereafter:

(A) One (1) city clerk and, unless appointed pursuant to § 14-43-405, one (1) city treasurer;
or

(B) One (1) city clerk-treasurer.

(2) The city clerk and city treasurer, or the city clerk-treasurer, shall hold office for four (4) years and until a successor is elected and qualified.

(b) The city clerk and the city treasurer, or the city clerk-treasurer, shall take the oath of office with the other city officials that are elected in the general election in 1962 and in that manner every four (4) years thereafter.

(c) The city clerk and city treasurer, or city clerk-treasurer, shall give the bond and perform the duties as are prescribed by law and shall receive a salary as is prescribed by ordinance in each of these cities.

(d) Each incumbent in any city having this population shall continue to be the city clerk, city treasurer, or city clerk-treasurer and receive the salary and perform the duties until a successor is elected and qualified.

History. Acts 1943, No. 248, § 1; 1951, No. 123, § 1; 1961, No. 430, § 1; A.S.A. 1947, § 19-1016; Acts 2001, No. 364, § 1; 2019, No. 383, § 7.

14-43-317. [Repealed.]

Publisher's Notes. This section, concerning clerk in cities between 28,000 and 35,000, was repealed by Acts 1993, No. 1121, § 1. The section was derived from Acts

1943, No. 248, § 1; 1951, No. 365, § 1; A.S.A. 1947, § 19-1016.1.

14-43-318. [Repealed.]

Publisher's Notes. This section, concerning police judges of cities of the first class, was repealed by Acts 2005,

No. 45, § 1. The section was derived from Acts 1987, No. 684, § 1.

14-43-319. [Repealed.]

SUBCHAPTER 4 — OFFICERS AND EMPLOYEES GENERALLY

SECTION.

14-43-401. Mayor generally.

14-43-402 — 14-43-404. [Repealed.]

14-43-405. Treasurer — Clerk-treasurer in mayor-council cities.

14-43-406. City clerk's seal.

14-43-407. Deputy city attorneys.

SECTION.

14-43-408. [Repealed.]

14-43-409. Compensation of officers generally.

14-43-410. Compensation of city attorneys.

14-43-411. Council member vacancy in mayor-council form of government.

14-43-412. Vacancies in other elected offices.

14-43-401. Mayor generally.

(a)(1) The mayor shall hold his or her office during the term for which he or she shall have been elected and until his or her successor shall have been elected and qualified.

(2) The mayor shall keep an office at some convenient place in the city, to be provided by the city council, and shall keep the corporate seal of the city in his or her charge.

(b)(1) In case of the mayor's death, disability, resignation, or other vacation of his or her office, the vacancy shall be filled under § 14-42-103.

(2) A removal from the city shall be deemed a vacation of his or her office.

History. Acts 1875, No. 1, § 53, p. 1; C. & M. Dig., §§ 7695, 7696; Pope's Dig., §§ 9838, 9839; Acts 1977, No. 8, § 1; A.S.A. 1947, § 19-1012; Acts 2015, No. 339, § 1; 2025, No. 995, § 4.

14-43-402 — 14-43-404. [Repealed.]

Publisher's Notes. These sections, concerning vice mayor for city in county of 40,000 to 45,000; vice mayor for cities of 25,500 to 27,000; vice mayor for cities of 9,500 to 11,500, were repealed by Acts 1995, No. 555, § 1. The sections were derived from the following sources:

14-43-402. Acts 1969, No. 316, §§ 1-3; A.S.A. 1947, §§ 19-1010.1 — 19-1010.3.

14-43-403. Acts 1971, No. 18, §§ 1, 2; A.S.A. 1947, §§ 19-1010.6, 19-1010.7.

14-43-404. Acts 1971, No. 256, §§ 1, 2; A.S.A. 1947, §§ 19-1010.4, 19-1010.5.

14-43-405. Treasurer — Clerk-treasurer in mayor-council cities.

(a)(1) Each city of the first class having the mayor-council form of government may provide by ordinance for the election or appointment of its city treasurer.

(2)(A) The city council may designate by ordinance or resolution the city clerk as “clerk-treasurer”, allowing one (1) person to assume the duties of both clerk and treasurer.

(B) The city council may combine the offices of clerk and treasurer to take effect at the next election under § 14-43-316 or when the offices are vacant.

(3) When one (1) person assumes the duties of both clerk and treasurer, the position shall not be separated during the elected clerk-treasurer's term unless the position is vacant.

(b) The term of office for these positions, combined or separate, is four (4) years.

History. Acts 1965, No. 484, § 4; A.S.A. 1947, § 19-1015.2; Acts 2001, No. 364, § 2; 2019, No. 336, § 2.

14-43-406. City clerk's seal.

(a) Each city council shall cause to be provided for its clerk's office a seal, in the center of which shall be the name of the city and around the margin the words “city clerk”.

(b) The seal shall be affixed to all transcripts, orders, or certificates which it may be necessary or proper to authenticate under the provisions of this subtitle, or of any bylaw or ordinance of the city.

(c) For all attested certificates and transcripts, other than those ordered by the council, the same fees shall be paid as are allowed county clerks for similar services.

History. Acts 1875, No. 1, § 61, p. 1; C. & M. Dig., § 7743; Pope's Dig., § 9939; A.S.A. 1947, § 19-1017.

14-43-407. Deputy city attorneys.

(a) Any city attorney of a city of the first class, subject to the provisions of this section, shall have the power to appoint one (1) or more deputies for whose official acts the officer appointing the deputy shall be responsible.

(b) A deputy city attorney appointed pursuant to the provisions of this section shall serve at the will of the officer appointing him or her.

(c) Unless otherwise provided by ordinance of the city council, the salary or other compensation of any deputy city attorney appointed pursuant to this section shall be paid by the city attorney from his or her own compensation.

(d) This section is cumulative as to any law authorizing the appointment of a deputy city attorney in certain cities of the first class. Nothing contained in this section shall be construed to invalidate the appointment of any such deputy made pursuant to law, nor to change the compensation thereof as previously fixed by law or by the action of any council. Nor shall this section be deemed to limit or impair the right of the council hereafter to fix the compensation or salary of such a deputy appointed pursuant to the provisions of this section or any other legislation.

History. Acts 1957, No. 9, §§ 1-4; A.S.A. 1947, §§ 19-1019.1 — 19-1019.4.

14-43-408. [Repealed.]

Publisher's Notes. This section, concerning deputy clerks, attorneys, and treasurers in cities between 11,700 and 11,750, was repealed by Acts 1995, No. 555, § 1. The section was derived from Acts 1949, No. 225, § 1; A.S.A. 1947, § 19-1019.

14-43-409. Compensation of officers generally.

Any officer provided for in this subtitle, and by ordinance of any city under this subtitle, shall receive such salary as the council of any city may designate, and in no instance shall he or she receive an additional compensation by way of fees, fines, or perquisites.

History. Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., § 7693; Pope's Dig., § 9836; A.S.A. 1947, § 19-1025; Acts 2007, No. 663, § 17.

14-43-410. Compensation of city attorneys.

(a) Any city of the first class, city of the second class, or incorporated town in the State of Arkansas may provide by ordinance that the city attorney of the city shall receive as part of his or her compensation, for all prosecutions tried by the city attorney for violations of ordinances of the city and for all prosecutions tried by the city attorney for violations of state laws committed within the corporate limits of the cities, the same fees as are allowed prosecuting attorneys in this state in all criminal cases.

(b)(1)(A) By proper ordinance, any city or town may specify pay for the city attorney as the council may desire.

(B) The pay may include salary, hourly fees, costs, fees, or other like compensation, in combination or singularly, as the council may deem appropriate.

(2) In the event the city attorney is paid a salary only, the city is authorized to collect the fees referred to in this section and they are to be applied as the council may direct.

History. Acts 1967, No. 431, § 1; 1985, No. 171, § 1; A.S.A. 1947, § 19-1025.1; Acts 2001, No. 366, § 1.

14-43-411. Council member vacancy in mayor-council form of government.

(a) Whenever a vacancy occurs in the office of council member in a city of the first class having a population of less than twenty thousand (20,000) according to the most recent federal decennial census, at the first regular meeting after the occurrence of the vacancy, the vacancy shall be filled under § 14-42-103.

(b) When a vacancy occurs in any position of council member in a city having a population of twenty thousand (20,000) or more according to the most recent federal decennial census, the vacancy shall be filled under § 14-42-103.

History. Acts 1943, No. 154, § 1; 1981, No. 303, § 1; 2145, § 28; 2007, No. 1049, § 47; 2009, No. 185, § 2; 2009, A.S.A. 1947, § 19-1026; Acts 1997, No. 202, § 1; 2005, No. No. 385, § 2; 2009, No. 1480, § 65; 2025, No. 995, § 5.

14-43-412. Vacancies in other elected offices.

In case any office of an elected officer, except council members of the ward, becomes vacant before the expiration of the regular term, then the vacancy shall be filled under § 14-42-103.

History. Acts 1875, No. 1, § 63, p. 1; C. & M. Dig., § 7746; Pope's Dig., § 9941; A.S.A. 1947, § 19-1027; Acts 2011, No. 134, § 1; 2017, No. 879, § 22; 2025, No. 995, § 6.

SUBCHAPTER 5 — POWERS AND DUTIES GENERALLY

SECTION.

14-43-501. Organization of governing body — Definition.

14-43-502. Powers of council generally.

14-43-503. [Repealed.]

14-43-504. Powers and duties of mayor generally.

14-43-505. [Repealed.]

SECTION.

14-43-506. Duties of city clerk.

14-43-507. Duties of treasurers.

14-43-508. Duties of collectors.

14-43-509. Officers without prescribed terms.

14-43-501. Organization of governing body — Definition.

(a)(1) The members of a governing body elected for each city or town shall annually in January assemble and organize the governing body.

(2)(A) A majority of the whole number of members of a governing body constitutes a quorum for the transaction of business.

(B)(i) The governing body shall judge the election returns and the qualifications of its own members.

(ii) These judgments of the governing body are not subject to veto by the mayor.

(C)(i) The governing body shall determine the rules of its proceedings and keep a journal of its proceedings, and the journal shall be open to the inspection and examination of any citizen.

(ii) The governing body may also compel the attendance of absent members in such a manner and under such penalties as it prescribes.

(iii) The governing body may consider the passage of rules on the following subjects, including without limitation:

(a) The agenda for meetings;

(b) The filing of resolutions and ordinances; and

(c) Citizen commentary.

(b)(1)(A) In a mayor-council form of government, the mayor shall be ex officio president of the city council and shall preside at its meetings.

(B) The mayor shall have a vote to establish a quorum of the city council at any regular or special meeting of the city council and when his or her vote is needed to pass any ordinance, bylaw, resolution, order, or motion.

(2) In the absence of the mayor, the city council shall elect a president pro tempore to preside over council meetings.

(3) If the mayor is unable to perform the duties of office or cannot be located, one (1) of the following individuals may perform all functions of a mayor during the disability or absence of the mayor:

(A) The city clerk;

(B) Another elected official of the city if designated by the mayor; or

(C) An unelected employee or resident of the city if designated by the mayor and approved by the city council.

(c) As used in this section, “governing body” means the city council in a mayor-council form of government, the board of directors in a city manager form of government, and the board of directors in a city administrator form of government.

History. Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., 2005, No. 190, § 1; 2009, No. 185, § 3; 2011, No. 110, § 1; §§ 7738-7741; Pope’s Dig., §§ 9934-9937; Acts 1981, No. 2013, No. 753, § 1; 2015, No. 235, § 1. 345, § 1; A.S.A. 1947, § 19-1010; Acts 2001, No. 354, § 1;

14-43-502. Powers of council generally.

(a) The city council shall possess all the legislative powers granted by this subtitle and other corporate powers of the city not prohibited in it or by some ordinance of the city council made in pursuance of the provisions of this subtitle and conferred on some officer of the city.

(b)(1) The council shall have the management and control of finances, and of all the real and personal property belonging to the corporation.

(2)(A) The council shall provide the times and places of holding its meetings, which shall at all times be open to the public.

(B) The mayor or any three (3) council members of any city or town, regardless of size or classification, may call special meetings in the manner as may be provided by ordinance.

(3) The council shall appoint, or provide by ordinance, that the qualified voters of the city, of the wards, or districts as the case may require, shall elect all such city officers as shall be necessary for the good government of the city and for the due exercise of its corporate powers, and which shall have been provided by ordinance, as to whose appointment or election provision is not made in this subtitle and not provided by any general law of the state in reference to cities of the first class.

History. Acts 1875, No. 1, § 62, p. 1; C. & M. Dig., § 7744; Pope's Dig., § 9940; A.S.A. 1947, § 19-1011; Acts 2001, No. 365, § 1; 2017, No. 879, § 23.

14-43-503. [Repealed.]

Publisher's Notes. This section, concerning imposition of costs on misdemeanor convictions, was repealed by Acts 1999, No. 1081, § 11. The section was derived from Acts 1977, No. 564, § 1; A.S.A. 1947, § 19-1011.1.

14-43-504. Powers and duties of mayor generally.

(a) The mayor of the city shall be its chief executive officer and conservator of its peace. It shall be his or her special duty to cause the ordinances and regulations of the city to be faithfully and constantly obeyed.

(b) The mayor shall:

(1) Supervise the conduct of all the officers of the city, examine the grounds of all reasonable complaints made against them, and cause all their violations of duty or other neglect to be properly punished or reported to the proper tribunal for correction;

(2) Have and exercise the power conferred on sheriffs, within the city limits, to suppress disorder and keep the peace; and

(3) Perform such other duties compatible with the nature of his or her office as the city council may from time to time require.

(c) The mayor shall report, within the first ninety (90) days of each year and at such other times as he or she shall deem expedient, to the council the municipal affairs of the city and recommend such measures as may seem advisable.

(d)(1) In addition to the powers and duties already pertaining to that office, the mayor of any city of the first class shall be clothed with and exercise and perform the following:

(A) A mayor may veto within five (5) days, Sundays excepted, after the action of the city council thereon, any ordinance, resolution, or order adopted or made by the council, or any part thereof, which in his or her judgment is contrary to the public interest; and

(B)(i) In case of a veto, before the next regular meeting of the council, the mayor shall file in the office of the city clerk, to be laid before that meeting, a written statement of his or her reasons for so doing.

(ii) An ordinance, an order, or a resolution or part thereof, vetoed by the mayor is invalid unless, after the written statement is laid before it, the council, by a vote of two-thirds (2/3) of all the council members elected thereto, passes it over the veto.

(2) The mayor does not have the power of veto in circumstances prescribed under § 14-43-501(a) or § 14-43-411(a).

History. Acts 1875, No. 1, § 53, p. 1; 1885, No. 67, § 2, p. 92; 1893, No. 42, §§ 1, 2, p. 64; 1913, No. 226, § 1; C. & M. Dig., §§ 7697-7701; Pope's Dig., §§ 9840-9844; Acts 1979, No. 153, §§ 1, 2; A.S.A. 1947, §§ 19-1013, 19-1014;

Acts 1991, No. 786, § 14; 1995, No. 534, § 2; 1995, No. 914, § 2; 2009, No. 161, § 1; 2009, No. 185, § 4; 2017, No. 879, § 24.

14-43-505. [Repealed.]

Publisher's Notes. This section, concerning removal of police or fire chief, was repealed by Acts 1995, No. 534, § 3 and Acts 1995, No. 914, § 3. The section was derived from Acts 1885, No. 67, § 2, p. 92; 1893, No. 42, § 2, p. 64; C. & M. Dig., § 7747; Pope's Dig., § 9943; A.S.A. 1947, § 19-1028. For present law, see §§ 14-42-110 and 14-43-504.

14-43-506. Duties of city clerk.

(a) The city clerk in cities of the first class shall have the custody of all the laws and ordinances of the city and shall keep a regular and correct journal of the proceedings of the city council.

(b)(1)(A) The city clerk, city clerk-treasurer, or city treasurer, as the case may be, shall submit monthly a full report and a detailed statement of the financial condition of the city.

(B) The report shall show receipts, disbursements, and balance on hand, together with all liabilities of the city.

(2) The report shall be submitted to the council in open session.

History. Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., § 7694; Pope's Dig., § 9837; A.S.A. 1947, § 19-1018; Acts 2007, No. 71, § 1; 2017, No. 761, § 1.

14-43-507. Duties of treasurers.

Treasurers in cities of the first class shall be required to make similar reports as prescribed in § 14-43-506 and shall perform such other duties as may be required by the ordinances of the city.

History. Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., § 7694; Pope's Dig., § 9837; A.S.A. 1947, § 19-1018.

14-43-508. Duties of collectors.

Collectors in cities of the first class shall be required to make similar reports as prescribed in § 14-43-506 and shall perform such other duties as may be required by the ordinances of the city.

History. Acts 1875, No. 1, § 51, p. 1; C. & M. Dig., § 7694; Pope's Dig., § 9837; A.S.A. 1947, § 19-1018.

14-43-509. Officers without prescribed terms.

In cities of the first class, all city officers whose terms of office are not prescribed, and whose powers and duties are not defined in this subtitle, or by bylaw or ordinance, shall perform such duties and exercise such powers, and continue in office two (2) years, unless sooner removed for cause.

History. Acts 1875, No. 1, § 62, p. 1; C. & M. Dig., § 7744; Pope's Dig., § 9940; A.S.A. 1947, § 19-1011.

CHAPTER 44

GOVERNMENT OF CITIES OF THE SECOND CLASS

SECTION.

14-44-101. Creation of wards.
14-44-102. Redistricting of wards.
14-44-103. Election of council members.
14-44-104. Vacancy in council member's office.
14-44-105. Election of mayor.
14-44-106. Vacancy in office.
14-44-107. Powers of mayor generally.
14-44-108. Mayor of city of the second class.
14-44-109. City marshal, recorder, and treasurer generally.

SECTION.

14-44-110. Residency of appointed marshals.
14-44-111. Election or appointment of marshal.
14-44-112. [Repealed.]
14-44-113. Powers and duties of marshals.
14-44-114. Recorder-treasurer offices combined.
14-44-115. Election of recorder, treasurer, or recorder-treasurer.
14-44-116. [Repealed.]
14-44-117. [Repealed.]

14-44-101. Creation of wards.

(a) As soon as practicable after an incorporated town becomes a city of the second class, the city council shall form the city into the number of wards that, to it, will seem to best serve the interests of the city.

(b) It shall be the duty of the council to see that each ward has as nearly an equal population to each of the other wards as would best serve the interests of the taxpayers of the city.

History. Acts 1949, No. 44, § 1; 1983, No. 253, § 2;
A.S.A. 1947, § 19-1113.

14-44-102. Redistricting of wards.

(a) City councils in cities of the second class shall have the authority to redistrict the wards of their cities when they determine that the people can best be served by adding wards, combining wards, or changing ward boundary lines to equalize the populations in the various wards.

(b)(1) Within ninety (90) days after redistricting, if fifty (50) or more qualified electors in the city are dissatisfied with the division of the city into wards, they shall have the authority to petition the circuit court.

(2) The court, after due hearing, shall have authority to redistrict the city into such wards as it shall deem best if it finds that the redistricting action by the council was arbitrary and capricious.

History. Acts 1949, No. 44, §§ 1, 2; 1983, No. 253, §§ 2, 3; A.S.A. 1947, §§ 19-1113, 19-1114.

14-44-103. Election of council members.

(a)(1) Except as provided under subdivision (a)(3) of this section, on the Tuesday following the first Monday in November 1982, and every two (2) years thereafter, the qualified voters in cities of the second class shall elect for each of the wards of these cities two (2) council members, who shall compose the city council.

(2) The qualified electors of every city of the second class shall elect from each ward of the city two (2) council members, who shall be designated as "council member number one" and "council member number two" of the ward.

(3)(A) A candidate for the office of council member shall designate the number of the council member's office that the candidate is seeking on the petition filed pursuant to § 14-42-206.

(B) When this designation has been made, the candidate shall not be permitted thereafter to change the designation on that petition.

(C) The county clerk shall not accept a petition for filing that does not designate the number of the office of council member sought.

(D) Each city shall maintain in its records a document showing the name of each council member and the number of the office which the candidate holds.

(4)(A) The city council of a city of the second class may refer to voters an ordinance on the question of electing the two (2) council members for each ward to four-year terms.

(B) The voters shall vote on the ordinance at a general election or at a special election called for that purpose by proclamation of the mayor in accordance with § 7-11-201 et seq. However, the election to approve the four-year election procedure shall be held no later than February 1 of the year of the general election in which the procedure is proposed to be effective.

(5)(A) If this procedure is adopted by ordinance referred to and approved by the voters of the city, the initial term for the council member designated as “council member number one” of each ward shall be a four-year term at the next general election.

(B) The initial term for the council member designated as “council member number two” of each ward shall be a two-year term at the next general election, and thereafter shall be a four-year term, resulting in staggered terms for the ward.

(6)(A) The city council may refer to voters an ordinance on the question of returning the city to electing council members to two-year terms using the procedures of subdivisions (a)(4)-(7) of this section.

(B) If the voters approve returning a city to two-year terms, all council members shall be elected to two-year terms at the next general election and thereafter.

(7) The city council may not refer to voters another question on electing council members to four-year terms or on returning the city to electing council members to two-year terms unless at least four (4) years have passed since the last election on changing the council members’ terms.

(b)(1)(A) A candidate for the office of council member in a city of the second class shall reside in the ward from which he or she seeks to be elected and shall run for election at large, except if the council member is elected by ward under subsection (c) of this section.

(B) All of the qualified electors of the city may vote in the election.

(C)(i) Except as provided in subdivision (b)(1)(C)(ii) of this section, the county board of election commissioners shall ensure that the qualified electors of each ward have at least one (1) voting precinct in each ward where the resident electors of the ward may cast their ballots.

(ii) Subdivision (b)(1)(C)(i) of this section does not apply if the county board of election commissioners of the county in which the city is situated has established vote centers under § 7-5-101.

(2) If any duly elected council member shall cease to reside in the ward from which he or she was elected, that person shall be disqualified to hold the office and a vacancy shall exist, which shall be filled under § 14-42-103.

(c)(1)(A) The city council of any such city may provide by ordinance that all council members be elected by ward, in which event each council member shall be voted upon by the qualified electors of the ward from which the person is a candidate.

(B)(i) When provided by city ordinance, the name of the candidate shall appear upon the ballot only in the ward in which he or she is a candidate.

(ii) The city council of these cities may provide for the election of one (1) council member from each ward citywide and the other council members from each ward by the voters of the ward only.

(2) All such cities choosing to elect all council members by wards or part by wards shall provide, in the manner provided by law, for the establishment of wards of substantially equal population in order that each council member elected from each ward shall represent substantially the same number of people in the city.

(d) Cities of the second class that elect their council members citywide may have one (1) public place only for holding elections.

(e)(1) Ordinances enacted under subdivision (c)(1) of this section shall be filed with the county clerk no later than August 31 of the calendar year before the election of council members.

(2) A city of the second class that has an ordinance enacted under subdivision (c)(1) of this section shall file the ordinance with the county clerk no later than January 1, 2026.

(3) Once an ordinance is filed with the county clerk, changes shall not be made to the election of council members until a new ordinance is passed by the governing body of the municipality and filed with the county clerk by August 31 of the calendar year before the election of council members.

(4) A city of the second class that does not file an ordinance under subdivision (c)(1) of this section shall have its council members elected at large.

History. Acts 1887, No. 10, § 1, p. 11; C. & M. Dig., § 7679; Pope's Dig., § 9801; Acts 1953, No. 184, §§ 1-3; 1961, No. 444, § 2; 1965, No. 484, § 3; 1969, No. 45, § 1; 1973, No. 501, § 1; 1981, No. 346, § 1; 1985, No. 421, § 1; A.S.A. 1947, §§ 19-1002.7, 19-1101 — 19-1101.3; Acts 2003, No. 328, §§ 1, 2; 2005, No. 2145, § 29; 2007, No. 1049, § 48; 2009, No. 1480, § 66; 2013, No. 503, § 2; 2017, No. 300, § 1; 2017, No. 879, § 25; 2025, No. 283, §§ 4, 5; 2025, No. 995, § 7.

14-44-104. Vacancy in council member's office.

If a vacancy occurs in the office of council member in any city of the second class, at the first regular meeting after the occurrence of the vacancy, the vacancy shall be filled under § 14-42-103.

History. Acts 1927, No. 124, § 1; Pope's Dig., §§ 9802, 9942; A.S.A. 1947, § 19-1111; Acts 2013, No. 1325, § 1; 2017, No. 879, § 26; 2025, No. 995, § 8.

14-44-105. Election of mayor.

The qualified voters of cities of the second class shall elect a mayor for a term of four (4) years on the Tuesday following the first Monday in November 1966 and every four (4) years thereafter.

History. Acts 1965, No. 554, § 1; A.S.A. 1947, § 19-1101.4.

14-44-106. Vacancy in office.

If a vacancy occurs in the office of mayor, marshal, recorder, treasurer, or recorder-treasurer in any city of the second class, at the first regular meeting after the occurrence of the vacancy the city council shall proceed to elect a person to fill the vacancy under § 14-42-103.

History. Acts 1959, No. 54, § 1; 1967, No. 427, § 1; 2145, § 30; 2007, No. 1049, § 49; 2009, No. 1480, § 67; A.S.A. 1947, § 19-1110; Acts 1997, No. 645, § 4; 2005, No. 2017, No. 879, § 27; 2021, No. 339, § 1; 2025, No. 995, § 9.

14-44-107. Powers of mayor generally.

(a) The mayor in cities of the second class shall be ex officio president of the city council, shall preside at its meetings, and shall have a vote to establish a quorum of the council, or when the mayor's vote is needed to pass any ordinance, bylaw, resolution, order, or motion.

(b)(1) The mayor in these cities shall have the power to veto, within five (5) days, Sundays excepted, after the action of the council thereon, any ordinance, resolution, or order adopted or made by the council, or any part thereof, which in his or her judgment is contrary to the public interest.

(2)(A) In case of a veto, before the next regular meeting of the council, the mayor shall file in the office of the city recorder, to be laid before the meeting, a written statement of his or her reasons for so doing.

(B) An ordinance, resolution, or order, or part thereof, vetoed by the mayor shall not have any force or validity unless, after the written statement is laid before it, the council passes it over the veto by a vote of two-thirds ($\frac{2}{3}$) of all the council members elected thereto.

(c) If the mayor is unable to perform the duties of office or cannot be located, one (1) of the following may perform all functions of a mayor during the disability or absence of the mayor:

(1) The recorder;

(2) Another elected official of the city if designated by the mayor; or

(3) An unelected employee or resident of the city if designated by the mayor and approved by the city council.

History. Acts 1887, No. 10, § 1, p. 11; C. & M. Dig., § 7679; Pope's Dig., § 9801; Acts 1981, No. 346, § 1; A.S.A. 1947, § 19-1101; Acts 1997, No. 1122, § 1; 2013, No. 753, § 2; 2017, No. 879, § 28.

14-44-108. Mayor of city of the second class.

The mayor of a city of the second class shall perform all duties required by the ordinances of the city and shall give bond and security in any amount to be determined and approved by the city council.

History. Acts 1875, No. 1, § 48, p. 1; 1881, No. 16, § 1, p. 29; 1883, No. 63, § 2, p. 97; C. & M. Dig., § 7681; Pope's Dig., § 9809; Acts 1941, No. 284, § 2; A.S.A. 1947, § 19-1102; Acts 1995, No. 298, § 1; 2003, No. 1185, § 26; 2007, No. 663, § 18.

14-44-109. City marshal, recorder, and treasurer generally.

(a)(1)(A) At the time prescribed in this subtitle, the qualified voters of each city of the second class shall elect a city marshal, a city recorder, and a city treasurer.

(B) Each city marshal, city recorder, or city treasurer shall continue in office until his or her successor is elected and qualified.

(2)(A) The city council may provide by ordinance for the appointment of the city treasurer.

(B) An ordinance under subdivision (a)(2)(A) of this section shall be passed before the filing period begins for an election for the office of city treasurer, but no later than the February preceding the beginning of the early filing period.

(b) These officers shall have such powers and perform such duties as are prescribed in this subtitle, or as may be prescribed by any ordinance of the city, consistent with the provisions of this subtitle.

History. Acts 1875, No. 1, § 49, p. 1; 1881, No. 16, § 2, p. 29; C. & M. Dig., § 7682; Pope's Dig., § 9810; A.S.A. 1947, § 19-1103; Acts 2019, No. 234, § 1.

14-44-110. Residency of appointed marshals.

Cities of the second class shall have the authority to require their appointed marshals to reside within their corporate limits, and they shall have the authority to permit their appointed marshals to reside outside their corporate limits.

History. Acts 1979, No. 10, § 1; A.S.A. 1947, § 19-1103.4.

14-44-111. Election or appointment of marshal.

The city marshal of cities of the second class shall be elected by the voters as provided by law. However, the city council of any such city, if the council deems it to be in the best interests of the city, and upon passage of an ordinance by the majority of the council, may provide that the marshal shall be appointed or removed by the mayor unless the council shall vote by a two-thirds majority of the total membership of the council to override the mayor's action.

History. Acts 1953, No. 172, § 1; 1983, No. 79, § 1; A.S.A. 1947, § 19-1103.2.

14-44-112. [Repealed.]**14-44-113. Powers and duties of marshals.**

(a) The marshal of cities of the second class shall execute and return all writs and process directed to him or her by the mayor. In criminal cases or cases of a violation of the city ordinance, he or she may serve them in any part of the county.

(b) It shall be the marshal's duty to:

- (1) Suppress all riots and disturbances and breaches of the peace;
- (2) Apprehend all disorderly persons in the city;
- (3) Pursue and arrest any person fleeing from justice in any part of the state; and
- (4) Apprehend any person in the act of committing any offense against the laws of the state or ordinances of the city and forthwith to bring such persons before the mayor, or other competent authority, for examination or trial.

(c) The marshal shall have power to appoint one (1) or more deputies, for whose official acts he or she shall be responsible.

(d) In the discharge of his or her proper duties, the marshal shall have like powers, be subject to like responsibilities, and receive the like fees as sheriffs and constables in similar cases.

History. Acts 1875, No. 1, § 50, p. 1; C. & M. Dig., § 7683; Pope's Dig., § 9812; A.S.A. 1947, § 19-1104.

14-44-114. Recorder-treasurer offices combined.

(a)(1) The city council of any city of the second class, if the city council deems it to be in the best interests of the city, and upon passage of an ordinance by a majority vote of the city council, may combine the offices of city recorder and city treasurer, authorizing one (1) person to hold this position.

(2) The city council may combine the offices of city recorder and city treasurer to take effect at the next election under § 14-44-109 or when the offices are vacant.

(b) When combined, the office shall be known as "city recorder-treasurer".

(c) When one (1) person assumes the duties of both recorder and treasurer, the position shall not be separated during the elected city recorder-treasurer's term unless the position is vacant.

History. Acts 1949, No. 42, § 1; A.S.A. 1947, § 19-1103.1; Acts 2019, No. 336, § 3.

14-44-115. Election of recorder, treasurer, or recorder-treasurer.

(a) On the Tuesday following the first Monday in November, 1972, and every four (4) years thereafter, the qualified voters of cities of the second class shall elect a recorder, a treasurer, or a recorder-treasurer, as the case may be, for a term of four (4) years.

(b)(1) The city council may provide by ordinance for the appointment of the city treasurer.

(2) An ordinance under subdivision (b)(1) of this section shall be passed before the filing period begins for an election for the office of city treasurer, but no later than the February preceding the beginning of the early filing period.

History. Acts 1969, No. 272, § 1; A.S.A. 1947, § 19-1103.3; Acts 2001, No. 364, § 3; 2019, No. 234, § 2.

14-44-116. [Repealed.]

14-44-117. [Repealed.]

CHAPTER 45

GOVERNMENT OF INCORPORATED TOWNS

SECTION.

14-45-101. Corporate authority.
14-45-102. Election of council members.
14-45-103. Vacancies.
14-45-104. Election of mayor.
14-45-105. Powers of mayor generally.
14-45-106. Mayor of an incorporated town.

SECTION.

14-45-107. Presiding officer of council — Clerk.
14-45-108. Election of recorder-treasurer.
14-45-109. Appointment of marshal and other officers.
14-45-110. Residency of marshals.
14-45-111. Powers and duties of marshals.

14-45-101. Corporate authority.

(a) The corporate authority of incorporated towns shall vest in a town council composed of the five (5) council members who shall be qualified electors residing within the limits of the incorporated town and who shall hold office until their successors are elected and qualified.

(b) A majority of the whole number of council members shall constitute a quorum for the transaction of business.

History. Acts 1875, No. 1, § 41, p. 1; C. & M. Dig., § 7671; Acts 1937, No. 259, § 2; Pope's Dig., § 9793; Acts 1965, No. 483, § 1; 1981, No. 343, § 1; A.S.A. 1947, § 19-1201; Acts 2017, No. 879, § 31.

14-45-102. Election of council members.

(a)(1) Except as provided in subdivision (a)(2) of this section, on the Tuesday following the first Monday in November 1982 and every two (2) years thereafter, the qualified voters of incorporated towns shall elect five (5) council members.

(2)(A) The town council of an incorporated town may refer to the voters an ordinance on the question of electing the five (5) council members to four-year terms.

(B)(i) The voters shall vote on the ordinance at a general election or at a special election called for that purpose.

(ii) The election to approve the four-year election procedure shall be held no later than February 1 of the year of the general election in which the procedure is proposed to be effective.

(C) If this procedure is adopted by an ordinance referred to and approved by the voters of the incorporated town, the initial terms for council members representing positions numbered “one”, “three”, and “five” shall be four-year terms at the next general election and the initial terms for council members representing positions numbered “two” and “four” shall be two-year terms and thereafter four-year terms, resulting in staggered terms.

(D)(i) The town council may refer to voters an ordinance on the question of returning the incorporated town to electing council members to two-year terms using the procedures of subdivision (a)(2) of this section.

(ii) If the voters approve returning an incorporated town to two-year terms, all council members shall be elected to two-year terms at the next general election and thereafter.

(E) The town council may not refer to voters another question on electing council members to four-year terms or on returning the incorporated town to electing council members to two-year terms unless at least four (4) years have passed since the last election on changing the terms of council members.

(b)(1) A candidate for the office of council member shall designate the number of the office for council member that the candidate is seeking on the petition filed pursuant to § 14-42-206.

(2) If there is a designation under subdivision (b)(1) of this section, the candidate shall not change the designation on that petition.

(3) The county clerk shall not accept a petition for filing that does not designate the number of the office for council member sought.

(4) Each incorporated town shall maintain in its records a document showing the name of each council member and the number of the office that the candidate holds.

History. Acts 1875, No. 1, § 41, p. 1; C. & M. Dig., § 19-1201; Acts 2005, No. 46, § 1; 2013, No. 503, § 3; 2017, § 7671; Acts 1937, No. 259, § 2; Pope's Dig., § 9793; Acts No. 879, § 32.
1965, No. 483, § 1; 1981, No. 343, § 1; A.S.A. 1947,

14-45-103. Vacancies.

(a) When a vacancy occurs in the office of council member in an incorporated town, at the first regular meeting after the occurrence of the vacancy, the vacancy shall be filled under § 14-42-103.

(b) When a vacancy occurs in the office of recorder-treasurer in an incorporated town, at the first regular meeting after the occurrence of the vacancy, the vacancy shall be filled under § 14-42-103.

(c) When a vacancy occurs in the office of mayor in an incorporated town, at the first regular meeting after the occurrence of the vacancy, the vacancy shall be filled under § 14-42-103.

(d) When a vacancy occurs in the office of marshal in an incorporated town and the marshal was elected under § 14-45-109, at the first regular meeting after the occurrence of the vacancy the vacancy shall be filled under § 14-42-103.

History. Acts 1875, No. 1, § 43, p. 1; C. & M. Dig., § 1; 2017, No. 171, § 1; 2017, No. 879, § 33; 2021, No. 339, § 7674; Acts 1937, No. 259, § 3; Pope's Dig., § 9796; A.S.A. § 4; 2025, No. 995, § 10.
1947, § 19-1206; Acts 1989, No. 386, § 1; 2013, No. 978,

14-45-104. Election of mayor.

The qualified electors in incorporated towns shall elect a mayor for a term of four (4) years on the Tuesday following the first Monday in November 1966 and every four (4) years thereafter.

History. Acts 1965, No. 554, § 1; A.S.A. 1947, § 19-1201.1.

14-45-105. Powers of mayor generally.

(a) The mayor in an incorporated town shall:

- (1) Be ex officio president of the town council;
- (2) Preside at the town council's meetings; and
- (3) Have a vote when the mayor's vote is needed to:

(A) Pass any ordinance, bylaw, resolution, order, or motion; or

(B) Establish a quorum of the town council.

(b)(1) The mayor in these towns shall have the power to veto, within five (5) days, Sundays excepted, after the action of the council thereon, any ordinance, resolution, or order adopted or made by the council, or any part thereof, which in his or her judgment is contrary to the public interest.

(2)(A) In case of a veto, before the next regular meeting of the council the mayor shall file a written statement of his or her reasons for the veto in the office of the town recorder-treasurer to be laid before the meeting.

(B) An ordinance, resolution, or order, or part thereof, vetoed by the mayor shall not have any force or validity unless, after the written statement is laid before it, the council passes it over the veto by a vote of two-thirds ($\frac{2}{3}$) of all the council members elected thereto.

(c) If the mayor is unable to perform the duties of office or cannot be located, one (1) of the following may perform all functions of a mayor during the disability or absence of the mayor:

(1) The recorder;

(2) Another elected official of the city if designated by the mayor; or

(3) An unelected employee or resident of the city if designated by the mayor and approved by the city council.

History. Acts 1875, No. 1, § 41, p. 1; C. & M. Dig., 1947, § 19-1201; Acts 2013, No. 753, § 3; 2017, No. 879, § 7671; Pope's Dig., § 9793; Acts 1981, No. 343, § 1; A.S.A. § 34; 2021, No. 339, § 5.

14-45-106. Mayor of an incorporated town.

(a) The mayor of an incorporated town shall perform all duties required by the ordinances of the city and shall give bond and security in any amount to be ascertained and approved by the city council.

(b) In addition for his or her services as mayor, the council, by ordinance, may make proper allowance for, and payment of, compensation.

History. Acts 1875, No. 1, § 45, p. 1; C. & M. Dig., 298, § 2; 2003, No. 114, § 1; 2003, No. 1185, § 27; 2007, § 7676; Acts 1921, No. 368, § 1; Pope's Dig., § 9798; Acts No. 663, § 19.
1941, No. 284, § 1; A.S.A. 1947, § 19-1204; Acts 1995, No.

14-45-107. Presiding officer of council — Clerk.

(a) The mayor or, in case of his or her absence, the recorder-treasurer, shall preside at all meetings of the town council. The recorder-treasurer shall also be and act as clerk of the town. He or she shall attend all meetings of the council and make a fair, accurate, and correct record of all the proceedings, laws, rules, and ordinances made and passed by the council. The records shall be open at all times for the inspection of the electors of the town.

(b) In the absence of the mayor and recorder-treasurer from any meeting of the council, the council shall have power to appoint any two (2) of their number to perform the duties of mayor and recorder-treasurer for the time being.

History. Acts 1875, No. 1, §§ 42, 43, p. 1; C. & M. Dig., §§ 7672, 7674; Acts 1937, No. 259, § 3; Pope's Dig., §§ 9794, 9796; A.S.A. 1947, §§ 19-1203, 19-1206.

14-45-108. Election of recorder-treasurer.

(a) The qualified voters of incorporated towns shall elect one (1) recorder-treasurer on the Tuesday following the first Monday in November 1982 and every four (4) years thereafter.

(b)(1)(A) The town council may provide by ordinance for the appointment of the town recorder-treasurer.

(B) An ordinance under subdivision (b)(1)(A) of this section shall be passed before the filing period begins for an election for the office of town recorder-treasurer, but no later than the February preceding the beginning of the early filing period.

(2) A town recorder-treasurer appointed under subdivision (b)(1)(A) of this section shall not administer the oath of office under § 14-42-106 or § 21-2-105.

History. Acts 1875, No. 1, § 41, p. 1; C. & M. Dig., 1965, No. 483, § 1; 1981, No. 343, § 1; A.S.A. 1947, § 7671; Acts 1937, No. 259, § 2; Pope's Dig., § 9793; Acts § 19-1201; Acts 2005, No. 1008, § 1; 2019, No. 234, § 3.

14-45-109. Appointment of marshal and other officers.

(a) The council of any incorporated town shall have power to provide, by ordinance, for the election of a town marshal and such other subordinate officers as they may think necessary for the good government of the town.

(b) In regard to the officers mentioned in subsection (a) of this section, the council shall have the power to:

(1) Prescribe their duties and compensation or the fees they shall be entitled to receive for their services; and

(2) Require of them an oath of office and bond with surety for the faithful discharge of their duty.

(c) The period for the election of any officer shall be fixed at the time of the regular biennial election. No appointment of any officer shall endure beyond the period of the term of office of the

council making the appointment and one (1) week after the qualification of the members of the succeeding council.

History. Acts 1875, No. 1, § 44, p. 1; C. & M. Dig., § 7675; Acts 1937, No. 259, § 4; Pope's Dig., § 9797; A.S.A. 1947, § 19-1202.

14-45-110. Residency of marshals.

Incorporated towns shall have the authority to require their appointed marshals to reside within their corporate limits, and they shall have the authority to permit their appointed marshals to reside outside their corporate limits.

History. Acts 1979, No. 10, § 1; A.S.A. 1947, § 19-1103.4.

14-45-111. Powers and duties of marshals.

(a) The town marshal of incorporated towns shall be the principal ministerial officer of the town. He or she shall have the same power that sheriffs have by law, and his or her jurisdiction shall be coextensive with the county for offenses committed within the limits of the town.

(b) The town marshal shall execute the process of the mayor and collect the same fees for his or her services that sheriffs are allowed in similar cases.

(c) It shall be the duty of the town marshal to:

- (1) Suppress all riots and disturbances and breaches of the peace;
- (2) Apprehend all disorderly persons in the town;
- (3) Pursue and arrest any person fleeing from justice in any part of the state; and
- (4) Apprehend any person in the act of committing any offense against the laws of the state or ordinances of the town and immediately bring the person before the mayor, or other competent authority, for examination or trial.

(d) The town marshal shall have power to appoint one (1) or more deputies, for whose official acts he or she shall be responsible.

(e) All persons or parties arrested by any officer of the state for violation of any town ordinance shall be turned over to the town marshal and shall be by him or her taken before the proper authorities for investigation.

History. Acts 1875, No. 1, § 46, p. 1; 1883, No. 106, § 2, p. 189; C. & M. Dig., § 7677; Pope's Dig., § 9799; A.S.A. 1947, § 19-1205.

CHAPTER 47

CITY MANAGER FORM OF MUNICIPAL GOVERNMENT

SECTION.

- 14-47-101. Applicability generally.
- 14-47-102. Applicability of 1957 amendments.
- 14-47-103. Savings provisions.
- 14-47-104. Penalties for election violations.
- 14-47-105. Forms of government.
- 14-47-106. Election on city manager form of government.
- 14-47-107. Subsequent election on mayor-council form of government.
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SECTION.

- 14-47-109. Board of directors generally.
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- 14-47-113. Mayor or director vacancy.
- 14-47-114. Director not compensated — Per diem.
- 14-47-115. Prohibition against director interest in contracts.
- 14-47-116. Mayor.

14-47-101. Applicability generally.

Any city within the State of Arkansas having a population of two thousand five hundred (2,500) or more, according to the latest federal census, may become organized under the provisions of this chapter by proceeding as provided in this chapter.

History. Acts 1921, No. 99, § 1; 1931, No. 226, § 1; Pope's Dig., § 10089; Acts 1957, No. 8, § 1; A.S.A. 1947, § 19-701.

14-47-102. Applicability of 1957 amendments.

Acts 1957, No. 8, amending §§ 14-47-101 — 14-47-103, 14-47-105, 14-47-106 — 14-47-111, 14-47-114 — 14-47-121, 14-47-123 — 14-47-127, 14-47-131, 14-47-133, 14-47-134, and 14-47-136 — 14-47-139, shall be applicable to:

(1) All cities of the first and second class hereafter electing to reorganize under this chapter, as heretofore amended and as amended in this legislation; and

(2) All cities of the first and second class that have not yet consummated a reorganization into the management form of government but whose electors, prior to the enactment of this legislation, may have voted through an election held pursuant to § 14-47-106 to reorganize the city under this chapter.

History. Acts 1957, No. 8, § 22; A.S.A. 1947, § 19-732.

14-47-103. Savings provisions.

(a) When a city effects a change of government under this chapter, it shall remain subject to and controlled by all laws, except those inconsistent with this chapter, which on the effective date of the reorganization applied to or governed the city, including, without limiting the foregoing, laws relating to improvement districts or providing for the creation thereof.

(b) All bylaws, ordinances, and resolutions lawfully passed and in force in any city under its former organization, and not in conflict with this chapter, shall remain in force until altered or repealed by the board of directors elected under the authority of this chapter.

(c) The territorial limits of the city shall remain the same as under its former organization, and all rights and property of every description which were vested in the city under its former organization shall remain vested in it under the reorganization provided for in this chapter.

(d) No existing right or liability either in favor of or against the city or any agency thereof, including, without limiting the foregoing, improvement districts and no suit or prosecution of any kind shall be affected by the change unless otherwise provided for in this chapter.

(e) No valid pledge or mortgage of the revenues or property of the city, or of any agency or instrumentality thereof, or of any municipal improvement district, shall be impaired by the reorganization.

History. Acts 1921, No. 99, § 3; Pope's Dig., § 10091; Acts 1957, No. 8, § 3; A.S.A. 1947, § 19-703.

14-47-104. Penalties for election violations.

(a) Any person who shall perform any service in the interest of any candidate for any office provided in this chapter in consideration of any money, promise of employment, or other valuable thing or any candidate who shall pay or make promises to pay such consideration shall be guilty of a misdemeanor. Upon conviction by any court of competent jurisdiction, an offender shall be punished by a fine not less than twenty-five dollars (\$25.00) nor more than three hundred dollars (\$300) or by imprisonment in the county jail not exceeding thirty (30) days, or both.

(b) Any person offering a bribe, either in money or other consideration, to any elector for the purpose of influencing his or her vote at any election provided in this chapter or any elector entitled to vote at any election receiving or accepting any bribe or other consideration, any person making a false answer relative to his or her qualification to vote at the election, any person voting or offering to vote at the election, knowing he or she is not entitled to vote at the election, and any person knowingly procuring, aiding, or abetting in violation of this section shall be deemed guilty of a misdemeanor. Upon conviction, an offender shall be fined not less than one hundred dollars (\$100) nor more than five hundred dollars (\$500) or be imprisoned in the county jail not less than ten (10) days nor more than ninety (90) days, or both.

History. Acts 1921, No. 99, §§ 6, 7; Pope's Dig., §§ 10094, 10095; A.S.A. 1947, §§ 19-706, 19-707.

14-47-105. Forms of government.

(a) The form of government created by an organization under this chapter is called the management form of city government.

(b) The form of government of a municipality operating under the control of a municipal council, under either § 14-43-201 et seq. or § 14-44-101 et seq., is called the mayor-council form of government.

History. Acts 1921, No. 99, § 1; 1931, No. 226, § 1; Pope's Dig., § 10089; Acts 1957, No. 8, § 1; A.S.A. 1947, § 19-701; Acts 2017, No. 878, § 3.

14-47-106. Election on city manager form of government.

(a) Any city in this state having a population of two thousand five hundred (2,500) or more according to the most recent federal census may call and hold an election to determine whether or not the city shall be organized under and governed by the manager form of city government as provided for in this chapter.

(b) The proceeding shall be in the following manner:

(1)(A) When petitions containing the signatures of electors equal in number to fifteen percent (15%) of the aggregate number of ballots cast for all candidates for mayor in the preceding general city election are presented to the mayor, the mayor by proclamation shall submit the question of organizing the city under the manager form of government to the electors of the city at a special election to be held in accordance with § 7-11-201 et seq.

(B) The proclamation shall be published at length in some newspaper published in the city for one (1) time, and notice of the election shall be published in some newspaper published in the city one (1) time a week for two (2) weeks, the first publication to be not less than fifteen (15) days before the date set for the election. No other notice of the election shall be necessary; (2)(A) At the special election for the submission or resubmission of the proposition, the ballots shall contain substantially the following:

“FOR the proposition to organize this city under Act 99 of the General Assembly of 1921, as amended ☐

AGAINST the proposition to organize this city under Act 99 of the General Assembly of 1921, as amended ☐"

(B)(i) The election thereon shall be conducted, the vote canvassed, and the result thereof declared in the same manner as provided by law in respect to other city elections.

(ii) The county board of election commissioners shall certify the result to the mayor. This result shall be conclusive and not subject to attack unless suit is brought in the circuit court of the county in which the city is situated to contest the certification within thirty (30) days after the certification;

(3)(A) If a majority of the votes cast on the proposition is against the organization of the city under this chapter, the question of adopting the manager form of government shall not be resubmitted to the voters of that city for adoption within four (4) years thereafter. It shall be resubmitted then only upon presentation to the mayor of petitions signed by electors equal in number to fifteen percent (15%) of the aggregate number of ballots cast for all candidates for mayor at the preceding general city election.

(B)(i) If a majority of the votes cast on the proposition at any such election shall be for the organization of the city under this chapter, the mayor shall file certificates stating that the proposition was adopted with the Secretary of State and with the county clerk of the county in which the city is situated. The mayor shall call a special election to be held in the city for the purpose of electing seven (7) city directors.

(ii) This election shall be called and conducted and the results determined and certified as provided in § 14-47-110.

History. Acts 1921, No. 99, § 2; Pope's Dig., § 10090; § 1; A.S.A. 1947, § 19-702; Acts 2005, No. 2145, § 31; Acts 1947, No. 403, § 1; 1957, No. 8, § 2; 1965, No. 157, 2007, No. 1049, § 50; 2009, No. 1480, § 68.

14-47-107. Subsequent election on mayor-council form of government.

(a)(1)(A) After the expiration of six (6) years from the date on which the first board of directors takes office in a city organized under this chapter, a petition may be presented to the mayor by the board of directors by ordinance or by petition signed by electors equal in number to fifteen percent (15%) of the aggregate number of ballots cast for the position of mayor in the immediately preceding mayoral general election.

(B) Upon the receipt of a petition under this subdivision (a)(1), the mayor by proclamation shall submit the question of organization of the city under the mayor-council form of government at a special election to be held in accordance with § 7-11-201 et seq.

(2)(A) The proclamation shall be published at length one (1) time in a newspaper published in the city.

(B)(i) Notice of the election shall be published in a newspaper published in the city one (1) time a week for two (2) weeks, the first publication to be not less than fifteen (15) days before the date set for the election.

(ii) No other notice of the election is necessary.

(b) If the plan is not adopted by a majority of the voters voting upon that issue at the special election called, the question of adopting the mayor-council form of government shall not be resubmitted to the voters of the city for adoption within four (4) years thereafter. Then the question to adopt shall be resubmitted upon the presentation to the mayor of a petition signed by electors equal in number to fifteen percent (15%) of the aggregate number of votes cast for the position of mayor in the immediately preceding mayoral general election.

(c) At the special election for the submission or resubmission of the proposition, the ballots shall read:

"FOR the proposition to organize this city under the mayor-council form of government .. ☐
AGAINST the proposition to organize this city under the mayor-council form of government .

☐

(d)(1) The election thereupon shall be conducted, the votes canvassed, and the result declared in the same manner as provided by law in respect to other city elections.

(2)(A) The county board of election commissioners shall certify the result to the mayor.

(B) The result shall be conclusive and not subject to attack unless suit is brought within thirty (30) days after the certification by the county board of election commissioners in the circuit court of the county in which the city is situated to contest the certification.

(e)(1) Except as provided in subdivision (e)(2) of this section, if the majority of the votes cast on the issue are in favor of organization of the city under the mayor-council form of government, the city shall proceed to the election of all of the city officials who were subject to election in the city immediately before the date on which the city was organized under the management form of city government.

(2) At the time the reorganization is effective under this chapter:

(A) The mayor shall continue in office until the remainder of his or her term of office; and

(B) A member of the city board of directors shall become a member of the city council and shall continue in office until the remainder of his or her term of office.

(3) In a city that has a population of more than one hundred thousand (100,000) persons according to the most recent federal decennial census:

(A) A person who is on the ballot in 2020 to become a member of the city council shall serve a term of two (2) years if elected; and

(B) At the 2022 General Election, the newly elected city council members shall draw initial two-year or four-year terms to result in staggered four-year terms.

(f) If no suit is brought to contest the certification of the results of the election within the thirty-day period after the certification, the mayor shall file certificates stating that the proposition was adopted with the Secretary of State and county clerk of the county in which the city is situated.

(g)(1) The election of the city officials shall be held at the next time provided for the election of city officials under the statutes then in effect pertaining to the mayor-council form of government pertaining to the class of cities to which the particular city belongs.

(2)(A) All laws pertaining to the mayor-council form of government for such class of cities shall apply.

(B)(i) On the date as prescribed by such laws when newly elected city officials take office, the term of office of all members of the board of directors shall terminate, and the transition to the mayor-council form of government shall be completed.

(ii) If, under the mayor-council form of government, the terms of council members are staggered, determination shall be made by lot and the length of the terms fixed accordingly.

(h) The provisions of this section for converting to the mayor-council form of government shall be in addition to the right to change to the mayor-council or any other form of municipal government that may exist under present law.

(i)(1) When a municipality elects to adopt the mayor-council form of government in the manner provided in this section, the question of reorganizing the municipality under the manager form shall not be submitted to the electors within a period of six (6) years, and thereafter only in the manner provided in § 14-47-106.

(2) If the qualified electors of the municipality do not approve the organization of the municipality under the manager form of government at the election, the proposition shall not again be submitted to the electors of the city for a period of four (4) years, and then only in the manner provided in § 14-47-106.

History. Acts 1957, No. 8, § 26, as added by Acts 1957, § 51; 2009, No. 1480, § 69; 2013, No. 1291, § 1; 2017, No. 389, § 1; 1965, No. 22, § 1; 1965, No. 157, § 2; A.S.A. 878, § 4; 2019, No. 1092, §§ 2, 3. 1947, § 19-733; Acts 2005, No. 2145, § 32; 2007, No. 1049,

14-47-108. Effect of reorganization.

(a)(1) A reorganization is effective when in connection with the reorganization of a municipality under this chapter an initial board of directors shall be elected and the respective terms of office of the directors commence or when changes are made under subdivision (a)(2)(D) of this section.

(2) Concurrent with the commencement of the terms of the directors:

(A) The office of mayor, as existing under the mayor-council form of government, all memberships on the city council, and all memberships on the board of public affairs shall become vacant, each of these offices being abolished as to cities reorganized under this chapter;

(B) Subject to subdivision (a)(2)(D) of this section and except as is otherwise provided for city attorneys in cities with the city manager form of government, the statutory term of office of the city treasurer, city clerk, city attorney, city marshal, and recorder in cities of the second class shall cease and terminate, and the incumbent of each of these offices shall remain in office subject to removal and replacement at any time by the board of directors;

(C) Subject to subdivision (a)(2)(D) of this section, in cities with the city manager form of government having a population of more than one hundred thousand (100,000) persons according to the most recent federal decennial census, the statutory term of office of the city attorney shall cease and terminate, and the incumbent city attorney shall remain in office subject to removal and replacement at any time by the city manager, if the authority is vested in the city manager through:

(i) An ordinance of the board of directors; or

(ii) An initiated measure adopted pursuant to Arkansas Constitution, Amendment 7;

(D) In cities with the city manager form of government having a population of more than one hundred thousand (100,000) persons according to the most recent federal decennial census, the statutory term of office of the city attorney shall cease and terminate, and the incumbent city attorney shall remain in office subject to removal and replacement at any time by the mayor if the authority is vested in the mayor under § 14-47-140; and

(E)(i) Every other executive officer or executive employee of the city, including, without limiting the foregoing, the city purchasing agent and the members hereinafter called "board members" of every other municipal board, authority, or commission, whether the office, employment, board, authority, or commission exists under statute or under any ordinance or resolution, whose official term of office or employment is fixed by statute, ordinance, or resolution, shall serve until the expiration of the term so fixed, after which the position held by each such executive officer, executive employee, or board member shall be filled through appointment by the board of directors, the appointees to hold at the will of the board. However, at any time in cities with the city manager form of government, the appointments shall be made by the mayor and appointees shall hold at the will of the mayor, if the mayor is authorized to make the appointments by:

(a) The board of directors, by ordinance; or

(b) An initiated measure adopted pursuant to Arkansas Constitution, Amendment 7.

(ii) Each such executive officer or executive employee serving on the effective date of the reorganization, and whose office or employment carries no fixed term created either by statute, ordinance, or resolution shall be subject to removal and replacement at any time by the board of directors or the mayor, if authorized.

(iii) However, the provisions of this subdivision (a)(2)(E) shall be subject to the provisions of subsection (b) of this section and to the exceptions therein contained.

(b)(1) It is expressly directed that a reorganization under this chapter shall not affect, impair, or terminate the employment of any city officers or employees whose employment is subject to, or regulated by, civil service laws.

(2)(A) The reorganization shall not operate to abolish, terminate, or otherwise affect any of the following departments, commissions, authorities, agencies, or offices of the city government then existing:

(i) Waterworks commission existing under §§ 14-234-301 — 14-234-309;

(ii) Sewer committee existing under § 14-235-206;

(iii) Airport commission existing under § 14-359-103;

(iv) Housing authority existing under § 14-169-208;

(v) Any board of civil service commissioners serving under § 14-49-201 et seq., § 14-50-201 et seq., § 14-51-201 et seq., or under any other statute enacted;

- (vi) Auditorium commission existing under § 14-141-104;
- (vii) Library trustees existing under § 13-2-502;
- (viii) City planning commission existing under Acts 1929, No. 108, § 1 [repealed]; or
- (ix) Board of commissioners of any improvement district.

(B)(i) The reorganization shall not terminate, impair, or otherwise affect the official status, tenure of office, or powers of the persons serving as commissioners, committee members, trustees, or members of any of the boards, authorities, commissions, agencies, or departments listed in this subdivision (b)(2).

(ii) This power, whether consisting of the power to appoint or the power to confirm appointments or nominations, as may be vested in the municipal council immediately prior to the reorganization in respect to the filling of vacancies on the boards, authorities, commissions, agencies, departments, or in the judgeships listed in this subdivision (b)(2)(B) shall be transferred to and vested in the board of directors or the mayor, if the mayor has appointment power pursuant to subdivision (a)(2)(E) of this section. Each appointee designated by the board or by the mayor, if authorized, to fill a vacancy in any such position shall serve for the statutory term, if any, applicable to the vacancy or, if there is no statutory term, shall serve at the will of the board or the mayor, if authorized.

History. Acts 1921, No. 99, § 3; Pope's Dig., § 10091; 2003, No. 1185, § 28; 2003, No. 1185, § 29; 2007, No. 689, Acts 1957, No. 8, § 3; 1957, No. 226, § 1; A.S.A. 1947, § 2; 2007, No. 729, § 1; 2017, No. 878, § 5.
§ 19-703; Acts 2001, No. 1472, § 1; 2001, No. 1473, §§ 1, 2;

14-47-109. Board of directors generally.

(a)(1) The seven (7) directors elected by a city reorganized under this chapter shall be known and designated as the board of directors of that city.

(2) The board shall constitute the supreme legislative and executive body of the city and, subject to § 14-47-120(10), shall be vested with all powers and authority which, immediately prior to the effective date of the reorganization, were vested under then-existing laws, ordinances, and resolutions in the mayor and council of that city and in its board of public affairs.

(3) Except where expressly permitted under this chapter, a board member may not serve the city in any other capacity.

(b)(1) For election purposes, the positions on the board shall be permanently designated as positions numbered respectively as "one", "two", "three", "four", "five", "six", and "seven".

(2)(A) Each candidate for election to membership on the board shall specify the position for which he or she is running.

(B) The electors shall vote separately on the candidates for each position, with the position sought by each candidate to be shown on the ballot.

(c) The candidate for any designated position on the board of directors who, in any general or special election, shall receive votes greater in number than those cast in favor of any other candidate for the position shall be deemed to be elected.

(d)(1) All regular and special elections of directors shall be nonpartisan, the ballots to show no party designation.

(2) In all regular and special elections, each candidate for the office of director shall be elected by the electors of the city at large.

(3) A director shall not be prohibited from holding successive terms of office.

(e)(1) Any director elected at a special election shall take office on the first Monday following the certification of his or her election as required in this chapter.

(2) A director elected at a regular election shall take office on January 1 next following his or her election.

(f)(1) At any regular or special election for the election of a director, any adult person who has resided within the municipality for at least thirty (30) days and is qualified to vote at an election of county or state officers shall be deemed a qualified elector.

(2) Any person more than twenty-one (21) years of age possessing these same qualifications also shall be eligible to run for the office of director.

(g) When a city is reorganized under this chapter, at the first meeting of its initial board, the seven (7) directors will be divided by lot into two (2) classes. The tenure of office of those in each class shall be as follows:

(1) Those in class number one, which shall contain three (3) members, shall serve until and including December 31 following the first regular election held after their term of office commences and until their successors have been elected and qualified. Thereafter, those in class number one shall serve four-year terms; and

(2) Those in class number two, which shall contain four (4) members, shall serve until and including December 31 following the second regular election held after their term of office commences and until their successors have been elected and qualified. Thereafter, those in class number two shall serve four-year terms.

History. Acts 1921, No. 99, § 4; Pope's Dig., § 10092; § 1; 1979, No. 68, § 1; A.S.A. 1947, § 19-704; Acts 1989, Acts 1947, No. 403, § 2; 1957, No. 8, § 4; 1973, No. 168, No. 905, § 6.

14-47-110. Election of directors.

(a) Candidates for the office of director shall be nominated and elected as follows:

(1)(A)(i) A special election to elect the initial membership of the board shall be called by the mayor as provided in § 14-47-106.

(ii) The mayor's proclamation shall be in accordance with § 7-11-101 et seq.

(B)(i) A special election to fill any vacancy under § 14-47-113 shall be called through a resolution of the board of directors.

(ii) A proclamation announcing the holding of the election shall be signed by the mayor and published in accordance with § 7-11-101 et seq.;

(2) The petition mentioned in subdivision (a)(3) of this section supporting the candidacy of each candidate to be voted upon at any general or special election shall be filed with the city clerk or recorder during a one-week period beginning at 12:00 noon and ending at 12:00 noon ninety (90) days before the election;

(3)(A)(i)(a) In respect to both special and general elections, the name of each candidate shall be supported by a petition, signed by at least fifty (50) qualified electors of the municipality, requesting the candidacy of the candidate.

(b) The petition under subdivision (a)(3)(A)(i)(a) of this section may be circulated for no longer than ninety (90) days before it is filed with the city clerk.

(ii) The petition shall show the residence address of each signer and shall carry an affidavit signed by one (1) or more persons, in which the affiant or affiants shall vouch for the eligibility of each signer of the petition.

(B) Each petition shall be substantially in the following form:

"The undersigned, duly qualified electors of the City of ..., Arkansas, each signer hereof residing at the address set opposite his or her signature, hereby request that the name... be placed on the ballot as a candidate for election to Position No. ... on the Board of Directors of said City of ... at the election to be held in such City on the ... day of ..., 20.... We further state that we know said person to be a qualified elector of said City and a person of good moral character and qualified in our judgment for the duties of such office."

(C) A petition for nomination shall not show the name of more than one (1) candidate.

(D)(i) The name of the candidate mentioned in each petition, together with a copy of the election proclamation if the election is a special election, shall be certified by the city clerk or recorder to the county board of election commissioners not less than seventy-five (75) days before the election unless the clerk or recorder finds that the petition fails to meet the requirements of this chapter.

(ii)(a) Whether the names of the candidates so certified to the county board of election commissioners are to be submitted at a biennial general election or at a special election held on a different date, the election board shall have general supervision over the holding of each municipal election.

(b) In this connection, the board shall post the nominations, print the ballots, establish the voting precincts, appoint the election judges and clerks, determine and certify the result of the election, and determine the election expense chargeable to the city, all in the manner prescribed by law in respect to general elections. It is the intention of this chapter that the general election machinery of this state shall be utilized in the holding of all general and special elections authorized under this chapter.

(c) The result of the election shall be certified by the election board to the city clerk or recorder; and

(4) The candidate for any designated position on the board of directors who, in any general or special election, shall receive votes greater in number than those cast in favor of any other candidate for the position shall be deemed to be elected.

(b) Each director, before entering upon the discharge of his or her duties, shall take the oath of office required by Arkansas Constitution, Article 19, § 20.

History. Acts 1921, No. 99, §§ 5, 8; Pope's Dig., § 1; 1993, No. 541, § 1; 2001, No. 552, § 1; 2005, No. 2145, §§ 10093, 10096; Acts 1957, No. 8, §§ 5, 6; 1965, No. 6, § 33; 2007, No. 1049, § 52; 2009, No. 1480, § 70; 2011, No. § 1; A.S.A. 1947, §§ 19-705, 19-708; Acts 1989, No. 347, 1185, § 20; 2023, No. 328, §§ 5, 6; 2025, No. 360, § 3.

14-47-111. Refusal of director to serve.

(a) A person who has been elected or appointed a director and neglects or refuses to qualify and serve as such is guilty of a violation and upon conviction shall be fined in any sum of not less than one hundred dollars (\$100) nor more than three hundred dollars (\$300).

(b) However, the directors, for good cause shown, may permit a director to resign.

History. Acts 1921, No. 99, § 14; Pope's Dig., § 10102; Acts 1957, No. 8, § 8; 1983, No. 650, § 1; A.S.A. 1947, § 19-714; Acts 2023, No. 203, § 6.

14-47-112. Removal of director.

(a) The holder of office of city director is subject to removal by the electors qualified to vote for a successor of the incumbent.

(b) The procedure to effect the removal of the incumbent of this elective office shall be as follows:

(1)(A)(i) A petition shall be filed with the city clerk. This petition shall be signed by electors entitled to vote for a successor to the incumbent sought to be removed, equal in number to at least thirty-five percent (35%) of the number of ballots cast for all candidates for directors at the preceding primary election at which directors were nominated or elected, demanding the election of a successor of the person sought to be removed.

(ii) The petition shall contain a statement of the grounds and reasons on account of which the removal is sought.

(B) The signatures to the petition need not all be appended to one (1) paper, but each signer shall add to his or her signature his or her place of residence, giving street and number, if any.

(C) One (1) of the signers of each of the papers shall make oath before an officer competent to administer oaths that the statements therein made are true as he or she believes and that each signature to the paper appended is a genuine signature of the person whose name it purports to be.

(2)(A)(i) Within ten (10) days of the date of filing the petition, the city clerk shall ascertain and determine whether or not the petition is signed by the requisite number of qualified electors.

(ii) If necessary, the board of directors shall allow the city clerk extra help for that purpose.

(B) The city clerk shall attach to the petition his or her certificate showing the result of his or her examination;

(3)(A)(i) If by the clerk's certificate the petition is shown to be insufficient, it may be amended within ten (10) days.

(ii) Within ten (10) days after an amendment, the clerk shall make like examination of the amended petition.

(B)(i) If his or her certificate shall show the amended petition to be insufficient, it shall be returned to the person filing it, without prejudice, however, to the filing of a new petition to the same effect.

(ii) If the petition shall be deemed sufficient, the clerk shall submit it to the board without delay;

(4)(A) If the board shall find the petition thus submitted to it contains the requisite number of electors signed thereto and is otherwise found to be sufficient, it shall order and fix a date for holding an election. This date shall be not less than thirty (30) days nor more than forty (40) days from the date of the clerk's certificate to the board that a sufficient petition is filed.

(B) The board shall make, or cause to be made, publication of notice and all arrangements for holding the election;

(5)(A) The election shall be conducted, returned, and the result thereof declared in all respects as are other such elections under the general election laws of the city.

(B) At the election, the proposition submitted to the electors shall be:

“FOR the removal of from the office of director”
(name of officer)

“AGAINST the removal of from the
(name of officer)

office of director; and”

(6)(A) If the majority of votes cast on the issue shall be in favor of the removal of the officer, the officer shall be deemed removed and his or her office vacated, and it shall be filled in the manner provided for filling vacancies.

(B) If the majority of the votes cast on that issue shall be against the removal of the officer, the officer shall continue to serve.

(c) No recall petition shall be filed against any officer until he or she shall have held his or her office for at least six (6) months, nor shall any officer be subject to more than one (1) recall proceeding between biennial elections.

History. Acts 1921, No. 99, § 18; Pope's Dig., § 10106;
A.S.A. 1947, § 19-718.

14-47-113. Mayor or director vacancy.

If a vacancy occurs in the office of mayor or the office of a member of the board of directors, the board of directors shall fill the vacancy under § 14-42-103 at the first regular meeting after the vacancy occurs.

History. Acts 1921, No. 99, § 13; Pope's Dig., § 10101;
Acts 1967, No. 188, § 1; A.S.A. 1947, § 19-713; 2025, No.
995, § 11.

14-47-114. Director not compensated — Per diem.

(a) The board of directors of any city with the city manager form of government may provide by ordinance for the compensation of board members.

(b) Directors of a city having a population of at least four thousand (4,000) but not more than four thousand five hundred (4,500) and located in a county having a population of one hundred thousand (100,000) or more may receive a per diem to be fixed by ordinance of the board not to exceed one hundred dollars (\$100) for attending designated meetings of the board. In no event shall any director receive per diem in excess of two hundred dollars (\$200) for any one (1) month.

History. Acts 1921, No. 99, § 14; Pope's Dig., § 10102;
Acts 1957, No. 8, § 8; 1983, No. 650, § 1; A.S.A. 1947,
§ 19-714; Acts 1987, No. 458, § 1; 1991, No. 1012, § 1.

14-47-115. Prohibition against director interest in contracts.

(a)(1) A director of the city shall not be interested, directly or indirectly, in any contracts made with the city unless the board of directors of the city has enacted an ordinance specifically permitting a director to conduct business with the city and prescribing the extent of this authority.

(2) The prohibition under subdivision (a)(1) of this section does not apply to contracts for the furnishing of supplies, equipment, or services to be performed for a municipality by a corporation in which no director holds any executive or managerial office, or by a corporation in which a controlling interest is held by stockholders who are not directors.

(b) A director acting on any contract with the city in which he or she is interested or receiving any benefit in violation of this section is guilty of a violation and upon conviction shall be fined in any sum of not less than five hundred dollars (\$500) nor more than five thousand dollars (\$5,000).

History. Acts 1921, No. 99, § 14; Pope's Dig., § 10102; Acts 1957, No. 8, § 8; 1983, No. 650, § 1; A.S.A. 1947, § 19-714; Acts 2023, No. 203, § 7.

14-47-116. Mayor.

(a)(1) The board of directors shall organize by electing one (1) of their number as a chair to preside over the meetings of the board, the person so elected to have the title of "mayor".

(2)(A) Except as provided in subdivision (a)(2)(B) of this section, the mayor shall serve in this capacity for two (2) years from the date of his or her election as mayor unless his or her tenure of office as a director expires in less than two (2) years, in which event he or she will serve as mayor merely until the expiration of his or her tenure of office as director.

(B) The board of directors of any city may provide by ordinance that the term of mayor in the city shall be one (1) year, in which event the mayors of the city selected thereafter shall be selected for and serve terms of one (1) year.

(3) When the mayor's term expires, the board shall elect a successor mayor. However, the mayor shall not be prohibited from serving in this capacity for more than one (1) term.

(4) The mayor shall receive no compensation for his or her duties in such capacity but shall be reimbursed for all actual expenses incurred by him or her in the discharge of his or her duties as mayor.

(b) The mayor shall have the following powers:

(1) He or she shall preside at all meetings of the board;

(2) He or she shall be recognized as the head of the city government for all ceremonial purposes and by the Governor for the purposes of military law;

(3) He or she shall sign, on behalf of the city, all written agreements, contracts, bonds, mortgages, pledges, indentures, conveyances, and other written instruments, the execution of which has been approved by the board; and

(4) He or she may vote on all matters coming before the board but shall have no veto power.

History. Acts 1921, No. 99, § 8; Pope's Dig., § 10096; Acts 1957, No. 8, § 6; 1985, No. 21, § 1; A.S.A. 1947, § 19-708.

CHAPTER 48

CITY ADMINISTRATOR FORM OF MUNICIPAL GOVERNMENT

SECTION.

- 14-48-101. Applicability.
- 14-48-102. Savings provisions.
- 14-48-103. Form of government.
- 14-48-104. Submission of governmental form question to electors.
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SECTION.

- 14-48-111. Mayor.
- 14-48-112. Assistant mayor or vice mayor.
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- 14-48-119. [Repealed.]
- 14-48-120. Meetings of board of directors.
- 14-48-121. Initiative and referendum.

14-48-101. Applicability.

(a) Any municipality of this state having a population of two thousand five hundred (2,500) or more inhabitants, according to the most recent federal census, or any city of the first class may call and hold an election on the question of becoming organized under, and governed by, the city administrator form of government authorized in this chapter.

(b) Any such election shall be called and conducted in the manner provided in this chapter.

History. Acts 1967, No. 36, § 1; A.S.A. 1947, § 19-801.

14-48-102. Savings provisions.

(a) When a city effects a change of government under this chapter, it shall remain subject to and controlled by all laws, except those inconsistent with this chapter which on the effective date of the reorganization applied to or governed the city, including, without limiting the foregoing, the laws relating to improvement districts.

(b) The city, as reorganized, shall have all of the rights, powers, and authority which it had immediately prior to reorganization and shall also be entitled to exercise any right, power, or authority, except those inconsistent with the provisions of this chapter, which are permitted cities organized under any other form of government.

(c) In cities having the commission form of government immediately preceding the adoption of the city administrator form of government, the board of directors elected under the authority of this chapter may organize or reorganize by ordinance duly adopted any municipal board, commission, authority, agency, or department under the general laws of the state for municipalities having the mayor-council form of government. However, no reorganization shall be lawful which impairs the validity of existing contracts.

(d) All bylaws, ordinances, and resolutions lawfully passed and in force in the city under its former organization and not in conflict with this chapter shall remain in force until altered or repealed by the board elected under the authority of this chapter.

(e) The territorial limits of the city shall remain the same as under its former organization. All rights and property of every description which were vested in it shall remain unimpaired by the reorganization provided for in this chapter.

(f) No existing right or liability either in favor of or against the city or any agency thereof, including, without limiting the foregoing, improvement districts and no suit or prosecution of any kind shall be affected by the change unless otherwise provided for in this chapter.

(g) No valid pledge or mortgage of the revenues or property of the city or of any agency or instrumentality thereof or of any municipal improvement district shall be impaired by the reorganization.

History. Acts 1967, No. 36, § 7; A.S.A. 1947, § 19-807; Acts 2017, No. 878, § 9.

14-48-103. Form of government.

The form of municipal government authorized by this chapter shall be known as the city administrator form of municipal government.

History. Acts 1967, No. 36, § 1; A.S.A. 1947, § 19-801.

14-48-104. Submission of governmental form question to electors.

(a) When petitions are filed with the county clerk containing the signatures of qualified electors of a municipality equal in number to fifteen percent (15%) of the aggregate number of votes cast at the preceding general municipal election for all candidates for mayor in cases in which a municipality operates under the mayor-council form of government or the commission form of government and, for all candidates for the office of director, then for the director position for which the greatest number of votes were cast in the case of a municipality operating under the city manager form of government, and the petition requests that an election be called to submit the proposition of organizing the municipality under the city administrator form of municipal government authorized by this chapter, then within ten (10) days after the filing of the petition, the county clerk shall certify to the Secretary of State the number of qualified electors whose signatures appear on the petitions.

(b) If the number of signatures certified by the clerk is equal to or greater than fifteen percent (15%) of the aggregate number of votes cast, as prescribed, the Secretary of State shall call the election by proclamation in accordance with § 7-11-201 et seq., and an election shall be held under § 7-11-201 et seq. at the next special election date.

(c)(1) The election shall be called to submit the proposition of organizing the municipality under the city administrator form of municipal government authorized by this chapter.

(2)(A) The proclamation shall be published one (1) time at length in a newspaper having a general circulation in the municipality.

(B) Notice of the election shall be published in the newspaper one (1) time a week for two (2) weeks, with the first publication to be not less than fifteen (15) days before the date set for the election.

(d) At the election, the proposition shall be submitted to the electors in substantially the following form:

“FOR the City Administrator form of government ☐
AGAINST the City Administrator form of government ☐”

(e)(1) The election shall be conducted, the votes canvassed, and the results declared in the same manner as is provided by law with respect to other city elections.

(2)(A) The county board of election commissioners shall certify the results of the election to the Secretary of State.

(B) The result certified shall be conclusive and not subject to attack unless suit is brought to contest the certification within fifteen (15) days after such certification in the circuit court of the county in which the municipality is situated.

(f) If a majority of the votes cast at the election shall be in favor of the proposition and no suit is brought to contest the certification of the results of the election within the fifteen-day period after the certification by the election board, then, within five (5) days, the Secretary of State shall file certificates stating that the proposition was adopted with the county clerk of the county in which the municipality is situated.

(g) The cost of the election provided in this section shall be paid by the city.

History. Acts 1967, No. 36, § 2; A.S.A. 1947, § 19-802; Acts 2005, No. 2145, § 34; 2007, No. 1049, § 53; 2009, No. 1480, § 71; 2017, No. 878, § 10; 2021, No. 610, § 15.

14-48-105. Procedure to change to another form of government.

(a) When the question of the adoption of the city administrator form of government is submitted to, and approved by, a majority of the qualified electors of a municipality voting on the issue, the question of changing to another form of government shall not again be submitted to the electors of that municipality for a period of four (4) years.

(b)(1)(A)(i) After the expiration of four (4) years from the date on which the first board of directors and mayor take office in a city organized under this chapter, a petition signed by electors equal in number to fifteen percent (15%) of the aggregate number of ballots cast for all candidates for mayor in the preceding general election may be presented to the mayor, calling for an election to consider any other form of municipal government authorized by the laws of this state.

(ii) As an alternative to the petition presented to the mayor by electors under subdivision (b)(1)(A)(i) of this section, a petition may be presented to the mayor by the board of directors by ordinance.

(B) At the time the reorganization is effective under this chapter:

(i) The mayor shall continue in office until the remainder of his or her term of office; and

(ii) The member of the city board of directors shall become a member of the governing body and shall continue in office until the remainder of his or her term of office.

(2)(A)(i) Upon the receipt of a petition under subdivision (b)(1)(A) of this section, the mayor by proclamation in accordance with § 7-11-201 et seq. shall submit the question of organization of the city under the form of government stated in the petition at a special election to be held at a time specified therein.

(ii) The proclamation shall be published one (1) time at length in a newspaper having a general circulation in the city.

(B)(i) Notice of the election shall be published one (1) time a week for two (2) weeks in a newspaper having a general circulation in the city, the first publication to be not less than fifteen (15) days before the date set for the election.

(ii) No other notice of the election is necessary.

(c) At the special election for the submission or resubmission of the proposition, the ballots shall read:

“FOR the proposition to organize this City under the form of government ☐

AGAINST the proposition to organize this City under the form of government ☐

The name of the form of government specified in the petition for election shall be printed on the ballot in lieu of the blank lines appearing above.

(d)(1) The election shall be conducted, the votes canvassed, and the results declared in the same manner as provided by law in respect to other city elections.

(2)(A) The county board of election commissioners shall certify the results to the mayor.

(B) The results shall be conclusive and not subject to attack unless suit is brought in the circuit court of the county in which the city is situated to contest the certification within thirty (30) days after certification by the county board of election commissioners.

(e) If no suit is brought to contest the certification of the results of the election on the question of the form of government within the thirty-day period after certification, the mayor shall file certificates stating that the proposition was adopted with the Secretary of State and county clerk of the county in which the city is situated.

(f)(1)(A) If the majority of the votes cast on that issue shall be in favor of the adoption, the city shall thereupon proceed to the election of all of the city officials required by the laws governing the form of government adopted.

(B) The election of the city officials shall be held at the next time provided for the election of city officials under the statutes then in effect pertaining to the form of government adopted for the class of cities to which the particular city belongs, and all laws pertaining to the form of government adopted for such class of cities shall apply.

(C)(i) On the date prescribed by these laws when newly elected city officials take office, the term of office of all members of the board and mayor shall terminate and the transition to the form of government adopted shall be completed.

(ii) If under the form of government adopted the terms of the officials elected are staggered, then determination shall be made by lot, and the length of the terms fixed accordingly.

(2) The provisions of this section for converting to another form of government shall be in addition to the right to change to any other form of municipal government that may exist under present law.

(g) If the plan is not adopted by a majority of the voters voting upon that issue at the special election called, the question of adopting that same form of government shall not be resubmitted to the voters of that city for adoption within four (4) years thereafter. At that time the question may be resubmitted upon the presentation to the mayor of a petition signed by electors equal in number to fifteen percent (15%) of the aggregate number of votes cast for all candidates for mayor in the preceding general election.

(h)(1) When a municipality elects to adopt any other form of government in the manner provided in this section, the question of reorganizing the municipality under the city administrator form shall not be submitted to the electors within a period of four (4) years, and thereafter, only in the manner provided in § 14-48-104.

(2) If the qualified electors of the municipality do not approve the organization of the municipality under the city administrator form at the election, the proposition shall not again be submitted to the electors of the city for a period of four (4) years, and then, only in the manner provided in § 14-48-104.

History. Acts 1967, No. 36, § 18; A.S.A. 1947, § 19-818; Acts 2005, No. 2145, § 35; 2007, No. 1049, § 54; 2009, No. 1480, § 72; 2019, No. 1092, § 4.

14-48-106. Effect of reorganization.

(a)(1) When, in connection with the reorganization of a municipality under this chapter, an initial board of directors shall be elected, the reorganization shall be deemed to be effective as of the time when the respective terms of office of the directors commence.

(2) Concurrently with the commencement of the terms of the directors:

(A) The office of mayor and the offices of the members of the city council in the case of the mayor-council form of government, the office of mayor and the offices of the other members of the board of commissioners in the case of the commission form of government, and the office of the mayor, the board of directors, and the city manager in the case of the city manager form of government shall become vacant;

(B) The statutory term of office of the city treasurer, city clerk, city attorney, city marshal, and recorder in cities of the second class shall cease and terminate. The incumbent of each of these offices shall remain in office subject to removal and replacement at any time by the city administrator, with the approval of the board of directors; and

(C)(i) Every other executive officer or executive employee of the city, including, without limiting the foregoing, the city purchasing agent and the members, hereinafter called “board members”, of every other municipal board, authority, or commission, whether such office, employment, board, authority, or commission exists under statute or under any ordinance or resolution, whose official term of office or employment is fixed by statute, shall serve until the expiration of the term so fixed. Any of the executive officers or executive employees of the city and members of municipal boards, authorities, or commissions whose respective term of office is fixed by ordinance or resolution shall continue to serve until the expiration of the term so fixed or until the term is modified by ordinance or resolution. Thereafter, the position held by any such executive officer, employee, or board member shall be filled through appointment by the city administrator, with the approval of the board of directors, and the appointees shall hold their position at the will of the city administrator and the board of directors. However, definite terms may be provided for board members by ordinance.

(ii) Every executive officer, employee, or board member serving on the effective date of the reorganization whose office, employment, or board membership carries no fixed term created

either by statute, ordinance, or resolution shall be subject to removal and replacement at any time by the board of directors.

(iii) The provisions of subdivision (a)(2)(C) of this section providing that the term of office of board members shall be held at the will of the city administrator and the board of directors shall have no application to the statutory term, if any, of the boards, authorities, or commissions listed in subdivision (b)(2)(A) of this section.

(b)(1) Reorganization under this chapter shall not affect any civil service plan in effect for any city employees at the time of reorganization, except that commissioners, as their terms expire, shall thereafter be appointed by the city administrator, with the approval of the board of directors, and any city organized under this chapter which has no civil service plan at the time of reorganization may adopt a plan pursuant to the provisions of any statute under which it otherwise qualifies.

(2)(A) Reorganization under this chapter shall not operate to abolish or terminate any of the following listed departments, commissions, authorities, or agencies of the city government:

- (i) Waterworks commission existing under §§ 14-234-301 — 14-234-309;
- (ii) Sewer committee existing under § 14-235-206;
- (iii) Airport commission existing under § 14-359-103;
- (iv) Housing authority existing under § 14-169-208;
- (v) Any board of civil service commissioners serving under § 14-49-201 et seq., § 14-50-201 et seq., or § 14-51-201 et seq.;
- (vi) Auditorium commission existing under § 14-141-104;
- (vii) Library trustees existing under § 13-2-502;
- (viii) City planning commission existing under § 14-56-404; and
- (ix) Parking authority existing under § 14-304-101 et seq.

(B)(i) The reorganization shall not terminate, impair, or otherwise affect the official status, statutory tenure of office, if any, or powers of the persons serving as commissioners, committeemen, trustees, or members of any of the boards, authorities, commissions, agencies, or departments listed in subdivision (b)(2)(A) of this section, except as specifically provided by this chapter.

(ii) Whether consisting of the power to appoint or the power to confirm appointments or nominations, such power as may be vested in the mayor and the municipal council or in the mayor and other municipal legislative body immediately prior to the reorganization in respect to the filling of vacancies on the boards, authorities, commissions, agencies, or departments listed in subdivision (b)(2)(A) of this section shall be transferred to, and vested in, the city administrator, with the approval of the board of directors. Each appointee designated by the city administrator, with the approval of the board of directors, to fill a vacancy on any of these bodies shall serve for the statutory term, if any, applicable to the vacancy or, if there is no statutory term, shall serve at the will of the board. The boards, authorities, commissions, agencies, or departments listed in subdivision (b)(2)(A) of this section may be required by the board of directors, by ordinance duly adopted, to purchase all vehicles, equipment, materials, supplies, and services through a central municipal purchasing agent or department. The boards, authorities, commissions, agencies, or departments may be required to adopt and conform to the city personnel policies duly adopted by ordinance or resolution, including, but not limited to, the amount and form of remuneration, job classification, and civil service plans.

History. Acts 1967, No. 36, § 7; A.S.A. 1947, § 19-807; Acts 2003, No. 1185, § 32; 2017, No. 878, § 11.

14-48-107. Division of city into wards.

(a)(1) Following the adoption of the city administrator form of government in any city and prior to the special municipal election for the initial membership of the board of directors and the mayor, the governing body of the city, by ordinance, shall divide the city into four (4) wards with

each ward being composed of contiguous territory and of substantially equal population and which shall be designated numbers one, two, three, and four.

(2) The designation of wards shall be made not more than twenty (20) days after the certification of results of the election to the Secretary of State.

(b)(1) If the governing body of the city fails to act within the time prescribed, then any elector of the city may present to the judge of the circuit court for the county in which the city is situated a petition requesting a designation of wards and asking for the appointment of three (3) commissioners to act in relation thereto.

(2)(A) Within five (5) days after receipt of the petition, the circuit judge shall appoint three (3) electors of the city to serve as a board of commissioners. It shall be this board's duty to divide the city into four (4) wards, with each ward being composed of contiguous territory and of substantially equal population, which shall be designated numbers one, two, three, and four.

(B)(i) The board of commissioners, by majority action, shall make a report which shall designate the boundaries of the wards and then file the report with the city clerk within fifteen (15) days after the date of their appointment.

(ii)(a) If no report is filed within this time, that board of commissioners shall be automatically dissolved, and the circuit judge, upon the filing of a petition reciting the failure of the board to act, shall appoint a new board of commissioners for the same purpose, with the same authority, and with the same limitations.

(b) In the event of failure of the second board to act, the process may be continued until a report is filed.

(c)(1) The board of directors of the city under the city administrator form of government shall review the apportionment among the wards after each federal census in the city or in the event there is an imbalance in population among the wards in excess of fifteen percent (15%).

(2)(A) The board of directors may reapportion the wards to maintain substantially equal population in each ward whenever they deem necessary.

(B) In the event a redesignation of ward boundaries results in director number one, two, three, or four residing outside the boundary of the ward which he or she is representing, he or she shall nonetheless continue in office until his or her regular term expires.

History. Acts 1967, No. 36, § 3; A.S.A. 1947, § 19-803.

14-48-108. Calling of elections for directors and mayor.

(a)(1) Within ten (10) days after the designation of the four (4) wards, the Secretary of State by proclamation in accordance with § 7-11-101 et seq. shall call special primary and general elections to be held in the municipality for the purpose of electing seven (7) directors and a mayor.

(2)(A) The primary election shall be held in accordance with § 7-11-101 et seq.

(B) The special general election shall be held in accordance with § 7-11-101 et seq.

(b) These elections shall be called and conducted, and the results shall be determined and certified, as provided in § 14-48-109.

History. Acts 1967, No. 36, § 4; A.S.A. 1947, § 19-804; Acts 2005, No. 2145, § 36; 2007, No. 234, § 1; 2007, No. 1049, § 55; 2009, No. 1480, § 73.

14-48-109. Election of directors and mayor — Oath.

(a) Candidates for the office of director and mayor shall be nominated and elected as follows:

(1)(A)(i) A special election for the election of the initial membership of the board of directors and mayor shall be called by the Secretary of State as provided in § 14-48-108.

(ii) The proclamation shall be published in accordance with § 7-11-101 et seq.

(iii) For the initial election of directors and mayor, any person desiring to become a candidate shall file within twenty (20) days following the date of the proclamation by the Secretary of State with the city clerk or recorder a statement of candidacy in the form and with

the supporting signatures as provided in this section. In all other respects, the initial elections shall be governed by the provisions of this chapter for holding municipal elections.

(B)(i) Special elections to fill any vacancy under § 14-48-115 shall be called through a resolution of the board and shall be held on the next special election date under § 7-11-105.

(ii) A proclamation of the election shall be signed by the mayor and published in accordance with § 7-11-101 et seq. in some newspaper having a bona fide circulation in the municipality;

(2)(A) Candidates to be voted on at all elections to be held under the provisions of this chapter shall be elected during the general election or, if necessary, general runoff election.

(B)(i) The elections shall be under the supervision of the county board of election commissioners.

(ii) Elections for the office of director and mayor during the general election shall be:

(a) Held in the same polling sites designated by the county board of election commissioners or as identified as early voting locations; and

(b) Conducted under the laws governing elections in this state;

(3) Any person desiring to become a candidate for mayor or director shall file a statement of his or her candidacy in substantially the following form:

“STATE OF ARKANSAS

COUNTY OF

I,, being first duly sworn, state that I reside at Street, City of, County and State aforesaid; that I am a qualified elector of said city and the ward in which I reside; that I am a candidate for nomination to the office of _____, to be voted upon at the general election to be held on the

(Mayor) (Director)

day of, 20...., and I hereby request that my name be placed upon the official general election ballot for nomination by such general election for such office.”;

(4) The statement of candidacy and the petition for nomination supporting the candidacy of each candidate to be voted upon at any general or special election shall be filed with the city clerk or recorder during the one-week period beginning at 12:00 noon and ending at 12:00 noon ninety (90) days before the general election;

(5)(A) The name of each candidate shall be supported by a petition for nomination signed by at least fifty (50) qualified electors of the municipality requesting the candidacy of the candidate.

(B) A petition for nomination may be circulated for no longer than ninety (90) days before a candidate files the petition for nomination with the city clerk or recorder.

(C) The petition shall show the residence address of each signer and carry an affidavit signed by one (1) or more persons in which the affiant or affiants shall vouch for the eligibility of each signer of the petition. Each petition shall be substantially in the following form:

“The undersigned, duly qualified electors of the City of, Arkansas, each signer herein petitions that the name of be placed on the ballot as a candidate for election to Position No. on the Board of Directors (or Mayor) of said City of at the next general election for the office of director or mayor to be held in such city on the..... day of 20.... We further state that we know said person to be a qualified elector of said city and a person of good moral character and qualified in our judgment for the duties of such office.

Printed Name: _____

Signature _____

Residential Street Address _____

Date of Birth _____

Date of Signing _____”;

(6)(A) A petition for nomination shall not show the name of more than one (1) candidate.

(B) The city clerk or recorder shall determine no later than fourteen (14) days from filing whether the petition contains the names of a sufficient number of qualified electors and certify that no signatures are dated more than ninety (90) days before the filing of the petition.

(C) The name of the candidate mentioned in each petition, together with a copy of the election proclamation if the election is a special election, shall be certified by the city clerk or

recorder to the county board of election commissioners not less than seventy-five (75) days before the election unless the clerk or recorder finds that the petition fails to meet with the requirements of this chapter.

(D)(i) Whether the names of the candidates so certified to the county board of election commissioners are to be submitted at a biennial general election or at a special election held on a different date, the county board of election commissioners shall have general supervision over the holding of each municipal election.

(ii)(a) In this connection, the election board shall post the nominations, print the ballots, establish the voting precincts, appoint the election judges and clerks, determine and certify the results of the election, and determine the election expense chargeable to the city, all in the manner prescribed by law in respect to general elections. It is the intention of this chapter that the general election machinery of this state shall be utilized in the holding of all general and special elections authorized under this chapter.

(b) The result of the election shall be certified by the county board of election commissioners to the city clerk or recorder;

(7) The names of all candidates at the election shall be printed upon the ballot in an order determined by draw;

(8)(A) If no candidate receives a majority of the votes cast in the general election, the two (2) candidates receiving the highest number of votes for mayor and for each director position to be filled shall be the candidates for those respective offices to be voted upon in the general runoff election.

(B) In any case in which only one (1) candidate shall have filed and qualified for the office of mayor or any director position, or if a candidate receives a clear majority of the votes cast in the general election, that candidate shall be declared elected. The name of the person shall be certified as elected without the necessity of putting the person's name on the general municipal election ballot for the office; and

(9) Any candidate defeated at any general election or general runoff election may contest it in the manner provided by law for contesting other elections.

(b) Each member of the board of directors, before entering upon the discharge of his or her duties, shall take the oath of office required by Arkansas Constitution, Article 19, § 20.

History. Acts 1967, No. 36, §§ 5, 9; 1971, No. 439, § 1; No. 1049, § 56; 2009, No. 1480, § 74; 2013, No. 313, §§ 1, A.S.A. 1947, §§ 19-805, 19-809; Acts 1989, No. 347, §§ 2, 3; 2; 2021, No. 610, § 16; 2023, No. 328, § 7; 2025, No. 360, 1989, No. 905, § 7; 1997, No. 879, §§ 1, 2; 2005, No. 67, § 4. §§ 27, 28; 2005, No. 489, §§ 1, 2; 2007, No. 580, § 1; 2007,

14-48-110. Board of directors and mayor generally.

(a)(1) The seven (7) directors elected by a city reorganized under this chapter shall be known and designated as the board of directors of the city.

(2) The board of directors of the city shall constitute the legislative and executive body of the city, subject to the powers of the mayor in § 14-48-111, and shall be vested with all powers and authority which, immediately prior to the effective date of the reorganization, were vested under then-existing laws, ordinances, and resolutions in the governing body of the city and in its board of public affairs subject to the powers of the city administrator in § 14-48-117.

(3) Except when expressly permitted under this chapter, the mayor or director may not serve the city in any other capacity.

(b)(1) For election purposes, the positions upon the board of directors shall be permanently designated as positions numbered “one”, “two”, “three”, “four”, “five”, “six”, and “seven”, respectively.

(2)(A) Each candidate for election to membership on the board of directors of the city shall specify the position for which he or she is running.

(B) The electors shall vote separately on the candidates for each position, and the position sought by each candidate shall be shown on the ballot.

(c)(1) Except in the instances in which the mayor and directors are elected at special elections as provided in §§ 14-48-108 and 14-48-109, the mayor and directors shall be elected at the general elections held biennially for the election of state and county offices.

(2) Each such general election shall be utilized for the election of successors to the mayor and to those directors whose terms expire on December 31 following the election.

(d)(1) All primary, general, and special elections of the mayor and directors shall be nonpartisan, and the ballots shall show no party designation.

(2)(A) In all primary, general, and special elections, each candidate for the office of mayor or director shall be elected by the electors of the city as follows:

(i) The persons elected to fill director positions one, two, three, and four, respectively, shall be qualified electors of the respective wards and shall be elected by the qualified electors of the respective wards; and

(ii) The persons elected to fill the position of mayor and director positions five, six, and seven, respectively, shall be qualified electors of the city and shall be elected by the qualified electors of the entire city.

(B) Neither the mayor nor a director shall be prohibited from holding successive terms of office.

(C)(i)(a) The persons elected to fill director positions one, two, three, and four, respectively, shall continue to reside in the ward from which he or she was elected for the term for which he or she was elected.

(b) The persons elected to fill the position of mayor and director positions five, six, and seven, respectively, shall continue to reside in the city from which he or she was elected for the term for which he or she was elected.

(ii) If a duly elected director shall cease to reside in the ward or the city from which he or she was elected, the director shall be disqualified to hold the office, and a vacancy shall exist that shall be filled as prescribed by law.

(e)(1) The mayor and any director elected at a special election shall take office on the first Monday following the certification of his or her election, as required in this chapter.

(2) The mayor and any director elected at a general election shall take office on January 1 following his or her election.

(f)(1) At any primary, general, or special election for the election of the mayor or any director, any adult person who has resided within the municipality for at least six (6) months and is qualified to vote at an election of county or state offices shall be deemed a qualified elector.

(2) Any person twenty-one (21) years of age or older possessing these same qualifications also shall be eligible to run for the office of mayor or director.

(g) When a city is reorganized under this chapter, the mayor and board of directors will be divided into two (2) classes, and the tenure of office of those in each class shall be as follows:

(1) Director positions one, two, three, and four shall be Class Number One. Class Number One directors shall serve until and including December 31 following the first general election held after their terms of office commence and until their successors have been elected and qualified. Thereafter, those in Class Number One shall serve four-year terms; and

(2) The mayor and director positions five, six, and seven shall be Class Number Two. Class Number Two directors shall serve until and including December 31 following the second general election held after their terms of office commence and until their successors have been elected and qualified. Thereafter, those in Class Number Two shall serve four-year terms.

History. Acts 1967, No. 36, § 6; 1979, No. 69, § 1; A.S.A. 1947, § 19-806; Acts 2009, No. 27, § 1.

14-48-111. Mayor.

(a)(1) The mayor of a city having the city administrator form of government shall be recognized as the head of the city government for all ceremonial purposes and by the Governor for the purposes of military law.

(2) He or she shall sign on behalf of the city all written agreements, contracts, bonds, mortgages, pledges, indentures, conveyances, and other written instruments, the execution of which have been approved by the board of directors.

(3) He or she shall serve as chair of the board and shall preside at regular and special meetings of the board, but he or she shall not have a vote on any matter coming before the board.

(b)(1) The mayor shall have the power of veto over all decisions made by the board except matters relative to city personnel.

(2) A veto by the mayor may be overridden by the affirmative vote of five (5) or more members of the board.

(c)(1) The mayor shall not be required to devote his or her full time to the office and shall receive a compensation or salary not to exceed the salary permitted municipal officers by the Constitution of this state, to be fixed by the board.

(2) When once fixed, the salary shall not be increased or diminished during the term for which he or she may have been elected.

(d) The mayor, before entering upon the discharge of his or her duties, shall take the oath of office required by Arkansas Constitution, Article 19, § 20.

History. Acts 1967, No. 36, § 8; A.S.A. 1947, § 19-808.

14-48-112. Assistant mayor or vice mayor.

(a)(1) The board of directors shall elect from its membership an assistant mayor or vice mayor who shall serve in that capacity for two (2) years or until his or her tenure of office as a director expires, whichever is shorter.

(2) The assistant mayor or vice mayor shall not be prohibited from serving in that capacity for more than one (1) term.

(b)(1) The assistant mayor or vice mayor shall act as mayor during the absence or disability of the mayor.

(2)(A) If a vacancy in the office of mayor occurs, the assistant mayor or vice mayor shall perform the duties of mayor until a successor mayor is elected or appointed under § 14-42-103.

(B)(i) If the mayor is continuously absent or disabled for more than six (6) months, his or her office will automatically become vacant, and a successor mayor shall be elected or appointed under § 14-42-103.

(ii)(a) A certificate of the city clerk or recorder recorded in the record of the proceedings of the board as to the absence or disability of the mayor or as to any vacancy in the office of mayor may be relied upon by all persons dealing with the municipality as conclusive evidence of the assistant mayor's or vice mayor's authority to assume the powers of the mayor.

(b)(1) Where any such certificate is so recorded, upon the termination of the absence or disability of the mayor and the resumption by him or her of his or her official duties, the city clerk or recorder shall record in the records of the board a separate certificate attesting that fact.

(2) This separate certificate shall show the date of the termination of absence or disability and resumption of duties.

History. Acts 1967, No. 36, § 8; A.S.A. 1947, § 19-808;
Acts 2009, No. 27, § 2; 2025, No. 995, §§ 14, 15.

14-48-113. Acting mayor.

If both the mayor and assistant mayor should be absent or disabled from performing their duties, the board of directors may designate by resolution one (1) of its members as acting mayor to serve during the absence or disability, and no longer.

History. Acts 1967, No. 36, § 8; A.S.A. 1947, § 19-808.

14-48-114. Removal of mayor or directors.

(a) Any person holding the office of mayor and any person holding the office of member of the board of directors of any city organized under the provisions of this chapter shall be subject to removal from the office by the electors qualified to vote for a successor of the incumbent.

(b) The procedure to effect the removal of a person holding the office shall be as follows:

(1) When petitions requesting the removal of any such officer signed by qualified electors equal in number to thirty-five percent (35%) of the total number of votes cast for all candidates for that office at the preceding general municipal election at which the office was on the ballot are filed with the city clerk, the clerk shall determine the sufficiency of the petitions within ten (10) days from the date of the filing;

(2) If the petitions are deemed sufficient, the clerk shall certify them to the county board of election commissioners;

(3) The county board of election commissioners shall issue a proclamation in accordance with § 7-11-201 et seq., calling a special election on the question and shall fix a date for holding the special election on the next special election date under § 7-11-205 after the date of the certification of the petitions by the clerk;

(4) At the election, the question shall be submitted to the electors in substantially the following form:

“FOR the removal of _____
(name of officer)

from the office of _____ ☐

(Mayor) (Director)

AGAINST the removal of _____
(name of officer)

from the office of _____ ☐”; and

(Mayor) (Director)

(5)(A) If a majority of the qualified electors voting on the question at the election shall vote for the removal of the officer, a vacancy shall exist in the office.

(B) If a majority of the qualified electors voting on the question at the election shall vote against the removal of the officer, the officer shall continue to serve during the term for which elected.

(c) No recall petition shall be filed against any officer until he or she shall have held his or her office for at least six (6) months.

History. Acts 1967, No. 36, § 17; A.S.A. 1947, § 19-817; Acts 1991, No. 49, § 1; 2005, No. 2145, § 37; 2007, No. 1049, § 57; 2009, No. 1480, § 75; 2021, No. 610, § 17.

14-48-115. Mayor or director vacancy.

In the case of a vacancy in the office of mayor or in the office of a member of the board of directors, the board, at the first regular meeting after the occurrence of the vacancy, shall fill the vacancy under § 14-42-103.

History. Acts 1967, No. 36, § 10; A.S.A. 1947, § 19-810; 1049, § 58; 2009, No. 1480, § 76; 2015, No. 384, § 1; 2025, Acts 2005, No. 2145, § 38; 2007, No. 234, § 2; 2007, No. No. 995, § 16.

14-48-116. Employment of city administrator.

(a) The initial board of directors shall employ a city administrator as promptly as possible after effecting the board's organization. A city administrator's employment shall be for an indefinite term. Thereafter, subject only to such interruptions as are unavoidable, a city administrator shall be maintained in the employ of the city. The appointment and continued employment by the board of a city administrator is mandatory.

(b)(1) It shall not be essential that the city administrator at the time of his or her employment be a qualified elector of the city or of the State of Arkansas or a resident of the city or of the State of Arkansas. However, the city administrator shall be a person found by the board to have special qualifications in respect to the administration of municipal affairs, and during his or her employment he or she shall reside in the city and devote his or her full time to the business of the city.

(2)(A) A member of the board may not be appointed city administrator or acting city administrator during the term for which he or she shall have been elected, nor within three (3) years following the expiration of that member's term of office as director.

(B) Notwithstanding the provisions of this section regarding residency requirements for city administrators, the city administrator of a city having a population of less than five thousand (5,000) persons, upon approval of a majority of the board of the city, may reside in an adjoining city during his or her employment as administrator.

(c) The city administrator shall receive a salary in such amount as may be fixed by the board.

(d) The board, on the vote of a majority of its elected membership, may terminate the city administrator's employment at any time, either for or without cause. However, the city administrator's employment may not be terminated between the dates of January 1 and March 1 of the year following any general election in which members of the board are elected.

(e)(1) The city administrator shall furnish a fidelity bond, the premiums on which shall be paid by the city in such amount, in such form, and with such security as may be approved by the board.

(2) In no event shall the bond be less than twenty-five thousand dollars (\$25,000).

History. Acts 1967, No. 36, § 11; 1983, No. 159, § 1;
A.S.A. 1947, §§ 19-811, 19-811.1.

14-48-117. Powers and duties of city administrator.

The city administrator shall have the following powers and duties:

(1) To the extent that such authority is vested in him or her through ordinance enacted by the board of directors, he or she may supervise and control all administrative departments, agencies, offices, and employees;

(2) He or she shall represent the board in the enforcement of all obligations in favor of the city or its inhabitants which are imposed by law or under the terms of any public utility franchise upon any public utility;

(3) He or she may inquire into the conduct of any municipal office, department, or agency which is subject to the control of the board. In this connection, he or she shall be given unrestricted access to the records and files of any office, department, or agency and may require written reports, statements, audits, and other information from the executive head of the office, department, or agency;

(4)(A) He or she shall nominate, subject to confirmation by the board, persons to fill all vacancies at any time occurring in any office, employment, board, authority, or commission to which the board's appointive power extends.

(B)(i) He or she may remove from office all officials and employees, including without limitation, members of any board, authority, or commission who, under existing or future laws, whether applicable to cities under the mayor-council, manager, or commission form of government, may be removed by the city's legislative body.

(ii)(a) Removal by the city administrator shall be approved by the board.

(b) When, under the statute applicable to any specific employment or office, the incumbent may be removed only upon the vote of a specified majority of the city's legislative body, the removal of the person by the city administrator may be confirmed only upon the vote of the specified majority of the board members.

(C) However, this subdivision (4) does not apply to offices and employments controlled by any civil service or merit plan lawfully in effect in the city;

(5)(A) To the extent that and under such regulations as by ordinance the board may prescribe:

(i) He or she may contract for and purchase, or issue purchase authorizations for, supplies, materials, and equipment for the various offices, departments, and agencies of the city government, and he or she may contract for, or authorize contracts for, services to be rendered to the city or for the construction of municipal improvements. In this connection, the board shall by ordinance establish a maximum amount, and each contract, purchase, or authorization exceeding the amount so established shall be effected after competitive bidding as required in § 14-48-129;

(ii) He or she may approve for payment out of funds previously appropriated for that purpose or disapprove any bills, debts, or liabilities asserted as claims against the city. The board shall by ordinance establish in that connection a maximum amount, and the payment or disapproval of each bill, debt, or liability exceeding that amount shall require the confirmation of the board or of a committee of directors created by the board for that purpose;

(iii) He or she may sell or exchange any municipal supplies, materials, or equipment. However, the board shall by ordinance establish a maximum value above which no item or lot designated to be disposed of as one (1) unit of supplies, materials, or equipment shall be sold or exchanged without competitive bidding unless the city administrator shall certify in writing that in his or her opinion the fair market value of the item or lot is less than the amount established by the ordinance as prescribed; and

(iv) He or she may transfer to any office, department, or agency or he or she may transfer from any office, department, or agency to another office, department, or agency any materials and equipment.

(B) For the purpose of assisting the city administrator in transactions arising under subdivisions (5)(A)(i)-(iii) of this section, the board may appoint one (1) or more committees to be selected from its membership. In the alternative, the board may create one (1) or more offices or departments to be composed of personnel approved by the city administrator. If, for such purposes, the board shall create any new office or department, the person appointed to fill the office or to head the department shall be responsible to the city administrator and act under his or her direction;

(6) He or she shall prepare the municipal budget annually and submit it to the board for its approval or disapproval and be responsible for its administration after adoption;

(7) He or she shall prepare and submit to the board within sixty (60) days after the end of each fiscal year a complete report on the finances and administrative activities of the city during the fiscal year;

(8) He or she shall keep the board advised of the financial condition and future needs of the city and make such recommendations as to him or her may seem desirable;

(9) He or she shall sign all municipal warrants when authorized by the board to do so;

(10) He or she shall have all powers except those involving the exercise of sovereign authority, which under statutes applicable to municipalities under the mayor-council form of government or under ordinances and resolutions of the city in effect at the time of its reorganization may be vested in the mayor;

(11) He or she shall perform such additional duties and exercise such additional powers as may by ordinance be lawfully delegated to him or her by the board; and

(12) He or she shall be the executive officer of the boards of improvement and shall supervise under the direction of those boards all work done by them.

History. Acts 1967, No. 36, § 11; A.S.A. 1947, § 19-811; Acts 2003, No. 1185, § 33; 2017, No. 878, §§ 12, 13.

14-48-118. Acting city administrator.

(a)(1) If the city administrator is absent from the city or is unable to perform his or her duties, if the board of directors suspends the city administrator, or if there is a vacancy in the office of the city administrator, the board may appoint by resolution an acting city administrator to serve

until the city administrator returns, until his or her disability or suspension ceases, or until another city administrator is appointed and qualified, as the case may be.

(2) The board may suspend or remove an acting city administrator at any time.

(b)(1) The board, in the exercise of its discretion, may determine whether the acting city administrator shall furnish bond.

(2) If in any instance the board requires the acting city administrator to furnish bond, the premiums shall be paid by the city. The bond in respect to form, amount, and security shall be subject to the approval of the board.

(c) The acting city administrator shall receive a reasonable compensation to be fixed by the board.

History. Acts 1967, No. 36, § 11; A.S.A. 1947, § 19-811.

14-48-119. [Repealed.]

Publisher's Notes. This section, concerning election of municipal judges, was repealed by Acts 2003, No. 1185, § 34. The section was derived from Acts 1967, No. 36, § 7; A.S.A. 1947, § 19-807.

14-48-120. Meetings of board of directors.

(a)(1) A majority of the elected membership of the board of directors shall constitute a quorum for the transaction of business.

(2) Except where otherwise provided by law, an affirmative vote of four (4) or more members shall represent the action of the board, and a like vote shall be required to suspend the rules.

(b) The board shall meet twice during each calendar month, and, until otherwise provided by ordinance, the meetings shall be held on the first and third Monday evenings of each calendar month unless that day is a legal holiday, in which case the meeting shall be held on the following evening.

(c)(1) Special meetings may be called by a majority of the membership of the board.

(2) The board may establish by ordinance the procedure for calling and giving notice of special meetings.

(d) All regular and special meetings of the board shall be open to the public.

(e)(1) Every motion, resolution, and ordinance adopted by the board, if approved by the mayor, shall be signed by the mayor and attested by the city clerk.

(2) Any ordinance, resolution, or motion for which the mayor has the power of veto and which is enacted or adopted over the veto of the mayor as authorized in this section shall be signed by the assistant mayor and attested by the city clerk.

(f) All laws in effect on February 2, 1967, regarding the proceedings of the city council of a city operating under the mayor-council form of government and not inconsistent with the provisions of this chapter, including those laws prescribing the procedure for the adoption, enactment, and publication of ordinances and resolutions, shall govern the proceedings of the board provided for in this section.

(g)(1)(A) All ordinances, resolutions, and motions adopted by the board at a regular or special meeting shall be delivered to the mayor within forty-eight (48) hours after the adoption thereof.

(B) The mayor shall have a period of three (3) days from the date of the receipt of any ordinance, resolution, or motion adopted by the board to approve or veto it. If he or she shall fail to approve or veto it within that period, it shall become law without his or her signature.

(2)(A) Any ordinance, resolution, or motion enacted or adopted by the board which is vetoed by the mayor may be enacted over the veto of the mayor by an affirmative vote of five (5) or more members of the board.

(B) When any ordinance, resolution, or motion of the board is vetoed by the mayor, it shall automatically be on the agenda for consideration of the board at the next regular meeting of the board and may be considered at a special meeting called in the manner authorized herein.

(h)(1) Each member of the board shall receive compensation for each regular meeting of the board which he or she attends but shall receive no compensation for attending a special meeting of the board.

(2) The compensation for each meeting shall be set by the board but shall not exceed one twenty-fourth of twenty percent ($\frac{1}{24}$ of 20%) of the compensation permitted municipal officers per annum by the Arkansas Constitution.

(i) The board may hold agenda meetings at such times, under such circumstances, and on such conditions as the board may prescribe for the purpose of informing itself of the business and affairs of the city. However, no official action of the board shall be taken at such meetings.

(j) The board shall adopt rules of order to govern the deliberations and meetings of the board.

(k) Any director who fails to attend five (5) consecutive regular meetings of the board or who fails to attend fifty percent (50%) of the regular meetings of the board held during a calendar year while he or she is a qualified member of the board shall be deemed to have resigned. A vacancy shall then exist in that position to be filled as provided in § 14-48-115.

History. Acts 1967, No. 36, § 9; A.S.A. 1947, § 19-809; Acts 2017, No. 878, § 14.

14-48-121. Initiative and referendum.

(a) The initiative and referendum laws of this state are applicable to cities reorganized under this chapter.

(b) The number of signatures required upon any petition shall be computed upon the total vote cast for mayor at the preceding general election for mayor.

History. Acts 1967, No. 36, § 16; A.S.A. 1947, § 19-816.

CHAPTER 61

CITY MANAGER ENABLING ACT OF 1989

SECTION.

- 14-61-111. Selection of mayor.
14-61-112. Selection of directors and mayor.
14-61-113. Petition process for special elections.
14-61-114. Options may also be referred by vote, ordinance — Mayor's veto power.
14-61-115. Initial organization as a management form of government.

SECTION.

- 14-61-116. Reorganization election by city with management form of government.
14-61-117. Implementation of change in form of government under this chapter.
14-61-118. [Repealed.]
14-61-119. Removal of director.
14-61-120. Limited voting — Cumulative voting.

14-61-111. Selection of mayor.

(a) Unless a majority of the qualified electors of the city voting on the issue choose otherwise, the mayor will be selected by a majority vote of the board of directors from among its members.

(b)(1)(A) If a majority of the qualified electors of the city voting on the issue vote to do so, the mayor shall be directly elected by the qualified electors of the city.

(B) Any person so elected shall serve as mayor for a term of four (4) years.

(2)(A) At a special or general election on the question of whether to directly elect the mayor, a majority of the qualified electors voting on the issue may also vote to require that a successful candidate for mayor receive a minimum percentage, less than fifty percent (50%), of the total votes cast for the position of mayor in order to be elected mayor without a runoff.

(B) The minimum percentage necessary for election without a runoff shall be determined by ordinance approved by a two-thirds vote of the governing body or referred to the electors for their approval.

(3)(A) If it is required that a candidate receive a minimum percentage, less than fifty percent (50%), of the total votes cast for mayor in order to be elected mayor without a runoff, and if no candidate for the position of mayor receives at least the required percentage of the votes cast, then the two (2) candidates receiving the highest number of votes shall be the nominees for the position of mayor and shall be certified to a special runoff election which shall be held four (4) weeks from the day on which the general election is held.

(B) The special runoff election shall be conducted, and the election results shall be canvassed and certified in the manner prescribed by law for municipal runoff elections.

(c) The question of whether to directly elect the mayor may be voted on at a general or special election held:

- (1) At the time the city seeks to organize or reorganize under this chapter;
- (2) As the result of a properly presented petition filed pursuant to § 14-61-113; or
- (3) As the result of the referral of an ordinance by the board of directors calling for a reorganization under this chapter.

(d) If an election to provide for the direct election of the mayor is unsuccessful, the issue shall not be submitted again for at least two (2) years after the date of the unsuccessful election.

History. Acts 1989, No. 907, § 9; 1993, No. 1294, § 2; 2019, No. 642, § 1; 2019, No. 978, § 5.

14-61-112. Selection of directors and mayor.

(a) Unless special provisions for the position of mayor are implemented pursuant to § 14-61-111, the candidate for mayor, who in any special or general election shall receive a majority of the votes cast in favor of another candidate for the position, shall be deemed to be elected.

(b) If special provisions for the election of the mayor are implemented pursuant to § 14-61-111, then those special provisions will control the election of the mayor, unless those special provisions are amended by ordinance approved by a two-thirds vote of the governing body of the city.

(c)(1) The candidate for a designated position on the board of directors of a city affected by this chapter who in a special or general election receives votes greater in number than those cast in favor of another candidate for the position and who receives at least forty percent (40%) of the votes cast, shall be deemed elected.

(2) Subdivision (c)(1) of this section may be amended by ordinance approved by a two-thirds vote of the governing body of the city or by the approval of a majority of the qualified electors of the municipality by petition.

History. Acts 1989, No. 907, § 10; 1993, No. 1294, § 3; 2019, No. 978, § 6.

14-61-113. Petition process for special elections.

Except for questions that may be referred to the voters by the board of directors, unless it is a city where a federal court has ordered the redistricting of wards under the federal Voting Rights Act of 1965, options provided by this chapter shall be voted on at special elections called as a result of a petition for the special election being filed with the city clerk and provided to the mayor. The following procedure shall be utilized for initial elections to organize under the management form of government, for reorganization elections by a city already operating under the management form of government, and for elections to reorganize the selection of directors in cities where a federal court has ordered the redistricting of wards under the federal Voting Rights Act of 1965:

(1) A petition that calls for an election on one (1) particular option for selecting members of the board of directors using the form of the question outlined in § 14-61-115(b) shall be filed with the city clerk and provided to the mayor. The city clerk shall note on the petition the date and time that it was filed. If such a petition contains the signatures of electors equal in number to fifteen percent (15%) of the number of ballots cast for the mayor, or if the mayor is not directly elected, for the director position receiving the highest number of votes in the last general election, then the mayor by proclamation in accordance with § 7-11-201 et seq. shall submit the question to the electors at a special election, provided:

(A)(i) The city clerk shall verify the number of signatures on the petitions within ten (10) days of the date they are filed.

(ii) If there are insufficient signatures on the petitions, the petitioners shall not receive any extensions for the petition.

(iii) If, however, there are a sufficient number of signatures on the petitions but the city clerk is unable to verify the required number of signatures as those of qualified electors, then the petitioners will be given ten (10) days to provide a sufficient number of verified signatures;

(B) The proclamation calling the special election shall be issued within three (3) working days of the date the city clerk verifies the number of signatures on the petitions; and

(C) The special election shall be held at the next special election date under § 7-11-205 after the proclamation calling the election;

(2) Except for the provisions of subdivision (1)(A) of this section, if petitions filed with the mayor that call for an election on one (1) of the options set forth in this chapter are found to be insufficient for any reason whatsoever, then new petitions will have to be circulated and filed before the question can be considered again;

(3) Notwithstanding subdivision (2) of this section, if two (2) or more groups file petitions seeking a special election on one (1) of the options set forth in this chapter and the first filed petitions are declared to be insufficient, then the city clerk will determine the sufficiency of the petitions that were filed next in time. Otherwise, upon a declaration that a set of petitions is sufficient and the first in time, then all petitions filed after the first sufficient petitions and before the special election shall be deemed moot and may be destroyed;

(4) Once an election has been held pursuant to the provisions of any act that results in a change in the manner of selecting the governing body of a city with the manager form of government or seeks to reorganize a manager-government city under any other form of

government, then none of the options presented by this chapter or any act concerning the organization of the government under any form of municipal government may be submitted to the voters for a period of four (4) years from the date of the election; and

(5) Except as provided in § 14-61-114(a), if an election held pursuant to the provisions of any act fails to result in a change in the manner of selecting the governing body of a city with the manager form of government or fails to reorganize such a city under any other form of government, then no other petitions seeking to adopt any of the options presented by this chapter or to reorganize the city under any form of municipal government may be submitted to the voters for a period of two (2) years from the date of the election.

History. Acts 1989, No. 907, § 11; 1993, No. 1294, § 4; 1995, No. 750, § 1; 2005, No. 2145, § 40; 2007, No. 1049, § 60; 2009, No. 1480, § 78; 2021, No. 610, § 19.

14-61-114. Options may also be referred by vote, ordinance — Mayor's veto power.

(a)(1) Notwithstanding any other provision, the board of directors in a city operating under the city manager form of government may by a two-thirds vote of all the members, including the mayor, refer to a special or general election, for approval by a majority of the qualified electors voting on the issue, one (1) of the options set forth in § 14-61-107, provided no election on a board-referred option has been held within the previous two (2) years.

(2) Notwithstanding the other provisions of this subsection and §§ 14-43-201 and 14-61-117, in a city operating under the management form of government where a federal court has ordered the redistricting of wards under the federal Voting Rights Act of 1965, the voters of the city are authorized to petition for a special election to vote on the options set forth in § 14-61-107 for reorganizing the selection of directors, including the election of a mayor at large, at any time. The option shall be voted on at special elections called as a result of a petition for the special election's being filed with the city clerk and provided to the mayor under § 14-61-113.

(b) The board of directors in a city with the management form of government where all directors are elected from wards and the directly elected mayor does not have the veto power may by ordinance referred to the electors and approved by a majority of the qualified electors voting on the issue grant the mayor the veto power, provided that no election on such an ordinance will occur sooner than two (2) years after the last special election on the issue of veto power for the mayor.

(c) The board of directors in a city with the management form of government where all directors are elected from wards and the directly elected mayor has the veto power may by ordinance referred to the electors and approved by a majority of the qualified electors voting on the issue remove the mayor's veto power, provided that no election on such an ordinance will occur sooner than two (2) years after the last special election on the issue of veto power for the mayor.

(d)(1) The board of directors of any city operating under the management form of government may by ordinance refer to the electors the issue of electing the mayor from an at-large board position or the issue of granting veto power to the mayor, or both.

(2)(A) In any instance where the mayor of a city operating under the management form of government has a veto power, the board of directors may override the veto by a two-thirds vote of the number of members of the board.

(B) Mayors who have the veto power shall not be entitled to vote unless the vote is necessary for passage of a measure.

(e)(1) The board of directors by ordinance may provide that the duties of the city manager under § 14-47-120 or other statute be performed at the direction of the mayor.

(2) An ordinance under subdivision (e)(1) of this section shall not be amended for four (4) years following passage of the ordinance by the board of directors unless by an ordinance approved by a two-thirds vote of the board of directors.

(3) If an ordinance under subdivision (e)(1) of this section is passed, the mayor shall be compensated with a salary and benefit package comparable to the highest-ranking municipal official.

History. Acts 1989, No. 907, § 12; 1993, No. 1060, § 1; 1993, No. 1294, § 5; 1995, No. 750, § 2; 2007, No. 729, § 2.

14-61-115. Initial organization as a management form of government.

(a) A city affected by this chapter that has not yet held an election on petitions calling for an election to adopt the management form of government shall submit at a special election a ballot that addresses the following questions:

(1) Whether to adopt the management form of government;

(2) Which option to follow for the selection of members of the board of directors, the number of directors, and whether to directly elect the mayor.

(b) At the special election on the question of whether to adopt the management form of government, the ballot shall contain substantially the following question:

FOR adoption of the management form of government as set forth below ☐

AGAINST adoption of the management form of government as set forth below ☐

(c) In the area of the ballot immediately below the questions set forth in subsection (a) of this section, one (1) of the following explanations will be provided:

(1) For options where all directors are elected at large:

(A) A city manager government with a (number) member board of directors elected at large. The mayor shall be selected from among the directors; or

(B) A city manager government with a (number) member board of directors elected at large. The mayor shall be directly elected.

(2) For options where a majority of directors are elected from wards and the remaining directors are elected at large:

(A) A city manager government with (majority plus one) members of the board of directors from wards and (remaining number) members of the board of directors at-large. The mayor shall be selected from among the directors.

(B) A city manager government with (majority plus one) members of the board of directors from wards and (remaining number) members of the board of directors at-large. The mayor shall be directly elected.

(3) For options in which the directors are elected from a combination of wards and from larger designated districts that overlap wards:

(A) A city manager form of government with (number) members of the board of directors from wards and (number) members of the board of directors from larger designated districts that overlap wards. The mayor shall be elected from among the directors.

(B) A city manager government with (number) members of the board of directors from wards and (number) members of the board of directors from larger designated districts that overlap wards. The mayor shall be directly elected.

(4) For options in which all members of the board of directors are elected from wards, but the mayor is elected at large:

(A) A city manager government with a (number) member board of directors all elected from wards. The mayor shall be directly elected at large.

(B) If a city affected by this chapter votes on an option under this subsection, then the following question shall also appear on the ballot:

FOR giving the mayor a veto power but no vote unless there is a tie ☐

AGAINST giving the mayor a veto power but no vote unless there is a tie ☐

(C) Notwithstanding any other provision of this chapter, if the vote under this subdivision (c)(4) to provide the mayor with a veto power is unsuccessful, the issue shall not be submitted again for a period of two (2) years after the date of the certification of the unsuccessful election.

(d) If a majority of the votes cast are in favor of the proposition of adopting the management form of government, then the city shall organize under the management form of government in accordance with the options selected.

History. Acts 1989, No. 907, § 13; 2019, No. 978, § 7.

14-61-116. Reorganization election by city with management form of government.

(a) A city affected by this chapter that is already organized under the management form of government shall hold a special election on petitions calling for a reorganization under this chapter in accordance with the provisions of § 14-61-114 provided that no special election shall be held on the option already being utilized by the city.

(b) A city affected by this chapter that has held a special election on petitions calling for a reorganization under this chapter may, by ordinance approved by a two-thirds vote of the municipal board of directors:

(1) Choose a different method by which to select a municipal board of directors under § 14-61-107; and

(2) Determine the minimum percentage a special candidate for mayor shall receive in order to be elected without a runoff under § 14-61-111.

History. Acts 1989, No. 907, § 14; 2019, No. 978, § 8.

14-61-117. Implementation of change in form of government under this chapter.

The following procedure will be used to implement this chapter by cities that have changed the manner by which directors and the mayor are selected:

(1) If an option is chosen in which the mayor is directly elected, the position of mayor shall be elected at the first general election after the organization or reorganization of the city under the management form of government. Because of this fact, at the first meeting of the board of directors after the special election results have been certified, the mayor shall prepare slips of paper for each member of the board of directors whose current terms expire soonest. One (1) of these slips of paper shall have the word “Mayor” imprinted on it and the rest of the slips shall be blank. Each member whose term will expire soonest after the reorganization will draw a slip of paper and the director drawing the slip of paper with the word “Mayor” imprinted on it will not draw again. The successor for this director will be the elected mayor.

(2) The mayor shall then prepare slips of paper for each member of the board of directors, except the one (1) that has drawn the mayor’s slip, upon which will be imprinted the name of a director position, or ward position, as may be needed. These members of the board of directors shall draw one (1) slip of paper, and the words imprinted on the slip drawn by each member shall determine the position and method of selection for such member’s successor.

(3) Upon the expiration of the current term of a member, his successor shall be elected in the manner designated under this section. For example, if a member draws “Director Ward 1”, then that member’s successor shall be selected from the area designated as Ward 1 by the county board of election commissioners.

(4)(A)(i) If an option is selected that decreases the existing size of the board of directors, including the position of mayor, then at the first meeting after the results of the election have been certified, the mayor shall prepare slips of paper for each member of the board of directors, upon which will be imprinted the designation of the director positions that will remain after the decrease, whether at-large or ward positions, or a directly elected mayor. The remaining slips of paper shall remain blank.

(ii) The members of the board of directors shall draw one (1) slip of paper, and the words imprinted on the slip drawn by each member shall determine the position for which that member's successor will be selected.

(iii) Directors drawing a blank slip of paper shall not be succeeded upon the expiration of their terms of office.

(B)(i) If an option is selected that increases the existing number of directors, including the position of mayor, and the next general municipal election is more than one (1) year away, then a special election to fill the new positions shall be held within a reasonable time. This special election shall be conducted in accordance with the provisions of §§ 14-47-106 and 14-47-110. Persons elected at this special election shall serve until the next general municipal election, at which time the positions shall again be on the ballot for a full four-year term.

(ii) If an option is selected that increases the existing number of directors, including the position of mayor, and the next general municipal election is less than one (1) year away, then the board of directors, by majority vote, may:

(a) Conduct a special election, in accordance with the provisions of §§ 14-47-106 and 14-47-110, but declare that the initial term of office for these positions shall be from the date the results of the special election are certified until the end of the term for directors elected at the next general municipal election, and that thereafter persons elected to fill the positions will serve a term of four (4) years; or

(b) Choose to leave the positions vacant until the next general municipal election; or

(c) Fill the vacancies in accordance with § 14-47-113, with the persons appointed to serve until the next general municipal election.

(C) If an option is approved pursuant to § 14-61-107(2) that results in a change in the number of directors selected from wards, the board of directors, by majority vote, may determine how to select the positions as follows:

(i) The board may designate any or all of the positions to be selected at any special election called to implement the change, and at the succeeding two (2) general municipal elections, in order to fully implement the option adopted;

(ii)(a) In order to fully implement that option selected, the board may draw lots to determine which positions will be elected at any special election called to implement the change, and at the succeeding two (2) general municipal elections, in order to fully implement the option adopted. Each slip will be imprinted with the name of a ward position, an at-large position, or the mayor, as necessary, and the successor of the board member drawing a particular slip of paper will be elected from the position. For purposes of illustration, the director from Ward 1 will be elected at the general municipal election when the position of the director drawing the slip marked "Ward 1" is up for election. If the option selected increases the size of the board of directors, and if the board has not otherwise determined the positions to be selected, then the mayor and one (1) board member whose term expires at the general municipal election before or after the mayor's term expires will draw an extra slip for each necessary position. For example, if two (2) new positions are authorized and the mayor's term expires at the next general municipal election, then the mayor would draw one (1) extra slip and a board member whose term expires two (2) years after the mayor's term would draw one (1) extra slip.

(b) Once the board has determined how successors, or new members, or both, are to be selected, it may unanimously vote to fill all positions on the board, including the position of mayor, at a special election, or no later than the next general municipal election. If a decision is made to so expedite the election of the board, the board may designate which positions will initially be filled for two-year terms, with successors to be elected for four-year terms thereafter, which positions will be elected for four-year terms, with successors to be elected for four-year terms thereafter.

History. Acts 1989, No. 907, § 15; 1993, No. 1294, § 6.

14-61-118. [Repealed.]

Publisher's Notes. This section, concerning the resignation of a director to run for mayor, was repealed by Acts 2015, No. 222, § 1. The section was derived from Acts 1989, No. 907, § 16.

14-61-119. Removal of director.

(a) The holder of the office of city director or the mayor is subject to removal by the electors qualified to vote for a successor of the incumbent.

(b) The procedure to effect the removal of the incumbent of this elective office is as follows:

(1) The city clerk shall send to the subject of the recall a certified letter, return receipt requested, and a copy of the petition stating the basis of the recall shall be mailed to the incumbent whose removal is sought under this section;

(2)(A)(i) A petition shall be filed with the city clerk within ninety (90) days after the collection of signatures began.

(ii) The collection of the signatures for the petition shall not begin before the date the certified letter is mailed under subdivision (b)(1) of this section.

(B) This petition shall be signed by electors entitled to vote for a successor to the incumbent sought to be removed equal in number to at least thirty-five percent (35%) of the number of ballots cast for all candidates for the position held by the incumbent sought to be removed at the preceding general election for that position;

(3) The petition shall contain a statement of the grounds and reasons on account of which the removal is sought;

(4) The signatures to the petition need not all be appended to one (1) paper, but each signer shall add to his or her signature his or her place of residence, giving street and number, if any; and

(5) One of the signers of each of the papers shall make an oath before an officer competent to administer oaths that:

(A) The statements therein made are true as he or she believes;

(B) Each signature to the paper appended is a genuine signature of the person whose name it purports to be;

(C) The petition contains the information concerning the reason for the removal of the incumbent; and

(D) The petition contains the date upon which the collection of signatures began.

(c) Within ten (10) days of the date of filing the petition, the city clerk shall ascertain and determine whether or not the petition is signed by the requisite number of qualified electors. If necessary, the board of directors shall allow the city clerk extra help for that purpose.

(d) The city clerk shall attach to the petition his or her certificate showing the result of his or her examination.

(e) If by the clerk's certificate the petition is shown to be insufficient, it may be amended within ten (10) days.

(f)(1) Within ten (10) days after an amendment, the clerk shall make like examination of the amended petition.

(2) If his or her certificate shows the amended petition to be insufficient, it shall be returned to the person filing it, without prejudice, however, to his or her filing a new petition to the same effect.

(3) If the petition is deemed sufficient, the clerk shall submit it to the board without delay.

(g) Upon receipt from the city clerk certifying that the petition is sufficient, the board of directors shall order and fix a date for holding an election under § 7-11-201 et seq. This date shall be not more than ninety (90) days from the date of the clerk's certificate to the board that a sufficient petition is filed.

(h) The board of directors shall make or cause to be made, publication of notice and all arrangements for holding the election.

(i) The election shall be conducted and returned, and the result thereof declared in all respects as are other such elections under election laws.

(j) At the election, the proposition submitted to the electors shall be:

“FOR the removal of (name of officer) from the Office of

(Director)(Mayor) ☐

AGAINST the removal of (name of officer) from the Office of

(Director)(Mayor) ☐

(k) If the majority of votes cast on the issue are in favor of the removal of the officer, the officer shall be removed and his or her office vacated, and it shall be filled in the manner provided for filling vacancies.

(l) If the majority of the votes cast on that issue are against the removal of the officer, the officer shall continue to serve.

(m) No recall petition may be filed against any officer until he or she has held his or her office for at least six (6) months, nor may any officer be subject to more than one (1) recall proceeding during any one (1) term of office.

History. Acts 1989, No. 907, § 17; 1991, No. 49, § 2; 2007, No. 1049, § 61; 2009, No. 1454, § 1; 2009, No. 1480, § 79; 2011, No. 778, § 1.

14-61-120. Limited voting — Cumulative voting.

(a) A majority of the qualified electors voting on the issue may vote to permit limited voting or cumulative voting for directors, other than the mayor, elected at large.

(b) Under a limited voting system, voters are restricted to casting only one (1) vote for any single candidate, but are not given as many votes as there are at-large seats to fill.

(c) Cumulative voting shall be construed as allowing every voter to cast as many votes as there are positions to be filled of the same category, without restricting the voter to casting only one (1) vote for any particular candidate. This system permits voters to aggregate or cumulate their votes. For example, in a three-seat, three-vote election, a voter may provide three (3) candidates with one (1) vote each, or the voter may cast two (2) votes for one (1) candidate and one (1) vote for a second candidate, or the voter may cast all three (3) votes for a single candidate.

History. Acts 1993, No. 1294, § 7.

SUBTITLE 7. WATER AND SOIL IMPROVEMENT DISTRICTS

CHAPTER 116

REGIONAL WATER DISTRIBUTION DISTRICT ACT

SUBCHAPTER 3 — BOARD OF DIRECTORS

SECTION.

14-116-303. Members — Nomination and election.

14-116-303. Members — Nomination and election.

(a)(1)(A) If a water district is composed of all or a portion of four (4) or more counties, then nominations for directors shall be upon a petition signed by at least fifty (50) qualified electors residing in the area of the district from which the director is to be elected, to be circulated for no longer than ninety (90) days.

(B) The petition under subdivision (a)(1)(A) of this section shall be filed with the county clerk during a one-week period ending at 12:00 noon ninety (90) days before the general election.

(2)(A) If a water district is composed of all or a portion of less than four (4) counties, then nominations for directors shall be upon a petition signed by at least fifty (50) qualified electors, who shall consist of those electors residing in all or part of any precinct in the service area of the customers of the district from which the director is to be elected.

(B) The petition under subdivision (a)(2)(A) of this section shall be circulated for no longer than ninety (90) days and filed with the county clerk during a one-week period ending at 12:00 noon ninety (90) days before the general election.

(3) A water district shall file a service area map with the county clerk no later than January 31 before the general election.

(b) Election of the directors shall be held as a part of the general election and under the laws governing it.

(c) Any director shall be qualified to succeed himself or herself.

History. Acts 1957, No. 114, § 7; 1970 (1st Ex. Sess.), No. 21, § 1; A.S.A. 1947, § 21-1407; Acts 2007, No. 863, § 3; 2009, No. 370, § 2; 2009, No. 1480, § 82; 2019, No. 597, § 9.

Amendments. The 2009 amendment by No. 370, in (a), substituted “no later than July 1 before” for “at least sixty (60) days prior to” in (a)(1) and (a)(2), in (a)(2) inserted “who shall consist of those electors” and substituted “all or

part of any precinct in” for “the part of,” inserted (a)(3), and made a related change.

The 2009 amendment by No. 1480 substituted “clerk not later than 12:00 noon on July 1” for “board of election commissioners no later than July 1” in the last sentences of (a)(1) and (a)(2).

The 2019 amendment rewrote (a)(1) and (a)(2).

CHAPTER 123

LEVEE IMPROVEMENT DISTRICTS GENERALLY

SUBCHAPTER 3 — BOARD OF DIRECTORS OR ASSESSORS

SECTION.

14-123-301. Election of directors and assessors — In gen-

eral — Erroneous selection of commissioners or directors.

14-123-301. Election of directors and assessors — In general — Erroneous selection of commissioners or directors.

(a) At the term of the court at which the districts may be laid off, or at any future term, the court shall designate and fix a day of election for three (3) directors of levees and three (3) assessors of lands in each of the districts and shall appoint three (3) judges of election to hold the election.

(b) The election shall be held in accordance with the general election laws of the state, except that none but landholders of the district and mortgagees in possession after condition broken shall be allowed to vote at the election, be eligible to election to either of the offices, or to act as judges at the election, except that guardians duly appointed, and who shall have given bond and received letters of guardianship of infant heirs or insane persons owning land in the district, may vote in right of their respective wards.

(c) Where any levee district in Arkansas organized under any general or special act of the General Assembly provided for election of commissioners or directors and, through error, such commissioners or directors have not been elected but selected by some other method, and such commissioners or directors have served as such commissioners or directors in good faith, the acts of such commissioners and directors are hereby validated and shall have the same force and effect as though such commissioners or directors had been selected in the manner provided by law.

(d) In any levee district heretofore established which is now operating with a board of commissioners or directors, all of whom have taken, or, within thirty (30) days after March 26, 1991, take the oath required by law, said commissioners or directors may continue to serve for the terms prescribed by law, and the acts of such boards are hereby validated.

History. Acts 1879, No. 78, § 2, p. 117; C. & M. Dig., §§ 6815, 6816; Pope's Dig., §§ 4541, 4542; A.S.A. 1947, § 21-604; Acts 1991, No. 778, § 1.

SUBCHAPTER 5 — DISTRICTS IN FOUR OR MORE COUNTIES

SECTION.

14-123-501. Directors.

14-123-501. Directors.

(a)(1) The board of directors of any levee district embracing lands in four (4) or more counties shall consist of one (1) director for every one hundred thousand (100,000) acres, and for a fraction or more than fifty thousand (50,000) acres, of lands on which taxes are assessed by the district in each of the respective counties. However, any county which has more than one hundred thousand (100,000) acres and less than one hundred fifty thousand (150,000) acres embraced in any levee district, subject to a levee tax, shall have two (2) levee directors.

(2) This subsection is not intended to cut short the term of any member of the board of directors of any levee district, but is intended to eliminate the requirement that any county having lands embraced in a levee district under this section of which are not assessed for levee taxes have one (1) levee director, provided that provision is only to be eliminated upon the

expiration of the term of the levee director or if a vacancy occurs in that levee director's office prior to the expiration of his term, that position shall then be abolished.

(b)(1) The Governor shall appoint directors in conformity to this section for existing districts, who shall serve for a term of four (4) years and until their successors are elected and qualified.

(2) On the first Monday in November 1933 and every (4) years thereafter, one (1) director shall be elected from each county or division, as the case may be, in the manner provided by law, who shall serve for a term of four (4) years and until his successor is elected and qualified.

(c) Any resident of a county whose lands are embraced in any levee district and is otherwise eligible to serve as a levee director shall not be required to reside in the land embraced in the levee district division of the county.

(d) The directors shall organize by electing one (1) of their number as president.

(e) They shall also employ other officers and employees as are necessary in the discretion of the board.

(f) The new board shall be the legal successor to the old.

History. Acts 1929, No. 75, §§ 1-4; Pope's Dig., §§ 4592-4595; Acts 1981, No. 968, §§ 1, 2; A.S.A. 1947, §§ 21-644 — 21-647.

SUBTITLE 17. PUBLIC HEALTH AND WELFARE IMPROVEMENT DISTRICTS

CHAPTER 284

FIRE PROTECTION DISTRICTS

SUBCHAPTER 2 — FIRE PROTECTION DISTRICTS OUTSIDE OF CITIES AND TOWNS

SECTION.

14-284-224. Petition to annex territory to an existing district — Special election.

14-284-224. Petition to annex territory to an existing district — Special election.

(a)(1)(A) When petitions are filed with the board of commissioners of a fire protection district created pursuant to this subchapter containing the signatures of at least ten percent (10%) of qualified electors of a portion of the unincorporated area of the county, as determined by the number of votes cast by the qualified electors of that portion of the county for all candidates for Governor at the last preceding general election, requesting the annexation of the territory to an existing fire protection district created under this subchapter and requesting that assessed benefits be made on the property located within the area to be annexed to help finance the operation of the district, the board of commissioners shall conduct a public hearing on the petition.

(B) If the board determines the annexation to be desirable, the board shall notify the quorum court, and the quorum court may at its discretion call a special election within the area of the existing fire protection district and the area proposed to be annexed to determine whether the annexation should occur.

(2) No annexation shall occur except pursuant to an election under subsection (b) of this section or by ordinance under subsection (d) of this section.

(b)(1) The special election called by the quorum court to submit the question of the annexation and financing of the fire protection district to the electors of the district and the area to be annexed shall be held no later than ninety (90) days after the proclamation of a special election in accordance with § 7-11-201 et seq.

(2) At the election, the question of annexing the area to the district and the financing of the district shall be placed on the ballot in substantially the following form:

“FOR the annexation of(description of area to be annexed), and the levy of assessed benefits on real property within the area to be annexed to help finance the district☐

AGAINST the annexation of(description of area to be annexed), and the levy of assessed benefits on real property within the area to be annexed to help finance the district .☐”

(c) If a majority of those voting at the election who reside within the area to be annexed and a majority of those voting at the election who reside within the existing district vote in favor of the annexation, the area shall be deemed annexed and shall become a part of the fire protection district and governed accordingly.

(d)(1) As an alternative to an election on the annexation issue, if the board of commissioners of a fire protection district is in favor of the annexation, the board may refer the petitions to the county quorum court that may then accomplish the annexation by enactment of a county ordinance providing for the annexation.

(2)(A)(i) However, the ordinance shall not go into effect until sixty (60) days after its enactment.

(ii) During that time, if petitions calling for a referendum on the ordinance are presented to the quorum court and the petitions are signed by the number prescribed in subsection (a) of

this section, the quorum court shall call a special election in accordance with § 7-11-201 et seq. on the issue of the annexation.

(B) The election shall be conducted as prescribed in subsection (b) of this section.

(C) Unless at least a majority of those voting at the election who reside within the area to be annexed and a majority of those voting at the election who reside within the existing district vote in favor of the annexation, the annexation shall not occur.

(3) If the petitions are filed within sixty (60) days after enacting the ordinance, the ordinance shall not go into effect until and unless the annexation is approved at the election provided for in this section.

(e) An attempt at annexation under this section, whether successful or not, shall in no way reduce the bonding authority of the fire protection district, nor shall the failure of the attempt at annexation have any effect on the existing fire protection district.

(f) No area shall be annexed under this section if it is located within the service area of another fire protection district or a nonprofit fire protection corporation.

History. Acts 1991, No. 1028, § 2; 2005, No. 2145, § 55; 2007, No. 1049, § 77; 2009, No. 1480, § 95.

TITLE 16

PRACTICE, PROCEDURE, AND COURTS

SUBTITLE 2. COURTS AND COURT OFFICERS

CHAPTER.

10. GENERAL PROVISIONS.

SUBTITLE 2. COURTS AND COURT OFFICERS

CHAPTER 10

GENERAL PROVISIONS

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

16-10-118. Judicial officeholder as candidate for nonjudi-

cial office — Resignation — Warrants void.

16-10-118. Judicial officeholder as candidate for nonjudicial office — Resignation — Warrants void.

(a) Whenever the holder of a judicial office in the State of Arkansas becomes a candidate at any primary or general election for a nonjudicial office, he or she shall immediately resign his or her judicial office and thereafter shall be ineligible to hold that judicial office for the balance of the term for which he or she was elected or appointed.

(b) Any warrant issued to the holder of the judicial office after he or she shall become a candidate for a nonjudicial office shall be void.

(c) As used in this section, “judicial office” is defined to mean the office of district judge, circuit judge, Judge or Chief Judge of the Court of Appeals, and Associate Justice or Chief Justice of the Supreme Court.

History. Acts 1959, No. 5, §§ 1-3; A.S.A. 1947, §§ 22-137 — 22-139; Acts 1995, No. 549, § 2; 2003, No. 1185, § 43.

TITLE 19

PUBLIC FINANCE

CHAPTER.

5. REVENUE STABILIZATION LAW.

CHAPTER 5

REVENUE STABILIZATION LAW

SUBCHAPTER 12 — MISCELLANEOUS FUNDS CONTINUED

SECTION.

19-5-1247. County Voting System Grant Fund.

19-5-1259. Mandatory Publication Reimbursement Fund.

19-5-1247. County Voting System Grant Fund.

(a) There is established on the books of the Treasurer of State, the Auditor of State, and the Chief Fiscal Officer of the State a fund to be known as the “County Voting System Grant Fund”.

(b) The Secretary of State shall periodically remit to the Treasurer of State the fees the Secretary of State collects associated with the Uniform Commercial Code activity under §§ 4-9-525(a)(1), 4-9-525(a)(3), and 4-9-525(b)-(d), and the Treasurer of State shall deposit those funds into the County Voting System Grant Fund.

(c) The County Voting System Grant Fund shall be used by the Secretary of State to provide grants to counties to purchase voting system equipment, programming, and maintenance.

(d) A county that receives a grant from the County Voting System Grant Fund shall establish on the books of the county treasurer a fund to be known as the “voting system grant fund” into which grants from the Secretary of State shall be paid under this section.

(e) The County Voting System Grant Fund may be used by the Secretary of State to issue refunds and reimbursements of fees collected for the grant program described in § 7-5-301(d)(2).

History. Acts 2011, No. 1189, § 3; 2013, No. 1311, § 1;
2015, No. 1028, § 2.

19-5-1259. Mandatory Publication Reimbursement Fund.

(a) There is created on the books of the Treasurer of State, the Auditor of State, and the Chief Fiscal Officer of the State a miscellaneous fund to be known as the “Mandatory Publication Reimbursement Fund”.

(b) The fund shall consist of reimbursements to the Secretary of State for mandatory publication of petitions and measures under § 7-9-113.

History. Acts 2017, No. 982, § 2.

TITLE 21

PUBLIC OFFICERS AND EMPLOYEES

CHAPTER.

2. COMMISSION, OATH, AND BOND.
8. ETHICS AND CONFLICTS OF INTEREST.

CHAPTER 2

COMMISSION, OATH, AND BOND

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 21-2-101. Officers commissioned by Governor.
- 21-2-102. Commission fee and duplicate oath to be forwarded to Secretary of State.
- 21-2-103. Sending commission fees directly to Treasurer of State — Issuance of commission.
- 21-2-104. District, county, and township officers — Issuance of commissions — Collection of fees.
- 21-2-105. Administration of oaths generally.
- 21-2-106. Endorsement of oath on commission.
- 21-2-107. Bonds of state, county, and district officers generally.

SECTION.

- 21-2-108. Duration of bond.
- 21-2-109. Payment of premium on bonds.
- 21-2-110. Liability of surety generally.
- 21-2-111. Discharge of sureties on official bonds.
- 21-2-112. Remedy of surety against principal and cosureties.
- 21-2-113. Discrepancies in accounts — Effect on surety.
- 21-2-114. Bond required of people employed by public officials.
- 21-2-115. Persons in United States Armed Forces — Oath — Bond.

21-2-101. Officers commissioned by Governor.

Each Justice of the Supreme Court, judge of a circuit court, presiding judge of a county court, the Secretary of State, the Auditor of State, prosecuting attorney, sheriff, coroner, clerk of a circuit court, county treasurer, county surveyor, notary public, justice of the peace, judge of a district court, mayor of a city or town, and militia officer elected or appointed in this state shall be commissioned by the Governor.

History. Rev. Stat., ch. 27, § 1; C. & M. Dig., § 1428; Pope's Dig., § 1675; Acts 1955, No. 24, § 1; A.S.A. 1947, § 12-201.

21-2-102. Commission fee and duplicate oath to be forwarded to Secretary of State.

(a)(1) With the exception of judges elected at the nonpartisan judicial general election without a runoff, all civil and military state and county officers who are required by law to be commissioned by the Governor are required to forward the legal fee for their commissions to the Secretary of State within sixty (60) days after their election.

(2) All judges elected at the nonpartisan judicial general election without a runoff are required to forward the legal fee for their commissions to the Secretary of State within sixty (60) days after the November general election.

(3) Within fifteen (15) days after the commissions have been received, the officers shall forward their duplicate oaths to the Secretary of State to be recorded and filed in his or her office.

(b)(1) In case any officer, elected or appointed and commissioned by the Governor, shall fail or neglect to apply for or procure his or her commission from the office of the Secretary of State within the time specified in subsection (a) of this section or shall, after the commission has been obtained, fail or neglect to forward to the office of the Secretary of State his or her duplicate oath for recordation in that office, within the time specified, then the office to which that person was commissioned shall be deemed vacant.

(2) The Governor, on being satisfied from the official records of the office of the Secretary of State, by reason of any of the causes enumerated in this section, shall proceed to fill the vacancy in the manner provided by law.

History. Acts 1875 (Adj. Sess.), No. 21, §§ 1, 2, p. 22; C. & M. Dig., §§ 1430, 1431; Pope's Dig., §§ 1677, 1678; A.S.A. 1947, §§ 12-202, 12-206; Acts 2003, No. 1298, § 1.

21-2-103. Sending commission fees directly to Treasurer of State — Issuance of commission.

(a) Any officer entitled to a commission may send the fee for the commission to the Treasurer of State, who shall at once execute duplicate receipts for the fee.

(b)(1) The Treasurer of State shall present the receipts to the Auditor of State, who shall countersign them and charge the amount therein specified to the Treasurer of State.

(2) The Treasurer of State shall then file one (1) of the receipts with the Auditor of State and the other with the Secretary of State, and the Secretary of State shall immediately forward the commission to the officer.

History. Acts 1883, No. 50, § 3, p. 73; C. & M. Dig., § 1429; Pope's Dig., § 1676; A.S.A. 1947, § 12-205.

21-2-104. District, county, and township officers — Issuance of commissions — Collection of fees.

(a)(1) The Secretary of State is authorized, after each general election in this state, and as soon as the full returns of the election in any county are received by him or her, to issue and forward the commissions of all the newly elected district, county, and township officers required by law to be commissioned to the county or circuit clerks of the respective counties for delivery to the person entitled to them.

(2) The clerks shall collect the fees required to be paid for the commissions, before the delivery thereof, and return the fee, or the commissions when default is made, to the Secretary of State.

(3) The Secretary of State shall account for the fee to the State Treasury as directed in § 21-6-202.

(b) It shall be the duty of the county clerk, upon receipt of the commissions from the Secretary of State for the several officers of his or her county, to notify each elected officer of the receipt of the commission and to enter the commission in a well-bound book which shall be kept for that purpose and shall be ruled and divided into columns in the following order:

- (1) Name of officer;
- (2) Title of office;
- (3) Date of commission;
- (4) Date of qualification; and
- (5) Mailing address.

History. Acts 1875, No. 77, § 1, p. 167; 1881, No. 40, §§ 1, 2, p. 73; A.S.A. 1947, §§ 12-203, 12-204.

21-2-105. Administration of oaths generally.

(a)(1) The Governor shall take the oath of office before:

(A) A justice or judge of the:

- (i) Supreme Court;
- (ii) Court of Appeals;
- (iii) Circuit court; or
- (iv) District court;

(B) A federal justice or judge of the:

- (i) United States Supreme Court;

- (ii) United States Court of Appeals; or
- (iii) United States District Court;
- (C) The county clerk; or
- (D) The clerk of the circuit court.

(2) The justices of the Supreme Court, judges of the Court of Appeals, judges of the circuit courts, judges of the district court, Secretary of State, Treasurer of State, and Auditor of State shall take their oaths before:

- (A) The Governor;
 - (B) A justice or judge of the:
 - (i) Supreme Court;
 - (ii) Court of Appeals;
 - (iii) Circuit court, including any former circuit or chancery judge who served for at least four (4) years; or
 - (iv) District court, including any former municipal or district judge who served for at least four (4) years;
 - (C) A federal justice or judge of the:
 - (i) United States Supreme Court;
 - (ii) United States Court of Appeals; or
 - (iii) United States District Court;
 - (D) The clerk of the county court; or
 - (E) The clerk of the circuit court.
- (3) All other officers, both civil and military, shall take their oaths before:
- (A) The Secretary of State or his or her official designee;
 - (B) A justice or judge of the:
 - (i) Supreme Court;
 - (ii) Court of Appeals;
 - (iii) Circuit court, including any former circuit or chancery judge who served for at least four (4) years;
 - (iv) District court, including any former municipal or district judge who served for at least four (4) years; or
 - (v) County court;
 - (C) A federal justice or judge of the:
 - (i) United States Supreme Court;
 - (ii) United States Court of Appeals; or
 - (iii) United States District Court;
 - (D) The clerk of the county court;
 - (E) The clerk of the circuit court;
 - (F) A justice of the peace;
 - (G) A clerk of a city of the first class; or
 - (H) A recorder of a city of the second class or incorporated town.

(b) However, if the officer is serving in or with the United States Armed Forces, he or she may take the oath of office before any commissioned officer in active service of the United States Armed Forces with the rank of second lieutenant or higher in the United States Army, United States Air Force, United States Space Force, or United States Marine Corps, or ensign or higher in the United States Navy or United States Coast Guard.

(c) The oath shall not be rendered invalid by failure to recite a venue or to state the place of execution of the oath, nor is a special form of jurat of affidavit or any authentication thereof required, provided it appears on the instrument that the person taking the oath is a commissioned officer provided for in this section.

(d)(1) If necessary, a county or district official listed under subsection (a) of this section may act as a holdover officer and administer the oath of office to any incoming county or district official, including without limitation his or her successor.

- (2) Upon the completion of the oath:

- (A) The outgoing officer immediately vacates his or her position; and
- (B) The incoming officer assumes all the rights, privileges, and duties of his or her respective office.

History. Rev. Stat., ch. 106, § 1; Acts 1845, § 1, p. 61; C. No. 641, § 1; 2009, No. 633, § 19; 2011, No. 582, § 1; 2011, & M. Dig., § 8074; Pope's Dig., § 10403; Acts 1945, No. 3, No. 612, § 1; 2019, No. 194, § 1; 2021, No. 424, § 1; 2025, § 1; 1977, No. 531, § 1; A.S.A. 1947, § 12-207; Acts 1999, No. 456, § 2; 2025, No. 508, § 40.

21-2-106. Endorsement of oath on commission.

(a) It shall be the duty of every officer administering the oath of office to any officer of this state to endorse the oath on the commission of the officer.

(b) However, if the officer is serving in or with the United States Armed Forces at the time his or her oath is taken and the oath is taken before a commissioned officer in the manner provided in § 21-2-105, the oath may be attached to the commission of the officer whose oath is taken in lieu of being endorsed thereon.

History. Rev. Stat., ch. 106, § 4; C. & M. Dig., § 8075; Pope's Dig., § 10404; Acts 1945, No. 3, § 2; A.S.A. 1947, § 12-208.

21-2-107. Bonds of state, county, and district officers generally.

(a) The official bonds of all state, county, and district officers required by law to furnish official bonds shall be executed by those officials as principal and shall be executed by some surety company authorized to do business in Arkansas as surety.

(b)(1) The official bonds of all state officers covered by subsection (a) of this section shall be filed in the offices of the Secretary of State and the Auditor of State, with the original's being filed in the office of the Secretary of State and a true and correct copy thereof filed in the office of the Auditor of State.

(2) The official bonds of all county officers covered by subsection (a) of this section shall be filed in the office of the recorder in the county in which the officers are elected or appointed.

(3) The official bonds of all district officers covered by subsection (a) of this section shall be filed in the office of the recorder of the county in which the district officer resides.

(c) The recorders of the various counties whose duty it is to file the bonds under the provisions of this section, shall maintain a special record book and shall record therein each official bond filed as provided in this section.

(d) When the original of any bond provided for or covered by this section is lost or destroyed, the record of the bond provided for in this section shall be deemed the original, and suit may be instituted on the recorded bond.

(e) When any bond is required of any officer as described in subsection (a) of this section, then the Governor, county judge, mayor, or board of directors of the political entity affected may, in their discretion, make an order providing that the State Treasury or the treasury of a county, city, town, or district shall be drawn upon for the purpose of paying, and in such amount as may be necessary to pay, the expenses of premiums of surety bonds required by this section.

(f) This section is cumulative and supplemental to all existing statutes. It shall repeal, alter, or modify them only where in direct conflict therewith.

History. Acts 1937, No. 329, §§ 1-7, 9; Pope's Dig., §§ 10415-10421, 10423; Acts 1939, No. 89, § 1; A.S.A. 1947, §§ 12-212 — 12-219.

21-2-108. Duration of bond.

All official bonds shall be executed for a definite period not to exceed two (2) years.

History. Acts 1975, No. 331, § 3; A.S.A. 1947, § 12-240.

21-2-109. Payment of premium on bonds.

If state, county, or city officials, including officials of incorporated towns, required to give bond for the faithful performance of their duties and the paying over of funds which may come into their hands shall elect to make a corporate surety bond in a guaranty or bonding company authorized to do business within the state, then the state, county, city, or incorporated town, as the case may be, shall pay the premium on the bonds.

History. Acts 1927, No. 85, § 1; Pope's Dig., § 10439; A.S.A. 1947, § 12-220.

21-2-110. Liability of surety generally.

The surety on an official's bond shall be liable for losses or other liabilities covered by the bond which occur within the term to which the bond applies, regardless of when the loss or liability is discovered.

History. Acts 1975, No. 331, § 2; A.S.A. 1947, § 12-239.

21-2-111. Discharge of sureties on official bonds.

(a)(1) Any person bound as surety in any bond given by an officer for the faithful performance of the duties of his or her office, whether the office is held under an election or an appointment by the laws of the state or by any ordinance or resolution of any municipal corporation in this state, or by appointment by a board of any municipal corporation in this state, may be discharged from all future liability on the official bond upon his or her petition in writing adduced to the court authorized by law to take and approve the official bond.

(2) In the event the bond is not required to be approved by a particular court, then his or her petition in writing shall be adduced to the circuit court of the county in which the bond is given and required to be filed.

(b) The petition shall set forth the facts upon which the application for a discharge is founded and shall be verified by the affidavit of the petitioner.

(c)(1) A notice in writing of the intended application, together with a copy of the petition, shall be personally served on the principal in the bond at least twenty (20) days before the making of the application.

(2) If the principal in the bond has been absent from the state for the period of six (6) months, the publication of notice and petition, for three (3) successive weeks, in some newspaper printed in this state shall be a sufficient service of notice.

(d)(1) The court to whom the petition is addressed shall hear the application and may, on examination thereof, in its discretion, make an order requiring the principal in the bond to give new bond and security for the performance of his or her official duties.

(2) If new bond and security is given, it shall be taken, approved, filed, and recorded in the same manner that the official bond of the officer is required by law to be taken, approved, and recorded.

(3) When a new bond is taken, approved, and filed, it shall immediately operate as a discharge of all the securities on the former bond from all liability arising from any subsequent misconduct or default of the principal therein. The securities on the former bond shall thenceforth be liable on that bond only for breaches thereof which happened prior to the taking, approving, and filing of the new bond.

History. Rev. Stat., ch. 137, §§ 10-16; Acts 1899, No. 14, § 1, p. 13; C. & M. Dig., §§ 8297-8303; Pope's Dig., §§ 10874-10880; A.S.A. 1947, §§ 12-228 — 12-234.

21-2-112. Remedy of surety against principal and cosureties.

Any person bound as a security in any bond given by an officer to secure the faithful performance of his or her duties, who shall pay any money he or she shall have been liable to pay by reason of the bond, shall have the same right and remedy against the principal and cosureties as are provided in this section and § 21-2-111 against principal and security in bonds, bills, or notes for the payment of money or the delivery of property.

History. Rev. Stat., ch. 137, § 17; C. & M. Dig., § 8304; Pope's Dig., § 10881; A.S.A. 1947, § 12-237.

21-2-113. Discrepancies in accounts — Effect on surety.

(a) If any discrepancies are found in the accounts of an officer, the Auditor of State and the county clerk shall immediately notify the bonding company, and the penalties as prescribed in §§ 26-39-215, 26-39-501, and 26-39-502 shall not apply until sixty (60) days have expired from the official notification.

(b)(1)(A) If the accounts are found to be correct, then, after final settlement has been made, the county clerk shall issue a quietus to the officer and shall forward a copy to the Auditor of State.

(B) Issuance of a quietus shall automatically release bondsmen or sureties of the official from any and all liability on the bond in force for the term or part thereof covered by the final settlement.

(2) However, if any discrepancy is found in the account of the county clerk or circuit clerk, the county judge shall immediately notify the bonding company.

History. Acts 1927, No. 85, § 4; Pope's Dig., § 10443; A.S.A. 1947, § 12-236.

21-2-114. Bond required of people employed by public officials.

Each public official or employee of this state, or political subdivision thereof, who has appointed deputies or employed individuals who handle any funds for the performance of their duties shall bond the deputies and employees in those amounts which he or she deems necessary to indemnify the state or political subdivision for any loss or mishandling of funds by the deputies or employees.

History. Acts 1975, No. 331, § 1; 1975 (Extended Sess., 1976), No. 1186, § 1; A.S.A. 1947, § 12-238; reen. Acts 1987, No. 1023, § 1.

21-2-115. Persons in United States Armed Forces — Oath — Bond.

(a)(1) Any person in the United States Armed Forces who has been granted leave of absence under §§ 21-4-301 — 21-4-304 and 21-4-306 — 21-4-313 may take and subscribe the official oath of office required by the Arkansas Constitution and statutes of this state at any time after his or her election and before he or she enters upon the duties of his or her office.

(2) The oath may be administered by any officer of this state or of any other state or of the United States or of any foreign country who may administer oaths.

(b) The person taking and subscribing the official oath of office under the terms of this section must cause the oath of office, together with the attestation of the oath or office, to be filed with the Secretary of State before entering upon the duties of his or her office.

(c)(1) Any person enumerated in subsection (a) of this section who is required by law to enter into a bond for the faithful performance of the duties of the office may execute and file the bond at any time within thirty (30) days after he or she shall have taken the official oath of office.

(2) If the bond is not executed and filed within that time, the office shall be deemed and considered vacant.

History. Acts 1945, No. 5, §§ 1-3; A.S.A. 1947, §§ 12-209 — 12-211; Acts 2005, No. 1962, § 95.

CHAPTER 8

ETHICS AND CONFLICTS OF INTEREST

SUBCHAPTER.

1. GENERAL PROVISIONS.
2. INCOME DISCLOSURE BY SALARIED EMPLOYEES.
3. CODE OF ETHICS.
4. DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — GENERAL PROVISIONS.
5. DISCLOSURE BY LOBBYISTS AND STATE AND LOCAL OFFICIALS — INVESTIGATION BY ATTORNEY GENERAL. [REPEALED.].
6. DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — LOBBYISTS.
7. DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — STATEMENT OF FINANCIAL INTEREST.
8. DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — CONFLICT OF INTEREST.
9. DISCLOSURE BY LEGISLATORS — SALES TO THE STATE.
10. STATE BOARDS, COMMISSIONS, AND ENTITIES RECEIVING STATE FUNDS.
11. DISCLOSURE BY REPRESENTATIVES OF A HOSTILE FOREIGN PRINCIPAL.

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

- 21-8-101. Nepotism.
- 21-8-102. Restrictions on employment of former state officials and former state employees — Definitions.
- 21-8-103. Elected state officials prohibited from registering as lobbyists — Definition.

SECTION.

- 21-8-104. Tobacco prevention or reduction advertising prohibited for elected officials and their immediate families.

21-8-101. Nepotism.

(a) A person who is related within the second degree, by consanguinity or affinity, to a member or employee of a state board or commission shall not be eligible for appointment as a member of the board.

(b) A person who is related within the second degree, by consanguinity or affinity, to a member of a state board or commission shall not be eligible for employment by the board or commission.

(c) This section shall apply only to persons hired or appointed after July 28, 1995.

History. Acts 1995, No. 1123, § 3.

21-8-102. Restrictions on employment of former state officials and former state employees — Definitions.

(a) As used in this section:

(1) “State employee” means an individual employed in the office of:

- (A) The Governor;
- (B) The Lieutenant Governor;
- (C) The Attorney General;
- (D) The Secretary of State;
- (E) The Auditor of State;
- (F) The Treasurer of State;
- (G) The Commissioner of State Lands;
- (H) A justice of the Supreme Court;
- (I) A judge of the Court of Appeals;
- (J) A judge of a circuit court; or
- (K) A judge of a district court; and

(2) “State official” means:

- (A) The Governor;
- (B) The Lieutenant Governor;
- (C) The Attorney General;

- (D) The Secretary of State;
- (E) The Auditor of State;
- (F) The Treasurer of State;
- (G) The Commissioner of State Lands;
- (H) A justice of the Supreme Court;
- (I) A judge of the Court of Appeals;
- (J) A judge of a circuit court;
- (K) A judge of a district court;
- (L) An executive head of a state agency;
- (M) The chief deputy of an executive head of a state agency; and
- (N) A member of the Arkansas Public Service Commission.

(b) A former state official or former state employee shall not knowingly act as a principal or agent for anyone other than the state in connection with any of the following if he or she participated personally and substantially through decision, approval, disapproval, recommendation, rendering of advice, investigation, or otherwise while serving in that capacity and the state is a party or has a direct or substantial interest:

- (1) A judicial, administrative, or other proceeding, application, request for a ruling, or other determination;
- (2) A contract;
- (3) A claim; or
- (4) A charge or controversy.

(c) A former state official or former state employee shall not knowingly act as a principal or agent for anyone other than the state within one (1) year after cessation of his or her employment with the state agency in connection with any of the following if the matters were within the former state official's or former state employee's official responsibility and the state is a party or has a direct or substantial interest:

- (1) A judicial, administrative, or other proceeding, application, request for a ruling, or other determination;
- (2) A contract;
- (3) A claim; or
- (4) A charge or controversy.

(d) A former state official or former state employee who knowingly violates this section shall be guilty of a Class A misdemeanor.

History. Acts 2011, No. 1200, § 1; 2013, No. 486, § 2.

21-8-103. Elected state officials prohibited from registering as lobbyists — Definition.

(a) A person serving as an elected state official in any jurisdiction is prohibited from registering as a lobbyist in Arkansas under § 21-8-601 et seq. or similarly in any other jurisdiction while the person is serving as an elected state official.

(b) As used in this section, “elected state official” means a person holding an elective office of state government as a constitutional officer or as a member of the General Assembly and includes persons during the time period between the date that he or she is elected and the date he or she takes office.

History. Acts 2019, No. 342, § 1.

21-8-104. Tobacco prevention or reduction advertising prohibited for elected officials and their immediate families.

An advertising or advertisement targeting the prevention or reduction of tobacco use shall not include the name, voice, or likeness of any elected official or his or her immediate family.

History. Acts 2023, No. 282, § 7.

SUBCHAPTER 2 — INCOME DISCLOSURE BY SALARIED EMPLOYEES

SECTION.

21-8-201. Definitions.

21-8-202. Penalty.

SECTION.

21-8-203. Disclosure of income required.

21-8-204. Filing of income disclosure statement.

21-8-201. Definitions.

For the purposes of this subchapter:

(1) “Public agency” shall include:

(A) The agency with which a state employee is employed, a state board, commission, institution, office, or agency;

(B) Any city, county, or school district, or any agency, division, or instrumentality thereof, including those agencies, divisions, or instrumentalities which are funded in part with funds provided by state appropriations; or

(C) Any area or regional program in this state which derives financial support in whole or in part from state funds or from any nonprofit corporation, foundation, or organization; and

(2)(A) “Regular salary basis” means employment in a full-time position for which a maximum regular salary is established by law.

(B) “Regular salary basis” shall also include:

(i) In the case of the institutions of higher education, any person employed on a contract basis for nine (9) months or more of services where the maximum regular salary is established by law; and

(ii) Regular salaries paid from funds deposited in the State Treasury or from bank funds belonging to the state agency, or from federal funds, trust funds, grant funds, donated funds, or other funds of whatever nature administered by the state agency.

History. Acts 1977, No. 849, § 2; A.S.A. 1947, § 12-1629.

21-8-202. Penalty.

(a) Any employee of the State of Arkansas, including employees of the state-supported institutions of higher education, who fails to file or who shall falsely file any statement as required under the provisions of this subchapter shall be guilty of a violation.

(b) Upon conviction, he or she shall be fined in an amount not less than fifty dollars (\$50.00) nor more than five hundred dollars (\$500).

History. Acts 1977, No. 849, § 5; A.S.A. 1947, § 12-1632; Acts 2005, No. 1994, § 141.

21-8-203. Disclosure of income required.

The General Assembly determines that it is essential to the efficient operation of government, and to minimize the opportunities for conflicts of interest, that all state employees who are employed on a regular salary basis shall be required to disclose each source of income in excess of five hundred dollars (\$500) earned during any calendar year from sources other than their regular salary from employment or from professional or consultant services rendered for any public agency.

History. Acts 1977, No. 849, § 1; A.S.A. 1947, § 12-1628.

21-8-204. Filing of income disclosure statement.

(a) On or before January 31 following the close of each calendar year, all state employees who are employed by a state office, agency, department, board, commission, or institution of higher education in this state on a regular salary basis shall file a statement under oath reflecting all

income in excess of five hundred dollars (\$500) received by them during the preceding calendar year as wages or salary or as fees or payments for professional or consultant services rendered to any public agency of this state, other than the salary said person receives on a regular salary basis.

(b)(1) All state employees who are employed by any state office, agency, department, board, or commission, other than employees of institutions of higher education, shall file the statement required herein with the Secretary of State.

(2)(A) All employees of institutions of higher education in the state shall file the statement with the president of the institution of higher education by which the employee is employed.

(B) All such statements filed with the presidents of the various institutions of higher education shall be public records and shall be open to public inspection during reasonable business hours.

History. Acts 1977, No. 849, §§ 3, 4; A.S.A. 1947, §§ 12-1630, 12-1631.

SUBCHAPTER 3 — CODE OF ETHICS

SECTION.

- 21-8-301. Definitions.
- 21-8-302. Penalties.
- 21-8-303. Enforcement.
- 21-8-304. Prohibited activities.

SECTION.

- 21-8-305. Person convicted of public trust crime ineligible as candidate for office or to hold office.
- 21-8-306 — 21-8-309. [Repealed.]
- 21-8-310. Gifts from lobbyists.

21-8-301. Definitions.

As used in this subchapter:

(1) “Constitutional office” means the offices of Governor, Lieutenant Governor, Auditor of State, Treasurer of State, Secretary of State, Commissioner of State Lands, the Attorney General, the General Assembly, Justice of the Supreme Court, Judge of the Court of Appeals, circuit judge, and district judge;

(2) “Governmental body” means an office, department, commission, council, board, committee, legislative body, agency, or other establishment of the executive, judicial, or legislative branch of the state, municipality, county, school district, improvement district, or any political district or subdivision thereof;

(3)(A) “Public appointee” means an individual who is appointed to a governmental body.

(B) “Public appointee” does not include an individual appointed to an elective office;

(4)(A) “Public employee” means an individual who is employed by a governmental body or who is appointed to serve a governmental body.

(B) “Public employee” does not include a public official or a public appointee;

(5)(A) “Public official” means a person holding an elective office of any governmental body, whether elected or appointed to the office.

(B) “Public official” includes without limitation:

(i) A person holding an elective office of any governmental body, whether elected or appointed to the office, during the time period between the date he or she is elected or appointed and the date he or she takes office; and

(ii) A member of a school district board of directors;

(6) “Public servant” means a:

- (A) Public appointee;
- (B) Public employee; or
- (C) Public official; and

(7) “Public trust crime” means a crime prohibited under Arkansas Constitution, Article 5, § 9.

History. Acts 1979, No. 570, § 1; A.S.A. 1947, § 12-3001; Acts 2005, No. 1284, § 12; 2011, No. 721, § 14; 2017, No. 449, § 1; 2019, No. 894, § 1.

21-8-302. Penalties.

Any person who knowingly or willfully violates any provision of this subchapter shall be guilty of a Class B misdemeanor.

History. Acts 1979, No. 570, § 7; A.S.A. 1947, § 12-3007; Acts 2005, No. 1284, § 13.

21-8-303. Enforcement.

(a)(1) It shall be the duties and responsibilities of the prosecuting attorneys of this state to supervise compliance with this subchapter and to prosecute persons who violate the provisions of this subchapter.

(2)(A) However, the Arkansas Ethics Commission shall also have authority to investigate violations of this subchapter and to render findings and disciplinary action.

(B) To be considered valid, a complaint alleging a violation of § 21-8-305 shall include a copy of a court record reflecting that the person has pleaded guilty or nolo contendere to or has been found guilty of a public trust crime.

(b)(1) In the event the prosecuting attorney shall fail or refuse to enforce the provisions of this subchapter when the facts are known by him or her, or called to his or her attention, any citizen of this state may bring action in circuit court to force compliance with this subchapter.

(2) The citizen shall be entitled to receive reimbursements for expenses and reasonable attorney's fees upon the successful outcome of such litigation.

History. Acts 1979, No. 570, § 7; A.S.A. 1947, § 12-3007; Acts 1999, No. 553, § 30; 2023, No. 307, § 8.

21-8-304. Prohibited activities.

(a) No public servant shall use or attempt to use his or her official position to secure special privileges or exemptions for himself or herself or his or her spouse, child, parents, or other persons standing in the first degree of relationship, or for those with whom he or she has a substantial financial relationship that are not available to others except as may be otherwise provided by law.

(b) No public servant shall accept employment or engage in any public or professional activity while serving as a public official which he or she might reasonably expect would require or induce him or her to disclose any information acquired by him or her by reason of his or her official position that is declared by law or rule to be confidential.

(c) No public servant shall disclose any such information gained by reason of his or her position, nor shall he or she otherwise use such information for his or her personal gain or benefit.

(d)(1) No public employee shall provide advance notice of an inspection to be conducted by a governmental body to any person, business, or entity subject to an inspection when the purpose of the disclosure is to improperly influence the outcome of the inspection.

(2) A public employee violates subdivision (d)(1) of this section when he or she knowingly communicates information, directly or indirectly, regarding the timing, scope, or details of an upcoming inspection with the intent to:

- (A) Alter or manipulate conditions to evade detection of noncompliance or violations;
- (B) Provide an unfair advantage to the inspected party; or
- (C) Otherwise interfere with the integrity or impartiality of the inspection process.

(3) A public employee found in violation of subdivision (d)(1) of this section shall be subject to disciplinary action, including without limitation suspension, termination, and any penalties provided by law.

(4) Subdivision (d)(1) of this section does not prohibit:

- (A) Routine scheduling disclosures required by law;
- (B) Public safety notifications; or
- (C) Official communications necessary for the proper administration of inspections.

History. Acts 1979, No. 570, §§ 3, 4; A.S.A. 1947, 221, § 16; 2011, No. 721, § 15; 2019, No. 315, § 2329; §§ 12-3003, 12-3004; Acts 2001, No. 1839, § 22; 2007, No. 2025, No. 323, § 1.

21-8-305. Person convicted of public trust crime ineligible as candidate for office or to hold office.

(a) If a person has pleaded guilty or nolo contendere to or has been found guilty of a public trust crime, he or she shall not:

(1) File as a candidate for:

(A) A constitutional office;

(B) A county elected office; or

(C) An elected office in a municipality, city, township, or other political subdivision of the state;

(2) Run as a candidate for:

(A) A constitutional office;

(B) A county elected office; or

(C) An elected office in a municipality, city, township, or other political subdivision of the state; or

(3) Hold:

(A) A constitutional office;

(B) A county elected office; or

(C) An elected office in a municipality, city, township, or other political subdivision of the state.

(b)(1) The sealing of any public trust crime or any similar offense under the Comprehensive Criminal Record Sealing Act of 2013, § 16-90-1401 et seq., or any sealing or expungement act in any jurisdiction shall not restore a privilege, eligibility, or qualification to file as a candidate for, run as a candidate for, or hold an elected office under this section.

(2) A person who has pleaded guilty or nolo contendere to or has been found guilty of a public trust crime that was sealed or expunged as described in subdivision (b)(1) of this section:

(A) Upon inquiry, shall disclose the fact and nature of the crime which the person pleaded guilty or nolo contendere to or was found guilty of; and

(B) Shall not publicly state or affirm under oath that the:

(i) Conduct underlying the plea or finding did not occur;

(ii) Record of the underlying plea or finding does not exist; or

(iii) Person has not been convicted of a criminal offense.

(3) If a person has pleaded guilty or nolo contendere to or has been found guilty of a public trust crime or similar offense that was sealed under the Comprehensive Criminal Record Sealing Act of 2013, § 16-90-1401 et seq., or any sealing or expungement act in any jurisdiction, evidence of the plea, finding, and conduct underlying the plea or finding shall be admissible in a court of competent jurisdiction for an action concerning the person's filing for, candidacy for, or holding of an elected office.

History. Acts 2019, No. 894, § 2; 2021, No. 540, § 1.

21-8-306 — 21-8-309. [Repealed.]

Publisher's Notes. Former §§ 21-8-305 — 21-8-309, concerning filing required and exceptions, time and place of filing, public records, contents, and notification of failure to file of financial disclosure statements, were repealed by Acts 1999, No. 553, §§ 31-35. The sections were derived from the following sources:

21-8-305. Acts 1979, No. 570, § 2; A.S.A. 1947, § 12-3002; Acts 1989, No. 719, § 5; 1991, No. 326, § 2.

21-8-306. Acts 1991, No. 326, § 2.

21-8-307. Acts 1991, No. 326, § 2.

21-8-308. Acts 1991, No. 326, § 2.

21-8-309. Acts 1991, No. 326, § 2.

21-8-310. Gifts from lobbyists.

Persons elected or appointed to the following offices shall not knowingly or willfully solicit or accept a gift in violation of Arkansas Constitution, Article 19, § 30, from a lobbyist, a person acting on behalf of a lobbyist, or a person employing or contracting with a lobbyist:

- (1) Governor;
- (2) Lieutenant Governor;
- (3) Secretary of State;
- (4) Treasurer of State;
- (5) Auditor of State;
- (6) Attorney General;
- (7) Commissioner of State Lands;
- (8) Member of the General Assembly;
- (9) Chief Justice of the Supreme Court;
- (10) Justice of the Supreme Court;
- (11) Chief Judge of the Court of Appeals;
- (12) Judge of the Court of Appeals;
- (13) Circuit court judge;
- (14) District court judge;
- (15) Prosecuting attorney; and

(16) Member of the independent citizens commission for the purpose of setting salaries of elected constitutional officers of the executive department, members of the General Assembly, justices, and judges under Arkansas Constitution, Article 19, § 31.

History. Acts 2015, No. 1280, § 12.

SUBCHAPTER 4 — DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — GENERAL PROVISIONS

SECTION.

- 21-8-401. Title.
 21-8-402. Definitions.
 21-8-403. Penalty.
 21-8-404. Investigation generally.

SECTION.

- 21-8-405. Provisions supplemental.
 21-8-406. Tickets to charitable events.
 21-8-407. Gifts of art.

21-8-401. Title.

This subchapter, § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq. may be referred to and cited as the “Disclosure Act for Lobbyists and State and Local Officials”.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 1; Acts 2007, No. 827, § 175.

21-8-402. Definitions.

As used in this subchapter and § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq., unless the context otherwise requires:

- (1)(A) “Administrative action” means any decision on, or proposal, consideration, or making of any rule, ratemaking proceeding, or policy action by a governmental body.
- (B) “Administrative action” does not include ministerial action;
- (2) “Business” means any corporation, partnership, sole proprietorship, firm, enterprise, franchise, association, organization, self-employed individual, receivership, trust, or any legal entity through which business is conducted;
- (3) “County government” means any office, department, commission, council, board, bureau, committee, legislative body, agency, or other establishment of a county;
- (4) “Family” means an individual’s spouse, children of that individual or his or her spouse, or brothers, sisters, or parents of the individual or his or her spouse;

(5)(A) “Gift” means any payment, entertainment, advance, services, or anything of value, unless consideration of equal or greater value has been given therefor.

(B) The term “gift” does not include:

(i)(a) Informational material such as books, reports, pamphlets, calendars, or periodicals informing a public servant regarding his or her official duties.

(b) Payments for travel or reimbursement for any expenses are not informational material;

(ii) The giving or receiving of food, lodging, or travel which bears a relationship to the public servant's office and when appearing in an official capacity;

(iii) Gifts which are not used and which, within thirty (30) days after receipt, are returned to the donor;

(iv) Gifts from an individual's spouse, child, parent, grandparent, grandchild, brother, sister, parent-in-law, brother-in-law, sister-in-law, nephew, niece, aunt, uncle, or first cousin, or the spouse of any of these persons, unless the person is acting as an agent or intermediary for any person not covered by this subdivision (5)(B)(iv);

(v) Campaign contributions;

(vi) Any devise or inheritance;

(vii)(a) Anything with a value of one hundred dollars (\$100) or less.

(b) The value of an item shall be considered to be less than one hundred dollars (\$100) if the public servant reimburses the person from whom the item was received any amount over one hundred dollars (\$100) and the reimbursement occurs within ten (10) days from the date the item was received;

(viii) Wedding presents and engagement gifts;

(ix) A monetary or other award presented to an employee of a public school district, the Arkansas School for the Deaf and Blind, the Arkansas School for Mathematics, Sciences, and the Arts, a university, a college, a technical college, a technical institute, a comprehensive life-long learning center, or a community college in recognition of the employee's contribution to education;

(x) Tickets to charitable fund-raising events held within this state by a nonprofit organization which is exempt from taxation under 26 U.S.C. § 501(c)(3);

(xi) A personalized award, plaque, or trophy with a value of one hundred and fifty dollars (\$150) or less;

(xii) An item which appointed or elected members of a specific governmental body purchase with their own personal funds and present to a fellow member of that governmental body in recognition of public service;

(xiii) Food or beverages provided at a conference-scheduled event that is part of the program of the conference;

(xiv) Food or beverages provided in return for participation in a bona fide panel, seminar, or speaking engagement at which the audience is a civic, social, or cultural organization or group;

(xv)(a) A monetary or other award publicly presented to an employee of state government in recognition of his or her contributions to the community and State of Arkansas when the presentation is made by the employee's supervisors or peers, individually or through a nonprofit organization which is exempt from taxation under 26 U.S.C. § 501(c)(3), and the employee's receipt of the award would not result in or create the appearance of the employee using his or her position for private gain, giving preferential treatment to any person, or losing independence or impartiality.

(b) The exception in subdivision (5)(B)(xv)(a) of this section shall not apply to an award presented to an employee of state government by a person having economic interests which may be affected by the performance or nonperformance of the employee's duties or responsibilities; and

(xvi) Anything of value provided by a political party under § 7-1-101 or § 7-7-205 when serving as the host of the following events to all attendees as part of attendance at the event:

(a) The official swearing-in, inaugural, and recognition events of constitutional officers and members of the General Assembly; and

(b) An official event of a recognized political party so long as all members of either house of the General Assembly affiliated with the recognized political party are invited to the official event;

(6) “Governmental body” means any office, department, commission, council, board, committee, legislative body, agency, or other establishment of the executive, judicial, or legislative branch of the state, municipality, county, school district, improvement district, or any political district or subdivision thereof;

(7)(A) “Income” or “compensation” means any money or anything of value received or to be received as a claim for future services, whether in the form of a retainer, fee, salary, expense, allowance, forbearance, forgiveness, interest, dividend, royalty, rent, or any other form of recompense or any combination thereof. It includes a payment made under obligation for services or other value received.

(B) The term “compensation” does not include anything of value presented to an employee of a public school district, the Arkansas School for the Deaf and Blind, the Arkansas School for Mathematics, Sciences, and the Arts, a university, a college, a technical college, a technical institute, a comprehensive life-long learning center, or a community college in recognition of the employee’s contribution to education;

(8) “Legislative action” means introduction, sponsorship, consideration, debate, amendment, passage, defeat, approval, veto, or any other official action or nonaction on any bill, ordinance, law, resolution, amendment, nomination, appointment, report, or other matter pending or proposed before a committee or house of the General Assembly, a quorum court, or a city council or board of directors of a municipality;

(9) “Legislator” means any person who is a member of:

(A) The General Assembly;

(B) A quorum court of any county;

(C) The city council or board of directors of any municipality; or

(D) A member of a school district board of directors;

(10) “Lobbying” means communicating directly or soliciting others to communicate with any public servant with the purpose of influencing legislative action or administrative action;

(11) “Lobbyist” means a person who:

(A) Receives income or reimbursement in a combined amount of four hundred dollars (\$400) or more in a calendar quarter for lobbying one (1) or more governmental bodies;

(B) Expends four hundred dollars (\$400) or more in a calendar quarter for lobbying one (1) or more governmental bodies, excluding the cost of personal travel, lodging, meals, or dues; or

(C) Expends four hundred dollars (\$400) or more in a calendar quarter, including postage, for the express purpose of soliciting others to communicate with any public servant to influence any legislative action or administrative action of one (1) or more governmental bodies unless the communication has been filed with the Secretary of State or the communication has been published in the news media. If the communication is filed with the Secretary of State, the filing shall include the approximate number of recipients;

(12) “Municipal government” means any office, department, commission, council, board, bureau, committee, legislative body, agency, or other establishment of a municipality;

(13) “Official capacity” means activities which:

(A) Arise solely because of the position held by the public servant;

(B) Would be subject to expense reimbursement by the agency with which the public servant is associated; and

(C) Involve matters which fall within the official responsibility of the public servant;

(14) “Person” means a business, individual, corporation, union, association, firm, partnership, committee, club, or other organization or group of persons;

(15)(A) “Public appointee” means an individual who is appointed to a governmental body.

(B) “Public appointee” shall not include an individual appointed to an elective office;

(16)(A) “Public employee” means an individual who is employed by a governmental body or who is appointed to serve a governmental body.

(B) “Public employee” shall not include public officials or public appointees;

(17)(A) “Public official” means a legislator or any other person holding an elective office of any governmental body, whether elected or appointed to the office, and shall include such persons during the time period between the date they were elected and the date they took office.

(B) “Public official” includes without limitation a member of a school district board of directors;

(18) “Public servant” means all public officials, public employees, and public appointees;

(19) “Registered lobbyist” means a lobbyist registered pursuant to the provisions of this subchapter and § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq.;

(20) “Special event” means a planned activity to which a specific governmental body or identifiable group of public servants is invited; and

(21) “State government” means any office, department, commission, council, board, bureau, committee, legislative body, agency, or other establishment of the State of Arkansas.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, §§ 176, 177; 2017, No. 312, § 2; 2017, No. 449, §§ 2, 3; § 1; 1999, No. 553, §§ 36, 37; 2001, No. 239, § 1; 2001, No. 2019, No. 315, § 2330; 2025, No. 796, § 16, 17. 1192, §§ 1, 2; 2001, No. 1839, §§ 23-26; 2007, No. 827,

21-8-403. Penalty.

(a) Upon conviction, any person who violates any provision of this subchapter, § 21-8-601 et seq., § 21-8-701 et seq., or § 21-8-801 et seq. is guilty of a Class A misdemeanor.

(b) The culpable mental state required shall be a purposeful violation.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 1; 2007, No. 827, § 178.

21-8-404. Investigation generally.

The prosecuting attorney of the district where an alleged violation occurred shall have the authority to investigate the alleged violations of this chapter.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 1.

21-8-405. Provisions supplemental.

This subchapter, § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq. are supplemental to any other law pertaining to ethics or conflicts of interest and do not repeal any other law except for a law specifically repealed by this subchapter, § 21-8-601 et seq., § 21-8-701 et seq., or § 21-8-801 et seq.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 1; 2007, No. 827, § 179.

21-8-406. Tickets to charitable events.

For the purposes of this subchapter, § 21-8-601 et seq., § 21-8-701 et seq., and § 21-8-801 et seq., the value of a ticket to a charitable event shall not include the tax deductible portion of the ticket.

History. Acts 1997, No. 117, § 1.

21-8-407. Gifts of art.

Any work of art contracted for prior to January 1, 1998, for public service recognition for members of the General Assembly shall not be a gift under § 21-8-402 nor shall it be deemed an unlawful gift under any other statute or rule.

History. Acts 2001, No. 1839, § 33; 2019, No. 315, § 2331.

SUBCHAPTER 5 — DISCLOSURE BY LOBBYISTS AND STATE AND LOCAL OFFICIALS — INVESTIGATION BY ATTORNEY GENERAL

SECTION.

21-8-501 — 21-8-503. [Repealed.]

21-8-501 — 21-8-503. [Repealed.]

Publisher's Notes. This subchapter, concerning disclosure by lobbyists and state and local officials and investigation by the attorney general, was repealed by Initiated Measure 1990, No. 1, § 7. The subchapter was derived from:

21-8-501. Init. Meas. 1988, No. 1, § 1.
21-8-502. Init. Meas. 1988, No. 1, § 1.
21-8-503. Init. Meas. 1988, No. 1, § 1.
For present law, see §§ 7-6-217 and 7-6-218.

SUBCHAPTER 6 — DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — LOBBYISTS

SECTION.

21-8-601. Registration required — Exceptions — Termination.
21-8-602. Other filings required.
21-8-603. Activity reports — Inspection.

SECTION.

21-8-604. Activity reports — Required contents.
21-8-605. Records.
21-8-606. Duties of public officials.
21-8-607. Prohibited acts.

21-8-601. Registration required — Exceptions — Termination.

(a)(1) A lobbyist shall register within five (5) days after beginning lobbying. Such registration shall be on forms provided by the Secretary of State containing the following information:

- (A) The name, address, and telephone number of the lobbyist;
- (B) The calendar year for which the lobbyist is registering;
- (C) The types of public servants being lobbied;
- (D) The name, address, and telephone number of the lobbyist's client or employer;
- (E) A description of the nature of the lobbyist's client or employer; and
- (F) Certification by the lobbyist that the information contained on the lobbyist registration form is true and correct.

(2)(A) Except as provided in subdivision (a)(2)(B) of this section, if there is a change of information during the registration period, a lobbyist shall file an amended registration form within ten (10) days of the change.

(B) A lobbyist registered to lobby members of the General Assembly shall file an amended registration form within three (3) business days of a change of information that occurs during a regular or extraordinary session of the General Assembly.

(3) A lobbyist shall not be required to register if he or she engages in no lobbying other than the following activities:

(A) The publishing or broadcasting, by news media executives or their employees or agents, in the ordinary course of business, of news items, editorials, or other comments or paid advertisements which directly or indirectly urge legislative action or administrative action;

(B) Engaging in lobbying exclusively on behalf of an Arkansas church which qualifies as a tax-exempt organization under 26 U.S.C. § 501(c)(3) when lobbying solely for the purpose of protecting the rights of members or adherents to practice the religious doctrines of the church;

(C)(i) Action in a person's official capacity as a public servant.

(ii) However, a public servant shall be required to register as a lobbyist if he or she:

(a) Receives income from a nongovernmental person in excess of four hundred dollars (\$400) in a quarter for lobbying; or

(b) Expends or is reimbursed in excess of four hundred dollars (\$400), regardless of the source, in a quarter for lobbying, excluding the cost of informational material and personal travel, lodging, meals, and dues;

(D) Drafting legislation;
(E) Appearing in:
(i) A judicial proceeding;
(ii) A proceeding or hearing if the appearance is a matter of public record; or
(iii) Any hearing or appeal proceeding conducted pursuant to the Arkansas Administrative Procedure Act, § 25-15-201 et seq.;

(F) Assisting an executive agency, at the written request of the agency, in drafting administrative rules or in publicizing or assisting in the implementation of final administrative actions;

(G) Testifying as an individual at a public hearing in support of or in opposition to legislation or administrative action, testifying on behalf of a corporation, partnership, association, or other organization with which the person is regularly associated as an employee, officer, member, or partner, or testifying at the request of a legislative committee; or

(H) Actions by contractors or employees of contractors while engaged in selling to a governmental body by demonstrating or describing commodities or services or inquiring as to specifications or terms and conditions of a particular purchase unless such contractor or its employees expend in excess of four hundred dollars (\$400) in a calendar quarter for food, lodging, travel, or gifts to benefit public servants who purchase commodities or services on behalf of a governmental body.

(4) A person whose only act of lobbying is to compensate or reimburse a registered lobbyist in the person's behalf shall not be required to register as a lobbyist.

(b) Upon the termination of a registered lobbyist's employment or designation as a lobbyist, the termination shall be conveyed by the registered lobbyist in writing to the public official with whom the lobbyist is registered. The written notice of termination shall:

(1) State the registered lobbyist's name;

(2) State the date the registered lobbyist's employment is terminated or his or her designation as a lobbyist terminated; and

(3) Report any activity to be reported during the period in which the registration was in effect that has not already been reported.

(c) Each registered lobbyist whose employment or designation as a lobbyist has not terminated shall reregister by January 15 of each year.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2; 2001, No. 1839, § 27; 2005, No. 1284, § 14; 2019, No. 315, § 2332.

21-8-602. Other filings required.

(a) A lobbyist who lobbies public servants of state government shall register and make other filings with the Secretary of State.

(b) A lobbyist who lobbies public servants of municipal government shall register and make other filings with the city clerk or recorder of the municipality, as the case may be.

(c) A lobbyist who lobbies public servants of county government or any government body not otherwise covered by this section shall register and make other filings with the county clerk of the county.

(d) A lobbyist who lobbies public servants of a governmental body covering a district which includes all or part of more than one (1) county shall file with the Secretary of State and the county clerk of his or her principal place of business or residence within the state.

(e) A lobbyist who would be required to register and file with more than one (1) public official under this section may, in lieu of registering with each public official, register and make other filings with the Secretary of State and the county clerk of his or her principal place of business or residence within the state.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2.

21-8-603. Activity reports — Inspection.

(a)(1) Within fifteen (15) days after the end of each calendar quarter, each registered lobbyist shall file a complete and detailed statement, signed and sworn to, concerning his or her lobbying activities during the previous calendar quarter.

(2)(A) A registered lobbyist who lobbies members of the General Assembly shall file a monthly lobbyist activity report, signed and sworn to, for any month in which the General Assembly is in session. A quarterly report is not required if the registered lobbyist has filed monthly lobbyist activity reports for each month of the calendar quarter.

(B) The monthly lobbyist activity report shall be filed within ten (10) days after the end of each month.

(b)(1) Lobbyist activity reports shall be open to public inspection.

(2) Beginning January 1, 2010, all lobbyist activity reports that are required to be filed with the Secretary of State shall be filed in electronic form through the internet.

(c) The Secretary of State shall provide a form to be filed simultaneously with the lobbyist activity report that:

- (1) Is signed by a registered lobbyist under penalty of perjury under § 5-53-102; and
- (2) Certifies that the lobbyist activity report is accurate.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2; 1999, No. 553, § 38; 2009, No. 963, § 1.

21-8-604. Activity reports — Required contents.

(a) The lobbyist activity reports shall be signed and sworn to by the registered lobbyist.

(b) The reports shall contain:

(1)(A) The total of all expenditures made or incurred by the registered lobbyist or on behalf of the registered lobbyist by his or her employer or any officer, employee, or agent during the preceding period.

(B) These totals shall be itemized according to financial category and employers and clients, including food and refreshments, entertainment, living accommodations, advertising, printing, postage, travel, telephone, and other expenses or services.

(C) Registered lobbyists shall not be required to report office expenses other than office expenses specifically required to be reported under this section.

(D) Registered lobbyists are not required to report unreimbursed personal living and travel expenses not incurred directly for lobbying;

(2)(A) An itemized listing of each:

- (i) Gift given to a public servant or on behalf of the public servant;
- (ii) Payment for food, lodging, or travel in excess of forty dollars (\$40.00) on behalf of a public servant; and
- (iii) Any other item paid or given to a public servant or on behalf of the public servant, except for campaign contributions, having a value in excess of forty dollars (\$40.00) unless consideration of equal or greater value has been given therefor. If the person receiving or to be benefited by the item is a public employee, the person's governmental body shall be identified.

(B) Each item shall be identified by date, amount paid or value, and the name of the individual receiving or to be benefited by the item, and a description of the item.

(C) In the case of special events, including parties, dinners, athletic events, entertainment, and other functions, expenses need not be allocated by individuals. The information reported for a special event shall include:

- (i) The date of the event;
- (ii) The name of the event;
- (iii) The location of the event;
- (iv) The name of the governmental body or group of public servants invited;
- (v) The exact amount paid by the lobbyist toward the total expenditure; and

(vi) The name of the lobbyist's employer or client making the expenditure and the names of all other lobbyists sharing in the cost of the payment;

(3) A detailed statement of any money loaned or promised or line of credit established to a public servant or to anyone on behalf of the public servant in excess of twenty-five dollars (\$25.00) per individual. Money loaned or a line of credit established that is issued in the ordinary course of business by a financial institution or a person who regularly and customarily extends credit shall not be required to be disclosed; and

(4) A statement detailing the direct business association or partnership with any public servant before whom the lobbyist may engage in lobbying.

(c) Whenever the name of a public servant will appear in an activity report of a lobbyist, the lobbyist shall notify the public servant and provide him or her the information being reported. The lobbyist shall mail or deliver the notification to the public servant not later than seven (7) working days prior to the date for filing the activity report.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2; 1997, No. 114, § 1; 1999, No. 553, § 39; 2001, No. 1839, §§ 28, 34.

21-8-605. Records.

A registered lobbyist shall maintain and preserve all accounts, bills, receipts, and any other documents necessary to substantiate the financial reports required by this subchapter, § 21-8-401 et seq., § 21-8-701 et seq., and § 21-8-801 et seq. for a period of at least four (4) years from the date of the filing of the statement or report.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2; 1999, No. 553, § 40.

21-8-606. Duties of public officials.

The Secretary of State, each county clerk, and each city clerk or recorder shall:

(1) Provide forms approved by the Arkansas Ethics Commission for registration and for statements required by this subchapter, § 21-8-401 et seq., § 21-8-701 et seq., and § 21-8-801 et seq. to all persons required to file; and

(2) Make all statements and reports filed available for public inspection and copying at a reasonable cost during regular office hours.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2; Init. Meas. 1990, No. 1, § 7; 2001, No. 1839, § 29.

21-8-607. Prohibited acts.

(a) No person shall purposely employ any lobbyist who is required to register as a registered lobbyist but is not registered pursuant to this chapter.

(b) No person engaging in lobbying shall:

(1) Influence or attempt to influence, by coercion, bribery, or threat of economic sanction, any public servant in the discharge of the duties of his or her office;

(2) Purposely provide false information to any public servant as to any material fact pertaining to any legislative or administrative action;

(3) Purposely omit, conceal, or falsify in any manner information required by the registration and lobbyist activity reports;

(4) Contract to receive or accept compensation that is dependent in any manner upon:

(A) The success or failure of a legislative or administrative action; or

(B) The outcome of any executive, legislative, or administrative action relating to the solicitation or securing of a procurement contract; or

(5)(A) Provide payment for food or beverages at any location or event at which the lobbyist is not present physically.

(B) Subdivision (b)(5)(A) of this section shall not apply to a special event under § 21-8-402(20).

(c)(1) A person convicted of violating subsection (a) or subsection (b) of this section is:

(A) Prohibited from acting as a registered lobbyist for a period of three (3) years from the date of the conviction; and

(B) Subject to a fine of not less than one hundred dollars (\$100) and not more than one thousand dollars (\$1,000).

(2) Any person violating the three-year ban shall be deemed guilty of an additional violation of this subchapter.

(d) Any person who acts as a lobbyist as defined by § 21-8-402(11) but purposely fails to register within five (5) days of beginning lobbying activities as required by § 21-8-601 is subject to a fine of not less than five hundred dollars (\$500) and not more than one thousand dollars (\$1,000).

(e)(1) On a lobbyist registration form, a person acting as a lobbyist shall not:

(A) Purposely provide false information; or

(B) Purposely omit information.

(2) A person who violates subdivision (e)(1) of this section shall:

(A) Not be considered a registered lobbyist; and

(B) Be subject to a fine of not less than five hundred dollars (\$500) and not more than one thousand dollars (\$1,000).

(f) A person convicted of three (3) or more violations of a provision of this subchapter shall be permanently prohibited from acting as a registered lobbyist in this state.

(g) An expunged record shall not serve as the basis for disqualification under this section.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 2; 2009, No. 963, § 2.

SUBCHAPTER 7 — DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — STATEMENT OF FINANCIAL INTEREST

SECTION.

21-8-701. Persons required to file — Exceptions — Contents.

21-8-702. Forms.

21-8-703. Place and manner of filing.

21-8-704. Filing by persons called to active duty — Exceptions.

SECTION.

21-8-705. Filing of additional statement of financial interest in year in which party filing period is held.

21-8-701. Persons required to file — Exceptions — Contents.

(a) The following persons shall file a written statement of financial interest:

(1) A public official, as defined in § 21-8-402(17);

(2) A candidate for elective office;

(3) A district judge or city attorney, whether elected or appointed;

(4) An agency head, department director, or division director of state government or a chief of staff or chief deputy of a constitutional officer, the Senate, or the House of Representatives;

(5)(A) A public appointee to a state board or commission that is authorized or charged by law with the exercise of regulatory authority or is authorized to receive or disburse state or federal funds.

(B) A public appointee to a state board or commission that is not charged by law with the exercise of regulatory authority and that receives or disburses state or federal funds only in the form of mileage reimbursement for members attending meetings of the board or commission shall not be required to file a written statement of financial interest;

(6) A person who is an elected member of a school board or who is a candidate for a position on a school board;

(7) A public or charter school superintendent;

(8) An executive director of an education service cooperative;
(9) A person appointed to one (1) of the following types of regional, municipal, or county boards or commissions:

- (A) A planning board or commission;
- (B) An airport board or commission;
- (C) A water or sewer board or commission;
- (D) A utility board or commission; or
- (E) A civil service commission;

(10) A member of an advertising and promotion commission; and

(11) A member of a research park authority board under § 14-144-201 et seq.

(b) A member of a levee district or a levee and drainage district or any candidate therefor shall not be required to file a written statement of financial interest under this section.

(c)(1)(A) The statement of financial interest for the previous calendar year shall be filed by January 31 of each year, except that a candidate for elective office shall file the statement of financial interest for the previous calendar year on the first Monday following the close of the period to file as a candidate for the elective office, and persons identified in subdivisions (a)(4) and (5) of this section shall file the statement of financial interest within thirty (30) days after appointment or employment.

(B) If a person is included in any category listed in subsection (a) of this section for any part of a calendar year, then such person shall file a statement of financial interest covering that period of time regardless of whether the person has left his or her office or position as of the date that statement of financial interest is due.

(2) Any incumbent officeholder who filed the statement of financial interest by January 31 of the year in which the election is held shall not be required to file an additional statement upon becoming a candidate for reelection or election to another office at any election held during the year.

(d) The statement of financial interest shall include the following:

(1) The name of the public servant or candidate and his or her spouse and all names under which they do business;

(2) The reasons for filing the statement of financial interest;

(3) Identification of each:

(A)(i) Employer and of each other source of gross income amounting to more than one thousand dollars (\$1,000) annually received by the person or his or her spouse in his or her own name, or by any other person for the use or benefit of the public servant or candidate or his or her spouse, and a brief description of the nature of the services for which the compensation was received.

(ii) However, this subdivision (d)(3)(A) does not require the disclosure of individual items of income that constitute a portion of the gross income of the business or profession from which the public servant or candidate or his or her spouse derives income; and

(B)(i) Source of gross income as described in subdivision (d)(3)(A) of this section of more than twelve thousand five hundred dollars (\$12,500).

(ii) However, this subdivision (d)(3)(B) does not require the disclosure of individual items of income that constitute a portion of the gross income of the business or profession from which the public servant or candidate or his or her spouse derives income;

(4)(A) The name and address of every business in which the public servant or candidate or his or her spouse, or any other person for the use or benefit of the public servant or candidate or his or her spouse, has an investment or holdings of over one thousand dollars (\$1,000) at fair market value as of the last day of the previous calendar year.

(B) Each source described in subdivision (d)(4)(A) of this section that has a fair market value of over twelve thousand five hundred dollars (\$12,500) as of the last day of the previous calendar year shall also be identified;

(5) Every office or directorship held by the public servant or candidate or his or her spouse in any business, corporation, firm, or enterprise subject to jurisdiction of a regulatory agency of this state or of any of its political subdivisions;

(6)(A) The name and address of each creditor to whom the value of five thousand dollars (\$5,000) or more was personally owed or personally obligated and is still outstanding by the public servant or candidate.

(B)(i) Loans made in the ordinary course of business by either a financial institution or a person who regularly and customarily extends credit shall not be required to be disclosed.

(ii) Debts owed to the members of the public servant's or candidate's family need not be included;

(7) The name and address of each governmental body to which the public servant or candidate is legally obligated to pay a past-due amount and a description of the nature and amount of the obligation;

(8)(A) The name and address of each guarantor or comaker, other than a member of the public servant's or candidate's family, who has guaranteed a debt of the public servant or candidate that is still outstanding.

(B)(i) This requirement shall be applicable only to debt guaranties for debts assumed or arising after January 1, 1989.

(ii) Guaranteed debts existing prior to January 1, 1989, which are extended or refinanced shall become subject to disclosure in the annual financing statement due to be filed after the conclusion of the year in which such extension or refinancing occurred;

(9) The source, date, description, and a reasonable estimate of the fair market value of each gift of more than one hundred dollars (\$100) received by the public servant or candidate or his or her spouse or more than two hundred fifty dollars (\$250) received by his or her dependent children;

(10) Each monetary or other award of more than one hundred dollars (\$100) received by the public servant or candidate in his or her capacity as an employee of a public school district, the Arkansas School for the Deaf and Blind, the Arkansas School for Mathematics, Sciences, and the Arts, a university, a college, a technical college, a technical institute, a comprehensive life-long learning center, or a community college in recognition of his or her contribution to education;

(11) Each nongovernmental source of payment of the public servant's expenses for food, lodging, or travel that bears a relationship to the public servant's office when the public servant is appearing in his or her official capacity when the expenses incurred exceed one hundred fifty dollars (\$150). The public servant shall identify the name and business address of the person or organization paying the public servant's expenses and the date, nature, and amount of that expenditure if not compensated by the entity for which the public servant serves;

(12) Any public servant who is employed by any business that is under direct regulation or subject to direct control by the governmental body which he or she serves shall set out this employment and the fact that the business is regulated by or subject to control of the governmental body on the statement of financial interest; and

(13) If a public servant or any business in which he or she or his or her spouse is an officer, director, stockholder owning more than ten percent (10%) of the stock of the company, and the owner, trustee, or partner shall sell any goods or services having a total annual value in excess of one thousand dollars (\$1,000) to the governmental body in which the public servant serves or is employed, then the public servant shall set out in detail the goods or services sold, the governmental body to which they were sold, and the compensation paid for each category of goods or services sold.

(e)(1) All statements of financial interest required to be filed with the Secretary of State on or after January 1, 2010, shall be made publicly accessible at no charge by the Secretary of State in electronic form through the internet.

(2) The Secretary of State is the official custodian of the records of statements of financial interest that are filed with the Secretary of State under this section.

(f)(1) It is an affirmative defense to prosecution or disciplinary action if a person required to file a statement of financial interest under this subchapter amends the statement of financial interest within thirty (30) days of discovering or learning of an unintentional error in the statement of financial interest.

(2)(A) The Arkansas Ethics Commission shall not proceed with an investigation of an alleged error in a statement of financial interest filed under this subchapter if the Arkansas Ethics Commission determines that a person would be eligible to raise the affirmative defense under subdivision (f)(1) of this section.

(B) If the Arkansas Ethics Commission does not proceed with an investigation of an alleged error in a statement of financial interest under subdivision (f)(2)(A) of this section, the person shall not be considered to have committed a violation of the applicable statute.

(3) This section shall not be construed to:

(A) Remove the duty to file a statement of financial interest under this subchapter; or

(B) Authorize a person to knowingly fail to file a statement of financial interest under this subchapter.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 1; 2007, No. 617, § 42; 2009, No. 473, § 13; 2009, No. § 3; 1991, No. 240, § 1; 1999, No. 553, §§ 41-44; 1999, No. 963, §§ 3, 4; 2013, No. 88, § 1; 2013, No. 706, § 1; 2015, 1172, § 1; 2001, No. 1599, § 22; 2001, No. 1839, § 30; No. 999, § 3; 2015, No. 1151, § 2; 2015, No. 1280, § 13; 2005, No. 1284, § 15; 2007, No. 221, § 17; 2007, No. 267, 2025, No. 796, § 18.

21-8-702. Forms.

Forms used by persons in filing statements as required in this subchapter shall provide for the signature of the person, under penalty of false swearing, with respect to the truth and accuracy of the statements made on the form.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 3; 1999, No. 553, § 45.

21-8-703. Place and manner of filing.

(a) The statement of financial interest shall be filed as follows:

(1) State or district public servants and candidates for state or district public office required to file shall file with the Secretary of State;

(2) County, township, or school district public servants and candidates for county, township, or school district public office required to file shall file with the county clerks;

(3) Municipal public servants and candidates for municipal office required to file shall file with the city clerk or recorder, as the case may be;

(4) All city attorneys, whether elected or appointed, shall file with the city clerk of the municipality within which they serve;

(5) Members of regional boards or commissions shall file with the county clerk of the county in which they reside;

(6) District judges shall file with the Secretary of State; and

(7) Executive directors of education service cooperatives required to file shall file with the county clerk.

(b) Any report required by this subchapter shall be deemed timely filed if it is:

(1) Hand-delivered to the appropriate public official on or before the date due;

(2) Mailed to the appropriate public official, properly addressed, postage prepaid, bearing a postmark indicating that it was received by the post office or common carrier on or before the date due;

(3) Received via facsimile by the appropriate public official on or before the date due, provided the original is received by the appropriate public official within ten (10) days of the transmission; or

(4) Received by the appropriate public official in a readable electronic format which is acceptable to such public official and approved by the Arkansas Ethics Commission.

History. Acts 1989, No. 719, § 3; 1999, No. 553, § 46; 2001, No. 1839, § 31; 2013, No. 475, § 1; 2017, No. 721, § 11; 2025, No. 592, § 18.

21-8-704. Filing by persons called to active duty — Exceptions.

If a person who is required to file a statement of financial interest under this subchapter is called to active duty in the United States Armed Forces:

- (1) The person shall be allowed an additional one hundred eighty (180) days to file the statement of financial interest required by this subchapter; and
- (2) The statement of financial interest may be completed by the spouse of the person. If the statement of financial interest is completed by the spouse of the person, the spouse's signature shall be sufficient for the requirement of § 21-8-702.

History. Acts 1991, No. 472, § 1.

21-8-705. Filing of additional statement of financial interest in year in which party filing period is held.

If the party filing period under § 7-7-203 ends before January 1 of the year of the general election, a candidate for elective office shall file a statement of financial interest for the previous calendar year no later than January 31 of the year of the general election in addition to the statement of financial interest required under § 21-8-701.

History. Acts 2015 (1st Ex. Sess.), No. 4, § 5; 2021, No. 254, § 4; 2021, No. 479, § 2.

SUBCHAPTER 8 — DISCLOSURE ACT FOR LOBBYISTS AND STATE AND LOCAL OFFICIALS — CONFLICT OF INTEREST

SECTION.

21-8-801. Prohibited acts generally.

21-8-802. Prohibited appearances — Exceptions.

SECTION.

21-8-803. Reporting of potential conflicts.

21-8-804. Gifts to governmental entities.

21-8-801. Prohibited acts generally.

(a) No public servant shall:

(1) Receive a gift or compensation as defined in § 21-8-401 et seq., other than income and benefits from the governmental body to which he or she is duly entitled, for the performance of the duties and responsibilities of his or her office or position; or

(2) Purposely use or disclose to any other person or entity confidential government information acquired by him or her in the course of and by reason of the public servant's official duties, to secure anything of material value or benefit for himself or herself or his or her family.

(b)(1) No person shall confer a gift or compensation as defined in § 21-8-401 et seq. to any public servant, the receipt of which is prohibited by subdivision (a)(1) of this section.

(2)(A) The first violation of this subsection by any person other than a registered lobbyist shall result in a written warning.

(B) Upon a second violation and subsequent violations by persons other than registered lobbyists and upon a first violation by registered lobbyists, the penalties provided for in § 7-6-218 shall apply.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 4; 2001, No. 1839, § 32.

21-8-802. Prohibited appearances — Exceptions.

(a) No legislator shall appear for compensation on behalf of another person, firm, corporation, or entity before any entity of:

- (1) State government, if the legislator is a member of the General Assembly;
- (2) The legislator's county government, if the legislator is a member of a quorum court;
- (3) The legislator's municipal government, if the legislator is a member of a city council or board of directors of a municipality; or

(4) The legislator's school district board of directors, if the legislator is a member of a school district board of directors.

(b) This section shall not:

(1) Apply to any judicial proceeding or to any hearing or proceeding which is adversarial in nature or character;

(2) Apply to any hearing or proceeding on which a record is made by the entity of state government, entity of county government, entity of municipal government, or school district board of directors;

(3) Apply to an appearance which is a matter of public record;

(4) Apply to ministerial actions; or

(5) Preclude a legislator from acting on behalf of a constituent to determine the status of a matter without accepting compensation.

(c) An appearance which is a matter of public record as provided in subdivision (b)(3) of this section may be made by:

(1)(A) Filing a written statement within twenty-four (24) hours with the agency head of the entity of state government, entity of county government, entity of municipal government, or school district before which an appearance is sought.

(B) In the event that a written statement cannot be provided to the agency head prior to the meeting, telephonic notice must be given the agency head or his or her office; or

(2) Filing a quarterly statement with the agency head of the entity of state government before which an appearance is sought.

(d)(1) A statement filed under subsection (c) of this section shall identify the client on behalf of whom the appearance is made and contain a general statement of the action sought from the governmental body.

(2)(A) The statements shall be retained by the agency head and shall be a matter of public record.

(B) If the agency head determines that the release of the client's name would be an unwarranted invasion of individual privacy or would give advantage to competitors for bidding, the agency head may withhold the name until appropriate.

(e) No member of the General Assembly shall receive any income or compensation as defined in § 21-8-401 et seq., other than income and benefits from the governmental body to which he or she is duly entitled, for lobbying other members of the General Assembly by communicating directly or soliciting others to communicate with any other member with the purpose of influencing legislative action by the General Assembly.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 4; 1995, No. 1111, § 1; 2017, No. 449, § 4.

21-8-803. Reporting of potential conflicts.

(a) A legislator who is required to take an action in the discharge of his or her official duties that may affect his or her financial interest or cause financial benefit or detriment to him or her, or a business in which he or she is an officer, director, stockholder owning more than ten percent (10%) of the stock of the company, owner, trustee, partner, or employee, which is distinguishable from the effects of the action on the public generally or a broad segment of the public, shall:

(1) Prepare a written statement describing the matter requiring action and stating the potential conflict; and

(2)(A) Deliver a copy of the statement to the appropriate official to be filed with the statement of financial interest.

(B) The copy of the statement may be delivered in person by the public official, by mail, or by a person authorized by the public official to deliver the copy.

(b) The obligation to report a potential conflict of interest under this section arises as soon as the legislator is aware of the conflict.

(c) If the statement of financial interest filed by the legislator makes the conflict readily apparent, then no report need be filed.

History. Init. Meas. 1988, No. 1, § 1; Acts 1989, No. 719, § 4.

21-8-804. Gifts to governmental entities.

(a)(1) The Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, Commissioner of State Lands, and Attorney General, in their official capacity, may accept gifts, grants, and donations of money or property on behalf of the state for any lawful public purpose.

(2) The President Pro Tempore of the Senate, in his or her official capacity, may accept gifts, grants, and donations of money or property on behalf of the Senate for any lawful public purpose.

(3) The Speaker of the House of Representatives, in his or her official capacity, may accept gifts, grants, and donations of money or property on behalf of the House of Representatives for any lawful public purpose.

(4) The Chief Justice of the Supreme Court, in his or her official capacity, may accept gifts, grants, and donations of money or property on behalf of the Supreme Court for any lawful public purpose.

(b)(1) Except as provided in subdivision (b)(2) of this section, the items received shall:

(A) Not be of such a personal nature that their use is limited to a specific person or persons;

(B) Be available to be enjoyed by the public at large; and

(C) Become property of the governmental entity to which they were donated.

(2) The designated officials may accept donations of money for the purpose of hosting the:

(A) Official swearing-in and inaugural events of the constitutional officers, Senate, House of Representatives, and Supreme Court justices;

(B) Official recognition event for the President Pro Tempore of the Senate; and

(C) Official recognition event for the Speaker of the House of Representatives.

(c) The public official accepting the gift, grant, or donation of money on behalf of the appropriate entity shall disclose to the Arkansas Ethics Commission on a quarterly basis:

(1) The gift, grant, or donation of money received;

(2) The person donating the gift, grant, or donation of money; and

(3) The estimated value of the gift, grant, or donation of money.

History. Acts 2001, No. 239, § 2.

SUBCHAPTER 9 — DISCLOSURE BY LEGISLATORS — SALES TO THE STATE

SECTION.

21-8-901. Disclosure required.

21-8-902. Place of filing — Form.

SECTION.

21-8-903. Penalty.

21-8-901. Disclosure required.

In addition to the required filings under § 21-8-701, a member or a member-elect of the General Assembly shall report any goods or services sold during the previous calendar year having a total annual value in excess of one thousand dollars (\$1,000) to an office, department, commission, council, board, bureau, committee, legislative body, agency, or other establishment of the State of Arkansas by the member, his or her spouse, or by any business in which such person or his or her spouse is an officer, director, or stockholder owning more than ten percent (10%) of the stock.

History. Acts 1991, No. 808, § 1; 1999, No. 553, § 47.

21-8-902. Place of filing — Form.

(a) The disclosure required by § 21-8-901 shall be filed with the Secretary of State at the same time as the filing of the statement of financial interest required under § 21-8-701 et seq.

(b) The disclosure shall be on a form requiring the signature of the member, under penalty of perjury, with respect to the truth and accuracy of the statements made on the form.

History. Acts 1991, No. 808, § 1.

21-8-903. Penalty.

Any person who purposely violates the provisions of this subchapter shall be deemed guilty of a Class A misdemeanor.

History. Acts 1991, No. 808, § 1.

SUBCHAPTER 10 — STATE BOARDS, COMMISSIONS, AND ENTITIES RECEIVING STATE FUNDS**SECTION.**

21-8-1001. Conflicts of interest.

21-8-1002. Use of position for privileges or exemptions.

21-8-1003. Confidential information.

SECTION.

21-8-1004. Penalties — Investigation by Arkansas Ethics Commission.

21-8-1005. Subchapter supplemental to other laws.

21-8-1001. Conflicts of interest.

(a)(1) No member of a state board or commission or board member of an entity receiving state funds shall participate in, vote on, influence, or attempt to influence an official decision if the member has a pecuniary interest in the matter under consideration by the board, commission, or entity.

(2) A member of a state board or commission or board member of an entity receiving state funds may participate in, vote on, influence, or attempt to influence an official decision if the only pecuniary interest that may accrue to the member is incidental to his or her position or accrues to him or her as a member of a profession, occupation, or large class to no greater extent than the pecuniary interest could reasonably be foreseen to accrue to all other members of the profession, occupation, or large class.

(b) No member of a state board or commission or board member of an entity receiving state funds shall participate in any discussion or vote on a rule or regulation that exclusively benefits the member.

History. Acts 1995, No. 1123, § 2; 2001, No. 1244, § 2.

21-8-1002. Use of position for privileges or exemptions.

No member of a state board or commission or board member of an entity receiving state funds shall use or attempt to use his or her official position to secure unwarranted privileges or exemptions for himself or herself or others.

History. Acts 1995, No. 1123, § 2; 2001, No. 1244, § 3.

21-8-1003. Confidential information.

No member of a state board or commission or board member of an entity receiving state funds shall disclose confidential information acquired by him or her in the course of the member's official duties or use such information to further his or her personal interests.

History. Acts 1995, No. 1123, § 2; 2001, No. 1244, § 4.

21-8-1004. Penalties — Investigation by Arkansas Ethics Commission.

(a) In addition to any penalty contained in any other provision of law, any member of a state board or commission or board member of an entity receiving state funds who knowingly and intentionally violates any of the provisions of this subchapter may be removed from office by the appointing authority.

(b) The Arkansas Ethics Commission may investigate complaints alleging a violation of this subchapter and may make recommendations to the appointing authority.

History. Acts 1995, No. 1123, § 2; 2001, No. 1244, § 5.

21-8-1005. Subchapter supplemental to other laws.

This subchapter shall be supplemental to all other laws concerning ethics or conflicts of interest.

History. Acts 1995, No. 1123, § 2.

SUBCHAPTER 11 — DISCLOSURE BY REPRESENTATIVES OF A HOSTILE FOREIGN PRINCIPAL

SECTION.

21-8-1101. Legislative findings.

21-8-1102. Definitions.

21-8-1103. Transparency in representation of hostile foreign principals.

SECTION.

21-8-1104. Transparency in foreign-supported political organizations.

21-8-1105. Penalties for violation.

21-8-1106. Rules.

21-8-1101. Legislative findings.

The General Assembly finds that:

(1) The voters, citizens, and policymakers of this state are entitled to transparency in the political and propaganda activities of organizations that may be controlled by or under the influence of foreign countries hostile to the interests of this state and of the United States;

(2) In an increasingly globalized world, determining whether an organization's political and propaganda activities are funded by hostile foreign interests is often difficult; and

(3) Legislation is needed to ensure the transparency necessary to allow voters, citizens, and policymakers to evaluate whether political and propaganda activities are funded by potentially hostile foreign actors.

History. Acts 2025, No. 998, § 4.

21-8-1102. Definitions.

As used in this subchapter:

(1) "Foreign-supported political organization" means a political party or a domestic partnership, association, corporation, organization, or any other combination of persons that has, within the past five (5) calendar years, received money or other things of value from a hostile foreign principal or a representative of a hostile foreign principal and that engages in political activity;

(2) "Hostile foreign nation" means the:

- (A) People's Republic of China;
- (B) Russian Federation;
- (C) Democratic People's Republic of Korea; or
- (D) Islamic Republic of Iran;

(3) "Hostile foreign principal" means:

(A) A government of a hostile foreign nation, a political party of a hostile foreign nation, or any member of a political party of a hostile foreign nation;

(B) A nonresident alien of a hostile foreign nation; or

(C) A partnership, association, corporation, organization, or other combination of persons organized under the law of or having its principal place of business in a hostile foreign nation;

(4) “Political activity” means an activity that is performed to influence an agency or public official of this state, a local government entity within this state, or the public within this state, with reference to:

- (A) Formulating, adopting, or changing the policies or laws of this state; or
 - (B) Electing or opposing a candidate for local or state public office, not including campaign donations; and
- (5) “Representative of a hostile foreign principal” means a person:
- (A) Who acts as an agent, employee, representative, or servant, or otherwise acts at the order, request, or under the direction or control of a hostile foreign principal;
 - (B) Whose actions are financed in whole or in part by a hostile foreign principal; and
 - (C) Who engages in political activity.

History. Acts 2025, No. 998, § 4.

21-8-1103. Transparency in representation of hostile foreign principals.

(a)(1) Except as otherwise provided in this subchapter, a person shall not act as a representative of a hostile foreign principal unless the person has filed a true and complete registration statement with the Secretary of State as required by this subchapter.

(2) Except as otherwise provided in this section, a person who becomes a representative of a hostile foreign principal shall file a registration statement under oath with the Secretary of State within ten (10) days of the person’s becoming a representative of a hostile foreign principal.

(3) The obligation of a representative of a hostile foreign principal to file a registration statement, after the tenth day of becoming a representative of a hostile foreign principal, shall continue from day to day, and termination of status as a representative of a hostile foreign principal shall not relieve the representative of a hostile foreign principal from the obligation to file a registration statement for the period during which he or she was a representative of a hostile foreign principal.

(b) The registration statement required under this section shall include the following:

- (1) The registrant’s:
 - (A) Name;
 - (B) Principal business address;
 - (C) Other business addresses in the United States or elsewhere; and
 - (D) Residence addresses, if any; and
- (2) A comprehensive statement of the nature of the registrant’s business.
- (c) A registered representative of a hostile foreign principal under this subchapter shall update the registration statement required under this section no less frequently than quarterly.

History. Acts 2025, No. 998, § 4.

21-8-1104. Transparency in foreign-supported political organizations.

(a) No later than January 31, 2026, and each following year, each foreign-supported political organization shall register with the Secretary of State and provide the following information:

(1) The name of the foreign-supported political organization, its business address, and upon request the names, titles, and addresses of all officers and directors of the foreign-supported political organization;

(2) If the foreign-supported political organization is affiliated with or a chapter of a national organization, the name of the national organization, its address, and the names and addresses of its officers and directors;

(3) A detailed statement of any expenditures of money or other things of value made by the foreign-supported political organization within the prior calendar year to influence an agency or public official of this state, a local government entity within this state, or the public within this state, with reference to formulating, adopting, or changing the policies or laws of this state or electing a candidate to local or state public office; and

(4) A detailed statement of all money or other thing of value received by the foreign-supported political organization from a hostile foreign principal or a representative of a hostile foreign principal during the prior calendar year.

(b) A foreign-supported political organization under this subchapter shall update the registration statement required under this section no less frequently than annually.

History. Acts 2025, No. 998, § 4.

21-8-1105. Penalties for violation.

(a) Upon receipt of a complaint that a representative of a hostile foreign principal or a foreign-supported political organization has failed to comply with the registration and reporting requirements of this subchapter, or upon his or her own determination, the Secretary of State may investigate and assess penalties for the violation of this subchapter.

(b) The Secretary of State may assess the following civil penalties:

- (1) For any violation of this subchapter, up to five hundred dollars (\$500) per violation; and
- (2) For willful or repeated violations of this subchapter, up to two thousand dollars (\$2,000) per violation.

History. Acts 2025, No. 998, § 4.

21-8-1106. Rules.

The Secretary of State shall promulgate rules to:

- (1) Create and maintain registration statement forms as described under this subchapter; and
- (2) Implement this subchapter.

History. Acts 2025, No. 998 § 4.

TITLE 25

STATE GOVERNMENT

CHAPTER.

16. STATE OFFICERS.

19. FREEDOM OF INFORMATION ACT OF 1967.

CHAPTER 16

STATE OFFICERS

SUBCHAPTER 7 — ATTORNEY GENERAL

SECTION.

25-16-717. [Repealed.]

25-16-717. [Repealed.]

Publisher's Notes. This section, concerning complaints of election law violations and operation of a toll-free hotline, was repealed by Acts 2023, No. 544, § 5, effective

August 1, 2023. The section was derived from Acts 2021, No. 974, § 7. For current law, see § 7-4-305.

CHAPTER 19

FREEDOM OF INFORMATION ACT OF 1967

SECTION.

- 25-19-101. Title.
- 25-19-102. Legislative intent.
- 25-19-103. Definitions.
- 25-19-104. Penalty.
- 25-19-105. Examination and copying of public records.
- 25-19-106. Public meetings — Requirements, exceptions, and penalties.
- 25-19-107. Appeal from denial of rights — Attorney's fees.

SECTION.

- 25-19-108. Information for public guidance.
- 25-19-109. Special requests for electronic information.
- 25-19-110. Exemptions.
- 25-19-111. Arkansas Freedom of Information Task Force.
- 25-19-112. Audio media, visual media, and audiovisual media — Findings — Intent — Law enforcement.

A.C.R.C. Notes. Acts 2015, No. 186, § 1, provided: “Legislative findings and intent.

“(a) The General Assembly finds that:

“(1) On April 3, 2014, in the case of *Hopkins v. City of Brinkley*, 2014 Ark. 139, 432 S.W.3d 609 (2014), the Supreme Court determined that neither the Freedom of Information Act of 1967, § 25-19-101 et seq., nor federal law currently offers protection for the personal information of customers of municipally owned utility systems;

“(2) Amendments to the Freedom of Information Act of 1967, § 25-19-101 et seq., in recent years have provided exceptions to disclosure for personal contact information of state, county, school, and municipal employees, but have provided no such protection for municipal utility customers;

“(3) The Arkansas Public Service Commission has traditionally and consistently protected the personal contact information of public utility customers by exercising its authority under § 23-2-316(b), finding that the protection of such information is in the public interest;

“(4) Smart meters, which can record and transmit detailed data on a customer's use of a utility, present unique privacy concerns, as evidenced by a 2012 report of the United States Department of Energy on smart grid privacy that included recommendations that customer data be protected from release to third parties;

“(5) Recent amendments to the Freedom of Information Act of 1967, § 25-19-101 et seq., have also provided disclosure exemptions for sensitive infrastructure information of public water systems;

“(6) The federal government recognizes the importance of critical infrastructure information, and has created special policies to address its protection, including without limitation:

“(A) The Critical Infrastructure Information Act of 2002, 6 U.S.C. § 131 et seq., which prohibits federal agencies from disclosing certain information submitted to the United States Department of Homeland Security; and

“(B) Rules of the Federal Energy Regulatory Commission addressing critical energy infrastructure information, which limit access to certain information generated or collected by the commission and require the use of nondisclosure agreements when the information is provided; and

“(7) It is necessary to protect the security of the infrastructure of Arkansas's utility systems, including without limitation electric generation, transmission, and distribution.

“(b) It is the intent of this act to:

“(1) Protect the privacy of Arkansas citizens by exempting from disclosure the personal information of customers of municipally owned utility systems; and

“(2) Ensure the security of Arkansas's infrastructure by exempting utility infrastructure information from mandatory disclosure.”

Acts 2017, No. 1107, § 1, provided: “Legislative findings and intent.

“(a) The General Assembly finds that:

“(1) It is vital to a democratic society that public business be performed in an open and public manner so that the electors are advised of the performance of public officials and of the decisions that are reached in public activity and in making public policy;

“(2) Under the current law, state agencies, boards, and commissions must prepare and make available on the internet certain information, free of charge;

“(3) Upon the state agency, board, or commission providing the information on the internet, the information provided is deemed a sufficient response to a request to inspect the materials, unless the requestor specifies another medium or format under § 25-19-105;

“(4) The provisions of § 25-19-105, while ensuring transparency, have the added benefit of diminishing compliance costs associated with large, complicated, and frequent requests for public records, as the state agency, board, or commission is deemed compliant by providing the legally specified information on the internet;

“(5) However, the current law does not afford local governments, including their boards and instrumentalities, the ability to increase transparency and efficiency by the means available to state agencies, boards, and commissions;

“(6) Local governments often receive large, complicated, and frequent requests for public records, requiring additional staff and resources to which the local government must dedicate its limited resources;

“(7) Local governments should have the discretion to make all or part of the information listed under § 25-19-105 available on the internet and, upon publication, be deemed in compliance with the Freedom of Information Act of 1967, § 25-19-101 et seq., for those records; and

“(8) While not every local government has the resources to comply with all or part of the provisions included under § 25-19-105, allowing local governments the option to comply with all or part of the provisions under § 25-19-105, and be deemed compliant concerning those records, would allow local governments to be more effective stewards of taxpayer dollars.

“(b) It is the intent of the General Assembly to allow local governments the opportunity to be more transparent, while reducing the burden on local governments' limited resources, thereby reducing the financial cost to taxpayers of additional staff and other resources.

“(c) It is not the intent of the General Assembly to:

“(1) Allow the custodian or government entity to act in bad faith to avoid transparency; or

“(2) Place an unreasonable burden on local governments.”

Acts 2021, No. 310, § 1, provided: “The purpose of this act is to clarify that the term ‘copy’ used in the Freedom of Information Act of 1967, § 25-19-101 et seq., includes the ability of a citizen to capture still and moving images through image capture, including still and moving photography and video and digital recording.”

Cross References. Records of, and testimony before, committees reviewing and evaluating quality of medical or hospital care, § 16-46-105.

Effective Dates. Acts 1967, No. 93, § 10: Feb. 14, 1967. Emergency clause provided: “It is hereby found and determined by the General Assembly that the proper functioning of a democratic society is dependent upon the public being informed at all times with respect to the operations of government, and public officials shall at all times be held accountable for their public actions and conduct; that this state does not now have a law requiring that all public records be open to the public, except in those instances where otherwise specifically provided by law; that many agencies are now holding executive or closed sessions which is contrary to the spirit of the public business being transacted in open public meetings, and that the immediate passage of this act is necessary to correct said situations and to secure to the public their proper right of access to public records and meetings of public agencies, boards, and commissions. Therefore, an emergency is hereby declared to exist and this act being necessary for the immediate preservation of the public peace, health, and safety shall be in full force and effect from and after its passage and approval.”

Acts 1975 (Extended Sess., 1976), No. 1201, § 3: Feb 11, 1976. Emergency clause provided: “It is hereby found and determined by the General Assembly that the provisions of Section 5 of Act 93 of 1967 relating to executive sessions of public bodies, as this Section is now written and has been interpreted by certain courts in the State, is very confusing and does not serve as a reliable guideline to public bodies regarding executive sessions; that it is essential to the proper administration of government and public education that the law relating to executive sessions and those who may be present at executive sessions be clarified in order to permit administrative and supervisory personnel to be present at an executive session when personnel matters are being considered; that it is essential to secure and maintain the essential legal rights of various public bodies that such bodies be permitted to hold executive sessions with their attorneys when such body or bodies are parties to litigation pending in the courts; that the law should be clarified further to specifically authorize public school boards to hold executive sessions for the purpose of considering matters involving student discipline if the student or the parent involved so requests; that this Act is designed to clarify the law with respect to executive sessions in the areas described above and should be given effect immediately. Therefore, an emergency is hereby declared to exist and this Act being necessary for the immediate preservation of the public peace, health and safety shall be in full force and effect from and after its passage and approval.”

Acts 1977, No. 652, § 4: Mar. 23, 1977. Emergency clause provided: “It is hereby found and determined by the General Assembly of the State of Arkansas that the laws of this state are unclear as to the kinds of records which are subject to inspection and copying by citizens and that a clarification will promote the public policy of the State of Arkansas that public business is to be performed in an open and public manner. Therefore, an emergency is

hereby declared to exist, and this Act being necessary for the immediate preservation of the public peace, health, and safety shall be in full force and effect after its passage and approval.”

Acts 1981, No. 608, § 3: July 1, 1981.

Acts 1985, No. 843, § 3: Apr. 4, 1985. Emergency clause provided: “It is hereby found and determined by the General Assembly that the provisions of the Freedom of Information Act require notice of emergency on special meetings of school boards to be given only to those newspapers located in the county in which the meeting is to be held; that in some instances the principal newspaper serving the patrons of the district is printed outside the county in which the district is located; that it is essential to the effective and efficient administration of each school district that notice of such meetings be given to the principal newspaper serving the patrons of the district when the newspaper requests such notice; that this Act requires such notice and should be given effect at the earliest practical date. Therefore, an emergency is hereby declared to exist and this Act being necessary for the preservation of the public peace, health and safety shall be in full force and effect from and after its passage and approval.”

Acts 1987, No. 49, § 5: Feb. 16, 1987. Emergency clause provided: “It is hereby found and determined by the General Assembly that considerable confusion has existed regarding public access to personnel records and employee evaluation records under Act 93 of 1967, as amended; that Act 17 of 1986, Second Extraordinary Session, which exempts employee evaluation records from disclosure, by its own terms ceases to be effective on April 1, 1987; that, as a general matter, the confidentiality of personnel records and employee evaluation records is in the public interest to ensure the privacy of employees and the efficacy of the employee evaluation process; that such records should, however, be open to public inspection in certain circumstances; that guidance from the Attorney General and additional enforcement mechanisms, including attorney fees, litigation costs, and criminal penalties, are necessary to implement the provisions of this Act regarding such records; and that this Act is designed to clarify the law with respect to such records and should be given effect immediately. Therefore, an emergency is hereby declared to exist, and this Act being necessary for the immediate preservation of the public peace, health, and safety shall be in full force and effect from and after its passage and approval.”

Acts 1987, No. 1001, § 3: Apr. 14, 1987. Emergency clause provided: “It is hereby found and determined by the General Assembly that because of the case *Ricarte v. State*, CR 86-31, a question has arisen over the validity of Act 1201 of the Extended Session of 1976; that this Act is a reenactment of the former law; and that the immediate passage of this Act is necessary to clarify the state of the law on this issue. Therefore, an emergency is hereby declared to exist and this Act being necessary for the immediate preservation of the public peace, health and safety shall be in full force and effect from and after its passage and approval.”

Acts 1989 (3rd Ex. Sess.), No. 8, § 4: Nov. 1, 1989. Emergency clause provided: “It is hereby found and determined by the General Assembly that present law is unclear concerning the confidentiality of the records obtained by the Arkansas Industrial Development Commission in the recruitment of industry to this State, and the disclosure of such information under the provisions of the Freedom of Information Act would seriously jeopardize other recruitment efforts of the Commission, since this information is given to the Commission under an agreement of confidentiality. Therefore, an emergency is hereby declared to exist and this Act being immediately necessary for the preser-

vation of the public peace, health and safety shall be in full force and effect from and after its passage and approval.”

Acts 2001, No. 1653, § 5: Apr. 16, 2001. Emergency clause provided: “It is found and determined by the General Assembly that confusion exists as to the status of electronic records under the Freedom of Information Act of 1967, as amended; that the right to obtain copies of public records at a reasonable cost is uncertain; that access to certain electronic records may adversely affect the security of computer systems and networks maintained by public entities; and that access to certain student records maintained in electronic form by school districts, institutions of higher education, and state agencies may jeopardize federal funding. Therefore, an emergency is declared to exist and this act being immediately necessary for the preservation of the public peace, health and safety shall become effective on the date of its approval by the Governor. If the bill is neither approved nor vetoed by the Governor, it shall become effective on the expiration of the period of time during which the Governor may veto the bill. If the bill is vetoed by the Governor and the veto is overridden, it shall become effective on the date the last house overrides the veto.”

Acts 2003, No. 275, § 3: Feb. 28, 2003. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that for many years, veterans were advised to file their military service discharge records or DD Form 214 with the court recorder; that these forms contain sensitive information that can be used by identity thieves to obtain credit in the veteran’s name or otherwise defraud the veteran or his or her family; in recent years, the incident of identity theft has increased; that incidents of identity thieves using the military service discharge records or DD Form 214 to obtain credit in the veteran’s name or otherwise defraud the veteran or his or her family has occurred; that the effects on the veteran and the veteran’s family are devastating; and that this act is immediately necessary to protect veterans and their families from identity theft by making military service discharge records or DD Form 214 filed with the county recorder confidential and not subject to the Arkansas Freedom of Information Act. Therefore, an emergency is declared to exist and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2003, No. 763, § 4: Mar. 27, 2003. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that safe and secure water systems are vital to the health and well being of the citizens of this state; that information concerning the safety and security of public water systems subject to disclosure under the Arkansas Freedom of Information Act could be obtained for terroristic purposes, including contamination and destruction of public water systems; and that this act is immediately necessary to deter these acts, and to protect the security of public water systems. Therefore, an emergency is declared to exist and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2003, No. 1214, § 2: Apr. 10, 2003. Emergency clause provided: “It is found and determined by the Gen-

eral Assembly of the State of Arkansas that certain records of law abiding citizens of this state need further protection from disclosure; that this act provides that protection; and that until this act goes into effect, the law abiding citizens of this state will remain in danger of information being disclosed which is contrary to their best interests. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2005, No. 259, § 4: July 1, 2005. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that provisions in the Freedom of Information Act concerning records and meetings of public water systems will expire on July 1, 2005; that the continued ability of the public to access records of public water systems is necessary in order to ensure that public water systems are operated and managed safely and effectively; and that this act is immediately necessary in order to provide continuous access to the records. Therefore, an emergency is declared to exist and this act being necessary for the preservation of the public peace, health, and safety shall become effective on July 1, 2005.”

Acts 2007, No. 268, § 4: Mar. 9, 2007. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that safe and secure public water systems are vital to the health and public well-being of the citizens of this state; that information pertaining to the vulnerability assessments presently subject to disclosure under the Arkansas Freedom of Information Act could be obtained for domestic or foreign terroristic purposes, including the contamination and destruction of public water systems; and that the threat of acts of terrorism against public water systems is legitimate and real. To deter such acts, and to protect the security of public water systems, the Arkansas Freedom of Information Act should be amended immediately to exempt vulnerability assessments created on or before June 30, 2004, from disclosure. Therefore, an emergency is declared to exist and this act being necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2007, No. 998, § 4: July 1, 2007. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that certain provisions in the Freedom of Information Act concerning the records and meetings of public water systems will expire on July 1, 2007; that those provisions are necessary to ensure that public water systems are operated and managed safely and effectively; and that this act is necessary in order to provide security for public water systems. Therefore, an emergency is declared to exist and this act being necessary for the preservation of the public peace, health, and safety shall become effective on July 1, 2007.”

Acts 2009, No. 631, § 4: July 1, 2009. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that certain provisions in the Freedom of Information Act concerning the records and meetings of the public water systems will expire on July 1, 2009; that those provisions are necessary to ensure that public water systems are operated and managed safely and effectively; and that this act is necessary to

provide security for public water systems. Therefore, an emergency is declared to exist and this act being necessary for the preservation of the public peace, health, and safety shall become effective on July 1, 2009.”

Acts 2009, No. 1291, § 2: Apr. 9, 2009. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the identities of persons holding concealed weapons licenses should be private; that there are currently insufficient safeguards ensuring that privacy; and that this act is immediately necessary because persons holding concealed weapons licenses are currently at risk of having that privacy exploited. Therefore, an emergency is declared to exist and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2011, No. 99, § 4: July 1, 2011. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that certain provisions of the Freedom of Information Act of 1967 concerning the records and meetings of public water systems will expire on July 1, 2011; that those provisions are necessary to ensure that public water systems are operated and managed safely and effectively; and that this act is necessary to provide security for public water systems. Therefore, an emergency is declared to exist and this act being necessary for the preservation of the public peace, health, and safety shall become effective on and after July 1, 2011.”

Acts 2013, No. 145, § 2: Feb. 22, 2013. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the release of records to the general public concerning persons licensed to carry a concealed handgun is an unwarranted invasion of privacy and threatens the safety and property of the persons identified; and that this act is immediately necessary to prevent harm to citizens and safeguard their property. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2015, No. 186, § 5: Feb. 24, 2015. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the public availability of certain information held by municipally owned utility systems jeopardizes the security of the utility system and of the citizens that receive services from the system; and that this act should become effective as soon as possible to safeguard utility services that are critical to Arkansas communities. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2015, No. 999, § 5: Apr. 2, 2015. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the retention of certain public records such as campaign contribution re-

ports and statements of financial interest filed by public officials warrants recognition, promotion, and protection by this state; that it is of vital importance that the state immediately designates an official custodian of these records so that the public can be assured that a designated state office will keep the records; and that this act is immediately necessary to ensure that the records will be available for immediate inspection. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2017, No. 711, § 14: Mar. 27, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the Freedom of Information Act of 1967, § 25-19-101 et seq., places undue restrictions on water systems; that, in order to satisfy such restrictions, a water system must forego certain undertakings to the detriment of the water system and its customers; and that this act is immediately necessary so that a water system may provide information to its utility partners, other government offices, and certain members of the public in order for the water system to serve its community as efficiently and effectively as possible. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2017, No. 1107, § 4: Apr. 7, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that government entities are being overwhelmed by voluminous requests for production of public records under the Freedom of Information Act of 1967, § 25-19-101 et seq.; that timely compliance with such requests comes at a great expense to the taxpayers; and that this act is immediately necessary to protect custodians and government entities from criminal and civil liability for violations of the Freedom of Information Act of 1967, § 25-19-101 et seq., that cannot be prevented by their good faith efforts to comply. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2019, No. 910, § 6346(b): July 1, 2019. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that this act revises the duties of certain state entities; that this act establishes new departments of the state; that these revisions impact the expenses and operations of state government; and that the sections of this act other than the two uncoded sections of this act preceding the emergency clause titled ‘Funding and classification of cabinet-level department secretaries’ and ‘Transformation and Efficiencies Act transition team’ should become effective at the beginning of the fiscal year to allow for implementation of the new provisions at the beginning of the fiscal year. Therefore, an emergency is declared to exist, and Sections 1 through 6343 of this act being necessary for the preservation of the

public peace, health, and safety shall become effective on July 1, 2019.”

Acts 2020, No. 2, § 84: July 1, 2020, except §§ 38-43, effective Apr. 16, 2020. Emergency clause provided: “It is found and determined by the General Assembly, that the Constitution of the State of Arkansas prohibits the appropriation of funds for more than a one (1) year period; that the effectiveness of this Act on July 1, 2020 is essential to the operation of the agency for which the appropriations in this Act are provided; with the exception that Sections 38-43 in this Act shall be in full force and effect from and after the date of its passage and approval, and that in the event of an extension of the Legislative Session, the delay in the effective date of this Act beyond July 1, 2020, with the exception that Sections 38-43 in this Act shall be in full force and effect from and after the date of its passage and approval, could work irreparable harm upon the proper administration and provision of essential governmental programs. Therefore, an emergency is hereby declared to exist and this Act being necessary for the immediate preservation of the public peace, health and safety shall be in full force and effect from and after July 1, 2020; with the exception that Sections 38-43 in this Act shall be in full force and effect from and after the date of its passage and approval.”

Acts 2021, No. 56, § 2: Feb. 2, 2021. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the ability to conduct meetings during a declared disaster emergency may disrupt the safety of in person public meetings; that public participation and access to public meetings during a declared disaster emergency is critical to protecting the rights of the public; and that this act is immediately necessary because public entities are limited in the manner they can provide public access to public meetings in a safe manner during a declared disaster emergency. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public

peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2023 (1st Ex. Sess.), No. 7, § 4(b), provided: “Arkansas Code § 25-19-105(b)(28)(A) [now (b)(27)(A)], created in Section 3 of this act, is retroactive to June 1, 2022.”

Acts 2023 (1st Ex. Sess.), No. 7, § 6: Sept. 14, 2023. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the safety and security of the Governor and other state constitutional officers is of paramount importance to the peace, health, and safety of individuals in the State of Arkansas; that recent threats to certain state constitutional officers and their families illustrate the need for enhanced protection of records pertaining to the security of certain state constitutional officers and their families in order to protect the public peace, health, and safety; that in order to ensure the continuity of state operations and preserve the secure nature of services provided to the Governor and other state constitutional officers, certain records concerning the safety and protection of the Governor and other state constitutional officers must be confidential; that this act is immediately necessary because making public certain records regarding the safety and security of the Governor and other state constitutional officers would place the lives and security of the Governor and other state constitutional officers at a greater risk, thereby risking the peace, health, and safety afforded to Arkansans. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

RESEARCH REFERENCES

ALR. Exemption of preliminary drafts or notes provided by or for state or local governmental agency from disclosure of inspection. 26 A.L.R.4th 639.

Exemption of personal matters from disclosure by invasion of privacy exemption under state acts. 26 A.L.R.4th 666.

Patient’s right to disclosure of his or her own medical records under state Freedom of Information Act. 26 A.L.R.4th 701.

“Records” of agency which must be made available under state Freedom of Information Act. 27 A.L.R.4th 680.

Legitimate research justifying inspection of state or local public records not open to inspection by general public. 40 A.L.R.4th 333.

State Freedom of Information Act requests: right to receive information in particular medium or format. 86 A.L.R.4th 786.

Attorney-client exception under state law making proceedings by public bodies open to public. 34 A.L.R.5th 591.

Pending or prospective litigation exception under state law making proceedings by public bodies open to the public. 35 A.L.R.5th 113.

Am. Jur. 66 Am. Jur. 2d, Records, § 21 et seq.

Ark. L. Notes. Watkins, Recent Developments under the Arkansas Freedom of Information Act, 1987 Ark. L. Notes 59.

Watkins, Using the Freedom of Information Act as a Discovery Device, 1994 Ark. L. Notes 59.

Ark. L. Rev. Watkins, Access to Public Records under

the Arkansas Freedom of Information Act, 37 Ark. L. Rev. 741.

Watkins, Open Meetings Under the Arkansas Freedom of Information Act, 38 Ark. L. Rev. 268.

Rehab. Hospital Services Corp. v. Delta-Hills Health Systems Agency, Inc.: Invalidation — An Optional, Judicially Recognized Remedy to the Arkansas Freedom of Information Act, 40 Ark. L. Rev. 899.

Watkins, The Arkansas Freedom of Information Act: Time for a Change, 44 Ark. L. Rev. 535.

Note, Young v. Rice: The Personnel Records Exemption to the Arkansas Freedom of Information Act, 46 Ark. L. Rev. 759.

Note, To Seal or Not to Seal? That is Still the Question: Arkansas Best Corp. v. General Electric Capital Corp., 49 Ark. L. Rev. 325.

U. Ark. Little Rock L.J. Survey of Arkansas Law, Public Law, 1 U. Ark. Little Rock L.J. 230.

Note: The Arkansas Freedom of Information Act: Executive Session Subject Matter, 1 U. Ark. Little Rock L.J. 381.

Note, Constitutional Law—The Right of Nondisclosure —The Unintended Victim of the Markle Murder, 12 U. Ark. Little Rock L.J. 423.

Note, Public Law — Arkansas Freedom of Information Act — Working Papers and Litigation Files of Attorneys Hired by Public Entities Are Subject to Disclosure. City of Fayetteville v. Edmark, 304 Ark. 179, 801 S.W.2d 275 (1990),

Fifteenth Annual Survey of Arkansas Law, 15 U. Ark. Little Rock L.J. 427.

Note, Public Law — Freedom of Information Act — “Working Papers” Exemption Applies not Only to Officeholder Personally But to Staff Members and Private Con-

sultants as Well. Bryant v. Mars, 309 Ark. 480, 830 S.W.2d 869 (1992), 16 U. Ark. Little Rock L.J. 313.

Brooks, Adventures in Cyber-Space: Computer Technology and the Arkansas Freedom of Information Act, 17 U. Ark. Little Rock L.J. 417.

CASE NOTES

ANALYSIS

Constitutionality.
Construction.
Applicability.
Attorney-Client Privilege.
Condemnation.
Federal Law.
Jurisdiction.

Constitutionality.

State Highway and Transportation Department did not have standing to contest issue of constitutionality of Freedom of Information Act. Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc., 294 Ark. 490, 744 S.W.2d 711 (1988).

The release of information pursuant to the Freedom of Information Act does not constitute a “taking” in the constitutional sense. McCambridge v. City of Little Rock, 298 Ark. 219, 766 S.W.2d 909 (1989).

Construction.

The penal nature of § 25-19-104 did not make the entire chapter penal so as to require it to be strictly construed. Laman v. McCord, 245 Ark. 401, 432 S.W.2d 753 (1968).

This chapter is to be liberally interpreted. Commercial Printing Co. v. Rush, 261 Ark. 468, 549 S.W.2d 790 (1977).

This act should be liberally construed in order to accomplish the act’s laudable purposes. Sebastian County Chapter of Am. Red Cross v. Weatherford, 311 Ark. 656, 846 S.W.2d 641 (1993).

The court’s policy regarding this chapter has been enunciated clearly in our case law — it will interpret the chapter liberally to accomplish the purpose of promoting free access to public information. Johnson v. Stodola, 316 Ark. 423, 872 S.W.2d 374 (1994).

Applicability.

For a record to be subject to the Freedom of Information Act and available to the public, it must be possessed by an entity covered by the act, fall within the act’s definition of public record, and not be exempted by the act or other statutes. Legislative Joint Auditing Comm. v. Woosley, 291 Ark. 89, 722 S.W.2d 581 (1987).

There is no constitutional right of general public access to the disciplinary or investigatory records of a postsecondary educational institution, and any right to such records must arise by virtue of federal or state statutory or

common law. Norwood v. Slammmons, 788 F. Supp. 1020 (W.D. Ark. 1991).

Request for disclosure of a legal opinion under Gross Receipts Tax Rule G-75 is a request for public records under the Arkansas Freedom of Information Act, § 25-19-101 et seq., not an agency action subject to the Arkansas Administrative Procedure Act, § 25-15-201 et seq. Ryan & Co. AR, Inc. v. Weiss, 371 Ark. 43, 263 S.W.3d 489 (2007).

Attorney-Client Privilege.

Neither Evid. Rule 502 nor Ark. R. Civ. P. 26(b)(3) creates an exception to the Freedom of Information Act based on attorney-client privilege. Scott v. Smith, 292 Ark. 174, 728 S.W.2d 515 (1987).

Condemnation.

Order directing disclosure of information related to condemnation was not contrary to the intent of this chapter. Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc., 294 Ark. 490, 744 S.W.2d 711 (1988).

Federal Law.

A federal law which does not prohibit disclosure, but only provides for the loss of funds if the information is disclosed, does not supersede the Arkansas Freedom of Information Act. Troutt Bros., Inc. v. Emison, 311 Ark. 27, 841 S.W.2d 604 (1992).

Jurisdiction.

Where plaintiff who seeks to have records released under this chapter anticipates that defendants will raise the provisions of the Family Educational Rights and Privacy Act of 1974, 20 U.S.C. § 1232g as a defense, plaintiff’s claim may not be removed to federal court on the basis of a federal defense. Norwood v. Slammmons, 788 F. Supp. 1020 (W.D. Ark. 1991).

Cited: McClain v. Anderson, 246 Ark. 638, 439 S.W.2d 296 (1969); Ark. Gazette Co. v. Pickens, 258 Ark. 69, 522 S.W.2d 350 (1975); Kreutzer v. Clark, 271 Ark. 243, 607 S.W.2d 670 (1980); Baxter County Newspapers, Inc. v. Medical Staff of Baxter Gen. Hosp., 273 Ark. 511, 622 S.W.2d 495 (1981); Norcross v. Sneed, 573 F. Supp. 533 (W.D. Ark. 1983); Goetz v. Haygood, 602 F. Supp. 1352 (E.D. Ark. 1985); Gannett River States Publ’g Co. v. Ark. Judicial Discipline & Disability Comm’n, 304 Ark. 244, 801 S.W.2d 292 (1990); Furman v. Holloway, 312 Ark. 378, 849 S.W.2d 520 (1993).

25-19-101. Title.

This chapter shall be known and cited as the “Freedom of Information Act of 1967”.

History. Acts 1967, No. 93, § 1; A.S.A. 1947, § 12-2801.

Cross References. Purpose of Legislative Joint Auditing Committee, § 10-3-402.

RESEARCH REFERENCES

ALR. Construction and Application of Public Domain Doctrine Allowing Courts to Disregard FOIA Law Enforcement Exemption Based on Prior Public Release of Requested Records. 3 A.L.R. Fed. 3d Art. 5 (2015).

Ark. L. Notes. Watkins, Adventures in FOIA Land, 1999 Ark. L. Notes 111.

Ark. L. Rev. Article, The Arkansas Proposal on Access to Court Records: Upgrading the Common Law with Electronic Freedom of Information Norms, 59 Ark. L. Rev. 555.

U. Ark. Little Rock L. Rev. Annual Survey of Caselaw: Ethics and Professional Responsibility Law, 27 U. Ark. Little Rock L. Rev. 727.

Arkansas's Public Records Retention Program: Finding the FOIA's Absent Partner, 28 U. Ark. Little Rock L. Rev. 175.

CASE NOTES

ANALYSIS

Construction.
Appellate Review.
Fees And Costs.
Preemption.
Public Records.
Standing.

Construction.

Court liberally construes the Arkansas Freedom of Information Act, § 25-19-101 et seq., to accomplish its broad and laudable purpose that public business be performed in an open and public manner, and the court broadly construes the Act in favor of disclosure. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Appellate Review.

Circuit court denied appellant's complaint against a police department and its police chief for violation of the Freedom of Information Act (FOIA). Upon reviewing the FOIA request that appellant submitted, the appellate court concluded that the circuit court's finding that the police chief acted in good faith was not clearly erroneous. *Daugherty v. Sipes*, 2012 Ark. App. 233 (2012).

Fees And Costs.

Arkansas Department of Human Services was a department of the State of Arkansas and a suit against a state official in his official capacity was not a suit against that person but, rather, was a suit against that official's office, thus, even though the individual prevailed in obtaining certain public records under the Arkansas Freedom of Information Act, § 25-19-101 et seq., under § 25-19-107(d), no award of attorney's fees could be assessed against either the Department or the director, who was acting as a state official in his official capacity; further, as an individual, the director had no administrative control of the public records as he would have had control of the public records only in his official capacity. *George v. Ark. Dep't of Human Servs.*, 88 Ark. App. 135, 195 S.W.3d 399 (2004).

Because an inmate cited no postconviction remedy available to the inmate and otherwise made no showing of compelling need, the inmate failed to show that transcripts of the inmate's trial and appeal should be provided pursuant to §§ 25-19-101 to 109 at no cost. *Cox v. State*, 2011 Ark. 96 (2011).

25-19-102. Legislative intent.

It is vital in a democratic society that public business be performed in an open and public manner so that the electors shall be advised of the performance of public officials and of the decisions that are reached in public activity and in making public policy. Toward this end, this

Preemption.

Court was not persuaded that the Freedom of Information Act is incompatible with regulations that require the department to implement policies to prevent and mitigate identity theft; the court does not agree that, to prevent and mitigate identity theft, a person's home address is considered within the same family of other items in the definition or that a person's home address is akin to a person's Social Security number or date of birth, and the Act is not preempted by the Red Flags Rule because the laws do not conflict. *Hopkins v. City of Brinkley*, 2014 Ark. 139, 432 S.W.3d 609 (2014).

Public Records.

Litigation files prepared by an attorney hired by private medical malpractice liability insurance carriers to represent three doctors who worked for the state university were not subject to disclosure under the Freedom of Information Act, §§ 25-19-101 to 25-19-110, because the documents were not public records. As the doctors were sued in their personal capacity, simply changing the records request to name the doctors in their official capacity did not convert the documents from private to public; the documents were also attorney work-product and subject to the attorney-client privilege. *Harrill & Sutter, PLLC v. Farrar*, 2012 Ark. 180, 402 S.W.3d 511 (2012).

Standing.

Reviewing court disagreed with the county contractor's assertion that she had standing to raise an Arkansas Freedom of Information Act issue since she had a personal stake in the outcome of the proceeding, because where the messages often contained both business matters and personal issues, the contractor waived any right of privacy she may have had. *Pulaski County v. Ark. Democrat-Gazette, Inc.*, 371 Ark. 217, 264 S.W.3d 465 (2007).

Cited: *Cooper, Inc. v. Farm Bureau Mut. Ins. Co.*, 289 Ark. 218, 711 S.W.2d 155 (1986); *Morton v. City of Little Rock*, 728 F. Supp. 543 (E.D. Ark. 1989); *Depoyster v. Cole*, 298 Ark. 203, 766 S.W.2d 606 (1989); *Martin v. Musteen*, 303 Ark. 656, 799 S.W.2d 540 (1990); *Byrne v. Eagle*, 319 Ark. 587, 892 S.W.2d 487 (1995); *Saline Mem'l Hosp. v. Berry*, 321 Ark. 588, 906 S.W.2d 297 (1995); *Ark. Dep't of Health v. Westark Christian Action Council*, 322 Ark. 440, 910 S.W.2d 199 (1995); *Moore v. State*, 324 Ark. 453, 921 S.W.2d 606 (1996); *Loveless v. Tucker*, 2009 Ark. 424 (2009); *Scott v. State*, 2009 Ark. 437 (2009).

chapter is adopted, making it possible for them or their representatives to learn and to report fully the activities of their public officials.

History. Acts 1967, No. 93, § 2; A.S.A. 1947, § 12-2802.

RESEARCH REFERENCES

ALR. Construction and Application of Public Domain or Official Acknowledgment Doctrine Allowing Courts to Disregard FOIA Exemption, Other Than Law Enforcement Exemption, Based on Prior Public Release of Requested Records. 17 A.L.R. Fed. 3d Art. 1 (2016).

Ark. L. Rev. Recent Developments, Freedom of Information Act — Public Meetings Requirement, 57 Ark. L. Rev. 1015.

CASE NOTES

ANALYSIS

Construction.
Delegation of Duties.
Motivation of Persons Seeking Records.

Construction.

The objectives of this chapter are such that whenever the legislature fails to specify that any records in the public domain are to be excluded from inspection, or is less than clear in its intendments, then privacy must yield to openness and secrecy to the public's right to know the status of its own affairs; therefore, the burden of confidentiality rests on the legislation itself, and if the intention is doubtful, openness is the result. *Ragland v. Yeargan*, 288 Ark. 81, 702 S.W.2d 23 (1986).

After reviewing this section and §§ 25-19-105 and 25-19-106, the court found nothing in the Freedom of Information Act that specifies that the communications media by which the public's business is conducted are limited to publicly owned communications; thus, the court rejected a state employee's claim that the employee was asked to violate the law by communicating with the governor via a private email address and, thus, the employee's subsequent resignation was voluntary without good cause and the employee was not entitled to benefits under § 11-10-513(a)(1). *Bradford v. Dir., Empl. Sec. Dep't*, 83 Ark. App. 332, 128 S.W.3d 20 (2003).

City administrator's succession of one-on-one conversations with each member of the city's board of directors violated the "open meetings" provision of the Freedom of Information Act, §§ 25-19-101 — 25-19-109; through its

conversations the board held a meeting within the intent of the FOIA such that the city's actions resulted in a consensus being reached on a given issue, thus rendering the formal meeting held before the public a mere charade. *Harris v. City of Fort Smith*, 86 Ark. App. 20, 158 S.W.3d 733 (2004), modified, *aff'd*, 359 Ark. 355, 197 S.W.3d 461 (2004).

Delegation of Duties.

The requirements of this chapter cannot be circumvented by delegation of regular duties to one specially retained to perform the same task as the regular employee or official. This would be contrary to the requirements and intent of this chapter. *City of Fayetteville v. Edmark*, 304 Ark. 179, 801 S.W.2d 275 (1990).

Motivation of Persons Seeking Records.

Department claimed the citizen's request for a municipal ratepayer's home address fell outside the stated purpose of the Freedom of Information Act and the address should not be disclosed, but the department pointed to no law that required a citizen to give a reason for his or her request to inspect public records, and the Act does not direct itself to the motivation of the person who seeks public records. *Hopkins v. City of Brinkley*, 2014 Ark. 139, 432 S.W.3d 609 (2014).

Cited: Ark. State Police Comm'n v. Davidson, 253 Ark. 1090, 490 S.W.2d 788 (1973); Ark. Gazette Co. v. Pickens, 258 Ark. 69, 522 S.W.2d 350 (1975); Mayor of El Dorado v. El Dorado Broadcasting Co., 260 Ark. 821, 544 S.W.2d 206 (1976); Ark. Hwy. & Transp. Dep't v. Hope Brick Works, Inc., 294 Ark. 490, 744 S.W.2d 711 (1988); Depoyster v. Cole, 298 Ark. 203, 766 S.W.2d 606 (1989).

25-19-103. Definitions.

As used in this chapter:

- (1) "Background and nondecisional information" means information that is not deliberation;
- (2)(A) "Custodian", except as otherwise provided by law and with respect to any public record, means the person having administrative control of that record.
- (B) "Custodian" does not mean a person who holds public records solely for the purposes of storage, safekeeping, or data processing for others;
- (3) "Cybersecurity" means the measures taken to achieve protection against the criminal or unauthorized use of electronic data;
- (4) "Deliberation" means an exchange of information or opinion between two (2) or more members of a governing body that:
 - (A) Seeks, discloses, or inquires about a decision by a member of the governing body concerning any matter on which official action will foreseeably be taken by the governing body;
 - or

(B) Solicits, discloses, or inquires about the support or opposition of a member of the governing body concerning any matter on which official action will foreseeably be taken by the governing body;

(5) “Disaster recovery system” means an electronic data storage system implemented and maintained solely for the purpose of allowing a governmental unit or agency to recover operational systems and datasets following the occurrence of a catastrophe, including without limitation an act of war, an equipment failure, a cyberattack, or a natural disaster such as a tornado, earthquake, or fire;

(6) “Format” means the organization, arrangement, and form of electronic information for use, viewing, or storage;

(7) “Governing body” means the governing body of a public entity;

(8) “Informal meeting” means the gathering of two (2) or more members of a governing body outside of a public meeting;

(9)(A) “Learning materials” means curricula, syllabi, lesson plans, instructional materials, assignments, presentations, books, articles, video recordings, audio recordings, digital resources, or other resources that are maintained and used by public schools for classroom instruction, regardless of format or medium.

(B) “Learning materials” does not include tests or other student assessments used by public schools or public school districts.

(10) “Medium” means the physical form or material on which records and information may be stored or represented and may include, but is not limited to, paper, microfilm, microform, computer disks and diskettes, optical disks, and magnetic tapes;

(11)(A) “Municipally owned utility system” means a utility system owned or operated by a municipality that provides:

- (i) Electricity;
- (ii) Water;
- (iii) Wastewater service;
- (iv) Cable television; or
- (v) Broadband service.

(B) “Municipally owned utility system” includes without limitation a:

(i) Consolidated waterworks system under the Consolidated Waterworks Authorization Act, § 25-20-301 et seq.;

(ii) Utility system managed or operated by a nonprofit corporation under § 14-199-701 et seq.; and

(iii) Utility system owned or operated by a municipality or by a consolidated utility district under the General Consolidated Public Utility System Improvement District Law, § 14-217-101 et seq.;

(12) “Poll” means a series of communications:

(A) Between:

(i) One (1) or more persons paid by a public entity or agents or employees of that public entity; and

(ii) One (1) or more members of the governing body of that public entity;

(B) Concerning any matter on which official action will foreseeably be taken by the governing body;

(C) To determine:

(i) How the member of the governing body intends to vote; or

(ii) Whether the member of the governing body supports or opposes certain proposed action by the governing body; and

(D) For the purpose of exercising a responsibility, authority, power, or duty of the governing body;

(13) “Public entity” means:

(A) A bureau, commission, or agency of the state;

(B) A political subdivision of the state, including municipalities, counties, and boards of education; and

(C) All other boards, bureaus, commissions, or organizations in the State of Arkansas, except grand juries, supported wholly or in part by public funds or expending public funds; (14)(A) “Public meeting” means the formal gathering together, in a special or regular gathering, of a governing body, whether in person or remotely.

(B) “Public meeting” does not include:

(i) The gathering together, whether in person or remotely, of the members of a governing body to discuss the settlement of a cause of action in a court-ordered alternative dispute resolution process, including without limitation a settlement conference or mediation; and

(ii) A meeting of the Child Maltreatment Investigations Oversight Committee under § 10-3-3201 et seq.;

(15)(A) “Public records” means writings, recorded sounds, films, tapes, electronic or computer-based information, or data compilations in any medium required by law to be kept or otherwise kept and that constitute a record of the performance or lack of performance of official functions that are or should be carried out by a public official or employee, a governmental agency, or any other agency or improvement district that is wholly or partially supported by public funds or expending public funds. All records maintained in public offices or by public employees within the scope of their employment shall be presumed to be public records, including without limitation learning materials used in or maintained by a public school or public school district.

(B) “Public records” does not mean software acquired by purchase, lease, or license;

(16) “Public water system” means all facilities composing a system for the collection, treatment, and delivery of drinking water to the general public, including without limitation reservoirs, pipelines, reclamation facilities, processing facilities, distribution facilities, and regional water distribution districts under The Regional Water Distribution District Act, § 14-116-101 et seq.;

(17) “Remotely” means through electronic means, including without limitation by telephone, video conference, or video broadcast; and

(18) “Vulnerability assessment” means an assessment of the vulnerability of a public water system to a terrorist attack or other intentional acts intended to substantially disrupt the ability of the public water system to provide a safe and reliable supply of drinking water as required by the Public Health Security and Bioterrorism Preparedness and Response Act of 2002, Pub. L. No. 107-188.

History. Acts 1967, No. 93, § 3; 1977, No. 652, § 1; 1981, No. 608, § 1; 1985, No. 468, § 1; A.S.A. 1947, § 12-2803; Acts 2001, No. 1653, § 1; 2003, No. 763, § 1; 2005, No. 259, § 1; 2007, No. 268, § 1; 2007, No. 998, § 1; 2009, No. 631, § 1; 2011, No. 99, § 1; 2011, No. 210, § 2; 2013, No. 235, § 1; 2015, No. 186, § 2; 2015, No. 881, § 1; 2015, No. 999, § 4; 2025, No. 179, § 20; 2025, No. 505, § 1; 2025, No. 649, §§ 3, 4.

A.C.R.C. Notes. Acts 2025, No. 649, § 1, provided: “Title. This act shall be known and may be cited as the ‘Public School Access and Transparency Act.’”

Acts 2025, No. 649, § 2, provided: “Legislative intent. The purpose of this act is to amend the Freedom of Information Act of 1967, § 25-19-101 et seq., to:

“(1) Prevent the abuse of copyright claims by public records custodians for public schools; and

“(2) Guarantee access to school learning materials, thus ensuring transparency and accountability in public education in the state.”

Acts 2025, No. 649, § 6, provided: “Severability. If any provision of this act or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this act that can be given effect without the invalid provision or application and, to this end, the provisions of this act are severable.”

Amendments. The 2009 amendment substituted “July 1, 2011” for “July 1, 2009” in (6)(B) and made a minor stylistic change.

The 2011 amendment by No. 99 substituted “July 1, 2013” for “July 1, 2011” in (6)(B).

The 2011 amendment by No. 210 inserted “or improvement district that is” in (5)(A).

The 2013 amendment redesignated former (6)(A) as (6), and deleted (6)(B).

The 2015 amendment by No. 186 inserted the definition for “Municipally owned utility system” and redesignated the remaining subdivisions accordingly; and in (7) [now (8)], substituted “without limitation” for “but not limited to” and added “and regional water distribution districts under The Regional Water Distribution District Act, § 14-116-101 et seq.”

The 2015 amendment by No. 881 added the definition for “Disaster recovery system.”

The 2015 amendment by No. 999 inserted “except as otherwise provided by law and” in (1)(A).

The 2025 amendment by No. 179 added “service” in (5)(A)(iii).

The 2025 amendment by No. 505 rewrote the section.

The 2025 amendment by No. 649 added “including without limitation learning materials used in or maintained by a public school or public school district” in (15)(A); and added (9).

U.S. Code. The Public Health Security and Bioterrorism Preparedness and Response Act of 2002, Pub. L. No. 107-188, referred to in the definition of “Vulnerability assessment” in this section, is codified throughout Titles 7,

18, 21, and 42 of the U.S. Code. Provisions in the act related to drinking water security and safety are codified in part as 42 U.S.C. § 300i-2 et seq. In 2018, 42 U.S.C. § 300i-2 was rewritten and the term “vulnerability assess-

ments” was replaced with the term “risk and resilience assessments.”

Cross References. Access to criminal history information, § 12-12-1508.

RESEARCH REFERENCES

Ark. L. Rev. Recent Developments, Freedom of Information Act — Public Meetings Requirement, 57 Ark. L. Rev. 1015.

CASE NOTES

ANALYSIS

Custodian.
Public Funds.
Public Meetings.
Public Records.

Custodian.

Circuit court abused its discretion in issuing a permanent injunction in favor of plaintiff competitor under the Freedom of Information Act of 1967, § 25-19-101 et seq., because the plaintiff failed to sue an entity covered under FOIA; the competitor could not sue a private corporation alone under FOIA and direct it to produce public records it possessed by virtue of its contracts with counties because the private corporation was not the custodian of the public records. The circuit court’s conclusion that county officials were unnecessary parties to a dispute over access to their public records was clearly erroneous. *Apprentice Info. Sys. v. DataScout, LLC*, 2018 Ark. 146, 544 S.W.3d 39 (2018).

Public Funds.

A private, nonprofit association of colleges and secondary schools which was composed of public servants and accepted public moneys was subject to this chapter. *North Cent. Ass’n of Colleges & Schools v. Troutt Bros.*, 261 Ark. 378, 548 S.W.2d 825 (1977).

A ground lease between a city and the American Red Cross, wherein the city charged the Red Cross a one-dollar-per-year lease payment, did not qualify as support by public funds within the definition of “Public records” in this section. *Sebastian County Chapter of Am. Red Cross v. Weatherford*, 311 Ark. 656, 846 S.W.2d 641 (1993).

The plain language of the definition of “Public records” in this section confirms that the General Assembly intended that direct public funding be required; had the General Assembly intended to extend this act to private organizations that receive any form of government assistance or subsidy, no matter how indirect, it would not have used the words “supported ... by public funds” to describe the nature of support necessary to trigger this act. *Sebastian County Chapter of Am. Red Cross v. Weatherford*, 311 Ark. 656, 846 S.W.2d 641 (1993).

Refusal to read indirect government benefits or subsidies into the term “public funds” is not at odds with a liberal construction of this act. *Sebastian County Chapter of Am. Red Cross v. Weatherford*, 311 Ark. 656, 846 S.W.2d 641 (1993).

The term “public funds” should be given its plain and ordinary meaning which is best evidenced by Black’s Law Dictionary and the definition “moneys belonging to government.” *Sebastian County Chapter of Am. Red Cross v. Weatherford*, 311 Ark. 656, 846 S.W.2d 641 (1993).

Public Meetings.

Where committee of a state board meets to transact business, such meeting is a public meeting subject to the

provisions of this chapter and a newspaper reporter must be permitted to attend. *Ark. Gazette Co. v. Pickens*, 258 Ark. 69, 522 S.W.2d 350 (1975).

This section does not encompass staff meetings of the Department of Human Services held to develop a bid solicitation. *National Park Medical Ctr. v. Ark. Dep’t of Human Servs.*, 322 Ark. 595, 911 S.W.2d 250 (1995).

Where city board members held one-on-one meetings discussing the potential purchase of property, the meetings violated § 25-19-106(a) of the Arkansas Freedom of Information Act, § 25-19-101 et seq., because the members had made up their minds before the public meeting and, thus, the meetings constituted board meetings under the definition of “Public meetings” in this section. *Harris v. City of Fort Smith*, 359 Ark. 355, 197 S.W.3d 461 (2004).

Public Records.

Records of intercollegiate conference on the amount of money that its member institutions disbursed to its student athletes were not “educational” records under the Family Education Rights and Privacy Act of 1974, and were not closed to the public because they were not individual education or academic records; moreover, the conference was not entitled to exemption from disclosure since it was partially supported by public funds, and the dues paid by some member institutions were from state funds so that the conference records came within the terms of this section. *Ark. Gazette Co. v. Southern State College*, 273 Ark. 248, 620 S.W.2d 258 (1981), cert. denied, 455 U.S. 931, 102 S. Ct. 1416, 71 L. Ed. 2d 640 (1982).

Recorded votes of individual members of committee constituted a record of the performance or lack of performance of official functions carried out by the committee, and where there was testimony that it was the general practice of the committee to retain mailout ballots used in voting on matters coming before the committee then, the vote slips at issue constituted public records which should have been retained. *Depoyster v. Cole*, 298 Ark. 203, 766 S.W.2d 606 (1989), overruled in part, *Harris v. City of Fort Smith*, 366 Ark. 277, 234 S.W.3d 875 (2006).

Police crime scene photographs and pathologist photographs are “otherwise kept” for evidence in criminal cases as an “official function” of a police department, and are thus public records subject to the Freedom of Information Act. *McCambridge v. City of Little Rock*, 298 Ark. 219, 766 S.W.2d 909 (1989).

Police investigation file with respect to the charges against defendant constituted “public records” as defined in this section. *Martin v. Musteen*, 303 Ark. 656, 799 S.W.2d 540 (1990).

Legal memoranda prepared by outside counsel for the City for litigation purposes are public records within the meaning of this chapter and are open to inspection. *City of Fayetteville v. Edmark*, 304 Ark. 179, 801 S.W.2d 275 (1990).

Inmate records appellee requested were “public records” since they were required to be kept by law. *Furman v. Holloway*, 312 Ark. 378, 849 S.W.2d 520 (1993).

By requiring audits to be performed by a private auditing firm and not the state auditor, the state, in § 15-5-210, has elected to employ a private firm to perform a task normally carried out by state employees or officials; thus, the audit working papers of the Legislative Joint Auditing Committee are considered public records subject to this chapter. *Swaney v. Tilford*, 320 Ark. 652, 898 S.W.2d 462 (1995).

Definition of “public record” in this section does not require that the custodian be the person who actually keeps the document, nor does it say that the custodian must be required to keep the document. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Locus of a record is important only to determine whether the record falls under the presumption in the definition of “Public record” in the Arkansas Freedom of Information Act, and the definition of “public record” is not dependent upon who keeps the record or where it is kept, just that it either is required to be kept or is otherwise kept. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Where the records in question are established as “public records” pursuant to this section and not otherwise exempted from disclosure, the appropriate governmental agency shall have the responsibility to provide reasonable access for examination and copying of such public records which are in existence at the time of the request, as provided in § 25-19-105. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Circuit judge’s law clerk’s personal check was a public record under this section, and the circuit judge was its custodian and had to disclose the check to an attorney and his counsel pursuant to § 25-19-105 where the circuit judge instructed his clerk to obtain copies of certain documents from a federal court for use in contempt proceedings against the attorney, and where the attorney and his counsel sought disclosure of the check under FOIA. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Seed sample did not meet the definition of a “public record” because it could not be said to be an object on which records and information may be stored or represented; the list of items that could be mediums did not contain a seed or any other object, and removal and destructive testing of seed samples went far beyond the inspection and copying of

public records. *Nolan v. Little*, 359 Ark. 161, 196 S.W.3d 1 (2004).

Legal opinions rendered in tax cases under Gross Receipts Tax Rule G-75 are subject to disclosure to a company because they are “otherwise kept” public records under the definition of “Public records” in this section; however, any and all identifying facts and information have to be fully redacted under § 25-19-105(f)(1)–(3). Moreover, the legal opinions are not confidential because § 26-18-303(a)(1) does not cover Gross Receipts Tax Rule G-75; state law does not require that the opinions be kept by or filed with the Director of the Arkansas Department of Finance and Administration. *Ryan & Co. AR, Inc. v. Weiss*, 371 Ark. 43, 263 S.W.3d 489 (2007).

Circuit court did not clearly err in finding that the city clerk’s destruction of the adding-machine tape did not amount to a violation of the Freedom of Information Act of 1967 where the city clerk testified that the relevant numbers had been recorded on other budget-meeting documents, the adding-machine tape was not meaningful nor was it something the city ever kept, and she gave the plaintiff citizen everything she had when he asked for it; plaintiff failed to prove that the adding-machine tape was required to be kept. *Pitchford v. City of Earle*, 2019 Ark. App. 251, 576 S.W.3d 103 (2019).

Circuit court erred in requiring the Secretary of Transformation and Shared Services to disclose communications between a former public official and a vendor’s employee and in not determining whether each individual message met the statutory definition of a “public record” because the messages were individual, sent on different days, sent at different times, were not all interrelated and inextricably intertwined, and were capable of being sorted into private and public record categories. *Myers v. Fecher*, 2021 Ark. 230, 635 S.W.3d 495 (2021).

Cited: *Legislative Joint Auditing Comm. v. Woosley*, 291 Ark. 89, 722 S.W.2d 581 (1987); *Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc.*, 294 Ark. 490, 744 S.W.2d 711 (1988); *Young v. Rice*, 308 Ark. 593, 826 S.W.2d 252 (1992); *Stilley v. McBride*, 332 Ark. 306, 965 S.W.2d 125 (1998); *Ark. Dep’t of Fin. & Admin. v. Pharmacy Assocs., Inc.*, 333 Ark. 451, 970 S.W.2d 217 (1998); *Lyon v. The Academy, Inc.*, 2024 Ark. App. 386, 689 S.W.3d 715 (2024).

25-19-104. Penalty.

Any person who negligently violates any of the provisions of this chapter shall be guilty of a Class C misdemeanor.

History. Acts 1967, No. 93, § 7; A.S.A. 1947, § 12-2807; Acts 1987, No. 49, § 3; 2005, No. 1994, § 413.

Cross References. Fines, § 5-4-201. Term of imprisonment, § 5-4-401.

RESEARCH REFERENCES

ALR. Allowance of punitive damages in state freedom of information actions. 13 A.L.R.6th 721.

Ark. L. Notes. Jerry L. Canfield, To Meet or Not to

Meet, That Is the Question: An Analysis of the Meeting Requirement of the Arkansas Freedom of Information Act, 2023 Ark. L. Notes 50 (May 2023).

CASE NOTES

ANALYSIS

In General.
Construction.
No Violation.

In General.

Circuit court’s determination that this section and § 25-19-106 were unconstitutional was improper because declaratory relief was inappropriate as appellees did not yet have a case or controversy ready for decision by the courts.

Appellees received a legal opinion on the effects of certain provisions of the state's Freedom of Information Act rather than resolution of an actual controversy. *McCutchen v. City of Fort Smith*, 2012 Ark. 452, 425 S.W.3d 671 (2012).

Construction.

The penal nature of this section does not make the entire chapter penal so as to require it to be strictly construed. *Laman v. McCord*, 245 Ark. 401, 432 S.W.2d 753 (1968).

No Violation.

Appellees' actions of purging the records did not violate this section because the captain testified that it was police

department policy to purge the recordings every 45 days in order to maintain sufficient memory on the server and the driver did not produce any evidence to the contrary. *Daugherty v. Jacksonville Police Dep't*, 2012 Ark. 264, 411 S.W.3d 196 (2012).

Cited: *Saline Mem'l Hosp. v. Berry*, 321 Ark. 588, 906 S.W.2d 297 (1995).

25-19-105. Examination and copying of public records.

(a)(1)(A) Except as otherwise specifically provided by this section or by laws specifically enacted to provide otherwise, all public records shall be open to inspection and copying, including without limitation copying through image capture, including still and moving photography and video and digital recording, by any citizen of the State of Arkansas during the regular business hours of the custodian of the records.

(B) However, access to inspect and copy, including without limitation copying through image capture, including still and moving photography and video and digital recording, public records shall be denied to:

(i) A person who at the time of the request has pleaded guilty to or been found guilty of a felony and is incarcerated in a correctional facility; and

(ii) The representative of a person under subdivision (a)(1)(B)(i) of this section unless the representative is the person's attorney who is requesting information that is subject to disclosure under this section.

(2)(A) A citizen may make a request to the custodian to inspect, copy, including without limitation through image capture, including still and moving photography and video and digital recording, or receive copies of public records.

(B) The request may be made in person, by telephone, by mail, by facsimile transmission, by electronic mail, or by other electronic means provided by the custodian.

(C) The request shall be sufficiently specific to enable the custodian to locate the records with reasonable effort.

(3) A custodian shall respond as follows in writing within the time period required under this section to a written request for public records:

(A) If no records exist that are responsive to the request, the custodian shall respond that no records exist;

(B) If any responsive records that exist are subject to exemptions under this chapter or other law, the custodian shall respond and identify the applicable exemptions; and

(C) If the custodian lacks administrative control over any responsive records that may exist, the custodian shall respond and identify the appropriate custodian to direct the request to, if known or readily ascertainable.

(4) A custodian's response under subdivision (a)(3) of this section may be delivered by electronic mail.

(5) If a custodian knowingly fails to respond as required under subdivision (a)(3) of this section, he or she shall be subject to the penalties in § 25-19-104 for a violation of this chapter.

(6) The requirements of this subsection do not affect the obligation of a custodian to immediately provide to the requestor any responsive records not in active use or storage.

(b) It is the specific intent of this section that the following shall not be deemed to be made open to the public under the provisions of this chapter:

(1) State income tax records;

(2) Medical records, adoption records, and education records as defined in the Family Educational Rights and Privacy Act of 1974, 20 U.S.C. § 1232g, unless their disclosure is consistent with the provisions of that act;

(3) The site files and records maintained by the Arkansas Historic Preservation Program and the Arkansas Archeological Survey;

(4) Grand jury minutes;

(5) Unpublished drafts of judicial or quasi-judicial opinions and decisions;

(6) Undisclosed investigations by law enforcement agencies of suspected criminal activity;

(7) Unpublished memoranda, working papers, and correspondence of the Governor, members of the General Assembly, Supreme Court Justices, Court of Appeals Judges, and the Attorney General;

(8) Documents that are protected from disclosure by order or rule of court;

(9)(A) Files that if disclosed would give advantage to competitors or bidders; and

(B)(i) Records maintained by the Arkansas Economic Development Commission related to any business entity's planning, site location, expansion, operations, or product development and marketing, unless approval for release of those records is granted by the business entity.

(ii) However, this exemption shall not be applicable to any records of expenditures or grants made or administered by the Arkansas Economic Development Commission and otherwise disclosable under the provisions of this chapter;

(10)(A) The identities of law enforcement officers currently working undercover with their agencies and identified in the Arkansas Minimum Standards Office as undercover officers.

(B) Records of the number of undercover officers and agency lists are not exempt from this chapter;

(11) Records containing measures, procedures, instructions, or related data used to cause a computer or a computer system or network, including telecommunication networks or applications thereon, to perform security functions, including, but not limited to, passwords, personal identification numbers, transaction authorization mechanisms, and other means of preventing access to computers, computer systems or networks, or any data residing therein;

(12) Personnel records to the extent that disclosure would constitute a clearly unwarranted invasion of personal privacy;

(13) Personal contact information, including without limitation home or mobile telephone numbers, personal email addresses, and home addresses of nonelected state employees, non-elected municipal employees, nonelected school employees, and nonelected county employees contained in employer records, except that the custodian of the records shall verify an employee's city or county of residence or address on record upon request;

(14) Materials, information, examinations, and answers to examinations utilized by boards and commissions for purposes of testing applicants for licensure by state boards or commissions;

(15) Military service discharge records or DD Form 214, the Certificate of Release or Discharge from Active Duty of the United States Department of Defense, filed with the county recorder as provided under § 14-2-102, for veterans discharged from service less than seventy (70) years from the current date;

(16) Vulnerability assessments submitted by a public water system on or before June 30, 2004, to the Administrator of the United States Environmental Protection Agency for a period of ten (10) years from the date of submission;

(17)(A) Records, including analyses, investigations, studies, reports, recommendations, requests for proposals, drawings, diagrams, blueprints, and plans containing information relating to security for any public water system or municipally owned utility system.

(B) The records under subdivision (b)(17)(A) of this section include:

(i) Risk and vulnerability assessments;

(ii) Plans and proposals for preventing and mitigating security risks;

(iii) Emergency response and recovery records;

(iv) Security plans and procedures;

(v) Plans and related information for generation, transmission, and distribution systems; and

(vi) Other records containing information that if disclosed might jeopardize or compromise efforts to secure and protect the public water system or municipally owned utility system;

(18) Records pertaining to the issuance, renewal, expiration, suspension, or revocation of a license to carry a concealed handgun, or a present or past licensee under § 5-73-301 et seq., including without limitation all records provided to or obtained by a local, state, or federal government or their officials, agents, or employees in the investigation of an applicant, licensee, or past licensee, and all records pertaining to a criminal or health history check conducted on the applicant, licensee, or past licensee except that:

(A) Information or other records regarding an applicant, licensee, or past licensee may be released to a law enforcement agency to assist in a criminal investigation or prosecution or to determine the validity of or eligibility for a license; and

(B) The name of an applicant, licensee, or past licensee may be released as contained in investigative or arrest reports of law enforcement that are subject to release as public records;

(19)(A) Except as provided in subdivision (b)(19)(B) of this section, personal information of current and former public water system customers and municipally owned utility system customers, including without limitation:

- (i) Home and mobile telephone numbers;
- (ii) Personal email addresses;
- (iii) Home and business addressees; and
- (iv) Customer usage data.

(B) Personal information of a current or former water system customer or municipally owned utility system customer may be disclosed to:

(i) The current or former water system customer, who may receive his or her own information;

(ii) A person who serves as the attorney, guardian, or other representative of the current or former water system customer, who may receive the information of his or her client, ward, or principal;

(iii) A tenant of the current or former water system customer or municipally owned utility system customer, who may receive notice of pending termination of service;

(iv) A federal or state office or agency for the purpose of participating in research being conducted by such federal or state office or agency, if the federal or state office or agency agrees to prohibit disclosure of the personal information;

(v) For the purpose of facilitating a shared billing arrangement, a county, municipality, improvement district, urban service district, public utility, public facilities board, or public water authority that provides or provided a service to the current or former water system customer or municipally owned utility system customer; or

(vi) An agent or vendor of the water system or municipally owned utility system that provides a billing or administrative service to the water system or municipally owned utility system provided that the agent or vendor and the water system or municipally owned utility system enter an agreement that prohibits disclosure by the agent or vendor of the water system or municipally owned utility system of the personal information of a current or former water system customer or municipally owned utility system customer to any other person;

(20) Electronic data information maintained by a disaster recovery system;

(21) The date of birth, home address, email address, phone number, and other contact information from county or municipal parks and recreation department records of a person who was under eighteen (18) years of age at the time of the request made under this section;

(22)(A) Information related to taxes collected by particular entities under § 26-74-501 et seq.; the Advertising and Promotion Commission Act, § 26-75-601 et seq.; and § 26-75-701 et seq.

(B) However, this exemption does not apply to information or other records regarding the total taxes collected under § 26-74-501 et seq.; the Advertising and Promotion Commission Act, § 26-75-601 et seq.; and § 26-75-701 et seq. in the county or municipality as a whole;

(23)(A) Undisclosed and ongoing investigations by the Alcoholic Beverage Control Board, Alcoholic Beverage Control Division, or Alcoholic Beverage Control Enforcement Division.

(B) Completed investigations by the Alcoholic Beverage Control Board, Alcoholic Beverage Control Division, or Alcoholic Beverage Control Enforcement Division or investigations by the

Alcoholic Beverage Control Board, Alcoholic Beverage Control Division, or Alcoholic Beverage Control Enforcement Division that have been provided to the person or entity under investigation are subject to disclosure under this section;

(24)(A) When the custodian is a governmental entity that has knowledge of the individual's assistance as described in this subdivision (b)(24)(A), information that could reasonably be used to identify an individual who is assisting or has assisted a governmental entity in one (1) or more investigations, whether open or closed, of matters that are criminal in nature, if disclosure of the individual's identity could reasonably be expected to endanger the life or physical safety of the individual or a member of the individual's family within the first degree of consanguinity and:

- (i) The individual is a confidential informant;
- (ii) The individual is a confidential source; or
- (iii) The individual's assistance is or was provided under the assurance of confidentiality.

(B) As used in this subdivision (b)(24), "information that could reasonably be used to identify an individual" includes the following:

- (i) The individual's name;
- (ii) The individual's date of birth;
- (iii) A physical description of the individual that could reasonably be used to identify him or her;
- (iv) The individual's Social Security number, driver's license number, or other government-issued number specific to him or her;
- (v) The individual's work or personal contact information; and
- (vi) Any other information about the individual that could reasonably be used to identify the individual;

(25)(A) Records, including analyses, investigations, studies, reports, recommendations, requests for proposals, drawings, diagrams, blueprints, and plans containing information relating to security for any medical marijuana cultivation facility, marijuana dispensary, or marijuana laboratory processor.

(B) The records under subdivision (b)(25)(A) of this section include:

- (i) Risk and vulnerability assessments;
- (ii) Plans and proposals for preventing and mitigating security risks;
- (iii) Emergency response and recovery records;
- (iv) Security plans and procedures;
- (v) Plans and related information for generation, transmission, and distribution systems; and
- (vi) Other information that, if disclosed, would jeopardize or compromise efforts to secure and protect the security of a medical marijuana cultivation facility, marijuana dispensary, or marijuana laboratory processor;

(26)(A) Ballots, other than sample ballots, unless otherwise ordered by a court of law.

(B) Subdivision (b)(26)(A) of this section does not apply to a poll watcher during an election, who shall be allowed to inspect a voter statement and ballot while ensuring the secrecy of the vote is maintained and subject to reasonable restrictions prescribed by the State Board of Election Commissioners; and

(27) Records that reflect the planning or provision of security services provided to the:

(A) Governor; or

(B) Lieutenant Governor, Attorney General, Secretary of State, Auditor of State, Treasurer of State, Commissioner of State Lands, members of the General Assembly, Justices of the Supreme Court, or Judges of the Court of Appeals.

(c)(1) Notwithstanding subdivision (b)(12) of this section, all employee evaluation or job performance records, including preliminary notes and other materials, shall be open to public inspection only upon final administrative resolution of any suspension or termination proceeding at which the records form a basis for the decision to suspend or terminate the employee and if there is a compelling public interest in their disclosure.

(2) Any personnel or evaluation records exempt from disclosure under this chapter shall nonetheless be made available to the person about whom the records are maintained or to that person's designated representative.

(3)(A) Except as stated under subdivision (c)(4) of this section, upon receiving a request for the examination or copying of personnel or evaluation records, the custodian of the records shall determine within twenty-four (24) hours of the receipt of the request whether the records are exempt from disclosure and make efforts to the fullest extent possible to notify the person making the request and the subject of the records of that decision.

(B)(i) If the subject of the records cannot be contacted in person or by telephone within the twenty-four-hour period, the custodian shall send written notice via overnight mail to the subject of the records at his or her last known address. Either the custodian, requester, or the subject of the records may, before the close of the Attorney General's office the following business day, seek an opinion from the Attorney General, who, within three (3) working days of receipt of the request, shall issue an opinion stating whether the decision is consistent with this chapter.

(ii) In the event of a review by the Attorney General, the custodian shall not disclose the records until the Attorney General has issued his or her opinion.

(C) However, nothing in this subsection shall be construed to prevent the requester or the subject of the records from seeking judicial review of the custodian's decision or the decision of the Attorney General.

(4) If a request for public records seeks only the gross salary of a public employee or a set of public employees, then the:

(A) Records custodian is not required to notify the public employee or set of public employees before disclosing the gross salary amount; and

(B) Public employee whose gross salary is the subject of the request for public records is not entitled to seek an opinion from the Attorney General under subdivision (c)(3)(B) of this section.

(d)(1) Reasonable access to public records and reasonable comforts and facilities for the full exercise of the right to inspect and copy, including without limitation copying through image capture, including still and moving photography and video and digital recording, those records shall not be denied to any citizen.

(2)(A) Upon request and payment of a fee as provided in subdivision (d)(3) of this section, the custodian shall furnish copies of public records if the custodian has the necessary duplicating equipment.

(B) A citizen may request a copy of a public record in any medium in which the record is readily available or in any format to which it is readily convertible with the custodian's existing software.

(C) A custodian is not required to compile information or create a record in response to a request made under this section.

(3)(A)(i) Except as provided in § 25-19-109 or by law, any fee for copies shall not exceed the actual costs of reproduction, including the costs of the medium of reproduction, supplies, equipment, and maintenance, but not including existing agency personnel time associated with searching for, retrieving, reviewing, or copying the records.

(ii) The custodian may also charge the actual costs of mailing or transmitting the record by facsimile or other electronic means.

(iii) If the estimated fee exceeds twenty-five dollars (\$25.00), the custodian may require the requester to pay that fee in advance.

(iv) Copies may be furnished without charge or at a reduced charge if the custodian determines that the records have been requested primarily for noncommercial purposes and that waiver or reduction of the fee is in the public interest.

(v) Except as provided in § 25-19-109, the custodian may not charge a fee for the requestor's inspection or copying, including without limitation copying through image capture, including still and moving photography and video and digital recording, of public records.

(B) The custodian shall provide an itemized breakdown of charges under subdivision (d)(3)(A) of this section.

(e) If a public record is in active use or storage and therefore not available at the time a citizen asks to examine it, the custodian shall certify this fact in writing to the applicant and set a date and hour within three (3) working days at which time the record will be available for the exercise of the right given by this chapter.

(f)(1) No request to inspect, copy, or obtain copies of public records shall be denied on the ground that information exempt from disclosure is commingled with nonexempt information.

(2) Any reasonably segregable portion of a record shall be provided after deletion of the exempt information.

(3) The amount of information deleted shall be indicated on the released portion of the record and, if technically feasible, at the place in the record where the deletion was made.

(4) If it is necessary to separate exempt from nonexempt information in order to permit a citizen to inspect, copy, including without limitation copying through image capture, including still and moving photography and video and digital recording, or obtain copies of public records, the custodian shall bear the cost of the separation.

(g) Any computer hardware or software acquired by an entity subject to § 25-19-103(15)(A) after July 1, 2001, shall be in full compliance with the requirements of this section and shall not impede public access to records in electronic form.

(h) Notwithstanding any Arkansas law to the contrary, at the conclusion of any investigation conducted by a state agency in pursuit of civil penalties against the subject of the investigation, any settlement agreement entered into by a state agency shall be deemed a public document for the purposes of this chapter. However, the provisions of this subsection shall not apply to any investigation or settlement agreement involving any state tax covered by the Arkansas Tax Procedure Act, § 26-18-101 et seq.

(i)(1) Access to learning materials, as defined in § 25-19-103, shall not be denied to any resident on the grounds that disclosure, inspection, or copying of the learning materials would constitute an infringement of copyright under federal law.

(2) A custodian of learning materials shall not enter into an agreement or contract that purports to restrict public access to learning materials based on intellectual property rights or any similar legal theory.

(3)(A) A person who receives access to copyrighted learning materials under this section shall not publish, distribute, or utilize the copyrighted learning materials for any purpose other than public inspection.

(B) Any copies of copyrighted learning materials under this section shall not exceed any amounts permissible under fair use provisions of the copyright laws of the United States under 17 U.S.C. § 101 et seq., as it existed on January 1, 2025.

(4)(A) Consistent with subsection (g) of this section, access for public inspection shall not be denied to digital learning materials, including without limitation subscription-based services or other programs that can be accessed with personal electronic devices.

(B) To the extent that copying digital learning materials under subdivision (i)(4)(A) of this section is impractical, a resident requesting to copy the digital learning materials shall be provided the opportunity to physically inspect the digital learning materials during normal business hours.

(5)(A) Subject to subdivision (i)(2) of this section, access to learning materials, including without limitation the physical inspection of digital learning materials, for public inspection shall not be conditioned upon a resident seeking access to the learning materials being required to enter into any form of nondisclosure agreement or waiver of rights under this chapter.

(B) For purposes of this section, “nondisclosure agreement” means a confidentiality agreement or contract provision that prohibits the disclosure of information by a party to the contract to a third party.

History. Acts 1967, No. 93, § 4; 1977, No. 652, § 2; A.S.A. 1947, § 12-2804; Acts 1987, No. 49, § 1; 1989 (3rd Ex. Sess.), No. 8, § 1; 1993, No. 895, § 1; 1997, No. 540, § 52; 1997, No. 873, § 1; 1997, No. 1335, § 1; 1999, No. 1093, § 1; 2001, No. 1259, § 1; 2001, No. 1336, § 1; 2001, No. 1653, § 2; 2003, No. 213, § 1; 2003, No. 275, § 2; 2003, No. 763, § 2; 2003, No. 1214, § 1; 2005, No. 259, § 2; 2005, No. 2003, § 1; 2007, No. 268, § 2; 2007, No. 726, §§ 1, 2; 2007, No. 998, § 2; 2009, No. 631, § 2; 2009, No. 1291, § 1; 2011, No. 99, § 2; 2011, No. 168, § 1; 2013, No. 145, § 1; 2013, No. 235, § 2; 2013, No. 411, § 1; 2015, No. 186, § 3; 2015, No. 881, § 2; 2015, No. 1015, § 1; 2015, No. 1102, § 1; 2017, No. 711, § 1; 2019, No. 392, § 6; 2019, No. 568, § 1; 2019, No. 910, § 3585; 2019, No. 1012, § 1; 2019, No. 1034, § 1; 2021, No. 310, §§ 2-5; 2021, No. 658, § 1; 2021, No. 727, § 1; 2023, No. 36, § 1; 2023, No. 879, §§ 1, 2; 2023 (1st Ex. Sess.), No. 7, § 3; 2025, No. 649, § 5.

A.C.R.C. Notes. Acts 2015, No. 1137, § 1, provided: “6-60-108. Audit records.

“(a)(1) After an audit report is presented to the governing board of the institution of higher education, the audit report and copies of any documents contained in the working papers related to the audit report are open to public inspection under the Freedom of Information Act of 1967, § 25-19-101 et seq., except:

“(A) Documents specifically exempt from disclosure under the Freedom of Information Act of 1967, § 25-19-101 et seq.; and

“(B) Documents that disclose auditing procedures and techniques, including the following:

“(i) Internal control questionnaires consisting of the checklist of accounting and administrative procedures employed by auditors in the course of performing an audit; and

“(ii) The instructions and guidelines provided by or to the auditors about the examination procedures to be followed in the course of examining records and accounts to verify their accuracy, including verifications that the examination procedures have been followed.

“(2) The documents described in subdivision (a)(1)(B) of this section are exempt from the Freedom of Information Act of 1967, § 25-19-101 et seq.

“(b)(1) Until an audit report has been presented to the governing board of the institution of higher education, all working papers, including without limitation communications, notes, memoranda, preliminary drafts of audit reports, and other data gathered in the preparation of audit reports by auditors employed by or on behalf of a governing board of an institution of higher education, are exempt from the Freedom of Information Act of 1967, § 25-19-101 et seq.

“(2) The exemption provided under this section applies to all working papers in the custody or possession of any person before presentation of the audit report to the governing board of the institution of higher education regardless of the actual physical location of the report.

“(c) As used in this section, ‘audit’ means a financial audit, performance audit, technology audit, review, report of agreed-upon procedures, compilation, examination, investigation, or other report or procedure approved by the governing board of an institution of higher education.”

Acts 2023 (1st Ex. Sess.), No. 7, § 5, provided: “This act does not limit the ability of Arkansas Legislative Audit to report information it obtains to the Arkansas General Assembly.”

The reference to the Arkansas Minimum Standards Office in subdivision (b)(10)(A) of this section may be a reference to the Arkansas Commission on Law Enforcement Standards and Training or the Division of Law Enforcement Standards and Training, as this office is not created by statute. Acts 2019, No. 910, § 5733, transferred the admin-

istrative functions of the commission to the Department of Public Safety and created the division. See §§ 25-43-1402 and 25-43-1404. The division exercises certain powers and duties in conjunction with the commission. See generally § 12-9-101 et seq.

Acts 2025, No. 649, § 1, provided: “Title. This act shall be known and may be cited as the ‘Public School Access and Transparency Act.’”

Acts 2025, No. 649, § 2, provided: “Legislative intent. The purpose of this act is to amend the Freedom of Information Act of 1967, § 25-19-101 et seq., to:

“(1) Prevent the abuse of copyright claims by public records custodians for public schools; and

“(2) Guarantee access to school learning materials, thus ensuring transparency and accountability in public education in the state.”

Acts 2025, No. 649, § 6, provided: “Severability. If any provision of this act or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this act that can be given effect without the invalid provision or application and, to this end, the provisions of this act are severable.”

Amendments. The 2009 amendment by No. 631 substituted “July 1, 2011” for “July 1, 2009” in (b)(18)(C) and made a minor stylistic change.

The 2009 amendment by No. 1291 added (b)(19) and made related changes.

The 2011 amendment by No. 99 substituted “July 1, 2013” for “July 1, 2011” in (b)(18)(C).

The 2011 amendment by No. 168 redesignated former (a)(1)(B)(i)(a) and (b) as (a)(1)(B)(i) and (ii), and deleted former (a)(1)(B)(ii); deleted “of the Department of Correction and the Department of Community Correction” following “public records” in present (a)(1)(B); and substituted “(a)(1)(B)(i)” for “(a)(1)(B)(i)(a)” in present (a)(1)(B)(ii).

The 2013 amendment by No. 145 substituted “government or” for “governments” in the introductory language of (b)(19); in (b)(19)(A), substituted “to assist” for “for the purpose of assisting” and “to determine the” for “for determining”; substituted “The name” for “Names” in (b)(19)(B); and deleted (b)(19)(C).

The 2013 amendment by No. 235 substituted “under (b)(18)(A)” for “shall” in (b)(18)(B); and deleted former (b)(18)(C).

The 2013 amendment by No. 411, in (b)(13), added “Personal contact information, including without limitation home or mobile telephone numbers, personal email addresses, and” at the beginning and inserted “nonelected school employees” following “nonelected municipal employees.”

The 2015 amendment by No. 186 added “or municipally owned utility system” to the end of (b)(18)(A); redesignated former (b)(18)(B)(v) as (b)(18)(B)(vi); inserted present (b)(18)(B)(v); added “or municipally owned utility system” to the end of (b)(18)(B)(vi); and added (b)(20).

The 2015 amendment by No. 881 added (b)(21).

The 2015 amendment by No. 1015 added (b)(22).

The 2015 amendment by No. 1102 added (b)(23).

The 2017 amendment redesignated former (b)(20) as (b)(20)(A); added “Except as provided in subdivision (b)(20)(B) of this section” in (b)(20)(A); and added (b)(20)(B).

The 2019 amendment by No. 392 repealed former (b)(17).

The 2019 amendment by No. 568 added (b)(24) [now (b)(23)].

The 2019 amendment by No. 910 substituted “Division of Arkansas Heritage” for “Department of Arkansas Heritage” in (b)(3).

The 2019 amendment by No. 1012 added (b)(25) [now (b)(24)].

The 2019 amendment by No. 1034 added (b)(26) [now (b)(25)].

The 2021 amendment by No. 310 inserted “including without limitation copying through image capture, including still and moving photography and video and digital recording” in (a)(1)(A), (a)(1)(B), (a)(2)(A), (d)(1), and (f)(4); and added (d)(3)(A)(v).

The 2021 amendment by No. 658 added “Except as stated under subdivision (c)(4) of this section” in (c)(3)(A); and added (c)(4).

The 2021 amendment by No. 727 added (b)(27) [now (b)(26)].

The 2023 amendment by No. 36 substituted “before the close of the Attorney General’s office the following business day” for “immediately” in the second sentence of (c)(3)(B)(i).

The 2023 amendment by No. 879 rewrote (a)(3) and added (a)(4) through (a)(6).

The 2023 (1st Ex. Sess.) amendment added (b)(28) [now (b)(27)].

The 2025 amendment added (i).

Cross References. Confidentiality of military discharge records, § 14-2-102(c)-(e).

Disposition of criminal data to the central repository, § 12-12-1505.

Dissemination of criminal history information, requirements and exceptions, § 12-12-1504.

Effective Dates. Acts 2023 (1st Ex. Sess.), No. 7, § 4(b), provided: “Arkansas Code § 25-19-105(b)(28)(A) [now (b)(27)(A)], created in Section 3 of this act, is retroactive to June 1, 2022.”

RESEARCH REFERENCES

ALR. Disclosure of Electronic Data under State Public Records and Freedom of Information Acts. 54 A.L.R.6th 653.

Disclosure, Under State Freedom of Information or Records Act, of Video Obtained by Police or Other Law Enforcement Authorities from Dash Camera, Mobile Video Recorder, or Security or Surveillance Camera. 48 A.L.R.7th Art. 2 (2020).

Construction and Application of Public Domain Doctrine Allowing Courts to Disregard FOIA Law Enforcement Exemption Based on Prior Public Release of Requested Records. 3 A.L.R. Fed. 3d Art. 5 (2015).

Construction and Application of Public Domain or Official Acknowledgment Doctrine Allowing Courts to Disregard FOIA Exemption, Other Than Law Enforcement Exemption, Based on Prior Public Release of Requested Records. 17 A.L.R. Fed. 3d Art. 1 (2016).

Disclosure of Surveillance Records Under Freedom of Information Act, 5 U.S.C. § 552(b)(7)(E). 64 A.L.R. Fed. 3d Art. 8 (2021).

Deliberative Process Exemption from Freedom of Information Act, 5 U.S.C. § 552(b) — Draft Documents and Notes. 69 A.L.R. Fed. 3d Art. 2 (2022).

U. Ark. Little Rock L.J. Survey — Miscellaneous, 10 U. Ark. Little Rock L.J. 593.

Brooks, Adventures in Cyber-Space: Computer Technology and the Arkansas Freedom of Information Act, 17 U. Ark. Little Rock L.J. 417.

U. Ark. Little Rock L. Rev. Survey of Legislation, 2003 Arkansas General Assembly, State Government, Freedom of Information Act, 26 U. Ark. Little Rock L. Rev. 493.

Survey of Legislation, 2003 Arkansas General Assembly, Local Government, Protection for Veterans, 26 U. Ark. Little Rock L. Rev. 433.

J. Lyn Entrikin, The Right of Privacy in Arkansas: A Progressive State, 35 U. Ark. Little Rock L. Rev. 439 (2013).

D. Franklin Arey, III, Legislative Oversight Proceedings of the Arkansas General Assembly: Issues and Procedures, 45 U. Ark. Little Rock L. Rev. 593 (2023).

CASE NOTES

ANALYSIS

Constitutionality.

In General.

Construction.

Applicability.

Attorney-Client Privilege.

Attorney General.

Competitor.

Defendants.

Driver’s Privacy Protection Act.

Exempted Records.

Investigation Files.

Medical Records.

Medium and Format.

Parties Entitled.

Personnel Records.

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Records Subject to Inspection.

Redaction.

Regular Business Hours.

Constitutionality.

There is a rational basis for exempting the working papers of the governor, the legislators, and the supreme court justices from public disclosure. Such protection promotes and encourages free exchange of thought in each of the three branches of government. *McCambridge v. City of Little Rock*, 298 Ark. 219, 766 S.W.2d 909 (1989).

The attorney-client privilege has no application outside of court proceedings and, therefore, cannot create an exception to the Freedom of Information Act. *McCambridge v. City of Little Rock*, 298 Ark. 219, 766 S.W.2d 909 (1989).

Subdivision (a)(1)(B) of this section, which permits an incarcerated felon to request information of public record only through an attorney, did not violate the inmate’s due process right to access the courts because the inmate suffered no actual injury from the statute, as he had rights available to him through habeas petition. *Holt v. Howard*, 806 F.3d 1129 (8th Cir. 2015).

Subdivision (a)(1)(B) of this section, which permits an incarcerated felon to request information of public record only through an attorney, does not violate the Fourteenth Amendment’s Equal Protection Clause because the statute is rationally related to preventing the use of records to harass or threaten victims or witnesses and to conserving government resources. *Holt v. Howard*, 806 F.3d 1129 (8th Cir. 2015).

In General.

Generally, all public records are available for inspection under the Freedom of Information Act; exceptions are spelled out in this section. *City of Fayetteville v. Rose*, 294 Ark. 468, 743 S.W.2d 817 (1988).

This chapter does not require a court to provide, free of charge, a copy of material on file with the court; a petitioner is not entitled to photocopying at public expense unless he demonstrates some compelling need for specific

documentary evidence to support an allegation contained in a petition for postconviction relief. *Moore v. State*, 324 Ark. 453, 921 S.W.2d 606 (1996).

Construction.

The Freedom of Information Act should be broadly construed in favor of disclosure, and exceptions construed narrowly in order to counterbalance the self-protective instincts of the governmental bureaucracy. *McCambridge v. City of Little Rock*, 298 Ark. 219, 766 S.W.2d 909 (1989); *Bryant v. Mars*, 309 Ark. 480, 830 S.W.2d 869 (1992).

Acts 1989 (3rd Ex. Sess.), No. 8 was not merely remedial or procedural in nature, but created new exemptions from public disclosure which did not exist before. Statutes which are remedial or procedural generally supply new, different, or more appropriate remedies which relate to existing rights, and do not create new rights or extinguish old ones. *Gannett River States Publ'g Co. v. Ark. Indus. Dev. Comm'n*, 303 Ark. 684, 799 S.W.2d 543 (1990).

Any exemption from disclosure is to be narrowly construed, and when the scope of an exemption is unclear or ambiguous, the court will interpret it in a manner that favors disclosure. *Young v. Rice*, 308 Ark. 593, 826 S.W.2d 252 (1992).

Exemptions to the Freedom of Information Act are to be narrowly construed. *Troutt Bros., Inc. v. Emison*, 311 Ark. 27, 841 S.W.2d 604 (1992); *Young v. Rice*, 308 Ark. 593, 826 S.W.2d 252 (1992).

The court's policy regarding this chapter has been enunciated clearly in our case law — it will interpret it liberally to accomplish the purpose of promoting free access to public information. *Johninson v. Stodola*, 316 Ark. 423, 872 S.W.2d 374 (1994).

After reviewing §§ 25-19-102, 25-19-106, and this section, the court found nothing in the Freedom of Information Act that specifies that the communications media by which the public's business is conducted are limited to publicly owned communications; thus, the court rejected a state employee's claim that the employee was asked to violate the law by communicating with the governor via a private email address and, thus, the employee's subsequent resignation was voluntary without good cause and the employee was not entitled to benefits under § 11-10-513(a)(1). *Bradford v. Dir., Empl. Sec. Dep't*, 83 Ark. App. 332, 128 S.W.3d 20 (2003).

Trial court erred by finding that the driver received a timely and compliant response from appellees because the response, refusing to comply with the request on the ground that it was too broad and too burdensome, was in direct conflict with the Freedom of Information Act (FOIA) and with the court's case law interpreting the FOIA. *Daugherty v. Jacksonville Police Dep't*, 2012 Ark. 264, 411 S.W.3d 196 (2012).

Plain reading of subdivision (a)(2)(A) of this section clearly permits a citizen to make three independent types of requests under FOIA, § 25-19-101 et seq.: (1) request the custodian to allow him or her to inspect the public record; (2) request the custodian to allow him or her to copy the public record; or (3) request the custodian to make a copy and give that copy to him or her. *Motal v. City of Little Rock*, 2020 Ark. App. 308, 603 S.W.3d 557 (2020).

Under the plain language of subdivision (a)(2)(A) of this section, a citizen has the right under FOIA, § 25-19-101 et seq., to make a copy of a public record. *Motal v. City of Little Rock*, 2020 Ark. App. 308, 603 S.W.3d 557 (2020).

In keeping with the mandate to interpret FOIA, § 25-19-101 et seq., liberally to accomplish the purpose of promoting free access to public information, the term "copy" should be liberally interpreted to include the taking of a photograph; thus, under FOIA, a citizen has a right to take a photograph of the public document with a cell phone.

Motal v. City of Little Rock, 2020 Ark. App. 308, 603 S.W.3d 557 (2020).

Subdivision (c)(3)(A) of this section provides that on receiving a request for the examination or copying of personnel or evaluation records, the custodian of the records shall determine within 24 hours of the receipt of the request whether the records are exempt from disclosure and make efforts to the fullest extent possible to notify the person making the request and the subject of the records of that decision. By the plain language of the statute, the evaluation by the custodian required under subdivision (c)(3)(A) is conducted on the receipt of the request and therefor must be conducted before either a custodian makes a copy or allows a citizen to make the copy of the record. *Motal v. City of Little Rock*, 2020 Ark. App. 308, 603 S.W.3d 557 (2020).

Applicability.

Acts 1989 (3rd Ex. Sess.), No. 8 contains neither express language nor clear implication mandating retroactive effect, and operates prospectively only. *Gannett River States Publ'g Co. v. Ark. Indus. Dev. Comm'n*, 303 Ark. 684, 799 S.W.2d 543 (1990).

In order to invoke a narrowly construed exemption under this chapter, the circuit court must peruse the pertinent data in question in order to make an informed decision. *Johninson v. Stodola*, 316 Ark. 423, 872 S.W.2d 374 (1994).

The circuit court must review the relevant files in camera in order to make its decision that the exemption of subdivision (b)(6) of this section applies across the board to those files. *Johninson v. Stodola*, 316 Ark. 423, 872 S.W.2d 374 (1994).

Where the records in question are established as "public records" pursuant to § 25-19-103 of the Arkansas Freedom of Information Act and not otherwise exempted from disclosure, the appropriate governmental agency shall have the responsibility to provide reasonable access for examination and copying of such public records which are in existence at the time of the request, as provided in this section. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Circuit judge's law clerk's personal check was a public record under the Arkansas Freedom of Information Act (FOIA), § 25-19-101 et seq., and the circuit judge was its custodian under § 25-19-103(1) and had to disclose the check to an attorney and his counsel pursuant to this section where the circuit judge instructed his clerk to obtain copies of certain documents from a federal court for use in contempt proceedings against the attorney, and where the attorney and his counsel sought disclosure of the check under FOIA. *Fox v. Perroni*, 358 Ark. 251, 188 S.W.3d 881 (2004).

Seed sample did not meet the definition of a "public record" under § 25-19-103 because it could not be said to be an object on which records and information may be stored or represented; the list of items that could be mediums did not contain a seed or any other object, and removal and destructive testing of seed samples went far beyond the inspection and copying of public records. *Nolan v. Little*, 359 Ark. 161, 196 S.W.3d 1 (2004).

Because not all of the emails that were requested by a newspaper were "public records" pursuant to subdivision (a)(1)(A) of this section, but there was not enough evidence to discern which of them were "public records", an in camera review was needed to make that determination. The definition of "public records" under the Freedom of Information Act, § 25-19-101 et seq., was content-driven, and the only way to determine the content was to examine the emails because an analysis of messages based solely on the context in which they were created, without an exami-

nation of the content of the messages, was insufficient to determine whether the messages were “public records”. *Pulaski County v. Ark. Democrat-Gazette, Inc.*, 370 Ark. 435, 260 S.W.3d 718 (2007).

Trial court erred by finding that appellees’ requirement that the driver pay a deposit of \$2,475 to obtain the requested records did not violate the Freedom of Information Act because § 25-19-109 did not apply, as the driver stated that she requested only copies of the recordings and did not ask for any type of special conversion or any type of compilation. The applicable provision to the driver’s request was subsection (d) of this section, as she simply requested a copy of the files, and therefore appellees could not charge fees that exceeded the cost of reproduction and could not include the hourly rate of a captain in assessing costs to the driver. *Daugherty v. Jacksonville Police Dept.*, 2012 Ark. 264, 411 S.W.3d 196 (2012).

When a teacher made a Freedom of Information Act (FOIA) request to a school district (district) after the teacher was terminated, and the denial of that request was reviewed in the same case in which the termination was contested, a trial court had no jurisdiction to grant the district’s renewed motion for a protective order because (1) the order was sought under Ark. R. Civ. P. 26(c), which was independent of the FOIA, and (2) the renewed motion initiated no FOIA case, as the district was the records custodian and only a citizen could seek review of the denial of an FOIA request, and the motion was litigated while the termination case was on appeal. *Hollis v. Fayetteville Sch. Dist. No. 1*, 2016 Ark. App. 132, 485 S.W.3d 280 (2016).

Contrary to the district court clerk’s contention, the request for all court records of a specific individual was not a request for “compiled information”; the process needed to identify and copy the requested records was not akin to selecting certain information from multiple cases and then aggregating or reformulating that information into a new court record. Thus, the request was not governed by any of the access limitations described in Ark. Admin. Order No. 19, the Arkansas Freedom of Information Act applied, and while a custodian was not required to compile information or create a record in response to a FOIA request, that exemption did not apply here. *Jones v. Prof'l Background Screening Ass'n*, 2020 Ark. 362, 610 S.W.3d 640 (2020).

Attorney-Client Privilege.

There is no attorney-client privilege or attorney work product exemption under this chapter. *City of Fayetteville v. Edmark*, 304 Ark. 179, 801 S.W.2d 275 (1990).

Litigation files prepared by an attorney hired by private medical malpractice liability insurance carriers to represent three doctors who worked for the state university were not subject to disclosure under the Freedom of Information Act, §§ 25-19-101 to 25-19-110, because the documents were not public records for purposes of subdivision (a)(1)(A) of this section. As the doctors were sued in their personal capacity, simply changing the records request to name the doctors in their official capacity did not convert the documents from private to public; the documents were also attorney work-product and subject to the attorney-client privilege. *Harrill & Sutter, PLLC v. Farrar*, 2012 Ark. 180, 402 S.W.3d 511 (2012).

Attorney General.

The term “Attorney General” as used in this section refers to the office as opposed to an individual, including not only the individual holding the elective office but also his authorized deputies and representatives. *Bryant v. Mars*, 309 Ark. 480, 830 S.W.2d 869 (1992).

The working papers of an outside consultant retained by the Attorney General, are also exempt from the Freedom of

Information Act as working papers of the Attorney General. *Bryant v. Mars*, 309 Ark. 480, 830 S.W.2d 869 (1992).

Competitor.

Categorizing members of the public who may wish to learn of, and/or disagree with, actions of public officials, even to the point of litigation, does not make such a person or entity a “competitor” as envisioned by this chapter. *City of Fayetteville v. Edmark*, 304 Ark. 179, 801 S.W.2d 275 (1990).

A state agency can claim the competitive advantage exception on behalf of the person who supplied the information. *Ark. Dep't of Fin. & Admin. v. Pharmacy Assocs., Inc.*, 333 Ark. 451, 970 S.W.2d 217 (1998).

The Department of Finance and Administration (DF&A) was not required to fully disclose a company’s successful bid proposal to the DF&A since the bid proposal fell under the competitive advantage exception and since disclosure would not only be detrimental to the successful bidder, but also to the DF&A in the quality of information it would receive to requests for proposals in the future. *Ark. Dep't of Fin. & Admin. v. Pharmacy Assocs., Inc.*, 333 Ark. 451, 970 S.W.2d 217 (1998).

In a Freedom of Information Act case, where the Arkansas Department of Commerce, Division of Workforce Services, sought to protect certain information requested by plaintiff, the circuit court properly refused to apply the exemption in subdivision (b)(9)(A) of this section, for files that would give advantage to competitors or bidders if disclosed, because applicants for unemployment benefits were not “competitors” or “bidders” within the plain language of the exemption. *Ark. DOC v. Legal Aid of Ark.*, 2022 Ark. 130, 645 S.W.3d 9 (2022).

Defendants.

Pursuant to this section, while the contractor possessed the records requested, it was not an entity covered by the Freedom of Information Act (FOIA), § 25-19-101 et seq., which would render it subject to suit under the FOIA; therefore, the association’s suit was reversed and dismissed. *Nabholz Constr. Corp. v. Contractors for Pub. Prot. Ass'n*, 371 Ark. 411, 266 S.W.3d 689 (2007).

Circuit court abused its discretion in issuing a permanent injunction in favor of plaintiff competitor under the Freedom of Information Act of 1967, § 25-19-101 et seq., because the plaintiff failed to sue an entity covered under FOIA; the competitor could not sue a private corporation alone under FOIA and direct it to produce public records it possessed by virtue of its contracts with counties because the private corporation was not the custodian of the public records. The circuit court’s conclusion that county officials were unnecessary parties to a dispute over access to their public records was clearly erroneous. *Apprentice Info. Sys. v. DataScout, LLC*, 2018 Ark. 146, 544 S.W.3d 39 (2018).

Driver’s Privacy Protection Act.

Unredacted access to certain accident reports should have been granted to an attorney seeking clients for his law practice because the Driver’s Privacy Protection Act, 18 U.S.C. §§ 2721–2725, did not prohibit information contained in such reports from being released under the Freedom of Information Act. A vehicle accident report is not included in the definition of a “motor vehicle record,” regardless of whether, as a matter of convenience, some of the information included in an accident report may be taken from or verified by a database maintained by the Office of Motor Vehicles. Moreover, “personal information” does not include information on vehicular accidents. *Ark. State Police v. Wren*, 2016 Ark. 188, 491 S.W.3d 124 (2016), cert. denied, 580 U.S. 1048, 137 S. Ct. 623, 196 L. Ed. 2d 515 (2017).

Exempted Records.

Public access must be afforded only to those records statutorily required to be kept by public agencies and lists of recipients of complimentary football tickets kept by state university, since not required by statute, need not be opened to public. *McMahan v. Board of Trustees*, 255 Ark. 108, 499 S.W.2d 56 (1973).

An order sealing a written pretrial motion was exempted from inspection or copying under this section. *Ark. Newspaper, Inc. v. Patterson*, 281 Ark. 213, 662 S.W.2d 826 (1984).

This section does not exempt working papers of employees of a legislative committee, only those of the legislator; therefore, the working papers of an auditor who was a state employee were not exempt. *Legislative Joint Auditing Comm. v. Woosley*, 291 Ark. 89, 722 S.W.2d 581 (1987).

The law enforcement exception to the Freedom of Information Act includes only agencies which investigate suspected criminal activity under the State Penal Code and have enforcement powers; therefore, the law enforcement exemption does not apply to state auditors working for the Legislative Joint Auditing Committee. *Legislative Joint Auditing Comm. v. Woosley*, 291 Ark. 89, 722 S.W.2d 581 (1987).

Records not of an “undisclosed investigation” are public and available for examination. *City of Fayetteville v. Rose*, 294 Ark. 468, 743 S.W.2d 817 (1988).

Real estate appraisals did not amount to working papers, correspondence, and unpublished memoranda of the Attorney General. *Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc.*, 294 Ark. 490, 744 S.W.2d 711 (1988).

Disclosures requested held not protected by exception in subdivision (b)(8) of this section. *Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc.*, 294 Ark. 490, 744 S.W.2d 711 (1988).

Exclusion in subdivision (b)(9) is intended to prevent competitors from obtaining information about others seeking the same type of work or furnishing material to the state. *Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc.*, 294 Ark. 490, 744 S.W.2d 711 (1988).

Attorney-client privilege is not one of exceptions of this section. *Ark. Hwy. & Transp. Dep’t v. Hope Brick Works, Inc.*, 294 Ark. 490, 744 S.W.2d 711 (1988).

Applying the general rule of prospectivity which governs interpretation of statutes, the application of the May 14, 1990, version of Rule 7 of the Rules of the Judicial Discipline & Disability Commission is prospective, and thus the Judicial Discipline & Disability Commission is not required to divulge its actions prior to that time which were protected under the former rule and statute. *Gannett River States Publ’g Co. v. Ark. Judicial Discipline & Disability Comm’n*, 304 Ark. 244, 801 S.W.2d 292 (1990).

Because only the General Assembly can create exceptions to this chapter, a statute must specifically provide for nondisclosure before a court will exempt a public record from the chapter. *Troutt Bros., Inc. v. Emison*, 311 Ark. 27, 841 S.W.2d 604 (1992).

There must be a specific statutory mandate to exempt public records from disclosure. *Byrne v. Eagle*, 319 Ark. 587, 892 S.W.2d 487 (1995).

The home addresses of 2 police officers, which were sought by the plaintiff in a civil action so as to decrease his cost of service of process, were exempt from disclosure as an unwarranted invasion of personal privacy. *Stilley v. McBride*, 332 Ark. 306, 965 S.W.2d 125 (1998).

Circuit court properly denied an attorney’s request for information under the employee-evaluation/job-performance exemption in subdivision (c)(1) of this section, because the records of a decision to suspend or terminate a police officer following an investigation into a citizen’s complaint by one of the attorney’s clients were job-perfor-

mance records that were not subject to release where the officer was not on duty during the encounters, the client was not arrested, and there was no decision to suspend or terminate the officer. *Hyman v. Sadler*, 2018 Ark. App. 82, 539 S.W.3d 642 (2018).

School district properly withheld records pertaining to investigations involving two altercations that occurred between a student and teachers where the records fit within the definition of employee-evaluation and job-performance records and the examples provided in attorney general opinions, and there was no evidence that the records were not created by the employer concerning the teachers’ performance in regard to the specific incidents. *Davis v. Van Buren Sch. Dist.*, 2019 Ark. App. 157, 572 S.W.3d 466 (2019).

Records pertaining to investigations involving two altercations that occurred between a student and teachers did not fit within the exception in subdivision (c)(1) of this section, as there was no final administrative resolution of any suspension or termination proceeding at which the records formed a basis to suspend or terminate the teachers, it was undisputed that neither teacher was suspended or terminated as a result of the records, and one teacher’s resignation occurred before any administrative hearing, resolution, or appeal. *Davis v. Van Buren Sch. Dist.*, 2019 Ark. App. 157, 572 S.W.3d 466 (2019).

Request for photographs of all uniformed, plain clothed, non-undercover Arkansas State Troopers hired since appellee made a similar request in 2019 was exempt from disclosure under subdivision (b)(10)(A) of this section (identities of undercover officers). Clearly, comparing information already available to the public, from sources like the Arkansas Transparency website—which provides names, service dates, salaries, race, gender, and other identifying information of State employees, including state troopers—with a list of non-undercover troopers would reveal the identities of the undercover officers. *Ark. State Police v. Racop*, 2022 Ark. 17, 638 S.W.3d 1 (2022).

Investigation Files.

When a criminal case is closed by administrative action, the reason for the exemption under subdivision (b)(6) no longer exists, and statements previously exempted thereby may be released. *McCambridge v. City of Little Rock*, 298 Ark. 219, 766 S.W.2d 909 (1989).

If a law enforcement investigation remains open and ongoing it is one meant to be protected as “undisclosed” under the Arkansas Freedom of Information Act. *Martin v. Musteen*, 303 Ark. 656, 799 S.W.2d 540 (1990).

The trial court will have to decide, as a matter of fact in each case, whether investigations are ongoing or not for purposes of applying the exemption provided in subdivision (b)(6). *Martin v. Musteen*, 303 Ark. 656, 799 S.W.2d 540 (1990).

Where the high level of publicity and media attention threatened to interfere with defendant’s right to a fair trial, the closing of the investigation files of the state police and the files of all investigative agencies, including a legislative audit, by the court, was warranted to ensure the defendant’s right to a fair trial. *Ark. Gazette Co. v. Goodwin*, 304 Ark. 204, 801 S.W.2d 284 (1990).

Exemption from disclosure under subdivision (b)(6) of this section requires an investigation to be open and ongoing to qualify for nondisclosure. Whether an investigation is open and ongoing is by necessity a question of fact to be determined on a case-by-case basis. *Dep’t of Ark. State Police v. Keech Law Firm, P.A.*, 2017 Ark. 143, 516 S.W.3d 265 (2017).

In ordering the Arkansas State Police to release case file records to a murder victim’s family pursuant to the Freedom of Information Act of 1967, the circuit court did not

clearly err when it found that the investigation into the victim's murder in 1963 was not open and ongoing, as no charges had been brought or appeared to be imminent. The victim's family and the public were entitled to know how law enforcement officials performed their duties. *Dep't of Ark. State Police v. Keech Law Firm, P.A.*, 2017 Ark. 143, 516 S.W.3d 265 (2017).

Circuit court properly found that a prison transport manifest did not fall within the scope of the "undisclosed investigation" exception to the Freedom of Information Act of 1967 because the manifest was simply a record kept in the regular course of business and was not investigatory in nature such that the exemption would apply. *Holladay v. Glass*, 2017 Ark. App. 595, 534 S.W.3d 173 (2017).

Arkansas Department of Commerce, Division of Workforce Services (DWS), was not a law enforcement agency to which the exemption in the Freedom of Information Act for undisclosed investigations of suspected criminal activity applied, and thus, it was not entitled to redact its public records; none of the statutes DWS referenced authorized it to conduct criminal investigations but rather, they allowed it to conduct administrative investigations, initiate civil collection actions, and refer matters to law enforcement agencies. *Ark. DOC v. Legal Aid of Ark.*, 2022 Ark. 130, 645 S.W.3d 9 (2022).

Trial court erred as a matter of law in its application of the undisclosed-investigations exemption (subdivision (b)(6) of this section) to appellant's request for material under the Arkansas Freedom of Information Act on the basis of its misunderstanding of *Hyman v. Sadler*, 2017 Ark. App. 292. *Hyman* did not hold that a criminal investigation remains open, or is considered ongoing, until a plea is entered or there has been a verdict following a trial. On remand, the trial court is to conduct an in camera review of the relevant material and perform a meaningful fact-finding inquiry on whether the exemption applies. *Martin v. Higgins*, 2024 Ark. App. 1, 682 S.W.3d 357 (2024).

Medical Records.

Hospital statements taken from witnesses as part of a quality assurance or peer review proceeding were excluded from disclosure and were absolutely privileged communications pursuant to Arkansas statutes. *Berry v. Saline Mem'l Hosp.*, 322 Ark. 182, 907 S.W.2d 736 (1995).

Medium and Format.

Circuit court did not err in ordering a school district to provide electronic copies of paper records at no charge under the Freedom of Information Act of 1967; the school district could scan the paper records and provide them electronically, and the circuit court did not clearly err in finding in this case that the records were "readily available" in an electronic medium. *Pulaski Cty. Special Sch. Dist. v. Delaney*, 2019 Ark. App. 210, 575 S.W.3d 420 (2019).

School district could not refuse a request under the Freedom of Information Act of 1967 to be provided 1,816 pages of records in an electronic format on the ground that the request was too voluminous or burdensome due to the scanning process. In addition, there is no provision in this section that permits a custodian to decide in what medium it will provide records to a citizen based on the number of records the school district must redact or the school district's preference to have a hard copy of the documents. *Pulaski Cty. Special Sch. Dist. v. Delaney*, 2019 Ark. App. 210, 575 S.W.3d 420 (2019).

Parties Entitled.

Intent of Freedom of Information Act includes a corporation doing business in this state as being a party entitled to information. Hence, representative of corporation is entitled to receive any information that any other person

would be entitled to receive pursuant to the Freedom of Information Act. *Ark. Hwy. & Transp. Dep't v. Hope Brick Works, Inc.*, 294 Ark. 490, 744 S.W.2d 711 (1988).

The public, for whose benefit this chapter was enacted, includes both those who support and those who oppose the actions or inactions of public officials, employees or agencies, as well as those who wish to merely learn of and evaluate the actions of public officials. *City of Fayetteville v. Edmark*, 304 Ark. 179, 801 S.W.2d 275 (1990).

The Attorney General, acting in his official capacity and using the resources of his office, possesses standing to appeal the denial of his request pursuant to the Arkansas Freedom of Information Act. *Bryant v. Weiss*, 335 Ark. 534, 983 S.W.2d 902 (1998).

Personnel Records.

Subdivision (b)(10) [now (b)(12)] requires that the public's right to knowledge of records be weighed against an individual's right to privacy, so that when the public's interest is substantial, it will usually outweigh any individual privacy interests, and disclosure will be favored. *Young v. Rice*, 308 Ark. 593, 826 S.W.2d 252 (1992).

Where the release of records could subject candidates for police lieutenant to embarrassment, and perhaps threaten their future employment, release would result in a clearly unwarranted invasion of the candidates' personal privacy; although the public's interest in knowing that its safety is protected by the best-qualified police lieutenant is also substantial, it was served by the release of the report forms, even though the candidates' identities remained unknown. *Young v. Rice*, 308 Ark. 593, 826 S.W.2d 252 (1992).

Ratepayer's Address.

In connection with the claim that the home address of a ratepayer should not be disclosed, the department made a policy argument that since a public employee's personal contact information was exempted from disclosure, so should that of a private customer, but it was the job of the General Assembly to establish exemptions under the Freedom of Information Act, and arguments for additional exemptions had to be addressed to the General Assembly, not the court. *Hopkins v. City of Brinkley*, 2014 Ark. 139, 432 S.W.3d 609 (2014) (decision under prior law).

Records Subject to Inspection.

The books and records of a city collector's office are at all times available to the public. *Pointer v. State*, 248 Ark. 710, 454 S.W.2d 91, cert. denied, 400 U.S. 959, 91 S. Ct. 359, 27 L. Ed. 2d 268 (1970).

Records of intercollegiate conference on the amount of money that its member institutions disbursed to its student athletes were not "educational" records under the Family Education Rights and Privacy Act of 1974, and were not closed to the public because they were not individual education or academic records. *Ark. Gazette Co. v. Southern State College*, 273 Ark. 248, 620 S.W.2d 258 (1981), cert. denied, 455 U.S. 931, 102 S. Ct. 1416, 71 L. Ed. 2d 640 (1982).

Information stored on computer tapes is a public record, and the public is entitled to have it in the form in which it is kept. *Blaylock v. Staley*, 293 Ark. 26, 732 S.W.2d 152 (1987).

Committee violated the Arkansas Freedom of Information Act when it used unsigned written ballots which were disposed of in a manner making their review impossible. *Depoyster v. Cole*, 298 Ark. 203, 766 S.W.2d 606 (1989), overruled in part, *Harris v. City of Fort Smith*, 366 Ark. 277, 234 S.W.3d 875 (2006).

While items obtained by police in the course of a criminal investigation involve personal matters, the governmental interest in disclosure under the Freedom of Information

Act may outweigh the privacy interest in the nondisclosure of personal matters. *McCambridge v. City of Little Rock*, 298 Ark. 219, 766 S.W.2d 909 (1989).

Legal memoranda prepared by outside counsel for the City for litigation purposes are public records within the meaning of this chapter and are open to inspection, and, the enhanced risk that the City may lose litigation does not constitute an exemption. *City of Fayetteville v. Edmark*, 304 Ark. 179, 801 S.W.2d 275 (1990).

The jail log, arrest records and shift sheet requested from the police department by a news reporter were not records containing undisclosed law enforcement investigations and were subject to disclosure pursuant to this section. *Hengel v. City of Pine Bluff*, 307 Ark. 457, 821 S.W.2d 761 (1991).

There is no statute that specifically provides for the exemption of the names of juveniles arrested for felonies but not charged as delinquent juveniles, thus, detention facility logs and booking sheets of juvenile detention facilities are not exempt. *Troutt Bros., Inc. v. Emison*, 311 Ark. 27, 841 S.W.2d 604 (1992).

By requiring audits to be performed by a private auditing firm and not the state auditor, the state, in § 15-5-210, has elected to employ a private firm to perform a task normally carried out by state employees or officials; thus, the audit working papers of the Legislative Joint Auditing Committee are considered public records subject to this chapter. *Swaney v. Tilford*, 320 Ark. 652, 898 S.W.2d 462 (1995).

Judgment was properly awarded to appellee in an action against a police chief, in the chief's capacity as the custodian of records for the police department, for violation of

the Arkansas FOIA because an officer's use-of-force reports describing an incident with appellee did not fall within the exemption in subdivision (c)(1) of this section for employee evaluation or job performance records. *Thomas v. Hall*, 2012 Ark. 66, 399 S.W.3d 387 (2012).

Redaction.

Legal opinions rendered in tax cases under Gross Receipts Tax Rule G-75 are subject to disclosure to a company because they are "otherwise kept" public records under the definition of "Public records" in § 25-19-103; however, any and all identifying facts and information have to be fully redacted under subdivision (f)(1)–(3) of this section. Moreover, the legal opinions are not confidential because § 26-18-303(a)(1) does not cover Gross Receipts Tax Rule G-75; state law does not require that the opinions be kept by or filed with the Director of the Department of Finance and Administration. *Ryan & Co. AR, Inc. v. Weiss*, 371 Ark. 43, 263 S.W.3d 489 (2007).

Regular Business Hours.

As the police department operated 24 hours a day, seven days a week, in the absence of some showing to the contrary those were its regular business hours. *Hengel v. City of Pine Bluff*, 307 Ark. 457, 821 S.W.2d 761 (1991).

Cited: *Baxter County Newspapers, Inc. v. Medical Staff of Baxter Gen. Hosp.*, 273 Ark. 511, 622 S.W.2d 495 (1981); *Morton v. City of Little Rock*, 728 F. Supp. 543 (E.D. Ark. 1989); *Ark. Dep't of Health v. Westark Christian Action Council*, 322 Ark. 440, 910 S.W.2d 199 (1995); *Hamilton v. Simpson*, 67 Ark. App. 173, 993 S.W.2d 501 (1999); *Jegley v. Picado*, 349 Ark. 600, 80 S.W.3d 332 (2002); *Watkins v. Dale*, 2011 Ark. App. 385 (2011).

25-19-106. Public meetings — Requirements, exceptions, and penalties.

(a) To lawfully hold a public meeting, a governing body shall ensure that:

(1) Prior notice of the public meeting has been provided as required under subsection (b) of this section;

(2) Any executive session held within a public meeting is conducted as required under subsection (c) of this section;

(3) The public meeting is recorded as provided under subsection (d) of this section;

(4) The public is permitted reasonable access to the public meeting, and members of the governing body attend the public meeting in the appropriate manner, as provided under subsection (e) of this section; and

(5) The public meeting is conducted in a manner that allows the public to attend and hear all of the governing body's meaningful discussion and deliberation, if any, on official business as provided under subsections (f) and (g) of this section.

(b)(1)(A) The time and place of each regular public meeting shall be furnished to anyone who requests the information.

(B) Unless another notification timeline for the public meeting of a governing body is specified by law, the notification required under subdivision (b)(1)(A) of this section shall be made at least three (3) days before the public meeting takes place in order that the public may have representatives at the public meeting.

(2)(A) In the event of an emergency or special public meeting, the person calling the public meeting shall notify the representatives of the newspapers, radio stations, and television stations, if any, located in the county in which the public meeting is to be held and any news media located elsewhere that cover regular public meetings of the governing body and that have requested to be so notified of emergency or special public meetings of the time, place, and date of the public meeting.

(B) The notification required under subdivision (b)(2)(A) of this section shall be made at least two (2) hours before the public meeting takes place in order that the public may have representatives at the public meeting.

(3) In addition to the requirements under subdivisions (b)(1) and (2) of this section:

(A) The time, place, and date of a public meeting shall be published online if the governing body or the public entity it governs maintains a website or social media page; and

(B)(i) The governing body shall furnish the most current agenda for a public meeting upon request and shall publish the most current agenda for a public meeting online if the governing body or the public entity it governs maintains a website or social media page at least three (3) days before a regular public meeting and at least two (2) hours before an emergency or special public meeting.

(ii) The requirement of subdivision (b)(3)(B)(i) of this section does not preclude a governing body from adding items to an agenda after the agenda has been furnished or posted under subdivision (b)(3)(B)(i) of this section.

(c)(1) An executive session shall be permitted only for the purpose of:

(A)(i) Considering the employment, appointment, promotion, demotion, disciplining, or resignation of any public officer or employee.

(ii) Before going into an executive session called under subdivision (c)(1)(A)(i) of this section, a governing body shall state publicly which specific purpose listed in subdivision (c)(1)(A)(i) of this section is the basis for the executive session.

(iii) Only the person holding the top administrative position in the public agency, department, or office involved, the immediate supervisor of the employee involved, and the employee may be present at the executive session when so requested by the governing body holding the executive session.

(iv) Any person being interviewed for the top administrative position in the public agency, department, or office involved may be present at the executive session when so requested by the governing body holding the executive session;

(B) Discussing how a governing body will respond to an attack on or other breach of the cybersecurity of the public entity governed by the governing body;

(C)(i) A board or commission of the state preparing examination materials and answers to examination materials that are administered to applicants for licensure from a state agency.

(ii) Boards and commissions are excluded from this chapter for the administering of examinations to applicants for licensure; and

(D) A governing body considering, evaluating, or discussing matters pertaining to a public water system's security or municipally owned utility system's security as described in § 25-19-105(b)(17).

(2) Executive sessions shall not be called for the purpose of defeating the reason or the spirit of this chapter.

(d)(1) Except as provided under subdivision (d)(5) of this section, a public meeting shall be recorded in a manner that allows for the capture of sound, including without limitation:

(A) A sound-only recording;

(B) A video recording with sound and picture; or

(C) A digital or analog broadcast capable of being recorded.

(2) If a member of a governing body attends a public meeting remotely, the remote portion of the public meeting that is recorded under subdivision (d)(1) of this section shall be recorded in the format in which it is conducted.

(3) A recording of a public meeting under subdivision (d)(1) or subdivision (d)(2) of this section shall be maintained by a public entity for a minimum of one (1) year from the date of the public meeting.

(4) The recording shall be maintained in a format that may be reproduced upon a request under this chapter.

(5) Subdivision (d)(1) of this section does not apply to:

(A) Executive sessions; or

(B) Volunteer fire departments.

(e)(1) A governing body shall ensure that Arkansas residents have reasonable access to attend a public meeting, including through remote means, if such remote means are utilized by the governing body.

(2) Except as provided under subdivisions (e)(3)-(5) of this section, a member of a governing body shall be physically present at a public meeting to be counted for purposes of establishing a quorum or to vote.

(3) Other than governing bodies of municipalities, counties, or public school districts, a governing body may adopt a policy permitting members of the governing body to attend a public meeting remotely.

(4) The ability of the governing body of a public school district to conduct a public meeting remotely shall be governed by § 6-13-619.

(5) If the Governor declares a disaster emergency under the Arkansas Emergency Services Act of 1973, § 12-75-101 et seq., a governing body may conduct a public meeting remotely.

(6) For a member of a governing body who attends a meeting remotely to be counted for a quorum or to vote, the method used to permit the member of the governing body to attend remotely shall:

(A) Provide a method for the governing body to verify the identity of the member of the governing body attending remotely;

(B) Allow other members of the governing body and members of the public, whether physically present at the public meeting or attending the public meeting remotely, at all times to:

(i) Hear the member of the governing body attending remotely;

(ii) Observe or otherwise understand a vote of a member of the governing body attending remotely; and

(iii) Know the identity of the member of the governing body attending remotely when that member is speaking or voting; and

(C) Allow a member of the governing body attending remotely to hear the other members of the governing body and any public comment.

(7) A member of a governing body who attends a public meeting remotely shall not receive mileage or per diem for attending the public meeting.

(8) If one (1) or more members of a governing body attends a public meeting remotely:

(A) The governing body shall enable members of the public to attend the public meeting by the same means that the members of the governing body attending the public meeting remotely are attending the public meeting; and

(B) Notice of the method by which the public may attend the public meeting shall be published with the notice of the public meeting.

(f) A member of a governing body shall not participate in a communication, whether oral, written, electronic, or otherwise, that:

(1)(A) He or she knows or reasonably should know is a poll.

(B)(i) It is not a violation of subdivision (f)(1)(A) of this section if a secretary or administrative assistant of a governing body communicates in writing with one (1) or more members of the governing body for the purpose of conducting a ministerial act, including without limitation scheduling a public meeting of the governing body or setting the agenda for a public meeting of the governing body.

(ii) It is a violation of subdivision (f)(1)(A) of this section if a secretary or administrative assistant of a governing body communicates with one (1) or more members of the governing body to schedule a public meeting of the governing body or set the agenda for a public meeting of the governing body and the communication functionally conducts substantive business of the governing body concerning any matter on which official action would foreseeably be taken by the governing body.

(C)(i) It is not a violation of subdivision (f)(1)(A) of this section if an employee or an agent of a public entity communicates background and nondecisional information to one (1) or more members of the governing body of the public entity.

(ii) Except as provided in subdivision (f)(1)(B)(i) of this section, it is a violation of subdivision (f)(1)(A) of this section if an employee or agent of a public entity communicates to a member of the governing body of the public entity:

- (a) How another member of the governing body intends to vote; or
- (b) Whether another member of the governing body supports or opposes a certain proposed action by the governing body; or
- (2)(A) Occurs outside of a public meeting with another member of the governing body about a matter on which official action will foreseeably be taken by the governing body.
- (B) It is not a violation of subdivision (f)(2)(A) of this section if a member of a governing body communicates background and nondecisional information to one (1) or more members of the same governing body.
- (C) It is a violation of subdivision (f)(2)(A) of this section if a member of a governing body engages in any communication with one (1) or more members of the same governing body that constitutes deliberation, as deliberation may only occur at a public meeting of the governing body.
- (g) An informal meeting that includes deliberation or that is for the purpose of exercising a responsibility, authority, power, or duty of a governing body is strictly prohibited.
- (h) Two (2) or more employees or agents of a public entity may communicate for the purpose of exercising an authorized responsibility, authority, power, or duty of an employee or agent of the public entity outside of a public meeting.
- (i)(1) If a circuit court finds under § 25-19-107 that a governing body is in violation of this section, the circuit court may invalidate any action the governing body took at the unlawful public meeting.
- (2) If a circuit court finds under § 25-19-107 that a member of a governing body engaged in a communication prohibited under subsection (f) of this section or in an informal meeting prohibited under subsection (g) of this section, the circuit court may invalidate any action the governing body took that is the direct or indirect result of the prohibited communication or informal meeting.
- (3) An action taken in an executive session is void unless the governing body conducts a public vote on the matter discussed in the executive session at the conclusion of the executive session.
- (j)(1) Notwithstanding any provision to the contrary, if a circuit court finds that a governing body or a member of a governing body violated this section concerning the issuance of bonds, the circuit court may only invalidate the action by the governing body authorizing the issuance of bonds within thirty (30) days of the date the action occurred.
- (2) If a circuit court makes a finding described under subdivision (j)(1) of this section more than thirty (30) days after the action by the governing body authorizing the issuance of the bonds:
 - (A) The governing body shall cure the violation within thirty (30) days after the finding of the circuit court by:
 - (i) Providing notice of the violation in compliance with subsection (b) of this section;
 - (ii) Disclosing the violation at a public meeting; and
 - (iii) Authorizing the action in question at the public meeting in compliance with subdivision (a)(5) of this section; or
 - (B)(i) The circuit court shall impose a civil penalty of one thousand dollars (\$1,000) on each individual member of the governing body, up to the entire membership of the governing body, who the circuit court finds committed or was otherwise responsible for the violation.
 - (ii) The civil penalty under subdivision (j)(2)(B)(i) of this section shall:
 - (a) Be paid to the claimant asserting the claim in circuit court within thirty (30) days of the finding of the circuit court under subdivision (j)(1) of this section; and
 - (b) Not be satisfied by public funds.
- (3) The remedies under subdivision (j)(2) of this section are supplemental to all other remedies available under this chapter within the applicable statute of limitations.
- (4) As used in this subsection, “bonds” means bonds and other debt-related instruments, including without limitation a short-term financing obligation, under Arkansas Constitution, Amendment 78.

History. Acts 1967, No. 93, § 5; 1975 (Extended Sess., 1976), No. 1201, § 1; 1985, No. 843, § 1; A.S.A. 1947, § 12-2805; reen. Acts 1987, No. 1001, § 1; 1999, No. 1589, § 1; 2001, No. 1259, § 2; 2003, No. 763, § 3; 2005, No. 259, § 3; 2007, No. 268, § 3; 2007, No. 998, § 3; 2009, No. 631, § 3; 2011, No. 99, § 3; 2013, No. 235, § 3; 2015, No. 186, § 4; 2017, No. 713, § 11; 2019, No. 1028, § 1; 2020, No. 2, § 42; 2021, No. 56, § 1; 2025, No. 179, § 21; 2025, No. 505, § 2; 2025, No. 992, § 1.

A.C.R.C. Notes. This section was reenacted by Acts 1987, No. 1001, § 1. Acts 1987, No. 834, provided that 1987 legislation reenacting acts passed in the 1976 Extended Session should not repeal any other 1987 legislation and that such other legislation would be controlling in the event of conflict.

Acts 2020, No. 2, § 43, provided: “TEMPORARY LANGUAGE AND SUSPENSION OF CURRENT LAW.

“(a) Section 42 of this act is cumulative of existing laws and suspends, but does not repeal, any law in conflict with Section 74 of this act.

“(b)(1) Except as provided in subdivision (b)(2) of this section, Section 42 of this act is temporary and expires on the date that the Governor determines that the emergency under Arkansas Code §§ 12-75-101 et seq. and § 20-7-110 in response to an outbreak of coronavirus disease 2019 (COVID-19) has ended.

“(2) If the Governor has not determined by December 31, 2020, that the emergency under Arkansas Code §§ 12-75-101 et seq. and § 20-7-110 in response to an outbreak of coronavirus disease 2019 (COVID-19) has ended, Section 42 of this act shall expire on December 31, 2020.

“(c) On the expiration of Section 42, the provisions of law suspended by Section 42 of this act are in full force and effect.

“(d) The expiration of Section 42 of this act does not affect rights acquired under this act or affect suits then pending.”

Acts 2025, No. 992, § 2, provided: “Contingency.

“(a) Section 1 of this act shall become effective only if SB227 of the Ninety-Fifth General Assembly is enacted by the General Assembly and becomes an act.

“(b) If SB227 of the Ninety-Fifth General Assembly does not become an act, Section 1 of this act shall not become effective.”

The contingency in Acts 2025, No. 992, § 2, was met when SB227 of the Ninety-Fifth General Assembly became Acts 2025, No. 505.

In subdivision (e)(8)(B) of this section as enacted by Acts 2025, No. 505, § 2, “method” was corrected to “method by which” under § 1-2-303 to correct a manifest grammatical error.

Publisher’s Notes. Acts 2025, No. 992, § 1, specifically amended this section as amended by Acts 2025, No. 505.

Amendments. The 2009 amendment substituted “July 1, 2011” for “July 1, 2009” in (c)(6)(B) and made a minor stylistic change.

The 2011 amendment substituted “July 1, 2013” for “July 1, 2011” in (c)(6)(B).

The 2013 amendment redesignated former (c)(6)(A) as (c)(6), and deleted (c)(6)(B).

The 2015 amendment inserted “or municipally owned utility system security” in (c)(6).

The 2017 amendment redesignated (c)(1) as (c)(1)(A) and (B); substituted “Except as provided under subdivision (c)(6) of this section, an executive session” for “Executive sessions” in (c)(1)(A); and added (c)(7).

The 2019 amendment added (d).

The 2020 temporary amendment added (e).

The 2021 amendment added (e).

The 2025 amendment by No. 179 repealed (d)(5).

The 2025 amendment by No. 505 rewrote the section.

The 2025 amendment by No. 992 added (j).

RESEARCH REFERENCES

Ark. L. Notes. Jerry L. Canfield, To Meet or Not to Meet, That Is the Question: An Analysis of the Meeting Requirement of the Arkansas Freedom of Information Act, 2023 Ark. L. Notes 50 (May 2023).

Ark. L. Rev. Recent Developments, Freedom of Information Act — Public Meetings Requirement, 57 Ark. L. Rev. 1015.

Note, *Harris v. City of Fort Smith: Arkansas’s Sunshine Clouds Over*, 59 Ark. L. Rev. 147.

Bobbi J. Boyd, Do It in the Sunshine: A Comparative Analysis of Rulemaking Procedures and Transparency

Practices of Lawyer-Licensing Entities, 70 Ark. L. Rev. 609 (2017).

U. Ark. Little Rock L.J. Brooks, Adventures in Cyberspace: Computer Technology and the Arkansas Freedom of Information Act, 17 U. Ark. Little Rock L.J. 417.

U. Ark. Little Rock L. Rev. D. Franklin Arey, III, Legislative Oversight Proceedings of the Arkansas General Assembly: Issues and Procedures, 45 U. Ark. Little Rock L. Rev. 593 (2023).

CASE NOTES

ANALYSIS

In General.
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In General.

The legislature, in this section, has provided for both the public’s right to know and protection of the individual’s rights from unwarranted adverse publicity and ensuing damage to his reputation. *Commercial Printing Co. v. Rush*, 261 Ark. 468, 549 S.W.2d 790 (1977).

Circuit court’s determination that § 25-19-104 and this section were unconstitutional was improper because declaratory relief was inappropriate as appellees did not yet have a case or controversy ready for decision by the courts. Appellees received a legal opinion on the effects of certain provisions of the state’s Freedom of Information Act rather than resolution of an actual controversy. *McCutchen v. City of Fort Smith*, 2012 Ark. 452, 425 S.W.3d 671 (2012).

Construction.

After reviewing §§ 25-19-102, 25-19-105, and this section, the court found nothing in the Freedom of Information Act that specifies that the communications media by which the public's business is conducted are limited to publicly owned communications; thus, the court rejected a state employee's claim that the employee was asked to violate the law by communicating with the governor via a private email address and, thus, the employee's subsequent resignation was voluntary without good cause and the employee was not entitled to benefits under § 11-10-513(a)(1). *Bradford v. Dir., Empl. Sec. Dep't*, 83 Ark. App. 332, 128 S.W.3d 20 (2003).

Applicability.

The Freedom of Information Act applies to formal and informal meetings alike, not just to meetings of officially designated committees, and applies to informal but unofficial group meetings for the discussion of governmental business. *Mayor of El Dorado v. El Dorado Broadcasting Co.*, 260 Ark. 821, 544 S.W.2d 206 (1976).

This section does not encompass staff meetings of the Department of Human Services held to develop a bid solicitation. *National Park Medical Ctr. v. Ark. Dep't of Human Servs.*, 322 Ark. 595, 911 S.W.2d 250 (1995).

City administrator's succession of one-on-one conversations with each member of the city's board of directors violated the "open meetings" provision of the Freedom of Information Act, §§ 25-19-101 — 25-19-109; through its conversations the board held a meeting within the intent of the FOIA such that the city's actions resulted in a consensus being reached on a given issue, thus rendering the formal meeting held before the public a mere charade. *Harris v. City of Fort Smith*, 86 Ark. App. 20, 158 S.W.3d 733 (2004), modified, *aff'd*, 359 Ark. 355, 197 S.W.3d 461 (2004).

Open-meeting provisions of the Freedom of Information Act of 1967 apply to email and other forms of electronic communication between governmental officials just as surely as they apply to in-person or telephonic conversations. *City of Fort Smith v. Wade*, 2019 Ark. 222, 578 S.W.3d 276 (2019).

Committee Meetings.

Where committee of a state board meets to transact business, such meeting is a public meeting subject to the provisions of this chapter and a newspaper reporter must be permitted to attend, and may seek a declaratory judgment if refused admission. *Ark. Gazette Co. v. Pickens*, 258 Ark. 69, 522 S.W.2d 350 (1975).

Emergency or Special Meetings.

This chapter repealed former open meetings law by implication and thus, since no advance notice of emergency meetings of school board were required unless requested by the news media under this section, approval of \$150,000 bond issue by electors of school district was not void for failure to give notice of meetings. *Nance v. Williams*, 263 Ark. 237, 564 S.W.2d 212 (1978).

The allegation that a special meeting had been called without notice to the press states a cause of action at law for a declaratory judgment. *Yandell v. Havana Bd. of Educ.*, 266 Ark. 434, 585 S.W.2d 927 (1979).

Subsection (b)(2) of this section provides that the news media located in the county where the meeting is held and those located elsewhere that cover regular meetings of the body may request that they be notified of special and emergency meetings; absent such a request, no notice to them is required. *Elmore v. Burke*, 337 Ark. 235, 987 S.W.2d 730 (1999).

Executive Sessions.

It was a violation of this section for a city council to go into an executive session with the mayor and city attorney

to discuss a Public Service Commission proceeding to which the city was a party. *Laman v. McCord*, 245 Ark. 401, 432 S.W.2d 753 (1968).

This section required that the hearing of testimony concerning reinstatement of a discharged officer, as distinguished from a discussion or consideration by the State Police Commission, be held in public. *Ark. State Police Comm'n v. Davidson*, 253 Ark. 1090, 490 S.W.2d 788 (1973).

This section makes it mandatory for the commissioners to reassemble in public session for the purpose of voting on the matter which they have discussed or considered in executive session. *Ark. State Police Comm'n v. Davidson*, 253 Ark. 1090, 490 S.W.2d 788 (1973).

Once an executive session had been called for a proper purpose, the subsequent discussion could of necessity deal with several areas which, taken out of the context of the total discussion, might be construed as improper subject matter for an executive session. *Commercial Printing Co. v. Rush*, 261 Ark. 468, 549 S.W.2d 790 (1977).

It is not the bare decision whether or not to discipline an employee that the executive session provision allows to be made in privacy, but rather the discussion or consideration of particular acts or omissions of the employee whose conduct has been called into question so as to avoid adverse publicity and unjustified damage to the reputation of individuals, allegations against whom later prove unwarranted. *Commercial Printing Co. v. Rush*, 261 Ark. 468, 549 S.W.2d 790 (1977).

Once a decision has been made in executive session that discipline or other action is needed, all further acts of the board should be public, and the public officials accountable and answerable for their actions. *Commercial Printing Co. v. Rush*, 261 Ark. 468, 549 S.W.2d 790 (1977).

A resolution or motion actually considered or arrived at in executive session must be publicly ratified if it is to be legal. *Yandell v. Havana Bd. of Educ.*, 266 Ark. 434, 585 S.W.2d 927 (1979).

A meeting of the credentials committee of the medical staff of a county hospital for the hearing of testimony and a vote on whether the staff privileges of a doctor should be continued was required to be held in public, since the doctor's status was that of an individual who has certain privileges extended to him by a publicly owned, operated and supported county hospital; however, the discussion or consideration of the specific issue by the committee members could be conducted in executive session. *Baxter County Newspapers, Inc. v. Medical Staff of Baxter Gen. Hosp.*, 273 Ark. 511, 622 S.W.2d 495 (1981).

Informal Meetings.

Where city board members held one-on-one meetings discussing the potential purchase of property, the meetings violated subsection (a) of this section because the members had made up their minds before the public meeting and, thus, the meetings constituted board meetings under § 25-19-103. *Harris v. City of Fort Smith*, 359 Ark. 355, 197 S.W.3d 461 (2004).

Injunction.

In an action to enjoin purchase of voting machines for noncompliance with this chapter, where plaintiffs testified that the general public was expelled from the meeting of the election commissioners to open and consider bids, but election commissioners and others testified that, when representatives of voting machine companies were asked to step outside, others left voluntarily, it was not error to deny the injunction. *Davis v. Jerry*, 245 Ark. 500, 432 S.W.2d 831 (1968).

Invalidation of Action.

Before invalidation of decision made in violation of this section is sought, the board or agency must be given the

opportunity to address the issue. *Rehab Hospital Services Corp. v. Delta-Hills Health Systems Agency, Inc.*, 285 Ark. 397, 687 S.W.2d 840 (1985).

No Violation.

In circumstances in which a city administrator, prior to a board study session, prepared a memorandum and draft ordinance and provided the documents to individual board members, no violation of this section of the state FOIA occurred because only information was provided; no solicitation of votes for the proposal took place. *McCutchen v. City of Fort Smith*, 2012 Ark. 452, 425 S.W.3d 671 (2012).

Circuit court erred in granting a petitioner's motion for summary judgment and finding that a city violated the open-meeting provisions of the Freedom of Information Act of 1967 when city directors and the city administrator exchanged emails relating to the police chief's proposed change to civil service commission rules to permit appointment of external candidates for the rank of sergeant and higher. No decision was made through the use of email; the emails contained information, a recommendation, and unsolicited responses with no decision, and the city board of directors discussed the proposed rule change at a public meeting. *City of Fort Smith v. Wade*, 2019 Ark. 222, 578 S.W.3d 276 (2019).

City and city clerk did not violate the open meeting provisions of the Freedom of Information Act of 1967, § 25-19-101 et seq., by the clerk's act of contacting each member of the city's board of directors to determine whether the members concurred with one member's request to remove an item from the agenda of an upcoming board meeting. No inquiry was made as to the members' positions on any proposal, no discussion or debate was had between the members, and no decision was made as to the proposals. *Kitchens v. City of Fort Smith*, 2023 Ark. App. 408, 675 S.W.3d 884 (2023).

Notice.

When notice of a school board meeting was provided, but during the meeting five school board members decided to hold a "Committee of the Whole" meeting to discuss a controversial subject while they were waiting for another school board member to arrive, appellant's claim that a separate notice was required for the committee meeting failed. The required statutory notice of the school board meeting was provided to media outlets, and the media was present before the committee began its discussion. *Bradshaw v. Fort Smith Sch. Dist.*, 2017 Ark. App. 196, 519 S.W.3d 344 (2017).

Appellant failed to show prejudice as she had not requested personal notice of any board meetings, and nothing in this section required notice to the general public. *Bradshaw v. Fort Smith Sch. Dist.*, 2017 Ark. App. 196, 519 S.W.3d 344 (2017).

Publicly Funded Agencies.

A private, nonprofit association of colleges and secondary schools which was composed of public servants and accepted public moneys was subject to this chapter. *North Cent. Ass'n of Colleges & Schools v. Troutt Bros.*, 261 Ark. 378, 548 S.W.2d 825 (1977).

A nonprofit regional health planning corporation which received its primary funding from the federal government was subject to this chapter and violated its open public meeting requirements when it reconsidered the granting of a certificate of need to construct a hospital after conducting a telephone poll of members of the executive committee. *Rehab Hospital Services Corp. v. Delta-Hills Health Systems Agency, Inc.*, 285 Ark. 397, 687 S.W.2d 840 (1985).

Cited: *Wright v. South Ark. Regional Health Ctr., Inc.*, 800 F.2d 199 (8th Cir. 1986).

25-19-107. Appeal from denial of rights — Attorney's fees.

(a) Any citizen denied the rights granted to him or her by this chapter may appeal immediately from the denial to the Pulaski County Circuit Court or to the circuit court of the residence of the aggrieved party, if the State of Arkansas or a department, agency, or institution of the state is involved, or to any of the circuit courts of the appropriate judicial districts when an agency of a county, municipality, township, or school district, or a private organization supported by or expending public funds, is involved.

(b) Upon written application of the person denied the rights provided for in this chapter, or any interested party, it shall be mandatory upon the circuit court having jurisdiction to fix and assess a day the petition is to be heard within seven (7) days of the date of the application of the petitioner, and to hear and determine the case.

(c) Those who refuse to comply with the orders of the court shall be found guilty of contempt of court.

(d)(1) In any action to enforce the rights granted by this chapter, or in any appeal therefrom, the court shall assess against the defendant reasonable attorney's fees and other litigation expenses reasonably incurred by a plaintiff who, after filing suit, has obtained from the defendant a significant or material portion of the public information he or she requested, unless the court finds that the position of the defendant was substantially justified.

(2) If the defendant has substantially prevailed in the action, the court may assess expenses against the plaintiff only upon a finding that the action was initiated primarily for frivolous or dilatory purposes.

(e)(1) Notwithstanding subdivision (d)(1) of this section, the court shall not assess reasonable attorney's fees or other litigation expenses reasonably incurred by a plaintiff against the State of Arkansas or a department, agency, or institution of the state.

(2)(A) A plaintiff who substantially prevailed in an action under this section against the State of Arkansas or a department, agency, or institution of the state may file a claim with the

Arkansas State Claims Commission to recover reasonable attorney's fees and other litigation expenses reasonably incurred.

(B) A claim for reasonable attorney's fees and litigation expenses reasonably incurred in an action against the State of Arkansas or a department, agency, or institution of the state shall be filed with the commission pursuant to § 25-44-201 et seq. within sixty (60) days of the final disposition of the appeal under subsection (a) of this section.

History. Acts 1967, No. 93, § 6; A.S.A. 1947, § 12-2806; Acts 1987, No. 49, § 2; 2009, No. 440, § 2; 2021, No. 572, § 2; 2025, No. 419, § 290.

A.C.R.C. Notes. Acts 2021, No. 572, § 1, provided: "This act shall not be construed to have any effect either way on a claim filed before the effective date of this act [July 28, 2021]."

Amendments. The 2009 amendment substituted "the State of Arkansas or a department, agency, or institution" for "an agency" in (a); subdivided (d) and deleted "or that

other circumstances make an award of these expenses unjust. However, no expense shall be assessed against the State of Arkansas or any of its agencies or departments" following "substantially justified" in (d)(1); and added (e).

The 2021 amendment substituted "after filing suit, has obtained from the defendant a significant or material portion of the public information he or she requested" for "has substantially prevailed" in (d)(1).

The 2025 amendment substituted "\$ 25-44-201 et seq." for "\$ 19-10-201 et seq." in (e)(2)(B).

RESEARCH REFERENCES

ALR. Exhaustion of administrative remedies as prerequisite to judicial action to compel disclosure under state freedom of information acts. 114 A.L.R.5th 283.

Construction and application of state freedom of information act provisions concerning award of attorney's fees and other litigation costs. 118 A.L.R.5th 1.

CASE NOTES

ANALYSIS

Fees and Costs.

Hearings.

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Jurisdiction.

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Fees and Costs.

The appellant was properly denied attorney's fees where (1) the record indicated that he was never denied access to the documents requested, and that the appellee voluntarily provided the requested documents when he became aware of their location and status, and (2) the appellant filed his action for attorney's fees only one business day after filing his FOIA request, in violation of § 25-19-105(e). *Hamilton v. Simpson*, 67 Ark. App. 173, 993 S.W.2d 501 (1999).

The trial court's finding that a volunteer fire department had substantial justification for refusing disclosure of requested records was clearly erroneous and, therefore, the trial court abused its discretion in denying the appellant's petition for attorney's fees, notwithstanding the fire department's assertion that it was justified in believing that it was not subject to the FOIA because its only connection to public funding was indirect support via state and federal loans; the fire department performed public safety and utility functions traditionally performed by governmental entities by providing fire protection and water service pursuant to its contractual arrangement with a fire protection district and received funding from a public source. *Kristen Inc. Props., LLC v. Faulkner County Waterworks*, 72 Ark. App. 37, 32 S.W.3d 60 (2000).

Arkansas Department of Human Services was a department of the State of Arkansas, and a suit against a state official in his official capacity was not a suit against that person but, rather, was a suit against that official's office, thus, even though the individual prevailed in obtaining certain public records under the Arkansas Freedom of Information Act, § 25-19-101 et seq., under subsection (d) of this section, no award of attorney's fees could be assessed against either the Department or the director, who

was acting as a state official in his official capacity; further, as an individual, the director had no administrative control of the public records as he would have had control of the public records only in his official capacity. *George v. Ark. Dep't of Human Servs.*, 88 Ark. App. 135, 195 S.W.3d 399 (2004) (decision under prior version of statute).

Circuit court did not abuse its discretion in denying the citizen an award of attorney's fees where there was substantial justification in appellees' position that their actions did not constitute a violation of the Freedom of Information Act and that their actions were not undertaken in bad faith. *Harris v. City of Fort Smith*, 366 Ark. 277, 234 S.W.3d 875 (2006).

Circuit court abused its discretion in awarding attorney fees under subsection (d) of this section because the mother of a decedent who died in police custody did not even partially prevail on her FOIA claim, let alone substantially prevail, where the circuit court's order specifically found that the city police department had responded promptly and provided public records as quickly as possible but that the records of its internal affairs department were not subject to disclosure. *City of Little Rock v. Carpenter*, 374 Ark. 511, 288 S.W.3d 647 (2008) (decision under prior version of statute).

There was no abuse of discretion on the part of the circuit court in awarding an inmate's aunt attorney's fees under the Freedom of Information Act of 1967 because the aunt substantially prevailed, and the fact that the sergeant believed that the manifest was investigatory and, therefore, exempt did not mean that the sergeant was justified in so believing. *Holladay v. Glass*, 2017 Ark. App. 595, 534 S.W.3d 173 (2017) (decision under prior version of statute).

Circuit court's denial of attorney's fees was proper because the current version of this section does not allow the court to assess fees or expenses against the State; instead, this section requires plaintiff to file a claim with the Arkansas State Claims Commission. *Hyman v. Sadler*, 2018 Ark. App. 82, 539 S.W.3d 642 (2018).

Circuit court did not abuse the court's discretion by denying an award of attorney's fees to a city because the law under the Freedom of Information Act of 1967, § 25-

19-101 et seq., was not so well-settled that the case was clearly frivolous and a citizen's request at a hearing did not establish that the citizen filed the action alleging a violation of the open meeting provisions of the Act for dilatory purposes. *Kitchens v. City of Fort Smith*, 2023 Ark. App. 408, 675 S.W.3d 884 (2023).

Because a county board subcommittee meeting was subject to the laws of the Arkansas Freedom of Information Act, § 25-19-101 et seq., the county and a county judge were subject to the penalty provision contained within the Act by failing to provide public access to the meeting. Furthermore, the actions of the county and the judge were not substantially justified, nor were there other circumstances that would have rendered the award of attorney fees and costs unjust. *Wash. Cnty. v. Cogger*, 2025 Ark. App. 145, 709 S.W.3d 827 (2025).

Hearings.

An inmate was entitled to a hearing on her request for documents from her prison file since the file was a public record and the Department of Correction was an agency of the state and denied her FOIA request for the documents. *Orsini v. State*, 340 Ark. 665, 13 S.W.3d 167 (2000).

Invalidation of Agency Action.

Before invalidation of agency decision is sought on grounds of violation of this chapter, the board or agency must be given the opportunity to address the issue. *Rehab Hospital Services Corp. v. Delta-Hills Health Systems Agency, Inc.*, 285 Ark. 397, 687 S.W.2d 840 (1985).

Jurisdiction.

When a teacher made a Freedom of Information Act (FOIA) request to a school district (district) after the

teacher was terminated, and the denial of that request was reviewed in the same case in which the termination was contested, a trial court had no jurisdiction to grant the district's renewed motion for a protective order because (1) the order was sought under Ark. R. Civ. P. 26(c), which was independent of the FOIA, and (2) the renewed motion initiated no FOIA case, as the district was the records custodian and only a citizen could seek review of the denial of an FOIA request, and the motion was litigated while the termination case was on appeal. *Hollis v. Fayetteville Sch. Dist. No. 1*, 2016 Ark. App. 132, 485 S.W.3d 280 (2016).

Venue.

When a city or other local agency is involved in a suit under this chapter, the aggrieved person should bring suit in the local judicial district where the parties and witnesses are apt to reside and not, despite the wording of this section, in Pulaski County where most state agencies have their principal offices. *Association of Community Organizations for Reform Now v. Jackson*, 263 Ark. 67, 562 S.W.2d 589 (1978).

When there is a complaint against a state agency under this chapter, the aggrieved person can appeal either to the Pulaski Circuit Court, where most state agencies have their principal office, or to the corresponding court in the county of his residence. *Association of Community Organizations for Reform Now v. Jackson*, 263 Ark. 67, 562 S.W.2d 589 (1978).

Cited: *Furman v. Holloway*, 312 Ark. 378, 849 S.W.2d 520 (1993); *Saline Mem'l Hosp. v. Berry*, 321 Ark. 588, 906 S.W.2d 297 (1995); *National Park Medical Ctr. v. Ark. Dep't of Human Servs.*, 322 Ark. 595, 911 S.W.2d 250 (1995).

25-19-108. Information for public guidance.

(a) Each state agency, board, and commission shall prepare and make available:

(1) A description of its organization, including central and field offices, the general course and method of its operations, and the established locations, including, but not limited to, telephone numbers and street, mailing, electronic mail, and internet addresses and the methods by which the public may obtain access to public records;

(2) A list and general description of its records, including computer databases;

(3)(A) Its regulations, rules of procedure, any formally proposed changes, and all other written statements of policy or interpretations formulated, adopted, or used by the agency, board, or commission in the discharge of its functions.

(B)(i) Rules, regulations, and opinions used in this section shall refer only to substantive and material items that directly affect procedure and decision-making.

(ii) Personnel policies, procedures, and internal policies shall not be subject to the provisions of this section.

(iii) Surveys, polls, and fact-gathering for decision-making shall not be subject to the provisions of this section.

(iv) Statistical data furnished to a state agency shall be posted only after the agency has concluded its final compilation and result;

(4) All documents composing an administrative adjudication decision in a contested matter, except the parts of the decision that are expressly confidential under state or federal law; and

(5) Copies of all records, regardless of medium or format, released under § 25-19-105 which, because of the nature of their subject matter, the agency, board, or commission determines have become or are likely to become the subject of frequent requests for substantially the same records.

(b)(1) All materials made available by a state agency, board, or commission pursuant to subsection (a) of this section and created after July 1, 2003, shall be made publicly accessible, without charge, in electronic form via the internet.

(2) It shall be a sufficient response to a request to inspect or copy the materials that they are available on the internet at a specified location, unless the requester specifies another medium or format under § 25-19-105(d)(2)(B).

(c)(1) An entity that is subject to this chapter that is not included in subsection (a) of this section may opt in to any provision under subdivisions (a)(1)-(5) of this section through ordinance or resolution enacted by its governing body.

(2) The ordinance or resolution under subdivision (c)(1) of this section shall comply with subdivision (b)(1) of this section.

History. Acts 2001, No. 1653, § 3; 2017, No. 1107, § 2.

A.C.R.C. Notes. Acts 2017, No. 1107, § 3, provided:
“Applicability. This act does not apply to a request for a

public record that is received by the government entity before the effective date of this act [April 7, 2017].”

Amendments. The 2017 amendment added (c).

25-19-109. Special requests for electronic information.

(a)(1) At his or her discretion, a custodian may agree to summarize, compile, or tailor electronic data in a particular manner or medium and may agree to provide the data in an electronic format to which it is not readily convertible.

(2) When the cost and time involved in complying with the requests are relatively minimal, custodians should agree to provide the data as requested.

(b)(1) If the custodian agrees to a request, the custodian may charge the actual, verifiable costs of personnel time exceeding two (2) hours associated with the tasks, in addition to copying costs authorized by § 25-19-105(d)(3).

(2) The charge for personnel time shall not exceed the salary of the lowest paid employee or contractor who, in the discretion of the custodian, has the necessary skill and training to respond to the request.

(c) The custodian shall provide an itemized breakdown of charges under subsection (b) of this section.

History. Acts 2001, No. 1653, § 4.

CASE NOTES

Fees.

Trial court erred by finding that appellees' requirement that the driver pay a deposit of \$2,475 to obtain the requested records did not violate the Freedom of Information Act because this section did not apply, as the driver stated that she requested only copies of the recordings and did not ask for any type of special conversion or any type of

compilation. The applicable provision to the driver's request was § 25-19-105(d), as she simply requested a copy of the files, and therefore appellees could not charge fees that exceeded the cost of reproduction and could not include the hourly rate of a captain in assessing costs to the driver. *Daugherty v. Jacksonville Police Dep't*, 2012 Ark. 264, 411 S.W.3d 196 (2012).

25-19-110. Exemptions.

(a) In order to be effective, a law that enacts a new exemption to the requirements of this chapter or that substantially amends an existing exemption to the requirements of this chapter shall state that the record or meeting is exempt from the Freedom of Information Act of 1967, § 25-19-101 et seq.

(b) For purposes of this section:

(1) An exemption from the requirements of this chapter is substantially amended if the amendment expands the scope of the exemption to include more records or information or to include meetings as well as records; and

(2) An exemption from the requirements of this chapter is not substantially amended if the amendment narrows the scope of the exemption.

History. Acts 2009, No. 184, § 1; 2025, No. 179, § 22.

Amendments. The 2025 amendment deleted “Beginning July 1, 2009” from the beginning of (a).

RESEARCH REFERENCES

ALR. Disclosure, Under State Freedom of Information or Records Act, of Video Obtained by Police or Other Law Enforcement Authorities from Dash Camera, Mobile Video Recorder, or Security or Surveillance Camera. 48 A.L.R.7th Art. 2 (2020).

Construction and Application of Public Domain Doctrine Allowing Courts to Disregard FOIA Law Enforcement Exemption Based on Prior Public Release of Requested

Records. 3 A.L.R. Fed. 3d Art. 5 (2015).

Construction and Application of Public Domain or Official Acknowledgment Doctrine Allowing Courts to Disregard FOIA Exemption, Other Than Law Enforcement Exemption, Based on Prior Public Release of Requested Records. 17 A.L.R. Fed. 3d Art. 1 (2016).

25-19-111. Arkansas Freedom of Information Task Force.

(a)(1) There is created the Arkansas Freedom of Information Task Force for the purpose of reviewing, evaluating, and approving proposed amendments to this chapter.

(2) No later than the first day of November in each even-numbered year preceding a regular legislative session, the task force shall:

(A) Complete a study of proposed exemptions from or additions to this chapter; and

(B) Report to the General Assembly its recommendations concerning proposed exemptions from or additions to this chapter.

(b)(1) The task force shall consist of nine (9) members as follows:

(A) One (1) member appointed by the Governor;

(B) One (1) member appointed by the President Pro Tempore of the Senate;

(C) One (1) member appointed by the Speaker of the House of Representatives;

(D) One (1) member appointed by the Arkansas Press Association, Inc.;

(E) One (1) member appointed by the Arkansas Freedom of Information Coalition;

(F) One (1) member appointed by the Arkansas Pro Chapter of the Society of Professional Journalists;

(G) One (1) member appointed by the Arkansas Broadcasters Association;

(H) One (1) member appointed by the Association of Arkansas Counties; and

(I) One (1) member appointed by the Arkansas Municipal League.

(2)(A) Each member of the task force shall serve a term of four (4) years.

(B) A member of the task force shall not serve more than two (2) terms.

(3) A vacancy on the task force shall be filled in the manner of the original appointment.

(4) The task force shall elect from its membership:

(A) A chair; and

(B) Other officers deemed necessary by the task force.

(c)(1) Five (5) members of the task force shall constitute a quorum for the purpose of transacting business.

(2) A majority vote of the total membership of the task force is required for any action of the task force.

(d) The members of the task force shall meet at their own expense and shall not be entitled to reimbursement for mileage or per diem.

(e) [Repealed.]

History. Acts 2017, No. 923, § 1; 2025, No. 179, § 23.

Amendments. The 2025 amendment repealed (e).

RESEARCH REFERENCES

Ark. L. Notes. Jerry L. Canfield, To Meet or Not to Meet, That Is the Question: An Analysis of the Meeting

Requirement of the Arkansas Freedom of Information Act, 2023 Ark. L. Notes 50 (May 2023).

25-19-112. Audio media, visual media, and audiovisual media — Findings — Intent — Law enforcement.

(a) The General Assembly finds that:

(1) The allocation of time of trained law enforcement personnel, dispatchers, and detention personnel toward fulfilling requests for copies of audio media, visual media, and audiovisual media is substantial; and

(2) The uniform assessment of costs to defray and recover the allocation of time of trained law enforcement personnel, dispatchers, and detention personnel toward fulfilling requests for copies of audio media, visual media, and audiovisual media is necessary.

(b) It is the intent of the General Assembly to encourage the use of audio media, visual media, and audiovisual media by state and local law enforcement agencies and detention centers.

(c)(1) A state, county, municipal, school, college, or university law enforcement agency, dispatch center, public safety answering point, jail, detention center, or electronic record provider may charge for the costs associated with retrieving, reviewing, redacting, and copying audio media, visual media, and audiovisual media as provided under this section.

(2) A request for audio media, visual media, and audiovisual media that:

(A) Requires three (3) hours or less of personnel and equipment time to fulfill the request shall be provided at no charge:

(i) Except for the cost of reproduction of the media; or

(ii) Unless the requestor or the requestor's entity has made a request under this section in the immediately preceding thirty-day period;

(B) Requires more than three (3) hours of personnel or equipment time to fulfill the request shall be charged at a rate that does not exceed twenty dollars (\$20.00) per hour on a prorated basis for each hour of running time of audio media, visual media, or audiovisual media provided to the requestor; and

(C) Is estimated to require more than three (3) hours of personnel or equipment time to fulfill the request may be required to be prepaid.

(3) A request for audio media, visual media, and audiovisual media shall be sufficiently specific to enable the custodian to locate the requested audio media, visual media, and audiovisual media with reasonable effort.

(4) An electronic record provider that charges for costs under this section shall provide a copy of the invoice to the entity required to maintain the audio media, visual media, or audiovisual media.

History. Acts 2021, No. 778, § 3.

TITLE 26

TAXATION

SUBTITLE 6. LOCAL TAXES

CHAPTER.

- 74. COUNTY SALES AND USE TAXES.
- 75. MUNICIPAL SALES AND USE TAXES.
- 80. SCHOOL DISTRICT TAXES.
- 82. LOCAL SALES AND USE TAX ECONOMIC DEVELOPMENT PROJECT FUNDING ACT.

SUBTITLE 6. LOCAL TAXES

CHAPTER 74

COUNTY SALES AND USE TAXES

SUBCHAPTER 2 — SALES AND USE TAX FOR CAPITAL IMPROVEMENTS

SECTION.

- 26-74-201. Purpose.
- 26-74-202. Construction.
- 26-74-203. Definitions.
- 26-74-204. Issuance of bonds.
- 26-74-205. Voters' approval of bonds.
- 26-74-206. Pledge of revenues.

SECTION.

- 26-74-207. Call for tax election.
- 26-74-208. Form of ballot.
- 26-74-209. Conduct of election and results — Challenges.
- 26-74-210. Resubmission of question of levy or repeal.
- 26-74-211. Notification of results.

26-74-201. Purpose.

(a) This subchapter is intended to supplement all constitutional provisions and other acts adopted for the acquiring, constructing, and equipping of capital improvements of a public nature and the issuance of bonds for the financing of capital improvements of a public nature.

(b) When applicable, in accordance with the provisions of this subchapter, this subchapter may be used by any county as an alternative, notwithstanding and without the necessity of compliance with any constitutional provision or any other act authorizing the county, or any commission or agency of the county, to issue bonds for the purpose of financing the acquisition, construction, and equipment of capital improvements of a public nature.

(c)(1) This subchapter is intended to supplement and be levying authority in addition to all other statutes authorizing countywide sales and use taxes.

(2) Collections of a tax levied by this subchapter may be used to secure the payment of bonds or for any purpose for which the general fund of a municipality or county may be used, or a combination thereof, except as may be expressly limited by the ballot for the election at which the tax was approved or by the ballot for a subsequent election on the purposes for the tax.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 24, as added by Acts 1983, No. 723, § 7; A.S.A. 1947, § 17-2042; Acts 2001, No. 1560, § 3.

26-74-202. Construction.

This subchapter shall be liberally construed to accomplish the purposes of this subchapter.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 24, as added by Acts 1983, No. 723, § 7; A.S.A. 1947, § 17-2042.

26-74-203. Definitions.

As used in this subchapter:

(1) “Acquire” means to obtain at any time by gift, purchase, or other arrangement, any capital improvement of a public nature or any portion of a capital improvement of a public nature, whether constructed and equipped before acquisition, partially constructed and equipped before acquisition, or being constructed and equipped at the time of acquisition, for such consideration and pursuant to such terms and conditions as the quorum court of the county shall determine;

(2) “Calendar quarter” means the three-month period beginning on January 1, April 1, July 1, or October 1;

(3) “Capital improvements of a public nature” means:

- (A) Streets;
- (B) Roads;
- (C) Public parks;
- (D) Port facilities;
- (E) Tourism facilities;
- (F) Airport facilities;
- (G) Sewerage facilities;
- (H) Waterworks facilities;
- (I) Fire protection facilities;
- (J) Convention center facilities;
- (K) Courthouses;
- (L) Police facilities;
- (M) Public transit facilities;
- (N) Auditoriums;
- (O) Prisons;
- (P) Libraries;
- (Q) Hospital and nursing home facilities;
- (R) Solid waste facilities;
- (S) Sanitation facilities;
- (T) Bridges;
- (U) Electric facilities;
- (V) Hydroelectric facilities;
- (W) Facilities for the securing and developing of industry;
- (X) Natural gas facilities;
- (Y) Parking facilities;
- (Z) Public housing facilities;
- (AA) Pollution control facilities;
- (BB) Public education facilities;
- (CC) Drainage facilities;
- (DD) Pedestrian facilities;
- (EE) Lakes;
- (FF) Dams;
- (GG) Waterways;
- (HH) Regional mobility authority surface transportation systems; and
- (II) Research parks;

(4) “Construct” means to build, in whole or in part, in such manner and by such method, including contracting to build, and if contracting to build, by negotiation or bidding upon such terms and pursuant to such advertising as determined by the quorum court of the county, under the circumstances existing at the time, as will most effectively serve the purposes of this subchapter;

(5) “Equip” means to install or place in or on any building or structure equipment of any and every kind, whether or not affixed, including, without limitation, building service equipment,

fixtures, heating equipment, air conditioning equipment, machinery, furniture, furnishings, and personal property of every kind;

(6) “Facilities” means real property, personal property, or mixed property of any and every kind, including, without limitation, rights-of-way, utilities, materials, equipment, fixtures, machinery, furniture, furnishings, buildings, and other improvements of every kind; and

(7) “Lease” means a lease of a capital improvement of a public nature by and between a county as lessee and a person as lessor, except as used in § 26-74-204.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 21, as added 1995, No. 565, § 15; 2005, No. 2275, § 2; 2007, No. 1045, by Acts 1983, No. 723, § 1; A.S.A. 1947, § 17-2039; Acts § 4; 2019, No. 910, § 4366.

26-74-204. Issuance of bonds.

(a) Counties levying the tax permitted in this subchapter are authorized, in addition to the authority existing under the laws of the state, enacted, to acquire, construct, equip, reconstruct, extend, and improve capital improvements of a public nature, collectively referred to as a “project”, within or near such counties, and are authorized to issue bonds to provide funds for accomplishing projects and to pledge all or any part of the revenues which the county is entitled to receive from the tax levied by such county pursuant to this subchapter to pay lease rentals or the principal of, interest on, and fees and expenses in connection with such bonds.

(b) Bonds issued by a county pursuant to this subchapter shall be authorized by ordinance of the quorum court. The bonds may:

- (1) Be coupon bonds payable to bearer or may be registered as to principal or as to principal and interest;
- (2) Be exchangeable for bonds of another denomination;
- (3) Be in such form and denominations;
- (4) Be made payable at such places within or without the state;
- (5) Be issued in one (1) or more series;
- (6) Bear such date or dates;
- (7) Mature at such time or times, not exceeding forty (40) years from their respective dates;
- (8) Bear interest at such rate or rates;
- (9) Be payable in such medium of payment;
- (10) Be subject to such terms of redemption; and
- (11) Contain such other terms, covenants, and conditions as the ordinance authorizing their issuance may provide including, without limitation, those pertaining to:
 - (A) The custody, investment, and application of the proceeds of the bonds;
 - (B) The collection and disposition of revenues;
 - (C) The maintenance of various funds and reserves;
 - (D) The nature and extent of the security and pledging of revenues;
 - (E) The rights, duties, and obligations of the county and the trustee for the holders and registered owners of the bonds; and
 - (F) The rights of the holders and registered owners of the bonds.

(c) There may be successive bond issues for the purpose of financing the same project, and there may be successive bond issues for financing the cost of reconstructing, replacing, constructing additions to, extending, improving, and equipping projects already in existence, whether or not originally financed by bonds issued under this subchapter, and with each successive issue to be authorized as provided by this subchapter. Priority between and among issues and successive issues as to security of the pledge of revenues and lien on the project facilities involved may be controlled by the ordinance authorizing the issuance of bonds under this subchapter. Subject to the provisions of this subchapter pertaining to registration, the bonds shall have all the qualities of negotiable instruments under the laws of the State of Arkansas. A copy of the ordinance authorizing bonds under this subchapter, certified by the county clerk of the county, shall be filed with the Secretary of the Department of Finance and Administration and with the Treasurer of State.

(d) The bonds shall be executed by the county judge of the county and attested by the county clerk of the county by their manual or facsimile signatures. Coupons attached to the bonds shall be executed by the facsimile signature of the county judge. In case any of the officers whose signatures appear on the bonds or coupons cease to be such officers before delivery of the bonds or coupons, their signatures shall nevertheless be valid and sufficient for all purposes. The bonds shall be sealed with the seal of the county issuing the bonds.

(e) The bonds shall not be general obligations of the county involved but shall be special obligations secured and payable as provided in this subchapter. In no event shall the bonds constitute an indebtedness of the county within the meaning of any constitutional or statutory limitation. The principal of and interest on all bonds issued under the authority of this subchapter shall be secured by a pledge of and shall be payable from all or any part of the revenues derived by the county from the tax levied by the county pursuant to this subchapter or from all or any part of the revenues derived from the operation of the project involved, if and to the extent permitted by other laws of the State of Arkansas authorizing the issuance of revenue bonds secured by the revenues of such facilities. The ordinance authorizing the issuance of bonds together with this subchapter shall constitute a contract by and between the county and the holders and registered owners of the bonds issued by the county under the authority of this subchapter, which contract and all covenants, agreements, and obligations therein shall be promptly performed in strict compliance with the terms and provisions of the contract, and the contract and all rights of the holders and registered owners of the bonds and the obligations of the county may be enforced by mandamus or any other appropriate proceeding at law or in equity. It shall be plainly stated on the face of each bond that it has been issued under the provisions of this subchapter.

(f) The ordinance authorizing the bonds may provide for the execution by the county with a bank or trust company, within or without the State of Arkansas, of a trust indenture. The trust indenture may control the priority between and among successive issues and series and may contain any other terms, covenants, and conditions that are deemed desirable by the quorum court including, without limitation, those pertaining to:

- (1) The custody, investment, and application of the proceeds of bonds;
- (2) The collection and disposition of revenues;
- (3) The maintenance of various funds and reserves;
- (4) The nature and extent of the security;
- (5) The rights, duties, and obligations of the county and the trustee for the holders and registered owners of the bonds; and
- (6) The rights of the holders and registered owners of the bonds.

(g) Bonds issued under the authority of this subchapter may be sold at public or private sale. If sold at public sale, the bonds shall be sold on sealed bids, and notice of the sale shall be published one (1) time in a newspaper having a general circulation throughout the State of Arkansas, at least ten (10) days prior to the date of the sale. In either case, the bonds may be sold at such price as the county may accept, including sale at a discount.

(h) Bonds issued under the authority of this subchapter are made securities in which insurance companies, trust companies, banks, investment companies, executors, administrators, trustees, and other fiduciaries may properly and legally invest funds, including capital in their control or belonging to them. Such bonds are made securities which may properly and legally be deposited with and received by any state or municipal officer or any agency or political subdivision of the state for any purpose for which the deposit of bonds or obligations of the state is authorized by law. Any municipality or county or any board, commission, or other authority established by any such municipality or county or the boards of trustees, respectively, of any retirement fund or retirement system created by or pursuant to authority conferred by the General Assembly in its discretion may invest any of its funds not immediately needed for its purposes in bonds issued under the authority of this subchapter, and bonds issued under the authority of this subchapter shall be eligible to secure the deposit of public funds.

(i) The principal of and interest on bonds issued under the authority of this subchapter shall be exempt from all state, county, school district, community college district, and municipal taxes. This exemption shall include income, property, inheritance, and estate taxes.

(j) Revenue bonds may be issued under this subchapter for the purpose of refunding any obligations issued under this subchapter or under the authority of any other law for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature. These refunding bonds may be combined with bonds issued under the provisions of this section into a single issue. When bonds are issued under this section for refunding purposes, the bonds may either be sold or delivered in exchange for the outstanding obligations. If sold, the proceeds may be either applied to the payment of the obligations refunded or deposited in escrow for the retirement thereof. The ordinance under which the refunding bonds are issued may provide that any of the refunding bonds shall have the same priority of lien on the revenues pledged for their payment as was enjoyed by the obligations refunded thereby. These refunding bonds shall be issued and secured in the manner provided for other bonds issued under this subchapter and shall have all the attributes of these bonds.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 22, as added by Acts 1983, No. 723, § 5; A.S.A. 1947, § 17-2040; Acts 2019, No. 910, § 4367.

26-74-205. Voters' approval of bonds.

No ordinance shall be passed by the quorum court of a county under § 26-74-204 until a majority of the qualified electors of the county voting on the question shall have approved the principal amount of the bonds and the purpose for which the bonds will be issued at an election called for that purpose and conducted in accordance with the general county election laws.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 25, as added by Acts 1983, No. 723, § 8; A.S.A. 1947, § 17-2043.

26-74-206. Pledge of revenues.

Any county levying the tax as permitted in this subchapter is authorized to pledge all or any part of the revenues which the county is entitled to receive from the tax levied pursuant to this subchapter to the payment of lease rentals or principal of and interest on bonds issued by such county under the authority of any other law in effect for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature, or on bonds issued to refund such bonds, and such bonds, including the refunding bonds, shall be deemed to have been authorized by this subchapter for the purposes of §§ 26-74-210, 26-74-214, and 26-74-217.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 23, as added by Acts 1983, No. 723, § 6; A.S.A. 1947, § 17-2041.

26-74-207. Call for tax election.

(a)(1) A county quorum court may call an election for the levy of a countywide sales and use tax in the amount of:

- (A) One-eighth of one percent (0.125%);
- (B) One-fourth of one percent (0.25%);
- (C) One-half of one percent (0.50%);
- (D) Three-fourths of one percent (0.75%);
- (E) One percent (1%); or
- (F) Any combination of these amounts.

(2) The election shall be held on the next special election date under § 7-11-205.

(3) Each tax shall be adopted by ordinance and with approval of the voters of the county in accordance with this subchapter.

(b)(1) If a petition is filed requesting an election on the question of the levy of the tax authorized under this subchapter, the quorum court shall submit the question of the levying of the tax to the electors.

(2) The petition must be signed by a number of the legal voters in the county that shall be no less than fifteen percent (15%) of the number of votes cast for the office of circuit clerk at the last preceding general election.

(3) The election shall be held within one hundred twenty (120) days of the filing of the petition.

(c) The county quorum court shall notify its county board of election commissioners that the measure has been referred to the vote of the people and shall submit a copy of the ballot title to the county board of election commissioners.

History. Acts 1981 (1st Ex. Sess.), No. 26, §§ 1, 2; A.S.A. 1947, §§ 17-2021, 17-2022; Acts 1991, No. 765, § 6; 1999, No. 1357, § 1; 2001, No. 1560, § 5; 2021, No. 610, § 29.

26-74-208. Form of ballot.

(a) The ballot title to be used shall be substantially in the following form:

“[] FOR adoption of a percent (.... %) sales and use tax within
(Name of county).”

“[] AGAINST adoption of a percent (.... %) sales and use tax within
(Name of county).”

(b)(1) The ballot title may also include an expiration date for the levy of the tax, and if adopted in this form, the tax shall cease to be levied on the date noted on the ballot.

(2) The expiration date shall be the last day of a calendar quarter unless the tax proceeds are pledged for the payment of bonds, in which case the tax shall terminate as otherwise provided by law.

(3)(A)(i) The quorum court of a county may refer to the voters of the county a change in the expiration date for the sales and use tax approved by the voters to extend the levy of the sales and use tax beyond the expiration date previously approved.

(ii) The proposed expiration date shall be the last day of the last month of a calendar quarter.

(B) If the quorum court of a county refers a change in the expiration date for an existing sales and use tax levied under this subchapter to the voters, the quorum court shall:

(i) Notify the county board of election commissioners that the measure has been referred to the voters; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the expiration date for a sales or use tax levied under this subchapter shall be conducted in the manner provided by law for all other county elections.

(ii) The results of the election under this subsection shall be certified, proclaimed, and subject to challenge under § 26-74-209.

(D)(i) To extend the sales and use tax levied under this subchapter to a new expiration date, the county shall notify the Secretary of the Department of Finance and Administration of the new expiration date that was approved by the voters after publication of the proclamation has occurred and at least ninety (90) days before the current expiration date of the sales and use tax.

(ii) The sales and use tax extended under this subdivision (b)(3) shall continue to be levied until the new expiration date.

(iii)(a) At least one hundred twenty (120) days before the expiration of a sales and use tax levied under this subchapter, the Department of Finance and Administration shall notify the county quorum court of the county that levied the sales and use tax concerning the expiration of the sales and use tax.

(b) The notification required under subdivision (b)(3)(D)(iii)(a) of this section shall state the:

(1) Current expiration date of the sales and use tax; and

(2) Specific requirements under this subchapter for extending the sales and use tax.

(E) If the voters do not approve a change in the expiration date for the sales and use tax levied under this subchapter, the:

(i) Tax shall continue to be collected until the expiration date previously approved by the voters; and

(ii) Question may be resubmitted to the voters at the time permitted by the election laws and § 26-74-210(a)(1) shall not apply.

(F) An election to change the expiration date for a sales or use tax levied under this subchapter is not an election on the levy of the tax.

(c)(1)(A) The ballot may also indicate designated uses of the revenues derived from the sales and use tax or the allocation or distribution of revenues, or both, and if the tax is approved, the proceeds shall only be used for the designated purposes and distributed in the manner set forth in the ballot.

(B) The county's share of the proceeds may be used for other designated purposes if the electors approve a change in the designated use of the revenues by vote under this subsection.

(2)(A) The quorum court of a county may refer to the vote of the people a change in the indicated use of revenues derived from a sales and use tax levied by the county that was approved by the voters, but a change shall not alter the allocation of tax collections among the county and municipalities within the county.

(B) If the quorum court of a county refers to the vote of the people a change in the indicated use of revenues derived from a sales and use tax, the quorum court shall:

(i) Notify the county board of election commissioners that the measure has been referred to the vote of the people; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the indicated use of revenues derived from a sales and use tax shall be conducted in the manner provided by law for all other county elections.

(ii) The results of an election under this subsection shall be certified, proclaimed, and subject to challenge under the procedures stated in § 26-74-209.

(3) If the voters approve a change in the indicated use of revenues derived from a sales and use tax, the change in the indicated use shall apply to all revenues collected on the first day of the calendar month following the expiration of the thirty-day challenge period under § 26-74-209.

(4)(A) If the voters do not approve a change in the indicated use of revenues derived from a sales and use tax, the tax shall continue to be collected and the revenues derived from the tax shall continue to be used for the purposes indicated in the ballot for the tax.

(B) An election to change the indicated use of revenues derived from a sales and use tax shall not constitute an election on the levy of the tax.

(5) Notwithstanding anything in this subchapter to the contrary, in any county that a local sales and use tax has been adopted in the manner provided for in this subchapter and a portion of the revenues derived from the tax has been pledged to secure lease rentals or bonds, the purpose for the tax may not be changed to reduce the pledge in favor of the lease or bonds.

(d)(1) The ballot may indicate an effective date for the levy of the tax that is effective later than the effective date provided in § 26-74-209(d)(2)(A)(i).

(2) The effective date of a levy of the tax that is delayed under subdivision (d)(1) of this section shall be:

(A) Stated in the ordinance levying the tax and on the ballot; and

(B) Scheduled on the first day of the first month of a calendar quarter.

(3) The effective date of a levy of the tax that is delayed under subdivision (d)(1) of this section shall not be delayed for more than thirty-six (36) months after the date the tax would be effective under § 26-74-209(d)(2)(A)(i).

(e)(1) Any tax adopted for a specified period of time shall cease to be levied on the date indicated on the ballot.

(2) This section shall be effective retroactive to December 1, 1981, and if a majority of the qualified electors of any county in this state voting on the question at an election held subsequent

to this date have voted to adopt a sales tax levy for a specific duration of time as stated on the ballot, the authority to levy the sales tax shall cease on the date specified on the ballot for termination of the sales tax the same as if the question had been voted upon under the provisions of this subchapter, which are made retroactive to December 1, 1981.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 3; 1983, No. § 1; 2005, No. 1160, § 1; 2009, No. 298, § 1; 2009, No. 383, 278, § 3; A.S.A. 1947, § 17-2023; Acts 1991, No. 765, § 7; § 1; 2019, No. 910, § 4368; 2025, No. 720, § 1. 1995, No. 565, § 1; 1999, No. 1478, § 1; 2003, No. 1156,

26-74-209. Conduct of election and results — Challenges.

(a) The election shall be conducted in the manner provided by law for all other county elections unless otherwise specified in this subchapter.

(b) When the election results have been certified, the county court shall immediately issue a proclamation declaring the results of the election and cause the proclamation to be published one (1) time in a newspaper having general circulation within the county.

(c) Any person desiring to challenge the results of the election as published in the proclamation shall file the challenge in the circuit court of the county within thirty (30) days after the date of publication of the proclamation.

(d)(1) The county court shall notify the Secretary of the Department of Finance and Administration of the countywide tax after publication of the proclamation has occurred and ninety (90) days before the effective date of the tax.

(2)(A)(i) Except as provided in subdivision (d)(2)(A)(ii) of this section, if an election challenge is not timely filed, the countywide tax shall be levied, effective on the first day of the first month of the calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers and after the expiration of the thirty-day challenge period, on the gross receipts from the sale at retail within the county of all items and services that are subject to the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq.

(ii) The effective date of the levy of the countywide tax may be delayed under § 26-74-208(d).

(B) In every county where the local sales and use tax has been adopted under this subchapter, there is imposed an excise tax on the storage, use, distribution, or consumption within the county of tangible personal property or services purchased, leased, or rented from any retailer outside the state after the effective date of the sales and use tax for storage, use, distribution, or other consumption in the county at the same rate on the sale price of the property or in the case of leases or rentals on the lease or rental price, the rate of the use tax to correspond to the rate of the sales tax portion of the tax.

(3) The use tax portion of the local sales and use tax shall be collected according to the terms of the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(e)(1) In the event of an election challenge, the tax shall be collected as prescribed in subsection (d) of this section unless enjoined by a court order.

(2) A hearing involving this litigation shall be advanced on the docket of the court and disposed of at the earliest feasible time.

History. Acts 1981 (1st Ex. Sess.), No. 26, §§ 4-6; A.S.A. 1993, No. 266, § 1; 1995, No. 565, § 2; 2003, No. 1273, 1947, §§ 17-2024 — 17-2026; Acts 1991, No. 765, § 8; § 34; 2009, No. 298, § 2; 2019, No. 910, §§ 4369, 4370.

26-74-210. Resubmission of question of levy or repeal.

(a)(1) When the question of the levy or repeal of a county sales and use tax is submitted to the electors and the proposition is approved or defeated, the question shall not again be submitted to the electors by ordinance of the quorum court of the county or by petition of electors at a special or general election for a period of six (6) months from the date the proposition was last voted upon.

(2)(A) A petition requesting that the issue be submitted to the electors of the county shall contain the signatures of at least fifteen percent (15%) of the electors of the county as

determined by the total number of votes cast for all candidates for circuit clerk of the county at the last preceding general election.

(B)(i) The petition shall be filed and verified by the county clerk.

(ii) If the petition is found to be sufficient, the issue shall be submitted to the electors at a special election on a date as may be requested by the petition.

(C) The special election shall be called in accordance with § 7-11-201 et seq. for a date not more than ninety (90) days from the date on which the county clerk certifies the sufficiency of the petition to the county board of election commissioners.

(b)(1) The ballot title for use in an election on the question of abolishing the county sales and use tax shall be the same as indicated in § 26-74-208, except that the word “ABOLISH” shall be substituted for the word “ADOPTION”.

(2) The effective date of any affirmative vote to abolish the tax shall correspond to the dates indicated in this subchapter for the initial effective date of the tax.

(c) Notwithstanding anything in this subchapter to the contrary, in any county in which a local sales and use tax has been adopted in the manner provided for in this subchapter and all or any portion pledged to secure lease rentals or the payment of bonds as authorized by this subchapter, that portion of the tax pledged to lease rentals or bonds shall not be repealed, abolished, or reduced so long as the lease is effective or any of such bonds are outstanding.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 8; 1983, No. 2005, No. 2145, § 68; 2007, No. 1049, § 90; 2009, No. 1480, 723, § 2; 1985, No. 526, § 1; A.S.A. 1947, § 17-2028; Acts § 109.

26-74-211. Notification of results.

(a) Within ten (10) days after the certification of the votes of any election resulting in the adoption or abolition of a tax levied pursuant to this subchapter and ninety (90) days before its effective date, the county court shall notify the Secretary of the Department of Finance and Administration of the results.

(b) A rate change will be effective only on the first day of a calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers.

(c) A rate change on a purchase from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog will be applicable on the first day of a calendar quarter after a minimum of one hundred twenty (120) days' notice by the secretary to the sellers.

(d) For sales and use tax purposes only, a local boundary change will become effective on the first day of a calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers.

History. Acts 1981 (1st Ex. Sess.), No. 26 § 9; A.S.A. 1947, § 17-2029; Acts 2003, No. 383, § 3; 2003, No. 1273, § 35; 2019, No. 910, § 4371.

SUBCHAPTER 3 — SALES TAX FOR CAPITAL IMPROVEMENTS

SECTION.

26-74-301. Purpose.
26-74-302. Construction.
26-74-303. Definitions.
26-74-304. Issuance of bonds.
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SECTION.

26-74-307. Call for tax election.
26-74-308. Form of ballot.
26-74-309. Conduct of election and results — Challenges.
26-74-310. Abolition of tax.
26-74-311. Notification of results.

26-74-301. Purpose.

(a) This subchapter is intended to supplement all constitutional provisions and other acts adopted for the acquiring, constructing, and equipping of capital improvements of a public nature and the issuance of bonds for the financing of a capital improvement of a public nature.

(b) When applicable in accordance with the provisions of this subchapter, this subchapter may be used by any county as an alternative notwithstanding and without the necessity of compliance with any constitutional provision or any other act authorizing the county, or any commission or agency of the county, to issue bonds for the purpose of financing the acquisition, construction, and equipment of capital improvements of a public nature.

(c)(1) This subchapter is intended to supplement and be levying authority in addition to all other statutes authorizing countywide sales and use taxes.

(2) Collections of a tax levied by this subchapter may be used to secure the payment of bonds or for any purpose for which the general fund of a municipality or county may be used, or a combination thereof, except as may be expressly limited by the ballot for the election at which the tax was approved or by the ballot for a subsequent election on the purposes for the tax.

History. Acts 1981, No. 991, § 16, as added by Acts 1983, No. 725, § 6; A.S.A. 1947, § 17-2020.4; Acts 2001, No. 1560, § 4.

RESEARCH REFERENCES

U. Ark. Little Rock L. Rev. Survey of Legislation, 2001 Arkansas General Assembly, Tax Law, 24 U. Ark. Little Rock L. Rev. 613.

26-74-302. Construction.

This subchapter shall be liberally construed to accomplish the purposes of this subchapter.

History. Acts 1981, No. 991, § 16, as added by Acts 1983, No. 725, § 6; A.S.A. 1947, § 17-2020.4.

26-74-303. Definitions.

As used in this subchapter:

(1) “Acquire” means to obtain at any time, by gift, purchase, or other arrangement, any capital improvement of a public nature, or any portion of a capital improvement of a public nature, whether constructed and equipped before acquisition, partially constructed and equipped before acquisition, or being constructed and equipped at the time of acquisition, for such consideration and pursuant to such terms and conditions as the quorum court of the county shall determine;

(2) “Calendar quarter” means the three-month period beginning on January 1, April 1, July 1, or October 1;

(3) “Capital improvements of a public nature” means:

- (A) Streets;
- (B) Roads;
- (C) Public parks;
- (D) Port facilities;
- (E) Tourism facilities;
- (F) Airport facilities;
- (G) Sewerage facilities;
- (H) Waterworks facilities;
- (I) Fire protection facilities;
- (J) Convention center facilities;
- (K) Courthouses;
- (L) Police facilities;
- (M) Public transit facilities;
- (N) Auditoriums;
- (O) Prisons;
- (P) Libraries;
- (Q) Hospital and nursing home facilities;

- (R) Solid waste facilities;
- (S) Sanitation facilities;
- (T) Bridges;
- (U) Electric facilities;
- (V) Hydroelectric facilities;
- (W) Facilities for the securing and developing of industry;
- (X) Natural gas facilities;
- (Y) Parking facilities;
- (Z) Public housing facilities;
- (AA) Pollution control facilities;
- (BB) Public education facilities;
- (CC) Drainage facilities;
- (DD) Pedestrian facilities;
- (EE) Lakes;
- (FF) Dams;
- (GG) Waterways;
- (HH) Regional mobility authority surface transportation systems; and
- (II) Research parks;

(4) “Construct” means to build, in whole or in part, in such manner and by such method, including contracting to build and, if contracting to build, by negotiation or bidding upon such terms and pursuant to such advertising as determined by the quorum court of the county, under the circumstances existing at the time, as will most effectively serve the purposes of this subchapter;

(5) “Equip” means to install or place in or on any building or structure equipment of any and every kind, whether or not affixed, including, without limitation, building service equipment, fixtures, heating equipment, air conditioning equipment, machinery, furniture, furnishings, and personal property of every kind;

(6) “Facilities” means real, personal, or mixed property of any and every kind, including, without limitation, rights-of-way, utilities, materials, equipment, fixtures, machinery, furniture, furnishings, buildings, and other improvements of every kind;

(7) “Lease” means any lease of a capital improvement of a public nature by and between the county as lessee and a person as lessor; and

(8) “Sales tax” means the sales tax levied by a county pursuant to this subchapter or sales and use tax levied by a county pursuant to §§ 26-74-219 and 26-74-316.

History. Acts 1981, No. 991, § 13, as added by Acts 1983, No. 725, § 1; A.S.A. 1947, § 17-2020.1; Acts 1995, No. 565, § 16; 2005, No. 2275, § 3; 2007, No. 1045, § 5; 2019, No. 910, § 4380.

Amendments. The 2005 amendment added (HH) in

present (3).

The 2007 amendment added (II) in (3), and made related changes.

The 2019 amendment repealed the defined term “director”.

26-74-304. Issuance of bonds.

(a) Counties levying the tax permitted in this subchapter are authorized, in addition to the authority existing under the laws of this state, to acquire, construct, equip, reconstruct, extend, and improve capital improvements of a public nature, collectively referred to as a “project”, within or near such counties and are authorized to issue bonds to provide funds for accomplishing projects and to pledge all or any part of the revenues which the county is entitled to receive from the tax levied by such county pursuant to this subchapter to pay lease rentals, or principal of, interest on, and fees and expenses in connection with such bonds.

(b) Bonds issued by a county pursuant to this subchapter shall be authorized by ordinance of the quorum court of the county. The bonds may:

- (1) Be coupon bonds payable to bearer or may be registered as to principal or as to principal and interest;
- (2) Be exchangeable for bonds of another denomination;

- (3) Be in such form and denominations;
- (4) Be made payable at such places within or without the state;
- (5) Be issued in one (1) or more series;
- (6) Bear such date or dates;
- (7) Mature at such time or times, not exceeding forty (40) years from their respective dates;
- (8) Bear interest at such rate or rates;
- (9) Be payable in such medium of payment;
- (10) Be subject to such terms of redemption; and
- (11) Contain such terms, covenants, and conditions as the ordinance authorizing their issuance may provide including, without limitation, those pertaining to:
 - (A) The custody, investment, and application of the proceeds of the bonds;
 - (B) The collection and disposition of revenues;
 - (C) The maintenance of various funds and reserves;
 - (D) The nature and extent of the security and pledging of revenues;
 - (E) The rights, duties, and obligations of the county and the trustee for the holders and registered owners of the bonds; and
 - (F) The rights of the holders and registered owners of the bonds.

(c) There may be successive bond issues for the purpose of financing the same project, and there may be successive bond issues for financing the cost of reconstructing, replacing, constructing additions to, extending, improving, and equipping projects already in existence, whether or not originally financed by bonds issued under this subchapter, and with each successive issue to be authorized as provided by this subchapter. Priority between and among issues and successive issues as to security of the pledge of revenues and lien on the project facilities involved may be controlled by the ordinance authorizing the issuance of bonds under this subchapter. Subject to the provisions of this subchapter pertaining to registration, the bonds shall have all the qualities of negotiable instruments under the laws of the State of Arkansas. A copy of the ordinance authorizing bonds under this subchapter, certified by the county clerk of the county, shall be filed with the Secretary of the Department of Finance and Administration and with the Treasurer of State.

(d) The bonds shall be executed by the county judge of the county and attested by the county clerk of the county, by their manual or facsimile signatures. Coupons attached to the bonds shall be executed by the facsimile signature of the county judge. In case any of the officers whose signatures appear on the bonds or coupons cease to be such officers before delivery of the bonds or coupons, their signatures shall nevertheless be valid and sufficient for all purposes. The bonds shall be sealed with the seal of the county issuing the bonds.

(e) The bonds shall not be general obligations of the county involved but shall be special obligations secured and payable as provided in this subchapter. In no event shall the bonds constitute an indebtedness of the county within the meaning of any constitutional or statutory limitation. The principal of and interest on all bonds issued under the authority of this subchapter shall be secured by a pledge of, and shall be payable from, all or any part of the revenues derived from the tax levied by the county, and to which the county is entitled, pursuant to this subchapter or from all or any part of the revenues derived from the operation of the project involved, if and to the extent permitted by other laws of the State of Arkansas authorizing the issuance of revenue bonds secured by the revenues of such facilities. The ordinance authorizing the issuance of bonds together with this subchapter shall constitute a contract by and between the county and the holders and registered owners of the bonds issued by the county under the authority of this subchapter, which contract, and all covenants, agreements, and obligations therein, shall be promptly performed in strict compliance with the terms and provisions of the contract, and the contract and all rights of the holders and registered owners of the bonds and the obligations of the county may be enforced by mandamus or by any other appropriate proceeding at law or in equity. It shall be plainly stated on the face of each bond that it has been issued under the provisions of this subchapter.

(f) The ordinance authorizing the bonds may provide for the execution by the county with a bank or trust company, within or without the State of Arkansas, of a trust indenture. The trust

indenture may control the priority between and among successive issues and series, and may contain any other terms, covenants, and conditions that are deemed desirable by the governing body, including, without limitation, those pertaining to:

- (1) The custody, investment, and application of the proceeds of bonds;
- (2) The collection and disposition of revenues;
- (3) The maintenance of various funds and reserves;
- (4) The nature and extent of the security;
- (5) The rights, duties, and obligations of the county and the trustee for the holders and registered owners of the bonds; and

- (6) The rights of the holders and registered owners of the bonds.

(g) Bonds issued under the authority of this subchapter may be sold at public or private sale. If sold at public sale, the bonds shall be sold on sealed bids, and notice of the sale shall be published one (1) time in a newspaper having a general circulation throughout the State of Arkansas, at least ten (10) days prior to the date of the sale. In either case, the bonds may be sold at such price as the county may accept, including sale at a discount.

(h) Bonds issued under the authority of this subchapter are made securities in which insurance companies, trust companies, banks, investment companies, executors, administrators, trustees, and other fiduciaries may properly and legally invest funds, including capital in their control or belonging to them. Such bonds are made securities which may properly and legally be deposited with and received by any state or municipal officer or any agency or political subdivision of the state for any purpose for which the deposit of bonds or obligations of the state is authorized by law. Any municipality or county, or any board, commission, or other authority established by any such municipality or county, or the boards of trustees, respectively, of any retirement fund or retirement system created by or pursuant to authority conferred by the General Assembly in its discretion may invest any of its funds not immediately needed for its purposes in bonds issued under the authority of this subchapter, and bonds issued under the authority of this subchapter shall be eligible to secure the deposit of public funds.

(i) The principal of and interest on bonds issued under the authority of this subchapter shall be exempt from all state, county, school district, community college district, and municipal taxes. This exemption shall include income, property, inheritance, and estate taxes.

(j) Revenue bonds may be issued under this subchapter for the purpose of refunding any obligations issued under this subchapter or under the authority of any other law for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature. These refunding bonds may be combined with bonds issued under the provisions of this section into a single issue. When bonds are issued under this section for refunding purposes, the bonds may either be sold or delivered in exchange for the outstanding obligations. If sold, the proceeds may be either applied to the payment of the obligations refunded or deposited in escrow for the retirement thereof. The ordinance under which the refunding bonds are issued may provide that any of the refunding bonds shall have the same priority of lien on the revenues pledged for their payment as was enjoyed by the obligations refunded thereby. These refunding bonds shall be issued and secured in the manner provided for other bonds issued under this subchapter and shall have all the attributes of these bonds.

History. Acts 1981, No. 991, § 14, as added by Acts 1983, No. 725, § 4; A.S.A. 1947, § 17-2020.2; Acts 2019, No. 910, § 4381.

Amendments. The 2019 amendment substituted “Sec-

retary of the Department of Finance and Administration” for “Director of the Department of Finance and Administration” in (c).

26-74-305. Voter approval of bonds.

No ordinance shall be passed by the quorum court of a county under § 26-74-304 until the majority of the qualified electors of the county voting on the question shall have approved, at an election called for that purpose and conducted in accordance with the general county election laws, the principal amount of the bonds and the purpose for which the bonds will be issued.

History. Acts 1981, No. 991, § 17, as added by Acts 1983, No. 725, § 7; A.S.A. 1947, § 17-2020.5.

26-74-306. Pledge of revenues.

Any county levying the tax as permitted in this subchapter is authorized to pledge all or any part of the revenues which the county is entitled to receive from the tax levied pursuant to this subchapter to the payment of lease rentals or principal of and interest on bonds issued by such county under the authority of any other law in effect for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature, or on bonds issued to refund such bonds, and such bonds, including the refunding bonds, shall be deemed to have been authorized by this subchapter for purposes of §§ 26-74-310 and 26-74-313.

History. Acts 1981, No. 991, § 15, as added by Acts 1983, No. 725, § 5; A.S.A. 1947, § 17-2020.3.

26-74-307. Call for tax election.

(a)(1) A county quorum court may call an election for the levy of a countywide sales tax in an amount of:

- (A) One-eighth of one percent (0.125%);
- (B) One-fourth of one percent (0.25%);
- (C) One-half of one percent (0.5%);
- (D) Three-fourths of one percent (0.75%);
- (E) One percent (1%); or
- (F) Any combination of these amounts.

(2) The election shall be held on the next special election date under § 7-11-205.

(3) Each tax shall be adopted by ordinance and with approval of the voters of the county in accordance with this subchapter.

(b) The quorum court shall notify its county board of election commissioners that the measure has been referred to the vote of the people and shall submit a copy of the ballot title to its county board of election commissioners.

History. Acts 1981, No. 991, §§ 1, 2; A.S.A. 1947, §§ 17-2010, 17-2011; Acts 1991, No. 765, § 10; 2001, No. 1560, § 6; 2021, No. 610, § 30.

Amendments. The 2021 amendment substituted “on

the next special election date under § 7-11-205” for “within one hundred twenty (120) days of the ordinance calling the election” in (a)(2).

RESEARCH REFERENCES

U. Ark. Little Rock L. Rev. Survey of Legislation, 2001 Arkansas General Assembly, Tax Law, 24 U. Ark. Little Rock L. Rev. 613.

CASE NOTES

Notice.

Where the official ballot and voting instructions used at a county-wide special election called for the voters to vote for or against the adoption of a 1% sales tax pursuant to the provisions of Acts 1981, No. 991, as amended by Acts 1981, No. 26, First Extraordinary Session, but no mention was made of a 1% compensating use tax, a subsequent attempt by the quorum court to impose a 1% use tax pursuant to the

favorable vote at the special election was invalid, because the ballot title used at the special election did not mention a possible use tax nor were the references to the acts of the legislature sufficient to put the voters on notice that they were also voting on a use tax. *Ragan v. Venhaus*, 289 Ark. 266, 711 S.W.2d 467 (1986).

Cited: *Daniel v. Jones*, 332 Ark. 489, 966 S.W.2d 226 (1998).

26-74-308. Form of ballot.

(a) The ballot title to be used shall be substantially in the following form:

“[] FOR adoption of a percent (.... %) sales and use tax within
(Name of county).”

“[] AGAINST adoption of a percent (.... %) sales and use tax within
(Name of county).”

(b)(1) The ballot title may also include an expiration date, and if adopted in this form, the tax shall cease to be levied on the date noted on the ballot.

(2) The expiration date shall be the last day of a calendar quarter unless the proceeds are pledged for the payment of bonds, in which case the tax shall terminate as otherwise provided by law.

(3)(A)(i) The quorum court of a county may refer to the voters of the county a change in the expiration date for the sales and use tax approved by the voters to extend the levy of the sales and use tax beyond the expiration date previously approved.

(ii) The proposed expiration date shall be the last day of the last month of a calendar quarter.

(B) If the quorum court of a county refers a change in the expiration date for an existing sales and use tax levied under this subchapter to the voters, the quorum court shall:

(i) Notify the county board of election commissioners that the measure has been referred to the voters; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the expiration date for a sales or use tax levied under this subchapter shall be conducted in the manner provided by law for all other county elections.

(ii) The results of the election under this subsection shall be certified, proclaimed, and subject to challenge under § 26-74-309.

(D)(i) To extend the sales and use tax levied under this subchapter to a new expiration date, the county shall notify the Secretary of the Department of Finance and Administration of the new expiration date that was approved by the voters after publication of the proclamation has occurred and at least ninety (90) days before the current expiration date of the sales and use tax.

(ii) The sales and use tax extended under this subdivision (b)(3) shall continue to be levied until the new expiration date.

(iii)(a) At least one hundred twenty (120) days before the expiration of a sales and use tax levied under this subchapter, the Department of Finance and Administration shall notify the county quorum court of the county that levied the sales and use tax concerning the expiration of the sales and use tax.

(b) The notification required under subdivision (b)(3)(D)(iii)(a) of this section shall state the:

(1) Current expiration date of the sales and use tax; and

(2) Specific requirements under this subchapter for extending the sales and use tax.

(E) If the voters do not approve a change in the expiration date for the sales and use tax levied under this subchapter, the tax shall continue to be collected until the expiration date previously approved by the voters.

(F) An election to change the expiration date for a sales or use tax levied under this subchapter is not an election on the levy of the tax.

(c)(1)(A) The ballot may also indicate designated uses of the revenues derived from the sales and use tax, and if the tax is approved, the proceeds shall be used only for the designated purposes.

(B) The county's share of the proceeds may be used for other designated purposes if the electors approve a change in the designated use of the revenues by vote under this subsection.

(2)(A) The quorum court of a county may refer to the vote of the people a change in the indicated use of revenues derived from a sales and use tax levied by the county that was approved by the voters, but a change shall not alter the allocation of tax collections among the county and municipalities within the county.

(B) If the quorum court of a county refers to the vote of the people a change in the indicated use of revenues derived from a sales and use tax, then the quorum court shall:

(i) Notify the county board of election commissioners that the measure has been referred to the vote of the people; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the indicated use of revenues derived from a sales and use tax shall be conducted in the manner provided by law for all other county elections.

(ii) The results of an election under this subsection shall be certified, proclaimed, and subject to challenge under the procedures stated in § 26-74-309.

(3) If the voters approve a change in the indicated use of revenues derived from a sales and use tax, the change in the indicated use shall apply to all revenues collected on the first day of the calendar month following the expiration of the thirty-day challenge period under § 26-74-309.

(4)(A) If the voters do not approve a change in the indicated use of revenues derived from a sales and use tax, the tax shall continue to be collected and the revenues derived from the tax shall continue to be used for the purposes indicated in the ballot for the tax.

(B) An election to change the indicated use of revenues derived from a sales and use tax shall not constitute an election on the levy of the tax.

(5) Notwithstanding anything in this subchapter to the contrary, in any county that a local sales and use tax has been adopted in the manner provided for in this subchapter and a portion of the revenues derived from the tax has been pledged to secure lease rentals or bonds, the purpose for the tax may not be changed to reduce the pledge in favor of the lease or bonds.

(d)(1) The ballot may indicate an effective date for the levy of tax that is effective later than the effective date provided in § 26-74-309(d)(2)(A).

(2) The effective date of a levy of the tax that is delayed under subdivision (d)(1) of this section shall be:

(A) Stated in the ordinance levying the tax and on the ballot; and

(B) On the first day of the first month of a calendar quarter.

(3) The effective date of a levy of the tax that is delayed under subdivision (d)(1) of this section shall not be delayed for more than thirty-six (36) months after the date the tax would be effective under § 26-74-309(d)(2)(A).

History. Acts 1981, No. 991, § 3; 1983, No. 278, § 1; A.S.A. 1947, § 17-2012; Acts 1991, No. 765, § 11; 1995, No. 565, § 3; 2003, No. 1156, § 2; 2005, No. 1161, § 1; 2009, No. 298, § 3; 2009, No. 383, § 2; 2019, No. 910, § 4382; 2025, No. 720, § 2.

A.C.R.C. Notes. In subdivision (b)(3)(D)(iii)(a) of this section as enacted by Acts 2025, No. 720, § 2, “the tax” was corrected to “the sales and use tax” under § 1-2-303.

Amendments. The 2003 amendment redesignated former (c) as present (c)(1)(A) and added (c)(1)(B) and (c)(2) through (c)(5).

The 2005 amendment substituted “sales and use tax” for “sales or use tax” throughout this section; added the

commas in (c)(1)(A); inserted “county’s share of the” in (c)(1)(B); and, in (c)(2)(A), inserted “levied by the county” and “but a change ... within the county.”

The 2009 amendment by No. 298 added (d).

The 2009 amendment by No. 383 inserted (b)(3).

The 2019 amendment substituted “Secretary of the Department of Finance and Administration” for “Director of the Department of Finance and Administration” in (b)(3)(D)(i).

The 2025 amendment added (b)(3)(D)(iii).

CASE NOTES

ANALYSIS

Illegal Exaction.
Purpose of Tax.

Illegal Exaction.

Any use of sales tax revenues for purposes other than those designated by the levying ordinance and the ballot is an unconstitutional illegal exaction. *Daniel v. Jones*, 332 Ark. 489, 966 S.W.2d 226 (1998).

Purpose of Tax.

Ark. Const., Art. 16, § 11, does not require the purpose of the tax to be stated in the ballot or county ordinance calling for the election when the tax is to be used for general purposes. *Oldner v. Villines*, 328 Ark. 296, 943 S.W.2d 574 (1997).

26-74-309. Conduct of election and results — Challenges.

(a) The election shall be conducted in the manner provided by law for all other county elections unless otherwise specified in this subchapter.

(b) When the election results have been certified, the county court shall immediately issue a proclamation declaring the results of the election and cause the proclamation to be published one (1) time in a newspaper having general circulation within the county.

(c) Any person desiring to challenge the results of the election as published in the proclamation shall file the challenge in the circuit court of the county within thirty (30) days after the date of publication of the proclamation.

(d)(1) The county court shall notify the Secretary of the Department of Finance and Administration of the countywide tax after publication of the proclamation has occurred and ninety (90) days before the effective date of the tax.

(2)(A) Except as provided in subdivision (d)(2)(B) of this section, if an election challenge is not timely filed, the countywide tax shall be levied, effective on the first day of the first month of the calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers and after the expiration of the thirty-day challenge period, on the gross receipts from the sale at retail within the county of all items and services that are subject to the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(B) The effective date of the levy of the countywide tax may be delayed under § 26-74-308(d).

(e)(1) In the event of an election challenge, the tax shall be collected as prescribed in subsection (d) of this section unless enjoined by a court order.

(2) A hearing involving this litigation shall be advanced on the docket of the court and disposed of at the earliest practicable time.

History. Acts 1981, No. 991, §§ 4-6; A.S.A. 1947, §§ 17-2013 — 17-2015; Acts 1991, No. 765, § 12; 1993, No. 266, § 2; 1995, No. 565, § 4; 2003, No. 1273, § 39; 2009, No. 298, § 4; 2019, No. 910, § 4383.

Publisher's Notes. Subsection (c) was held unconstitutional to the degree it granted jurisdiction to chancery courts over an election contest in *Pike v. Rice*, 297 Ark. 25, 759 S.W.2d 541 (1988). Amendment 80 to the Arkansas Constitution, adopted by voter referendum and effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the Constitution and specifically provided that "jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juve-

nile Courts. ...".

Amendments. The 2003 amendment inserted (d)(1); redesignated former (d) as (d)(2); in present (d)(2), substituted "after a minimum of sixty (60) days' notice by the director to sellers and after" for "subsequent to," substituted "and services that" for "which" and added "and the Arkansas Compensating Tax Act of 1949, § 26-53-101."

The 2009 amendment, in (d)(2), inserted (d)(2)(B), redesignated the remaining text accordingly, inserted "Except as provided in subdivision (d)(2)(B) of this section" in (d)(2)(A), and made minor stylistic changes.

The 2019 amendment substituted "Secretary of the Department of Finance and Administration" for "Director of the Department of Finance and Administration" in (d)(1) and "secretary" for "director" in (d)(2)(A).

RESEARCH REFERENCES

U. Ark. Little Rock L. Rev. Survey of Legislation, 2003 Arkansas General Assembly, Taxation, Sales and Use Tax, 26 U. Ark. Little Rock L. Rev. 498.

CASE NOTES

Constitutionality.

Since election contests must be filed in a law court, that part of subsection (c) of this section which attempts to

grant chancery court jurisdiction of an election contest is unconstitutional. *Pike v. Rice*, 297 Ark. 25, 759 S.W.2d 541 (1988) (decision under prior law).

26-74-310. Abolition of tax.

(a) In any county in which a local sales tax has been levied pursuant to this subchapter, and all or any portion pledged to secure lease rentals or the payment of bonds as authorized by this

subchapter, that portion of the tax pledged to lease rentals or bonds shall not be abolished so long as any of the lease is effective or such bonds are outstanding.

(b)(1) The county may abolish all or that portion of the sales tax that is not pledged to lease rentals or outstanding bonds after, and only after, an election called in the same manner as provided in § 26-74-307 or by a petition of the qualified voters of the county.

(2) As to such a petition of the qualified voters, the provisions of Arkansas Constitution, Amendment 7 shall govern.

(3) The ballot title for use in any such election shall be the same as indicated in § 26-74-308, except that the word “ABOLITION” shall be substituted for the word “ADOPTION” as it appears in the ballot title set forth in that section.

(4) The effective date of any affirmative vote to abolish such tax shall correspond to the dates indicated in § 26-74-309 for the initial effective date of such tax.

History. Acts 1981, No. 991, § 7; 1983, No. 278, § 2; 1983, No. 725, § 2; A.S.A. 1947, § 17-2016.

26-74-311. Notification of results.

(a) Within ten (10) days after the certification of the votes of any election resulting in the adoption or abolition of a tax levied pursuant to this subchapter and ninety (90) days before the effective date, the county court shall notify the Secretary of the Department of Finance and Administration of the results.

(b) A rate change will become effective only on the first day of a calendar quarter after a minimum of sixty (60) days’ notice by the secretary to sellers.

(c) A rate change on a purchase from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog will be applicable beginning on the first day of a calendar quarter after a minimum of one hundred twenty (120) days’ notice by the secretary to the sellers.

(d) For sales and use tax purposes only, a local boundary change will become effective only on the first day of a calendar quarter after a minimum of sixty (60) days’ notice by the secretary to the sellers.

History. Acts 1981, No. 991, § 8; A.S.A. 1947, § 17-2017; Acts 2003, No. 383, § 4; 2003, No. 1273, § 40; 2019, No. 910, § 4384.

Amendments. The 2003 amendment by No. 383 substituted “Director of the Department of Finance and Administration” for “director” and deleted “and furnish the director with a map clearly indicating the boundaries of the county and the boundaries of each incorporated area within the county” from the end.

The 2003 amendment by No. 1273 designated the former undesignated paragraph of the section as (a); added (b), (c) and (d); and, in present (a), inserted “and ninety (90) days before the effective date.”

The 2019 amendment substituted “Secretary of the Department of Finance and Administration” for “Director of the Department of Finance and Administration” in (a) and “secretary” for “director” throughout the section.

RESEARCH REFERENCES

U. Ark. Little Rock L. Rev. Survey of Legislation, 2003
Arkansas General Assembly, Taxation, Sales and Use Tax,
26 U. Ark. Little Rock L. Rev. 498.

CHAPTER 75

MUNICIPAL SALES AND USE TAXES

SUBCHAPTER 2 — SALES AND USE TAX FOR CAPITAL IMPROVEMENTS

SECTION.

26-75-201. Purpose.
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26-75-222. Maximum tax limitation. [Effective October 1, 2025.]
26-75-223. Administration of Local Sales and Use Tax Trust Fund.

26-75-201. Purpose.

(a) This subchapter is intended to supplement all constitutional provisions and other acts adopted for the acquiring, constructing, and equipping of capital improvements of a public nature and the issuance of bonds for the financing of capital improvements of a public nature.

(b) When applicable, in accordance with the provisions of this subchapter, this subchapter may be used by any city as an alternative, notwithstanding and without the necessity of compliance with any constitutional provision or any other act authorizing the city, or any commission or agency of the city, to issue bonds for the purpose of financing the acquisition, construction, and equipment of capital improvements of a public nature.

(c)(1) This subchapter is intended to supplement and be levying authority for all Arkansas municipalities in addition to all other statutes authorizing municipal sales and use taxes.

(2) Collections of a tax levied by this subchapter may be used to secure the payment of bonds or for any purpose for which the municipality's general fund may be used or for a combination thereof.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 17, as added by Acts 1983, No. 726, § 8; A.S.A. 1947, § 19-4536; Acts 2001, No. 1561, § 3.

26-75-202. Construction.

This subchapter shall be liberally construed to accomplish the purposes of this subchapter.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 17, as added by Acts 1983, No. 726, § 8; A.S.A. 1947, § 19-4536.

26-75-203. Definitions.

As used in this subchapter:

(1) "Acquire" means to obtain at any time by gift, purchase, or other arrangement any capital improvement of a public nature or any portion of a capital improvement of a public nature, whether constructed and equipped before acquisition, partially constructed and equipped before acquisition, or being constructed and equipped at the time of acquisition for such consideration and pursuant to such terms and conditions as the governing body of the municipality shall determine;

(2) “Calendar quarter” means the three-month period beginning on January 1, April 1, July 1, or October 1;

(3) “Capital improvements of a public nature” means:

- (A) Street facilities;
- (B) Road facilities;
- (C) Public parks and other recreational facilities;
- (D) Port facilities;
- (E) Tourism facilities;
- (F) Airport facilities;
- (G) Sewerage facilities;
- (H) Waterworks facilities;
- (I) Fire protection facilities;
- (J) Convention center facilities;
- (K) City halls and other municipal buildings;
- (L) Courthouses;
- (M) Police facilities;
- (N) Public transit facilities;
- (O) Auditoriums;
- (P) Prisons;
- (Q) Libraries;
- (R) Hospital and nursing home facilities;
- (S) Solid waste facilities;
- (T) Sanitation facilities;
- (U) Bridges;
- (V) Electric facilities;
- (W) Hydroelectric facilities;
- (X) Facilities for the securing and developing of industry;
- (Y) Natural gas facilities;
- (Z) Parking facilities;
- (AA) Public housing facilities;
- (BB) Pollution control facilities;
- (CC) Public education facilities;
- (DD) Drainage facilities;
- (EE) Pedestrian facilities;
- (FF) Lakes;
- (GG) Dams;
- (HH) Waterways;
- (II) Regional mobility authority surface transportation systems; and
- (JJ) Research parks;

(4) “City” means any city of the first class, city of the second class, or incorporated town of the State of Arkansas;

(5) “Construct” means to build, in whole or in part, in such manner and by such method, including contracting to build, and if contracting to build, by negotiation or bidding upon such terms and pursuant to such advertising as determined by the governing body of the municipality, under the circumstances existing at the time, as will most effectively serve the purposes of this subchapter;

(6) “Equip” means to install or place in or on any building or structure equipment of any and every kind, whether or not affixed, including, without limitation, building service equipment, fixtures, heating equipment, air conditioning equipment, machinery, furniture, furnishings, and personal property of every kind;

(7) “Facilities” means real property, personal property, or mixed property of any and every kind, including, without limitation, rights-of-way, utilities, vehicles, materials, equipment, fixtures, machinery, furniture, furnishings, buildings, and other improvements of every kind; and

(8) “Lease” means a lease of a capital improvement of a public nature by and between a city as lessee and another person as lessor, except as used in § 26-75-214.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 1; 1983, No. 2005, No. 1930, § 1; 2005, No. 2275, § 4; 2007, No. 1045, 726, § 1; A.S.A. 1947, § 19-4523; Acts 1995, No. 565, § 18; § 6; 2019, No. 910, § 4415.

26-75-204. Issuance of bonds.

(a) A city levying the tax as permitted in this subchapter in addition to the authority existing under the laws of the state is authorized to acquire, construct, equip, reconstruct, extend, and improve capital improvements of a public nature, collectively referred to as a “project”, within or near such city and is authorized to issue bonds to provide funds for accomplishing projects and to pledge all or any part of the revenues which the city is entitled to receive from the tax levied by such city pursuant to this subchapter to pay lease rentals or the principal of, interest on, and fees and expenses in connection with such bonds.

(b) Bonds issued by a city pursuant to this subchapter shall be authorized by ordinance of the governing body. The bonds may:

- (1) Be coupon bonds payable to bearer or may be registered as to principal or as to principal and interest;
- (2) Be exchangeable for bonds of another denomination;
- (3) Be in such form and denominations;
- (4) Be made payable at such places within or without the state;
- (5) Be issued in one (1) or more series;
- (6) Bear such date or dates;
- (7) Mature at such time or times, not exceeding forty (40) years from their respective dates;
- (8) Bear interest at such rate or rates;
- (9) Be payable in such medium of payment;
- (10) Be subject to such terms of redemption; and
- (11) May contain such other terms, covenants, and conditions, as the ordinance authorizing their issuance may provide, including, without limitation, those pertaining to:
 - (A) The custody, investment, and application of the proceeds of the bonds;
 - (B) The collection and disposition of revenues;
 - (C) The maintenance of various funds and reserves;
 - (D) The nature and extent of the security and pledging of revenues;
 - (E) The rights, duties, and obligations of the city and the trustee for the holders and registered owners of the bonds; and
 - (F) The rights of the holders and registered owners of the bonds.

(c) There may be successive bond issues for the purpose of financing the same project, and there may be successive bond issues for financing the cost of reconstructing, replacing, constructing additions to, extending, improving, and equipping projects already in existence, whether or not originally financed by bonds issued under this subchapter, and with each successive issue to be authorized as provided by this subchapter. Priority between and among issues and successive issues as to security of the pledge of revenues and lien on the project facilities involved may be controlled by the ordinance authorizing the issuance of bonds under this subchapter. Subject to the provisions of this subchapter pertaining to registration, the bonds shall have all the qualities of negotiable instruments under the laws of the State of Arkansas. A copy of the ordinance authorizing bonds under this subchapter, certified by the clerk or recorder of the city, shall be filed with the Secretary of the Department of Finance and Administration and with the Treasurer of State.

(d) The bonds shall be executed by the mayor of the city and attested by the clerk or recorder of the city, by their manual or facsimile signatures. Coupons attached to the bonds shall be executed by the facsimile signature of the mayor. In case any of the officers whose signatures appear on the bonds or coupons cease to be such officers before delivery of the bonds or coupons, their signatures shall nevertheless be valid and sufficient for all purposes. The bonds shall be sealed with the seal of the city issuing the bonds.

(e) The bonds shall not be general obligations of the city involved, but shall be special obligations secured and payable as provided in this subchapter. In no event shall the bonds constitute an indebtedness of the city within the meaning of any constitutional or statutory limitation. The principal of, and interest on, all bonds issued under the authority of this subchapter shall be secured by a pledge of, and shall be payable from, all or any part of the revenues derived from the tax levied by the city pursuant to this subchapter or from all or any part of the revenues derived from the operation of the project involved, if and to the extent permitted by other laws of the State of Arkansas authorizing the issuance of revenue bonds secured by the revenues of such facilities. The ordinance authorizing the issuance of bonds together with this subchapter shall constitute a contract by and between the city and the holders and registered owners of the bonds issued by the city under the authority of this subchapter, which contract, and all covenants, agreements, and obligations therein shall be promptly performed in strict compliance with the terms and provisions of the contract, and the contract and all rights of the holders and registered owners of the bonds and the obligations of the city may be enforced by mandamus or any other appropriate proceeding at law or in equity. It shall be plainly stated on the face of each bond that it has been issued under the provisions of this subchapter.

(f) The ordinance authorizing the bonds may provide for the execution by the city with a bank or trust company, within or without the State of Arkansas, of a trust indenture. The trust indenture may control the priority between and among successive issues and series, and may contain any other terms, covenants, and conditions that are deemed desirable by the governing body including, without limitation, those pertaining to:

- (1) The custody, investment, and application of the proceeds of bonds;
- (2) The collection and disposition of revenues;
- (3) The maintenance of various funds and reserves;
- (4) The nature and extent of the security;
- (5) The rights, duties, and obligations of the city and the trustee for the holders and registered owners of the bonds; and
- (6) The rights of the holders and registered owners of the bonds.

(g) Bonds issued under the authority of this subchapter may be sold at public or private sale. If sold at public sale, the bonds shall be sold on sealed bids, and notice of the sale shall be published one (1) time in a newspaper having a general circulation throughout the State of Arkansas, at least ten (10) days prior to the date of the sale. In either case, the bonds may be sold at such price as the city may accept, including sale at a discount.

(h) Bonds issued under the authority of this subchapter are made securities in which insurance companies, trust companies, banks, investment companies, executors, administrators, trustees, and other fiduciaries may properly and legally invest funds including capital in their control or belonging to them. Such bonds are made securities which may properly and legally be deposited with and received by any state or municipal officer or any agency or political subdivision of the state for any purpose for which the deposit of bonds or obligations of the state is authorized by law. Any municipality or county, or any board, commission, or other authority established by any such municipality or county, or the boards of trustees, respectively, of any retirement fund or retirement system created by or pursuant to authority conferred by the General Assembly in its discretion may invest any of its funds not immediately needed for its purposes in bonds issued under the authority of this subchapter, and bonds issued under the authority of this subchapter shall be eligible to secure the deposit of public funds.

(i) The principal of and interest on bonds issued under the authority of this subchapter shall be exempt from all state, county, school district, community college district, and municipal taxes. This exemption shall include income, property, inheritance, and estate taxes.

(j) Revenue bonds may be issued hereunder for the purpose of refunding any obligations issued under this subchapter or under the authority of any other law for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature. These refunding bonds may be

combined with bonds issued under the provisions of this section into a single issue. When bonds are issued under this section for refunding purposes, the bonds may either be sold or delivered in exchange for the outstanding obligations. If sold, the proceeds may be either applied to the payment of the obligations refunded or deposited in escrow for the retirement thereof. The ordinance under which the refunding bonds are issued may provide that any of the refunding bonds shall have the same priority of lien on the revenues pledged for their payment as was enjoyed by the obligations refunded thereby. These refunding bonds shall be issued and secured in the manner provided for other bonds issued under this subchapter and shall have all the attributes of these bonds.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 15, as added by Acts 1983, No. 726, § 6; A.S.A. 1947, § 19-4534; Acts 2009, No. 655, § 114; 2019, No. 910, § 4416.

26-75-205. Voter approval of bonds.

No ordinance shall be passed by the governing body of a city under § 26-75-204 until a majority of the qualified electors of the city voting on the question shall have approved, at an election called for that purpose and conducted in accordance with the general municipal election laws, the principal amount of the bonds and the purpose for which the bonds will be issued.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 18, as added by Acts 1983, No. 726, § 9; A.S.A. 1947, § 19-4537.

26-75-206. Pledge of revenues.

Any city levying the tax as permitted in this subchapter is authorized to pledge all or any part of the revenues from the tax levied pursuant to this subchapter to the payment of lease rentals or principal of and interest on bonds issued by such city under the authority of any other law for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature or on bonds issued to refund such bonds, and such bonds, including the refunding bonds, shall be deemed to have been authorized by this subchapter for purposes of §§ 26-75-207 — 26-75-212, 26-75-213, 26-75-215, and 26-75-217.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 16, as added by Acts 1983, No. 726, § 7; A.S.A. 1947, § 19-4535.

26-75-207. Levying of tax.

(a)(1) The governing body of any city may adopt an ordinance levying a local sales and use tax in the amount of one-eighth of one percent (0.125%), one-fourth of one percent (0.25%), one-half of one percent (0.5%), three-fourths of one percent (0.75%), one percent (1%), or any combination of these amounts for the benefit of the city in accordance with the provisions of this subchapter.

(2) Each local sales and use tax authorized under this subchapter shall be adopted by ordinance or by petition as described in subsection (b) of this section and with the approval of the voters of the municipality in accordance with this subchapter.

(b)(1) A legal voter of a city may file a petition with the governing body of that city requesting a special election on the question of levying a local sales and use tax authorized under this subchapter in an amount as provided in subdivision (a)(1) of this section.

(2) The petition shall be signed by a number of the legal voters in the city that is no less than fifteen percent (15%) of the number of votes cast for the office of mayor at the last preceding general election.

(c)(1) The governing body of the city by such levying ordinance or the petition described in subsection (b) of this section is not required to but may provide for an expiration date for such local sales and use tax.

(2) If an expiration date is provided, that date shall be the last day of the last month of a calendar quarter.

(d)(1) The levying ordinance or the petition may indicate an effective date for the ordinance or petition that is effective later than the effective date provided in § 26-75-209(1)(D)(ii).

(2) The effective date of the ordinance or petition delayed under subdivision (d)(1) of this section shall:

(A) Be scheduled on the first day of the first month of a calendar quarter; and

(B) Not be delayed for more than thirty-six (36) months after the date the ordinance or petition would be effective under § 26-75-209(1)(D)(ii).

(e) The sales tax portion of any local sales and use tax adopted under this subchapter shall be levied by the governing body on the receipts from the sale at retail of all items and services that are subject to taxation under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 2; A.S.A. 1273, § 52; 2007, No. 116, §§ 1, 2; 2009, No. 957, § 1; 1947, § 19-4524; Acts 1991, No. 765, § 14; 1991, No. 1019, 2021, No. 448, § 11.
§ 1; 1995, No. 565, § 6; 2001, No. 1561, § 5; 2003, No.

26-75-208. Special election required.

(a)(1) On the date of the filing of a petition described in § 26-75-207(b) or on the date of adoption of an ordinance levying a local sales and use tax for the benefit of the city, or within thirty (30) days following the filing of the petition described in § 26-75-207(b) or adoption of the ordinance, the city by ordinance shall provide for the calling of a special election on the question in accordance with § 7-11-201 et seq.

(2) The special election shall be called on the next special election date under § 7-11-205.

(3) The date for the special election may be the same as the date for the next regular municipal election if the next regular municipal election is to be held within the one-hundred-twenty-day period.

(4) The governing body of the city shall notify the county board of election commissioners that the question has been referred to the vote of the people and shall submit a copy of the ballot title to the county board of election commissioners.

(5) The election shall be conducted in the manner provided by law for all other municipal elections unless otherwise provided in this subchapter.

(b)(1) The ballot title to be used at such election shall be substantially in the following form:

“[] FOR adoption of a percent (.... %) local sales and use tax within (name of city).”

“[] AGAINST adoption of a percent (.... %) local sales and use tax within (name of city).”

(2) If an expiration date as described in § 26-75-207(c) for the local sales and use tax has been provided for by the governing body of the city in the levying ordinance or the petition described in § 26-75-207(b), the ballot title shall also include an expiration date for the levy of the tax, and if adopted in this form, the tax shall cease to be levied on the date noted on the ballot.

(3)(A)(i) The governing body of a city may refer to the voters a change in the expiration date for the sales and use tax approved by the voters to extend the levy of the sales and use tax beyond the expiration date previously approved.

(ii) The proposed expiration date shall be the last day of the last month of a calendar quarter.

(B) If the governing body of a city refers a change in the expiration date for an existing sales and use tax levied under this subchapter to the voters, the governing body shall:

(i) Notify the county board of election commissioners that the measure has been referred to the voters; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the expiration date for a sales and use tax levied under this subchapter shall be conducted in the manner provided by law for all other municipal elections.

(ii) The results of the election under this subsection shall be certified, proclaimed, and subject to challenge under § 26-75-209.

(D)(i) To extend the sales and use tax levied under this subchapter to a new expiration date, the city shall notify the Secretary of the Department of Finance and Administration of the new expiration date that was approved by the voters after publication of the proclamation has occurred and at least ninety (90) days before the current expiration date of the sales and use tax.

(ii) The sales and use tax extended under this subdivision (b)(3) shall continue to be levied until the new expiration date.

(iii)(a) At least one hundred twenty (120) days before the expiration of a sales and use tax levied under this subchapter, the Department of Finance and Administration shall notify the governing body of the city that levied the sales and use tax concerning the expiration of the sales and use tax.

(b) The notification required under subdivision (b)(3)(D)(iii)(a) of this section shall state the:

(1) Current expiration date of the sales and use tax; and

(2) Specific requirements under this subchapter for extending the sales and use tax.

(E) If the voters do not approve a change in the expiration date for the sales and use tax levied under this subchapter, the:

(i) Sales and use tax shall continue to be collected until the expiration date previously approved by the voters; and

(ii) Question may be resubmitted to the voters at the time permitted by the election laws and § 26-75-213(a)(1) shall not apply.

(F) An election to change the expiration date for a sales and use tax levied under this subchapter is not an election on the levy of the sales and use tax.

(4)(A) If an effective date for the ordinance or petition is delayed under § 26-75-207(d), the ballot title shall also include the effective date of the ordinance or petition or the effective date of the levy of the tax.

(B) If the ballot title with the delayed effective date is approved by the voters, the ordinance or petition or the tax shall not become effective until the date stated on the ballot.

(c)(1)(A) The ballot may also indicate designated uses of the revenues derived from the sales and use tax.

(B) If the ballot indicates designated uses and the tax is approved, the proceeds shall only be used for the designated uses set forth in the ballot.

(2) The proceeds may be used for other designated uses if the electors approve a change in the designated use of the revenues by vote under this subsection.

(3)(A) The governing body of a city may refer to the voters a change in the designated use of revenues derived from a sales or use tax that was approved by the voters.

(B) If the governing body of a city refers a change in the designated use of revenues derived from a sales or use tax to the voters, the governing body shall:

(i) Notify the county board of election commissioners that the measure has been referred to the voters; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the designated use of revenues derived from a sales or use tax shall be conducted in the manner provided by law for all other municipal elections.

(ii) The results of an election under this subsection shall be certified, proclaimed, and subject to challenge under the procedures stated in § 26-75-209.

(4) If the voters approve a change in the designated use of revenues derived from a sales or use tax, the change in the designated use shall apply to all revenues collected on the first day of the calendar month following the expiration of the thirty-day challenge period under § 26-75-209.

(5)(A) If the voters do not approve a change in the designated use of revenues derived from a sales or use tax, the tax shall continue to be collected, and the revenues derived from the tax shall continue to be used for the purposes indicated in the ballot for the tax.

(B) An election to change the designated use of revenues derived from a sales or use tax shall not constitute an election on the levy of the tax.

(6) Any city that has levied a local sales and use tax under this subchapter with a portion of the revenues derived from the tax pledged to secure lease rentals or bonds may not change the tax to reduce the pledge in favor of the lease or bonds.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 2; A.S.A. 116, § 3; 2007, No. 1049, § 92; 2009, No. 382, § 1; 2009, 1947, § 19-4524; Acts 1991, No. 765, § 15; 1991, No. 1019, No. 957, § 2; 2009, No. 1480, § 111; 2019, No. 910, § 4417; § 2; 2005, No. 1269, § 1; 2005, No. 2145, § 70; 2007, No. 2021, No. 610, § 33; 2025, No. 720, § 4.

26-75-209. Effective date of ordinance.

In order to provide time for the preparations for election set forth in this subchapter and to provide for the accomplishment of the administrative duties of the Secretary of the Department of Finance and Administration, the following effective dates are applicable with reference to any such ordinance levying such tax:

(1)(A) The ordinance or petition described in § 26-75-207 levying the tax shall not be effective until after the election has been held.

(B) Following the election, the mayor of the city shall issue his or her proclamation of the results of the election with reference to the local sales and use tax, and the proclamation shall be published one (1) time in a newspaper having general circulation in the city.

(C) Any person desiring to challenge the results of the election as published in the proclamation shall file the challenge in the circuit court of the county where the city is located within thirty (30) days of the date of publication of the proclamation.

(D)(i) The mayor of the city shall notify the secretary of the rate change after publication of the proclamation has occurred and ninety (90) days before the effective date of the tax.

(ii) If an election challenge is not filed within the thirty-day challenge period, the ordinance or petition described in § 26-75-207 shall become effective on the first day of the first month of the calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers and after the expiration of the full thirty-day period of challenge.

(iii) The effective date of the ordinance or petition may be delayed under § 26-75-207(d).

(E) The rate change shall become applicable on the first day of a quarter after one hundred twenty (120) days' notice by the secretary to sellers on a purchase from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog; and

(2)(A) In the event of an election contest, the tax shall be collected as prescribed in subdivision (1) of this section unless enjoined by a court order.

(B) A hearing of these matters of litigation shall be advanced on the docket of the court and disposed of at the earliest feasible time.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 2; A.S.A. § 7; 2003, No. 1273, §§ 53, 54; Acts 2007, No. 116, §§ 4, 5; 1947, § 19-4524; Acts 1993, No. 266, § 4; 1995, No. 565, 2009, No. 957, § 3; 2019, No. 910, §§ 4418-4420.

26-75-210. Abolishment of tax.

(a)(1) Except as set forth in subsection (b) of this section, in any city in which a city sales and use tax has been adopted in the manner provided in this subchapter, and subsequent to the adoption of the city tax the county where the city is located enacts a county sales and use tax, then the city may abolish its sales and use tax:

(A) By a roll call of two-thirds ($\frac{2}{3}$) of all the members elected to the governing body of the city, excluding the mayor; or

(B) After an election called by:

(i) Action of the governing body of the city; or

(ii) A petition of the qualified voters in the city.

(2) In all other cases, except under subsection (b) of this section, the city may abolish all or a portion of the sales and use tax by:

(A) A roll call vote of two-thirds ($\frac{2}{3}$) of all members elected to the governing body of the city, excluding the mayor, if the governing body of the city has determined that the purposes of the tax cannot be fulfilled or cannot continue to be fulfilled; or

(B) After an election called by:

- (i) Action of the governing body of the city; or
- (ii) A petition of the qualified voters in the city.

(3) The initiative procedures in Arkansas Constitution, Article 5, § 1, and any ordinances of the city's governing initiative procedures shall govern the petition of the qualified voters under this subsection and the calling and holding of an election concerning the abolishment of the tax.

(4) The governing body of the city may call for an election under this subsection according to the procedures set forth in this subchapter for the calling of the initial election on such question.

(5)(A) The ballot title for use in any election under this subsection shall be substantially the same as indicated in § 26-75-208(b), except that the word "ABOLITION" shall be substituted for the word "ADOPTION" as it appears in the ballot title set forth in § 26-75-208(b).

(B) A ballot title that contains a question for qualified voters on whether to continue the levy of a local sales and use tax complies with this subdivision (a)(5).

(b)(1) In any city in which a local sales and use tax has been adopted in the manner provided for in this subchapter and all or any portion pledged to secure the payment of lease rentals or bonds as authorized by this subchapter, that portion of the tax pledged to lease rentals or bonds shall not be repealed, abolished, or reduced so long as the lease is in effect or any of the bonds are outstanding.

(2) The bonds shall not be deemed outstanding to the extent that sufficient tax collections have been set aside to pay the bonds when due.

(c) The effective date of any affirmative vote of the qualified voters to abolish the tax under subsection (a) of this section shall correspond to the dates indicated in § 26-75-209 for the initial effective date of the tax.

(d)(1) The effective date of any affirmative vote by the governing body of the city to abolish the tax under subsection (a) of this section shall be on the first day of the calendar quarter after the expiration of ninety (90) days from the date a written statement signed by the chief executive officer of the city abolishing the tax is filed with the Secretary of the Department of Finance and Administration certifying that the governing body of the city has adopted an ordinance abolishing the tax.

(2) A copy of the ordinance shall be attached to the certificate.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 2; 1983, No. 726, § 2; A.S.A. 1947, § 19-4524; Acts 2005, No. 1270, § 1; 2009, No. 655, § 115; 2019, No. 910, § 4421.

26-75-211. Notification required.

(a) As soon as is feasible, and no later than ten (10) days following each of the events set forth in the ordinance with reference to the procedure for the adoption or abolition of a tax and the effective dates of such an action, the city clerk of the city shall notify the Secretary of the Department of Finance and Administration of such event.

(b)(1) If any city in which a local sales and use tax has been imposed in the manner provided for in this subchapter shall thereafter change or alter its boundaries, the city clerk of the city shall forward to the secretary at least ninety (90) days before the effective date a certified copy of the ordinance adding or detaching territory from the city, which shall be accompanied by a map clearly showing the territory added or detached.

(2) After receipt of the ordinance and map, the tax imposed under this subchapter shall be effective in the added territory or abolished in the detached territory on the first day of the first month of the calendar quarter following the expiration of sixty (60) days' notice by the secretary to sellers.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 2; A.S.A. 1947, § 19-4524; Acts 1995, No. 565, § 8; 2003, No. 383, § 5; 2003, No. 1273, § 55; 2019, No. 910, § 4422.

26-75-212. Collection of tax.

(a)(1)(A) In each city where a local sales and use tax has been imposed in the manner provided by this subchapter, every retailer shall add the tax imposed by the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq., and the tax imposed by this subchapter to his or her sale price, and when added, the combined tax shall:

- (i) Constitute a part of the price;
- (ii) Be a debt of the purchaser to the retailer until paid; and
- (iii) Be recoverable at law in the same manner as the purchase price.

(B) When the sale price in the city shall involve a fraction of a dollar, the two (2) combined taxes shall be added to the sale price.

(C) A retailer shall be entitled to the same discount with respect to tax remitted under this subchapter as is authorized for the collection and remission of gross receipts taxes to the State of Arkansas as authorized in § 26-52-503.

(2)(A) Any fraction of one cent (1¢) of tax that is less than one-half of one cent ($\frac{1}{2}$ of 1¢) shall not be collected.

(B) Any fraction of one cent (1¢) of tax equal to one-half of one cent ($\frac{1}{2}$ of 1¢) or more shall be collected as a whole one cent (1¢) of tax.

(3) In the event that the General Assembly or the electors of the state shall either increase or decrease the rate of the state gross receipts tax, the combined rate of the state gross receipts tax and the local sales tax shall be the sum of the two (2) rates.

(b) The tax levied in this subchapter on new and used motor vehicles shall be collected by the Secretary of the Department of Finance and Administration directly from the purchaser in the manner prescribed in § 26-52-510.

(c)(1) Each vendor who is liable for one (1) or more city sales or use taxes shall report a combined city sales tax and a combined city use tax on the vendor's sales and use tax report.

(2) The combined city sales tax is equal to the sum of all sales taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(3) The combined city use tax is equal to the sum of all use taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(4) This subsection only applies to a tax collected by the secretary.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 2; 1983, No. § 10; 2003, No. 747, § 5; 2003, No. 1273, § 56; 2019, No. 802, § 3; A.S.A. 1947, § 19-4524; Acts 1997, No. 1176, § 910, §§ 4423, 4424.

26-75-213. Resubmission of question of levy or repeal.

(a)(1) Except as provided in § 26-75-210 and in subsection (b) of this section, when the question of the levy or repeal of a city sales and use tax is submitted to the electors and the proposition is approved or defeated, the question shall not again be submitted to the electors by ordinance of the governing body of the city or by a petition of electors for a period of six (6) months from the date the question was last voted upon.

(2) A petition requesting that the question be submitted to the electors of the city shall contain the signatures of at least fifteen percent (15%) of the electors of the city as determined by the total number of votes cast for all candidates for mayor of the city at the last preceding general election.

(3)(A) The petition shall be filed with and verified by the city clerk.

(B) If the petition is found to be sufficient, the question shall be submitted to the electors on the next special election date under § 7-11-205 after certification of the sufficiency of the petition to the governing body of the city.

(4) The special election shall be called in accordance with § 7-11-201 et seq.

(b) In any city in which a local sales and use tax has been adopted in the manner provided for in this subchapter and all or any portion pledged to secure the payment of lease rentals or bonds as authorized by this subchapter, that portion of the tax pledged to the payment of lease rentals

or bonds shall not be repealed, abolished, or reduced so long as the lease is in effect or any of the bonds are outstanding.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 3; 1983, No. 2005, No. 2145, § 71; 2007, No. 1049, § 93; 2009, No. 1480, 726, § 3; A.S.A. 1947, § 19-4525; Acts 1989, No. 862, § 1; § 112; 2021, No. 610, §§ 34, 35.

26-75-214. Administration, collection, etc., of tax.

(a) On and after the effective date of any tax imposed under the provisions of this subchapter, the Secretary of the Department of Finance and Administration shall perform all functions incidental to the administration, collection, enforcement, and operation of the tax.

(b) In addition to the state gross receipts tax and compensating tax, the secretary shall collect an additional tax under the authority of this subchapter on the receipts from the sale at retail or on the sale price or lease or rental price on the storage, use, distribution, or other consumption of all taxable items and services subject to the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(c)(1) The tax imposed under this subchapter and the tax imposed under the gross receipts tax and compensating tax shall be collected together and reported upon such forms and under such administrative rules as may be prescribed by the secretary not inconsistent with the provisions of this subchapter.

(2) Each vendor who is liable for one (1) or more city sales or use taxes shall report a combined city sales tax and a combined city use tax on his or her sales and use tax report.

(3) The combined city sales tax is equal to the sum of all sales taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(4) The combined city use tax is equal to the sum of all use taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(5) This subsection only applies to a tax collected by the secretary.

(d) On and after the effective date of any proposition to abolish such local sales and use tax in any city, the secretary shall comply with the proposition as provided in this subchapter.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 4; A.S.A. 1947, § 19-4526; Acts 1997, No. 1176, § 11; 2003, No. 1273, § 57; 2019, No. 315, § 3067; 2019, No. 910, §§ 4425-4428.

26-75-215. Repeal of taxes upon levy of additional statewide gross receipts tax — Exception.

(a) Subject to the provisions of subsection (b) of this section, if the General Assembly shall levy an additional statewide gross receipts tax of one percent (1%) or more, the governing body of any city which has levied a city sales and use tax pursuant to the authority granted in this subchapter, or under the provisions of § 26-75-301 et seq., § 26-75-501 et seq., or the Advertising and Promotion Commission Act, § 26-75-601 et seq., by ordinance approved by the governing body may repeal such city sales tax or city sales and use tax.

(b) In any city in which a local sales and use tax has been adopted in the manner provided for in this subchapter and all or any portion pledged to secure the payment of lease rentals or bonds as authorized by this subchapter, that portion of the tax pledged to the payment of lease rentals or bonds shall not be repealed, abolished, or reduced so long as the lease is in effect or any of the bonds are outstanding.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 5; 1983, No. 726, § 4; A.S.A. 1947, § 19-4527.

26-75-216. Applicability of tax.

(a) A city sales and use tax levied pursuant to the authority granted in this subchapter or in § 26-75-301 et seq. shall be applicable to sales of items and services sold by a business and shall

be administered in accordance with the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(b) When a direct pay permit holder purchases tangible personal property or taxable services either from an Arkansas or out-of-state vendor for use, storage, consumption, or distribution in Arkansas, the permit holder shall accrue and remit the city sales and use tax, if any, pursuant to the sourcing rules in §§ 26-52-521 and 26-52-522.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 6; A.S.A. § 16; 1992 (1st Ex. Sess.), No. 73, § 3; 2003, No. 374, §§ 5, 1947, § 19-4528; Acts 1991, No. 536, § 2; 1991, No. 765, § 6; 2003, No. 1273, § 58; 2007, No. 181, § 42.

26-75-217. Disposition of funds.

(a)(1) The Treasurer of State shall transmit to the treasurer or financial officer of each such city that city's share of local sales and use taxes collected under this subchapter periodically as promptly as feasible. Transmittals required under this subchapter shall be made at least monthly in each state fiscal year. Funds so transmitted may be used by the city for any purpose for which the city's general funds may be used.

(2) Before transmitting such funds, the Treasurer of State shall deduct three percent (3%) of the sum collected from each such city during such period as a charge by the state for its services specified in this subchapter, and the amount so deducted shall be deposited by the Treasurer of State to the credit of the account of the Constitutional Officers Fund and the State Central Services Fund.

(b)(1) The Treasurer of State is authorized to retain in the suspense account of any city a portion of the city's share of the tax collected under this subchapter. Such balance so retained in the suspense account shall not exceed five percent (5%) of the amount remitted to the city.

(2) The Treasurer of State is authorized to make refunds from the suspense account of any city for overpayments made to such accounts, after such refunds have been approved by the Secretary of the Department of Finance and Administration, and to redeem dishonored checks and drafts deposited to the credit of the suspense account of such cities.

(c)(1) When any city shall adopt the local sales and use tax and shall thereafter abolish such tax, the Treasurer of State shall retain in the suspense account of such city for a period of one (1) year five percent (5%) of the final remittance to such city at the time of termination of collection of such tax in the city to cover possible refunds for overpayment of the tax and to redeem dishonored checks and drafts deposited to the credit of such accounts.

(2) After one (1) year has elapsed after the effective date of abolishment of such tax, the Treasurer of State shall remit the balance of such account to the city and close the account. After this one-year period has lapsed and the account is closed, no refund will be allowed.

(d) Any moneys collected which as indicated by a certified copy of an ordinance of the city previously filed with the secretary and the Treasurer of State are pledged to secure lease rentals or the payment of bonds authorized by this subchapter shall not be deposited into the State Treasury but shall be deposited by the Treasurer of State into banks designated by the city as cash funds and transmitted to the city subject to the charges payable and retainage authorized in this section. Charges deducted shall be transmitted to the Treasurer of State, and amounts retained shall be retained by the Treasurer of State as cash funds.

(e)(1) Except for revenue collected under subdivision (e)(2) of this section, money collected from a tax on aviation fuel by a city where a regional airport as described by the Regional Airport Act, § 14-362-101 et seq., is located shall not be deposited into the State Treasury but shall be deposited as cash funds by the Treasurer of State into a bank or banks designated by the regional airport located within the levying city or within the county and transmitted to the regional airport, subject to the charges by the state for its services as specified in this section.

(2) Revenue derived from a tax on aviation fuel in effect on December 30, 1987, is not subject to this subsection.

(f) Except for revenue collected under subsection (e) of this section, money collected that is derived from a tax on aviation fuel levied by a city that is not dedicated to a specific purpose and

may legally be used for any lawful purpose shall not be deposited into the State Treasury but shall be deposited as cash funds by the Treasurer of State into a bank or banks designated by the city and transmitted directly to the publicly owned airport where the aviation fuel was sold, subject to the charges by the state for its services as specified in this section.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 7; 1983, No. § 12; 2007, No. 166, § 5; 2009, No. 840, § 7; 2019, No. 910, 726, § 5; A.S.A. 1947, § 19-4529; Acts 1997, No. 1176, §§ 4429, 4430.

26-75-218. Rules.

The Secretary of the Department of Finance and Administration may promulgate reasonable rules not inconsistent with the provisions of this subchapter to implement the enforcement, administration, and collection of the taxes authorized in this subchapter.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 9; A.S.A. 1947, § 19-4531; Acts 2019, No. 315, § 3068; 2019, No. 910, § 4431.

26-75-219. Procedures and penalties for enforcement.

(a) The procedures and penalties used by the Secretary of the Department of Finance and Administration in enforcing any local tax imposed pursuant to this subchapter shall be the same as for the state gross receipts tax and compensating tax, except as specifically set out in this subchapter.

(b)(1) When property is seized by the secretary under the provisions of any law authorizing seizure of property of a taxpayer who is delinquent in payment of the taxes imposed by the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., or the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq., and when such taxpayer is also delinquent in payment of any tax imposed by this subchapter, the secretary shall sell sufficient property to pay the delinquent taxes and penalty due to any city under this subchapter in addition to that required to pay any amount due to the state under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., or the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(2) The proceeds from such sale shall first be applied to all sums due to the state, and the remainder, if any, shall be applied to all sums due to the city.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 10; A.S.A. 1947, § 19-4532; Acts 2019, No. 910, §§ 4432, 4433.

26-75-220. Existing taxing powers not limited.

No provision of this subchapter shall be construed to abolish or limit existing powers of taxation of the city.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 8; A.S.A. 1947, § 19-4530.

26-75-221. Existing city sales taxes.

(a) All city taxes adopted pursuant to § 26-75-301 et seq., § 26-75-501 et seq., or the Advertising and Promotion Commission Act, § 26-75-601 et seq., which are in effect on December 1, 1981, shall remain in full force and effect and are not repealed by the provisions of this subchapter except as to the administration, collection, enforcement, and operation of the tax as specifically set out in this subchapter.

(b) It is recognized by the General Assembly that several municipalities, such as North Little Rock, Siloam Springs, Mountain Home, Conway, Caddo Valley, and others, have enacted a sales and use tax pursuant to § 26-75-301 et seq. It is the intent of the General Assembly to affirm the validity of sales and use taxes adopted and enacted by those municipalities. It is provided further that for city sales and use taxes adopted pursuant to these statutes, the procedures for repeal and

enforcement as set out in this subchapter shall hereinafter be applicable to any such tax adopted by any city pursuant to them.

History. Acts 1981 (1st Ex. Sess.), No. 25, § 12; A.S.A. 1947, § 19-4533.

26-75-222. Maximum tax limitation. [Effective until October 1, 2025.]

(a)(1) Any municipal general sales or use tax levied pursuant to this subchapter shall be levied and collected only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price from the sale of a:

- (A) Motor vehicle;
- (B) Aircraft;
- (C) Watercraft;
- (D) Modular home;
- (E) Manufactured home; or
- (F) Mobile home.

(2) A vendor shall be responsible for collecting and remitting the tax only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price from the sale of a:

- (A) Motor vehicle;
- (B) Aircraft;
- (C) Watercraft;
- (D) Modular home;
- (E) Manufactured home; or
- (F) Mobile home.

(b)(1) Each vendor who is liable for one (1) or more city sales or use taxes shall report a combined city sales tax and a combined city use tax on his or her sales and use tax report.

(2) The combined city sales tax is equal to the sum of all sales taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(3) The combined city use tax is equal to the sum of all use taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(c) This section only applies to a tax collected by the Secretary of the Department of Finance and Administration.

History. Acts 1983, No. 802, §§ 1, 2; A.S.A. 1947, 1176, § 13; 1999, No. 1137, § 5; 2003, No. 1273, § 59; §§ 17-2044, 17-2045; Acts 1993, No. 669, § 4; 1997, No. 2019, No. 910, § 4434.

26-75-222. Maximum tax limitation. [Effective October 1, 2025.]

(a)(1) Any municipal general sales or use tax levied pursuant to this subchapter shall be levied and collected only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price from the sale of a:

- (A) Motor vehicle;
- (B) Aircraft;
- (C) Watercraft;
- (D) Modular home;
- (E) Manufactured home; or
- (F) Mobile home.

(2) A vendor shall be responsible for collecting and remitting the tax only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price from the sale of a:

- (A) Motor vehicle;
- (B) Aircraft;
- (C) Watercraft;
- (D) Modular home;

- (E) Manufactured home; or
- (F) Mobile home.

(3) If a sale or lease subject to subdivision (a)(1) of this section involves periodic payments, the applicable sales and use tax shall be:

(A) For the purpose of determining the application of the limitation provided under subdivision (a)(1) of this section, applied to the aggregate amount of all periodic payments due on the sale or lease; and

(B) Either:

(i) Collected on the first periodic payment due on the sale or lease; or

(ii) Evenly distributed and collected on each separate periodic payment due on the sale or lease.

(b)(1) Each vendor who is liable for one (1) or more city sales or use taxes shall report a combined city sales tax and a combined city use tax on his or her sales and use tax report.

(2) The combined city sales tax is equal to the sum of all sales taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(3) The combined city use tax is equal to the sum of all use taxes levied by a city under this subchapter or any other provision of the Arkansas Code.

(c) This section only applies to a tax collected by the Secretary of the Department of Finance and Administration.

History. Acts 1983, No. 802, §§ 1, 2; A.S.A. 1947, 1176, § 13; 1999, No. 1137, § 5; 2003, No. 1273, § 59; §§ 17-2044, 17-2045; Acts 1993, No. 669, § 4; 1997, No. 2019, No. 910, § 4434; 2025, No. 1013, § 10.

26-75-223. Administration of Local Sales and Use Tax Trust Fund.

(a)(1) There is created a trust fund for the remittance of local sales and use taxes which shall be known as the “Local Sales and Use Tax Trust Fund”.

(2)(A) There is also created a trust fund which shall be known as the “Identification Pending Trust Fund for Local Sales and Use Taxes”.

(B)(i) Money reported as local sales and use taxes which was collected in local taxing jurisdictions which are not immediately identifiable and money collected in local jurisdictions which have no tax shall be deposited into the Identification Pending Trust Fund for Local Sales and Use Taxes.

(ii) When a local tax jurisdiction is identified for money which has been deposited into the Identification Pending Trust Fund for Local Sales and Use Taxes, the money shall be transferred to the Local Sales and Use Tax Trust Fund.

(iii) When the total amount in the Identification Pending Trust Fund for Local Sales and Use Taxes exceeds fifty thousand dollars (\$50,000), the Treasurer of State shall transfer any amount in excess of fifty thousand dollars (\$50,000) to general revenues.

(C)(i) Money reported as local sales and use taxes which was collected by an out-of-state vendor and which is not identifiable shall be deposited into the Identification Pending Trust Fund for Local Sales and Use Taxes. Any such funds so deposited shall not be included for computation of transfer to general revenue in subdivision (a)(2)(B) of this section.

(ii) The Treasurer of State shall distribute unidentified local sales and use taxes collected by out-of-state vendors to the county treasurers and city treasurers as determined by their proportionate share of distribution from the Local Sales and Use Tax Trust Fund on a monthly basis.

(b)(1) The Treasurer of State as the administrator of the Local Sales and Use Tax Trust Fund shall review the flow of moneys through the Local Sales and Use Tax Trust Fund in the State Treasury for the purpose of estimating the amount of the moneys as may be surplus to the immediate requirements of the Local Sales and Use Tax Trust Fund.

(2) After making the estimate the administrator shall invest the estimated surplus amount in certificates of deposit issued by any financial institution located in the State of Arkansas. All interest income derived from the certificates of deposit shall be credited as trust fund income to the Local Sales and Use Tax Trust Fund.

(3) The Treasurer of State shall monthly transmit to the county treasurers and city treasurers their proportionate share of the interest derived from investment of the Local Sales and Use Tax Trust Fund.

History. Acts 1981 (1st Ex. Sess.), No. 26, § 18; 1983, No. 513, § 1; 1985, No. 1028, § 1; A.S.A. 1947, §§ 17-2038, 17-2046; Acts 1991, No. 621, § 3.

SUBCHAPTER 3 — SALES TAX FOR CAPITAL IMPROVEMENTS

SECTION.

26-75-301. Purpose.
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26-75-303. Definitions.
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SECTION.

26-75-307. Levying of tax.
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26-75-309. Effective date of ordinance.
26-75-310. Abolishment of tax.
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26-75-301. Purpose.

(a) This subchapter is intended to supplement all constitutional provisions and other acts adopted for the acquiring, constructing, and equipping of capital improvements of a public nature and the issuance of bonds for the financing of capital improvements of a public nature.

(b) When applicable, in accordance with the provisions of this subchapter, this subchapter may be used by any city as an alternative, notwithstanding and without the necessity of compliance with any constitutional provision or any other act authorizing the city, or any commission or agency of the city, to issue bonds, for the purpose of financing the acquisition, construction, and equipment of capital improvements of a public nature.

(c)(1) This subchapter is intended to supplement and be levying authority for all Arkansas municipalities in addition to all other statutes authorizing municipal sales and use taxes.

(2) Collections of a tax levied by this subchapter may be used to secure the payment of bonds or for any purpose for which the municipality's general fund may be used or for a combination thereof.

History. Acts 1975, No. 990, § 16, as added by Acts 1983, No. 722, § 7; A.S.A. 1947, § 19-4522.3; Acts 2001, No. 1561, § 4.

26-75-302. Construction.

This subchapter shall be liberally construed to accomplish the purposes of this subchapter.

History. Acts 1975, No. 990, § 16, as added by Acts 1983, No. 722, § 7; A.S.A. 1947, § 19-4522.3.

26-75-303. Definitions.

As used in this subchapter:

(1) "Acquire" means to obtain at any time by gift, purchase, or other arrangement any capital improvement of a public nature, or any portion of a capital improvement of a public nature, whether constructed and equipped before acquisition, partially constructed and equipped before acquisition, or being constructed and equipped at the time of acquisition, for such consideration and pursuant to such terms and conditions as the governing body shall determine;

(2) "Calendar quarter" means the three-month period beginning on January 1, April 1, July 1, or October 1;

(3) "Capital improvements of a public nature" means:

- (A) Streets;
- (B) Roads;
- (C) Public parks;

- (D) Port facilities;
 - (E) Tourism facilities;
 - (F) Airport facilities;
 - (G) Sewerage facilities;
 - (H) Waterworks facilities;
 - (I) Fire protection facilities;
 - (J) Convention center facilities;
 - (K) City halls;
 - (L) Courthouses;
 - (M) Police facilities;
 - (N) Public transit facilities;
 - (O) Auditoriums;
 - (P) Prisons;
 - (Q) Libraries;
 - (R) Hospital and nursing home facilities;
 - (S) Solid waste facilities;
 - (T) Sanitation facilities;
 - (U) Bridges;
 - (V) Electric facilities;
 - (W) Hydroelectric facilities;
 - (X) Facilities for the securing and developing of industry;
 - (Y) Natural gas facilities;
 - (Z) Parking facilities;
 - (AA) Public housing facilities;
 - (BB) Pollution control facilities;
 - (CC) Public education facilities;
 - (DD) Drainage facilities;
 - (EE) Pedestrian facilities;
 - (FF) Lakes;
 - (GG) Dams;
 - (HH) Waterways;
 - (II) Regional mobility authority surface transportation systems; and
 - (JJ) Research parks;
- (4)(A) “City” means any city of the first class, city of the second class, or incorporated town of the State of Arkansas.

(B)(i) Any city in this state having a population of three thousand (3,000) or fewer inhabitants according to the most recent federal decennial census, located in a county that borders on the state line of another state, having in the city a designated historic district that is included in the National Register of Historic Places, and which is certified by the State Parks, Recreation, and Travel Commission as having tourism as the major industry in the city, shall be deemed to be a city within the meaning of the term “city” as the same is provided in this subchapter.

(ii) Any city described in subdivision (4)(B)(i) of this section may levy a local sales, gross receipts, and use tax for the benefit of the city, in accordance with the provisions of this subchapter and in the same manner and procedures as provided in this subchapter;

(5) “Construct” means to build, in whole or in part, in such manner and by such method, including contracting to build and, if contracting, by negotiation or bidding upon such terms and pursuant to such advertising as the governing body determines under the circumstances existing at the time will most effectively serve the purposes of this subchapter;

(6) “Equip” means to install or place in or on any building or structure equipment of any and every kind, whether or not affixed, including, without limitation, building service equipment, fixtures, heating equipment, air conditioning equipment, machinery, furniture, furnishings, and personal property of every kind;

(7) “Facilities” means real, personal, or mixed property of any and every kind, including, without limitation, rights-of-way, utilities, materials, equipment, fixtures, machinery, furniture, furnishings, buildings, and other improvements of every kind; and

(8) “Lease” means a lease of a capital improvement of a public nature by and between a city as lessee and another person as lessor, except as used in §§ 26-75-304 and 26-75-313.

History. Acts 1975, No. 990, § 1; 1977, No. 953, § 1; §§ 19-4513, 19-4513.1; Acts 1995, No. 565, § 19; 2005, No. 1979, No. 479, § 1; 1981, No. 133, § 1; 1981, No. 406, § 1; 2275, § 5; 2007, No. 1045, § 7; 2019, No. 910, § 4435. 1981, No. 861, § 1; 1983, No. 722, § 1; A.S.A. 1947,

26-75-304. Issuance of bonds.

(a) A city levying the tax permitted in this subchapter in addition to the authority existing under the laws of this state is authorized to acquire, construct, equip, reconstruct, extend, and improve capital improvements of a public nature, collectively referred to as a “project”, within or near such city and is authorized to issue bonds to provide funds for accomplishing projects and to pledge all or any part of the revenues from the tax levied by such city pursuant to this subchapter to pay lease rentals or the principal of, interest on, and fees and expenses in connection with such bonds.

(b) Bonds issued by a city pursuant to this subchapter shall be authorized by ordinance of the governing body. The bonds may:

(1) Be coupon bonds payable to bearer or may be registered as to principal or as to principal and interest;

(2) Be exchangeable for bonds of another denomination;

(3) Be in such form and denominations;

(4) Be made payable at such places within or without the state;

(5) Be issued in one (1) or more series;

(6) Bear such date or dates;

(7) Mature at such time or times, not exceeding forty (40) years from their respective dates;

(8) Bear interest at such rate or rates;

(9) Be payable in such medium of payment;

(10) Be subject to such terms of redemption; and

(11) Contain such other terms, covenants, and conditions, as the ordinance authorizing their issuance may provide including, without limitation, those pertaining to:

(A) The custody, investment, and application of the proceeds of the bonds;

(B) The collection and disposition of revenues;

(C) The maintenance of various funds and reserves;

(D) The nature and extent of the security and pledging of revenues;

(E) The rights, duties, and obligations of the city and the trustee for the holders and registered owners of the bonds; and

(F) The rights of the holders and registered owners of the bonds.

(c) There may be successive bond issues for the purpose of financing the same project, and there may be successive bond issues for financing the cost of reconstructing, replacing, constructing additions to, extending, improving, and equipping projects already in existence, whether or not originally financed by bonds issued under this subchapter, and with each successive issue to be authorized as provided by this subchapter. Priority between and among issues and successive issues as to security of the pledge of revenues and lien on the project facilities involved may be controlled by the ordinance authorizing the issuance of bonds under this subchapter. Subject to the provisions of this subchapter pertaining to registration, the bonds shall have all the qualities of negotiable instruments under the laws of the State of Arkansas. A copy of the ordinance authorizing bonds under this subchapter, certified by the clerk or recorder of the city, shall be filed with the Secretary of the Department of Finance and Administration and with the Treasurer of State.

(d) The bonds shall be executed by the mayor of the city and attested by the clerk or recorder of the city, by their manual or facsimile signatures. Coupons attached to the bonds shall be

executed by the facsimile signature of the mayor. In case any of the officers whose signatures appear on the bonds or coupons cease to be such officers before delivery of the bonds or coupons, their signatures shall nevertheless be valid and sufficient for all purposes. The bonds shall be sealed with the seal of the city issuing the bonds.

(e) The bonds shall not be general obligations of the city involved but shall be special obligations secured and payable as provided in this subchapter. In no event shall the bonds constitute an indebtedness of the city within the meaning of any constitutional or statutory limitation. The principal of, and interest on, all bonds issued under the authority of this subchapter shall be secured by a pledge of, and shall be payable from, all or any part of the revenues derived from the tax levied by the city pursuant to this subchapter or from all or any part of the revenues derived from the operation of the project involved, if and to the extent permitted by other laws of the State of Arkansas authorizing the issuance of revenue bonds secured by the revenues of such facilities. The ordinance authorizing the issuance of bonds together with this subchapter shall constitute a contract by and between the city and the holders and registered owners of the bonds issued by the city under the authority of this subchapter, which contract, and all covenants, agreements, and obligations therein shall be promptly performed in strict compliance with the terms and provisions of the contract, and the contract and all rights of the holders and registered owners of the bonds and the obligations of the city may be enforced by mandamus or by any other appropriate proceeding at law or in equity. It shall be plainly stated on the face of each bond that it has been issued under the provisions of this subchapter.

(f) The ordinance authorizing the bonds may provide for the execution by the city with a bank or trust company, within or without the State of Arkansas, of a trust indenture. The trust indenture may control the priority between and among successive issues and series, and may contain any other terms, covenants, and conditions that are deemed desirable by the governing body including, without limitation, those pertaining to:

- (1) The custody, investment, and application of the proceeds of bonds;
- (2) The collection and disposition of revenues;
- (3) The maintenance of various funds and reserves;
- (4) The nature and extent of the security;
- (5) The rights, duties, and obligations of the city and the trustee for the holders and registered owners of the bonds; and
- (6) The rights of the holders and registered owners of the bonds.

(g) Bonds issued under the authority of this subchapter may be sold at public or private sale. If sold at public sale, the bonds shall be sold on sealed bids, and notice of the sale shall be published one (1) time in a newspaper having a general circulation throughout the State of Arkansas, at least ten (10) days prior to the date of the sale. In either case, the bonds may be sold at such price as the city may accept, including sale at a discount.

(h) Bonds issued under the authority of this subchapter are made securities in which insurance companies, trust companies, banks, investment companies, executors, administrators, trustees, and other fiduciaries may properly and legally invest funds including capital in their control or belonging to them. Such bonds are made securities which may properly and legally be deposited with and received by any state or municipal officer or any agency or political subdivision of the state for any purpose for which the deposit of bonds or obligations of the state is authorized by law. Any municipality or county, or any board, commission, or other authority duly established by any such municipality or county, or the boards of trustees, respectively, of any retirement fund or retirement system created by or pursuant to authority conferred by the General Assembly in its discretion may invest any of its funds not immediately needed for its purposes in bonds issued under the authority of this subchapter, and bonds issued under the authority of this subchapter shall be eligible to secure the deposit of public funds.

(i) The principal of and interest on bonds issued under the authority of this subchapter shall be exempt from all state, county, school district, community college district, and municipal taxes. This exemption shall include income, property, inheritance, and estate taxes.

(j) Revenue bonds may be issued under this subchapter for the purpose of refunding any obligations issued under this subchapter or under the authority of any other law for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature. These refunding bonds may be combined with bonds issued under the provisions of this section into a single issue. When bonds are issued under this section for refunding purposes, the bonds may either be sold or delivered in exchange for the outstanding obligations. If sold, the proceeds may be either applied to the payment of the obligations refunded or deposited in escrow for the retirement thereof. The ordinance under which the refunding bonds are issued may provide that any of the refunding bonds shall have the same priority of lien on the revenues pledged for their payment as was enjoyed by the obligations refunded thereby. These refunding bonds shall be issued and secured in the manner provided for other bonds issued under this subchapter and shall have all the attributes of these bonds.

History. Acts 1975, No. 990, § 14, as added by Acts 1983, No. 722, § 5; A.S.A. 1947, § 19-4522.1; Acts 2019, No. 910, § 4436.

26-75-305. Voters' approval of bonds.

No ordinance shall be passed by the governing body of a city under § 26-75-304 until a majority of the qualified electors of the city voting on the question shall have approved at an election called for that purpose and conducted in accordance with the general municipal election laws the principal amount of the bonds and the purpose for which the bonds will be issued.

History. Acts 1975, No. 990, § 17, as added by Acts 1983, No. 722, § 8; A.S.A. 1947, § 19-4522.4.

26-75-306. Pledge of revenues.

Any city levying the tax as permitted in this subchapter is authorized to pledge all or any part of the revenues from the tax levied pursuant to this subchapter to the payment of lease rentals or principal of and interest on bonds issued by such city under the authority of any other law in effect for the purpose of providing all or part of the funds for the construction, reconstruction, extension, equipment, acquisition, or improvement of any capital improvements of a public nature, or on bonds issued to refund such bonds; and such bonds, including the refunding bonds, shall be deemed to have been authorized by this subchapter for purposes of §§ 26-75-307 — 26-75-313.

History. Acts 1975, No. 990, § 15, as added by Acts 1983, No. 722, § 6; A.S.A. 1947, § 19-4522.2.

26-75-307. Levying of tax.

(a)(1) The governing body of any city may adopt an ordinance levying a local sales or gross receipts and use tax in the amount of one-eighth of one percent (0.125%), one-fourth of one percent (0.25%), one-half of one percent (0.5%), three-fourths of one percent (0.75%), one percent (1%), or any combination of these amounts for the benefit of the city in accordance with the provisions of this subchapter.

(2) Each local sales or gross receipts and use tax authorized under this subchapter shall be adopted by ordinance or by petition as described in subsection (b) of this section and with the approval of the voters of the municipality in accordance with this subchapter.

(b)(1) A legal voter of a city may file a petition with the governing body of that city requesting a special election on the question of levying a local sales or gross receipts and use tax authorized under this subchapter in an amount as provided in subdivision (a)(1) of this section.

(2) The petition shall be signed by a number of the legal voters in the city that is no less than fifteen percent (15%) of the number of votes cast for the office of mayor at the last preceding general election.

History. Acts 1975, No. 990, § 2; A.S.A. 1947, § 19-4514; Acts 1991, No. 765, § 17; 2001, No. 1561, § 6; 2007, No. 116, § 6; 2021, No. 448, § 12.

26-75-308. Special election to approve.

(a)(1) On the date of the filing of a petition described in § 26-75-307(b) or on the date of adoption of an ordinance levying a local sales and use tax for the benefit of the city, or within thirty (30) days following the filing of the petition described in § 26-75-307(b) or adoption of the ordinance, the city by ordinance shall provide for the calling and holding of a special election on the question in accordance with § 7-11-201 et seq.

(2) The special election shall be called for the next special election date under § 7-11-205.

(3) The governing body of the city shall notify the county board of election commissioners that the question has been referred to the vote of the people and shall submit a copy of the ballot title to the county board of election commissioners.

(b)(1) The ballot title to be used at the election shall be substantially in the following form:

“[] FOR adoption of a percent (.... %) local sales and use tax within (name of city).”

“[] AGAINST adoption of a percent (.... %) local sales and use tax within (name of city).”

(2) The election shall be conducted in the manner provided by law for all other municipal elections unless otherwise specified in this subchapter.

(c)(1) The ballot title may also include an expiration date, and if adopted in this form, the tax shall cease to be levied on the date noted on the ballot.

(2) The expiration date shall be the last day of a calendar quarter unless the proceeds are pledged for the payment of bonds, in which case the tax shall terminate as otherwise provided by law.

(3)(A)(i) The governing body of a city may refer to the voters a change in the expiration date for the sales and use tax approved by the voters to extend the levy of the sales and use tax beyond the expiration date previously approved.

(ii) The proposed expiration date shall be the last day of the last month of a calendar quarter.

(B) If the governing body of a city refers a change in the expiration date for an existing sales and use tax levied under this subchapter to the voters, the governing body shall:

(i) Notify the county board of election commissioners that the measure has been referred to the voters; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the expiration date for a sales and use tax levied under this subchapter shall be conducted in the manner provided by law for all other municipal elections.

(ii) The results of the election under this subsection shall be certified, proclaimed, and subject to challenge under § 26-75-309.

(D)(i) To extend the sales and use tax levied under this subchapter to a new expiration date, the city shall notify the Secretary of the Department of Finance and Administration of the new expiration date that was approved by the voters after publication of the proclamation has occurred and at least ninety (90) days before the current expiration date of the sales and use tax.

(ii) The sales and use tax extended under this subdivision (c)(3) shall continue to be levied until the new expiration date.

(iii)(a) At least one hundred twenty (120) days before the expiration of a sales and use tax levied under this subchapter, the Department of Finance and Administration shall notify the governing body of the city that levied the sales and use tax concerning the expiration of the sales and use tax.

- (b) The notification required under subdivision (c)(3)(D)(iii)(a) of this section shall state the:
- (1) Current expiration date of the sales and use tax; and
 - (2) Specific requirements under this subchapter for extending the sales and use tax.
- (E) If the voters do not approve a change in the expiration date for the sales and use tax levied under this subchapter, the sales and use tax shall continue to be collected until the expiration date previously approved by the voters.
- (F) An election to change the expiration date for a sales and use tax levied under this subchapter is not an election on the levy of the sales and use tax.
- (d)(1) The ballot may indicate an effective date for the ordinance or petition or an effective date for the levy of the tax that is effective later than the effective date of the ordinance or petition under § 26-75-309(1)(D)(ii).
- (2) The effective date of the ordinance or petition or the effective date of the levy of the tax delayed under subdivision (d)(1) of this section shall be:
- (A) Stated in the ordinance or petition levying the tax and on the ballot; and
 - (B) Scheduled on the first day of the first month of a calendar quarter.
- (3) The effective date of an ordinance or petition or a levy of the tax delayed under subdivision (d)(1) of this section shall not be delayed for more than thirty-six (36) months after the date the ordinance or petition would be effective under § 26-75-309(1)(D)(ii).
- (e)(1)(A) The ballot may also indicate designated uses of the revenues derived from the sales or use tax.
- (B) If the tax is approved, the proceeds shall only be used for the designated purposes.
- (2) The proceeds may be used for other designated purposes if the electors approve a change in the designated use of the revenues by vote under this subsection.
- (3)(A) The governing body of a city may refer to the voters a change in the designated use of revenues derived from a sales or use tax that was approved by the voters.
- (B) If the governing body of a city refers a change in the designated use of revenues derived from a sales or use tax to the voters, the governing body shall:
- (i) Notify the county board of election commissioners that the measure has been referred to the voters; and
 - (ii) Submit a copy of the ballot title to the county board of election commissioners.
- (C)(i) An election to change the designated use of revenues derived from a sales or use tax shall be conducted in the manner provided by law for all other municipal elections.
- (ii) The results of an election under this subsection shall be certified, proclaimed, and subject to challenge under the procedures stated in § 26-75-309.
- (4) If the voters approve a change in the designated use of revenues derived from a sales or use tax, the change in the designated use shall apply to all revenues collected on the first day of the calendar month following the expiration of the thirty-day challenge period under § 26-75-309.
- (5)(A) If the voters do not approve a change in the designated use of revenues derived from a sales or use tax, the tax shall continue to be collected, and the revenues derived from the tax shall continue to be used for the purposes indicated in the ballot for the tax.
- (B) An election to change the designated use of revenues derived from a sales or use tax shall not constitute an election on the levy of the tax.
- (6) Any city that has levied a local sales and use tax under this subchapter with a portion of the revenues derived from the tax pledged to secure lease rentals or bonds may not change the tax to reduce the pledge in favor of the lease or bonds.

History. Acts 1975, No. 990, § 2; A.S.A. 1947, § 19-4514; Acts 1991, No. 765, § 18; 2005, No. 1269, § 2; 2005, No. 2145, § 72; 2007, No. 116, § 7; 2007, No. 1049, § 94; 2009, No. 382, § 2; 2009, No. 957, § 3[4]; 2009, No. 1480, § 113; 2019, No. 910, § 4437; 2021, No. 610, § 36; 2025, No. 720, § 5.

26-75-309. Effective date of ordinance.

In order to provide time for the preparations for election set forth in this subchapter and to provide for the accomplishment of the administrative duties of the Secretary of the Department

of Finance and Administration, the following effective dates are applicable with reference to any such ordinance levying such tax:

(1)(A) The ordinance or petition described in § 26-75-307 levying the tax shall not be effective until after the election has been held.

(B) Following the election, the mayor of the city shall issue his or her proclamation of the results of the election with reference to the local sales and use tax, and the proclamation shall be published one (1) time in a newspaper having general circulation in the city.

(C) Any person desiring to challenge the results of the election as published in the proclamation shall file the challenge in the circuit court of the county where the city is located within thirty (30) days of the date of publication of the proclamation.

(D)(i) The mayor of the city shall notify the secretary after publication of the proclamation has occurred and ninety (90) days before the effective date of the tax.

(ii) If an election challenge is not filed within the thirty-day challenge period, the ordinance or petition described in § 26-75-307 shall become effective on the first day of the first month of the calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers and after the expiration of the full thirty-day period of challenge.

(iii) The effective date of the ordinance or petition may be delayed under § 26-75-308(d).

(E) The rate change shall become applicable on the first day of a quarter after one hundred twenty (120) days' notice by the secretary to sellers on a purchase from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog; and

(2)(A) In the event of an election contest, the tax shall be collected as prescribed in subdivision (1) of this section unless enjoined by a court order.

(B) A hearing of these matters of litigation shall be advanced on the docket of the court and disposed of at the earliest practicable time.

History. Acts 1975, No. 990, § 2; A.S.A. 1947, § 19- 1273, §§ 60, 61; 2007, No. 116, § 9; 2009, No. 957, § 4[5]; 4514; Acts 1993, No. 266, § 5; 1995, No. 565, § 9; 2003, No. 2019, No. 910, §§ 4438-4440.

26-75-310. Abolishment of tax.

(a)(1) In any city in which a local sales and use tax has been adopted in the manner provided for in this subchapter and all or any portion pledged to secure the payment of lease rentals or bonds as authorized by this subchapter, that portion of the tax pledged to lease rentals or bonds shall not be abolished so long as the lease is effective or any of the bonds are outstanding.

(2) The bonds shall not be deemed outstanding to the extent that there are sufficient tax collections set aside to pay the bonds when due.

(b) The city may abolish all or that portion of the sales and use tax that is not pledged to lease rentals during which the lease is effective or to outstanding bonds:

(1) By a roll call vote of two-thirds ($\frac{2}{3}$) of all members elected to the governing body of the city, excluding the mayor, if the governing body of the city has determined that the purposes of the tax cannot be fulfilled or cannot continue to be fulfilled; or

(2) After an election called by:

(A) Action of the city's governing body; or

(B) A petition of the qualified voters in the city.

(c) The initiative procedures in Arkansas Constitution, Article 5, § 1, and any ordinances of the city's governing initiative procedures shall govern the petition of the qualified voters under subsection (b) of this section and the calling and holding of an election concerning the abolishment of the tax.

(d) The governing body of the city may call for an election under subsection (b) of this section according to the procedures set forth in this subchapter for the calling of the initial election on the question.

(e)(1) The ballot title for use in the election under subsection (b) of this section shall be substantially the same as indicated in § 26-75-308(b), except that the word "ABOLITION" shall be substituted for the word "ADOPTION" as it appears in the ballot title set forth in § 26-75-308(b).

(2) A ballot title that contains a question for qualified voters on whether to continue the levy of a local sales and use tax complies with this subsection.

(f) The effective dates of any affirmative vote by the qualified voters to abolish the tax under subsection (b) of this section shall correspond to the dates indicated in § 26-75-309 for the initial effective date of the tax.

(g)(1) The effective date of any affirmative vote by the governing body of the city to abolish the tax under subsection (b) of this section shall be on the first day of the calendar quarter after the expiration of ninety (90) days from the date a written statement signed by the chief executive officer of the city abolishing the tax is filed with the Secretary of the Department of Finance and Administration certifying that the governing body of the city has adopted an ordinance abolishing the tax.

(2) A copy of the ordinance shall be attached to the certificate.

History. Acts 1975, No. 990, § 2; 1983, No. 722, § 2; A.S.A. 1947, § 19-4514; Acts 2005, No. 1270, § 2; 2009, No. 655, § 116; 2019, No. 910, § 4441.

26-75-311. Notification required.

(a)(1) As soon as is practicable, and no later than ten (10) days following each of the events set forth in the ordinance with reference to the procedure for the adoption or abolition of such tax and the effective dates of such action, the city clerk of the city shall notify the Secretary of the Department of Finance and Administration of such event.

(2) Accompanying the first of any such notices, the city clerk shall send to the secretary a map of the city clearly showing the boundaries of the city.

(b)(1) If any such city in which a local sales and use tax has been imposed in the manner provided for in this subchapter shall thereafter change or alter its boundaries, the city clerk of the city shall forward to the secretary at least ninety (90) days before the effective date a certified copy of the ordinance adding or detaching territory from the city, which shall be accompanied by a map clearly showing the territory added or detached.

(2) After receipt of the ordinance and the map, the tax imposed under this subchapter shall be effective in the added territory or abolished in the detached territory on the first day of the first month of the calendar quarter following the expiration of thirty (30) days from the date that the annexation or detachment becomes effective or after a minimum of sixty (60) days' notice by the secretary to sellers, whichever expires last.

History. Acts 1975, No. 990, § 2; A.S.A. 1947, § 19-4514; Acts 1995, No. 565, § 10; 2003, No. 383, § 6; 2003, No. 1273, § 62; 2019, No. 910, § 4442.

SUBCHAPTER 4 — TEMPORARY TAX FOR ACQUISITION, CONSTRUCTION, OR IMPROVEMENT OF PARKS

SECTION.

26-75-401. Authority supplemental.
26-75-402. Other provisions applicable.

SECTION.

26-75-403. Tax authorized.
26-75-404. Election requirements and procedure.

26-75-401. Authority supplemental.

The authority granted in this subchapter to cities and towns to levy a gross receipts and compensating tax shall be supplemental and in addition to any other authority of cities and towns to levy gross receipts and compensating taxes.

History. Acts 1985, No. 488, § 9; A.S.A. 1947, § 19-3655.

26-75-402. Other provisions applicable.

(a) The provisions of §§ 26-74-220, 26-75-207 — 26-75-212, and 26-75-222 shall be applicable to any tax levied under this subchapter.

(b) Section 26-75-213 shall be applicable to the resubmission of the question of the levy or repeal of the local sales and use tax authorized by this subchapter.

History. Acts 1985, No. 488, §§ 5, 12; A.S.A. 1947, §§ 19-3651, 19-3657.

26-75-403. Tax authorized.

(a)(1) The governing body of any city of the first class, city of the second class, or incorporated town in the state by ordinance may levy a temporary local sales and use tax of either one percent (1%) or one-half of one percent ($\frac{1}{2}\%$) for the purpose of providing funds for the acquisition, construction, or improvement of parks and recreation facilities within the city or town.

(2) Such a tax may be levied for any period not to exceed two (2) years.

(b) The ordinance levying the tax shall state the period for which the tax shall be levied and collected and shall contain a description of parks and recreation facilities to be acquired, constructed, or improved with the revenues from the tax.

(c) Any tax levied pursuant to the authority granted in this section shall be effective only after approval of the tax by the qualified electors of such city or town in the manner provided in this subchapter.

History. Acts 1985, No. 488, § 1; A.S.A. 1947, § 19-3647.

26-75-404. Election requirements and procedure.

(a)(1) When the governing body of any city or town adopts an ordinance levying a local sales and use tax as authorized in this subchapter, the governing body either in the ordinance levying the tax or in a separate ordinance shall provide for submission of the question of the levy to the qualified electors of the city or town either at the next regular municipal election or at a special election.

(2) If the ordinance provides for submitting the question at a special election, the election shall be called in accordance with § 7-11-201 et seq. for the next special election date under § 7-11-205.

(b) The governing body of the city or town shall notify the county board of election commissioners that the question of the levy of the tax has been referred to a vote of the people at the next regular municipal election or at a special election to be held on the date set by ordinance and shall submit a copy of the ballot title to the county board of election commissioners.

(c) The ballot title to be used at the election shall be in substantially the following form:

“[] FOR the levy of a temporary one percent (1%) (one-half of one percent ($\frac{1}{2}$ of 1%)) local sales and use tax for a period of within (name of city) for construction and improvement of public parks and recreation facilities.”

“[] AGAINST the levy of a temporary one percent (1%) (one-half of one percent ($\frac{1}{2}$ of 1%)) local sales and use tax for a period of within (name of city) for construction and improvement of public parks and recreation facilities.”

(d)(1) Following the election, the mayor of the city or town shall issue a proclamation of the results of the election, and the proclamation shall be published one (1) time in a newspaper having general circulation in the city or town.

(2)(A) If a majority of the electors voting on the issue vote against the levy of the tax, the tax shall not be levied, and the question of the levy of a tax under this subchapter shall not again be submitted to the electors of the city or town for one (1) year.

(B) If a majority of the electors voting on the issue vote for the levy of the tax, the tax shall be levied and collected as provided for in this subchapter for the period prescribed in the ordinance.

(3)(A) A person desiring to challenge the results of the election shall file the challenge in the circuit court of the county where the city or town is located within thirty (30) days of the date of publication of the proclamation.

(B)(i)(a) The mayor of the city or town shall notify the Secretary of the Department of Finance and Administration of the rate change after publication of the proclamation has occurred and ninety (90) days before the effective date of the tax.

(b) If no election challenge is filed within the thirty-day challenge period, the ordinance shall become effective on the first day of the first month of the calendar quarter after a minimum of sixty (60) days' notice by the secretary to sellers and after the expiration of the thirty-day period for challenge of the results of the election.

(c) In the case of a purchase made from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog, the applicable date will be the first day of the quarter after a minimum of one hundred twenty (120) days' notice by the secretary to sellers.

(ii) In the event of an election contest, the tax shall be collected as prescribed in subdivision (d)(3)(B)(i) of this section.

(e)(1) If a majority of electors voting on the issue vote "FOR" the levy of the tax, a copy of the mayor's proclamation of the results of the election shall be transmitted to the secretary within ten (10) days after the election.

(2)(A) At the time of transmitting the proclamation, the clerk shall also send to the secretary a map of the city or town clearly showing the boundaries of the city or town.

(B)(i) If any such city or town shall thereafter change or alter its boundaries, the city or town clerk shall forward to the secretary ninety (90) days before the effective date of the boundary changes a certified copy of the ordinance adding or detaching territory from the city or town, and the ordinance shall be accompanied by a map clearly showing the territory added or detached.

(ii) After receipt of the ordinance and map, the tax imposed under this subchapter shall be effective in the added territory or abolished in the detached territory on the first day of the first month of the calendar quarter following the expiration of thirty (30) days from the date that the annexation or detachment becomes effective or after a minimum of sixty (60) days' notice by the secretary to sellers, whichever expires last.

History. Acts 1985, No. 488, § 2; A.S.A. 1947, § 19-3648; Acts 1993, No. 266, § 6; 1995, No. 565, §§ 11, 12; 2003, No. 383, § 7; 2003, No. 1273, § 67; 2005, No. 2145, §§ 73, 74; 2007, No. 1049, § 95; 2009, No. 1480, § 114; 2019, No. 910, §§ 4449, 4450; 2021, No. 610, § 37.

SUBCHAPTER 5 — GROSS RECEIPTS TAX GENERALLY

SECTION.

26-75-501. Tax additional.

26-75-502. Authority to levy.

26-75-503. Election requirements.

26-75-504. Certification of tax.

SECTION.

26-75-505. Collection of tax.

26-75-506. Disposition of revenues.

26-75-507. Repeal of tax.

26-75-508. Levy of use tax.

26-75-501. Tax additional.

The tax authorized by this subchapter shall be in addition to all other fees and taxes which cities of the first class and cities of the second class are now authorized by law to levy, whether levied in the form of excise, license, or privilege taxes.

History. Acts 1968 (1st Ex. Sess.), No. 4, § 5; A.S.A. 1947, § 19-4512.

26-75-502. Authority to levy.

(a) Any city of the first class or city of the second class having a population of not more than forty thousand (40,000) persons according to the most recent federal census and that has been or may in the future be designated as a model city under the Demonstration Cities and Metropolitan Development Act of 1966, 42 U.S.C. § 3301 et seq., by an ordinance passed by its governing body, may levy a tax for the benefit of the city of not to exceed one percent (1%) on gross proceeds or gross receipts derived from sales, as such sales and gross proceeds or gross receipts are defined in the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(b) Rules promulgated by the Secretary of the Department of Finance and Administration for the State of Arkansas in connection with the collection and administration of the state gross receipts tax shall be equally applicable with respect to any tax levied under this subchapter.

(c) The ordinance authorizing the levy of the tax shall set the rate of the tax within the limits authorized in this subchapter.

(d) The operation of any ordinance levying the tax shall be subject to approval of the voters as required in § 26-75-503.

(e) After initial adoption of the tax as provided in this subchapter, that tax rate may be increased by the city under the same procedure but not to exceed the maximum prescribed in this subchapter.

History. Acts 1968 (1st Ex. Sess.), No. 4, § 1; A.S.A. 1947, § 19-4508; Acts 2003, No. 1273, § 69; 2019, No. 315, § 3072; 2019, No. 910, § 4456.

26-75-503. Election requirements.

(a) An ordinance of a city of the first class or city of the second class as provided in § 26-75-502 shall not become operative until approved in an election in the city levying such a tax.

(b) An election shall be held in the levying city on the question of whether the ordinance shall become effective on the next special election date under § 7-11-205 and shall be conducted in the manner prescribed by law for holding state, county, or municipal elections, so far as the manner may be applicable.

(c) A majority vote of those voting in the election shall determine whether the ordinance shall be operative.

(d)(1) If the majority vote “FOR” the ordinance, it shall be deemed to be operative on the date that the governing body of the city makes its official canvass of the election returns.

(2) However, no such tax shall be collected under any such ordinance until the first day of a calendar quarter after a minimum of sixty (60) days’ notice by the Secretary of the Department of Finance and Administration to sellers.

(3) For a purchase made from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog, the tax shall be collected on the first day of the quarter after a minimum of one hundred twenty (120) days’ notice by the secretary to sellers.

(e) Prior to the election the ordinance shall be published one (1) time a week for at least three (3) weeks in at least one (1) newspaper published in the city in which the election is to be held.

(f) If a city shall hold an election as provided in this section and if the ordinance shall be rejected, no other election on the ordinance shall be held by the city for a period of one (1) year from the date of holding the prior election.

History. Acts 1968 (1st Ex Sess.) No. 4, § 2; A.S.A. 1947, § 19-4509; Acts 2003, No. 1273, § 70; 2019, No. 910, § 4457; 2021, No. 610, § 38.

26-75-504. Certification of tax.

When the levy of the tax authorized in this subchapter has been approved in a city of the first class or city of the second class as provided in this subchapter, the governing body of the city shall certify to the Secretary of the Department of Finance and Administration that such tax has become operative and shall furnish to the secretary the rate of the tax, including any limitations thereon, and the date on which it shall become operative.

History. Acts 1968 (1st Ex. Sess.), No. 4, § 3; A.S.A. 1947, § 19-4510; Acts 2019, No. 910, § 4458.

26-75-505. Collection of tax.

(a) The Secretary of the Department of Finance and Administration shall collect the tax levied under this subchapter concurrently with and in the same manner as taxes collected under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(b) This additional tax shall be collected by the secretary for the benefit of the city and shall be deposited into the Local Sales and Use Tax Trust Fund for distribution back to the city.

History. Acts 1968 (1st Ex. Sess.), No. 4, § 3; A.S.A. 1947, § 19-4510; Acts 1989, No. 798, § 1; 1995, No. 211, § 2; 2019, No. 910, § 4459.

26-75-506. Disposition of revenues.

(a) All revenues collected by the Secretary of the Department of Finance and Administration pursuant to the provisions of this subchapter, less three percent (3%) thereof which shall be deducted as a cost of collection and deposited into the State Treasury to the credit of the Constitutional Officers Fund and the State Central Services Fund, shall be remitted by the secretary to the levying city at the same time the secretary remits sales tax revenues to the State Treasury.

(b) All funds remitted to the levying city under the provisions of this subchapter shall be deposited into the city general fund of the levying city and used for the purposes prescribed by law.

(c)(1) Except for revenue collected under subdivision (c)(2) of this section, money collected from a tax on aviation fuel levied by a city where a regional airport as described by the Regional Airport Act, § 14-362-101 et seq., is located shall not be deposited into the State Treasury but shall be deposited as cash funds by the Treasurer of State into a bank or banks designated by the regional airport located within the levying city or within the county and transmitted to the regional airport, subject to the charges by the state for its services as specified in this section.

(2) Revenue derived from a tax on aviation fuel in effect on December 30, 1987, is not subject to this subsection.

(d) Except for revenue collected under subsection (c) of this section, money collected that is derived from a tax on aviation fuel levied by a city that is not dedicated to a specific purpose and may legally be used for any lawful purpose shall not be deposited into the State Treasury but shall be deposited as cash funds by the Treasurer of State into a bank or banks designated by the city and transmitted directly to the publicly owned airport where the aviation fuel was sold, subject to the charges by the state for its services as specified in this section.

History. Acts 1968 (1st Ex. Sess.), No. 4, § 3; A.S.A. 1947, § 19-4510; Acts 2007, No. 166, § 6; 2009, No. 840, § 8; 2019, No. 910, § 4460.

26-75-507. Repeal of tax.

Any ordinance of a city adopted pursuant to the authority granted in this subchapter may be repealed in the same manner as is provided in this subchapter for its adoption.

History. Acts 1968 (1st Ex. Sess.), No. 4, § 4; A.S.A. 1947, § 19-4511.

26-75-508. Levy of use tax.

(a) In all cities of the first class or cities of the second class that have adopted an ordinance prior to January 1, 1995, levying a local sales tax as provided in § 26-75-502, there is also levied a local compensating use tax.

(b) The rate of the use tax levied by this section shall be equal to the rate of the sales tax levied by the city.

(c) The use tax levied under this section and the local sales tax levied under § 26-75-502 shall be administered and enforced in accordance with the provisions of §§ 26-75-223 and 26-75-312.

History. Acts 1995, No. 211, § 1.

SUBCHAPTER 6 — ADVERTISING AND PROMOTION COMMISSION ACT

SECTION.

26-75-601. Penalty.

26-75-602. Gross receipts taxes authorized — Voter approval of levy or increase of tax.

26-75-603. Collection of tax.

26-75-604. Disposition of revenues.

26-75-605. Advertising and promotion commissions.

26-75-606. Use of funds collected.

26-75-607. Authority to issue bonds.

26-75-608. Issuance of bonds.

26-75-609. Execution of bonds.

26-75-610. Nature of bonds generally.

SECTION.

26-75-611. Bonds as securities.

26-75-612. Tax exemption for bonds.

26-75-613. Pledge of revenues.

26-75-614. Trust indenture.

26-75-615. Sale of bonds.

26-75-616. No personal liability.

26-75-617. Refunding bonds.

26-75-618. Title.

26-75-619. Authority to perform joint audits — Definitions.

26-75-601. Penalty.

Any person or entity liable for the additional one percent (1%) gross receipts tax authorized by this subchapter to be levied by cities of the first class in which is located a city park of one thousand (1,000) acres or more shall be subject to a fine of fifty dollars (\$50.00) per day for each day the person or entity fails to remit the tax after its due date.

History. Acts 1981, No. 542, § 1; A.S.A. 1947, § 19-4614.1.

26-75-602. Gross receipts taxes authorized — Voter approval of levy or increase of tax.

(a)(1) A city of the first class, city of the second class, or incorporated town by ordinance of the governing body thereof may levy a tax not to exceed three percent (3%) upon the gross receipts or gross proceeds identified in subsection (c) of this section.

(2)(A) If the governing body enacts an ordinance levying or increasing a tax under this section, the governing body shall submit the question of the levying or increase of the tax to the electors at the earliest date permitted for a special election under § 7-11-205.

(B) If the earliest date permitted for a special election under § 7-11-205 is less than seventy-five (75) days from the date the ordinance is enacted under this subsection, the election on the question of the levying or increase of the tax shall be delayed until the next date permitted for a special election under § 7-11-205.

(3) The tax shall be levied or increased upon approval of a majority of the qualified electors voting on the question of the levying or increase of the tax at the special election held under § 7-11-205.

(b)(1) A city of the first class in which a city park of one thousand (1,000) acres or more is located may levy an additional tax of one percent (1%) upon the gross receipts or gross proceeds identified in subsection (c) of this section.

(2) Revenues collected from the additional tax authorized under subdivision (b)(1) of this section shall be used by the city parks and recreation department for the promotion and development of city parks and recreation areas.

(c) The tax authorized in this section shall be upon any one (1) or more of the following, as specified in the levying ordinance:

(1)(A) The gross receipts or gross proceeds from renting, leasing, or furnishing hotel, motel, house, cabin, bed and breakfast, campground, condominium, or other similar rental accommodations for sleeping, meeting, or party room facilities for profit in the city or town.

(B) Subdivision (c)(1)(A) of this section does not include the rental or lease of accommodations described in subdivision (c)(1)(A) of this section for a period of thirty (30) days or more;

(2)(A) The portion of the gross receipts or gross proceeds received from the sale of prepared food and beverages for on-premises or off-premises consumption by restaurants, cafes, cafeterias, delicatessens, drive-in restaurants, carry-out restaurants, concession stands, convenience stores, grocery store-restaurants, or similar businesses as shall be defined in the levying ordinance.

(B) The tax shall not apply to the gross receipts or gross proceeds of organizations qualified under 26 U.S.C. § 501(c)(3), as it existed on January 1, 2023; and

(3) The admission price to a state park located within the municipal boundary of the city or town.

History. Acts 1965, No. 185, § 1; 1969, No. 123, § 1; § 1; 1993, No. 364, § 1; 1995, No. 300, §§ 1, 2; 1995, No. 1971, No. 534, § 1; 1977, No. 178, § 1; 1979, No. 926, § 1; 931, § 1; 2007, No. 473, § 2; 2009, No. 274, § 1; 2019, No. 1981, No. 20, § 1; 1981, No. 957, § 1; A.S.A. 1947, §§ 19-560, § 1; 2023, No. 190, § 2.

4613, 19-4613.1; Acts 1989, No. 626, § 2; 1991, No. 726,

26-75-603. Collection of tax.

(a) A person liable for a tax levied under § 26-75-602 shall pay the tax, and the advertising and promotion commission of the levying city or a designated agent of the commission shall collect the tax in the same manner and at the same time as the tax levied by the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq.

(b)(1)(A) The person paying the tax levied under § 26-75-602 shall report and remit it upon forms provided by the commission and as directed by the commission.

(B) The rules, forms of notice, assessment procedures, and the enforcement and collection of the tax under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Tax Procedure Act, § 26-18-101 et seq., are applicable with respect to the enforcement and collection of the tax levied under § 26-75-602.

(2)(A) However, the administration, enforcement of the tax levied under § 26-75-602, and all actions arising from the tax levied under § 26-75-602 shall be by and in the name of the commission through the proper commission officials or agents.

(B) The commission may sue and be sued in its name.

(3) The Department of Finance and Administration shall have no authority to enforce or collect the tax levied under § 26-75-602.

(c) The levying city may adopt ordinances:

(1) Consistent with and in similar form to the Arkansas Tax Procedure Act, § 26-18-101 et seq., to enable the commission or the commission's agent to enforce the tax levied under § 26-75-602 through examination of records, notices of proposed and final assessment, and administrative hearings on proposed assessments; and

(2) That enable the commission to:

(A)(i) Assess penalties and interest against taxpayers who fail to timely report or pay the tax levied under § 26-75-602.

(ii) The penalty is equal to five percent (5%) of the unpaid tax amount per month not to exceed a total assessment of thirty-five percent (35%) of the unpaid tax.

(iii) Simple interest on unpaid taxes shall be assessed at the rate of ten percent (10%) per annum;

(B) Assess unpaid or unreported tax within three (3) years of the date the tax is due;

(C) Provide judicial relief from proposed assessments in accordance with subsection (d) of this section; and

(D) Issue certificates of indebtedness in accordance with subdivision (c)(2)(C) of this section.

(d)(1) Within thirty (30) days of the issuance of the notice and demand for payment of a deficiency in tax established by a final determination of the hearing officer, a taxpayer may seek judicial relief from the final determination by either:

(A) Paying under protest the amount of the deficiency, plus penalty and interest determined by the commission to be due, and filing a suit to recover that amount within one (1) year from the date of payment under protest; or

(B)(i) Filing with the commission a bond in double the amount of the tax deficiency due.

(ii) The bond shall be subject to the condition that the taxpayer shall:

(a) File suit within thirty (30) days after filing the bond to stay the effect of the commission's determination;

(b) Faithfully and diligently prosecute the suit to a final determination; and

(c) Pay any deficiency found by the court to be due and any court costs assessed against the taxpayer.

(iii) A taxpayer's failure to file suit, diligently prosecute the suit, or pay any tax deficiency and court costs, as required by this subsection, shall result in the forfeiture of the bond in the amount of the assessment and assessed court costs.

(2)(A) The methods provided in this section are the exclusive methods for seeking relief from a written decision of the commission establishing a deficiency in tax.

(B) A court shall not issue an injunction to stay proceedings for assessment or collection of the tax levied under § 26-75-602.

(e)(1) If a taxpayer does not timely and properly pursue the taxpayer's remedies seeking relief from a decision of the commission and a final assessment is made against the taxpayer, or if the taxpayer fails to pay the deficiency assessed upon notice and demand, then the commission as soon as practicable thereafter shall issue to the circuit clerk of the county in which the taxpayer's business is located a certificate of indebtedness certifying that the person named in the certificate of indebtedness is indebted to the commission for the amount of the tax established by the commission as due.

(2) The circuit clerk shall enter immediately upon the circuit court judgment docket:

(A) The name of the delinquent taxpayer;

(B) The amount certified as being due;

(C) The name of the tax; and

(D) The date of entry upon the judgment docket.

(3) The entry of the certificate of indebtedness:

(A) Has the same force and effect as the entry of a judgment rendered by the circuit court; and

(B) Constitutes the commission's lien upon the title of any real and personal property of the taxpayer in the county in which the certificate of indebtedness is recorded.

(4)(A) The certificate of indebtedness authorized by this subsection shall continue in force for ten (10) years from the date of recording and shall automatically expire after the ten-year period has run.

(B) Actions on the lien on the certificate of indebtedness shall be commenced within ten (10) years after the date of recording of the certificate.

(5) The commission has all remedies and may take all proceedings for the collection of the tax levied under § 26-75-602 that may be taken for the recovery of a judgment at law.

(f) Subsections (d) and (e) of this section are effective only when the levying city adopts and the voters approve an ordinance under § 26-75-602 that specifically provides that the commission shall utilize subsections (d) and (e) of this section in enforcing the tax levied under § 26-75-602.

History. Acts 1965, No. 185, § 3; 1965 (1st Ex. Sess.), § 2; 1997, No. 1016, § 1; 2019, No. 315, § 3073; 2023, No. 30, § 1; A.S.A. 1947, § 19-4614; Acts 1993, No. 364, 190, § 2.

26-75-604. Disposition of revenues.

(a) All taxes, interest, penalties, and costs collected pursuant to a tax levied by the city as authorized in this subchapter shall be credited to the city advertising and promotion fund which shall be created by the ordinance levying the tax in the city.

(b) When the electors of any city levy a gross receipts tax on hotels and restaurants, and the ballot dedicates the tax for the development, construction, and maintenance of city parks, the proceeds of the tax shall not be deposited into the city advertising and promotion fund but shall be deposited into a special fund to be used for the development, construction, and maintenance of city parks. The funds shall be disbursed by the mayor upon approval of the city council.

(c) When the electors of any city levy a gross receipts tax as set forth in subsection (b) of this section, and when the electors of that city have pledged some or all of the proceeds thereof to the repayment of bonds as set forth in § 26-75-606(b)(1) and (2) or § 26-75-613(a)(2), the proceeds so pledged shall be deposited into the city advertising and promotion fund and distributed by the city advertising and promotion commission in accordance with the pledge and enactment of the electors.

History. Acts 1965, No. 185, § 4; 1965 (1st Ex. Sess.), No. 30, § 2; A.S.A. 1947, § 19-4615; Acts 1989 (3rd Ex. Sess.), No. 7, § 5; 1993, No. 347, § 1.

26-75-605. Advertising and promotion commissions.

(a) Any municipality levying a tax pursuant to this subchapter shall create by ordinance a municipal advertising and promotion commission, to be composed of seven (7) members, as follows:

(1)(A) Four (4) members shall be owners or managers of businesses in the tourism industry, and the owner or manager shall reside in the levying municipality or, if the governing body of the municipality provides for by ordinance, the owner or manager may reside outside of the municipality but within the county where the municipality is located.

(B) At least three (3) of these members shall be owners or managers of hotels, motels, or restaurants and shall serve for staggered terms of four (4) years;

(2) Two (2) members of the commission shall be members of the governing body of the municipality and selected by the governing body and shall serve at the will of the governing body; and

(3) One (1) member shall be from the public at large who shall reside within the levying municipality or in the county of the levying municipality and shall serve for a term of four (4) years.

(b) In the case of a city creating the commission authorized in this section after March 4, 1993, the initial members of the commission shall be selected as follows:

(1) The four (4) tourism industry positions provided for in subdivision (a)(1) of this section shall be filled by appointment made by the governing body of the city for staggered terms so that:

(A) One (1) member will serve for a term of one (1) year;

(B) One (1) for a term of two (2) years;

(C) One (1) for a term of three (3) years; and

(D) One (1) for a term of four (4) years.

(2) The at-large position provided for in subdivision (a)(3) of this section shall be filled by nomination by the chief administrator of the city and approval by the governing body of the city.

(c)(1) In the case of a city in which a city advertising and promotion commission exists on March 4, 1993, the members of the commission shall continue in office for the balance of the terms to which they have been previously appointed.

(2) However, if on that date no commission member has been appointed to hold an at-large position, the mayor shall designate one (1) of the commission members who is also a member of the governing body of the city to fill the at-large position provided for in subdivision (a)(3) of this section for a term of not longer than one (1) year.

(d) Whether resulting from expiration of a regular term or otherwise, a vacancy on the commission in any of the four (4) tourism industry positions provided for in subdivision (a)(1) of this section or in the at-large position provided for in subdivision (a)(3) of this section shall be filled by appointment made by the remaining members of the commission, with the approval of the governing body of the city.

History. Acts 1965, No. 185, § 5; 1969, No. 123, § 2; A.S.A. 1947, § 19-4616; Acts 1993, No. 364, § 3; 1997, No. 913, § 1; 2005, No. 2314, § 2.

26-75-606. Use of funds collected.

(a)(1)(A) In the manner as shall be determined by the municipal advertising and promotion commission, all funds credited to the city advertising and promotion fund pursuant to this subchapter shall be used for the:

- (i) Advertising and promoting of the city and its environs;
- (ii) Construction, reconstruction, extension, equipment, improvement, maintenance, repair, and operation of a convention center;
- (iii) Operation of tourist promotion facilities in the city or the county where the city is located if the city owns an interest in the convention center or facility, and facilities necessary for, supporting, or otherwise pertaining to, a convention center; or
- (iv) Payment of the principal of, interest on, and fees and expenses in connection with bonds as provided in this subchapter.

(B) The commission may engage such personnel and agencies and incur such administrative costs as it deems necessary to conduct its business.

(2)(A) The commission is the body that determines the use of the city advertising and promotion fund.

(B) Pursuant to this section, if the commission determines that funding of the arts is necessary for or supporting of its city's advertising and promotion endeavors, the commission may use its funds derived from the hotel and restaurant tax.

(3)(A) The commission may purchase, own, operate, sell, lease, contract, or otherwise deal in or dispose of real property, buildings, improvements, or facilities of any nature in accordance with this subchapter.

(B) If the commission is dissolved, the city shall assume the authority under subdivision (a)(3)(A) of this section.

(b)(1)(A) Any city of the first class that may levy and does levy a tax pursuant to this subchapter may use or pledge all or any part of the revenues derived from the tax for the purposes prescribed in this subchapter or for the operation of tourist-oriented facilities, including, but not limited to, theme parks and other family entertainment facilities or for the retirement of bonds issued for the establishment and operation of other tourist-oriented facilities, including, but not limited to, theme parks and other family entertainment facilities.

(B) These revenues shall be used or pledged for the purposes authorized in this subsection only upon approval of the commission created pursuant to this subchapter.

(2) Funds credited to the city advertising and promotion fund pursuant to this subchapter may be used, spent, or pledged by the commission, in addition to all other purposes prescribed in this subchapter, on and for the construction, reconstruction, repair, maintenance, improvement, equipping, and operation of public recreation facilities in the city or the county where the city is located if the city owns an interest in the center or facility, including, but not limited to, facilities

constituting city parks and also for the payment of the principal of, interest on, and fees and expenses in connection with bonds as provided in this subchapter in the manner as shall be determined by the commission for the purpose of such payment.

(c)(1) All local taxes levied as authorized in § 26-75-602(a) shall be credited to the city advertising and promotion fund and shall be used for the purposes described in subsections (a) and (b) of this section.

(2) The taxes shall not be used:

- (A) For general capital improvements within the city or county;
- (B) For the costs associated with the general operation of the city or county; or
- (C) For general subsidy of any civic group or the chamber of commerce.

(3) However, the commission may contract with such groups to provide to the commission actual services that are connected with tourism events or conventions.

(4) The authorization and limitations contained in this subsection shall be reasonably construed so as to provide funds for promoting and encouraging tourism and conventions while not allowing such special revenues to be utilized for expenditures that are normally paid from general revenues of the city.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; Acts 1989, No. 626, § 3; 1989, No. 650, § 1; 1991, No. 726, 1971, No. 188, § 1; 1977, No. 178, § 2; 1981, No. 20, § 2; § 2; 1991, No. 1178, § 1; 1993, No. 347, § 2; 1993, No. 364, 1983, No. 821, § 1; A.S.A. 1947, §§ 19-4617, 19-4617.1; §§ 4-6; 2005, No. 2241, § 1; 2007, No. 390, § 1.

26-75-607. Authority to issue bonds.

Cities of the first class levying the tax and creating the commission as permitted in this subchapter are authorized to:

(1) Acquire sites for, construct, reconstruct, extend, equip, improve, maintain, and operate convention centers and facilities necessary for, supporting, or otherwise pertaining to, convention centers which are collectively referred to in this section as “convention center projects” in such cities; and

(2) Issue bonds to provide funds for accomplishing convention center projects and to pledge all or any part of the revenues from the tax levied by the city pursuant to this subchapter to pay the principal of, interest on, and fees and expenses in connection with the bonds.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; 1971, No. 188, § 1; A.S.A. 1947, § 19-4617.

26-75-608. Issuance of bonds.

(a) Bonds issued by a municipality pursuant to this subchapter shall be authorized by ordinance of the governing body of the city.

(b) The bonds may:

- (1) Be in registered or other form;
- (2) Be exchangeable for bonds of another denomination;
- (3) Be in such form and denominations;
- (4) Be made payable at such places within or without the state;
- (5) Be issued in one (1) or more series;
- (6) Bear such date or dates;
- (7) Mature at such time or times, not exceeding forty (40) years from their respective dates;
- (8) Bear interest at such rate or rates;
- (9) Be payable in such medium of payment;
- (10) Be subject to such terms of redemption; and

(11) Contain such other terms, covenants, and conditions, as the ordinance authorizing their issuance may provide, including, without limitation, those pertaining to:

- (A) The custody and application of the proceeds of the bonds;
- (B) The collection and disposition of revenues;
- (C) The maintenance and investment of various funds and reserves;

(D) The nature and extent of the security and pledging of revenues;

(E) The rights, duties, and obligations of the municipality and the trustee for the holders and registered owners of the bonds; and

(F) The rights of the holders and registered owners of the bonds.

(c) There may be successive bond issues for the purpose of financing the same convention center project, and there may be successive bond issues for financing the cost of reconstructing, replacing, constructing additions to, extending, improving, and equipping convention center projects already in existence, whether or not originally financed by bonds issued under this subchapter and with each successive issue to be authorized as provided by this subchapter. Priority between and among issues and successive issues as to security of the pledge of revenues and lien on the convention center project facilities involved may be controlled by the ordinance authorizing the issuance of bonds under this subchapter. Subject to the provisions of this subchapter pertaining to registration, the bonds shall have all the qualities of negotiable instruments under the laws of the State of Arkansas.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; No. 225, § 18; 1981, No. 425, § 18; A.S.A. 1947, § 19-4617; 1970 (1st Ex. Sess.), No. 58, § 1; 1971, No. 188, § 1; 1975, Acts 1993, No. 364, § 7.

26-75-609. Execution of bonds.

The bonds shall be executed in the manner provided by the Registered Public Obligations Act of Arkansas, § 19-6-401 et seq., as that act may be amended.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; 1971, No. 188, § 1; A.S.A. 1947, § 19-4617; Acts 1993, No. 364, § 8; 2025, No. 419, § 335.

26-75-610. Nature of bonds generally.

(a)(1) The bonds shall not be general obligations of the city involved, but shall be special obligations secured and payable as provided in this subchapter.

(2) In no event shall the bonds constitute an indebtedness of the city within the meaning of any constitutional or statutory limitation.

(b) The principal of and interest on all bonds issued under the authority of this subchapter shall be secured by a pledge of and shall be payable from all or any part of the revenues derived from the tax levied by the city pursuant to this subchapter or from all or any part of the revenues derived from the operation of the convention center project involved.

(c) The ordinance authorizing the issuance of bonds together with this subchapter shall constitute a contract by and between the city and the holders and registered owners of all bonds issued by the city under the authority of this subchapter, which contract and all covenants, agreements, and obligations therein, shall be promptly performed in strict compliance with the terms and provisions of the contract.

(d) The contract and all rights of the holders and registered owners of the bonds and the obligations of the city may be enforced by mandamus or any other appropriate proceeding at law or in equity.

(e) It shall be plainly stated on the face of each bond that it has been issued under the provisions of this subchapter.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; 1971, No. 188, § 1; A.S.A. 1947, § 19-4617; Acts 1993, No. 364, § 9.

26-75-611. Bonds as securities.

(a) Bonds issued under the authority of this subchapter are made securities in which insurance companies, trust companies, banks, investment companies, executors, administrators,

trustees, and other fiduciaries may properly and legally invest funds, including capital in their control or belonging to them.

(b) These bonds are made securities which may properly and legally be deposited with and received by any state or municipal officer or any agency or political subdivision of this state for any purpose for which the deposit of bonds or obligations of the state is authorized by law.

(c) Any municipality or county, or any board, commission, or other authority established by any municipality or county, or the boards of trustees, respectively, of any retirement fund or retirement system created by or pursuant to authority conferred by the General Assembly in its discretion may invest any of its funds not immediately needed for its purposes in bonds issued under the authority of this subchapter.

(d) Bonds issued under the authority of this subchapter shall be eligible to secure the deposit of public funds.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; 1971, No. 188, § 1; A.S.A. 1947, § 19-4617.

26-75-612. Tax exemption for bonds.

(a) The principal of and interest on bonds issued under the authority of this subchapter shall be exempt from all state, county, and municipal taxes.

(b) This exemption shall include income, inheritance, and estate taxes.

History. Acts 1965, No. 185, § 6; 1969, No. 123, § 3; 1971, No. 188, § 1; A.S.A. 1947, § 19-4617.

26-75-613. Pledge of revenues.

(a)(1) Any city of the first class levying the tax and creating the commission as permitted in this subchapter is authorized to pledge all or any part of the revenues from the tax levied pursuant to this subchapter to the payment of principal of and interest on bonds issued by the city under the authority of any other law in effect, for the purpose of providing all, or part of, the funds for the acquisition, construction, reconstruction, extension, equipment, improvement, maintenance, or operation of any facility including, without limitation, auditoriums and parking facilities, which will be operated as a part of, or operated or utilized in connection with, or in support of, a convention center project.

(2) Any municipality that has levied a tax, known as the hotel and restaurant tax, as authorized in § 26-75-602(a), may pledge all or any part of the revenues derived from the hotel and restaurant tax to the payment of principal and interest on bonds issued by the municipality under the authority of §§ 14-170-201 — 14-170-214 or any subsequent law and called tourism revenue bonds, or to the extent necessary to match grant funds in an amount at least equal to the proceeds of the bonds to the payment of principal and interest on bonds issued by the municipality under the authority of §§ 14-186-101 and 14-186-301 — 14-186-312, or any subsequent law.

(b)(1) The pledge of revenues derived from the hotel and restaurant tax shall be by the ordinance of the municipality authorizing the bonds, called the authorizing ordinance, and in the case of tourism revenue bonds shall be subject to the approval of the city advertising and promotion commission.

(2) The authorizing ordinance shall specify the nature and extent of the pledge of revenues derived from the hotel and restaurant tax and may contain such terms, covenants, and conditions pertaining to the collection, custody, and disposition of revenues derived from the hotel and restaurant tax as the governing body of the municipality deems desirable including, without limitation, a covenant that the hotel and restaurant tax will be collected so long as the bonds are outstanding.

(3)(A) The provisions of the authorizing ordinance relating to the hotel and restaurant tax and the revenues derived therefrom together with this subchapter shall constitute a contract by and between the municipality and the holders and registered owners of the bonds authorized

thereby, which contract and all covenants, agreements, and obligations therein shall be promptly performed in strict compliance with the terms and provisions of the contract.

(B) The contract and all rights of the holders and registered owners of the bonds and all obligations of the municipality may be enforced by mandamus or any other appropriate proceeding at law or in equity.

History. Acts 1965, No. 185, § 6; 1971, No. 188, § 1; 1975, No. 977, §§ 1, 2; 1979, No. 727, §§ 1, 2; A.S.A. 1947, §§ 19-4617, 19-4618, 19-4619; Acts 1993, No. 364, § 10.

26-75-614. Trust indenture.

(a) The ordinance authorizing the bonds may provide for the execution by the chief executive officer of the municipality of a trust indenture which defines the rights of the owners of the bonds and provides for the appointment of a trustee for the owners of the bonds.

(b) The trust indenture may provide for the priority between and among successive issues and may contain any of the provisions set forth in § 26-75-608 and any other terms, covenants, and conditions that are deemed desirable.

History. Acts 1993, No. 364, § 11.

26-75-615. Sale of bonds.

The bonds may be sold at public or private sale for such price, including, without limitation, sale at a discount, and in such manner as the governing body of the municipality may determine.

History. Acts 1993, No. 364, § 11.

26-75-616. No personal liability.

No official, officer, employee, or member of the governing body of the municipality or the advertising and promotion commission shall be personally liable on any bonds issued under the provisions of this subchapter or for any damages sustained by any person in connection with any contracts entered into to carry out the purposes and intent of this subchapter unless that person has acted with a corrupt intent.

History. Acts 1993, No. 364, § 11.

26-75-617. Refunding bonds.

(a) Bonds may be issued under this subchapter to refund any outstanding bonds issued pursuant to this subchapter or to refund any outstanding bonds issued pursuant to any other law for the purpose of financing convention center projects.

(b)(1) The refunding bonds may be either sold for cash or delivered in exchange for the outstanding obligations.

(2) If sold for cash, the proceeds may be either applied to the payment of the obligations refunded or deposited into irrevocable trust for the retirement thereof either at maturity or on an authorized redemption date.

(c) Refunding bonds shall in all respects be authorized, issued, and secured in the manner provided in this subchapter.

(d) The ordinance under which the refunding bonds are issued may provide that any refunding bonds shall have the same priority of lien on all project revenues as originally pledged for payment of the obligation refunded thereby.

History. Acts 1993, No. 364, § 11.

26-75-618. Title.

This subchapter may be referred to as the “Advertising and Promotion Commission Act”.

History. Acts 1993, No. 364, § 11.

26-75-619. Authority to perform joint audits — Definitions.

(a) As used in this section:

(1) “City” means a city of the first class, city of the second class, or incorporated town in this state;

(2) “Joint audit” means an audit that is performed by a joint auditor to examine the records of one (1) or more taxpayers and that is necessary to determine the accuracy of a return or to establish the liability of the taxpayer to pay the tax levied by an ordinance of a city under § 26-75-602;

(3) “Joint auditor” means a person with the necessary experience or training to assume the primary responsibility to conduct a joint audit according to an agreement between the cities;

(4) “Records” means:

(A) The books, records, papers, vouchers, accounts, documents, and relevant property or stock of merchandise of the taxpayer that are in the possession of the taxpayer or of a third party that concern the tax levied under § 26-75-602; or

(B) Tax information from the books and records of the Department of Finance and Administration concerning a taxpayer that is necessary to the performance of a joint audit of a taxpayer and is requested by a joint auditor; and

(5) “Taxpayer” means a person subject to or liable for the tax levied by an ordinance of a city under § 26-75-602.

(b)(1) Two (2) or more cities that have levied a tax and have adopted an ordinance under the authority of § 26-75-603 may agree to a joint audit in order to reduce the expenditure of time and resources necessary to perform the audit.

(2) The ordinance shall enable the advertising and promotion commission of the levying city to enforce the tax through examination of records.

(c) The cities that participate in the joint audit may enter into a joint agreement to employ a joint auditor and to provide any assistance required to the joint auditor in the performance of the joint audit.

(d) At a reasonable time, the joint auditor shall be granted access to examine records permitted by a city ordinance under § 26-75-603 and this section.

History. Acts 2013, No. 712, § 2.

SUBCHAPTER 7 — GROSS RECEIPTS TAX ON HOTELS, ETC., IN CERTAIN CITIES**SECTION.**

26-75-701. Tax authorized — Definitions.

26-75-702. Election required.

26-75-703. City advertising and promotion commission.

SECTION.

26-75-704. Collection and administration.

26-75-705. Use of funds.

26-75-701. Tax authorized — Definitions.

(a) Any city of the first class having a population of less than five thousand (5,000) inhabitants, a portion of which has been designated as a historic district and is included on the National Register of Historic Places, by ordinance of its governing body, may levy a tax not to exceed two percent (2%) upon the gross receipts or gross proceeds from any one (1) or more of the following:

(1) The renting, leasing, or otherwise furnishing of lodging for profit in the city;

(2) Restaurants, cafes, cafeterias, or other business establishments, as defined in the levying ordinance, engaged in the business of selling prepared food for consumption on the premises in the city;

(3) Sales by retail businesses, a majority of whose gross receipts or gross proceeds are derived from the sale of items available for sale to tourists, as defined in the levying ordinance; and

(4) Admission price to tourist attractions, as defined in § 26-63-401.

(b)(1) A tourist attraction with total gross receipts of seven hundred fifty thousand dollars (\$750,000) or more that has a portion of the real property on which the attraction is located that abuts and adjoins a city may petition the adjoining city to be included without annexation in the levy and collection of the tax authorized in subsection (a) of this section.

(2) Upon receipt of the petition, the governing body may pass an ordinance levying the tax authorized in this section on the petitioning area at the same rate as that of the adjoining city.

(3) The adjoining city does not have authority over the petitioning tourist attraction except as provided in this section.

(4) As used in this section, “tourist attraction” means:

(A) A cultural or historical site;

(B) A recreational or entertainment facility;

(C) An area of natural phenomena or scenic beauty;

(D) A theme park;

(E) An amusement or entertainment park;

(F) An indoor or outdoor play or music show;

(G) A botanical garden; or

(H) A cultural or educational center.

(c)(1) As used in this subchapter, “lodging” means furnishing for profit temporary accommodations based on a rental, lease, or other agreement.

(2) “Lodging” includes the furnishing for profit of:

(A) A hotel room, motel room, or other similar room that provides accommodations for a traveler;

(B) A condominium rental agreement; and

(C) A meeting or party room facility.

(3) “Lodging” does not include the rental or lease of an accommodation for thirty (30) consecutive days or more.

History. Acts 1985, No. 478, § 1; 1985, No. 696, § 1; 1657, § 1; 2007, No. 182, § 31; 2007, No. 464, §§ 1, 2; A.S.A. 1947, § 19-4622; Acts 1999, No. 1313, § 1; 2001, No. 2007, No. 473, § 3; 2023, No. 190, § 3.

26-75-702. Election required.

(a)(1) If a governing body of a city enacts an ordinance levying or increasing a tax under § 26-75-701, the governing body levying or increasing the tax shall submit the question of levying or increasing the tax to the electors of the city at the earliest date permitted for a special election under § 7-11-205.

(2) If the earliest date permitted for a special election under § 7-11-205 is less than seventy-five (75) days from the date the ordinance is enacted under this subsection, the election on the question of the levying or increase of the tax shall be delayed until the next date permitted for a special election under § 7-11-205.

(b) A tax levied or increased under § 26-75-701 shall be levied or increased upon approval of a majority of the qualified electors voting on the question of the levying or increasing of the tax at the special election held under § 7-11-205.

History. Acts 1985, No. 478, § 2; 1985, No. 696, § 2; A.S.A. 1947, § 19-4623; Acts 2023, No. 190, § 4.

26-75-703. City advertising and promotion commission.

(a) Any city levying a tax pursuant to this subchapter in the ordinance levying the tax shall create a city advertising and promotion commission to be composed of seven (7) members as follows:

(1) Four (4) members shall be hotel, motel, or restaurant owners or managers of businesses that collect the tax authorized under this subchapter and one (1) member shall be a gift shop owner or manager, each of whom shall be appointed by the mayor with the approval of the governing body of the city;

(2) One (1) member who is appointed at large by the mayor with the approval of the governing body of the city; and

(3) The remaining two (2) members of the commission shall be the mayor and one (1) member of the governing body of the city selected by the governing body of the city or two (2) members of the governing body of the city as provided in the levying ordinance.

(b)(1) Each member appointed to the advertising and promotion commission shall serve a term of four (4) years and until his or her successor is selected as provided under this section.

(2) The terms shall be staggered so that no more than two (2) members' terms expire each year.

(c)(1) If a vacancy occurs in an appointed position for any reason, the mayor shall appoint a person within sixty (60) days to fill the vacancy.

(2)(A) If the mayor fails to appoint a member to fill a vacancy within sixty (60) days, then the chair of the commission shall appoint a person to fill the vacancy within thirty (30) days, and the appointment shall be approved by a majority of the commissioners.

(B) The governing body of the city shall approve the appointment before a new member appointed under subdivision (c)(2)(A) of this section may act in his or her official capacity.

(3) A new member under this subsection shall serve for the remainder of the unexpired term.

(d) The members shall determine by majority vote who shall serve as chair.

History. Acts 1985, No. 478, § 3; 1985, No. 696, § 3;
A.S.A. 1947, § 19-4624; Acts 2007, No. 464, § 3.

26-75-704. Collection and administration.

(a) From the effective date of the levying ordinance, the tax so levied shall be paid by the persons, firms, and corporations liable therefor and shall be collected by the city which has passed the levying ordinance in the same manner and at the same time as the gross receipts tax levied by §§ 26-75-602 — 26-75-613.

(b) The person paying the tax shall report and remit the tax upon forms provided by the city, and as directed by the city, and the rules, forms of notice, assessment procedures, and the enforcement and collection of the tax under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., so far as practicable shall be applicable with respect to the enforcement and collection of the tax levied pursuant to the authority of this subchapter. However, the administration and enforcement and all actions shall be by and in the name of the city through the proper city officials.

History. Acts 1985, No. 478, § 4; 1985, No. 696, § 4;
A.S.A. 1947, § 19-4625; Acts 2019, No. 315, § 3074.

26-75-705. Use of funds.

All funds derived from the levy of the tax authorized and imposed under the provisions of this subchapter shall be credited to the city advertising and promotion fund and shall be used in accordance with the provisions of §§ 26-75-602 — 26-75-613, it being the intent of this subchapter that the provisions of §§ 26-75-602 — 26-75-613 shall be applicable to the purposes for which the taxes levied under the provisions of this subchapter may be used.

History. Acts 1985, No. 478, § 5; 1985, No. 696, § 5;
A.S.A. 1947, § 19-4626.

SUBCHAPTER 8 — AIRPORT PREMISES

SECTION.

26-75-801. Sales tax on sales made on or near airport premises.

26-75-801. Sales tax on sales made on or near airport premises.

(a) Every city of the first class, city of the second class, and incorporated town by its ordinance may levy a tax of not more than twenty-five dollars (\$25.00) per transaction on all sales of goods and services by businesses located on the premises of a municipal airport or a regional airport located within the city or by businesses located on property adjacent to the airport when such businesses provide goods and services for airplanes in excess of two thousand five hundred dollars (\$2,500).

(b) The tax shall be collected in the manner prescribed by ordinance and shall be used for the maintenance, operation, or construction of the airport facility.

History. Acts 1989, No. 277, § 1.

CHAPTER 80

SCHOOL DISTRICT TAXES

SUBCHAPTER 1 — GENERAL PROVISIONS

SECTION.

26-80-102. Approval of tax at elections.

26-80-102. Approval of tax at elections.

(a)(1) In addition to the uniform rate of tax as provided in § 26-80-101, school districts are authorized to levy by a vote of the qualified electors respectively thereof an annual ad valorem property tax on the assessed value of taxable real, personal, and utility property for the maintenance and operation of schools and the retirement of indebtedness.

(2) The board of directors of each school district shall prepare, approve, and make public not less than sixty (60) days in advance of the annual school election a proposed budget of expenditures deemed necessary to provide for the foregoing purposes, together with a rate of tax levy sufficient to provide the funds therefor, including the rate under any continuing levy for the retirement of indebtedness.

(3)(A) The board of directors shall submit the tax at the annual school election or at such other time as may be provided by law. If a majority of the qualified voters in the school district voting in the school election approve the rate of tax proposed by the board of directors, then the tax at the rate approved shall be collected as provided by law. In the event a majority of the qualified electors voting in the school election disapprove the proposed rate of tax, then the tax shall be collected at the rate approved at the last preceding school election.

(B) However, if the rate approved has been modified pursuant to the uniform rate of tax calculated by the Division of Elementary and Secondary Education, then the tax shall be collected at the modified rate until another rate is approved.

(b) No tax levied pursuant to subsection (a) of this section shall be appropriated to any other district than that for which it is levied.

History. Acts 1931, No. 169, § 139; Pope's Dig., § 11581; A.S.A. 1947, § 80-602; Acts 1997, No. 1300, § 7; 2019, No. 910, § 2405.

Amendments. The 2019 amendment substituted "Divi-

sion of Elementary and Secondary Education" for "Department of Education" in (a)(3)(B).

Cross References. Approval of tax rate by electors, Ark. Const., Art. 14, § 3.

CASE NOTES

ANALYSIS

Annexation of Districts.
Certification of Millage.
Election Ballot.

Annexation of Districts.

Where two small districts, whose electors had exercised their right and fixed the rate of taxation for all property within the districts, were annexed to an existing school district in which other electors had voted for a somewhat higher millage rate, the quorum court's decision to levy school taxes at the rate approved by the electors in each district during the year of merger was reasonable and just; however, the tax rate for years subsequent would be determined at the annual school district elections, in which all the property owners would be entitled to vote. *Atkinson v. El Dorado School Dist. No. 15*, 267 Ark. 212, 590 S.W.2d 5 (1979).

Certification of Millage.

Certificate from board of education to quorum court showing amount of millage voted as "18" was not void for

uncertainty, since such "18" could not represent dollars or cents but mills. *London v. Montgomery*, 211 Ark. 434, 201 S.W.2d 760 (1947). See also *Seligson v. Seegar*, 211 Ark. 871, 202 S.W.2d 970 (1947).

Election Ballot.

School directors are not only charged with the constitutional responsibility of ascertaining the amount of money needed for the construction and operation of schools and the rate of taxation necessary to raise the amount needed; they have the added statutory responsibility of seeing that the necessary rate is placed on the election ballot to be approved or rejected by the voters. *Henry v. Stuart*, 251 Ark. 415, 473 S.W.2d 165 (1971).

Cited: *Altus-Denning Sch. Dist. No. 31 v. Franklin County*, 568 F. Supp. 95 (W.D. Ark. 1983); *Little Rock Sch. Dist. v. Pulaski County Special Sch. Dist. No. 1*, 971 F.2d 160 (8th Cir. 1992).

CHAPTER 82

LOCAL SALES AND USE TAX ECONOMIC DEVELOPMENT PROJECT FUNDING ACT

SECTION.

- 26-82-101. Title.
- 26-82-102. Definitions.
- 26-82-103. Authority to levy tax.
- 26-82-104. Election.
- 26-82-105. Requirements — Effective dates.
- 26-82-106. Abolition of tax.
- 26-82-107. Notice of adoption or abolition of tax.
- 26-82-108. Collection of tax.
- 26-82-109. Administration of tax.
- 26-82-110. Applicability of tax.
- 26-82-111. Disposition of funds.

SECTION.

- 26-82-112. Enforcement and penalties.
- 26-82-113. Trust funds — Administration.
- 26-82-114. Effect of change in city boundaries.
- 26-82-115. Maximum tax limitation. [Effective until October 1, 2025.]
- 26-82-115. Maximum tax limitation. [Effective October 1, 2025.]
- 26-82-116. Reporting.
- 26-82-117. Capital improvement bonds.
- 26-82-118. No effect on existing taxes.
- 26-82-119. Rules.

26-82-101. Title.

This chapter shall be known as the “Local Sales and Use Tax Economic Development Project Funding Act”.

History. Acts 2011, No. 828, § 1.

26-82-102. Definitions.

As used in this chapter:

- (1) “Calendar quarter” means a three-month period that begins on January 1, April 1, July 1, or October 1;
- (2) “City” means any city of the first class, city of the second class, or incorporated town of the state;
- (3) “Develop” means to plan, design, construct, acquire by purchase, acquire by eminent domain, own, operate, rehabilitate, lease as lessor or lessee, enter into lease-purchase agreements with respect to, lend, make grants in respect of, or install or equip any lands, buildings, improvements, machinery, equipment, or other properties of whatever nature, whether real property, personal property, or mixed property;
- (4) “Economic development project” means infrastructure, land, buildings, and other improvements on the land and all other machinery, apparatus, equipment, office facilities, and furnishings that are necessary, suitable, or useful by a sponsor that meets at least three (3) of the following criteria:
 - (A) The sponsor makes an investment of at least ten million dollars (\$10,000,000) in the economic development project;
 - (B) The economic development project creates at least fifty (50) new jobs;
 - (C) The sponsor pays wages to new full-time permanent employees in excess of one hundred ten percent (110%) of the lesser of the state average wage or county average wage for the preceding calendar year;
 - (D) The economic development project is related to a targeted industry as identified in a local, regional, or state strategic plan for economic development;
 - (E) The economic development project has a benefit-to-cost ratio greater than two (2) as determined by the Arkansas Economic Development Commission;
 - (F) The economic development project receives at least a three-fourths vote of support from the city council or quorum court; or
 - (G) The sponsor signs a financial incentive agreement with the commission;
- (5) “Infrastructure” means:
 - (A) Land acquisition;

- (B) Site preparation;
 - (C) Road and highway improvements;
 - (D) Rail spur construction;
 - (E) Water service;
 - (F) Wastewater treatment;
 - (G) Employee training, including without limitation equipment used for the training;
 - (H) Environmental mitigation;
 - (I) Training and research facilities and the necessary equipment for the training and research facilities; and
 - (J) Sponsor-owned electric equipment, including without limitation redundant transformers, redundant service lines, backup generation devices, substation equipment, and similar electric equipment that is owned by a sponsor;
- (6)(A) “Investment” means money expended by a sponsor on project costs directly related to an economic development project.
- (B) “Investment” does not include amounts expended in aid of an economic development project by the state or by a local entity;
- (7) “Levying entity” means a city or a county levying a local sales and use tax under this chapter;
- (8) “Local entity” means a nonprofit corporation, county, city, improvement district, or school district in the state or an agency or instrumentality of a nonprofit corporation, county, city, improvement district, or school district;
- (9) “Local sales and use tax” means a tax levied under this chapter on the gross proceeds or gross receipts derived from sales within a city or county of all items that are subject to taxation under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., or the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.;
- (10) “New full-time permanent employee” means a position or job expected to be held by the employee or employees for at least twenty-six (26) consecutive weeks with an average of at least thirty (30) hours of work per week;
- (11) “New job” means a position for a new full-time permanent employee created at an economic development project;
- (12)(A) “Project costs” means costs associated with the:
- (i) Construction of a new plant or facility, including without limitation land, building, production equipment, or support infrastructure;
 - (ii) Expansion of an established plant or facility by adding to the building, production equipment, or support infrastructure; or
 - (iii) Modernization of an established plant or facility through the replacement of production or processing equipment or support infrastructure that improves efficiency or productivity.
- (B) “Project costs” does not include:
- (i) Expenditures for routine repair and maintenance that do not result in new construction or expansion;
 - (ii) Routine operating expenditures;
 - (iii) Expenditures incurred at multiple facilities; or
 - (iv) The purchase or acquisition of an existing business unless:
 - (a) There is sufficient documentation that the existing business was closed; and
 - (b) The purchase of the existing business will result in the retention of the jobs that would have been lost due to the closure; and
- (13) “Sponsor” means a sole proprietor, partnership, corporation, limited liability company, or association taxable as a business entity, a nonprofit corporation, or a combination of these entities.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, § 17.

26-82-103. Authority to levy tax.

(a)(1) The governing body of a city or county may adopt an ordinance levying a local sales and use tax in the amount of one-eighth of one percent (0.125%), one-fourth of one percent (0.25%), one-half of one percent (0.5%), three-fourths of one percent (0.75%), one percent (1%), or any combination of these amounts to pay project costs of an economic development project located within the levying entity or near the levying entity if still located within the state.

(2)(A) The ordinance may levy multiple local sales and use taxes.

(B) However, there shall not be in effect at any one (1) time local sales and use taxes levied under this chapter at an aggregate rate greater than one percent (1%).

(b) A certified copy of the ordinance authorizing the levy of a local sales and use tax shall be provided to the Secretary of the Department of Finance and Administration as soon as practicable after the adoption of the ordinance.

(c) The local entity shall:

(1) Determine the maximum amount of revenue to be generated by each local sales and use tax levied under this chapter; and

(2) State in the levying ordinance the maximum amount of revenue to be generated by each local sales and use tax levied under this chapter.

(d)(1) The local sales and use tax levied under this chapter shall expire when the maximum amount of revenue determined under subdivision (c)(1) of this section has been collected as determined under this subsection.

(2)(A) Except as otherwise provided in § 26-82-106, to provide for the accomplishment of the administrative duties of the secretary, the local sales and use tax shall terminate on the first day of the calendar quarter after the expiration of ninety (90) days from the date there is filed with the secretary a written statement signed by the chief executive officer of the city or county levying the local sales and use tax and identifying the local sales and use tax to be terminated.

(B) In the statement described in subdivision (d)(2)(A) of this section, the city or county levying the local sales and use tax shall certify that it has received the maximum amount of revenue stated in the levying ordinance.

(3) The chief executive officer of the city or county shall file the certification required under this subsection not later than thirty (30) days after the receipt of the maximum amount of revenue stated in the levying ordinance.

(4) Upon the termination of a local sales and use tax under this subsection, any surplus tax collections that may have accumulated from the local sales and use tax shall be transferred to the general fund of the city or county.

History. Acts 2011, No. 828, § 1; 2019, No. 910, §§ 4467, 4468.

26-82-104. Election.

(a)(1) Within thirty (30) days following the adoption of an ordinance levying a local sales and use tax under this chapter, the levying entity by ordinance shall provide for the calling of a special election on the question of whether to levy the local sales and use tax under §§ 7-11-201 — 7-11-205.

(2) The date for the special election may be the same as the date for the next regular municipal election or county election.

(3) The governing body of the levying entity shall:

(A) Notify the county board of election commissioners that the question has been referred to the vote of the people; and

(B) Submit a copy of the ballot title to the county board of election commissioners.

(4) The election shall be conducted in the manner provided by law for all other municipal and county elections unless otherwise provided in this chapter.

(b)(1) Except as otherwise provided in this subsection, the ballot title to be used at the election shall be in substantially the following form:

“[] FOR adoption of a percent (....%) local sales and use tax within (name of local entity) for economic development projects not to exceed \$.... (maximum amount of revenue to be generated) to be terminated on the first day of the calendar quarter following the expiration of ninety (90) days after (name of local entity) certifies it has received \$.... (maximum amount of revenue to be generated).”

“[] AGAINST adoption of a percent (....%) local sales and use tax within (name of local entity) for economic development projects not to exceed \$.... (maximum amount of revenue to be generated) to be terminated on the first day of the calendar quarter following the expiration of ninety (90) days after (name of local entity) certifies it has received \$.... (maximum amount of revenue to be generated).”

(2)(A) The ordinance levying the local sales and use tax may contain an expiration date.

(B) If the ordinance contains an expiration date under subdivision (b)(2)(A) of this section, the ballot title shall include the expiration date for the levy of the tax.

(C) If the ordinance is adopted in the form described in this subsection, the local sales and use tax shall cease to be levied on the date stated on the ballot.

(D) The expiration date shall be the last day of a calendar quarter.

(E) An expiration date included under this subsection does not extend the effective period of the local sales and use tax beyond the expiration date provided under § 26-82-103.

(3)(A)(i) Except as provided in § 26-82-103, the governing body of the levying entity may refer to the voters a change in the expiration date for the local sales and use tax approved by the voters to extend the levy of the local sales and use tax beyond the expiration date previously approved.

(ii) The proposed expiration date shall be the last day of a calendar quarter.

(B) If the governing body of the levying entity refers to the voters a change in the expiration date for an existing local sales and use tax levied under this chapter, the governing body shall:

(i) Notify the county board of election commissioners that the measure has been referred to the voters; and

(ii) Submit a copy of the ballot title to the county board of election commissioners.

(C)(i) An election to change the expiration date for a local sales and use tax levied under this chapter shall be conducted in the manner provided by law for all other municipal and county elections.

(ii) The results of the election under this subsection shall be certified, proclaimed, and subject to challenge under § 26-82-105.

(D)(i) To extend the local sales and use tax levied under this chapter to a new expiration date, the levying entity shall notify the Secretary of the Department of Finance and Administration of the new expiration date approved by the voters:

(a) After publication of the proclamation has occurred; and

(b) At least ninety (90) days before the current expiration date of the local sales and use tax.

(ii) The local sales and use tax extended under this subdivision (b)(3) shall continue to be levied until the new expiration date.

(iii)(a) At least one hundred twenty (120) days before the expiration of a sales and use tax levied under this subchapter, the Department of Finance and Administration shall notify the levying entity concerning the expiration of the sales and use tax.

(b) The notification required under subdivision (b)(3)(D)(iii)(a) of this section shall state the:

(1) Current expiration date of the sales and use tax; and

(2) Specific requirements under this subchapter for extending the sales and use tax.

(E)(i) If the voters do not approve a change in the expiration date for the local sales and use tax levied under this chapter, the local sales and use tax shall continue to be collected until the expiration date previously approved by the voters.

(ii) However, the expiration date shall not be extended beyond the expiration date provided under § 26-82-103.

(F) An election to change the expiration date for a local sales and use tax levied under this chapter is not an election on the levy of the sales and use tax.

History. Acts 2011, No. 828, § 1; 2019, No. 910, § 4469; 2025, No. 720, § 6.

26-82-105. Requirements — Effective dates.

To provide time to prepare for an election required under this chapter and to provide time for the Secretary of the Department of Finance and Administration to accomplish his or her duties, the following requirements apply to an ordinance levying a local sales and use tax under this chapter:

(1)(A) The ordinance levying the local sales and use tax under this chapter is not effective until after the election under § 26-82-104 has been held.

(B)(i) Following the election, the mayor or the county judge of the levying entity shall issue his or her proclamation of the results of the election with reference to the local sales and use tax.

(ii) The proclamation described in subdivision (1)(B)(i) of this section shall be published one (1) time in a newspaper having general circulation within the levying entity.

(C) A person desiring to challenge the results of an election as published in the proclamation shall file the challenge in the circuit court of the county in which the levying entity is located within thirty (30) days of the date of publication of the proclamation;

(2) The local sales and use tax shall not go into effect until the governing body of the levying entity has adopted a written plan stating the following:

(A) A description of the economic development project to be financed by the revenues from the local sales and use tax;

(B) A description of the economic impact and the cost-benefit analysis of the proposed economic development project;

(C) An estimate of the amount of revenue from the local sales and use tax necessary to defray costs for the economic development project and a budget of the costs;

(D)(i) A certification by the mayor or county judge of the levying entity that each economic development project to benefit from the expenditure of the revenues from the local sales and use tax consists of an investment in the region that satisfies at least three (3) of the criteria in § 26-82-102(4).

(ii) The certification described in subdivision (2)(D)(i) of this section shall state with specificity which criteria under § 26-82-102(4) the economic development project satisfies; and

(E) A tentative time schedule stating the period of time during which the sum requested is to be expended;

(3)(A) As directed by the governing body of the levying entity and after the written plan has been approved by the governing body of the levying entity under subdivision (2) of this section, the mayor or county judge of the levying entity shall notify the secretary of the rate change:

(i) After publication of the proclamation has occurred; and

(ii)(a) Ninety (90) days before the effective date of the local sales and use tax.

(b) The effective date of the local sales and use tax shall be the first day of a calendar quarter.

(B) The ordinance shall become effective no earlier than the first day of the calendar quarter after the:

(i) Secretary gives to sellers a minimum notice period of sixty (60) days; and

(ii) Expiration of the full thirty-day period of challenge under subdivision (1) of this section.

(C) The rate change on a purchase from a printed catalog in which the purchaser computed the tax based upon local tax rates published in the catalog is effective on the first day of a calendar quarter after a minimum of one hundred twenty (120) days' notice by the secretary to the sellers; and

(4) If an election contest occurs under subdivision (1) of this section, the local sales and use tax shall be collected under this chapter unless enjoined by a court order.

History. Acts 2011, No. 828, § 1; 2019, No. 910, §§ 4470-4472.

26-82-106. Abolition of tax.

(a)(1) Except under subsection (b) of this section, the levying entity may abolish all or a portion of the local sales and use tax authorized under this chapter by:

(A) A roll call vote of two-thirds ($\frac{2}{3}$) of all members elected to the governing body of the levying entity, excluding the mayor and county judge, if the governing body of the levying entity has determined that the purposes of the local sales and use tax cannot be fulfilled or cannot continue to be fulfilled; or

(B) An election called by:

(i) Action of the governing body of the levying entity; or

(ii) A petition of the qualified voters in the levying entity.

(2) A petition of the qualified voters and the calling and holding of an election concerning the abolition of the local sales and use tax under this subsection are governed by the initiative procedures in Arkansas Constitution, Article 5, § 1, and any ordinances of the levying entity governing initiative procedures.

(3) The governing body of the levying entity may call for an election under this subsection subject to the same procedures stated in this chapter for the calling of the initial election.

(4)(A) The ballot title for use in an election under this subsection shall be in substantially the following form:

“[] FOR abolition of the percent (....%) local sales and use tax within
(name of local entity) for economic development projects.”

“[] AGAINST abolition of the percent (....%) local sales and use tax within
(name of local entity) for economic development projects.”

(B) However, a ballot title that contains a question for qualified voters on whether to continue the levy of a local sales and use tax complies with this subdivision (a)(4).

(b)(1) In a levying entity in which a local sales and use tax has been adopted under this chapter and all or a portion is pledged to secure the payment of bonds, the portion of the local sales and use tax pledged to the payment of bonds shall not be repealed, abolished, or reduced while the bonds are outstanding.

(2) The bonds are not outstanding to the extent that sufficient tax revenues have been set aside to pay the bonds when due.

(c) The effective date of an affirmative vote of the qualified voters to abolish the local sales and use tax under subsection (a) of this section shall be the first day of the calendar quarter after the expiration of ninety (90) days from the date of publication of the election proclamation.

(d)(1) The effective date of an affirmative vote by the governing body of the levying entity to abolish the local sales and use tax under subsection (a) of this section shall be on the first day of the calendar quarter after the expiration of ninety (90) days from the date a written statement signed by the mayor or county judge of the levying entity abolishing the tax is filed with the Secretary of the Department of Finance and Administration certifying that the governing body of the levying entity has adopted an ordinance abolishing the local sales and use tax.

(2) A copy of the ordinance abolishing the local sales and use tax shall be attached to the certificate.

History. Acts 2011, No. 828, § 1; 2019, No. 910, § 4473.

26-82-107. Notice of adoption or abolition of tax.

No later than ten (10) days following each of the events stated in the ordinance with reference to the procedure for the adoption or abolition of the local sales and use tax and the effective dates of the action under this chapter, the clerk of the levying entity shall notify the Secretary of the Department of Finance and Administration of the event.

History. Acts 2011, No. 828, § 1; 2019, No. 910, § 4474.

26-82-108. Collection of tax.

(a)(1)(A) In each levying entity in which a local sales and use tax has been levied under this chapter, each seller shall add the tax imposed by the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq., and the tax imposed under this chapter to the sale price of the product or service, and when added, the combined tax shall:

- (i) Constitute a part of the price;
- (ii) Be a debt of the purchaser to the seller until paid; and
- (iii) Be recoverable at law in the same manner as the purchase price.

(B) When the sale price in the levying entity involves a fraction of a dollar, the two (2) combined taxes shall be added to the sale price.

(C) A seller is entitled to the same discount with respect to tax remitted under this chapter as is authorized for the collection and remission of gross receipts taxes to the state under § 26-52-503.

(2) If the General Assembly or the electors of the state increase or decrease the rate of the state gross receipts tax, the combined rate of the state gross receipts tax and the sales and use tax by the levying entity shall be the sum of the two (2) rates.

(b) The local sales and use tax levied under this chapter on new and used motor vehicles shall be collected by the Secretary of the Department of Finance and Administration directly from the purchaser under § 26-52-510.

History. Acts 2011, No. 828, § 1; 2019, No. 910, § 4475.

26-82-109. Administration of tax.

(a) On and after the effective date of a local sales and use tax imposed under this chapter, the Secretary of the Department of Finance and Administration shall perform all functions incidental to the administration, collection, enforcement, and operation of the local sales and use tax.

(b) In addition to the state gross receipts tax and compensating tax, the secretary shall collect the additional tax under this chapter on the receipts from the sale at retail or on the sale price or lease or rental price on the storage, use, distribution, or other consumption of all taxable items and services subject to the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(c)(1) The local sales and use tax imposed under this chapter and the tax imposed under the gross receipts tax and compensating tax shall be collected together and reported upon the forms and under the administrative rules that are prescribed by the secretary and that are not inconsistent with this chapter.

(2) Each vendor who is liable for one (1) or more sales or use taxes levied under this chapter, the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq., shall report a combined city and county sales tax and a combined city and county use tax on his or her sales and use tax report.

(3) The combined city sales tax or county sales tax is equal to the sum of all sales taxes levied by a city or county under this chapter and the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq.

(4) The combined city or county use tax is equal to the sum of all use taxes levied by a city or county under this chapter and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(5) This subsection applies only to a tax collected by the secretary.

(d) On and after the effective date of an ordinance to abolish a local sales and use tax in any levying entity, the secretary shall comply with the ordinance under this chapter.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, § 18; 2019, No. 910, §§ 4476-4479.

26-82-110. Applicability of tax.

(a) A local sales and use tax levied under this chapter applies to sales of items and services sold by a business and shall be administered under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., and the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(b) When a direct pay permit holder purchases tangible personal property or taxable services either from an Arkansas vendor or an out-of-state vendor for use, storage, consumption, or distribution in Arkansas, the permit holder shall accrue and remit the local sales and use tax, if any, under the sourcing rules in §§ 26-52-521 and 26-52-522.

History. Acts 2011, No. 828, § 1.

26-82-111. Disposition of funds.

(a)(1)(A) The Treasurer of State shall transmit to the treasurer or financial officer of each levying entity the levying entity's share of local sales and use taxes collected under this chapter.

(B) Transmittals required under this chapter shall be made at least monthly in each state fiscal year.

(C) Funds transmitted under this chapter may be used by the levying entity for any purpose authorized under this chapter.

(2) Before transmitting the funds, the Treasurer of State shall deduct three percent (3%) of the sum collected from each levying entity during the period as a charge by the state for its services specified in this chapter, and the amount deducted shall be deposited by the Treasurer of State to the credit of the account of the Constitutional Officers Fund and the State Central Services Fund.

(b)(1)(A) The Treasurer of State may retain in the suspense account of any levying entity a portion of the levying entity's share of the local sales and use tax collected under this chapter.

(B) A balance retained in the suspense account shall not exceed five percent (5%) of the amount remitted to the levying entity.

(2) The Treasurer of State may make refunds from the suspense account of any levying entity:

(A) For overpayments made to the account after the refunds have been approved by the Secretary of the Department of Finance and Administration; and

(B) To redeem dishonored checks and drafts deposited to the credit of the suspense account of the levying entity.

(c)(1) When any city or county adopts a local sales and use tax and then abolishes the tax, the Treasurer of State shall retain in the suspense account of the levying entity for a period of one (1) year five percent (5%) of the final remittance to the levying entity at the time of termination of collection of the tax within the levying entity to cover possible refunds for overpayment of the tax and to redeem dishonored checks and drafts deposited to the credit of the account.

(2)(A) After one (1) year has elapsed after the effective date of abolishment of the local sales and use tax, the Treasurer of State shall:

(i) Remit the balance of the account to the levying entity; and

(ii) Close the account.

(B) A refund shall not be allowed after the one-year period under subdivision (c)(2)(A) of this section has lapsed and the account is closed.

History. Acts 2011, No. 828, § 1; 2019, No. 910, § 4480.

26-82-112. Enforcement and penalties.

(a) The procedures and penalties used by the Secretary of the Department of Finance and Administration in enforcing a local sales and use tax imposed under this chapter shall be the same as for the state gross receipts tax and compensating tax unless otherwise provided in this chapter.

(b)(1) When property is seized by the secretary under any statute authorizing seizure of property of a taxpayer who is delinquent in payment of the taxes imposed by the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., or the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq., and when the taxpayer is also delinquent in payment of any local sales and use tax imposed under this chapter, the secretary shall sell sufficient property to pay the delinquent local sales and use taxes and penalties due to any levying entity under this chapter in addition to the amount required to pay any taxes due to the state under the Arkansas Gross Receipts Act of 1941, § 26-52-101 et seq., or the Arkansas Compensating Tax Act of 1949, § 26-53-101 et seq.

(2) The proceeds of a sale under subdivision (b)(1) of this section shall be applied first to all sums due to the state, and the remainder, if any, shall be applied to all sums due to the levying entity.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, § 19; 2019, No. 910, §§ 4481, 4482.

26-82-113. Trust funds — Administration.

(a)(1)(A) Money reported as local sales and use taxes that was collected in local taxing jurisdictions that is not immediately identifiable and money collected in local jurisdictions that do not have a local sales and use tax shall be deposited into the Identification Pending Trust Fund for Local Sales and Use Taxes.

(B) When a local tax jurisdiction is identified for money that has been deposited into the Identification Pending Trust Fund for Local Sales and Use Taxes, the money shall be transferred to the Local Sales and Use Tax Trust Fund.

(C) If the total amount in the Identification Pending Trust Fund for Local Sales and Use Taxes exceeds fifty thousand dollars (\$50,000), the Treasurer of State shall transfer any amount in excess of fifty thousand dollars (\$50,000) to general revenues.

(2)(A)(i) Money reported as local sales and use taxes that was collected by an out-of-state vendor and that is not identifiable shall be deposited into the Identification Pending Trust Fund for Local Sales and Use Taxes.

(ii) Any funds deposited under subdivision (a)(2)(A)(i) of this section shall not be included for computation of transfer to general revenue in subdivision (a)(1) of this section.

(B) The Treasurer of State shall distribute unidentified local sales and use taxes collected by out-of-state vendors to the county treasurers and city treasurers as determined by their proportionate share of distribution from the Local Sales and Use Tax Trust Fund on a monthly basis.

(b)(1) The Treasurer of State shall review the flow of moneys through the Local Sales and Use Tax Trust Fund in the State Treasury for the purpose of estimating the amount of the moneys that may be surplus to the immediate requirements of the Local Sales and Use Tax Trust Fund.

(2)(A) After making an estimate under subdivision (b)(1) of this section, the Treasurer of State shall invest the estimated surplus amount in certificates of deposit issued by any financial institution located in the state.

(B) All interest income derived from the certificates of deposit shall be credited as trust fund income to the Local Sales and Use Tax Trust Fund.

(3) The Treasurer of State shall transmit monthly to the county treasurers and city treasurers their proportionate share of the interest derived from the investment of the Local Sales and Use Tax Trust Fund under this subsection.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, § 20.

26-82-114. Effect of change in city boundaries.

If a city in which a local sales and use tax has been imposed under this chapter changes or alters its boundaries, a tax imposed under this chapter shall be effective in the added territory or abolished in the detached territory on the first day of the first calendar month following the expiration of thirty (30) days from the date that the annexation or detachment becomes effective.

History. Acts 2011, No. 828, § 1.

26-82-115. Maximum tax limitation. [Effective until October 1, 2025.]

(a) A sales and use tax levied under this chapter shall be levied and collected only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price on the sale of:

- (1) Motor vehicles;
- (2) Aircraft;
- (3) Watercraft;
- (4) Modular homes;
- (5) Manufactured homes; or
- (6) Mobile homes.

(b)(1)(A) For a taxpayer not subject to the levy of a use tax on taxable services or tangible personal property brought into the state for storage until the tangible personal property is subsequently initially used in the state, the use tax portion of the local sales and use tax authorized under this chapter shall be computed on each purchase of the tangible personal property by the taxpayer as if all the tangible personal property was subject upon purchase to the use tax portion of the local sales and use tax.

(B) However, the use tax portion of the local sales and use tax authorized under this chapter shall be computed only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price on the sale of:

- (i) Motor vehicles;
- (ii) Aircraft;
- (iii) Watercraft;
- (iv) Modular homes;
- (v) Manufactured homes; or
- (vi) Mobile homes.

(2) The use tax portion of the local sales and use tax computed under subdivision (b)(1) of this section shall be aggregated on a monthly basis, and the aggregate monthly amount shall be divided by the sum of the total purchases of the tangible personal property on which the use tax portion of the local sales and use tax is computed, and the quotient shall be multiplied by the amount of the taxpayer's tangible personal property subsequently initially used and subject to levy of the use tax portion of the local sales and use tax within the city or county during the month for which the monthly aggregate tax figure was computed, and the product shall be the amount of the use tax portion of the local sales and use tax liability for the taxpayer for the month computed.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, §§ 21, 22.

26-82-115. Maximum tax limitation. [Effective October 1, 2025.]

(a)(1) A sales and use tax levied under this chapter shall be levied and collected only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price on the sale of:

- (A) Motor vehicles;
- (B) Aircraft;
- (C) Watercraft;

- (D) Modular homes;
- (E) Manufactured homes; or
- (F) Mobile homes.

(2) If a sale or lease subject to subdivision (a)(1) of this section involves periodic payments, the applicable sales and use tax shall be:

(A) For the purpose of determining the application of the limitation provided under subdivision (a)(1) of this section, applied to the aggregate amount of all periodic payments due on the sale or lease; and

(B) Either:

(i) Collected on the first periodic payment due on the sale or lease; or

(ii) Evenly distributed and collected on each separate periodic payment due on the sale or lease.

(b)(1)(A) For a taxpayer not subject to the levy of a use tax on taxable services or tangible personal property brought into the state for storage until the tangible personal property is subsequently initially used in the state, the use tax portion of the local sales and use tax authorized under this chapter shall be computed on each purchase of the tangible personal property by the taxpayer as if all the tangible personal property was subject upon purchase to the use tax portion of the local sales and use tax.

(B) However, the use tax portion of the local sales and use tax authorized under this chapter shall be computed only on the first two thousand five hundred dollars (\$2,500) of gross receipts, gross proceeds, or sales price on the sale of:

- (i) Motor vehicles;
- (ii) Aircraft;
- (iii) Watercraft;
- (iv) Modular homes;
- (v) Manufactured homes; or
- (vi) Mobile homes.

(2) The use tax portion of the local sales and use tax computed under subdivision (b)(1) of this section shall be aggregated on a monthly basis, and the aggregate monthly amount shall be divided by the sum of the total purchases of the tangible personal property on which the use tax portion of the local sales and use tax is computed, and the quotient shall be multiplied by the amount of the taxpayer's tangible personal property subsequently initially used and subject to levy of the use tax portion of the local sales and use tax within the city or county during the month for which the monthly aggregate tax figure was computed, and the product shall be the amount of the use tax portion of the local sales and use tax liability for the taxpayer for the month computed.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, §§ 21, 22; 2025, No. 1013, § 13.

26-82-116. Reporting.

Vendors collecting, reporting, and remitting a local sales and use tax levied under this chapter shall collect, report, and pay the local sales and use tax in the same manner and at the same time as is prescribed by law for the collection, reporting, and payment of other local sales and use taxes.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, § 23.

26-82-117. Capital improvement bonds.

(a) All or a specific portion of the local sales and use tax under this chapter may be pledged to bonds issued under §§ 14-164-301 — 14-164-340.

(b) If pledged under the Local Government Bond Act of 1985, § 14-164-301 et seq., §§ 14-164-337 and 14-164-339 apply to the disposition of the revenues from local sales and use tax so pledged.

(c) The local sales and use tax may not be repealed, abolished, or reduced while any bonds secured by a pledge of the local sales and use tax are outstanding.

History. Acts 2011, No. 828, § 1.

26-82-118. No effect on existing taxes.

The imposition of a local sales and use tax under this chapter does not affect any existing local sales and use taxes levied by a city or county for economic development purposes.

History. Acts 2011, No. 828, § 1.

26-82-119. Rules.

The Secretary of the Department of Finance and Administration may promulgate reasonable rules to implement the enforcement, administration, and collection of a local sales and use tax authorized in this chapter.

History. Acts 2011, No. 828, § 1; 2013, No. 1135, § 24; 2019, No. 910, § 4483.

CONSTITUTION OF THE STATE OF ARKANSAS OF 1874

ARTICLE.

PREAMBLE

1. BOUNDARIES
2. DECLARATION OF RIGHTS
3. FRANCHISE AND ELECTIONS
4. DEPARTMENTS
5. LEGISLATIVE DEPARTMENT
6. EXECUTIVE DEPARTMENT
7. JUDICIAL DEPARTMENT
8. APPORTIONMENT — MEMBERSHIP IN GENERAL ASSEMBLY
9. EXEMPTION
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ARTICLE.

12. MUNICIPAL AND PRIVATE CORPORATIONS
 13. COUNTIES, COUNTY SEATS AND COUNTY LINES
 14. EDUCATION
 15. IMPEACHMENT AND ADDRESS
 16. FINANCE AND TAXATION
 17. RAILROADS, CANALS AND TURNPIKES
 18. JUDICIAL CIRCUITS
 19. MISCELLANEOUS PROVISIONS
 20. “HOLFORD” BONDS NOT TO BE PAID
- SCHEDULE.
PROCLAMATION

Publisher's Notes. This Constitution was ratified by the people October 13, 1874, and its adoption was proclaimed October 30, 1874. See Proclamation by state board of election supervisors, following Schedule to Constitution.

A constitutional convention was held in accordance with

Acts 1977 (1st Ex. Sess.), No. 3, as amended by Acts 1979, No. 622, and a new constitution was proposed. The proposed constitution was defeated at the general election held November 4, 1980. Returns: For 276,257; Against 464,210.

PREAMBLE

We, the People of the State of Arkansas, grateful to Almighty God for the privilege of choosing our own form of government; for our civil and religious liberty; and desiring to perpetuate its blessings, and secure the same to our selves and posterity; do ordain and establish this Constitution.

ARTICLE 1

BOUNDARIES

We do declare and establish, ratify and confirm, the following as the permanent boundaries of the State of Arkansas, that is to say: Beginning at the middle of the main channel of the Mississippi River, on the parallel of thirty-six degrees of north latitude, running thence west with said parallel of latitude to the middle of the main channel of the St. Francis River; thence up the main channel of said last-named river to the parallel of thirty-six degrees thirty minutes of north latitude; thence west with the southern boundary line of the State of Missouri to the southwest corner of said last-named state; thence to be bounded on the west to the north bank of Red River, as by act of Congress and treaties existing January 1, 1837, defining the western limits of the Territory of Arkansas, and to be bounded across and south of Red River by the boundary line of the State of Texas as far as to the northwest corner of the State of Louisiana; thence easterly with the northern boundary line of said last-named State to the middle of the main channel of the Mississippi River; thence up the middle of the main channel of said last-named river, including an island in said river known as “Belle Point Island,” and all other land originally surveyed and included as a part of the Territory or State of Arkansas, to the thirty-sixth degree of north latitude, the place of beginning.

SEAT OF GOVERNMENT

The seat of government of the state of Arkansas shall be and remain at Little Rock, where it is now established.

ARTICLE 2**DECLARATION OF RIGHTS**

SECTION.

1. Source of power.
2. Freedom and independence.
3. Equality before the law.
4. Right of assembly and of petition.
5. Right to bear arms.
6. Liberty of the press and of speech — Libel.
7. Jury trial — Right to — Waiver — Civil cases — Nine jurors agreeing.
8. Criminal charges — Self-incrimination — Due process — Double jeopardy — Bail.
9. Excessive bail or punishment prohibited — Witnesses — Detention.
10. Right of accused enumerated — Change of venue.
11. Habeas corpus.
12. Suspension of laws.
13. Redress of wrongs.
14. Treason.
15. Unreasonable searches and seizures.

SECTION.

16. Imprisonment for debt.
17. Attainder — Ex post facto laws.
18. Privileges and immunities — Equality.
19. Perpetuities and monopolies.
20. Resident aliens — Descent of property.
21. Life, liberty and property — Banishment prohibited.
22. Property rights — Taking without just compensation prohibited.
23. Eminent domain and taxation.
24. Religious liberty.
25. Protection of religion.
26. Religious tests.
27. Slavery — Standing armies — Military subordinate to civil power.
28. Tenure of lands.
29. Enumeration of rights of people not exclusive of other rights — Protection against encroachment.

§ 1. Source of power.

All political power is inherent in the people and government is instituted for their protection, security and benefit; and they have the right to alter, reform or abolish the same, in such manner as they may think proper.

§ 2. Freedom and independence.

All men are created equally free and independent, and have certain inherent and inalienable rights; amongst which are those of enjoying and defending life and liberty; of acquiring, possessing and protecting property, and reputation; and of pursuing their own happiness. To secure these rights governments are instituted among men, deriving their just powers from the consent of the governed.

§ 3. Equality before the law.

The equality of all persons before the law is recognized, and shall ever remain inviolate; nor shall any citizen ever be deprived of any right, privilege or immunity; nor exempted from any burden or duty, on account of race, color or previous condition.

§ 4. Right of assembly and of petition.

The right of the people peaceably to assemble, to consult for the common good; and to petition, by address or remonstrance, the government, or any department thereof, shall never be abridged.

§ 5. Right to bear arms.

The citizens of this State shall have the right to keep and bear arms, for their common defense.

§ 6. Liberty of the press and of speech — Libel.

The liberty of the press shall forever remain inviolate. The free communication of thoughts and opinions, is one of the invaluable rights of man; and all persons may freely write and publish their

sentiments on all subjects, being responsible for the abuse of such right. In all criminal prosecutions for libel, the truth may be given in evidence to the jury; and, if it shall appear to the jury that the matter charged as libelous is true, and was published with good motives and for justifiable ends, the party charged shall be acquitted.

§ 7. Jury trial — Right to — Waiver — Civil cases — Nine jurors agreeing.

The right of trial by jury shall remain inviolate, and shall extend to all cases at law, without regard to the amount in controversy; but a jury trial may be waived by the parties in all cases in the manner prescribed by law; and in all jury trials in civil cases, where as many as nine of the jurors agree upon a verdict, the verdict so agreed upon shall be returned as the verdict of such jury, provided, however, that where a verdict is returned by less than twelve jurors all the jurors consenting to such verdict shall sign the same. [As amended by Const. Amend. 16.]

Publisher's Notes. Before amendment, this section read: "The right of trial by jury shall remain inviolate, and shall extend to all cases at law, without regard to the amount in controversy; but a jury trial may be waived by the parties in all cases, in the manner prescribed by law."

§ 8. Criminal charges — Self-incrimination — Due process — Double jeopardy — Bail.

No person shall be held to answer a criminal charge unless on the presentment or indictment of a grand jury, except in cases of impeachment or cases such as the General Assembly shall make cognizable by justices of the peace, and courts of similar jurisdiction; or cases arising in the army and navy of the United States; or in the militia, when in actual service in time of war or public danger; and no person, for the same offense, shall be twice put in jeopardy of life or liberty; but if, in any criminal prosecution, the jury be divided in opinion, the court before which the trial shall be had, may, in its discretion, discharge the jury, and commit or bail the accused for trial, at the same or the next term of said court; nor shall any person be compelled, in any criminal case, to be a witness against himself; nor be deprived of life, liberty or property, without due process of law. All persons shall, before conviction, be bailable by sufficient sureties, except for capital offenses, when the proof is evident or the presumption great.

§ 9. Excessive bail or punishment prohibited — Witnesses — Detention.

Excessive bail shall not be required; nor shall excessive fines be imposed; nor shall cruel or unusual punishments be inflicted; nor witnesses be unreasonably detained.

§ 10. Right of accused enumerated — Change of venue.

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial by an impartial jury of the county in which the crime shall have been committed; provided, that the venue may be changed to any other county of the judicial district in which the indictment is found, upon the application of the accused, in such manner as now is, or may be prescribed by law; and to be informed of the nature and cause of the accusation against him, and to have a copy thereof; and to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to be heard by himself and his counsel.

§ 11. Habeas corpus.

The privilege of the writ of habeas corpus shall not be suspended; except by the General Assembly, in case of rebellion, insurrection or invasion, when the public safety may require it.

§ 12. Suspension of laws.

No power of suspending or setting aside the law or laws of the State, shall ever be exercised, except by the General Assembly.

§ 13. Redress of wrongs.

Every person is entitled to a certain remedy in the laws for all injuries or wrongs he may receive in his person, property or character; he ought to obtain justice freely, and without purchase; completely, and without denial; promptly and without delay; conformably to the laws.

§ 14. Treason.

Treason against the State shall only consist in levying and making war against the same, or in adhering to its enemies, giving them aid and comfort. No person shall be convicted of treason unless on the testimony of two witnesses to the same overt act, or on confession in open court.

§ 15. Unreasonable searches and seizures.

The right of the people of this State to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated; and no warrant shall issue, except upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the person or thing to be seized.

§ 16. Imprisonment for debt.

No person shall be imprisoned for debt in any civil action, on mesne or final process, unless in cases of fraud.

§ 17. Attainder — Ex post facto laws.

No bill of attainder, ex post facto law, or law impairing the obligation of contracts shall ever be passed; and no conviction shall work corruption of blood or forfeiture of estate.

§ 18. Privileges and immunities — Equality.

The General Assembly shall not grant to any citizen, or class of citizens, privileges or immunities which, upon the same terms, shall not equally belong to all citizens.

§ 19. Perpetuities and monopolies.

Perpetuities and monopolies are contrary to the genius of a republic, and shall not be allowed; nor shall any hereditary emoluments, privileges or honors ever be granted or conferred in this State.

§ 20. Resident aliens — Descent of property.

No distinction shall ever be made by law, between resident aliens and citizens, in regard to the possession, enjoyment or descent of property.

§ 21. Life, liberty and property — Banishment prohibited.

No person shall be taken, or imprisoned, or disseized of his estate, freehold, liberties or privileges; or outlawed, or in any manner destroyed, or deprived of his life, liberty or property; except by the judgment of his peers, or the law of the land; nor shall any person, under any circumstances, be exiled from the State.

§ 22. Property rights — Taking without just compensation prohibited.

The right of property is before and higher than any constitutional sanction; and private property shall not be taken, appropriated or damaged for public use, without just compensation therefor.

§ 23. Eminent domain and taxation.

The State's ancient right of eminent domain and of taxation, is herein fully and expressly conceded; and the General Assembly may delegate the taxing power, with the necessary restriction, to the State's subordinate political and municipal corporations, to the extent of providing for their existence, maintenance and well being, but no further.

§ 24. Religious liberty.

All men have a natural and indefeasible right to worship Almighty God according to the dictates of their own consciences; no man can, of right, be compelled to attend, erect, or support any place of worship; or to maintain any ministry against his consent. No human authority can, in any case or manner whatsoever, control or interfere with the right of conscience; and no preference shall ever be given, by law, to any religious establishment, denomination or mode of worship, above any other.

§ 25. Protection of religion.

Religion, morality and knowledge being essential to good government, the General Assembly shall enact suitable laws to protect every religious denomination in the peaceable enjoyment of its own mode of public worship.

§ 26. Religious tests.

No religious test shall ever be required of any person as a qualification to vote or hold office; nor shall any person be rendered incompetent to be a witness on account of his religious belief; but nothing herein shall be construed to dispense with oaths or affirmations.

§ 27. Slavery — Standing armies — Military subordinate to civil power.

There shall be no slavery in this State, nor involuntary servitude, except as a punishment for crime. No standing army shall be kept in time of peace; the military shall, at all times, be in strict subordination to the civil power; and no soldier shall be quartered in any house, or on any premises, without the consent of the owner, in time of peace; nor in time of war, except in a manner prescribed by law.

§ 28. Tenure of lands.

All lands in this State are declared to be allodial; and feudal tenures of every description, with all their incidents, are prohibited.

§ 29. Enumeration of rights of people not exclusive of other rights — Protection against encroachment.

This enumeration of rights shall not be construed to deny or disparage others retained by the people; and to guard against any encroachments on the rights herein retained, or any transgression of any of the higher powers herein delegated, we declare that everything in this article is excepted out of the general powers of the government; and shall forever remain inviolate; and that all laws contrary thereto, or to the other provisions herein contained, shall be void.

ARTICLE 3**FRANCHISE AND ELECTIONS****SECTION.**

1. Qualifications of electors.
2. Right of suffrage.

SECTION.

3. [Repealed.]
4. Privilege of electors from arrest.

SECTION.

5. [Repealed.]
6. Violation of election laws — Penalty.
7. Soldiers and sailors — Residence — Voting rights.
8. Time of holding elections.
9. Testimony in election contest — Self-incrimination.

SECTION.

10. Election officers.
11. Votes to be counted.
12. Elections by representative — Viva voce vote.
13. Procedures for elections with one candidate.

§ 1. Qualifications of electors.

(a) Except as otherwise provided by this Constitution, any person may vote in an election in this state who is:

- (1) A citizen of the United States;
- (2) A resident of the State of Arkansas;
- (3) At least eighteen (18) years of age; and
- (4) Lawfully registered to vote in the election.

(b)(1) In addition to the qualifications under subsection (a) of this section, the General Assembly shall provide by law that a voter shall:

(A) Present valid photographic identification before receiving a ballot to vote in person; and

(B) Enclose a copy of valid photographic identification with his or her ballot when voting by absentee ballot.

(2) The General Assembly shall establish by law the types of photographic identification that a person may present to comply with subdivision (b)(1) of this section.

(c) The State of Arkansas shall issue photographic identification at no charge to an eligible voter who does not have a form of photographic identification meeting the requirements of the law enacted by the General Assembly under this section.

(d)(1)(A) A voter unable to present valid photographic identification when voting in person shall be permitted to vote a provisional ballot.

(B) An absentee ballot that is not accompanied by a copy of valid photographic identification shall be considered a provisional ballot.

(2) A provisional ballot under subdivision (d)(1) of this section shall be counted only if the voter subsequently certifies the provisional ballot in a manner provided by law.

(e)(1) The General Assembly shall implement the provisions of this amendment by law.

(2) The General Assembly may provide by law for exceptions to the requirement that a voter:

(A) Present valid photographic identification before receiving a ballot to vote in person; and

(B) Enclose a copy of valid photographic identification with his or her ballot when voting by absentee ballot.

(f) A voter meeting the requirements of this section also shall comply with all additional laws regulating elections necessary for his or her vote to be counted. [As amended by Const. Amend. 8; Const. Amend. 85; Const. Amend. 99.]

Publisher's Notes. Before amendment by Amend. 8, this section read: "Every male citizen of the United States, or male person who has declared his intention of becoming a citizen of the same, of the age of twenty-one years, who has resided in the State twelve months, and in the county six months, and in the voting precinct or ward one month, next preceding any election, where he may propose to vote, shall be entitled to vote at all elections by the people."

The former provision of this section requiring that a poll tax receipt be presented prior to registration and voting was repealed by Ark. Const. Amend. 51, § 17.

Ark. Const. Amend. 85, which amended this section, was proposed by S.J.R. 4 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 714,128 for and 267,326 against.

Before amendment by Amend. 85, this section read:

"§ 1. Qualifications of electors — Equal suffrage — Poll tax.

"Every citizen of the United States of the age of twenty-one years, who has resided in the State twelve months, in the county six months, and in the precinct, town or ward one month, next preceding any election at which they may propose to vote, except such persons as may for the commission of some felony be deprived of the right to vote by law passed by the General Assembly, and who shall exhibit a poll tax receipt or other evidence that they have paid their poll tax at the time of collecting taxes next preceding such election, shall be allowed to vote at any election in the State of Arkansas, provided, that persons who make satisfactory proof that they have attained the age of twenty-one years since the time of assessing taxes next preceding said election and possess the other necessary qualifications, shall be permitted to vote; and, provided, further, that the said tax receipt shall be so marked by dated stamp or written endorsement by the judges of election to whom it may be first presented as to prevent the

holder thereof from voting more than once at any election. It is declared to be the purpose of this amendment to deny the right of suffrage to aliens and it is declared to be the purpose of this amendment to confer suffrage equally upon both men and women, without regard to sex; provided, that women shall not be compelled to serve on juries. [As amended by Const. Amend. 8.]”

Ark. Const. Amend. 99, which amended this section, was proposed by H.J.R. 1016 during the 2017 Regular Session and adopted at the 2018 general election by a vote of 689,454 for and 177,815 against. The amendment added subsections (b)-(f) and was effective thirty days after the election pursuant to § 7-9-119.

§ 2. Right of suffrage.

Elections shall be free and equal. No power, civil or military, shall ever interfere to prevent the free exercise of the right of suffrage; nor shall any law be enacted whereby such right shall be impaired or forfeited, except for the commission of a felony, upon lawful conviction thereof. [As amended by Const. Amend. 85.]

Publisher’s Notes. The former clause prohibiting the registration of voters was superseded by Ark. Const. Amend. 39.

Ark. Const. Amend. 85, which amended this section, was proposed by S.J.R. 4 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 714,128 for and 267,326 against.

Before amendment by Amend. 85, this section read:
“§ 2. Right of suffrage.

“Elections shall be free and equal. No power, civil or military, shall ever interfere to prevent the free exercise of the right of suffrage; nor shall any law be enacted, whereby the right to vote at any election shall be made to depend upon any previous registration of the elector’s name; or whereby such right shall be impaired or forfeited, except for the commission of a felony at common law, upon lawful conviction thereof.”

§ 3. [Repealed.]

Publisher’s Notes. This section, concerning the manner of conducting elections, was repealed and replaced by

Ark. Const. Amend. 50. Const. Amend. 81 later repealed section 3 of Amend. 50.

§ 4. Privilege of electors from arrest.

Electors shall, in all cases (except treason, felony and breach of the peace,) be privileged from arrest during their attendance at elections, and going to and from the same.

§ 5. [Repealed.]

Publisher’s Notes. Ark. Const. Amend. 85, which repealed this section, was proposed by S.J.R. 4 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 714,128 for and 267,326 against.

Before repeal, this section read:

“§ 5. Idiots and insane persons.
“No idiot or insane person shall be entitled to the privileges of an elector.”

§ 6. Violation of election laws — Penalty.

Any persons who shall be convicted of fraud, bribery, or other willful and corrupt violation of any election law of this State, shall be adjudged guilty of a felony, and disqualified from holding any office of trust or profit in this State.

§ 7. Soldiers and sailors — Residence — Voting rights.

No soldier, sailor, or marine, in the military or naval service of the United States, shall acquire a residence by reason of being stationed on duty in this State.

§ 8. Time of holding elections.

The general elections shall be held biennially, on the days and at times fixed by the General Assembly. [As amended by Const. Amend. 85.]

Publisher’s Notes. Ark. Const. Amend. 85, which amended this section, was proposed by S.J.R. 4 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 714,128 for and 267,326 against.

Before amendment by Amend. 85, this section read: “The general elections shall be held biennially, on the first Monday of September; but the General Assembly may, by law, fix a different time.”

§ 9. Testimony in election contest — Self-incrimination.

In trials of contested elections and in proceedings for the investigation of elections, no person shall be permitted to withhold his testimony on the ground that it may criminate himself or subject him to public infamy; but such testimony shall not be used against him in any judicial proceeding, except for perjury in giving such testimony.

§ 10. Election officers.

The General Assembly shall determine the qualifications of an election officer. [As amended by Const. Amend. 85.]

Publisher's Notes. Ark. Const. Amend. 85, which amended this section, was proposed by S.J.R. 4 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 714,128 for and 267,326 against.

Before amendment, this section read:

"No person shall be qualified to serve as an election officer, who shall hold, at the time of the election, any office, appointment, or employment in or under the government of the United States, or of this State, or in any city or

county or any municipal board, commission or trust in any city, save only the justices of the peace, and aldermen, notaries public and persons in the militia service of the State. Nor shall any election officer be eligible to any civil office to be filled at an election at which he shall serve — save only to such subordinate municipal or local offices, below the grade of city or county officers, as shall be designated by general law."

§ 11. Votes to be counted.

If the officers of any election shall unlawfully refuse or fail to receive, count, or return the vote or ballot of any qualified elector, such vote or ballot shall nevertheless be counted upon the trial of any contests arising out of said election.

§ 12. Elections by representative — Viva voce vote.

All elections by persons acting in a representative capacity shall be viva voce.

§ 13. Procedures for elections with one candidate.

(a) As used in this section, "election" means:

- (1) A primary election;
- (2) A special primary election;
- (3) A general election; and
- (4) A special election.

(b) The General Assembly may enact laws providing that if there is only one (1) person qualified as a candidate for an office after all deadlines for filing as a candidate have passed so that there will be only one (1) name listed on the election ballot for the office and no write-in candidates qualify to appear as candidates for the office on the election ballot:

(1) The one (1) candidate for the office shall be declared elected and his or her name shall not appear on the election ballot;

(2) The name of the candidate declared elected shall be certified as elected in the same manner as if the candidate had been voted upon at the election; and

(3) The election shall not be held if no other office or issue is on the election ballot. [As added by Const. Amend. 95.]

Publisher's Notes. Ark. Const. Amend. 95, which added this section effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and

adopted at the November 2016 general election by a vote of 747,856 for and 317,093 against.

ARTICLE 4

DEPARTMENTS

SECTION.

1. Departments of government.

SECTION.

2. Separation of departments.

§ 1. Departments of government.

The powers of the government of the State of Arkansas shall be divided into three distinct departments, each of them to be confided to a separate body of magistracy, to-wit: Those which are legislative, to one, those which are executive, to another, and those which are judicial, to another.

§ 2. Separation of departments.

No person or collection of persons, being of one of these departments, shall exercise any power belonging to either of the others, except in the instances hereinafter expressly directed or permitted.

ARTICLE 5

LEGISLATIVE DEPARTMENT

SECTION.

1. Initiative and Referendum.
2. House of Representatives.
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4. Qualifications of senators and representatives.
5. Regular and fiscal sessions.
6. Vacancies — Writs of election.
7. Officers ineligible.
8. Defaulters ineligible.
9. Persons convicted ineligible.
10. Members ineligible to civil office.
11. Appointment of officers — Qualifications of members — Quorum.
12. Powers and duties of each house.
13. Sessions to be open.
14. Election of officers by General Assembly.
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16. [Repealed.]
17. Duration of sessions.
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19. Style of laws — Enacting clause.
20. State not made defendant.
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22. Passage of bills.

SECTION.

23. Revival, amendment or extension of laws.
24. Local and special laws.
25. Special laws — Suspension of general laws.
26. Notice of local or special bills.
27. Extra compensation prohibited — Exception.
28. Adjournments.
29. Appropriations.
30. General and special appropriations.
31. Purposes of taxes and appropriations.
32. Workmen's Compensation Laws — Actions for personal injuries.
33. Liabilities of corporations to state.
34. Introduction of bills — Time limit.
35. Bribery of member of General Assembly or state officer.
36. Expulsion of member no bar to indictment.
- [37]. Laws — Enactment — Majority required.
- [38]. Taxes — Increase — Approval by electors.
- [39]. State expenses — Limitation — Exceptions.
- [40]. General appropriation bill — Enactment.
- [41]. Expenses incurred or authorized only by bill — Repealing clause.
42. Review and approval of administrative rules.

§ 1. Initiative and Referendum.

The legislative power of the people of this State shall be vested in a General Assembly, which shall consist of the Senate and House of Representatives, but the people reserve to themselves the power to propose legislative measures, laws and amendments to the Constitution, and to enact or reject the same at the polls independent of the General Assembly; and also reserve the power, at their own option to approve or reject at the polls any entire act or any item of an appropriation bill.

Initiative. The first power reserved by the people is the initiative. Eight per cent of the legal voters may propose any law and ten per cent may propose a constitutional amendment by initiative petition and every such petition shall include the full text of the measure so proposed. Initiative petitions for state-wide measures shall be filed with the Secretary of State not less than four months before the election at which they are to be voted upon; provided, that at least thirty days before the aforementioned filing, the proposed measure shall have been published once, at the expense of the petitioners, in some paper of general circulation.

Referendum. The second power reserved by the people is the referendum, and any number not less than six per cent of the legal voters may, by petition, order the referendum against any general Act, or any item of an appropriation bill, or measure passed by the General Assembly, but the filing of a referendum petition against one or more items, sections or parts of any such act or measure shall not delay the remainder from becoming operative. Such petition shall be filed with

the Secretary of State not later than ninety days after the final adjournment of the session at which such Act was passed, except when a recess or adjournment shall be taken temporarily for a longer period than ninety days, in which case such petition shall be filed not later than ninety days after such recess or temporary adjournment. Any measure referred to the people by referendum petition shall remain in abeyance until such vote is taken. The total number of votes cast for the office of Governor in the last preceding general election shall be the basis upon which the number of signatures of legal voters upon state-wide initiative and referendum petitions shall be computed.

Upon all initiative or referendum petitions provided for in any of the sections of this article, it shall be necessary to file from at least fifteen of the counties of the State, petitions bearing the signature of not less than one-half of the designated percentage of the electors of such county.

Emergency. If it shall be necessary for the preservation of the public peace, health and safety that a measure shall become effective without delay, such necessity shall be stated in one section, and if upon a ye and nay vote two-thirds of all the members elected to each house, or two-thirds of all the members elected to city or town councils, shall vote upon separate roll call in favor of the measure going into immediate operation, such emergency measure shall become effective without delay. It shall be necessary, however, to state the fact which constitutes such emergency. Provided, however, that an emergency shall not be declared on any franchise or special privilege or act creating any vested right or interest or alienating any property of the State. If a referendum is filed against any emergency measure such measure shall be a law until it is voted upon by the people, and if it is then rejected by a majority of the electors voting thereon, it shall be thereby repealed. The provision of this sub-section shall apply to city or town councils.

Local for Municipalities and Counties. The initiative and referendum powers of the people are hereby further reserved to the legal voters of each municipality and county as to all local, special and municipal legislation of every character in and for their respective municipalities and counties, but no local legislation shall be enacted contrary to the Constitution or any general law of the State, and any general law shall have the effect of repealing any local legislation which is in conflict therewith.

Municipalities may provide for the exercise of the initiative and referendum as to their local legislation. General laws shall be enacted providing for the exercise of the initiative and referendum as to counties. Fifteen per cent of the legal voters of any municipality or county may order the referendum, or invoke the initiative upon any local measure. In municipalities the number of signatures required upon any petition shall be computed upon the total vote cast for the office of mayor at the last preceding general election; in counties upon the office of circuit clerk. In municipalities and counties the time for filing an initiative petition shall not be fixed at less than sixty days nor more than ninety days before the election at which it is to be voted upon; for a referendum petition at not less than thirty days nor more than ninety days after the passage of such measure by a municipal council; nor less than ninety days when filed against a local or special measure passed by the General Assembly.

Every extension, enlargement, grant, or conveyance of a franchise or any rights, property, easement, lease, or occupation of or in any road, street, alley or any part thereof in real property or interest in real property owned by municipalities, exceeding in value three hundred dollars, whether the same be by statute, ordinance, resolution, or otherwise, shall be subject to referendum and shall not be subject to emergency legislation.

GENERAL PROVISIONS

Definition. The word “measure” as used herein includes any bill, law, resolution, ordinance, charter, constitutional amendment or legislative proposal or enactment of any character.

No Veto. The veto power of the Governor or mayor shall not extend to measures initiated by or referred to the people.

Amendment and Repeal. No measure approved by a vote of the people shall be amended or repealed by the General Assembly or by any city council, except upon a ye and nay vote on roll call of two-thirds of all the members elected to each house of the General Assembly, or of the city council, as the case may be.

Election. All measures initiated by the people whether for the State, county, city or town, shall be submitted only at the regular elections, either State, congressional or municipal, but referendum petitions may be referred to the people at special elections to be called by the proper official, and such special elections shall be called when fifteen per cent of the legal voters shall petition for such special election, and if the referendum is invoked as to any measure passed by a city or town council, such city or town council may order a special election.

Majority. Any measure submitted to the people as herein provided shall take effect and become a law when approved by a majority of the votes cast upon such measure, and not otherwise, and shall not be required to receive a majority of the electors voting at such election. Such measures shall be operative on and after the thirtieth day after the election at which it is approved, unless otherwise specified in the Act.

This section shall not be construed to deprive any member of the General Assembly of the right to introduce any measure, but no measure shall be submitted to the people by the General Assembly, except a proposed constitutional amendment or amendments as provided for in this Constitution.

Canvass and Declaration of Results. The result of the vote upon any State measure shall be canvassed and declared by the State Board of Election Commissioners (or legal substitute therefor); upon a municipal or county measure, by the county election commissioners (or legal substitute therefor).

Conflicting Measures. If conflicting measures initiated or referred to the people shall be approved by a majority of the votes severally cast for and against the same at the same election, the one receiving the highest number of affirmative votes shall become law.

THE PETITION

Title. At the time of filing petitions the exact title to be used on the ballot shall by the petitioners be submitted with the petition, and on state-wide measures, shall be submitted to the State Board of Election Commissioners, who shall certify such title to the Secretary of State, to be placed upon the ballot; on county and municipal measures such title shall be submitted to the county election board and shall by said board be placed upon the ballot in such county or municipal election.

Limitation. No limitation shall be placed upon the number of constitutional amendments, laws, or other measures which may be proposed and submitted to the people by either initiative or referendum petition as provided in this section. No petition shall be held invalid if it shall contain a greater number of signatures than required herein.

Verification. Only legal votes shall be counted upon petitions. Petitions may be circulated and presented in parts, but each part of any petition shall have attached thereto the affidavit of the person circulating the same, that all signatures thereon were made in the presence of the affiant, and that to the best of the affiant's knowledge and belief each signature is genuine, and that the person signing is a legal voter and no other affidavit or verification shall be required to establish the genuineness of such signatures.

Sufficiency. The sufficiency of all state-wide petitions shall be decided in the first instance by the Secretary of State, subject to review by the Supreme Court of the State, which shall have original and exclusive jurisdiction over all such causes. The sufficiency of all local petitions shall be decided in the first instance by the county clerk or the city clerk as the case may be, subject to review by the chancery court.

Court Decisions. If the sufficiency of any petition is challenged such cause shall be a preference cause and shall be tried at once, but the failure of the courts to decide prior to the election as to the sufficiency of any such petition, shall not prevent the question from being placed upon the ballot at the election named in such petition, nor militate against the validity of such measure, if it shall have been approved by a vote of the people.

Amendment of Petition. (a)(1) If the Secretary of State, county clerk or city clerk, as the case may be, shall decide any petition to be insufficient, he or she shall without delay notify the sponsors of such petition, and permit at least thirty (30) days from the date of such notification,

in the instance of a state-wide petition, or ten (10) days in the instance of a municipal or county petition, for correction or amendment.

(2) For a state-wide petition, correction or amendment of an insufficient petition shall be permitted only if the petition contains valid signatures of legal voters equal to:

(A) At least seventy-five percent (75%) of the number of state-wide signatures of legal voters required; and

(B) At least seventy-five percent (75%) of the required number of signatures of legal voters from each of at least fifteen (15) counties of the state.

(b) In the event of legal proceedings to prevent giving legal effect to any petition upon any grounds, the burden of proof shall be upon the person or persons attacking the validity of the petition.

Unwarranted Restrictions Prohibited. No law shall be passed to prohibit any person or persons from giving or receiving compensation for circulating petitions, nor to prohibit the circulation of petitions, nor in any manner interfering with the freedom of the people in procuring petitions; but laws shall be enacted prohibiting and penalizing perjury, forgery, and all other felonies or other fraudulent practices, in the securing of signatures or filing of petitions.

Publication. All measures submitted to a vote of the people by petition under the provisions of this section shall be published as is now, or hereafter may be provided by law.

Enacting Clause. The style of all bills initiated and submitted under the provisions of this section shall be, “Be It Enacted by the People of the State of Arkansas, (municipality or county, as the case may be).” In submitting measures to the people, the Secretary of State and all other officials shall be guided by the general election laws or municipal laws as the case may be until additional legislation is provided therefor.

Self-Executing. This section shall be self-executing, and all its provisions shall be treated as mandatory, but laws may be enacted to facilitate its operation. No legislation shall be enacted to restrict, hamper or impair the exercise of the rights herein reserved to the people. [As amended by Const. Amend. 7; Const. Amend. 93.]

Publisher’s Notes. The original language of this section was “The legislative power of this State shall be vested in a General Assembly, which shall consist of the Senate and House of Representatives.” An earlier amendment in 1910 to this section was superseded by Ark. Const. Amend. 7. See Acts 1909, p. 1238.

Article 5, sec. 1, of Amendment 7, provided: “This amendment to the Constitution of the State be, and the same shall be in substitution of the Initiative and Referendum Amendment, approved February 19, 1909, as the same appears in the Acts of Arkansas for 1909, on pages 1239 and 1240 of the volume containing the same; and that the said amendment (and the Act of the General Assembly to carry out the same, approved June 30, 1911, so far as the same is in conflict herewith), be and the same are hereby repealed.”

The amendment to this section by Amendment 7 was adopted at the general election of Nov. 2, 1920, by a vote of 86,360 for and 43,662 against. It was declared lost by the Speaker of the House on Jan. 15, 1921, but was declared

adopted in *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925).

Ark. Const. Amend. 93, which amended this section, was proposed by S.J.R. 16 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 425,709 for and 372,784 against. The amendment was effective thirty days after the election pursuant to § 7-9-119.

Before the amendment by Amendment 93, the subsection of this section titled “Amendment of Petition” read: “If the Secretary of State, county clerk or city clerk, as the case may be, shall decide any petition to be insufficient, he shall without delay notify the sponsors of such petition, and permit at least thirty days from the date of such notification, in the instance of a state-wide petition, or ten days in the instance of a municipal or county petition, for correction or amendment. In the event of legal proceedings to prevent giving legal effect to any petition upon any grounds, the burden of proof shall be upon the person or persons attacking the validity of the petition.”

§ 2. House of Representatives.

The House of Representatives shall consist of members to be chosen every second year, by the qualified electors of the several counties.

§ 3. Senate.

The Senate shall consist of members to be chosen every four years, by the qualified electors of the several districts. At the first session of the Senate, the Senators shall divide themselves into

two classes, by lot, and the first class shall hold their places for two years only, after which all shall be elected for four years.

§ 4. Qualifications of senators and representatives.

No person shall be a Senator or Representative who, at the time of his election, is not a citizen of the United States, nor any one who has not been for two years next preceding his election, a resident of this State, and for one year next preceding his election, a resident of the county or district whence he may be chosen. Senators shall be at least twenty-five years of age, and Representatives at least twenty-one years of age.

§ 5. Regular and fiscal sessions.

(a) The General Assembly shall meet at the seat of government every year.

(b) The General Assembly shall meet in regular session on the second Monday in January of each odd-numbered year to consider any bill or resolution. The General Assembly may alter the time at which the regular session begins.

(c)(1) Beginning in 2010, the General Assembly shall meet in fiscal session on the second Monday in February of each even-numbered year to consider only appropriation bills. The General Assembly may alter the time at which the fiscal session begins.

(2) A bill other than an appropriation bill may be considered in a fiscal session if two-thirds ($\frac{2}{3}$) of the members of each house of the General Assembly approve consideration of the bill.

(d) The General Assembly, by a vote of two-thirds ($\frac{2}{3}$) of the members elected to each house of the General Assembly, may alter the dates of the regular session and fiscal session so that regular sessions occur in even numbered years and the fiscal sessions occur in odd-numbered years. [As amended by Const. Amend. 86.]

Publisher's Notes. The time of meeting is now fixed by § 10-2-101 as the second Monday in January in each odd-numbered year.

Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against.

Before amendment, this section read:

“§ 5. Time of meeting.

“The General Assembly shall meet at the seat of government every two years, on the first Tuesday after the second Monday in November, until said time be altered by law.”

Acts 2015 (1st Ex. Sess.), No. 5, § 1 amended § 10-2-101 to temporarily change the date of the fiscal session from the second Monday in February of each even-numbered year to the second Wednesday in April of each even-numbered year. Section 5(b) of the 2015 act provides that the change expires on December 31, 2016.

§ 6. Vacancies — Writs of election.

The Governor shall issue writs of election, to fill such vacancies as shall occur in either house of the General Assembly.

§ 7. Officers ineligible.

No judge of the Supreme, Circuit or inferior courts of law or equity, Secretary of State, Attorney General for the State, Auditor or Treasurer, Recorder, clerk of any court of record, Sheriff, Coroner, member of Congress, nor any other person holding any lucrative office under the United States or this State (militia officers, justices of the peace, postmasters, officers of public schools and notaries excepted), shall be eligible to a seat in either house of the General Assembly.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

§ 8. Defaulters ineligible.

No person who now is, or shall be hereafter, a collector or holder of public money, nor any assistant or deputy of such holder or collector of public money, shall be eligible to a seat in either house of the General Assembly, nor to any office of trust or profit, until he shall have accounted for, and paid over, all sums for which he may have been liable.

§ 9. Persons convicted ineligible.

(a) No person convicted of embezzlement of public money, bribery, forgery, or other infamous crime is eligible to the General Assembly or capable of holding any office of trust or profit in this state.

(b) As used in this section, “infamous crime” means:

- (1) A felony offense;
- (2) Abuse of office as defined under Arkansas law;
- (3) Tampering as defined under Arkansas law; or
- (4) A misdemeanor offense in which the finder of fact was required to find, or the defendant to admit, an act of deceit, fraud, or false statement, including without limitation a misdemeanor offense related to the election process. [As amended by Const. Amend. 95.]

Publisher’s Notes. Ark. Const. Amend. 95, which amended this section effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of

747,856 for and 317,093 against. The amendment, in (a), deleted “hereafter” following “person” and made stylistic changes; and added (b).

§ 10. Members ineligible to civil office.

No Senator or Representative shall, during the term for which he shall have been elected, be appointed or elected to any civil office under this State.

§ 11. Appointment of officers — Qualifications of members — Quorum.

Each house shall appoint its own officers, and shall be sole judge of the qualifications, returns and elections of its own members. A majority of all the members elected to each house shall constitute a quorum to do business; but a smaller number may adjourn from day to day, and compel the attendance of absent members, in such manner and under such penalties as each house shall provide.

§ 12. Powers and duties of each house.

Each house shall have power to determine the rules of its proceedings; and punish its members, or other persons, for contempt or disorderly behavior in its presence; enforce obedience to its process; to protect its members against violence or offers of bribes, or private solicitations; and, with the concurrence of two-thirds, expel a member; but not a second time for the same cause. A member expelled for corruption shall not, thereafter, be eligible to either house; and punishment for contempt, or disorderly behavior, shall not bar an indictment for the same offense. Each house shall keep a journal of its proceedings; and, from time to time, publish the same, except such parts as require secrecy; and the yeas and nays, on any question, shall, at the desire of any five members, be entered on the journals.

§ 13. Sessions to be open.

The sessions of each house, and of committees of the whole, shall be open, unless when the business is such as ought to be kept secret.

§ 14. Election of officers by General Assembly.

Whenever an officer, civil or military, shall be appointed by the joint or concurrent vote of both houses, or by the separate vote of either house of the General Assembly, the vote shall be taken viva voce, and entered on the journals.

§ 15. Privileges of members.

The members of the General Assembly shall, in all cases except treason, felony, and breach or surety of the peace, be privileged from arrest during their attendance at the sessions of their respective houses; and, in going to and returning from the same; and, for any speech or debate in either house, they shall not be questioned in any other place.

§ 16. [Repealed.]

Publisher's Notes. Ark. Const. Amend. 94, which repealed this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this section read: “§ 16. Per diem and mileage of General Assembly.

“Each member of the General Assembly shall receive six dollars per day for his services during the first sixty days of any regular session of the General Assembly, and if any regular session shall be extended, such member shall serve without further per diem. Each member of the General Assembly shall also receive ten cents per mile for each mile traveled in going to and returning from the seat of government, over the most direct and practicable route. When convened in extraordinary session by the Governor, they shall each receive three dollars per day for their services during the first fifteen days, and if such extraordinary

session shall extend beyond fifteen days, they shall receive no further per diem. They shall be entitled to the same mileage for any extraordinary session as herein provided for regular sessions. The terms of all members of the General Assembly shall begin on the day of their election, and they shall receive no compensation, perquisite or allowance whatever, except as herein provided. [As amended by Const. Amend. 5.]”

Before amendment by Amendment 5, the section read: “The members of the General Assembly shall receive such per diem pay and mileage for their services as shall be fixed by law. No member of either house shall, during the term for which he has been elected, receive any increase of pay for his services under any law passed during such term. The term of all members of the General Assembly shall begin on the day of their election.”

An amendment adopted in 1902 (see Acts 1901, p. 412) deleted the words “per diem.”

§ 17. Duration of sessions.

(a) A regular biennial session shall not exceed sixty (60) calendar days in duration, unless extended by a vote of two-thirds ($\frac{2}{3}$) of the members elected to each house of the General Assembly. The regular biennial session shall not exceed seventy five (75) calendar days in duration, unless extended by a vote of three-fourths ($\frac{3}{4}$) of the members elected to each house of the General Assembly.

(b) A fiscal session shall not exceed thirty (30) calendar days in duration, except that by a vote of three-fourths ($\frac{3}{4}$) of the members elected to each house of the General Assembly a fiscal session may be extended one (1) time by no more than fifteen (15) calendar days.

(c) Provided, that this section shall not apply when impeachments are pending. [As amended by Const. Amend. 86.]

Publisher's Notes. Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against.

Before amendment, this section read: “The regular bien-

nial sessions, shall not exceed sixty days in duration; unless by a vote of two-thirds of the members elected to each house of said General Assembly. Provided, that this section shall not apply to the first session of the General Assembly under this Constitution, or when impeachments are pending.”

§ 18. Presiding officers.

Each house, at the beginning of every regular session of the General Assembly, and whenever a vacancy may occur, shall elect from its members a presiding officer, to be styled, respectively, the President of the Senate, and the Speaker of the House of Representatives; and whenever, at the close of any session, it may appear that the term of the member elected President of the Senate will expire before the next regular session, the Senate shall elect another President from

those members whose terms of office continue over, who shall qualify and remain President of the Senate until his successor may be elected and qualified; and who, in the case of a vacancy in the office of Governor, shall perform the duties and exercise the powers of Governor as elsewhere herein provided.

Publisher's Notes. See Const. Amend. 6, § 5, under which the Lieutenant Governor serves as President of the Senate.

§ 19. Style of laws — Enacting clause.

The style of the laws of the State of Arkansas shall be: “Be it enacted by the General Assembly of the State of Arkansas.”

§ 20. State not made defendant.

The State of Arkansas shall never be made defendant in any of her courts.

§ 21. Laws by bills — Amendment.

No law shall be passed except by bill, and no bill shall be so altered or amended on its passage through either house, as to change its original purpose.

§ 22. Passage of bills.

Every bill shall be read at length, on three different days, in each house; unless the rules be suspended by two-thirds of the house, when the same may be read a second or third time on the same day; and no bill shall become a law unless, on its final passage, the vote be taken by yeas and nays; the names of the persons voting for and against the same be entered on the journal; and a majority of each house be recorded thereon as voting in its favor.

§ 23. Revival, amendment or extension of laws.

No law shall be revived, amended, or the provisions thereof extended or conferred, by reference to its title only; but so much thereof as is revived, amended, extended or conferred, shall be reenacted and published at length.

§ 24. Local and special laws.

The General Assembly shall not pass any local or special law, changing the venue in criminal cases; changing the names of persons, or adopting or legitimating children; granting divorces; vacating roads, streets or alleys.

Publisher's Notes. This section may be superseded by Ark. Const. Amend. 14.

§ 25. Special laws — Suspension of general laws.

In all cases where a general law can be made applicable, no special law shall be enacted; nor shall the operation of any general law be suspended by the legislature for the benefit of any particular individual, corporation or association; nor where the courts have jurisdiction to grant the powers, or the privileges, or the relief asked for.

Publisher's Notes. This section may be superseded by Ark. Const. Amend. 14.

§ 26. Notice of local or special bills.

No local or special bill shall be passed, unless notice of the intention to apply therefor shall have been published, in the locality where the matter or the thing to be affected may be situated; which notice shall be, at least, thirty days prior to the introduction into the General Assembly of such bill, and in the manner to be provided by law. The evidence of such notice having been published, shall be exhibited in the General Assembly before such act shall be passed.

Publisher's Notes. This section may be superseded by Ark. Const. Amend. 14.

§ 27. Extra compensation prohibited — Exception.

No extra compensation shall be made to any officer, agent, employee, or contractor, after the service shall have been rendered, or the contract made; nor shall any money be appropriated or paid on any claim, the subject matter of which shall not have been provided for by preexisting laws; unless such compensation, or claim, be allowed by bill passed by two-thirds of the members elected to each branch of the General Assembly.

§ 28. Adjournments.

Neither house shall, without the consent of the other, adjourn for more than three days; nor to any other place than that in which the two houses shall be sitting.

§ 29. Appropriations.

Except as provided in Arkansas Constitution, Article 19, § 31, no money shall be drawn from the treasury except in pursuance of specific appropriation made by law, the purpose of which shall be distinctly stated in the bill, and the maximum amount which may be drawn shall be specified in dollars and cents; and no appropriations made by the General Assembly after December 31, 2008, shall be for a longer period than one (1) fiscal year. [As amended by Const. Amend. 86; Const. Amend. 94.]

Publisher's Notes. Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against.

The amendment by Amendment 86 substituted “no appropriations made by the General Assembly after December 31, 2008, shall be for a longer period than one (1) fiscal year” for “no appropriations shall be for a longer period than two years”.

Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against. The amendment added “Except as provided in Arkansas Constitution, Article 19, § 31” to the beginning of the section.

§ 30. General and special appropriations.

Except as provided in Arkansas Constitution, Article 19, § 31, the general appropriation bill shall embrace nothing but appropriations for the ordinary expenses of the executive, legislative and judicial departments of the State; all other appropriations shall be made by separate bills, each embracing but one subject. [As amended by Const. Amend. 94.]

Publisher's Notes. Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a

vote of 428,206 for and 388,459 against. The amendment added “Except as provided in Arkansas Constitution, Article 19, § 31” to the beginning of the section.

§ 31. Purposes of taxes and appropriations.

No State tax shall be allowed, or appropriation of money made, except to raise means for the payment of the just debts of the State, for defraying the necessary expenses of government, to

sustain common schools, to repel invasion and suppress insurrection, except by a majority of two-thirds of both houses of the General Assembly.

§ 32. Workmen's Compensation Laws — Actions for personal injuries.

The General Assembly shall have power to enact laws prescribing the amount of compensation to be paid by employers for injuries to or death of employees, and to whom said payment shall be made. It shall have power to provide the means, methods, and forum for adjudicating claims arising under said laws, and for securing payment of same. Provided, that otherwise no law shall be enacted limiting the amount to be recovered for injuries resulting in death or for injuries to persons or property; and in case of death from such injuries the right of action shall survive, and the General Assembly shall prescribe for whose benefit such action shall be prosecuted. [As amended by Const. Amend. 26.]

Publisher's Notes. Before amendment, this section read: "No act of the General Assembly shall limit the amount to be recovered for injuries resulting in death, or for injuries to persons or property; and in case of death

from such injuries the right of action shall survive and the General Assembly shall prescribe for whose benefit such action shall be prosecuted."

§ 33. Liabilities of corporations to state.

No obligation or liability of any railroad, or other corporation, held or owned by this State shall ever be exchanged, transferred, remitted, postponed or in any way diminished by the General Assembly; nor shall such liability or obligation be released, except by payment thereof into the State treasury.

§ 34. Introduction of bills — Time limit.

No new bill shall be introduced into either house during the last three days of a regular or fiscal session. [As amended by Const. Amend. 86.]

Publisher's Notes. Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and

adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against. The amendment substituted "of a regular or fiscal session" for "of the session".

§ 35. Bribery of member of General Assembly or state officer.

Any person who shall, directly or indirectly, offer, give, or promise any money, or thing of value, testimonial, privilege or personal advantage to any executive or judicial officer, or member of the General Assembly; and any such executive or judicial officer, or member of the General Assembly, who shall receive or consent to receive any such consideration, either directly or indirectly, to influence his action in the performance or non performance of his public or official duty, shall be guilty of a felony, and be punished accordingly.

§ 36. Expulsion of member no bar to indictment.

Proceedings to expel a member for a criminal offense, whether successful or not, shall not bar an indictment and punishment, under the criminal laws, for the same offense.

[§ 37.] Laws — Enactment — Majority required.

§ 1. Not less than a majority of the members of each House of the General Assembly may enact a law. [As added to Art. 5 by Const. Amend. 19.]

Publisher's Notes. As added by Ark. Const. Amend. 19, § 5 [§ 41] contained a second paragraph which read: "The provisions of the Constitution of the State of Arkansas in conflict with this Amendment are hereby repealed in so far

as they are in conflict herewith, and this Amendment shall be self-executing and shall take and have full effect immediately upon its adoption by the electors of the State."

[§ 38.] Taxes — Increase — Approval by electors.

§ 2. None of the rates for property, excise, privilege or personal taxes, now levied shall be increased by the General Assembly except after the approval of the qualified electors voting thereon at an election, or in case of emergency, by the votes of three-fourths of the members elected to each House of the General Assembly. [As added to Art. 5 by Const. Amend. 19.]

Publisher's Notes. As added by Ark. Const. Amend. 19, § 5 [§ 41] contained a second paragraph which read: "The provisions of the Constitution of the State of Arkansas in conflict with this Amendment are hereby repealed in so far

as they are in conflict herewith, and this Amendment shall be self-executing and shall take and have full effect immediately upon its adoption by the electors of the State."

[§ 39.] State expenses — Limitation — Exceptions.

§ 3. Excepting monies raised or collected for educational purposes, highway purposes, to pay Confederate pensions and the just debts of the State, the General Assembly is hereby prohibited from appropriating or expending more than the sum of Two and One-Half Million Dollars for all purposes, for any fiscal year; provided the limit herein fixed may be exceeded by the votes of three-fourths of the members elected to each House of the General Assembly. [As added to Art. 5 by Const. Amend. 19; as amended by Const. Amend. 86.]

Publisher's Notes. As added by Ark. Const. Amend. 19, § 5 [§ 41] contained a second paragraph which read: "The provisions of the Constitution of the State of Arkansas in conflict with this Amendment are hereby repealed in so far as they are in conflict herewith, and this Amendment shall be self-executing and shall take and have full effect immediately upon its adoption by the electors of the State."

Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against. The amendment substituted "fiscal year" for "biennial period".

[§ 40.] General appropriation bill — Enactment.

§ 4. In making appropriations for any fiscal year, the General Assembly shall first pass the General Appropriation Bill provided for in Section 30 of Article 5 of the Constitution, and no other appropriation bill may be enacted before that shall have been done. [As added to Art. 5 by Const. Amend. 19; as amended by Const. Amend. 86.]

Publisher's Notes. As added by Ark. Const. Amend. 19, § 5 [§ 41] contained a second paragraph which read: "The provisions of the Constitution of the State of Arkansas in conflict with this Amendment are hereby repealed in so far as they are in conflict herewith, and this Amendment shall be self-executing and shall take and have full effect immediately upon its adoption by the electors of the State."

Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against. The amendment substituted "fiscal year" for "biennial period".

[§ 41.] Expenses incurred or authorized only by bill — Repealing clause.

§ 5. No expense shall be incurred or authorized for either House except by a bill duly passed by both Houses and approved by the Governor. [As added to Art. 5 by Const. Amend. 19.]

Publisher's Notes. As added by Ark. Const. Amend. 19, § 5 [§ 41] contained a second paragraph which read: "The provisions of the Constitution of the State of Arkansas in conflict with this Amendment are hereby repealed in so far

as they are in conflict herewith, and this Amendment shall be self-executing and shall take and have full effect immediately upon its adoption by the electors of the State."

§ 42. Review and approval of administrative rules.

(a) The General Assembly may provide by law:

(1) For the review by a legislative committee of administrative rules promulgated by a state agency before the administrative rules become effective; and

(2) That administrative rules promulgated by a state agency shall not become effective until reviewed and approved by the legislative committee charged by law with the review of administrative rules under subdivision (a)(1) of this section.

(b) The review and approval by a legislative committee under subsection (a) of this section may occur during the interim or during a regular, special, or fiscal session of the General Assembly. [As added by Const. Amend. 92.]

Publisher's Notes. Ark. Const. Amend. 92, which added this section, was proposed by S.J.R. 7 during the 2013 Regular Session and adopted at the November 2014

general election by a vote of 469,431 for and 325,396 against. The amendment was effective thirty days after the election pursuant to § 7-9-119.

ARTICLE 6

EXECUTIVE DEPARTMENT

SECTION.

1. Executive officers.
2. Governor — Supreme executive power.
3. Election of executive officers.
4. Contested election.
5. Qualifications of Governor.
6. Governor, commander-in-chief of armed services.
7. Information and reports from departments.
8. Messages to General Assembly.
9. Seal of State.
10. Grants and commissions.
11. Incompatible offices.
12. President of Senate succeeding to Governor's office.
13. Speaker of House succeeding to office of Governor.

SECTION.

14. Election to fill vacancy.
15. Approval of bills — Vetoes.
16. Concurrent orders or resolutions — Veto.
17. Vetoes of items of appropriation bills.
18. Pardoning power.
19. Extraordinary sessions of General Assembly — Calling — Purposes.
20. Power to adjourn General Assembly.
21. Duties of Secretary of State.
22. Duties of executive officers in general — Dual office holding prohibited — Vacancies — Filling.
23. Filling vacancies in other offices.

§ 1. Executive officers.

The executive department of this State shall consist of a Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State and Attorney General, all of whom shall keep their offices in person at the seat of government and hold their offices for the term of two years and until their successors are elected and qualified, and the General Assembly may provide by law for the establishment of the office of Commissioner of State Lands. [As amended by Const. Amend. 6, § 1.]

Publisher's Notes. This section, as amended, was probably superseded by Ark. Const. Amend. 37, § 1, which was repealed by Ark. Const. Amend. 56, § 5, and replaced by § 1 of that amendment. However, Ark. Const. Amend. 56,

§ 1, has probably been superseded by Ark. Const. Amend. 63, § 1.

Ark. Const. Amend. 6 inserted the words "Lieutenant Governor" in this provision.

§ 2. Governor — Supreme executive power.

The supreme executive power of this State shall be vested in a chief magistrate, who shall be styled "the Governor of the State of Arkansas."

Publisher's Notes. See Ark. Const. Amend. 6, § 2, as to executive power of Governor and Lieutenant Governor.

§ 3. Election of executive officers.

The Governor, Secretary of State, Treasurer of State, Auditor of State, and Attorney General shall be elected by the qualified electors of the State at large, at the time and places of voting for members of the General Assembly; the returns of each election therefor shall be sealed up separately and transmitted to the seat of government by the returning officers, and directed to the Speaker of the House of Representatives; who shall, during the first week of the session, open and publish the votes cast and given for each of the respective officers hereinbefore mentioned, in the presence of both houses of the General Assembly. The person having the highest number of votes, for each of the respective offices, shall be declared duly elected thereto; but if two or more shall be equal, and highest in votes for the same office, one of them shall be chosen by the joint vote of both houses of the General Assembly, and a majority of all the members elected shall be necessary to a choice.

Publisher's Notes. See Ark. Const. Amend. 6, § 3, as to election of Governor and Lieutenant Governor.

§ 4. Contested election.

Contested elections for Governor, Secretary of State, Treasurer of State, Auditor of State, and Attorney General shall be determined by the members of both houses of the General Assembly, in joint session; who shall have exclusive jurisdiction in trying and determining the same, except as hereinafter provided in the case of special elections; and all such contests shall be tried and determined at the first session of the General Assembly after the election in which the same shall have arisen.

§ 5. Qualifications of Governor.

No person shall be eligible to the office of Governor except a citizen of the United States, who shall have attained the age of thirty years, and shall have been seven years a resident of this State.

§ 6. Governor, commander-in-chief of armed services.

The Governor shall be commander-in-chief of the military and naval forces of this State, except when they shall be called into the actual service of the United States.

§ 7. Information and reports from departments.

He may require information, in writing, from the officers of the executive department, on any subject relating to the duties of their respective offices; and shall see that the laws are faithfully executed.

§ 8. Messages to General Assembly.

He shall give to the General Assembly, from time to time, and at the close of his official term, to the next General Assembly, information, by message, concerning the condition and government of the State; and recommend for their consideration such measures as he may deem expedient.

§ 9. Seal of State.

A seal of the State shall be kept by the Governor, used by him officially, and called the "Great Seal of the State of Arkansas."

§ 10. Grants and commissions.

All grants and commissions shall be issued in the name, and by the authority, of the State of Arkansas; sealed with the great seal of the State; signed by the Governor, and attested by the Secretary of State.

§ 11. Incompatible offices.

No member of Congress, or other person holding office under the authority of this State, or of the United States, shall exercise the office of Governor, except as herein provided.

§ 12. President of Senate succeeding to Governor's office.

In case of the death, conviction on impeachment, failure to qualify, resignation, absence from the State, or other disability of the Governor, the powers, duties and emoluments of the office for the remainder of the term, or until the disability be removed, or a Governor elected and qualified, shall devolve upon, and accrue, to the President of the Senate.

Publisher's Notes. This section has probably been superseded by Ark. Const. Amend. 6, § 4.

§ 13. Speaker of House succeeding to office of Governor.

If, during the vacancy of the office of Governor, the President of the Senate shall be impeached, removed from office, refuse to qualify, resign, die, or be absent from the State; the Speaker of the House of Representatives shall, in like manner, administer the government.

Publisher's Notes. This section has probably been superseded by Ark. Const. Amend. 6, § 5.

§ 14. Election to fill vacancy.

Whenever the office of Governor shall have become vacant by death, resignation, removal from office or otherwise, provided such vacancy shall not happen within twelve months next before the expiration of the term of office for which the late Governor shall have been elected, the President of the Senate or Speaker of the House of Representatives, as the case may be, exercising the powers of Governor for the time being, shall immediately cause an election to be held to fill such vacancy, giving, by proclamation, sixty days, previous notice thereof, which election shall be governed by the same rules prescribed for general elections of Governor as far as applicable; the returns shall be made to the Secretary of State, and the acting Governor, Secretary of State and Attorney General shall constitute a board of canvassers, a majority of whom shall compare said returns and declare who is elected; and if there be a contested election, it shall be decided as may be provided by law.

Publisher's Notes. This section may have been superseded, in part, by Ark. Const. Amend. 6, §§ 4, 5.

§ 15. Approval of bills — Vetoes.

Every bill which shall have passed both houses of the General Assembly, shall be presented to the Governor; if he approve it, he shall sign it; but if he shall not approve it, he shall return it, with his objections, to the house in which it originated; which house shall enter the objections at large upon their journal and proceed to reconsider it. If, after such reconsideration, a majority of the whole number elected to that house, shall agree to pass the bill, it shall be sent, with the objections, to the other house; by which, likewise, it shall be reconsidered; and, if approved by a majority of the whole number elected to that house, it shall be a law; but in such cases the vote of both houses shall be determined by “yeas and nays;” and the names of the members voting for or against the bill, shall be entered on the journals. If any bill shall not be returned by the Governor within five days, Sundays excepted, after it shall have been presented to him, the same shall be a law in like manner as if he had signed it; unless the General Assembly, by their adjournment, prevent its return; in which case it shall become a law, unless he shall file the same, with his objections, in the office of the Secretary of State, and give notice thereof, by public proclamation, within twenty days after such adjournment.

§ 16. Concurrent orders or resolutions — Veto.

Every order or resolution in which the concurrence of both houses of the General Assembly may be necessary, except on questions of adjournment, shall be presented to the Governor, and, before it shall take effect, be approved by him; or, being disapproved, shall be repassed by both houses according to the rules and limitations prescribed in the case of a bill.

§ 17. Vetoes of items of appropriation bills.

The Governor shall have power to disapprove any item, or items, of any bill making appropriation of money, embracing distinct items; and the part or parts of the bill approved shall be the law; and the item or items of appropriations disapproved, shall be void unless repassed

according to the rules and limitations prescribed for the passage of other bills over the executive veto.

§ 18. Pardoning power.

In all criminal and penal cases, except in those of treason and impeachment, the Governor shall have power to grant reprieves, commutations of sentence, and pardons, after conviction; and to remit fines and forfeitures, under such rules and regulations as shall be prescribed by law. In cases of treason, he shall have power, by and with the advice and consent of the Senate, to grant reprieves and pardons; and he may, in the recess of the Senate, respite the sentence until the adjournment of the next regular session of the General Assembly. He shall communicate to the General Assembly at every regular session each case of reprieve, commutation or pardon, with his reasons therefor; stating the name and crime of the convict, the sentence, its date, and the date of the commutation, pardon or reprieve.

§ 19. Extraordinary sessions of General Assembly — Calling — Purposes.

The Governor may, by proclamation, on extraordinary occasions, convene the General Assembly at the seat of government, or at a different place, if that shall have become, since their last adjournment, dangerous from an enemy or contagious disease; and he shall specify in his proclamation the purpose for which they are convened; and no other business than that set forth therein shall be transacted until the same shall have been disposed of; after which they may, by a vote of two-thirds of all the members elected to both houses, entered upon their journals, remain in session not exceeding fifteen days.

§ 20. Power to adjourn General Assembly.

In cases of disagreement between the two houses of the General Assembly, at a regular or special session, with respect to the time of adjournment, the Governor may, if the facts be certified to him by the presiding officers of the two houses, adjourn them to a time not beyond the day of their next meeting; and on account of danger from an enemy or disease, to such other place of safety as he may think proper.

§ 21. Duties of Secretary of State.

The Secretary of State shall keep a full and accurate record of all the official acts and proceedings of the Governor; and, when required, lay the same with all papers, minutes and vouchers relating thereto, before either branch of the General Assembly. He shall also discharge the duties of Superintendent of Public Instruction, until otherwise provided by law.

Publisher's Notes. The elementary and secondary education system is now administered by the State Board of Education and its two directors. See § 6-11-101 et seq.

§ 22. Duties of executive officers in general — Dual office holding prohibited — Vacancies — Filling.

The Treasurer of State, Secretary of State, Auditor of State, and Attorney-General shall perform such duties as may be prescribed by law; they shall not hold any other office or commission, civil or military, in this State or under any State, or the United States, or any other power, at one and the same time; and in case of vacancy occurring in any of said offices, by death, resignation or otherwise, the Governor shall fill said office by appointment for the unexpired term.

§ 23. Filling vacancies in other offices.

When any office, from any cause, may become vacant, and no mode is provided by the Constitution and laws for filling such vacancy, the Governor shall have the power to fill the same by granting a commission, which shall expire when the person elected to fill said office, at the next general election, shall be duly qualified.

ARTICLE 7

JUDICIAL DEPARTMENT

SECTION.

- 1 - 18. [Repealed.]
- 19. Circuit clerks — Election — Term of office — Ex officio duties — County clerks elected in certain counties.
- 20 - 22. [Repealed.]
- 23. Charge to juries.
- 24. [Repealed.]
- 25. [Repealed.]
- 26. Punishment of indirect contempt provided for by law.
- 27. Removal of county and township officers — Grounds.
- 28. County courts — Jurisdiction — Single judge holding court.
- 29. County judge — Election — Term — Qualifications.
- 30. Quorum court — County judge and justices of peace.
- 31. County court — Terms.
- 32. [Repealed.]
- 33. Appeals from county and common pleas courts.
- 34. [Repealed.]
- 35. [Repealed.]
- 36. Special judges of county or probate courts.

SECTION.

- 37. Compensation of county judge — Powers during absence of circuit judge.
- 38. Justices of the peace — Election — Term — Oath.
- 39. [Repealed.]
- 40. [Repealed.]
- 41. Qualifications of justice of peace.
- 42. [Repealed.]
- 43. [Repealed.]
- 44. [Repealed.]
- 45. [Repealed.]
- 46. County executive officers — Compensation of county assessor.
- 47. Constables — Term of office — Certificate of election.
- 48. Commissions of officers.
- 49. Style of process and of indictments.
- 50. [Repealed.]
- 51. Appeals from county or municipal allowances — Bond.
- 52. Appeals in election contests.
- 53. County officers ineligible to civil office.

Publisher's Notes. Acts 1989, No. 761, § 1, provided:

“(a) From and after the passage of this act, the ‘Arkansas Judicial Department’ shall be known and designated as the ‘Administrative Office of the Courts’, and the ‘Executive Secretary’ of the Arkansas Judicial Department shall be known as the ‘Director’ of the Administrative Office of the Courts.

“(b) Any and all statutes of the State of Arkansas now in force in which the institution now designated as ‘Arkansas Judicial Department’ shall be construed to refer to the ‘Administrative Office of the Courts.’ Said ‘Administrative

Office of the Courts’ shall succeed to all rights and benefits and assume all the responsibilities of said ‘Arkansas Judicial Department.’

“(c) Any and all statutes of the State of Arkansas now in force in which the official now designated as ‘executive secretary’ of the Arkansas Judicial Department shall be construed to refer to the ‘director’ of the Administrative Office of the Courts. Said ‘director’ shall succeed to all rights and benefits and assume all the responsibilities of said ‘executive secretary.’” See § 16-10-102.

§§ 1 — 18. [Repealed.]

Publisher's Notes. These sections, concerning judicial power vested in courts, Supreme Court, increase of number of judges, jurisdiction and powers of Supreme Court, jurisdiction to issue quo warranto, qualifications of judges of Supreme Court, clerk and reporter, place of holding court, special judges, compensation of Supreme Court judges and holding dual office holding, circuit court jurisdiction, terms of circuit court, judicial circuits, superintending control

and appellate jurisdiction over inferior courts, power to issue writs, equity jurisdiction, qualifications of circuit judges, election of circuit judges, term of office, compensation of circuit court judges, and holding dual office, were repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001. Ark. Const., Art. 7, § 9, concerning special judges, had been previously repealed by the passage of Ark. Const. Amend. 77, § 3.

§ 19. Circuit clerks — Election — Term of office — Ex officio duties — County clerks elected in certain counties.

The clerks of the circuit courts shall be elected by the qualified electors of the several counties for the term of four (4) years, and shall be ex officio clerks of the county and probate courts and

recorder; provided that in any county having a population exceeding fifteen thousand (15,000) inhabitants, as shown by the last federal census, there shall be elected a county clerk, in like manner as the clerk of the circuit court, for the term of four (4) years, and in such case the county clerk shall be ex officio clerk of the probate court of such county until otherwise provided by the General Assembly. [As amended by Const. Amend. 24, § 3; Const. Amend. 95.]

Publisher's Notes. The provisions of this section limiting the election of a separate county clerk to those counties having a population exceeding 15,000 inhabitants were abolished by Ark. Const. Amend. 41.

Ark. Const. Amend. 24, § 3, added the words “until otherwise provided by the General Assembly.”

Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

Ark. Const. Amend. 95, which amended this section effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 747,856 for and 317,093 against. The amendment substituted “four (4) years” for “two years”, inserted “for the term of four (4) years”, and made stylistic changes.

Amend. 95, § 8(b) and (c), provided:

“(b) Persons elected to the following offices at the 2016 general election shall serve terms of two (2) years:

- “(1) County judge;
- “(2) Sheriff;
- “(3) Circuit clerk;
- “(4) County clerk;
- “(5) Assessor;
- “(6) Coroner;
- “(7) Treasurer;
- “(8) County surveyor; and
- “(9) Collector of taxes.

“(c) Persons elected to the following offices at the 2018 general election shall serve terms of four (4) years:

- “(1) County judge;
- “(2) Sheriff;
- “(3) Circuit clerk;
- “(4) County clerk;
- “(5) Assessor;
- “(6) Coroner;
- “(7) Treasurer;
- “(8) County surveyor; and
- “(9) Collector of taxes.”

§§ 20 — 22. [Repealed.]

Publisher's Notes. These sections, concerning disqualification of judges, special judges of circuit courts, and exchange of circuits, were repealed by Ark. Const. Amend.

80, § 22(A), effective July 1, 2001. Ark. Const., Art. 7, §§ 21 and 22, had been previously repealed by the passage of Ark. Const. Amend. 77, § 3.

§ 23. Charge to juries.

Judges shall not charge juries with regard to matters of fact, but shall declare the law; and, in jury trials, shall reduce their charge or instructions to writing, on the request of either party.

§ 24. [Repealed.]

Publisher's Notes. This section, concerning prosecuting attorneys, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 25. [Repealed.]

Publisher's Notes. This section, concerning judges debarred from practice, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 26. Punishment of indirect contempt provided for by law.

The General Assembly shall have power to regulate, by law, the punishment of contempts; not committed in the presence or hearing of the courts, or in disobedience of process.

§ 27. Removal of county and township officers — Grounds.

The Circuit Court shall have jurisdiction upon information, presentment, or indictment, to remove any county or township officer from office for incompetency, corruption, gross immorality, criminal conduct, malfeasance, misfeasance or nonfeasance in office.

§ 28. County courts — Jurisdiction — Single judge holding court.

The County Courts shall have exclusive original jurisdiction in all matters relating to county taxes, roads, bridges, ferries, paupers, bastardy, vagrants, the apprenticeship of minors, the disbursement of money for county purposes, and in every other case that may be necessary to the internal improvement and local concerns of the respective counties. The County Court shall be held by one judge, except in cases otherwise herein provided.

Publisher's Notes. As to jurisdiction of matters relating to juveniles and bastardy, see Amendment 67.

§ 29. County judge — Election — Term — Qualifications.

The judge of the county court shall be elected by the qualified electors of the county for the term of four (4) years. He or she shall be at least twenty-five (25) years of age, a citizen of the United States, an individual of upright character, of good business education, and a resident of the state for two (2) years before his or her election; and a resident of the county at the time of his or her election, and during his or her continuance in office. [As amended by Const. Amend. 95.]

Publisher's Notes. Ark. Const. Amend. 95, which amended this section effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 747,856 for and 317,093 against. The amendment substituted “four (4) years” for “two years” in the first sentence, substituted “an individual” for “a man” in the second sentence, and made stylistic changes throughout.

Amend. 95, § 8(b) and (c), provided:

“(b) Persons elected to the following offices at the 2016 general election shall serve terms of two (2) years:

- “(1) County judge;
- “(2) Sheriff;
- “(3) Circuit clerk;
- “(4) County clerk;
- “(5) Assessor;

“(6) Coroner;

“(7) Treasurer;

“(8) County surveyor; and

“(9) Collector of taxes.

“(c) Persons elected to the following offices at the 2018 general election shall serve terms of four (4) years:

“(1) County judge;

“(2) Sheriff;

“(3) Circuit clerk;

“(4) County clerk;

“(5) Assessor;

“(6) Coroner;

“(7) Treasurer;

“(8) County surveyor; and

“(9) Collector of taxes.”

§ 30. Quorum court — County judge and justices of peace.

The Justices of the Peace of each county shall sit with and assist the County Judge in levying the county taxes, and in making appropriations for the expenses of the county, in the manner to be prescribed by law; and the County Judge, together with a majority of said Justices, shall constitute a quorum for such purposes; and in the absence of the County Judge a majority of the Justices of the Peace may constitute the court, who shall elect one of their number to preside. The General Assembly shall regulate by law the manner of compelling the attendance of such quorum.

§ 31. County court — Terms.

The terms of the County Courts shall be held at the times that are now prescribed for holding the Supervisors' Courts, or may hereafter be prescribed by law.

§ 32. [Repealed.]

Publisher's Notes. This section, concerning courts of common pleas, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 33. Appeals from county and common pleas courts.

Appeals from all judgments of County Courts or Courts of Common Pleas, when established, may be taken to the Circuit Court under such restrictions and regulations as may be prescribed by law.

§ 34. [Repealed.]

Publisher's Notes. This section, concerning probate courts, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001. This section, as amended by Ark.

Const. Amend. 24, § 1, was repealed by Ark. Const. Amend. 80, § 22(B).

§ 35. [Repealed.]

Publisher's Notes. This section, concerning appeals from probate court, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001. This section, as

amended by Ark. Const. Amend. 24, § 2, was repealed by Ark. Const. Amend. 80, § 22(B).

§ 36. Special judges of county or probate courts.

Whenever a Judge of the County or Probate Court may be disqualified from presiding, in any cause or causes pending in his court, he shall certify the facts to the Governor of the State, who shall thereupon commission a special judge to preside in such cause or causes during the time said disqualification may continue, or until such cause or causes may be finally disposed of.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

§ 37. Compensation of county judge — Powers during absence of circuit judge.

The County Judge shall receive such compensation for his services as presiding Judge of the County Court, as Judge of the Court of Probate and Judge of the Court of Common Pleas, when established, as may be provided by law. In the absence of the Circuit Judge from the county, the County Judge shall have power to issue orders for injunctions and other provisional writs in their counties, returnable to the court having jurisdiction; provided, that either party may have such order reviewed by any superior Judge in vacation in such manner as shall be provided by law. The County Judge shall have power, in the absence of the Circuit Judge from the county, to issue, hear and determine writs of habeas corpus, under such regulations and restrictions as shall be provided by law.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

§ 38. Justices of the peace — Election — Term — Oath.

The qualified electors of each township shall elect the Justices of the Peace for the term of two years; who shall be commissioned by the Governor, and their official oath shall be indorsed on the commission.

§ 39. [Repealed.]

Publisher's Notes. This section, concerning number of justices of the peace in each township, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 40. [Repealed.]

Publisher's Notes. This section, concerning jurisdiction of justices of the peace, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 41. Qualifications of justice of peace.

A Justice of the Peace shall be a qualified elector and a resident of the township for which he is elected.

§ 42. [Repealed.]

Publisher's Notes. This section, concerning appeals from justices of the peace, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 43. [Repealed.]

Publisher's Notes. This section, concerning corporation courts for towns and cities, was repealed by Ark. Const. Amend. 80, § 22(C), effective January 1, 2005.

§ 44. [Repealed.]

Publisher's Notes. This section, concerning the Pulaski Chancery Court, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 45. [Repealed.]

Publisher's Notes. This section, concerning the abolishment of separate criminal courts, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 46. County executive officers — Compensation of county assessor.

The qualified electors of each county shall elect one (1) sheriff, who shall be ex officio collector of taxes, unless otherwise provided by law; one (1) assessor, one (1) coroner, one (1) treasurer, who shall be ex officio treasurer of the common school fund of the county, and one (1) county surveyor for the term of four (4) years, with such duties as are now or may be prescribed by law provided that no per centum shall ever be paid to assessors upon the valuation or assessment of property by them. If a separate collector of taxes has been created by law for a county, the qualified electors of that county shall elect one (1) collector of taxes for a term of four (4) years, with duties as provided by law. [As amended by Const. Amend. 95.]

Publisher's Notes. Ark. Const. Amend. 95, which amended this section effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 747,856 for and 317,093 against. The amendment, in the first sentence, substituted "four (4) years" for "two years" and made stylistic changes, and added the second sentence.

Amend. 95, § 8(b) and (c), provided:

"(b) Persons elected to the following offices at the 2016 general election shall serve terms of two (2) years:

- "(1) County judge;
- "(2) Sheriff;
- "(3) Circuit clerk;
- "(4) County clerk;
- "(5) Assessor;

- "(6) Coroner;
- "(7) Treasurer;
- "(8) County surveyor; and
- "(9) Collector of taxes.

"(c) Persons elected to the following offices at the 2018 general election shall serve terms of four (4) years:

- "(1) County judge;
- "(2) Sheriff;
- "(3) Circuit clerk;
- "(4) County clerk;
- "(5) Assessor;
- "(6) Coroner;
- "(7) Treasurer;
- "(8) County surveyor; and
- "(9) Collector of taxes."

§ 47. Constables — Term of office — Certificate of election.

The qualified electors of each township shall elect the Constable for the term of two years, who shall be furnished, by the presiding Judge of the County Court, with a certificate of election, on which his official oath shall be indorsed.

§ 48. Commissions of officers.

All officers provided for in this article, except Constables, shall be commissioned by the Governor.

§ 49. Style of process and of indictments.

All writs and other judicial process, shall run in the name of the State of Arkansas, bear test and be signed by the clerks of the respective courts from which they issue. Indictments shall conclude: "Against the peace and dignity of the State of Arkansas."

§ 50. [Repealed.]

Publisher's Notes. This section, concerning vacancies for judicial offices described in Ark. Const., Art. 7, was repealed by Ark. Const. Amend. 80, § 22(A), effective July 1, 2001.

§ 51. Appeals from county or municipal allowances — Bond.

That in all cases of allowances made for or against counties, cities or towns, an appeal shall lie to the Circuit Court of the county, at the instance of the party aggrieved, or on the intervention of any citizen or resident and tax payer of such county, city or town, on the same terms and conditions on which appeals may be granted to the Circuit Court in other cases; and the matter pertaining to any such allowance shall be tried in the Circuit Court de novo. In case an appeal be taken by any citizen, he shall give a bond, payable to the proper county, conditioned to prosecute the appeal, and save the county from costs on account of the same being taken.

§ 52. Appeals in election contests.

That in all cases of contest for any county, township, or municipal office, an appeal shall lie at the instance of the party aggrieved, from any inferior board, council, or tribunal to the Circuit Court, on the same terms and conditions on which appeals may be granted to the Circuit Court in other cases, and on such appeals the case shall be tried de novo.

§ 53. County officers ineligible to civil office.

A person elected or appointed to any of the following county offices shall not, during the term for which he or she has been elected, be appointed or elected to any civil office in this state:

- (1) County judge;
- (2) Justice of the peace;
- (3) Sheriff;
- (4) Circuit clerk;
- (5) County clerk;
- (6) Assessor;
- (7) Coroner;
- (8) Treasurer;
- (9) County surveyor; or
- (10) Collector of taxes. [As added by Const. Amend. 95.]

Publisher's Notes. Ark. Const. Amend. 95, which adopted at the November 2016 general election by a vote of 747,856 for and 317,093 against, added this section effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and

ARTICLE 8

APPORTIONMENT — MEMBERSHIP IN GENERAL ASSEMBLY

SECTION.

1. Board of apportionment created — Powers and duties.
2. One hundred members in House of Representatives — Apportionment.
3. Senatorial districts — Thirty-five members of Senate.

SECTION.

4. Duties of Board of Apportionment.
5. Mandamus to compel Board of Apportionment to act.
6. Election of Senators and Representatives.

Publisher's Notes. Ark. Const. Amend. 23 rewrote this article. Before its amendment, the article read:

"SECTION 1. The House of Representatives shall consist of not less than seventy-three, nor more than one hundred members.

Each County now organized shall always be entitled to one Representative; the remainder to be apportioned among the several Counties according to the number of adult male inhabitants, taking two thousand as the ratio, until the number of Representatives amounts to one hundred, when they shall not be further increased, but the ratio of representation shall, from time to time, be increased as hereinafter provided; so that the Representatives shall never exceed that number. And until the enumeration of the inhabitants is taken by the United States government, A. D. 1880, the Representatives shall be apportioned among the several counties, as follows:

"The county of Arkansas shall elect one Representative. The county of Ashley shall elect one Representative. The county of Benton shall elect two Representatives. The county of Boone shall elect one Representative. The county of Bradley shall elect one Representative. The county of Baxter shall elect one Representative. The county of Calhoun shall elect one Representative. The county of Carroll shall elect one Representative. The county of Chicot shall elect one Representative. The county of Columbia shall elect two Representatives. The county of Clark shall elect two Representatives. The county of Conway shall elect one Representative. The county of Craighead shall elect one Representative. The county of Crawford shall elect one Representative. The county of Cross shall elect one Representative. The county of Crittenden shall elect one Representative. The county of Clayton shall elect one Representative. The county of Dallas shall elect one Representative. The county of Desha shall elect one Representative. The county of Drew shall elect one Representative. The county of Dorsey shall elect one Representative. The county of Franklin shall elect one Representative. The county of Fulton shall elect one Representative. The county of Faulkner shall elect one Representative. The county of Grant shall elect one Representative. The county of Greene shall elect one Representative. The county of Garland shall elect one Representative. The county of Hempstead shall elect two Representatives. The county of Hot Spring shall elect three Representatives. The county of Howard shall elect one Representative. The county of Independence shall elect two Representatives. The county of Izard shall elect one Representative. The county of Jackson shall elect one Representative. The county of Jefferson shall elect three Representatives. The county of Johnson shall elect one Representative. The county of Lafayette shall elect one Representative. The county of Lawrence shall elect one Representative. The county of Little River shall elect one Representative. The county of Lonoke shall elect two Representatives. The county of Lincoln shall elect one Representative. The county of Lee shall elect two Representatives. The county of Madison shall elect one Representative. The county of Marion shall elect one Representative.

tative. The county of Monroe shall elect one Representative. The county of Montgomery shall elect one Representative. The county of Mississippi shall elect one Representative. The county of Nevada shall elect one Representative. The county of Newton shall elect one Representative. The county of Ouachita shall elect two Representatives. The county of Perry shall elect one Representative. The county of Phillips shall elect three Representatives. The county of Pike shall elect one Representative. The county of Polk shall elect one Representative. The county of Pope shall elect one Representative. The county of Poinsett shall elect one Representative. The county of Pulaski shall elect four Representatives. The county of Prairie shall elect one Representative. The county of Randolph shall elect one Representative. The county of Saline shall elect one Representative. The county of Sarber shall elect one Representative. The county of Scott shall elect one Representative. The county of Searcy shall elect one Representative. The county of Sebastian shall elect two Representatives. The county of Sevier shall elect one Representative. The county of Sharp shall elect one Representative. The county of St. Francis shall elect one Representative. The county of Stone shall elect one Representative. The county of Union shall elect two Representatives. The county of Van Buren shall elect one Representative. The county of Washington shall elect three Representatives. The county of White shall elect two Representatives. The county of Woodruff shall elect one Representative. The county of Yell shall elect one Representative.

"SEC. 2. The Legislature shall, from time to time, divide the State into convenient Senatorial districts, in such manner that the Senate shall be based upon the adult male inhabitants of the State; each Senator representing an equal number as nearly as practicable, and until the enumeration of the inhabitants is taken by the United States government A. D. 1880, the districts shall be arranged as follows:

"The counties of Greene, Craighead and Clayton shall compose the First district, and elect one Senator.

"The counties of Randolph, Lawrence and Sharp shall compose the Second district, and elect one Senator.

"The counties of Carroll, Boone and Newton shall compose the Third district, and elect one Senator.

"The counties of Johnson and Pope shall compose the Fourth district, and elect one Senator.

"The county of Washington shall compose the Fifth district, and elect one Senator.

"The counties of Independence and Stone shall compose the Sixth district, and elect one Senator.

"The counties of Woodruff, St. Francis, Cross and Crittenden shall compose the Seventh district, and elect one Senator.

"The counties of Yell and Sarber shall compose the Eighth district, and elect one Senator.

"The counties of Saline, Hot Spring and Grant shall compose the Ninth district, and elect one Senator.

“The counties of Pulaski and Perry shall compose the Tenth district, and elect two Senators.

“The county of Jefferson shall compose the Eleventh district, and elect one Senator.

“The counties of Lonoke and Prairie shall compose the Twelfth district, and elect one Senator.

“The counties of Arkansas and Monroe shall compose the Thirteenth district, and elect one Senator.

“The counties of Phillips and Lee shall compose the Fourteenth district, and elect one Senator.

“The counties of Desha and Chicot shall compose the Fifteenth district, and elect one Senator.

“The counties of Lincoln, Dorsey and Dallas shall compose the Sixteenth district, and elect one Senator.

“The counties of Drew and Ashley shall compose the Seventeenth district, and elect one Senator.

“The counties of Bradley and Union shall compose the Eighteenth district, and elect one Senator.

“The counties of Calhoun and Ouachita shall compose the Nineteenth district, and elect one Senator.

“The counties of Hempstead and Nevada shall compose the Twentieth district, and elect one Senator.

“The counties of Columbia and Lafayette shall compose the Twenty-first district, and elect one Senator.

“The counties of Little River, Sevier, Howard, and Polk shall compose the Twenty-second district, and elect one Senator.

“The counties of Fulton, Izard, Marion and Baxter shall compose the Twenty-third district, and elect one Senator.

“The counties of Benton and Madison shall compose the Twenty-fourth district and elect one Senator.

“The counties of Crawford and Franklin shall compose the Twenty-fifth district, and elect one Senator.

“The counties of Van Buren, Conway and Searcy shall compose the Twenty-sixth district, and elect one Senator.

“The counties of White and Faulkner shall compose the Twenty-seventh district, and elect one Senator.

“The counties of Sebastian and Scott shall compose the Twenty-eighth district, and elect one Senator.

“The counties of Poinsett, Jackson and Mississippi shall compose the Twenty-ninth district, and elect one Senator.

“The counties of Clark, Pike and Montgomery shall compose the Thirtieth district, and elect one Senator.

“And the Senate shall never consist of less than thirty, nor more than thirty-five members.

“Sec. 3. Senatorial districts shall at all times consist of contiguous territory, and no county shall be divided in the formation of a senatorial district.

“Sec. 4. The division of the State into Senatorial districts, and the apportionment of Representatives to the several counties, shall be made by the General Assembly at the first regular session after each enumeration of the inhabitants of the State by the Federal or the State government, shall have been ascertained, and at no other time.”

Ark. Const. Amend. 45 amended the article as amended by Ark. Const. Amend. 23. See Publisher’s Notes following §§ 1-6 for details of amendments to each section.

§ 1. Board of apportionment created — Powers and duties.

A Board to be known as “The Board of Apportionment,” consisting of the Governor (who shall be Chairman), the Secretary of State and the Attorney General is hereby created and it shall be its imperative duty to make apportionment of representatives in accordance with the provisions hereof; the action of a majority in each instance shall be deemed the action of said board. [As amended by Const. Amend. 23; Const. Amend. 45.]

Publisher’s Notes. Before amendment by Ark. Const. Amend. 45, this section read: “A board to be known as ‘The Board of Apportionment,’ consisting of the Governor (who shall be Chairman), the Secretary of State and the Attorney General is hereby created and it shall be its imperative

duty to make apportionment of representatives and senators in accordance with the provisions hereof; the action of a majority in each instance shall be deemed the action of said Board. [As amended by Const. Amend. 23.]”

§ 2. One hundred members in House of Representatives — Apportionment.

The House of Representatives shall consist of one hundred members and each county existing at the time of any apportionment shall have at least one representative; the remaining members shall be equally distributed (as nearly as practicable) among the more populous counties of the State, in accordance with a ratio to be determined by the population of said counties as shown by the Federal census next preceding any apportionment hereunder. [As amended by Const. Amend. 23; Const. Amend. 45.]

Publisher’s Notes. The provision of this section requiring a representative from each county was held unconstitutional, under the U.S. Constitution, in *Yancey v. Faubus*, 238 F. Supp. 290 (E.D. Ark. 1965), and *Wells v. White*, 274

Ark. 197, 623 S.W.2d 187 (1981), cert. denied, 456 U.S. 906, 102 S. Ct. 1753, 72 L. Ed. 2d 163 (1982).

Ark. Const. Amend. 45 made no change in the language of this section.

§ 3. Senatorial districts — Thirty-five members of Senate.

The Senate shall consist of thirty-five members. Senatorial districts shall at all times consist of contiguous territory, and no county shall be divided in the formation of such districts. “The

Board of Apportionment” hereby created shall, from time to time, divide the state into convenient senatorial districts in such manner as that the Senate shall be based upon the inhabitants of the state, each senator representing, as nearly as practicable, an equal number thereof; each district shall have at least one senator. [As amended by Const. Amend. 23.]

Publisher’s Notes. The provision of this section prohibiting the division of counties was held unconstitutional, under the U.S. Constitution, in *Wells v. White*, 274 Ark. 197, 623 S.W.2d 187 (1981), cert. denied, 456 U.S. 906, 102 S. Ct. 1753, 72 L. Ed. 2d 163 (1982).

An amendment to this section by Ark. Const. Amend. 45 was declared unconstitutional in *Yancey v. Faubus*, 238 F. Supp. 290 (E.D. Ark. 1965). As so amended, the section

would have read: “The Senate shall consist of thirty-five members. Senatorial districts as now constituted and existing as heretofore directed by the Supreme Court of Arkansas in the case of *Pickens v. Board of Apportionment*, 220 Ark. 145, 246 S.W.2d 556, shall remain the same and the number of Senators from the districts shall not be changed.”

§ 4. Duties of Board of Apportionment.

On or before February 1 immediately following each Federal census, said board shall reapportion the State for Representatives, and in each instance said board shall file its report with the Secretary of State, setting forth (a) the basis of population adopted for representatives; (b) the number of representatives assigned to each county; whereupon, after 30 days from such filing date, the apportionment thus made shall become effective unless proceedings for revision be instituted in the Supreme Court within said period. [As amended by Const. Amend. 23; Const. Amend. 45.]

Publisher’s Notes. Before amendment by Ark. Const. Amend. 45, this section read: “The Board shall make the first apportionment within ninety days from January 1, 1937; thereafter, on or before February 1 immediately following each Federal census, said Board shall apportion the State for both Representatives and Senators, and in each instance said Board shall file its report with the Secretary of State, setting forth (a) the basis of population

adopted for representatives; (b) the basis for senators; (c) the number of representatives assigned to each county; (d) the counties comprising each senatorial district and the number of senators assigned to each, whereupon, after thirty days from filing date, the apportionment thus made shall become effective unless proceedings for revision shall be instituted in the Supreme Court within said period. [As amended by Const. Amend. 23.]”

§ 5. Mandamus to compel Board of Apportionment to act.

Original jurisdiction (to be exercised on application of any citizens and taxpayers) is hereby vested in the Supreme Court of the State (a) to compel (by mandamus or otherwise) the board to perform its duties as here directed and (b) to revise any arbitrary action of or abuse of discretion by the board in making such apportionment; provided any such application for revision shall be filed with said Court within 30 days after the filing of the report of apportionment by said board with the Secretary of State; if revised by the court, a certified copy of its judgment shall be by the clerk thereof forthwith transmitted to the Secretary of State, and thereupon be and become a substitute for the apportionment made by the board. [As added by Const. Amend. 23; as amended by Const. Amend. 45.]

Publisher’s Notes. Ark. Const. Amend. 45 made no change in the language of this section.

§ 6. Election of Senators and Representatives.

At the next general election for State and County officers ensuing after any such apportionment, Representatives shall be elected in accordance therewith, Senators shall be elected henceforth according to the apportionment now existing, and their respective terms of office shall begin on January 1 next following. Senators shall be elected for a term of four years at the expiration of their present terms of office. [As added by Const. Amend. 23; as amended by Const. Amend. 45.]

Publisher’s Notes. Although Ark. Const. Amend. 45 amended this section to read as it appears above, the court held in *Williams v. Elrod*, 244 Ark. 671, 426 S.W.2d 797 (1968) that the lot drawing provisions of Const. Amend. 23

were not in conflict with the provisions of Const. Amend. 45 and are still valid. As added by Const. Amend. 23, this section read: “At the next general election for State and County officers ensuing after such apportionment, senators

and representatives shall be elected in accordance therewith and their respective terms of office shall begin on January 1 next following. At the first regular session succeeding any apportionment so made, the Senate shall

be divided into two classes by lot, eighteen of whom shall serve a period of two years and the remaining seventeen for four years, after which all shall be elected for four years until the next reapportionment hereunder.”

ARTICLE 9

EXEMPTION

SECTION.

1. Personal property exemptions of persons not heads of families.
2. Heads of families — Exempt personal property.
3. Homestead exemption from legal process — Exceptions.
4. Rural homestead — Acreage — Value.
5. Urban homestead — Acreage — Value.

SECTION.

6. Rights of widow and children.
7. Married woman's separate property — Right of disposition — Not liable for debts of husband.
8. Scheduling separate personal property of wife.
9. Exemptions under Constitution of 1868 — Existing obligations.
10. Homestead rights of minor children.

§ 1. Personal property exemptions of persons not heads of families.

The personal property of any resident of this State, who is not married or the head of a family, in specific articles to be selected by such resident, not exceeding in value the sum of two hundred dollars, in addition to his or her wearing apparel, shall be exempt from seizure on attachment, or sale on execution or other process from any court, issued for the collection of any debt by contract: Provided, That no property shall be exempt from execution for debts contracted for the purchase money therefor while in the hands of the vendee.

§ 2. Heads of families — Exempt personal property.

The personal property of any resident of this State, who is married or the head of a family, in specific articles to be selected by such resident, not exceeding in value the sum of five hundred dollars, in addition to his or her wearing apparel, and that of his or her family, shall be exempt from seizure on attachment, or sale on execution or other process from any court, on debt by contract.

§ 3. Homestead exemption from legal process — Exceptions.

The homestead of any resident of this State, who is married or the head of a family, shall not be subject to the lien of any judgment or decree of any court, or to sale under execution, or other process thereon, except such as may be rendered for the purchase money, or for specific liens, laborers' or mechanics' liens for improving the same, or for taxes, or against executors, administrators, guardians, receivers, attorneys for moneys collected by them, and other trustees of an express trust, for moneys due from them in their fiduciary capacity.

§ 4. Rural homestead — Acreage — Value.

The homestead outside any city, town or village, owned and occupied as a residence, shall consist of not exceeding one hundred and sixty acres of land, with the improvements thereon, to be selected by the owner; Provided, The same shall not exceed in value the sum of twenty-five hundred dollars, and in no event shall the homestead be reduced to less than eighty acres, without regard to value.

§ 5. Urban homestead — Acreage — Value.

The homestead in any city, town or village, owned and occupied as a residence, shall consist of not exceeding one acre of land, with the improvements thereon, to be selected by the owner; provided, the same shall not exceed in value the sum of two thousand five hundred dollars, and in no event shall such homestead be reduced to less than one-quarter of an acre of land, without regard to value.

§ 6. Rights of widow and children.

If the owner of a homestead die, leaving a widow, but no children, and said widow has no separate homestead in her own right, the same shall be exempt, and the rents and profits thereof shall vest in her during her natural life; Provided, That if the owner leaves children, one or more, said child or children shall share with said widow, and be entitled to half the rents and profits till each of them arrives at twenty-one years of age — each child's rights to cease at twenty-one years of age — and the shares to go to the younger children; and then all to go to the widow; and, provided, that said widow or children may reside on the homestead or not. And in case of the death of the widow, all of said homestead shall be vested in the minor children of the testator or intestate.

Publisher's Notes. In *Hess v. Wims*, 272 Ark. 43, 613 S.W.2d 85 (1981), this section, as applied, was held to violate the equal protection clause of the U.S. Constitution in that it discriminated between widows and widowers. See

also *Stokes v. Stokes*, 271 Ark. 300, 613 S.W.2d 372 (1981). For current, gender-neutral homestead exemption act, see § 16-66-210.

§ 7. Married woman's separate property — Right of disposition — Not liable for debts of husband.

The real and personal property of any femme covert in this State, acquired either before or after marriage, whether by gift, grant, inheritance, devise or otherwise, shall, so long as she may choose, be and remain her separate estate and property, and may be devised, bequeathed or conveyed by her the same as if she were a femme sole; and the same shall not be subject to the debts of her husband.

§ 8. Scheduling separate personal property of wife.

The General Assembly shall provide for the time and mode of scheduling the separate personal property of married women.

§ 9. Exemptions under Constitution of 1868 — Existing obligations.

The exemptions contained in the Constitution of 1868 shall apply to all debts contracted since the adoption thereof, and prior to the adoption of this Constitution.

Publisher's Notes. This Constitution was ratified by the people October 13, 1874, and its adoption was proclaimed October 30, 1874. See Proclamation by state board of election supervisors, following Schedule to Constitution.

A constitutional convention was held in accordance with

Acts 1977 (1st Ex. Sess.), No. 3, as amended by Acts 1979, No. 622, and a new constitution was proposed. The proposed constitution was defeated at the general election held November 4, 1980. Returns: For 276,257; Against 464,210.

§ 10. Homestead rights of minor children.

The homestead provided for in this article shall inure to the benefit of the minor children, under the exemptions herein provided, after the decease of the parents.

ARTICLE 10

AGRICULTURE, MINING AND MANUFACTURE

SECTION.

1. Mining, manufacturing and agricultural bureau — State aid.
2. State geologist — Creation of office — Appointment and removal.

SECTION.

3. Exemption of mines and manufactures from taxation.

§ 1. Mining, manufacturing and agricultural bureau — State aid.

The General Assembly shall pass such laws as will foster and aid the agricultural, mining and manufacturing interests of the State, and may create a bureau, to be known as the Mining, Manufacturing and Agricultural Bureau.

Publisher's Notes. A "bureau of mines, manufactures and agriculture" was created by Act March 7, 1889, No. 30 and abolished by Acts 1933, No. 153.

§ 2. State geologist — Creation of office — Appointment and removal.

The General Assembly, when deemed expedient, may create the office of State Geologist, to be appointed by the Governor, by and with the advice and consent of the Senate, who shall hold his office for such time, and perform such duties, and receive such compensation as may be prescribed by law; Provided: That he shall be at all times subject to removal by the Governor, for incompetency or gross neglect of duty.

§ 3. Exemption of mines and manufactures from taxation.

The General Assembly may, by general law, exempt from taxation for the term of seven years from the ratification of this Constitution, the capital invested in any or all kinds of mining and manufacturing business in this State, under such regulations and restrictions as may be prescribed by law.

ARTICLE 11**MILITIA****SECTION.**

1. Persons liable to military duty.
2. Volunteer companies.

SECTION.

3. Privilege of members from arrest.
4. Authority to call out volunteers or militia.

§ 1. Persons liable to military duty.

The militia shall consist of all able-bodied male persons, residents of the State, between the ages of eighteen and forty-five years; except such as may be exempted by the laws of the United States, or this State; and shall be organized, officered, armed and equipped and trained in such manner as may be provided by law.

§ 2. Volunteer companies.

Volunteer Companies of Infantry, Cavalry or Artillery may be formed in such manner and with such restrictions as may be provided by law.

§ 3. Privilege of members from arrest.

The volunteer and militia forces shall in all cases (except treason, felony and breach of the peace) be privileged from arrest during their attendance at muster and the election of officers, and in going to and returning from the same.

§ 4. Authority to call out volunteers or militia.

The Governor shall, when the General Assembly is not in session, have power to call out the Volunteers or Militia, or both, to execute the laws, repel invasion, repress insurrection and preserve the public peace; in such manner as may be authorized by law.

ARTICLE 12

MUNICIPAL AND PRIVATE CORPORATIONS

SECTION.

1. Revocation of certain charters.
2. Special acts prohibited — Exception.
3. Cities and towns — Organization under general laws.
4. Limitation on legislative and taxing power — Local bond issues.
5. Political subdivisions not to become stockholders in or lend credit to private corporations — Exceptions.
6. General incorporation laws — Charters — Revocation.

SECTION.

7. State not to be stockholder.
8. Private corporations — Issuance of stocks or bonds — Conditions and restrictions.
9. Taking of property by corporation — Compensation.
10. Issue of circulating paper.
11. Foreign corporations doing business in state.
12. State not to assume liabilities of political subdivisions or private corporations — Indebtedness to state — Release.

§ 1. Revocation of certain charters.

All existing charters or grants of special or exclusive privileges, under a bona fide organization shall not have taken place, and business been commenced in good faith, at the time of the adoption of this Constitution, shall thereafter have no validity.

§ 2. Special acts prohibited — Exception.

The General Assembly shall pass no special act conferring corporate powers, except for charitable, educational, penal or reformatory purposes, where the corporations created are to be and remain under the patronage and control of the state.

§ 3. Cities and towns — Organization under general laws.

The General Assembly shall provide, by general laws, for the organization of cities (which may be classified) and incorporated towns; and restrict their power of taxation, assessment, borrowing money and contracting debts, so as to prevent the abuse of such power.

§ 4. Limitation on legislative and taxing power — Local bond issues.

No municipal corporation shall be authorized to pass any laws contrary to the general laws of the state; nor levy any tax on real or personal property to a greater extent, in one year, than five mills on the dollar of the assessed value of the same; Provided: That, to pay indebtedness existing at the time of the adoption of this Constitution, an additional tax of not more than five mills on the dollar, may be levied.

The fiscal affairs of counties, cities and incorporated towns shall be conducted on a sound financial basis, and no county court or levying board or agent of any county shall make or authorize any contract or make any allowance for any purpose whatsoever in excess of the revenue from all sources for the fiscal year in which said contract or allowance is made; nor shall any county judge, county clerk, or other county officer, sign or issue any scrip warrant or make any allowance in excess of the revenue from all sources for the current fiscal year; nor shall any city council, board of aldermen, board of public affairs, or commissioners, of any city of the first or second class, or any incorporated town, enter into any contract or make any allowance for any purpose whatsoever, or authorize the issuance of any contract or warrants, scrip or other evidences of indebtedness in excess of the revenue for such city or town for the current fiscal year; nor shall any mayor, city clerk, or recorder, or any other officer or officers, however designated, of any city of the first or second class or incorporated town sign or issue scrip, warrant or other certificate of indebtedness of excess of the revenue from all sources for the current fiscal year.

Provided, however, to secure funds to pay indebtedness outstanding at the time of the adoption of this amendment, counties, cities, and incorporated towns may issue interest bearing certificates of indebtedness or bonds with interest coupons for the payment of which a county or city tax, in addition to that now authorized, not exceeding three mills may be levied for the time as provided by law until such indebtedness is paid.

Where the annual report of any city or county in the State of Arkansas shows that scrip, warrants or other certificate of indebtedness had been issued in excess of the total revenue for that year, the officer or officers of the county or city or incorporated town who authorized, signed or issued such scrip, warrants or other certificates of indebtedness shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be fined in any sum not less than five hundred dollars nor more than ten thousand dollars, and shall be removed from office. [As amended by Const. Amend. 10.]

Publisher's Notes. Ark. Const. Amend. 10 added the last three paragraphs.

§ 5. Political subdivisions not to become stockholders in or lend credit to private corporations — Exceptions.

(a) No county, city, town or other municipal corporation, shall become a stockholder in any company, association, or corporation; or obtain or appropriate money for, or loan its credit to, any corporation, association, institution or individual.

(b) However, a county, city, town, or other municipal corporation may obtain or appropriate money for a corporation, association, institution, or individual to:

- (1) Finance economic development projects; or
- (2) Provide economic development services.

(c) As used in this section:

(1) “Economic development projects” means the land, buildings, furnishings, equipment, facilities, infrastructure, and improvements that are required or suitable for the development, retention, or expansion of:

- (A) Manufacturing, production, and industrial facilities;
- (B) Research, technology, and development facilities;

(C) Recycling facilities;

(D) Distribution centers;

(E) Call centers;

(F) Warehouse facilities;

(G) Job training facilities;

(H) Regional or national corporate headquarters facilities; and

(I) Sports complexes designed to host local, state, regional, and national competitions, including without limitation baseball, softball, and other sports tournaments;

(2) “Economic development services” means:

(A) Planning, marketing, and strategic advice and counsel regarding job recruitment, job development, job retention, and job expansion;

(B) Supervision and operation of industrial parks or other such properties; and

(C) Negotiation of contracts for the sale or lease of industrial parks or other such properties; and

(3) “Infrastructure” means:

(A) Land acquisition;

(B) Site preparation;

(C) Road and highway improvements;

(D) Rail spur, railroad, and railport construction;

(E) Water service;

(F) Wastewater treatment;

(G) Employee training which may include equipment for such purpose; and

(H) Environmental mitigation or reclamation.

(d) The General Assembly, by a three-fourths vote of each house, may amend the provisions of subsections (b) and (c) of this section so long as the amendments are germane to this section and consistent with its policy and purposes. [As amended by Const. Amend. 97; Acts 2019, No. 1072, § 1.]

Publisher's Notes. Ark. Const. Amend. 97, which amended this section, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. The amendment added (b) through (d), and was

effective thirty days after the election pursuant to § 7-9-119.

Amend. 97, § 1, provided: "INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development."

§ 6. General incorporation laws — Charters — Revocation.

Corporations may be formed under general laws; which laws may, from time to time, be altered or repealed. The General Assembly shall have the power to alter, revoke or annul any charter of incorporation now existing and revocable at the adoption of this Constitution, or any that may hereafter be created, whenever, in their opinion, it may be injurious to the citizens of this State; in such manner, however, that no injustice shall be done to the corporators.

§ 7. State not to be stockholder.

Except as herein provided, the State shall never become a stockholder in, or subscribe to, or be interested in the stock of any corporation or association.

§ 8. Private corporations — Issuance of stocks or bonds — Conditions and restrictions.

No private corporation shall issue stocks or bonds, except for money or property actually received, or labor done; and all fictitious increase of stock or indebtedness shall be void; nor shall the stock or bonded indebtedness of any private corporation be increased, except in pursuance of general laws; nor until the consent of the persons holding the larger amount, in value, of stock, shall be obtained at a meeting held after notice given, for a period not less than sixty days, in pursuance of law.

§ 9. Taking of property by corporation — Compensation.

No property, nor right of way, shall be appropriated to the use of any corporation, until full compensation therefor shall be first made to the owner, in money; or first secured to him by a deposit of money; which compensation, irrespective of any benefit from any improvement proposed by such corporation, shall be ascertained by a jury of twelve men, in a court of competent jurisdiction, as shall be prescribed by law.

§ 10. Issue of circulating paper.

No act of the General Assembly shall be passed authorizing the issue of bills, notes, or other paper which may circulate as money.

§ 11. Foreign corporations doing business in state.

Foreign corporations may be authorized to do business in this State, under such limitations and restrictions as may be prescribed by law; Provided: That no such corporation shall do any business in this State, except while it maintains therein one or more known places of business, and an authorized agent or agents in the same, upon whom process may be served; and, as to contracts made or business done in this State, they shall be subject to the same regulations, limitations and liabilities as like corporations of this State; and shall exercise no other or greater powers, privileges or franchises than may be exercised by like corporations of this State; nor shall they have power to condemn or appropriate private property.

§ 12. State not to assume liabilities of political subdivisions or private corporations — Indebtedness to state — Release.

Except as herein otherwise provided, the State shall never assume, or pay the debt or liability of any county, town, city or other corporation whatever; or any part thereof; unless such debt or liability shall have been created to repel invasion, suppress insurrection, or to provide for the

public welfare and defense. Nor shall the indebtedness of any corporation to the State, ever be released, or in any manner discharged, save by payment into the public treasury.

ARTICLE 13

COUNTIES, COUNTY SEATS AND COUNTY LINES

SECTION.

1. Size of counties — Exceptions.
2. Consent of voters to change of county lines.
3. Change of county seats — Conditions — New counties.

SECTION.

4. Lines of new counties — Distance from county seat of adjoining county — Exception.
5. Sebastian County — Districts.

§ 1. Size of counties — Exceptions.

No county now established shall be reduced to an area of less than six hundred square miles, nor to less than five thousand inhabitants: nor shall any new county be established with less than six hundred square miles and five thousand inhabitants: Provided, that this section shall not apply to the counties of Lafayette, Pope and Johnson, nor be so construed as to prevent the General Assembly from changing the line between the counties of Pope and Johnson.

§ 2. Consent of voters to change of county lines.

No part of a county shall be taken off to form a new county, or a part thereof, without the consent of a majority of the voters in such part proposed to be taken off.

§ 3. Change of county seats — Conditions — New counties.

No county seat shall be established or changed without the consent of a majority of the qualified voters of the county to be affected by such change, nor until the place at which it is proposed to establish or change such county seat shall be fully designated: Provided, That in formation of new counties, the county seat may be located temporarily by provisions of law.

§ 4. Lines of new counties — Distance from county seat of adjoining county — Exception.

In the formation of new counties no line thereof shall run within ten miles of the county seat of the county proposed to be divided, except the county seat of Lafayette County.

§ 5. Sebastian County — Districts.

Sebastian County may have two districts and two county seats, at which county, probate and circuit courts shall be held as may be provided by law, each district paying its own expenses.

ARTICLE 14

EDUCATION

SECTION.

1. Free school system.
2. School fund — Use — Purposes.

SECTION.

3. School tax — Budget — Approval of tax rate.
4. Supervision of schools.

§ 1. Free school system.

Intelligence and virtue being the safeguards of liberty and the bulwark of a free and good government, the State shall ever maintain a general, suitable and efficient system of free public schools and shall adopt all suitable means to secure to the people the advantages and opportunities of education. The specific intention of this amendment is to authorize that in addition to existing constitutional or statutory provisions the General Assembly and/or public

school districts may spend public funds for the education of persons over twenty-one (21) years of age and under six (6) years of age, as may be provided by law, and no other interpretation shall be given to it. [As amended by Const. Amend. 53.]

Publisher's Notes. Before amendment this section read: "Intelligence and virtue being the safeguards of liberty, and the bulwark of a free and good government, the State shall ever maintain a general, suitable and efficient

system of free schools, whereby all persons in the State, between the ages of six and twenty-one years, may receive gratuitous instruction."

§ 2. School fund — Use — Purposes.

No money or property belonging to the public school fund, or to this State, for the benefit of schools or universities, shall ever be used for any other than for the respective purposes to which it belongs.

§ 3. School tax — Budget — Approval of tax rate.

(a) The General Assembly shall provide for the support of common schools by general law. In order to provide quality education, it is the goal of this state to provide a fair system for the distribution of funds. It is recognized that, in providing such a system, some funding variations may be necessary. The primary reason for allowing such variations is to allow school districts, to the extent permissible, to raise additional funds to enhance the educational system within the school district. It is further recognized that funding variations or restrictions thereon may be necessary in order to comply with, or due to, other provisions of this Constitution, the United States Constitution, state or federal laws, or court orders.

(b)(1) There is established a uniform rate of ad valorem property tax of twenty-five (25) mills to be levied on the assessed value of all taxable real, personal, and utility property in the state to be used solely for maintenance and operation of the schools.

(2) Except as provided in this subsection the uniform rate of tax shall not be an additional levy for maintenance and operation of the schools but shall replace a portion of the existing rate of tax levied by each school district available for maintenance and operation of schools in the school district. The rate of tax available for maintenance and operation levied by each school district on the effective date of this amendment shall be reduced to reflect the levy of the uniform rate of tax. If the rate of tax available for maintenance and operation levied by a school district on the effective date of this amendment exceeds the uniform rate of tax, the excess rate of tax shall continue to be levied by the school district until changed as provided in subsection (c)(1). If the rate of tax available for maintenance and operation levied by a school district on the effective date of this amendment is less than the uniform rate of tax, the uniform rate of tax shall nevertheless be levied in the district.

(3) The uniform rate of tax shall be assessed and collected in the same manner as other school property taxes, but the net revenues from the uniform rate of tax shall be remitted to the State Treasurer and distributed by the state to the school districts as provided by law. No portion of the revenues from the uniform rate of tax shall be retained by the state. The revenues so distributed shall be used by the school districts solely for maintenance and operation of schools.

(4) The General Assembly may by law propose an increase or decrease in the uniform rate of tax and submit the question to the electors of the state at the next general election. If a majority of the electors of the state voting on the issue vote For the proposed increase or decrease in the uniform rate of tax, the uniform rate of tax shall be increased or decreased as approved. If a majority of the electors of the state voting on the issue vote Against the proposed increase or decrease in the uniform rate of tax, the uniform rate of tax shall continue to be levied at the rate for the year in which the election is held.

(c)(1) In addition to the uniform rate of tax provided in subsection (b), school districts are authorized to levy, by a vote of the qualified electors respectively thereof, an annual ad valorem property tax on the assessed value of taxable real, personal, and utility property for the maintenance and operation of schools and the retirement of indebtedness. The Board of Directors

of each school district shall prepare, approve and make public not less than sixty (60) days in advance of the annual school election a proposed budget of expenditures deemed necessary to provide for the foregoing purposes, together with a rate of tax levy sufficient to provide the funds therefor, including the rate under any continuing levy for the retirement of indebtedness. The Board of Directors shall submit the tax at the annual school election or at such other time as may be provided by law. If a majority of the qualified voters in the school district voting in the school election approve the rate of tax proposed by the Board of Directors, then the tax at the rate approved shall be collected as provided by law. In the event a majority of the qualified electors voting in the school election disapprove the proposed rate of tax, then the tax shall be collected at the rate approved in the last preceding school election. However, if the rate last approved has been modified pursuant to subsection (b) or (c)(2) of this section, then the tax shall be collected at the modified rate until another rate is approved.

(2) The tax levied by a school district pursuant to subsection (c)(1) of this section may be reduced pursuant to procedures provided by law if the tax would cause the state or district to be out of compliance with any other provision of this Constitution, the United States Constitution, state or federal law, or court order.

(3) No tax levied pursuant to subsection (c)(1) of this section shall be appropriated to any other district than that for which it is levied.

(d) For the purposes of this section, “maintenance and operation” means such expenses for the general maintenance and operation of schools as may be defined by law. [As amended by Const. Amend. 11; Const. Amend. 40; Const. Amend. 74.]

Publisher’s Notes. Before amendment, this section read: “The General Assembly shall provide, by general laws, for the support of Common Schools by taxes, which shall never exceed in any one year two mills on the dollar on the taxable property of the State; and by an annual per capita tax of one dollar, to be assessed on every male inhabitant of this State over the age of twenty-one years; Provided, The General Assembly may, by general law, authorize school districts to levy, by a vote of the qualified electors of such district, a tax not to exceed five mills on the dollar in any one year for school purposes; Provided further, That no such tax shall be appropriated to any other purpose, nor to any other district than that for which it was levied.”

An amendment adopted in 1906 (see Acts 1905, p. 833) raised the two-mill state tax to three mills and raised the authorized five-mill district tax to seven mills.

An amendment adopted in 1916 (see Acts 1917, p. 2304) raised the authorized seven-mill district tax to twelve mills.

As amended by Ark. Const. Amend. 11, this section read: “The General Assembly shall provide by the general laws for support of common schools by taxes, which shall never exceed in any one year three mills on the dollar on the taxable property in the state, and by an annual per capita tax of one dollar, to be assessed on every male inhabitant of this State over the age of twenty-one-years. Provided that the General Assembly may, by general law, authorize school districts to levy by a vote of the qualified electors of such districts a tax not to exceed eighteen mills on the dollar in any one year for the maintenance of schools, the erection and equipment of school buildings and the retirement of existing indebtedness for buildings.

“Provided further that no such tax shall be appropriated for any other purpose nor to any other district than that for which it was levied.”

As amended by Ark. Const. Amend. 40, this section read: “The General Assembly shall provide for the support of common schools by general law, including an annual per capita tax of one dollar, to be assessed on every male

inhabitant of this State over the age of twenty-one years; and school districts are hereby authorized to levy by a vote of the qualified electors respectively thereof an annual tax for the maintenance of schools, the erection and equipment of school buildings and the retirement of existing indebtedness, the amount of such tax to be determined in the following manner:

“The Board of Directors of each school district shall prepare, approve and make public not less than sixty (60) days in advance of the annual school election a proposed budget of expenditures deemed necessary to provide for the foregoing purposes, together with a rate of tax levy sufficient to provide the funds therefor, including the rate under any continuing levy for the retirement of indebtedness. If a majority of the qualified voters in said school district voting in the annual school election shall approve the rate of tax so proposed by the Board of Directors, then the tax at the rate so approved shall be collected as provided by law. In the event a majority of said qualified electors voting in said annual school election shall disapprove the proposed rate of tax, then the tax shall be collected at the rate approved in the last preceding annual school election.

“Provided, that no such tax shall be appropriated for any other purpose nor to any other district than that for which it is levied.”

Ark. Const. Amend. 74, which amended this section, was proposed by S.J.R. 10 of 1995 and was adopted at the general election on November 5, 1996, and approved by a vote of 407,719 for and 378,017 against.

Ark. Const. Amend. 74, § 2, provided: “Nothing in this amendment shall be construed to diminish the authority of school districts over the supervision of public schools.”

Ark. Const. Amend. 74, § 3, provided: “Any provision of the Constitution of the State of Arkansas in conflict with this Amendment is repealed in so far as it is in conflict with this Amendment.”

Effective Dates.

Ark. Const. Amend. 74, § 4: effective on adoption and shall apply to taxes due in 1997 and thereafter.

§ 4. Supervision of schools.

The supervision of public schools, and the execution of the laws regulating the same, shall be vested in and confided to, such officers as may be provided for by the General Assembly.

ARTICLE 15

IMPEACHMENT AND ADDRESS

SECTION.

1. Officers subject to impeachment — Grounds.
2. Impeachment by House — Trial by Senate — Presiding officer.

SECTION.

3. Officers removable by Governor upon address.

§ 1. Officers subject to impeachment — Grounds.

The Governor and all State officers, Judges of the Supreme and Circuit Courts, Chancellors and Prosecuting Attorneys, shall be liable to impeachment for high crimes and misdemeanors, and gross misconduct in office; but the judgment shall go no further than removal from office and disqualification to hold any office of honor, trust or profit under this State. An impeachment, whether successful or not, shall be no bar to an indictment.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

§ 2. Impeachment by House — Trial by Senate — Presiding officer.

The House of Representatives shall have the sole power of impeachment. All impeachments shall be tried by the Senate. When sitting for that purpose, the Senators shall be upon oath or affirmation; no person shall be convicted without the concurrence of two-thirds of the members thereof. The Chief Justice shall preside, unless he is impeached or otherwise disqualified, when the Senate shall select a presiding officer.

§ 3. Officers removable by Governor upon address.

The governor, upon the joint address of two-thirds of all the members elected to each House of the General Assembly, for good cause, may remove the Auditor, Treasurer, Secretary of State, Attorney-General, Judges of the Supreme and Circuit Courts, Chancellors and Prosecuting Attorneys.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

ARTICLE 16

FINANCE AND TAXATION

SECTION.

1. Lending credit — Bond issues — Interest-bearing warrants.
2. Debts of state — Payment.
3. Making profit out of or misusing public funds — Penalty.
4. Salaries and fees of state officers.
5. Property taxed according to value — Procedures for valuation — Tax exemptions.
6. Other tax exemptions forbidden.
7. Taxation of corporate property.
8. Maximum rate of state taxes.

SECTION.

9. County taxes — Limitation.
10. Payment of county and municipal taxes.
11. Levy and appropriation of taxes.
12. Disbursement of funds — Appropriation required.
13. Illegal exactions.
14. Procedure for adjustment of taxes after reappraisal or reassessment of property.
15. Assessment of residential property and agricultural, pasture, timber, residential and commercial land.
16. Providing for exemption of value of residence of person 65 or over.

§ 1. Lending credit — Bond issues — Interest-bearing warrants.

Neither the State nor any city, county, town or other municipality in this State shall ever lend its credit for any purpose whatever; nor shall any county, city or town or municipality ever issue any interest bearing evidences of indebtedness, except such bonds as may be authorized by law to provide for and secure the payment of the indebtedness existing at the time of the adoption of the Constitution of 1874, and the State shall never issue any interest-bearing treasury warrants or scrip. [As amended in 1918 — see Publisher's Notes.]

Publisher's Notes. An amendment approved in 1918 and declared in effect after the decision in *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925), made minor changes in the original section and added paragraphs authorizing bond issues for certain purposes in incorporated towns of 1,000 or more population and cities of the first and second class. For full text of the amendment, see Acts 1925, p. 1123.

The 1918 amendment was deemed superseded by a 1926 amendment, which is currently numbered as Ark. Const. Amend. 13 (See Acts 1927, p. 1210); the 1918 amendment does not appear in prior digests and compilations and is not included in the amendments to which the Secretary of State has assigned numbers.

Ark. Const. Amend. 13 essentially incorporated the first paragraph of the then-existing section and rewrote or deleted the additional paragraphs. However, Ark. Const. Amend. 62, § 11, repealed Ark. Const. Amend. 13. The

Arkansas Supreme Court held, in *City of Hot Springs v. Creviston*, 288 Ark. 286, 713 S.W.2d 230 (1986), that Ark. Const. Amend. 62 was intended to repeal only language added to this section by Ark. Const. Amend. 13, which the court interpreted as meaning only the 11 paragraphs added by the amendment, but not the pre-existing first paragraph; however, the opinion makes no mention of the changes or additions made by the 1918 amendment. The section appears above as originally enacted in the 1874 Constitution but incorporates the changes made in the paragraph by the 1918 amendment.

The 1918 amendment made minor punctuation changes and substituted "the indebtedness existing at the time of the adoption of the Constitution of 1874" for "the present existing indebtedness."

With respect to issuance of bonds, this section may be superseded by Ark. Const. Amends. 62 and 65. See also Ark. Const. Amend. 20.

§ 2. Debts of state — Payment.

The General Assembly shall, from time to time, provide for the payment of all just and legal debts of the State.

§ 3. Making profit out of or misusing public funds — Penalty.

The making of profit out of public moneys, or using the same for any purpose not authorized by law, by any officer of the State, or member or officer of the General Assembly, shall be punishable as may be provided by law, but part of such punishment shall be disqualification to hold office in this State for a period of five years.

§ 4. Salaries and fees of state officers.

Except as provided in Arkansas Constitution, Article 19, § 31, the General Assembly shall fix the salaries and fees of all officers in the State; and no greater salary or fee than that fixed by law shall be paid to any officer, employee, or other person, or at any rate other than par value; and the number and salaries of the clerks and employees of the different departments of the State shall be fixed by law. [As amended by Const. Amend. 94.]

Publisher's Notes. Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a

vote of 428,206 for and 388,459 against. The amendment added "Except as provided in Arkansas Constitution, Article 19, § 31" to the beginning of the section.

§ 5. Property taxed according to value — Procedures for valuation — Tax exemptions.

(a) All real and tangible personal property subject to taxation shall be taxed according to its value, that value to be ascertained in such manner as the General Assembly shall direct, making the same equal and uniform throughout the State. No one species of property for which a tax may be collected shall be taxed higher than another species of property of equal value, except as provided and authorized in Section 15 of this Article, and except as authorized in Section 14 of this Article. The General Assembly, upon the approval thereof by a vote of not less than

three-fourths (¾ths) of the members elected to each house, may establish the methods and procedures for valuation of property for taxation purposes, but may not alter the method of valuation set forth in Section 15 of this Article.

(b) The following property shall be exempt from taxation: public property used exclusively for public purposes; churches used as such; cemeteries used exclusively as such; school buildings and apparatus; libraries and grounds used exclusively for school purposes; and buildings and grounds and materials used exclusively for public charity.

Nothing in this Section shall affect or repeal the provision of Amendment 57 to the Constitution of the State of Arkansas pertaining to intangible personal property. [Added by Const. Amend. 59.]

Publisher's Notes. Section 17 of Ark. Const. Amend. 59 repealed former Art. 16, § 5 and substituted the present section therefor.

The provisions of this section relating to the assessment and taxation of tangible personal property are superseded by Ark. Const. Amend. 71.

§ 6. Other tax exemptions forbidden.

All laws exempting property from taxation, other than as provided in this Constitution shall be void.

§ 7. Taxation of corporate property.

The power to tax corporations and corporate property, shall not be surrendered or suspended by any contract or grant to which the State may be a party.

§ 8. Maximum rate of state taxes.

The General Assembly shall not have power to levy State taxes for any one year to exceed, in the aggregate, one per cent of the assessed valuation of the property of the State for that year.

§ 9. County taxes — Limitation.

No county shall levy a tax to exceed one-half of one per cent., for all purposes; but may levy an additional one-half of one per cent. to pay indebtedness existing at the time of the ratification of this Constitution.

§ 10. Payment of county and municipal taxes.

The taxes of counties, towns and cities shall only be payable in lawful currency of the United States, or the orders or warrants of said counties, towns and cities respectively.

§ 11. Levy and appropriation of taxes.

No tax shall be levied except in pursuance of law, and every law imposing a tax shall state distinctly the object of the same; and no moneys arising from a tax levied for any purpose shall be used for any other purpose.

§ 12. Disbursement of funds — Appropriation required.

Except as provided in Arkansas Constitution, Article 19, § 31, no money shall be paid out of the treasury until the same shall have been appropriated by law; and then only in accordance with said appropriation. [As amended by Const. Amend. 94.]

Publisher's Notes. Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a

vote of 428,206 for and 388,459 against. The amendment added "Except as provided in Arkansas Constitution, Article 19, § 31" to the beginning of the section.

§ 13. Illegal exactions.

Any citizen of any county, city or town may institute suit, in behalf of himself and all others interested, to protect the inhabitants thereof against the enforcement of any illegal exactions whatever.

§ 14. Procedure for adjustment of taxes after reappraisal or reassessment of property.

(a) Whenever a countywide reappraisal or reassessment of property subject to ad valorem taxes made in accordance with procedures established by the General Assembly shall result in an increase in the aggregate value of taxable real and personal property in any taxing unit in this State of ten percent (10%) or more over the previous year the rate of city or town, county, school district, and community college district taxes levied against the taxable real and personal property of each such taxing unit shall, upon completion of such reappraisal or reassessment, be adjusted or rolled back, by the governing body of the taxing unit, for the year for which levied as provided below. The General Assembly shall, by law, establish the procedures to be followed by a county in making a countywide reappraisal or reassessment of property which will, upon completion, authorize the adjustment or rollback of property tax rates or millage, as authorized hereinabove. The adjustment or rollback of tax rates or millage for the “base year” as hereinafter defined shall be designed to assure that each taxing unit will receive an amount of tax revenue from each tax source no greater than ten percent (10%) above the revenues received during the previous year from each such tax source, adjusted for any lawful tax or millage rate increase or reduction imposed in the manner provided by law for the year for which the tax adjustment or rollback is to be made, and after making the following additional adjustments:

(i) by excluding from such calculation the assessed value of, and taxes derived from, tangible personal property assessed in the taxing unit, and all real and tangible personal property of public utilities and regulated carriers assessed in the taxing unit, and

(ii) by computing the adjusted or rollback millage rates on the basis of the reassessed taxable real property for the base year that will produce an amount of revenue no greater than ten percent (10%) above the revenues produced from the assessed value of real property in the taxing unit (after making the aforementioned adjustments for personal properties and properties of public utilities and regulated carriers noted above) from millage rates in effect in the taxing unit during the base year in which the millage adjustment or rollback is to be calculated. Provided, further, that in calculating the amount of adjusted or rollback millage necessary to produce tax revenues no greater than ten percent (10%) above the revenues received during the previous year, the governing body shall separate from the assessed value of taxable real property of the taxing unit, newly-discovered real property and new construction and improvements to real property, after making the adjustments for personal property or property of public utilities and regulated carriers noted above, and shall compute the millage necessary to produce an amount of revenues equal to, but no greater than the base year revenues of the taxing unit from each millage source. Such taxing unit may elect either to obtain an increase in revenues equal to the amount of revenues that the computed or adjusted rollback millage will produce from newly-discovered real property and new construction and improvements to real property, or if the same be less than ten percent (10%), the governing body of the taxing unit may recompute the millage rate to be charged to produce an amount no greater than ten percent (10%) above the revenues collected for taxable real property during the base year.

Provided, however, that the amount of revenues to be derived from taxable personal property assessed in the taxing unit for the base year, other than personal property taxes to be paid by public utilities and regulated carriers in the manner provided hereinabove, shall be computed at the millage necessary to produce the same dollar amount of revenues derived during the current year in which the base year adjustment or rollback of millage is computed, and the millage necessary to produce the amount of revenues received from personal property taxes received by the taxing unit, for the base year shall be reduced annually as the assessed value of taxable personal property increases until the amount of revenues from personal property taxes,

computed on the basis of the current year millage rates will produce an amount of revenues from taxable personal property equal to or greater than received during the base year, and thereafter the millage rates for computing personal property taxes shall be the millage rates levied for the current year.

Provided, however, that the taxes to be paid by public utilities and regulated carriers in the respective taxing units of the several counties of this State during the first five (5) calendar years in which taxes are levied on the taxable real and personal property as reassessed and equalized in each of the respective counties as a part of a statewide reappraisal program, shall be the greater of the following:

(1) the amount of taxes paid on property owned by such public utilities or regulated carriers in or assigned to such taxing unit, less adjustments for properties disposed of or reductions in the assessed valuation of such properties in the base year as defined below, or

(2) the amount of taxes due on the assessed valuation of taxable real and tangible personal property belonging to the public utilities or regulated carriers located in or assigned to the taxing unit in each county at millage rates levied for the current year.

As used herein, the term “base year” shall mean the year in which a county completes reassessment and equalization of taxable real and personal property as a part of a statewide reappraisal program, and extends the adjusted or rolled back millage rates for the first time, as provided in subsection (a) of this Section, for the respective taxing units in such county for collection in the following year.

(i) in the event the amount of taxes paid the taxing unit in a county in the base year, as defined herein, is greater than the taxes due to be paid to such taxing unit for the current year of any year of the second (2nd) period of five (5) years after the base year, the difference between the base year taxes and the current year taxes for any year of such five (5) year period shall be adjusted as follows:

Current year of second period of (5) years	Taxes shall be current year taxes to which shall be added the following percentage of the difference between the current year taxes and the base year taxes (if greater than current year taxes)
1st year	80% of difference
2nd year	60% of difference
3rd year	40% of difference
4th year	20% of difference
5th year and thereafter	Current years taxes only.

(ii) if the current year taxes of a public utility or regulated carrier equal or exceed the base years taxes due a taxing unit during any year of the first ten (10) years after the base year, the amount of taxes to be paid to such taxing unit shall thereafter be the current years taxes and the adjustment authorized herein shall no longer apply in computing taxes to be paid to such taxing unit.

Provided, that in the event the aforementioned requirement for payment of taxes by public utilities and regulated carriers, or any class of utilities or carriers for the ten (10) year period noted above, shall be held by court decision to be contrary to the constitution or statutes of this State or of the Federal Government, the General Assembly may provide for other utilities or classes of carriers to receive the same treatment provided or required under the court order, if deemed necessary to promote equity between similar utilities or classes of carriers.

(b) The General Assembly shall, by law, provide for procedures to be followed with respect to adjusting ad valorem taxes or millage pledged for bonded indebtedness purposes, to assure that the adjusted or rolled-back rate of tax or millage levied for bonded indebtedness purposes will, at all times, provide a level of income sufficient to meet the current requirements of all principal, interest, paying agent fees, reserves, and other requirements of the bond indenture. [Added by Const. Amend. 59.]

§ 15. Assessment of residential property and agricultural, pasture, timber, residential and commercial land.

(a) Residential property used solely as the principal place of residence of the owner thereof shall be assessed in accordance with its value as a residence, so long as said property is used as the principal place of residence of the owner thereof, and shall not be assessed in accordance with some other method of valuation until said property ceases to be used for such residential purpose.

(b) Agricultural land, pasture land, timber land, residential and commercial land, excluding structures thereon, used primarily as such, shall be valued for taxation purposes under the provisions of Section 5 of this Article, upon the basis of its agricultural, pasture, timber, residential, or commercial productivity or use, and when so valued, such land shall be assessed at the same percentum of value and taxed at the same rate as other property subject to ad valorem taxes.

(c) The General Assembly shall enact laws providing for the administration and enforcement of this Section and for the imposition of penalties for violations of this Section, or statutes enacted pursuant thereto. [Added by Const. Amend. 59.]

§ 16. Providing for exemption of value of residence of person 65 or over.

The General Assembly, upon approval thereof by a vote of not less than three-fourths (¾ths) of the members elected to each house, may provide that the valuation of real property actually occupied by its owner as a residence who is sixty-five (65) years of age, or older, may be exempt in such amount as may be determined by law, but no greater than the first Twenty Thousand Dollars (\$20,000) in value thereof, as a homestead from ad valorem property taxes. [Added by Const. Amend. 59.]

ARTICLE 17

RAILROADS, CANALS AND TURNPIKES

SECTION.

1. Common carriers — Construction of railroads.
2. Offices of common carriers.
3. Equal right to transportation.
4. Parallel or competing lines.
5. Officers, agents and employees of carrier — Personal interest in contracts prohibited.
6. Discrimination by carriers.
7. Free passes.

SECTION.

8. Condition of remission of forfeitures.
9. Right of eminent domain.
10. Regulation of carriers.
11. Movable property of carriers subject to execution.
12. Damages by railroads to persons and property — Liability.
13. Annual reports of railroads.

§ 1. Common carriers — Construction of railroads.

All railroads, canals and turnpikes shall be public highways, and all railroads and canal companies shall be common carriers. Any association or corporation, organized for the purpose, shall have the right to construct and operate a railroad between any points within this State, and to connect at the State line with railroads of other States. Every railroad company shall have the right with its road to intersect, connect with, or cross any other road, and shall receive and transport each the other's passengers, tonnage and cars, loaded or empty, without delay or discrimination.

§ 2. Offices of common carriers.

Every railroad, canal or turnpike corporation operated, or partly operated in this State, shall maintain one office therein, where transfers of its stock shall be made and where its books shall be kept for inspection by any stockholder or creditor of such corporation; in which shall be recorded the amount of capital stock subscribed or paid in, and the amounts owned by them respectively, the transfer of said stock, and the names and places of residence of the officers.

§ 3. Equal right to transportation.

All individuals, associations and corporations shall have equal right to have persons and property transported over railroads, canals and turnpikes; and no undue or unreasonable discrimination shall be made in charges for, or in facilities for transportation of freight or passengers within the State, or coming from, or going to any other State. Persons and property transported over any railroad shall be delivered at any station at charges not exceeding the charges for transportation of persons and property of the same class, in the same direction, to any more distant station. But excursion and commutation tickets may be issued at special rates.

§ 4. Parallel or competing lines.

No railroad, canal or other corporation, or the lessees, purchasers or managers of any railroad, canal or corporation shall consolidate the stock, property or franchises of such corporation with, or lease, or purchase the works or franchises of, or in any way control any other railroad or canal corporation owning or having under its control a parallel or competing line, nor shall any officer of such railroad or canal corporation act as an officer of any other railroad or canal corporation owning or having control of a parallel or competing line; and the question whether railroads or canals are parallel or competing lines shall, when demanded by the party complainant, be decided by a jury as in other civil issues.

§ 5. Officers, agents and employees of carrier — Personal interest in contracts prohibited.

No president, director, officer, agent or employee of any railroad or canal company, shall be interested, directly or indirectly, in the furnishing of material or supplies to such company, or in the business of transportation as a common carrier of freight or passengers over the works owned, leased, controlled or worked by such company. Nor in any arrangement which shall afford more advantageous terms, or greater facilities than are offered or accorded to the public. And all contracts and arrangements in violation of this section shall be void.

§ 6. Discrimination by carriers.

No discrimination in charges, or facilities for transportation, shall be made between transportation companies and individuals, or in favor of either by abatement, drawback or otherwise; and no railroad or canal company, or any lessee, manager or employee thereof shall make any preferences in furnishing cars or motive power.

§ 7. Free passes.

The General Assembly shall prevent by law the granting of free passes by any railroad or transportation company to any officer of this State, legislative, executive or judicial.

§ 8. Condition of remission of forfeitures.

The General Assembly shall not remit the forfeiture of the charter of any corporation now existing, or alter or amend the same, or pass any general or special law for the benefit of such corporation, except on condition that such corporation shall thereafter hold its charter subject to the provisions of this Constitution.

§ 9. Right of eminent domain.

The exercise of the right of eminent domain shall never be abridged or so construed as to prevent the General Assembly from taking the property and franchises of incorporated companies, and subjecting them to public — use the same as the property of individuals.

§ 10. Regulation of carriers.

The General Assembly shall pass laws to correct abuses and prevent unjust discrimination and excessive charges by railroads, canals and turn-pike companies for transporting freight and passengers, and shall provide for enforcing such laws by adequate penalties and forfeitures, and shall provide for the creation of such offices and commissions and vest in them such authority as shall be necessary to carry into effect the powers hereby conferred. [As amended by Const. Amend. 2.]

Publisher's Notes. Ark. Const. Amend. 2 added the last clause.

§ 11. Movable property of carriers subject to execution.

That rolling stock and all other movable property belonging to any railroad company or corporation in this State shall be considered personal property, and shall be liable to execution and sale, in the same manner as the personal property of individuals, and the General Assembly shall pass no law exempting any such property from execution and sale.

§ 12. Damages by railroads to persons and property — Liability.

All railroads, which are now, or may be hereafter built, and operated either in whole or in part, in this State, shall be responsible for all damages to persons and property, under such regulations as may be prescribed by the General Assembly.

§ 13. Annual reports of railroads.

The directors of every railroad corporation shall annually make a report under oath to the Auditor of Public Accounts, of all of their acts and doings, which reports shall include such matters relating to railroads as may be prescribed by law, and the General Assembly shall pass laws enforcing, by suitable penalties, the provisions of this section.

ARTICLE 18**JUDICIAL CIRCUITS****Judicial Circuits**

Until otherwise provided by the General Assembly, the Judicial Circuits shall be composed of the following counties:

First — Phillips, Lee, St. Francis, Prairie, Woodruff, White and Monroe. Second — Mississippi, Crittenden, Cross, Poinsett, Craighead, Greene, Clayton and Randolph. Third — Jackson, Independence, Lawrence, Sharp, Fulton, Izard, Stone and Baxter. Fourth — Marion, Boone, Searcy, Newton, Madison, Carroll, Benton and Washington. Fifth — Pope, Johnson, Franklin, Crawford, Sebastian, Sarber and Yell. Sixth — Lonoke, Pulaski, Van Buren and Faulkner. Seventh — Grant, Hot Springs, Garland, Perry, Saline and Conway. Eighth — Scott, Montgomery, Polk, Howard, Sevier, Little River, Pike and Clark. Ninth — Hempstead, Lafayette, Nevada, Columbia, Union, Ouachita and Calhoun. Tenth — Chicot, Drew, Ashley, Bradley, Dorsey and Dallas. Eleventh — Desha, Arkansas, Lincoln and Jefferson.

Terms of Courts

Until otherwise provided by the General Assembly, the Circuit Courts shall be begun and held in the several counties as follows:

First Circuit

White — First Monday in February and August. Woodruff — Third Monday in February and August. Prairie — Second Monday after the third Monday in February and August. Monroe — Sixth Monday after the third Monday in February and August. St. Francis — Eighth Monday

after the third Monday in February and August. Lee — Tenth Monday after the third Monday in February and August. Phillips — Twelfth Monday after the third Monday in February and August.

Second Circuit

Mississippi — First Monday in March and September. Crittenden — Second Monday in March and September. Cross — Second Monday after the second Monday in March and September. Poinsett — Third Monday after the second Monday in March and September. Craighead — Fourth Monday after the second Monday in March and September. Greene — Sixth Monday after the second Monday in March and September. Clayton — Seventh Monday after the second Monday in March and September. Randolph — Ninth Monday after the second Monday in March and September.

Third Circuit

Jackson — First Monday in March and September. Lawrence — Fourth Monday in March and September. Sharp — Second Monday after the fourth Monday in March and September. Fulton — Fourth Monday after the fourth Monday in March and September. Baxter — Sixth Monday after the fourth Monday in March and September. Izard — Seventh Monday after the fourth Monday in March and September. Stone — Ninth Monday after the fourth Monday in March and September. Independence — Tenth Monday after the fourth Monday in March and September.

Fourth Circuit

Marion — Second Monday in February and August. Boone — Third Monday in February and August. Searcy — Second Monday after the third Monday in February and August. Newton — Third Monday after the third Monday in February and August. Carroll — Fourth Monday after the third Monday in February and August. Madison — Fifth Monday after the third Monday in February and August. Benton — Sixth Monday after the third Monday in February and August. Washington — Eighth Monday after the third Monday in February and August.

Fifth Circuit

Greenwood District, Sebastian county — Third Monday in February and August. Fort Smith District, Sebastian county — First Monday after the fourth Monday in February and August. Crawford county — Fourth Monday after the fourth Monday in February and August. Franklin county — Sixth Monday after the fourth Monday in February and August. Sarber county — Eighth Monday after the fourth Monday in February and August. Yell county — Tenth Monday after the fourth Monday in February and August. Pope county — Twelfth Monday after fourth Monday in February and August. Johnson county — Fourteenth Monday after the fourth Monday in February and August.

Sixth Circuit

In the county of Pulaski on the first Monday in February, and continue twelve weeks if the business of said court require it. In the county of Lonoke on the first Monday succeeding the Pulaski Court, and continue two weeks if the business of said Court require it. In the county of Faulkner on the first Monday after the Lonoke Court, and continue two weeks if the business of said Court require it. In the county of Van Buren on the first Monday after the Faulkner Court, and continue two weeks if the business of said Court require it.

Fall Term, Sixth Circuit

In the county of Pulaski on the first Monday in October, and continue seven weeks if the business of said Court require it. In the county of Lonoke on the first Monday next after the Pulaski Court and continue two weeks if the business of said court require it. In the county of Faulkner on the first Monday after the Lonoke Court, and continue one week if the business of said Court require it. In the County of Van Buren on the first Monday after the Faulkner Court,

and continue one week if the business of said Court require it.

Seventh Circuit

Hot Spring — Second Monday in March and September. Grant — Third Monday in March and September. Saline — Fourth Monday in March and September. Conway — Second Monday after fourth Monday in March and September. Perry — Fourth Monday after the fourth Monday in March and September. Garland — Fifth Monday after the fourth Monday in March and September.

Eighth Circuit

Montgomery — First Monday in February and August. Scott — First Monday after the first Monday in February and August. Polk — Second Monday after the first Monday in February and August. Sevier — Third Monday after the first Monday in February and August. Little River — Fifth Monday after the first Monday in February and August. Howard — Seventh Monday after the first Monday in February and August. Pike — Eighth Monday after the first Monday in February and August. Clark — Ninth Monday after the first Monday in February and August.

Ninth Circuit

Calhoun — First Monday in March and September. Union — Second Monday after the first Monday in March and September. Columbia — Fourth Monday after the first Monday in March and September. Lafayette—Sixth Monday after the first Monday in March and September. Hempstead — Eighth Monday after the first Monday in March and September. Nevada — Eleventh Monday after the first Monday in March and September. Ouachita — Thirteenth Monday after the first Monday in March and September.

Tenth Circuit

Dorsey — Third Monday in February and August. Dallas — First Monday in March and September. Bradley — Second Monday in March and September. Ashley — Third Monday in March and September. Drew — Second Monday after the third Monday in March and September. Chicot — Fourth Monday after the third Monday in March and September.

Eleventh Circuit

In the county of Desha on the first Monday in March and September. In the county of Arkansas on the fourth Monday in March and September. In the county of Lincoln on the third Monday after the fourth Monday in March and September. In the county of Jefferson on the sixth Monday after the fourth Monday in March and September.

Publisher's Notes. This article probably has been superseded by Ark. Const. Amend. 80.

ARTICLE 19

MISCELLANEOUS PROVISIONS

SECTION.

1. Atheists disqualified from holding office or testifying as witness.
2. Dueling.
3. Elected or appointed officers — Qualifications of an elector required.
4. Residence of officers.
5. Officers — Holding over.
6. Dual office holding prohibited.
7. Residence — Temporary absence not to forfeit.
8. Deduction from salaries.
9. Permanent state offices — Creation restricted.

SECTION.

10. Election returns — State officers.
11. [Repealed.]
12. Receipts and expenditures to be published.
13. [Repealed.]
14. Lotteries.
15. [Repealed.]
16. Contracts for public buildings or bridges.
17. Digest of laws — Publication.
18. Safety of miners and travelers.
19. Deaf and dumb and blind and insane persons.
20. Oath of office.

SECTION.

21. Sureties on official bonds — Qualifications — Bonding companies.
22. Constitutional amendments.
23. [Repealed.]
24. Election contests.
25. Seal of state.
26. Officers eligible to executive or judicial office.

SECTION.

27. Local improvements — Municipal assessments.
28. Contributions.
29. Registration as a lobbyist by a former member of the General Assembly.
30. Gifts from lobbyists.
31. Independent citizens commission.

Effective Dates.

Acts 2015, No. 559, § 2[3]: Mar. 20, 2015. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that this act places prosecuting attorneys under the jurisdiction of the independent citizens commission established under Arkansas Constitution, Article 19, Section 31; that the salaries of prosecuting attorneys are payable from the Constitutional Officers Fund in the same manner as the other officials under the jurisdiction of the independent citizens commission, but only the salaries of prosecuting attorneys are subject to appropriation; and that this act should become effective immediately to provide clarity in the appropriation process for prosecuting attorney salaries. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2015, No. 1280, § 16: Apr. 8, 2015. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the people of Arkansas adopted Arkansas Constitution, Amendment 94, at the 2014 General Election, which added Sections 28, 29, and 30 to Article 19 of the Arkansas Constitution; that Arkansas Constitution, Amendment 94, requires the General Assembly to provide by law that Arkansas Constitution, Article 19, Sections 28, 29, and 30 be under the jurisdiction of the Arkansas Ethics Commission; that this act should become effective at the earliest opportunity to allow the commission to enforce Arkansas Constitution, Article 19, Sections 28, 29, and 30 and issue guidance to affected public officials; and that the additional provisions of this act provide clarity to the ethics laws of the State of Arkansas and should become effective at the earliest opportunity to prevent confusion and avoid incorrect applications of the state’s ethics laws. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2017, No. 312, § 3: Mar. 1, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the provisions of this act impact the behavior and conduct of public servants in this state by amending certain ethics laws; that the state’s ethics laws ensure consistent and appropriate behavior by public office holders and other public servants; and that the provisions of this act should be implemented at the earliest opportunity to ensure that the conduct of public servants is consistent with the ethics laws of this state and the provisions of this act. Therefore, an emer-

gency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Identical Acts 2017 (1st Ex. Sess.), Nos. 2 and 9, § 3: July 31, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that this act is intended to avoid difficulties in interpreting, utilizing, and citing Arkansas Constitution, Article 19, § 30, created by the passage of Acts 2017, Nos. 207, 312, and 1108; that this act enacts certain provisions of those acts in a format that integrates and incorporates them by restating certain provisions of the three (3) acts in a coherent, cohesive, and comprehensive manner; and that to avoid confusion in the law, this act should be effective on the same date as Acts 2017, Nos. 207 and 1108. Therefore, an emergency is declared to exist, and this act being necessary for the preservation of the public peace, health, and safety shall become effective on July 31, 2017.”

Acts 2019, No. 661, § 4: Apr. 2, 2019. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that this act establishes certain employment restrictions on former members of the General Assembly that are in the best interests of the state; and that these restrictions should become effective at the earliest opportunity to provide for the full implementation of the act. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2019, No. 694, § 8: Apr. 4, 2019. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that under current law the Arkansas Code Revision Commission does not have the authority to correct conflicts occurring when multiple acts amend the same provision of the Arkansas Constitution as expressly permitted by the Arkansas Constitution; that this inability to resolve conflicts makes the law unclear and impossible to publish for review and study by the citizens of the state; and that this act should become effective at the earliest opportunity so that it may be applied to acts enacted by the Ninety-Second General Assembly. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

§ 1. Atheists disqualified from holding office or testifying as witness.

No person who denies the being of a God shall hold any office in the civil departments of this State, nor be competent to testify as a witness in any Court.

§ 2. Dueling.

No person who may hereafter fight a duel, assist in the same as second, or send, accept, or knowingly carry a challenge therefor, shall hold any office in the State, for a period of ten years; and may be otherwise punished as the law may prescribe.

§ 3. Elected or appointed officers — Qualifications of an elector required.

No persons shall be elected to, or appointed to fill a vacancy in, any office who does not possess the qualifications of an elector.

§ 4. Residence of officers.

All civil officers for the State at large shall reside within the State, and all district, county and township officers within their respective districts, counties and townships, and shall keep their offices at such places therein as are now, or may hereafter be required by law.

§ 5. Officers — Holding over.

All officers shall continue in office after the expiration of their official terms, until their successors are elected and qualified.

§ 6. Dual office holding prohibited.

No person shall hold or perform the duties of more than one office in the same department of the government at the same time, except as expressly directed or permitted by this Constitution.

§ 7. Residence — Temporary absence not to forfeit.

Absence on business of the State, or of the United States, or on a visit, or on necessary private business, shall not cause a forfeiture of residence once obtained.

§ 8. Deduction from salaries.

It shall be the duty of the General Assembly to regulate, by law in what cases, and what, deductions from the salaries of public officers shall be made for neglect of duty in their official capacity.

§ 9. Permanent state offices — Creation restricted.

The General Assembly shall have no power to create any permanent State Office, not expressly provided for by this Constitution.

§ 10. Election returns — State officers.

Returns for all elections, for officers who are to be commissioned by the Governor, and for members of the General Assembly, except as otherwise provided by this Constitution, shall be made to the Secretary of State.

§ 11. [Repealed.]

Publisher's Notes. Ark. Const. Amend. 94, which repealed this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this section read:

“§ 11. Salaries of state officers — Increase or decrease during term prohibited — Fees.

“The Governor, Secretary of State, Auditor, Treasurer, Attorney-General, Judges of the Supreme Court, Judges of the Circuit Court, Commissioner of State Lands, and Prosecuting Attorneys, shall each receive a salary to be established by law, which shall not be increased or diminished during their respective terms, nor shall any of them, except the Prosecuting Attorneys, after the adoption of this Constitution, receive to his own use any fees, costs, perquisites of office, or other compensation; and all fees that may hereafter be payable by law, for any service performed by any officer mentioned in this section, except Prosecuting

Attorneys, shall be paid in advance into the State Treasury; Provided, That the salaries of the respective officers herein mentioned shall never exceed per annum:

“For Governor, the sum of \$4,000

“For Secretary of State, the sum of \$2,500

“For Treasurer of State, the sum of \$3,000

“For Auditor of State, the sum of \$3,000

“For Attorney-General, the sum of \$2,500

“For Commissioner of State Lands, the sum of \$2,500

“For the Judges of the Supreme Court, each, the sum of \$4,000

“For Judges of the Circuit Courts, and Chancellors, each, the sum of \$3,000

“For Prosecuting Attorneys, the sum of \$400

“And provided further, That the General Assembly shall provide for no increase of salaries of its members which shall take effect before the meeting of the next General Assembly.”

§ 12. Receipts and expenditures to be published.

An accurate and detailed statement of the receipts and expenditures of the public money, the several amounts paid, to whom and on what account, shall, from time to time, be published as may be prescribed by law.

§ 13. [Repealed.]

Publisher's Notes. Ark. Const. Amend. 89, § 14 repealed this section effective January 1, 2011. Amendment 89 was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

Before repeal, this section read:

“§ 13. Maximum lawful rates of interest.

“(a) General Loans:

“(i) The maximum lawful rate of interest on any contract entered into after the effective date hereof shall not exceed five percent (5%) per annum above the Federal Reserve Discount Rate at the time of the contract.

“(ii) All such contracts having a rate of interest in excess of the maximum lawful rate shall be void as to the unpaid interest. A person who has paid interest in excess of the maximum lawful rate may recover, within the time provided by law, twice the amount of interest paid. It is unlawful for any person to knowingly charge a rate of interest in excess of the maximum lawful rate in effect at the time of the contract, and any person who does so shall be subject to such punishment as may be provided by law.

“(b) Consumer Loans and Credit Sales: All contracts for consumer loans and credit sales having a greater rate of interest than seventeen percent (17%) per annum shall be void as to principal and interest and the General Assembly shall prohibit the same by law.

“(c) Definitions: As used herein, the term:

“(i) ‘consumer loans and credit sales’ means credit extended to a natural person in which the money, property, or service which is the subject of the transaction is primarily for personal, family or household purposes.

“(ii) ‘Federal Reserve Discount Rate’ means the Federal Reserve discount Rate on ninety-day commercial paper in effect in the Federal Reserve Bank in the Federal Reserve District in which Arkansas is located.

“(d) Miscellaneous:

“(i) The rate of interest for contracts in which no rate of interest is agreed upon shall be six percent (6%) per annum.

“(ii) The provisions hereof are not intended and shall not be deemed to supersede or otherwise invalidate any provisions of federal law applicable to loans or interest rates including loans secured by residential real property.

“(iii) The provisions hereof revoke all provisions of State law which establish the maximum rate of interest chargeable in the State or which are otherwise inconsistent herewith. [As amended by Const. Amend. 60.]”

Before its amendment by Amendment 60, this section read: “All contracts for a greater rate of interest than ten per centum per annum shall be void as to principal and interest, and the General Assembly shall prohibit the same by law; but when no rate of interest is agreed upon, the rate shall be six per centum per annum.”

§ 14. Lotteries.

(a) The General Assembly may enact laws to establish, operate, and regulate State lotteries.

(b)(1) Lottery proceeds shall be used solely to pay the operating expenses of lotteries, including all prizes, and to fund or provide for scholarships and grants to citizens of this State enrolled in the following higher education institutions located within the State that are certified according to criteria established by the General Assembly:

(A) A public or private nonprofit two-year or four-year college or university;

(B) A public or private vocational-technical school; or

(C) A public or private technical institute.

(2) The General Assembly shall establish criteria to determine who is eligible to receive the scholarships and grants pursuant to this Amendment.

(c) Lottery proceeds shall not be subject to appropriation by the General Assembly and are specifically declared to be cash funds held in trust separate and apart from the State treasury to be managed and maintained by the General Assembly or an agency or department of the State as determined by the General Assembly.

(d) Lottery proceeds remaining after payment of operating expenses and prizes shall supplement, not supplant, non-lottery educational resources.

(e) This Amendment does not repeal, supersede, amend or otherwise affect Amendment 84 to the Arkansas Constitution or games of bingo and raffles permitted therein.

(f) Except as herein specifically provided, lotteries and the sale of lottery tickets are prohibited. [As amended by Const. Amend. 87; Const. Amend. 103.]

Publisher's Notes. Ark. Const. Amend. 87, which amended this section, effective January 1, 2009, was proposed by an initiated measure and was adopted at the 2008 general election by a vote of 648,122 for and 383,467 against.

Before amendment, this section read:

“§ 14. Lotteries prohibited.

“No lottery shall be authorized by this State, nor shall the sale of lottery tickets be allowed.”

Ark. Const., Amend. 103, which amended this section,

effective January 1, 2025, was proposed by H.J.R. 1006 during the 2023 Regular Session and adopted at the 2024 general election by a vote of 1,029,102 for and 119,527 against. The amendment in § 1 redesignated (b) as (b)(1) and (2) and in (b)(1) substituted “public and private non-profit two-year and four-year colleges and universities” for “the following higher education institutions” and added the colon and (A) - (C).

Effective Dates.

Ark. Const., Amend. 103, § 2: Jan. 1, 2025.

§ 15. [Repealed.]

Publisher's Notes. This section was repealed by Ark. Const. Amend. 54, § 2. Section 1 of Amendment 54 concerns contracts for printing, stationery, and supplies pur-

chased by the General Assembly and other departments of government.

§ 16. Contracts for public buildings or bridges.

All contracts for erecting or repairing public buildings or bridges in any county, or for materials therefor; or for providing for the care and keeping of paupers, where there are no alms-houses, shall be given to the lowest responsible bidder, under such regulations as may be provided by law.

§ 17. Digest of laws — Publication.

The laws of this State, civil and criminal, shall be revised, digested, arranged, published and promulgated at such times and in such manner as the General Assembly may direct.

§ 18. Safety of miners and travelers.

The General Assembly, by suitable enactments, shall require such appliances and means to be provided and used as may be necessary to secure, as far as possible, the lives, health and safety of persons employed in mining, and of persons traveling upon railroads, and by other public conveyances, and shall provide for enforcing such enactments by adequate pains and penalties.

§ 19. Deaf and dumb and blind and insane persons.

It shall be the duty of the General Assembly to provide by law for the support of institutions for the education of the deaf and dumb, and of the blind; and also for the treatment of the insane.

§ 20. Oath of office.

Senators and Representatives, and all judicial and executive, State and county officers, and all other officers, both civil and military, before entering on the duties of their respective offices, shall take and subscribe to the following oath of affirmation: “I, ____, do solemnly swear (or affirm) that

I will support the Constitution of the United States and the Constitution of the State of Arkansas, and that I will faithfully discharge the duties of the office of ____, upon which I am now about to enter.”

§ 21. Sureties on official bonds — Qualifications — Bonding companies.

The sureties upon the official bonds of all State Officers shall be residents of, and have sufficient property within the State, not exempt from sale under execution, attachment or other process of any court, to make good their bonds and the sureties upon the official bonds of all county officers shall reside within the counties where such officers reside, and shall have sufficient property therein, not exempt from such sale, to make good their bonds; provided, however, that any surety, bonding or guaranty company, organized for the purpose of doing a surety, or bonding business, and authorized to do business, in this State, may become surety on the bonds of all State, County and Municipal Officers under such regulations as may be prescribed by law. [As amended by Const. Amend. 4.]

Publisher’s Notes. Minor changes in punctuation were made and the proviso was added by Ark. Const. Amend. 4.

§ 22. Constitutional amendments.

Either branch of the General Assembly, at a regular session thereof, may propose amendments to this Constitution; and if the same be agreed to by a majority of all members elected to each house, such proposed amendments shall be entered on the journals with the yeas and nays, and published in at least one newspaper in each county, where a newspaper is published, for six months immediately preceding the next general election for Senators and Representatives, at which time the same shall be submitted to the electors of the State, for approval or rejection; and if a majority of the electors voting at such election adopt such amendments, the same shall become a part of this Constitution. But no more than three amendments shall be proposed or submitted at the same time. They shall be so submitted as to enable the electors to vote on each amendment separately.

§ 23. [Repealed.]

Publisher’s Notes. This section, concerning maximum officers’ salaries or fees, was repealed by Ark. Const. Amend. 56, § 5.

§ 24. Election contests.

The General Assembly shall provide by law the mode of contesting elections in cases not specifically provided for in this Constitution.

§ 25. Seal of state.

The present seal of the State shall be and remain the seal of the State of Arkansas until otherwise provided by law, and shall be kept and used as provided in this Constitution.

§ 26. Officers eligible to executive or judicial office.

Militia officers, and officers of the public schools, and Notaries may be elected to fill any executive or judicial office.

§ 27. Local improvements — Municipal assessments.

Nothing in this Constitution shall be so construed as to prohibit the General Assembly from authorizing assessments on real property for local improvements, in towns and cities, under such regulations as may be prescribed by law; to be based upon the consent of a majority in value of

the property-holders owning property adjoining the locality to be affected; but such assessments shall be ad valorem and uniform.

§ 28. Contributions.

(a)(1) It is unlawful for a candidate for public office or a person acting on the candidate's behalf to:

(A) Accept a contribution from other than:

- (i) An individual;
- (ii) A political party that meets the definition of a political party under Arkansas Code § 7-1-101;
- (iii) A political party that meets the requirements of Arkansas Code § 7-7-205;
- (iv) A county political party committee;
- (v) A legislative caucus committee; or
- (vi) An approved political action committee; or

(B) Accept a contribution in excess of the maximum amount allowed by law per election from:

- (i) An individual;
- (ii) A political party that meets the definition of a political party under Arkansas Code § 7-1-101;
- (iii) A political party that meets the requirements of Arkansas Code § 7-7-205;
- (iv) A county political party committee;
- (v) A legislative caucus committee; or
- (vi) An approved political action committee.

(2) A candidate may accept a contribution or contributions up to the maximum amount allowed by law from a prospective contributor for each election, whether opposed or unopposed.

(b)(1) It is unlawful for an individual, a political party that meets the definition of a political party under Arkansas Code § 7-1-101, a political party that meets the requirements of Arkansas Code § 7-7-205, a county political party committee, a legislative caucus committee, or an approved political action committee to make a contribution to a candidate for public office, or to a person acting on the candidate's behalf, that in the aggregate exceeds the maximum amount allowed by law.

(2) The following entities may make a contribution or contributions up to the maximum amount allowed by law to a candidate, whether opposed or unopposed, for each election:

- (A) An individual;
- (B) A political party that meets the definition of a political party under Arkansas Code § 7-1-101;
- (C) A political party that meets the requirements of Arkansas Code § 7-7-205;
- (D) A county political party committee;
- (E) A legislative caucus committee; or
- (F) An approved political action committee.

(c) As used in this section:

(1)(A) "Approved political action committee" means any person that:

(i) Receives contributions from one (1) or more persons in order to make contributions to a candidate, ballot question committee, legislative question committee, political party, county political party committee, or other political action committee;

(ii) Does not accept any contribution or cumulative contributions in excess of five thousand dollars (\$5,000) from any person in any calendar year; and

(iii) Registers pursuant to Arkansas Code § 7-6-215 prior to making contributions.

(B) "Approved political action committee" does not include an organized political party as defined in § 7-1-101, a county political party committee, the candidate's own campaign committee, an exploratory committee, or a ballot question committee or legislative question committee as defined in § 7-9-402;

(2) “Candidate” means an individual who has knowingly and willingly taken affirmative action, including solicitation of funds, for the purpose of seeking nomination for or election to any public office;

(3)(A) “Contribution” or “contributions” means, whether direct or indirect, advances, deposits, or transfers of funds, contracts, or obligations, whether or not legally enforceable, payments, gifts, subscriptions, assessments, payment for services, dues, advancements, forbearance, loans, or pledges or promises of money or anything of value, whether or not legally enforceable, to a candidate, committee, or holder of elective office made for the purpose of influencing the nomination or election of any candidate.

(B)(i) “Contribution” or “contributions” includes the purchase of tickets for events such as dinners, luncheons, rallies, and similar fundraising events; the granting of discounts or rebates by television and radio stations and newspapers not extended on an equal basis to all candidates for the same office; and any payments for the services of any person serving as an agent of a candidate or committee by a person other than the candidate or committee or persons whose expenditures the candidates or committee must report under Arkansas law.

(ii) “Contribution” or “contributions” further includes any transfer of anything of value received by a committee from another committee.

(C) “Contribution” or “contributions” does not include noncompensated, nonreimbursed, volunteer personal services or travel;

(4) “County political party committee” means a person that:

(A) Is organized at the county level for the purpose of supporting its affiliate party and making contributions;

(B) Is recognized by an organized political party, as defined in Arkansas Code § 7-1-101, as being affiliated with that political party;

(C) Receives contributions from one (1) or more persons in order to make contributions to a candidate, ballot question committee, legislative question committee, political party, political action committee, or other county political party committee;

(D) Does not accept any contribution or cumulative contributions in excess of five thousand dollars (\$5,000) from any person in any calendar year; and

(E) Registers pursuant to Arkansas Code § 7-6-226 prior to making contributions;

(5)(A) “Election” means each election held to nominate or elect a candidate to any public office, including school elections.

(B) For the purposes of this section, a preferential primary, a general primary, a special election, and a general election shall each constitute a separate election;

(6) “Expenditure” or “expenditures” means a purchase, payment, distribution, gift, loan, or advance of money or anything of value, and a contract, promise, or agreement to make an expenditure, made for the purpose of influencing the nomination or election of any candidate;

(7)(A) “Exploratory committee” means a person that receives contributions which are held to be transferred to the campaign of a single candidate in an election.

(B) “Exploratory committee” does not include:

(i) A political party:

(a) That meets the definition of a political party under Arkansas Code § 7-1-101; or

(b) A political party that meets the requirements of Arkansas Code § 7-7-205; or

(ii) The candidate’s own campaign committee;

(8)(A) “Legislative caucus committee” means a person that is composed exclusively of members of the General Assembly, that elects or appoints officers and recognizes identified legislators as members of the organization, and that exists for research and other support of policy development and interests that the membership hold in common.

(B) “Legislative caucus committee” includes, but is not limited to, a political party caucus of the General Assembly, the Senate, or the House of Representatives.

(C) An organization whose only nonlegislator members are the Lieutenant Governor or the Governor is a “legislative caucus committee” for the purposes of this section;

(9)(A) “Person” means any individual, proprietorship, firm, partnership, joint venture, syndicate, labor union, business trust, company, corporation, association, committee, or any other organization or group of persons acting in concert.

(B) “Person” includes:

- (i) A political party that meets the definition of a political party under Arkansas Code § 7-1-101 or a political party that meets the requirements of Arkansas Code § 7-7-205;
- (ii) A county political party committee; and
- (iii) A legislative caucus committee; and

(10) “Public office” means an office created by or under authority of the laws of the State of Arkansas or of a subdivision thereof that is filled by the voters, except a federal office.

(d)(1) A person who knowingly violates this section is guilty of a Class A misdemeanor.

(2) In addition to the penalty under subdivision (d)(1) of this section, the General Assembly shall provide by law for this section to be under the jurisdiction of the Arkansas Ethics Commission, including without limitation authorization of the following actions by the Arkansas Ethics Commission:

(A) Promulgating reasonable rules to implement and administer this section as necessary;

(B) Issuing advisory opinions and guidelines on the requirements of this section; and

(C) Investigating complaints of alleged violations of this section and rendering findings and disciplinary action for such complaints.

(e)(1)(A) Except as provided in subdivision (e)(1)(B) of this section, the General Assembly, in the same manner as required for amendment of laws initiated by the people, may amend this section so long as such amendments are germane to this section and consistent with its policy and purposes.

(B) The General Assembly may amend subsection (d) of this section by a majority vote of each house.

(2)(A) If an act of the General Assembly amends this section, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, make the following revisions to the act so long as the revisions do not change the substance or meaning of the act:

- (i) Correct the spelling of words;
- (ii) Change capitalization for the purpose of uniformity;
- (iii) Correct manifest typographical and grammatical errors;
- (iv) Correct manifest errors in references to laws and other documents;
- (v) Correct manifest errors in internal reference numbers;
- (vi) Number, renumber, redesignate, and rearrange this section;
- (vii) Change internal reference numbers to agree with renumbered sections, subsections, subdivisions, or other provisions of law;
- (viii) Insert or delete hyphens in words to follow correct grammatical usage;
- (ix) Change numerals or symbols to words or vice versa and add figures or words if they are merely repetitions of written words or vice versa for purposes of uniformity and style;
- (x) Change the form of nouns, pronouns, and verbs for purposes of style and grammar;
- (xi) Correct punctuation; and
- (xii) Change gender-specific language to gender-neutral language.

(B)(i) If more than one (1) act amending this section is enacted by the General Assembly during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section as necessary so that all of the enactments shall be given effect, including without limitation renumbering, redesignating, and rearranging subsections and subdivisions of this section.

(ii) In the event that one (1) or more acts amending this section result in an irreconcilable conflict with one (1) or more other acts amending this section enacted during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section so that the conflicting provision of the last enactment prevails.

(3) If the Arkansas Code Revision Commission makes revisions under subdivision (e)(2) of this section, the Arkansas Code Revision Commission shall file a report with the Speaker of the House of Representatives, the President Pro Tempore of the Senate, and the Governor that:

- (A) Explains the revisions made under subdivision (e)(2) of this section; and
- (B) Includes the text of this section as amended by the revisions made under subdivision (e)(2) of this section. [As added by Const. Amend. 94; as amended by Acts 2019, No. 694, § 1.]

Publisher's Notes. Ark. Const. Amend. 94, which added this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and

adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

§ 29. Registration as a lobbyist by a former member of the General Assembly.

(a) A former member of the General Assembly shall not take the following actions until two (2) years after the expiration of the term of office for which he or she was elected:

- (1) Register as a lobbyist under Arkansas Code § 21-8-601 et seq.; or
- (2) Enter into employment as the director of an:
 - (A) Educational cooperative under The Public School Educational Cooperative Act of 1981, § 6-13-901 et seq.; or
 - (B) Area agency on aging.

(b)(1) Except as provided in subdivision (b)(2) of this section, subsection (a) of this section applies to a person elected or reelected to the General Assembly on or after November 6, 2018.

(2) Subdivision (a)(1) of this section shall apply to a person elected or reelected to the General Assembly on or after November 4, 2014.

(c)(1) A person who knowingly violates this section is guilty of a Class D felony.

(2) In addition to the penalty under subdivision (c)(1) of this section, the General Assembly shall provide by law for this section to be under the jurisdiction of the Arkansas Ethics Commission, including without limitation authorization of the following actions by the Arkansas Ethics Commission:

- (A) Promulgating reasonable rules to implement and administer this section as necessary;
- (B) Issuing advisory opinions and guidelines on the requirements of this section; and
- (C) Investigating complaints of alleged violations of this section and rendering findings and disciplinary action for such complaints.

(d)(1)(A) Except as provided in subdivision (d)(1)(B) of this section, the General Assembly, in the same manner as required for amendment of laws initiated by the people, may amend this section so long as such amendments are germane to this section and consistent with its policy and purposes.

(B) The General Assembly may amend subsection (c) of this section by a majority vote of each house.

(2)(A) If an act of the General Assembly amends this section, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, make the following revisions to the act so long as the revisions do not change the substance or meaning of the act:

- (i) Correct the spelling of words;
- (ii) Change capitalization for the purpose of uniformity;
- (iii) Correct manifest typographical and grammatical errors;
- (iv) Correct manifest errors in references to laws and other documents;
- (v) Correct manifest errors in internal reference numbers;
- (vi) Number, renumber, redesignate, and rearrange this section;
- (vii) Change internal reference numbers to agree with renumbered sections, subsections, subdivisions, or other provisions of law;
- (viii) Insert or delete hyphens in words to follow correct grammatical usage;
- (ix) Change numerals or symbols to words or vice versa and add figures or words if they are merely repetitions of written words or vice versa for purposes of uniformity and style;

- (x) Change the form of nouns, pronouns, and verbs for purposes of style and grammar;
- (xi) Correct punctuation; and
- (xii) Change gender-specific language to gender-neutral language.

(B)(i) If more than one (1) act amending this section is enacted by the General Assembly during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section as necessary so that all of the enactments shall be given effect, including without limitation renumbering, redesignating, and rearranging subsections and subdivisions of this section.

(ii) In the event that one (1) or more acts amending this section result in an irreconcilable conflict with one (1) or more other acts amending this section enacted during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section so that the conflicting provision of the last enactment prevails.

(3) If the Arkansas Code Revision Commission makes revisions under subdivision (d)(2) of this section, the Arkansas Code Revision Commission shall file a report with the Speaker of the House of Representatives, the President Pro Tempore of the Senate, and the Governor that:

- (A) Explains the revisions made under subdivision (d)(2) of this section; and
- (B) Includes the text of this section as amended by the revisions made under subdivision (d)(2) of this section. [As added by Const. Amend. 94; as amended by Acts 2019, No. 661, § 1; 2019, No. 694, § 2.]

Publisher's Notes. Ark. Const. Amend. 94, which added this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and

adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

§ 30. Gifts from lobbyists.

(a) Persons elected or appointed to the following offices shall not knowingly or willfully solicit or accept a gift from a lobbyist, a person acting on behalf of a lobbyist, or a person employing or contracting with a lobbyist:

- (1) Governor;
- (2) Lieutenant Governor;
- (3) Secretary of State;
- (4) Treasurer of State;
- (5) Auditor of State;
- (6) Attorney General;
- (7) Commissioner of State Lands;
- (8) Member of the General Assembly;
- (9) Chief Justice of the Supreme Court;
- (10) Justice of the Supreme Court;
- (11) Chief Judge of the Court of Appeals;
- (12) Judge of the Court of Appeals;
- (13) Circuit court judge;
- (14) District court judge;
- (15) Prosecuting attorney; and
- (16) Member of the independent citizens commission for the purpose of setting salaries of elected constitutional officers of the executive department, members of the General Assembly, justices, and judges under Article 19, § 31, of this Constitution.

(b) As used in this section:

(1)(A) "Administrative action" means a decision on, or proposal, consideration, or making of a rule, regulation, ratemaking proceeding, or policy action by a governmental body.

(B) "Administrative action" does not include ministerial action;

(2)(A) "Gift" means:

- (i) Any payment, entertainment, service, or anything of value, unless consideration of equal or greater value has been given therefor; or
- (ii) Any advance or loan.

(B) “Gift” does not include:

(i)(a) Informational material such as books, reports, pamphlets, calendars, or periodicals informing a person elected or appointed to an office under subsection (a) of this section regarding his or her official duties.

(b) Payments for travel or reimbursement for any expenses are not informational material;

(ii) Gifts that are not used and which, within thirty (30) days after receipt, are returned to the donor;

(iii) Gifts from the spouse, child, parent, grandparent, grandchild, brother, sister, parent-in-law, brother-in-law, sister-in-law, nephew, niece, aunt, uncle, or first cousin of a person elected or appointed to an office under subsection (a) of this section, or the spouse of any of these persons, unless the person is acting as an agent or intermediary for any person not covered by this subdivision (b)(2)(B)(iii);

(iv) Anything of value that is readily available to the general public at no cost;

(v)(a)(1) Food or drink available at a planned activity to which a specific governmental body is invited, including without limitation a governmental body to which a person elected or appointed to an office under subsection (a) of this section is not a member.

(2) If a committee of the General Assembly is invited to a planned activity under subdivision (b)(2)(B)(v)(a)(1) of this section, only members of the committee of the General Assembly may accept food or drink at the planned activity.

(b)(1) As used in this subdivision (b)(2)(B)(v), “planned activity” means an event for which a written invitation is distributed electronically or by other means by the lobbyist, person acting on behalf of a lobbyist, or a person employing or contracting with a lobbyist to the members of the specific governmental body at least twenty-four (24) hours before the event.

(2) As used in this subdivision (b)(2)(B)(v), “planned activity” does not include food or drink available at a meeting of a specific governmental body for which the person elected or appointed to an office under subsection (a) of this section is entitled to receive per diem for attendance at the meeting.

(c) A lobbyist, a person acting on behalf of a lobbyist, or a person employing or contracting with a lobbyist shall not offer or pay for food or drink at more than one (1) planned activity in a seven-day period;

(vi)(a) Payments by regional or national organizations for travel to regional or national conferences at which the State of Arkansas is requested to be represented by a person or persons elected or appointed to an office under subsection (a) of this section.

(b) As used in this subdivision (b)(2)(B)(vi), “travel” means transportation, lodging, and conference registration fees.

(c) This section does not prohibit the acceptance of:

(1) Food, drink, informational materials, or other items included in the conference registration fee; and

(2) Food and drink at events coordinated through the regional or national conference and provided to persons registered to attend the regional or national conference;

(vii) Campaign contributions;

(viii) Any devise or inheritance;

(ix) Salaries, benefits, services, fees, commissions, expenses, or anything of value in connection with:

(a) The employment or occupation of a person elected or appointed to an office under subsection (a) of this section or his or her spouse so long as the salary, benefit, service, fee, commission, expense, or anything of value is solely connected with the person’s employment or occupation and is unrelated to and does not arise from the duties or responsibilities of the office to which the person has been elected or appointed; or

(b) Service as an officer, director, or board member of a corporation, a firm registered to do business in the state, or other organization that files a state and federal tax return or is an affiliate of an organization that files a state and federal tax return by a person elected or appointed to an office under subsection (a) of this section or his or her spouse so long as the

salary, benefit, service, fee, commission, expense, or anything of value is solely connected with the person's service as an officer, director, or board member and is unrelated to and does not arise from the duties or responsibilities of the office to which the person has been elected or appointed;

(x) A personalized award, plaque, or trophy with a value of one hundred fifty dollars (\$150) or less;

(xi)(a) The use of one (1) or more rooms or facilities owned, operated, or otherwise utilized by a state agency or political subdivision of the state for the purpose of conducting a meeting of a specific governmental body.

(b) As used in this subdivision (b)(2)(B)(xi):

(1) "Rooms or facilities" includes without limitation property belonging to a state agency or political subdivision used in connection with a meeting of a specific governmental body such as projectors, microphones, and computer equipment; and

(2) "State agency" means every department, division, office, board, commission, and institution of this state, including state-supported institutions of higher education;

(xii) Nonalcoholic beverages provided to attendees at a meeting of a civic, social, or cultural organization or group;

(xiii) Food and nonalcoholic beverages provided to participants in a bona fide panel, seminar, or speaking engagement at which the audience is a civic, social, or cultural organization or group; and

(xiv) Anything of value provided by a recognized political party when serving as the host of the following events to all attendees as part of attendance at the event:

(a) The official swearing-in, inaugural, and recognition events of constitutional officers and members of the General Assembly; and

(b) An official event of a recognized political party so long as all members of either house of the General Assembly affiliated with the recognized political party are invited to the official event;

(3) "Governmental body" or "governmental bodies" means an office, department, commission, council, board, committee, legislative body, agency, or other establishment of the executive, judicial, or legislative branch of the state, municipality, county, school district, improvement district, or any political district or subdivision thereof;

(4)(A) "Income" means any money or anything of value received or to be received as a claim for future services, whether in the form of a retainer, fee, salary, expense, allowance, forbearance, forgiveness, interest, dividend, royalty, rent, or any other form of recompense or any combination thereof.

(B) "Income" includes a payment made under obligation for services or other value received;

(5) "Legislative action" means introduction, sponsorship, consideration, debate, amendment, passage, defeat, approval, veto, or any other official action or nonaction on any bill, ordinance, law, resolution, amendment, nomination, appointment, report, or other matter pending or proposed before a committee or house of the General Assembly, a quorum court, or a city council or board of directors of a municipality;

(6) "Legislator" means a person who is a member of the General Assembly, a quorum court of a county, or the city council or board of directors of a municipality;

(7) "Lobbying" means communicating directly or soliciting others to communicate with a public servant with the purpose of influencing legislative action or administrative action;

(8)(A) "Lobbyist" means a person who:

(i) Receives income or reimbursement in a combined amount of four hundred dollars (\$400) or more in a calendar quarter for lobbying one (1) or more governmental bodies;

(ii) Expends four hundred dollars (\$400) or more in a calendar quarter for lobbying one (1) or more governmental bodies, excluding the cost of personal travel, lodging, meals, or dues; or

(iii) Expends four hundred dollars (\$400) or more in a calendar quarter, including postage, for the express purpose of soliciting others to communicate with a public servant to influence any

legislative action or administrative action of one (1) or more governmental bodies unless the communication has been filed with the Secretary of State or the communication has been published in the news media. If the communication is filed with the Secretary of State, the filing shall include the approximate number of recipients.

(B) “Lobbyist” does not include a recognized political party;

(9)(A) “Person” means a business, individual, union, association, firm, committee, club, or other organization or group of persons.

(B) As used in subdivision (b)(9)(A) of this section, “business” includes without limitation a corporation, partnership, sole proprietorship, firm, enterprise, franchise, association, organization, self-employed individual, receivership, trust, or any legal entity through which business is conducted;

(10)(A) “Public appointee” means an individual who is appointed to a governmental body.

(B) “Public appointee” does not include an individual appointed to an elective office;

(11)(A) “Public employee” means an individual who is employed by a governmental body or who is appointed to serve a governmental body.

(B) “Public employee” does not include a public official or a public appointee;

(12) “Public official” means a legislator or any other person holding an elective office of any governmental body, whether elected or appointed to the office, and shall include such persons during the time period between the date they were elected and the date they took office;

(13) “Public servant” means all public officials, public employees, and public appointees;

(14)(A) “Recognized political party” means a political party that:

(i) At the last preceding general election polled for its candidate for Governor in the state or nominees for presidential electors at least three percent (3%) of the entire vote cast for the office; or

(ii) Has been formed by the petition process under § 7-7-205.

(B) When a recognized political party fails to obtain three percent (3%) of the total votes cast in an election for the office of Governor or nominees for presidential electors, it shall cease to be a recognized political party; and

(15)(A) “Advance or loan” means a sum of money that is borrowed with the expectation that it be paid back, regardless of whether interest is charged.

(B) “Advance or loan” does not include an advance or loan made in the ordinary course of business by a:

(i) Financial institution; or

(ii) Business that regularly and customarily extends credit.

(c)(1) A person who knowingly violates this section is guilty of a Class B misdemeanor.

(2) In addition to the penalty under subdivision (c)(1) of this section, the General Assembly shall provide by law for this section to be under the jurisdiction of the Arkansas Ethics Commission, including without limitation authorization of the following actions by the Arkansas Ethics Commission:

(A) Promulgating reasonable rules to implement and administer this section as necessary;

(B) Issuing advisory opinions and guidelines on the requirements of this section; and

(C) Investigating complaints of alleged violations of this section and rendering findings and disciplinary action for such complaints.

(3)(A) It is an affirmative defense to prosecution or disciplinary action under subdivisions (c)(1) and (2) of this section that a person elected or appointed to an office under subsection (a) of this section takes one (1) of the following actions within thirty (30) days of discovering or learning of an unintentional violation of this section:

(i) Returns the gift to the donor; or

(ii) If the gift is not returnable, pays the donor consideration that is equal to or greater than the value of the gift.

(B)(i) The Arkansas Ethics Commission shall not proceed with an investigation of an alleged violation of this section if the Arkansas Ethics Commission determines that a person would be eligible to raise the affirmative defense under subdivision (c)(3)(A) of this section.

(ii) If the Arkansas Ethics Commission does not proceed with an investigation of an alleged violation under subdivision (c)(3)(B)(i) of this section, the person shall not be considered to have committed a violation.

(C) This subdivision (c)(3) shall not be construed to authorize a person to knowingly or willfully solicit or accept a gift in violation of this section.

(d)(1)(A) Except as provided in subdivision (d)(1)(B) of this section, the General Assembly, in the same manner as required for amendment of laws initiated by the people, may amend this section so long as such amendments are germane to this section and consistent with its policy and purposes.

(B) The General Assembly may amend subsection (c) of this section by a majority vote of each house.

(2)(A) If an act of the General Assembly amends this section, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, make the following revisions to the act so long as the revisions do not change the substance or meaning of the act:

- (i) Correct the spelling of words;
- (ii) Change capitalization for the purpose of uniformity;
- (iii) Correct manifest typographical and grammatical errors;
- (iv) Correct manifest errors in references to laws and other documents;
- (v) Correct manifest errors in internal reference numbers;
- (vi) Number, renumber, redesignate, and rearrange this section;
- (vii) Change internal reference numbers to agree with renumbered sections, subsections, subdivisions, or other provisions of law;
- (viii) Insert or delete hyphens in words to follow correct grammatical usage;
- (ix) Change numerals or symbols to words or vice versa and add figures or words if they are merely repetitions of written words or vice versa for purposes of uniformity and style;
- (x) Change the form of nouns, pronouns, and verbs for purposes of style and grammar;
- (xi) Correct punctuation; and
- (xii) Change gender-specific language to gender-neutral language.

(B)(i) If more than one (1) act amending this section is enacted by the General Assembly during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section as necessary so that all of the enactments shall be given effect, including without limitation renumbering, redesignating, and rearranging subsections and subdivisions of this section.

(ii) In the event that one (1) or more acts amending this section result in an irreconcilable conflict with one (1) or more other acts amending this section enacted during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section so that the conflicting provision of the last enactment prevails.

(3) If the Arkansas Code Revision Commission makes revisions under subdivision (d)(2) of this section, the Arkansas Code Revision Commission shall file a report with the Speaker of the House of Representatives, the President Pro Tempore of the Senate, and the Governor that:

(A) Explains the revisions made under subdivision (d)(2) of this section; and

(B) Includes the text of this section as amended by the revisions made under subdivision (d)(2) of this section. [As added by Const. Amend. 94; as amended by Acts 2015, No. 1280, § 1; 2017, No. 207, § 1; 2017, No. 312, § 1; 2017, No. 1108, §§ 1, 2; 2017 (1st Ex. Sess.), No. 2, § 2; 2017 (1st Ex. Sess.), No. 9, § 2; 2019, No. 694, § 3.]

Publisher's Notes. Ark. Const. Amend. 94, which added this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and

adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

§ 31. Independent citizens commission.

(a) As provided in this section, members of the General Assembly shall have no authority to set salaries for:

- (1) Their positions as members of the General Assembly;
- (2) Elected constitutional officers of the executive department;
- (3) Justices;
- (4) Judges; and
- (5) Prosecuting attorneys.

(b)(1) There is created an independent citizens commission for the purpose of setting salaries of elected constitutional officers of the executive department, members of the General Assembly, justices, judges, and prosecuting attorneys as provided in this section.

(2)(A) Each member of the independent citizens commission shall serve a term of four (4) years.

(B) A person shall not serve more than two (2) terms on the independent citizens commission.

(3) The independent citizens commission shall consist of seven (7) members as follows:

- (A) Two (2) members appointed by the Governor;
- (B) Two (2) members appointed by the President Pro Tempore of the Senate;
- (C) Two (2) members appointed by the Speaker of the House of Representatives; and
- (D) One (1) member appointed by the Chief Justice of the Supreme Court.

(4) Vacancies on the independent citizens commission shall be filled in the manner of the original appointment.

(5) The independent citizens commission shall elect from its membership:

- (A) A chair; and
- (B) Other officers deemed necessary by the independent citizens commission.

(6) Four (4) members of the independent citizens commission shall constitute a quorum for the purpose of transacting business.

(7) A majority vote of the total membership of the independent citizens commission is required for any action of the independent citizens commission.

(8) The office of the Auditor of State shall provide staff assistance as may be requested by the independent citizens commission.

(c)(1) In making appointments to the independent citizens commission, the Governor, the President Pro Tempore of the Senate, the Speaker of the House of Representatives, and the Chief Justice of the Supreme Court shall consider racial, gender, and geographical diversity.

(2) A member of the independent citizens commission shall be:

- (A) A citizen of the United States;
- (B) A resident of the State of Arkansas for at least two (2) years preceding his or her appointment;
- (C) A qualified elector; and
- (D) At least twenty-five (25) years of age.

(3) The following persons shall not serve on the independent citizens commission:

- (A) A person holding civil office;
- (B) An employee of the State of Arkansas;
- (C) A person required by law to register as a lobbyist; or
- (D)(i) An immediate family member of:

- (a) A person holding civil office;
- (b) An employee of the State of Arkansas; or
- (c) A person required by law to register as a lobbyist.

(ii) As used in subdivision (c)(3)(D)(i) of this section, “immediate family member” means a person’s spouse, a child of the person or spouse, a child’s spouse, a parent of the person or the spouse, a brother or sister of the person or the spouse, anyone living or residing in the same residence or household with the person or the spouse, or anyone acting or serving as an agent of the person.

(d) The independent citizens commission shall have the duty to review and adjust as it deems necessary the salaries for the following positions:

- (1) Governor;
- (2) Lieutenant Governor;
- (3) Attorney General;
- (4) Secretary of State;
- (5) Treasurer of State;
- (6) Auditor of State;
- (7) Commissioner of State Lands;
- (8) Member of the General Assembly;
- (9) Chief Justice of the Supreme Court;
- (10) Justice of the Supreme Court;
- (11) Chief Judge of the Court of Appeals;
- (12) Judge of the Court of Appeals;
- (13) Circuit court judge;
- (14) District court judge; and
- (15) Prosecuting attorney.

(e)(1) The salaries of the positions under subsection (d) of this section:

(A) Shall not be subject to appropriation by the General Assembly; and

(B) Shall be paid from the Constitutional Officers Fund or its successor fund or fund accounts in the amount determined by the independent citizens commission.

(2)(A) If the independent citizens commission proposes to adjust a salary for a position under subsection (d) of this section, the independent citizens commission shall:

- (i) Provide notice to the public of the proposed salary adjustment;
- (ii) Make available to the public any data reviewed by the independent citizens commission in determining the proposed salary adjustment; and
- (iii)(a) Afford the public a reasonable opportunity to provide public comment on the proposed salary adjustment.

(b) The opportunity for public comment under subdivision (e)(2)(A)(iii)(a) of this section shall not exceed forty-five (45) days.

(B) A proposed salary adjustment of the independent citizens commission shall not be considered a rule under the Arkansas Administrative Procedure Act, Arkansas Code § 25-15-201 et seq.

(3) Upon satisfying (e)(2)(A)(i)-(iii) of this section, the independent citizens commission may file the adjusted salary with the Auditor of State.

(4) An adjustment to a salary shall be effective ten (10) days after it is filed with the Auditor of State.

(5) When considering whether or not to adjust a salary for a position under subsection (d) of this section, the independent citizens commission shall include in its considerations the overall economic condition of the state at that time.

(f)(1)(A) The independent citizens commission, by a majority vote of the total membership of the independent citizens commission cast during its first regularly scheduled meeting of each calendar year, may authorize payment to its members of a stipend not to exceed eighty-five dollars (\$85.00) per day for each meeting attended or for any day while performing any proper business of the independent citizens commission.

(B) Stipends shall be paid by the Auditor of State from funds available for that purpose.

(2) Members of the independent citizens commission shall receive no other compensation, expense reimbursement, or in-lieu-of payments.

(g)(1) The independent citizens commission shall provide that the salaries of circuit judges be uniform throughout the state.

(2)(A) Except as provided in this subdivision (g)(2), the independent citizens commission may increase or diminish the salaries for the positions under subsection (d) of this section.

(B) The independent citizens commission may increase but not diminish the salaries for the positions under subdivisions (d)(9)-(14) of this section.

(3)(A) Except as provided in subdivision (g)(3)(B) and subdivision (m)(4)(B) of this section, no single adjustment at any one (1) time to a salary by the independent citizens commission shall exceed fifteen percent (15%) of the salary to be increased or diminished.

(B) Salary adjustments resulting from the initial review of the independent citizens commission under subdivision (i)(3) of this section shall not be subject to subdivision (g)(3)(A) of this section.

(4) The independent citizens commission shall provide for salaries to be paid in monthly installments.

(h) Salaries for the positions under subsection (d) of this section shall continue as existing on November 4, 2014, until adjusted by the independent citizens commission.

(i)(1) Initial members of the independent citizens commission shall be appointed within thirty (30) days of November 5, 2014.

(2) The President Pro Tempore of the Senate shall call the first meeting of the independent citizens commission, which shall occur within forty-five (45) days of November 5, 2014.

(3)(A) The independent citizens commission:

(i) Shall complete an initial review of the salaries for the positions under subsection (d) of this section no later than ninety (90) days after November 5, 2014; and

(ii) May file any adjustments in salary resulting from the initial review with the Auditor of State upon satisfying (e)(2)(A)(i)-(iii) of this section.

(B) No later than ninety (90) days after November 5, 2014, the independent citizens commission shall also provide recommendations to the President Pro Tempore of the Senate and the Speaker of the House of Representatives concerning the amounts to be paid to members of the General Assembly for:

(i) Per diem;

(ii) Reimbursement for expenses; and

(iii) Reimbursement for mileage.

(4)(A) After completing the initial review under subdivision (i)(3) of this section, the independent citizens commission shall meet as necessary to review the salaries of the positions under subsection (d) of this section but shall not meet less than one (1) time per year.

(B) The independent citizens commission may adjust the salaries of the positions under subsection (d) of this section as provided in this section as it deems necessary.

(j) No later than ninety (90) days before the commencement of a regular session, the independent citizens commission shall provide recommendations to the President Pro Tempore of the Senate and the Speaker of the House of Representatives concerning the amounts to be paid to members of the General Assembly for:

(1) Per diem;

(2) Reimbursement for expenses; and

(3) Reimbursement for mileage.

(k) The independent citizens commission shall be subject to the Freedom of Information Act of 1967, Arkansas Code § 25-19-101 et seq.

(l)(1) The General Assembly, in the same manner as required for amendment of laws initiated by the people, may amend this section, so long as such amendments are germane to this section and consistent with its policy and purposes.

(2)(A) If an act of the General Assembly amends this section, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, make the following revisions to the act so long as the revisions do not change the substance or meaning of the act:

(i) Correct the spelling of words;

(ii) Change capitalization for the purpose of uniformity;

(iii) Correct manifest typographical and grammatical errors;

(iv) Correct manifest errors in references to laws and other documents;

(v) Correct manifest errors in internal reference numbers;

(vi) Number, renumber, redesignate, and rearrange this section;

- (vii) Change internal reference numbers to agree with renumbered sections, subsections, subdivisions, or other provisions of law;
- (viii) Insert or delete hyphens in words to follow correct grammatical usage;
- (ix) Change numerals or symbols to words or vice versa and add figures or words if they are merely repetitions of written words or vice versa for purposes of uniformity and style;
- (x) Change the form of nouns, pronouns, and verbs for purposes of style and grammar;
- (xi) Correct punctuation; and
- (xii) Change gender-specific language to gender-neutral language.

(B)(i) If more than one (1) act amending this section is enacted by the General Assembly during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section as necessary so that all of the enactments shall be given effect, including without limitation renumbering, redesignating, and rearranging subsections and subdivisions of this section.

(ii) In the event that one (1) or more acts amending this section result in an irreconcilable conflict with one (1) or more acts amending this section enacted during the same session, the Arkansas Code Revision Commission may, by a majority vote of the Arkansas Code Revision Commission, revise this section so that the conflicting provision of the last enactment prevails.

(3) If the Arkansas Code Revision Commission makes revisions under subdivision (1)(2) of this section, the Arkansas Code Revision Commission shall file a report with the Speaker of the House of Representatives, the President Pro Tempore of the Senate, and the Governor that:

(A) Explains the revisions made under subdivision (1)(2) of this section; and

(B) Includes the text of this section as amended by the revisions made under subdivision (1)(2) of this section.

(m)(1) Salaries for the positions under subdivision (d)(15) of this section shall continue as existing on November 4, 2014, until adjusted by the independent citizens commission.

(2) No later than thirty (30) days after March 20, 2015, the independent citizens commission shall begin a study of salaries for the positions under subdivision (d)(15) of this section.

(3) The independent citizens commission shall complete its review of the salaries for the positions under subdivision (d)(15) of this section no later than thirty (30) days after the date it begins its study under subdivision (m)(2) of this section.

(4)(A) If at the conclusion of its study under subdivision (m)(2) of this section the independent citizens commission determines that a salary revision for the positions under subdivision (d)(15) is appropriate, the independent citizens commission shall propose an adjustment under subsection (e) of this section.

(B) Initial salary revisions for the positions under subdivision (d)(15) resulting from the study under subdivision (m)(2) of this section are not subject to subdivision (g)(3)(A) of this section. [As added by Const. Amend. 94; as amended by Acts 2015, No. 559, § 2; 2019, No. 694, § 4.]

Publisher's Notes. Ark. Const. Amend. 94, which added this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and

adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

ARTICLE 20

“HOLFORD” BONDS NOT TO BE PAID

The General Assembly shall have no power to levy any tax, or make any appropriations, to pay either the principal or interest, or any part thereof, of any of the following bonds of the State, or the claims, or pretended claims, upon which they may be based, to-wit: Bonds issued under an act of the General Assembly of the State of Arkansas, entitled, “An act to provide for the funding of the public debt of the State,” approved April 6th, A. D. 1869, and numbered from four hundred and ninety-one to eighteen hundred and sixty, inclusive, being the “funding bonds,” delivered to F. W. Caper, and sometimes called “Holford bonds;” or bonds known as railroad aid bonds, issued under an act of the General Assembly of the State of Arkansas, entitled, An act to aid in the

construction of railroads, approved July 21, A. D. 1868; or bonds called “levee bonds,” being bonds issued under an act of the General Assembly of the State of Arkansas, entitled “An act providing for the building and repairing the public levees of the State, and for other purposes,” approved March 16, A. D. 1869, and the supplemental act thereto, approved April 12, 1869; and the act entitled “An act to amend an act entitled an act providing for the building and repairing of the public levees of this State,” approved March 23, A. D. 1871, and any law providing for any such tax or appropriation, shall be null and void. [As added by Const. Amend. 1.]

SCHEDULE

§ 1. Retention of existing laws — Sealed instruments.

All laws now in force, which are not in conflict or inconsistent with this Constitution, shall continue in force until amended or repealed by the General Assembly, and all laws exempting property from sale on execution, or by decree of a court, which were in force at the time of the adoption of the Constitution of 1868, shall remain in force with regard to contracts made before that time. Until otherwise provided by law no distinction shall exist between sealed and unsealed instruments, concerning contracts between individuals, executed since the adoption of the Constitution of 1868; Provided: That the statutes of limitation with regard to sealed and unsealed instruments in force at that time, continue to apply to all instruments afterward executed, and until altered or repealed.

§ 2. [Repealed.]

Publisher’s Notes. This section, concerning the regulation of common carriers, was repealed by Acts 1975 (Extended Sess., 1976), No. 1143, § 2. The repeal of this

section by Acts 1975 (Extended Sess., 1976), No. 1143, § 2, was reenacted by Acts 1987, No. 876, § 2.

§ 3. First general election.

An election shall be held at the several election precincts of every county in the State, on Tuesday, the thirteenth day of October, 1874, for Governor, Secretary of State, Auditor, Treasurer, Attorney-General, Commissioner of State Lands, (for two years unless the office is sooner abolished by the General Assembly), Chancellor, and Clerk of the separate Chancery court of Pulaski county, Chief Justice and two Associate Justices of the Supreme Court, a Circuit Judge and Prosecuting Attorney for each Judicial Circuit provided for in this Constitution; Senators and Representatives to the General Assembly, all county and township officers provided for in this Constitution; and also for the submission of this Constitution to the qualified electors of the State, for its adoption or rejection.

§ 4. Qualifications of voters.

The qualification of voters at the election, to be held as provided in this schedule, shall be the same as is now prescribed by law.

§ 5. Notice of election.

The State Board of Supervisors, hereinafter mentioned, shall give notice of said election immediately after the adoption of this Constitution by this Convention, by proclamation in at least two newspapers published at Little Rock, and such other newspapers as they may select. And each county board of Supervisors, shall give public notice in their respective counties, of said election, immediately after their appointment.

§ 6. Governor’s proclamation.

The Governor shall also issue a proclamation enjoining upon all peace officers the duty of preserving good order on the day of said election, and preventing any disturbance of the same.

§ 7. State board of supervisors.

Augustus H. Garland, Gordon N. Peay and Dudley E. Jones are hereby constituted a State Board of Supervisors of said election, who shall take an oath faithfully and impartially to discharge the duties of their office; a majority of whom shall be a quorum, and who shall perform the duties herein assigned them. Should a vacancy occur in said Board, by refusal to serve, death, removal, resignation, or otherwise; or if any member should become incapacitated from performing said duties, the remaining members of the Board shall fill the vacancy by appointment. But if all the places on said Board become vacant at the same time, the said vacancies shall be filled by the President of this Convention.

§ 8. County board of supervisors.

Said State Board shall at once proceed to appoint a Board of Election Supervisors for each County of this State, consisting of three men of known intelligence and uprightness of character, who shall take the same oath as above provided for the State Board. A majority of each Board shall constitute a quorum, and shall perform the duties herein assigned to them; and vacancies occurring in the County Boards shall be filled by the State Board.

§ 9. Poll books and ballot boxes — First election.

The State Board shall provide the form of poll books and each County Board shall furnish the Judges of each election precinct with three copies of the poll books in the form prescribed, and with ballot-boxes at the expense of the county.

§ 10. Copies of Constitution to be distributed.

The State Board of Supervisors shall cause to be furnished in pamphlet form a sufficient number of copies of this Constitution to supply each County Supervisor and Judge of Election with a copy, and shall forward the same to the County Election Boards for distribution.

§ 11. Judges and clerks of first election.

The Boards of County Election Supervisors shall at once proceed to appoint three Judges of Election for each election precinct in their respective counties; and the Judges shall appoint three Election Clerks for their respective precincts, all of whom shall be good, competent men, and take an oath as prescribed above. Should the Judges of any election precinct fail to attend at the time and place provided by law, or decline to act, the assembled electors shall choose competent persons, in the manner provided by law, to act in their place, who shall be sworn as above.

§ 12. Conduct of first election.

Said election shall be conducted in accordance with existing laws, except as herein provided. As the electors present themselves at the polls to vote, the judges of the election shall pass upon their qualifications and the clerks of the election shall register their names on the poll-books if qualified; and such registration by said clerks shall be a sufficient registration in conformity with the Constitution of this State, and then their votes shall be taken.

§ 13. Style of ballot.

Each elector shall have written or printed on his ticket "For Constitution," or "Against Constitution," and also the offices and the names of the candidates for the offices for whom he desires to vote.

§ 14. Manner of voting.

The judges shall deposit the tickets in the ballot-box; but no elector shall vote outside of the township or ward in which he resides. The names of the electors shall be numbered, and the corresponding numbers shall be placed on the ballots by the judges when deposited.

§ 15. Dram shops to be closed — First election.

All dram shops and drinking houses in this State shall be closed during the day of said election, and the succeeding night; and any person selling or giving away intoxicating liquors during said day or night shall be punished by fine, not less than two hundred dollars, for each and every offense, or imprisoned not less than six months, or both.

§ 16. Hours of voting — Counting of ballots — Returns.

The polls shall be opened at eight o'clock in the forenoon, and shall be kept open until sunset. After the polls are closed the ballots shall be counted by the judges at the place of voting, as soon as the polls are closed, unless prevented by violence or accident; and the results by them certified on the poll-books, and the ballots sealed up. They shall be returned to the County Board of Election Supervisors, who shall proceed to cast up the votes and ascertain and state the number of votes cast for the Constitution and the number cast against the Constitution, and also the number of votes cast for each candidate voted for for any office, and shall forthwith forward to the State Board of Supervisors, duly certified by them, one copy of the statement or abstracts of the votes so made out by them, retain one copy in their possession, and file one copy in the office of the County Clerk, where they shall also deposit, for safe-keeping, the ballots, sealed up, and one copy of the poll-books, retaining possession of the other copies.

§ 17. Publication of result.

The State Board of Supervisors shall at once proceed, on receiving such returns from the County Boards, to ascertain therefrom, and state the whole number of votes given for the Constitution, and the whole number given against it; and if a majority of all votes cast in favor of the Constitution, they shall at once make public the fact by publication in two or more of the leading newspapers published in the city of Little Rock, and this Constitution, from that date, shall be in force; and they shall also make out and file, in the office of the Secretary of State an abstract of all the votes cast for the Constitution, and all votes cast against it; and also an abstract of all votes cast for every candidate voted for at the election, and file the same in the office of the Secretary of State, showing the candidate elected. They shall also make out and certify, and lay before each house of the General Assembly a list of the members elected to that house; and shall also make out, certify and deliver to the Speaker of the House of Representatives an abstract of all votes cast at the election, for any and all persons for the office of Governor, Secretary of State, Treasurer of State, Auditor of State, Attorney General and Commissioner of State Lands, and the said Speaker shall cast up the votes and announce the names of the persons elected to these offices. The Governor, Secretary of State, Treasurer of State, Auditor of State, Attorney-General and Commissioner of State Lands chosen at said election shall qualify and enter upon the discharge of the duties of their respective offices within fifteen days after the announcement of their election as aforesaid.

§ 18. Commissions — Officers elected at first election.

All officers shown to be elected by the abstract of said election filed by the State Board of Supervisors in the office of the Secretary of State, required by this Constitution to be commissioned, shall be commissioned by the Governor.

§ 19. Election of representatives and senators — First election.

At said election the qualified voters of each County and Senatorial District, as defined in article eight of this Constitution, shall elect, respectively, Representatives and Senators according to the numbers and apportionment contained in said article. The Board of Election Supervisors of each county shall furnish certificates of election to the person or persons elected to the House of Representatives as soon as practicable after the result of the election has been ascertained; and such Board of Election Supervisors in each county shall make a correct return of the election for Senator or Senators to the Board of Election Supervisors of the county first named in the Senatorial apportionment, and said Board shall furnish certificates of election to the person or persons elected as Senator or Senators in said Senatorial district as soon as practicable.

§ 20. When officers to enter upon duties.

All officers elected under this Constitution, except the Governor, Secretary of State, Auditor of State, Treasurer, Attorney-General and Commissioner of State Lands shall enter upon the duties of their several offices when they shall have been declared duly elected by said State Board of Supervisors, and shall have duly qualified. All such officers shall qualify and enter upon the duties of their offices within fifteen days after they have been duly notified of their election.

§ 21. Prior incumbents to vacate office.

Upon the qualification of the officers elected at said election the present incumbents of the offices for which the election is held shall vacate the same and turn over to the officers thus elected and qualified, all books, papers, records, moneys and documents belonging or pertaining to said offices by them respectively held.

§ 22. First session of General Assembly.

The first session of the General Assembly under this constitution shall commence on the first Tuesday after the second Monday in November, 1874.

§ 23. Transfer of jurisdiction of courts.

The County Courts provided for in this Constitution shall be regarded in law as a continuation of the Boards of Supervisors now existing by law, and the Circuit Courts shall be regarded in law as continuations of the Criminal Courts wherever the same may have existed in their respective counties: and the Probate Courts shall be regarded as continuations of the Circuit Courts for the business within the jurisdiction of such Probate Courts, and the papers and records pertaining to said courts and jurisdictions shall be transferred accordingly; and no suit or prosecution of any kind shall abate because of any change made in this Constitution.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that "jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...".

§ 24. Present incumbents to hold until successors qualify.

All officers now in office whose offices are not abolished by this Convention, shall continue in office and discharge the duties imposed on them by law, until their successors are elected and qualified under this Constitution. The office of Commissioner of State Lands shall be continued; Provided, That the General Assembly at its next session may abolish or continue the same in such manner as may be prescribed by law.

§ 25. Fraud in first election.

Any election officer, appointed under the provisions of this schedule, who shall fraudulently and corruptly permit any person to vote illegally or refuse the vote of any qualified elector, cast up or make a false return of said election, shall be deemed guilty of a felony, and on conviction thereof, shall be imprisoned in the penitentiary not less than five years nor more than ten years. And any person who shall vote when not a qualified elector, or vote more than once, or bribe any one to vote contrary to his wishes, or intimidate or prevent any elector by threats, menace or promises from voting, shall be guilty of a felony, and upon conviction thereof, shall be imprisoned in the penitentiary not less than one, nor more than five years.

§ 26. Tenure of officers elected.

All officers elected at the election provided for in this schedule shall hold their offices for the respective periods provided for in the foregoing Constitution, and until their successors are elected and qualified. The first general elections after the ratification of this Constitution shall be held on the first Monday of September A. D. 1876. Nothing in this Constitution and the schedule thereto shall be so construed as to prevent the election of congressmen at the time as now prescribed by law.

§ 27. Appropriation for expenses of election.

The sum of five thousand dollars is hereby appropriated out of any money in the treasury, not otherwise appropriated, to defray the expenses of the election provided for in this schedule, and the Auditor of State shall draw his warrants on the Treasurer for such expenses, not exceeding said amount, on the certificate of the State Board of Supervisors of election.

§ 28. Salaries of officers.

For the period of two years from the adoption of this Constitution, and until otherwise provided by law, the respective officers herein enumerated shall receive for their services the following salaries per annum:

For Governor, the sum of	\$3,500
For Secretary of State, the sum of	2,000
For Treasurer, the sum of	2,500
For Auditor, the sum of	2,500
For Attorney General, the sum of	2,000
For Commissioner of State Lands, the sum of	2,000
For Judges of Supreme Court, each, the sum of	3,500
For Judges of Circuit and Chancery Courts, each, the sum of	2,500
For Prosecuting Attorneys, each, the sum of	400
For members of the General Assembly, the sum of \$6 per day, and twenty cents per mile for each mile traveled in going to and returning from the seat of government over the most direct and practicable route.	

Publisher's Notes. This section has been superseded by a series of constitutional amendments. For current law, see Const. Amends. 21, 43, 56, and 94.

Done in Convention, at Little Rock, the Seventh day of September in the year of our Lord one thousand eight hundred and seventy four and of the Independence of the United States the ninety-ninth.

In Witness Whereof, we have hereunto subscribed our names.

GRANDISON D. ROYSTON,
President of the Convention, and
Delegate from the County of Hempstead.

THOMAS W. NEWTON,
Secretary.

A. M. RODGERS, Delegate from Benton County.
HORACE H. PATTERSON, Delegate from Benton County.
W. W. BAILEY, Delegate from Boone County.
JNO. R. HAMPTON, Delegate from Bradley County.
JOHN W. CYPERT, Delegate from Baxter County.
BRADLEY BUNCH, Delegate from Carroll County.
JESSE A. ROSS, Delegate from Clark County.
H. F. THOMASON, Delegate from Crawford County.
W. D. LEIPER, Delegate from Dallas County.
WM. J. THOMPSON, Delegate from Woodruff County.
JAMES A. GIBSON, Delegate from Arkansas County.
HENRY W. CARTER, Delegate from Pike County.
DANIEL F. REINHARDT, Delegate from Prairie County.
ELIJAH MOSELEY, Delegate from Ouachita County.
STEPHEN C. BATES, Delegate from Polk County.
G. P. SMOOTE, Delegate from Columbia County.
D. L. KILLGORE, Delegate from Columbia County.
WILLIAM S. HANNA, Delegate from Conway County.
JOHN S. ANDERSON, Delegate from Craighead County.
J. G. FRIERSON, Delegate from Cross County.
E. FOSTER BROWN, Delegate from Clayton County.
JAS. P. STANLEY, Delegate from Drew County.
JOHN NIVEN, Delegate from Dorsey County.
WILLIAM W. MANSFIELD, Delegate from the County of Franklin.
JOHN DUNAWAY, Delegate from the County of Faulkner.
DAVIDSON D. CUNNINGHAM, Delegate from the County of Grant.
BEN H. CROWLEY, Delegate from the County of Greene.
H. M. RECTOR, Delegate from Garland County.
JN. R. EAKIN, Delegate from Hempstead County.
W. C. KELLY, Delegate from Hot Spring County.
J. W. BUTLER, Delegate from Independence County.
JAMES RUTHERFORD, Delegate from Independence County.
RANSOM GULLEY, Delegate from Izard County.
FRANKLIN DOSWELL, Delegate from Jackson County.
JNO. A. WILLIAMS, Delegate from Jefferson County.
SETH J. HOWELL, Delegate from Johnson County.
PHILIP K. LESTER, Delegate from Lawrence County.
J. H. WILLIAMS, Delegate from Little River County.
J. P. EAGLE, Delegate from Lonoke County.
REASON G. PUNTNEY, Delegate from Lincoln County.
MONROE ANDERSON, Delegate from Lee County.
JOHN CARROLL, Delegate from Madison County.
S. P. HUGHES, Delegate from Monroe County.
NICHOLAS W. CABLE, Delegate from Montgomery County.
CHARLES BOWEN, Delegate from Mississippi County.
R. K. GARLAND, Delegate from Nevada County.
HENRY G. BUNN, Delegate from Ouachita County.
W. H. BLACKWELL, Delegate from Perry County.

JNO. J. HORNOR, Delegate from Phillips County.
 JNO. R. HOMER SCOTT, Delegate from the County of Pope.
 JOHN MILLER, JR., Delegate from the County of Randolph.
 SIDNEY M. BARNES, Delegate from the County of Pulaski.
 JABEZ M. SMITH, Delegate from Saline County.
 BEN B. CHISM, Delegate from the County of Sarber.
 J. W. SORRELS, Delegate from Scott County.
 W. S. LINDSEY, Delegate from Searcy County.
 R. P. PULLIAM, Delegate from Sebastian County.
 W. M. FISHBACK, Delegate from Sebastian County.
 B. H. KINSWORTHY, Delegate from Sevier County.
 LEWIS WILLIAMS, Delegate from Sharp County.
 JOHN M. PARROTT, Delegate from Saint Francis County.
 WALTER J. CAGLE, Delegate from Stone County.
 HORATIO G. P. WILLIAMS, Delegate from Union County.
 ROBT. GOODWIN, Delegate from Union County.
 A. R. WITT, Delegate from Van Buren County.
 R. P. POLK, Delegate from Phillips County.
 T. W. THOMASON, Delegate from Washington County.
 BENJAMIN F. WALKER, Delegate from Washington County.
 M. F. LAKE, Delegate from Washington County.
 JESSE N. CYPERT, Delegate from White County.
 J. W. HOUSE, Delegate from White County.
 JOSEPH T. HARRISON, Delegate from Yell County.
 MARCUS L. HAWKINS, Delegate from Ashley County.
 EDWIN R. LUCAS, Delegate from Fulton County.
 BENJAMIN W. JOHNSON, Delegate from Calhoun County.
 RODERICK JOYNER, Delegate from Poinsett County.

PROCLAMATION

By The

STATE BOARD OF ELECTION SUPERVISORS

Office of State Board of Election Supervisors,

Little Rock, Ark., October 30, 1874.

In pursuance of the provisions of section seventeen of the schedule to the Constitution recently framed for the State of Arkansas, the undersigned do hereby proclaim and make known that at a general election held on the thirteenth day of October, A. D. 1874, the following votes were cast "For" and "Against" said Constitution in the several counties of said State, as appears by the official returns made to said board by the county boards of election supervisors, to-wit:

[Here follows a tabulation of the vote by counties.]

Total Vote "For Constitution"	78,697
Total Vote "Against Constitution"	24,807
Majority "For Constitution"	53,890

Given under our hands this thirtieth day of October, 1874.

U. M. ROSE,
 DUDLEY E. JONES,
 GORDON N. PEAY,

State Board of Election Supervisors.

AMENDMENTS TO THE CONSTITUTION OF ARKANSAS OF 1874

AMENDMENT.

1. "HOLFORD" BONDS, ARTICLE 20 ADDED.
2. REGULATION OF CARRIERS.
3. [REPEALED.]
4. SURETIES ON OFFICIAL BONDS.
5. PER DIEM AND MILEAGE OF GENERAL ASSEMBLY.
6. EXECUTIVE DEPARTMENT.
7. INITIATIVE AND REFERENDUM.
8. QUALIFICATIONS OF ELECTORS.
9. SUPREME COURT.
10. LIMITATION ON LEGISLATIVE AND TAXING POWER.
11. SCHOOL TAX.
12. TEXTILE MILLS, TAX EXEMPTION.
13. [REPEALED.]
14. LOCAL ACTS.
15. [REPEALED.]
16. JURY TRIAL.
17. [REPEALED.]
18. TAX TO AID INDUSTRIES.
19. PASSAGE OF LAWS.
20. STATE BONDS.
21. CRIMINAL PROSECUTIONS — SALARIES OF PROSECUTORS.
22. EXEMPTION OF HOMESTEADS FROM CERTAIN STATE TAXES.
23. APPORTIONMENT.
24. PROBATE COURTS — CIRCUIT AND COUNTY CLERKS.
25. [REPEALED.]
26. WORKMEN'S COMPENSATION.
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28. REGULATING PRACTICE OF LAW.
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30. CITY LIBRARIES.
31. POLICE AND FIREFIGHTERS' RETIREMENT SALARIES AND PENSIONS.
32. COUNTY OR CITY HOSPITALS.
33. BOARDS AND COMMISSIONS GOVERNING STATE INSTITUTIONS.
34. RIGHTS OF LABOR.
35. WILD LIFE — CONSERVATION — ARKANSAS STATE GAME AND FISH COMMISSION.
36. POLL TAX EXEMPTION.
37. [REPEALED.]
38. COUNTY LIBRARIES.
39. VOTER REGISTRATION LAWS.
40. SCHOOL DISTRICT TAX.
41. ELECTION OF COUNTY CLERK.
42. STATE HIGHWAY COMMISSION.
43. [REPEALED.]
44. [REPEALED.]
45. APPORTIONMENT.
46. HORSE RACING AND PARI-MUTUEL WAGERING AT HOT SPRINGS.
47. STATE AD VALOREM TAX PROHIBITION.
48. [REPEALED.]
49. [REPEALED.]
50. ELECTIONS CONDUCTED BY BALLOT OR VOTING MACHINE.
51. VOTER REGISTRATION.
52. COMMUNITY COLLEGES.
53. FREE SCHOOL SYSTEM.

AMENDMENT.

54. PURCHASE OF PRINTING, STATIONERY AND SUPPLIES.
55. REVISION OF COUNTY GOVERNMENT.
56. CONSTITUTIONAL OFFICERS — GENERAL ASSEMBLY.
57. INTANGIBLE PERSONAL PROPERTY.
58. [REPEALED.]
59. TAXATION.
60. 1982 INTEREST RATE CONTROL AMENDMENT.
61. COUNTY ROAD TAX.
62. LOCAL CAPITAL IMPROVEMENT BONDS.
63. FOUR YEAR TERMS FOR STATE CONSTITUTIONAL OFFICERS.
64. [REPEALED.]
65. REVENUE BONDS.
66. JUDICIAL DISCIPLINE AND DISABILITY COMMISSION.
67. JURISDICTION OF MATTERS RELATING TO JUVENILES AND BASTARDY.
68. ABORTION.
69. REPEAL OF AMENDMENT 44 (PROTECTION OF STATES' RIGHTS).
70. EXECUTIVE DEPARTMENT AND GENERAL ASSEMBLY SALARIES — RESTRICTIONS ON EXPENSE REIMBURSEMENTS.
71. PERSONAL PROPERTY TAXES.
72. CITY AND COUNTY LIBRARY AMENDMENT.
73. ARKANSAS TERM LIMITATION AMENDMENT.
74. SCHOOL TAX — BUDGET — APPROVAL OF TAX RATE.
75. [ENVIRONMENTAL ENHANCEMENT FUNDS].
76. THE CONGRESSIONAL TERM LIMITS AMENDMENT OF 1996.
77. [SPECIAL JUDGES].
78. [CITY AND COUNTY GOVERNMENT REDEVELOPMENT].
79. [PROPERTY TAX RELIEF].
80. [REVISION OF THE JUDICIAL ARTICLE].
81. [PROTECTION OF THE SECRECY OF INDIVIDUAL VOTES].
82. [OBLIGATION BONDS FOR ECONOMIC DEVELOPMENT].
83. [MARRIAGE].
84. [AUTHORIZED BINGO OR RAFFLES].
85. [VOTING AND ELECTIONS AMENDMENT].
86. [GENERAL ASSEMBLY SESSIONS].
87. [STATE LOTTERY ESTABLISHED].
88. [WILDLIFE CONSERVATION AND MANAGEMENT].
89. [GOVERNMENTAL BONDS AND LOANS].
90. [BONDS FOR ECONOMIC DEVELOPMENT].
91. [GENERAL OBLIGATION FOUR-LANE HIGHWAY CONSTRUCTION AND IMPROVEMENT BONDS].
92. [REVIEW AND APPROVAL OF ADMINISTRATIVE RULES].
93. [AMENDMENT OF INITIATIVE AND REFERENDUM PETITIONS].
94. THE ARKANSAS ELECTED OFFICIALS ETHICS, TRANSPARENCY, AND FINANCIAL REFORM AMENDMENT OF 2014.
95. [TERMS, ELECTION, AND ELIGIBILITY OF ELECTED OFFICIALS].
96. [GOVERNOR'S RETENTION OF POWERS AND DUTIES WHEN ABSENT FROM THE STATE].
97. [JOB CREATION, JOB EXPANSION, AND ECONOMIC DEVELOPMENT].
98. ARKANSAS MEDICAL MARIJUANA AMENDMENT OF 2016.
99. [VOTER IDENTIFICATION].
100. THE ARKANSAS CASINO GAMING AMENDMENT OF 2018.
101. [TRANSPORTATION SALES TAX CONTINUATION].
102. ARKANSAS TERM LIMITS AMENDMENT.
103. [USE OF LOTTERY PROCEEDS UNDER ARTICLE 19, § 14]
104. [CASINO LICENSES UNDER AMENDMENT 100, § 4]

Publisher's Notes. Amendments to the Constitution have been inconsistently numbered both as proposed and

as compiled in previous digests and compilations. This volume uses the numbers assigned by the Secretary of

State in 1932 and used in Pope's Digest of 1937, which omitted certain prior amendments which were deemed superseded by later amendments.

AMEND. 1. "HOLFORD" BONDS (CONST., ART. 20 ADDED).

Publisher's Notes. This amendment added Ark. Const., Art. 20, and is incorporated into the original Constitution. The amendment was proposed by the General Assembly on January 30, 1883 (see Acts 1883, p. 346), was declared

adopted by the Speaker of the House on January 14, 1885, and was so proclaimed by the Governor. The vote for the amendment was 119,806 and the vote against the amendment was 15,492.

AMEND. 2. REGULATION OF CARRIERS (CONST., ART. 17, § 10 AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 17, § 10, and is incorporated therein. The amendment was proposed by the General Assembly at the 1897 regular session (see Acts 1897, p. 92), declared to be

adopted by the Speaker of the House on January 13, 1899, and so proclaimed by the Governor. The vote for the amendment was 63,703 and the vote against was 16,940.

AMEND. 3. COUNTY ROAD TAX [REPEALED.]

Publisher's Notes. This amendment was repealed by Ark. Const. Amend. 61, § 2.

AMEND. 4. SURETIES ON OFFICIAL BONDS (CONST., ART. 19, § 21 AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 19, § 21, and is incorporated therein. The amendment was proposed by the General Assembly at the 1899 regular session (see Acts 1899, p. 386). It was de-

clared adopted by the Speaker of the House on January 17, 1901, and so proclaimed by the Governor. The vote for the amendment was 65,825 and the vote against the amendment was 23,033.

AMEND. 5. PER DIEM AND MILEAGE OF GENERAL ASSEMBLY (CONST., ART. 5, § 16 AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 5, § 16, which was subsequently repealed by Ark. Const. Amend. 94. Amendment 5 was declared to have been adopted by the Speaker of the House of Representatives on February 10, 1913 (see Acts 1913, p. 1525). The vote for the amendment was 103,246 and the vote against the amendment was 33,397.

See *Berry v. Gordon*, 237 Ark. 547 and 865, 376 S.W.2d 279 (1964), and *State ex. rel. Purcell v. Jones*, 242 Ark. 168, 412 S.W.2d 284 (1967), for discussion of implied repeal of this provision by subsequent amendments.

Compensation, including per diem and mileage, of General Assembly members is now governed by Ark. Const., Art. 19, § 31.

AMEND. 6. EXECUTIVE DEPARTMENT AND OFFICERS (CONST., ART. 6, § 1, AMENDED AND SECTIONS ADDED).

Publisher's Notes. The enacting clause of the resolution proposing this amendment read: "That section No. 17 of article 5 of the Constitution of the State of Arkansas be amended to read as follows:

"Executive Department

"Section 1. To amend section 1 of article 6 of the Constitution of the State of Arkansas to read as follows:
* * *"

The amendment then proceeds to amend Art. 6, § 1, and to add five additional sections.

This amendment was submitted by the General Assembly (see Acts 1913, p. 1527) and voted upon at the general election, September 14, 1914, with returns as follows: for, 46,567; against, 45,206. It was declared to be in force in *Combs v. Gray*, 170 Ark. 956, 281 S.W. 918 (1926). See also *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925).

Effective Dates.

Ark. Const. Amend. 6, § 7: second Monday in September, 1915.

§ 1. Executive department.

Publisher's Notes. This section amended Ark. Const., Art. 6, § 1, and is incorporated therein.

This section was probably superseded by Ark. Const. Amend. 37, § 1, which was repealed by Ark. Const. Amend.

56, § 5, and replaced by § 1 of that amendment. However, Ark. Const. Amend. 56, § 1, has probably been superseded by Ark. Const. Amend. 63, § 1.

§ 2. Executive power vested in Governor and Lieutenant Governor.

The executive power shall be vested in a Governor, who shall hold office for two years; a Lieutenant Governor shall be chosen at the same time and for the same term. The Governor and Lieutenant Governor elected next preceding the time when this section shall take effect shall hold office until and including the second Monday of September, and their successors shall be chosen at the general election in that year.

Publisher's Notes. This section has probably been superseded by Ark. Const. Amend. 63 as to terms of office. See also Ark. Const., Art. 6, § 2, as to power of Governor.

§ 3. Election of Governor and Lieutenant Governor.

The Governor and Lieutenant Governor shall be elected at the times and places of choosing members of the Assembly. The persons respectively having the highest number of votes for Governor and Lieutenant Governor shall be elected, but in case two or more shall have an equal and the highest number of votes for Governor, or for Lieutenant Governor, the two houses of the Legislature at its next annual session shall forthwith, by joint ballot, choose one of the said persons so having an equal and the highest number of votes for Governor or Lieutenant Governor.

Publisher's Notes. In connection with this section, see Ark. Const., Art. 6, § 3.

§ 4. Lieutenant Governor acting as Governor.

In case of the impeachment of the Governor, or his or her removal from office, death, inability to discharge the powers and duties of the said office, or resignation, the powers and duties of the office, shall devolve upon the Lieutenant Governor for the residue of the term, or until the disability shall cease. When the Governor shall, with the consent of the Legislature, be out of the State, in time of war, at the head of a military force thereof, he or she shall continue commander-in-chief of all the military force of the State. [As amended by Const. Amend. 96.]

Publisher's Notes. This section probably supersedes Ark. Const., Art. 6, § 12, in its entirety and may supersede § 14 of that article in part.

Ark. Const. Amend. 96, which amended this section, was proposed by S.J.R. 3 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of

777,973 for and 296,291 against. The amendment deleted "or absence from the State" following "resignation" in the first sentence and made stylistic changes. The amendment was effective thirty days after the election pursuant to § 7-9-119.

§ 5. Qualifications and duties of Lieutenant Governor — Succession to the governorship.

The Lieutenant Governor shall possess the same qualifications of eligibility for the office as the Governor. He shall be President of the Senate, but shall have only a casting vote therein in case of a tie vote. If during a vacancy of the office of Governor, the Lieutenant Governor shall be impeached, displaced, resign, die, or become incapable of performing the duties of his office or be absent from the State, the President of the Senate shall act as Governor until the vacancy be filled or the disability shall cease; and if the President of the Senate for any of the above causes shall become incapable of performing the duties pertaining to the office of Governor, the Speaker of the Assembly shall act as Governor until the vacancy be filled or the disability shall cease.

Publisher's Notes. The third sentence of this section probably supersedes Ark. Const., Art. 6, § 13, in its entirety and may supersede § 14 of that article in part.

§ 6. [Repealed.]

Publisher's Notes. Ark. Const. Amend. 94, which repealed this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this section read:

“§ 6. Salary of Lieutenant Governor.

“The Lieutenant Governor shall receive for his services an annual salary of two thousand dollars, and shall not

receive or be entitled to any other compensation, fee or perquisite, for any duty or service he may be required to perform by the Constitution or by law.”

This section was held to be superseded by Ark. Const. Amend. 56, § 2 [repealed], in *Berry v. Gordon*, 237 Ark. 547, 376 S.W.2d 279 (1964).

For current provision concerning salary of the Lieutenant Governor, see Ark. Const., Art. 19, § 31.

AMEND. 7. INITIATIVE AND REFERENDUM (CONST., ART. 5, § 1, AMENDED).

Publisher's Notes. This amendment amended Const., Art. 5, § 1, and is incorporated therein. The amendment was adopted at the general election of Nov. 2, 1920, by a vote of 86,360 for and 43,662 against. It was declared lost

by the Speaker of the House on Jan. 15, 1921, but was declared adopted in *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925).

AMEND. 8. QUALIFICATIONS OF ELECTORS (CONST., ART. 3, § 1, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 3, § 1, and is incorporated therein. The amendment was proposed in the 1919 session (see Acts 1919, p. 489) and voted upon at the general election of 1920, with the following results: for, 87,237; against, 49,751. It was declared to be in force by the Attorney General. See the

decisions in *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925), and *Combs v. Gray*, 170 Ark. 956, 281 S.W. 918 (1926).

The poll tax requirement of this amendment was repealed by Ark. Const. Amend. 51, § 17.

AMEND. 9. SUPREME COURT.

Publisher's Notes. This amendment was proposed by the General Assembly at the 1923 session (see Acts 1923, S.J.R. 1, p. 796) and approved at the general election of Oct. 7, 1924, by vote of 52,151 for and 40,955 against. It was declared adopted in *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925).

Effective Dates.

Ark. Const. Amend. 9, § 3: effective 60 days after approval and adoption by the people of the State of Arkansas.

§ 1. Enlargement — Sitting in division.

The Supreme Court shall be composed of five judges, one of whom shall be styled Chief Justice and elected as such, any three of whom shall in every case be necessary to a decision. Provided if it should hereafter become necessary to increase the number of the judges of the Supreme Court, the Legislature may provide for two additional judges and may also provide for the court sitting in divisions under such regulations as may be prescribed by law; provided further, that should the court sit in divisions, in all cases where the construction of the Constitution is involved, the cause shall be heard by the court in banc, and in all cases when a judge of a division dissents from the opinion therein, at the request of the Chief Justice, or such dissenting justice, the cause shall be transferred to the court in banc for its decision.

Publisher's Notes. Acts 1925, No. 205, § 1, increased the number of judges to seven.

§ 2. [Repealed.]

Publisher's Notes. Ark. Const. Amend. 94, which repealed this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this section read:

“§ 2. Compensation of judges.

“The Supreme Court judges shall at stated times receive compensation for their services to be fixed by law. When the salary of the judges under this amendment to the Constitution shall have been established by law, such salary shall not thereafter be increased or diminished

during their respective terms. Until otherwise provided by law, the judges of the Supreme Court shall each receive a salary of Seven thousand five hundred dollars per annum.”

For current provision concerning compensation of justices, see Ark. Const., Art. 19, § 31.

AMEND. 10. LIMITATION ON LEGISLATIVE AND TAXING POWER (CONST., ART. 12, § 4, AMENDED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 12, § 4, and is incorporated therein. The amendment was proposed by the General Assembly at the 1923 regular session (see Acts 1923, p. 797) and voted upon at the general election on October 7, 1924. Returns: for, 57,854; against, 35,449. The amendment was declared adopted in *Brickhouse v. Hill*, 167 Ark. 513, 268 S.W. 865 (1925).

Effective Dates.

Ark. Const. Amend. 10, § 2: effective 60 days after adoption.

AMEND. 11. SCHOOL TAX (CONST., ART. 14, § 3, AMENDED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 14, § 3, and is incorporated therein. The amendment was proposed by the General Assembly at the 1925 regular session (see Acts 1925, p. 1090), was voted upon at the general election on October 5, 1926, and adopted by a vote of 97,502 for and 40,837 against.

Ark. Const., Art. 14, § 3, as amended by Ark. Const. Amend. 11, was further amended by Ark. Const. Amend. 40 and Ark. Const. Amend. 74. See notes to Ark. Const., Art. 14, § 3.

AMEND. 12. TEXTILE MILLS, TAX EXEMPTION.

Cotton mills tax exempt for seven years.

All capital invested in a textile mill in this state for the manufacture of cotton and fiber goods in any manner shall be and is hereby declared to be exempt from taxation for a period of seven years from the date of the location of said textile mill.

Publisher’s Notes. This amendment was proposed by the General Assembly at the 1925 regular session (see Acts 1925, p. 1089) and adopted at the general election on Oct. 5, 1926, by a vote of 102,044 for and 31, 661 against.

Effective Dates.

Ark. Const. Amend. 12, § 2: effective after approval and adoption by the people of the State of Arkansas.

AMEND. 13. [REPEALED.]

Publisher’s Notes. This amendment, which amended Ark. Const., Art. 16, § 1, was repealed by Ark. Const. Amend. 62, § 11.

AMEND. 14. LOCAL ACTS.

Local or special acts prohibited — Rights to repeal acts by legislature.

The General Assembly shall not pass any local or special act. This amendment shall not prohibit the repeal of local or special acts.

Publisher’s Notes. This amendment was proposed by initiative petition filed in the office of the Secretary of State on May 28, 1926 (see Acts 1927, p. 1215). It was approved at the general election on Oct. 5, 1926, by a vote of 80,500 for and 44,150 against.

This amendment may supersede Ark. Const., Art. 5, §§ 24-26.

AMEND. 15. [REPEALED.]

Publisher’s Notes. Ark. Const. Amend. 94, which repealed this amendment effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this amendment read:

“Salaries of state officials.

“The annual salaries of the State and District Officers hereinafter mentioned, which shall be paid in monthly installments, shall be as follows:

“For Governor, the sum of \$6,000.00; for Secretary of State, the sum of \$4,000.00; for Treasurer of the State, the

sum of \$4,000.00; for Auditor of the State, the sum of \$4,000.00; for Attorney General, the sum of \$5,000.00; for Judge of the Circuit Courts and Chancellors, each, the sum of \$3,600.00.

“The members of the General Assembly shall receive as their salary the sum of One Thousand (\$1,000.00) Dollars, except the Speaker of the House of Representatives, who shall receive his salary of Eleven Hundred Dollars (\$1,100.00), for each period of two (2) years; and in addition to such salary the members of the general Assembly shall receive five cents per mile for each mile traveled in going to and returning from the seat of government over the most direct and practicable route, and provided further that when said members are required to attend an extraordi-

nary session of the General Assembly they shall receive in addition to the salary herein provided the sum of 6.00 per day for each day they are required to attend, and mileage at the rate herein provided.”

Amendment 15 was proposed by the General Assembly at the 1927 regular session (see Acts 1927, p. 1189). It was approved at the general election on Nov. 6, 1928, by a vote of 94,528 for and 56,042 against.

The amendment was held to be superseded by Ark. Const. Amend. 37 in *Berry v. Gordon*, 237 Ark. 547 and 865, 376 S.W.2d 276 (1964). Ark. Const. Amend. 37 was repealed by Ark. Const. Amend. 56, § 5.

For current provision concerning salaries, see Ark. Const., Art. 19, § 31.

AMEND. 16. JURY TRIAL (CONST., ART. 2, § 7, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 2, § 7, and is incorporated therein. The amendment was proposed by the General Assembly at the 1927

regular session (see Acts 1927, p. 1190 and Acts 1929, p. 1521) and adopted at the general election on Nov. 6, 1928, by a vote of 101,890 for and 52,147 against.

AMEND. 17. [REPEALED.]

Publisher's Notes. This amendment, concerning county construction and building tax, as amended by Amend. 25, was repealed by Ark. Const. Amend. 62, § 11.

AMEND. 18. TAX TO AID INDUSTRIES.

City tax. — It being most apparent that factories, industries and transportation facilities are necessary for the development of a community and for the welfare of its inhabitants, a special tax not exceeding five mills on the dollar of all taxable property in cities of the first class located in counties now or hereafter having not less than one hundred five thousand population, in addition to other taxes now provided by law, may be levied in such cities for the period that may be provided by law, when petitioned for by ten per cent of the owners of real property in such city and on consent of a majority of the electors of such city voting on the question.

The proceeds of such tax shall be expended by a board of three commissioners, each of whom shall be taxpayer in such city, said commissioners, to serve for such term as may be provided by law without compensation, except actual expenses. One of the commissioners shall be selected by a majority of the judges of the Supreme Court, sitting as a board, one by a majority of the judges of the Circuit, County and Chancery Courts of the county, sitting as a board, and one by a majority of the banks and trust companies located in such city whose representatives shall sit as a board. Where there are two such cities in such county and the tax herein provided for has been voted in each, one board of commissioners may be appointed for both cities if a majority of the boards having the appointive power deem best, and in that event a majority of the banks and trust companies in both cities shall appoint one commissioner, and the proceeds of the tax shall be expended for the benefit of both cities.

The proceeds of such tax may be expended as may be provided by law for the purpose of securing the location of factories, industries, river transportation and facilities therefor within and adjacent to such cities or other public purposes, exclusive of charities and those now within the powers of said cities to perform, and expenditures may also be made for advertising such cities and the State, or making secured loans to such factories and industries, or for any other public purpose that may be provided by law, connected with securing the location of such factories and industries and encouraging them.

The provisions of this amendment are separable, and if any should be held invalid the remainder shall stand.

Publisher's Notes. This amendment was proposed by initiative petition and approved at the general election on

Nov. 6, 1928, by a vote of 99,507 for and 44,675 against. See Acts 1929, p. 1526.

AMEND. 19. PASSAGE OF LAWS (CONST., ART. 5, §§ [37]-[41] ADDED).

Publisher's Notes. This amendment added five sections to Ark. Const., Art. 5 which appear as §§ [37]-[41] of that article. The amendment was proposed by the General

Assembly at the 1933 regular session (see Acts 1933, p. 877), voted upon at the general election on Nov. 6, 1934, and adopted by a vote of 99,223 for and 25,496 against.

AMEND. 20. STATE BONDS.

Bonds prohibited except when approved by majority vote of electors. — Except for the purpose of refunding the existing outstanding indebtedness of the State and for assuming and refunding valid outstanding road improvement district bonds, the State of Arkansas shall issue no bonds or other evidence of indebtedness pledging the faith and credit of the State or any of its revenues for any purpose whatsoever, except by and with the consent of the majority of the qualified electors of the State voting on the question at a general election or at a special election called for that purpose.

Publisher's Notes. This amendment may be superseded by Ark. Const. Amend. 65.

This amendment was proposed by the General Assembly at the 1933 regular session (see Acts 1933, p. 879). It was approved at the general election Nov. 6, 1934, by a vote of 97,344 for and 26,299 against.

Amendment 20 provides that it "shall be self-executing and require no enabling act, but shall take and have full force and effect immediately upon its adoption by the electors of the State."

AMEND. 21. CRIMINAL PROSECUTIONS — SALARIES OF PROSECUTORS.

Publisher's Notes. This amendment was proposed by the General Assembly at the 1935 session (see Acts 1935, p. 995) and adopted by popular vote at the general election on

Nov. 3, 1936. It was declared adopted by the Speaker of the House of Representatives on Jan. 12, 1937.

§ 1. Prosecution by indictment or information.

All offenses heretofore required to be prosecuted by indictment may be prosecuted either by indictment by a grand jury or information filed by the Prosecuting Attorney.

§ 2. Salaries of prosecuting attorneys.

The General Assembly of Arkansas shall by law determine the amount and method of payment of salaries of prosecuting attorneys.

Publisher's Notes. This section probably is superseded in part by Ark. Const., Art. 19, § 31.

AMEND. 22. EXEMPTION OF HOMESTEADS FROM CERTAIN STATE TAXES.

Publisher's Notes. This amendment was adopted by popular vote at the general election on Nov. 3, 1936. It was

declared adopted by the Speaker of the House of Representatives on Jan. 12, 1937.

§ 1. Homesteads of \$1,000.00 assessed valuation exempted from certain taxes.

The homestead of each and every resident of the State, whether or not such resident be married or unmarried, male or female, shall be wholly exempt from all state taxes authorized or referred to in Section 8 of Article 16 of the Constitution of Arkansas in all cases where such homestead does not exceed the assessed valuation of one thousand dollars (\$1,000.00). Where the assessed valuation of such homestead exceeds one thousand dollars (\$1,000.00) this exemption shall apply to the first one thousand dollars (\$1,000.00) of such valuation.

§ 2. Legislature authorized to make further exemptions.

Within a maximum limit of two thousand five hundred dollars (\$2,500.00) and a minimum limit of one thousand dollars (\$1,000.00), the legislature is hereby authorized and empowered from time to time to fix the amount of the exemption hereby provided.

§ 3. Legislature to restore tax funds eliminated hereby, and to pass enabling law.

It is hereby made the duty of the legislature, and the legislature is hereby directed:

(a) Fully and completely to replace or restore any and all funds which will or may be eliminated, diminished or otherwise affected hereby or hereunder; but the legislature shall not, in order to accomplish that purpose, impose or levy any new form of tax.

(b) To enact, without unnecessary delay, all legislation necessary and sufficient to make this amendment in all respects effective and workable.

§ 4. No notes or bonds of state impaired hereby.

Nothing herein shall ever be construed, applied or administered so as to impair any right of any holder of any bond, note or other obligation heretofore issued or assumed by the state and now outstanding; but this amendment shall in every respect be construed, applied and administered so as fully to protect all the legal rights of all such holders.

§ 5. Amendment in effect, when.

After and as soon as, and not before, the legislature shall have fulfilled the requirements of section 3 hereof, this amendment or any legislation enacted in pursuance of section 2, shall be in full force and effect.

AMEND. 23. APPORTIONMENT (CONST., ART. 8 AMENDED).

Publisher's Notes. This amendment rewrote Ark. Const., Art. 8, and is incorporated therein. The amendment was adopted at the general election held on Nov. 3, 1936, and was declared adopted by Speaker of the House of Representatives on Jan. 12, 1937.

Ark. Const., Art. 8, as amended by this amendment, was subsequently amended by Const. Amend. 45. See notes to Ark. Const., Art. 8.

AMEND. 24. PROBATE COURTS — CIRCUIT AND COUNTY CLERKS (CONST., ART. 7, §§ 19, 34, 35, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 7, §§ 19, 34, and 35. The amendment was proposed by the General Assembly at the regular session of 1937 (see Acts 1937, p. 1400). It was adopted at the general election on Nov. 8, 1938, by a vote of 66,897 for and 52,632 against.

The amendment to Ark. Const., Art. 7, § 19, is incorpo-

rated in that section. Ark. Const., Art. 7, §§ 34 and 35, as amended by this Amendment, were repealed by Ark. Const. Amend. 80, § 22, effective July 1, 2001.

Effective Dates.

Const. Amend. 24, § 4: the first day of January next following its adoption.

AMEND. 25. [REPEALED.]

Publisher's Notes. This amendment, which amended Ark. Const. Amend. 17, was repealed by Ark. Const. Amend. 62, § 11.

AMEND. 26. WORKMEN'S COMPENSATION (CONST., ART. 5, § 32, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 5, § 32, and is incorporated therein. The amendment was proposed by initiative petition and was

adopted at the general election on Nov. 8, 1938, by a vote of 77,028 for and 45,966 against.

AMEND. 27. EXEMPTING NEW MANUFACTURING ESTABLISHMENT FROM TAXATION.

Power to exempt — Duration.

The Governor and the Agricultural and Industrial Commission (or the agency created by law to assist in the industrial development of Arkansas) may investigate and contract with the owners of any new manufacturing or processing establishment to be located in the State, or owners making addition or additions to any manufacturing or processing establishment already located in the State, for the exemption from State property taxation of any such new manufacturing or processing establishment, or any addition or additions to any such existing manufacturing or processing establishment, upon such terms and conditions as the Governor and the said Commission may deem to the best interests of the State; provided, that no exemption from taxes shall be granted under this amendment for a longer period than ten (10) calendar years succeeding the date of any such contract. Any such exemption shall “ipso facto” cease upon violation of the terms and conditions of any contract hereby made.

Publisher’s Notes. This amendment was proposed by initiative petition and approved at the general election on Nov. 8, 1938, by a vote of 70,989 for and 49,276 against.

AMEND. 28. REGULATING PRACTICE OF LAW

Supreme Court — Rule making power.

The Supreme Court shall make rules regulating the practice of law and the professional conduct of attorneys at law.

Publisher’s Notes. This amendment was proposed by initiative petition and approved at the general election on Nov. 8, 1938, by a vote of 74,290 for and 46,932 against.

AMEND. 29. FILLING VACANCIES IN OFFICE

Publisher’s Notes. This amendment was proposed by initiative petition and approved at the general election on Nov. 8, 1938, by a vote of 63,414 for and 56,947 against.

§ 1. Elective offices — Exceptions.

Vacancies in the office of United States Senator, and in all elective state, district, circuit, county, and township offices except those of Lieutenant Governor, Member of the General Assembly and Representative in the Congress of the United States, shall be filled by appointment by the Governor.

§ 2. Ineligible persons — Nepotism.

The Governor, Lieutenant Governor and Acting Governor shall be ineligible for appointment to fill any vacancies occurring or any office or position created, and resignation shall not remove such ineligibility. Husbands and wives of such officers, and relatives of such officers, or of their husbands and wives within the fourth degree of consanguinity or affinity, shall likewise be ineligible. No person appointed under Section 1 shall be eligible for appointment or election to succeed himself.

§ 3. Violation of amendment — Compensation withheld.

No person holding office contrary to this amendment shall be paid any compensation for his services. Any warrant, voucher or evidence of indebtedness issued in payment for such services shall be void.

§ 4. Duration of term of appointee — Election to fill vacancy.

The appointee shall serve during the entire unexpired term in the office in which the vacancy occurs if such office would in regular course be filled at the next General Election if no vacancy had occurred. If such office would not in regular course be filled at such next general election the vacancy shall be filled as follows: At the next General Election, if the vacancy occurs four months or more prior thereto, and at the second General Election after the vacancy occurs if the vacancy occurs less than four months before the next General Election after it occurs. The person so elected shall take office on the 1st day of January following his election.

§ 5. Election to fill — Placing names on ballots.

Only the names of candidates for office nominated by an organized political party at a convention of delegates, or by a majority of all the votes cast for candidates for the office in a primary election, or by petition of electors as provided by law, shall be placed on the ballots in any election.

AMEND. 30. CITY LIBRARIES.

Publisher's Notes. This amendment was proposed by initiative petition and adopted at the general election on Nov. 5, 1940, by a vote of 107,115 for and 56,500 against.

§ 1. Petition for tax levy — Election.

Whenever 100 or more taxpaying electors of any city, having a population of not less than 5,000, shall file a petition with the Mayor asking that an annual tax on real and personal property be levied for the purpose of maintaining and operating a public city library and shall specify a rate of taxation not to exceed five mills on the dollar, the question as to whether such tax shall be levied shall be submitted to the qualified electors of such city at a general or special election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall be in substantially the following form:

For a _____ mill tax on real and personal property to be used for maintenance and operation of a public city library.

Against a _____ mill tax on real and personal property to be used for maintenance and operation of a public city library. [As amended by Const. Amend. 72, § 1.]

Publisher's Notes. Before amendment by Ark. Const. Amend. 72, § 1, this section read: "Whenever 100 or more taxpaying electors of any city, having a population of not less than 5,000, shall file a petition with the Mayor asking that an annual tax on real and personal property be levied for the purpose of maintaining a public city library and shall specify a rate of taxation not exceeding one mill on the dollar, the question as to whether such tax shall be levied shall be submitted to the qualified electors of such

city at a general city election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall be in substantially the following form:

"For a _____ mill tax on real and personal property to be used for maintenance of a public city library.

"Against a _____ mill tax on real and personal property to be used for maintenance of a public city library."

§ 2. Result of election — Certification and proclamation — Tax levy.

The Election Commissioners shall certify to the Mayor the result of the vote, and if a majority of the qualified electors voting on the question at such election vote in favor of the specified tax, then it shall thereafter be continually levied and collected as other general taxes of such city are levied and collected. The result of the election shall be proclaimed by the Mayor. The result so

proclaimed shall be conclusive unless attacked in the courts within thirty days. The proceeds of any tax voted for the maintenance of a city public library shall be segregated by the city officials and used only for that purpose.

§ 3. Raising, reducing or abolishing tax — Petition and election.

Whenever 100 or more taxpaying electors of any city having a library tax in force shall file a petition with the Mayor asking that such tax be raised, reduced or abolished, the question shall be submitted to the qualified electors at a general or special election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall follow, as far as practicable, the form set forth in Section 1 hereof. The result shall be certified and proclaimed, as provided in Section 2 hereof, and the result as proclaimed shall be conclusive unless attacked in the courts within thirty days. Subject to the limitations of Section 5(e) hereof, the tax shall be lowered, raised or abolished, as the case may be, according to the majority of the qualified electors voting on the question of such election. If lowered or raised, the revised tax shall thereafter be continually levied and collected and the proceeds used in the manner and for the purposes as provided in Section 2 hereof. [As amended by Const. Amend. 72, § 2.]

Publisher's Notes. Before amendment by Ark. Const. Amend. 72, § 2, this section read: "Whenever 100 or more taxpaying electors of any city having a library tax in force shall file a petition with the Mayor asking that such tax be raised, reduced or abolished, the question shall be submitted to the qualified electors at a general city election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall follow, as far as practicable, the form set forth in Section 1 hereof. The result shall be certified and

proclaimed, as provided in Section 2 hereof, and the result as proclaimed shall be conclusive unless attacked in the courts within thirty days. The tax shall be lowered, raised or abolished, as the case may be, according to the majority of the qualified electors voting on the question of such election; provided, however, that it shall not be raised to more than one mill on the dollar. If lowered or raised, the revised tax shall thereafter be continually levied and collected and the proceeds used in the manner and for the purposes as provided for in Section 2 hereof."

§ 4. Co-ordination of city with county library.

Nothing herein shall be construed as preventing a co-ordination of the services of a city public library and a county public library.

§ 5. Petition for tax levy — Election.

(a) Whenever 100 or more taxpaying electors of any city, having a population of not less than 5,000, shall file a petition with the Mayor asking that an annual tax on real and personal property be levied for capital improvements to or construction of a public city library and shall specify a rate of taxation not to exceed three mills on the dollar, the question as to whether such tax shall be levied shall be submitted to the qualified electors of such city at a general or special election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall be in substantially the following form:

For a ____ mill tax on real and personal property to be used for capital improvements to or construction of a public city library.

Against a ____ mill tax on real and personal property to be used for capital improvements to or construction of a public city library.

(b) The electors may authorize the governing body of the city to issue bonds as prescribed by law for capital improvements to or construction of the library and to authorize the pledge of all, or any part of, the tax authorized by this section for the purpose of retiring the bonds. The ballot submitting the question to the voters shall be in substantially the following form:

For a ____ mill tax on real and personal property within the city, to be pledged to an issue or issues of bonds not to exceed \$____, in aggregate principal amount, to finance capital improvements to or construction of the city library and to authorize the issuance of the bonds on such terms and conditions as shall be approved by the city.

Against a ____ mill tax on real and personal property within the city, to be pledged to an issue or issues of bonds not to exceed \$____, in aggregate principal amount, to finance capital

improvements to or construction of the city library and to authorize the issuance of the bonds on such terms and conditions as they shall be approved by the city.

(c) The maximum rate of any special tax to pay bonded indebtedness, as authorized by paragraph (b) hereof shall be stated on the ballot.

(d) The special tax for payment of bonded indebtedness authorized in paragraph (b) hereof shall constitute a special fund pledged as security for the payment of such indebtedness. The special tax shall never be extended for any purpose, nor collected for any greater length of time than necessary to retire such bonded indebtedness, except that tax receipts in excess of the amount required to retire the debt according to its terms may, subject to covenants entered into with the holders of the bonds, be pledged as security for the issuance of additional bonds if authorized by the voters. The tax for such additional bonds shall terminate within the time provided for the tax originally imposed. Upon retirement of the bonded indebtedness, any surplus tax collections, which may have accumulated shall be transferred to the general funds of the city, and shall be used for maintenance and operation of the public city library.

(e) Notwithstanding any other provision of this amendment, a tax approved by the voters for the purpose of paying the bonded indebtedness shall not be reduced or diminished, nor shall it be used for any other purpose than to pay principal of, premium or interest on, and the reasonable fees of a trustee or paying agent, so long as the bonded indebtedness shall remain outstanding and unpaid. [As added by Const. Amend. 72, § 3; as amended by Const. Amend. 89, § 14.]

Publisher's Notes. Ark. Const. Amend. 89, § 14, amended this section effective January 1, 2011. Amendment 89 was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

Before amendment, the introductory language of subsection (b) read: "The electors may authorize the governing body of the city to issue bonds as prescribed by law for

capital improvements to or construction of the library and to authorize the pledge of all, or any part of, the tax authorized by this section for the purpose of retiring the bonds. The interest rate on any bonds shall not exceed the rate provided by this Constitution. The ballot submitting the question to the voters shall be in substantially the following form:"

AMEND. 31. POLICE AND FIREFIGHTERS' RETIREMENT SALARIES AND PENSIONS.

Publisher's Notes. This amendment was proposed by initiative petition and adopted at the general election on Nov. 5, 1940, by a vote of 115,138 for and 51,749 against.

§ 1. Election on question — Tax levy.

After consent of the majority of those voting on the question at any general or special election in cities of the first or second class, the cities may annually thereafter, levy a tax on the assessed value of real and personal property, not to exceed two mills on the dollar, from which there shall be created a Fund to pay Retirement Salaries and pensions to policemen and firemen theretofore or thereafter earned, and pensions to the widows and minor children of such, as may be provided by law. The annual levy for the Policeman's Retirement Salary and Pension Fund shall not exceed one mill on the dollar, and the annual levy for the Fireman's Retirement Salary and Pension Funds, shall not exceed one mill on the dollar. The manner of such levy of the tax, and the eligibility for the retirement salaries and pensions, the several amounts thereof and when payable, shall be such as may be provided by law.

AMEND. 32. COUNTY OR CITY HOSPITALS

Publisher's Notes. This amendment was proposed by the General Assembly and filed in the office of the Secretary of State on March 27, 1941 (see Acts 1941, p. 1342). It

was approved at the general election on Nov. 3, 1942, by a vote of 40,292 for and 38,682 against.

§ 1. Petition for tax levy — Election.

Whenever in any county where there is located a public hospital owned by such county or by any municipal corporation therein, whether such hospital be operated by such county or municipal corporation or by a benevolent association as the agent or lessee of such county or municipal corporation, one hundred or more electors of such county shall file a petition with the county judge asking that an annual tax on real and personal property in such county be levied for the purpose of maintaining, operating and supporting such hospital and shall specify a rate of taxation not exceeding one mill on the dollar of the assessed value of real and personal property in the county. The question as to whether such tax shall be levied shall be submitted to the qualified electors of such county at a general election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The county judge upon the filing of such petition shall notify the county board of election commissioners thereof and the county board of election commissioners shall cause the question to be placed upon the ballots in substantially the following form:

For a _____ mill tax on real and personal property to be used for maintenance, operation and support of a public hospital.

Against a _____ mill tax on real and personal property to be used for maintenance, operation and support of a public hospital.

§ 2. Result of election — Certification and proclamation — Tax levy.

The election commissioners shall certify to the county judge the result of the vote and if a majority of the qualified electors voting on the question at such election vote in favor of the specified tax then it shall thereafter be continually levied and collected as other general taxes of such county are levied and collected. The result of the election shall be proclaimed by the county judge by publication for one insertion in some newspaper published and having a bona fide circulation in such county. The result so proclaimed shall be conclusive unless attacked in the courts within thirty days and after the election it shall not be competent to attack the result thereof on the ground that any signers of the petition were not qualified electors. The proceeds of any tax so voted shall upon the settlement of the collecting officer be paid by the treasurer of the county to the treasurer of such hospital to be used by such treasurer in the maintenance, operation and support of such institution; provided that any county where there may be more than one hospital qualified to receive the proceeds of such tax, the quorum court at its meeting for the purpose of adopting the county's budget, shall provide for the apportionment of the proceeds of said tax between the institutions so qualified according to their respective needs.

§ 3. Raising, reducing or abolishing tax — Petition and election.

Whenever one hundred or more electors of any county having a hospital tax in force shall file a petition with the county judge asking that such tax be raised, reduced or abolished, the question shall be submitted to the qualified electors at a general election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballots shall follow, as far as practicable, the form set out in Section 1 hereof, and the result shall be certified and proclaimed as provided in Section 2 hereof and shall be conclusive in like manner. The tax shall be lowered, raised or abolished as the case may be, according to the majority of qualified electors voting on the question at such election, provided, however, that it shall not be raised to more than one mill on the dollar. If lowered or raised the revised tax shall thereafter be continually levied and collected and the proceeds used in the manner and for the purposes provided in Section 2 hereof.

§ 4. Amendment self executing.

This amendment shall be self executing and shall become a part of the constitution of the State of Arkansas when approved by a majority of the electors voting thereon at the next general election.

AMEND. 33. BOARDS AND COMMISSIONS GOVERNING STATE INSTITUTIONS.

Publisher's Notes. This amendment was proposed by initiated petition and adopted at the general election on Nov. 3, 1942, by a vote of 39,756 for and 38,167 against.

Effective Dates.
Ark. Const. Amend. 33, § 6: Jan. 15, 1943.

§ 1. Term of office of members.

The term of office of members of the boards or commissions charged with the management or control of all charitable, penal or correctional institutions and institutions of higher learning of the State of Arkansas, now in existence or hereafter created, shall be five years when the membership is five in number, seven years when the membership is seven in number, and ten years when the membership is ten in number. Such terms of office shall be arranged by the General Assembly to provide a membership with one term of office expiring every year from the effective date of this amendment. The unexpired terms of members serving on the effective date of this amendment shall not be decreased.

§ 2. Abolition or transfer of powers of board or commission — Restrictions.

The board or commission of any institution, governed by this amendment, shall not be abolished nor shall the powers vested in any such board or commission be transferred, unless the institution is abolished or consolidated with some other State institution. In the event of abolition or consolidation, the new board or commission shall consist of a membership of five, seven, or ten.

§ 3. Increase or decrease of members of board or commission prohibited.

The membership of any such board or commission now in existence shall not be increased or decreased in number after the effective date of this amendment nor shall the number of members of any such board or commission created after this amendment is in operation be increased or decreased subsequent to its creation.

§ 4. Removal of member — Procedure — Appeal.

The Governor shall have the power to remove any member of such boards or commissions before the expiration of his term for cause only, after notice and hearing. Such removal shall become effective only when approved in writing by a majority of the total number of the board or commission, but without the right to vote by the member removed or by his successor, which action shall be filed with the Secretary of State together with a complete record of the proceedings at the hearing.

An appeal may be taken to the Pulaski Circuit Court by the Governor or the member ordered removed, and the same shall be tried de novo on the record. An appeal may be taken from the circuit court to the Arkansas Supreme Court, which shall likewise be tried de novo.

§ 5. Vacancy — Filling.

Any vacancy arising in the membership of such board or commission for any reason other than the expiration of the regular term for which the member was appointed shall be filled by appointment by the Governor, subject to approval by a majority of the remaining members of the board or commission, and to be thereafter effective until the expiration of such regular term.

AMEND. 34. RIGHTS OF LABOR.

Publisher's Notes. This amendment was proposed by initiated petition and approved at the general election on

Nov. 7, 1944, by a vote of 105,300 for and 87,652 against.
See Acts 1945, p. 770.

§ 1. Discrimination for or against union labor prohibited.

No person shall be denied employment because of membership in or affiliation with or resignation from a labor union, or because of refusal to join or affiliate with a labor union; nor shall any corporation or individual or association of any kind enter into any contract, written or oral, to exclude from employment members of a labor union or persons who refuse to join a labor union, or because of resignation from a labor union; nor shall any person against his will be compelled to pay dues to any labor organization as a prerequisite to or condition of employment.

§ 2. Enforcement of amendment — Legislation authorized.

The General Assembly shall have power to enforce this article by appropriate legislation.

**AMEND. 35. WILD LIFE — CONSERVATION — ARKANSAS STATE
GAME AND FISH COMMISSION**

Publisher's Notes. This amendment was proposed by initiative petition and approved at the general election on Nov. 7, 1944, by a vote of 115,214 for and 72,797 against. See Acts 1945, p. 770.

Effective Dates.
Ark. Const. Amend. 35, § 8 (part): July 1, 1945.

§ 1. Commission created — Members — Powers.

The control, management, restoration, conservation and regulation of birds, fish, game and wildlife resources of the State, including hatcheries, sanctuaries, refuges, reservations and all property now owned, or used for said purposes and the acquisition and establishment of same, the administration of the laws now and/or hereafter pertaining thereto, shall be vested in a Commission to be known as the Arkansas State Game and Fish Commission, to consist of eight members. Seven of whom shall be active and one an associate member who shall be the Head of the Department of Zoology at the University of Arkansas, without voting power.

§ 2. Qualifications and appointment of members — Terms of office of first commission.

Commissioners shall have knowledge of and interest in wildlife conservation. All shall be appointed by the Governor. The first members of the Commission shall be appointed by the Governor for terms as follows: One for one year, one for two years, one for three years, one for four years, one for five years, one for six years, and one for seven years. Each Congressional District must be represented on the Commission.

§ 3. Term of office of members.

Upon the expiration of the foregoing terms of the said Commission, a successor shall be appointed by the Governor for a term of seven years, which term of seven years shall thereafter be for each member of the Commission. No Commissioner can serve more than one term and none can succeed himself.

§ 4. Oath of office — Members serve without compensation — Expenses — Payment.

Each Commissioner shall take the regular oath of office provided in the Constitution and serve without compensation other than actual expenses while away from home engaged entirely on the work of the Commission.

§ 5. Removal of members — Hearing — Review and appeal.

A Commissioner may be removed by the Governor only for the same causes as apply to other Constitutional Officers, after a hearing which may be reviewed by the Chancery Court for the First District with right of appeal therefrom to the Supreme Court, such review and appeal to be without presumption in favor of any finding by the Governor or the trial court.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that “jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...”.

§ 6. Vacancies — Filling — Chairman of commission.

Vacancies on the Commission due to resignation or death shall be filled by appointment of the Governor for the unexpired term within thirty days from date of such vacancy; upon failure of the Governor to fill the vacancy within thirty days, the remaining Commissioners shall make the appointment for the unexpired term. A chairman shall be elected annually from the seven members of the Commission to serve one year.

§ 7. Executive secretary and other personnel — Selection — Salaries and expenditures.

The Commission shall elect an Executive Secretary, whose salary shall not exceed that of limitations placed on other constitutional departments; and other executive officers, supervisor, personnel, office assistants, wardens, game refuge keepers, and hatchery employees, whose salaries and expenditures must be submitted to the Legislature and approved by an Act covering specific items in the appropriation as covered by Article XVI Section 4 of the Constitution. [As amended by Const. Amend. 86.]

Publisher's Notes. Ark. Const. Amend. 86, which amended this section effective January 1, 2009, was proposed by H.J.R. 1004 during the 2007 Regular Session and

adopted at the November 2008 general election by a vote of 664,671 for and 292,436 against. The amendment deleted “biennial” preceding “appropriation”.

§ 8. Nepotism prohibited — Powers of arrest — Funds — Use — Purposes — Game Protection Fund — Audit of accounts — Resident hunting and fishing licenses — Powers of commission.

No person shall be employed by the Commission who shall be related to any of the Commissioners or any other State officers within the third degree of relationship by blood or marriage. All employed personnel may make arrests for violation of the game and fish laws.

The fees, monies, or funds arising from all sources by the operation and transaction of the said Commission and from the application and administration of the laws and regulations pertaining to birds, game, fish and wildlife resources of the State and the sale of property used for said purposes shall be expended by the Commission for the control, management, restoration, conservation and regulation of the birds, fish and wildlife resources of the State, including the purchases or other acquisitions of property for said purposes and for the administration of the laws pertaining thereto and for no other purposes. All monies shall be deposited in the Game Protection Fund with the State Treasurer and such monies as are necessary, including an emergency fund, shall be appropriated by the Legislature at each legislative session for the use of the Game and Fish Commission as hereto set forth. No monies other than those credited to the Game Protection Fund can be appropriated.

All money to the credit of or that should be credited to the present Game Protection Fund shall be credited to the new Game Protection Fund and any appropriation made by the Legislature out of the Game Protection Fund shall be construed to be for the use of the new Commission and out of the new Game Protection Fund.

The books, accounts and financial affairs of the Commission shall be audited by the State Comptroller as that department deems necessary, but at least once a year.

Resident hunting and fishing license, each, shall be One and 50/100 Dollars annually, and shall not exceed this amount unless a higher license fee is authorized by an Act of Legislature.

The Commission shall have the exclusive power and authority to issue licenses and permits, to regulate bag limits and the manner of taking game and fish and furbearing animals, and shall have the authority to divide the State into zones, and regulate seasons and manner of taking game, and fish and furbearing animals therein, and fix penalties for violations. No rule or

regulations shall apply to less than a complete zone, except temporarily in case of extreme emergency.

Said Commission shall have the power to acquire by purchase, gifts, eminent domain, or otherwise, all property necessary, useful or convenient for the use of the Commission in the exercise of any of its duties, and in the event the right of eminent domain is exercised, it shall be exercised in the same manner as now or hereafter provided for the exercise of eminent domain by the State Highway Commission. All laws now in effect shall continue in force until changed by the Commission. All contracts and agreements now in effect shall remain in force until the date of their expiration.

This amendment shall not repeal, alter or modify the provisions of any existing special laws under the terms of which a County Game Commission has been created:

The Commission shall be empowered to spend such monies as are necessary to match Federal grants under the Pittman-Robertson or similar acts for the propagation, conservation and restoration of game and fish.

This amendment shall become effective July 1, 1945.

AMEND. 36. POLL TAX EXEMPTION.

Members of the armed forces of United States.

Any citizen of Arkansas, while serving in the armed forces of the United States, may vote in any election, without having paid a poll tax, if otherwise qualified to vote in any such election.

Publisher's Notes. This amendment was proposed by Nov. 7, 1944, by a vote of 151,564 for and 38,964 against. initiated petition and adopted at the general election on See Acts 1945, p. 774.

AMEND. 37. [REPEALED.]

Publisher's Notes. This amendment, concerning salaries of state officers, was repealed by Ark. Const. Amend. 56, § 5.

AMEND. 38. COUNTY LIBRARIES.

Publisher's Notes. This amendment was proposed by Nov. 5, 1946, by a vote of 64,859 for and 60,262 against. See initiative petition and approved at the general election on Acts 1947, p. 1077.

§ 1. Petition for tax levy — Election.

Whenever 100 or more taxpaying electors of any county shall file a petition in the County Court asking that an annual tax on real and personal property be levied for the purpose of maintaining and operating a public county library or a county library service or system and shall specify a rate of taxation not to exceed five mills on the dollar, the question as to whether said tax shall be levied shall be submitted to the qualified electors of such county at a general or special election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall be in substantially the following form:

FOR a _____ mill tax on real and personal property to be used for maintenance and operation of a public county library or county library service or system.

AGAINST a _____ mill tax on real and personal property to be used for maintenance and operation of a public county library or county library service or system. [As amended by Const. Amend. 72, § 4.]

Publisher's Notes. Before amendment by Const. Amend. 72, § 4, this section read: "Whenever 100 or more tax paying electors of any county shall file a petition in the County Court asking that an annual tax on real and personal property be levied for the purpose of maintaining a public county library or a county library service or system and shall specify a rate of taxation not exceeding one mill

on the dollar, the question as to whether said tax shall be levied shall be submitted to the qualified electors of such county at a general county election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall be in substantially the following form:

"FOR a _____ mill tax on real and personal property

to be used for maintenance of a public county library or county library service or system.

“AGAINST a _____ mill tax on real and personal

property to be used for maintenance of a public county library or county library service or system.”

§ 2. Result of election — Certification — Record — Tax levy — Funds — Disbursement.

The election commissioners shall certify to the County Judge the result of the vote. The County Judge shall cause the result of the election to be entered of record in the County Court. The result so entered shall be conclusive unless attacked in the courts within thirty days. If a majority of the qualified electors voting on the question at such election vote in favor of the specified tax, then it shall thereafter be continually levied and collected as other general taxes of such county are levied and collected; provided, however, that such tax shall not be levied against any real or personal property which is taxed for the maintenance of a city library, pursuant to the provisions of Amendment No. 30; and no voter residing within such city shall be entitled to vote on the question as to whether county tax shall be levied. The proceeds of any tax voted for the maintenance of a county public library or county library service or system shall be segregated by the county officials and used only for that purpose. Such funds shall be held in the custody of the County Treasurer. No claim against said funds shall be approved by the County Court unless first approved by the County Library Board, if there is a county Library Board functioning under Act 244 of 1927 [§§ 17-1001—17-1011], or similar legislation.

Publisher’s Notes. The remaining sections of Acts 1927, No. 244, are codified in § 13-2-401 et seq.

§ 3. Raising, reducing or abolishing tax — Petition and election.

Whenever 100 or more taxpaying electors of any county having library tax in force shall file a petition in the County Court asking that such tax be raised, reduced or abolished, the question shall be submitted to the qualified electors at a general or special election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall follow, as far as practicable, the form set forth in Section 1 hereof. The result shall be certified and entered of record as provided in Section 2 hereof, and the result as entered of record shall be conclusive unless attacked in the courts within thirty days. Subject to the limitations of Section 5(e) hereof, the tax shall be lowered, raised or abolished, as the case may be, according to the majority of qualified electors voting on the question at such election. If lowered or raised, the revised tax shall thereafter be continually levied and collected and proceeds used in the manner and for the purposes as provided in Section 2 hereof. [As amended by Const. Amend. 72, § 5.]

Publisher’s Notes. Before amendment by Ark. Const. Amend. 72, § 5, this section read: “Whenever 100 or more tax paying electors of any county having library tax in force shall file a petition in the County Court asking that such tax be raised, reduced or abolished, the question shall be submitted to the qualified electors at a general county election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall follow, as far as practicable, the form set forth in Section 1 hereof. The result shall be certified and entered of record as provided in Section 2

hereof, and the result as entered of record shall be conclusive unless attacked in the courts within thirty days. The tax shall be lowered, raised or abolished, as the case may be, according to the majority of qualified electors voting on the question at such election; provided, however, that it shall not be raised to more than one mill on the dollar. If lowered or raised, the revised tax shall thereafter be continually levied and collected and proceeds used in the manner and for the purposes as provided in Section 2 hereof.”

§ 4. Co-ordination of county with city library.

Nothing herein shall be construed as preventing the co-ordination of the services of a city public library and county public library, or the co-ordination of the services of libraries of different counties.

§ 5. Petition for tax levy — Election.

(a) Whenever 100 or more taxpaying electors of any county shall file a petition in the County Court asking that an annual tax on real and personal property be levied for the purpose of capital improvements to or construction of a public county library or a county library service or system and shall specify a rate of taxation not to exceed three mills on the dollar, the question as to whether said tax shall be levied shall be submitted to the qualified electors of such county at a general or special election. Such petition must be filed at least thirty days prior to the election at which it will be submitted to the voters. The ballot shall be in substantially the following form:

FOR a ____ mill tax on real and personal property to be used for capital improvements to or construction of a public county library or county library service or system.

AGAINST a ____ mill tax on real and personal property to be used for capital improvements to or construction of a public county library or county library service or system.

(b) The voters may authorize the County Court to issue bonds as prescribed by law for capital improvements to or construction of the library and to authorize the pledge of all, or any part of, the tax authorized in Section 1 of this Amendment for the purpose of retiring the bonds. The ballot submitting the question to the voters shall be in substantially the following form:

For a _____ mill tax on real and personal property within the county, to be pledged to an issue or issues of bonds not to exceed \$_____, in aggregate principal amount, to finance capital improvements to or construction of the county library or county library service or system, and to authorize the issuance of the bonds on such terms and conditions as shall be approved by the County Court.

Against a _____ mill tax on real and personal property within the county, to be pledged to an issue or issues of bonds not to exceed \$_____, in aggregate principal amount, to finance capital improvements to or construction of the county library or county library service or system, and to authorize the issuance of the bonds on such terms and conditions as shall be approved by the County Court.

(c) The maximum rate of any special tax to pay bonded indebtedness, as authorized by paragraph (b) hereof shall be stated on the ballot.

(d) The special tax for payment of bonded indebtedness authorized in paragraph (b) hereof shall constitute a special fund pledged as security for the payment of such indebtedness. The special tax shall never be extended for any purpose, nor collected for any greater length of time than necessary to retire such bonded indebtedness, except that tax receipts in excess of the amount required to retire the debt according to its terms may, subject to covenants entered into with the holders of the bonds, be pledged as security for the issuance of additional bonds if authorized by the voters. The tax for such additional bonds shall terminate within the time provided for the tax originally imposed. Upon retirement of the bonded indebtedness, any surplus tax collections, which may have accumulated, shall be transferred to the general funds of the county, and shall be used for maintenance of the county library or county library service or system.

(e) Notwithstanding any other provision of this Amendment, a tax approved by the voters for the purpose of paying the bonded indebtedness shall not be reduced or diminished, nor shall it be used for any other purpose than to pay principal of, premium or interest on, and the reasonable fees of a trustee or paying agent, so long as the bonded indebtedness shall remain outstanding and unpaid. [As added by Const. Amend. 72, § 6; as amended by Const. Amend. 89, § 14.]

Publisher's Notes. Ark. Const. Amend. 89, § 14, amended this section effective January 1, 2011. Amendment 89 was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

Before amendment, the introductory language of subsection (b) read: "The voters may authorize the County Court to issue bonds as prescribed by law for capital improve-

ments to or construction of the library and to authorize the pledge of all, or any part of, the tax authorized in Section 1 of this Amendment for the purpose of retiring the bonds. The interest rate on any bonds shall not exceed the rate provided in this Constitution. The ballot submitting the question to the voters shall be in substantially the following form."

AMEND. 39. VOTER REGISTRATION LAWS.

§ 1. Authority to enact registration law.

The General Assembly shall have power to enact laws providing for a registration of voters prior to any general, special, or primary election, and to require that the right to vote at any such election shall depend upon such previous registration.

Publisher's Notes. This amendment was proposed by Senate Joint Resolution in the 1947 session (see Acts 1947, p. 1068). It was approved at the general election on Nov. 2,

1948, by a vote of 135,151 for and 71,934 against. See Acts 1949, p. 1412.

AMEND. 40. SCHOOL DISTRICT TAX (CONST., ART. 14, § 3, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 14, § 3, as amended, and is incorporated therein. The amendment was proposed by Senate Joint Resolution (see Acts 1947, p. 1068) and filed in the office of the Secretary of State on March 28, 1947. It was voted upon at the general election on Nov. 2, 1948, and adopted by a vote of 136,576 for and 82,557 against.

Ark. Const., Art. 14, § 3, as amended by Ark. Const. Amend 11 and Ark. Const. Amend. 40, was further amended by Ark. Const. Amend. 74. See notes to Ark. Const., Art. 14, § 3.

AMEND. 41. ELECTION OF COUNTY CLERK.

Election of county clerk.

The provisions for the election of a county clerk upon a population basis are hereby abolished and there may be elected a county clerk in like manner as a circuit clerk for the term of four (4) years, and in such cases, the County Clerk may be ex officio clerk of the probate court of such county until otherwise provided by the General Assembly. [As amended by Const. Amend. 95.]

Publisher's Notes. This amendment was proposed by H.J.R. No. 3 (see Acts 1951, p. 970) and filed in the office of the Secretary of State on March 20, 1951. It was approved at the general election on Nov. 4, 1952, by a vote of 178,278 for and 123,245 against.

The amendment contained a preliminary paragraph which read "That the Constitution of the State of Arkansas be amended modifying Section 19 of Article 7 and Section 3 of Amendment No. 24 of said Constitution, so as to provide for the election of a County Clerk in all of the said counties of the State, as follow:"

Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the Constitution and specifically provided that "jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts..."

Ark. Const. Amend. 95, which amended this amendment effective January 1, 2017, was proposed by H.J.R. 1027 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 747,856 for and 317,093 against. The amendment inserted "for the term of four (4) years" and made stylistic changes.

Amend. 95, § 8(b) and (c), provided:

"(b) Persons elected to the following offices at the 2016 general election shall serve terms of two (2) years:

- "(1) County judge;
- "(2) Sheriff;
- "(3) Circuit clerk;
- "(4) County clerk;
- "(5) Assessor;
- "(6) Coroner;
- "(7) Treasurer;
- "(8) County surveyor; and
- "(9) Collector of taxes.

"(c) Persons elected to the following offices at the 2018 general election shall serve terms of four (4) years:

- "(1) County judge;
- "(2) Sheriff;
- "(3) Circuit clerk;
- "(4) County clerk;
- "(5) Assessor;
- "(6) Coroner;
- "(7) Treasurer;
- "(8) County surveyor; and
- "(9) Collector of taxes."

Effective Dates.

Ark. Const. Amend. 41, last paragraph: effective on adoption.

AMEND. 42. STATE HIGHWAY COMMISSION

Publisher's Notes. This amendment was proposed by S.J.R. No. 7 (see Acts 1951, p. 970) and filed in the office of the Secretary of State on March 20, 1951. It was approved

at the general election on Nov. 4, 1952, by a vote of 231,529 for and 78,291 against.

§ 1. Commission created — Members — Powers.

There is hereby created a State Highway Commission which shall be vested with all the powers and duties now or hereafter imposed by law for the administration of the State Highway Department, together with all powers necessary or proper to enable the Commission or any of its officers or employees to carry out fully and effectively the regulations and laws relating to the State Highway Department.

§ 2. Qualifications and appointment of members — Terms of office of first commission.

Within ten days after the convening of the General Assembly of the State of Arkansas in the year 1953, the Governor, by and with the advice and consent of the Senate, shall appoint five persons who are qualified electors of the State to constitute the State Highway Commission for terms of two, four, six, eight and ten years respectively. The terms of the persons so appointed shall be determined by lot. The Commissioners to be appointed from the State at large; provided, however, that no two Commissioners shall be appointed from any single Congressional District.

In the event of rejection by the Senate of a person whose name has been so submitted, the Governor shall within five days after receipt of written notice from the Secretary of the Senate of such rejection submit the name of another appointee to fill such vacancy. In the event the Governor should within five days thereafter fail to appoint or fail to submit to the Senate for confirmation the name of any person to be appointed, the Senate shall proceed to make the appointment of its own choice.

§ 3. Terms of office of members.

Upon the expiration of the foregoing terms of said Commissioners, a successor shall be appointed by the Governor in the manner provided for in Section 2 for a term of ten years, which term shall thereafter be for each member of the Commission.

§ 4. Removal of members — Hearing — Review and appeal.

A Commissioner may be removed by the Governor only for the same causes as apply to other constitutional officers after a hearing which may be reviewed by the Chancery Court for the First District with right of appeal therefrom to the Supreme Court, such review and appeal to be without presumption in favor of any finding by the Governor or the trial court, and provided further, in addition to the right of confirmation hereinabove reserved to the Senate, the Senate may upon the written request of at least Five (5) of its members that a member or members of the Commission should be removed therefrom, proceed, when in session, to hear any and all evidence pertinent to the reasons for removal. The member or members whose removal is so requested shall be entitled to be heard in the matter and to be represented before the Senate by legal Counsel. These proceedings conducted by the Senate shall be public and a transcript of the testimony so heard shall be prepared and preserved in the journal of the Senate. The taking of evidence either orally or by deposition shall not be bound by the formal rules of evidence. Upon the conclusion of the hearing, the Senate, sitting as a body in executive session, may remove said member or members of the Commission by a majority vote conducted by secret ballot.

Publisher's Notes. Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to the

Constitution and specifically provided that "jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts...".

§ 5. Vacancies — Filling.

Vacancies on the Commission due to resignations, death or removal shall be filled by appointment of the Governor for the unexpired term within thirty days from the date of such vacancy. Upon failure of the Governor to fill the vacancy within thirty days, the remaining Commissioners shall make the appointment for the unexpired term.

§ 6. Director of Highways.

The Commission shall appoint a Director of Highways who shall have such duties as may be prescribed by the Commission or by statute.

AMEND. 43. [REPEALED.]

Publisher's Notes. Ark. Const. Amend. 94, which repealed this amendment effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this amendment read:

“Salaries and expenses of judges.

“The General Assembly shall by law determine the amount and method of payment of salaries and expenses of the judges of the Supreme Court, Circuit Courts, Chancery Courts, and Municipal Courts of Arkansas; provided such

salaries and expenses may be increased but not diminished during the term for which such judges are elected; provided further that the salaries of Circuit and Chancery Judges shall be uniform throughout the state.”

Amendment 43 was proposed by initiative petition filed in the office of the Secretary of State on June 15, 1956. It was approved at the general election on Nov. 6, 1956, by a vote of 198,566 for and 155,627 against.

For current provision concerning compensation of justices and judges, see Ark. Const., Art. 19, § 31.

AMEND. 44. [REPEALED.]

Publisher's Notes. This amendment, concerning protection of states' rights, was repealed by Ark. Const. Amend. 69, § 1.

AMEND. 45. APPORTIONMENT (CONST., ART. 8, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 8, as amended by Const. Amend. 23, and is incorporated in that article. The amendment was proposed by initiative petition filed in the office of the Secretary of State on July 5, 1956. It was adopted at the general election on Nov. 6, 1956, by a vote of 197,602 for and 143,100 against.

The amendment to Ark. Const., Art. 8, § 3, was held unconstitutional in *Yancey v. Faubus*, 238 F. Supp. 290 (E.D. Ark. 1965). However, it was held in *Faubus v. Kinney*,

239 Ark. 443, 389 S.W.2d 887 (1965), that the remainder of the amendment was not affected. See notes to Ark. Const., Art. 8.

Effective Dates.

Ark. Const. Amend. 45, § 2, provided, in part: “... this Amendment shall take effect and be in operation immediately upon its approval and adoption by the people of the State of Arkansas, being self-executing and requiring no enabling act.”

AMEND. 46. HORSE RACING AND PARI-MUTUEL WAGERING AT HOT SPRINGS

Horse racing and pari-mutuel wagering lawful at Hot Springs.

Horse racing and pari-mutuel wagering thereon shall be lawful in Hot Springs, Garland County, Arkansas, and shall be regulated by the General Assembly.

Publisher's Notes. This amendment was proposed by initiative petition filed in the office of the Secretary of State

on July 5, 1956. It was approved at the general election on Nov. 6, 1956, by a vote of 219,835 for and 161,630 against.

AMEND. 47. STATE AD VALOREM TAX PROHIBITION

State ad valorem tax prohibited.

No ad-valorem tax shall be levied upon property by the State.

Publisher's Notes. This amendment was proposed by H.J.R. No. 1 (see Acts 1957, p. 1488) and filed in the office of the Secretary of State on March 27, 1957. It was

approved at the general election on Nov. 4, 1958, by a vote of 139,293 for and 108,135 against.

AMEND. 48. [REPEALED.]

Publisher's Notes. This amendment, concerning compensation of members of the General Assembly, was repealed by Const. Amend. 56, § 5.

AMEND. 49. [REPEALED.]

Publisher's Notes. This amendment, concerning industrial development bonds authority, was repealed by Const. Amend. 62, § 11.

AMEND. 50. ELECTIONS CONDUCTED BY BALLOT OR VOTING MACHINE (CONST., ART. 3, § 3, REPEALED AND NEW SECTIONS ADDED).

Publisher's Notes. This amendment was proposed by initiative petition and adopted at the general election on Nov. 6, 1962, by a vote of 134,782 for and 132,123 against.

Effective Dates.
Const. Amend. 50, § 5: Jan. 15, 1963.

§ 1. Repeal of Article III, Section 3.

Article III, Section 3, of the Constitution of the State of Arkansas is hereby repealed and the following section is substituted therefor.

§ 2. Elections by ballot or voting machines authorized.

All elections by the people shall be by ballot or by voting machines which insure the secrecy of individual votes.

§ 3. [Repealed.]

Publisher's Notes. This section was repealed by Ark. Const. Amend. 81, which was proposed by H.J.R. 1004 during the 2001 Regular Session and adopted at the November 2002 general election. The former section provided: "In elections by ballot every ballot shall be numbered in the order in which it is received, the number shall

be recorded by the election officers on the list of voters opposite the name of the elector who presents the ballot, and the election officers shall be sworn or affirmed not to disclose how any elector voted unless required to do so as witnesses in a judicial proceeding or a proceeding to contest an election."

§ 4. Voting machines.

Voting machines may be used to such extent and under such rules as may be prescribed by the General Assembly.

AMEND. 51. VOTER REGISTRATION

Publisher's Notes. This amendment was proposed by initiative petition and approved at the general election on Nov. 3, 1964, by a vote of 277,087 for and 218,681 against.

Effective Dates.
Const. Amend. 51, § 21: Jan. 1, 1965.

Acts 1987, No. 800, § 3: Apr. 8, 1987. Emergency clause provided: "It is hereby found and determined by the General Assembly that Section 11 of Amendment 51 to the Arkansas Constitution requires the Permanent Registrar to cancel without prior notice, the voter registration of persons who have failed to vote within four (4) consecutive years; that it is preferable that voters be notified prior to cancellation so that they may avoid the cancellation of their voter registration; that this Act amends Amendment 51 to provide such prior notice and that unless it is given immediate effect, some voter registration affidavits may be cancelled without prior notice. Therefore, an emergency is hereby declared to exist and this Act being necessary for

the preservation of the public peace, health and safety shall be in full force and effect from and after its passage and approval."

Identical Acts 1995, Nos. 947 and 964, § 13: Jan. 1, 1996. Acts 2003 (2nd Ex. Sess.), No. 8, § 4: Dec. 22, 2003. Emergency clause provided: "It is found and determined by the General Assembly of the State of Arkansas that the federal Help America Vote Act establishes deadlines for the state's compliance with the act's voter registration requirements; and that the immediate passage of this act is necessary to ensure the state meets its deadlines. Therefore, an emergency is declared to exist and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto."

§ 1. Statement of policy.

The purpose of this amendment is to establish a system of permanent personal registration as a means of determining that all who cast ballots in general, special and primary elections in this State are legally qualified to vote in such elections, in accordance with the Constitution of Arkansas and the Constitution of the United States.

§ 2. Definitions.

As used in this amendment, the terms:

(a) "County Board of Registration" means the County Board of Election Commissioners in each of the several counties of this State.

(b) "Permanent Registrar" means the County Clerk in each of the several counties of this State.

(c) "Deputy Registrar" means the Deputy County Clerk or clerical assistants appointed by the County Clerk.

(d) "Election" means any general, special or primary election held pursuant to any provisions of the Constitution or statutes of the State of Arkansas; provided, that this amendment shall not apply to selection of delegates to party conventions by party committees or to selection of party committeemen by party conventions.

§ 3. Application.

No person shall vote or be permitted to vote in any election unless registered in a manner provided for by this amendment.

§ 4. Permanent registration.

When a voter is once registered under the provisions of this amendment, it is unnecessary for such voter again to register unless such registration is cancelled or subject to cancellation in a manner provided for by this amendment.

§ 5. Duties of registration officials.

(a) Voter registration agencies shall distribute mail voter registration applications, provide assistance to applicants in completing voter registration application forms, unless the applicant refuses assistance, and accept completed voter registration application forms for transmittal to the appropriate permanent registrar via the Secretary of State. Voter registration agencies include the following:

(1) The Office of Driver Services of the Revenue Division of the Department of Finance and Administration and all State Revenue Offices;

(2) Public assistance agencies, which shall mean those agencies that provide services under the Food Stamps, Medicaid, Aid to Families with Dependent Children (AFDC), and the Special Supplemental Food Program for Women, Infants and Children (WIC) programs;

(3) Disabilities agencies, which shall mean agencies that offer state-funded programs primarily engaged in providing services to persons with disabilities;

(4) Public libraries; and

(5) The Arkansas National Guard.

(b)(1) The Secretary of State is designated as the chief election official. The Secretary shall prepare and distribute the pre-addressed postcard mail voter registration application forms described in 51-6 [section 6] of this amendment. Mail registration application forms shall serve for purposes of initial applications to register and shall also serve for changes of name, address, or party affiliation. Bilingual (Spanish/English) forms, braille forms, and large print forms shall be available upon request. The Secretary of State shall make the state mail voter registration application form available for distribution through governmental and private entities with

particular emphasis on making them available for organized voter registration programs. Any person may distribute state registration cards. All registration cards shall be distributed to the public without charge.

(2) The Office of Driver Services and State Revenue Offices shall provide voter registration opportunities to those obtaining or renewing drivers licenses, personal identification cards, duplicate or corrected licenses or cards, or changing address or name whether in person or by mail. The Office of Driver Services and State Revenue Offices shall use a computer process, which combines the drivers license and voter registration applications, minimizing duplicative information, and shall have available the federal or state mail voter registration application form, which may be used upon request or when the computer process is not available. If a person declines to apply to register to vote, the Office of Driver Services or State Revenue Office shall retain the record of declination for two (2) years.

(3) All public assistance agencies shall provide a federal or state mail voter registration application form with each application for assistance, and with each recertification, renewal or change of address or name relating to such assistance. Public assistance agencies shall provide voter registration application forms as part of the intake process, or as a combined computer process when a computer process is available. Public assistance agencies shall use a process or form that combines the application for assistance with the voter registration application when available. Public assistance agencies shall also provide declination forms as described in 51-6 [section 6] of this amendment, which shall be retained for two (2) years if an applicant declines to apply to register to vote.

(4) All disabilities agencies shall provide a federal or state mail voter registration application form with each application for services and with each recertification, renewal or change of address or name relating to such services. Disabilities agencies shall provide voter registration application forms as part of the intake process, or as a combined computer process when a computer process is available. Disabilities agencies may use a form that combines the application for services or assistance with the voter registration application when available. If the disabilities agency provides services in a person's home, then the agency shall also provide voter registration services at the person's home. Disabilities agencies shall also provide declination forms as described in 51-6 [section 6] of this amendment, which shall be retained for two (2) years if an applicant declines to apply to register to vote.

(c)(1) Employees of the Office of Driver Services and State Revenue Offices shall provide appropriate nonpartisan voter registration assistance and provide all applicants with a receipt containing the applicant's name and the date of the submission.

(2) Public assistance agencies and disabilities agencies shall train agency employees to provide the same degree of assistance in completing voter registration forms as is provided with regard to the completion of agency forms, unless the applicant refuses such assistance.

(3) Each revenue office, public assistance agency and disabilities agency shall provide ongoing training for employees who will be assisting persons with voter registration applications and shall include information regarding training procedures in the report filed with the Secretary of State pursuant to § 51-8(d) [section 8(d)] of this amendment.

(4) A person who provides voter registration assistance through any voter registration agency shall not:

- (A) Seek to influence an applicant's political preference or party registration;
- (B) Display any such political preference or party allegiance;
- (C) Make any statement to an applicant or take any action to the purpose or effect of discouraging the applicant from registering to vote;
- (D) Make any statement to an applicant or take any action to the purpose or effect of leading the applicant to believe that a decision to register or not to register has any bearing on the availability of services or benefits; or
- (E) Disclose any applicant's voter registration information, except as necessary for the administration of voter registration.

(d) The Permanent Registrar shall provide office and clerical facilities and may employ such clerical assistants which he may deem necessary to fulfill the duties imposed by this amendment;

provided, that all clerical assistants so employed shall have the qualifications required by law of eligible voters and shall be selected on the basis of competence and without reference to political affiliation.

(e) The State Board of Election Commissioners is authorized and, as soon as is possible after the effective date of this amendment, directed to prescribe, adopt, publish and distribute:

(1) such Rules and Regulations supplementary to this amendment and consistent with this amendment and other laws of Arkansas as are necessary to secure uniform and efficient procedures in the administration of this amendment throughout the State;

(2) a Manual of instruction for the information, guidance and direction of election officials within the state; and

(3) detailed specifications of the registration record files, the voter registration application forms and other registration forms, including voter registration list maintenance forms, all of which shall be consistent with this amendment and uniform throughout the State. [As amended by Acts 1995, No. 599, § 1; 1995, No. 947, § 1; 1995, No. 964, § 1.]

§ 6. Voter registration application forms.

(a)(1) The mail voter registration application form may only require identifying information, including signature or mark, and other information, including data relating to previous registration by the applicant, as is necessary to assess the applicant's eligibility and to administer voter registration and other parts of the election process.

(2) Such forms shall include, in identical print, statements that:

(A) Specify voter eligibility requirements;

(B) Contain an attestation that the applicant meets all voter eligibility requirements and that the applicant does not claim the right to vote in another county or state;

(C) Specify the penalties provided by law for submission of a false voter registration application;

(D) Inform applicants that where they register to vote will be kept confidential;

(E) Inform applicants that declining to register will also be kept confidential;

(F) Inform applicants that they will be required to verify their registration when voting in person or by absentee ballot by providing a required document or identification card as provided in Arkansas Constitution, Amendment 51, § 13;

(G) Inform the applicant that if the voter registration application is being collected by a third-party voter registration organization, the third-party voter registration organization may be unable to deliver the application to the permanent registrar in the county in which the applicant resides before the thirty-day voter registration deadline to vote in the next election and that the applicant may elect to deliver the application in person or by mail; and

(H) Inform the applicant of the process to determine if the application has been received by the Secretary of State.

(3) The following information will be required of the applicant:

(A) Full name;

(B) Mailing address;

(C) Residence address and any other information necessary to identify the residence of the applicant;

(D) If previously registered, the name then supplied by the applicant, and the previous address, county, and state;

(E) Date of birth;

(F) A signature or mark made under penalty of perjury that the applicant meets each requirement for voter registration;

(G) If the applicant is unable to sign his or her name, the name, address, and telephone number of the person providing assistance;

(H) If the applicant has a current and valid driver's license, the applicant's driver's license number;

(I) If the applicant does not have a current and valid driver's license, the last four (4) digits of the applicant's social security number; and

(J) If the applicant does not have a current and valid driver's license number or social security number, the Secretary of State will assign the applicant a number which will serve to identify the applicant for voter registration purposes, and this number shall be placed on the application.

(4) The following information may be requested on the registration card, but it shall not be required:

(A) Telephone number where the applicant may be contacted; and

(B) Political party with which the applicant wishes to be affiliated, if any.

(5) The mail voter registration application shall not include any requirement for notarization or other formal authentication.

(6) The mail voter registration application form shall include the following questions along with boxes for the applicant to check "yes" or "no" in response:

(A) "Are you a citizen of the United States of America and an Arkansas resident?";

(B) "Will you be eighteen (18) years of age on or before election day?";

(C) "Are you presently adjudged mentally incompetent by a court of competent jurisdiction?"; and

(D) "Have you ever been convicted of a felony without your sentence having been discharged or pardoned?".

(7) The mail voter registration application form shall include the following statements immediately following the questions asked in subdivision (a)(6) of this section:

(A) "If you checked 'No' in response to either questions A or B, do not complete this form.";

(B) "If you checked 'Yes' in response to either questions C or D, do not complete this form.";
and

(C) The mail-in voter registration application form shall include the following statement:

"If your voter registration application form is submitted by mail and you are registering for the first time, and you do not have a valid driver's license number or Social Security number, in order to avoid the additional identification requirements upon voting for the first time you must submit with the mailed registration form: (a) a current and valid photo identification; or (b) a copy of a current utility bill, bank statement, government check, paycheck, or other government document that shows your name and address."

(8) If an applicant for voter registration fails to provide any of the information required by this section, the permanent registrar shall notify the applicant of the failure and provide the applicant with an opportunity to complete the form in a timely manner to allow for its completion before the next election for federal office.

(9) The mail voter registration application shall be pre-addressed to the Secretary of State.

(b)(1) The voter registration application portion of the process used by the Office of Driver Services and state revenue offices shall include:

(A) The question: "If you are not registered to vote where you live now, would you like to apply to register to vote here today?";

(B) A statement that if an applicant declines to register to vote, the fact that the applicant has declined to register will remain confidential and will be used only for voter registration purposes;

(C) A statement that if an applicant does register to vote, the office at which the applicant submits a voter registration application will remain confidential and will be used only for voter registration purposes;

(D) Voter registration eligibility requirements;

(E) Penalties provided by law for providing false information;

(F) An attestation that the applicant meets each eligibility requirement and that the applicant does not claim the right to vote in another county or state; and

(G) A space for the applicant's signature or mark.

(2) The voter registration application portion shall require the signature of the applicant under penalty of perjury, but shall not require notarization or other formal authentication.

(c) Public assistance agencies and disabilities agencies shall provide, in addition to the federal or state mail voter registration application form, a declination form, to be approved by the State Board of Election Commissioners, which includes the following question and statements:

(1) The question in prominent type, “IF YOU ARE NOT REGISTERED TO VOTE WHERE YOU LIVE NOW, WOULD YOU LIKE TO APPLY TO REGISTER TO VOTE HERE TODAY? YES NO”;

(2) The statement in close proximity to the question above and in equally prominent type, “IF YOU DO NOT CHECK EITHER BOX, YOU WILL BE CONSIDERED TO HAVE DECIDED NOT TO REGISTER TO VOTE AT THIS TIME.”;

(3) The statement, “APPLYING TO REGISTER OR DECLINING TO REGISTER TO VOTE WILL NOT AFFECT THE AMOUNT OF ASSISTANCE THAT YOU WILL BE PROVIDED BY THIS AGENCY.”;

(4) The statement, “IF YOU WOULD LIKE HELP IN FILLING OUT THE VOTER REGISTRATION APPLICATION FORM, WE WILL HELP YOU. THE DECISION WHETHER TO SEEK OR ACCEPT HELP IS YOURS. YOU MAY FILL OUT THE APPLICATION FORM IN PRIVATE.”;

(5) The statement, “IF YOU BELIEVE THAT SOMEONE HAS INTERFERED WITH YOUR RIGHT TO REGISTER OR TO DECLINE TO REGISTER TO VOTE, YOUR RIGHT TO PRIVACY IN DECIDING WHETHER TO REGISTER OR IN APPLYING TO REGISTER TO VOTE, OR YOUR RIGHT TO CHOOSE YOUR OWN POLITICAL PARTY OR OTHER POLITICAL PREFERENCE, YOU MAY FILE A COMPLAINT WITH THE SECRETARY OF STATE AT” (filled in with the address and telephone number of the Secretary of State’s office);

(6) The statement, “IF YOU DECLINE TO REGISTER TO VOTE, THE FACT THAT YOU HAVE DECLINED TO REGISTER WILL REMAIN CONFIDENTIAL AND WILL BE USED ONLY FOR VOTER REGISTRATION PURPOSES.”; and

(7) The statement, “IF YOU DO REGISTER TO VOTE, THE OFFICE AT WHICH YOU SUBMIT A VOTER REGISTRATION APPLICATION WILL REMAIN CONFIDENTIAL AND WILL BE USED ONLY FOR VOTER REGISTRATION PURPOSES.”.

(d)(1) The voter registration application form shall be delivered to an applicant with the party affiliation field blank.

(2) The voter registration application form shall not contain a pre-filled party affiliation field.

[As amended by Acts 1971, No. 828, § 1; 1995, No. 947, § 2; 1995, No. 964, § 2; 2003, No. 995, § 1; 2003 (2nd Ex. Sess.), No. 8, § 1; 2009, No. 659, § 1; 2017, No. 633, § 1; 2023, No. 441, § 2; 2025, No. 221, § 1; 2025, No. 221, § 1; 2025, No. 278, § 1.]

Publisher’s Notes. Before amendment by Acts 1971, No. 828, subdivision (8) read: “number or name of the voter’s school district and number or name of the voter’s precinct.”

The proviso to subdivision (a)(8)(b) read exactly as it appeared in the 1971 amendment prior to further amendment in 1995.

Acts 1971, No. 828, § 2 read: “The amendment of Sub-

section (8) of Section 6 of Amendment 51 of the Constitution of the State of Arkansas, as provided in Section 1 hereof, is hereby made in conformance with the provisions of Section 19 of said Amendment 51 to the Constitution of the State of Arkansas, it being the determination of the General Assembly that said Amendment is germane to Amendment 51 and is consistent with its policy and purposes.”

§ 7. Registration record files.

(a) By the deadline to establish a computerized statewide voter registration database under the federal Help America Vote Act of 2002, including any waivers or extensions of that deadline, the Secretary of State shall define, maintain, and administer the official, centralized, and interactive computerized voter registration list for all voters legally residing within the State. The list shall include:

(1) The name, address, county, precinct, assigned unique identifier and registration information of every legally registered voter in the state;

(2) The inactive registration records of persons who have failed to respond to address confirmation mailings described in § 10 of this amendment;

(3) List maintenance information for each person receiving address confirmation notices or final address confirmation notices, or both, and the person's response; and

(4) Cancelled voter registration records and documentation noting the reason for cancellation.

(b) The computerized list shall serve as the single system for storing and managing the official list of registered voters throughout the state.

(c) The computerized list shall serve as the official voter registration list for the conduct of all elections for federal, state, county, municipal, school, or other office in the state.

(d) The permanent registrar of each county shall maintain copies of that county's precinct voter registration list from the statewide computerized list as necessary for holding elections.

(e) The computerized list shall be coordinated with other state agency records on felony status as maintained by the Arkansas Crime Information Center, records on death as maintained by the State Department of Health, and driver's license records maintained by the Office of Driver Services, according to § 9 of Amendment 51 to the Arkansas Constitution.

(f) A person with an inactive voter registration status may activate his or her voting status by appearing to vote at the precinct in which he or she currently resides or by updating his or her voter registration records with the permanent registrar of the county in which he or she resides.

(g) The county board of election commissioners or other lawfully designated election officials shall cause the appropriate precinct voter registration lists to be at the polling places on the date of elections, and shall return them at the close of the election to the office of the permanent registrar with the ballot boxes.

(h) If the legal residence of a voter is renamed, renumbered, or annexed, the permanent registrar or any local election official may change the name or number of the legal residence on the voter's registration record and any other voting records. Within fifteen (15) days after the records are changed to reflect the new name or number of the residence, the permanent registrar shall notify the voter by mail that the change has been made.

(i)(1) The Secretary of State and any permanent registrar in the state, may obtain immediate electronic access to the information contained in the computerized list.

(2) All voter registration information obtained by any local election official in the state shall be electronically entered into the computerized list on an expedited basis at the time the information is provided to the local official.

(3) The Secretary of State shall provide the support as may be required so that local election officials are able to enter the information.

(j)(1) The Secretary of State shall ensure the security and accuracy of the statewide voter registration list.

(2) To ensure the security and accuracy of the statewide voter registration list maintained by the Secretary of State, the Secretary of State shall:

(A) Cooperate with other states and jurisdictions to compare registered voters, voter history, and voter registration lists to:

(i) Ensure the accuracy of the voter registration rolls;

(ii) Identify voters whose addresses have changed;

(iii) Prevent registration in more than one (1) state; and

(iv) Determine eligibility of individuals to vote in Arkansas;

(B) Have the authority to utilize any services available to establish and implement a system for the verification of citizenship status for a person registering to vote;

(C) Regularly and before each election identify registered voters who are deceased by comparing the information received from the Social Security Administration, including without limitation a master death file or index compiled by the Social Security Administration;

(D) Establish and implement a process for the verification of address information:

(i) Submitted by a person registering to vote;

(ii) Submitted by a registered voter updating his or her address; and

(iii) Provided through undeliverable mail by the United States Postal Service concerning a person registering to vote or a registered voter;

(E) Ensure all confidential voter registration information and data remains confidential and protected under state and federal law;

(F) Allow view-only access to the voter registration record files and data to all county boards of election commissioners to carry out the county board of election commissioners' election administration responsibilities; and

(G) Provide annual reports to the Joint Performance Review Committee of the General Assembly concerning the accuracy of the voter registration record files.

(3) The Secretary of State shall promulgate rules under the Arkansas Administrative Procedure Act, § 25-15-201 et seq., necessary to:

(A) Implement the requirements of this section; and

(B) Ensure the security, accuracy, and integrity of the:

(i) Statewide voter registration system;

(ii) Supporting technologies utilized by the counties to maintain and record voter registration information;

(iii) Secure user access requirements established by the Secretary of State; and

(iv) Election audit logs.

[As amended by Acts 1971, No. 299, § 1; 1973, No. 149, §§ 1-4; 1977, No. 563, § 1; 1991, No. 410, § 1; 1995, No. 947, § 3; 1995, No. 964, § 3; 2003, No. 995, § 2; 2003 (2nd Ex. Sess.), No. 8, §§ 2, 3; 2023, No. 441, § 3.]

§ 8. Voter registration application records and reports.

(a)(1) The Office of Driver Services, State Revenue Offices, public assistance agencies, disabilities agencies, and other voter registration agencies shall transmit all completed voter registration applications to the Secretary of State in sufficient time to allow the Secretary of State to transmit the applications to the appropriate permanent registrar no later than ten (10) days after the date of acceptance by the assisting agency. When applications are accepted within five (5) days before the last day of registration for an election, they must be transmitted no later than five (5) days after the date of acceptance at the assisting agency.

(2) The Secretary of State shall transmit all mail voter registration applications to the appropriate permanent registrar no later than ten (10) days after the date of receipt. When applications are received within five (5) days before the last day of registration for an election, they must be transmitted no later than five (5) days after date of receipt. If forms are received by the wrong election office, they shall be forwarded to the appropriate permanent registrar not later than the fifth day after receipt.

(b) The Office of Driver Services, State Revenue Offices, public assistance agencies, disabilities and other voter registration agencies shall collect data on the number of voter registration applications completed or declined at each agency, and any additional statistical evidence that the Secretary of State or the State Board of Election Commissioners deems necessary for program evaluation and shall retain such voter registration data for a period of two (2) years.

(c)(1) The Secretary of State shall collect, maintain, and publish monthly statistical data reflecting the number of new voter registration applications, changes of address, name, and party affiliation, and declinations received by mail and in:

(A) state revenue offices;

(B) public assistance agencies;

(C) disabilities agencies;

(D) recruitment offices of the Armed Forces of the United States;

(E) public libraries; and

(F) offices of the Arkansas National Guard.

(2) Every six (6) months the Secretary of State shall compile a statewide report available to the public reflecting the statistical data collected pursuant to subsection (a) of this section. This report shall be submitted to the United States Election Assistance Commission for the national report pursuant to the National Voter Registration Act of 1993, United States Code 52 USC § 20508. The state report shall also include:

(A) Numbers of and descriptions of the agencies, and the method of integrating voter registration in the agencies, disaggregated by agency;

(B) Numbers and descriptions of the public assistance programs and the method of integrating voter registration, disaggregated by program;

(C) An assessment of the impact of the National Voter Registration Act of 1993, United States Code 52 USC § 20508, on the administration of elections; and

(D) Recommendations for improvements in procedures, forms, and other matters affected by the National Voter Registration Act of 1993, United States Code 52 USC § 20508.

(d) Every six (6) months the state-level administration of each voter registration agency shall issue a report to the Legislative Council and the Secretary of State containing:

(1) The statistical and other information collected in each voter registration agency office, including the:

(A) Number of and description of each voter registration agency;

(B) Method of integrating voter registration in the voter registration agency; and

(C) Total number of registration application forms transmitted to the Secretary of State, disaggregated by month by the voter registration agency;

(2) The statistical and other information collected in each public assistance agency, including the:

(A) Number of and description of each voter registration agency;

(B) Method of integrating voter registration in the voter registration agency; and

(C) Number of registration application forms transmitted to the Secretary of State, disaggregated by month by the voter registration agency; and

(3) Recommendations for improvements in procedures, forms, and other matters, including training.

(e) Information relating to the place where a person registered to vote, submitted a voter registration application, or updated voter registration records, and information relating to declination forms is confidential and exempt from the Freedom of Information Act, § 25-19-101, et seq. [As amended by Acts 1989, No. 540, § 1; 1995, No. 947, § 4; 1995, No. 964, § 4; 2023, No. 441, §§ 4, 5.]

§ 9. Application to register.

(a) All persons may register who:

(1) Have not been convicted of a felony unless the person's sentence has been discharged or the person has been pardoned;

(2) Have not been adjudged mentally incompetent by a court of competent jurisdiction;

(3) Meet one (1) of the following requirements:

(A) Are qualified electors who have not previously registered;

(B) Will become qualified electors during the thirty-day period immediately prior to the next election scheduled within the county; or

(C) Are otherwise qualified electors but whose registration has been cancelled in a manner provided for by this amendment; and

(4) Are citizens of the United States.

(b) Registration shall be in progress at all times except during the thirty-day period immediately prior to any election scheduled within the county, during which period registration of voters shall cease for that election, but registration during such period shall be effective for subsequent elections.

(c)(1) The permanent registrar shall register qualified applicants when a legible and complete voter registration application is received and acknowledged by the permanent registrar.

(2) Any person who assists applicants with a voter registration application as part of a voter registration drive or who, in furtherance of a voter registration drive, gathers or possesses completed applications for submission to the permanent registrar or Secretary of State shall deliver all applications in his or her possession to the permanent registrar or Secretary of State within twenty-one (21) days of the date on the voter registration application and, in any event, no later than the deadline for voter registration for the next election.

(3) The permanent registrar shall register qualified applicants who apply to register to vote by mail using the state or federal mail voter registration application form if:

(A) A legible and complete voter registration application form is postmarked not later than thirty (30) days before the date of the election, or, if the form is received by mail without a postmark, not later than twenty-five (25) days before the date of an election; and

(B)(i) The applicant provides a current valid driver's license number or the last four (4) digits of the applicant's social security number; or

(ii) If an applicant for voter registration does not have a valid driver's license or a social security number, the Secretary of State shall assign the applicant a number that will serve as a unique identifier of the applicant for voter registration purposes.

(d) The permanent registrar shall notify applicants whether their applications are accepted or rejected or are incomplete. If information required by the permanent registrar is missing from the voter registration application, the permanent registrar shall contact the applicant to obtain the missing information.

(e) The Secretary of State and the Director of the Office of Driver Services shall enter into an agreement to match information in the database of the statewide voter registration system with information in the database of the Office of Driver Services to the extent required to enable each official to verify the accuracy of the information provided on applications for voter registration. The Director of the Office of Driver Services shall enter into an agreement with the Commissioner of Social Security to verify driver's license information according to § 303 of the Federal Help America Vote Act of 2002.

(f) Registration records shall be entered promptly in the computerized statewide registration record files. If the applicant lacks one (1) or more of the qualifications required by law of voters in this state, the permanent registrar shall not register the applicant, but shall document the reason for denying the applicant's registration and promptly file or enter the application and the documented reason for denying registration in the statewide registration record files.

(g) If the permanent registrar has any reason to doubt the qualifications of an applicant for registration, he or she shall submit such application to the county board of election commissioners, and such board shall make a determination with respect to such qualifications and shall instruct the permanent registrar regarding the same.

(h) If any person eligible to register as a voter is unable to register in person at the permanent registrar's office by reason of sickness or physical disability, the permanent registrar shall register the applicant at his or her place of abode within such county, if practicable, in the same manner as if he or she had appeared at the permanent registrar's office.

(i) Notwithstanding other provisions of this amendment, every person in any of the following categories who is absent from the place of his or her voting residence may vote without prior registration by absentee ballot by submission of a federal postal card application as provided for in the Uniformed and Overseas Citizens Absentee Voting Act in any primary, special, school, or general election held in his or her election precinct if he or she is otherwise eligible to vote in that election:

(1) Members of the uniformed services of the United States while in active duty or service, and their spouses and dependents who, by reason of the active duty or service of the member, are absent from the place of residence where the spouse or dependent is otherwise qualified to vote;

(2) Members of the Merchant Marine while in active duty or service, and their spouses and dependents who, by reason of the active duty or service of the member, are absent from the place of residence where the spouse or dependent is otherwise qualified to vote; and

(3) Citizens of the United States residing or temporarily outside the territorial limits of the United States and the District of Columbia.

(j)(1) The Secretary of State shall be responsible for providing to all absent uniformed services voters and overseas voters who wish to register to vote or vote in any jurisdiction in the state, information regarding voter registration procedures and absentee ballot procedures.

(2) No later than ninety (90) days after the date of each regularly scheduled general election for federal office, the Secretary of State shall submit a report, based on information submitted to

him or her by the permanent registrars of each county, to the Election Assistance Commission on the combined number of absentee ballots transmitted to absent uniformed services voters and overseas voters for the election and the combined number of the ballots which were returned by the voters and cast in the election.

(3) The Secretary of State shall make the report available to the general public.

(k) Any person whose registration status or voting eligibility is affected adversely by an administrative determination under this amendment may appeal such adverse determination within five (5) days of receipt of notice thereof to the county board of election commissioners. The county board of election commissioners shall act on such appeal and render its decision within ten (10) days of its receipt. Within thirty (30) days after receipt of such decision, any aggrieved party may appeal further to the circuit court of the county.

(l) If an election law deadline occurs on a Saturday, Sunday, or legal holiday, the deadline shall be the next day which is not a Saturday, Sunday, or legal holiday. [As amended by Acts 1971, No. 184, § 1; 1993, No. 561, § 1; 1995, No. 947, § 5; 1995, No. 964, § 5; 1999, No. 654, § 1; 2003, No. 995, § 3; 2005, No. 1952, § 1; 2009, No. 659, § 2; 2023, No. 441, § 6; 2025, No. 221, § 2.]

Publisher's Notes. The Election Assistance Commission, referred to in subdivision (j)(2), is a federal commission.

Before the 1971 amendment, subsection (f) read: "Notwithstanding other provisions of this amendment, all members of the armed forces of the United States and their

spouses when residing with or accompanying them, who are otherwise eligible, may vote without registration by absentee ballot in accordance with the laws of this State".

Section 9 of Amendment 51 to the Arkansas Constitution was amended by the General Assembly pursuant to the authority granted in Section 19 of that Amendment.

§ 10. Transfer and change of status.

(a) Upon a change of legal residence within the county, or a change of name, any registered voter may cause his or her registration to be transferred to his or her new address or new name by completing and mailing a federal or state mail voter registration application form, by updating his or her address at the Office of Driver Services, any state revenue office, public assistance agency, disabilities agency, or other voter registration agency, by signing a mailed request to the permanent registrar, giving his or her present address and the address at which he or she was last registered or his or her present name and the name under which he or she was last registered, or by applying in person at the office of the permanent registrar.

(b)(1) Upon a change of legal residence from one (1) county within the state to another county within the state, any registered voter may cause his or her registration to be transferred to the new county at his or her new address by:

(A) Completing and mailing a federal or state mail voter registration application form;

(B) Updating his or her new address at a voter registration agency, including without limitation the Office of Driver Services or a state revenue office, public assistance agency, or disabilities agency;

(C) Signing a mailed request to the permanent registrar giving the voter's present address and the address at which the voter was last registered; or

(D) Applying in person for the transfer at the office of the permanent registrar.

(2)(A) If the updated registration information is actually received in the office of the county clerk of the voter's new county before the polls close for a scheduled election, the voter shall have the right to vote in the scheduled election in the precinct into which the voter just moved in the new county.

(B) If the updated registration information is not actually received before the polls close for a scheduled election, the voter shall not be eligible to vote in the scheduled election.

(c) If the change of legal residence is made pursuant to subsection (a) or subdivision (d)(1) of this section during the thirty-day administrative cut-off period immediately prior to any election scheduled within the county, the registered voter shall retain his or her right to vote in the scheduled election in the precinct to which he or she just moved.

(d) The permanent registrar shall conduct a uniform, nondiscriminatory address confirmation program during each odd-numbered year to ensure that voter registration lists are accurate and

current. The address confirmation program shall be completed not later than ninety (90) days prior to a primary or general election for federal office. Based on change of address data received from the United States Postal Service or its licensees, or other unconfirmed data indicating that a registered voter no longer resides at his or her registered address, the permanent registrar shall send a forwardable address confirmation notice, including a postage-paid and preaddressed return card, to enable the voter to verify or correct the address information.

(1) If change of address data indicate that the voter has moved to a new residence address in the same county and, if the county is divided into more than one (1) congressional district, the same congressional district, the address confirmation notice shall contain the following statement:

“We have received notification that you have moved to a new address in _____ County (or in the _____ Congressional District). We will reregister you at your new address unless, within ten (10) days, you notify us that your change of address is not a change of your permanent residence. You may notify us by returning the attached postage-paid postcard or by calling (_____) _____ - _____. If this is not a permanent change of residence and if you do not notify us within ten (10) days you may be required to update your residence address in order to vote at future elections.”

(2) If the change of address data indicates that the voter has moved to a new address in another county or, if a county is divided into more than one (1) congressional district, to a new address in the same county but in a new congressional district, the notice shall include the following statement:

“We have received notification that you have moved to a new address not in _____ County (or not in the _____ Congressional District). If you no longer live in _____ County (or in the _____ Congressional District), you must transfer your registration to your new residence address in order to vote in the next election. If you are still an Arkansas resident, you may obtain a form to transfer your registration by calling your county clerk’s office or the Secretary of State. If your change of address is not a change of your permanent residence, you must return the attached postage-paid postcard. If you do not return this card and continue to reside in _____ County (and in the _____ Congressional District), you may be required to provide identification and update your residence address in order to vote at future elections, and if you do not vote at any election in the period between the date of this notice and the second federal general election after the date of this notice, your voter registration will be cancelled and you will have to reregister in order to vote. If the change of address is permanent, please return the attached postage-paid postcard which will assist us in keeping our voter registration records accurate.”

(e) The county clerk may send out an address confirmation to any voter when he or she receives unconfirmed information that the voter no longer resides at the address on the voter registration records. The county clerk shall follow the same confirmation procedure as set forth in subsection (d) of this section.

(f) Based on change of address information received pursuant to subsections (a) and (d) of this section, the permanent registrar shall:

(1) Update and correct the voter’s registration if the information indicates that the voter has moved to a new address within the same county and the same congressional district;

(2) Designate the voter as inactive if the information indicates the voter has moved to a new address in another county or to a new address in another congressional district in the same county or if the address confirmation notices have been returned as undeliverable; or

(3) Cancel the voter registration in the county from which the voter has moved if the voter verifies in writing that he or she has moved to a residence address in another county. [As amended by Acts 1977, No. 882, § 1; 1991, No. 581, § 1; 1995, No. 947, § 6; 1995, No. 964, § 6; 1999, No. 1108, § 1; 2007, No. 560, § 1; 2009, No. 659, § 3; 2025, No. 372, § 1.]

§ 11. Cancellation of registration.

(a) It shall be the duty of the permanent registrar to cancel the registration of voters:

(1) Who have failed to respond to address confirmation mailings described in section 10 of this amendment and have not voted or appeared to vote in an election during the period beginning on the date of the notice and ending on the day after the date of the second general election for federal office that occurs after the date of the address confirmation notice;

(2) Who have changed their residence to an address outside the county;

(3) Who have died;

(4) Who have been convicted of a felony and have not discharged their sentence or been pardoned;

(5) Who are not lawfully qualified or registered electors of this state or of the county;

(6) Who have been adjudged mentally incompetent by a court of competent jurisdiction; or

(7) Who are not citizens of the United States.

(b) It shall be the duty of the permanent registrar of each county upon the registration of a person who has been registered previously in another county or state to notify promptly the permanent registrar of such other county or state of the new registration.

(c)(1) It shall be the duty of the State Registrar of Vital Records to notify promptly the Secretary of State of the death of all residents of this state.

(2)(A) The Secretary of State shall compile a listing of the deceased residents of this state and shall promptly provide this listing to the permanent registrar of each county.

(B) The deceased voter registration shall be cancelled by the permanent registrar.

(d)(1) It shall be the duty of the circuit clerk of each county upon the conviction of any person of a felony to notify promptly the permanent registrar of the county of residence of such convicted felon.

(2)(A) It is the duty of any convicted felon who desires to register to vote to provide the county clerk with proof from the appropriate state or local agency, or office that the felon has been discharged from probation or parole, has paid all probation or parole fees, or has satisfied all terms of imprisonment, and paid all applicable court costs, fines, or restitution.

(B) Proof that the felon has been discharged from probation or parole, paid all probation or parole fees, or satisfied all terms of imprisonment, and paid all applicable court costs, fines, or restitution shall be provided to the felon after completion of the probation, parole, or sentence by the Department of Correction, the Department of Community Correction, the appropriate probation office or the circuit clerk as applicable.

(C) The circuit clerk or any other entity responsible for collection shall provide proof to the Department of Correction, the Department of Community Correction, or the appropriate probation office that the felon has paid all applicable court costs, fines, or restitution.

(D) Upon compliance with subdivision (d)(2)(A) of this section, the felon shall be deemed eligible to vote.

(e)(1)(A) If upon inquiry an individual is found by a court to be unfit and disqualified to act as a grand or petit juror because the person is not a citizen of the United States:

(i) The name of the individual shall be put aside and not used; and

(ii) A notation of the dismissal of the name and reason for dismissal of the name shall be made in the jury book.

(B) The circuit clerk shall promptly notify the permanent registrar of the county of residence of an individual who is disqualified from serving as a juror under subdivision (e)(1)(A) of this section.

(C) After receiving the notice from the circuit clerk, the permanent registrar shall promptly cancel the dismissed juror's voter registration, update the voter registry, and send the dismissed juror notice under subsection (f) of this section.

(2)(A) It is the duty of any person whose registration has been cancelled under subsection (e) of this section to provide the permanent registrar with proof from the appropriate federal, state, or local agency that he or she is a citizen of the United States.

(B) Upon complying with subdivision (e)(2)(A) of this section the person shall be deemed eligible to vote and the permanent registrar shall add the citizen to the voter registry upon the citizen's application for voter registration.

(f) Within ten (10) days following the receipt or possession of information requiring any cancellation of registration, the permanent registrar shall cancel the registration and note the date of the cancellation, the reason for the cancellation, and the person cancelling the registration in the voter registration system.

(g)(1) The permanent registrar shall, thirty (30) days before cancellation, notify all persons whose registration records are to be cancelled in accordance with section 11(a)(1) of this amendment. The notice may be either by publication or by first class mail. The notice by mail shall be as follows:

“NOTICE OF IMPENDING CANCELLATION OF VOTER REGISTRATION.

According to our records you have not responded to our address confirmation notice and you have not voted in any election during the period beginning on the date of the notice and ending on the day after the date of the second general election for federal office after the date of the first notice. This may indicate that you no longer live at the residence address printed on the postcard. If your permanent residence address is still the same as the printed address on this postcard **YOU MUST CONFIRM YOUR RESIDENCE ADDRESS** in order to remain on the voter registration list. If you do not return the attached postcard within thirty (30) days after the date postmarked on this card **YOUR REGISTRATION WILL BE CANCELLED** and you will have to re-register to vote.”

(2) When, in response to the notice, a qualified voter requests the permanent registrar not to cancel the voter registration, the voter registration shall not be cancelled under section 11(a)(1) of this amendment.

(h) The permanent registrar is authorized, and may be directed by the county board of registration, to determine by mail check, house to house canvass, or any other reasonable means at any time within the whole or any part of the county whether active record registration files contain the names of any persons not qualified by law to vote. Further, upon application based upon affidavits of one (1) or more qualified voters by the prosecuting attorney for the county, the circuit judge of the county, for good cause shown, may order the permanent registrar to make sure determination or to cancel the registration of such unqualified persons. [As amended by Acts 1977, No. 744, § 1; 1983, No. 11, § 1; 1987, No. 800, § 1; 1991, No. 581, § 2; 1995, No. 947, § 7; 1995, No. 964, § 7; 2001, No. 560, § 1; 2003, No. 271, § 1; 2003, No. 375, § 1; 2003, No. 1451, § 1; 2009, No. 659, § 4; 2019, No. 290, § 1; 2023, No. 441, §§ 7, 8; 2025, No. 221, § 3.]

Publisher’s Notes. This section was amended by two 1987 acts which conflict and cannot be codified together. Acts 1987, No. 800, was the last-enacted amendment and is set out above. Acts 1987, No. 597, § 1, would have amended subsections (a) and (f) to read as follows:

“(a) It shall be the duty of the Permanent Registrar to cancel the registration of voters:

“(1) Who have failed to vote in any election during four (4) successive calendar years immediately preceding the first of January of any year. Provided, the registration of a person who is in the active military service of the United States shall be cancelled for failure to vote only if such person has failed to vote in any election during six (6) successive calendar years immediately preceding the first of January of any year;

“(2) Who have changed their residence to an address outside the county;

“(3) Who have died or changed their name;

“(4) Who have been convicted of felonies and have not discharged their sentence or been pardoned; or

“(5) Who are not lawfully qualified or registered electors of this State, or of the county.

“(f) The Permanent Registrar may send all persons whose Affidavits of Registration are cancelled in accordance with Section 11(a)(1) of this amendment the follow-

ing notice by first-class mail within ten (10) days after such cancellation: ‘NOTICE OF CANCELLATION OF VOTER REGISTRATION. Notice is hereby given that due to your failure to vote in any election in this county during the preceding four (4) calendar years, (six (6) calendar years in the case of persons in active military service of the United States) under the laws of this State your voter registration has been cancelled. If you are still a qualified voter, you may register again at any time.’ Alternatively, the Permanent Registrar may publish a list of the names of all persons whose Affidavits of Registration are cancelled in the previous calendar year in accordance with Section 11(a)(1) of this amendment on or before the 31st day of January of each year in a legal newspaper. To assure proper identification, the name of the person’s street or route and the name of the city, town, or community in which the person lives shall be included. The following notice shall be given and shall be followed by the list of names: ‘NOTICE OF CANCELLATION OF VOTER REGISTRATION. Notice is hereby given that due to your failure to vote in any election in this county during the preceding four (4) calendar years, (six (6) calendar years in case of persons in active military service of the United States) under the laws of this State your voter registration has been cancelled. If you are still a qualified voter, you may register again at any time.’”

§ 12. Loss or destruction of voter registration records.

In the event any Registration Record or File shall become lost or destroyed, the Permanent Registrar shall prepare, from the remaining Files, temporary copies of the registration records if necessary for the conduct of any election. The Permanent Registrar shall send notice of such fact by first-class mail to any voter whose registration record has been lost, destroyed or mutilated in order that such voter may register again. The previous registration shall be cancelled at the time of the new registration, and in any event within sixty (60) days after mailing of such notice. [As amended by Acts 1995, No. 947, § 9; 1995, No. 964, § 9.]

§ 13. Fail-safe voting — Verification of voter registration.

(a) If a voter presents himself or herself at a polling place on the date of an election but no record of his or her voter registration can be located by the judges of the election on the precinct voter registration list, the voter shall be permitted to vote only under the conditions set forth in § 7-5-306 or § 7-7-308.

(b)(1)(A) In order to determine that all who cast a ballot in an election, a runoff election, or a school election in this state are legally qualified to vote in that election, each voter shall verify his or her registration by:

(i) Presenting to the election official when appearing to vote in person either early or at the polls on election day in an election, a runoff election, or a school election verification of registration in the form of a document or identification card that:

(a) Shows the legal name of the person to whom the document or identification card was issued;

(b) Shows a photograph of the person to whom the document or identification card was issued;

(c) Is issued by the United States, the State of Arkansas, an accredited postsecondary educational institution in the State of Arkansas, or a trade school in the State of Arkansas; and

(d) If displaying an expiration date, is not expired or expired no more than four (4) years before the date of the election in which the voter seeks to vote; or

(ii) Submitting with an absentee ballot in an election, a runoff election, or a school election a copy of a document or identification card that complies with the requirements of subdivision (b)(1)(A)(i) of this section.

(B) A document or identification card may be presented in a digital format on an electronic device if the document or identification card:

(1) Complies with the requirements of subdivision (b)(1)(A) of this section; and

(2) The digital format has been approved or issued by the United States, the State of Arkansas, or an accredited postsecondary educational institution in the State of Arkansas.

(C) Documents and identification cards that comply with the requirements of subdivision (b)(1)(A) of this section include without limitation:

(i) A driver's license;

(ii) A photo identification card;

(iii) A concealed handgun carry license;

(iv) A United States passport;

(v) An employee badge or identification document issued by an accredited postsecondary educational institution in the State of Arkansas;

(vi) A United States military identification document;

(vii) A public assistance identification card if the card shows a photograph of the person to whom the document or identification card was issued; and

(viii) A voter verification card under Arkansas Code § 7-5-324.

(2)(A) Except as provided in subdivision (b)(2)(B) of this section, if a voter is unable to verify his or her registration when voting in person by presenting a document or identification card that complies with subdivision (b)(1)(A)(i) of this section, the election official shall:

(i) Indicate on the precinct voter registration list that the voter did not present a required document or identification card; and

(ii) Permit the voter to cast a provisional ballot and inform the voter of the requirements under subdivision (b)(4) of this section.

(B)(i) A person who is a resident of a long-term care or residential care facility licensed by the state of Arkansas is not required to verify his or her registration by presenting a document or identification card that complies with subdivision (b)(1)(A)(i) of this section when voting in person.

(ii) A person not required to present a document or identification card under subdivision (b)(2)(B)(i) of this section shall provide documentation from the administrator of the facility attesting that the person is a resident of the facility.

(3)(A) Except as provided in subdivision (b)(3)(B) of this section, if a voter voting by absentee ballot fails to submit with the ballot documentation that complies with subdivision (b)(1)(A)(ii) of this section, the absentee ballot shall be considered a provisional ballot.

(B) The following persons shall not be required to submit with his or her absentee ballot documentation that complies with subdivision (b)(1)(A)(ii) of this section:

(i) An active duty member of the uniformed services of the United States or United States Merchant Marine who is absent from the country on election day because of his or her service;

(ii) The spouse or dependant of an active duty member of the uniformed services of the United States or United States Merchant Marine under subdivision (b)(3)(B)(i) of this section who is absent from the country on election day because of the service of the member; or

(iii)(a) A resident of a long-term care or residential care facility licensed by the state of Arkansas.

(b) A person not required to submit a document or identification card under subdivision (b)(3)(B)(iii)(a) of this section shall provide documentation from the administrator of the facility attesting that the person is a resident of the facility.

(4) A provisional ballot cast by a voter who did not present a required document or identification card shall be counted if:

(A) The voter returns to the county board of election commissioners or the county clerk by 12:00 noon on the Monday following the election and presents a document or identification card that complies with the requirements of subdivision (b)(1)(A)(i) of this section; and

(B) The county board of election commissioners does not determine that the provisional ballot is invalid and should not be counted based on other grounds.

(5) A provisional ballot cast by an absentee voter who failed to submit with an absentee ballot documentation that complies with subdivision (b)(1)(A)(ii) of this section shall be counted if:

(A) The voter returns to the county board of election commissioners or the county clerk by 12:00 noon on the Monday following the election and presents a copy of a document or identification card that complies with the requirements of subdivision (b)(1)(A)(i) of this section; and

(B) The county board of election commissioners does not determine that the provisional ballot is invalid and should not be counted based on other grounds.

(6) A person registering to vote by mail and who has not previously voted in a federal election in this state shall only be required to comply with § 7-5-201(e).

(7) The State Board of Election Commissioners shall promulgate rules necessary to implement subsection (b) of this section.

(8)(A) Following each election, the county board of election commissioners may review the precinct voter registration lists and may provide the information of each voter not presenting a document or identification card necessary to verify his or her voter registration when voting in person or by absentee ballot to the prosecuting attorney.

(B) The county board of election commissioners shall refer suspected instances of voter fraud to the prosecuting attorney.

(C) The prosecuting attorney or a state entity authorized by the General Assembly may investigate possible voter fraud.

(D) Upon application based upon affidavits of one (1) or more qualified voters by the appropriate prosecuting attorney alleging possible voter fraud, the appropriate circuit judge,

for good cause shown, may order the permanent registrar to cancel the registration of the voter failing to verify his or her registration as provided by this subsection. [As amended by Acts 1973, No. 149, §§ 5, 6; 1995, No. 947, § 10; 1995, No. 964, § 10; 2017, No. 633, § 2; 2019, No. 684, § 1; 2021, No. 249, §§ 1, 2; 2023, No. 441, §§ 9-11.]

§ 14. Voter registration lists.

(a) By the first day of June of each year, and at such other times as may be practicable, all Permanent Registrars shall, and at their discretion at other times may, print or otherwise duplicate and publish lists of registered voters by precincts, and may distribute such lists pursuant to §§ 7-5-105 and 7-5-109. A copy of the most current such list in each precinct shall be furnished the election officials at each precinct at the time the ballot boxes are delivered and such election officials shall post said list at a conspicuous place in the polling area.

(b) By the first day of June of each year, the Permanent Registrar shall certify to the Secretary of State the total number of registered voters in the county. The Secretary of State shall tabulate the total number of registered voters in the state and shall make such information available to interested persons upon request. [As amended by Acts 1995, No. 947, § 11; 1995, No. 964, § 11.]

§ 15. Penalties.

(a) Any person who shall maliciously and intentionally destroy, steal, mutilate or unlawfully detain or obtain any voter registration form or any Registration Record Files shall be guilty of a felony, and upon conviction thereof shall be fined in the sum of not less than one hundred dollars (\$100.00) nor more than one thousand dollars (\$1,000.00), or be imprisoned in the State Penitentiary for a period of not less than one (1) year nor more than five (5) years, or both.

(b) Any public official, election official, or public employee who wilfully violates any provision of this amendment shall be guilty of a misdemeanor, and upon conviction thereof shall also be removed from such office or position.

(c) Any other person who wilfully violates any provision of this amendment shall be guilty of a misdemeanor. [As amended by Acts 1995, No. 947, § 12; 1995, No. 964, § 12; 2023, No. 441, § 12.]

§ 16. Severability.

If any provision of this amendment or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the amendment which can be given effect without the invalid provision or application, and to this end the provisions of this amendment are declared to be severable.

§ 17. Effect on other laws.

This amendment supersedes and repeals the requirement of Amendment No. 8 that a poll tax receipt be presented prior to registration or voting, and further supersedes and repeals Act 19 of 1964 and all other laws or parts of laws in conflict herewith.

§ 18. Appropriations.

The General Assembly shall make such appropriations as may be required for the effectuation of this amendment.

§ 19. Amendment.

The General Assembly may, in the same manner as required for amendment of laws initiated by the people, amend Sections 5 through 15 of this amendment, so long as such amendments are germane to this amendment, and consistent with its policy and purposes.

§ 20. Short title.

This amendment shall be known as the “Arkansas Amendment for Voter Registration without Poll Tax Payment.”

AMEND. 52. COMMUNITY COLLEGES.

Publisher’s Notes. This amendment was proposed by initiative petition and adopted at the general election on Nov. 3, 1964, by a vote of 221,199 for and 219,618 against.

§ 1. General Assembly may establish districts to furnish community college instruction and technical training.

The General Assembly may by law provide for the establishment of districts for the purpose of providing community college instruction and technical training. The General Assembly shall prescribe the method of financing such community college and technical institutes, and may authorize the levy of a tax upon the taxable property in such districts for the acquisition, construction, reconstruction, repair, expansion, operation, and maintenance of facilities therefor.

§ 2. Prior approval of majority of qualified voters in proposed district required.

No such district shall be created and no such tax shall be levied upon the property in an established district except upon approval of a majority of the qualified electors of such proposed or established district voting thereon. Provided that any millage so approved by the electors of a district shall be a continuing levy until increased, reduced or repealed in such manner as may be provided by law, providing they shall ever remain a community college and shall never be extended into four-year institutions.

AMEND. 53. FREE SCHOOL SYSTEM (CONST., ART. 14, § 1, AMENDED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 14, § 1, and is incorporated therein. The amendment was proposed by S.J.R. No. 4 (see Acts 1967, p.

1330) and filed in the office of the Secretary of State on March 8, 1967. It was approved at the general election on Nov. 5, 1968, by a vote of 244,370 for and 220,057 against.

AMEND. 54. PURCHASE OF PRINTING, STATIONERY AND SUPPLIES (CONST., ART. 19, § 15, REPEALED AND SECTION ADDED).**§ 1. Contracts given to lowest responsible bidder.**

The printing, stationery, and supplies purchased by the General Assembly and other departments of government shall be under contracts given to the lowest responsible bidder, below such maximum price and under such regulations as shall be prescribed by law. No member or officer of any department of government shall in any way be interested in such contracts.

Publisher’s Notes. This Amendment was proposed by S.J.R. No. 6 (see Acts 1973, p. 2225) and filed in the office of the Secretary of State on April 5, 1973. It was approved at the general election on Nov. 5, 1974, by a vote of 259,639 for and 210,830 against.

Const. Amend. 54, § 2 repealed Ark. Const., Art. 19, § 15.

Acts 1983, No. 760, § 1 read: “On the effective date of this Act, printing, stationery and supplies subject to Amendment 54 of the Arkansas Constitution shall be subject to the provisions of the Arkansas Preference Law, Act 482 of 1979 as amended.”

AMEND. 55. REVISION OF COUNTY GOVERNMENT

Publisher's Notes. This amendment was proposed by H.J.R. No. 20 (see Acts 1973, p. 2230) and filed in the office of the Secretary of State on April 10, 1973. It was approved at the general election on Nov. 5, 1974, by a vote of 242,419 for and 230,014 against.

Effective Dates.

Const. Amend. 55, § 7 provided: "Sections 1 and 4 of this Amendment shall be effective January 1, 1977, and all other provisions hereof shall be effective when this Amendment is adopted [November 5, 1974]."

§ 1. Power of quorum court.

(a) A county acting through its Quorum Court may exercise local legislative authority not denied by the Constitution or by law.

(b) No county may declare any act a felony or exercise any authority not relating to county affairs.

(c) A county may, for any public purpose, contract, cooperate, or join with any other county, or with any political subdivisions of the State or any other states or their political subdivisions, or with the United States.

§ 2. Composition of quorum court — Power over elective offices.

(a) No county's Quorum Court shall be comprised of fewer than nine (9) justices of the peace, nor comprised of more than fifteen (15) justices of the peace. The number of justices of the peace that comprise a county's Quorum Court shall be determined by law. The county's Election Commission shall, after each decennial census, divide the county into convenient and single member districts so that the Quorum Court shall be based upon the inhabitants of the county with each member representing, as nearly as practicable, an equal number thereof.

(b) The Quorum Court may create, consolidate, separate, revise, or abandon any elective county office or offices except during the term thereof; provided, however, that a majority of those voting on the question at a general election have approved said action.

§ 3. Power of county judge.

The County Judge, in addition to other powers and duties provided for by the Constitution and by law, shall preside over the Quorum Court without a vote but with the power of veto; authorize and approve disbursement of appropriated county funds; operate the system of county roads; administer ordinances enacted by the Quorum Court; have custody of county property; hire county employees, except those persons employed by other elected officials of the county.

§ 4. Powers of quorum court.

In addition to other powers conferred by the Constitution and by law, the Quorum Court shall have the power to override the veto of the County Judge by a vote of three-fifths of the total membership; fix the number and compensation of deputies and county employees; fill vacancies in elective county offices; and adopt ordinances necessary for the government of the county. The Quorum Court shall meet and exercise all such powers as provided by law.

§ 5. Compensation of county officers fixed by quorum court.

Compensation of each county officer shall be fixed by the Quorum Court within a minimum and maximum to be determined by law. Compensation may not be decreased during a current term; provided, however, during the interim, from the date of adoption of this Amendment until the first day of the next succeeding month following the date of approval of salaries by the Quorum Court, salaries of county officials shall be determined by law. Fees of the office shall not be the basis of compensation for officers or employees of county offices. Per diem compensation for members of the Quorum Court shall be fixed by law.

§ 6. Bonding of county officers.

All County Officers shall be bonded as provided by law.

AMEND. 56. CONSTITUTIONAL OFFICERS — GENERAL ASSEMBLY (CONST., ART. 19, § 23 AND AMENDS. 37 AND 48, REPEALED; AND SECTIONS ADDED).

Publisher's Notes. This amendment was proposed by S.J.R. No. 2 (see Acts 1975 (Extended Sess., 1976), p. 3033) and filed in the office of the Secretary of State on Jan. 28, 1976. It was approved at the general election on Nov. 7, 1976, by a vote of 441,247 for and 236,918 against.

Ark. Const. Amend. 56, § 5, repealed Ark. Const., Art. 19, § 23, and Ark. Const. Amendments 37 and 48.

Effective Dates.
Ark. Const. Amend. 56, § 6: Jan. 1, 1977.

§ 1. Executive department — Composition.

The Executive Department of this State shall consist of a Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, Attorney General, and Commissioner of State Lands, all of whom shall keep their offices at the seat of government, and hold their offices for the term of two (2) years, and until their successors are elected and qualified.

Publisher's Notes. This section may be superseded by Ark. Const. Amend. 63, § 1.

§ 2. [Repealed.]

Publisher's Notes. This section, concerning salaries of Executive Department officers, was repealed by Ark. Const. Amend. 70, § 5.

§ 3. [Repealed.]

Publisher's Notes. This section, concerning salaries of members of the General Assembly, was repealed by Ark. Const. Amend. 70, § 5.

§ 4. Compensation of municipal officers.

Compensation of municipal officers and officials shall be fixed by the governing body of the municipality, not to exceed limits which may be established by law.

AMEND. 57. INTANGIBLE PERSONAL PROPERTY.

Publisher's Notes. This amendment was proposed by S.J.R. No. 4 (see Acts 1975 (Extended Sess., 1976), p. 3035) and filed in the office of the Secretary of State on Jan. 29, 1976. It was approved at the general election on Nov. 7, 1976, by a vote of 634,231 for and 93,277 against.

§ 1. Intangible personal property — Assessment and taxation.

The General Assembly may classify intangible personal property for assessment at lower percentages of value than other property and may exempt one or more classes of intangible personal property from taxation, or may provide for the taxation of intangible personal property on a basis other than ad valorem.

§ 2. Effect on other constitutional provisions.

The provisions of this Amendment shall be in lieu of those provisions of Article 16, Section 5 of the Constitution of the State of Arkansas relating to the assessment and taxation of intangible personal property.

Publisher's Notes. Ark. Const., Art. 16, § 5, as originally enacted, was repealed and replaced by Ark. Const. Amend. 59.

AMEND. 58. [REPEALED.]

Publisher's Notes. This amendment, concerning the Court of Appeals, was repealed by Ark. Const. Amend. 80, § 22(D), effective July 1, 2001.

AMEND. 59. TAXATION (CONST., ART. 16, § 5, REPEALED; §§ 5, 14, 15, 16 ADDED).

Publisher's Notes. This amendment repealed Ark. Const., Art. 16, § 5, and substituted a new section therefor which appears as Ark. Const., Art. 16, § 5, in the text of the Constitution. The amendment also added Ark. Const., Art. 16, §§ 14-16, which appear in the text of the Constitution. The amendment was proposed by the General Assembly in

1979 (Extended Sess., 1980). It was voted on at the Nov. 4, 1980, election and adopted by a vote of 649,307 for and 152,629 against. See *Wells v. Riviere*, 269 Ark. 156, 599 S.W.2d 375 (1980), as to validity of proposal at extended session.

AMEND. 60. 1982 INTEREST RATE CONTROL AMENDMENT (CONST., ART. 19, § 13, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 19, § 13, which was subsequently repealed by Ark. Const. Amend. 89. Amendment 60 was proposed by H.J.R. No. 7 (see Acts 1981, p. 2374(iv)) and filed in the office of the Secretary of State on March 30, 1981. It was

approved at the general election on Nov. 2, 1982, by a vote of 442,325 for and 302,461 against.

Ark. Const. Amend. 60 provided that the popular name for this amendment is "The 1982 Interest Rate Control Amendment."

AMEND. 61. COUNTY ROAD TAX (CONST. AMEND. 3, REPEALED; AND SECTION ADDED).

County quorum courts may annually levy a county road tax not to exceed three (3) mills on the dollar on all taxable real and personal property within their respective counties. Revenues derived from the county road tax shall be used for the sole purpose of constructing and repairing public roads and bridges within the county wherein levied. The authority granted by this amendment shall be in addition to all other taxing authority of the county quorum courts.

Publisher's Notes. This amendment was proposed by S.J.R. No. 1 (see Acts 1981, p. 2374(ii)) and filed in the office of the Secretary of State on March 30, 1981. It was approved at the general election on Nov. 2, 1982, by a vote of 362,009 for and 322,504 against.

Section 2 of Ark. Const. Amend. 61, repealed Ark. Const. Amend. 3.

AMEND. 62. LOCAL CAPITAL IMPROVEMENT BONDS (CONST. AMENDS. 13, 17, 25 AND 49, REPEALED; AND SECTIONS ADDED)

Publisher's Notes. With respect to the requirement for approval of bond issues, this amendment may be superseded by Ark. Const. Amend. 65.

This amendment was proposed by H.J.R. No. 1 (see Acts 1983, p. 2305) and filed in the office of the Secretary of

State on Mar. 29, 1983. It was approved at the general election on Nov. 6, 1984, by a vote of 395,336 for and 342,404 against.

Ark. Const. Amend. 62, § 11, repealed Ark. Const. Amendments 13, 17, 25, and 49.

§ 1. Local capital improvement bonds authorized — Election — Taxes — Limit on indebtedness — Suspension of tax levy.

(a) The legislative body of a municipality or county, with the consent of a majority of the qualified electors voting on the question at an election called for that purpose, may authorize the issuance of bonds for capital improvements of a public nature, as defined by the General Assembly, in amounts approved by a majority of those voting on the question either at an election called for that purpose or at a general election. The General Assembly shall prescribe a uniform method of calling and holding such elections and the terms upon which the bonds may be issued. If more than one purpose is proposed, each shall be stated separately on the ballot. The election shall be held no earlier than thirty (30) days after it is called by the legislative body. The tax to

retire the bonds may be an ad valorem tax on real and personal property. Other taxes may be authorized by the General Assembly or the legislative body to retire the bonds.

(b) The limit of the principal amount of bonded indebtedness of the municipality or county which may be outstanding and unpaid at the time of issuance of any bonds secured by a tax on real or personal property, except for bonds issued for economic development projects pursuant to Section 2 hereof, shall be a sum equal to ten percent (10%) for a county or twenty percent (20%) for a municipality of the total assessed value for tax purposes of real and personal property in the county or municipality, as determined by the last tax assessment.

(c) The municipality or county may from time to time, suspend the collection of a levy, when not required for the payment of its bonds, subject to the covenants with the bondholders. [As amended by Const. Amend. 89, § 14; Const. Amend. 97.]

Publisher's Notes. Ark. Const. Amend. 89, § 14, amended this section effective January 1, 2011. Amendment 89 was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

Before amendment by Amend. 89, subsection (a) read: "The legislative body of a municipality or county, with the consent of a majority of the qualified electors voting on the question at an election called for that purpose, may authorize the issuance of bonds, to bear interest at a rate not to exceed two percent (2%) per annum above the Federal Reserve Rate at the time of the election authorizing the bonds, for capital improvements of a public nature, as defined by the General Assembly, in amounts approved by a majority of those voting on the question either at an election called for that purpose or at a general election. The General Assembly shall prescribe a uniform method of calling and holding such elections and the terms upon

which the bonds may be issued. If more than one purpose is proposed, each shall be stated separately on the ballot. The election shall be held no earlier than thirty (30) days after it is called by the legislative body. The tax to retire the bonds may be an ad valorem tax on real and personal property. Other taxes may be authorized by the General Assembly or the legislative body to retire the bonds."

Ark. Const. Amend. 97, which amended this section, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. The amendment substituted "economic development projects" for "industrial development purposes" in (b), and was effective thirty days after the election pursuant to § 7-9-119.

Amend. 97, § 1, provided: "INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development."

§ 2. Issuance of bonds to secure and develop industry — Levy of tax — Suspension of collection — Limit on tax levy.

(a) In addition to the authority for bonded indebtedness set forth in Section 1, any municipality or county may, with the consent of the majority of the voters voting on the question at an election held for that purpose, issue bonds in sums approved by such majority at that election for the purpose of financing economic development projects within or near the county or municipality holding the election.

(b) To provide for payment of principal and interest of the bonds issued pursuant to the section, as they mature, the municipality or county may levy a special tax, not to exceed five (5) mills on the dollar of the taxable real and personal property therein. However, the municipality or county may, from time to time, suspend the collection of such annual levy when not required for the payment of its bonds. In no event shall any parcel of real and personal taxable property be subject to a special tax levied under the authority of this Section in excess of five (5) mills for bonds issued under this Section.

(c) Other taxes may be authorized by the General Assembly or the legislative body to retire the bonds.

(d) As used in this section:

(1) "Economic development projects" means the land, buildings, furnishings, equipment, facilities, infrastructure, and improvements that are required or suitable for the development, retention, or expansion of:

- (A) Manufacturing, production, and industrial facilities;
- (B) Research, technology, and development facilities;
- (C) Recycling facilities;
- (D) Distribution centers;
- (E) Call centers;
- (F) Warehouse facilities;
- (G) Job training facilities;

(H) Regional or national corporate headquarters facilities; and

(I) Sports complexes designed to host local, state, regional, and national competitions, including without limitation baseball, softball, and other sports tournaments; and

(2) “Infrastructure” means:

(A) Land acquisition;

(B) Site preparation;

(C) Road and highway improvements;

(D) Rail spur, railroad, and railport construction;

(E) Water service;

(F) Wastewater treatment;

(G) Employee training which may include equipment for such purpose; and

(H) Environmental mitigation or reclamation.

(e) The General Assembly, by a three-fourths vote of each house, may amend the provisions of subsection (d) of this section so long as the amendments are germane to this section and consistent with its policy and purposes. [As amended by Const. Amend. 97; Acts 2019, No. 1072, § 2.]

Publisher’s Notes. Ark. Const. Amend. 97, which amended this section, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. The amendment substituted “economic development projects” for “facilities for the securing and develop-

ing of industry” in (a) and added (c) through (e). The amendment was effective thirty days after the election pursuant to § 7-9-119.

Amend. 97, § 1, provided: “INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development.”

§ 3. [Repealed.]

Publisher’s Notes. Ark. Const. Amend. 97, which repealed this section, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. Ark. Const. Amend. 97 was effective thirty days after the election pursuant to § 7-9-119.

Before repeal, this section read:
“§ 3. Sale of bonds — Procedure.

“The bonds described in Section 2 hereof shall be sold only at public sale after twenty (20) days advertisement in a newspaper having a bona fide circulation in the municipality or county issuing such bonds; provided, however, that the municipality or county may exchange such bonds for bonds of like amount, rate or interest, and length of issue.”

§ 4. Maximum rate of tax stated on ballot — Borrowing prior to issuance of bonds.

The maximum rate of any special tax to pay bonded indebtedness as authorized in Sections 1 and 2 hereof shall be stated on the ballot. After such bond issue has been approved by the electorate, the municipality or county may, prior to the issuance of the bonds, borrow funds on an interim basis, not to exceed three (3) years, and pledge to the payment thereof the tax approved by the voters.

§ 5. Special tax constitutes special fund — Disbursement of surplus.

The special tax for payment of bonded indebtedness authorized in Sections 1 and 2 hereof shall constitute a special fund pledged as security for the payment of such indebtedness. The special tax shall never be extended for any other purpose, nor collected for any greater length of time than necessary to retire such bonded indebtedness. Upon retirement of the bonded indebtedness, any surplus tax collections which may have accumulated shall be transferred to the general funds of the municipality or county. [As amended by Const. Amend. 97.]

Publisher’s Notes. Ark. Const. Amend. 97, which amended this section, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. The amendment deleted “except that tax receipts in excess of the amount required to retire the debt according to its terms may, subject to covenants entered into with

the holders of the bonds, be pledged as security for the issuance of additional bonds if authorized by the voters. The tax for such additional bonds shall terminate within the time provided for the tax originally imposed” following “indebtedness” in the second sentence. The amendment was effective thirty days after the election pursuant to § 7-9-119.

Amend. 97, § 1, provided: "INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development."

§ 6. Conduct of elections.

The General Assembly may enact laws governing the conduct of elections authorized by this Amendment. Absent the enactment of such laws, such elections shall be held, called and conducted in accordance with the laws governing elections generally. The results of such election shall be published in a newspaper of general circulation in the county or municipality (as the case may be) and any contest of such election or the tabulation of the votes therein shall be brought within thirty (30) days after such publication or shall be forever barred.

§ 7. Provisions self-executing.

The provisions of this Amendment shall be self-executing.

§ 8. Taxes levied and bonds authorized prior to amendment.

Taxes levied prior to the effective date of this Amendment shall continue in force until abolished, reduced, or increased as provided by law. All bonds and other evidences of indebtedness authorized prior to the effective date of this Amendment shall be governed by the Constitutional provision and laws in effect at the time of authorization.

§ 9. Joint project of various governing bodies — Compact agreement elections.

(a) Whenever two or more cities of the First or Second Class, or incorporated towns, and/or one or more counties and the school districts therein, desire to join together in a combined effort to secure and develop economic development projects within one or more of such cities, towns, counties, and share in the increased revenues estimated to be received by the city, town, or county, or school district, in which the economic development project or projects are to be located, they may, upon adoption by the governing bodies of each such city, town, school district, or county, enter into a compact setting forth the terms by which each of the participating cities, towns, school districts, and counties is to share in the revenues to be derived from the location of an economic development project within the compact area through the combined efforts of the various participating cities, towns, school districts, and counties. Upon adoption of such compact by the governing bodies of the participating cities, towns, school districts, and/or counties, the county court of each of the counties involved shall cause a special election to be called within not more than forty-five (45) days from the date of the filing of such compact with the county court. At such special election, the qualified electors of each of the cities, towns, school districts, and counties shall vote on whether to approve the compact and the method of sharing in increased revenues to be derived by the city, school district, and/or county in which the proposed economic development project is to be located among the various participating cities, towns, counties, and school districts. The ballot at such election shall be in substantially the following form:

"FOR the establishment of an economic development compact and the sharing of revenues to be derived from additional taxes to be generated by new economic development projects ☐
AGAINST the establishment of an economic development compact and the sharing of revenues to be derived from additional taxes to be generated by new economic development projects ☐

Said election shall be conducted in accordance with the election laws of this State, and the results thereof tabulated and certified to the County Clerk in the manner now provided by law. If a majority of the qualified electors voting on the question vote in favor of the creation of the compact, and the sharing of revenues to be derived from new economic development projects located in the compact area, the said compact shall be implemented in accordance with the terms

thereof. If a majority of the qualified electors voting on said issue vote against issue at said special election, no additional election on said issue may be held within one (1) year from the date of said election. The results of said election shall be proclaimed by the county court of each of the counties in which the county and/or cities and towns, or school districts, are located. The results of said election shall be conclusive unless attacked in the courts within thirty (30) days.

(b) As used in this section:

(1) “Economic development projects” means the land, buildings, furnishings, equipment, facilities, infrastructure, and improvements that are required or suitable for the development, retention, or expansion of:

- (A) Manufacturing, production, and industrial facilities;
- (B) Research, technology, and development facilities;
- (C) Recycling facilities;
- (D) Distribution centers;
- (E) Call centers;
- (F) Warehouse facilities;
- (G) Job training facilities; and
- (H) Regional or national corporate headquarters facilities; and

(2) “Infrastructure” means:

- (A) Land acquisition;
- (B) Site preparation;
- (C) Road and highway improvements;
- (D) Rail spur, railroad, and railport construction;
- (E) Water service;
- (F) Wastewater treatment;
- (G) Employee training which may include equipment for such purpose; and
- (H) Environmental mitigation or reclamation.

(c) The General Assembly, by a three-fourths vote of each house, may amend the provisions of subsection (b) of this section so long as the amendments are germane to this section and consistent with its policy and purposes. [As amended by Const. Amend. 97.]

Publisher’s Notes. Ark. Const. Amend. 97, which amended this section, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. The amendment, in (a), in the first sentence, substituted “economic development projects” for “industries”, “economic development project or projects” for “industry or industries”, and “economic development project” for “industrial plant”, substituted “economic development

compact” for “industrial development compact” twice in the form, and made similar substitutions throughout, and added (b) and (c).

Amend. 97 was effective thirty days after the election pursuant to § 7-9-119.

Amend. 97, § 1, provided: “INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development.”

AMEND. 63. FOUR YEAR TERMS FOR STATE CONSTITUTIONAL OFFICERS.

§ 1. Executive Department — Term of office.

The Executive Department of this State shall consist of a Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, Attorney General and Commissioner of State Lands, all of whom shall keep their offices at the seat of government, and hold their offices for the term of four (4) years, and until their successors are elected and qualified.

Publisher’s Notes. This amendment was proposed by initiative petition and filed in the office of the Secretary of State on July 2, 1984. It was approved at the general election on Nov. 6, 1984, by a vote of 499,083 for and 277,735 against.

This amendment probably supersedes Ark. Const., Art. 6, § 1; Ark. Const. Amend. 6, § 1; and Ark. Const. Amend. 56, § 1.

Effective Dates.

Ark. Const. Amend. 63, § 2: effective Jan. 1, 1987, and applicable to officers elected at the 1986 general election and thereafter.

AMEND. 64. [REPEALED.]**§ 1. [Repealed.]**

Publisher's Notes. Ark. Const. Amend. 64, § 1, concerning municipal court jurisdiction, was repealed by Ark. Const. Amend. 80, § 22(E), effective January 1, 2005.

The amendment was proposed by H.J.R. No. 6 (see Acts 1985, p. 2670) and filed in the office of the Secretary of State on Apr. 16, 1985. It was adopted at the general

election on Nov. 4, 1986, by a vote of 361,115 for and 230,187 against.

Effective Dates.

Ark. Const. Amend. 64, § 2: effective July 1, 1987, and applicable to all causes of action arising after Nov. 1, 1986.

AMEND. 65. REVENUE BONDS.

Publisher's Notes. This amendment was proposed by initiative petition filed in the office of the Secretary of State on July 4, 1986. It was adopted at the general election on Nov. 4, 1986, by a vote of 318,894 for and 275,877 against.

Ark. Const. Amend. 65, § 6, provided, in part, that the provisions of the amendment are self-executing.

This amendment may supersede Ark. Const., Art. 16, § 1, with respect to prohibitions against bond issuance and Ark. Const. Amends. 20 and 62, with respect to requirements for electoral approval.

Effective Dates.

Ark. Const. Amend. 65, § 6: effective on adoption.

§ 1. Issuance — Terms and conditions.

Subject to the provisions of Section 2 hereof, any governmental unit, pursuant to laws heretofore or hereafter adopted by the General Assembly, may issue revenue bonds for the purpose of financing all or a portion of the costs of capital improvements of a public nature, facilities for the securing and developing of industry or agriculture, and for such other public purposes as may be authorized by the General Assembly. Such bonds may bear such terms, be issued in such manner, and be subject to such conditions, all as may be authorized by the General Assembly; and the General Assembly may, but shall not be required to, condition the issuance of such bonds upon an election.

§ 2. Purpose of issuance.

(a) No revenue bonds shall be issued by or on behalf of any governmental unit if the primary purpose of the bonds is to loan the proceeds of the bonds, or to lease or sell the facilities financed with the proceeds of the bonds, to one or more private business users for shopping centers or other establishments engaged in the sale of food or goods at retail.

(b) No revenue bonds shall be issued by or on behalf of any governmental unit without the consent of a majority of the qualified electors voting on the question at an election held in accordance with state law if the primary purpose of the bonds is to loan the proceeds of the bonds, or to lease or sell the facilities financed with the proceeds of the bonds, to one or more private business users for hotels or motels, rental or professional office buildings, or facilities for recreation or entertainment.

§ 3. Definitions.

(a) The term “revenue bonds” as used herein shall mean all bonds, notes, certificates or other instruments or evidences of indebtedness the repayment of which is secured by rents, user fees, charges, or other revenues (other than assessments for local improvements and taxes) derived from the project or improvements financed in whole or in part by such bonds, notes, certificates or other instruments or evidences of indebtedness, from the operations of any governmental unit, or from any other special fund or source other than assessments for local improvements and taxes.

(b) The term “governmental unit” as used herein shall mean the State of Arkansas; any county, municipality, or other political subdivision of the State of Arkansas; any special assessment or taxing district established under the laws of the State of Arkansas; and any agency, board, commission, or instrumentality of any of the foregoing.

§ 4. Authority exclusive — Interest — Initiative and referendum.

This amendment shall be the sole authority required for the authorization, issuance, sale, execution and delivery of revenue bonds authorized hereby. Nothing herein shall be construed to impair the initiative and referendum powers reserved to the people under Amendment No. 7 to the Constitution of the State of Arkansas. [As amended by Const. Amend. 89, § 14.]

Publisher's Notes. Ark. Const. Amend. 89, § 14, amended this section effective January 1, 2011. Amendment 89 was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

Before amendment, this section read: "This amendment shall be the sole authority required for the authorization, issuance, sale, execution and delivery of revenue bonds

authorized hereby; provided, however, that the rate of interest on revenue bonds shall not exceed the maximum authorized by Amendment No. 60 to the Constitution of the State of Arkansas or any similar provision hereafter adopted. Nothing herein shall be construed to impair the initiative and referendum powers reserved to the people under Amendment No. 7 to the Constitution of the State of Arkansas."

AMEND. 66. JUDICIAL DISCIPLINE AND DISABILITY COMMISSION.

(a) **COMMISSION:** Under the judicial power of the State, a Judicial Discipline and Disability Commission is established and shall be comprised of nine persons: three justices or judges, appointed by the Supreme Court; three licensed attorneys in good standing who are not justices or judges, one appointed by the Attorney General, one by the President of the Senate, and one by the Speaker of the House; and three members appointed by the Governor. The members appointed by the Governor shall not be justices or judges, retired justices or judges, or attorneys. Alternate members shall be selected and vacancies filled in the same manner.

(b) **DISCIPLINE, SUSPENSION, LEAVE, AND REMOVAL:** The Commission may initiate, and shall receive and investigate, complaints concerning misconduct of all justices and judges, and requests and suggestions for leave or involuntary disability retirement. Any judge or justice may voluntarily request that the Commission recommend suspension because of pending disciplinary action or leave because of a mental or physical disability. Grounds for sanctions imposed by the Commission or recommendations made by the Commission shall be violations of the professional and ethical standards governing judicial officers, conviction of a felony, or physical or mental disability that prevents the proper performance of judicial duties. Grounds for suspension, leave, or removal from office shall be determined by legislative enactment.

(c) **DISCIPLINE:** If, after notice and hearing, the Commission by majority vote of the membership determines that grounds exist for the discipline of a judge or justice, it may reprimand or censure the judge or justice, who may appeal to the Supreme Court. The Commission may, if it determines that grounds exist, after notice and hearing, and by majority vote of the membership, recommend to the Supreme Court that a judge or justice be suspended, with or without pay, or be removed, and the Supreme court, en banc, may take such action. Under this amendment, a judge who also has executive or legislative responsibilities shall be suspended or removed only from judicial duties. In any hearing involving a Supreme Court justice, all Supreme Court justices shall be disqualified from participation.

(d) **LEAVE AND RETIREMENT:** If, after notice and hearing, the Commission by majority vote of the membership determines that a judge or justice is unable because of physical or mental disability to perform the duties of office, the Commission may recommend to the Supreme Court that the judge or justice be granted leave with pay or be retired, and the Supreme Court, en banc, may take such action. A judge or justice retired by the Supreme Court shall be considered to have retired voluntarily as provided by law.

(e) **VACANCIES:** Vacancies created by suspension, the granting of leave or the removal of a judge or justice, or vacancies created by disqualification of justices, shall be filled as provided by law.

(f) **RULES:** The Supreme Court shall make procedural rules implementing this amendment and setting the length of terms on the Commission.

(g) **CUMULATIVE NATURE:** This amendment is alternative to, and cumulative with, impeachment and address authorized by this Constitution.

Publisher's Notes. This amendment, effective December 8, 1988, was proposed by S.J.R. 5 (see Acts 1987, p.

2880) and was adopted at the 1988 general election by a vote of 431,864 for and 286,699 against.

AMEND. 67. JURISDICTION OF MATTERS RELATING TO JUVENILES AND BASTARDY.

The General Assembly shall define jurisdiction of matters relating to juveniles (persons under eighteen (18) years of age) and matters relating to bastardy and may confer such jurisdiction upon chancery, circuit or probate courts, or upon separate divisions of such courts, or may establish separate juvenile courts upon which such jurisdiction may be conferred, and shall transfer to such courts the jurisdiction over bastardy and juvenile matters now vested in county courts by Section 28 of Article 7 of this Constitution.

Publisher's Notes. This amendment was proposed by S.J.R. 1 (see Acts 1987, p. 2878) and was adopted at the 1988 general election by a vote of 439,179 for and 258,278 against.

Amendment 80 to the Arkansas Constitution, effective July 1, 2001, established circuit courts as the trial courts of original jurisdiction of all justiciable matters not otherwise

assigned pursuant to the Constitution and specifically provided that "jurisdiction conferred on Circuit Courts established by this Amendment includes all matter previously cognizable by Circuit, Chancery, Probate and Juvenile Courts ...".

Effective Dates.

Ark. Const. Amend. 67: Jan. 1, 1989.

AMEND. 68. ABORTION

Publisher's Notes. This amendment, effective December 8, 1988, was proposed by initiative petition and adopted at the 1988, general election by a vote of 398,107 for and 368,117 against.

Enforcement of Amendment 68 is enjoined to the extent

it prohibits the use of state funds to pay for abortions for Medicaid-eligible victims of rape or incest, for so long as federal law mandates Medicaid funding for abortions for Medicaid-eligible victims of rape or incest.

§ 1. Public funding.

No public funds will be used to pay for any abortion, except to save the mother's life.

§ 2. Public policy.

The policy of Arkansas is to protect the life of every unborn child from conception until birth, to the extent permitted by the Federal Constitution.

§ 3. Effect of amendment.

This amendment will not affect contraceptives or require an appropriation of public funds.

AMEND. 69. REPEAL OF AMENDMENT 44 (PROTECTION OF STATES' RIGHTS) (CONST. AMEND. 44, REPEALED).

Publisher's Notes. This amendment repealed Ark. Const. Amend. 44. The amendment, effective December 6, 1990, was proposed by H.J.R. 1003 during the 1989 Regu-

lar Session and adopted at the Nov. 6, 1990, general election by a vote of 273,527 for and 263,261 against.

AMEND. 70. EXECUTIVE DEPARTMENT AND GENERAL ASSEMBLY SALARIES — RESTRICTIONS ON EXPENSE REIMBURSEMENTS (CONST. AMEND. 56, §§ 2, 3 REPEALED; AND SECTIONS ADDED).

Publisher's Notes. This amendment was proposed by H.J.R. 1018 during the 1991 Regular Session and adopted

at the 1992 general election by a vote of 464,901 for and 305,161 against.

§ 1. Executive Department and General Assembly — Restrictions on reimbursements.

(a) No official of the Executive Department shall be reimbursed by the State of Arkansas for any expenses except those reasonably connected to their official duties and only if such reimbursement is made for documented expenses actually incurred and from the regular budget

appropriated for the official's office. Such restrictions on expense reimbursement are of a general application and also are intended specifically to prohibit the appropriation and use of public relations funds. Except as provided in this Constitution, such officials of the Executive Department shall not receive any other income from the State of Arkansas, whether in the form of salaries or expenses.

(b) Except as provided in this Constitution, no member of the General Assembly shall receive any other income for service in the General Assembly, whether in the form of salaries or expenses, including, but not limited to, public relations funds. Provided further, that no member of the General Assembly shall be entitled to per diem unless authorized by law, or to reimbursement for expenses or mileage unless authorized by law, documented, and reasonably related to their official duties. [As amended by Const. Amend. 94.]

Publisher's Notes. Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a

vote of 428,206 for and 388,459 against. The amendment deleted the third sentence of (a) and the first sentence of (b), which specified annual salary amounts; and substituted "in this Constitution" for "herein" twice.

§ 2. Additional Constitutional amendments authorized.

In addition to the three amendments to the Constitution allowed pursuant to Article 19, § 22, either branch of the General Assembly at a regular session thereof may propose an amendment to the Constitution to change the salaries for the offices of Governor, Lieutenant Governor, Attorney General, Secretary of State, Treasurer of State, Commissioner of State Lands, and Auditor of State and for members of the General Assembly. If the same be agreed to by a majority of all members elected to each house, such proposed amendment shall be entered on the journals with the yeas and nays, and published in at least one newspaper in each county, where a newspaper is published, for six months immediately preceding the next general election for Senators and Representatives, at which time the same shall be submitted to the electors of the State for approval or rejection. If a majority of the electors voting at such election adopt the amendment the same shall become a part of this Constitution. Only one amendment to the Constitution may be referred pursuant to this section.

§ 3. [Repealed.]

Publisher's Notes. Ark. Const. Amend. 94, which repealed this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before repeal, this section read:

"§ 3. Salary adjustments.

"The salaries of the Executive Department officials and members of the General Assembly provided for in Section 1 or 2 of this amendment or adjusted pursuant to this section

may be increased annually through subsequent appropriations by the General Assembly by an amount not to exceed the average percentage increase in the Consumer Price Index for All Urban Consumers or its successor, as published by the United States Department of Labor, for the two years immediately preceding the year of the salary appropriation."

For current provision concerning salaries, see Ark. Const., Art. 19, § 31.

§ 4. Effective date.

The provisions of this amendment shall be effective on January 1, 1993.

§ 5. Repeal of Amendment 56, Sections 2 and 3.

Section 2 and Section 3 of Amendment 56 to the Arkansas Constitution are hereby repealed.

AMEND. 71. PERSONAL PROPERTY TAXES.

Publisher's Notes. This amendment was proposed by S.J.R. 8 during the 1991 Regular Session and adopted at

the 1992 general election by a vote of 578,609 for and 235,932 against.

§ 1. Exemption from ad valorem taxes.

Items of household furniture and furnishings, clothing, appliances, and other personal property used within the home, if not held for sale, rental, or other commercial or professional use, shall be exempt from all ad valorem taxes levied by any city, county, school district, or other taxing unit in this state.

§ 2. Motor vehicles — Procedures for assessment and collection.

In addition to the method established by law for assessing and collecting real and personal property taxes, the General Assembly may establish special procedures, in lieu thereof, for the assessment and collection of annual personal property taxes on motor vehicles, owned by individuals, at the time of issuance or renewal of the registration and the license thereof. Personal property taxes collected on motor vehicles under such procedures shall be based on the assessed value of the vehicles determined at the time the tax is paid, computed at the rate of personal property taxes levied during the preceding November, in the manner provided by law, in the taxing units in which the owner of the motor vehicle resides, or in which the motor vehicle is regularly located and assessed, and the taxpayer shall not be required to pay ad valorem taxes upon such motor vehicle based on the assessment for the previous year. In no event may more than one year's personal property taxes be collected on the same vehicle in the same year. Personal property taxes collected on motor vehicles under such procedures shall be remitted to the counties in which due, for distribution, as revenues of the year in which collected, to the respective taxing units in the manner provided by law.

§ 3. Supersession of Article 16, Section 5.

The provisions of this amendment shall be in lieu of those provisions of Article 16, Section 5 of the Constitution of the State of Arkansas relating to the assessment and taxation of tangible personal property.

§ 4. Effective date.

This amendment shall be in effect from and after January 1, 1993.

AMEND. 72. CITY AND COUNTY LIBRARY AMENDMENT (CONST. AMENDS. 30 AND 38, §§ 1 AND 3, AMENDED, CONST. AMENDS. 30 AND 38, § 5, ADDED).

Publisher's Notes. This amendment amended Ark. Const. Amend. 30, §§ 1, and 3, added Ark. Const. Amend. 30, § 5, amended Ark. Const. Amend. 38, §§ 1, and 3, and added Ark. Const. Amend. 38, § 5. The amendments to

those sections are incorporated within those sections. The amendment was proposed by H.J.R. 1006 during the 1991 Regular Session and adopted at the 1992 general election by a vote of 471,325 for and 325,160 against.

AMEND. 73. ARKANSAS TERM LIMITATION AMENDMENT.

Preamble: The people of Arkansas find and declare that elected officials who remain in office too long become preoccupied with reelection and ignore their duties as representatives of the people. Entrenched incumbency has reduced voter participation and has led to an electoral system that is less free, less competitive, and less representative than the system established by the Founding Fathers. Therefore, the people of Arkansas, exercising their reserved powers, herein limit the terms of elected officials.

Publisher's Notes. This amendment was proposed by initiative petition and approved at the 1992 general election by a vote of 494,326 for and 330,836 against.

Section 3 of this amendment was declared unconstitutional in *U.S. Term Limits, Inc. v. Hill*, 316 Ark. 251, 872 S.W.2d 349 (1994).

Section 3 of this Amendment has been amended by Ark. Const. Amend. 76.

Section 2 of this Amendment has been amended by Ark. Const. Amend. 102.

§ 1. Executive Branch.

(a) The Executive Department of this State shall consist of a Governor, Lieutenant Governor, Secretary of State, Treasurer of State, Auditor of State, Attorney General, and Commissioner of State Lands, all of whom shall keep their offices at the seat of government, and hold their offices for the term of four years, and until their successors are elected and qualified.

(b) No elected officials of the Executive Department of this State may serve in the same office more than two such four year terms.

§ 2. Legislative Branch.

(a) The Arkansas House of Representatives shall consist of members to be chosen every second year by the qualified electors of the several counties.

(b) The Arkansas Senate shall consist of members to be chosen every four (4) years by the qualified electors of the several districts.

(c)(1)(A) Except as provided in subdivision (c)(1)(E) of this section, a person first elected as a member of the General Assembly before January 1, 2021, shall serve no more than sixteen (16) years, whether consecutive or nonconsecutive.

(B) A member first elected as a member of the General Assembly before January 1, 2021, who completes his or her sixteenth year of service during a term of office for which he or she has been elected may serve until the completion of that term of office.

(C) The years of service in both the Senate and the House of Representatives shall be added together and included to determine the total number of years in office of a member of the General Assembly first elected as a member of the General Assembly before January 1, 2021.

(D) A partial legislative term served as a result of a special election under Article 5, § 6, or a two-year term served as a result of apportionment of the Senate shall not be included in calculating the total number of years served by a member of the General Assembly first elected as a member of the General Assembly before January 1, 2021.

(E)(i) A person who has served sixteen (16) or more years in the General Assembly under subdivision (c)(1) of this section shall not be eligible for subsequent service in the General Assembly until four (4) years after the expiration of the last term of office in the General Assembly for which he or she was elected.

(ii) Subsequent service in the General Assembly under subdivision (c)(1)(E)(i) of this section shall be as provided under subdivision (c)(2) of this section.

(2)(A)(i) A person first elected as a member of the General Assembly on or after January 1, 2021, shall serve no more than twelve (12) consecutive years.

(ii) A member of the General Assembly first elected to the General Assembly on or after January 1, 2021, who serves twelve (12) or more consecutive years shall not be eligible for subsequent service in the General Assembly until four (4) years after the expiration of the last term of office in the General Assembly for which he or she was elected.

(B) A member first elected to the General Assembly on or after January 1, 2021, who completes his or her twelfth consecutive year of service during a term of office for which he or she has been elected may serve until the completion of that term of office.

(C) Consecutive years of service in both the Senate and the House of Representatives shall be added together and included to determine the total number of consecutive years in office of a member first elected to the General Assembly on or after January 1, 2021.

(D)(i) A two-year term served as a result of apportionment of the Senate shall be included in calculating the total number of consecutive years served by a member of the General Assembly first elected to the General Assembly on or after January 1, 2021.

(ii) A partial legislative term served as a result of a special election under Article 5, § 6, shall not be included in calculating the total number of consecutive years served by a member of the General Assembly first elected to the General Assembly on or after January 1, 2021. [As amended by Const. Amend. 94; Const. Amend. 102.]

Publisher's Notes. Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before amendment, this section read:

“§ 2. Legislative Branch.

“(a) The Arkansas House of Representatives shall consist of members to be chosen every second year by the qualified electors of the several counties. No member of the Arkansas House of Representatives may serve more than three such two year terms.

“(b) The Arkansas Senate shall consist of members to be chosen every four years by the qualified electors of the several districts. No member of the Arkansas Senate may serve more than two such four year terms.”

Ark. Const. Amend. 102, which amended this section effective January 1, 2021, was proposed by S.J.R. 15 during the 2019 Regular Session and adopted at the 2020 general election by a vote of 647,861 for and 521,979 against.

Before amendment by Amend. 102, this section read:

“§ 2. Legislative Branch.

“(a) The Arkansas House of Representatives shall consist of members to be chosen every second year by the qualified electors of the several counties.

“(b) The Arkansas Senate shall consist of members to be chosen every four years by the qualified electors of the several districts.

“(c)(1) A member of the General Assembly shall serve no more than sixteen (16) years, whether consecutive or nonconsecutive.

“(2) A member who completes his or her sixteenth year of service during a term of office for which he or she has been elected may serve until the completion of that term of office.

“(3) The years of service in both the Senate and the House of Representatives shall be added together and included to determine the total number of years in office.

“(4) A partial legislative term served as a result of a special election under Article 5, § 6, or a two-year term served as a result of apportionment of the Senate shall not be included in calculating the total number of years served by a member of the General Assembly. [As amended by Const. Amend. 94.]”

§ 3. Congressional Delegation.

(a) Any person having been elected to three or more terms as a member of the United States House of Representatives from Arkansas shall not be certified as a candidate and shall not be eligible to have his/her name placed on the ballot for election to the United States House of Representatives from Arkansas.

(b) Any person having been elected to two or more terms as a member of the United States Senate from Arkansas shall not be certified as a candidate and shall not be eligible to have his/her name placed on the ballot for election to the United States Senate from Arkansas.

Publisher's Notes. This section was declared unconstitutional in *U.S. Term Limits, Inc. v. Hill*, 316 Ark. 251, 872 S.W.2d 349 (1994).

This section has been amended by Ark. Const. Amend. 76.

§ 4. Severability.

The provisions of this Amendment are severable, and if any should be held invalid, the remainder shall stand.

§ 5. Provisions Self-executing.

Provisions of this Amendment shall be self-executing.

§ 6. Application.

(a) This Amendment to the Arkansas Constitution shall take effect and be in operation on January 1, 1993, and its provisions shall be applicable to all person thereafter seeking election to the offices specified in this Amendment.

(b) All laws and constitutional provisions which conflict with this Amendment are hereby repealed to the extent that they conflict with this amendment.

AMEND. 74. SCHOOL TAX — BUDGET — APPROVAL OF TAX RATE (CONST., ART. 14, § 3, AS AMENDED BY CONST. AMEND. 11 AND CONST. AMEND. 40, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 14, § 3, and is incorporated within that section. The amendment was proposed by S.J.R. 10 during the

1995 Regular Session and adopted at the general election on November 5, 1996, by a vote of 407,719 for and 378,017 against.

AMEND. 75. [ENVIRONMENTAL ENHANCEMENT FUNDS].

Publisher's Notes. This amendment was proposed by H.J.R. 1007 during the 1995 Regular Session and adopted at the general election on November 5, 1996, by a vote of 405,216 for and 396,932 against.

The bracketed heading was added by the Publisher.

Effective Dates.

Ark. Const. Amend. 75, § 5: collection of the tax imposed by this amendment began on July 1, 1997.

§ 1. Statement of purpose.

The people of the State of Arkansas find that fish, wildlife, parks, tourism and natural heritage constitute a major economic and natural resource of the state and they desire to provide additional funds to the Arkansas Game and Fish Commission, the Department of Parks and Tourism, the Department of Heritage and Keep Arkansas Beautiful.

§ 2. [Excise tax levied]

(a) There is hereby levied an additional excise tax of one-eighth of one percent ($\frac{1}{8}$ of 1%) upon all taxable sales of property and services subject to the tax levied by the Arkansas Gross Receipts Act (Arkansas Code § 26-52-101 et seq.), and such tax shall be collected, reported, and paid in the same manner and at the same time as is prescribed by law for the collection, reporting and payment of all other Arkansas gross receipts taxes.

(b) There is hereby levied an additional excise tax of one-eighth of one percent ($\frac{1}{8}$ of 1%) upon all tangible personal property subject to the tax levied by the Arkansas Compensating Tax Act (Arkansas Code § 26-53-101 et seq.), and such tax shall be collected, reported, and paid in the same manner and at the same time as is prescribed by law for the collection, reporting and payment of Arkansas compensating taxes.

Publisher's Notes. The bracketed section heading was added by the Publisher.

§ 3. Use of proceeds.

(a) Notwithstanding any provision of Amendment 35 or any other provision of the Arkansas Constitution to the contrary, forty-five percent (45%) of all monies collected from the tax levied herein shall be deposited in the State Treasury as special revenues and credited to the Game Protection Fund to be used exclusively by the Arkansas Game and Fish Commission, as appropriated by the General Assembly.

(b) Forty-five percent (45%) of all monies collected from the tax levied herein shall be deposited in the State Treasury as special revenues and credited to the Department of Parks and Tourism Fund Account to be used by the Department of Parks and Tourism for state park purposes, as appropriated by the General Assembly.

(c) Nine percent (9%) of all monies collected from the tax levied herein shall be deposited in the State Treasury as special revenues and credited to the Arkansas Department of Heritage Fund Account to be used exclusively by the Department of Heritage as appropriated by the General Assembly.

(d) One percent (1%) of all monies collected from the tax levied herein shall be deposited in the State Treasury as special revenues and credited to the Keep Arkansas Beautiful Fund Account, which is hereby created on the books of the State Treasurer, State Auditor and the Chief Fiscal Officer of the State, to be used exclusively by Keep Arkansas Beautiful, as appropriated by the General Assembly.

§ 4. [Administrative procedures]

(a) The General Assembly shall provide for the proper administration and enforcement of this amendment by law.

(b) Unless the General Assembly provides another procedure by law, the provisions of the Arkansas Tax Procedure Act, Sections 26-18-101 et seq., shall so far as practicable be applicable to the tax levied by this amendment and the reporting, remitting and enforcement of the tax.

Publisher's Notes. The bracketed section heading was added by the Publisher.

AMEND. 76. THE CONGRESSIONAL TERM LIMITS AMENDMENT OF 1996 (CONST. AMEND. 73, § 3, AMENDED).

Publisher's Notes. This amendment has been declared unconstitutional by the Arkansas Supreme Court. Amendment 76 was proposed by initiative petition and adopted at the general election on November 5, 1996, by a vote of 448,938 for and 284,499 against.

§ 1. Congressional Delegation (Const. Amend. 73, § 3 amended).

Section 3 of Amendment 73 to the Arkansas Constitution is hereby amended to add to the current language the following subsections:

(c) The foregoing provisions in sections (a) and (b) shall be revived upon passage of appropriate federal laws.

(d) It is the official position of the people of the State of Arkansas that all of our elected officials should vote to enact, by amendment to the United States Constitution, term limits for members of the United States Congress that are not longer than: three (3) two-year terms in the United States House of Representatives, nor two (2) six-year terms in the United States Senate, respectively.

(e) It is the will of the people of the State of Arkansas that the following amendment be added to the United States Constitution:

“Congressional Term Limits Amendment

“Section A. No person shall serve in the office of United States Representative for more than three terms, but upon ratification of the Congressional Term Limits Amendment no person who has held the office of United States Representative or who then holds the office shall serve for more than two additional terms.

“Section B. No person shall serve in the office of United States Senator for more than two terms, but upon ratification of the Congressional Term Limits Amendment no person who has held the office of United States Senator or who then holds the office shall serve more than one additional term.

“Section C. This article shall have no time limit within which it must be ratified by the legislatures of three-fourths of the several states.[”]

(f)(1) As provided in this subsection, and in subsections (h) and (j) of this section, at each primary, special, and general election for the office of United States Representative, United States Senator, or any state legislator, the ballot shall inform voters regarding any incumbent and non-incumbent candidate's failure to support “The Congressional Term Limits Amendment” proposed above.

(g) Each member of the Arkansas Delegation to the United States Congress is hereby instructed to use all of the powers of the Congressional office to pass the Congressional Term Limits Amendment set forth in subsection (e) above.

(h) All primary, general, and special election ballots shall have the information “DISREGARDED VOTERS' INSTRUCTION ON TERM LIMITS” printed adjacent to the name of any United States Representative or United States Senator who:

(1) Failed to vote in favor of the Congressional Term Limits Amendment proposed in subsection (e) when brought to any vote;

(2) Failed to second the Congressional Term Limits Amendment proposed in subsection (e) if it lacked for a second before any proceeding of the legislative body;

(3) Failed to propose or otherwise bring to a vote of the full legislative body the Congressional Term Limits Amendment proposed in subsection (e) above if it otherwise lacked a legislator who

so proposed or brought to a vote of the full legislative body the Congressional Term Limits Amendment proposed in subsection (e) above; or

(4) Failed to vote in favor of discharging the Congressional Term Limits Amendment proposed in subsection (e) before any committee or subcommittee upon which the Legislator served in the respective legislative body; or

(5) Failed to vote against or reject any attempt to delay, table, or otherwise prevent a vote by the full legislative body on the Congressional Term Limits Amendment set forth in subsection (e); or

(6) Failed to vote against any term limits proposal with terms longer than those set forth in the Congressional Term Limits Amendment proposed in subsection (e); or

(7) Sponsored or co-sponsored any proposed constitutional amendment or law that proposes term limits longer than those in the Congressional Term Limits Amendment set forth in subsection (e); or

(8) Failed to ensure that all legislative votes on Congressional Term Limits were recorded and made available to the public.

(i) The information “DISREGARDED VOTERS’ INSTRUCTION ON TERM LIMITS” shall not appear adjacent to the names of candidates for Congress if the Congressional Term Limits Amendment set forth in subsection (e) is before the states for ratification or has become a part of the United States Constitution.

(j) Notwithstanding any other provision of Arkansas law:

(1) A non-incumbent candidate for the office of United States Representative, United States Senator, State Representative, or State Senator, shall be permitted to sign a “Term Limits Pledge” each time the non-incumbent files as a candidate for such an office. A candidate who declines to sign the “Term Limits Pledge” shall have “DECLINED TO PLEDGE TO SUPPORT TERM LIMITS” printed adjacent to the candidate’s name on the election ballot;

(2) Each time a non-incumbent candidate for United States Senator, United States Representative, State Senator, or State Representative files for candidacy for those offices, the candidate shall be offered the “Term Limits Pledge” until the United States Constitution has been amended to limit United States Senators to two terms in office and United States Representative to three terms in office;

(3) The “Term Limits Pledge” that each non-incumbent candidate for state and federal legislative offices shall be offered is as follows:

“I support Congressional Term Limits and pledge to use all of my legislative powers to enact the proposed Congressional Term Limits Amendment set forth in the United States Congressional Term Limits Amendment of 1996. If elected, I pledge to act and to vote in such a way that the information ‘DISREGARDED VOTERS’ INSTRUCTION ON TERM LIMITS’ will not appear next to my name.”

The pledge form will provide a space for the signature of the candidate and the date of the signature.

(k) The House of Representatives of the State of Arkansas, and the Arkansas Senate, due to the desire of the people of the State of Arkansas to establish term limits for the Congress of the United States, are hereby instructed to make the following application to the United States Congress, pursuant to their powers under Article V of the United States Constitution, to wit:

“We, the people and the legislature of the State of Arkansas, due to our desire to establish term limits on the members of the Congress of the United States, hereby make application to the United States Congress, pursuant to our power under Article V of the United States Constitution, to call a convention for proposing amendments to the Constitution.”

(l) Each state legislator is hereby instructed to use all powers delegated to each legislator to pass the Article V application to the United States Congress set forth in subsection (k) above, and to ratify, if proposed, the Congressional Term Limits Amendment set forth above.

(m) Notwithstanding any other provision of Arkansas Law:

(1) All primary, general, and special election ballots shall have the information “DISREGARDED VOTERS’ INSTRUCTION ON TERM LIMITS” printed adjacent to the name of any State Senator or State Representative who:

(A) Failed to vote in favor of the application set forth in subsection (k) above when brought to a vote; or

(B) Failed to second the application set forth in subsection (k) above if it lacked a second; or

(C) Failed to vote in favor of all votes bringing the application set forth in subsection (k) above before any committee or subcommittee upon which the legislator served; or

(D) Failed to propose or otherwise bring to a vote of the full legislative body the application set forth in subsection (k) if it otherwise lacked a legislator who so proposed or brought to a vote of the full legislative body the application set forth above; or

(E) Failed to vote against any attempt to delay, table, or otherwise prevent a vote by the full legislative body on the application set forth in subsection (k) above; or

(F) Failed in any way to ensure that all votes on the application set forth in subsection (k) were recorded and made available to the public; or

(G) Failed to vote against any change, addition, or modification to the application set forth in subsection (k) above; or

(H) Failed to attend a hearing, session, or vote of the legislative body concerning any aspect of consideration of the proposals in subsection (e) and subsection (k) above, where such failure to attend resulted in any failure to obtain a quorum sufficient to conduct business; or

(I) Failed to move for, second, or vote in favor of a roll-call vote on any aspect of consideration of the proposals in subsection (e) and subsection (k) above, where such failure resulted in the defeat of any aspect of subsection (e) and subsection (k) above, without recording the votes of individual legislators to be held accountable at a later time.

(J) Failed to vote against any effort to rescind the application.

(K) Failed to vote in favor of the amendment set forth in subsection (e) above, when the amendment was sent to the states for ratification; or

(L) Failed to vote against any term limits amendment with terms longer than the limits set forth in the proposed amendment in subsection (e) above, when such an amendment is sent [sic] to the states for ratification.

(2) The information “DISREGARDED VOTERS’ INSTRUCTION ON TERM LIMITS” as required by any of subsection (1)(A) through (1)(J) shall not appear adjacent to the names of the candidates for the state legislature if the State of Arkansas has made application to Congress for a convention for proposing amendments to the United States Constitution pursuant to this amendment and such application is currently effective, has not been withdrawn, and has not expired.

(3) The information “DISREGARDED VOTERS’ INSTRUCTION ON TERM LIMITS” as required by either of subsections (1)(K) or (1)(L) shall not appear adjacent to the names of the candidates for the state legislature if: The Congressional Term Limits Amendment set forth above has been submitted to the states for ratification and ratified by the Arkansas Legislature; or the Congressional Term Limits Amendment set forth and proposed in subsection (e) has become a part of the United States Constitution.

(n)(1) The Secretary of State of the State of Arkansas shall be responsible for making an accurate determination as to whether a candidate for state or federal legislative office shall have placed next to the candidate’s name on the election ballot the information “DISREGARDED VOTERS’ INSTRUCTION ON TERM LIMITS” or the information “DECLINED TO PLEDGE TO SUPPORT TERM LIMITS” and for certifying the appropriate indication to the appropriate county clerks and other appropriate voting officials.

(2) The Secretary of State, in accordance with subsection (1) of this subsection, shall be responsible for making an accurate determination from any reliable source.

(3) The Secretary of State shall consider timely submitted public comments prior to making the determination required in subsection (1) of this section.

(4) The Secretary of State, in accordance with subsections (1), (2), and (3) of this subsection shall determine and declare what information, if any, shall appear adjacent to the names of each incumbent state and federal legislator if the incumbent were to be a candidate in the next general election and shall certify such information to the appropriate county clerks and other appropriate voting officials.

In the case of United States Representatives and United States Senators, this determination, declaration, and certification shall be made in a fashion necessary to ensure orderly printing of primary and general election ballots with allowance made for all legal action provided in subsections (5), (6) and (7), below, and shall be based upon each Congressional member's actions during their current term of office and any actions taken in any concluded term, if such action was taken after the determination and declaration was made by the Secretary of State previously.

In the case of incumbent state legislators, this determination and declaration shall be made not later than thirty (30) days after the end of the regular session following each general election, and shall be based upon legislative action in the previous regular session or any action taken in any special session in the previous four (4) years, but in no event upon any actions taken before the adoption of this amendment.

The Secretary of State shall provide official notification to the incumbents by certified mail and to the public by official media statement and legal publication in a newspaper of statewide circulation at least two separate times prior to the election, in accordance with the time frames set forth herein.

(5) The Secretary of State shall determine, declare, and certify what information, if any, shall appear adjacent to the names of non-incumbent candidates for state and federal legislator, not later than five (5) business days after the deadline for filing for the office. The Secretary of State shall provide official notification to the candidate by certified mail and to the public by official media statement and legal publication in a newspaper of statewide circulation at least two separate times prior to the election, in accordance with the time frames set forth herein.

(6) If the Secretary of State makes the determination that the information "DISREGARDED VOTERS' INSTRUCTION ON TERM LIMITS" OR "DECLINED TO PLEDGE TO SUPPORT TERM LIMITS" shall not be certified for placement on the ballot adjacent to the name of a candidate for senator or representative for state or federal office, any candidate or elector may appeal such decision to the Arkansas Supreme Court as an original action within five (5) business days after the second official newspaper publication of the determination by the Secretary of State or shall waive any right to appeal such decision. The burden of proof shall be upon the Secretary of State to demonstrate by clear and convincing evidence that the candidate has met the requirements set forth in this act and therefore should not have the information "DISREGARDED VOTERS' INSTRUCTION ON TERM LIMITS" or "DECLINED TO PLEDGE TO SUPPORT TERM LIMITS" printed on the ballot adjacent to the candidate's name.

(7) If the Secretary of State determines that the information "DISREGARDED VOTERS' INSTRUCTION ON TERM LIMITS" OR "DECLINED TO PLEDGE TO SUPPORT TERM LIMITS" shall be certified for placement on the ballot adjacent to a candidate's name for a senator or representative for state or federal office, the candidate may appeal such decision to the Arkansas Supreme Court as an original action within five (5) business days after receipt of notification or shall waive any right to appeal such decision. The burden of proof shall be upon the candidate to demonstrate by clear and convincing evidence that the candidate should not have the information "DISREGARDED VOTERS' INSTRUCTION ON TERM LIMITS" or "DECLINED TO PLEDGE TO SUPPORT TERM LIMITS" printed on the ballot adjacent to the candidate's name.

(o) The Arkansas Supreme Court shall hear the appeal provided for in subsections (n)(6) and (n)(7) of this section, on an expedited basis as the first priority among any Supreme Court case, and shall issue its decision on an expedited basis before any other civil appeals are resolved after submission of the matter to the Arkansas Supreme Court. Failure of the Arkansas Supreme Court to render a timely decision will require the Secretary of State to certify the challenged language for placement on the ballot next to the candidate's name.

(p) At such time as the congressional Term Limits Amendment set forth in subsection (e) has become a part of the United States Constitution, subsections (e) through (o) of this amendment automatically shall be repealed.

(q) Repealer. All laws in conflict with the foregoing are hereby repealed.

(r) Severability. If any portion, clause, or phrase of this Amendment is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction, the remaining portions, clauses, and phrases shall not be affected, but shall remain in full force and effect.

Publisher's Notes. This Amendment has been declared unconstitutional by the Arkansas Supreme Court.

The bracketed closing quotation marks at the end of subsection (e) were added by the Publisher.

AMEND. 77. [SPECIAL JUDGES] (ARK. CONST., ART 7, §§ 9, 21, 22, REPEALED).

Publisher's Notes. This amendment was proposed by S.J.R. 2 during the 1997 Regular Session and adopted at the November 1998 general election by a vote of 296,137 for and 285,305 against.

The bracketed heading was added by the Publisher.

Effective Dates.

Ark. Const. Amend. 77, § 4: Jan. 1, 1999.

§ 1. [Repealed.]

Publisher's Notes. This section, concerning Supreme Court Justices, was repealed by Ark. Const. Amend. 80, § 22(F), effective July 1, 2001.

§ 2. [Circuit, chancery, and probate judges].

Circuit, chancery, and probate judges may temporarily exchange circuits by joint order. Any circuit, chancery, or probate judge who consents may be assigned to another circuit for temporary service under rules prescribed by the Supreme Court.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 3. [Repeal of Ark. Const., Art. 7, §§ 9, 21, 22].

Article 7, Section 9, 21, and 22 are hereby repealed.

Publisher's Notes. The bracketed heading was added by the Publisher.

AMEND. 78. [CITY AND COUNTY GOVERNMENT REDEVELOPMENT]

Publisher's Notes. This amendment was proposed by H.J.R. 1012 during the 1999 Regular Session and adopted at the November 2000 general election by a vote of 427,407 for and 355,943 against.

This amendment was designated as Amendment 78 by the Secretary of State, and was known as Amendment No.

1 on the general election ballot for 2000: "The City and County Government Redevelopment Bond and Short Term Financing Amendment." The bracketed heading was added by the Publisher.

Effective Dates.

Ark. Const. Amend. 78, § 4: Jan. 1, 2001.

§ 1. Redevelopment Projects.

(a) Any city or county may form a redevelopment district for the purpose of financing one (1) or more redevelopment projects within the district.

(b) A city or county which has formed a redevelopment district may issue bonds for the purpose of financing capital improvements for redevelopment projects within the district. The bonds may be secured by and be payable from all or a portion of the division of ad valorem taxes in the district provided for in (d) below. The bonds shall not be considered in calculating debt limits for bonds issued pursuant to Article XII, Section 4, of the Arkansas Constitution and shall not be subject to the provisions of Article XVI, Section 1 of the Arkansas Constitution or Amendments 62 or 65 to the Arkansas Constitution.

(c) For purposes of this section, the term "redevelopment project" means an undertaking for eliminating, or preventing the development or spread of, slums or blighted, deteriorated, or

deteriorating areas, for discouraging the loss of commerce, industry, or employment, or for increasing employment, or any combination thereof, as may be defined by the General Assembly.

(d) The General Assembly may provide that the ad valorem taxes levied by any taxing unit, in which is located all or part of an area included in a redevelopment district, may be divided so that all or part of the ad valorem taxes levied against any increase in the assessed value of property in the area obtaining after the effective date of the ordinance approving the redevelopment plan for the district shall be used to pay any indebtedness incurred for the redevelopment project; provided, however, there shall be excluded from the division all ad valorem taxes for debt service approved by voters in a taxing unit prior to the effective date of this amendment.

(e) After the effective date of an ordinance approving the redevelopment plan for the district, no increase in the assessed value of property in a redevelopment district shall be taken into account for purposes of calculating increases in the aggregate value of taxable real and personal property in a taxing unit pursuant to Article XVI, Section 14 of the Arkansas Constitution.

(f) Any provision of the Constitution of the State of Arkansas in conflict with this section is repealed insofar as it is in conflict with this amendment.

(g) The General Assembly shall provide for the implementation of this section by law.

§ 2. [Short-term financing obligations].

(a) For the purpose of acquiring, constructing, installing or renting real property or tangible personal property having an expected useful life of more than one (1) year, municipalities and counties may incur short-term financing obligations maturing over a period of, or having a term, not to exceed five (5) years. Such obligations may bear interest. The aggregate principal amount of short-term financing obligations incurred by a municipality or a county pursuant to this section shall not exceed five percent (5%) of the assessed value of taxable property located within the municipality or two and one half percent (2.5%) of the assessed value of taxable property located within the county, as determined by the last tax assessment completed before the last obligation was incurred by the city or county. The total annual principal and interest payments in each fiscal year on all outstanding obligations of a municipality or a county pursuant to this section shall be charged against and paid from the general revenues for such fiscal year, which may include road fund revenues. Tax revenues earmarked for solid waste disposal purposes may be used to pay printing and other costs associated with bonds issued under this amendment for solid waste disposal purposes.

(b) As used here:

(1) "Short-term financing obligation" means a debt, a note, an installment purchase agreement, a lease, a lease-purchase contract, or any other similar agreement, whether secured or unsecured; provided, that the obligation shall mature over a period of, or have a term, not to exceed five (5) years.

(2) Repealed.

(c) The provisions of this section shall be self-executing. [As amended by Const. Amend. 89, § 14.]

Publisher's Notes. The bracketed heading was added by the Publisher.

Ark. Const. Amend. 89, § 14 amended this section effective January 1, 2011. Amendment 89 was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

Before amendment, this section read:

"(a) For the purpose of acquiring, constructing, installing or renting real property or tangible personal property having an expected useful life of more than one (1) year, municipalities and counties may incur short-term financing obligations maturing over a period of, or having a term, not to exceed five (5) years. Such obligations may bear interest at either:

"(1) a fixed rate throughout the term thereof, including a

fixed interest rate which is to be determined by reference to an index or other formula, but not to exceed the maximum lawful rate of interest for fixed rate obligations, or

"(2) a rate which may vary at such times and under such circumstances as the parties may agree, whether or not the interest rate in fact varies, but not to exceed the maximum lawful rate of interest for variable rate obligations. The maximum lawful rate of interest for fixed rate obligations is the formula rate in effect on the date the obligation is incurred, regardless of when such interest is to begin to accrue. The maximum lawful rate of interest for variable rate obligations is the formula rate in effect on the date such interest accrues. The aggregate principal amount of short-term financing obligations incurred by a municipality or a county pursuant to this section shall not exceed five percent (5%) of the assessed value of taxable property

located within the municipality or two and one half percent (2.5%) of the assessed value of taxable property located within the county, as determined by the last tax assessment completed before the last obligation was incurred by the city or county. The total annual principal and interest payments in each fiscal year on all outstanding obligations of a municipality or a county pursuant to this section shall be charged against and paid from the general revenues for such fiscal year, which may include road fund revenues. Tax revenues earmarked for solid waste disposal purposes may be used to pay printing and other costs associated with bonds issued under this amendment for solid waste disposal purposes.

“(b) As used here:

“(1) ‘Short-term financing obligation’ means a debt, a note, an installment purchase agreement, a lease, a lease-purchase contract, or any other similar agreement, whether secured or unsecured; provided, that the obligation shall mature over a period of, or have a term, not to exceed five (5) years;

“(2) ‘Formula rate’ means that rate of interest which is five percentage points (5%) above the equivalent bond yield of one year United States Treasury Bills offered by the

United States Treasury at the last auction during the immediately preceding calendar quarter, calculated by rounding up to the nearest one-fourth of one percentage point (0.25%) (unless the equivalent bond yield is already by a multiple of one-fourth of one percentage point), and announced by the State Bank Commissioner (or such successor official who may be performing substantially the same duties) from information available from the Federal Reserve System of the United States. The calculation of the formula rate shall be made on or before the tenth (10th) day of each calendar quarter. The formula rate so calculated shall be effective on the eleventh (11th) day of the calendar quarter and shall continue in effect until the formula rate for the succeeding calendar quarter shall have been calculated and becomes effective. If, for any reason, the United States ceases to issue one year Treasury Bills, such calculation shall be made using a debt instrument of the United States having substantially the same general character and maturity. The calculation and announcement of the formula rate by the State Bank Commissioner shall be final.

“(c) The provisions of this section shall be self-executing.”

§ 3. [Scope of authority to incur debt].

The authority conferred by this amendment shall be in addition to the authority of municipalities and counties to issue bonds and other debt obligations pursuant to Amendments 62, 65, and 72, and other provisions of the Constitution and laws of the state.

Publisher’s Notes. The bracketed heading was added by the Publisher.

AMEND. 79. [PROPERTY TAX RELIEF].

Publisher’s Notes. This amendment was proposed by H.J.R. 1015 during the 1999 Regular Session and adopted at the November 2000 general election by a vote of 502,882 for and 306,830 against.

This amendment was designated as Amendment 79 by the Secretary of State and was known as Amendment No. 2 on the general election ballot for 2000: “An amendment to

limit the increase in the assessed value of a taxpayer’s real property after a countywide reappraisal and to require a property tax credit of at least three hundred dollars (\$300) on homestead property.” The bracketed heading was added by the Publisher.

Effective Dates.

Ark. Const. Amend. 79, § 4: Jan. 1, 2001.

§ 1. [Assessing value of real property].

(a) After each county-wide reappraisal, as defined by law, and the resulting assessed value of property for ad valorem tax purposes and after each Tax Division appraisal and the resulting assessed value of utility and carrier real property for ad valorem tax purposes, the county assessor, or other official or officials designated by law, shall compare the assessed value of each parcel of real property reappraised or reassessed to the prior year’s assessed value. If the assessed value of the parcel increased, then the assessed value of the parcel shall be adjusted pursuant to this section.

(b)(1) If the parcel is not a taxpayer’s homestead used as the taxpayer’s principal place of residence, then for the first assessment following reappraisal, any increase in the assessed value of the parcel shall be limited to not more than ten percent (10%) of the assessed value of the parcel for the previous year. In each year thereafter the assessed value shall increase by an additional ten percent (10%) of the assessed value of the parcel for the year prior to the first assessment that resulted from reappraisal but shall not exceed the assessed value determined by the reappraisal prior to adjustment under this subsection. For utility and carrier real property, any annual increase in the assessed value of the parcel shall be limited to not more than ten percent (10%) of the assessed value for the previous year.

(2) This subsection (b) does not apply to newly discovered real property, new construction, or to substantial improvements to real property.

(c)(1) Except as provided in subsection (d), if the parcel is a taxpayer's homestead used as the taxpayer's principal place of residence then for the first assessment following reappraisal, any increase in the assessed value of the parcel shall be limited to not more than five percent (5%) of the assessed value of the parcel for the previous year. In each year thereafter the assessed value shall increase by an additional five percent (5%) of the assessed value of the parcel for the year prior to the first assessment that resulted from reappraisal but shall not exceed the assessed value determined by the reappraisal prior to adjustment under this subsection.

(2) This subsection (c) does not apply to newly discovered real property, new construction, or to substantial improvements to real property.

(d)(1)(A) A homestead used as the taxpayer's principal place of residence purchased or constructed on or after January 1, 2001 by a disabled person or by a person sixty-five (65) years of age or older shall be assessed thereafter based on the lower of the assessed value as of the date of purchase or construction or a later assessed value.

(B) When a person becomes disabled or reaches sixty-five (65) years of age on or after January 1, 2001, that person's homestead used as the taxpayer's principal place of residence shall thereafter be assessed based on the lower of the assessed value on the person's sixty-fifth birthday, on the date the person becomes disabled or a later assessed value.

(C) If a person is disabled or is at least sixty-five (65) years of age and owns a homestead used as the taxpayer's principal place of residence on January 1, 2001, the homestead shall be assessed based on the lower of the assessed value on January 1, 2001 or a later assessed value.

(2) Residing in a nursing home shall not disqualify a person from the benefits of this subsection (d).

(3) In instances of joint ownership, if one of the owners qualifies under this subsection (d), all owners shall receive the benefits of this amendment.

(4) This subsection (d) does not apply to substantial improvements to real property.

(5) For real property that is subject to Section 2 of this Amendment in lieu of January 1, 2001, the applicable date for this subsection (d) shall be January 1 of the year following the completion of the adjustments to assessed value required by Section 2.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 2. [Effect of county-wide reappraisal — Public utility and carrier exception].

(a)(1) Section 1 of this Amendment shall not be applicable to a county in which there has been no county-wide reappraisal, as defined by law, and resulting assessed value of property between January 1, 1986 and December 31, 2000. Real property in such a county shall be adjusted according to the provisions of this section.

(2) Upon the completion of the adjustments to assessed value required by this section each taxpayer of that county shall be entitled to apply the provision of Section 1 of this Amendment to the real property owned by them.

(b) The county assessor, or other official or officials designated by law, shall compare the assessed value of each parcel of real property to the prior year's assessed value. If assessed value of the parcel increased, then the assessed value of the parcel for the first assessment resulting from reappraisal shall be adjusted by adding one-third ($\frac{1}{3}$) of the increase to the assessed value of the parcel for the previous year. An additional one-third ($\frac{1}{3}$) of the increase shall be added in each of the next two (2) years. This adjustment procedure shall not apply to public utility and carrier property. Public utility and carrier property shall be adjusted pursuant to Section 1.

(c) No adjustment shall be made for newly discovered real property, new construction, or to substantial improvements to real property.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 3. [Annual state credit].

The General Assembly shall provide by law for an annual state credit against ad valorem property tax on a homestead in an amount of not less than three hundred dollars (\$300). The credit shall not exceed the amount of ad valorem property taxes owed. The credit shall apply beginning for taxes due in calendar year 2001. This section shall be applied in a manner that would not impair a bond holder's interest in ad valorem debt service revenues.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 4. [Income adjustments — Personal property millage rate — Uniform property tax rate requirement — Reassessment — Rollback adjustments].

(a) The General Assembly shall, by law, provide for procedures to be followed with respect to adjusting ad valorem taxes or millage pledged for bonded indebtedness purposes, to assure that the tax or millage levied for bonded indebtedness purposes will, at all times, provide a level of income sufficient to meet the current requirements of all principal, interest, paying agent fees, reserves, and other requirements of the bond indenture.

(b) The millage rate levied against taxable personal property and utility and regulated carrier property in each taxing unit in the state shall be equal to the millage rate levied against real property in each taxing unit in the state. Personal property millage rates currently not equal to real estate millage rates shall be reduced to the level of the real estate millage rate; except to the extent necessary to provide a level of income sufficient to meet the current requirements of all principal, interest, paying agent fees, reserves, and other requirements of the bond indenture.

(c) The provisions of this section shall not affect or repeal the required uniform rate of ad valorem property tax set forth in Amendment 74.

(d) The General Assembly may, by law, prescribe the method and means for reassessing real property and establish the frequency of reassessment. However, reassessment shall occur at least once every five (5) years.

(e) Rollback adjustments under Article 16, Section 14 shall be determined after the adjustments are made to assessed value under this Amendment.

Publisher's Notes. The bracketed heading was added by the Publisher.

AMEND. 80. [REVISION OF THE JUDICIAL ARTICLE] (MULTIPLE PROVISIONS OF CONST., ART. 7 REPEALED; CONST. AMENDS. 58, 64, AND 77, § 1, REPEALED; AND SECTIONS ADDED)

Publisher's Notes. This amendment was proposed by S.J.R. 9 during the 1999 Regular Session and adopted at the November 2000 general election by a vote of 431,137 for and 323,647 against.

This amendment was designated as Amendment 80 by

the Secretary of State, and was known as Amendment No. 3 on the general election ballot for 2000: "An amendment to revise the judicial article of the Arkansas Constitution." The bracketed heading was added by the Publisher.

§ 1. Judicial power.

The judicial power is vested in the Judicial Department of state government, consisting of a Supreme Court and other courts established by this Constitution.

§ 2. Supreme Court.

(A) The Supreme Court shall be composed of seven Justices, one of whom shall serve as Chief Justice. The Justices of the Supreme Court shall be selected from the State at large.

(B) The Chief Justice shall be selected for that position in the same manner as the other Justices are selected. During any temporary period of absence or incapacity of the Chief Justice, an acting Chief Justice shall be selected by the Court from among the remaining justices.

- (C) The concurrence of at least four justices shall be required for a decision in all cases.
- (D) The Supreme Court shall have:
 - (1) Statewide appellate jurisdiction;
 - (2) Original jurisdiction to issue writs of quo warranto to all persons holding judicial office, and to officers of political corporations when the question involved is the legal existence of such corporations;
 - (3) Original jurisdiction to answer questions of state law certified by a court of the United States, which may be exercised pursuant to Supreme Court rule;
 - (4) Original jurisdiction to determine sufficiency of state initiative and referendum petitions and proposed constitutional amendments; and
 - (5) Only such other original jurisdiction as provided by this Constitution.
- (E) The Supreme Court shall have power to issue and determine any and all writs necessary in aid of its jurisdiction and to delegate to its several justices the power to issue such writs.
- (F) The Supreme Court shall appoint its clerk and reporter.
- (G) The sessions of the Supreme Court shall be held at such times and places as may be adopted by Supreme Court rule.

§ 3. Rules of pleading, practice, and procedure.

The Supreme Court shall prescribe the rules of pleading, practice and procedure for all courts; provided these rules shall not abridge, enlarge or modify any substantive right and shall preserve the right of trial by jury as declared in this Constitution.

§ 4. Superintending control.

The Supreme Court shall exercise general superintending control over all courts of the state and may temporarily assign judges, with their consent, to courts or divisions other than that for which they were elected or appointed. These functions shall be administered by the Chief Justice.

§ 5. Court of Appeals.

There shall be a Court of Appeals which may have divisions thereof as established by Supreme Court rule. The Court of Appeals shall have such appellate jurisdiction as the Supreme Court shall by rule determine and shall be subject to the general superintending control of the Supreme Court. Judges of the Court of Appeals shall have the same qualifications as Justices of the Supreme Court.

§ 6. Circuit courts.

(A) Circuit Courts are established as the trial courts of original jurisdiction of all justiciable matters not otherwise assigned pursuant to this Constitution.

(B) Subject to the superintending control of the Supreme Court, the Judges of a Circuit Court may divide that Circuit Court into subject matter divisions, and any Circuit Judge within the Circuit may sit in any division.

(C) Circuit Judges may temporarily exchange circuits by joint order. Any Circuit Judge who consents may be assigned to another circuit for temporary service under rules adopted by the Supreme Court.

(D) The Circuit Courts shall hold their sessions in each county at such times and places as are, or may be, prescribed by law.

§ 7. District courts.

(A) District Courts are established as the trial courts of limited jurisdiction as to amount and subject matter, subject to the right of appeal to Circuit Courts for a trial de novo.

(B) The jurisdictional amount and the subject matter of civil cases that may be heard in the District Courts shall be established by Supreme Court rule. District Courts shall have original

jurisdiction, concurrent with Circuit Courts, of misdemeanors, and shall also have such other criminal jurisdiction as may be provided pursuant to Section 10 of this Amendment.

(C) There shall be at least one District Court in each county. If there is only one District Court in a county, it shall have county-wide jurisdiction. Fines and penalties received by the district court shall continue to be distributed in the manner provided by current law, unless and until the General Assembly shall establish a new method of distribution.

(D) A District Judge may serve in one or more counties. Subject to the superintending control of the Supreme Court, the Judges of a District Court may divide that District Court into subject matter divisions, and any District Judge within the district may sit in any division.

(E) District Judges may temporarily exchange districts by joint order. Any District Judge who consents may be assigned to another district for temporary service under rules adopted by the Supreme Court.

§ 8. Referees, masters and magistrates.

(A) A Circuit Court Judge may appoint referees or masters, who shall have power to perform such duties of the Circuit Court as may be prescribed by Supreme Court rule.

(B) With the concurrence of a majority of the Circuit Court Judges of the Circuit, a District Court judge may appoint magistrates, who shall be subject to the superintending control of the District Court and shall have power to perform such duties of the District Court as may be prescribed by Supreme Court rule.

§ 9. Annulment or amendment of rules.

Any rules promulgated by the Supreme Court pursuant to Sections 5, 6(B), 7(B), 7(D), or 8 of this Amendment may be annulled or amended, in whole or in part, by a two-thirds ($\frac{2}{3}$) vote of the membership of each house of the General Assembly.

§ 10. Jurisdiction, venue, circuits, districts and number of judges.

The General Assembly shall have the power to establish jurisdiction of all courts and venue of all actions therein, unless otherwise provided in this Constitution, and the power to establish judicial circuits and districts and the number of judges for Circuit Courts and District Courts, provided such circuits or districts are comprised of contiguous territories.

§ 11. Right of appeal.

There shall be a right of appeal to an appellate court from the Circuit Courts and other rights of appeal as may be provided by Supreme Court rule or by law.

§ 12. Temporary disqualification of justices or judges.

No Justice or Judge shall preside or participate in any case in which he or she might be interested in the outcome, in which any party is related to him or her by consanguinity or affinity within such degree as prescribed by law, or in which he or she may have been counsel or have presided in any inferior court.

§ 13. Assignment of special and retired judges.

(A) If a Supreme Court Justice is disqualified or temporarily unable to serve, the Chief Justice shall certify the fact to the Governor, who within thirty (30) days thereafter shall commission a Special Justice, unless the time is extended by the Chief Justice upon a showing by the Governor that, in spite of the exercise of diligence, additional time is needed. If the Governor fails to commission a Special Justice within thirty (30) days, or within any extended period granted by the Chief Justice, the Lieutenant Governor shall commission a Special Justice.

(B) If a Judge of the Court of Appeals is disqualified or temporarily unable to serve, the Chief Judge shall certify the fact to the Chief Justice who shall commission a Special Judge.

(C) If a Circuit or District Judge is disqualified or temporarily unable to serve, or if the Chief Justice shall determine there is other need for a Special Judge to be temporarily appointed, a Special Judge may be assigned by the Chief Justice or elected by the bar of that Court, under rules prescribed by the Supreme Court, to serve during the period of temporary disqualification, absence or need.

(D) In naming Special Justices and Judges, the Governor or the Chief Justice may commission, with their consent, retired Justices or Judges, active Circuit or District Judges, or licensed attorneys.

(E) Special and retired Justices and Judges selected and assigned for temporary judicial service shall meet the qualifications of Justices or Judges of the Court to which selected and assigned.

(F) Special and retired judges shall be compensated as provided by law.

§ 14. Prohibition of practice of law.

Justices and Judges, except District Judges, shall not practice law during their respective terms of office. The General Assembly may, by classification, prohibit District Judges from practicing law.

§ 15. Prohibition of candidacy for non-judicial office.

If a Judge or Justice files as a candidate for non-judicial governmental office, that candidate's judicial office shall immediately become vacant.

§ 16. Qualifications and terms of justices and judges.

(A) Justices of the Supreme Court and Judges of the Court of Appeals shall have been licensed attorneys of this state for at least eight years immediately preceding the date of assuming office. They shall serve eight-year terms.

(B) Circuit Judges shall have been licensed attorneys of this state for at least six years immediately preceding the date of assuming office. They shall serve six-year terms.

(C) District Judges shall have been licensed attorneys of this state for at least four years immediately preceding the date of assuming office. They shall serve four-year terms.

(D) All Justices and Judges shall be qualified electors within the geographical area from which they are chosen, and Circuit and District Judges shall reside within that geographical area at the time of election and during their period of service. A geographical area may include any county contiguous to the county to be served when there are no qualified candidates available in the county to be served.

(E) The General Assembly shall by law determine the amount and method of payment of expenses of Justices and Judges. Such expenses may be increased, but not diminished, during the term for which such Justices or Judges are selected or elected.

(F) Circuit, District, and Appellate Court Judges and Justices shall not be allowed any fees or perquisites of office, nor hold any other office of trust or profit under this state or the United States, except as authorized by law. [As amended by Const. Amend. 94.]

Publisher's Notes. Ark. Const. Amend. 94, which amended this section effective November 5, 2014, was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted at the November 2014 general election by a vote of 428,206 for and 388,459 against.

Before amendment, subsection (E) read: "The General

Assembly shall by law determine the amount and method of payment of Justices and Judges. Such salaries and expenses may be increased, but not diminished, during the term for which such Justices or Judges are selected or elected. Salaries of Circuit Judges shall be uniform throughout the state."

§ 17. Election of circuit and district judges.

(A) Circuit Judges and District Judges shall be elected on a nonpartisan basis by a majority of qualified electors voting for such office within the circuit or district which they serve.

(B) Vacancies in these offices shall be filled as provided by this Constitution.

§ 18. Election of Supreme Court Justices and Court of Appeals Judges.

(A) Supreme Court Justices and Court of Appeals Judges shall be elected on a nonpartisan basis by a majority of qualified electors voting for such office. Provided, however, the General Assembly may refer the issue of merit selection of members of the Supreme Court and the Court of Appeals to a vote of the people at any general election. If the voters approve a merit selection system, the General Assembly shall enact laws to create a judicial nominating commission for the purpose of nominating candidates for merit selection to the Supreme Court and Court of Appeals.

(B) Vacancies in these offices shall be filled by appointment of the Governor, unless the voters provide otherwise in a system of merit selection.

§ 19. Transition provisions, tenure of present justices and judges, and jurisdiction of present courts.

(A) Tenure of Present Justices and Judges.

(1) Justices of the Supreme Court and Judges of the Court of Appeals in office at the time this amendment takes effect shall continue in office until the end of the terms for which they were elected or appointed.

(2) All Circuit, Chancery, and Circuit-Chancery Judges in office at the time this Amendment takes effect shall continue in office as Circuit Judges until the end of the terms for which they were elected or appointed; provided further, the respective jurisdictional responsibilities for matters legal, equitable or juvenile in nature as presently exercised by such Judges shall continue until changed pursuant to law.

(3) Municipal Court Judges in office at the time this Amendment takes effect shall continue in office through December 31, 2004; provided, if a vacancy occurs in an office of a Municipal Judge, that vacancy shall be filled for a term which shall end December 31, 2004.

(B) Jurisdiction of Present Courts.

(1) The Jurisdiction conferred on Circuit Courts established by this Amendment includes all matters previously cognizable by Circuit, Chancery, Probate and Juvenile Courts including those matters repealed by Section 22 of this Amendment. The geographic circuits and subject matter divisions of these courts existing at the time this Amendment takes effect shall become circuits and divisions of the Circuit Court as herein established until changed pursuant to this Amendment. Circuit Courts shall assume the jurisdiction of Circuit, Chancery, Probate and Juvenile Courts.

(2) District Courts shall have the jurisdiction vested in Municipal Courts, Corporation Courts, Police Courts, Justice of the Peace Courts, and Courts of Common Pleas at the time this Amendment takes effect. District Courts shall assume the jurisdiction of these courts of limited jurisdiction and other jurisdiction conferred in this Amendment on January 1, 2005. City Courts shall continue in existence after the effective date of this Amendment unless such City Court is abolished by the governing body of the city or by appropriate action of the General Assembly. Immediately upon abolition of such City Court, the jurisdiction of the City Court shall vest in the nearest District Court in the county where the city is located.

(C) Continuation of Courts. The Supreme Court provided for in this Amendment shall be a continuation of the Supreme Court now existing. The Court of Appeals shall be regarded as a continuation of the Court of Appeals now existing. All laws and parts of laws relating to the Supreme Court and to the Court of Appeals which are not in conflict or inconsistent with this Amendment shall remain in full force and effect and shall apply to the Supreme Court and Court of Appeals, respectively, established by this Amendment until amended, repealed or superseded by appropriate action of the General Assembly or the Supreme Court pursuant to this Amendment. The Circuit Courts shall be regarded as a continuation of the Circuit, Chancery, Probate and Juvenile Courts now existing. Effective January 1, 2005, the District Courts shall be regarded as a continuation of the Municipal Courts, Corporation Courts, Police Courts, Justice of the Peace Courts and Courts of Common Pleas now existing. All the papers and records pertaining to these courts shall be transferred accordingly, and no suit or prosecution of any kind

or nature shall abate because of any change made by this Amendment. All writs, actions, suits, proceedings, civil or criminal liabilities, prosecutions, judgments, decrees, orders, sentences, regulations, causes of action and appeals existing on the effective date of this Amendment shall continue unaffected except as modified in accordance with this Amendment.

§ 20. Prosecuting attorneys.

A Prosecuting Attorney shall be elected by the qualified electors of each judicial circuit. Prosecuting Attorneys shall have been licensed attorneys of this state for at least four years immediately preceding the date of assuming office. They shall be qualified electors within the judicial circuit from which they are elected and shall reside within that geographical area at the time of the election and during their period of service. They shall serve four-year terms.

§ 21. Effective date.

This Amendment shall become effective on July, 2001.

Publisher's Notes. The text of this section has been printed exactly as enacted. Based on the effective dates of the repeals in Ark. Const. Amend. 80, § 22, the apparent intent was to make this Amendment effective July 1, 2001.

§ 22. Repealer.

(A) The following sections of Article 7 of the Constitution of the State of Arkansas are hereby repealed effective July 1, 2001; 1 through 18; 20 through 22; 24; 25; 32; 34; 35; 39; 40; 42; 44; 45 and 50.

(B) Sections 34 and 35 of Article 7 of the Constitution of the State of Arkansas, as amended by Sections 1 and 2 of Amendment 24, are hereby repealed effective July 1, 2001.

(C) Section 43 of Article 7 of the Constitution of the State of Arkansas is hereby repealed effective January 1, 2005.

(D) Section 1 of Amendment 58 of the Constitution of the State of Arkansas is hereby repealed effective July 1, 2001.

(E) Section 1 of Amendment 64 of the Constitution of the State of Arkansas is hereby repealed effective January 1, 2005.

(F) Section 1 of Amendment 77 of the Constitution of the State of Arkansas is hereby repealed effective July 1, 2001.

(G) No other provision of the Constitution of the State of Arkansas shall be repealed by this Amendment unless the provision is in irreconcilable conflict with the provisions of this Amendment.

AMEND. 81. [PROTECTION OF THE SECRECY OF INDIVIDUAL VOTES] (CONST. AMEND. 50, § 3, REPEALED).

Publisher's Notes. This amendment was proposed by H.J.R. 1004 during the 2001 Regular Session and adopted at the November 2002 general election by a vote of 407,111 for and 308,261 against.

Subsection (b) of Ark. Const. Amend. 81, provided: "Section 3 of Amendment 50 of the Arkansas Constitution is hereby repealed."

The bracketed heading was added by the Publisher.

AMEND. 82. [OBLIGATION BONDS FOR ECONOMIC DEVELOPMENT].

Effective Dates.

Ark. Const. Amend. 82, § 2: Jan. 1, 2005.

§ 1. Issuance of general obligation bonds.

(a) In order for the State of Arkansas to effectively compete for large economic development projects, the Arkansas General Assembly, meeting in special or regular session, may authorize

the Arkansas Development Finance Authority to issue general obligation bonds to finance infrastructure or other needs to attract large economic development projects.

(b) Infrastructure needs may include, but are not limited to:

- (1) Land acquisition;
- (2) Site preparation;
- (3) Road and highway improvements;
- (4) Rail spur, railroad, and railport construction;
- (5) Water service;
- (6) Wastewater treatment;
- (7) Employee training which may include equipment for such purpose;
- (8) Environmental mitigation or reclamation; and
- (9) Training and research facilities and the necessary equipment therefore.

(c) The General Assembly may authorize the issuance of bonds bearing the full faith and credit of the State of Arkansas if the prospective employer planning an economic development project is eligible under criteria established by law.

(d) The bonds shall be paid for in full by general or special revenues appropriated by the General Assembly until the bonds have been retired and all obligations associated with the issuance of the bonds have been met.

(e) Bonds may be issued under this amendment pursuant to an act of the General Assembly without voter approval. [As amended by Const. Amend. 90; Const. Amend. 97.]

Publisher's Notes. This amendment was proposed by H.J.R. 1028 during the 2003 Regular Session and adopted at the November 2004 general election by a vote of 612,277 for and 349,518 against.

Ark. Const. Amend. 90, which amended subsection (d), was proposed by H.J.R. 1007 during the 2009 Regular Session and was adopted at the 2010 general election by a vote of 431,724 for and 260,735 against.

Before the amendment, subsection (d) read: "In order for the General Assembly to authorize the issuance of bonds bearing the full faith and credit of the State of Arkansas, the prospective employer must be planning an economic development project that will invest more than five hundred million dollars (\$500,000,000) in capital expenditures and plan on hiring over five hundred (500) new employees."

Ark. Const. Amend. 97, which amended this amendment, was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the November 2016 general election by a vote of 689,980 for and 366,020 against. The amendment deleted former (b) and redesignated former (c) through (f) as (b) through (e), inserted "railroad, and railport" in (b)(4), redesignated part of former (b)(4) as (b)(5), and redesignated the remaining subdivisions accordingly, and inserted "or reclamation" in (b)(8).

Ark. Const. Amend. 97 was effective thirty days after the election pursuant to § 7-9-119.

Amend. 97, § 1, provided: "INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development."

The bracketed heading was added by the Publisher.

AMEND. 83. [MARRIAGE].

Publisher's Notes. This amendment, effective December 2, 2004, was proposed by initiative petition and adopted at the November 2004 general election by a vote of 753,770 for and 251,914 against.

The bracketed heading was added by the Publisher.

§ 1. Marriage.

Marriage consists only of the union of one man and one woman.

§ 2. Marital status.

Legal status for unmarried persons which is identical or substantially similar to marital status shall not be valid or recognized in Arkansas, except that the legislature may recognize a common law marriage from another state between a man and a woman.

§ 3. Capacity, rights, obligations, privileges, and immunities.

The legislature has the power to determine the capacity of persons to marry, subject to this amendment, and the legal rights, obligations, privileges, and immunities of marriage.

AMEND. 84. [AUTHORIZED BINGO OR RAFFLES].

(a) As used in this section:

(1) “Authorized bingo and raffles organization” means a nonprofit tax-exempt religious, educational, veterans, fraternal, service, civic, medical, volunteer rescue service, volunteer firefighters organization, or volunteer police organization that has been in continuing existence as a nonprofit tax-exempt organization in this state for a period of not less than five (5) years immediately prior to conducting the game of bingo or raffles;

(2)(A) “Game of bingo” means a single game of the activity commonly known as “bingo” in which the participants pay a sum of money for the use of one (1) or more bingo cards.

(B) “Game of bingo” shall include only games in which the winner receives a preannounced, fixed-dollar prize and in which the winner is determined by the matching of letters and numbers on a bingo card imprinted with at least twenty-four (24) numbers, with letters and numbers appearing on objects randomly drawn and announced by a caller, in contemporaneous competition among all players in the game; and

(3) “Raffle” means the selling of tickets or chances to win a prize awarded through a random drawing.

(b)(1) The game of bingo or raffles conducted by an authorized bingo and raffles organization shall not be a lottery prohibited by Section 14 of Article 19 of the Arkansas Constitution if all net receipts over and above the actual cost of conducting the game or raffle are used only for charitable, religious, or philanthropic purposes.

(2) No receipts shall be used to compensate in any manner any person who works for or is in any way affiliated with the authorized bingo and raffles organization.

(c) The General Assembly shall provide by law for the licensure and regulation of authorized bingo and raffles organizations to conduct the game or bingo or raffles and may levy taxes on the activities.

Publisher’s Notes. This amendment was proposed by H.J.R. 1003 during the 2005 Regular Session and adopted at the November 2006 general election by a vote of 503,216 for and 226,844 against.

Effective Dates.
Ark. Const. Amend. 84, § 2: Jan. 1, 2007.

AMEND. 85. [VOTING AND ELECTIONS AMENDMENT] (CONST., ART. 3, §§ 1, 2, 8, AND 10, AMENDED, CONST., ART. 3, § 5, REPEALED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 3, §§ 1, 2, repealed Ark. Const., Art. 3, § 5, and amended Ark. Const., Art. 3, §§ 8 and 10. The amendments to those sections are incorporated within those sections. The amendment, effective December 4, 2008, was

proposed by S.J.R. 4 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 714,128 for and 267,326 against.

The bracketed heading was added by the Publisher.

AMEND. 86. [GENERAL ASSEMBLY SESSIONS] (CONST., ART. 5, §§ 5, 17, 29, 34, 39, 40 AND AMEND. 35, § 7, AMENDED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 5, §§ 5, 17, 29, 34, 39, 40, and Ark. Const. Amend. 35, § 7. The amendments to those sections are incorporated within those sections. The amendment was proposed by H.J.R. 1004 during the 2007 Regular Session and adopted at the 2008 general election by a vote of 664,671 for and 292,436 against.

Ark. Const. Amend. 86, § 8, provided: “Nothing in this amendment shall be construed to alter the Governor’s authority to call a special session of the General Assembly.”

The bracketed heading was added by the Publisher.

Effective Dates.
Ark. Const. Amend. 86, § 9: Jan. 1, 2009.

AMEND. 87. [STATE LOTTERY ESTABLISHED] (CONST., ART. 19, § 14, AMENDED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 19, § 14. The amendment to that section,

effective December 4, 2008, is incorporated within that section. The amendment was proposed by an initiated

measure and was adopted at the 2008 general election by a vote of 648,122 for and 383,467 against.

The bracketed heading was added by the Publisher.

AMEND. 88. [WILDLIFE CONSERVATION AND MANAGEMENT].

Publisher's Notes. This amendment, effective December 2, 2010, was proposed by S.J.R. 3 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 612,495 for and 127,444 against.

The bracketed heading was added by the Publisher.

§ 1. [Right to Hunt, Fish, Trap, and Harvest Wildlife]

(a)(1) Citizens of the State of Arkansas have a right to hunt, fish, trap, and harvest wildlife.

(2) The right to hunt, fish, trap, and harvest wildlife shall be subject only to regulations that promote sound wildlife conservation and management and are consistent with Amendment 35 of the Arkansas Constitution.

(b) Public hunting, fishing, and trapping shall be a preferred means of managing and controlling nonthreatened species and citizens may use traditional methods for harvesting wildlife.

(c) Nothing in this amendment shall be construed to alter, repeal, or modify:

(1) Any provision of Amendment 35 to the Arkansas Constitution;

(2) Any common law or statute relating to trespass, private property rights, eminent domain, public ownership of property, or any law concerning firearms unrelated to hunting; or

(3) The sovereign immunity of the State of Arkansas.

Publisher's Notes. The bracketed heading was added by the Publisher.

AMEND. 89. [GOVERNMENTAL BONDS AND LOANS — INTEREST RATES — ENERGY EFFICIENCY PROJECTS] (CONST., ART. 19, § 13 REPEALED, CONST. AMEND. 30, § 5, AMEND. 38, § 5, AMEND. 62, § 1, AMEND. 65, § 4, AND AMEND. 78, § 2, AMENDED, AND SECTIONS ADDED)

Publisher's Notes. This amendment, consisting of sections 1 through 14, is set out below. Section 14 of the amendment repealed Ark. Const., Art. 19, § 13 and amended Ark. Const. Amend. 30, § 5, Amend. 38, § 5, Amend. 62, § 1, Amend. 65, § 4, and Amend. 78, § 2. The amendments to those sections, effective January 1, 2011, are incorporated within those sections. The amendment was proposed by H.J.R. 1004 during the 2009 Regular Session and adopted at the 2010 general election by a vote of 448,711 for and 250,167 against.

The bracketed heading was added by the Publisher.

Effective Dates.

Acts 2019, No. 694, § 8: Apr. 4, 2019. Emergency clause provided: "It is found and determined by the General Assembly of the State of Arkansas that under current law the Arkansas Code Revision Commission does not have the

authority to correct conflicts occurring when multiple acts amend the same provision of the Arkansas Constitution as expressly permitted by the Arkansas Constitution; that this inability to resolve conflicts makes the law unclear and impossible to publish for review and study by the citizens of the state; and that this act should become effective at the earliest opportunity so that it may be applied to acts enacted by the Ninety-Second General Assembly. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto."

§ 1. Governmental Bonds and Loans.

(a) The maximum lawful rates of interest on bonds issued by governmental units in the State of Arkansas as set forth in various provisions and amendments to the Arkansas Constitution of 1874, including Article 19, § 13, and Amendment Nos. 30, 38, 62, 65, and 78 are removed.

(b) The maximum lawful rate of interest on loans made by or to governmental units in the State of Arkansas as set forth in Article 19, § 13 of the Arkansas Constitution of 1874 is removed.

(c) Except as may be established by the General Assembly pursuant to Section 8 of this amendment, there shall be no maximum lawful rate on bonds issued by and loans made by or to governmental units.

§ 2. Loans by Federally Insured Depository Institutions.

The maximum lawful rate of interest, discount points, finance charges, or other similar charges that may be charged, taken, received, or reserved from time to time in any loan or financing transaction by or to any federally insured depository institution having its main office in this State shall be the maximum rate of interest that was applicable to federally insured depository institutions under 12 U.S.C. § 1831u effective on March 1, 2009.

§ 3. Other Loans.

The maximum lawful rate of interest on loans or contracts not described in Sections 1 and 2 shall not exceed seventeen percent (17%) per annum.

§ 4. Energy Efficiency Project Bonds – Issuance – Terms and Conditions.

(a) A governmental unit, under laws adopted by the General Assembly, may issue bonds to finance all or a portion of the costs of energy efficiency projects. The bonds may bear such terms, be issued in such manner, and be subject to such conditions as may be authorized by the General Assembly. The bonds authorized by Section 4 shall be governmental bonds subject to the provisions of Section 1 of this amendment.

(b) Bonds may be secured by a pledge of the savings from the energy efficiency project and may be repaid from general revenues, special revenues, revenues derived from taxes or any other revenues available to the governmental unit.

(c) The authority conferred by this Section 4 shall be supplemental to other constitutional provisions which authorize the issuance of bonds.

§ 5. Definitions.

(a) The term “bonds” means all bonds, notes, certificates, financing leases, or other interest-bearing instruments or evidences of indebtedness.

(b) The term “Federal Reserve Primary Credit Rate” means the Primary Credit Rate, or such successor rate, as established by and in effect in the Federal Reserve Bank in the Federal Reserve District in which Arkansas is located.

(c) The term “federally insured depository institution” means a state bank, a national bank, or a savings association, as such terms are defined in 12 U.S.C. § 1813 as such statute existed on January 1, 2009, the deposits of which are insured by the Federal Insurance Deposit Corporation, or its successor.

(d) The term “governmental unit” means the State of Arkansas; any county, municipality, school district, or other political subdivision of the State of Arkansas; any special assessment or taxing district established under the laws of the State of Arkansas; and any agency, board, commission, or instrumentality of any of the foregoing.

(e) The term “loan or financing transaction by or to a federally insured depository institution” means all direct or indirect advances of funds and moneys that are conditioned on the obligation of a person or entity to repay the funds and moneys pursuant to loan agreements, lease agreements, installment sale agreements, security agreements, notes, bill of exchange, or other evidence of debt or other instruments or documents evidencing the indebtedness and are made by or to a federally insured depository institution.

(f) The term “loans made by or to governmental units” means all direct or indirect advances of funds and moneys that are conditioned on the obligation of a person or entity to repay the funds and moneys pursuant to loan agreements, lease agreements, installment sale agreements, security agreements, notes, or other instruments or documents evidencing the indebtedness and are made by or to governmental units.

§ 6. Miscellaneous.

(a) The provisions of this amendment are not intended and shall not be deemed to supersede or otherwise invalidate any provisions of federal law applicable to loans or interest rates including loans secured by residential real property.

(b) All contracts under Section 3 having a rate of interest in excess of the maximum lawful rate shall be void as to principal and interest and the General Assembly shall prohibit the same by law.

§ 7. [Ballot Title].

The ballot title for this amendment shall be:

An amendment providing that constitutional provisions setting the maximum lawful rate of interest on bonds issued by and loans made by or to governmental units are repealed; the maximum lawful rate of interest on loans by federally insured depository institutions shall remain at the rate resulting from the federal preemption effective on March 1, 2009; establishing that the maximum lawful rate of interest on any other loan or contract shall not exceed seventeen percent (17%) per annum; authorizing governmental units to issue bonds to finance energy efficiency projects and allowing such bonds to be repaid from any source including general revenues derived from taxes; providing that any federal laws applicable to loans or interest rates are not superseded by the amendment; and repealing Article 19, § 13, and the interest rate provisions of Amendment Nos. 30, 38, 62, 65, and 78 of the Arkansas Constitution.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 8. [Interest Rate Limits].

Nothing in this amendment shall limit the power of the General Assembly to fix, from time to time, one or more interest rate limits on various types of bonds issued by and loans made by or to governmental units.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 9. [Application of Amendment].

If this amendment or the application thereof to any person or circumstances is held invalid, the remainder of the amendment and its application to persons or circumstances other than those to which it is held invalid shall not be affected.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 10. [Amendment Provisions].

The provisions of this amendment, other than the provisions of Section 4 of this amendment, shall be self-executing.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 11. [Three-fourths vote].

(a) The General Assembly may by a three-fourths vote of each house of the General Assembly amend the provisions of this amendment so long as the amendments are germane to this amendment and consistent with its policy and purposes.

(b)(1) If an act of the General Assembly amends one (1) or more provisions of this amendment, the Arkansas Code Revision Commission may, by a majority vote of the commission, make the

following revisions to the act so long as the revisions do not change the substance or meaning of the act:

- (A) Correct the spelling of words;
 - (B) Change capitalization for the purpose of uniformity;
 - (C) Correct manifest typographical and grammatical errors;
 - (D) Correct manifest errors in references to laws and other documents;
 - (E) Correct manifest errors in internal reference numbers;
 - (F) Number, renumber, redesignate, and rearrange the provisions of this amendment at issue;
 - (G) Change internal reference numbers to agree with renumbered sections, subsections, subdivisions, or other provisions of law;
 - (H) Insert or delete hyphens in words to follow correct grammatical usage;
 - (I) Change numerals or symbols to words or vice versa and add figures or words if they are merely repetitions of written words or vice versa for purposes of uniformity and style;
 - (J) Change the form of nouns, pronouns, and verbs for purposes of style and grammar;
 - (K) Correct punctuation; and
 - (L) Change gender-specific language to gender-neutral language.
- (2)(A) If more than one (1) act amending a provision of this amendment is enacted by the General Assembly during the same session, the commission may, by a majority vote of the commission, revise this amendment as necessary so that all of the enactments shall be given effect, including without limitation renumbering, redesignating, and rearranging sections, subsections, and subdivisions of this amendment.
- (B) In the event that one (1) or more acts amending a provision of this amendment result in an irreconcilable conflict with one (1) or more acts amending a provision of this amendment enacted during the same session, the commission may, by a majority vote of the commission, revise this amendment so that the conflicting provision of the last enactment prevails.
- (c) If the commission makes revisions under subsection (b) of this section, the commission shall file a report with the Speaker of the House of Representatives, the President Pro Tempore of the Senate, and the Governor that:
- (1) Explains the revisions made under subsection (b) of this section; and
 - (2) Includes the text of this amendment as amended by the revisions made under subsection (b) of this section. [As amended by Acts 2019, No. 694, § 5.]

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 12. [Applicability].

The provisions of this amendment shall apply to all bonds issued and loans made after the effective date of this amendment.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 13. [Effective Date].

The effective date of this amendment is January 1, 2011.

Publisher's Notes. The bracketed heading was added by the Publisher.

§ 14. [Repealer].

This amendment shall repeal Article 19, § 13, and the interest rate provisions of Amendment Nos. 30, 38, 62, 65, and 78 of the Arkansas Constitution.

Publisher's Notes. The bracketed heading was added by the Publisher.

AMEND. 90. [BONDS FOR ECONOMIC DEVELOPMENT] (CONST. AMEND. 82 AMENDED).

Publisher's Notes. This amendment amended Ark. Const. Amend. 82, and is incorporated within that amendment. The amendment, effective December 2, 2010, was proposed by H.J.R. 1007 during the 2009 Regular Session

and adopted at the 2010 general election by a vote of 431,724 for and 260,735 against.

The bracketed heading was added by the Publisher.

AMEND. 91. [GENERAL OBLIGATION FOUR-LANE HIGHWAY CONSTRUCTION AND IMPROVEMENT BONDS].

Publisher's Notes. This amendment, effective December 6, 2012, was proposed by H.J.R. 1001 during the 2011 Regular Session and adopted at the 2012 general election by a vote of 597,215 for and 428,745 against.

The bracketed headings were added by the Publisher.

§ 1. Intent.

The people of the State of Arkansas find that:

(a) The state has an outdated and inadequate system of highway funding that is unable to meet the severe and pressing needs to maintain and improve the state's system of state highways, county roads, and city streets;

(b) Increasing investment in the state highway system, county roads, and city streets will create jobs, aid in economic development, improve quality of life, and provide additional transportation infrastructure, including specifically, a four-lane highway construction plan designed to connect all regions of the state; and

(c) To provide additional funding for the state's four-lane highway system, county roads, and city streets, this amendment levies a temporary sales and use tax and authorizes general obligation highway construction and improvement bonds for the state's four-lane highway system.

§ 2. Definitions.

As used in this amendment:

(a) "Bonds" means the State of Arkansas General Obligation Four-Lane Highway Construction and Improvement Bonds as authorized in this amendment;

(b) "Chairman" means the chair of the Arkansas Highway Commission;

(c) "Chief fiscal officer" means the Director of the Department of Finance and Administration;

(d) "Commission" means the State Highway Commission;

(e) "Debt service" means all amounts required for the payment of principal of, interest on, and premium, if any, due with respect to the bonds in any fiscal year, along with all associated costs, including without limitation the fees and costs of paying agents and trustees, and remarketing agent fees;

(f) "Designated tax revenues" means:

(1) Taxes collected under this amendment and apportioned to the Arkansas State Highway and Transportation Department Fund under § 27-70-206 collected over an approximate ten-year period; and

(2) Other fees or taxes that are dedicated to the repayment of the bonds; and

(g)(1) "Four-lane highway improvements" means construction of and improvements to:

(A) Four-lane roadways;

(B) Bridges;

(C) Tunnels;

(D) Engineering;

- (E) Rights-of-way; and
 - (F) Other related capital improvements and facilities appurtenant or pertaining thereto, including costs of rights-of-way acquisition and utility adjustments.
- (2) “Four-lane highway improvements” also means the maintenance of four-lane highway improvements constructed with proceeds of the bonds.

§ 3. Levy of Temporary Tax.

(a)(1) Except for food and food ingredients, a temporary additional excise tax of one-half percent (0.5%) is levied on all taxable sales of property and services subject to the tax levied by the Arkansas Gross Receipts Act of 1941.

(2) The tax shall be collected, reported, and paid in the same manner and at the same time as is prescribed by law for the collection, reporting and payment of all other Arkansas gross receipts taxes.

(b)(1) Except for food and food ingredients, a temporary additional excise tax of one-half percent (0.5%) is levied on all tangible personal property and services subject to the tax levied by the Arkansas Compensating Tax Act of 1949.

(2) The tax shall be collected, reported, and paid in the same manner and at the same time as is prescribed by law for the collection, reporting and payment of Arkansas compensating taxes.

§ 4. Authorization and purpose.

(a) The State Highway Commission may issue State of Arkansas Four-Lane Highway Construction and Improvement General Obligation Bonds (‘bonds’) in a total principal amount not to exceed one billion, three hundred million dollars (\$1,300,000,000) for the purpose of:

(1) Accelerating four-lane highway improvements in progress or scheduled as of January 1, 2011;

(2) Funding new four-lane highway improvements not in progress or scheduled as of January 1, 2011;

(3) Providing matching funds in connection with federal highway programs for four-lane highway improvements; and

(4) Paying the costs of issuance of the bonds.

(b) The bonds may be issued in one (1) or more series at times, in amounts, and bearing the designations as the commission in consultation with the chief fiscal officer determines.

(c)(1) The bonds shall be general obligations of the State of Arkansas, secured by and payable from the general revenues of the state as set forth in Section 15 of this amendment.

(2) The bonds shall be payable first from the following designated revenues:

(A) Portion of the proceeds of the additional one-half of percent (0.5%) excise tax on gross proceeds or gross receipts; and

(B) Portion of the proceeds of the additional one-half percent (0.5%) compensating excise tax; and

(C) Other revenues designated by the General Assembly for this purpose.

(d)(1) If the amendment is approved, the sales tax and the use tax will be collected over an approximate ten-year period, and so long as the bonds are outstanding.

(2) The sales and use tax shall terminate upon payment in full of the bonds.

(3) If the amendment is not approved, the sales and use taxes shall not be levied and collected.

§ 5. Use of proceeds.

(a) There is established on the books of the Treasurer of State, Auditor of State, and the chief fiscal officer of the State a special account within the State Highway and Transportation Department Fund to be designated as the Arkansas Four-Lane Highway Construction and Improvement Bond Account.

(b)(1) On the last day of each month, the Treasurer of State, after making the deductions required from the net special revenues as set out in § 19-5-203(b)(1), shall transfer the revenues

derived by the one-half cent (0.5¢) taxes levied under this amendment to the State Highway and Transportation Department Fund, the County Aid Fund and the Municipal Aid Fund in the percentages provided in the Arkansas Highway Revenue Distribution Law, § 27-70-201 and § 27-70-206.

(2) The proceeds of the excise taxes transferred to the State Highway and Transportation Department Fund shall be set aside and transferred to the Arkansas Four-Lane Highway Construction and Improvement Bond Account and used for the purposes provided for in this amendment.

(3) The tax revenues accruing from this amendment shall not be designated as special revenues for deposit to the Arkansas Department of Aeronautics Fund under § 27-115-110.

§ 6. [Highway revenues.]

The Arkansas Highway Revenue Distribution Law, which defines highway revenues, shall include taxes levied and collected by this amendment.

§ 7. Effective Date.

(a) The taxes levied by this amendment shall not become effective until after a majority of the qualified electors of the state voting on the question approve the issuance of Four-Lane Highway Construction and Improvement General Obligation Bonds to be repaid in part by the taxes levied by this amendment and deposited to the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund.

(b) If the tax levies and the issuance of the bonds are approved, the effective date of the temporary taxes levied by this amendment shall be July 1, 2013.

§ 8. Termination of tax.

(a) If bonds are issued under this amendment, the temporary taxes levied under this amendment shall be abolished when there are no bonds outstanding to which tax collections are pledged as provided in this amendment.

(b)(1) To provide for the accomplishment of the administrative duties of the chief fiscal officer and to protect the owners of the bonds, the tax shall be abolished on the first day of the calendar month after the expiration of thirty (30) days from the date a written statement identifying the tax and the bonds is signed by the chairman and by the trustee for the bondholders, if a trustee is serving in this capacity, and is filed with the chief fiscal officer.

(2) The written statement shall certify that:

(A) The trustee has or will have sufficient funds set aside to pay the principal of and interest on the bonds when due at maturity or at redemption prior to maturity, and the chairman certifies that the tax is not pledged to any other highway bonds; or

(B) There are no longer any bonds outstanding payable from tax collections.

(c) The Department of Finance and Administration shall continue to collect taxes levied under this section during the time the tax levies were in force but unpaid and remit the tax collections under the Arkansas Highway Revenue Distribution Law.

§ 9. [Administration and tax procedures.]

(a) The General Assembly shall provide for the proper administration and enforcement of this amendment by law.

(b) Unless the General Assembly provides another procedure by law, the provisions of the Arkansas Tax Procedure Act, § 26-18-101 et seq., shall apply to the taxes levied under this amendment and to the reporting, remitting, and enforcement of the tax.

§ 10. Procedure for issuing bonds.

Before any series of bonds may be issued:

(1)(A) The commission shall, in consultation with the chief fiscal officer, determine the estimated amount of designated tax revenues to be collected by the state in the remainder of the then current fiscal biennium.

(B) The estimated amount of designated tax revenues shall be reported to the commission and Governor;

(2) The commission shall present a report to the Governor that includes the:

(A) Highway construction and improvements to be financed with the proceeds of such series of bonds;

(B) Estimated cost of the four-lane highway construction and improvements;

(C) Amount of bonds necessary to finance such four-lane highway construction and improvements; and

(D) Estimated amount of debt service required to pay the bonds;

(3) Upon receipt of the report required under subdivision (2) of this section, the Governor shall, if he and the Commission determine that the estimated designated tax revenues and any other revenues appropriated by the General Assembly for repayment of bonds will be sufficient to pay the debt service on the series of bonds, by proclamation authorize the commission to proceed with the issuance of such series of bonds.

(4)(A) After the Governor has issued his or her proclamation with respect to one (1) or more series of bonds, the commission shall adopt a resolution authorizing the issuance of the bonds.

(B) Each such resolution shall contain the terms, covenants, and conditions as are desirable and consistent with this amendment, including without limitation the:

(i) Establishment and maintenance of funds and accounts;

(ii) Deposit and investment of tax collections and of bond proceeds; and

(iii) Rights and obligations of the state, its officers and officials, the commission, and the registered owners of the bonds.

(C)(i) Each such resolution of the commission may provide for the execution and delivery by the commission of a trust indenture or trust indentures, with one (1) or more banks or trust companies located within or outside the state, containing any of the terms, covenants, and conditions provided for in this section and other terms and conditions deemed necessary by the commission.

(ii) The trust indenture or trust indentures shall be binding upon the commission, the state, and their respective officers and officials.

§ 11. Terms of bonds.

(a)(1) The bonds shall be issued in series as provided for in this section in amounts sufficient to finance all or part of the costs of four-lane highway construction and improvements provided under Section 10 of this amendment.

(2) Each series shall be designated by the year in which the series was issued, and if more than one (1) series is issued in a particular year then by alphabetical designation.

(b) The bonds of each series shall have the date or dates the commission determines and shall mature, or be subject to mandatory sinking fund redemption, over a period ending not later than ten (10) years after the date of implementation of the temporary sales and use tax.

(c)(1) The bonds of each series shall bear interest at the rate or rates determined by the commission at the sale of the bonds.

(2)(A) The bonds may bear interest at either a fixed or a variable rate.

(B) The interest may be taxable or tax-exempt or may be convertible from one (1) interest rate mode to another.

(C) The interest shall be payable at a time determined by the commission.

(d) The bonds:

(1) Shall be issued in the form of bonds registered as to both principal and interest without coupons;

(2) May be in such denominations;

(3) May be made exchangeable for bonds of another form or denomination, bearing the same rate of interest;

(4) May be made payable at places within or outside the state;

(5) May be made subject to redemption prior to maturity in such manner and for such redemption prices; and

(6) May contain other terms and conditions established by the commission.

(e)(1) Each bond shall be executed with the facsimile signatures of the Governor, the chairman, and the Treasurer of the State, and shall have affixed or imprinted on the bond the seal of the State of Arkansas.

(2) Delivery of the executed bonds shall be valid, notwithstanding any change in persons holding the offices occurring after the bonds have been executed.

§ 12. Sale of bonds.

(a)(1) The bonds may be sold at a private sale or public sale and at terms as the commission determines to be reasonable and expedient.

(2) The bonds may be sold at a price acceptable to the commission, and the price may include a discount or a premium.

(b)(1) If the bonds are sold at a public sale, the commission shall provide notice of the offering of the bonds in a manner reasonably designed to notify the public finance industry that the offering is being made.

(2) The commission shall set the terms and conditions of bidding, including the basis on which the winning bid will be selected.

(c)(1) The commission may structure the sale of bonds utilizing financing techniques that are recommended by its professional advisors to take advantage of market conditions and obtain the most favorable interest rates consistent with the purposes of this amendment.

(2) The commission may enter into ancillary agreements in connection with the sale of the bonds as necessary and advisable, including without limitation bond purchase agreements, remarketing agreements, letter of credit and reimbursement agreements, and bond insurance agreements.

§ 13. Employment of professionals.

The commission may retain professionals it determines are necessary to issue and sell the bonds, including without limitation legal counsel, financial advisors, underwriters, trustees, paying agents, and remarketing agents.

§ 14. Investment of proceeds.

Prior to expenditure of the proceeds from the issuance of the bonds, the proceeds from the issuance of the bonds shall be held, maintained, and invested by the trustee as provided in a resolution of the commission or as provided in a trust indenture securing the bonds.

§ 15. General obligation.

(a)(1) The bonds issued under this amendment shall be direct general obligations of the State of Arkansas for the payment of the debt service on which the full faith and credit of the State of Arkansas is irrevocably pledged as long as the bonds are outstanding.

(2) The bonds shall be payable from:

(A) The Arkansas Four-Lane Highway Construction and Improvement Bond Account; and

(B) General revenues of the state as that term is defined in the Revenue Stabilization Law, § 19-5-101 et seq.

(3) As necessary, the amount of general revenues is pledged to the payment of debt service on the bonds and shall be and remain pledged for these purposes.

(b)(1) This amendment shall constitute a contract between the State of Arkansas and the registered owners of all bonds issued under this amendment which shall never be impaired, and

any violation of its terms, whether under purported legislative authority or otherwise, may be enjoined by the Circuit Court of Pulaski County upon the complaint of a bond owner or a taxpayer.

(2) The court shall, in any suit against the commission, the Treasurer of State, or other officer or official of the state prevent a diversion of any funds pledged under this amendment and shall compel the restoration of diverted funds, by injunction or mandamus.

(3) Without limitation as to any other appropriate remedy at law or in equity, a bond owner may, by an appropriate action, including without limitation injunction or mandamus, compel the performance of all covenants and obligations of the state, its officers, and officials.

(c) This amendment shall not create a right of any character with respect to the bonds, and a right of any character with respect to the bonds shall not arise under the amendment, unless the first series of bonds authorized by this amendment has been sold and delivered.

§ 16. Sources of repayment.

(a) Without in any way limiting the general obligation of the state to repay the bonds, the designated tax revenues are pledged to the payment of the debt service on the bonds.

(b)(1) The Treasurer of State shall establish in the State Highway and Transportation Department a special account known as the Arkansas Four-Lane Highway Construction and Improvement Bond Account.

(2) The Treasurer of State shall deposit in the Arkansas Four-Lane Highway Construction and Improvement Bond Account all designated tax revenues.

(3) The commission may pledge to the repayment of the bonds the full faith and credit of the state and may grant a lien upon the funds on deposit in the Arkansas Four-Lane Highway Construction and Improvement Bond Account.

(c)(1) On or before commencement of each fiscal year, the commission in consultation with the chief fiscal officer shall determine the estimated amount required for payment of debt service due on each series of bonds issued and outstanding under this amendment during the fiscal year and shall certify the estimated amount to the Treasurer of State.

(2) The Treasurer of State shall then make transfers from the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund to the trustees of each series of bonds, in such amounts and at such times as shall be specified in the indentures, to:

(A) Pay the maturing debt service on each series of bonds issued and outstanding under this amendment; and

(B) Establish and maintain with the trustee for each series of bonds a reserve or reserves for payment of debt service on each series of bonds.

(d) The obligation to make transfers from the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund for the payment of debt service on, and, if applicable, a reserve for, each series of bonds is a first charge against amounts on deposit.

(e) Funds on deposit in the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund that are in excess of the obligations set forth in (d) above may be used to:

(1) Redeem bonds prior to maturity in the manner and in accordance with the provisions pertaining to redemption prior to maturity as set forth in the trust indentures authorizing or securing each series of bonds; or

(2) Fund additional four-lane highway construction and improvements in the manner and in accordance with the provisions set forth in the trust indentures authorizing or securing each series of bonds.

(f) If there are insufficient amounts in the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund to pay the debt service on bonds issued and outstanding under this amendment or to fund any necessary

reserves at the required level, the State Treasurer shall transfer additional amounts to the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund from the general revenues of the State.

§ 17. Investment of revenues.

(a) Moneys held in the Arkansas Four-Lane Highway Construction and Improvement Bond Account in the State Highway and Transportation Department Fund and any fund in the State Treasury created under this amendment shall be invested by the State Board of Finance to the full extent practicable pending disbursement for the purposes intended.

(b) Notwithstanding any other provision of law, the investments and disbursements shall be in accordance with the terms of the resolution or trust indenture authorizing or securing the series of bonds to which the fund appertains to the extent the terms of the resolution or trust indenture are applicable.

§ 18. Refunding bonds.

(a) The commission may issue bonds for the purpose of refunding bonds previously issued under this amendment if the total amount of bonds outstanding after the refunding is completed does not exceed the total amount authorized by this amendment, and the final maturity of such refunding bonds shall not exceed ten (10) years from the date of implementation of the tax.

(b) The refunding bonds shall be general obligations of the State of Arkansas and shall be secured and sold in accordance with the provisions of this amendment.

§ 19. Tax Exemption.

(a)(1) All bonds issued under this amendment and interest on the bonds shall be exempt from all taxes of the State of Arkansas, including income, inheritance, and property taxes.

(2) Profits from the sale of the bonds shall also be exempt from income taxes.

(b) The bonds shall be eligible to secure deposits of all public funds and shall be legal for investment of municipal, county, bank, fiduciary, insurance company, and trust funds.

§ 20. State Aid Street Fund.

(a) Upon the adoption of this amendment, the Department of Finance and Administration shall:

(1) Deposit a total of one cent (1¢) per gallon from revenues distributed under the Arkansas Highway Revenue Distribution Law from the proceeds derived from existing motor fuel taxes and distillate fuel taxes; and

(2) Permanently dedicate the revenues to the State Aid Street Fund created under § 27-72-407.

(b) The State Aid Street Funds shall aid city streets under the law.

§ 21. Powers of the commission.

(a) All powers granted to the commission under this amendment shall be in addition to the powers as already exist under Amendment 42 to the Arkansas Constitution and the laws of the State of Arkansas.

(b) A member of the commission or other state official shall not be liable personally for any reason arising from the issuance of bonds under this amendment unless the person acts with corrupt intent.

§ 22. Form of submission to the electors.

The proposition set forth shall be submitted for approval or rejection by the electors in substantially the following form:

“A TEMPORARY ONE-HALF PERCENT (0.5%) SALES AND USE TAX FOR STATE HIGHWAYS AND BRIDGES, COUNTY ROADS, BRIDGES AND OTHER SURFACE TRANSPORTATION, AND CITY STREETS, BRIDGES AND OTHER SURFACE TRANSPORTATION, WITH THE STATE’S PORTION TO SECURE STATE OF ARKANSAS GENERAL OBLIGATION FOUR-LANE HIGHWAY CONSTRUCTION AND IMPROVEMENT BONDS AND PERMANENTLY DEDICATING ONE CENT (1¢) PER GALLON OF THE PROCEEDS DERIVED FROM THE EXISTING MOTOR FUEL AND DISTILLATE FUEL TAXES TO THE STATE AID STREET FUND”

On each ballot there shall be printed the following:

“FOR a proposed constitutional amendment to levy a temporary sales and use tax of one-half percent (0.5%) for state highways and bridges, county roads, bridges and other surface transportation, and city streets, bridges and other surface transportation, with the state’s portion to secure State of Arkansas General Obligation Four-Lane Highway Construction and Improvement Bonds in the total principal amount not to exceed \$1,300,000,000 for the purpose of constructing and improving four-lane highways in the State of Arkansas, prescribing the terms and conditions for the issuance of such bonds which will mature and be paid in full in approximately ten (10) years, which payment in full shall terminate the temporary sales and use tax, describing the sources of repayment of the bonds and permanently dedicating one cent (1¢) per gallon of the proceeds derived from the existing motor fuel and distillate fuel taxes to the State Aid Street Fund.”

“AGAINST a proposed constitutional amendment to levy a temporary sales and use tax of one-half percent (0.5%) for state highways and bridges, county roads, bridges and other surface transportation, and city streets, bridges and other surface transportation, with the state’s portion to secure State of Arkansas General Obligation Four-Lane Highway Construction and Improvement Bonds in the total principal amount not to exceed \$1,300,000,000 for the purpose of constructing and improving four-lane highways in the State of Arkansas, prescribing the terms and conditions for the issuance of such bonds which will mature and be paid in full in approximately ten (10) years, which payment in full shall terminate the temporary sales and use tax, describing the sources of repayment of the bonds and permanently dedicating one cent (1¢) per gallon of the proceeds derived from the existing motor fuel and distillate fuel taxes to the State Aid Street Fund.”

AMEND. 92. [REVIEW AND APPROVAL OF ADMINISTRATIVE RULES] (CONST., ART. 5, § 42, ADDED).

Publisher’s Notes. This amendment added Ark. Const., Art. 5, § 42. The amendment was proposed by S.J.R. 7 during the 2013 Regular Session and adopted at the 2014 general election by a vote of 469,431 for and 325,396

against. The amendment was effective thirty days after the election pursuant to § 7-9-119.

The bracketed heading was added by the Publisher.

AMEND. 93. [AMENDMENT OF INITIATIVE AND REFERENDUM PETITIONS] (CONST., ART. 5, § 1, AMENDED).

Publisher’s Notes. This amendment amended Ark. Const., Art. 5, § 1, and is incorporated within that section. The amendment was proposed by S.J.R. 16 during the 2013 Regular Session and adopted at the 2014 general election by a vote of 425,709 for and 372,784 against. The amend-

ment was effective thirty days after the election pursuant to § 7-9-119.

The bracketed heading was added by the Publisher.

AMEND. 94. THE ARKANSAS ELECTED OFFICIALS ETHICS, TRANSPARENCY, AND FINANCIAL REFORM AMENDMENT OF 2014 (CONST., ART. 19, §§ 28-31, ADDED; CONST., ART. 5, §§ 29, 30, CONST., ART. 16, §§ 4, 12, CONST. AMEND. 70, § 1, CONST. AMEND. 73, § 2, CONST. AMEND. 80, § 16(E), AMENDED; CONST., ART. 5, § 16, CONST., ART. 19, § 11, CONST. AMEND. 6, § 6, CONST. AMEND. 9, § 2, CONST. AMENDS. 15, 43, CONST. AMEND. 70, § 3, REPEALED).

Publisher's Notes. This amendment added Ark. Const., Art. 19, §§ 28, 29, 30, and 31; amended Art. 5, §§ 29, 30, Art. 16, §§ 4, 12, Amend. 70, § 1, Amend. 73, § 2, and Amend. 80, § 16(E); and repealed Art. 5, § 16, Art. 19, § 11, Amend. 6, § 6, Amend. 9, § 2, Amend. 15, Amend. 43, and Amend. 70, § 3. The amendments are incorporated within those sections. Amendment 94 was proposed by H.J.R. 1009 during the 2013 Regular Session and adopted

at the 2014 general election by a vote of 428,206 for and 388,459 against.

Amend. 94, § 1, provided: "This amendment shall be known and may be cited as 'The Arkansas Elected Officials Ethics, Transparency, and Financial Reform Amendment of 2014'."

Effective Dates.

Ark. Const. Amend. 94, § 18: Nov. 5, 2014.

AMEND. 95. [TERMS, ELECTION, AND ELIGIBILITY OF ELECTED OFFICIALS] (CONST., ART. 3, § 13 AND ART. 7, § 53, ADDED; CONST., ART. 5, § 9, ART. 7, §§ 19, 29, 46, AND AMEND. 41, AMENDED).

Publisher's Notes. This amendment, effective January 1, 2017, added Ark. Const., Art. 3, § 13 and Art. 7, § 53; and amended Art. 5, § 9, Art. 7, §§ 19, 29, 46, and Amend. 41. The amendments are incorporated within those sections. Amendment 95 was proposed by H.J.R. 1027 during the 2015 Regular Session and adopted at the 2016 general election by a vote of 747,856 for and 317,093 against.

Amend. 95, § 8, provided: "EFFECTIVE DATE.

"(a) This amendment shall be effective on and after January 1, 2017.

"(b) Persons elected to the following offices at the 2016 general election shall serve terms of two (2) years:

- "(1) County judge;
- "(2) Sheriff;
- "(3) Circuit clerk;
- "(4) County clerk;
- "(5) Assessor;

"(6) Coroner;

"(7) Treasurer;

"(8) County surveyor; and

"(9) Collector of taxes.

"(c) Persons elected to the following offices at the 2018 general election shall serve terms of four (4) years:

"(1) County judge;

"(2) Sheriff;

"(3) Circuit clerk;

"(4) County clerk;

"(5) Assessor;

"(6) Coroner;

"(7) Treasurer;

"(8) County surveyor; and

"(9) Collector of taxes."

The bracketed heading was added by the Publisher.

AMEND. 96. [GOVERNOR'S RETENTION OF POWERS AND DUTIES WHEN ABSENT FROM THE STATE] (CONST. AMEND. 6, § 4, AMENDED).

Publisher's Notes. This amendment amended Ark. Const. Amend. 6, § 4, and is incorporated within that section. The amendment was proposed by S.J.R. 3 during the 2015 Regular Session and adopted at the 2016 general

election by a vote of 777,973 for and 296,291 against. The amendment was effective December 8, 2016.

The bracketed heading was added by the Publisher.

AMEND. 97. [JOB CREATION, JOB EXPANSION, AND ECONOMIC DEVELOPMENT] (CONST., ART. 12, § 5, AMEND. 62, §§ 1(B), 2, 5, 9, AND AMEND. 82, AMENDED; CONST. AMEND. 62, § 3, REPEALED).

Publisher's Notes. This amendment amended Ark. Const., Art. 12, § 5, Amend. 62, §§ 1(b), 2, 5, 9, and Amend. 82, and repealed Amend. 62, § 3. The amendments are incorporated within those sections. Amendment 97 was proposed by S.J.R. 16 during the 2015 Regular Session and adopted at the 2016 general election by a vote of 689,980 for and 366,020 against. The amendment was effective December 8, 2016.

Amend. 97, § 1, provided: "INTENT. The intent of this amendment to the Arkansas Constitution is to encourage job creation, job expansion, and economic development."

Amend. 97, § 9, provided: "SEVERABILITY. The provisions of this amendment are severable, and if any should be held invalid, the remainder shall stand."

The bracketed heading was added by the Publisher.

AMEND. 98. ARKANSAS MEDICAL MARIJUANA AMENDMENT OF 2016

Publisher's Notes. Ark. Const. Amend. 98, effective November 9, 2016, was proposed by initiative petition and adopted at the 2016 general election by a vote of 585,030 for and 516,525 against.

Amend. 98, § 1 added §§ 1—23 set out below.

Effective Dates.

Ark. Const. Amend. 98, § 2: effective Nov. 9, 2016.

Acts 2017, No. 4, § 8, provided: “RETROACTIVITY. This act is retroactive to the effective date of the Arkansas Medical Marijuana Amendment of 2016 [Nov. 9, 2016].”

Acts 2017, No. 4, § 9: Jan. 23, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the dates set for rulemaking within the Arkansas Medical Marijuana Amendment of 2016 are impractical to encompass the magnitude of the medical marijuana program; that the Department of Health, the Alcoholic Beverage Control Division of the Department of Finance and Administration, and the Medical Marijuana Commission need additional time to properly establish a medical marijuana program to fulfill the policies and purposes of the Arkansas Medical Marijuana Amendment of 2016; and that this act is immediately necessary because the citizens of Arkansas need certainty about the law and rules creating the medical marijuana program before fully investing time, funds, personnel, and other resources into the development of dispensaries and cultivation facilities and because public participation in and transparency of the rulemaking process must be ensured. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2017, No. 1098, § 3: July 1, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that the Medical Marijuana Commission will begin accepting applications for the licensing of cultivation facilities and dispensaries on July 1, 2017, which will begin the implementation of the use of medical marijuana in the state; that additional funding is needed to ensure that the implementation of the Arkansas Medical Marijuana Amendment of 2016 is revenue neutral; and that this act is necessary because it is in the best interests of the state to increase Arkansas’s ability to impose a special privilege tax on cultivation facilities and dispensaries to relieve the burden on the state of implementing the Arkansas Medical Marijuana Amendment of 2016. Therefore, an emergency is declared to exist, and this act being necessary for the preservation of the public peace, health, and safety shall become effective on July 1, 2017.”

Acts 2017, No. 1099, § 2: Apr. 7, 2017. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that public schools need additional guidance and clarity concerning the effect of Arkansas Constitution, Amendment 98, also known as the ‘Arkansas Medical Marijuana Amendment of 2016’; that the Arkansas Medical Marijuana Amendment of 2016 became effective on and after November 9, 2016; and that this act is immediately necessary because the public schools of the State of Arkansas need certainty about the law and rules concerning the use of medical marijuana by public school students. Therefore, an emergency is de-

clared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Identical Acts 2017 (1st Ex. Sess.), Nos. 1 and 8, § 8: July 31, 2017. Emergency clause, provided: “It is found and determined by the General Assembly of the State of Arkansas that twenty-three (23) separate acts of the regular session of the Ninety-First General Assembly amended the Arkansas Constitution, Amendment 98, also known as the ‘Arkansas Medical Marijuana Amendment of 2016’; that this act is intended to avoid difficulties in interpreting, utilizing, and citing Arkansas Constitution, Amendment 98, in the wake of passage of Acts 2017, Nos. 4, 438, 479, 593, 639, 641, 670, 740, 948, 1023, 1024, 1098, and 1100; that this act enacts certain provisions of Acts 2017, Nos. 4, 438, 479, 593, 639, 641, 670, 740, 948, 1023, 1024, 1098, and 1100, in a format that integrates and incorporates the provisions of the thirteen (13) acts by restating certain provisions of the thirteen (13) acts in a coherent, cohesive, and comprehensive manner; and that to avoid confusion in the law, this act should become effective on the same date as the majority of the thirteen (13) acts. Therefore, an emergency is declared to exist, and this act being necessary for the preservation of the public peace, health, and safety shall become effective on July 31, 2017.”

Acts 2019, No. 694, § 8: Apr. 4, 2019. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that under current law the Arkansas Code Revision Commission does not have the authority to correct conflicts occurring when multiple acts amend the same provision of the Arkansas Constitution as expressly permitted by the Arkansas Constitution; that this inability to resolve conflicts makes the law unclear and impossible to publish for review and study by the citizens of the state; and that this act should become effective at the earliest opportunity so that it may be applied to acts enacted by the Ninety-Second General Assembly. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

Acts 2019, No. 1004, § 2: Apr. 15, 2019. Emergency clause provided: “It is found and determined by the General Assembly of the State of Arkansas that it is necessary to protect the individuals with developmental disabilities; that the current restriction on the location of a medical marijuana dispensary is in place for schools, churches, and daycare centers; and that this act is immediately necessary because the State of Arkansas needs to ensure the protection of the vulnerable citizens of the State of Arkansas. Therefore, an emergency is declared to exist, and this act being immediately necessary for the preservation of the public peace, health, and safety shall become effective on: (1) The date of its approval by the Governor; (2) If the bill is neither approved nor vetoed by the Governor, the expiration of the period of time during which the Governor may veto the bill; or (3) If the bill is vetoed by the Governor and the veto is overridden, the date the last house overrides the veto.”

§ 1. Short title.

This amendment shall be known and cited as the “Arkansas Medical Marijuana Amendment of 2016”.

§ 2. Definitions.

As used in this amendment:

(1) “Acquire” or “acquisition” means coming to possess marijuana by means of any legal source herein authorized, not from an unauthorized source, and in accordance with this amendment and any rules promulgated under this amendment;

(2) “Assist” or “assisting” means helping a qualifying patient make medical use of marijuana by enabling the medical use by any means authorized under this amendment;

(3) “Cardholder” means a qualifying patient, a dispensary agent, a cultivation facility agent, or a designated caregiver;

(4) “Cultivation facility” means an entity that:

(A) Has been licensed by the Medical Marijuana Commission under § 8 of this amendment; and

(B) Cultivates, prepares, manufactures, processes, packages, sells to and delivers usable marijuana to a dispensary;

(5) “Cultivation facility agent” means an employee, supervisor, or agent of a cultivation facility who:

(A) Is twenty-one (21) years of age or older;

(B) Works at the cultivation facility; and

(C) Has registered with the Alcoholic Beverage Control Division under § 9 of this amendment;

(6)(A) “Designated caregiver” means a person who is at least twenty-one (21) years of age, has not been convicted of an excluded felony offense, has agreed to assist a physically disabled qualifying patient with the medical use of marijuana, and who has registered with the Department of Health under § 5 of this amendment.

(B) “Designated caregiver” includes without limitation a parent:

(i) Of a qualifying patient who is under the age of eighteen (18); and

(ii) Required to register as a designated caregiver under this amendment.

(C) “Designated caregiver” shall not include a member of the Arkansas National Guard or the United States military;

(7) “Dispensary” means an entity that has been licensed by the Medical Marijuana Commission under § 8 of this amendment;

(8) “Dispensary agent” means:

(A) An employee, supervisor, volunteer, or agent of a dispensary who:

(i) Is twenty-one (21) years of age or older;

(ii) Works at the dispensary; and

(iii) Has registered with the division under § 9 of this amendment; and

(B) An owner, officer, or board member of a dispensary who has registered with the division under § 8 of this amendment;

(9) “Enclosed, locked facility” means a room, greenhouse, or other enclosed area equipped with locks or other security devices that permit access only by an authorized individual;

(10) “Excluded felony offense” means:

(A)(i)(a) A felony offense as determined by the jurisdiction where the felony offense occurred.

(b) The Medical Marijuana Commission, the Department of Health, or the Alcoholic Beverage Control Division shall determine whether an offense is a felony offense based upon a review of the relevant court records concerning the conviction for the offense.

(ii) An offense that has been sealed by a court or for which a pardon has been granted is not considered an excluded felony offense; or

(B) A violation of a state or federal controlled-substance law that was classified as a felony in the jurisdiction where the person was convicted, but not including:

(i) An offense for which the sentence, including any term of probation, incarceration, or supervised release, was completed ten (10) or more years earlier; or

(ii) An offense that has been sealed by a court or for which a pardon has been granted;

(11) “Medical use” means the acquisition, possession, use, delivery, transfer, or transportation of marijuana or paraphernalia relating to the administration of marijuana to treat or alleviate a qualifying patient’s qualifying medical condition or symptoms associated with the qualifying patient’s qualifying medical condition;

(12) “Physician” means a doctor of medicine or doctor of osteopathic medicine who holds a valid, unrestricted, and existing license to practice in the state of Arkansas and has been issued a registration from the United States Drug Enforcement Administration to prescribe controlled substances;

(13) “Qualifying medical condition” means one (1) or more of the following:

(A) Cancer, glaucoma, positive status for human immunodeficiency virus/acquired immune deficiency syndrome, hepatitis C, amyotrophic lateral sclerosis, Tourette’s syndrome, Crohn’s disease, ulcerative colitis, post-traumatic stress disorder, severe arthritis, fibromyalgia, Alzheimer’s disease, or the treatment of these conditions;

(B) A chronic or debilitating disease or medical condition or its treatment that produces one (1) or more of the following: cachexia or wasting syndrome; peripheral neuropathy; intractable pain, which is pain that has not responded to ordinary medications, treatment, or surgical measures for more than six (6) months; severe nausea; seizures, including without limitation those characteristic of epilepsy; or severe and persistent muscle spasms, including without limitation those characteristic of multiple sclerosis; and

(C) Any other medical condition or its treatment approved by the Department of Health under § 4 of this amendment;

(14)(A) “Qualifying patient” means a person who has been diagnosed by a physician as having a qualifying medical condition and who has registered with the department under § 5 of this amendment.

(B) “Qualifying patient” shall not include a member of the Arkansas National Guard or the United States military;

(15) “Registry identification card” means a document issued by the department or the division that identifies a person as a qualifying patient, a dispensary agent, a cultivation facility agent, or a designated caregiver;

(16) “Sealed” means to expunge, remove, sequester, and treat as confidential the record or records of a felony offense;

(17)(A) “Usable marijuana” means the stalks, seeds, roots, dried leaves, flowers, oils, vapors, waxes, and other portions of the marijuana plant and any mixture or preparation thereof.

(B) “Usable marijuana” does not include the weight of any ingredients other than marijuana that are combined with marijuana and prepared for consumption as food or drink;

(18) “Visiting qualifying patient” means a patient with a qualifying medical condition who is not a resident of Arkansas or who has been a resident of Arkansas for less than thirty (30) days and who is in actual possession of a registry identification card or its equivalent that is issued under the laws of another state, district, territory, commonwealth, or insular possession of the United States and pertains to a qualifying medical condition under this section;

(19)(A) “Written certification” means a document signed by a physician stating that in the physician’s professional opinion, after having completed an assessment of the qualifying patient’s medical history and current medical condition made in the course of a physician-patient relationship, the qualifying patient has a qualifying medical condition.

(B) A written certification shall specify the qualifying patient’s qualifying medical condition, which also shall be noted in the physician’s records.

(C) A physician shall not issue a written certificate to a patient based on an assessment performed through telemedicine.

(D) A written certification is not a medical prescription;

(20)(A) “Current use of marijuana” means use of marijuana that justifies the good faith belief of an employer that an applicant or employee is engaging in the use of marijuana.

(B) “Current use of marijuana” is presumed when a positive test result for marijuana occurs;

(21) “Employee” means an individual employed by an employer, but does not include:

(A) An individual employed by his or her parents, spouse, or child;

(B) An individual participating in a specialized employment training program conducted by a nonprofit sheltered workshop or rehabilitation facility;

(C) An individual employed outside the State of Arkansas; or

(D) An independent contractor;

(22) “Employer” means an entity that employs nine (9) or more employees in the State of Arkansas in twenty (20) or more calendar weeks in the current or preceding calendar year;

(23)(A) “Good faith belief” means reasonable reliance on a fact, or that which is held out to be factual, without intent to deceive or be deceived and without reckless or malicious disregard for the truth.

(B) “Good faith belief” does not include a belief formed with gross negligence.

(C) “Good faith belief” may be based on any of the following:

(i) Observed conduct, behavior, or appearance;

(ii) Information reported by a person believed to be reliable, including without limitation a report by a person who witnessed the use or possession of marijuana or marijuana paraphernalia by an applicant or employee in the workplace;

(iii) Written, electronic, or verbal statements from the employee or other persons;

(iv) Lawful video surveillance;

(v) A record of government agencies, law enforcement agencies, or courts;

(vi) A positive test result for marijuana;

(vii) A warning label, usage standard, or other printed material that accompany instructions for usable marijuana;

(viii) Information from a physician, medical review officer, or a dispensary;

(ix) Information from reputable reference sources in print or on the internet;

(x) Other information reasonably believed to be reliable or accurate; or

(xi) Any combination of the items listed in subdivisions (23)(C)(i)-(x) of this section;

(24) “Positive test result for marijuana” means a result that is at or above the cutoff concentration level established by the United States Department of Transportation or the Arkansas laws regarding being under the influence, whichever is lower;

(25)(A) “Safety sensitive position” means any position involving a safety sensitive function pursuant to federal regulations governing drug and alcohol testing adopted by the United States Department of Transportation or any other rules, guidelines, or regulations adopted by any other federal or state agency.

(B) “Safety sensitive position” also means any position designated in writing by an employer as a safety sensitive position in which a person performing the position while under the influence of marijuana may constitute a threat to health or safety, including without limitation a position:

(i) That requires any of the following activities:

(a) Carrying a firearm;

(b) Performing life-threatening procedures;

(c) Working with confidential information or documents pertaining to criminal investigations; or

(d) Working with hazardous or flammable materials, controlled substances, food, or medicine; or

(ii) In which a lapse of attention could result in injury, illness, or death, including without limitation a position that includes the operating, repairing, maintaining, or monitoring of

heavy equipment, machinery, aircraft, motorized watercraft, or motor vehicles as part of the job duties; and

(26)(A) “Under the influence” means symptoms of the current use of marijuana that may negatively impact the performance of the job duties or tasks or constitute a threat to health or safety.

(B) “Under the influence” includes without limitation:

(i) Symptoms of the applicant’s or employee’s speech, walking, standing, physical dexterity, agility, coordination, actions, movement, demeanor, appearance, clothing, odor, or other irrational or unusual behavior that are inconsistent with the usual conduct of the applicant or employee;

(ii) Negligence or carelessness in operating equipment, machinery, or production or manufacturing processes;

(iii) Disregard for safety;

(iv) Involvement in an accident that results in:

(a) Damage to equipment, machinery, or property;

(b) Disruption of a production or manufacturing process; or

(c) An injury; or

(v) Other symptoms causing a reasonable suspicion that the current use of marijuana may negatively impact the performance of the job duties or tasks or constitute a threat to health or safety. [As amended by Acts 2017, No. 5, § 1; 2017, No. 438, § 1; 2017, No. 479, §§ 1, 2; 2017, No. 544, § 1; 2017, No. 593, §§ 1, 2; 2017 (1st Ex. Sess.), No. 1, § 2; 2017 (1st Ex. Sess.), No. 8, § 2.]

Publisher’s Notes. Acts 2017, No. 438, § 1, and Acts 2017, No. 593, § 1, specifically amended this section as amended by Acts 2017, No. 5.

§ 3. Protections for the medical use of marijuana.

(a) A qualifying patient or designated caregiver in actual possession of a registry identification card shall not be subject to arrest, prosecution, or penalty in any manner or denied any right or privilege, including without limitation a civil penalty or disciplinary action by a business, occupational, or professional licensing board or bureau, for the medical use of marijuana in accordance with this amendment if the qualifying patient or designated caregiver possesses not more than two and one-half ounces (2 ½ oz.) of usable marijuana.

(b)(1) A qualifying patient or designated caregiver is presumed to be lawfully engaged in the medical use of marijuana in accordance with this amendment if the qualifying patient or designated caregiver is in actual possession of a registry identification card and possesses an amount of usable marijuana that does not exceed the amount allowed under this amendment.

(2) The presumption made in subdivision (b)(1) of this section may be rebutted by evidence that conduct related to marijuana was not for the purpose of treating or alleviating the qualifying patient’s qualifying medical condition or symptoms associated with the qualifying medical condition in accordance with this amendment.

(c) A qualifying patient or designated caregiver shall not be subject to arrest, prosecution, or penalty in any manner or denied any right or privilege, including without limitation a civil penalty or disciplinary action by a business, occupational, or professional licensing board or bureau, for giving, or offering to give, up to two and one-half ounces (2 ½ oz.) of usable marijuana to a qualifying patient or designated caregiver for the qualifying patient’s medical use when nothing of value is transferred in return.

(d) A designated caregiver is not prohibited from receiving compensation or reimbursement of expenses from a qualifying patient for assisting a qualifying patient with the medical use of marijuana.

(e) A dispensary may:

(1) Accept marijuana seedlings, plants, or usable marijuana from:

(A) Cultivation facilities;

- (B) Other dispensaries in Arkansas; and
- (C) If permissible under federal law, out-of-state dispensaries;
- (2) Transfer or sell marijuana seedlings, plants, or usable marijuana to:
 - (A) Cultivation facilities;
 - (B) Other dispensaries in Arkansas; and
 - (C) If permissible under federal law, out-of-state dispensaries; and
- (3) Accept marijuana seeds from any individual lawfully entitled to possess marijuana seeds, seedlings, or plants under the laws of the state in which the individual resides.

(f)(1) A school or landlord shall not refuse to enroll, refuse to lease to, or otherwise penalize an individual solely for his or her status as a qualifying patient or designated caregiver unless doing so would put the school or landlord in violation of federal law or regulations.

(2) For the purposes of medical care, including without limitation organ transplants, a qualifying patient's authorized use of marijuana in accordance with this amendment is considered the equivalent of the authorized use of any other medication used at the direction of a physician and does not constitute the use of an illicit substance.

(3)(A) An employer shall not discriminate against an applicant or employee in hiring, termination, or any term or condition of employment, or otherwise penalize an applicant or employee, based upon the applicant's or employee's past or present status as a qualifying patient or designated caregiver.

(B) A cause of action shall not be established against an employer based upon, and an employer is not prohibited from, any of the following actions:

(i) Establishing and implementing a substance abuse or drug-free workplace policy that may include a drug testing program that complies with state or federal law and taking action with respect to an applicant or employee under the policy;

(ii) Acting on the employer's good faith belief that a qualifying patient:

(a) Possessed, smoked, ingested, or otherwise engaged in the use of marijuana while on the premises of the employer or during the hours of employment; or

(b) Was under the influence of marijuana while on the premises of the employer or during the hours of employment, provided that a positive test result for marijuana cannot provide the sole basis for the employer's good faith belief; or

(iii) Acting to exclude a qualifying patient from being employed in or performing a safety sensitive position based on the employer's good faith belief that the qualifying patient was engaged in the current use of marijuana.

(C) The authorized or protected actions of an employer under this subdivision (f)(3) include without limitation:

(i) Implementing, monitoring, or taking measures to assess, supervise, or control the job performance of an employee;

(ii) Reassigning an employee to a different position or job duties;

(iii) Placing an employee on paid or unpaid leave;

(iv) Suspending or terminating an employee;

(v) Requiring an employee to successfully complete a substance abuse program before returning to work;

(vi) Refusing to hire an applicant; or

(vii) Any combination of the actions listed in subdivisions (f)(3)(C)(i) — (f)(3)(C)(vi) of this section.

(D)(i) Damages established for an employment discrimination claim based on an applicant's or employee's past or present status as a qualifying patient or designated caregiver in violation of this amendment shall be limited to the damages available for an employment discrimination claim under § 16-123-107(c) of the Arkansas Civil Rights Act of 1993, § 16-123-101 et seq., including the statutory limits provided under § 16-123-107(c)(2)(A)(i)-(v).

(ii) Liability for back pay shall not accrue from a date more than two (2) years prior to the filing of an action.

(iii) Damages under this subdivision (f)(3) shall not duplicate or increase an award for

damages over the statutory limit allowed by state law or federal law existing on January 1, 2017, whichever is lower.

(E) An action based on employment discrimination in violation of this subdivision (f)(3) shall be brought within one (1) year of the occurrence of the alleged discrimination.

(F) An individual employee, agent of the employer, or employee of the agent of the employer is not liable for any violation of this subdivision (f)(3) that the employer is found to have committed.

(G) This amendment does not waive the sovereign immunity of the State of Arkansas.

(g) A person otherwise entitled to custody of, or visitation or parenting time with, a minor shall not be denied custody, visitation, or parenting time solely for conduct allowed under this amendment, nor shall there be:

(1) A finding of abuse solely for conduct allowed under this amendment; or

(2) A presumption of neglect or child endangerment for conduct allowed under this amendment.

(h)(1) A physician shall not be subject to arrest, prosecution, or penalty in any manner or denied any right or privilege, including without limitation a civil penalty or disciplinary action by the Arkansas State Medical Board or by any other business, occupational, or professional licensing board or bureau, solely for providing a written certification.

(2) Subdivision (g)(1) of this section does not prevent a professional licensing board from sanctioning a physician for failing to properly evaluate a patient's medical condition or for otherwise violating the applicable physician-patient standard of care.

(i) A person shall not be subject to arrest, prosecution, or penalty in any manner or denied any right or privilege, including without limitation a civil penalty or disciplinary action by a business, occupational, or professional licensing board or bureau, for providing a qualifying patient or designated caregiver with marijuana paraphernalia for purposes of facilitating the qualifying patient's medical use of marijuana.

(j) Any marijuana, marijuana paraphernalia, licit property, or interest in licit property, that is possessed, owned, or used exclusively in connection with the medical use of marijuana as allowed under this amendment, or property incidental to such use, shall not be seized or forfeited.

(k) A person shall not be subject to arrest, prosecution, or penalty in any manner or denied any right or privilege, including without limitation a civil penalty or disciplinary action by a business, occupational, or professional licensing board or bureau, simply for being in the presence or vicinity of the medical use of marijuana as allowed under this amendment or for directly assisting a physically disabled qualifying patient with the medical use of marijuana.

(l)(1) A registry identification card or its equivalent that is issued under the laws of another state, district, territory, commonwealth, or insular possession of the United States that allows a visiting qualifying patient to possess or use marijuana for medical use in the jurisdiction of issuance has the same force and effect when held by a visiting qualifying patient as a registry identification card issued by the Department of Health if the same qualifying medical condition exists.

(2)(A) A visiting qualifying patient may obtain marijuana from a dispensary upon producing evidence of his or her registry identification card or its equivalent that is issued under the laws of another state, district, territory, commonwealth, or insular possession of the United States.

(B) The department shall promulgate necessary rules concerning a visiting qualifying patient obtaining marijuana from a dispensary.

(m) A pharmacist shall not be subject to arrest, prosecution, or penalty in any manner or denied any right or privilege, including without limitation a civil penalty or disciplinary action by the Arkansas State Board of Pharmacy or by any other business, occupational, or professional licensing board or bureau, solely for performing his or her duties as a pharmacist consultant for a registered dispensary. [As amended by Acts 2017, No. 593, § 3; 2017, No. 1024, § 1.]

§ 4. Qualifying patient — Administration and enforcement — Rules.

(a)(1) The Department of Health shall administer and enforce the provisions of this amendment concerning qualifying patients, qualifying medical conditions, and designated caregivers,

including without limitation the issuance of a registry identification card to a qualifying patient and designated caregiver.

(2) The department shall adopt rules necessary to:

(A) Carry out the purposes of this amendment; and

(B) Perform its duties under this amendment.

(3) Rules adopted under this section are rules as defined in the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

(4)(A) The Department of Health shall require each applicant for a designated caregiver registry identification card to apply for or authorize the Department of Health to obtain state and national criminal background checks to be conducted by the Identification Bureau of the Department of Arkansas State Police and the Federal Bureau of Investigation.

(B) The criminal background checks shall conform to the applicable federal standards and shall include the taking of fingerprints.

(C) The applicant shall authorize the release of the criminal background checks to the Department of Health and shall be responsible for the payment of any fee associated with the criminal background checks.

(D) Upon completion of the criminal background checks, the Identification Bureau of the Department of Arkansas State Police shall forward to the Department of Health all information obtained concerning the applicant.

(b) Not later than one hundred eighty (180) days after the effective date of this amendment, the department shall adopt rules governing:

(1) The manner in which the department considers applications for and renewals of registry identification cards;

(2) Labeling and testing standards for marijuana distributed to qualifying patients, including a warning label on all marijuana for medical use that is processed or sold for smoking that communicates the health and safety risks associated with smoking and a list of places and conditions in which smoking marijuana for medical use is illegal in the State of Arkansas; and

(3) Any other matters necessary for the department's fair, impartial, stringent, and comprehensive administration of this amendment.

(c)(1) Not later than one hundred eighty (180) days after the effective date of this amendment, the department shall adopt rules that govern the manner in which the department considers petitions from the public to add medical conditions or treatments to the list of qualifying medical conditions set forth in § 2 of this amendment.

(2) In considering a petition, the department shall add medical conditions or treatments to the list of qualifying medical conditions set forth in § 2 of this amendment if patients suffering from the medical conditions or undergoing the treatments in question would derive therapeutic benefit from the use of marijuana, taking into account the positive and negative health effects of such use.

(3)(A) The department shall, after hearing, approve or deny a petition within one hundred twenty (120) days of submission of the petition.

(B) The approval or denial of a petition constitutes final agency action, subject to judicial review, and jurisdiction for judicial review is vested in the Pulaski County Circuit Court.

(d) The department shall adopt rules within one hundred eighty (180) days of the effective date of this amendment that govern the manner in which a designated caregiver assists a physically disabled qualifying patient or a qualifying patient under the age of eighteen (18) with the medical use of marijuana.

(e) The department may collect fines or fees for any violation of a rule adopted under this section.

(f) When a patient receives a written certification from a physician, the physician may require the patient to consult with a pharmacist consultant of a dispensary. [As amended by Acts 2017, No. 4, §§ 2, 3; 2017, No. 545, § 1; 2017, No. 639, § 1; 2017, No. 740, § 2; 2017, No. 1023, § 2; 2017 (1st Ex. Sess.), No. 1, §§ 3, 4; 2017 (1st Ex. Sess.), No. 8, §§ 3, 4; 2021, No. 666, § 1.]

Publisher's Notes. Acts 2017, No. 1023, § 2, which amended subdivision (b)(2) of this section, was repealed by Identical Acts 2017 (1st Ex. Sess.), Nos. 1 and 8, § 3, before taking effect.

§ 5. Registry identification cards.

(a) The Department of Health shall issue registry identification cards to qualifying patients and designated caregivers who submit in accordance with the rules promulgated by the department:

- (1) Written certification issued by a physician within thirty (30) days of the application;
- (2)(A) A reasonable application or renewal fee as established by the department by rule.

(B) The department may establish a sliding scale of application and renewal fees based upon a qualifying patient's family income;

(3) The name, address, and date of birth of the qualifying patient or designated caregiver, except that if the applicant is homeless, no address is required;

(4) For a designated caregiver application:

(A) The name of the physically disabled qualifying patient or qualifying patient under the age of eighteen (18) whom the applicant will be assisting; and

(B) Documentation from the qualifying patient's physician indicating that the qualifying patient is physically disabled or under the age of eighteen (18);

(5) The name, address, and telephone number of the qualifying patient's physician; and

(6) A signed statement from the qualifying patient or designated caregiver pledging not to divert marijuana to anyone who is not allowed to possess marijuana under this amendment.

(b) The department shall not issue a registry identification card to a qualifying patient who is under eighteen (18) years of age unless:

(1) The qualifying patient's physician has explained the potential risks and benefits of the medical use of marijuana to the qualifying patient and to a parent, guardian, or person having legal custody of the qualifying patient; and

(2) A parent, guardian, or person having legal custody:

(A) Consents in writing to:

(i) Allow the qualifying patient's medical use of marijuana;

(ii) Assist the qualifying patient in the medical use of marijuana; and

(iii) Control the acquisition of the marijuana, the dosage, and the frequency of the medical use of marijuana by the qualifying patient; and

(B) Registers as a designated caregiver under this amendment.

(c)(1) The department shall review the information contained in an application or renewal submitted under this section within fourteen (14) days of receiving it.

(2) The department shall deny an application or renewal if the:

(A) Applicant previously had a registry identification card revoked; or

(B) Department determines the written certification was not made in the context of a physician-patient relationship or that the written certification was fraudulently obtained.

(3) Rejection of an application or renewal is considered a final agency action, subject to judicial review, and jurisdiction is vested in the Pulaski County Circuit Court.

(d)(1) A registry identification card expires one (1) year after the date of issuance unless the physician states in the written certification that he or she believes the qualifying patient would benefit from the medical use of marijuana only until a specified earlier date.

(2) If the written certification specifies an earlier date, the registry identification card shall expire on that date.

(f)(1) An application or renewal and supporting information submitted by a qualifying patient or designated caregiver under this amendment, including without limitation information regarding the qualifying patient's physician, are considered confidential records that are exempt from the Freedom of Information Act of 1967, § 25-19-101 et seq.

(2)(A)(i) The department shall maintain a confidential list of the persons to whom the department has issued registry identification cards.

(ii)(a) The department may share information from the confidential list under this subsection with the Alcoholic Beverage Control Division and the Medical Marijuana Commission as

necessary and the State Insurance Department for the purposes of the Arkansas all-payer claims database established under § 23-61-901 et seq.

(b) Confidential information shared with the division or commission shall remain confidential while in the division's or commission's possession.

(B) Individual names and other identifying information on the confidential list are confidential, exempt from the Freedom of Information Act of 1967, § 25-19-101 et seq., and not subject to disclosure except to authorized employees of the department, division, and commission as necessary to perform official duties of the department, division, and commission.

(3) The department shall verify to law enforcement personnel whether a registry identification card is valid without disclosing more information than is reasonably necessary to verify the authenticity of the registry identification card.

(4) A person, including without limitation an employee or official of the department, division, commission, or another state agency or local government, who knowingly breaches the confidentiality of information obtained under this amendment commits a Class A misdemeanor.

(g)(1) Except as provided in § 3 of this amendment, a cardholder who transfers marijuana to a person who is not a qualifying patient or designated caregiver under this amendment shall have his or her registry identification card revoked and shall be subject to any other penalties established by law.

(2) The department may revoke the registry identification card of any cardholder who knowingly violates any provision of this amendment, and the cardholder is subject to any other penalties established by law.

(3) This subsection does not prohibit:

(A) A qualifying patient or designated caregiver from giving up to two and one-half ounces (2 ½ oz.) of usable marijuana to another qualifying patient or designated caregiver as set forth in § 3 of this amendment; or

(B) The transfer of marijuana seedlings, plants, or usable marijuana as set forth in § 3 of this amendment.

(h) The department, division, and commission shall submit to the General Assembly an annual report that does not disclose any identifying information about cardholders or physicians but contains at a minimum:

(1) The number of applications and renewals filed for registry identification cards;

(2) The nature of the qualifying medical conditions of the qualifying patients;

(3) The number of registry identification cards revoked and the number of licenses to operate a dispensary and licenses to operate a cultivation facility revoked;

(4) The number of physicians providing written certifications for qualifying patients;

(5) The number of licensed dispensaries;

(6) The number of licensed cultivation facilities;

(7) The number of dispensary agents; and

(8) The number of cultivation facility agents. [As amended by Acts 2017, No. 5, § 2; 2017, No. 948, § 1.]

Publisher's Notes. This section as adopted does not contain a subsection (e).

§ 6. Scope.

(a) This amendment does not permit a person to:

(1) Undertake any task under the influence of marijuana when doing so would constitute negligence or professional malpractice;

(2) Possess, smoke, or otherwise engage in the medical use of marijuana:

(A) On a school bus;

(B) On the grounds of a daycare center, preschool, primary or secondary school, college, or university;

(C) At a drug or alcohol treatment facility;

- (D) At a community or recreation center;
- (E) In a correctional facility;
- (F) On any form of public transportation;
- (G) In a public place; or

(H) On any property that is under control of the Arkansas National Guard or the United States military;

(3) Operate, navigate, or be in actual physical control of a motor vehicle, aircraft, motorized watercraft, or any other vehicle drawn by power other than muscle power while under the influence of marijuana;

(4) Smoke marijuana:

- (A) In a place where the smoking of tobacco is prohibited by law;
- (B) In the presence of a person who is under fourteen (14) years of age;
- (C) Inside a motor vehicle, aircraft, motorized watercraft, or any vehicle drawn by power other than muscle power;
- (D) Knowingly in the presence of a pregnant woman; or
- (E) In a place where the smoking of marijuana for medical use is likely to cause another person not authorized to use marijuana to be under the influence of marijuana; or

(5) Smoke marijuana for medical use if the person is under twenty-one (21) years of age.

(b) This amendment does not require:

(1) A government medical assistance program or private health insurer to reimburse a person for costs associated with the medical use of marijuana unless federal law requires reimbursement;

(2) An employer to accommodate the ingestion of marijuana in a workplace or an employee working while under the influence of marijuana;

(3) An individual or establishment in lawful possession of property to allow a guest, client, customer, or other visitor to use marijuana on or in that property;

(4) An individual or establishment in lawful possession of property to admit a guest, client, customer, or other visitor who is inebriated as a result of his or her medical use of marijuana;

(5) A landlord to permit a qualifying patient to smoke marijuana on or in leased property, except that a landlord may not prohibit the medical use of marijuana through means other than smoking on leased property by a qualifying patient; or

(6) A public school to permit a qualifying patient who is a student to be present on school grounds, to attend a school event, or to participate in extracurricular activities in violation of the public school's student discipline policies when a school office has a good faith belief that the behavior of the qualifying patient is impaired. [As amended by Acts 2017, No. 479, § 3; 2017, No. 740, § 1; 2017, No. 1099, § 1; 2017 (1st Ex. Sess.), No. 1, § 5; 2017 (1st Ex. Sess.), No. 8, § 5.]

§ 7. Affirmative defense and dismissal for medical use of marijuana.

(a) Except as provided in § 6 of this amendment and this section, an individual may assert a medical purpose for using marijuana as an affirmative defense to prosecution for an offense involving marijuana intended for the individual's medical use, and this defense shall be presumed valid and the prosecution shall be dismissed where the evidence demonstrates that the individual is:

- (1) A qualifying patient or a designated caregiver; and
- (2) In compliance with the conditions set forth in § 3 of this amendment.

(b) The defense and motion to dismiss shall not prevail if either of the following are proven:

(1) The individual's registry identification card had been revoked at the time of the alleged offense; or

(2) The purposes for the possession of marijuana were not solely for medical use.

(c) An individual is not required to be in actual physical possession of a registry identification card to raise the affirmative defense set forth in this section.

(d) If an individual demonstrates a medical use of marijuana under this section, except as provided in § 6 of this amendment, the individual shall not be subject to the following:

- (1) Disciplinary action by a business, occupational, or professional licensing board or bureau;
or
(2) Forfeiture of any interest in or right to nonmarijuana, licit property.

§ 8. Licensing of dispensaries and cultivation facilities.

(a)(1) Dispensaries and cultivation facilities shall be licensed by the Medical Marijuana Commission.

(2) The commission shall administer and regulate the licensing of dispensaries and cultivation facilities, including the issuance of a:

- (i) License to operate a dispensary; and
- (ii) License to operate a cultivation facility.

(3) The Alcoholic Beverage Control Division shall administer and enforce the provisions of this amendment concerning dispensaries and cultivation facilities.

(b)(1) The commission and division shall each adopt rules necessary to:

- (A) Carry out the purposes of this amendment; and
- (B) Perform its duties under this amendment.

(2) Rules adopted under this section are rules as defined in the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

(c) The following individuals associated with a dispensary or cultivation facility shall be current residents of Arkansas who have resided in the state for the previous seven (7) consecutive years:

(1) The individual(s) submitting an application to license a dispensary or cultivation facility; and,

(2) Sixty percent (60%) of the individuals owning an interest in a dispensary or cultivation facility.

(d) Not later than one hundred eighty (180) days after the effective date of this amendment, the commission shall adopt rules governing:

(1) The manner in which the commission considers applications for and renewals of licenses for dispensaries and cultivation facilities;

(2) The form and content of registration and renewal applications for dispensaries and cultivation facilities; and

(3) Any other matters necessary for the commission's fair, impartial, stringent, and comprehensive administration of this amendment.

(e) Not later than one hundred eighty (180) days after the effective date of this amendment, the division shall adopt rules governing:

- (1) Oversight requirements for dispensaries and cultivation facilities;
- (2) Recordkeeping requirements for dispensaries and cultivation facilities;
- (3) Security requirements for dispensaries and cultivation facilities;
- (4) Personnel requirements for dispensaries and cultivation facilities;
- (5) The manufacture, processing, packaging, labeling, and dispensing of usable marijuana to qualifying patients and designated caregivers, including without limitation:

(A) Before sale, food or drink that has been combined with usable marijuana shall not exceed ten milligrams (10 mg) of active tetrahydrocannabinol per portion and shall be physically demarked; and

(B) If portions cannot be physically determined, the entirety of the food or drink that has been combined with usable marijuana shall not contain more than ten milligrams (10 mg) of active tetrahydrocannabinol;

(6) Procedures for suspending or terminating the licenses of dispensaries and cultivation facilities that violate the provisions of this amendment or the rules adopted under this amendment, procedures for appealing penalties, and a schedule of penalties;

(7) Procedures for inspections and investigations of dispensaries and cultivation facilities;

(8) Advertising restrictions for dispensaries and cultivation facilities, including without limitation the advertising, marketing, packaging, and promotion of dispensaries and cultivation

facilities with the purpose to avoid making the product of a dispensary or a cultivation facility appealing to children, including without limitation:

- (A) Artwork;
 - (B) Building signage;
 - (C) Product design, including without limitation shapes and flavors;
 - (D) Child-proof packaging that cannot be opened by a child or that prevents ready access to toxic or harmful amount of the product, and that meets the testing requirements in accordance with the method described in 16 C.F.R. § 1700.20, as existing on January 1, 2017;
 - (E) Indoor displays that can be seen from outside the dispensary or cultivation facility; and
 - (F) Other forms of marketing related to medical marijuana;
- (9) Procedures for the disposal or other use of marijuana not dispensed to a qualifying patient; and
- (10) Any other matters necessary to the division's fair, impartial, stringent, and comprehensive administration of its duties under this amendment.

(f)(1) Not later than one hundred eighty (180) days after the effective date of this amendment, the commission shall adopt rules establishing license application and license renewal fees for dispensary and cultivation facility licenses.

(2)(A) The initial dispensary application fee shall be a maximum of seven thousand five hundred dollars (\$7,500).

(B) The initial cultivation facility application fee shall be a maximum of fifteen thousand dollars (\$15,000).

(C) A license that is initially issued between January 1 and July 1 may have the licensing fees up to fifty percent (50%) prorated and refunded as determined by the commission.

(g)(1) Not later than July 1, 2017, the commission shall begin accepting applications for licenses to operate a dispensary and cultivation facility.

(2) The application shall include without limitation the following:

- (A) The application fee;
- (B) The legal name of the dispensary or cultivation facility;
- (C) The physical address of the:

(i)(a) Dispensary, the location of which may not be within one thousand five hundred feet (1,500') of a public or private school, church, daycare center, or facility for individuals with developmental disabilities, existing before the date of the dispensary application, which shall be calculated from the primary entrance of the dispensary to the nearest property boundary of a public or private school, church, daycare center, or facility for individuals with developmental disabilities.

(b) Subdivision (g)(2)(C)(i)(a) of this section does not apply to or impact existing locations of dispensaries issued a license before the effective date of this subdivision (g)(2)(C)(i)(b) that may be located within one thousand five hundred feet (1,500') of a facility for individuals with developmental disabilities; or

(ii) Cultivation facility, the location of which may not be within three thousand feet (3,000') of a public or private school, church, or daycare center existing before the date of the cultivation facility application, which shall be calculated from the primary entrance of the cultivation facility to the nearest property boundary of a public or private school, church, or daycare center;

(D) The name, address, and date of birth of each dispensary agent or cultivation facility agent; and

(E) If the city, town, or county in which the dispensary or cultivation facility would be located has enacted zoning restrictions, a sworn statement certifying that the dispensary or cultivation facility will operate in compliance with the restrictions.

(2) None of the owners, board members, or officers of the dispensary or cultivation facility:

- (A) Shall have been convicted of an excluded felony offense;
- (B) Shall have previously been an owner of a dispensary or cultivation facility that has had its license revoked; and

(C) Shall be under twenty-one (21) years of age.

(4)(A) The commission may issue a temporary license to a another natural person in conjunction with a dispensary or a cultivation facility when the natural person whose name is on the license for the dispensary or cultivation facility ceases to be in actual control of the dispensary or cultivation facility.

(B) The commission shall adopt rules as necessary to provide temporary licenses.

(h) The commission shall issue at least twenty (20) but no more than forty (40) dispensary licenses.

(i) There shall be no more than four (4) dispensaries in any one (1) county.

(j) The commission shall issue at least four (4) but no more than eight (8) cultivation facility licenses.

(k)(1) The commission shall conduct a criminal background check in order to carry out this section.

(2) The commission shall require each applicant for a dispensary license or cultivation facility license to apply for or authorize the commission to obtain state and national criminal background checks to be conducted by the Identification Bureau of the Department of Arkansas State Police and the Federal Bureau of Investigation.

(3) The criminal background checks shall conform to the applicable federal standards and shall include the taking of fingerprints.

(4) The applicant shall authorize the release of the criminal background checks to the commission and shall be responsible for the payment of any fee associated with the criminal background checks.

(5) Upon completion of the criminal background checks, the Identification Bureau of the Department of Arkansas State Police shall forward to the commission all information obtained concerning the applicant.

(l)(1) No individual shall own an interest in more than:

(1) One (1) cultivation facility; and,

(2) One (1) dispensary.

(m)(1)(A) A dispensary licensed under this section may acquire, possess, manufacture, process, prepare, deliver, transfer, transport, supply, and dispense marijuana, marijuana paraphernalia, and related supplies and educational materials to a qualifying patient or designated caregiver, but shall not supply, possess, manufacture, deliver, transfer, or sell marijuana paraphernalia that requires the combustion of marijuana to be properly utilized, including pipes, water pipes, bongs, chillums, rolling papers, and roach clips.

(B) A dispensary licensed under this section shall:

(i) Make marijuana vaporizers available for sale to qualifying patients; and

(ii) Provide educational materials about medical marijuana methods of ingestion to qualifying patients and designated caregivers, including without limitation:

(a) Warnings on the potential health risks of smoking or combusting marijuana; and

(b) Information on potential health benefits of vaporizing marijuana compared to smoking or combusting.

(2)(A) A dispensary may receive compensation for providing the goods and services allowed by this section.

(B) A dispensary may contract with a transporter, distributor, or processor to extent of the license of the transporter, distributor, or processor.

(3)(A) A dispensary may grow or possess:

(i) Fifty (50) mature marijuana plants at any one (1) time plus seedlings; and

(ii) All usable marijuana derived from the plants under subdivision (m)(3)(A)(i) of this section or predecessor plants.

(B) A dispensary may contract with a cultivation facility to cultivate one (1) or more mature marijuana plants the dispensary is permitted to grow.

(4)(A)(i) A cultivation facility may cultivate and possess usable marijuana in an amount reasonably necessary to meet the demand for the needs of qualifying patients as determined by the commission with the assistance of the Department of Health.

(ii) However, a cultivation facility shall not sell marijuana in any form except to a dispensary or other cultivation facility.

(B) A cultivation facility may also possess marijuana seeds.

(C) The commission with the assistance of the Department of Health shall promulgate rules determining the amount of marijuana reasonably necessary under subdivision (m)(4)(A) of this section.

(5)(A) A cultivation facility may receive compensation for providing goods and services allowed by this section.

(B) A cultivation facility may contract with a transporter, distributor, or processor to extent of the license of the transporter, distributor, or processor.

(n)(1) A dispensary license and cultivation facility license shall expire on June 30 of each calendar year and are renewable on or before June 30 of each calendar year for the fiscal year beginning July 1.

(2) The commission shall issue a renewal dispensary license or a renewal cultivation facility license within ten (10) days to any entity who complies with the requirements contained in this amendment, including without limitation the payment of a renewal fee.

(o) The commission may charge a reasonable fee as established by rule for the issuance of a renewal license.

(p) The commission and the division may collect fines or fees for any violation of a rule adopted under this section.

(q)(1) A license for a dispensary or cultivation facility shall only be issued to a natural person.

(2) A license issued for a dispensary or cultivation facility shall be transferable only to a natural person upon approval of the commission.

(r) Data or records submitted to the division or commission under rules adopted under this amendment may be shared with the Department of Health and the State Insurance Department for purposes of the Arkansas all-payer claims database established under the Arkansas Healthcare Transparency Initiative Act of 2015, § 23-61-901 et seq.

(s)(1) A dispensary shall appoint a pharmacist consultant who is a pharmacist licensed with the Arkansas State Board of Pharmacy.

(2) A pharmacist consultant shall:

(A) Register as a dispensary agent under this amendment and follow all procedures;

(B) Develop and provide training to other dispensary agents at least one (1) time every twelve (12) months from the initial date of the opening of the dispensary on the following subjects:

(i) Guidelines for providing information to qualifying patients related to risks, benefits, and side effects associated with medical marijuana;

(ii) Recognizing the signs and symptoms of substance abuse; and

(iii) Guidelines for refusing to provide medical marijuana to an individual who appears to be impaired or abusing medical marijuana;

(C) Assist in the development and implementation of review and improvement processes for patient education and support provided by the dispensary;

(D) Provide oversight for the development and dissemination of:

(i) Education materials for qualifying patients and designated caregivers that include:

(a) Information about possible side effects and contraindications of medical marijuana;

(b) Guidelines for notifying the physician who provided the written certification for medical marijuana if side effects or contraindications occur;

(c) A description of the potential effects of differing strengths of medical marijuana strains and products;

(d) Information about potential drug-to-drug interactions, including interactions with alcohol, prescription drugs, nonprescription drugs, and supplements;

(e) Techniques for the use of medical marijuana and marijuana paraphernalia; and

(f) Information about different methods, forms, and routes of medical marijuana administration;

(ii) Systems for documentation by a qualifying patient or designated caregiver of the symptoms of a qualifying patient that includes a logbook, rating scale for pain and symptoms, and guidelines for a patient's self-assessment; and

(iii) Policies and procedures for refusing to provide medical marijuana to an individual who appears to be impaired or abusing medical marijuana; and

(E) Be accessible to the dispensary or dispensary agent through:

(i) Telephonic means at all times during operating hours; and

(ii) Telephone or video conference for a patient consultation during operating hours.

(3) A dispensary shall:

(A) Post signage at the check-in station of the dispensary notifying the qualifying patient of the availability of a pharmacist consultant;

(B) Provide to the new qualifying patient of the dispensary a card containing language about a consultation with a pharmacist consultant and the contact information of the pharmacist consultant; and

(C) Post information on the website of the dispensary regarding a consultation with a pharmacist consultant, the availability of the pharmacist consultant, and the contact information of the pharmacist consultant.

(t)(1) A cultivation facility shall meet the following security requirements:

(A)(i) The physical security controls set forth in 21 C.F.R. § 1301.72 — 1301.74, as existing on January 1, 2017.

(ii) The division shall adopt rules to implement subdivision (t)(1)(A)(i) of this section;

(B) All cultivation of marijuana occurs within a building, greenhouse, or other structure that:

(i) Has a complete roof enclosure supported by connecting walls that are constructed of solid material extending from the ground to the roof;

(ii) Is secure against unauthorized entry;

(iii) Has a foundation, slab, or equivalent base to which the floor is securely attached;

(iv) Meets performance standards ensuring that cultivation and processing activities cannot be and are not perceptible from the structure in terms of:

(a) Common visual observation;

(b) Odors, smells, fragrances, or other olfactory stimuli;

(c) Light pollution, glare, or brightness;

(d) Adequate ventilation to prevent mold; and

(e) Noise;

(v) Provides complete visual screening; and

(vi) Is accessible only through one (1) or more lockable doors;

(C) Current detailed plans and elevation drawings of all operational areas involved with the production of medical marijuana are maintained on the premises of the cultivation facility, including:

(i) All storage areas, ventilation systems, and equipment used for production;

(ii) All entrances and exits to the cultivation facility;

(iii) All windows, skylights, and retractable mechanisms built into the roof;

(iv) The location of all required security cameras;

(v) The location of all alarm inputs, detectors, and sirens;

(vi) All video and alarm system surveillance areas;

(vii) All production areas labeled according to the specific activity occurring within the area;

(viii) All restricted and limited access areas identified; and

(ix) All nonproduction areas labeled according to purpose;

(D) Access to areas where marijuana is grown, harvested, processed, and stored is limited to authorized personnel and:

(i) Designated by clearly marked signage; and

(ii) Locked and accessible only by authorized personnel on a current roster of authorized personnel;

(E)(i) Written policies regarding any nonregistered agent who may visit the premises and a log of all visitors to the premises are developed and maintained.

(ii) The log shall consist of the visitor's name, purpose of visit, time of arrival, and time of departure.

(iii) Visitors to a cultivation facility shall be:

(a) Issued a visitor identification tag containing the visitor's name that shall be worn for the duration of the visit on the premises; and

(b) Escorted by a cultivation facility agent at all times while present on the premises.

(iv)(a) However, contractors conducting repairs, maintenance, or other specific duties may be escorted to their work site and left unaccompanied while completing a job.

(b) Cultivation facility agents shall ensure that the contractor and area under repair are under video surveillance for the duration of the time spent on the premises by the contractor; and

(F)(i) An alarm system is equipped that upon attempted unauthorized entry, transmits a signal directly to a central protection company for a local or state police agency and a designated cultivation facility agent.

(ii) The alarm system shall:

(a) Provide coverage for all points of ingress and egress to the cultivation facility, including without limitation doorways, windows, loading bays, skylights, and retractable roof mechanisms;

(b) Provide coverage of any room with an exterior wall, any room containing a safe, and any room used to grow or store medical marijuana;

(c) Be equipped with a panic drive that upon activation will not only sound any audible alarm components but will also notify law enforcement;

(d) Have duress and hold up features to enable a cultivation facility agent to activate a silent alarm notifying law enforcement of an emergency;

(e) Be equipped with failure notification systems to notify cultivation facilities and law enforcement of any failure in the alarm system; and

(f) Have the ability to remain operational during a power outage.

(2) A cultivation facility shall maintain compliance with applicable city or county building or structure rules, regulations, or ordinances and any other applicable state laws or rules regarding buildings or structures. [As amended by Acts 2017, No. 4, §§ 4-6; 2017, No. 545, § 2; 2017, No. 587, § 1; 2017, No. 594, §§ 1, 2; 2017, No. 639, § 2; 2017, No. 640, § 1; 2017, No. 641, § 1; 2017, No. 642, § 1; 2017, No. 948, § 2; 2017, No. 1023, § 3; 2017, No. 1024, §§ 2, 3; 2017, No. 1100, § 1, 2; 2017 (1st Ex. Sess.), No. 1, § 6; 2017 (1st Ex. Sess.), No. 8, § 6; 2019, No. 1004, § 1; 2021, No. 666, § 2.]

Publisher's Notes. As adopted this section contained two subdivisions (g)(2).

Acts 2017, No. 640, § 1 specifically amended subsection (e) of this section as amended by Acts 2017, No. 4.

§ 9. Registration and certification of cultivation facility agents and dispensary agents.

(a)(1) Cultivation facility agents and dispensary agents shall register with the Alcoholic Beverage Control Division.

(2) The division shall administer and enforce the provisions of this amendment concerning cultivation facility agents and dispensary agents, including without limitation the issuance of a:

(A) Registry identification card to a dispensary agent; and

(B) Registry identification card to a cultivation facility agent.

(b)(1) The division shall adopt rules necessary to:

(A) Carry out the purposes of this amendment; and

(B) Perform its duties under this amendment.

(2) Rules adopted under this section are rules as defined in the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

(c) Not later than one hundred eighty (180) days after the effective date of this amendment, the division shall adopt rules governing:

(1) The manner in which the division considers applications for and renewals of registry identification cards for dispensary agents and cultivation facility agents;

(2) The form and content of registration and renewal applications for dispensary agents and cultivation facility agents;

(3) Procedures for suspending or terminating the registration of dispensary agents and cultivation facility agents that violate the provisions of this amendment or the rules adopted under this amendment, procedures for appealing penalties, and a schedule of penalties; and

(4) Any other matters necessary to the division's fair, impartial, stringent, and comprehensive administration of its duties under this amendment.

(d)(1) The division shall conduct criminal background checks in order to carry out this section.

(2) The division shall require each applicant for a dispensary agent license or cultivation facility agent license to apply for or authorize the division to obtain state and national criminal background checks to be conducted by the Identification Bureau of the Department of Arkansas State Police and the Federal Bureau of Investigation.

(3) The criminal background checks shall conform to the applicable federal standards and shall include the taking of fingerprints.

(4) The applicant shall authorize the release of the criminal background checks to the division and shall be responsible for the payment of any fee associated with the criminal background checks.

(5) Upon completion of the criminal background checks, the Identification Bureau of the Department of Arkansas State Police shall forward to the division all information obtained concerning the applicant.

(e) Except as provided herein, the division shall issue each dispensary agent and cultivation facility agent a registry identification card within ten (10) days of receipt of:

(1) The person's name, address, and date of birth under this amendment; and

(2) A reasonable fee in an amount established by rule of the division.

(f)(1) The division shall not issue a registry identification card to a dispensary agent or cultivation facility agent who has been convicted of an excluded felony offense.

(2) The division shall conduct a criminal background check as described in subsection (d) of this section of each dispensary agent or cultivation facility agent in order to carry out this provision.

(3) The division shall notify the dispensary or cultivation facility in writing of the reason for denying the registry identification card.

(g)(1) A registry identification card for a dispensary agent or cultivation facility agent shall expire on June 30 of each calendar year and is renewable on or before June 30 of each calendar year for the fiscal year beginning July 1.

(2) A registry identification card of a dispensary agent or cultivation facility agent expires upon notification to the division by a dispensary or cultivation facility that the person ceases to work at the dispensary or cultivation facility.

(h) The division may charge a reasonable fee as established by rule for the issuance of a new, renewal or replacement registry identification card.

(i)(1) The division may revoke the registry identification card of a dispensary agent or cultivation facility agent who knowingly violates any provision of this amendment, and the cardholder is subject to any other penalties established by law for the violation.

(2) The division may revoke or suspend the dispensary license or cultivation facility license of a dispensary or cultivation facility that the division determines knowingly aided or facilitated a violation of any provision of this amendment, and the licenseholder is subject to any other penalties established in law for the violation.

(j) The division may collect fines or fees for any violation of a rule adopted under this section. [As amended by Acts 2017, No. 4, § 7; 2017, No. 545, §§ 3, 4; 2017, No. 594, § 3; 2017, No. 639, § 3.]

§ 10. Dispensary and cultivation facility inspections and requirements.

(a) Dispensaries and cultivation facilities are highly regulated by the state, and a dispensary and cultivation facility is therefore subject to reasonable inspection by the Alcoholic Beverage Control Division.

(b)(1) This subsection governs the operations of dispensaries and cultivation facilities.

(2) A dispensary and a cultivation facility shall be an entity incorporated in the State of Arkansas.

(3) A dispensary and cultivation facility shall implement appropriate security measures to deter and prevent unauthorized entrance into areas containing marijuana and the theft of marijuana.

(4) A dispensary and cultivation facility shall have procedures in place to ensure accurate recordkeeping.

(5) Each dispensary shall keep the following records, dating back at least three (3) years:

(A) Records of the disposal of marijuana that is not distributed by the dispensary to qualifying patients; and

(B) A record of each transaction, including the amount of marijuana dispensed, the amount of compensation, and the registry identification number of the qualifying patient or designated caregiver.

(6) Each dispensary and cultivation facility shall:

(A) Conduct an initial comprehensive inventory of all marijuana, including without limitation usable marijuana available for dispensing, mature marijuana plants, and seedlings at each authorized location on the date the dispensary first dispenses usable marijuana or the cultivation facility first cultivates, prepares, manufactures, processes, or packages usable marijuana; and

(B) Conduct a biannual comprehensive inventory of all marijuana, including without limitation usable marijuana available for dispensing, mature marijuana plants, and seedlings at each authorized location.

(7) All cultivation of marijuana shall take place in an enclosed, locked facility.

(8)(A) A qualifying patient or designated caregiver acting on behalf of a qualifying patient shall not be dispensed more than a total of two and one-half ounces (2 ½ oz.) of usable marijuana during a fourteen-day period.

(B) A dispensary or a dispensary agent may not dispense more than a total of two and one-half ounces (2 ½ oz.) of usable marijuana to either a qualifying patient or designated caregiver acting on behalf of a qualifying patient during a fourteen-day period.

(C) Each time a dispensary agent dispenses usable marijuana to a qualifying patient or designated caregiver, he or she shall verify that the dispensing of usable marijuana would not cause the qualifying patient or designated caregiver to receive more usable marijuana than is permitted in a fourteen-day period.

(D) Each time usable marijuana is dispensed, the dispensary agent shall:

(i) Record the date the usable marijuana was dispensed and the amount dispensed; and

(ii) Notify the Department of Health in the manner required by the department.

(E) The department shall maintain a database that enables a dispensary to verify that dispensing usable marijuana to a qualifying patient or designated caregiver will not cause the qualifying patient or designated caregiver to exceed the amount allowed by law.

(F) All records shall be kept according to the registry identification number of the qualifying patient or designated caregiver.

(G) It is the specific intent of this Amendment that no qualifying patient or designated caregiver acting on behalf of a qualifying patient be dispensed more than a total of two and one-half ounces (2 ½ oz.) of usable marijuana during a fourteen-day period whether the usable marijuana is dispensed from one or any combination of dispensaries.

(9) The dispensary records with patient information shall be treated as confidential records that are exempt from the Freedom of Information Act of 1967, § 25-19-101 et seq. [As amended by Acts 2017, No. 5, § 3.]

§ 11. Immunity for dispensaries and cultivation facilities.

(a) A dispensary, cultivation facility, transporter, distributor, or processor is not subject to the following:

(1) Prosecution for the acquisition, possession, cultivation, processing, preparation, manufacture, delivery, transfer, transport, sale, supply, or dispensing of marijuana and related supplies in accordance with the provisions of this amendment and any rule adopted under this amendment;

(2) Inspection, except under § 10 of this amendment or upon a search warrant issued by a court or judicial officer;

(3) Seizure of marijuana, except upon any order issued by a court or judicial officer and with due process of law; or

(4) Imposition of a penalty or denial of a right or privilege, including without limitation imposition of a civil penalty or disciplinary action by a business, occupational, or professional licensing board or entity, solely for acting in accordance with this amendment.

(b)(1) A dispensary agent, cultivation facility agent, transporter agent, distributor agent, or processor agent shall not be subject to arrest, prosecution, search, seizure, or penalty in any manner or denied any right or privilege, including without limitation civil penalty or disciplinary action by a business, occupational, or professional licensing board or entity, solely for working for or with a dispensary, cultivation facility, transporter, distributor, or processor to engage in acts permitted by this amendment.

(2)(A) A dispensary agent, cultivation facility agent, or processor agent may possess and manufacture marijuana at the dispensary, cultivation facility, or processor location or locations for which the dispensary agent, cultivation facility agent, or processor agent is registered or when transferring marijuana under this section.

(B)(i) A dispensary agent who is a volunteer may possess and manufacture marijuana at a dispensary location.

(ii) A dispensary agent who is a volunteer may not dispense or transport marijuana.

(3) A cultivation facility and processor shall label the marijuana that is moved between the cultivation facility or processor and a dispensary, other cultivation facility, or processor with a trip ticket that identifies the cultivation facility by identification number, the time, date, origin, and destination of the marijuana being transported, and the amount and form of marijuana that is being transported.

(4) A transporter agent or distributor agent may possess marijuana at any location while the transporter agent or distributor agent is transferring marijuana from a dispensary, cultivation facility, or processor to another dispensary, cultivation facility, or processor.

(c) Importation of seeds, cuttings, clones, or plants by a dispensary or cultivation facility shall not be prosecuted in the courts of this state. [As amended by Acts 2017, No. 642, § 2; 2017, No. 1022, § 1.]

§ 12. Prohibitions for dispensaries.

(a)(1) Except as provided in § 3 of this amendment and subdivision (a)(2) of this section, a dispensary may not dispense, deliver, or otherwise transfer marijuana to a person other than a qualifying patient or designated caregiver.

(2) A dispensary may transfer marijuana to a transporter, distributor, or processor to operate to extent of the license of the transporter, distributor, or processor.

(b)(1) Except as provided in § 3 of this amendment, the Alcoholic Beverage Control Division shall immediately revoke the registry identification card of a dispensary agent who has dispensed, delivered, or otherwise transferred marijuana to a person other than a qualifying patient or designated caregiver, and that dispensary agent shall be disqualified from serving as a dispensary agent.

(2) A dispensary employing a dispensary agent found to violate subdivision (b)(1) of this section is not subject to penalties, including without limitation the revocation of its license, for

the actions of a dispensary agent unless the dispensary knowingly aided or facilitated the violation. [As amended by Acts 2017, No. 642, § 2.]

§ 13. Prohibitions for cultivation facilities.

(a) A cultivation facility may sell marijuana plants, seeds, and usable marijuana only to a dispensary, other cultivation facility, or processor.

(b) A cultivation facility may employ a transporter or a distributor to transfer marijuana from the cultivation facility to a dispensary, other cultivation facility, or processor. [As amended by Acts 2017, No. 642, § 2.]

§ 14. Local regulation.

(a) This amendment does not prohibit a city, incorporated town, or county of this state from enacting reasonable zoning regulations applicable to dispensaries or cultivation facilities, provided that those zoning regulations are the same as those for a licensed retail pharmacy.

(b) This section does not allow a city, incorporated town, or county to prohibit the operation of any dispensaries or cultivation facilities in the city, incorporated town, or county unless such a prohibition is approved at an election under Article 5, § 1, of this constitution.

§ 15. Prohibited conduct for physicians.

A physician shall not:

(1) Accept, solicit, or offer any form of pecuniary remuneration from or to a dispensary or cultivation facility provided however, that this does not prohibit a physician who is also a qualifying patient from purchasing usable marijuana from a dispensary;

(2) Offer a discount or other thing of value to a qualifying patient who uses or agrees to use a particular dispensary;

(3) Examine a patient for purposes of diagnosing a qualifying medical condition at a dispensary; or

(4) Hold an economic interest in a dispensary or cultivation facility if the physician certifies the qualifying medical condition of a patient for medical use of marijuana.

§ 16. Failure to adopt rules or issue registry identification cards or licenses.

If the Department of Health, Alcoholic Beverage Control Division, or Medical Marijuana Commission fails to adopt rules to implement this amendment within the time prescribed or fails to issue the minimum number of dispensary licenses or cultivation facility licenses, any person who would be a qualifying patient under this amendment may commence a mandamus action in Pulaski County Circuit Court to compel the department, division, or commission to perform the actions mandated under the provisions of this amendment.

§ 17. Taxation and distribution of proceeds.

(a)(1) The sale of usable marijuana is subject to all state and local sales taxes at the same rate as other tangible personal property.

(2) The sale of usable marijuana is also subject to the Arkansas Medical Marijuana Special Privilege Tax Act of 2017, § 26-57-1501 et seq., or its successor.

(b) The state sales and special privilege tax revenues received by the Department of Finance and Administration from the sale of usable marijuana under this amendment shall be distributed as follows:

(1) All moneys received as part of this amendment are designated as special revenue and the funds collected shall be deposited into the State Treasury and credited to the Arkansas Medical Marijuana Implementation and Operations Fund;

(2) All moneys received as part of this amendment prior to the effective date of this section

shall be immediately transferred to the Arkansas Medical Marijuana Implementation and Operations Fund upon the effective date of this section;

(3) In order for the Chief Fiscal Officer of the State to determine the expenses that state agencies incurred due to the passage of this amendment, the following state entities shall submit a report to the Chief Fiscal Officer of the State no later than May 1 of each year of the projected expenses for the next fiscal year, including without limitation expenses as set out in subdivision (b)(4) of this section:

(A) The Alcoholic Beverage Control Division of the Department of Finance and Administration;

(B) The Department of Health;

(C) The Medical Marijuana Commission; and

(D) Any other state agency that incurs implementation, administration, or enforcement expenses related to this amendment; and

(4)(A) From time to time, the Chief Fiscal Officer of the State shall transfer on his or her books and those of the Treasurer of State and the Auditor of State the amounts as set out in subdivision (b)(3) of this section or so much as is available in proportion to the amount identified by each agency in subdivision (b)(3) of this section from the Arkansas Medical Marijuana Implementation and Operations Fund to the Miscellaneous Agencies Fund Account for the Alcoholic Beverage Control Division of the Department of Finance and Administration, the paying account as determined by the Chief Fiscal Officer for the Department of Health, the Medical Marijuana Commission Fund, and any other fund necessary to the implementation, administration, or enforcement of this amendment to pay for or reimburse personal services, operating expenses, professional fees, equipment, monitoring, auditing, and other miscellaneous expenses of this amendment.

(B) At the end of each fiscal year, any unobligated balances of the amounts transferred shall be deducted from the amount transferred in the next fiscal year as authorized in subdivision (b)(4)(A) of this section.

(C) Any unanticipated expenses or expenses over the amount transferred may be added from time to time to the transfer amount authorized in subdivision (b)(4)(A) of this section.

(D) The Department of Finance and Administration shall report at the end of the fiscal year to the Legislative Council, or to the Joint Budget Committee if during a legislative session, the following information:

(i) The total annual amount received as a result of this amendment;

(ii) The amount transferred to each agency; and

(iii) Copies of the report submitted to the Chief Fiscal Officer of the State identifying estimated expenses as set out in subdivision (b)(3) of this section.

(c) After the transfer described in subsection (b) of this section, the amounts remaining in the Arkansas Medical Marijuana Implementation and Operations Fund shall be distributed one hundred percent (100%) to the General Revenue Fund Account.

(d) An entity receiving a grant of state sales tax revenue under subsection (b) of this section may make one (1) or more successive grant applications for the same project or projects. [As amended by Acts 2017, No. 670, § 1; 2017, No. 1098, § 1; 2017 (1st Ex. Sess.), No. 1, § 7; 2017 (1st Ex. Sess.), No. 8, § 7.]

§ 18. Costs of administration and regulation of amendment.

(a) The following funds shall be used by the Department of Health to perform its duties under this amendment:

(1) State sales tax revenues received under § 17 of this amendment;

(2)(A) The revenue generated from fees, penalties, and other assessments of the department provided for by this amendment, including without limitation:

(i) Registry identification card application and renewal fees; and

(ii) Fees for replacement registry identification cards.

(B) Revenue generated from fees, penalties, and other assessments under this amendment shall be used solely for the performance of the department's duties under this amendment and shall be used for no other purpose;

(3) Private donations, if such funds are available; and

(4) Other appropriations by the General Assembly, if such funds are available.

(b) The following funds shall be used by the Alcoholic Beverage Control Division to perform its duties under this amendment:

(1) State sales tax revenues received under § 17 of this amendment;

(2)(A) The revenue generated from fees, penalties, and other assessments of the division provided for by this amendment.

(B) Revenue generated from fees, penalties, and other assessments of the division under this amendment shall be used solely for the performance of the division's duties under this amendment and shall be used for no other purpose;

(3) Private donations, if such funds are available; and

(4) Other appropriations by the General Assembly, if such funds are available.

(c) The following funds shall be used by the Medical Marijuana Commission to perform its duties under this amendment:

(1) State sales tax revenues received under § 17 of this amendment;

(2) The revenue generated from fees, penalties, and other assessments of the commission provided for by this amendment, including without limitation dispensary and cultivation facility application fees, licensing fees, and renewal fees;

(3) Private donations, if such funds are available; and

(4) Other appropriations by the General Assembly, if such funds are available.

§ 19. Medical Marijuana Commission — Creation.

(a)(1) There is created a Medical Marijuana Commission within the Department of Finance and Administration to determine the qualifications for receiving a license to operate a dispensary or a license to operate a cultivation facility and the awarding of licenses.

(2) Each member of the commission shall serve a term of four (4) years.

(3) The commission shall consist of five (5) members as follows:

(A) Two (2) members appointed by the President Pro Tempore of the Senate;

(B) Two (2) members appointed by the Speaker of the House of Representatives; and

(C) One (1) member appointed by the Governor.

(4) Vacancies on the commission shall be filled in the manner of the original appointment.

(5) The commission shall select one (1) of its members as chair.

(6) An affirmative vote of a majority of a quorum present shall be necessary to transact business.

(b)(1)(A) One (1) of the initial members appointed by the President Pro Tempore of the Senate shall serve a term of two (2) years and one (1) of the initial members appointed by the President Pro Tempore of the Senate shall serve a term of four (4) years.

(B) The initial members appointed by the President Pro Tempore of the Senate shall draw lots to determine which member shall serve a term of two (2) years.

(2)(A) One (1) of the initial members appointed by the Speaker of the House of Representatives shall serve a term of two (2) years and one (1) of the initial members appointed by the Speaker of the House of Representatives shall serve a term of four (4) years.

(B) The initial members appointed by the Speaker of the House of Representatives shall draw lots to determine which member shall serve a term of two (2) years.

(3) The initial member appointed by the Governor shall serve a term of four (4) years.

(4) All subsequent persons appointed to the commission shall serve a term of four (4) years.

(c) A member of the commission shall be:

(1) A citizen of the United States;

(2) A resident of the State of Arkansas for at least ten (10) years preceding his or her appointment;

- (3) A qualified elector;
- (4) At least twenty-five (25) years of age; and
- (5) Have no economic interest in a dispensary or cultivation facility.

(d)(1) The commission, by a majority vote of the total membership of the commission cast during its first regularly scheduled meeting of each calendar year, may authorize payment to its members of a stipend not to exceed eighty-five dollars (\$85.00) per day for each meeting attended or for any day while performing any proper business of the commission.

(2) Members of the commission shall receive no other compensation, expense reimbursement, or in-lieu-of payments.

(e)(1) The commission may employ staff necessary to assist in the performance of its duties under this amendment.

(2) The Alcoholic Beverage Control Division shall provide staff for the commission if the commission does not have employees available for that purpose.

(f)(1) Initial members of the commission shall be appointed within thirty (30) days of the effective date of this section.

(2) The President Pro Tempore of the Senate shall call the first meeting of the commission, which shall occur within forty-five (45) days of the effective date of this section. [As amended by Acts 2017, No. 638, § 1.]

§ 20. No implied repeal.

(a) By adoption of this amendment, there is no implied repeal of the existing Arkansas laws criminalizing possession of marijuana for purposes not specified in this amendment.

(b) This amendment acknowledges that marijuana use, possession, and distribution for any purpose remains illegal under federal law.

§ 21. Limitation on growing.

This amendment:

(1) Authorizes the growing of marijuana at a dispensary or cultivation facility that is properly licensed with the state; and

(2) Does not authorize a qualifying patient, designated caregiver, or other person to grow marijuana.

§ 22. Severability.

If any provision or section of this amendment or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect any other provisions or application of the amendment that can be given effect without the invalid provisions or applications, and to this end the provisions of this amendment are declared to be severable.

§ 23. Amendment by General Assembly.

(a) Except as provided in subsection (b) of this section, the General Assembly, in the same manner as required for amendment of laws initiated by the people, may amend the sections of this amendment so long as the amendments are germane to this section and consistent with its policy and purposes.

(b) The General Assembly shall not amend the following provisions of this amendment:

- (1) Subsections (a), (b), and (c) of § 3;
- (2) Subsection (h), (i), and (j) of § 8; and
- (3) Section 23.

§ 24. Licensure for transporters, distributors, and processors.

(a)(1) The Medical Marijuana Commission shall license transporters, distributors, and processors.

(2) The Alcoholic Beverage Control Division shall administer and enforce the provisions of this section concerning transporters, distributors, and processors.

(b) The owners, board members, or officers of a transporter, distributor, or processor shall not:

(1) Have been convicted of an excluded felony offense;

(2) Have previously been an owner of a dispensary, cultivation facility, transporter, distributor, or processor that has had a license revoked; and

(3) Be under twenty-one (21) years of age.

(c) The commission may conduct a criminal records check in order to carry out this section.

(d)(1) A transporter license, distributor license, and processor license shall expire one (1) year after the date of issuance.

(2) The commission shall issue a renewal license within ten (10) days to any entity who complies with the requirements contained in this amendment, including without limitation the payment of a renewal fee.

(e) The commission may charge a reasonable fee as established by rule for the issuance of an initial license and a renewal license.

(f)(1)(A) A transporter or distributor licensed under this section may:

(i) Acquire, possess, deliver, transfer, transport, or distribute marijuana to a dispensary, cultivation facility, or processor; and

(ii) Receive compensation for providing services allowed by this section.

(B) A transporter or distributor licensed under this section shall not grow, manufacture, process, prepare, supply, or dispense marijuana.

(2)(A) A processor licensed under this section may:

(i) Acquire, possess, manufacture, process, prepare, deliver, transport, and supply marijuana to a dispensary or cultivation facility; and

(ii) Receive compensation for providing services allowed by this section.

(B) A processor licensed under this section shall not grow or dispense marijuana.

(g) The division may make reasonable inspections on a transporter, distributor, and processor to ensure that the transporter, distributor, and processor:

(1) Is an entity incorporated in the State of Arkansas;

(2) Has implemented appropriate security measures to deter and prevent unauthorized entrance into areas containing marijuana and the theft of marijuana;

(3) Conducts an initial comprehensive inventory of all marijuana and a biannual comprehensive inventory of all marijuana; and

(4) Records each transaction between the transporter, distributor, or processor and a dispensary, cultivation facility, or another processor and maintains the records for three (3) years;

(5) Has adopted procedures to ensure accurate recordkeeping.

(h)(1) The commission shall adopt rules governing the applications for a transporter license, distributor license, or processor license.

(2) The division shall adopt rules governing:

(A) Oversight requirements for transporters, distributors, and processors;

(B) Recordkeeping requirements for transporters, distributors, and processors;

(C) Security requirements for transporters, distributors, and processors;

(D) Personnel requirements for transporters, distributors, and processors;

(E) The manufacture, processing, packaging, and dispensing of usable marijuana to qualifying patients and designated caregivers;

(F) Procedures for suspending or terminating the licenses of transporters, distributors, and processors that violate the provisions of this amendment or the rules adopted under this amendment, procedures for appealing penalties, and a schedule of penalties;

(G) Procedures for inspections and investigations of transporters, distributors, and processors;

(H) Advertising restrictions for transporters, distributors, and processors; and

(J) Any other matters necessary to the fair, impartial, stringent, and comprehensive administration of the duties of the division under this section. [As added by Acts 2017, No. 642, § 3.]

Publisher's Notes. As added by Acts 2017, No. 642, § 3, this section does not contain a subdivision (h)(2)(I).

§ 25. Registration and certification of transporter agents, distributor agents, and processor agents.

- (a) The Alcoholic Beverage Control Division shall:
 - (1) License transporter agents, distributor agents, and processor agents; and
 - (2) Administer and enforce the provisions of this section concerning transporter agents, distributor agents, and processor agents.
- (b) The division may conduct criminal records checks in order to carry out this section.
- (c) Except as prohibited by subdivision (d)(1) of this section, the division shall issue each transporter agent, distributor agent, and processor agent a registry identification card within ten (10) days of receipt of:
 - (1) The person's name, address, and date of birth under this amendment; and
 - (2) A reasonable fee in an amount established by rule for the division.
- (d)(1) The division shall not issue a registry identification card to a transporter agent, distributor agent, or processor agent who has been convicted of an excluded felony offense.
- (2) The division may conduct a criminal background check of each transporter agent, distributor agent, and processor agent in order to carry out this provision.
- (3) The division shall notify the transporter, distributor, or processor in writing of the reason for denying the registry identification card.
- (e)(1) A registry identification card for a transporter agent, distributor agent, or processor agent shall expire one (1) year after the date of issuance.
- (2) A registry identification card of a transporter agent, distributor agent, or processor agent expires upon notification to the division by a dispensary or cultivation facility that the person ceases to work at the transporter, distributor, or processor.
- (f) The division may charge a reasonable fee as established by rule for the issuance of a new, renewal, or replacement registry identification card.
- (g)(1) The division may revoke the registry identification card of a transporter agent, distributor agent, or processor agent who knowingly violates any provision of this amendment, and the cardholder is subject to any other penalties established by law for the violation.
- (2) The division may revoke or suspend the transporter license, distributor license, or processor license of a transporter, distributor, or processor that the division determines knowingly aided or facilitated a violation of any provision of this amendment, and the cardholder is subject to any other penalties established in law for the violation.
- (h) The division shall adopt rules governing:
 - (1) The manner in which the division considers applications for and renewals of registry identification cards for transporter agents, distributor agents, and processor agents;
 - (2) The form and content of registration and renewal applications for transporter agents, distributor agents, and processor agents;
 - (3) Procedures for suspending or terminating the registration of transporter agents, distributor agents, and processor agents who violate the provisions of this section or the rules adopted under this section, procedures for appealing penalties, and a schedule of penalties; and
 - (4) Any other matters necessary for the fair, impartial, stringent, and comprehensive administration of the duties of the division under this section. [As added by Acts 2017, No. 642, § 3.]

§ 26. Acts amending Arkansas Medical Marijuana Amendment of 2016.

- (a)(1) If an act of the General Assembly amends one (1) or more sections of this amendment under § 23 of this amendment, the Arkansas Code Revision Commission may, by a majority vote of the commission, make the following revisions to the act so long as the revisions do not change the substance or meaning of the act:
 - (A) Correct the spelling of words;

- (B) Change capitalization for the purpose of uniformity;
 - (C) Correct manifest typographical and grammatical errors;
 - (D) Correct manifest errors in references to laws and other documents;
 - (E) Correct manifest errors in internal reference numbers;
 - (F) Number, renumber, redesignate, and rearrange the provisions of this amendment at issue;
 - (G) Change internal reference numbers to agree with renumbered sections, subsections, subdivisions, or other provisions of law;
 - (H) Insert or delete hyphens in words to follow correct grammatical usage;
 - (I) Change numerals or symbols to words or vice versa and add figures or words if they are merely repetitions of written words or vice versa for purposes of uniformity and style;
 - (J) Change the form of nouns, pronouns, and verbs for purposes of style and grammar;
 - (K) Correct punctuation; and
 - (L) Change gender-specific language to gender-neutral language.
- (2)(A) If more than one (1) act amending a section of this amendment under § 23 of this amendment is enacted by the General Assembly during the same session, the commission may, by a majority vote of the commission, revise this amendment as necessary so that all of the enactments shall be given effect, including without limitation renumbering, redesignating, and rearranging sections, subsections, and subdivisions of this amendment.
- (B) In the event that one (1) or more acts amending a section of this amendment under § 23 of this amendment result in an irreconcilable conflict with one (1) or more acts amending a section of this amendment enacted during the same session, the commission may, by a majority vote of the commission, revise this amendment so that the conflicting provision of the last enactment prevails.
- (b) If the commission makes revisions under subsection (a) of this section, the commission shall file a report with the Speaker of the House of Representatives, the President Pro Tempore of the Senate, and the Governor that:
- (1) Explains the revisions made under subsection (a) of this section; and
 - (2) Includes the text of this amendment as amended by the revisions made under subsection (a) of this section. [As added by Acts 2019, No. 694, § 6.]

AMEND. 99. [VOTER IDENTIFICATION] (CONST., ART. 3, § 1, AMENDED).

Publisher's Notes. This amendment amended Ark. Const., Art. 3, § 1 and is incorporated within that section. The amendment was proposed by H.J.R. 1016 during the 2017 Regular Session and adopted at the 2018 general

election by a vote of 689,454 for and 177,815 against. The amendment was effective thirty days after the election pursuant to § 7-9-119.

The bracketed heading was added by the Publisher.

AMEND. 100. THE ARKANSAS CASINO GAMING AMENDMENT OF 2018.

Publisher's Notes. This amendment was proposed by initiated petition and adopted at the 2018 general election by a vote of 468,597 for and 397,658 against.

Section 1 of this amendment added §§ 1-11 set out below.

Effective Dates.

Ark. Const. Amend. 100, § 2, provided: "This Amendment shall be effective on and after November 14, 2018."

§ 1. Short title.

This Amendment shall be known and cited as "The Arkansas Casino Gaming Amendment of 2018."

§ 2. Definitions.

For purposes of this Amendment, the below terms are defined as follows:

(a) “Casino” is defined as a facility where casino gaming is conducted as authorized by this Amendment.

(b) “Casino applicant” is defined as any individual, corporation, partnership, association, trust, or other entity applying for a license to conduct casino gaming at a casino.

(c) “Casino gaming” is defined as dealing, operating, carrying on, conducting, maintaining, or exposing for play any game played with cards, dice, equipment, or any mechanical, electromechanical, or electronic device or machine for money, property, checks, credit, or any representative value. Casino gaming shall also be defined to include accepting wagers on sporting events. “Casino gaming” does not include lotteries conducted pursuant to Amendment 87 and/or The Arkansas Scholarship Lottery Act, Ark. Code Ann. § 23-115-101 et seq.

(d) “Casino gaming receipts” is defined as gross receipts from casino gaming.

(e) “Casino license” is defined as a license issued by the Arkansas Racing Commission to conduct casino gaming at a casino.

(f) “Casino licensee” is defined as any individual, corporation, partnership, association, trust, or other entity holding a license issued by the Arkansas Racing Commission to conduct casino gaming at a casino.

(g) “Franchise holder” is defined as any individual, corporation, partnership, association, trust, or other entity holding a franchise to conduct horse racing under the Arkansas Horse Racing Law, Ark. Code Ann. § 23-110-101 et seq., or greyhound racing under the Arkansas Greyhound Racing Law, Ark. Code Ann. § 23-111-101 et seq. as of December 31, 2017.

(h) “Intoxicating liquor” is defined as any beverage containing more than one-half of one percent of alcohol by weight.

(i) “Net casino gaming receipts” is defined as gross receipts from casino gaming less amounts paid out or reserved as winnings to casino patrons.

(j) “Net casino gaming receipts tax” is defined as a tax on net casino gaming receipts.

(k) “Wholesaler” means any person who holds a permit under any alcoholic beverage control law of the State of Arkansas to purchase controlled beverages from a manufacturer, importer, or domestic wine or brandy producer only and to sell such controlled beverages to retailers only.

§ 3. Authorizing Casinos and Casino Gaming.

(a) Casinos and casino gaming are hereby authorized in the State of Arkansas as provided in this Amendment.

(b) Casino licensees may accept wagers on sporting events if and when not prohibited by federal law. Franchise holders may continue to accept wagers on horse and greyhound racing as now or hereafter provided under the Arkansas Horse Racing Law, Ark. Code Ann. § 23-110-101 et seq., and the Arkansas Greyhound Racing Law, Ark. Code Ann. § 23-111-101 et seq., as the case may be.

(c) To fulfill the purposes of this Amendment, the Arkansas General Assembly shall from time to time enact laws, and appropriate monies to or for the use of the Arkansas Racing Commission. Initial laws and appropriations enacted by the General Assembly pursuant hereto shall be in full force and effect no later than June 30, 2019.

(d) Individuals under the age of 21 are prohibited from engaging in casino gaming.

§ 4. Licensing of Casinos and Casino Gaming.

(a) The Arkansas Racing Commission shall administer and regulate casino licenses, including their issuance and renewal, and shall administer and enforce the provisions of this Amendment relating to all casino licensees. Each casino license shall be issued for the purpose of requiring casino licensees to conduct casino gaming at a casino as provided in this Amendment and by regulation of the Arkansas Racing Commission, and all other applicable law.

(b) Casino gaming under this Amendment shall not be regulated under or be subject to the provisions of the Local Option Horse Racing and Greyhound Racing Electronic Games of Skill Act, Ark. Code Ann. § 23-113-101 et seq.

(c) The Arkansas Racing Commission shall adopt rules necessary to carry out the purposes of this Amendment and perform its duties under this Amendment.

(d) Rules adopted under this section are rules as defined in the Arkansas Administrative Procedures Act, Ark. Code Ann. § 25-15-201 et seq.

(e) Not later than 120 days after the effective date of this Amendment, the Arkansas Racing Commission shall adopt rules governing:

- (1) The establishment of a casino license application fee which shall not exceed \$250,000;
- (2) The manner in which the Arkansas Racing Commission considers applications for issuance of casino licenses;
- (3) The renewal of casino licenses;
- (4) The form and content of renewal for casino licenses;
- (5) Oversight requirements for casinos and casino gaming;
- (6) Recordkeeping requirements for casinos;
- (7) Personnel requirements for casinos and casino gaming;
- (8) Procedures for suspending or terminating casino licenses held by casino licensees that violate the provisions of this Amendment or the rules adopted under this Amendment;
- (9) A schedule of penalties and procedures for appealing penalties;
- (10) Procedures for inspection and investigations of casinos and casino gaming;
- (11) Responsibilities of casino licensees related to conducting casino gaming;
- (12) The Racing Commission shall allow licensees to transfer their casino license only to a party who has casino gaming experience.

(13) Any other matters necessary for the fair, impartial, stringent, and comprehensive administration of its duties under this Amendment.

(f) Not later than June 1, 2019, the Arkansas Racing Commission shall begin accepting applications for casino licenses.

(g) The application for casino licenses shall include without limitation the following:

- (1) The application fee;
- (2) The legal name of the casino;
- (3) The physical address of the casino;
- (4) The name, address, and date of birth of each officer and owner of the casino applicant; and
- (5) If the city, town, or county in which the casino would be located has enacted zoning restrictions, a sworn statement certifying that the casino will operate in compliance with the restrictions;

(h) Prior to the submission of an application for a casino license, the owners, shareholders, board members, or officers of the casino applicant:

- (1) If an individual, shall not have been convicted of a disqualifying felony offense as defined by the Arkansas Racing Commission;
- (2) Shall not have previously had a casino license in any state revoked;
- (3) If an individual, shall not be under twenty-one years of age; and
- (4) If an individual, shall not be a county judge or mayor that provides a letter of support, or a quorum court member that votes in favor of a letter of support as identified in this Amendment.

(i) The Arkansas Racing Commission shall issue three casino licenses.

(j) The Arkansas Racing Commission shall issue a casino license, as provided in this Amendment, to a Franchise holder located in Crittenden County, there being only one, to conduct casino gaming at a casino to be located at or adjacent to the Franchise holder's greyhound racing track and gaming facility as of December 31, 2017 in Crittenden County. The Arkansas Racing Commission shall also issue a casino license, as provided in this Amendment, to a Franchise holder located in Garland County, there being only one, to conduct casino gaming at a casino to be located at or adjacent to the Franchise holder's horse racing track and gaming facility as of December 31, 2017 in Garland County. Casino licenses to be issued to Franchise holders shall be issued upon:

- (1) Adoption by the Arkansas Racing Commission of rules necessary to carry out the purposes of this Amendment; and

(2) Initial laws and appropriations required by this Amendment being in full force and effect.

(k) The Arkansas Racing Commission shall award a casino license to a casino applicant for a casino to be located in Jefferson County within two miles of the city limits of the county seat.

(l) Casino licensees are required to conduct casino gaming for as long as they have a license.

(m) The Arkansas Racing Commission shall require all casino applicants for a casino license in Jefferson County to demonstrate experience conducting casino gaming.

(n) The Arkansas Racing Commission shall require all casino applicants for a casino license in Jefferson County to submit either a letter of support from the county judge or a resolution from the quorum court in Jefferson County and, if the proposed casino is to be located within a city or town, shall also require all casino applicants to include a letter of support from the mayor in the city or town where the applicant is proposing the casino to be located.

(o) Franchise holders are not applicants and are not required to submit applications for casino licenses in order to be issued a casino license.

(p) No individual, corporation, partnership, association, trust, or other entity may hold more than one casino license in Arkansas.

(q) The Arkansas Racing Commission shall issue a renewal casino license within ten days to any licensed casino that complies with the requirements contained in this Amendment, including without limitation the payment of the casino license renewal fee, which shall not exceed \$10,000. Casino licenses shall be renewed every ten years.

(r)(1) The Arkansas Racing Commission shall provide an annual amount of at least \$200,000 for compulsive gambling disorder treatment and compulsive gambling disorder educational programs.

(2) The Arkansas Racing Commission shall work together with the Department of Human Services to implement the compulsive gambling disorder treatment programs and the compulsive gambling disorder educational programs under this section.

(3) The Arkansas Racing Commission may contract with the Department of Human Services for providing all services related to and administration of the compulsive gambling disorder treatment programs and the compulsive gambling disorder educational programs.

(4) The Department of Human Services may promulgate rules to administer the compulsive gambling disorder treatment programs and the compulsive gambling disorder educational programs.

(s) If the Arkansas Racing Commission, or other governing body, issues a casino license for a casino in for Pope County, Arkansas prior to the effective date of this Amendment, then said license is revoked on the effective date of this Amendment.

(t) If a constitutional amendment authorizes or otherwise allows the issuance of a casino license in any county other than those issued now or hereafter for Crittenden County (to Southland Racing Corporation), Garland County (to Oaklawn Jockey Club, Inc.) and Jefferson County (to Downstream Development Authority of the Quapaw Tribe of Oklahoma and later transferred to Saracen Development, LLC), then the quorum court of each county where a casino is to be located shall call a special election by ordinance to submit the question of whether to approve of a casino in the county.

(1) Except as provided in subsection (t)(2), the special election shall be held on the second Tuesday of:

(A) March or November in a year when a presidential election is held; or

(B) May or November of all other years.

(2)(A) Special elections scheduled to occur in a month in which the second Tuesday is a legal holiday shall be held on the third Tuesday of the month.

(B) Special elections held in months in which a preferential primary election or general election is scheduled to occur shall be held on the date of the preferential primary election or general election.

(3) The ordinance calling the special election shall:

(A) State the date of the special election; and

(B) Require the special election ballot to set forth the question substantially as follows:

“FOR a casino in [] County
AGAINST a casino in [] County

The question presented is whether or not a casino may be located in the county. A casino is defined as a facility where casino gaming is conducted.”

(4) The county board of election commissioners shall publish the ordinance calling the special election as soon as practicable in a newspaper of general circulation in the county in which the special election is held.

(5) A majority of the voters in the county where the casino is proposed to be located must approve of a casino at the special election before the Arkansas Racing Commission, or other governing body, may accept any applications for a casino license in that county. [As amended by Const. Amend. 104.]

Publisher’s Notes. Ark. Const., Amend. 104, which amended this section, effective November 13, 2024, was proposed by initiated petition and adopted at the 2024 general election by a vote of 638,655 for and 505,772 against. The amendment in § 1 substituted “four” for “three” in (i), deleted “The Arkansas Racing Commission shall award a casino license to a casino applicant for a casino to be located in Pope County within two miles of the city limits of the county seat.” in (k), deleted “Pope County and” in (m), and deleted “Pope county and” and substituted “the county where the proposed casino is to be located” for “Jefferson County” in (n); in § 2 added (s); and in § 3 added (t).

Amend. 104, § 1, was titled: “Repeal of Authorization for a Casino in Pope County.”

Amend. 104, § 2, was titled: “Revocation of any casino license issued for Pope County, Arkansas prior to the effective date of this Amendment.”

Amend. 104, § 3, was titled: “Requiring the county quorum court to call a special countywide election on the question of whether to approve of any future casino to be located in the county, excepting casinos operating in Crit-

tenden County (pursuant to a license issued now or hereafter to Southland Racing Corporation), Garland County (pursuant to a license issued now or hereafter to Oaklawn Jockey Club, Inc.) and Jefferson County (pursuant to a license issued now or hereafter to Downstream Development Authority of the Quapaw Tribe of Oklahoma and later transferred to Saracen Development, LLC).”

Amend. 104, § 4, provided: “Severability. If any provision or section of this Amendment or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect any other provisions or application of the Amendment that can be given effect without the invalid provisions or applications, and to this end the provisions of this Amendment are declared to be severable.”

Amend. 104, § 5, provided: “Repeal of Conflicting Laws. By adoption of this Amendment, all Arkansas laws or parts of Arkansas laws in conflict with this Amendment are repealed.”

Effective Dates.

Ark. Const., Amend. 104, § 6: Nov. 13, 2024.

§ 5. Graduated taxation and distribution of proceeds.

(a) For each fiscal year, a casino licensee’s net casino gaming receipts are subject to a net casino gaming receipts tax as follows:

- (1) 13% on the first \$150,000,000 of net casino gaming receipts or any part thereof;
- (2) 20% on net casino gaming receipts exceeding \$150,000,001 or any part thereof;

(b) Each casino licensee shall be subject to the same income, property, sales, gross receipts, use, employment, and other taxation as any for-profit business located in the county and city or town in which the casino is located, except that no sales or gross receipts tax shall apply to casino gaming receipts or net casino gaming receipts.

(c) The net casino gaming receipts tax shall be distributed as follows:

- (1) 55% to the Arkansas General Revenue Fund

(2) 17.5% to the to the Arkansas Racing Commission for deposit into the Arkansas Racing Commission Purse and Awards Fund to be used only for purses for live horse racing and greyhound racing by the Franchise holders, as the case may be, and then to be apportioned as set forth in section (e),

- (3) 8% to the county in which the casino is located, and

(4) 19.5% to the city or town in which the casino is located, provided that the casino is not located within a city or town, then the 19.5% dedicated to the city or town shall go to the county in which the casino is located.

(d) On the last day of each month, the Treasurer shall transfer the 17.5% of revenues derived by the taxes levied under this Amendment referenced in section (c)(2) to the Arkansas Racing Commission to be distributed to the Franchise holders as follows: for the period prior to January 1, 2024, 60% shall be distributed to the Franchise holder operating a franchise to conduct horse racing, and 40% shall be distributed to the Franchise holder operating a franchise to conduct

greyhound racing; and for each calendar year thereafter, pro rata to the Franchise holders based upon the total respective amounts of each Franchise holder's pari-mutuel wagering handle during each respective immediately preceding calendar year from wagers placed on and off-track on the Franchise holder's live races (horse or greyhound, as the case may be) conducted at the Franchise holder's licensed premises.

(e) On the last day of each month, the Treasurer of State shall transfer the other percentage allocations made in section (c) to the designated entities.

§ 6. Contribution to purses and promotion of Arkansas thoroughbred and greyhound breeding activities.

(a) For so long as a Franchise holder is operating a franchise to conduct horse racing, an amount equal to 14% of the net casino gaming receipts shall be set aside by the Franchise holder in a separate account and used only for purses for live horse racing by the Franchise holder.

(b) For so long as a Franchise holder is operating a franchise to conduct greyhound racing, an amount equal to 14% of the net casino gaming receipts shall be set aside by the Franchise holder in a separate account and used only for purses for live greyhound racing and for capital improvements to the Franchise holder's facility by the Franchise holder. The amount of net casino gaming receipts set aside in this paragraph shall be apportioned as follows:

(1) 80% for purses for live greyhound racing by the Franchise holder; and

(2) 20% for capital improvements to the Franchise holder's facility so long as any amount so apportioned for capital improvements shall be matched by the Franchise holder and used only for capital improvements to the Franchise holder's facility.

(c) With respect to a Franchise holder operating a franchise to conduct horse racing, an amount equal to 1% of the net casino gaming receipts by the horse racing Franchise holder shall be paid by the Franchise holder to the Arkansas Racing Commission for deposit into the Arkansas Racing Commission Purse and Awards Fund to be used for purse supplements, breeders' awards, owners' awards, and stallion awards as provided in Ark. Code Ann. § 23-110-409 in order to promote and encourage thoroughbred horse breeding activities in Arkansas.

(d) With respect to a Franchise holder operating a franchise to conduct greyhound racing, an amount equal to 1 % of the net casino gaming receipts by the greyhound racing Franchise holder shall be paid by the Franchise holder to the Arkansas Racing Commission to be used for breeders' awards as provided in the Arkansas Racing Commission's rules and regulations governing greyhound racing in Arkansas in order to promote and encourage greyhound breeding activities in Arkansas.

(e)(1) The dedication of net casino gaming receipts to purses and breeding activities as set forth in this section shall not be subject to any contract or agreement between the Franchise holder and any organization representing horsemen or greyhound owners or trainers, to the end that any such contractual obligations for the use of moneys for purses shall not apply to the funds dedicated to purses and breeding activities as set forth in this section.

(2) The moneys dedicated to purses and breeding activities as set forth in this section are intended to be in addition to any such contractual purse obligations affecting moneys other than the amounts dedicated to purses and breeding activities as set forth in this section, as well as in addition to amounts required to be used for purses and breeding activities under applicable provisions of the Arkansas Horse Racing Law, Ark. Code Ann. § 23-110-101 et seq., and the Arkansas Greyhound Racing Law, Ark. Code Ann. § 23-111-101 et seq., as the case may be.

(f) The Arkansas Racing Commission shall have jurisdiction to check and verify compliance by the Franchise holders with the provisions of this section and shall make periodic determinations as to compliance under rules and regulations adopted by the Arkansas Racing Commission.

§ 7. Other operational provisions.

(a) Casino licensees are permitted to conduct casino gaming on any day for any portion or all of any day.

(b) Casino licensees shall be permitted to sell intoxicating liquor or provide complimentary servings of intoxicating liquor, only for on-premises consumption at the casinos, during all hours in which the casino licensees conduct casino gaming. To that extent, casino licensees shall not be subject to Ark. Code Ann. § 3-3-211, which prohibits the sale of intoxicating liquor on Christmas Day, and Ark. Code Ann. § 3-9-201, et seq. and other applicable Arkansas law requiring the residents of a dry county or city to vote to approve the sale of intoxicating liquor. Casino licensees shall purchase all intoxicating liquor from a Wholesaler. Casino licensees shall be subject to all other applicable Arkansas laws involving the distribution and sale of intoxicating liquor that do not conflict with any provision of this Amendment.

§ 8. Legal shipment of gambling devices into State.

All shipments of gambling devices, including slot machines, that are duly registered, recorded, and labeled by the manufacturer and/or dealer thereof in accordance with applicable federal law into any county of this State in which casino gaming is authorized in accordance with this Amendment shall be deemed legal shipments.

§ 9. Effect on existing law.

(a) By adoption of this Amendment, there is no implied repeal of the existing Arkansas laws criminalizing gambling for purposes not specified in this Amendment.

(b) This Amendment does not amend, repeal, or otherwise affect Amendment 84 (authorizing bingo and raffles), Amendment 87 (creating the state scholarship lottery), or Act 1151 of 2005 (authorizing electronic games of skill), to the extent those Amendments and statute do not conflict with this Amendment.

§ 10. Inconsistent provisions inapplicable.

All provisions of the Constitution, statutes, and common law of this State, including without limitation laws forbidding the judicial enforcement of gambling debts and statutes declaring gambling to be a crime, to the extent inconsistent or in conflict with any provision of this Amendment are expressly declared null and void as to, and do not apply to, any activities allowed under this Amendment.

§ 11. Severability.

If any provision or section of this Amendment or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect any other provisions or application of the Amendment that can be given effect without the invalid provisions or applications, and to this end the provisions of this Amendment are declared to be severable.

AMEND. 101. [TRANSPORTATION SALES TAX CONTINUATION]

Publisher's Notes. This amendment was proposed by H.J.R. 1018 during the 2019 Regular Session and adopted at the 2020 general election by a vote of 660,018 for and 532,915 against.

The bracketed heading was added by the Publisher. Section 1 of the amendment added §§ 1-4 set out below.

§ 1. Intent of amendment.

(a) Arkansas Constitution, Amendment 91, levies a one-half percent sales and use tax to provide additional funding for the state's four-lane highway system, county roads, and city streets.

(b) The one-half percent sales and use tax under Arkansas Constitution, Amendment 91, shall be abolished when there are no bonds outstanding to which tax collections are pledged as provided in this amendment.

(c) Notwithstanding Arkansas Constitution, Amendment 91, § 8, it is the intent of this amendment that the sales and use tax levied under Arkansas Constitution, Amendment 91, continue after the retirement of the bonds authorized in Arkansas Constitution, Amendment 91, to provide special revenue for use of maintaining, repairing, and improving the state's system of highways, county roads, and city streets.

§ 2. Excise tax.

(a)(1) Except for food and food ingredients, an additional excise tax of one-half percent (0.5%) is levied on all taxable sales of tangible personal property, specified digital products, a digital code, and services subject to the tax levied by the Arkansas Gross Receipts Act of 1941, Arkansas Code § 26-52-101 et seq.

(2) The tax shall be collected, reported, and paid in the same manner and at the same time as is prescribed by law for the collection, reporting, and payment of all other Arkansas gross receipts taxes.

(b)(1) Except for food and food ingredients, an additional excise tax of one-half percent (0.5%) is levied on all tangible personal property, specified digital products, a digital code, and services subject to the tax levied by the Arkansas Compensating Tax Act of 1949, Arkansas Code § 26-53-101 et seq.

(2) The tax shall be collected, reported, and paid in the same manner and at the same time as is prescribed by law for the collection, reporting, and payment of Arkansas compensating taxes.

§ 3. Disposition of revenue.

(a) The revenue from the taxes levied under § 2 of this amendment shall be distributed to the State Highway and Transportation Department Fund, the County Aid Fund, and the Municipal Aid Fund in the percentages provided in sections § 27-70-201 and § 27-70-206 of the Arkansas Highway Revenue Distribution Law.

(b) No revenue derived from the taxes levied under § 2 of this amendment shall be used to secure bonds issued by the State Highway Commission.

§ 4. Effective date.

(a) If the Chief Fiscal Officer of the State determines that a written statement under Arkansas Constitution, Amendment 91, § 8(b), has been filed with the Chief Fiscal Officer of the State before June 1, 2023, the tax under § 2 of this amendment shall be levied and collected on and after July 1, 2023.

(b) If a written statement under Arkansas Constitution, Amendment 91, § 8(b), has not been filed with the Chief Fiscal Officer of the State before June 1, 2023, the tax under § 2 of this amendment shall not be levied and collected until the first day of the first calendar quarter beginning more than thirty (30) days after a written statement under Arkansas Constitution, Amendment 91, § 8(b), is filed with the Chief Fiscal Officer of the State.

AMEND. 102. ARKANSAS TERM LIMITS AMENDMENT (CONST. AMEND. 73, § 2, AMENDED).

Publisher's Notes. This amendment amended Ark. Const. Amend. 73, § 2, and is incorporated within that section. The amendment was proposed by S.J.R. 15 during the 2019 Regular Session and adopted at the 2020 general election by a vote of 647,861 for and 521,979 against.

Effective Dates.
Ark. Const. Amend. 102, § 2(2): Jan. 1, 2021.

AMEND. 103. [USE OF LOTTERY PROCEEDS UNDER ARTICLE 19, § 14] (CONST., ART. 19, § 14, AMENDED).

Publisher's Notes. This amendment in § 1 amended Ark. Const., Art. 19, § 14(b), and is incorporated within that section. The amendment was proposed by H.J.R. 1006 during the 2023 Regular Session and adopted at the 2024 general election by a vote of 1,029,102 for and 119,527

against. For further information, see the publisher's note at Ark. Const., Art. 19, § 14.

The bracketed heading was added by the Publisher.

Effective Dates.

Ark. Const., Amend. 103, § 2: Jan. 1, 2025.

AMEND. 104. [CASINO LICENSES UNDER AMENDMENT 100, § 4] (CONST., AMEND. 100, § 4, AMENDED).

Publisher's Notes. This amendment in §§ 1 — 3 amended Ark. Const., Amend. 100, § 4, and is incorporated within that section. The amendment was proposed by initiated petition and adopted at the 2024 general election by a vote of 638,655 for and 505,772 against. For further information, see the publisher's note at Ark. Const., Amend. 100.

Amend. 104, § 4, provided: "Severability. If any provision or section of this Amendment or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect any other provisions or application of the Amendment that can be given effect without the

invalid provisions or applications, and to this end the provisions of this Amendment are declared to be severable."

Amend. 104, § 5, provided: "Repeal of Conflicting Laws. By adoption of this Amendment, all Arkansas laws or parts of Arkansas laws in conflict with this Amendment are repealed."

The bracketed heading was added by the Publisher.

Effective Dates.

Ark. Const., Amend. 104, § 6: Nov. 13, 2024.

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 - Prohibited, AR Const Art 2 §17.
 - Letting of public contracts, AR Const Art 19 §16.
 - Purchase of printing, stationery and supplies.
 - Bids.
 - Award of contract to lowest responsible bidder, AR Const Amd 54.
- Corporations.**
 - Charters.
 - Alteration, revocation or annulment.
 - Power of general assembly, AR Const Art 12 §6.
 - Revocation of certain charters, AR Const Art 12 §1.
 - Foreign corporations.
 - Doing business in state, AR Const Art 12 §11.
 - Formation of corporations, AR Const Art 12 §6.
 - Indebtedness to state.
 - Release, AR Const Art 12 §12.
 - Liabilities to state, AR Const Art 5 §33.
 - Remission of forfeiture of charter.
 - Conditions, AR Const Art 17 §8.
 - Special acts conferring corporate powers, AR Const Art 12 §2.
 - State not to assume liabilities of corporations, AR Const Art 12 §12.
 - Stock and stockholders.
 - Issuance of stocks or bonds.
 - Conditions and restrictions, AR Const Art 12 §8.
 - Political subdivisions not to become stockholders, AR Const Art 12 §5.
 - State not to be stockholder, AR Const Art 12 §7.
 - Taking of property by corporation.
 - Compensation, AR Const Art 12 §9.
 - Taxation.
 - Corporate property, AR Const Art 16 §7.
- Corruption.**
 - Bribery.
 - General assembly member or state officer, AR Const Art 5 §35.
 - Making profit out of or misusing public funds.
 - Penalty, AR Const Art 16 §3.
- Cotton.**
 - Taxation.
 - Exemption of cotton mills, AR Const Amd 12.
- Counties.**
 - Bond issues.
 - Borrowing prior to issuance of bonds, AR Const Amd 62 §4.

CONSTITUTION OF ARKANSAS —Cont'd**Counties —Cont'd**

Bond issues —Cont'd

Conduct of elections, AR Const Amd 62 §6.

Disbursement of surplus, AR Const Amd 62 §5.

Joint projects of various governing bodies, AR Const Amd 62 §9.

Local capital improvement bonds, AR Const Amd 62 §1.

Maximum rate of tax stated on ballot, AR Const Amd 62 §4.

Provisions self-executing, AR Const Amd 62 §7.

Special tax constitutes special fund, AR Const Amd 62 §5.

Taxes levied and bonds authorized prior to amendment, AR Const Amd 62 §8.

Bonds, surety.

County officers, AR Const Amd 55 §6.

Procedures for elections with one candidate, AR Const Art 3 §13.

County courts.

Appeals.

Appeals to circuit court, AR Const Art 7 §33.

Clerks of court, AR Const Amd 41.

Judges.

Absence of circuit judge.

Powers, AR Const Art 7 §37.

Compensation, AR Const Art 7 §37.

Qualifications, AR Const Art 7 §29.

Single judge, AR Const Art 7 §28.

Term of office, AR Const Art 7 §29.

Jurisdiction, AR Const Art 7 §28.

Quorum court.

County judge and justices of peace, AR Const Art 7 §30.

Terms of court, AR Const Art 7 §31.

County libraries.

Tax levy for.

Petition, AR Const Amd 38 §5.

Results of election, AR Const Amd 38 §2.

Court of appeals, AR Const Amd 80.**Courts.**

Circuit courts.

Clerks, AR Const Art 7 §19, Amd 24.

Established, AR Const Amd 80.

Judges.

Exchange of circuits, AR Const Amd 77.

Qualifications, AR Const Amd 80.

Common pleas courts.

Appeal to circuit court, AR Const Art 7 §33.

County courts.

Clerks of court, AR Const Amd 41.

Court of appeals, AR Const Amd 80.

Schedule.

Transfer of jurisdiction of courts, AR Const Art 20 §23.

Criminal law and procedure.

Bail.

Excessive bail.

Prohibited, AR Const Art 2 §9.

Right to bail, AR Const Art 2 §8.

Change of venue, AR Const Art 2 §10.

CONSTITUTION OF ARKANSAS —Cont'd**Criminal law and procedure —Cont'd**

Conviction not to work corruption of blood or forfeiture of estate, AR Const Art 2 §17.

Double jeopardy.

Prohibited, AR Const Art 2 §8.

Due process, AR Const Art 2 §8.

Excessive bail or punishment prohibited, AR Const Art 2 §9.

Habeas corpus, AR Const Art 2 §11.

Indictments, AR Const Art 2 §8.

Rights of accused, AR Const Art 2 §10.

Searches and seizures.

Unreasonable searches and seizures, AR Const Art 2 §15.

Self-incrimination, AR Const Art 2 §8.

Treason, AR Const Art 2 §14.

Deaf persons.

Institutions for.

General assembly to provide for, AR Const Art 19 §19.

Debts.

Imprisonment for debt, AR Const Art 2 §16.

State debt.

Payment, AR Const Art 16 §2.

Declaration of rights.

Accused.

Enumeration of rights of accused, AR Const Art 2 §10.

Arms.

Right to bear arms, AR Const Art 2 §5.

Assembly.

Right of assembly, AR Const Art 2 §4.

Attainder.

Bills of attainder prohibited, AR Const Art 2 §17.

Bail.

Right to bail, AR Const Art 2 §8.

Banishment.

Prohibited, AR Const Art 2 §21.

Corruption of blood.

Convictions not to work, AR Const Art 2 §17.

Debt.

Imprisonment for debt, AR Const Art 2 §16.

Deprivation of life, liberty and property, AR Const Art 2 §21.

Double jeopardy.

Prohibited, AR Const Art 2 §8.

Due process, AR Const Art 2 §8.

Eminent domain, AR Const Art 2 §23.

Taking without just compensation prohibited, AR Const Art 2 §22.

Encroachments.

Protection against, AR Const Art 2 §29.

Enumeration not exclusive of other rights, AR Const Art 2 §29.

Equality before the law, AR Const Art 2 §3.

Equality of man, AR Const Art 2 §2.

Ex post facto laws.

Prohibited, AR Const Art 2 §17.

Forfeiture of estate.

Conviction not to work, AR Const Art 2 §17.

Habeas corpus, AR Const Art 2 §11.

CONSTITUTION OF ARKANSAS —Cont'd**Declaration of rights —Cont'd**

Impairment of obligation of contract.

Prohibited, AR Const Art 2 §17.

Indictments, AR Const Art 2 §8.

Jury.

Civil cases.

Number of jurors required to agree on verdict, AR Const Art 2 §7.

Right to jury trial.

Waiver, AR Const Art 2 §7, Amd 16.

Libel.

Truth as defense, AR Const Art 2 §6.

Military subordinate to civil power, AR Const Art 2 §27.

Monopolies.

Prohibited, AR Const Art 2 §19.

Perpetuities.

Prohibited, AR Const Art 2 §19.

Petition.

Right of petition, AR Const Art 2 §4.

Press.

Liberty of the press, AR Const Art 2 §6.

Private property.

Taking without just compensation prohibited, AR Const Art 2 §22.

Privileges and immunities.

Equality, AR Const Art 2 §18.

Real property.

Tenure of lands, AR Const Art 2 §28.

Redress of wrongs, AR Const Art 2 §13.

Religion.

Freedom of religion, AR Const Art 2 §24.

Protection of religion, AR Const Art 2 §25.

Tests.

Religious tests not to be required, AR Const Art 2 §26.

Searches and seizures.

Unreasonable searches and seizures, AR Const Art 2 §15.

Self-incrimination, AR Const Art 2 §8.

Slavery.

Prohibited, AR Const Art 2 §27.

Source of political power, AR Const Art 2 §§1, 2.

Speech.

Freedom of speech, AR Const Art 2 §6.

Standing armies.

Not to be kept in time of peace, AR Const Art 2 §27.

Suspension of laws, AR Const Art 2 §12.

Taxation.

State's right of taxation, AR Const Art 2 §23.

Treason, AR Const Art 2 §14.

Weapons.

Right to bear arms, AR Const Art 2 §5.

Witnesses.

Unreasonable detention prohibited, AR Const Art 2 §9.

Departments of government, AR Const Art 4 §1.

Separation, AR Const Art 4 §2.

Digest of laws.

Publication, AR Const Art 19 §17.

CONSTITUTION OF ARKANSAS —Cont'd**Discrimination.**

Carriers.

Prohibited, AR Const Art 17 §6.

District courts.

Establishment, AR Const Amd 80.

Judges.

Qualifications, AR Const Amd 80.

Dueling, AR Const Art 19 §2.

Economic development bonds, AR Const Amd 90.

Economic development, obligation bonds for, AR Const Amd 82.

Education.

Free school system, AR Const Art 14 §1, Amd 53.

School fund.

Purposes, AR Const Art 14 §2.

Supervision of schools, AR Const Art 14 §4.

Taxation, AR Const Art 14 §3.

School taxes, AR Const Amds 11, 40.

Effective date of legislation, AR Const Amd 7.

Eminent domain, AR Const Art 2 §23.

Corporate property subject to, AR Const Art 17 §9.

Corporations.

Taking of property by corporation.

Compensation, AR Const Art 12 §9.

Taking without just compensation prohibited, AR Const Art 2 §22.

Energy efficiency projects.

Bond issues, AR Const Amd 89.

Environmental enhancement funds.

Gross receipts tax, AR Const Amd 75.

Equal suffrage, AR Const Amd 8.**Executions.**

Railroads.

Movable property subject to, AR Const Art 17 §11.

Executive officers, AR Const Art 6 §3, Amd 56 §1.

Composition of executive department, AR Const Art 6 §1, Amd 6 §1.

Contested election, AR Const Art 6 §4.

County executive officers, AR Const Art 7 §46.

Dual office holding.

Prohibited, AR Const Art 6 §22.

Duties, AR Const Art 6 §22.

Ineligible to hold civil office, AR Const Art 7 §53.

Terms of office, AR Const Amd 63 §1.

Vacancies in office.

Filling, AR Const Art 6 §22.

Exemptions.

Constitution of 1868.

Exemptions under, AR Const Art 9 §9.

Homestead exemption.

Amount, AR Const Amd 22 §§1, 2.

Effective date of amendment, AR Const Amd 22 §5.

Exceptions, AR Const Art 9 §3.

Generally, AR Const Art 9 §3.

Minor children, AR Const Art 9 §10.

Notes or bonds of state not impaired, AR Const Amd 22 §4.

CONSTITUTION OF ARKANSAS —Cont'd**Exemptions —Cont'd**

Homestead exemption —Cont'd

Restoration of tax funds eliminated, AR Const Amd 22 §3.

Rural homestead, AR Const Art 9 §4.

Urban homestead, AR Const Art 9 §5.

Widows and children, AR Const Art 9 §6.

Married women.

Separate property, AR Const Art 9 §§7, 8.

Personal property exemptions.

Heads of families, AR Const Art 9 §2.

Persons not heads of families, AR Const Art 9 §1.

Ex post facto laws.

Prohibited, AR Const Art 2 §17.

Fail-safe voting, AR Const Amd 51 §13.**Fees.**

State officers.

General assembly to fix fees, AR Const Art 16 §4.

Fishing and hunting, rights of citizens, AR Const Amd 88.**Gambling.**

Bingo or raffles, authorization, AR Const Amd 84.

Casino gaming amendment of 2018.

Licensing of casinos in Crittenden, Garland, Pope and Jefferson counties, AR Const Amd 100.

Hot Springs.

Pari-mutuel wagering lawful, AR Const Amd 46.

Game and fish commission.

Arrest.

Powers of personnel, AR Const Amd 35 §8.

Audit, AR Const Amd 35 §8.

Chairman, AR Const Amd 35 §6.

Creation, AR Const Amd 35 §1.

Executive secretary, AR Const Amd 35 §7.

Expenses of members, AR Const Amd 35 §4.

Funds, AR Const Amd 35 §8.

Number of members, AR Const Amd 35 §1.

Oath of office of members, AR Const Amd 35 §4.

Personnel, AR Const Amd 35 §7.

Nepotism.

Prohibited, AR Const Amd 35 §8.

Powers, AR Const Amd 35 §8.

Qualifications of members, AR Const Amd 35 §§1, 2.

Removal of members, AR Const Amd 35 §5.

Terms of office, AR Const Amd 35 §§2, 3.

Vacancies.

Filling, AR Const Amd 35 §6.

General assembly, AR Const Art 8 §6.

Adjournments, AR Const Art 5 §28.

Power of governor to adjourn, AR Const Art 6 §20.

Administrative rules, review and approval, AR Const Art 5 §42.

Age.

Qualifications of senators and representatives, AR Const Art 5 §4.

CONSTITUTION OF ARKANSAS —Cont'd**General assembly —Cont'd**

Amendment of other constitutional provisions generally, AR Const Amd 86.

Apportionment.

Board of apportionment.

Creation, AR Const Art 8 §1, Amds 23, 45.

Duties, AR Const Art 8 §§1, 4, Amds 23, 45.

Mandamus to compel board to act, AR Const Art 8 §5, Amds 23, 45.

House of representatives, AR Const Art 8 §2, Amds 23, 45.

Senate, AR Const Art 8 §3, Amd 23.

Arrest.

Privileges of members, AR Const Art 5 §15.

Bills.

Amendment of bills.

Restriction, AR Const Art 5 §21.

Appropriations bills.

Enactment of general appropriation bill, AR Const Art 5 §40, Amd 19.

Effective date of legislation, AR Const Amd 7.

Enactment of laws.

Majority required, AR Const Art 5 §37, Amd 19.

Expenses incurred or authorized only by bill, AR Const Art 5 §41, Amd 19.

Local or special bills.

Notice, AR Const Art 5 §26.

Passage of bills, AR Const Art 5 §22.

Passage of laws by bill, AR Const Art 5 §21.

Time limit for introduction, AR Const Art 5 §34.

Veto by governor, AR Const Art 6 §§15, 17.

Bribery.

Members of general assembly, AR Const Art 5 §35.

Carriers.

Regulation of carriers, AR Const Art 17 §10.

Contempt.

Power of each house to punish for contempt, AR Const Art 5 §12.

Effective date of legislation, AR Const Amd 7.

Generally, AR Const Art 5 §1.

Governor.

Adjournment.

Power to adjourn, AR Const Art 6 §20.

Extraordinary sessions.

Calling, AR Const Art 6 §19.

Messages to general assembly, AR Const Art 6 §8.

House of representatives.

Apportionment, AR Const Art 8 §2, Amds 23, 45.

Number of members, AR Const Art 8 §2, Amds 23, 45.

Officers.

Presiding officer, AR Const Art 5 §18.

Qualifications of senators, AR Const Art 5 §4.

Speaker of house, AR Const Art 5 §18.

Terms of office, AR Const Art 5 §2.

Indictments.

Expulsion of member no bar to indictment, AR Const Art 5 §36.

CONSTITUTION OF ARKANSAS —Cont'd**General assembly —Cont'd**

Ineligibility for membership.

Certain officers ineligible, AR Const Art 5 §7.

Conviction of certain crimes, AR Const Art 5 §9.

Defaulters, AR Const Art 5 §8.

Ineligibility of members to civil office, AR Const Art 5 §10.

Journals.

Each house to keep journal of proceedings, AR Const Art 5 §12.

Lobbyists.

Gifts from lobbyists, AR Const Art 19 §30.

Registration by former member of general assembly, AR Const Art 19 §29.

Local or special acts.

Prohibited, AR Const Amd 14.

Mileage of members, AR Const Amd 5.

Officers.

Appointment, AR Const Art 5 §11.

Powers of each house, AR Const Art 5 §12.

Privileges of members, AR Const Art 5 §15.

Public officers and employees.

Election of officers by general assembly, AR Const Art 5 §14.

Qualifications of members.

Each house sole judge, AR Const Art 5 §11.

Quorum.

Majority of each house, AR Const Art 5 §11.

Revival, amendment or extension of laws, AR Const Art 5 §23.

Salaries, independent citizens commission to set, AR Const Art 19 §31.

Schedule.

Election of representatives and senators.

First election, AR Const Art 20 §19.

First session of general assembly, AR Const Art 20 §22.

Senate.

Apportionment, AR Const Art 8 §3, Amd 23.

Districts, AR Const Art 8 §3, Amd 23.

Number of members, AR Const Art 8 §3, Amd 23.

Officers.

Presiding officer, AR Const Art 5 §18.

President of senate, AR Const Art 5 §18.

Qualifications of senators, AR Const Art 5 §4.

Terms of office, AR Const Art 5 §3.

Sessions.

Duration, AR Const Art 5 §17.

Effective date of legislation, AR Const Amd 7.

Extraordinary sessions, AR Const Art 6 §19.

Open sessions, AR Const Art 5 §13.

Suspension of laws.

Sole power of suspending or setting aside laws, AR Const Art 2 §12.

Time of meeting, AR Const Art 5 §5.

Vacancies in office.

Writs of election to fill, AR Const Art 5 §6.

Waiting period prior to certain activities following expiration of term of office, AR Const Art 19 §29.

CONSTITUTION OF ARKANSAS —Cont'd**General assembly —Cont'd**

Workers' compensation.

Power to enact for, AR Const Art 5 §32, Amd 26.

Geology.

State geologist.

Appointment, AR Const Art 10 §2.

Creation of office, AR Const Art 10 §2.

Removal from office, AR Const Art 10 §2.

Governor, AR Const Art 6 §§3, 4, Amd 6 §3.

Bills.

Approval, AR Const Art 6 §15.

Veto, AR Const Art 6 §15.

Concurrent orders or resolutions, AR Const Art 6 §16.

Items in appropriation bills, AR Const Art 6 §17.

Commander-in-chief of armed services, AR Const Art 6 §6.

Eligibility, AR Const Art 6 §5.

General assembly.

Adjournment.

Power to adjourn, AR Const Art 6 §20.

Extraordinary sessions.

Calling, AR Const Art 6 §19.

Messages to general assembly, AR Const Art 6 §8.

Impeachment.

General provisions, AR Const Art 15 §§1, 2.

Incompatible offices, AR Const Art 6 §11.

Militia.

Authority to call out volunteers or militia, AR Const Art 11 §4.

Pardons.

Power to pardon, AR Const Art 6 §18.

President of senate.

Succeeding to governor's office, AR Const Art 6 §12.

Qualifications, AR Const Art 6 §5.

Removal of officers upon address, AR Const Art 15 §3.

Reports.

Power to require reports from executive departments, AR Const Art 6 §7.

Succession to office.

President of senate, AR Const Art 6 §12.

Speaker of house, AR Const Art 6 §13.

Supreme executive power, AR Const Art 6 §2, Amd 6 §2.

Term of office, AR Const Art 6 §2, Amd 6 §2.

Vacancy in office.

Election to fill, AR Const Art 6 §14.

Veto power, AR Const Art 6 §§15 to 17.

Grants and commissions.

Issuance, AR Const Art 6 §10.

Habeas corpus, AR Const Art 2 §11.**Highways.**

Four-lane highway construction and improvement general obligation bonds, AR Const Amd 101.

State highway commission.

Appointment of members, AR Const Amd 42 §2.

CONSTITUTION OF ARKANSAS —Cont'd**Highways —Cont'd**

- State highway commission —Cont'd
 - Creation, AR Const Amd 42 §1.
 - Director of highways.
 - Appointment by commission, AR Const Amd 42 §6.
 - Removal of members, AR Const Amd 42 §4.
 - Terms of members, AR Const Amd 42 §§2, 3.
 - Vacancies.
 - Filling, AR Const Amd 42 §5.

Hospitals.

- County or city hospitals.
 - Tax levy for, AR Const Amd 32, Amd 32 §2.
 - Petition, AR Const Amd 32 §1.
 - Raising, reducing or abolishing tax.
 - Petition and election, AR Const Amd 32 §3.
 - Self-executing effect of amendment, AR Const Amd 32 §4.

Hunting and fishing, rights of citizens, AR Const Amd 88.**Illegal exactions.**

- Actions against enforcement, AR Const Art 16 §13.

Impeachment.

- Grounds for impeachment, AR Const Art 15 §1.
- House of representatives.
 - Impeachment by house, AR Const Art 15 §2.
- Officers subject to impeachment, AR Const Art 15 §1.
- Senate.
 - Trial by senate, AR Const Art 15 §2.

Improvements.

- Municipal assessments for local improvements, AR Const Art 19 §27.

Indictments.

- Prosecution by indictment or information, AR Const Amd 21 §1.
- Right to indictment, AR Const Art 2 §8.
- Style of indictments, AR Const Art 7 §49.

Industry.

- Exemption of manufacturers from taxation.
 - Power of general assembly, AR Const Art 10 §3.
- Fostering and aiding manufacturing.
 - Powers of general assembly, AR Const Art 10 §1.

Infants.

- Jurisdiction of matters relating to juveniles, AR Const Amd 67.

Informations.

- Prosecution by indictment or information, AR Const Amd 21 §1.

Initiative and referendum, AR Const Amd 7.**Interest.**

- Legal rate, AR Const Amd 60.

Judges.

- Judicial discipline and disability commission, AR Const Amd 66.
- Qualifications, AR Const Amd 80.
- Special judges, AR Const Art 7 §36.

CONSTITUTION OF ARKANSAS —Cont'd**Jurisdiction.**

- Circuit courts.
 - Removal of county and township officers, AR Const Art 7 §27.
- County courts, AR Const Art 7 §28.
- Juveniles and bastardy matters, AR Const Amd 67.

Jury.

- Charge to juries, AR Const Art 7 §23.
- Civil cases.
 - Number of jurors required to agree on verdict, AR Const Art 2 §7, Amd 16.
- Right to jury trial.
 - Waiver, AR Const Art 2 §7, Amd 16.

Justices of the peace.

- Oath of office, AR Const Art 7 §38.
- Qualifications, AR Const Art 7 §41.
- Quorum court.
 - County judge and justices of the peace, AR Const Art 7 §30.
- Term of office, AR Const Art 7 §38.

Labor.

- Unions.
 - Discrimination for or against union labor.
 - Prohibited, AR Const Amd 34 §1.
 - Enforcement of amendment, AR Const Amd 34 §2.

Laws.

- Style of laws, AR Const Art 5 §19.

Libel.

- Truth as defense, AR Const Art 2 §6.

Libraries.

- City libraries.
 - Coordination of city with county library, AR Const Amd 30 §4.
- Tax.
 - Election on question, AR Const Amd 30 §§1, 2, 5, Amd 72.
 - Levy, AR Const Amd 30 §2.
 - Petition for, AR Const Amd 30 §§1, 5, Amd 72.
 - Raising, reducing or abolishing.
 - Petition and election, AR Const Amd 30 §3, Amd 72.
- County libraries.
 - Coordination of county with city library, AR Const Amd 38 §4.
 - Tax levy for, AR Const Amd 38 §§1 to 3.
 - Petition, AR Const Amd 38 §1, Amd 72.
 - Raising, reducing or abolishing tax.
 - Petition and election, AR Const Amd 38 §3, Amd 72.

Lieutenant governor, AR Const Amd 6 §3.

- Acting as governor, AR Const Amd 6 §4.
- Duties, AR Const Amd 6 §5.
- Executive power, AR Const Art 6 §2, Amd 6 §2.
- Qualifications, AR Const Amd 6 §5.
- Succession to governorship, AR Const Amd 6 §5.

Loans.

- State and political subdivisions prohibited from lending credit, AR Const Art 16 §1.

Lobbyists.

- Gifts from lobbyists, AR Const Art 19 §30.

CONSTITUTION OF ARKANSAS —Cont'd**Lobbyists —Cont'd**

Registration by former member of general assembly, AR Const Art 19 §29.

Local and special laws.

Notice of local or special bills, AR Const Art 5 §26.

Prohibited, AR Const Art 5 §§24, 25.

Local governments.

Bond issues, AR Const Art 12 §4, Amd 10.

Corporations.

Stock and stockholders.

Political subdivisions not to become stockholders, AR Const Art 12 §5.

Finance, AR Const Art 12 §4.

Loans.

Political subdivisions not to lend credit to private corporations, AR Const Art 12 §5.

Political subdivisions prohibited from lending credit, AR Const Art 16 §1.

State not to assume liabilities of political subdivisions, AR Const Art 12 §12.

Lotteries, AR Const Amd 87.

Bingo or raffles, authorized, AR Const Amd 84.

Prohibited, AR Const Art 19 §14.

Marriage as between one man and one woman, AR Const Amd 83.**Married women.**

Separate property, AR Const Art 9 §§7, 8.

Medical marijuana amendment of 2016, AR Const Amd 98.**Mental health.**

Treatment of the insane.

General assembly to provide for, AR Const Art 19 §19.

Military affairs.

Governor.

Commander-in-chief of armed forces, AR Const Art 6 §6.

Military subordinate to civil power, AR Const Art 2 §27.

Poll tax.

Exemption of members of United States armed forces, AR Const Amd 36.

Militia.

Arrest.

Privilege of members from arrest, AR Const Art 11 §3.

Composition, AR Const Art 11 §1.

Governor.

Authority to call out volunteers or militia, AR Const Art 11 §4.

Volunteer companies, AR Const Art 11 §2.

Mines and minerals.

Exemption of mines from taxation.

Power of general assembly, AR Const Art 10 §3.

Fostering and aiding mining.

Powers of general assembly, AR Const Art 10 §1.

Safety of miners.

General assembly may provide for, AR Const Art 19 §18.

CONSTITUTION OF ARKANSAS —Cont'd**Minors.**

Jurisdiction of matters relating to juveniles, AR Const Amd 67.

Money.

Paper which may circulate as money.

General assembly not to authorize issuance, AR Const Art 12 §10.

Monopolies.

Prohibited, AR Const Art 2 §19.

Municipal corporations.

Bond issues.

Borrowing prior to issuance of bonds, AR Const Amd 62 §4.

Cities of first and second class, AR Const Art 16 §1.

Conduct of elections, AR Const Amd 62 §6.

Disbursement of surplus, AR Const Amd 62 §5.

Industrial development bonds, AR Const Amd 62 §2.

Joint projects for various governing bodies, AR Const Amd 62 §9.

Local capital improvement bonds, AR Const Amd 62 §1.

Maximum rate of tax stated on ballot, AR Const Amd 62 §4.

Provisions self-executing, AR Const Amd 62 §7.

Special tax constitutes special fund, AR Const Amd 62 §5.

Taxes levied and bonds authorized prior to amendment, AR Const Amd 62 §8.

Hospitals.

City hospitals, AR Const Amd 32.

Improvements.

Municipal assessments for local improvements, AR Const Art 19 §27.

Libraries.

City libraries.

Coordination of city with county library, AR Const Amd 30 §4.

Tax for, AR Const Amd 30 §§1 to 3.

Organization under general laws, AR Const Art 12 §3.

Powers.

Limitation on legislative and taxing powers, AR Const Art 12 §4.

Taxation.

City tax to aid industries, AR Const Amd 18.

Hospitals.

Tax levy for city hospitals, AR Const Amd 32.

Libraries, AR Const Amd 30 §§1 to 3.

Limitation on taxing power, AR Const Art 12 §4, Amd 10.

Payment of municipal taxes, AR Const Art 16 §10.

Nepotism.

Vacancies in office.

Appointments by governor to fill.

Ineligible persons, AR Const Amd 29 §2.

Oaths.

Oath of office, AR Const Art 19 §20.

CONSTITUTION OF ARKANSAS —Cont'd**Officers of elections**, AR Const Art 3 §10.**Pardons.**

Power of governor, AR Const Art 6 §18.

Paternity.

Jurisdiction of matters relating to bastardy, AR Const Amd 67.

Perpetuities.

Prohibited, AR Const Art 2 §19.

Poll tax, AR Const Art 3 §1.**Property.**

Aliens.

Resident aliens.

Distinctions between citizens and resident aliens in regard to property prohibited, AR Const Art 2 §20.

Property taxes.

Relief, AR Const Amd 79.

Prosecuting attorneys.

Salaries, AR Const Amd 21 §2.

Public officers and employees.

Atheists.

Disqualification from holding office, AR Const Art 19 §1.

Bonds, surety.

Sureties on official bonds, AR Const Art 19 §21, Amd 4.

Commissions.

Judicial officers, AR Const Art 7 §48.

Dual office holding.

Certain officers eligible to executive or judicial office, AR Const Art 19 §26.

Prohibited, AR Const Art 19 §6.

Dueling.

Disqualification from holding office, AR Const Art 19 §2.

Extra compensation.

Prohibited, AR Const Art 5 §27.

Holding over, AR Const Art 19 §5.

Impeachment, AR Const Art 15 §§1, 2.

Oath of office, AR Const Art 19 §20.

Permanent state offices.

Creation restricted, AR Const Art 19 §9.

Qualifications, AR Const Art 19 §3.

Removal upon address, AR Const Art 15 §3.

Residence, AR Const Art 19 §4.

Salaries, AR Const Art 20 §28.

Deductions, AR Const Art 19 §8.

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